SUPPLEMENT NO. 153
July 2026

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-10-2, adopted October 13, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxciii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
385, 386	385—386.1
403, 404	403, 404
413—420	413—420
427, 428	427, 428
461—464	461—464
503, 504	503, 504
537, 538	537, 538
847—852	847—852
861, 862	861, 862
870.13—870.16	870.13—870.16.1
870.22.1—870.24	870.23—870.24.1
993—994.8	993—994.8
1139—1140.1	1139—1140.1
1257—1263	1257—1263
1459—1464	1459—1464
3208.23, 3208.24	3208.23, 3208.24

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 152
March 2026

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-7-5, adopted July 28, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxci
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
380.1—428	381—428.24
442.1—480.10	443—480.31
537—558	537—561
597—614	597—599
	601—646.75
845—862	845—862
870.3—870.22.1	870.3—870.22.1
981—988	981—988.3
3208.23	3208.23, 3208.24
3209—3210.6	3209—3210.6
3219—3260	3219—3260

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 151
September 2025

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-3-8, adopted March 24, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxxxix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9—SH:11
442.3—442.4.1	442.3—442.4.1
537, 538	537, 538
870.19—870.22	870.19—870.22.1
999—1003	999—1003
3208.23	3208.23
3209, 3210	3209, 3210
3219, 3220	3219, 3220
3229, 3230	3229, 3230

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 150
August 2025

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-1-5, adopted January 13, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxxxvii
TOC:vii, TOC:viii	TOC:vii, TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
859—862	859—862
868.3—870	869—870.29
931, 932	931, 932
993, 994	993, 994
1129—1136	1129—1136
1259—1263	1259—1263
3208.21, 3208.22	3208.21—3208.23
3219—3260	3219—3260

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 149
March 2025

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-10-2, adopted October 14, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxxxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
845—868.22	845—868.30
1257—1260	1257—1260.1
1419	1419
1449—1450.3	1449—1450.3
1459—1464	1459—1464
3208.21, 3208.22	3208.21, 3208.22
3210.1, 3210.2	3210.1, 3210.2
3219—3260	3219—3260

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 148
December 2024

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-7-2, adopted July 22, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxxxiii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
375, 376	375, 376
480.1	480.1—480.10
868.11—868.12.8	868.11—868.12.8
868.19—868.22	868.19—868.22
1441—1450.3	1441—1450.3
3208.21, 3208.22	3208.21, 3208.22
3209—3210.6	3209—3210.6
3219—3259	3219—3260

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 147
July 2024

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-4-3, adopted April 8, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxxxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
868.5—868.12.7	868.5—868.12.8
1106.1	1106.1
3208.21, 3208.22	3208.21, 3208.22

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 146
June 2024

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-1-11, adopted January 22, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxxix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
868.11—868.12.7	868.11—868.12.7
1259—1263	1259—1263
3208.21, 3208.22	3208.21, 3208.22

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 145
March 2024

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-10-1, adopted October 9, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxxvii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
375, 376	375, 376
390.11—400.2	391—400.2.1
400.9—400.11	400.9, 400.10
557—560	557, 558
763, 764	763, 764
841—868.12	841—868.12.7
979	979
986.3—994.8	987—994.8
1105—1106.1	1105—1106.1
1257—1260	1257—1260
1308.1—1311	1309—1311
1359—1361	1359—1361
1459—1464	1459—1464
3208.21	3208.21, 3208.22
3210.1, 3210.2	3210.1, 3210.2
3219—3259	3219—3259

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 144
November 2023

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-7-4, adopted July 24, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxxv
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9, SH:10
845—858.2	845—858.5
863—868	863—868.22
993—994.8	993—994.8
1307, 1308	1307, 1308
3208.21	3208.21

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 143
September 2023

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-4-7, adopted April 24, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
91—93	91—93
864.3—864.10.1	864.3—864.10.1
864.15—864.16.1	864.15—864.16.1
3208.21	3208.21

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 142
August 2023

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-12-5, adopted December 12, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
clxix	clxix
	clxxi
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
385, 386	385—386.1
390.11, 390.12	390.11, 390.12
461, 462	461—462.1
471, 472	471, 472
864.7—864.10	864.7—864.10.1
1257—1263	1257—1263
1459—1464	1459—1464
3208.21	3208.21
3221, 3222	3221—3222.1
3245, 3246	3245, 3246

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 141
August 2023

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-10-3, adopted October 10, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxix
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
167, 168	167, 168
377—380	377—380.1
677, 678	677, 678
981—984	981—984.1
989—994.8	989—994.8
1041—1046.1	1041—1046.1
1109, 1110	1109, 1110
1389—1396	1389—1399
3208.19, 3208.20	3208.19—3208.21
3219—3259	3219—3259

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 140
July 2023

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-7-1, adopted July 25, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
iv.i	iv.i
	clxvii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
835	835
837—850	837—850.2
858.1, 858.2	858.1, 858.2
865—881	865—887
986.3, 986.4	986.3, 986.4
1041—1046	1041—1046.1
1305	1305
1358.3—1360	1359—1361
3208.17—3208.20	3208.17—3208.20
3210.1—3210.6	3210.1—3210.6
3219—3259	3219—3259

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 139
May 2023

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-3-6, adopted March 28, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxv
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7—SH:9
375, 376	375, 376
379—390	379—390.12
406.1—426	407—428
439, 440	439, 440
449—480	449—480.1
537—558	537—557
843, 844	843, 844
858.1, 858.2	858.1, 858.2
864.3, 864.4	864.3—864.4.1
864.7, 864.8	864.7—864.8.1
864.15—864.16.1	864.15—864.16.1
864.21, 864.22	864.21, 864.22
979	979
993—994.8	993—994.8
1307—1308.1	1307—1308.1
1419	1419
1424.1—1436.2	1425—1436.2
3208.19	3208.19, 3208.20
3219—3260	3219—3259

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 138
May 2022

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-12-6, adopted December 13, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
435—442	435—442
979	979
993—994.5	993—994.8
1105—1106.1	1105—1106.1
1259—1263	1259—1263
1457—1460.1	1457—1460.1
3208.17—3208.19	3208.17—3208.19
3209—3210.6	3209—3210.6
3219—3248	3219—3248.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 137
January 2022

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-9-24, adopted September 27, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clxi
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
143	143
147, 148	147, 148
150.5—150.9	150.5—150.10
159, 160	159—160.1
169—173	169—173
263	263
265—306	265—308
377—380	377—380
405, 406	405—406.1
442.3—442.4.1	442.3—442.4.1
739	739
751—758	751—755
843—858	843—858.2
866.1—866.5	866.1—866.5
1001—1006	1001—1003
1041—1044	1041—1044.1
1059—1062	1059—1061
1111—1120	1111—1120
3208.17, 3208.18	3208.17—3208.19
3209—3210.6	3209—3210.6
3221—3256	3221—3255

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 136
September 2021

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-6-14, adopted June 28, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clix
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
89—92	89—92
165—168	165—168.1
864.6.1—864.16	864.7—864.16.1
979	979
999—1004	999—1001
3208.17, 3208.18	3208.17, 3208.18
3209, 3210	3209, 3210
3221, 3222	3221, 3222
3231—3246	3231—3246
3251, 3252	3251, 3252

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 135
July 2021

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-3-2, adopted March 22, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
864.9—864.10.1	864.9—864.10.1
864.14.1—865	864.15—866
1103	1103
1124.9, 1124.10	1124.9, 1124.10
1133—1136	1133—1136
3208.17, 3208.18	3208.17, 3208.18
3231, 3232	3231, 3232

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 134
April 2021

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-12-7, adopted December 14, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	clv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
161, 162	161—162.1
167, 168	167, 168
537, 538	537, 538
849, 850	849—850.1
857, 858	857, 858
864.5—864.6.1	864.5—864.6.1
864.14.1, 864.14.2	864.14.1, 864.14.2
1257—1263	1257—1263
1421—1424	1421—1424.1
1456.1—1460	1457—1460.1
3208.17	3208.17, 3208.18
3209—3210.6	3209—3210.6
3219, 3220	3219, 3220
3225—3230	3225—3230

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 133
February 2021

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-9-13, adopted September 28, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cliii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7, SH:8
89—93	89—93
159, 160	159, 160
537—542	537—542.1
557, 558	557, 558
3208.17	3208.17
3229, 3230	3229, 3230

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 132
October 2020

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-6-10, adopted June 22, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cli
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
145—148.1	145—148
377—380	377—380
647	647
653	653—655
739—744.1	739—743
761—770	761—770.6
862.1—864	862.1—863
864.13—864.14.2	864.13—864.14.2
985—986.4	985—986.4
1002.1—1004	1003, 1004
1421—1424	1421—1424
3208.15, 3208.16	3208.15—3208.17
3209—3210.6	3209—3210.6
3219—3260	3219—3260

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 131
June 2020

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-3-5, adopted March 30, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxlix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
161, 162	161, 162
843, 844	843—844.1
857, 858	857, 858
864.9, 864.10	864.9, 864.10
864.14.1, 864.14.2	864.14.1, 864.14.2
864.18.1—866	864.19—865
3208.15, 3208.16	3208.15, 3208.16

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 130
February 2020

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-12-8, adopted December 17, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxlvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
403, 404	403, 404
843—852	843—852.1
857, 858	857, 858
864.5, 864.6	864.5—864.6.1
864.12.1—864.14	864.13—864.14.2
864.18.3—866	865—866.5
1046.1—1048.1	1047—1048.1
1139, 1140	1139—1140.1
1461—1464	1461—1464
3208.15, 3208.16	3208.15, 3208.16
3209—3210.6	3209—3210.6
3253—3256	3253—3256

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 129
December 2019

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-9-18, adopted September 23, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxlv
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
375, 376	375, 376
400.5—400.7	400.5—400.11
603—617	603—614
835	835
859—860.1	859—860.1
878.1—885	879—881
1109—1124.10	1109—1124.10
1389—1394.2	1389—1394.3
3209, 3210	3208.15, 3208.16
3210.1—3210.8	3209—3210.6
3219—3224.1	3219—3224.1
3229—3240.1	3229—3240.1
3249—3256	3249—3256

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 128
September 2019

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-6-7, adopted June 24, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxliii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:7	SH:7
375, 376	375, 376
433—436.1	433—436.1
835	835
864.8.1—864.10	864.9—864.10.1
864.17—864.18.3	864.17—864.18.3
883—885	883—885
1137—1149	1137—1143
1441—1450.4	1441—1450.3
3209	3209, 3210
3251, 3252	3251—3252.1
3259, 3260	3259, 3260

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 127
June 2019

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-3-9, adopted March 25, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxli
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
864.7—864.8.1	864.7—864.8.1
864.15—864.18.3	864.15—864.18.3
1467—1469	1467—1469
3209	3209

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 126
April 2019

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-12-5, adopted December 18, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxxxix
TOC:i—TOC:vii	TOC:i—TOC:viii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:5, SH:6	SH:5—SH:7
143	143
145, 146	145, 146
165—168	165—168
177	177
375, 376	375, 376
381—400	380.1—399
406.1—426	407—426
449—477	449—480
537—558	537—558
864.18.1, 864.18.2	864.18.1—864.18.3
871, 872	871, 872
1105, 1106	1105—1106.1
1307—1308.1	1307—1308.1
1317—1358	1317—1358.3
1459—1464	1459—1464
1513—1521	1513—1523
3209, 3210	3208.13—3209
3210.1—3210.8	3210.1—3210.8
3221—3224	3221—3224.1
3237—3240	3237—3240.1
3244.1—3248	3245—3248
3255—3258	3255—3258

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 125
December 2018

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-9-17, adopted September 24, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
iv.i	iv.i
	cxxxvii
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
11, 12	11—12.1
147, 148	147—148.1
398.5—400.5	399—400.7
433—436	433—436.1
677—679	677, 678
849—852	849—852
857, 858	857, 858
864.14.1—864.18	864.15—864.18.2
867—868.2	867—868.2
981—985	981—985
999—1002	999—1002.1
3209, 3210	3209, 3210
3210.1—3210.8	3210.1—3210.8
3223, 3224	3223, 3224
3229—3234	3229—3234
3243, 3244	3243—3244.1
3259—3263	3259, 3260

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 124
August 2018

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-6-8, adopted June 25, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxxxv
TOC:i—TOC:viii	TOC:i—TOC:vii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
597	597
599—646.3	599—617
1043—1046.1	1043—1046.1
1145, 1146	1145—1146.1
3209	3209, 3210
3210.1—3210.8	3210.1—3210.8
3219—3262	3219—3260

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 123
June 2018

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-4-5, adopted April 23, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxxxiii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
161, 162	161, 162
755—756.2	755—756.3
843—858	843—858
871, 872	871, 872
1109—1124	1109—1124.10
1307, 1308	1307—1308.1
3209	3209
3210.1—3210.7	3210.1—3210.8
3220.1—3222	3221—3222.1
3235—3242	3235—3242.1
3254.1—3257	3255—3258

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 122
April 2018

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-1-10, adopted January 22, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxxxi
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
857—860.2	857—860.1
864.19—867	864.19—867
979	979
992.1—994.1	993—994.5
1043—1046	1043—1046.1
1459—1464.1	1459—1464
3209	3209
3210.1—3210.7	3210.1—3210.7
3219—3220.1	3219—3220.1
3225—3226.1	3225—3226.1
3233—3254.1	3233—3254.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 121
January 2018

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-10-1, adopted October 9, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxxix
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
864.12.1	864.12.1, 864.12.2
1317—1321	1317—1360
3209	3209
3210.1—3210.7	3210.1—3210.7
3235—3240	3235—3240
3247, 3248	3247—3248.1
3259, 3260	3259, 3260

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 120
December 2017

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-8-7, adopted August 28, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
cxvii	cxvii—cxxvii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5, SH:6
143	143
157—160	157—160
168.1—170	169—170.1
843—858.1	843—858
864.7—864.8.1	864.7—864.8.1
866.1—868	866.1—867
883	883—885
1123—1136	1123—1137
1318.12.1—1318.16	1318.13—1318.16.1
3209, 3210	3208.11—3209
3225, 3226	3225—3226.1
3253, 3254	3253—3254.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 120
December 2017

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-8-7, adopted August 28, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
cxvii	cxvii—cxxvii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5, SH:6
143	143
157—160	157—160
168.1—170	169—170.1
843—858.1	843—858
864.7—864.8.1	864.7—864.8.1
866.1—868	866.1—867
883	883—885
1123—1136	1123—1137
1318.12.1—1318.16	1318.13—1318.16.1
3209, 3210	3208.11—3209
3225, 3226	3225—3226.1
3253, 3254	3253—3254.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 119
July 2017

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-4-6, adopted April 24, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxvii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
397—398.6	397—398.7
403—406	403—406.1
864.3—864.8	864.3—864.8.1
864.19, 864.20	864.19, 864.20
865—866.1	865—866.1
1041—1048	1041—1048.1
1389—1394	1389—1394.2
3209—3210.7	3209—3210.7
3219—3220.1	3219—3220.1
3226.1—3230	3227—3230.1
3239—3244.1	3239—3244.1
3246.1—3248	3247, 3248
3251—3257	3251—3257

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 118
November 2016

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-11-8, adopted November 28, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:5	SH:5
845, 846	845, 846
857, 858	857, 858
864.8.1—864.12	864.9—864.12.1
1247—1250	1247—1250
1257—1263	1257—1263
1459, 1460	1459, 1460
3209, 3210	3209, 3210

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 117
November 2016

CODE OF ORDINANCES

City

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-9-9, adopted September 12, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
157—160	157—160
845—858	845—858.1
864.18.1—866.2	864.19—866.1
871, 872	871, 872
983—985	983—985
3209	3209, 3210
3221—3226.1	3221—3226.1
3249—3250.1	3249, 3250
3263	3263

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 116, REVISION
October 2016

CODE OF ORDINANCES

City

PLANO, TEXAS

Looseleaf Supplement

This Supplement No. 116, Revision, is printed to revise pages appearing in Supplement No. 116, and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
860.1, 860.2	860.1, 860.2

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 116
September 2016

CODE OF ORDINANCES

City

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-6-29, adopted June 28, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
91—93	91—93
263	263
265—297	265—306
398.5—400.1	398.5—400.2
842.1—860	843—860.2
864.8.1	864.8.1
864.17—864.18.1	864.17—864.18.1
873—878.1	873—878.1
981—985	981—985
1119—1124	1119—1124.1
1459—1462	1459—1462
3208.8.1—3209	3208.9—3209
3210.1—3210.7	3210.1—3210.7
3219, 3220	3219—3220.1
3224.1—3226	3225—3226.1
3235—3244	3235—3244.1
3249, 3250	3249—3250.1
3255, 3256	3255, 3256
3261—3263	3261—3263

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 115
May 2016

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-3-14, adopted March 14, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3—SH:5
375, 376	375, 376
379—398.7	379—398.8
405—414	405—414.1
449—469	449—477
535	535
537—559	537—560
757—760.2	757—760.4
837, 838	837—838.2
866.3—868.2	867—868.6
3208.9, 3208.10	3208.8.1—3209
3210.1—3210.7	3210.1—3210.7
3219—3224	3219—3224.1
3235—3240	3235—3240.1
3255—3257	3255—3257

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 114
March 2015

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-12-14, adopted December 22, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxv
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
150.5, 150.6	150.5, 150.6
1459—1464.1	1459—1464.1
3208.9, 3208.10	3208.9, 3208.10

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 113
November 2015

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-9-18, adopted September 28, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cxiii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
143	143
171—174	171—173
864.6.1—864.8.1	864.7—864.8.1
869, 870	869, 870
1319—1321	1319—1321
3208.9, 3208.10	3208.9, 3208.10
3221, 3222	3221, 3222
3249—3250.1	3249, 3250

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 112
August 2015

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-6-9, adopted June 22, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
iv.i	iv.i
	cix
	cxi
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
677—679	677—679
861—862.1	861—862.1
864.17, 864.18	864.17—864.18.1
866.2.1—866.7	866.3—866.6
3208.9, 3208.10	3208.9, 3208.10

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 111
May 2015

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-3-13, adopted March 23, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cvii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
385—388	385—388
393—398	392.1—397
840.1—842	841—842.1
864.3, 864.4	864.3, 864.4
865, 866	864.19—865
3208.9	3208.9,3208.10
3242.1	3242.1
3255—3258	3255—3257

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 110
February 2015

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-12-7, adopted December 8, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	cv
TOC:i—TOC:iv	TOC:i—TOC:iv
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
146.1—150.2	147—150.9
413—428	413—426
677, 678	677—679
843—846	843—846.1
864.5, 864.6	864.5—864.6.1
866.1, 866.2	866.1—866.2.1
1459, 1460	1459—1460.1
1463, 1464	1463—1464.1
3208.9	3208.9
3210.1, 3210.2	3210.1—3210.2.1
3227, 3228	3227, 3228
3235—3238	3235—3238
3240.1—3242	3241—3242.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 109
November 2014

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-9-20, adopted September 22, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
145, 146	145, 146
866.1, 866.2	866.1, 866.2
989—992.1	989—992.2
1259—1263	1259—1263
1421—1424	1421—1424
3208.9	3208.9
3239, 3240	3239—3240.1
3249, 3250	3249—3250.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 108
September 2014

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-6-2, adopted June 9, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	ciii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
739	739
751, 752	751—752.1
756.1—758	756.1—757
859—862	859—862.1
1441—1450.5	1441—1450.4
3208.9	3208.9
3243—3246	3243—3246.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 107
May 2014

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-3-12, adopted March 24, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
iv.i	iv.i
	xcix
	ci
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
211, 212	211, 212
442.3—442.4.1	442.3—442.4.1
451, 452	451—452.1
599, 600	599—600.1
605, 606	605—606.1
636.1—640	637—640.2
645—646.3	645—646.3
979	979
1005—1007	1005, 1006
1109—1110.1	1109—1110.1
1429—1432	1429—1432.1
3208.7, 3208.8	3208.7—3208.9
3219, 3220	3219, 3220
3241—3244	3241—3244

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 106
February 2014

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-12-10, adopted December 17, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
145—146.1	145—146.1
381—398.4	381—398.7
405—416	405—415
442.1—442.4.1	442.1—442.4.1
449—475	449—469
535	535
537—556	537—559
635, 636	635—636.2
839, 840	839, 840
864.4.1—864.8.1	864.5—864.8.1
864.11—864.14	864.11—864.14.2
979	979
999, 1000	999, 1000
1005, 1006	1005—1007
1221	1221
1223—1234	1223—1235
1463, 1464	1463, 1464
3208.7	3208.7, 3208.8
3210.1—3210.4	3210.1—3210.4.1
3219—3252	3219—3252
3259—3263	3259—3263

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 105
January 2013

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-9-29, adopted September 23, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
377—380	377—380
537, 538	537, 538
850.1	850.1
855, 856	855, 856
1041—1050	1041—1050.1
1056.1—1061	1057—1062
1109—1110.1	1109—1110.1
1259—1263	1259—1263
1421—1424	1421—1424
3208.7	3208.7
3210.3, 3210.4	3210.3, 3210.4
3219, 3220	3219, 3220
3229, 3230	3229—3230.1
3243, 3244	3243, 3244

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 104
July 2013

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-6-12, adopted June 24, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
	xcvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
677, 678	677, 678
864.3, 864.4	864.3—864.4.1
3208.7	3208.7

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 103
May 2013

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-3-9, adopted March 25, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	xcv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
858.1—860	859—860.1
864.5, 864.6	864.5—864.6.1
1421—1424	1421—1424
1463, 1464	1463, 1464
3208.7	3208.7
3210.1, 3210.2	3210.1, 3210.2

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 102
February 2013

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-12-16, adopted December 18, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	xciii
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents) SH:3
167, 168	167—168.1
263—274	263—274.1
289—296	289—297
397—398.2	397—398.2
597—643	597—646.3
1043—1046	1043—1046.1
1259, 1260	1259—1260.1
1455, 1456	1455—1456.1
1463—1469	1463—1469
3208.5, 3208.6	3208.5—3208.7
3210.1—3210.4	3210.1—3210.4
3219—3252	3219—3252
3261—3263	3261—3263

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 101
October 2012

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-9-27, adopted September 24, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	xci
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
145, 146	145—146.1
845—850	845—850.1
857—858.1	857—858.1
860.1—864	861—864
1259—1263	1259—1263
3208.5, 3208.6	3208.5, 3208.6
3221, 3222	3221, 3222

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 100
August 2012

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-6-20, adopted June 25, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	lxxxvii
	lxxxix
TOC:i—TOC:viii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
167—171	167—171
441—442.4	441—442.4.1
677, 678	677, 678
856.1—858	857—858.1
864.11—864.12.2	864.11—864.12.2
866.1—866.4	866.1—866.4
1047, 1048	1047, 1048
1115, 1116	1115, 1116
1419	1419
1438.3—1450.3	1439—1450.5
3208.5	3208.5, 3208.6
3223—3229	3223—3229
3237—3242	3237—3242
3253, 3254	3253, 3254
3259—3262	3259—3262

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 99
May 2012

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-3-18, adopted March 26, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	lxxxv
TOC:i—TOC:vii	TOC:i—TOC:viii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
864.5—864.8	864.5—864.8.1
864.12.1, 864.12.2	864.12.1, 864.12.2
866.1, 866.2	866.1, 866.2
927	927
929—931	929—932
979	979
1005	1005, 1006
3208.5	3208.5
3210.1—3210.7	3210.1—3210.7
3221—3224	3221—3224
3231, 3232	3231, 3232
3237, 3238	3237, 3238
3241—3244	3241—3244.1
3259, 3260	3259, 3260
3263	3263

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 98
March 2012

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-12-13, adopted December 20, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	lxxxiii
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
149, 150	149, 150
211, 212	211, 212
375, 376	375, 376
473	473—475
537, 538	537, 538
761, 762	761, 762
851, 852	851, 852
859, 860	859, 860
1257—1262	1257—1263
1419	1419
1425—1436.3	1425—1436.2
3208.5	3208.5
3219—3224	3219—3224
3233—3256	3233—3255
3261—3263	3261—3263

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 97
January 2012

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Charter supplement contains all resolutions deemed advisable to be included at this time through:

Resolution No. 2011-11-18(R), adopted November 16, 2011.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
3—23	3—23
75	75, 76
3210.1, 3210.2	3210.1, 3210.2
3211—3218	3211—3218

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 96
August 2011

CODE OF ORDINANCES

City of

PLANO TEXAS
Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-9-34, adopted September 26, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	lxxix
	lxxxi
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1, SH:2
149, 150	149, 150
442.3—444	442.3—443
839—840.1	839—840.1
845—856	845—856
859, 860	859—860.1
864.3—864.12.2	864.3—864.12.2
873, 874	873—874.1
1003—1005	1003—1005
1259—1262	1259—1262
1445—1448	1445—1448
3209	3208.5

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 95
August 2011

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-6-19, adopted June 27, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
iv.i	iv.i
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
211, 212	211, 212
321—325	321
398.3—400.2.1	398.3—400.1
537—557	537—556
851—852.1	851—852.1
861—864	861—864
2077—2098	2077
3209, 3210	3208.3—3209
3210.5, 3210.6	3210.5, 3210.6
3219, 3220	3219, 3220
3225—3230	3225—3229
3237—3242	3237—3242
3247—3252	3247—3252
3257—3258.1	3257, 3258

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 94
August 2011

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-3-19, adopted March 28, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
iv.i	iv.i
	lxxv
	lxxvii
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1 (following Checklist of up-to-date pages)
147—150.2	147—150.2
175—177	175—177
377—398.1	377—398.3
405—428.2	405—428
449—480.6	449—473
535	535
537—555	537—557
851, 852	851—852.1
861—864	861—864
865—866.2	865—866.2
877—878.1	877—878.1
1043, 1044	1043—1044.1
1049—1056	1049—1056.1
3209	3209, 3210
3210.1—3210.7	3210.1—3210.7
3221—3226	3221—3226
3231, 3232	3231, 3232
3243—3246	3243—3246
3257, 3258	3257—3258.1

Insert and maintain this instruction sheet in front of this publication. File

removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 93
February 2011

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-11-14, adopted November 22, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents) SH:1 (following Checklist of up-to-date pages)
145—148	145—148
767, 768	767, 768
1258.1—1262	1259—1262
1463, 1464	1463—1464.1
3209	3209

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 92

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-9-6, adopted September 13, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	lxxiii
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
89—93	89—93
147, 148	147, 148
843—846	843—846
855—856.1	855—856.1
859—863	859—864
865—866.2	865—866.2
876.1—878	877—878.1
979	979
983—985	983—985
986.3	986.3, 986.4
1003, 1004	1003—1005
1257, 1258	1257, 1258
1463, 1464	1463, 1464
3209	3209
3210.3—3210.7	3210.3—3210.7
3229, 3230	3229, 3230
3235, 3236	3235, 3236
3241—3252	3241—3252

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 91

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-6-21, adopted June 28, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	lxxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
167, 168	167, 168
1463—1469	1463—1469
3209	3209
3229, 3230	3229, 3230
3243, 3244	3243, 3244

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement No. 90, Addition, is printed to include provisions omitted in Supplement No. 90, and pages should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
843—844.1	843, 844
855, 856	855, 856
3208.1—3209	3208.1—3209

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 90
May 2010

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-3-19, adopted March 22, 2010.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
iv.i	iv.i
	lxix
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
396.5—398	397—398.1
605—608	605—608
617, 618	617—618.1
677, 678	677, 678
864.15—866.2	864.15—866.2
981—984	981—984
1001—1004	1001—1004
1105—1106.1	1105, 1106
3209, 3210	3208.1—3209

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 89
February 2010

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-12-8, adopted December 14, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	lxvii
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
377—380	377—380.1
739	739
741—744	741—744.1
861—864	860.1—863
1419	1419
1425—1436	1425—1436.3
1439—1450.2	1439—1450.3
3209, 3210	3209, 3210
3221, 3222	3221—3222.1
3235—3238	3235—3238.1
3241—3244	3241—3244.1
3259—3264	3259—3263

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 88
November 2009

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-9-27, adopted September 28, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	lxv
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
143	143
169—172	169—171
847, 848	847, 848
854.1—856	855—856.1
862.1—864.12.1	863—864.12.2
1109—1110.1	1109—1110.1
1247—1250.1	1247—1250.1
1257, 1258	1257—1258.1
1309—1311	1309—1311
1419	1419
1463—1464.1	1463—1464.1
1481—1492	1481—1483
3209	3209, 3210
3210.1—3210.4	3210.1—3210.4
3221, 3222	3221, 3222
3231, 3232	3231, 3232
3235—3238	3235—3238

Remove old pages	*Insert new pages*
3245, 3246	3245, 3246
3249—3252	3249—3252
3259—3262	3259—3262

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 87
September 2009

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-6-14, adopted June 22, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
iv.i	iv.i
	lxi
	lxiii
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
143	143
175—178	175—177
211, 212	211, 212
265—270	265—270.1
287—295	287—296
442.3, 442.4	442.3—442.5
471, 472	471, 472
480.3	480.3—480.6
754.1—756	755—756.1
847—854	847—854.1
864.6.1—864.10	864.7—864.10.1
866.1—866.6	866.1—866.7
985, 986	984.1—985
1043—1055	1043—1061
1103	1103
1123—1141	1123—1136
1305	1305
1309, 1310	1309, 1310
1320.1—1322	1321
3207, 3208	3207—3209
3219—3226	3219—3226
3231—3234	3231—3234
3239—3248	3239—3248
3251—3254	3251—3254
3257—3264	3257—3264

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 86, ADDITION
July 2009

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement No. 86, Addition, contains material intended for inclusion in Supplement No. 86. Please remove and insert pages as directed below.

Remove old pages	*Insert new pages*
TOC:i, TOC:ii	TOC:i, TOC:ii
275, 276	275, 276
281, 282	281, 282
293, 294	293, 294

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 86
June 2009

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-3-7, adopted March 9, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
263	263
265—279	265—295
444.5—444.10	444.5—444.10
739	739
771, 772	771—779
859—862	859—862.1
929—931	929—931
1311	1311
1387—1395	1387—1396
1459, 1460	1459, 1460
1463—1464.1	1463—1464.1
1486.1—1488	1487—1488.1
3207, 3208	3207, 3208
3210.1—3210.7	3210.1—3210.7
3219—3260	3219—3264

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 85
March 2009

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-12-15, adopted December 22, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	lvii
	lix
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
375, 376	375, 376
399—400.2	399—400.2.1
433, 434	433, 434
444.1—444.4	444.1—444.14
597	597
599—635	599—643
864.5, 864.6	864.5—864.6.1
866.5	866.5, 866.6
869, 870	869, 870
1103	1103
1109, 1110	1109—1110.1
1249, 1250	1249—1250.1
1259—1262	1259—1262
1307—1309	1307—1311
1491—1500	1491—1500.1
1507—1510	1507—1510.1
1517, 1518	1517, 1518
3207	3207, 3208
3210.1—3210.7	3210.1—3210.7
3221—3226	3221—3226.1
3231, 3232	3231, 3232
3235—3238	3235—3238.1
3241—3244	3241—3244.1
3249, 3250	3249—3250.1

Remove old pages	*Insert new pages*
3253, 3254	3253—3254.1
3256.1—3259	3257—3260

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 84
December 2008

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-9-35, adopted September 22, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
143	143
166.1—170.1	167—170
177—179	177, 178
417—428	417—428.2
537, 538	537, 538
677, 678	677, 678
758.3, 758.4	758.3, 758.4
851, 852	851, 852
861, 862	861, 862
864.1—864.12.1	864.1—864.12.1
1046.1, 1046.2	1046.1, 1046.2
1103	1103
1105—1106.1	1105—1106.1
1141—1142.1	1141
1247—1260	1247—1262
1388.1—1390.1	1389—1390.2
1513—1520	1513—1521
3207	3207
3221—3228	3221—3228
3232.1—3256	3233—3256.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 83
September 2008

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-6-16, adopted June 23, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
iv.i	iv.i
	lv
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
380.1—396	381—396.5
405—418	405—418.1
436.1—438	437—438.1
457—480.4	457—480.3
537—552	537—555
843, 844	843—844.1
864.11, 864.12	864.11—864.12.1
866.1, 866.2	866.1—866.2.1
991, 992	991—992.1
3205, 3206	3205—3207
3221, 3222	3221—3222.1
3229—3232	3229—3232.1
3237, 3238	3237—3238.1
3243—3248	3243—3248.1
3252.1—3254	3253—3254.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 82
May 2008

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-2-22, adopted February 25, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	liii
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
843, 844	843, 844
864.7, 864.8	864.7—864.8.1
1047—1050.4	1047—1050.5
1457—1464.1	1457—1464.1
1482.1—1484	1483—1484.1
3205	3205, 3206

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 81
February 2008

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-12-5, adopted December 10, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
li—lvii	li TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
411—414	411—414.1
480.1—480.4	480.1—480.4
758.5—760	759—760.2
859, 860	859, 860
872.1—876	873—876.1
1109—1120	1109—1124
1259, 1260	1259, 1260
1419	1419
1435—1438	1435—1438.4
3205	3205
3221, 3222	3221, 3222
3233, 3234	3233, 3234
3239—3244	3239—3244
3255—3259	3255—3259

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 80
November 2007

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-9-30, adopted September 24, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
iv.i	iv.i
	xlix
li—lvii	li—lvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
143	143
149—150.2	149—150.2
177—180	177—179
375, 376	375, 376
442.5—444	443—444.4
753, 754	753—754.1
835	835
839—840.1	839—840.1
845—864.9	845—864.17
877—881	877—883
1041—1046.2	1041—1046.2
3203, 3204	3203—3205
3210.1—3210.7	3210.1—3210.7
3219—3230	3219—3230.1
3233, 3234	3233, 3234
3237, 3238	3237, 3238
3243, 3244	3243, 3244
3247—3252	3247—3252.1

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 79
August 2007

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-6-21, adopted June 25, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	xlvii
li—lvii	li—lvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
143	143
169—170.1	169—170.1
859—860.2	859—860.2
877, 878	877—878.1
988.1—994	989—994.1
1459—1464.1	1459—1464.1
3203	3203, 3204
3221, 3222	3221, 3222
3225—3226.1	3225—3226.1
3233—3248.1	3233—3248.1
3255, 3256	3255, 3256

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 78
May 2007

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-3-10, adopted March 20, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	xlv
li—lvii	li—lvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
90.1—92	91—93
149—150.2	149—150.2
173, 174	173, 174
399—400.5	399—400.5
761—768	761—768.1
864.1, 864.2	864.1—864.2.1
1044.1—1046	1045—1046.2
1191—1194	1191—1194
1445—1448	1445—1448.1
3203	3203
3210.1—3210.7	3210.1—3210.7
3221—3226.1	3221—3226.1
3239—3240.1	3239—3240.1
3243, 3244	3243, 3244
3255, 3256	3255, 3256

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

SUPPLEMENT NO. 77
February 2007

CODE OF ORDINANCES

City of

PLANO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2006-12-9, adopted December 11, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	xliii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
862.3—862.7	862.3—862.7
864.7—864.9	864.7—864.9
1257—1260	1257—1260
1318.10.1—1318.12	1318.11—1318.12.1
1419	1419
1439—1449	1439—1450.2
3203	3203
3239, 3240	3239, 3240
3257—3259	3257—3259

Insert and maintain this instruction sheet in front of this publication. File removed pages for reference.

MUNICIPAL CODE CORPORATION
Post Office Box 2235
1700 Capital Circle, S.W.
Tallahassee, FL 32316
(850) 576-3171
1-800-262-CODE
Website: www.municode.com

CODE OF ORDINANCES

CITY OF

PLANO, TEXAS

Published by Order of the City Council

Adopted: March 9, 1987
Effective: April 9, 1987

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

OFFICIALS

of the

CITY OF

PLANO, TEXAS

AT THE TIME OF THIS CODIFICATION

Jack Harvard
Mayor

Robert Woodruff
City Manager

Ron Harris
Florence Shapiro
Charles D. Pulman
Steve Worth
James N. Muns
City Council

Gary Chatham
City Attorney

Jackie Blakely
City Secretary

CURRENT OFFICIALS

of the

CITY OF

PLANO, TEXAS

John B. Muns
Mayor

Mark D. Israelson
City Manager

Maria Tu
Anthony Ricciardelli
Rick Horne
Kayci Prince
Shelby Williams
Julie Holmer
Rick Smith
City Council

Paige Mims
City Attorney

Lisa C. Henderson
City Secretary

PREFACE

This Code constitutes a complete recodification of the ordinances of the City of Plano of a general and permanent nature.

Source materials used in the preparation of the Code were the 1969 Code, as supplemented through February 13, 1984, and ordinances subsequently adopted by the Council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the Comparative Tables appearing in the back of this volume, the reader can locate any section of the 1969 Code, as supplemented, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order and the various sections within each chapter have been catchlined to facilitate usage. Footnotes which tie related sections of the Code together and which refer to relevant state laws have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this volume.

Numbering System

The numbering system used in this Code is the same system used in many state and municipal codes. Each section number consists of two component parts separated by a dash, the figure before the dash referring to the chapter number and the figure after the dash referring to the position of the section within the chapter. Thus, the first section of Chapter 9 is numbered 9-1 and the fourth section of Chapter 13 is 13-4. Under this system, each section is identified with its chapter and at the same time new sections or even whole chapters can be inserted in their proper place simply by using the decimal system for amendments. By way of illustration: If new material consisting of three sections that would logically come between Sections 1-7 and 1-8 is desired to be added, such new sections would be numbered 1-7.1, 1-7.2 and 1-7.3, respectively. New chapters may be included in the same manner. If the new material is to be included between Chapters 4 and 5, it will be designated as Chapter 4.5. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject, the next successive number being assigned to the article or division.

Indices

The indices have been prepared with the greatest of care. Each particular item has been placed under several headings, some of the headings being couched in lay phraseology, others in legal terminology, and still others in language generally used by municipal officials and employees. There are numerous cross references within each index which stand as guideposts to direct the user to the particular item in which he is interested.

Looseleaf Supplements

A special feature of this Code to which the attention of the user is especially directed is the looseleaf system of binding and supplemental servicing for the Code. With this system, the Code will be kept up-to-date periodically. Upon the final passage of amendatory ordinances, they will be properly edited and the appropriate page or pages affected will be reprinted. These new pages will be distributed to holders of copies of the Code, with instructions for the manner of inserting the new pages and deleting the obsolete pages. Each such amendment, when incorporated into this Code, may be cited as a part hereof.

The successful maintenance of this Code up-to-date at all times will depend largely upon the holder of the volume. As revised sheets are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publishers that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

The publication of this Code was under direct supervision of Milton E. Lefkoff, Supervising Editor, and Linda Davis, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publishers are most grateful to Mr. Gary F. Chatham, City Attorney, and Ms. Jackie Blakely, City Secretary, for their cooperation and assistance during the progress of the work on this Code. It is hoped that their efforts and those of the publishers have resulted in a Code of Ordinances which will make the active law of the City readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the City's affairs.

MUNICIPAL CODE CORPORATION

Tallahassee, Florida

ORDINANCE NO. 87-3-14

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting a New Code of Ordinances for the City of Plano; Providing for the Repeal of Certain Ordinances Not Included Therein; Providing a Severability Clause; Providing a Penalty for the Violation Thereof; Providing for the Manner of Amending Such Code; and Providing When Such Code and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a Code of Ordinances on January 23, 1969; and

Whereas, said Code of Ordinances has been amended and supplemented from that time; and

Whereas, amendments to state law have affected various sections of the Code; and

Whereas, recodification is found to be appropriate and necessary;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that

Section I. The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, consisting of Chapters 1 through 21 each inclusive is adopted.

Section II. All ordinances of a general and permanent nature, specifically included in the prior Code of Ordinances adopted in 1969, and which are not included in this Code or recognized and continued in force by reference therein are repealed.

Section III. The repeal provided for in Section II hereof shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance that is repealed by this ordinance.

Section IV. Unless another penalty is expressly provided, a violation of any provision of such Code or other ordinance shall be punished by a fine not exceeding one thousand dollars ($1,000.00) with respect to fire safety, zoning and public health and sanitation other than vegetation and litter violations, and a fine not exceeding two hundred dollars ($200.00) for all other violations, provided, however, that statutory penalties shall apply, as provided in Section 1-4 of such Code.

Section V. Additions or amendments to the Code, when passed in the form as to indicate the intention of the City Council to make the same a part of the Code, shall be deemed to be incorporated in the Code, so that reference to the Code includes the additions and amendments.

Section VI. Ordinances adopted after August 11, 1986, that amend or refer to ordinances that have been codified in the Code, shall be construed as if they amend or refer to the provisions of the Code.

Section VII. It is the intention of the City Council that this ordinance, and every provision thereof, shall be considered severable and the invalidity of

any section, clause or provision or part or portion of any section, clause, or provision of this ordinance shall not affect the validity of any other portion of this ordinance.

Section VIII. This ordinance and the Code adopted hereby, shall become effective April 9, 1987, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 9th day of March, 1987.

_____

Jack Harvard, MAYOR

ATTEST:

_____

Jackie Blakely, City Secretary

APPROVED AS TO FORM:

_____

Gary F. Chatham, City Attorney

ORDINANCES ADOPTING SUPPLEMENTS

ORDINANCE NO. 87-6-12

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Numbers 1 and 1—Revision to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Numbers 1 and 1—Revision;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that

Section I. The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Numbers 1 and 1—Revision.

Section II. It is the intention of the City Council that Supplement Numbers 1 and 1—Revision, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause, or provision of said supplements and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III. A violation of any provision of Supplement Numbers 1 and 1—Revision to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth in Section 1-4 of such Code.

Section IV. This ordinance and the supplements adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 8th day of June, 1987.

/s/ _____
Jack Harvard, MAYOR

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary Chatham, City Attorney

ORDINANCE NO. 87-8-4

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 2 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinances No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 2;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 2.

Section II: It is the intention of the City Council that Supplement Number 2, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause, or provision of said supplement and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 2 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth on Section 1-4 of such Code.

Section IV: This ordinance and the supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 10th day of August, 1987.

/s/ _____
Jack Harvard, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary Chatham, City Attorney

ORDINANCE NO. 87-10-28

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 3 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 3;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 3.

Section II: It is the intention of the City Council that Supplement Number 3, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said supplement and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 3 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth on Section 1-4 of such Code.

Section IV: This ordinance and the supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 26th day of October, 1987.

/s/ _____
Jack Harvard, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary Chatham, City Attorney

ORDINANCE NO. 88-1-21

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 4 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 4;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 4.

Section II: It is the intention of the City Council that Supplement Number 4, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause, or provision of said supplement and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 4 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth in Section 1-4 of such Code.

Section IV: This ordinance and the supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 25th day of January, 1988.

/s/_____
Jack Harvard, Mayor

ATTEST:

/s/_____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/_____
Gary Chatham, City Attorney

ORDINANCE NO. 88-3-31

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 5 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 5;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 5.

Section II: It is the intention of the City Council that Supplement Number 5, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said errata [supplement] and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 5 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth on Section 1-4 of such code.

Section IV: This ordinance and the supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and approved by the City Council of the City of Plano, Texas, this 28th day of March, 1988.

/s/_____
Jack Harvard, Mayor

ATTEST:

/s/_____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/_____
Gary Chatham, City Attorney

ORDINANCE NO. 88-9-7

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 7 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 7;

Now, Therefore Be It Ordained by the City Council of the City of Plano, Texas, that

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 7.

Section II: It is the intention of the City Council that Supplement Number 7, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said errata [supplement] and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 7 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth on Section 1-4 of such Code.

Section IV: This ordinance and the supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 8th day of September, 1988.

/s/ _____
Jack Harvard, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary Chatham, City Attorney

ORDINANCE NO. 88-11-10

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 8 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 8;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 8.

Section II: It is the intention of the City Council that Supplement Number 8, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said supplement and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 8 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth on Section 1-4 of such Code.

Section IV: This ordinance and the supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 14th day of November, 1988.

/s/ _____
Jack Harvard, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary Chatham, City Attorney

ORDINANCE NO. 89-1-7

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 9 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 9;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 9.

Section II: It is the intention of the City Council that Supplement Number 9, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said supplement and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 9 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth on Section 1-4 of such Code.

Section IV: This ordinance and the supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 9th day of January, 1989.

/s/ _____
Jack Harvard, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary F. Chatham, City Attorney

ORDINANCE NO. 89-3-28

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 10 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 10;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 10.

Section II: It is the intention of the City Council that Supplement Number 10, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said supplement and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 10 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth on Section 1-4 of such Code.

Section IV: This ordinance and the supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this the 27th day of March, 1989.

/s/ _____
Jack Harvard, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary F. Chatham, City Attorney

ORDINANCE NO. 89-9-24

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 11 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof: and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 11;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I. The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 11.

Section II. It is the intention of the City Council that Supplement Number 11, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said supplement and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III. A violation of any provision of Supplement Number 11 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth on Section 1-4 of such Code.

Section IV. This ordinance and the supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this the 25th day of September, 1989.

/s/ _____
Jack Harvard, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary F. Chatham, City Attorney

ORDINANCE NO. 89-11-8

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 12 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 12;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I. The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 12.

Section II. It is the intention of the City Council that Supplement Number 12, adopted by this ordinance, and every provision thereof shall be considered severable, and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said supplement and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III. A violation of any provision of Supplement Number 12 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth in Section 1-4 of such Code.

Section IV. This ordinance and the supplement adopted hereby shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this the 13th day of November, 1989.

/s/ _____
Jack Harvard, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary F. Chatham, City Attorney

ORDINANCE NO. 89-12-23

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 13 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 13;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I. The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 13.

Section II. It is the intention of the City Council that Supplement Number 13, adopted by this ordinance, and every provision thereof shall be considered severable, and the invalidity of any section, clause or provision of said supplement and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III. A violation of any provision of Supplement Number 13 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth in Section 1-4 of such Code.

Section IV. This ordinance and the supplement adopted hereby shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this the 20th day of December, 1989.

/s/ _____
Jack Harvard, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary F. Chatham, City Attorney

ORDINANCE NO. 90-10-12

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 14 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 14;

Now, Therefore, Be It Ordained By the City Council of the City of Plano, Texas, That:

Section I. The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 14.

Section II. It is the intention of the City Council that Supplement Number 14, adopted by this ordinance, and every provision thereof shall be considered severable, and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said supplement and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III. A violation of any provision of Supplement Number 14 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth in Section 1-4 of such Code.

Section IV. This ordinance and the supplement adopted hereby shall become effective upon passage and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this the 8th day of October, 1990.

/s/ _____
Florence Shapiro, Mayor

ATTEST:

/s/ _____
for: Jackie Blakely,
City Secretary

APPROVED AS TO FORM:

/s/ _____
for: Gary F. Chatham, City Attorney

ORDINANCE NO. 91-1-37

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 15 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 15;

Now, Therefore, Be It Ordained By the City Council of the City of Plano, Texas, That:

Section I. The City entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 15.

Section II. It is the intention of the City Council that Supplement Number 15, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause, or provision or part or portion of any section, clause, or provision of said supplement and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III. A violation of any provision of Supplement Number 15 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth on Section 1-4 of such Code.

Section IV. This ordinance and the supplement adopted hereby shall become effective upon passage and after publication as required by law.

Passed and Approved By the City Council of the City of Plano, Texas, this the 28th day of January, 1991.

/s/ _____
Florence Shapiro, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary F. Chatham, City Attorney

ORDINANCE NO. 91-5-15

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 16 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 16;

Now, Therefore, Be It Ordained By the City Council of the City of Plano, Texas, That:

Section I. The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 16.

Section II. It is the intention of the City Council that Supplement Number 16, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause, or provision or part or portion of any section, clause, or provision of said supplement and this ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III. A violation of any provision of Supplement Number 16 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the penalty clause set forth on Section 1-4 of such Code.

Section IV. This ordinance and the supplement adopted hereby shall become effective upon passage and after publication as required by law.

Passed and Approved By the City Council of the City of Plano, Texas, this the 13th day of May, 1991.

/s/ _____
Florence Shapiro, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary F. Chatham, City Attorney

ORDINANCE NO. 91-11-12

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 17 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing when Such Supplement and this Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 17;

Now, Therefore, be it Ordained by the City Council of the City of Plano, Texas, that:

Section I. The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 17.

Section II. It is the intention of the City Council that Supplement Number 17, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause, or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III. A violation of any provision of Supplement Number 17 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV. This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved By the City Council of the City of Plano, Texas, this the 11th day of November, 1991.

/s/ _____
Florence Shapiro, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary F. Chatham, City Attorney

ORDINANCE NO. 92-1-11

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 18 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing when Such Supplement and this Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 18;

Now, Therefore, be it Ordained by the City Council of the City of Plano, Texas, that:

Section I. The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 18.

Section II. It is the intention of the City Council that Supplement Number 18, adopted by this ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause, or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III. A violation of any provision of Supplement Number 18 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV. This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved By the City Council of the City of Plano, Texas, this 13th day of January, 1992.

/s/ _____
Florence Shapiro, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary F. Chatham, City Attorney

ORDINANCE NO. 92-5-16

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 19 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 19;

Now, Therefore, Be It Ordained By the City Council of the City of Plano, Texas, that:

Section I. The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 19.

Section II. It is the intention of the City Council that Supplement Number 19, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause, or provision or part or portion of any section, clause, or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III. A violation of any provision of Supplement Number 19 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV. This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved By the City Council of the City of Plano, Texas, this 26th day of May, 1992.

/s/ _____
James N. Muns, Mayor

ATTEST:

/s/ _____
Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ _____
Gary Chatham, City Attorney

ORDINANCE NO. 92-9-16

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 20 To The Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 20;

Now, Therefore, Be It Ordained By The City Council Of The City Of Plano, Texas, That:

Section I. The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 20.

Section II. It is the intention of the City Council that Supplement Number 20, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III. A violation of any provision of Supplement Number 20 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth on Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed And Approved By The City Council Of The City Of Plano, Texas, This The 14th Day Of September, 1992.

/s/ James N. Muns
Mayor

ATTEST:

/s/ Jackie Blakely
City Secretary

APPROVED AS TO FORM:

/s/ Gary F. Chatham
City Attorney

ORDINANCE NO. 93-1-19

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 21 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 21;

Now, Therefore, Be It Ordained By The City Council Of The City of Plano, Texas, that

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 21.

Section II: It is the intention of the City Council that Supplement Number 21, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause, or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 21 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed And Approved By The City Council Of The City Of Plano, Texas, This 25th Day of January, 1993.

/s/ James N. Mums
Mayor

ATTEST:

/s/ Jackie Blakely
City Secretary

APPROVED AS TO FORM:

/s/ Gary Chatham
City Attorney

ORDINANCE NO. 93-4-16

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 22 To The Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for such Violation Thereof; and Providing When Such Supplements and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 22;

Now, Therefore, Be It Ordained By The City Council Of The City Of Plano, Texas, That

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 22.

Section II: It is the intention of the City Council that Supplement Number 22, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause, or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 22 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed And Approved By The City Council Of The City Of Plano, Texas, This 12th Day of April, 1993.

/s/ James N. Mums
Mayor

ATTEST:

/s/ Jackie Blakely
City Secretary

APPROVED AS TO FORM:

/s/ Gary Chatham
City Attorney

ORDINANCE NO. 93-9-53

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 23 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 23;

Now, Therefore, be it Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 23.

Section II: It is the intention of the City Council that Supplement Number 23, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause, or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 23 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 27th Day of September, 1993.

/s/ James N. Muns
Mayor

ATTEST:

/s/ Jackie Blakely
City Secretary

APPROVED AS TO FORM:

/s/ Gary Chatham
City Attorney

ORDINANCE NO. 93-11-39

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 24 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, The City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 24;

Now, Therefore, be it Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 24.

Section II: It is the intention of the City Council that Supplement Number 24, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause, or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 24 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 22nd Day of November, 1993.

/s/ James N. Muns
Mayor

ATTEST:

/s/ Jackie Blakely
City Secretary

APPROVED AS TO FORM:

/s/ Gary Chatham
City Attorney

ORDINANCE NO. 94-4-22

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 26 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 26;

Now, Therefore, be it Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 26.

Section II: It is the intention of the City Council that Supplement Number 26, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause, or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 26 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 25th Day of April, 1994.

/s/ James N. Muns
Mayor

ATTEST:

/s/ Jackie Blakely
City Secretary

APPROVED AS TO FORM:

/s/ Gary Chatham
City Attorney

ORDINANCE NO. 94-6-8

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 27 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 27;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 27.

Section II: It is the intention of the City Council that Supplement Number 27, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause, or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 27 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 13th Day of June, 1994.

/s/ James N. Muns
Mayor

ATTEST:

/s/ Jackie Blakely
City Secretary

APPROVED AS TO FORM:

/s/ Gary Chatham
City Attorney

ORDINANCE NO. 94-9-17

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 28 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas has been revised by Supplement Number 28;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 28.

Section II: It is the intention of the City Council that Supplement Number 28, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause, or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 28 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 12th Day of September, 1994.

/s/ James N. Muns
Mayor

ATTEST:

/s/ Jackie Blakely
City Secretary

APPROVED AS TO FORM:

/s/ Gary Chatham
City Attorney

ORDINANCE NO. 95-5-24

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 29 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 29;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 29.

Section II: It is the intention of the City Council that Supplement Number 29, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 29 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 22nd day of May 1995.

/s/ James N. Muns
Mayor

ATTEST:

/s/ Elaine Bealke, Asst.
For Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ Gary Chatham
City Attorney

ORDINANCE NO. 95-8-37

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 30 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 30;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 30.

Section II: It is the intention of the City Council that Supplement Number 30, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 30 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 28th day of August 1995.

/s/ James N. Muns
Mayor

ATTEST:

/s/ Jackie Blakely
City Secretary

APPROVED AS TO FORM:

/s/ Gary Chatham
City Attorney

ORDINANCE NO. 95-12-13

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 31 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 31;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 31.

Section II: It is the intention of the City Council that Supplement Number 31, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 31 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 11th day of December 1995.

/s/ James N. Muns
Mayor

ATTEST:

/s/ Jackie Blakely
City Secretary

APPROVED AS TO FORM:

/s/ Gary Chatham
City Attorney

ORDINANCE NO. 96-3-8

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 32 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 32;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 32.

Section II: It is the intention of the City Council that Supplement Number 32, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 32 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 5th day of March 1996.

/s/ James N. Muns
Mayor

ATTEST:

/s/ Jackie Blakely
City Secretary

APPROVED AS TO FORM:

/s/ Gary Chatham
City Attorney

ORDINANCE NO. 96-6-32

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 33 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 33;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 33.

Section II: It is the intention of the City Council that Supplement Number 33, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 33 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 24th day of June 1996.

/s/ John Longstreet, Mayor

ATTEST:

/s/ Jackie Blakely, City Secretary

APPROVED AS TO FORM:

/s/ Diane Wetherbee, City Attorney

ORDINANCE NO. 96-8-16

An Ordinance of the City Council of the City of Plano, Texas, Adopting and Enacting Supplement Number 34 to the Code of Ordinances for the City of Plano; Providing for Amendment to Certain Sections of the Code; Providing a Severability Clause; Providing a Penalty for Such Violation Thereof; and Providing When Such Supplement and This Ordinance Shall Become Effective.

Whereas, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

Whereas, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

Whereas, the Code of Ordinances of the City of Plano, Texas, has been revised by Supplement Number 34;

Now, Therefore, Be It Ordained by the City Council of the City of Plano, Texas, that:

Section I: The Code entitled "Code of Ordinances, City of Plano, Texas," published by Municipal Code Corporation, is hereby amended by inclusion of Supplement Number 34.

Section II: It is the intention of the City Council that Supplement Number 34, adopted by this Ordinance, and every provision thereof, shall be considered severable and the invalidity of any section, clause or provision or part or portion of any section, clause or provision of said Supplement and this Ordinance shall not affect the validity of any other portion of the Code of Ordinances, City of Plano, Texas.

Section III: A violation of any provision of Supplement Number 34 to the Code of Ordinances, City of Plano, shall be punishable in accordance with the Penalty Clause set forth in Section 1-4 of such Code.

Section IV: This Ordinance and the Supplement adopted hereby, shall become effective upon passage, and after publication as required by law.

Passed and Approved by the City Council of the City of Plano, Texas, this 26th day of August 1996.

/s/ John Longstreet
Mayor

ATTEST:

/s/ Elaine Bealke
City Secretary

APPROVED AS TO FORM:

/s/ Diane Wetherbee
City Attorney

ORDINANCE NO. 2002-4-8

AN ORDINANCE OF THE CITY OF PLANO, TEXAS ADOPTING THE ORDINANCE CODIFICATION APPEARING IN SUPPLEMENT NOS. 35 TO 56 OF THE CITY OF PLANO CODE OF ORDINANCES; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, Chapter 1, *General Provisions,* § 1-9 of the Plano Code of Ordinances provides that the codifier may make "formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as necessary to do so to embody them into a unified Code;" and

WHEREAS, the codifier for the City of Plano, in order to unify the Code with a consistent outlining system, has changed paragraph and subparagraph numbers within ordinances for publication throughout Supplements 35 to 56 of the Plano Code of Ordinances; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplements 35 to 56 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I: The City Council hereby adopts the printed Code form of the ordinances contained in Supplements 35 to 56 as prepared by the codifier which are currently included in the Plano Code of Ordinances.

Section II: This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 8th day of April, 2002.

/s/ Jeran Akers
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2002-6-8

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 57 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 57; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement 57 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I: The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 57 as prepared by the codifier.

Section II: This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 10th day of June, 2002.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2002-9-3

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 58 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, §3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 58;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 58 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 58 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 3rd day of September, 2002.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2002-11-28

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 59 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 59;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 59 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 59 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 25th day of November, 2002.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2003-2-27

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 60 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 60;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 60 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 60 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 24th day of February, 2003.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2003-5-19

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 61 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 61;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 61 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 61 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 27th day of May, 2003.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2003-9-38

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 62 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 62;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 62 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 62 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 22th day of September, 2003.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2003-11-15

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 63 AND SUPPLEMENT NUMBER 63 REVISION TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 63 and Supplement Number 63 Revision;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 63 and Supplement Number 63 Revision of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 63 and Supplement Number 63 Revision as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 24th day of November, 2003.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2004-3-26

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 64 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, §3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 64;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 64 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 64 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 22nd day of March 2004.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2004-6-19

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 65 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 65;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 65 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 65 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 28th day of June 2004.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2004-9-10

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 66 AND SUPPLEMENT NUMBER 66 REV. TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 66 and Supplement Number 66 Rev.;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 66 and Supplement Number 66 Rev. of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 66 and Supplement No. 66, Rev. as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 13th day of September, 2004.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2005-2-7

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 67 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 67;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 67 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 67 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 14th day of February 2005.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2005-4-11

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 68 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 68;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 68 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 68 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 11th day of April 2005.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2005-6-29

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 69 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 69;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 69 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 69 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 27th day of June 2005.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2005-8-10

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 69 REVISION AND SUPPLEMENT NO. 70 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 69 Revision and Supplement Number 70;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement Number 69 Revision and Supplement Number 70 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 69 Revision and Supplement Number 70 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 22th day of August 2005.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2005-10-10

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 71 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 71;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 71 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 71 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 10th day of October 2005.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2005-11-26

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 72 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 72;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 72 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 72 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 28th day of November 2005.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2006-2-9

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 72 REV. TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 72 Rev.;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 72 Rev. of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 72, Rev. as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 13th day of February 2006.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2006-4-5

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 73 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 73;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 73 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 73 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 10th day of April 2006.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2006-6-13

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 74 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 74;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 74 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 74 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 12th day of June 2006.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2006-9-31

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 75 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 75;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 75 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 75 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 25th day of September, 2006.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2006-12-9

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 76 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 76;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 76 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 76 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 11th day of December, 2006.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2007-3-8

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 77 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 77;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 77 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 77 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 20th day of March, 2007.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Elaine Bealke
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2007-5-21

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 78 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 78;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 78 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 78 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 29th day of May, 2007.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2007-9-5

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 79 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 79;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 79 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 79 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 10th day of September, 2007.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2007-12-5

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 80 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 80;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 80 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 80 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 10th day of December, 2007.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2008-2-22

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 81 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 81;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 81 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 81 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 25th day of February, 2008.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2008-6-6

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 82 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, § 3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 82;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 82 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 82 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 9th day of June, 2008.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2008-10-7

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 83 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, §3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 83;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 83 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 83 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 13th day of October, 2008.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2008-12-15

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 84 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, §3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 84;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 84 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 84 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 22nd day of December, 2008.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2009-4-12

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 85 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, §3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 85;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 85 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 85 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 14th day of April, 2009.

/s/ Pat Evans
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2009-6-14

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 86 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, §3.11 of the City of Plano Charter provides that the City Council has the power to have its ordinances codified and printed in Code form, and that such printed form shall have full force and effect without the necessity of publishing the same or any part thereof in a newspaper; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 86;

WHEREAS, The City Council wishes to adopt the ordinance codification version appearing in Supplement 86 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement 86 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 22nd day of June, 2009.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2009-9-27

AN ORDINANCE OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 87 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 87; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 87 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 87 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 28th day of September, 2009.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2009-12-8

AN ORDINANCE OF THE CITY OF PLANO, TEXAS ADOPTING AND ENACTING SUPPLEMENT NUMBER 88 TO THE CODE OF ORDINANCES FOR THE CITY OF PLANO; PROVIDING FOR AMENDMENT TO CERTAIN SECTIONS OF THE CODE; AND PROVIDING AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 88; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 88 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 88 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 14th day of December, 2009.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2010-3-5

An ordinance of the City of Plano, Texas adopting and enacting Supplement Number 89 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 89; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 89 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 89 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 8th day of March, 2010.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2010-6-8

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 90 and Supplement Number 90 Addition to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 90 and Supplement Number 90 Addition; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 90 and Supplement Number 90 Addition of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 90 and Supplement Number 90 Addition as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 14th day of June, 2010.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2010-9-7

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 91 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 91; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 91 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 91 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 13th day of September, 2010.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2011-1-4

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 92 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 92; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 92 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 92 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 10th day of January, 2011.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2011-3-18

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 93 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 93; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 93 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 93 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 28th day of March, 2011.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2011-9-7

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 94 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 94; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 94 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 94 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 12th day of September, 2011.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2011-9-34

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 95 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 95; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 95 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 95 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 26th day of September, 2011.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE 2011-12-5

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 96 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 96; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 96 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 96 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 12th day of December, 2011.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2012-2-8

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 97 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 97; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 97 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 97 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 13th day of February, 2012.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2012-4-10

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 98 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 98; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 98 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 98 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 9th day of April, 2012.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2012-5-17

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 99 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 99; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 99 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 99 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 29th day of May, 2012.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2012-9-7

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 100 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 100; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 100 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 100 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 10th day of September, 2012.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2012-10-19

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 101 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 101; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 101 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 101 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 22nd day of October, 2012.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2013-3-8

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 102 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 102; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 102 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 102 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 25th day of March, 2013.

/s/ Phil Dyer
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2013-5-21

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 103 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 103; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 103 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 103 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 28th day of May, 2013.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Diane C. Wetherbee
CITY ATTORNEY

ORDINANCE NO. 2014-1-21

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 105 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 105; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 105 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 105 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 27th day of January, 2014.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Diane Zucco
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2014-3-12

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 106 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 106; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 106 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 106 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 24th day of March, 2014.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2014-6-2

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 107 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 107; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 107 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 107 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this 9th day of June, 2014.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2014-10-17

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 108 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 108; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 108 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 108 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 27th day of October, 2014.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2015-1-5

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 109 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 109; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 109 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 109 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 12th day of January, 2015.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2015-4-4

An Ordinance of the City of Piano, Texas adopting and enacting Supplement Number 110 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 110; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 110 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 110 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 13th day of April 2015.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2015-6-8

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 111 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 111; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 111 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 111 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 22nd day of June, 2015.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2015-9-17

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 112 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 112; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 112 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 112 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 28th day of September, 2015.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2015-12-14

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 113 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 113; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 113 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 113 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 22nd day of December, 2015.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2016-6-27

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Numbers 114 and 115 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Numbers 114 and 115; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Numbers 114 and 115 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Numbers 114 and 115 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 28th day of June, 2016.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2016-7-5

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 116 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 116; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 116 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 116 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 25th day of July, 2016.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2016-10-8

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 117 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 117; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 117 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 117 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 10th day of October, 2016.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2017-1-10

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 118 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 118; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 118 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 118 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 23rd day of January, 2017.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2017-4-6

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 119 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 119; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 119 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 119 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 24th day of April, 2017.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2017-8-7

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 120 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 120; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 120 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 120 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 28th day of August, 2017.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2017-10-1

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 121 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 121; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 121 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 121 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 9th day of October, 2017.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2018-1-10

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 122 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 122; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 122 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 122 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 22nd day of January, 2018.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2018-4-5

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 123 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 123; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 123 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 123 as prepared by the codifier.

Section II. This article shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 23rd day of April, 2018.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2018-6-7

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 124 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 124; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 124 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 124 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 25th day of June, 2018.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2018-9-16

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 125 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 125; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 125 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 125 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 24th day of September, 2018.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2018-12-4

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 126 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 126; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 126 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 126 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 18th day of December, 2018.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2019-3-9

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 127 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 127; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 127 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 127 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 25th day of March, 2019.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2019-6-5

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 128 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 128; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 128 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 128 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 24th day of June, 2019.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2019-9-15

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 129 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 129; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 129 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 129 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 23rd day of September, 2019.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2019-12-8

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 130 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 130; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 130 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 130 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 17th day of December, 2019.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2020-3-5

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 131 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 131; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 131 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 131 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 30th day of March, 2020.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2020-6-10

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 132 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 132; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 132 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 132 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 22nd day of June, 2020.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2020-9-13

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 133 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 133; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 133 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 133 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 28th day of September, 2020.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2020-12-7

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 134 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 134; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 134 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 134 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 14th day of December, 2020.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2021-3-2

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 135 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 135; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 135 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 135 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 22nd of March, 2021.

/s/ Harry LaRosiliere
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2021-6-13

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 136 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Piano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 136; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 136 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 136 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 28th of June, 2021.

/s/ John B. Muns
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2021-9-19

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 137 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 137 and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 137 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 137 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 27th of September, 2021.

/s/ John B. Muns
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2021-12-5

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 138 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 138; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 138 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 138 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 13th of December, 2021.

/s/ John B. Muns
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2022-3-6

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 139 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 139; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 139 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 139 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 28th of March, 2022.

/s/ John B. Muns
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2022-7-1

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 140 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 140; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 140 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 140 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 25th of July, 2022.

/s/ John B. Muns
MAYOR

ATTEST:

/s/ Lisa C. Henderson
CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
CITY ATTORNEY

ORDINANCE NO. 2022-10-3

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 141 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 141; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 141 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 141 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 10th of October, 2022.

/s/ John B. Muns
John B. Muns, Mayor

ATTEST:

/s/ Lisa C. Henderson
Lisa C. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
Paige Mims, CITY ATTORNEY

ORDINANCE NO. 2022-12-5

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 142 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 142; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 142 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 142 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

DULY PASSED AND APPROVED this the 12th of December, 2022.

/s/ John B. Muns
John B. Muns, Mayor

ATTEST:

/s/ Lisa C. Henderson
Lisa C. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
Paige Mims, CITY ATTORNEY

ORDINANCE NO. 2023-4-7

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 143 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 143; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 143 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 143 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

PASSED AND APPROVED on the 24th day of April, 2023.

/s/ John B. Muns
John B. Muns, Mayor

ATTEST:

/s/ Lisa C. Henderson
Lisa C. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
Paige Mims, CITY ATTORNEY

ORDINANCE NO. 2023-7-4

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 144 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 144; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 144 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 144 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

PASSED AND APPROVED on the 24th day of July, 2023.

/s/ John B. Muns
John B. Muns, Mayor

ATTEST:

/s/ Lisa C. Henderson
Lisa C. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
Paige Mims, CITY ATTORNEY

ORDINANCE NO. 2023-10-1

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 145 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 145; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 145 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 145 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

PASSED AND APPROVED on the 9th day of October, 2023.

/s/ John B. Muns
John B. Muns, MAYOR

ATTEST:

/s/ Lisa C. Henderson
Lisa C. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
Paige Mims, CITY ATTORNEY

ORDINANCE NO. 2024-1-11

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 146 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 146; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 146 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 146 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

PASSED AND APPROVED on the 22nd day of January, 2024.

/s/ John B. Muns
John B. Muns, Mayor

ATTEST:

/s/ Lisa C. Henderson
Lisa C. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
Paige Mims, CITY ATTORNEY

ORDINANCE NO. 2024-4-3

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 147 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 147; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 147 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 147 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

PASSED AND APPROVED on the 8th day of April, 2024.

/s/ John B. Muns
John B. Muns, MAYOR

ATTEST:

/s/ Lisa C. Henderson
Lisa C. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
Paige Mimis, CITY ATTORNEY

ORDINANCE NO. 2024-7-2

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 148 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 148; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 148 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 148 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

PASSED AND APPROVED on the 22nd day of July, 2024.

/s/ John B. Muns
John B. Muns, MAYOR

ATTEST:

/s/ Lisa C. Henderson
Lisa C. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
Paige Mims, CITY ATTORNEY

ORDINANCE NO. 2024-10-2

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 149 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 149; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 149 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 149 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

PASSED AND APPROVED on the 14th day of October, 2024.

/s/ John B. Muns
John B. Muns, MAYOR

ATTEST:

/s/ Lisa C. Henderson
Lisa C. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
Paige Mims, CITY ATTORNEY

ORDINANCE NO. 2025-1-5

An Ordinance of the City of Plano, Texas adopting and enacting Supplement Number 150 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 150; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 150 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 150 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

PASSED AND APPROVED on the 13th day of January, 2025.

/s/ John B. Muns
John B. Muns, MAYOR

ATTEST:

/s/ Lisa C. Henderson
Lisa C. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
Paige Mims, CITY ATTORNEY

ORDINANCE NO. 2025-4-8

An Ordinance of the City of Plano, Texas, adopting and enacting Supplement Number 151 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas, has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 151; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 151 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 151 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

PASSED AND APPROVED on this the 28th day of April, 2025.

/s/ John B. Muns
John B. Muns, MAYOR

ATTEST:

/s/ Lisa C. Henderson
Lisa C. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Michelle D'Andrea
For: Paige Mims, CITY ATTORNEY

ORDINANCE NO. 2025-7-5

An Ordinance of the City of Plano, Texas, adopting and enacting Supplement Number 152 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas, has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 152; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 152 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 152 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

PASSED AND APPROVED on the 28th day of July, 2025.

/s/ John B. Muns
John B. Muns, MAYOR

ATTEST

/s/ Lisa C. Henderson
Lisa C. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
Paige Mims, CITY ATTORNEY

ORDINANCE NO. 2025-10-2

An Ordinance of the City of Plano, Texas, adopting and enacting Supplement Number 153 to the Code of Ordinances for the City of Plano; providing for amendment to certain sections of the Code; and providing an effective date.

WHEREAS, the City Council of the City of Plano, Texas, adopted a new Code of Ordinances upon adoption of Ordinance No. 87-3-14, on March 9, 1987; and

WHEREAS, Sections V and VI of Ordinance No. 87-3-14 provide for amendment to said Code of Ordinances; and

WHEREAS, the Code of Ordinances of the City of Plano, Texas, has been revised by previous amendments duly passed as individual ordinances by the City Council and such amendments are reflected on Supplement Number 153; and

WHEREAS, the City Council wishes to adopt the ordinance codification version appearing in Supplement Number 153 of the Plano Code of Ordinances in order for the printed Code form to be considered identical to the original ordinance and to eliminate any confusion or differences in the format of the original ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF PLANO, TEXAS, THAT:

Section I. The City Council hereby adopts the printed Code form of the ordinances contained in Supplement Number 153 as prepared by the codifier.

Section II. This Ordinance shall become effective immediately upon its passage.

PASSED AND APPROVED on the 13th day of October, 2025.

/s/ John B. Muns
John B. Muns, MAYOR

ATTEST:

/s/ Lisa McAlister
For: Lisa G. Henderson, CITY SECRETARY

APPROVED AS TO FORM:

/s/ Paige Mims
Paige Mims, CITY ATTORNEY

Checklist of Up-to-Date Pages

(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

Page No.	Supp. No.	Page No.	Supp. No.
Title page	116	xi	19
iii	1, Rev.	xii.i	20
iv.i	140	xii.iii	23
v, vi	OC	xii.v	23
vii, viii	1	xii.vii	23
viii.i	3	xii.ix	26
viii.iii	4	xii.xi	26
viii.v	5	xii.xiii	28
viii.vii	7	xii.xv	28
viii.ix	7	xii.xvii	29
viii.xi	9	xii.xix	30
viii.xiii	10	xii.xxi	31
viii.xv	11	xii.xxiii	32
viii.xvii	11	xii.xxv	33
viii.xix	13	xii.xxvii	34
viii.xxi	14	xii.xxix	35
viii.xxiii	14	xii.xxxi	58
viii.xxv	15	xii.xxxiii	58
viii.xxvii	17	xii.xxxv	59
viii.xxix	17	xii.xxxvii	60
ix	19	xii.xxxix	61

Page No.	Supp. No.	Page No.	Supp. No.
xii.xli	62	lxxxvii	100
xiii	63	lxxxix	100
xv	64	xci	101
xvii	65	xciii	102
xix	66	xcv	103
xxi	67	xcvii	104
xxiii	69	xcix	107
xxv	71	ci	107
xxvii	71	ciii	108
xxix	72	cv	110
xxxi	73	cvii	111
xxxiii	73	cix	112
xxxv	74	cxi	112
xxxvii	75	cxiii	113
xxxix	75	cxv	114
xli	76	cxvii	120
xliii	77	cxix	120
xlv	78	cxxi	120
xlvii	79	cxxiii	120
xlix	80	cxxv	120
li	81	cxxvii	120
liii	82	cxxix	121
lv	83	cxxxi	122
lvii	85	cxxxiii	123
lix	85	cxxxv	124
lxi	87	cxxxvii	125
lxiii	87	cxxxix	126
lxv	88	cxli	127
lxvii	89	cxliii	128
lxix	90	cxlv	129
lxxi	91	cxlvii	130
lxxiii	92	cxlix	131
lxxv	94	cli	132
lxxvii	94	cliii	133
lxxix	96	clv	134
lxxxi	96	clvii	135
lxxxiii	98	clix	136
lxxxv	99	clxi	137

Page No.	Supp. No.	Page No.	Supp. No.
clxiii	138	23	97
clxv	139	75, 76	97
clxvii	140	87	OC
clxix	142	89, 90	136
clxxi	142	91, 92	143
clxxiii	143	93	143
clxxv	144	143	137
clxxvii	145	145, 146	132
clxxix	146	147, 148	137
clxxxi	147	149, 150	110
clxxxiii	148	150.1, 150.2	110
clxxxv	149	150.3, 150.4	110
clxxxvii	150	150.5, 150.6	137
clxxxix	151	150.7, 150.8	137
cxci	152	150.9, 150.10	137
cxciii	153	151, 152	26
TOC:i, TOC:ii	153	153, 154	26
TOC:iii, TOC:iv	153	155, 156	39
TOC:v, TOC:vi	153	156.1	39
TOC:vii, TOC:viii	153	157, 158	120
SH:1, SH:2	101	159, 160	137
SH:3, SH:4	115	160.1	137
SH:5, SH:6	126	161, 162	134
SH:7, SH:8	139	162.1	134
SH:9, SH:10	151	163, 164	62
SH:11	153	165, 166	136
1	25	167, 168	141
3, 4	97	168.1	136
5, 6	97	169, 170	137
7, 8	97	171, 172	137
9, 10	97	173	137
11, 12	125	175, 176	94
12.1	125	177	126
13, 14	97	209	OC
15, 16	97	211, 212	107
17, 18	97	263	137
19, 20	97	265, 266	137
21, 22	97	267, 268	137

Page No.	Supp. No.	Page No.	Supp. No.
269, 270	137	407, 408	152
271, 272	137	409, 410	152
273, 274	137	411, 412	152
275, 276	137	413, 414	153
277, 278	137	415, 416	153
279, 280	137	417, 418	153
281, 282	137	419, 420	153
283, 284	137	421, 422	152
285, 286	137	423, 424	152
287, 288	137	425, 426	152
289, 290	137	427, 428	153
291, 292	137	428.1, 428.2	152
293, 294	137	428.3, 428.4	152
295, 296	137	428.5, 428.6	152
297, 298	137	428.7, 428.8	152
299, 300	137	428.9, 428.10	152
301, 302	137	428.11, 428.12	152
303, 304	137	428.13, 428.14	152
305, 306	137	428.15, 428.16	152
307, 308	137	428.17, 428.18	152
321	95	428.19, 428.20	152
375, 376	148	428.21, 428.22	152
377, 378	141	428.23, 428.24	152
379, 380	141	429, 430	76
381, 382	152	431, 432	76
383, 384	152	433, 434	128
385, 386	153	435, 436	138
386.1	153	437, 438	138
387, 388	152	439, 440	139
389, 390	152	441, 442	138
391, 392	152	443, 444	152
393, 394	152	445, 446	152
395, 396	152	447, 448	152
397, 398	152	449, 450	152
399, 400	152	451, 452	152
401, 402	152	453, 454	152
403, 404	153	455, 456	152
405, 406	152	457, 458	152

Page No.	Supp. No.	Page No.	Supp. No.
459, 460	152	541, 542	152
461, 462	153	543, 544	152
463, 464	153	545, 546	152
465, 466	152	547, 548	152
467, 468	152	549, 550	152
469, 470	152	551, 552	152
471, 472	152	553, 554	152
473, 474	152	555, 556	152
475, 476	152	557, 558	152
477, 478	152	559, 560	152
479, 480	152	561	152
480.1, 480.2	152	597, 598	152
480.3, 480.4	152	599	152
480.5, 480.6	152	601, 602	152
480.7, 480.8	152	603, 604	152
480.9, 480.10	152	605, 606	152
480.11, 480.12	152	607, 608	152
480.13, 480.14	152	609, 610	152
480.15, 480.16	152	611, 612	152
480.17, 480.18	152	613, 614	152
480.19, 480.20	152	615, 616	152
480.21, 480.22	152	617, 618	152
480.23, 480.24	152	619, 620	152
480.25, 480.26	152	621, 622	152
480.27, 480.28	152	623, 624	152
480.29, 480.30	152	625, 626	152
480.31	152	627, 628	152
481	45	629, 630	152
483, 484	26	631, 632	152
485, 486	26	633, 634	152
487, 488	26	635, 636	152
489, 490	45	637, 638	152
491	45	639, 640	152
501	33	641, 642	152
503, 504	153	643, 644	152
535	115	645, 646	152
537, 538	153	646.1, 646.2	152
539, 540	152	646.3, 646.4	152

Page No.	Supp. No.	Page No.	Supp. No.
646.5, 646.6	152	651, 652	20
646.7, 646.8	152	653, 654	132
646.9, 646.10	152	655	132
646.11, 646.12	152	675	OC
646.13, 646.14	152	677, 678	141
646.15, 646.16	152	739	137
646.17, 646.18	152	741, 742	132
646.19, 646.20	152	743	132
646.21, 646.22	152	745, 746	55
646.23, 646.24	152	746.1	55
646.25, 646.26	152	747, 748	39
646.27, 646.28	152	749, 750	67
646.29, 646.30	152	751, 752	137
646.31, 646.32	152	753, 754	137
646.33, 646.34	152	755	137
646.35, 646.36	152	759, 760	115
646.37, 646.38	152	760.1, 760.2	115
646.39, 646.40	152	760.3, 760.4	115
646.41, 646.42	152	761, 762	132
646.43, 646.44	152	763, 764	145
646.45, 646.46	152	765, 766	132
646.47, 646.48	152	767, 768	132
646.49, 646.50	152	769, 770	132
646.51, 646.52	152	770.1, 770.2	132
646.53, 646.54	152	770.3, 770.4	132
646.55, 646.56	152	770.5, 770.6	132
646.57, 646.58	152	771, 772	86
646.59, 646.60	152	773, 774	86
646.61, 646.62	152	775, 776	86
646.63, 646.64	152	777, 778	86
646.65, 646.66	152	779	86
646.67, 646.68	152	835	140
646.69, 646.70	152	837, 838	140
646.71, 646.72	152	839, 840	140
646.73, 646.74	152	841, 842	145
646.75	152	843, 844	145
647	132	845, 846	152
649, 650	20	847, 848	153

Page No.	Supp. No.	Page No.	Supp. No.
849, 850	153	927	99
851, 852	153	929, 930	99
853, 854	152	931, 932	150
855, 856	152	979	145
857, 858	152	981, 982	152
859, 860	152	983, 984	152
861, 862	153	985, 986	152
863, 864	149	987, 988	152
865, 866	149	988.1, 988.2	152
867, 868	149	988.3	152
868.1, 868.2	149	989, 990	145
869, 870	150	991, 992	145
870.1, 870.2	150	993, 994	153
870.3, 870.4	152	994.1, 994.2	153
870.5, 870.6	152	994.3, 994.4	153
870.7, 870.8	152	994.5, 994.6	153
870.9, 870.10	152	994.7, 994.8	153
870.11, 870.12	152	995, 996	41
870.13, 870.14	153	997, 998	41
870.15, 870.16	153	999, 1000	151
870.16.1	153	1001, 1002	151
870.17, 870.18	152	1003	151
870.19, 870.20	152	1039	29
870.21, 870.22	152	1041, 1042	141
870.23, 870.24	153	1043, 1044	141
870.24.1	153	1045, 1046	141
870.25, 870.26	150	1046.1	141
870.27, 870.28	150	1047, 1048	130
870.29	150	1048.1	130
871, 872	140	1049, 1050	105
873, 874	140	1050.1	105
875, 876	140	1051, 1052	94
877, 878	140	1053, 1054	94
879, 880	140	1055, 1056	94
881, 882	140	1057, 1058	105
883, 884	140	1059, 1060	137
885, 886	140	1061	137
887	140	1103	135

Page No.	Supp. No.	Page No.	Supp. No.
1105, 1106	145	1245	30
1106.1	147	1247, 1248	118
1107, 1108	26	1249, 1250	118
1109, 1110	141	1250.1	88
1111, 1112	137	1251, 1252	84
1113, 1114	137	1253, 1254	84
1115, 1116	137	1255, 1256	84
1117, 1118	137	1257, 1258	153
1119, 1120	137	1259, 1260	153
1121, 1122	129	1261, 1262	153
1123, 1124	129	1263	153
1124.1, 1124.2	129	1305	140
1124.3, 1124.4	129	1307, 1308	144
1124.5, 1124.6	129	1309, 1310	145
1124.7, 1124.8	129	1311	145
1124.9, 1124.10	135	1313, 1314	34
1125, 1126	120	1315, 1316	17
1127, 1128	120	1317, 1318	126
1129, 1130	150	1319, 1320	126
1131, 1132	150	1321, 1322	126
1133, 1134	150	1323, 1324	126
1135, 1136	150	1325, 1326	126
1137, 1138	128	1327, 1328	126
1139, 1140	153	1329, 1330	126
1140.1	153	1331, 1332	126
1141, 1142	128	1333, 1334	126
1143	128	1335, 1336	126
1189	OC	1337, 1338	126
1191, 1192	78	1339, 1340	126
1193, 1194	78	1341, 1342	126
1221	106	1343, 1344	126
1223, 1224	106	1345, 1346	126
1225, 1226	106	1347, 1348	126
1227, 1228	106	1349, 1350	126
1229, 1230	106	1351, 1352	126
1231, 1232	106	1353, 1354	126
1233, 1234	106	1355, 1356	126
1235	106	1357, 1358	126

Page No.	Supp. No.	Page No.	Supp. No.
1358.1, 1358.2	126	1465, 1466	102
1359, 1360	145	1467, 1468	127
1361	145	1469	127
1385	63	1477, 1478	15
1387, 1388	86	1479, 1480	15
1389, 1390	141	1481, 1482	88
1391, 1392	141	1483	88
1393, 1394	141	1493, 1494	85
1395, 1396	141	1495, 1496	85
1397, 1398	141	1497, 1498	85
1399	141	1499, 1500	85
1419	149	1500.1	85
1421, 1422	134	1501, 1502	21
1423, 1424	134	1503, 1504	21
1425, 1426	139	1505, 1506	21
1427, 1428	139	1507, 1508	85
1429, 1430	139	1509, 1510	85
1431, 1432	139	1510.1	85
1433, 1434	139	1511, 1512	21
1435, 1436	139	1513, 1514	126
1436.1, 1436.2	139	1515, 1516	126
1437, 1438	81	1517, 1518	126
1438.1, 1438.2	81	1519, 1520	126
1439, 1440	100	1521, 1522	126
1441, 1442	148	1523	126
1443, 1444	148	1977	OC
1445, 1446	148	2077	95
1447, 1448	148	3099, 3100	1
1449, 1450	149	3101, 3102	1, Rev.
1450.1, 1450.2	149	3103, 3104	OC
1450.3	149	3105, 3106	OC
1451, 1452	33	3107, 3108	2
1453, 1454	67	3109, 3110	OC
1455, 1456	102	3111, 3112	OC
1457, 1458	138	3113, 3114	OC
1459, 1460	153	3115, 3116	OC
1461, 1462	153	3117, 3118	OC
1463, 1464	153	3119, 3120	OC

Page No.	Supp. No.	Page No.	Supp. No.
3121, 3122	OC	3193, 3194	59
3123, 3124	1, Rev.	3195, 3196	63
3125, 3126	1, Rev.	3197, 3198	67
3127, 3128	1	3199, 3200	71
3129, 3130	1, Rev.	3201, 3202	76
3131, 3132	1, Rev.	3203, 3204	80
3133, 3134	2	3205, 3206	83
3135, 3136	3	3207, 3208	87
3137, 3138	5	3208.1, 3208.2	90, Add.
3139, 3140	7	3208.3, 3208.4	95
3141, 3142	7	3208.5, 3208.6	102
3143, 3144	8	3208.7, 3208.8	107
3145, 3146	8	3208.9, 3208.10	116
3147, 3148	10	3208.11, 3208.12	120
3149, 3150	11	3208.13, 3208.14	126
3151, 3152	12	3208.15, 3208.16	132
3153, 3154	13	3208.17, 3208.18	140
3155, 3156	15	3208.19, 3208.20	141
3157, 3158	21	3208.21, 3208.22	150
3159, 3160	20	3208.23, 3208.24	153
3161, 3162	21	3209, 3210	152
3163, 3164	23	3210.1, 3210.2	152
3165, 3166	28	3210.3, 3210.4	152
3167, 3168	28	3210.5, 3210.6	152
3169, 3170	29	3211, 3212	97
3171, 3172	31	3213, 3214	97
3173, 3174	34	3215, 3216	97
3175, 3176	36	3217, 3218	97
3177, 3178	38	3219, 3220	152
3178.1, 3178.2	41	3221, 3222	152
3178.3, 3178.4	43	3223, 3224	152
3179, 3180	44	3225, 3226	152
3181, 3182	54	3227, 3228	152
3183, 3184	50	3229, 3230	152
3185, 3186	53	3231, 3232	152
3187, 3188	54	3233, 3234	152
3189, 3190	55	3235, 3236	152
3191, 3192	56	3237, 3238	152

Page No.	Supp. No.
3239, 3240	152
3241, 3242	152
3243, 3244	152
3245, 3246	152
3247, 3248	152
3249, 3250	152
3251, 3252	152
3253, 3254	152
3255, 3256	152
3257, 3258	152
3259, 3260	152

TABLE OF CONTENTS

Page

Officials of City at Time of Codification iii

Current Officials of the City . . . . . iv.i

Preface v

Adopting Ordinance vii

Ordinances Adopting Supplements . . . . . viii.i

Checklist of Up-to-Date Pages . . . . . [1]

Supplement History Table SH:1

PART I

HOME RULE CHARTER

Charter 1

Preamble 3
Art. 1. Form of Government and Boundaries 3
Art. 2. Powers of the City 4
Art. 3. The City Council 4
Art. 4. General Administration 8
Art. 5. Nomination and Elections 10
Art. 6. Recall of Officers 12
Art. 7. Legislation by the People, Initiative and Referendum 14
Art. 8. Municipal Planning and Zoning 15
Art. 9. Municipal Finance 16
Art. 10. Franchises and Public Utilities 19
Art. 10-A. Private Franchises 21
Art. 11. General Provisions 21
Charter Comparative Table 75

PART II

CODE OF ORDINANCES

Chapter

1. General Provisions 89

2. Administration 143
Art. I. In General 145
Art. II. City Manager 150.7
Art. III. Employee Benefits 150.8
Div. 1. Generally 150.8
Div. 2. Texas Municipal Retirement System 150.9
Div. 3. Retirement Security Plan; Retirement Security Trust 157
Art. IV. Code of Conduct 157

Chapter		Page
	Art. V. Records Management Program	163
	Div. 1. Generally	163
	Div. 2. Microfilming and Electronic Storage	164
	Art. VI. Emergency Management	167
	Art. VII. Community Relations Commission	168
	Art. VIII. Reserved	169
	Art. IX. Reserved	169
	Art. X. Reserved	169
	Art. XI. Reserved	169
	Art. XII. Senior Advisory Board	169
	Art. XIII. Cultural Arts Commission	170
	Art. XIV. Reserved	171
	Art. XV. Community Substance Abuse Prevention Advisory Committee	171
	Art. XVI. Reserved	173
	Art. XVII. Board and Commission Review Committee	173
	Art. XVIII. Reserved	175
	Art. XIX. Animal Shelter Advisory Committee	176
	Art. XX. Removal of Board, Commission, and Committee Members	177
	Art. XXI. Reserved	177
	Art. XXII. Reserved	177
3.	Alcoholic Beverages	209
4.	Animals	263
	Art. I. Definitions and Enforcement	265
	Art. II. Treatment of Animals	273
	Art. III. Public Nuisances	277
	Art. IV. Impoundment, Redemption and Disposition of Animals	278
	Art. V. Multiple Animals	282
	Art. VI. Rabies and Zoonosis Control	283
	Art. VII. Animal Identification and Registration	285
	Art. VIII. Animal Businesses	286
	Art. IX. Dangerous Animals	297
	Art. X. Wild Animals, Bees, and Livestock	303
	Art. XI. Miscellaneous Offenses	306
	Art. XII. Search and Rescue Training in Public Places	307
5.	Reserved	321
6.	Buildings and Building Regulations	375
	Art. I. In General	377
	Div. 1. In General	377
	Div. 2. Building Standards Commission	377
	Subdiv. A. Hearing, Penalties and Appeal	379
	Div. 3. Criminal Offense and Penalty	381
	Art. II. Building Code	381
	Div. 1. Generally	381
	Div. 2. Amendments	382

Chapter		Page
	Art. III. Property Maintenance Code	403
	Div. 1. Generally	403
	Div. 2. Amendments	404
	Div. 3. Registration and Inspection of Multi-Family Dwelling Complexes	412
	Div. 4. Registration and Inspection of Hotel/Motel Properties	416
	Art. IV. Temporary and Nonconforming Buildings	420
	Art. V. Reserved	421
	Art. VI. House Moving	421
	Div. 1. Generally	421
	Div. 2. Permit	422
	Div. 3. Standards for Issuance of Permit	422
	Div. 4. Surety Bond and Insurance Requirements	424
	Div. 5. Violations	424
	Art. VII. Fences	424
	Div. 1. Generally	424
	Div. 2. Height	427
	Art. VIII. Plumbing and Mechanical Equipment	428
	Div. 1. Generally	428
	Div. 2. Plumbing Code	428
	Div. 3. Mechanical Code	428.5
	Art. IX. Electrical Code	428.8
	Div. 1. Generally	428.8
	Div. 2. Amendments	428.10
	Div. 3. Application	428.18
	Div. 4. Electrical Inspector	428.18
	Div. 5. Registration (Licensing) of Electricians	428.19
	Div. 6. Work Permits	428.23
	Art. X. Swimming Pools	428.24
	Div. 1. Generally	428.24
	Div. 2. Public Swimming Pools, Spas, and Interactive Water Features and Fountains	433
	Art. XI. Outdoor Lighting	435
	Art. XII. Temporary Signs	442
	Div. 1. Definitions	442
	Div. 2. Prohibited Signs	444
	Div. 3. Permitted Signs	445
	Div. 4. Permit Requirements and Exemptions	448
	Div. 5. Violations and Enforcement	449
	Div. 6. Flags and Flagpoles	450
	Art. XIII. Irrigation Systems	451
	Art. XIV. Solid Waste Removal from Construction Sites	462
	Art. XV. Administrative Code	463
	Art. XVI. Building Security Code	468
	Art. XVII. Building Conservation Code	469
	Art. XVIII. Energy Conservation Code	470
	Div. 1. Generally	470
	Div. 2. Amendments	470

Chapter		Page
	Art. XIX. Fuel Gas Code	473
	Div. 1. Generally	473
	Div. 2. Amendments	473
	Art. XX. Residential Code	476
	Div. 1. Generally	476
	Div. 2. Amendments	476
	Art. XXI. Outdoor Toilet Facilities	480.11
	Art. XXII. Existing Building Code	480.13
	Div. 1. Generally	480.13
	Art. XXIII. Swimming Pool and Spa Code	480.17
	Div. 1. Generally	480.17
	Div. 2. Amendments	480.17
	Art. XXIV. Registration of Short-Term Rental Properties	480.22
7.	Cable Television	481
	Art. I. In General	483
	Art. II. Rates	483
	Art. III. Programming Guidelines for Community Service Channels	488
	Art. IV. Multichannel Video Providers	490
7.5.	Emergency Services	501
	Art. I. In General	503
	Art. II. 9-1-1 Service	503
8.	Fire Prevention and Protection	535
	Art. I. In General	537
	Art. II. Fire Code	538
	Art. III. Fire Inspection Program	560
	Art. IV. Mobile Community Healthcare Program	560
9.	Food Code	597
	Art. I. General Provisions	601
	Art. II. Management and Personnel	614
	Art. III. Food	628
	Div. 1. Characteristics; Sources, Specifications, and Original Containers and Records	628
	Div. 2. Protection from Contamination After Receiving	634
	Div. 3. Destruction of Organisms of Public Health Concern	642
	Div. 4. Limitation of Growth of Organisms of Public Health Concern	646
	Div. 5. Food Identity, Presentation, and On-Premises Labeling	646.8
	Div. 6. Contaminated Food	646.10
	Div. 7. Special Requirements for Highly Susceptible Populations	646.10
	Art. IV. Equipment, Utensils, and Linens	646.12
	Art. V. Water, Plumbing, and Waste	646.33

Chapter		Page
	Art. VI. Physical Facilities	646.42
	Art. VII. Poisonous or Toxic Materials	646.51
	Art. VIII. Requirements Applicable to Certain Establishments	646.54
	Art. IX. Compliance	646.65
	Article X. Enforcement	646.73
9.5.	Human Relations	647
	Art. I. In General	649
	Art. II. Housing Discrimination	649
	Art. III. Accomodations Review Board	653
	Art. IV. Reasonable Accomodations	653
10.	Library	675
	Art. I. In General	677
	Art. II. Advisory Board	677
11.	Licenses and Business Regulations	739
	Art. I. In General	741
	Art. II. Reserved	741
	Divs. 1—5. Reserved	741
	Art. III. Vehicles for Hire	741
	Div. 1. Generally	741
	Div. 2. Permit	742
	Div. 3. Taxicab and Limousine Driver's License	746
	Div. 4. Fares	748
	Div. 5. Shared Ride Shuttle Service	749
	Art. IV. Handbills, No Trespassing Signs, Itinerant Vendors, and Carnivals	751
	Div. 1. Generally	751
	Div. 2. Handbill Distribution and No Trespassing Signs	751
	Div. 3. Itinerant Vendors and Carnivals	752
	Art. V. Wreckers	754
	Art. VI. Alarm Systems	759
	Art. VII. Coin-Operated Machines	760.3
	Div. 1. Generally	760.3
	Divs. 2, 3. Reserved	761
	Art. VIII. Special Events	761
	Div. 1. Generally	761
	Div. 2. Permit	763
	Div. 3. Special Provisions	766
	Div. 4. Insurance, Indemnification, Surety Bond and Costs	770.1
	Div. 5. Offenses and Penalty	770.2
	Div. 6 Private Non-Permitted Events	770.2
	Div. 7 Filming	770.3
	Art. IX. Regulated Property	770.4
	Art. X. Garage/Occasional Sales	771
	Art. XI. Metal Recycling Business Regulations	772
	Div. 1. Generally	772

Chapter		Page
	Div. 2. Record Keeping, Regulations and Notice	773
	Div. 3. Licensing of Metal Recycling Entity	776
	Div. 4. Penalties and Enforcement Provisions	778
12.	Motor Vehicles and Traffic	835
	Art. I. In General	837
	Art. II. Pedestrian Safety	842
	Art. III. Traffic-Control Devices	843
	Art. IV. Speed	844
	Art. V. Stopping, Standing and Parking	868.2
	Art. VI. Commercial Vehicles	876
	Art. VII. Bicycles	878
	Art. VIII. Abandoned and Junked Vehicles	880
	Div. 1. Abandoned Vehicles	880
	Div. 2. Junked Vehicles	881
	Art. IX. Railroads	883
	Art. X. Reserved	885
	Art. XI. Motor Vehicle Idling	885
13.	Municipal Court	927
	Art. I. Establishment of the Court	929
	Art. II. Municipal Judges	929
	Art. III. Court Personnel	930
	Art. IV. Proceedings of the Municipal Court	930
	Art. V. Appeals	930
	Art. VI. Court Costs and Fees	931
14.	Offenses—Miscellaneous	979
	Art. I. In General	981
	Art. II. Regulations for Motor Assisted Scooters	988.2
	Art. III. Reserved	989
	Art. IV. Smoking	989
	Art. V. Noise	994
	Div. 1. Generally	994
	Div. 2. Entertainment Venue Permits	994.4
	Div. 3. Enforcement	994.6
	Art. VI. Erosion Control	994.7
	Art. VII. Hazardous Materials	999
	Art. VIII. Reserved	1000
	Art. IX. Residency Restrictions for Child Predator Offenders	1000
	Art. X. Illegal Smoking Products and Ingestion Devices	1001
	Art. XI. Vulnerable Road Users	1002
	Art. XII. Reserved	1003
15.	Parks and Recreation	1039
	Art. I. In General	1041
	Art. II. Parks and Recreation Planning Board	1048
	Art. III. Athletic Activities	1049
	Art. IV. User Fees	1057
	Art. V. Landscaping Streets	1058

Chapter		Page
	Art. VI. Planting, Maintaining Trees, Shrubs on Public Property	1059
16.	Planning and Development	1103
	Art. I. In General	1105
	Art. II. Fees Generally	1105
	Art. III. Planning and Zoning Commission	1107
	Art. IV. Health Facilities Development Corporation	1108
	Art. V. Board of Adjustment	1109
	Art. VI. Heritage Resource Preservation	1110
	Art. VII. Platting, Developing and Subdividing of Land	1124.9
	Art. VIII. Flood Damage Prevention	1124.10
	Div. 1. Generally	1124.10
	Div. 2. Administration	1130
	Div. 3. Flood Hazard Reduction	1133
	Art. IX. Reserved	1136
	Art. X. Reserved	1136
	Art. XI. Housing Infill Program	1136
	Art. XII. Park and Recreation Fee	1137
17.	Police	1189
	Art. I. In General	1191
	Art. II. Reserve Police	1191
	Art. III. Impounded Property	1193
17.5.	Sexually Oriented Businesses	1221
18.	Solid Waste	1245
	Art. I. In General	1247
	Art. II. Collection Charges	1257
	Art. III. Reserved	1263
19.	Streets and Sidewalks	1305
	Art. I. In General	1307
	Art. II. Design and Construction	1310
	Art. III. Storm Drainage	1317
	Art. IV. Right-of-Way Management Regulations	1317
	Art. V. Street and Thoroughfare Closures	1360
	Div. 1. Generally	1360
	Div. 2. Street Closure for Neighborhood Event	1360
	Art. VI. Reserved	1361
20.	Taxation	1385
	Art. I. In General	1387
	Art. II. Ad Valorem Taxes	1387
	Div. 1. Generally	1387
	Div. 2. Delinquent Taxes	1389
	Div. 3. Historic Structures	1390
	Art. III. Hotel Occupancy Tax	1397
21.	Utilities	1419
	Art. I. In General	1421

Chapter	Page
Art. II. Water	1423
Div. 1. Generally	1423
Div. 1.5. Cross Connection Control Program	1425
Div. 2. Private Wells	1436.2
Div. 3. Water Waste; Excess Flow	1440
Div. 4. Drought and Emergency Response Plan	1441
Art. III. Sewers	1450.2
Art. IV. Service Charges Generally	1454
Div. 1. Generally	1454
Div. 2. Water	1462
Art. V. Pro Rata Fees and Extension of Facilities	1468
Div. 1. Generally	1468
Div. 2. Water and Wastewater Main Extensions	1469
Div. 3. Pro Rata Fees	1480
Art. VI. Reserved	1481
Art. VII. Industrial Wastewater Pretreatment	1481
Art. VIII. Liquid Waste Management	1514
Div. 1. Generally	1514
Div. 2. Liquid Waste Generation	1517
Div. 3. Liquid Waste Transport, Disposal Facility	1520
Div. 4. Enforcement	1522
Appendix	
A. Reserved	1977
B. Reserved	2077
Ordinance Disposition Table	3099
Code Comparative Table	3155
Statutory Reference Table	3209
Charter Index	3211
Code Index	3219

SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

By adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2010-10-13	10-11-10	Included	93
2010-10-14	10-11-10	Included	93
2010-10-18	10-25-10	Included	93
2010-11-14	11-22-10	Included	93
2011- 1- 4	1-10-11	Included	94
2011- 1- 5	1-10-11	Included	94
2011- 1- 7	1-10-11	Included	94
2011- 1- 8	1-10-11	Included	94
2011- 1- 9	1-10-11	Included	94
2011- 1-10	1-10-11	Included	94
2011- 1-11	1-10-11	Included	94
2011- 1-12	1-10-11	Included	94
2011- 1-13	1-10-11	Included	94
2011- 1-14	1-10-11	Included	94
2011- 1-24	1-24-11	Included	94
2011- 1-26	1-24-11	Included	94
2011- 1-27	1-24-11	Included	94
2011- 1-28	1-24-11	Included	94
2011- 2- 4	2-14-11	Included	94
2011- 2- 7	2-28-11	Included	94
2011- 2- 9	2-28-11	Included	94
2011- 3- 3	3- 9-11	Included	94
2011- 3-18	3-28-11	Included	94
2011- 3-19	3-28-11	Included	94
2011- 4- 3	4-11-11	Included	95
2011- 4- 4	4-11-11	Included	95
2011- 4-12	4-25-11	Included	95
2011- 4-15	4-25-11	Included	95
2011- 4-16	4-25-11	Included	95
2011- 5-16	5-23-11	Included	95
2011- 6-19	6-27-11	Included	95
2011- 7- 5	7-25-11	Included	96

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2011- 7- 6	7-25-11	Included	96
2011- 8- 4	8- 8-11	Included	96
2011- 8-13	8-22-11	Included	96
2011- 8-15	8-22-11	Included	96
2011- 9- 5	9-12-11	Included	96
2011- 9- 6	9-12-11	Included	96
2011- 9- 7	9-12-11	Included	96
2011- 9-26	9-26-11	Included	96
2011- 9-27	9-26-11	Included	96
2011- 9-28	9-26-11	Included	96
2011- 9-34	9-26-11	Included	96
2011-11-18(R)(Res.)	11-16-11	Included	97
2011-10- 7	10-10-11	Included	98
2011-10-14	10-24-11	Included	98
2011-11- 8	11-14-11	Included	98
2011-11- 9	11-14-11	Included	98
2011-12- 2	12-12-11	Included	98
2011-12- 3	12-12-11	Included	98
2011-12- 4	12-12-11	Included	98
2011-12- 5	12-12-11	Included	98
2011-12- 6	12-12-11	Included	98
2011-12-13	12-20-11	Included	98
2012- 2- 6	2-13-12	Included	99
2012- 2- 8	2-13-12	Included	99
2012- 2-16	2-27-12	Included	99
2012- 3-14	3-26-12	Included	99
2012- 3-18	3-26-12	Included	99
2012- 4- 6	4- 9-12	Included	100
2012- 4- 7	4- 9-12	Included	100
2012- 4-10	4- 9-12	Included	100
2012- 4-13	4-23-12	Included	100
2012- 5-14	5-29-12	Included	100
2012- 5-17	5-29-12	Included	100
2012- 6- 4	6-11-12	Included	100
2012- 6- 5	6-11-12	Included	100
2012- 6-15	6-25-12	Included	100
2012- 6-18	6-25-12	Included	100
2012- 6-19	6-25-12	Included	100
2012- 6-20	6-25-12	Included	100
2012- 7-11	7-23-12	Included	101
2012- 7-12	7-23-12	Included	101
2012- 7-13	7-23-12	Included	101
2012- 8- 7	8-13-12	Included	101
2012- 8-14	8-27-12	Included	101
2012- 9- 7	9-10-12	Included	101
2012- 9-27	9-24-12	Included	101

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2012-10-13	10-22-12	Included	102
2012-10-14	10-22-12	Included	102
2012-10-15	10-22-12	Included	102
2012-10-16	10-22-12	Included	102
2012-10-19	10-22-12	Included	102
2012-11-19	11-26-12	Included	102
2012-12-12	12-18-12	Included	102
2012-12-13	12-18-12	Included	102
2012-12-16	12-18-12	Included	102
2013- 1- 4	1-14-13	Included	103
2013- 3- 6	3-25-13	Included	103
2013- 3- 8	3-25-13	Included	103
2013- 3- 9	3-25-13	Included	103
2013- 5-21	5-28-13	Included	104
2013- 6- 4	6-10-13	Included	104
2013- 6-12	6-24-13	Included	104
2013- 8- 6	8-12-13	Included	105
2013- 8- 7	8-12-13	Included	105
2013- 9- 6	9- 9-13	Included	105
2013- 9- 7	9- 9-13	Included	105
2013- 9-28	9-23-13	Included	105
2013- 9-29	9-23-13	Included	105
2013- 4-12	4-22-13	Included	106
2013-10- 6	10-14-13	Included	106
2013-10-13	10-14-13	Included	106
2013-10-15	10-14-13	Included	106
2013-10-18	10-28-13	Included	106
2013-10-19	10-28-13	Included	106
2013-10-20	10-28-13	Included	106
2013-10-21	10-28-13	Included	106
2013-10-22	10-28-13	Included	106
2013-10-23	10-28-13	Included	106
2013-10-24	10-28-13	Included	106
2013-10-25	10-28-13	Included	106
2013-10-26	10-28-13	Included	106
2013-10-28	10-28-13	Included	106
2013-10-27	10-28-13	Included	106
2013-10-29	10-28-13	Included	106
2013-10-30	10-28-13	Included	106
2013-10-32	10-28-13	Included	106
2013-12-10	12-17-13	Included	106
2014- 1- 5	1-13-14	Included	107
2014- 1- 6	1-13-14	Included	107
2014- 1-19	1-27-14	Included	107
2014- 1-21	1-27-14	Included	107
2014- 2-10	2-24-14	Included	107

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2014- 2-11	2-24-14	Included	107
2014- 3- 7	3-18-14	Included	107
2014- 3-12	3-24-14	Included	107
2014- 4-12	4-28-14	Included	108
2014- 4-13	4-28-14	Included	108
2014- 5- 7	5-12-14	Included	108
2014- 6- 2	6- 9-14	Included	108
2014- 7- 4	7-28-14	Included	109
2014- 7- 5	7-28-14	Included	109
2014- 9- 3	9- 8-14	Included	109
2014- 9- 4	9- 8-14	Included	109
2014- 9-19	9-22-14	Included	109
2014- 9-20	9-22-14	Included	109
2014-10- 7	10-13-14	Included	110
2014-10-17	10-27-14	Included	110
2014-10-19	10-27-14	Included	110
2014-10-20	10-27-14	Included	110
2014-11- 4	11-10-14	Included	110
2014-11-13	11-24-14	Included	110
2014-11-14	11-24-14	Included	110
2014-11-15	11-24-14	Included	110
2014-12- 7	12- 8-14	Included	110
2015- 1- 5	1-12-15	Included	111
2015- 1-15	1-26-15	Included	111
2015- 3- 8	3-17-15	Included	111
2015- 3-13	3-23-15	Included	111
2015- 4- 4	4-13-15	Included	112
2015- 5-11	5-26-15	Included	112
2015- 5-13	5-26-15	Included	112
2015- 6- 5	6-22-15	Included	112
2015- 6- 8	6-22-15	Included	112
2015- 6- 9	6-22-15	Included	112
2015- 7- 7	7-27-15	Included	113
2015- 8-10	8-24-15	Included	113
2015- 9-15	9-28-15	Included	113
2015- 9-17	9-28-15	Included	113
2015- 9-18	9-28-15	Included	113
2015-10- 6	10-12-15	Included	114
2015-12- 8	12-14-15	Included	114
2015-12-14	12-22-15	Included	114
2016- 1- 7	1-11-16	Included	115
2016- 2- 7	2-22-16	Included	115
2016- 3- 5	3-14-16	Included	115
2016- 3- 6	3-14-16	Included	115
2016- 3- 7	3-14-16	Included	115
2016- 3- 8	3-14-16	Included	115

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2016- 3- 9	3-14-16	Included	115
2016- 3-10	3-14-16	Included	115
2016- 3-11	3-14-16	Included	115
2016- 3-12	3-14-16	Included	115
2016- 3-13	3-14-16	Included	115
2016- 3-14	3-14-16	Included	115
2016- 4- 5	4-11-16	Included	116
2016- 4- 8	4-11-16	Included	116
2016- 4- 9	4-11-16	Included	116
2016- 5- 3	5- 9-16	Omitted	116
2016- 6- 9	6-13-16	Included	116
2016- 6-10	6-13-16	Included	116
2016- 6-11	6-13-16	Included	116
2016- 6-25	6-28-16	Included	116
2016- 6-28	6-28-16	Included	116
2016- 6-29	6-28-16	Included	116
2016- 7- 6	7-25-16	Included	117
2016- 7- 7	7-25-16	Included	117
2016- 8-15	8-22-16	Included	117
2016- 8-16	8-22-16	Included	117
2016- 9- 9	9-12-16	Included	117
2016-10- 7	10-10-16	Included	118
2016-10- 9	10-10-16	Included	118
2016-10-10	10-10-16	Included	118
2016-10-21	10-25-16	Included	118
2016-10-22	10-25-16	Included	118
2016-10-23	10-25-16	Included	118
2016-11- 8	11-28-16	Included	118
2017- 1- 6	1- 9-17	Included	119
2017- 1-14	1-23-17	Included	119
2017- 2- 2	2-13-17	Included	119
2017- 2- 4	2-13-17	Included	119
2017- 2-10	2-27-17	Included	119
2017- 2-11	2-27-17	Included	119
2017- 3- 2	3-21-17	Included	119
2017- 4- 6	4-24-17	Included	119
2016- 6-27	6-28-16	Included	120
2016- 7- 5	7-25-16	Included	120
2016-10- 8	10-10-16	Included	120
2017- 1-10	1-23-17	Included	120
2017- 4- 7	4-24-17	Included	120
2017- 5- 3	5- 8-17	Included	120
2017- 5- 4	5- 8-17	Included	120
2017- 5-11	5-22-17	Included	120
2017- 6-10	6-28-17	Included	120
2017- 6-11	6-28-17	Included	120

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2017- 6-12	6-28-17	Included	120
2017- 8- 7	8-28-17	Included	120
2017- 8- 8	8-28-17	Included	121
2017- 9- 5	9-11-17	Included	121
2017-10- 1	10- 9-17	Included	121
2017-10- 3	10-23-17	Included	122
2017-10- 4	10-23-17	Included	122
2017-10- 5	10-23-17	Included	122
2017-11-10	11-27-17	Included	122
2017-11-11	11-27-17	Included	122
2017-12- 2	12-11-17	Included	122
2018- 1-10	1-22-18	Included	122
2017- 8- 1	8-14-17	Included	123
2018- 1- 3	1- 8-18	Included	123
2018- 2- 6	2-26-18	Included	123
2018- 4- 5	4-23-18	Included	123
2018- 4- 6	4-23-18	Included	124
2018- 6- 4	6-12-18	Included	124
2018- 6- 7	6-25-18	Included	124
2018- 6- 8	6-25-18	Included	124
2018- 7- 2	7-23-18	Included	125
2018- 8- 3	8-13-18	Included	125
2018- 8- 4	8-13-18	Included	125
2018- 8- 5	8-13-18	Included	125
2018- 8-15	8-27-18	Included	125
2018- 9- 6	9-10-18	Included	125
2018- 9- 7	9-10-18	Included	125
2018- 9- 8	9-10-18	Included	125
2018- 9-16	9-24-18	Included	125
2018- 9-17	9-24-18	Included	125
2018-10- 2	10- 8-18	Included	126
2018-10- 4	10- 8-18	Included	126
2018-10-11	10-22-18	Included	126
2018-11- 1	11-12-18	Included	126
2018-11- 2	11-12-18	Included	126
2018-11- 3	11-12-18	Included	126
2018-11- 9	11-26-18	Included	126
2018-11-10	11-26-18	Included	126
2018-11-11	11-26-18	Included	126
2018-11-12	11-26-18	Included	126
2018-11-13	11-26-18	Included	126
2018-11-14	11-26-18	Included	126
2018-11-15	11-26-18	Included	126
2018-11-16	11-26-18	Included	126
2018-11-17	11-26-18	Included	126
2018-11-18	11-26-18	Included	126

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2018-11-19	11-26-18	Included	126
2018-12- 4	12-18-18	Included	126
2018-12- 5	12-18-18	Included	126
2019- 1- 3	1-14-19	Included	127
2019- 2- 4	2-11-19	Included	127
2019- 3- 7	3-19-19	Included	127
2019- 3- 8	3-19-19	Included	127
2019- 3- 9	3-25-19	Included	127
2019- 4- 7	4-22-19	Included	128
2019- 4- 8	4-22-19	Included	128
2019- 4-10	4-22-19	Included	128
2019- 5- 6	5-13-19	Included	128
2019- 5-12	5-28-19	Included	128
2019- 5-13	5-28-19	Included	128
2019- 6- 5	6-24-19	Included	128
2019- 6- 7	6-24-19	Included	128
2019- 7- 4	7-22-19	Included	129
2019- 8- 5	8-26-19	Included	129
2019- 8- 6	8-26-19	Included	129
2019- 9-15	9-23-19	Included	129
2019- 9-16	9-23-19	Included	129
2019- 9-17	9-23-19	Included	129
2019- 9-18	9-23-19	Included	129
2019-10- 1	10-14-19	Included	130
2019-10- 3	10-14-19	Included	130
2019-10- 4	10-14-19	Included	130
2019-10- 5	10-14-19	Included	130
2019-11- 1	11-11-19	Included	130
2019-11-10	11-25-19	Included	130
2019-11-11	11-25-19	Included	130
2019-11-14	11-25-19	Included	130
2019-12- 8	12-17-19	Included	130
2020- 1- 5	1-13-20	Included	131
2020- 2- 2	2-10-20	Included	131
2020- 2-11	2-24-20	Included	131
2020- 2-12	2-24-20	Included	131
2020- 3- 5	3-30-20	Included	131
2020- 4- 3	4-27-20	Included	132
2020- 4- 4	4-27-20	Included	132
2020- 5-11	5-26-20	Included	132
2020- 5-14	5-26-20	Included	132
2020- 6- 3	6- 8-20	Included	132
2020- 6- 5	6- 8-20	Included	132
2020- 6- 8	6-22-20	Included	132
2020- 6- 9	6-22-20	Included	132
2020- 6-10	6-22-20	Included	132

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2020- 7- 3	7-27-20	Included	133
2020- 7- 4	7-27-20	Included	133
2020- 8- 6	8-24-20	Included	133
2020- 9-13	9-28-20	Included	133
2020-10- 2	10-12-20	Included	134
2020-10- 4	10-12-20	Included	134
2020-10- 5	10-12-20	Included	134
2020-10- 9	10-26-20	Included	134
2020-10-10	10-26-20	Included	134
2020-11- 7	11- 9-20	Included	134
2020-11- 9	11-23-20	Included	134
2020-11-10	11-23-20	Included	134
2020-12- 1	12- 8-20	Included	134
2020-12- 7	12-14-20	Included	134
2021- 2-16	2-22-21	Included	135
2021- 2-17	2-22-21	Included	135
2021- 3- 1	3-16-21	Included	135
2021- 3- 2	3-22-21	Included	135
2021- 4-10	4-26-21	Included	136
2021- 5-15	5-24-21	Included	136
2021- 5- 5	5-10-21	Included	136
2021- 6-13	6-28-21	Included	136
2021- 6-14	6-28-21	Included	136
2021- 7- 3	7-26-21	Included	137
2021- 8-12	8-23-21	Included	137
2021- 8-13	8-23-21	Included	137
2021- 8- 2	8- 9-21	Included	137
2021- 8-20	8-23-21	Included	137
2021- 8- 3	8- 9-21	Included	137
2021- 8- 4	8- 9-21	Included	137
2021- 9-19	9-27-21	Included	137
2021- 9-20	9-27-21	Included	137
2021- 9-21	9-27-21	Included	137
2021- 9-22	9-27-21	Included	137
2021- 9-23	9-27-21	Included	137
2021- 9-24	9-27-21	Included	137
2021- 9-30	9-27-21	Included	138
2021-10- 2	10-11-21	Included	138
2021-11- 6	11-22-21	Included	138
2021-11- 7	11-22-21	Included	138
2021-12- 5	12-13-21	Included	138
2021-12- 6	12-13-21	Included	138
2022- 1- 4	1-10-22	Included	139
2022- 1-10	1-24-22	Included	139
2022- 1-12	1-24-22	Included	139
2022- 1-13	1-24-22	Included	139

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2022- 1-14	1-24-22	Included	139
2022- 1-15	1-24-22	Included	139
2022- 1-16	1-24-22	Included	139
2022- 1-17	1-24-22	Included	139
2022- 1-18	1-24-22	Included	139
2022- 1-19	1-24-22	Included	139
2022- 1-20	1-24-22	Included	139
2022- 2- 4	2-14-22	Included	139
2022- 2- 5	2-14-22	Included	139
2022- 2- 6	2-14-22	Included	139
2022- 3- 5	3-28-22	Included	139
2022- 3- 6	3-28-22	Included	139
2021- 9- 5	9-13-21	Included	140
2022- 5- 3	5- 9-22	Included	140
2022- 5- 4	5- 9-22	Included	140
2022- 6- 5	6-13-22	Included	140
2022- 6-12	6-27-22	Included	140
2022- 6-13	6-27-22	Included	140
2022- 6-14	6-27-22	Included	140
2022- 7- 1	7-25-22	Included	140
2022- 7- 4	7-25-22	Included	141
2022- 7- 6	7-25-22	Included	141
2022- 8- 1	8- 8-22	Included	141
2022- 8-10	8-22-22	Included	141
2022- 8-11	8-22-22	Included	141
2022- 8-14	8-22-22	Included	141
2022- 9- 6	9-12-22	Included	141
2022- 9-14	9-20-22	Included	141
2022-10- 3	10-10-22	Included	141
2022-10-11	10-24-22	Included	142
2022-10- 4	10-10-22	Included	142
2022-10- 5	10-10-22	Included	142
2022-11- 3	11-14-22	Included	142
2022-11- 4	11-14-22	Included	142
2022-11- 5	11-28-22	Included	142
2022-11- 6	11-28-22	Included	142
2022-12- 5	12-12-22	Included	142
2023- 1-11	1-23-23	Included	143
2023- 3- 3	3-13-23	Included	143
2023- 3- 6	3-21-23	Included	143
2023- 4- 7	4-24-23	Included	143
2023- 4- 8	4-24-23	Included	144
2023- 5- 4	5- 8-23	Omitted	144
2023- 6- 3	6-12-23	Included	144
2023- 6- 4	6-12-23	Included	144
2023- 6- 8	6-26-23	Included	144

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2023- 7- 4	7-24-23	Included	144
2022- 1-11	1-24-22	Included	145
2023- 7- 5	7-24-23	Included	145
2023- 7- 6	7-24-23	Included	145
2023- 8-10	8-28-23	Included	145
2023- 8-18	8-28-23	Included	145
2023- 9- 4	9-11-23	Included	145
2023- 9-16	9-11-23	Included	145
2023- 9-18	9-26-23	Included	145
2023- 9-19	9-26-23	Included	145
2023- 9-20	9-26-23	Included	145
2023- 9-21	9-26-23	Included	145
2023- 9-22	9-26-23	Included	145
2023- 9-23	9-26-23	Included	145
2023- 9-24	9-26-23	Included	145
2023- 9-25	9-26-23	Included	145
2023-10- 1	10- 9-23	Included	145
2023- 8- 2	8-14-23	Included	146
2023-11- 5	11-27-23	Included	146
2024- 1-11	1-22-24	Included	146
2024- 3- 2	3-19-24	Included	147
2024- 3- 3	3-19-24	Included	147
2024- 4- 3	4- 8-24	Included	147
2024- 4- 4	4- 8-24	Included	148
2024- 4- 9	4-22-24	Included	148
2024- 4-14	4-22-24	Included	148
2024- 6- 5	6-10-24	Included	148
2024- 7- 2	7-22-24	Included	148
2024- 7- 3	7-22-24	Included	149
2024- 8- 4	8-12-24	Included	149
2024- 8- 5	8-12-24	Included	149
2024- 8-11	8-26-24	Included	149
2024- 9-12	9-23-24	Included	149
2024- 9-13	9-23-24	Included	149
2024-10- 2	10-14-24	Included	149
2024-10-11	10-28-24	Included	150
2024-10-12	10-28-24	Included	150
2024-10-13	10-28-24	Included	150
2024-11- 4	11-25-24	Included	150
2024-11- 5	11-25-24	Included	150
2024-11- 6	11-25-24	Included	150
2024-12- 1	12- 9-24	Included	150
2024-12- 4	12-17-24	Included	150
2025- 1- 5	1-13-25	Included	150
2025- 4- 8	4-28-25	Included	151
2025- 1-10	1-27-25	Included	151

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2025- 1-12	1-27-25	Included	151
2025- 3- 6	3-24-25	Included	151
2025- 3- 8	3-24-25	Included	151
2025- 4- 2	4-14-25	Included	152
2025- 6- 2	6- 9-25	Included	152
2025- 6- 3	6- 9-25	Included	152
2025- 6- 4	6- 9-25	Included	152
2025- 6- 5	6- 9-25	Included	152
2025- 6- 6	6- 9-25	Included	152
2025- 6- 7	6- 9-25	Included	152
2025- 6- 8	6- 9-25	Included	152
2025- 6- 9	6- 9-25	Included	152
2025- 6-10	6- 9-25	Included	152
2025- 6-11	6- 9-25	Included	152
2025- 6-12	6- 9-25	Included	152
2025- 6-13	6- 9-25	Included	152
2025- 6-14	6- 9-25	Included	152
2025- 6-15	6- 9-25	Included	152
2025- 6-20	6-23-25	Included	152
2025- 6-21	6-23-25	Included	152
2025- 7- 5	7-28-25	Included	152
2025- 7- 6	7-28-25	Included	153
2025- 7- 7	7-28-25	Included	153
2025- 7- 9	7-28-25	Included	153
2025- 7-11	7-28-25	Included	153
2025- 8- 3	8-11-25	Included	153
2025- 9- 1	9- 8-25	Included	153
2025- 9- 2	9- 8-25	Included	153
2025- 9- 3	9- 8-25	Included	153
2025- 9- 4	9- 8-25	Included	153
2025- 9-12	9-16-25	Included	153
2025- 9-13	9-16-25	Included	153
2025- 9-15	9-16-25	Included	153
2025- 9-16	9-16-25	Included	153
2025-10- 2	10-13-25	Included	153

PART I

HOME RULE CHARTER

For The

CITY OF PLANO, TEXAS*

Preamble
Art. 1. Form Of Government And Boundaries, §§ 1.01—1.04
Art. 2. Powers Of The City, §§ 2.01—2.03
Art. 3. The City Council, §§ 3.01—3.14
Art. 4. General Administration, §§ 4.01—4.07
Art. 5. Nominations And Elections, §§ 5.01—5.08
Art. 6. Recall Of Officers, §§ 6.01—6.11
Art. 7. Legislation By The People, Initiative And Referendum, §§ 7.01—7.11
Art. 8. Municipal Planning And Zoning, §§ 8.01—8.03
Art. 9. Municipal Finance, §§ 9.01—9.22
Art. 10. Franchises And Public Utilities, §§ 10.01—10.11
Art. 10-A. Private Franchises, §§ 10-A.01, 10-A.02
Art. 11. General Provisions, §§ 11.01—11.13

*Editor's note—The city's charter was adopted at an election held on June 10, 1961. The charter was amended on Dec. 20, 1969, Nov. 7, 1972, Jan. 19, 1980, and Jan. 16, 1988, and is included herein for the convenience of the users of this Code. The original arrangement, article headings and section catchlines have been retained. Words appearing in brackets were added by the editor to clarify meaning.

State constitution reference—Adoption or amendment of charters, Art. XI, § 5.

State law reference—Adoption; amendments, etc., of home rule charter, Vernon's Ann. Civ. St., art. 1165 et seq.

PREAMBLE

We, the people of Plano, Texas, in order to establish a home rule municipal government that will provide for the future progress of our city through local self government, do hereby adopt this home rule charter in accordance with the statutes of the State of Texas; and do hereby declare the citizens of the City of Plano, Collin County [and Denton County], Texas, residing within the legally established boundaries of said city, to be a political subdivision of the State of Texas incorporated forever under the name of the "City of Plano" with such powers, rights and duties as are herein provided.

ARTICLE 1. FORM OF GOVERNMENT AND BOUNDARIES

Sec. 1.01. Form of government.

The municipal government provided by this charter shall be known as the "council-manager government." Pursuant to its provisions and subject only to the limitations imposed by the state constitution, the statutes of this state and by this charter, all powers of the city shall be vested in an elective council, hereinafter referred to as the "city council," which shall enact local legislation, adopt budgets, determine policies and appoint the city manager, who in turn shall be held responsible to the city council for the execution of the laws and the administration of the government of the city. All power of the city shall be exercised in the manner prescribed by this charter, or if the manner be not prescribed, then in such manner as may be prescribed by ordinance, the state constitution or the statutes of the state.

State constitution reference—Charter and ordinances to be consistent with constitution and general laws of state, Art. XI, § 5.

State law reference—Charter and ordinances to be consistent with charter and general laws of state, Vernon's Ann. Civ. St., art. 1165.

Sec. 1.02. The boundaries.

The boundaries of the City of Plano shall be the same as have heretofore been established as of the date of the adoption of this charter and as may change from time to time by official legislative action. The City Secretary shall maintain an official map of its boundaries in accordance with Chapter 41 of the Texas Local Government Code as now or hereafter amended.
(Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

Sec. 1.03. Extension of boundaries.

The boundaries of the City of Plano may be enlarged and extended by the annexation of additional territory, irrespective of size and configuration, in any of the methods and in any manner and by any procedure that may now be provided by state law, or that may be hereafter provided by such law. Any territory annexed shall become a part of the city, and said land and its residents and future residents shall be entitled to all the rights and privileges of other citizens of the city subject to state and local laws and regulations.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

Sec. 1.04. Contraction of boundaries.

Whenever there exists within the corporate limits of the City of Plano any territory not suitable or necessary for city purposes, or for the purpose of effectuating common boundary line agreements between the City of Plano and adjoining cities, the city council may, by ordinance duly passed, discontinue said territory as a part of the city; said ordinance shall specify accurately the metes and bounds of the territory sought to be eliminated from the city and shall contain a plat designating such territory so that the same can be definitely ascertained, and when said ordinance has been duly passed the same shall be entered upon the minutes and records of said city, and from and after the entry of such ordinance said territory shall cease to be a part of said city, and from and after the entry of such ordinance said territory shall cease to be a part of said city, but said territory shall still be liable for its pro rata share of any debts incurred while said area was a part of said city, and the city shall continue to levy, assess and collect taxes on the property within said territory to pay the indebtedness incurred while said area was a part of the city as though the same had not been excluded from the boundaries of the city.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

ARTICLE 2. POWERS OF THE CITY

Sec. 2.01. General.

The City of Plano may use a corporate seal; may sue and be sued; may contract and be contracted with; may implead and be impleaded in all courts in all matters whatsoever; may cooperate with the government of the State of Texas or any agency thereof, the federal government or any agency thereof, or any political subdivision of the State of Texas; and shall have all powers granted to cities by the constitution and laws of the State of Texas, together with all the implied powers necessary to carry into execution all the powers granted. The city may own or acquire property within or without its boundaries for any municipal purpose in fee simple or in any lesser interest or estate, by purchase, gift, devise, lease or condemnation or may sell, lease, hold, manage, control and police any property now owned by it or which it may hereafter acquire, and shall have the right to lease or let its property whether inside or outside of the city limits, subject to the limitations hereinafter set out, and may construct, own, lease, operate and regulate public utilities, may assess, levy and collect taxes for general and special purposes on all lawful subjects of taxation; may borrow money on the faith and credit of the city by the issuance and sale of bonds, warrants or notes of the city; may appropriate the money of the city for all lawful purposes; may regulate and control the use, for whatever purpose, of the streets and other public places; may make and enforce all police, health, sanitary and other regulations; and may pass such ordinances as may be expedient for the protection and maintenance of good government, peace and welfare of the city, for the performance of the functions thereof, for the order and security of its residents; and may provide suitable penalties for the violations of any ordinance enacted by the City of Plano; and, except as prohibited by the constitution and laws of this state or restricted by this charter, the city may exercise all municipal powers, functions, rights, privileges and immunities of every name and nature whatsoever.

Sec. 2.02. General powers adopted.

The enumeration of the particular powers in this charter shall not be held or deemed to be exclusive but in addition to the powers enumerated herein or implied hereby or appropriate to the exercise of such powers, the city shall have and may exercise all power of local self-government and all other powers which, under the constitution and laws of the State of Texas, it would be competent for this charter specifically to enumerate. The City of Plano shall have and may exercise all the powers enumerated in Article 1175, Chapter 13, Title 28, of the Revised Civil Statutes of the State of Texas as now or hereafter amended.
(Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

Sec. 2.03. Eminent domain.

The city shall have the full power and right to exercise the power of eminent domain when necessary or desirable to carry out any of the powers conferred upon it by this charter or by the constitution and laws of the State of Texas. The city may exercise the power of eminent domain in any manner authorized or permitted by the constitution and laws of this state. The power of eminent domain hereby conferred shall include the right of the city to take the fee in land so condemned and such power and authority shall include the right to condemn public property for such purposes. The city shall have and possess the power of condemnation for any municipal or public purposes even though not specifically enumerated in this charter.

State constitution reference—Taking, damaging or destroying property for public use, Art. I, § 17.

State law reference—Eminent domain, V.T.C.A. Property Code, § 21.001 et seq.

ARTICLE 3. THE CITY COUNCIL

Sec. 3.01. Number, selection and term.

(a) The city council shall be divided into eight (8) places known as places 1, 2, 3, 4, 5, 6, 7, and 8 with places on the official ballot designated as "Member of council, place no. _____", or "Member of council, mayor, place no. six (6)", with the election for each place from the city at large, determined by a majority vote of the qualified voters voting at the election. Member of council,

place no. six (6) is hereby designated as mayor. Each candidate shall designate the specific place for which he is a candidate for election.

The city shall by ordinance be divided into four (4) geographic districts based on equality of population. No person shall be eligible to be a candidate for a council representative of a geographic district unless the candidate is at that time a bona fide resident in said district. Council geographic district representatives must continuously reside in said district during their term or terms of office. Candidates for at large places may reside in any portion of the city. The city council may appoint a commission to recommend establishment of district boundaries.

(b) The mayor shall preside at meetings of the council, and shall be recognized as head of the city government for all ceremonial purposes and by the governor for purposes of military law but shall have no regular administrative duties. He may participate in the discussion of all matters coming before the council and shall be entitled to vote as a member thereof, on legislative or other matters.

(c) Council shall be elected in odd-numbered years with Places 2, 4, 6, and 8 beginning in 2013, and Places 1, 3, 5 and 7 beginning in 2015. Each person elected shall hold office for a period of four (4) years and until his successor is elected and qualified. All elections shall be held in the manner provided in Article 5 of this charter. No person shall serve more than two consecutive full terms. A person who has served as a member of the city council for two (2) consecutive full terms shall not again be eligible for election to any place on the city council until at least one (1) year has elapsed, except such council member shall be eligible for election as mayor.

The two consecutive full term limit shall be applied retroactively to persons serving at the time of passage of this charter amendment.

(d) The mayor, members of the city council and appointed members of every council-appointed commission, committee or study group who announces for any elective office other than that which he or she is holding at the time of announcing for office, which office is to be held in and for the City of Plano, shall resign his elective or appointive office upon announcing for such elective office. If the candidate fails to resign, the city council shall consider the office vacant as of the date of announcement for office, in the minutes of the next regular council meeting.
(Res. No. 93-5-3(R), § 3, 5-3-93; ratified 5-1-93; Res. No. 2005-5-13(R), §§ I—III, 5-17-05, ratified 5-7-05; Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

Sec. 3.02. Qualifications.

Each member of the city council shall be a resident citizen of the City of Plano, shall be a qualified voter of the State of Texas, shall have been such resident citizen of the City of Plano for a period of not less than twelve (12) months immediately preceding his election, and shall not be indebted to the City of Plano; provided, however, that any person who shall have been a resident for a period of not less than one (1) year immediately preceding his election, of any of the territory not formerly within the corporate limits of said city, but which is annexed under the provisions of section 1.03 of this charter, shall be eligible for said office.

If the mayor or any councilman fails to maintain the forgoing qualification, or shall be absent from three (3) consecutive regularly scheduled meetings without a valid excuse, the city council must at its next regular meeting declare a vacancy to exist and shall fill said vacancy as set forth in section 3.06 of this charter.
(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80; Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88; Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

Sec. 3.03. Council to be judge of election qualifications.

The city council shall be the judge of the election and qualifications of its own members and other elected officials of the city.

Sec. 3.04. Compensation.

The city council shall fix the compensation to be received by its members for attendance at its meetings.

Sec. 3.05. Mayor pro-tem and deputy mayor pro-tem.

At the first meeting of the council after election of councilmen, the city council shall appoint one (1) of its members mayor pro-tem, and one (1) of its members deputy mayor pro-tem, and they shall perform all the duties of the mayor in the absence or disability of the mayor.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

Sec. 3.06. Vacancies.

When a vacancy occurs in the city council, the city council shall call a Special Election within one hundred and twenty (120) days from the date that the last vacancy occurred, to be held in accordance with the provisions of the Texas Election Code, for the purpose of electing the successor or successors to the office or offices vacated.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88; Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

State law reference—Dates for holding general and special elections, V.A.T.S. Election Code, §§ 41.001, 203.004.

Sec. 3.07. Powers of the city council.

All powers of the city and the determination of all matters of policy shall be vested in the city council. Without limitation of the foregoing and among the other powers that may be exercised by the city council, the following are hereby enumerated for greater certainty:

(a) Remove from any office or position of employment in the city government, any officer or employee or member of any board or commission appointed by the city council.

(b) Establish, consolidate or abolish administrative departments and distribute the work of divisions.

(c) Adopt the budget of the city.

(d) Authorize the issuance of bonds by a bond ordinance.

(e) Inquire into the conduct of any office, department or agency of the city and make investigations as to municipal affairs.

(f) Provide for such additional boards and commissions, not otherwise provided for in this charter, as may be deemed necessary, and appoint the members of all such boards and commissions. Such boards and commissions shall have all powers and duties nor [now] or hereafter conferred and created by this charter, by city ordinance or by law.

(g) Adopt and modify the zoning plan and the building code of the city.

(h) Adopt and modify the official map of the city.

(i) Adopt, modify and carry out plans proposed by the planning commission for the clearance of slum districts and rehabilitation of blighted areas.

(j) Adopt, modify and carry out plans proposed by the planning commission for the replanning, improvement and redevelopment of any area or district which may have been destroyed in whole or in part by disaster.

(k) Regulate, license and fix the charges or fares by any person, firm or corporation owning, operating or controlling any vehicle of any character used for the carrying of passengers for hire or the transportation of freight for hire on the public streets and alleys of the city.

(l) Provide for the establishment and designation of fire limits and prescribe the kind and character of buildings or structures or improvements to be erected therein, and provide for the erection of fireproof buildings within said limits, and provide for the condemnation of dangerous structures or buildings or dilapidated buildings, or buildings calculated to increase the fire hazard and prescribe the manner of their removal or destruction within said limits.

(m) Fix the salaries and compensation of the city officers and employees appointed by the city council.

(n) Provide for a sanitary sewer and water system and require property owners to

connect their premises with sewer system, and provide for penalties for failure to make sanitary sewer connections.

(o) Provide for sanitary garbage disposal, and set fees and charges therefor, and provide penalties for failure to pay such fees and charges.

(p) Provide for an electrical system and set fees and charges therefor and provide penalties for misuses of same.

(q) Exercise exclusive dominion, control and jurisdiction including the right to close and abandon streets and alleys in, upon, over and under the public streets, avenues, sidewalks, alleys, highways, boulevards and public grounds of the city and provide for the improvement of same as provided in Article 1105b, Chapter 9, Title 28 of the Revised Civil Statutes of the State of Texas of 1925, as now or hereafter amended.

(r) Compromise and settle any and all claims and lawsuits of every kind and character in favor of or against the City of Plano.

(s) Appoint [the] judge of [the] municipal court.

(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80)

Sec. 3.08. City council not to influence appointments.

Neither the city council nor any of its members shall direct the appointment of any person to office by the city manager or by any of his subordinates. Except for the purpose of inquiry, the city council and its members shall deal with the administrative services solely through the city manager and neither the city council nor any member thereof shall give orders to any subordinate of the city manager, either publicly or privately.

Sec. 3.09. Meetings of the city council.

The city council shall hold at least two (2) regular meetings in each month at a time to be fixed by it for such regular meetings, and may hold as many additional meetings during the month as may be necessary for the transaction of the business of the city and its citizens. All meetings of the city council shall be held at the city hall, except that the city council may designate another place for such meetings after publishing due notice thereof in one (1) issue of a newspaper in general circulation in the City of Plano. The mayor or any two (2) members of the city council may call special meetings of the city council at any time. All meetings of the city council shall comply with the provisions of the Texas Open Meetings Act, as now exists or hereafter amended.

(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80; Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

State law reference—Prohibition on governmental bodies from holding meetings which are closed to the public, Vernon's Ann. Civ. St., art. 6252-17.

Sec. 3.10. Rules of procedure.

The city council shall determine its own rules of procedure and may compel the attendance of its members. A majority of the qualified voting members of the city council shall constitute a quorum to do business and the affirmative vote of a majority of those present shall be necessary to adopt any ordinance or resolution. Minutes of the proceedings of all meetings of the city council shall be kept, to which any citizen may have access at all reasonable times and which shall constitute one (1) of the archives of the city. The vote upon the passage of all ordinances and resolutions shall be taken by the "ayes" and "nays" and entered upon the minutes, and every ordinance or resolution, upon its final passage, shall be recorded in a book kept for that purpose under full caption, and shall be authenticated by the signature of the presiding officer and the person performing the duties of the city secretary.

(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

Sec. 3.11. Procedure for passage of ordinances.

Every ordinance shall be introduced in written or printed form and upon passage, shall take effect at the time indicated therein; provided that any ordinance imposing a penalty, fine or forfeiture for a violation of its provisions shall become

effective from the date of its passage, subject to the provisions of Article 7 of this charter. The clerk shall give notice of the passage of every ordinance imposing a penalty, fine or forfeiture for a violation of the provisions thereof, by causing the caption or title, including the penalty, of any such ordinance to be published in the official newspaper of the City of Plano at least twice within ten (10) days after the passage of said ordinance. He shall note on every ordinance, the caption of which is hereby required to be published, and on the record thereof, the fact that same has been published as required by the charter, and the date of such publication, which shall be prima facie evidence of the legal publication and promulgation of such ordinance; provided that the provisions of this section shall not apply to the correction, amendment, revision and codification of the ordinances of the city for publication in book or pamphlet form. Except as otherwise provided by Article 7 of this charter, it shall not be necessary to the validity of any ordinance that it shall be read more then [than] one (1) time or considered at more than one (1) session of the city council. Every ordinance shall be authenticated by the signature of the mayor and city secretary and shall be systematically recorded and indexed in an ordinance book in a manner approved by the council. It shall only be necessary to record the caption or title of ordinances in the minutes or journal of council meetings. The city council shall have power to cause the ordinances of the city to be corrected, amended, revised, codified and printed in code form as often as the council deems advisable, and such printed code, when adopted by the council, shall be in full force and effect without the necessity of publishing the same or any part thereof in a newspaper. Such printed code shall be admitted in evidence in all courts and places without further proof.

Sec. 3.12. Official bond for city employees.

The city manager, city secretary and the tax collector and such city officers and employees as the city council or state law may require, shall, before entering upon the duties of their offices enter into a good and sufficient fidelity bond in a sum to be determined by the city council, payable to the City of Plano and conditioned upon the faithful discharge of the duties of such persons and upon the faithful accounting for all monies, credits, and things of value coming into the hands of such persons, and such bonds shall be signed as surety by some company authorized to do business under the laws of the State of Texas, and the premium on such bonds shall be paid by the City of Plano, and such bonds must be acceptable to the city council.

(Res. No. 93-5-3(R), § 3, 5-3-93; ratified 5-1-93)

Sec. 3.13. Investigation by the city council.

The city council shall have power to inquire into the conduct of any office, department, agency, officer or employee of the city and to make investigations as to municipal affairs, and for that purpose may subpoena witnesses, administer oaths and compel the production of books, papers, and other evidence. Failure to obey such subpoena or to produce books, papers or other evidence as ordered under the provisions of this section shall constitute a misdemeanor and shall be punishable by fine not to exceed two hundred dollars ($200.00).

Sec. 3.14. Audit and examination of city books and accounts.

The city council shall cause an annual audit to be made of the books and accounts of each and every department of the city. At the close of each fiscal year a complete audit shall be made by a duly licensed public accountant or certified public accountant, licensed in the State of Texas, who shall be selected by the city council, and such audit shall include a recapitulation of all audits made during the course of each fiscal year, and all audit reports shall be filed with the city council, shall be available for public inspection and shall be made a part of the archives of the city. A report containing the results of such audit shall be published in the official newspaper of the city not later than thirty (30) days after the audit is filed with the city council. Such accountant, so selected, shall not maintain or keep any of the city's accounts or records.

ARTICLE 4. GENERAL ADMINISTRATION

Sec. 4.01. City manager.

(a) *Appointment and qualifications.* The city council shall appoint a city manager who shall be the chief administrative and executive officer of

the city and shall be responsible to the city council for the administration of all the affairs of the city. He shall be chosen by the city council solely on the basis of his executive and administrative training, experience and ability and need not, when appointed, be a resident of the City of Plano. No member of the city council shall, during the time for which he is elected and for one (1) year thereafter, be appointed city manager.

(b) *Term and salary.* The city manager shall not be appointed for a definite term but may be removed at the will and pleasure of the city council by a vote of the majority of the entire council. The motion of the city council in suspending or removing the city manager shall be final, it being the intention of this charter to vest all authority and fix all responsibility of such suspension or removal in the city council. In case of the absence or disability of the city manager, the city council may designate some qualified person to perform the duties of the office during such absence or disability. The city manager shall receive compensation as may be fixed by the council.

(c) *Duties of the city manager.* [The city manager shall:]

(1) Appoint and remove any employee of the city not appointed by the city council.

(2) Prepare the budget annually and submit it to the city council, and be responsible for its administration after adoption.

(3) Prepare and submit to the city council as of the end of the fiscal year a complete report on the finances and administrative activities of the city for the preceding year.

(4) Keep the city council advised of the financial condition and future needs of the city and make such recommendations as may seem desirable.

(5) Perform such duties as may be prescribed by this charter or may be required of him by the city council, not inconsistent with this charter.

(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80; Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

Sec. 4.02. Departments.

(a) The head of each department, except those specifically mentioned in this charter, shall be appointed by, responsible to, and removed by the city manager, and shall be directly responsible for the administration of his or her department. The city manager shall determine the salary of the head of each department under his supervision.

(b) The city council, after receiving and considering the recommendation of the city manager on the subject, may abolish, establish or consolidate any department of the city or the administration or duties of any department and may alter the organization chart, except that all departments specifically mentioned in this charter, and all officers of the city mentioned herein, shall be directly responsible to the city council only, unless otherwise provided herein. No department or office established by this charter shall be discontinued by the city council, and no duties of any such departments shall be transferred therefrom or added thereto.

(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80; Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

Sec. 4.03. Tax assessor/collector.

The city manager shall appoint a tax assessor/collector for the city. The city council may contract with the governing body of another unit or with the board of directors of an appraisal district for the other unit or the district to perform duties relating to the assessment or collection of taxes. In the assessment and collection of taxes, all provisions of the constitution and general laws of the State of Texas, the ordinances of this city relating thereto, and the provisions of this charter shall be followed.

(Res. No. 79-11-11, § 1, 11-12-79; ratified 1-19-80; Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88; Res. No. 93-5-3(R), § 3, 5-3-93; ratified 5-1-93)

State law reference—Texas Property Tax Code supersedes any provision of a municipal charter or ordinance relating to property taxation, V.T.C.A. Tax Code, § 1.02.

Sec. 4.04. Municipal court: Powers; appointment and removal of judges; clerk duties.

(a) There shall be established and maintained a court designated as the "municipal court" for the trial of misdemeanor offenses, with all such

other powers and duties as now or hereafter may be prescribed by the laws of the State of Texas and this City.

(b) The judge of said court shall be appointed by the city council of the City of Plano, shall be designated as the chief municipal judge, and shall receive such salary as may be fixed by the city council.

(c) The city council may establish and maintain from time to time one (1) or more ancillary municipal courts which shall be presided over by associate judges who shall exercise such ancillary jurisdiction and hear such cases that shall be assigned to them by the chief municipal judge. The chief and associate judges shall be selected and appointed by the city council to serve specific terms. Initial appointment and reappointment to any term is at the discretion of the city council.

(d) The chief municipal judge and associate judges may be removed during their term of office by a majority vote of all members of the city council eligible to serve. Removal may include any one or more of the following grounds: dereliction of duty, incompetency, incapacity to serve, conduct discrediting the position, or misconduct.

(e) If a vacancy occurs in the office of chief municipal judge during an appointed term, the city council shall appoint a qualified person to fill the office for the remainder of the unexpired term and such appointee shall have all the powers and duties of the office and shall receive the same compensation as is payable to the chief municipal judge, while the appointee is so acting and until the expiration of such term.

(f) The clerks of said courts shall have the power to administer oaths and affidavits, make certificates, affix the seal of said courts thereto, and generally to do and perform any and all acts usual and necessary by the clerks of courts in issuing process of said courts and conducting the business thereof.
(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80; Res. No. 93-5-3(R), § 3, 5-3-93; ratified 5-1-93; Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

Editor's note—Res. No. 2011-11-18(R), adopted November 16, 2011, ratified November 8, 2011, changed the title of section 4.04 from "Municipal court" to "Municipal court: Powers; appointment and removal of judges; clerk duties."

Sec. 4.05. City attorney.

The city council shall appoint a competent and duly licensed attorney practicing law in the State of Texas, who shall be the city attorney. He shall receive for his services such compensation as may be fixed by the city council and shall hold his office at the pleasure of the city council. The city attorney, or such other attorneys selected by him with the approval of the city council, shall represent the city in all litigation. He shall be the legal advisor of, and attorney and counsel for, the city and all officers and departments thereof.

Sec. 4.06. Reserved.

Editor's note—Section 3 of Res. No. 93-5-3(R), adopted May 3, 1993, and ratified May 1, 1993, repealed § 4.06 herein. Formerly, § 4.06 pertained to the city health officer and derived from § 1 of Res. No. 79-11-11(R), adopted Nov. 12, 1979, and ratified Jan. 19, 1980.

Sec. 4.07. Appointees.

All appointees to City of Plano boards and commissions must be residents of the City of Plano for at least twelve (12) consecutive months prior to appointment to a board or commission of the City of Plano. The twelve (12) month residency requirement shall not apply to any person whose property was not formerly within the city limits but that has been annexed under section 1.03 of the charter. No person shall be appointed to more than two (2) permanent boards or commissions of the City of Plano at any one time.
(Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

ARTICLE 5. NOMINATIONS AND ELECTIONS

Sec. 5.01. Elections.

The city's general election shall be held as prescribed by the Texas Election Code. The city council shall fix the place for holding such election. The city council may order a Special Election, fix the place for holding same and provide all means for holding such Special Election. Notice of

the general election shall be given in accordance with the requirements set forth in the Texas Election Code.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88; Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

State law reference—Dates for holding general and special elections, V.A.T.S. Election Code, §§ 41.001, 203.004.

Sec. 5.02. Regulation of elections.

The city council shall make all regulations which it considers needful or desirable, not inconsistent with this charter or the laws of the State of Texas, for the conduct of municipal elections, for the prevention of fraud in such elections and for the recount of ballots in case of doubt or fraud. Municipal elections shall be conducted by the appointed election authorities who shall also have power to make regulations not inconsistent with this charter or with any regulations made by the council or the laws of the State of Texas.

Sec. 5.03. Filing for office.

Any person having the qualifications set forth for council members under section 3.02 of this Charter and desiring to become a candidate for a place on the city council, shall be entitled to have his name placed on the official ballot, if he files with the city secretary, in accordance with the filing period set forth in the Texas Election Code, the following:

(1) A petition or petitions designating the place sought by such candidate and properly signed by qualified voters of the City of Plano in a number prescribed by the Texas Election Code. Each such petition shall conform to the requirements set forth in the Texas Election Code; and

(2) An acceptance of the nomination.

State law reference—Independent candidates at city or town election, V.A.T.S. Election Code, § 143.004.
(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80; Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

Sec. 5.04. The official ballot.

The names of all candidates for office, except such as may have withdrawn, died or become ineligible, shall be printed on the official ballots without party designation in the order determined in a drawing conducted in accordance with the election laws of the State of Texas. All official ballots shall be printed in accordance with the requirements set forth in the Texas Election Code, and absentee voting shall be governed by the general election laws of the State of Texas.
(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80; Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

State law reference—Absentee voting, V.A.T.S. Election Code, §§ 1.001 et seq.

Sec. 5.05. Election by plurality.

In the event that no candidate receives a majority of all votes cast for any one place at such election, the council shall, upon completion of the official canvass of the ballots, issue a call for a runoff election to be held in accordance with the provisions of the Texas Election Code. At such runoff election, the two (2) candidates receiving the highest number of votes (or three (3) persons in case of a tie for second place) for any one place in the first election shall again be voted for.

The official ballot shall be prepared by the city secretary and the name of no person shall appear thereon unless he was a candidate for the place designated at said first election.

Names of the persons qualifying for such runoff election shall be printed on said official ballot in an order to be determined by the drawing of lots; provided, however, that any qualified runoff candidate may request that his name shall not appear on the official ballot at such runoff election, in which case, the candidate for such place standing next highest in the computation of votes shall be placed on the runoff ballot.

All runoff elections will be decided by plurality. In the event of a tie between the two (2)

candidates for any office at said runoff election, they shall cast lots to determine who shall be elected to such office.
(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80; Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

Sec. 5.06. Laws governing city elections.

All city elections shall be governed, except as otherwise provided by this charter[,] by the laws of the State of Texas governing general and municipal elections.

Sec. 5.07. Conducting and canvassing elections.

The election judges and other necessary election officials for conducting all such elections shall be appointed by the city council. The election judges shall conduct the election, determine, record and report the results as provided by the general election laws of Texas. In accordance with the provisions set forth in the Texas Election Code, the city council, after an election, shall meet, open returns, canvass and officially declare the results of the election as to candidates and questions and issue certificates of election to candidates elected as provided in the City Charter.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

State law reference—Election officers, V.A.T.S. Election Code, § 31.001 et seq.

Sec. 5.08. Oath of office.

Every officer of the city shall, before entering upon the duties of his office, take and subscribe to the following oath or affirmation to be filed and kept in the office of the city secretary:

> "I _____, do solemnly swear (or affirm) that I will faithfully execute the duties of the office of _____, of the City of Plano, State of Texas, and will to the best of my ability preserve, protect and defend the constitution and laws of the United States and of this state and the charter and ordinances of this city; and I furthermore solemnly swear (or affirm) that I have not directly or indirectly paid, offered, or promised to pay, contributed, nor promised to contribute any money or valuable thing, or promised any public office or employment, as a reward for the giving or withholding [of] a vote at the election at which I was elected, or if the office is one of appointment, to secure my appointment. So help me God."

ARTICLE 6. RECALL OF OFFICERS

Sec. 6.01. Scope of recall.

Any elected city official, whether elected to office by the qualified voters of the city or appointed by the city council to fill a vacancy, shall be subject to recall and removal from office by the qualified voters of the city on grounds of incompetency, misconduct or malfeasance in office.

Sec. 6.02. Petitions for recall.

Before the question of recall of such officer shall be submitted to the qualified voters of the city, a petition demanding such question to be so submitted shall first be filed with the person performing the duties of city secretary; which said petition shall be signed by qualified voters of the city equal in number to at least thirty (30) per cent of the number of votes cast at the last regular municipal election of the city, but in no event less than one hundred fifty (150) such petitioners. Each signature on a recall petition shall conform to the requirements for information as set forth in the Texas Election Code.
(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80; Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88; Collin County District Court Order No. 401-03181-2018 8-14-18)

Sec. 6.03. Form of recall petition.

The recall petition mentioned above must be addressed to the city council of the City of Plano, must distinctly and specifically point out the ground or grounds upon which such petition for removal is predicated, and, if there be more than one ground, such as for incompetency, misconduct or malfeasance in office, shall specifically state each ground with such certainty as to give the officer sought to be removed, notice of the mat-

ters and things with which he is charged. The signature shall be verified by oath in the following form:

STATE OF TEXAS, COUNTY OF COLLIN

I, _____, being first duly sworn, on oath depose and say that I am one of the signers of the above petition; and that the statements made therein are true, and that each signature appearing thereto was made in my presence on the day and date it purports to

have been made, and I solemnly swear that the same is the genuine signature of the person whose name it purports to be.

Sworn to and subscribed to before me this ____ day of _____, 20____.

Notary Public in and for State of Texas.
(Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

Sec. 6.04. Various papers constituting petition.

The petition may consist of one (1) or more copies, or subscription lists, circulated separately, and the signatures thereto may be upon the paper or papers attached thereto. Verifications provided for in the next preceding section of this article may be made by one (1) or more petitioners, and the several parts of copies of the petition may be filed separately and by different persons; but no signatures to such petition shall remain effective or be counted which were placed thereon more than forty-five (45) days prior to the filing of such petition or petitions with the person performing the duties of city secretary. All papers comprising a recall petition shall be filed with the person performing the duties of city secretary on the same day, and the said secretary shall immediately notify, in writing, the officer so sought to be removed, by mailing such notice to his Plano address.

Sec. 6.05. Presentation of petition to city council.

Within five (5) days after the date of the filing of the papers constituting the recall petition, the person performing the duties of the city secretary shall present such petition to the city council of the City of Plano.

Sec. 6.06. Public hearing to be held.

The officer whose removal is sought may, within five (5) days after such recall petition has been presented to the city council, request that a public hearing be held to permit him to present facts pertinent to the charges specified in the recall petition. In this event, the city council shall order such public hearing to be held, not less than five (5) days nor more than fifteen (15) days after receiving such request for a public hearing.

Sec. 6.07. Election to be called.

If the officer whose removal is sought does not resign, then the city council shall order an election and set the date for holding such recall election. The date selected for the recall election shall be in accordance with the Texas Election Code. If, after the recall election date is established, the officer vacates his or her position, the recall election shall be cancelled and the vacancy shall be filled in accordance with state law.
(Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

State law reference—Date of special elections, V.A.T.S. Election Code, § 203.004.

Sec. 6.08. Ballots in recall election.

Ballots used at recall elections shall conform to the following requirements:

(a) With respect to each person whose removal is sought, the question shall be submitted:

"Shall (name of person) be removed from the office of (name of office) by recall?"

(b) Immediately below each such question there shall be printed the following words, one above the other, in the order indicated:

"YES"

"NO"

Sec. 6.09. Result of recall elections.

If a majority of the votes cast at a recall election shall be "NO," that is against the recall of the person named on the ballot, he shall continue in office for the remainder of his unexpired term, subject to recall as before. If a majority of the votes cast at such an election be "YES," that is for the recall of the person named on the ballot, he shall, regardless of any technical defects in the recall petition, be deemed removed from office and the vacancy be filled as vacancies in the city council are filled, as provided in section 3.06 of this charter.

Sec. 6.10. Recall, restrictions thereon.

No recall petition shall be filed against any officer of the City of Plano within three (3) months after his election, nor within three (3) months after an election for such officer's recall.

Sec. 6.11. Reserved.

Editor's note—Res. No. 2011-11-18(R), adopted November 16, 2011, ratified November 8, 2011, repealed the former section 6.11 in its entirety, which pertained to the failure of city council to call an election and derived from original codification.

ARTICLE 7. LEGISLATION BY THE PEOPLE, INITIATIVE AND REFERENDUM

Sec. 7.01. General power.

The qualified voters of the City of Plano, in addition to the method of legislation hereinbefore provided, shall have the power of direct legislation by the initiative and referendum.

Sec. 7.02. Initiative.

Qualified voters of the City of Plano may initiate legislation by submitting a petition addressed to the city council which requests the submission of a proposed ordinance or resolution to a vote of the qualified voters of the city. Said petition must be signed by qualified voters of the city equal in number to twenty (20) percent of the number of votes cast at the last regular municipal election of the city, or one hundred fifty (150), whichever is greater, and each copy of the petition shall have attached to it a copy of the proposed legislation. The petition shall be signed in the same manner as recall petitions are signed, as provided in section 6.02 of this charter, and shall be verified by oath in the manner and form provided for recall petitions in section 6.03 of this charter. The petition may consist of one (1) or more copies as permitted for recall petitions in section 6.04 of this charter. Such petition shall be filed with the person performing the duties of city secretary. Within five (5) days after the filing of such petition, the person performing the duties of city secretary shall present said petition and proposed ordinance or resolution to the city council. Upon presentation to it of the petition and draft of the proposed ordinance or resolution, it shall become the duty of the city council, within ten (10) days after receipt thereof, to pass and adopt such ordinance or resolution without alteration as to meaning or effect in the opinion of the persons filing the petition, or to call a Special Election in accordance with the Election Code.
(Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

State law reference—Dates for holding general and special elections, V.A.T.S. Election Code, §§ 41.001, 203.004.

Sec. 7.03. Referendum.

Qualified voters of the City of Plano may require that any ordinance or resolution, with the exception of ordinances or resolutions levying taxes, passed by the city council be submitted to the voters of the city for approval or disapproval by submitting a petition for this purpose within thirty (30) days after final passage of said ordinance or resolution, or within thirty (30) days after its publication. Said petition shall be addressed, prepared, signed and verified as required for petitions initiating legislation as provided in section 7.02 of this charter and shall be submitted to the person performing the duties of city secretary. Immediately upon the filing of such petition, the person performing the duties of city secretary shall present said petition to the city council. Thereupon the city council shall immediately reconsider such ordinance or resolution and if it does not entirely repeal the same, shall submit it to popular vote as provided in section 7.02 of this charter. Pending the holding of such election such ordinance or resolution shall be suspended from taking effect and shall not later take effect unless a majority of the qualified voters voting thereon at such election shall vote in favor thereof.

Sec. 7.04. Voluntary submission of legislation by the council.

The city council, upon its own motion and by a majority vote of its members, may submit to popular vote at any election for adoption or rejection any proposed ordinance or resolution or measure, or may submit for repeal any existing ordinance, resolution or measure, in the same manner and with the same force and effect as provided in

this article for submission on petition, and may in its discretion call a special election for this purpose.

Sec. 7.05. Form of ballots.

The ballots used when voting upon such proposed and referred ordinances, resolutions or measures, shall set forth their nature sufficiently to identify them and shall also set forth upon separate lines the words:

"FOR THE ORDINANCE," and

"AGAINST THE ORDINANCE," or

"FOR THE RESOLUTION," and

"AGAINST THE RESOLUTION."

Sec. 7.06. Publication of proposed and referred ordinances.

The person performing the duties of city secretary shall publish at least once in the official newspaper of the city the proposed or referred ordinance or resolution within fifteen (15) days before the date of the election, and shall give such other notices and do such other things relative to such election as are required in general municipal elections or by the ordinance or resolution calling said election.

Sec. 7.07. Adoption of ordinances.

If a majority of the qualified voters voting on any proposed ordinance or resolution or measure shall vote in favor thereof, it shall thereupon, or at any time fixed therein, become effective as a law or as a mandatory order to the city council.

Sec. 7.08. Inconsistent ordinances.

If the provisions of two (2) or more proposed ordinances or resolutions approved at the same election are inconsistent, the ordinance or resolution receiving the highest number of votes shall prevail.

Sec. 7.09. Ordinances passed by popular vote, repeal or amendment.

No ordinance or resolution which may have been passed by the city council upon a petition or adopted by popular vote under the provisions of this article shall be repealed or amended except by the city council in response to a referendum petition or by submission as provided in section 7.04 of this charter.

Sec. 7.10. Further regulations by city council.

The city council may pass ordinances or resolutions providing other and further regulations for carrying out the provisions of this article consistent herewith.

Sec. 7.11. Franchise ordinances.

Nothing contained in this article shall be construed to be in conflict with any of the provisions of Article 10 of this charter, pertaining to ordinances granting franchises when valuable rights shall have accrued thereunder.

Note—See Article 10-A dealing with private franchises.

ARTICLE 8. MUNICIPAL PLANNING AND ZONING

Sec. 8.01. Reserved.

Editor's note—Res. No. 2011-11-18(R), adopted November 16, 2011, ratified November 8, 2011, repealed the former section 8.01 in its entirety, which pertained to platting of property and derived from original codification.

Sec. 8.02. Development of property.

The city council shall cooperate in every manner possible with persons interested in the development of property within or beyond the city limits. No expenditure of public funds, however, shall be authorized for the development of privately owned subdivisions situated within or beyond the corporate limits of the city, except for the extension of utilities or service to such areas.

Sec. 8.03. Reserved.

Editor's note—Res. No. 2011-11-18(R), adopted November 16, 2011, ratified November 8, 2011, repealed the former section 8.03 in its entirety, which pertained to the planning and zoning commission and derived from Res. No. 88-1-10(R), § 3, adopted January 18, 1988, ratified January 16, 1988.

ARTICLE 9. MUNICIPAL FINANCE*

Sec. 9.01. Fiscal year.

The fiscal year of the City of Plano shall begin on the first day of October and shall end on the last day of September of each year. Such fiscal year shall also constitute the budget and accounting year.

State law reference—Fiscal year, Vernon's Ann. Civ. St., art. 1175(10), V.T.C.A. Tax Code, § 1.05.

Sec. 9.02. Preparation and submission of budget.

The city manager, between sixty (60) and ninety (90) days prior to the beginning of each fiscal year, shall submit to the council a proposed budget, which budget shall provide a complete financial plan for the fiscal year, and shall contain the following:

(a) A budget message, explanatory of the budget, which message shall contain an outline of the proposed financial policies of the city for the fiscal year, shall set forth the reasons for salient changes from the previous fiscal year in expenditure and revenue items, and shall explain any major changes in financial policy.

(b) A consolidated statement of anticipated receipts and proposed expenditures for all funds.

(c) An analysis of property valuation.

(d) An analysis of tax rate.

(e) Tax levies and tax collections by years for at least five (5) years.

(f) General fund resources in detail.

(g) Special fund resources in detail.

(h) Summary of proposed expenditures by function, department and activity.

(i) Detailed estimates of expenditures shown separately for each activity to support summary No. (h) above.

(j) A revenue and expense statement for all type[s] of bonds.

(k) A description of all bond issues outstanding[,] showing rate of interest, date of issue, maturity date, amount authorized, amount issued and amount outstanding.

(l) A schedule of requirements for the principal and interest of each issue of bonds.

(m) The appropriation ordinance.

(n) The tax levying ordinance.

Sec. 9.03. Anticipated revenues compared with other years in budget.

In preparing the budget, the city manager shall place in parallel columns[,] opposite the several items of revenue, the actual amount of each item for the last completed fiscal year, the estimated amount of the current fiscal year, and the proposed amount for the ensuing fiscal year.

Sec. 9.04. Proposed expenditures compared with other years.

The city manager in the preparation of the budget shall place in parallel columns opposite the various items of expenditures: The actual amount of such items of expenditures for the last completed fiscal year, the estimated amount for the current fiscal year and the proposed amount for the ensuing fiscal year.

Sec. 9.05. Budget a public record.

Upon completion of the budget and submission thereof to the city council, said budget shall become a public record open for inspection by any interested person.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

Sec. 9.06. Notice of public hearing on budget.

The city council shall fix the time and place of a public hearing on the budget and shall cause to be published in the official newspaper of the City

*__State law reference—__Texas Property Tax Code supersedes any provision of a municipal charter or ordinance relating to property taxation, V.T.C.A. Tax Code, § 1.02.

of Plano, a notice of the hearing setting forth the time and place thereof in accordance with state law.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88; Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

State law reference—Notice of public hearings relating to fiscal budgets, Vernon's Ann. Civ. St., art. 29e.

Sec. 9.07. Public hearing on budget.

At the time and place set forth in the notice required by section 9.06, or at any time and place to which such public hearing shall from time to time be adjourned, the city council shall hold a public hearing on the budget submitted and all interested persons shall be given an opportunity to be heard for or against any item or the amount of any item therein contained.

Sec. 9.08. Proceedings on budget after public hearing.

After the conclusion of such public hearing, the city council may insert new items or may increase or decrease the items of the budget, except items in proposed expenditures fixed by law, but where it shall increase the total proposed expenditures, it shall also provide for an increase in the total anticipated revenue to at least equal such proposed expenditures.

Sec. 9.09. Vote required for adoption [of budget].

The budget shall be adopted by the favorable vote of a majority of the voting members of the whole city council.

Sec. 9.10. Date of final adoption [of budget].

The budget shall be finally adopted not later than fifteen (15) days prior to the beginning of the fiscal year, and should the city council fail to so adopt a budget, the then existing budget[,] together with its tax-levying ordinance and its appropriation ordinance, shall be deemed adopted for the ensuing fiscal year.

Sec. 9.11. Effective date of budget; certification; copies made available.

Upon final adoption, the budget shall be in effect for the fiscal year. A copy of the budget, as finally adopted, shall be filed with the city secretary and the county clerk of Collin County. The final budget shall be printed or otherwise reproduced and copies shall be made available for the use of all offices, departments and agencies and for the use of interested persons and civic organizations as provided in the Open Records Act of the State of Texas.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

Sec. 9.12. Budget establishes appropriations.

From the effective date of the budget, the several amounts stated therein as proposed expenditures shall be and become appropriated to the several objects and purposes therein named.

Sec. 9.13. Budget establishes amount to be raised by property tax.

From the effective date of the budget, the amount stated therein as the amount to be raised by property tax shall constitute a determination of the amount of the levy for the purposes of the city in the corresponding tax year; provided, however, that in no event shall such levy exceed the legal limit provided by the laws and constitution of the State of Texas.

State constitution reference—Maximum city tax, art. VIII, § 9.

Sec. 9.14. Estimated expenditures shall not exceed estimated resources.

The total estimated expenditures of the general fund and debt service fund shall not exceed the total estimated resources of each fund (prospective income plus cash on hand). The classification of revenue and expenditure accounts shall conform as nearly as local conditions will permit to a nationally accepted uniform classification.
(Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

Editor's note—An amendment ratified by the vendors January 16, 1988, repealed § 9.14, concerning contingent appropriation, as derived from the original charter adopted June 10, 1961. Sections 9.15 through 9.19 have therefore been renumbered as sections 9.14 through 9.18.

Sec. 9.15. Other necessary appropriations.

The city budget may be amended and appropriations altered in accordance therewith in cases of public necessity, the actual fact of which shall have been declared by the city council.

Sec. 9.16. Assessment and collection of taxes.

(a) The appraisal of all property taxed by the city shall be accomplished in accordance with the provisions of all applicable state statutes, as now or hereafter amended.

(b) Unless otherwise provided in accordance with subsection (c) of this section, the assessment of all property taxes by the city shall be the duty of the tax assessor, who may be appointed by the city manager or contracted for by the city council; and the collection of all taxes due the city shall be the duty of the tax collector, who shall be appointed by the city manager. The tax collector, appointed by the city manager, shall give a surety bond for faithful performance of his or her duties, including compliance with all controlling divisions of the state law bearing on the functions of his or her office, in a sum fixed by the city council, but not less than fifty thousand dollars ($50,000.00).

(c) Provided, however, the city council shall have the authority to enter into a contract with the governing body of another unit or with the board of directors of an appraisal district for the other unit or the district to perform duties relating to the assessment or collection of taxes.
(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80; Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88; Res. No. 93-5-3(R), § 3, 5-3-93; ratified 5-1-93)

State law references—Texas Property Tax Code supersedes any provision of a municipal charter or ordinance relating to property taxation, V.T.C.A. Tax Code, § 1.02; appraisal and assessment, V.T.C.A. Tax Code, Ch. 21 et seq.; collections, V.T.C.A. Tax Code, Ch. 31.

Sec. 9.17. Power to tax.

The city council shall have the power under the provisions of the state law to levy, assess and collect an annual tax upon real and personal property within the city to the maximum provided by the constitution and general laws of the State of Texas. The city council shall also have the power to levy occupation taxes on such occupations [sic] as consistent with the general laws of the State of Texas.

State constitution references—Maximum city tax, Art. VIII, § 9; maximum occupation tax, Art. VIII, § 1.

Sec. 9.18. Property subject to tax; method of assessment.

The responsibility for appraisal of all property and preparation and submission of the appraisal roll shall be accomplished in compliance with the provisions of the Property Tax Code of the State of Texas, provided, however, that all property within the City of Plano not expressly exempted by law, shall be rendered for taxation in accordance with all applicable state statutes as now or hereafter amended, and such statutes shall control over the provisions of the city charter in the event of conflict.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

State law reference—Taxable property and exemptions, V.T.C.A. Tax Code, § 11.01 et seq.

Sec. 9.19. Alternative methods of equalizing or adjusting taxes.

The function of equalizing or adjusting the appraised or assessed taxable value of property taxed by the city shall be accomplished in compliance with all applicable state statutes.
(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80; Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

Editor's note—An amendment ratified by the voters January 16, 1988, repealed §§ 9.20, 9.21, 9.22 and 9.23,

concerning the board of equalization, as derived from the original charter adopted June 10, 1961. Section 9.23A has been renumbered as § 9.19, and §§ 9.24—9.26 have been renumbered as §§ 9.20—9.22 in order to maintain the numbering sequence used herein.

Sec. 9.20. Taxes; when due and payable.

All taxes due the City of Plano shall be payable at the office of the city tax collector, and may be paid at any time after tax rolls for the year have been completed and approved. Except as otherwise provided by state statutes, taxes are due on receipt of tax bill and are delinquent if not paid before February 1 of the year following the year in which imposed. Delinquent taxes accrue penalty, interest and collection fees according to a schedule prescribed by state statutes. Except as provided by state statutes, failure to send or receive the tax bill as required does not affect the validity of the tax, penalty, or interest, the due date, the existence of a tax lien, or any procedure instituted to collect a tax.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

Sec. 9.21. Tax liens.

The tax levied by the city is hereby declared to be a lien, charge, or encumbrance upon the property as of January 1 upon which the tax is due, which lien, charge or encumbrance the city is entitled to enforce and foreclosure [foreclose] in any court having jurisdiction over the same, and the lien, charge or encumbrance on the property is such as to give the state courts jurisdiction to enforce and foreclose said lien on the property on which the tax is due, not only as against any resident of this state or person whose residence is unknown, but also as against nonresidents. All taxes upon real estate shall especially be a lien and a charge upon the property [upon] which the taxes are due, which lien may be foreclosed in any court having jurisdiction. Such lien shall be prior to all other claims, and no gift, sale, assignment or transfer of any kind, or judicial writ of any kind, can ever defeat such lien.

Sec. 9.22. Issuance of bonds.

The City of Plano shall have the power to issue bonds and levy a tax to support the issue for permanent improvements and all other lawful purposes as provided by statutes of this state and upon proper election of the citizens of this city when required.

State law reference—Bonds, Vernon's Ann. Civ. St., art. 701 et seq.

ARTICLE 10. FRANCHISES AND PUBLIC UTILITIES

Sec. 10.01. Powers of the city.

In addition to the city's power to buy, construct, lease, maintain, operate and regulate public utilities and to manufacture, distribute and sell the output of such utility operations, the city shall have further powers as may now or hereafter be granted under the constitution and laws of the State of Texas.

State law reference—Public utilities, Vernon's Ann. Civ. St., art. 1106 et seq.

Sec. 10.02. Franchise, power of city council.

Except for franchises issued under state or federal law, the city council shall have power by ordinance to grant, amend, renew and extend, all franchises, both public and private, operating within the City of Plano. All ordinances granting, amending, renewing, or extending franchises shall be read at two (2) separate regular meetings of the city council, and shall not be finally passed until thirty (30) days after the first reading; and no such ordinance shall take effect until thirty (30) days after its final passage; and pending such time, the caption of such ordinance shall be published once each week for four (4) consecutive weeks in the official newspaper of the City of Plano, and the expense of such publication shall be borne by the proponent of the franchise. No public or private franchise shall be granted for a term of more than twenty-five (25) years nor be transferable except with the approval of the city council expressed by ordinance.

(Res. No. 2005-5-13(R), §§ I—III, 5-17-05, ratified 5-7-05; Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

Sec. 10.03. Franchise value not to be allowed.

No value shall be assigned to any franchise granted by the City of Plano under this charter in fixing reasonable rates and charges for utility service within the city and in determining the just compensation to be paid by the city for public utility property which the city may acquire by condemnation or otherwise.

Sec. 10.04. Right of regulation.

All grants, removals, extensions, or amendment of public or private franchises, whether it be so provided in the ordinance or not, shall be subject to the right of the city council of the City of Plano, after due notice and hearing, to repeal the same ordinance at any time upon the failure of the grantee to comply with any provision of the ordinance, the franchise, the charter of the City of Plano, any applicable statute of the State of Texas or the rule of any applicable governmental body.

(Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

Sec. 10.05. Grant not to be exclusive.

No grant or franchise to construct, maintain or operate a public utility and no renewal or extension of such grant shall be exclusive.

Sec. 10.06. Consent of property owners.

The consent of abutting and adjacent property owners shall not be required for the construction, extension, maintenance or operation of any public utility; but nothing in this charter or in any franchise granted thereunder shall ever be construed to deprive any such property owner of any right of action for damage or injury to his property as now or hereafter provided by law.

Sec. 10.07. Extensions.

All extensions of public utilities within the city limits shall become a part of the aggregate property of the public utility, shall be operated as such, and shall be subject to all the obligations and reserved rights contained in this charter and in any original grant hereafter made. The right to use and maintain any extension shall terminate with the original grant and shall be terminable as provided in section 10.04 of this charter. In case of an extension of a public utility operated under a franchise hereafter granted, such right shall be terminable at the same time and under the same conditions as the original grant.

Sec. 10.08. Other conditions.

All franchises heretofore granted are recognized as contracts between the City of Plano and the grantee, and the contractual rights as contained in any such franchise shall not be impaired by the provisions of this charter, except that the power of the City of Plano to exercise the right to eminent domain in the acquisition of utility property is in all things reserved, and except the general power of the city heretofore existing and herein provided for, to regulate the rates and services of a grantee which shall include the right to require proper and adequate extension of plant and service and the maintenance of the plant and fixtures at the highest reasonable standard of efficiency. Every public utility franchise hereafter granted shall be held subject to all the terms and conditions contained in the various sections of this article whether or not such terms are specifically mentioned in the franchise. Nothing in this charter shall operate to limit in any way, as specifically stated, the discretion of the city council or voters of the city in imposing terms and conditions as may be reasonable in connection with any franchise grant.

Sec. 10.09. Accounts of municipally owned utilities.

Accounts shall be kept for each public utility owned or operated by the city, in such manner as to show the true and complete financial results of such city ownership and operation, including all assets and all liabilities, appropriately subdivided by classes, depreciation reserve, other reserves and surplus; also revenues, operating expenses including depreciation, interest payments, rental, and other disposition of annual income. The accounts shall show actual capital cost to the city of each public utility owned, also the cost of all extensions, additions, and improvements and the source of funds expended for such capital purposes. They shall show as nearly as possible the cost of any service furnished to or rendered by any such utility to any city government department. The city council shall cause an annual report to be made by a duly licensed public accountant or certified public accountant, licensed in the State of Texas, and shall publish such report showing the financial results of such city ownership and operation, giving the information specified in this section and such other data as the city council shall deem expedient.

Sec. 10.10. Sales of electricity, water and sewer services.

(a) The city council shall have the power and authority to sell and distribute electricity and water and to sell and provide for sewer services and any other utilities to any person, firm or corporation outside the limits of the City of Plano, and to permit them to connect with said system under contract with the city, under such terms and conditions as may appear to be for the best interests of the city; provided the charges fixed for such services outside the city limits shall be determined by the city council.

(b) The city council shall have the power and authority to prescribe the kind of materials used within or beyond the limits of the City of Plano where it furnishes the service, and to inspect the

same and require them to be kept in good order and condition at all times and to make such rules and regulations as shall be necessary and proper, and prescribe penalties for noncompliance with same.

Sec. 10.11. Regulations of rates and services.

The city council shall have the power, after due notice and hearing, to regulate by ordinance the rates and services of public and private franchises operating in the City of Plano; and shall have power to employ at the expense of the grantee, expert assistance and advice in determining a reasonable rate and equitable profit to the grantee.
(Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

ARTICLE 10-A. PRIVATE FRANCHISES

Sec. 10-A.01. Public thoroughfares.

The right to control easements, use and ownership and title to the streets, highways, public thoroughfares and property of the city, its avenues, parks, bridges and all other public places and property, are hereby declared to be inalienable except by ordinance duly passed by a majority of all voting members of the city council.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88)

Sec. 10-A.02. Reserved.

Editor's note—Res. No. 2011-11-18(R), adopted November 16, 2011, ratified November 8, 2011, repealed the former section 10-A.02 in its entirety, which pertained to the franchise ordinance—procedure and derived from Res. No. 88-1-10(R), § 3, adopted January 18, 1988, ratified January 16, 1988, and Res. No. 2005-5-13(R), §§ I—III, adopted May 17, 2005, ratified May 7, 2005.

ARTICLE 11. GENERAL PROVISIONS

Sec. 11.01. Publicity of records.

All records of the city shall be open for inspection by any citizen or by any representative of the press at all reasonable times, subject only to the provisions and limitations of the Texas Public Information Act as now exists or hereafter amended.
(Res. No. 88-1-10(R), § 3, 1-18-88; ratified 1-16-88; Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

State law reference—Access by public to information in custody of governmental agencies and bodies, Vernon's Ann. Civ. St., art. 6252-17a.

Sec. 11.02. Personal interest.

No officer or employee of the city shall have a financial interest, direct or indirect, in any contract with the city, nor shall be financially interested, directly or indirectly, in the sale to the city of any land, or rights or interest in any land, materials, supplies or service. The above provision shall not apply where the interest is represented by ownership of stock in a corporation involved, provided such stock ownership amounts to less than one (1) per cent of the corporation stock. Any violation of this section shall constitute malfeasance in office, and any officer or employee of the city found guilty thereof shall thereby forfeit his office or position. Any violation of this section with the knowledge, express or implied, of the persons or corporation contracting with the city shall render the contract voidable by the city manager or the city council.

State law reference—Actions in which local public official has interest, V.T.C.A., Local Government Code, § 171.001 et seq.

Sec. 11.03. Nepotism.

No person related within the second degree by affinity, or within the third degree by consanguinity[,] to any elected officer of the city, or to the city manager, shall be appointed to any office, position or clerkship or other service of the city.

Sec. 11.04. Provisions relating to assignment, execution and garnishment.

The property, real and personal, belonging to the city shall not be liable to be sold or appropriated under any writ or execution or cost bill. The funds belonging to the city, in the hands of any person, firm or corporation, shall not be liable to garnishment, attachment, or sequestration; nor shall the city be liable to garnishment on account of any debt it may owe or funds or property it may

have on hand or owing to any person. The city shall not be obligated to recognize any assignment of wages or funds by its employees, agents, or contractors.
(Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

Sec. 11.05. City not required to give security or execute bond.

It shall not be necessary in any action, suit or proceeding in which the City of Plano is a party, for any bond, undertaking or security to be demanded or executed by or on behalf of said city in any of the state courts, but in all such actions, suits, appeals, or proceedings same shall be conducted in the same manner as if such bond, undertaking or security had been given as required by law.

Sec. 11.06. Special provisions governing damage suits.

Before the city shall be liable to damage claim or suit for personal injury, or damage to property, the person who is injured or whose property is damaged or someone in his behalf shall give the city manager, or the person performing the duties of city secretary, notice in writing within six (6) months after the occurrence of the alleged injury, or damage, stating specifically in such notice when, where and how the injury or damage was sustained, and setting forth the extent of the injury or damage as accurately as possible. No action at law for damages shall be brought against the city for personal injury or damage to property prior to the expiration of thirty (30) days after the notice hereinbefore described has been filed with the city manager or the person performing the duties of city secretary, not later than two (2) years after the occurrence of the injury or damage to property or such earlier date if the applicable statute of limitations provides for a shorter period. In case of injuries resulting in death, before the city shall be liable in damages therefore the person or persons claiming such damages shall after the death of the injured person give notice as above required in case of personal injury. Provided, however, that nothing herein contained shall be construed to mean that the City of Plano waives any rights, privileges, defenses or immunities in tort actions which are provided under the common law, the constitution and general laws of the State of Texas.
(Res. No. 93-5-3(R), § 3, 5-3-93; ratified 5-1-93; Res. No. 2005-5-13(R), §§ I—III, 5-17-05, ratified 5-7-05)

Sec. 11.07. Separability clause.

If any section or part of section of this charter shall be held invalid by a court of competent jurisdiction, such holding shall not affect the remainder of this charter nor the context in which such section or part of section so held invalid may appear, except to the extent that an entire section or part of section may be inseparably connected [in] meaning and effect with the section or part of section to which such holding shall directly apply.

Sec. 11.08. Effect of this charter on existing law.

All ordinances, resolutions, rules, and regulations now in force under the city government of Plano and not in conflict with the provisions of this charter, shall remain in force under this charter until altered, amended or repealed by the council after this charter takes effect; and all rights of the City of Plano under existing franchises and contracts are preserved in full force and effect to the City of Plano.

Sec. 11.09. Interim municipal government.

From and after the date of the adoption of this charter, the persons then filling elective offices which are retained under this charter will continue to fill those offices for the terms to which they were elected. At the first regular city election after the adoption of this charter, the provisions of section 3.01 shall govern. Persons, who on the date this charter is adopted, are filling appointive positions with the City of Plano which are retained under this charter, may continue to fill these positions for the term for which they were appointed.

Sec. 11.10. Applicability of general laws.

The constitution of the State of Texas, the statutes of said state applicable to home-ruled municipal corporations, as now or hereafter en-

acted, this charter and ordinances enacted pursuant hereto shall, in the order mentioned, be applicable to the City of Plano, but the city shall also have the power to exercise any and all powers conferred by the laws of the State of Texas upon any other kind of city, town or village, not contrary to the provisions of said home-rule statutes, charter and ordinances, but the exercise of any such powers by the City of Plano shall be optional with it, and it shall not be required to conform to the law governing any other cities, town or villages unless and until by ordinance it adopts same.

Sec. 11.11. Amending the charter.

Amendments to this charter may be formulated and submitted to the voters of the city in the manner provided by Chapter 13, Title 28 of the Revised Civil Statutes of Texas as now or hereafter amended.
(Res. No. 2011-11-18(R), 11-16-11; ratified 11-8-11)

Sec. 11.12. Charter review commission.

The city council may appoint a charter review commission of ten (10) citizens of the City of Plano.

Sec. 11.13. Rules of construction.

As used in this charter, a word importing the masculine gender only shall extend to, and be applied to, females as well as to males. A word importing the singular number shall include the plural, and a word importing the plural number shall include the singular.
(Res. No. 79-11-11(R), § 1, 11-12-79; ratified 1-19-80)

[The next page is 75]

CHARTER COMPARATIVE TABLE

This table shows the disposition of amendments to the Home Rule Charter since its adoption on June 10, 1961. (See also the editor's note to Part I.) In order to more accurately reflect the disposition of amendments to the Home Rule Charter, the editor has supplied the current section designations, with brackets, of section listings, which have been rendered obsolete through subsequent renumbering of sections.

Resolution Number	Adoption Date	Date Ratified	Section		Disposition
79-11-11(R)	11-12-79	1-19-80	1		3.02, 3.07(a), (m), (s), 3.09, 4.01(c)(1), 4.02—4.04, 4.06, 5.03—5.05, 6.02, 9.17 [9.16], 9.19 [9.18], 9.23A [9.19], 11.13 [12.13]
88- 1-10(R)	1-18-88	1-16-88	3		1.03, 1.04, 3.01, 3.02, 3.05, 3.06, 3.09, 3.10, 4.01(c)(1), 4.02, 4.03, 5.01, 5.03, 5.04, 5.05, 5.07, 6.02, 8.03, 9.05, 9.06, 9.11
				Rpld	9.14
				[Rnbd as	9.15—9.19 9.14—9.18]
					9.17(b) [9.16(b)], 9.19 [9.18]
				Rpld	9.20—9.23 9.23A [9.19], 9.24 [9.20],
				[Rnbd as	9.25, 9.26 9.21, 9.22]
93- 5- 3(R)	5- 3-93	5- 1-93	3		10-A.01, 10-A.02, 3.01(a)—(d), 3.12, 4.03, 4.04
				Rpld	4.06
					9.16(c), 11.06
2005-5-13(R)	5-17-05	5- 7-05	I—III		3.01(d)
					10.02
					10-A.02
					11.06
2011-11-18(R)	11-16-11	11- 8-11			1.02
					2.02
					3.01, 3.02
					3.06
					4.04
					4.07
					5.01

Resolution Number	Adoption Date	Date Ratified	Section		Disposition
					6.03
					6.07
				Rpld	6.11
					7.02
				Rpld	8.01
				Rpld	8.03
					9.06
					9.14
					10.02
					10.04
					10.11
				Rpld	10-A.02
					11.01
					11.04
					11.11

[The next page is 89]

PART II

CODE OF ORDINANCES

Chapter 1

GENERAL PROVISIONS

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.

The ordinances embraced in this and the following chapters and sections shall constitute and be designated the "Code of Ordinances, City of Plano, Texas," and may be so cited.

Charter reference—Authority of council to have ordinances codified, § 3.11.

State law reference—Authority of city to adopt a civil and criminal Code of Ordinances, Vernon's Ann. Civ. St., art. 1176a.

Sec. 1-2. Catchlines of sections.

The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be titles of such sections, nor as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.

State law reference—Captions not part of statute, Vernon's Ann. Civ. St., art. 5429b-2, § 3.04.

Sec. 1-3. Rules of construction and definitions.

In the construction of this Code, and of all ordinances and resolutions passed by the city council, the following rules shall be observed and the following definitions shall apply, unless such construction would be inconsistent with the manifest intent of the city council:

Generally. Such provisions shall be liberally construed to effect the purposes expressed therein or implied from the expression thereof. In case of doubt or ambiguity in the meaning of such provisions, the general shall yield to the particular. Reference for interpretation and construction shall tend to further the accomplishment of the elimination of the particular mischiefs for which the provisions were enacted. Words shall be construed in their common and usual significance unless the contrary is clearly indicated.

City. The words "the city" or "this city" shall mean the City of Plano, in the Counties of Collin and Denton and the State of Texas.

Council. The terms "council" and "city council" shall mean the City Council of Plano, constituting the governing body of the city.

County. The words "the county" and "this county" shall mean the County of Collin, Texas, or the County of Denton, Texas, or both, depending on the location of the area or circumstances affected.

Gender. A word importing the masculine gender only shall extend to and be applied to females and to firms, partnerships, associations and corporations, as well as to males.

Joint authority. Words purporting to give authority to three (3) or more officers or other persons shall be construed as giving such authority to a majority of such officers or other persons, unless it is otherwise declared.

Month. The word "month" shall mean a calendar month.

Number. Any word importing the singular number shall include the plural and any word importing the plural number shall include the singular.

Oath. The word "oath" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

Officers, departments, etc. Whenever reference is made to an officer, department or other agency, the same shall be construed as if followed by the words "of the City of Plano, Texas."

Or, and. "Or" may be read "and," and "and" may be read "or," if the sense requires it.

Owner. The word "owner," applied to a building or land, shall include any part owner, joint owner, tenant in common, tenant in partnership, joint tenant or tenant by the entirety, of the whole or of a part of such building or land.

Person. The word "person" shall extend and be applied to associations, corporations, firms, partnerships and bodies politic and corporate as well as to individuals. Where criminal prosecution may lie, the officers of any corporation shall jointly and severally be subject to prosecution as being included within the term "person."

Preceding, following. The words "preceding" and "following" mean next before and next after, respectively.

Roadway. The word "roadway" shall mean that portion of a highway improved, designed or ordinarily used for vehicular travel, exclusive of the berm or shoulder. If a highway includes two (2) or more separate roadways the term "roadway" as used in this Code shall refer to any such roadway separately but not to all such roadways collectively.

Sidewalk. The word "sidewalk" shall mean that portion of a street between the curb lines, or the lateral lines of a roadway, and the adjacent property lines intended for the use of pedestrians.

Signature, subscription. The words "signature" and "subscription" shall include a mark when a person cannot write.

State. The words "the state" and "this state" shall be construed to mean the State of Texas.

Street, highway. The words "street" and "highway" shall mean the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

Tense. Words used in the past or present tense include the future as well as the past and present.

Time, computation of.

(1) In computing a period of days, the first day is excluded and the last day is included.

(2) If the last day of any period is a Saturday, Sunday, or legal holiday, the period is extended to include the next day which is not a Saturday, Sunday, or legal holiday.

(3) If a number of months is to be computed by counting the months from a particular day, the period ends on the same numerical day in the concluding month as the day of the month from which the computation is begun, unless there are not that many days in the concluding month, in which case the period ends on the last day of that month.

Time, standard. All hours of time mentioned in this Code refer to and shall be determined by central standard time, or central daylight saving time, as the case may be, except that, if at any future time any different standard of time is established by the state for an area which includes this city, all such hours shall be determined by such officially proclaimed standard, so long as the same remains in effect.

Traffic engineer. The words "traffic engineer" shall mean the traffic engineer of the city or the person acting in such capacity.

Written, in writing. The words "written" and "in writing" shall be construed to include any representation of words, letters or figures, whether by printing or otherwise.

Year. The word "year" shall mean a calendar year.

State law reference—Similar definitions, Vernon's Ann. Civ. St., arts. 10, 23 et seq., 5429b-2, 6701d.

Sec. 1-4. General penalty; continuing violations.

Whenever in this Code or in any ordinance of the city an act or a failure to act is prohibited or is made or declared to be unlawful, an offense, or a misdemeanor, and no specific penalty is provided therefor, the violation of any such provision shall be punished by a maximum fine as follows:

(a) Two thousand dollars ($2,000.00) for violations of all such provisions that govern fire safety, zoning or public health and sanitation other than vegetation and litter violations;

(1) If it is shown on the trial of an offense under the zoning ordinance that the person had previously been convicted of the same offense within the forty-eight (48) months prior to the offense date for which the person

is currently on trial, the fine shall not be less than five hundred dollars($500.00) or exceed two thousand dollars ($2,000.00);

(2) If it is shown on the trial of an offense under the zoning ordinance that the person has previously been convicted of a violation of the same offense twice or more within the forty-eight (48) months prior to the offense date for which the person is currently on trial, the fine shall not be less than one thousand dollars ($1,000.00) or exceed two thousand dollars ($2,000.00).

(b) Five hundred dollars ($500.00) for all other violations.

(c) Any violation of this Code or any ordinance set forth herein that is punishable by a fine that exceeds the amount authorized by V.T.C.A. Penal Code, § 12.23 shall require a culpable mental state of reckless unless a higher culpable mental state has been provided by ordinance.

Each day a violation for this Code or any ordinance under either (1) or (2) above continues shall constitute a separate offense.
(Ord. No. 88-1-8, § 1, 1-11-88; Ord. No. 2001-6-2, § I, 6-4-01; Ord. No. 2010-8-21, § I, 8-23-10; Ord. No. 2020-8-6, § I, 8-24-20)

Charter reference—Authority to provide suitable penalties for ordinance violations, § 2.01.

State law references—Authority of city to prescribe penalties for violation of Code, Vernon's Ann. Civ. St., art. 1176a, § 1; maximum fines, Vernon's Ann. Civ. St., art. 1011.

Sec. 1-5. Responsibility for violation by a corporation or association.

In case of a violation of any of the terms or provisions of this Code or other ordinance by any corporation or association, the officers and agents actively in charge of the business of such corporation, or association shall be responsible for such violation and subject to prosecution subject to the limitations set forth in Subchapter B of Chapter 7 of the Texas Penal Code, as the same may be amended from time to time.
(Ord. No. 2007-1-6, § I, 1-8-07)

Sec. 1-6. Severability of parts of Code.

It is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses and phrases of this Code are severable and, if any phrase, clause, sentence, paragraph or section of this Code shall be declared invalid or unconstitutional by the valid judgment or decree of any court of competent jurisdiction, such invalidity or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code, since the same would have been enacted by the council without the incorporation in this Code of any such invalid or unconstitutional phrase, clause, sentence, paragraph or section.

State law reference—Severability of statutes, Vernon's Ann. Civ. St., art. 5429b-2, § 3.12.

Sec. 1-7. Certain ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code repeals or otherwise affects the validity of any of the following:

(1) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of this Code;

(2) Any ordinance promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness;

(3) Any contract or obligation assumed by the city;

(4) Any right or franchise granted by the city;

(5) Any ordinance dedicating, naming, establishing, locating, relocating, opening, paving, widening, vacating, etc., any street or public way in the city;

(6) Any ordinance relating to municipal street maintenance agreements with the state;

(7) Any ordinance establishing or prescribing grades for streets in the city;

(8) Any appropriation ordinance or ordinance providing for the levy of taxes or for an annual budget;

(9) Any ordinance relating to local improvements and assessments therefor;

(10) Any ordinance annexing territory to the city or discontinuing territory as a part of the city;

(11) Any ordinance dedicating or accepting any plat or subdivision in the city;

(12) Ordinances prescribing traffic regulations for specific streets, such as ordinances designating one-way streets, no parking areas, truck routes, stop intersections, intersections where traffic is to be controlled by signals, etc.;

(13) Any ordinance, consistent with this Code, regulating mobile homes and mobile home parks;

(14) Any ordinance adopting or amending zoning regulations, amending the zoning map, zoning or rezoning specific property or granting special use permits for specific property;

(15) Any ordinance consistent with this Code adopting or amending personnel rules and regulations.

All such ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length in this Code.
(Ord. No. 69-1-1, § 3, 1-23-69)

Sec. 1-8. Amendments or additions to Code.

(a) All ordinances passed subsequent to this Code which amend, repeal or in any way affect this Code may be numbered in accordance with the numbering system of this Code and printed for inclusion in this Code. When subsequent ordinances repeal any chapter, section or subsection or any portion thereof, such repealed portions may be excluded from the Code by omission from reprinted pages. The subsequent ordinances as numbered and printed, or omitted in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time that this Code and subsequent ordinances numbered or omitted are readopted as a new Code by the city council.

(b) All additions and amendments to this Code, when passed in such form as to indicate the intention of the council to make the same a part of this Code, shall be deemed to be incorporated in this Code, so that a reference to this Code shall be understood and intended to include such additions and amendments.

(c) The city secretary is authorized to make necessary corrects in the text and formatting of the Code, or of individual ordinances or resolutions adopted by the council, including but not limited to the misspelling of words, typographical errors, duplicate pages, incorrect references to laws or technical sources, and other similar amendments without the necessity of passage of a corrective ordinance, resolution or other council action.
(Ord. No. 2016-6-9, § II, 6-13-16; Ord. No. 2023-3-3, § I, 3-13-23)

Sec. 1-9. Supplementation of Code.

(a) By contract or by city personnel, supplements to this Code shall be prepared and printed whenever authorized or directed by the council. A supplement to the Code shall include all substantive parts of permanent and general ordinances passed during the period covered by the supplement and all changes made thereby in the Code. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) All portions of the Code which have been repealed shall be excluded by their deletion from reprinted pages.

(c) The codifier (meaning the person, agency or organization authorized to prepare the supplement) may make formal, nonsubstantive changes in ordinances and parts of ordinances included

in the supplement, insofar as it is necessary to do so to embody them into a unified Code. For example, the codifier may:

(1) Organize the ordinance material into appropriate subdivisions;

(2) Provide captions or catchlines for sections and other subdivisions of the Code printed in the supplement, and make changes in captions and catchlines;

(3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers;

(4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be or to "sections _____ to _____" (inserting section numbers to indicate the sections of the Code which embody the substantive sections of the ordinance incorporated into the Code);

(5) Make other nonsubstantive changes necessary to preserve the original meaning of the sections inserted in the Code, but in no case shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already in the Code.

Sec. 1-10. Repeal of ordinances.

(a) The repeal of an ordinance shall not revive any ordinance in force before or at the time the ordinance repealed took effect.

(b) The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect, nor any suit, prosecution or proceeding pending at the time of the repeal, for an offense committed under the ordinance repealed.

State law reference—Similar provisions as to statutes, Vernon's Ann. Civ. St., art. 10.

Chapter 2

ADMINISTRATION*

Art. I. **In General, §§ 2-1—2-20**
Art. II. **City Manager, §§ 2-21—2-40**
Art. III. **Employee Benefits, §§ 2-41—2-95**
Div. 1. Generally, §§ 2-41—2-55
Div. 2. Texas Municipal Retirement System, §§ 2-56—2-80
Div. 3. Retirement Security Plan; Retirement Security Trust, §§ 2-81—2-95
Art. IV. **Code of Conduct, §§ 2-96—2-115**
Art. V. **Records Management Program, §§ 2-116—2-135**
Div. 1. Generally, §§ 2-116—2-125
Div. 2. Microfilming and Electronic Storage of Municipal Records, §§ 2-126—2-135
Art. VI. **Emergency Management, §§ 2-136—2-155**
Art. VII. **Community Relations Commission, §§ 2-156—2-175**
Art. VIII. **Reserved, §§ 2-176—2-200**
Art. IX. **Reserved, §§ 2-201—2-215**
Art. X. **Reserved, §§ 2-216—2-230**
Art. XI. **Reserved, §§ 2-231—2-240**
Art. XII. **Senior Advisory Board, §§ 2-241—2-250**
Art. XIII. **Cultural Arts Commission, §§ 2-251—2-260**
Art. XIV. **Reserved, §§ 2-261—2-280**
Art. XV. **Community Substance Abuse Prevention Advisory Committee, §§ 2-281—2-300**
Art. XVI. **Reserved, §§ 2-301—2-310**
Art. XVII. **Board and Commission Review Committee, §§ 2-311—2-320**
Art. XVIII. **Reserved, §§ 2-321—2-334**
Art. XIX. **Animal Advisory Committee, §§ 2-335—2-350**
Art. XX. **Removal of Board, Commission, and Committee Members, §§ 2-351—2-359**
Art. XXI. **Reserved**
Art. XXII. **Reserved**

***Charter references—**Form of government and boundaries, Art. 1; powers of city, Art. 2, city council, Art. 3; general administration, Art. 4; nominations and elections, Art. 5; recall of officers, Art. 6; legislation by the people, initiative and referendum, Art. 7; municipal finance, Art. 9.

Cross references—Aviation, Ch. 5; construction review board, building standards commission, board of appeals, §§ 6-1 et seq., 6-85; administrative authority for plumbing code, § 6-238; administrative authority for mechanical code, § 6-253; electrical inspector, § 6-326 et seq.; electrical licensing board, § 6-346 et seq.; property code, § 6-486 et seq.; housing advisory and appeals board, § 6-503; fire prevention and protection, Ch. 8; fire protection division of fire department, § 8-17; library, Ch. 10; removal expenses, § 11-50; municipal court, Ch. 13; parks and recreation, Ch. 15; parks and recreation director, § 15-1; parks and recreation board, § 15-21 et seq.; planning and development, Ch. 16; police, Ch. 17; streets and sidewalks, Ch. 19; taxation, Ch. 20; utilities, Ch. 21, Ch. 16; planning and zoning commission.

State law reference—Home rule cities, Vernon's Ann. Civ. St., art. 1165 et seq.

ARTICLE I. IN GENERAL

Sec. 2-1. Official logo and brand.

(a) The logo approved by the city council of the City of Plano on April 22, 2013 is the official logo of the City of Plano thereby replacing the logo approved on January 14, 1980. This official logo shall be integrated by the City of Plano into use, either alone or in conjunction with the official brand, on all its equipment, materials, supplies and flags from this day forward, until further order of the city council.

(b) The logo approved by the city council of the City of Plano on January 14, 1980 is retained as the intellectual property of and for exclusive use by the City of Plano and shall be known as the prior official logo of the City of Plano. The prior official logo may remain in use on all City of Plano equipment, materials, supplies and flags.

(c) The phrase "City of Excellence" shall be the official brand of the City of Plano and shall be used alone or in conjunction with the official logo by the City of Plano on all its marketing, branding, advertising and promotional materials, equipment, material supplies and flags from this day forward, until further order of city council.

(d) Except as set out in subsection (e) below, no person, firm, organization, or corporation, other than the City of Plano, shall adopt, use, display, incorporate, or appropriate the official logo, the prior official logo or the brand of the City of Plano as any part of any marketing, advertising, material, equipment, or other matter of such person, firm, organization or corporation, without written application to and approval of the city council.

(e) The following persons or entities may use the official logo, prior official logo, or brand of the city with the prior written approval of the city manager or his designee:

(1) Non-profit organizations;

(2) Licensees of the Plano Centre for the duration of their city license agreement in conjunction with promoting, marketing and publicizing their event at Plano Centre;

(3) Contractors providing goods, services or materials to the city in conjunction with city projects or official city business for the duration of their city contract; and

(4) Partners or sponsors of the City of Plano Convention and Visitors Bureau in conjunction with their participation in events promoting, marketing and publicizing the city.

(f) Any violation of the provisions or terms of this section by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(b) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(Ord. No. 80-8-17, §§ 1—3, 8-25-80; Ord. No. 2010-10-13, § I, 10-11-10; Ord. No. 2013-4-12, § I, 4-22-13; Ord. No. 2013-10-6, § I, 10-14-13; Ord. No. 2014-9-3, § I, 9-8-14)

Editor's note—Ord. No. 2013-4-12, § I, adopted April 22, 2013, changed the title of section 2-1 from "Official logo" to "Official logo and brand." The historical notation has been preserved for reference purposes.

Sec. 2-2. Delinquent debtors not to be issued permit, license, etc., by city.

(a) No person who owes delinquent taxes, delinquent paving assessments or any other delinquent debts or obligations to the city shall be granted any permit, license, or privilege, or paid any monies from the public treasury of the city until the debt or obligation owed by such person has been discharged by payment, or an arrangement satisfactory to the city manager has been made for the payment of such debt or obligation. For purposes of this section, the debt or obligation of one's spouse shall be considered the debt or obligation of the other spouse as well.

(b) If the applicant for any permit, license, or privilege, or for the payment of any money from the public treasury of the city is a corporation, partnership, firm or association, there shall be attached to the application, a statement of the

names and addresses of all directors and stockholders, partners, owners or associates owning twenty-five (25) percent or more interest in the corporation, partnership, firm or association. If any such director, stockholder, partner, owner, or associate is indebted to the city in the manner described in subsection (a) of this section, it shall be deemed that the applicant is so indebted to the city, and the application shall be denied.

(c) If the applicant is a trustee, he shall attach to the application a statement of the names and addresses of the trust owners. If the trustee or any one or more of the trust owners is indebted to the city in the manner described in subsection (a) of this section, it shall be deemed that the applicant is indebted to the city, and the application shall be denied.

(d) If the applicant is a receiver, he shall attach to the application a statement of the names and addresses of the beneficial recipients of the receivership. If the receiver or any beneficial recipient of the receivership is indebted to the city in the manner described in subsection (a) of this section, it shall be deemed that the applicant is indebted to the city, and the application shall be denied.

(e) If the applicant is an agent, servant or employee, or otherwise makes application for the benefit of another, he shall attach to the application a statement of the names and addresses of those persons whom he represents. If the representative or any one or more of those represented is indebted to the city, it shall be deemed that the applicant is indebted to the city, and the application shall be denied.

(f) It shall be unlawful for any person to knowingly or willfully misrepresent, or fail to include, any information required by this section on any application for any permit, license, or privilege, or for the payment of any money from the public treasury of the city.
(Ord. No. 67-2-2, 2-13-67; Ord. No. 74-2-12, §§ 1—6, 2-25-74)

State law reference—Tampering with governmental record, V.T.C.A. Penal Code, § 37.10.

Sec. 2-3. Reserved.

Sec. 2-4. Hearings before council and planning and zoning commission.

(a) No person who owes delinquent taxes, delinquent paving assessments or any other delinquent debts or obligations which are directly attributable to a piece of property for which he is requesting a hearing, public or otherwise, before the planning and zoning commission and/or the city council shall be granted any such hearing until the taxes, assessments, debts or obligations directly attributable to such property and owed by the owner or previous owner thereof shall have been first fully discharged by payment, or until an arrangement satisfactory to the city manager has been made for the payment of such debts or obligations.

(b) Regardless of the status of or indebtedness owed to the city by the applicant or person requesting such hearing, the requested hearing shall only be denied under the provisions of this section if the indebtedness complained of appears to be directly attributable to the property which is to be the subject of the hearing.

(c) It shall be unlawful for any person to knowingly or willfully misrepresent, or fail to include, any information required by this section on any application for annexation, zoning, development, or subdivision of property.

(d) If any applicant for such hearing, or any owner of property subject to such hearing, shall allow such hearing before the planning and zoning commission and/or the city council to be heard in violation of any of the provisions of this section, he shall be deemed guilty of a misdemeanor, and upon conviction thereof, shall be fined in an amount not exceeding one thousand dollars ($1,000.00) for each such violation. It is declared to be the intent of the city council that no member of the planning and zoning commission, nor any member of the city council, nor any employee of the city responsible for the enforcement and application of this section shall be considered a person violating any of the provisions of this section if such event as a hearing should be held in violation of the provisions of this section.
(Ord. No. 82-9-14, §§ 2—5, 9-13-82)

Sec. 2-5. Public utility communications rules.

(a) The public utility communications rules, attached to the ordinance from which this section is derived and identified as Exhibit "A," are hereby adopted as the public utility communications rules of the city, pursuant to the provisions of section 34 of the Public Utility Regulatory Act.

(b) The rules adopted in subsection (a) of this section shall govern the conduct of all communications, verbal or written, between public utilities, their affiliates and representatives with the city council or any member or employee of the city council.
(Ord. No. 76-1-3, §§ 1, 2, 1-12-76)

Sec. 2-6. Reserved.

Editor's note—Ord. No. 2020-5-11, § I, adopted May 26, 2020, repealed § 2-6, which pertained to adoption of public works specifications and derived from Ord. No. 85-6-7, adopted June 10, 1985; Ord. No. 96-11-17, adopted November 25, 1996; and Ord. No. 97-3-21, adopted March 24, 1997.

Sec. 2-7. Metroplex Mayor's Committee.

(a) The cities of Addison, Carrollton, Dallas, Farmers Branch, Frisco, Garland, Plano, and Richardson hereby establish the Metroplex Mayor's Committee, consisting of the mayor of each city or a designated representative from the city council.

(b) From time to time, other cities in the Dallas metropolitan area may be invited to join the committee.

(c) The objectives of the committee shall be to establish a mechanism whereby common problems may be addressed, and solutions to such problems devised.

(d) Specific areas of concern which may be addressed include but are not limited to transportation issues, mutual boundaries, land use planning, the provision of water and sewer facilities, and the provisions for funding public improvements.
(Res. No. 85-2-1(R), §§ 1—4, 2-11-85)

Sec. 2-8. Sister city program.

The city council does hereby accept an invitation from Gumi, Korea to participate with Plano as its sister city for the purpose of creating greater mutual understanding between the peoples of our two (2) great cities and nations.
(Res. No. 86-2-31(R), § I, 2-24-86)

Sec. 2-9. Lawsuits and risk management.

(a) *Authority to file suit on behalf of the city.*

(1) The city attorney or her designee has authority to institute lawsuits on behalf of the City of Plano for collections and damages to city property or personnel, either directly or through subrogation rights, wherein the claim does not exceed one hundred thousand dollars ($100,000.00). In cases where the claim exceeds one hundred thousand dollars ($100,000.00), the city attorney must obtain city council approval of the lawsuit through either resolution or ratification.

(2) The city attorney or her designee has authority to execute any and all documents necessary to effectuate an authorized lawsuit on behalf of the city.

(b) *Settlement authority.*

(1) The city manager or his designee has authority to compromise and settle all claims or lawsuits in favor of or against the City of Plano up to one hundred thousand dollars ($100,000.00). The city council expressly reserves authority to compromise and settle all claims or lawsuits in favor of or against the City of Plano in excess of one hundred thousand dollars ($100,000.00). Further, except as provided by this section, the city council reserves and retains its right and powers under paragraph subsection 3-07(r) of the City Charter to compromise and settle all claims or lawsuits in favor of or against the city, regardless of the settlement amount.

(2) The city manager or his designee has authority to execute any and all docu-

ments necessary to effectuate an authorized settlement and final disposition of a claim or lawsuit.

(Res. No. 86-11-33(R), §§ I—VI, 11-24-86; Ord. No. 2001-2-27, § II, 2-26-01; Ord. No. 2010-8-17, § I, 8-23-10; Ord. No. 2021-8-20, § I, 8-23-21)

Sec. 2-10. Defense and indemnification of officers and employees.

(a) *Need for indemnification.* A necessity exists for the city's provision of legal defense and indemnification of city officers and employees.

(b) *Definitions.* For purposes of this section, the term "officer" shall include any elected or appointed official of the city, and the term "employee" shall include all employees of the city, whether under civil service or not; including firemen and policemen.

(c) *Indemnification.* Any officer or employee who is found and finally adjudged to be liable for the payment of any claim for damages arising out of the course and scope of employment with the city shall be entitled to be indemnified for such damages to the extent permitted by law, together with any reasonable and necessary legal expenses incurred by such officer or employee in defending such claim, provided that the acts or omissions resulting in such liability were done in good faith and without malicious or felonious intent. For the purposes of this section, the term "arising out of the course and scope of employment" shall not include any action which occurs during a period of time in which the officer or employee is engaged in outside employment or is rendering contractual services to someone other than the city. Whether the acts were done in good faith, without malicious or felonious intent, and within the course and scope of employment shall be determined by the city council, and such determination shall be final for the purposes of the representation and indemnity of this section; provided, however, that in the event such representation and indemnity have been denied by the city, upon a trial on the merits it is determined that the officer or employee was acting in good faith, without malicious or felonious intent and within the scope of employment the indemnification hereunder shall be granted and reasonable legal expenses incurred in the defense of the claim reimbursed.

This indemnity shall in no event apply to or cover punitive or exemplary damages where such damages are not recoverable in law or against the city. Further, the city shall not be liable for any settlement of any such claim or suit effected without its consent, and the city reserves the right to assert any defense and make any settlement of any claim or suit that it deems expedient.

(d) *Representation in actions.* The city shall have the right and duty to provide legal representation through the city attorney, or in its discretion through the selection of outside legal counsel, to any officer or employee sued in connection with any claim for damages, other civil action, or alleged violation of civil rights with criminal sanctions, against such person arising out of the course and scope of employment, provided that such officer or employee may be entitled to indem-

nification as set forth in this section. Such legal representation shall be provided at no cost to the officer or employee, and any officer or employee may have his or her own counsel assist in the defense at the sole expense of the officer or employee. The officer or employee shall cooperate fully with the city in preparation and presentation of the case, and the failure to cooperate shall waive such officer's or employee's right to representation and indemnity under this section.

(e) *City's defenses.* Nothing in this section shall be construed as waiving the city's defense of governmental immunity to it or its employees or officers in any action brought against the city or such officer or employee. For any suit or claim arising under the Texas Tort Claims Act, the indemnity provided by this section shall be limited to the statutory limits applicable to the city provided in said Act, as amended.

(f) *Notice.* The provisions of this section shall apply only where the city has been given notice of the action brought against any city officer or employee within ten (10) days of service of process upon the officer or employee.

(g) *Disciplinary actions.* Nothing in this section shall prevent the city from taking disciplinary action against any officer or employee for conduct defended or indemnified by the city under this section, either before or after conclusion of the civil suit.

(h) *Suits in behalf of the city.* Nothing in this section shall require the city to indemnify any officer or employee for recoveries made against him or her in suits by or on behalf of the city. The city council may, however, authorize the city attorney to represent any officer or employee in a suit brought by a taxpayer in behalf of the city against the officer or employee.

(Ord. No. 86-11-34, §§ I—VIII, 11-24-86; Ord. No. 87-2-14, §§ II—IX, 2-9-87)

Editor's note—Ord. No. 86-11-34, §§ I—VIII, adopted Nov. 24, 1986, did not specifically amend the Code; hence, codification as § 2-10 was at the discretion of the editor.

Sec. 2-11. Equal rights policy.

(a) *Policy.*

(1) *Public policy declaration.* It is hereby declared to be the public policy of the City of Plano that all persons subject to its jurisdiction should enjoy equal human rights and that discrimination based on race, color, sex, religion, age, national origin, genetic information, sexual orientation, gender identity, disability status, familial status or United States military/veteran status, is detrimental to the peace, progress and welfare of the city.

(2) *City policy.* The City of Plano, as an employer, shall maintain an inclusive policy as to equal employment, affirmative action, and a harassment free workplace. No city employee or applicant for employment with the City of Plano will be denied employment or promotion because of race, color, sex, religion, age, national origin, genetic information, sexual orientation, gender identity, disability status, or United States military/veteran status. Fair and impartial treatment will be extended to all city employees and applicants for employment with the City of Plano. This policy shall also be adhered to by those contracting with the City of Plano.

(b) *Definitions.*

(1) *Age* shall mean a person forty (40) or more years of age.

(2) *Complainant* shall mean a person who files a complaint pursuant to the herein section 2-11.

(3) *Conciliation* shall mean the attempted resolution of issues raised by a complaint or by the investigation of a complaint, through informal negotiations or mediation.

(4) *Conciliation agreement* shall mean a written agreement setting forth the resolution of issues pursuant to conciliation.

(5) *Contractor* shall mean any person who through a contract or other arrangement has received, is to receive or is receiving public funds or in-kind compensation from the city.

(6) *Disability* shall mean a physical or mental impairment that substantially limits one (1) or more major life activities of an

individual, a record of such an impairment or being regarded as having such an impairment; it is to be construed to be in accordance with the Americans with Disabilities Act and the ADA Amendments Act of 2008.

(7) *Discrimination* shall mean any direct or indirect disparate, prejudicial or unjust treatment, distinction, segregation, limitation, refusal, denial or other differentiation of a person or persons, based on a particular characteristic or by classifying or categorizing a person based on perceived or actual participation in a certain group of people with a particular characteristic.

(8) *Dwelling* shall mean:

a. A building, structure or part of a building or structure, that is occupied as, or designed or intended for occupancy as, a residence for one (1) or more persons;

b. Vacant land that is offered for sale or lease for the construction or location of a building, structure or part of a building or structure, described in subsection (a).

(9) *Educational institution* shall mean:

a. Any prekindergarten, kindergarten, primary, secondary or postsecondary educational institution, supported in whole or in part by state tax funds;

b. A "private school" as defined by V.T.C.A., Education Code § 5.001(6-a);

c. An "open-enrollment charter school" as defined by V.T.C.A., Education Code § 5.001(6);

d. An "institution of higher education" as defined by V.T.C.A., Education Code § 61.003(8); or

e. A "private or independent institution of higher education" as defined by V.T.C.A., Education Code § 61.003(15).

(10) *Employee* shall mean any individual employed by an employer but does not include elected officials.

(11) *Employer* shall mean any person who has fifteen (15) or more employees for each working day in each of twenty (20) or more calendar weeks in the current or preceding calendar year, and includes any agent of such person. The term does not include any person excluded from this section pursuant to subsection (c) below. For any complaint filed based upon a claim of age discrimination, the definition of employer shall be the definition codified in the Age Discrimination in Employment Act of 1967 as amended and not pursuant to the herein definition.

(12) *Employment agency* shall mean any person, and any agent of a person, who regularly undertakes, with or without compensation, to procure:

a. Employees for an employer; or

b. Opportunities for a person to work for an employer.

(13) *Gender identity* shall mean a person's innate, deeply felt sense of gender, which may or may not correspond to the person's physical anatomy and also includes a person's gender expression through external characteristics and behaviors including, but not limited to, dress, grooming, mannerisms, speech patterns and social interactions, that are identified with a particular gender or sexual orientation.

(14) *Genetic information* shall mean information about an individual's genetic tests, the genetic tests of an individual's family members and the manifestation of a disease or disorder in an individual's family members. Such term includes, with respect to any individual, any request for, or receipt of, genetic services, or participation in clinical research which includes genetic services, by such individual or any family member of such individual. Any reference to genetic information concerning an individual or family member of an individual who is a pregnant woman, in-

cludes genetic information of any fetus carried by such pregnant woman, or with respect to an individual or family member utilizing reproductive technology, includes genetic information of any embryo legally held by an individual or family member. The term "genetic information" shall not include information about the sex or age of any individual.

(15) *Joint labor-management committee* shall mean an entity that controls apprenticeship or other training or retraining programs, including on-the-job training programs.

(16) *Labor organization* shall mean a labor organization and any of its agents, and includes:

a. Any organization, agency or employee representation committee, group, association or plan in which employees participate and that exists for the purpose, in whole or in part, of dealing with employers concerning grievances, labor disputes, wages, rates of pay, hours or other terms and conditions of employment; and

b. Any conference, general committee, joint or system board or joint council so engaged, that is subordinate to a national or international labor organization.

(17) *Non-profit organization* shall mean an organization exempt from taxation as provided in Internal Revenue Code, 26 U.S.C. § 501(c).

(18) *Place of public accommodation* shall mean every business within the city, including a public conveyance, whether wholesale or retail, which is open to the general public and offers for compensation any goods, products, services or facilities.

(19) *Political organization* shall have the same meaning as set out in Internal Revenue Code, 26 U.S.C. § 527(e).

(20) *Public conveyance* shall mean any vehicle or any other means of transport operated on land, water or in the air, which in fact caters to, or offers its goods, facilities or services to, or solicits or accepts patronage from the general public. "Public conveyance" includes any person who is the owner, lessee, operator, proprietor, manager, superintendent, agent or employee or any public conveyance

(21) *Protected employment characteristic* shall mean race, color, sex, religion, age, national origin, genetic information, sexual orientation, gender identity, disability status or United States military/veteran status.

(22) *Protected housing characteristic* shall mean an individual's race, color, sex, religion, national origin, sexual orientation, gender identity, disability status, familial status or United States military/veteran status.

(23) *Religion* shall mean all aspects of religious observance and practice, as well as belief.

(24) *Religious organization* shall mean a bona fide religious corporation, association or society.

(25) *Respondent* shall mean a person, organization or entity against whom a complainant has filed a complaint pursuant to the herein section 2-11.

(26) *Sex* shall mean gender and the biological differences between men and women.

(27) *Sexual orientation* shall mean the actual or perceived status of a person with respect to his or her sexuality.

(28) *United states military / veteran status* shall mean a person who is serving or has served in the uniformed service of the United States, and who, if discharged, was discharged or released under conditions other than dishonorable. Uniformed service as used herein has the same definition as uniformed services as defined in 20 C.F.R. § 1002.5(o) at that time of adoption of the herein ordinance.

(c) *Exclusions.* Except as required by state or federal law, this section shall not apply to the following:

(1) Religious organizations;

(2) Political organizations;

(3) Non-profit organizations, except as provided by subsection (g)(1) herein;

(4) Educational institutions;

(5) The United States government or any of its departments or agencies;

(6) The State of Texas, or any of its departments, agencies or political subdivisions; or

(7) Private clubs that are restricted to members of the club and guests and are not open to the general public.

(d) *Public accommodations.*

(1) *Unlawful practice.* It shall be unlawful for any person with care, custody or control over the premises of a place of public accommodation or for any owner, employee or agent, of a place of public accommodation to discriminate against any person on the basis of race, color, sex, religion, national origin, sexual orientation, gender identity, disability status or United States military/veteran status, directly or indirectly, by excluding, segregating, limiting, refusing or denying to a person any of the accommodations, advantages, facilities, benefits, services or goods, offered to the general public at a place of public accommodation.

(2) *Defenses.* It is a defense to prosecution under this subsection on the basis of disability that the discrimination resulted from a condition or structural feature that is in conformance with the law.

(3) *Exclusions.* It shall not be unlawful to deny the opposite sex access to facilities inside a public accommodation segregated on the basis of sex for privacy such as restrooms, shower facilities, locker rooms, dressing rooms or any similar facility.

(e) *Housing.*

(1) *Unlawful practice.* It shall be unlawful for any person to discriminate against any person on the basis of race, color, sex, religion, national origin, sexual orientation, gender identity, disability status, familial status or United States military/veteran status by engaging in the following housing practices:

a. To refuse to negotiate with a person for the sale or rental of a dwelling or to otherwise deny or make unavailable a dwelling to a person;

b. To refuse to sell or rent a dwelling to a person who has made a bona fide offer for the dwelling;

c. To discriminate against a person in the terms, conditions or privileges of sale or rental of a dwelling, or in the provision of services or facilities therewith;

d. To represent to a person that a dwelling is not available for inspection, sale or rental, when the dwelling is in fact so available;

e. To deny a person access to, membership in, or participation in any multiple listing service, real estate brokers organization, or other service organization or facility, relating to the business of selling or renting dwellings;

f. To engage in disparate treatment of a person in the terms or conditions of access to, membership in, or participation in any multiple listing services, real estate broker's organization or facility, relating to the business of selling or renting dwellings;

g. To make, print or publish, or cause to be made, printed or published, any notice, statement or advertisement, relating to the sale or rental of a dwelling that indicates a preference, limitation or discrimination, for a protected housing characteristic or an intention to make any pref-

erence, limitation or discrimination, based on a protected housing characteristic; or

h. For profit, to induce or attempt to induce a person to sell or rent, or to not sell or rent, a dwelling by representations that a person with a protected housing characteristic may live in or may enter into a neighborhood.

(2) *Exclusions.*

a. This subsection does not apply to the following:

1. To the sale or rental of a single-family house if the owner does not own more than three (3) single-family houses at any one (1) time. Any such sale of a single-family house shall be limited to one (1) such sale within any twenty-four (24) month period if the owner is not the most recent resident of the house prior to the sale or does not live there at the time of the sale, and the owner did not use the services or facilities of a real estate broker, agent, or salesman, or their agents and employees, for the sale or to advertise the sale in violation of this subsection; or

2. To a rental of a dwelling containing living quarters occupied or intended to be occupied by no more than four (4) families living independently of each other, if the owner actually maintains and occupies part of the dwelling as his residence.

b. Nothing in this subsection limits the applicability of any reasonable local, state or federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling.

c. Nothing in this subsection regarding discrimination based on familial status applies with respect to housing for older persons as set out and defined in the Fair Housing Act.

(f) *Employment.*

(1) *Unlawful practice.* It shall be unlawful for an employer to discriminate against any person on the basis of race, color, sex, religion, age, national origin, genetic information, sexual orientation, gender identity, disability status or United States military/veteran status by the following actions or inactions:

a. For an employer to fail or refuse to hire, or to discharge, any person;

b. For an employer to discriminate against any person with respect to compensation, terms, conditions or privileges, of employment;

c. For an employer to limit, segregate or classify employees or applicants for employment in any way that would deprive or tend to deprive a person of employment or employment opportunities, or that would otherwise adversely affect a person's status as an employee;

d. For an employment agency to fail or refuse to refer for employment, or to otherwise discriminate against, any person because of a protected employment characteristic;

e. For an employment agency to classify or refer for employment any person, on the basis of a protected employment characteristic;

f. For a labor organization to exclude or expel from its membership, or to otherwise discriminate against, any person because of a protected employment characteristic;

g. For a labor organization to fail or refuse to refer for employment any person because of a protected employment characteristic;

h. For a labor organization to limit, segregate or classify its members or

applicants for membership, in any way that would deprive or tend to deprive a person of employment or employment opportunities, or that would otherwise adversely affect a person's status as an employee or as an applicant for employment;

i. For a labor organization to cause or attempt to cause an employer to discriminate against a person in violation of this subsection;

j. For an employer, a labor organization or a joint labor-management committee, to discriminate against any person because of a protected employment characteristic in the admission to, or employment in, any program established to provide apprenticeship or other training;

k. For an employer to print or publish, or cause to be printed or published, any notice or advertisement relating to employment by the employer that indicates any preference, limitation, specification or discrimination, based on a protected employment characteristic;

l. For an employment agency to print or publish, or cause to be printed or published, any notice or advertisement relating to membership in or any classification or referral for employment by the employment agency that indicates any preference, limitation, specification or discrimination, based on a protected employment characteristic; or

m. For a joint labor-management committee to print or publish, or cause to be printed or published, any notice or advertisement relating to admission to, or employment in, any program established to provide apprenticeship or other training by the joint labor-management committee that indicates any preference, limitation, specification or discrimination, based on a protected employment characteristic.

(2) *Exclusions.*

a. Nothing in this subsection prohibits a notice or advertisement from indicating a preference, limitation, specification, or discrimination, based on a protected characteristic when a protected characteristic is a bona fide occupational qualification for employment.

b. This section does not apply to, and does not require, the provision of employee benefits to a person for the benefit of the person's domestic partner.

(g) *City contracting.*

(1) All contracts entered into by the city involving the expenditure of city funds must incorporate an equal employment opportunity clause agreeing to comply with subsection (f) of the City Code of Ordinances. Failure by a contractor to comply with subsection (f) shall render the contract voidable by the city.

(2) The exclusion in subsection (c)(3) for nonprofit organizations shall not apply to the requirement in this subsection (g)(1).

(3) Application may be made to the city manager or his designee for a waiver from the requirement in this subsection based on a conflict with federal or state law.

(h) *Unlawful intimidation, retaliation and coercion.* It shall be unlawful for any person to discriminate against, harass, threaten, harm, damage or otherwise penalize or retaliate against another person for opposing an unlawful practice, for filing a complaint, or for testifying, assisting or participating in any manner in an investigation, proceeding or hearing, pursuant to this section.

(i) *Effect on legal remedies.* This section shall not affect the right of any person to pursue any legal remedy for discriminatory practices avail-

able under federal or state law by filing a claim with the appropriate public agency or by filing a private civil action.

(j) *Administration.* The city manager or his designee shall be responsible for implementing and administering this section.

(k) *Penalty.* Any violation of the provisions or terms of this section by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with section 1-4(b) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(l) *Complaint process.*

(1) A person who claims to have been discriminated against in violation of this section may file a complaint with the city manager or his designee. A complaint must be filed within ninety (90) calendar days after an alleged unlawful practice has occurred.

(2) A complaint shall be in writing on a form provided by the city manager or his designee, shall be verified, and shall contain the following information:

a. Name and address of the respondent.

b. Name, address and signature of the complainant.

c. Date of occurrence of the alleged unlawful practice.

d. Statement of the facts upon which the allegation of an unlawful practice are based.

(3) Within ten (10) business days after the filing of a complaint, the city manager or his designee shall review the complaint and notify the complainant in writing as to whether the city will:

a. Refer the complainant to another public agency pursuant to subsection (l)(4) below;

b. Deny the complaint due to incomplete information;

c. Deny the complaint because it is legally deficient or untimely;

d. Accept the complaint for investigation.

(4) If the claim for discrimination is within the jurisdiction of a federal or state agency, the complainant shall be referred by the city to the appropriate public agency. The complainant shall be responsible for filing the discrimination complaint within timeframes set out in federal and state law and the city shall take no further action with regards to the complaint.

(5) If, and only if, a federal or state agency to which a claim for discrimination is referred pursuant to subsection (4) of this subpart refuses to materially investigate the claim based upon a lack of jurisdiction, the complainant shall have thirty (30) calendar days, running from the date the complainant receives notice from the federal or state agency, to resubmit their complaint pursuant to subsection (2) of this subpart. If a complainant is resubmitting a complaint in accordance herewith, the complaint shall contain a copy of the correspondence or other documentation from the federal or state agency indicating its refusal to investigate or denial of the complaint based on jurisdictional grounds, in addition to the documentation required by suhsection (2) of this subpart.

(m) *Investigation and conciliation.*

(1) Upon acceptance of the complaint, the city manager or his designee shall commence an investigation and notify the respondent in writing of the complaint.

(2) If after the investigation, the city manager or his designee determines there is no reasonable cause to believe discrimination occurred, the city manager or his designee shall notify the complainant in writing and no further action shall be taken by the city.

(3) If after the investigation, the city manager or his designee determines that there is

reasonable cause to believe discrimination occurred, the city shall attempt to conciliate the complaint.

(4) A conciliation agreement executed under this section must be in writing in a form acceptable to the city and must be signed and verified by the respondent and the complainant. A conciliation agreement is executed upon signature and verification by all parties to the agreement.

(5) A party to an executed conciliation agreement shall not be prosecuted in municipal court for the unlawful practice identified in the agreement unless the complaint notifies the city manager or his designee within one (1) year of a violation of the agreement for the same discriminatory practice addressed by the agreement and the city attorney determines that the agreement has been violated.

(6) If a conciliation agreement cannot be reached by the city manager or his designee, the claim may be reviewed for criminal enforcement pursuant to subsection (k) above.

(n) *Defenses.*

(1) Any applicable federal or state law defense may be asserted by a person alleged to be in violation of this section.

(2) It is a defense that a person alleged to be in violation of this section was acting pursuant to a court order.

(Res. No. 89-2-15(R), §§ I, II, 2-13-89; Res. No. 89-3-12(R), §§ I, II, 3-15-89; Ord. No. 2014-12-7, § II, 12-8-14)

Editor's note—Resolution No. 89-2-15(R), §§ I, II, adopted Feb. 13, 1989, did not specifically amend the Code; hence, codification as § 2-11 was at the discretion of the editor.

Cross reference—Affirmative action plan adopted, § 2-41.

Sec. 2-12. Procurement code.

(a) *Applicability.* This section applies to expenditure of public funds as permitted by V.T.C.A. Local Government Code, chs. 252 and 271 and V.T.C.A. Government Code, chs. 2254 and 2269, without regard to their source, and to the disposal of city materials.

(b) *Compliance with grants, gifts, bequests, agreements.* Nothing in this section shall prevent the city from complying with the terms and conditions of any grant, gift, bequest, or cooperative agreement; nor restrict or limit the discretion of the city manager in seeking city council review and approval of any specific contract or contracts.

(c) *Authorization of contracts by city manager.* The following contracts may be entered into and executed on behalf of the city by the city manager or his designees without further council authorization provided there are budgeted funds to cover the cost to the city:

(1) Change orders subject to any restrictions imposed by state law; and

(2) Contracts for the lease or purchase of goods or services in an amount equal to or less than one hundred thousand dollars ($100,000.00), unless otherwise excepted by state law.

(d) *Purchasing division; duties.* The purchasing division will serve as the central procurement office of the city, and will have the right to determine which method of purchase provides the best value for the city, adopt operational procedures consistent with sound business practices and state law, governing the procurement and management of all materials, services, and construction to be procured by this city and the disposal of materials no longer needed by the city.

(Ord. No. 96-3-18, §§ I—IV, 3-25-96; Ord. No. 2001-8-15, § I, 8-27-01; Ord. No. 2007-8-9, § I, 8-13-07; Ord. No. 2011-9-5, § I, 9-12-11; Ord. No. 2011-11-9, § I, 11-14-11; Ord. No. 2015-12-8, § I, 12-14-15; Ord. No. 2021-8-20, § II, 8-23-21)

Editor's note—Ordinance No. 96-3-18, adopted Mar. 25, 1996, did not specifically amend this Code; hence, codification of §§ I—IV of said ordinance as § 2-12 herein was at the editor's discretion.

Editor's note—Ord. No. 2007-8-9, § VI, adopted Aug. 13, 2007, provided for an effective date of Sept. 1, 2007.

Sec. 2-13. Naming/renaming city facilities.

The city council is solely responsible for naming all city-owned facilities, structures and improvements, whether natural or manmade, including but not limited to: Libraries, buildings, parks,

and recreation facilities located within the City of Plano. The authority to name all meeting rooms and other internal rooms or auditoriums within city-owned facilities shall also be reserved to the city council unless such naming rights are granted as a sponsorship program authorized by the city council.

If any other ordinance, resolution or policy places naming rights in any other person, board, commission or committee inconsistent with this section, such ordinance, resolution or policy is hereby repealed except such repealer shall not apply to street names and signs as set forth in Section 5.4b.16 "Street Names and Signs" of Article V of the City of Plano Subdivision Ordinance as the same may be amended from time to time.
(Ord. No. 2007-2-9, § II, 2-12-07)

Secs. 2-14—2-20. Reserved.

ARTICLE II. CITY MANAGER*

Sec. 2-21. Enforcement of laws and ordinances.

The city manager shall see that all laws and ordinances of the city are enforced.
(Ord. No. 60-5-1, § 5, 5-23-60)

Sec. 2-22. Supervision and control of departments.

The city manager shall exercise supervision and control over all departments created by the city council.
(Ord. No. 60-5-1, § 5, 5-23-60)

Sec. 2-23. Monthly financial reports to council.

The city manager shall make a full written report to the city council as soon after the close of each month's accounts as possible, showing the operation and expenditures of each department for the preceding month, and a comparison of such monthly expenditures, by departments, with the monthly allowances made for such departments in the annual budget.
(Ord. No. 60-5-1, § 5, 5-23-60)

Charter references—Finance generally, Art. 9; duty of manager to submit annual financial report, § 4.01(c)(3).

Sec. 2-24. Enforcement of utility franchises.

The city manager shall see that all terms and conditions imposed in favor of the city and its inhabitants in any public utility franchise are faithfully kept and performed and, upon knowledge of any violation thereof, he shall call the same to the attention of the city council.
(Ord. No. 60-5-1, § 5, 5-23-60)

Charter reference—Franchises and public utilities, Art. 10.

Cross reference—Cable television franchise, App. B.

Sec. 2-25. Attendance at council meetings; right to participate in discussion.

The city manager shall attend all regular and special called meetings of the city council with the right to take part in the discussion, but having no vote. If the city manager is unable to attend the meeting, he shall notify the council and designate a person to attend on his behalf.
(Ord. No. 60-5-1, § 5, 5-23-60; Ord. No. 2011-2-9, § I, 2-28-11)

Editor's note—Ord. No. 2011-2-9, § I, adopted February 28, 2011, changed the title of section 2-25 from "Attendance at council meetings, etc." to "Attendance at council meetings; right to participate in discussion." The historical notation has been preserved for reference purposes.

Sec. 2-26. To devote full time to city affairs.

The city manager shall devote all of his working time and attention to the affairs of the city.
(Ord. No. 60-5-1, § 5, 5-23-60)

Sec. 2-27. Contract authority.

(a) The purpose of this section is to delegate authority to the city manager or designee to make purchases, execute contracts and approve

*__Charter references—__Appointment, qualifications and general powers and duties of city manager, §§ 1.01, 4.01; official bond, § 3.12.

Cross reference—Administration of city's risk management program by city manager, § 2-9.

change orders and contracts for expenditures provided there are budgeted funds to cover the cost to the city.

(b) The city manager or his designee may, unless otherwise excepted by state law:

(1) Enter into and execute any contract or approve any expenditure wherein the amount of city funds to be expended does not exceed one hundred thousand dollars ($100,000.00);

(2) Enter into and execute any change order subject to any restrictions imposed by state law;

(3) Enter into contracts and conveyance documents for the purpose of conveying and acquiring real property interests of the City of Plano valued at up to one hundred thousand dollars ($100,000.00); and

(4) Execute and release liens on behalf of the city.

(Res. No. 86-6-9(R), § I, 6-9-86; Ord. No. 2001-8-15, § II, 8-27-01; Ord. No. 2021-8-20, § III, 8-23-21)

Sec. 2-28. Same—Emergencies.

It is expressly provided that in case of public calamity caused by fire, flood, storm, or to protect the public health, or in case of unforeseen damage to public property, machinery or equipment, the city manager or his designee may execute such contracts as are necessary to provide for the immediate repair, preservation or protection of public property and the lives and health of the citizens of the city, such contracts to be ratified by the city council at its next regular meeting.
(Res. No. 86-6-9(R), § II, 6-9-86)

Secs. 2-29—2-40. Reserved.

ARTICLE III. EMPLOYEE BENEFITS*

DIVISION 1. GENERALLY

Sec. 2-41. Affirmative action program.

(a) The City of Plano Affirmative Action and Equal Employment Opportunity Program (revised May, 1989) attached to Resolution No. 89-5-24(R) and made a part of this section, is approved and adopted in its entirety as the official affirmative action program for the city.

(b) The policies and procedures set forth in said affirmative action program shall be observed by all city employees as of the effective date of said affirmative action program.
(Res. No. 85-2-21(R), §§ I, II, 2-25-85; Res. No. 89-5-24(R), §§ I, II, 5-22-89)

Cross reference—Nondiscrimination policy, § 2-11.

Sec. 2-42. Certification pay plan for classified members of police and fire departments.

(a) In accordance with article 1269m, Vernon's Texas Civil Statutes, and the rules and regulations of the City of Plano Firemen's and Policemen's Civil Service Commission, the City of Plano hereby establishes a certification pay plan as attached to Ordinance No. 86-12-25.

(b) Classifications for certification compensation for classified members of the city police and fire departments are as set out in Exhibit A attached to Ordinance No. 86-12-25 and made a part of this section for all purposes and intents. Advancement within the structure set out in Exhibit A shall be allowed as established by the rules and regulations formulated by the Texas Commission on Law Enforcement Officer's Standards and Education (Police) and the Texas Commission on Fire Protection Standards and Education. (Fire).
(Ord. No. 86-12-25, §§ I, II, 12-22-86)

Editor's note—Ord. No. 86-12-25, adopted Dec. 22, 1986, did not specifically amend the Code; hence, inclusion of §§ I and II as § 2-42 herein was at the editor's discretion.

***Charter references—**Authority of council to fix compensation of officers and employees, § 3.07(m); official bonds, § 3.12.

Secs. 2-43—2-55. Reserved.

DIVISION 2. TEXAS MUNICIPAL RETIREMENT SYSTEM*

Sec. 2-56. Election to participate.

On behalf of the city, the city council hereby exercises its option and elects to have the city and all of the employees of all departments of the city participate in the Texas Municipal Retirement System (referred to in this article as the "system") as provided in Vernon's Annotated Civil Statutes, Title 110B, and all of the benefits and obligations of such system are hereby accepted.
(Ord. No. 67-3-3, § 1, 3-27-67)

Sec. 2-57. Composite participation date.

The city hereby elects to have all of its departments now participating in the Texas Municipal Retirement System hereafter treated and considered, for the purpose of determining normal and prior service contribution rates to the Texas Municipal Retirement System and for the purpose of determining any period within which the city must fund the obligations mentioned in Vernon's Annotated Civil Statutes, Title 110B, sections 65.404—65.406, as having a single composite participation date, which composite date shall be determined by the actuary of the Texas Municipal Retirement System in the manner prescribed by section 65.407(d) of such title.
(Ord. No. 72-7-3, 7-10-72)

Sec. 2-58. Employees included.

Each person who becomes an employee of any participating department on or after the effective date of participation of such department shall be included within and subject to the provisions of the Texas Municipal Retirement System beginning upon the date such person becomes an "employee," as defined in Vernon's Annotated Civil Statutes, Title 110B, section 61.001.
(Ord. No. 67-3-3, § 3, 3-27-67)

*__State law reference—__Texas Municipal Retirement System, Vernon's Ann. Civ. St., Title 110B, § 61.001 et seq.

Sec. 2-59. Refusal to add new participants; discontinuance of participants.

The city may, in the future, refuse to add new departments or new employees to the Texas Municipal Retirement System, but shall never discontinue as to any participants.
(Ord. No. 67-3-3, § 4, 3-27-67)

Sec. 2-60. Reserved.

Sec. 2-61. Remittance, reports, etc., to board of trustees.

The city secretary is hereby directed to remit to the board of trustees of the Texas Municipal Retirement System at its office in Austin, Texas, the city's proper contributions to the system and the amounts which shall be deducted from the compensation or payroll of employees, all as required by such board under the provisions of Vernon's Annotated Civil Statutes, Title 110B, Subtitle G, and the city secretary is hereby authorized and directed to ascertain and certify officially, on behalf of the city, the prior service rendered to the city by each of the employees of the participating departments, and the average prior service compensation received by each, and to make and execute all other reports and certificates which may be required of the city under the provisions of said subtitle, or the rules and regulations of the board of trustees of the Texas Municipal Retirement System.
(Ord. No. 67-3-3, § 5, 3-27-67)

Sec. 2-62. Supplemental disability benefits fund.

(a) The city, by its city council, hereby elects to have the employees of all departments of the city participating in the Texas Municipal Retirement System, participate in and be covered by the supplemental disability benefits fund of the Texas Municipal Retirement System, as provided by Vernon's Annotated Civil Statutes, Title 110B, sections 62.003, 65.313, 65.317 and 65.408, and all the benefits and obligations of participation in such fund are hereby accepted by the city as to such employees.

(b) Each person who becomes an employee of any participating department on or after the effective date of participation of such department in such fund shall, as a condition of his employment, be covered by the supplemental disability benefits fund of such system. The city may, in the

future, refuse to add new departments or new employees to said fund, but shall never discontinue as to any members who are covered by the fund.

(c) The city secretary is hereby directed to remit monthly to the board of trustees of the Texas Municipal Retirement System at its office in Austin, Texas, as the city's contributions to the supplemental disability benefits fund of the Texas Municipal Retirement System, such percentage of earnings of the above-mentioned employees of such city as may be fixed by the board of trustees of the Texas Municipal Retirement System, provided that the rate of contribution to such fund shall not exceed one-half of the one (0.5) percentum of the earnings of the employees of the city who are covered under the fund; and such official shall make for the city such reports as the board of trustees of the Texas Municipal Retirement System may prescribe.

(d) Participation of the above-mentioned employees in the supplemental disability benefits fund shall be effective January 1, 1960, or on such later date as the board of trustees of the Texas Municipal Retirement System shall declare such fund to be operative.
(Ord. No. 67-9-5, §§ 1—3, 5, 9-25-67)

Sec. 2-63. City contributions to members' current service annuity reserve.

Effective January 1, 1973, for each month of current service thereafter rendered by each of its employees who are members of the Texas Municipal Retirement System, the city will contribute to the current service annuity reserve of each such member at the time of his retirement, a sum that is two hundred (200) percent of such member's accumulated deposits for such month of employment. Such sum shall be contributed from the city's account in the municipality current service accumulation fund.
(Ord. No. 72-10-6, 10-23-73)

State law reference—Collection of contributions, Vernon's Ann. Civ. St., Title 110B, § 65.401 et seq.

Sec. 2-64. Authorization of updated service credits.

(a) On the terms and conditions set out in sections 853.401 through 853.403 of subtitle G of Title 8, V.T.C.A., Government Code, as amended, each member of the Texas Municipal Retirement System who has current service credit or prior service credit in said system in force and effect on the first day of January of the calendar year preceding such allowance, by reason of service in the employment of the City of Plano, and on such date has at least thirty-six (36) months of credited service with said system, shall be and is hereby allowed "updated service credit" (as that term is defined in subsection (d) of section 853.402 of said title) in an amount that is one hundred (100) percent of the "base updated service credit" of the member (calculated as provided in subsection (c) of section 853.402 of said title). The updated service credit hereby allowed shall replace any updated service credit, prior service credit, special prior service credit, or antecedent service credit previously authorized for part of the same service.

(b) On the terms and conditions set out in section 853.601 of said title, any member of the Texas Municipal Retirement System who is eligible for updated service credits on the basis of service with this city, and who has unforfeited credit for prior service and/or current service with another participating municipality or municipalities by reason of previous service, and was a contributing member on January 1, 1993, shall be credited with updated service credits pursuant to, calculated in accordance with, and subject to adjustment as set forth in said section 853.601, both as to the initial grant hereunder and all future grants under this division.

(c) In accordance with the provisions of subsection (d) of Section 853.401 of said title, the deposits required to be made to the Texas Municipal Retirement System by employees of the several participating departments on account of current service shall be calculated from and after the date aforesaid on the full amount of such person's earnings as an employee of the city.
(Ord. No. 67-3-4, 3-27-67; Ord. No. 74-11-3, 11-11-74; Ord. No. 75-11-15, 11-24-75; Ord. No. 84-12-20, § I, 12-18-84; Ord. No. 85-12-21, § I, 12-23-85; Ord. No. 86-12-26, § 1, 12-22-86; Ord. No. 87-11-18, § I, 11-9-87; Ord. No. 89-12-8, § I, 12-11-89; Ord. No. 91-11-32, § I, 11-25-93; Ord. No. 93-12-36, § I, 12-27-93)

Sec. 2-64.1. Approval of updated service credits.

The provision of updated service credits is subject to approval by the board of trustees of the Texas Municipal Retirement System.
(Ord. No. 87-11-18, § III, 11-9-87)

Editor's note—Ord. No. 87-11-18, § III, adopted Nov. 9, 1987, did not specifically amend the Code; hence, inclusions as § 2-64.1 was at the editor's discretion. Former § 2-64.1 has been redesignated as § 2-64.2.

Sec. 2-64.2. Initial allowance of updated service credits.

(a) On the terms and conditions set out in section XVII of (former) Article 6243h, Vernon's Texas Civil Statutes, as amended 1975, each member of the Texas Municipal Retirement System who has current service credit or prior service credit in said system in force and effect on the first day of January, 1979, by reason of service in the employment of the city, shall be and is hereby allowed "updated service credit" (as that term is defined in said act) in an amount that is one hundred (100) percent of the "base updated service credit" of the member, calculated as provided in said act. The updated service credit hereby allowed shall be in lieu of and in substitution for all prior service credits, special prior service credits, and antecedent service credits, if any, heretofore allowed such member by reason of service with the city.

(b) In accordance with the provisions of said act, the deposits required to be made to the Texas Municipal Retirement System by employees of the several participating departments on account of current service shall be calculated from and after the date aforesaid on the full amount of such person's earnings as an employee of the city.

(c) Subject to appeal of the board of trustees of the Texas Municipal Retirement System, the updated service credits hereby granted shall be and become effective the first day of January, 1979.
(Ord. No. 78-10-20, § 1, 10-23-78)

Note—See the editor's note following § 2-64.1.

Sec. 2-65. Increase in retirement annuities.

(a) On terms and conditions set out in section 854.203 of subtitle G of Title 8, V.T.C.A., Government Code, as amended, the City of Plano hereby elects to allow and to provide for payment of the increases below stated in monthly benefits payable by the Texas Municipal Retirement System to retired employees and to beneficiaries of deceased employees of this city under current service annuities and prior service annuities arising from service by such employees to this city. An annuity increased under this section replaces any annuity or increased annuity previously granted to the same person.

(b) The amount of annuity increase under this section is computed as the sum of the prior and current service annuities on the effective date of retirement of the person on whose service the annuities are based, multiplied by seventy (70) percent of the percentage change in Consumer Price Index for All Urban Consumers, from December of the year immediately preceding the effective date of the person's retirement to the December that is thirteen (13) months before the first day of January, 1994.

(c) An increase in annuity that was reduced because of an option selection is reducible in the same proportion and in the same manner that the original annuity was reduced.

(d) If a computation hereunder does not result in an increase in the amount of an annuity, the amount of the annuity will not be changed hereby.

(e) The amount by which an increase under this section exceeds all previously granted increases to an annuitant is an obligation of this city and of its account in the municipality accumulation fund of the Texas Municipal Retirement System.
(Ord. No. 69-12-1, 12-8-69; Ord. No. 84-12-20, § II, 12-18-84; Ord. No. 85-12-21, § II, 12-23-85; Ord. No. 86-12-26, § II, 12-22-86; Ord. No. 87-11-18, § II, 11-9-87; Ord. No. 89-12-8, § II, 12-11-89; Ord. No. 91-11-32, § II, 11-25-91; Ord. No. 93-12-36, § II, 12-27-93)

Sec. 2-66. Initial allowances and increases in effect.

The initial allowance of updated service credit and increase in retirement annuities hereunder shall be effective on January 1, 1994, subject to approval by the board of trustees of the system.

An allowance of updated service credits and an increase in retirement annuities shall be made hereunder on January 1 of each subsequent year until this section ceases to be in effect under subsection (e) of section 853.404 of the TMRS Act, provided that, as to such subsequent year, the actuary for the system has made the determination set forth in subsection (d) of section 853.404 of the TMRS Act.
(Ord. No. 78-10-20, § 2, 10-23-78; Ord. No. 91-11-32, § III, 11-25-91; Ord. No. 93-12-36, § III, 12-27-93)

Sec. 2-66.1. Increase in rate of deposits.

All employees of the City of Plano, who are members of the Texas Municipal Retirement System, shall make deposits to the system at the rate of seven (7) percent of their individual earnings.
(Ord. No. 91-11-32, § IV, 11-25-91; Ord. No. 93-12-36, § IV, 12-27-93)

Editor's note—Section IV of Ord. No. 91-11-32, adopted November 25, 1991, did not specifically amend the Code; therefore, inclusion as § 2-66.1 was at the discretion of the editor.

Sec. 2-67. Additional rights, credits, benefits—Effective January 1, 1982.

(a) Pursuant to Vernon's Annotated Civil Statutes, Title 110B, sections 62.105 and 64.202, the city adopts the following plan provisions affecting participation of its employees in the Texas Municipal Retirement System:

(1) Each person who becomes an employee of any participating department of this city and who is not already a member of the Texas Municipal Retirement System shall become a member of the system as a condition of employment, provided such person is then under sixty (60) years of age.

(2) Any member, after one (1) year from the effective date of membership, shall be eligible for service retirement who has attained the age of fifty (50) years and has completed twenty-five (25) years of creditable service with this city or who has attained the age of sixty (60) years and has completed at least ten (10) years of creditable service with participating municipalities which either have adopted the plan provisions of this section or have a participation date in the retirement system after August 26, 1979.

(3) The membership of any member who has completed at least ten (10) years of creditable service with this city and other participating municipalities which have adopted the plan provisions of Vernon's Annotated Civil Statutes, Title 110B, section 64.202 shall not terminate because of absence from service.

(4) Any person who is an employee of a participating department of this municipality on the effective date of this section, but who at the date of his employment was under sixty (60) years of age but did not become a member of the Texas Municipal Retirement System because he was then above the maximum age then prescribed by law for initial membership in the system, shall become a member of the system on the effective date of this section, unless he has already become a member under other provisions of the governing act, and shall be allowed prior service credit for each month of creditable service performed for this municipality subsequent to the date such person was precluded from membership and prior to the effective date of his membership. Such prior service credit shall be calculated using the same percentage of the base prior service credit as was most recently used in calculating prior service credits or updated service credits in such system for current member employees of this city.

(b) The rights, credits and benefits authorized in this section shall be in addition to the plan provisions heretofore adopted and in force at the effective date of this section pursuant to the act governing such system.

(c) This section shall be effective January 1, 1982.
(Ord. No. 78-10-21, § 1, 10-23-78; Ord. No. 81-11-18, §§ 1—4, 11-23-81)

Sec. 2-67.1. Same—Effective January 1, 1988.

(1) *Adoption of statutory provisions.* Pursuant to the provisions of sections 62.105, 64.202(f),

64.204, 64.405, 64.406, and 64.410 of Subtitle G of Title 110B, Revised Civil Statutes of Texas, 1925, as amended by the 70th Legislature of the State of Texas, Regular Session, which Subtitle shall herein be referred to as the "TMRS Act," the City of Plano, Texas, adopts the following provisions affecting participation of its employees in the Texas Municipal Retirement System (which retirement system shall herein be referred to as the "system"):

(a) Any employee of this city who is a member of the system is eligible to retire and receive a service retirement annuity, if the member has at least twenty-five (25) years of credited service in that system performed for one (1) or more municipalities that have participation dates after September 1, 1987, or have adopted a like provision under section 64.202(f) of the TMRS Act.

(b) If a "vested," as that term is defined in section 64.204(b) of the TMRS Act, shall die before becoming eligible for service retirement and leaves surviving a lawful spouse whom the member has designated as beneficiary entitled to payment of the member's accumulated contributions in event of the member's death before retirement, the surviving spouse may by written notice filed with the system elect to leave the accumulated deposits on deposit with the system subject to the terms and conditions of said section 64.204(b). If the accumulated deposits have not been withdrawn before such time as the member, if living, would have become entitled to service retirement, the surviving spouse may elect to receive, in lieu of the accumulated deposits, an annuity payable monthly thereafter during the lifetime of the surviving spouse in such amount as would have been payable had the member lived and retired at that date under a joint and survivors annuity (Option 1) payable during the lifetime of the member and continuing thereafter during the lifetime of the surviving spouse.

(c) At any time before payment of the first monthly benefit of an annuity, a surviving spouse to whom subsection (b) applies may, upon written application filed with the system, receive payment of the accumulated contributions standing to the account of the member in lieu of any benefits otherwise payable under this section. In the event such a surviving spouse shall die before payment of the first monthly benefit of an annuity allowed under this section, the accumulated contributions credited to the account of the member shall be paid to the estate of such spouse.

(d) Any employee of this city who is a member of the system and who performed service for this city prior to September 1, 1987, (for which service that employee did not receive credit with the system because the employee was not at that time a member of the system due to his or her age at the date of his or her employment) is hereby granted service credit with the system for all of such service (performed after the date of his or her latest employment by the city) that is prior to September 1, 1987, for which the employee has not previously received credit with the system, pursuant to section 62.105 of the Act.

(e) The rights, credits and benefits hereinabove authorized shall be in addition to the plan provisions heretofore adopted and in force at the effective date of this section pursuant to the TMRS Act.

(f) Any employee of this city who is a member of the system is eligible to retire and receive a "standard occupational disability annuity" under section 64.408 of the TMRS Act or an "optional occupational disability retirement annuity" under section 64.410 of the TMRS Act upon making application therefor upon such form and in such manner as may be prescribed by the board of trustees of the system, provided that the system's medical board has certified to said board of trustees: (1) that the member is physically or mentally disabled for further performance of the duties of the member's employment; (2) that the disability is likely to be permanent; and (3) that the member should be retired. Any annuity granted

under this subsection shall be subject to the provisions of section 64.409 of the TMRS Act.

(g) The provisions relating to the occupational disability program as set forth in section (e), above, are in lieu of the disability program heretofore provided for under sections 64.301 to 64.308 of the TMRS Act.

(2) *Funding certification.* Pursuant to a determination by the actuary for the system, all obligations of the city to the municipality accumulation fund, including obligations hereby undertaken, can be funded by the city within its maximum contribution rate and within its amortization period.

(3) *Effective date.* This section shall be effective on January 1, 1988.
(Ord. No. 87-11-18, §§ IV—VI, 11-9-87)

Editor's note—Ord. No. 87-11-18, adopted Nov. 9, 1987, did not specifically amend the Code; hence, inclusion of §§ IV—VI as § 2-67.1 was at the discretion of the editor.

Sec. 2-67.2. Same—Effective October 23, 1989.

(a) Any employee of the City of Plano who is a member of the Texas Municipal Retirement System and who performed service as a probationary employee for the city prior to September 1, 1989, for which the employee did not receive credited service in the system because the person, as a probationary employee, was not enrolled as a member of the system during the period of probationary employment, is hereby allowed to obtain prior service credit for the period of such probationary service (not in excess of six (6) months), pursuant to the provisions of section 63.303 of Subtitle G, Title 110B, Revised Civil Statutes, as enacted by House Bill 1885, Acts of the Regular Session of the 71st Legislature.

(b) To obtain prior service credit allowable under subsection (a), any employee entitled thereto shall file a detailed written statement of the service claimed with the director of personnel within one (1) year from October 23, 1989.

(c) As soon as practicable after the employee has filed a claim for prior service credit under section 63.303, Subtitle G, of the Government Code, the director of personnel shall, if said officer determines that such service was performed as claimed, verify the prior service allowable (not exceeding six (6) months) and the average monthly compensation paid the member during the period of probationary employment, and shall certify to the board of trustees of the system the creditable prior service approved and the average monthly compensation paid to the person by the city during the period of probationary employment.
(Ord. No. 89-10-28, §§ I—III, 10-23-89)

Editor's note—Ord. No. 89-10-28, §§ I—III, adopted Oct. 23, 1989, not specifically amendatory of this Code, has been codified as § 2-67.2(a)—(c) at the discretion of the editor.

Sec. 2-68. Tax saver plan.

(a) The city council, having reviewed and found them to be proper, acceptable and in the best interest of the city, its citizens, and its employees, hereby approves and adopts, in their entirety, the terms and conditions of the document entitled "City of Plano, Texas, Tax Saver Plan" (herein called "plan"). Such plan is attached to the ordinance from which this section is derived in its entirety and made a part hereof.

(b) The opportunity to participate in said plan shall be provided to all full-time city employees who are eligible participants under the City of Plano, Texas, Group Health Plan. Participation in such plan shall be on an optional basis and become effective upon the employee's completion of the necessary authorization forms and eligibility to participate under the City of Plano, Texas, Group Health Plan.
(Ord. No. 84-8-25, §§ 1, 2, 8-27-84)

Sec. 2-69. Authorization of restricted prior service credit.

(a) On the terms and conditions set out in section 853.305 of subtitle G of Title 8, V.T.C.A., Government Code, as amended, each member of the Texas Municipal Retirement System who is now or who hereafter becomes an employee of the City of Plano may apply for restricted prior service credit for service previously performed as an employee of any incorporated city or town in the United States or any council of governments in this state and for which the person has not otherwise received credited service in the Texas

Municipal Retirement System. The service credit granted may be used only to satisfy length-of-service requirements for retirement eligibility, has no monetary value in computing the annuity payments allowable to the member, and may not be used in other computations, including computation of updated service credits.

(b) A member seeking to establish restricted prior service credit under this section must obtain a verified statement of service for such credit from the incorporated city or town in the United States or any council of governments in this state for which the service was previously performed, and file such statement with the City of Plano while still an employee of the City of Plano.

(Ord. No. 91-11-30, § I, 11-25-91; Ord. No. 93-12-68, § I, 12-27-93)

Editor's note—Ord. No. 91-11-30, § I, adopted November 25, 1991, did not specifically amend the Code; therefore, inclusion as § 2-69 was at the discretion of the editor.

Sec. 2-70. Credit for military service.

(a) *Authorization.* Pursuant to Section 853.502, Subchapter F of Chapter 853, Title 8, Government Code, as amended, the City of Plano hereby elects to allow eligible members in its employment to establish credit in the Texas Municipal Retirement System (TMRS) for active military service, performed as a member of the Armed Forces or Armed Forces Reserves of the United States or an auxiliary of the Armed Forces or Armed Forces Reserves. Eligible members as used herein shall be those employees meeting the criteria set forth in Sections 853.502 (b) and 853.503 of said Subchapter F, and the amount and use of creditable military service shall be as further set forth in Section 853.505.

(b) *Establishing credit.* In order to establish credit for military service hereunder, a member must deposit with the Texas Municipal Retirement System (TMRS), in said member's individual account in the employees saving fund, an amount equal to the number of months for which credit is sought (maximum of sixty (60) months), multiplied by fifteen dollars ($15.00). The City of Plano ordains that its account in the municipality accumulation fund is to be charged at the time of the member's retirement with an amount equal to the accumulated amount paid by the member for military service credit, multiplied by the city's current service matching ratio in effect at the date the member applies for such military service credit.

(Ord. No. 91-11-31, §§ I, II, 11-25-91)

Editor's note—Ord. No. 91-11-31, §§ I, II, adopted November 25, 1991, did not specifically amend the Code; therefore, inclusion as § 2-70 was at the discretion of the editor.

Sec. 2-71. Prior service credit.

(a) Pursuant to section 853.003 of the Government Code, V.T.C.A., the City of Plano hereby elects to allow any member of the Texas Municipal Retirement System (the "system") who is an employee of the City of Plano (the "city") on the twenty-seventh day of December, 1993, who has terminated a previous membership in said system by withdrawal of deposits while absent from service, but who has at least twenty-four (24) months of credited service as an employee of the city since resuming membership, to deposit with the system in a lump sum amount withdrawn, plus a withdrawal charge of five (5) percent of such amount for each year from date of such withdrawal to date of redeposit, and thereupon such member shall be allowed credit for all service to which the member had been entitled at date of termination of the earlier membership, with like effect as if all such service had been rendered as an employee of the city, whether so rendered or not.

(b) The City of Plano agrees to underwrite and hereby assumes the obligations arising out of the granting of all such credits, and agrees that all such obligations and reserves required to provide such credits shall be charged to the city's account in the municipality accumulation fund. The five (5) percent per annum withdrawal charge paid by the member shall be deposited to the credit of the city's account in said municipality accumulation fund; and the deposits of the amount previously withdrawn by the member shall be credited to his or her individual account in the employees saving fund of the system.

(Ord. No. 93-12-37, §§ I, II, 12-27-93)

Editor's note—Ordinance No. 93-12-37, adopted Dec. 27, 1993, did not specifically amend this Code; hence, codification of §§ I and II of said ordinance as § 2-71 herein was at the editor's discretion.

Sec. 2-72. Retirement eligibility at any age with twenty (20) years of service credit.

(a) Pursuant to the provisions of Section 854.202(g) of Subtitle G of Title 8 of the Texas Government Code, as amended, ("the TMRS Act") the City of Plano, Texas, adopts the following provisions affecting participation of its employees in the Texas Municipal Retirement System ("the system"):

(1) Any employee of the City of Plano who is a member of the system is eligible to retire and receive a service retirement annuity if the member has at least twenty (20) years of credited service in the system performed for one or more municipalities that have adopted a like provision under Section 854.202(g) of the TMRS Act.

(2) Prior to adopting this section, the city council of the city of Plano, Texas, has:

a. Had prepared an actuarial analysis of member retirement annuities at twenty (20) years of service; and

b. Held a public hearing pursuant to the notice provisions of the Texas Open Meetings Act, Chapter 551 of the Texas Government Code, as amended.

(3) The rights hereinabove authorized shall be in addition to the plan provisions heretofore adopted and in force at the effective date of this section pursuant to the TMRS Act.

(b) This section shall become effective on January 1, 1998.

(Ord. No. 97-9-22, §§ I, II, 9-22-97)

Editor's note—Ord. No. 97-9-22, §§ I, II, adopted Sept. 22, 1997, did not specifically amend the Code; hence, inclusion of its provisions as § 2-72 herein was at the discretion of the editor.

Secs. 2-73—2-80. Reserved.

DIVISION 3. RETIREMENT SECURITY PLAN; RETIREMENT SECURITY TRUST

Sec. 2-81. Adopted.

(a) The terms and conditions of the documents entitled, "City of Plano, Texas, Retirement Security Plan" and "City of Plano, Texas, Retirement Security Trust," having been reviewed by the city council and found to be proper, acceptable and in the best interests of the city, its employees and its citizens are hereby approved and adopted. Copies of such documents are on file in the office of the city secretary, and are hereby incorporated in this section by reference for all purposes as Exhibits A and B respectively.

(b) The mayor or, in his absence, the mayor pro tem is hereby authorized to execute, on behalf of the city, the retirement security plan and the retirement security trust.
(Ord. No. 82-12-19, §§ 1, 3, 12-27-82)

Sec. 2-82. Providing for employee coverage.

The city council hereby directs that all city employees presently employed on a full-time basis by the city, and all future full-time employees of the city, be included in and be covered by the retirement security plan and retirement security trust adopted in this division as of the effective date of this division.
(Ord. No. 82-12-19, § 2, 12-27-82)

Sec. 2-83. Appointment of administrator.

The city manager or his designee is hereby authorized to act as the administrator of the retirement security plan adopted in this division and shall discharge his duties as set forth therein.
(Ord. No. 82-12-19, § 4, 12-27-82)

Secs. 2-84—2-95. Reserved.

ARTICLE IV. CODE OF CONDUCT*

Sec. 2-96. Policy.

It is hereby declared to be the policy of the city that the proper operation of democratic government requires that public officials and employees be independent, impartial and responsible only to the people of the city; that no officer, employee or member of any standing committee or board shall permit any interest, financial or otherwise, direct or indirect, or engagement in any business, transaction or professional activity to conflict with the proper discharge of his duties in the public interest; that public office not be used for personal gain; and that the city council at all times shall be maintained as a nonpartisan body. To implement such a policy, the city council deems it advisable to enact a code of conduct for all officials and employees, whether elected or appointed, paid or unpaid, to serve not only as a guide for official conduct of the city's public servants, but also as a basis for discipline for those who refuse to abide by its terms, the overriding interest being that officers and employees of the City of Plano shall at all times strive to avoid even the appearance of impropriety.
(Ord. No. 90-2-19, § I, 2-12-90; Ord. No. 91-4-37, § I, 4-22-91)

Sec. 2-97. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

City council means the legislative and governing body of the city, consisting of the mayor and council members.

---

*__Editor's note—__Ord. No. 90-2-19, § I, adopted Feb. 12, 1990, amended this article, relative to code of conduct, in its entirety, in effect repealing former §§ 2-96—2-101 and enacting similar new provisions in lieu thereof as §§ 2-96—2-108. Formerly, such provisions derived from Ord. No. 84-6-11, § 11(2-102)—(2-107), adopted June 25, 1984, and Ord. No. 86-9-13, § 2(2-102)—(2-107), adopted Sept. 8, 1986.

__State law reference—__Conflicts of interest of officers of municipalities, Local Government Code, § 171.001 et seq.

Employee means any person employed by the city, including those individuals on a part-time basis, but shall not mean any independent contractor hired by the city.

Officer or *official* means any member of the city council and any appointed member of a board, commission or committee set up by ordinance, charter, state law or otherwise, on a temporary or permanent basis, excluding those boards, commissions or entities not operating under the direct authority of or subject to the direct control of the city council.

Relative means any person related to an officer or employee within the first degree by consanguinity or affinity and shall include a spouse, father, mother, son, daughter, brother or sister.
(Ord. No. 90-2-19, § I, 2-12-90; Ord. No. 91-4-37, § I, 4-22-91; Ord. No. 96-11-24, § I, 11-25-96)

Sec. 2-98. Standards of conduct—Officers and employees.

(a) *Officer and employee standards.* No officer or employee of the city shall:

(1) Recommend, participate in the decision, including voting or discussion, or participate in the monitoring or fulfilling obligations of any contract (whether oral or written) for materials, supplies, or service with the city nor in any sale of any rights or interest in land, if the officer, employee, or a relative of the officer or employee has a financial interest in such contract or rights or interest in land. In such event, an affidavit specifying the financial interest shall be filed with the record keeper prior to any discussion on the item and the affected member shall thereafter refrain from participation on that item.

Notwithstanding the above, the more restrictive prohibitions set forth under section 11.02 of the City Charter applies to officers who have final decision making authority such as city council members and appointees to boards or commissions.

The "financial interest" contemplated under this subsection and under section 11.02 of the City Charter requires that the officer, employee or relative receive an actual financial benefit from the transaction with the city. An actual financial benefit from the transaction shall not include:

a. An ownership in the entity transacting with the city where the ownership interest is less than one (1) percent.

b. Compensation as an employee, officer or director of the entity transacting with the city where such compensation is not affected by the entity's transaction with the city.

c. An investment or ownership in a publicly held company in an amount less than ten thousand dollars ($10,000.00).

(2) Represent any private interest of others in any action or proceeding involving the city nor voluntarily participate on behalf of others in any litigation to which the city might be party nor appoint or recommend for appointment any person to a city board or commission that is a party to litigation against the city or representing any private interest of others in any litigation to which the city is a party.

(3) Use his official position to secure special privileges or exemptions for himself or others.

(4) Grant any special consideration, treatment or advantage to any citizen, individual, business organization or group beyond that which is normally available to every other citizen, individual, business organization or group. This shall not prevent the granting of fringe benefits to city employees as a part of their contract of employment or as an added incentive to the securing or retaining of employees.

(5) Disclose information that could adversely affect the property, government or affairs

of the city; nor directly or indirectly use any information gained solely by reason of his official position or employment for his own personal gain or benefit or for the private interest of others.

(6) Disclose confidential information.

(7) Engage in any outside activities which will conflict with or will be incompatible with his position as an officer of the city, the duties assigned to him in his employment with the city, or in which his employment in the city will give him an advantage over others engaged in a similar business, vocation or activity.

(8) Knowingly perform or refuse to perform any act to deliberately thwart the execution of the city ordinances, rules or regulations or the achievement of official city programs.

(9) Use city supplies, equipment or facilities for any purpose other than the conduct of official city business, unless otherwise provided for by law, ordinance or city policy.

(10) Engage in any conduct prejudicial to the government of the city or that reflects discredit upon the government of the city.

(b) *Additional standards—City council and employees.* No employee or city council member shall represent or appear on behalf of private interests of others before any agency of the city or any city board, commission or committee.

(c) *Additional standards—Officers other than city council.* No other city officer shall represent or appear on behalf of the private interests of others before the board, commission or committee of which he is a member, or before the city council or other board on an appeal from such board, commission or committee concerning such matter.

(d) *Additional standards—Political activity—City council and employees.* State law imposes limitations on the political activities of employees and officers. Additionally, employees are prohibited from using the influence or prestige of their position or title in an endorsement of or opposition to any candidate for elective office and/or engaging or participating in political activity or campaigns while in uniform and/or on duty. City council members are prohibited from using their position or title in endorsement of city council candidates in city elections. Except as limited by state law, all employees and city council members are encouraged to participate in all local, state and national elections and in any political process as a private citizen.

(e) *Additional standards—Political activity—Boards and commissions.* Boards and commissions of the City of Plano, other than city council, are prohibited from hosting or sponsoring events for candidates to elective office, including but not limited to, candidate forums, debates and introductory meetings.

(Ord. No. 90-2-19, § I, 2-12-90; Ord. No. 91-1-14, § I, 1-14-91; Ord. No. 91-4-37, § I, 4-22-91; Ord. No. 96-11-24, §§ II, III, 11-25-96; Ord. No. 98-10-18, § I, 10-26-98; Ord. No. 2016-7-7, §§ I, II, 7-25-16; Ord. No. 2017-6-12, § I, 6-28-17; Ord. No. 2021-8-4, § I, 8-9-21)

Sec. 2-99. Same—Additional for council members.

(a) In any land matter which comes before the city council, planning and zoning commission, or board of adjustment and in which any member of the city council or aforementioned boards and commissions has a financial interest in any property within two hundred (200) feet of the matter before it, such member shall disclose the existence of the interest by filing an affidavit with the recordkeeper and, thereafter, abstain from any discussion or voting on the matter and not attempt to influence any other member on such matter. In addition, any state law provision regarding a conflict of interest shall also be followed.

It is the intention of this provision that the term "land matter" shall be interpreted broadly to include zoning, permit requests, variances, etc.

(b) In the event that any matter comes before the city council involving directly or indirectly the interest of a present business client/customer

of any city council member or the interest of a person or entity who has been a business client/customer, of any council member within the prior twelve (12) months, and funds received by the council member or the entity for which he is employed from the past/present business client/customer amount to the sum of ten thousand dollars ($10,000.00) or more in gross income during such twelve-month period, and such fact is known to the council member, then that council member shall disclose the existence of such interest to the other council members and thereafter abstain from voting in the matter and refrain from attempting to influence the vote of any other council member.

(c) No council member who is on the board of a nonprofit organization may vote on any funding request by that nonprofit organization, unless the nonprofit organization has a board of directors or trustees appointed in whole or in part by the city council.

(d) With the exception of those proceedings allowed under section 2-103 of this code of conduct, no council member shall personally appear in his own behalf before the city council, any city board, commission, or committee but may designate and be represented by a person of his choice in any such personal matter.
(Ord. No. 90-2-19, § I, 2-12-90; Ord. No. 91-4-37, § I, 4-22-91; Ord. No. 96-11-24, § IV, 11-25-96)

Sec. 2-100. Training.

All officials of the City of Plano elected or appointed to any city board or commission, shall receive training as to the provisions of the city code of conduct, and as to state ethics, conflicts of interest, open meetings, and public information laws, and as to discrimination and harassment free workplace and diversity. The city attorney or his/her designee shall conduct the training annually either by video or live presentation. The training shall be required within sixty (60) days following their initial election or appointment and shall not be required for any subsequent re-election or re-appointment unless the official is elected or appointed to serve on a different board or commission than the one for which they originally received training. All elected or appointed officials serving on any city board and commissions on November 1, 2020 shall complete discrimination and harassment free workplace and diversity training on or before February 1, 2021. Upon completion of training required by this provision, the official shall file a certificate of completion with the city secretary.
(Ord. No. 97-3-18, § I, 3-17-97; Ord. No. 98-10-18, § II, 10-26-98; Ord. No. 2020-7-4, § I, 7-27-20)

Editor's note—Ord. No. 97-3-18, § I, adopted March 17, 1997, added a new § 2-100 to the Code, and § II of the ordinance renumbered former §§ 2-100-2-104 as §§ 2-101—2-105. In addition, § III of Ord. No. 97-3-18 amended former § 2-103 (now § 2-104), and § IV of the ordinance repealed former § 2-105 of the Code, which pertained to complaints against officers other than council members; procedures and derived from Ord. No. 90-2-19, § I, adopted Feb. 12, 1990; and Ord. No. 91-4-37, § I, adopted April 22, 1991.

Sec. 2-101. Disclosure of interest.

Any officer or employee, whether elected, appointed or hired, who has a prohibited financial interest in any matter pending before the city shall disclose such interest to other members of the city council, committee, commission or board of which he is a member or, in the case of an employee, to his supervisor and shall refrain from further discussion of the matter; shall not be physically present when the subject is discussed in executive session; and shall not vote on or participate further therein in any manner.
(Ord. No. 90-2-19, § I, 2-12-90; Ord. No. 91-4-37, § I, 4-22-91; Ord. No. 97-3-18, § II, 3-17-97)

Note—See the editor's note following § 2-100.

Sec. 2-102. Disclosure of real property interest.

On or before January first and July first of each calendar year, every council member shall file in writing with the city secretary, on a disclosure form prepared and approved by the city, the existence and location of any real property in the City of Plano in which the council member has any financial interest, including any interest of one (1) percent or more in any entity which has a financial interest in any real property in the City of Plano. Said disclosure shall also include the identity and location of all real property within the City of Plano in which the council member has acquired or conveyed any interest since the filing of the last similar report

required by this section. If a council member has an interest in an entity that will not disclose to the council member whether or not the entity has a financial interest

in real property in the City of Plano, the council member may satisfy his disclosure requirement under this section by stating such fact in writing to the city secretary.
(Ord. No. 90-2-19, § I, 2-12-90; Ord. No. 91-4-37, § I, 4-22-91; Ord. No. 97-3-18, § II, 3-17-97)

Note—See the editor's note following § 2-100.

Sec. 2-103. Contracts with the city; no prohibited interest.

All contracts in excess of five thousand dollars ($5,000.00) entered into by any person, corporation or entity seeking to do business with the city shall include a provision indicating a legally authorized party acknowledges and represents that no person has or will have during the term of said contract any prohibited interest as defined in section 11.02 of the City Charter and that the existence of a prohibited interest at any time during the term of said contract will render the contract voidable.
(Ord. No. 90-2-19, § I, 2-12-90; Ord. No. 91-4-37, § I, 4-22-91; Ord. No. 96-11-24, § V, 11-25-96; Ord. No. 97-3-18, § II, 3-17-97; Ord. No. 2020-2-2, § I, 2-10-20)

Note—See the editor's note following § 2-100.

Sec. 2-104. Complaints against council members and other officers; procedures.

(a) To improve the understanding of the code of conduct and related laws applicable to public officials and employees, persons may ask the city attorney questions regarding those provisions.

(b) All complaints or allegations of a violation of this code of conduct against a council member or other officer shall be made in writing, sworn to before a notary public, and filed of record with the city attorney. Such complaint shall describe in detail the act or acts complained of and the specific section(s) of this code of conduct alleged to have been violated. As determined by the city attorney, a general complaint lacking in detail shall not be sufficient to invoke the investigation procedures contained herein, and anonymous complaints shall not be considered.

(c) Within one (1) business day after receipt, the city attorney shall notify the mayor and the implicated official of the existence and nature of the complaint. If the mayor is not available or is implicated, the notification shall be in order of successor of duties.

(d) Within three (3) business days after notification by the city attorney, the mayor or mayor pro tem shall schedule a special called meeting of the city council to consider the complaint in executive session. At such meeting, the city attorney shall present a written report to the council describing in detail the nature of the complaint and his/her findings and conclusions as to a possible violation of this code. The non-implicated council members in attendance shall then review the complaint and either reject the complaint or invoke an investigation. In the event the council decides to reject the complaint, the vote to reject the complaint shall be taken in open session without further investigation. In the event the council decides to invoke an investigation, the city attorney shall select and appoint an independent private attorney to fully investigate the alleged improprieties. Said attorney shall be selected from a list of four (4) attorneys appointed by the city council prior to such meeting. Two (2) attorneys shall be appointed by the city council prior to January 15 of each even-numbered calendar year. Two (2) attorneys shall be appointed by the city council prior to January 15 of each odd-numbered year. Said attorney shall have all of the powers of investigation as is given to the city council by reason of section 3.13 of the Charter of the city. The investigating attorney shall report back to the council in writing within ten (10) business days from his/her appointment, unless an extension is granted by a majority of the non-implicated council members. Such report shall be comprehensive and explain in detail all facts, findings, and conclusions in support of the attorney's opinion as to whether or not a violation of this code of conduct occurred.

(e) The council shall consider the findings of the investigating attorney's report at the meeting in which it is presented, at which time the person(s) accused shall have the right to a full and complete hearing with the opportunity to call witnesses and present evidence on his/her

behalf. The final action, decision, or vote of the council with regard to the complaint shall be taken or made only in a meeting that is open to the public.
(Ord. No. 90-2-19, § I, 2-12-90; Ord. No. 91-4-37, § I, 4-22-91; Ord. No. 97-3-18, §§ II, III, 3-17-97)
Note—See the editor's note following § 2-100.

Sec. 2-105. Violations by council members.

The failure of any city council member to comply with or who violates one (1) or more of the standards of conduct in this article which apply to him shall constitute grounds for reprimand. Such reprimand shall require a two-thirds vote of the eligible council members. Offenses committed in violation of the City Charter shall be punished in accordance with the terms of the City Charter, as amended.
(Ord. No. 90-2-19, § I, 2-12-90; Ord. No. 91-4-37, § I, 4-22-91; Ord. No. 97-3-18, § II, 3-17-97)
Note—See the editor's note following § 2-100.

Sec. 2-106. Violations by officers and employees.

(a) The failure of an officer to comply with or who violates one (1) or more of the standards of conduct in this code of conduct shall constitute grounds for expulsion, reprimand or removal from office to the extent allowed by the law.

(b) In the case of any employee of the city, disciplinary action and appeals therefrom shall be in conformance with procedures established by the City Charter and personnel rules and regulations.
(Ord. No. 90-2-19, § I, 2-12-90; Ord. No. 91-4-37, § I, 4-22-91)

Sec. 2-107. Appearance by past officer or employee.

(a) No past city council member shall appear before the city council or any board or commission and represent any interest on any matter whatsoever for a period of ninety (90) days after the date of termination of such relationship with the city. No past city council member shall appear before the city council or any board or commission and represent any interest on any matter which was pending in the city during his service for a period of one (1) year after the date of termination of such relationship with the city.

(b) No past officer of the city other than a council member shall appear before any board or commission on which he has previously served or shall represent any interest on any matter which was pending before that board or commission during his service for a period of one (1) year after the date of termination of such relationship with the city.

(c) No past employee shall appear before any board or commission or shall represent any interest on any matter which was considered or pending before said employee or the department in which he worked for a period of one (1) year after the date of termination of such relationship with the city.

(d) Subsection (c) above is intended to preclude a former employee from representing themselves or others before city council, a board or commission for matters requiring a decision, action or request for relief on matters that were worked on by the employee or pending in the department in which he worked. Subsection (c) does not preclude a former employee in any way from contracting with the city for goods or services on terms and conditions the city deems appropriate.
(Ord. No. 90-2-19, § I, 2-12-90; Ord. No. 91-4-37, § I, 4-22-91; Ord. No. 2006-1-8, § I, 1-9-06)

Sec. 2-108. Adoption of state statute.

Section 171.001 et seq., of the Local Government Code of the State of Texas, as amended, being the statute which regulates conflicts of interest of officers of municipalities in the State of Texas, is hereby adopted and made a part of this code of conduct for all purposes, with the proviso that, in the case of a conflict between the provisions of this code of conduct and the state statute, then in that event the more restrictive provision shall govern.
(Ord. No. 90-2-19, § I, 2-12-90; Ord. No. 91-4-37, § I, 4-22-91)

Sec. 2-109. Campaign contribution recusal requirement for city council members.

The acceptance of a campaign contribution in excess of one thousand dollars ($1,000.00) by any

city council member(s) shall create a conflict of interest based on an appearance of impropriety with regard to any matter that would materially benefit a campaign contributor or any business entity in which said campaign contributor has a substantial interest. Campaign contributions shall include loans, offsets to expenditures, and in-kind donations. For purposes of this section, a substantial interest in a business entity shall have the same meaning for campaign contributors as set out in V.T.C.A. Local Government Code, § 171.002 for local public officials. It shall be the responsibility of the campaign contributor, and not the city council member, to identify their substantial business interests impacted by this section.

Should a conflict of interest arise under this section, the impacted member(s) of city council should recuse themselves, state the grounds for the conflict of interest on the record by filing an affidavit with the city secretary, withdraw from debate on the issue, and abstain from the vote on the matter. The recusal requirement applies only to contributions made to the city council member for their current elected position and not to any prior elected positions held.

In the event a quorum cannot be obtained because of recusals pursuant to this section, abstention is not required and the impacted members of city council may vote as long as the nature of the conflict of interest is fully disclosed on the record.

The complaint, investigation and violation provisions in sections 2-104, 2-105 and 2-106 of the City Code do not apply to the requirements in the herein section.
(Ord. No. 2020-12-1, § I, 12-8-20)

Secs. 2-110—2-115. Reserved.

ARTICLE V. RECORDS MANAGEMENT PROGRAM*

DIVISION 1. GENERALLY

Sec. 2-116. Title; purpose.

This article shall be known and may be cited as the "Records Management Program of the City of Plano, Texas," providing for the proper and efficient management of the municipal records of the City of Plano, Texas.
(Ord. No. 87-2-5, § IB, 2-9-87)

Sec. 2-117. Definitions.

[For purposes of this article, the following definitions shall apply, unless the context clearly indicates otherwise:]

Active records: Those records in current use which must be retained in offices because frequent reference is necessary in the conduct of day-to-day operations.

Inactive records: Those records which are seldom referred to, but which must be retained, temporarily or permanently, because of legal, fiscal, administrative, or archival value.

Municipal records: All records, whether of public or private origin, housed and administered by the City of Plano, Texas.

Nonrecords: All material not usually included within the definition of records, such as unofficial copies of documents that are kept only for convenience or reference, stocks of publications and processed documents, and library or museum material intended solely for reference or exhibition.

Original public records: That portion of all documents, writings, letters, memoranda, or other written, printed, typed, copied, or developed materials which contains public information, pursuant to article 6252-17a of Vernon's Annotated Revised Civil Statutes of the State of Texas.

Public information: All information collected, assembled, or maintained by the city pursuant to law or ordinance or in connection with the transaction of official business, with exceptions as defined in article 6252-17a of Vernon's Annotated Revised Civil Statutes of the State of Texas.

Records: All books, papers, maps, photographs, machine-readable materials, or other documentary materials, regardless of physical form or characteristics, generated or received by a department of the city under local ordinance or in connection with the transaction of public business, and preserved for any period of time by that department as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of this municipal government, or because of the informational value of data in them.

Records management program: A formulated plan to establish a city-wide system that achieves integrated control of all departmental subsystems so that an orderly and efficient flow of paperwork is provided from creation to ultimate disposition.

Records series: Records accumulated over a period of time and arranged in an organized file or set of files which can be described, handled, and disposed of as a unit. A records series may consist of records of a single type or format, or of records kept together because they relate to a particular subject or result from one activity. Example: Accounts payable, ordinances, or resolutions.
(Ord. No. 87-2-5, § IC, 2-9-87)

Sec. 2-118. Establishment and administration of the records management program.

The records manager of the city is hereby designated as the records management officer for the city and is authorized to establish and administer the records management program for the City of Plano, Texas, pursuant to legal, fiscal, administrative and archival requirements as authorized by state and federal statutes. To this end, the records manager will implement, but not be

*__Editor's note—__Ord. No. 87-2-5, § VI, adopted Feb. 9, 1987, repealed Ord. No. 83-8-18, adopted Aug. 22, 1983, from which Art. V, §§ 2-116—2-122, concerning micrographics of municipal records, had derived. Sections I—V of Ord. No. 87-2-5 have been included as a new Art. V at the editor's discretion.

State law reference—Microfilming and retention of public records by incorporated cities, Vernon's Ann. Civ. St., art. 6574c.

limited to, a program to encompass such areas of records management as are required to preserve and keep all documents, papers, letters, books, maps, photographs, sound or video recordings, microfilm, magnetic tape, electronic media, or other information recording media, regardless of physical form or characteristic and regardless of whether public access to it is open or restricted under the laws of the state, created or received by the city or any of its officers or employees pursuant to law or in the transaction of public business are hereby declared to be the records of the city to achieve the following goals:

(1) Release space and reduce the need for storage and filing equipment;

(2) Establish an efficient retrieval operation for both active and inactive municipal records;

(3) Provide for routine disposition;

(4) Maintain total security over municipal records stored in the records centers; and

(5) Communicate the need for an effective records management program.

(Ord. No. 87-2-5, § IA, 2-9-87; Ord. No. 89-10-10, § I, 10-11-89; Ord. No. 93-3-15, § II, 3-15-93)

Sec. 2-119. Responsibilities of the records management department.

The records management department will have responsibility for all areas of records management, including:

(1) Development and circulation of the applicable rules, regulations, and policies necessary for the proper implementation and maintenance of the city's records management program;

(2) Provision and maintenance of the municipal records center to store and preserve inactive records prior to disposition;

(3) Development of a retention and disposition schedule for all municipal records;

(4) Consultation and assistance to city departments in all areas of records management, including active records maintenance, transfer, and disposition;

(5) Provision of a microfilm program for the centralization of a microfilming operation;

(6) Implementation of decentralized electronic record storage systems that comply with all federal and state laws; and

(7) Development and institution of a vital records program to ensure the safety of essential records in the event of a disaster.

(Ord. No. 87-2-5, § ID, 2-9-87; Ord. No. 2003-4-15, §§ I, II, 4-14-03)

Sec. 2-120. Ownership of municipal records and responsibilities of officers and employees.

(a) All records created or received by a department shall remain the property of the City of Plano, Texas. The department is the legal custodian of its records; except that the department shall relinquish legal custody of those records given to the Plano municipal records center. The records management department is the physical custodian of all records transferred to the municipal records center.

(b) It shall be the duty of each officer and employee of the city to protect, preserve, store, and/or transfer municipal records in accordance with state and federal statutes, this municipal government's Charter and ordinances, or rules promulgated and approved by the records management department.

(Ord. No. 87-2-5, § II, 2-9-87)

Secs. 2-121—2-125. Reserved.

DIVISION 2. MICROFILMING AND ELECTRONIC STORAGE OF MUNICIPAL RECORDS

Sec. 2-126. Authority and record standards and procedures.

(a) *Microfilming.* The Local Government Code provides for the maintenance of local governmental records on microfilm in addition to or instead of paper or other media.

(1) The city's microfilming program will comply with Chapter 204 of the Local Govern-

ment Code, and adhere to the standards and procedures set by the Texas State Library and Archives Commission.

(2) The record's management department will provide a microfilming program that produces accurate and authentic copies of municipal records on microfilm.

(3) City departments may contract with private firms for microfilm services that meet the standards set by the Texas State Library and Archives Commission.

(b) *Electronic record storage.* The Local Government Code provides for the electronic storage of local governmental records in addition to or instead of source documents in paper or other media. The city's electronic storage program will comply with Chapter 205 of the Local Government Code, and adhere to the standards and procedures set by the Texas State Library and Archives Commission.
(Ord. No. 87-2-5, § III(A—C), 2-9-87; Ord. No. 2003-4-15, §§ I, II, 4-14-03)

Sec. 2-127. Definitions.

In this division:

Electronic storage means the maintenance of public information in the form of digital electronic signals on a computer hard disk, magnetic tape, optical disk, or similar machine-readable medium.

Index means the list describing public information and its location in a collection of records-essentially, a catalog, electronic pointing devices, file locators, etc.

Microfilm means roll microfilm, microfiche, and all other formats produced by any method of microphotography or other means of miniaturization on film.

Microfilming means the methods, procedures, and processes used to produce roll microfilm, microfiche, or other micro photographic formats.

Source document or *"copy of record"* means the original public information record from which a microfilm or an electronic record is made.
(Ord. No. 87-2-5, § IIID, 2-9-87; Ord. No. 2003-4-15, §§ I, II, 4-14-03)

Sec. 2-128. Types of records subject to microfilming or electronic storage; indices.

(a) The records management officer may use either microfilming or electronic storage for any municipal record of the City of Plano, Texas, including but not limited to ordinances, resolutions, contracts, deeds, conveyances, minutes, notices, correspondence, memoranda, any writing or communication, or any record of any department of the city, including police records.

(b) The records management department will index or assist with indexing all microfilm and electronic records for ready retrieval of documents.
(Ord. No. 87-2-5, § III(E, F), 2-9-87; Ord. No. 2003-4-15, §§ I, II, 4-14-03)

Sec. 2-129. Certification of microfilm records.

(a) A microfilmed record created in compliance with Chapter 204 of the Local Government Code, and the rules adopted under it, is an original record that is acceptable to any court or administrative agency of this state.

(b) If issued and certified by the records management officer, a copy on paper or film of a microfilmed record is a certified copy of an original record.
(Ord. No. 87-2-5, § IIIG, 2-9-87; Ord. No. 2003-4-15, §§ I, II, 4-14-03)

Sec. 2-130. Certification of electronically stored documents.

The records management officer may issue and certify a copy on paper of an electronically stored record if:

(1) After transferring the original record to electronic storage, the electronic record was not altered in any manner, or an audit trail of alterations is present and exists.

(2) The records management officer verified that the electronic record was a true and correct copy of the original.
(Ord. No. 87-2-5, § IIIH, 2-9-87; Ord. No. 2003-4-15, §§ I, II, 4-14-03)

Sec. 2-131. Public access to microfilm and electronic records.

The storage of public information stored on microfilm or in electronic format shall not impede access by the public, unless excepted from public disclosure by law.
(Ord. No. 87-2-5, § III I, 2-9-87; Ord. No. 2003-4-15, §§ I, II, 4-14-03)

Sec. 2-132. Destruction of original municipal public records after microfilming or electronically storing.

(a) *Microfilm.* The records management officer, when filming original public records will:

(1) Certify that the microfilm of the document meets the standards and rules required by the Texas Library and Archives Commission;

(2) Determine whether the department wants the original source record destroyed; and

(3) If the original source record is a permanent record, request destruction authorization from the Texas Library and Archive Commission, which can either approve the destruction or require transfer of the original source record to the custody of the commission; or

(4) If the original source record is not a permanent record, approve destruction of the document.

(b) *Electronic storage.* After electronically storing an original public record, the records management officer will:

(1) Determine whether the department wants the original source record destroyed; and

(2) Either approve destruction of the record or return the record to the person who filed it.

(c) If an original public record is the subject of litigation or a request under Chapter 552 of the Government Code, the record may not be destroyed until litigation is satisfied or the request is resolved.

(d) The records management officer may order destruction of original public records in compliance with Section 203 of the Texas Local Government Code without notice to the director or librarian of the Texas Library and Archives Commission if both the record is listed and the destruction complies with the records control schedule approved by the commission.

(e) The records management officer may order destruction of microfilmed or electronically stored records at the conclusion of their retention period listed on the approved record control schedule.
(Ord. No. 87-2-5, § IV, 2-9-87; Ord. No. 2003-4-15, §§ I, II, 4-14-03)

State law reference—Destruction of original records, notice, transfer to state library, Vernon's Ann. Civ. St., art. 6574c, § 3.

Sec. 2-133. Destruction of all other municipal records.

(a) Municipal records other than those records defined in this article as original public records may be disposed of upon approval of the head of the department maintaining custody and control of the records to be destroyed.

(b) A notice of proposed destruction or disposition of all nonpublic municipal records, including records series titles, descriptions, inclusive dates, and volumes, shall first be given to the records management department for permanent keeping.
(Ord. No. 87-2-5, § V, 2-9-87)

Secs. 2-134, 2-135. Reserved.

ARTICLE VI. EMERGENCY MANAGEMENT*

Sec. 2-136. Comprehensive emergency management plan.

The 2022 Comprehensive Emergency Management Plan, which provides for disaster mitigation, preparedness, response, and recovery and the means for its implementation, which is on file in the city secretary's office and incorporated by reference, is hereby adopted as the Comprehensive Emergency Management Plan for the city.
(Ord. No. 2004-11-4, § I, 11-8-04; Ord. No. 2012-12-13, § I, 12-18-12; Ord. No. 2018-11-2, § I, 11-12-18; Ord. No. 2022-9-14, § I, 9-20-22)

Sec. 2-137. Reserved.

Editor's note—Ord. No. 2010-6-21, § I, adopted June 28, 2010, repealed the former section 2-137 in its entirety, which pertained to the emergency management director; appointment of emergency management coordinator; responsibilities, and derived from Ord. No. 2004-11-4, § I, adopted November 8, 2004.

Sec. 2-138. Effect on other ordinances, rules, regulations, and orders.

All orders, rules, and regulations promulgated under the Comprehensive Emergency Management Plan and this article shall supersede and override all and any inconsistent provisions in existing ordinances, rules, regulations, or orders during the period the comprehensive emergency management plan is in effect.
(Ord. No. 2004-11-4, § I, 11-8-04)

*__Editor's note—__Ord. No. 2004-11-4, § I, adopted 11-8-04 repealed art. VI, §§ 2-136—2-155, in its entirety. Section I of said ordinance further provided for the inclusion of a new art. VI to read as herein set out. Formerly, said article pertained to similar subject matter as enacted by Ord. No. 97-2-20, § I, adopted Feb. 24, 1997; as amended. See the Code Comparative Table for a detailed analysis of inclusion.

Charter reference—Plans for areas destroyed by disaster, § 3.07(j).

Cross references—Emergency services, Ch. 7.5; mutual aid disaster agreements, § 8-4; hazardous material spills, § 14-106 et seq.

State law references—Disasters, Vernon's Ann. Civ. St., art. 6889-7; interstate civil defense and disaster compact, Vernon's Ann. Civ. St. art. 6889-5.

Sec. 2-139. Reserved.

Editor's note—Ord. No. 2010-6-21, § I, adopted June 28, 2010, repealed the former section 2-139 in its entirety, which pertained to operation of warning devices, and derived from Ord. No. 2004-11-4, § I, adopted November 8, 2004.

Sec. 2-140. Immunity preserved.

The city and its officials, employees, contractors and volunteers retain all immunity provided by law for the exercise of their duties under the Comprehensive Emergency Management Plan, this article and other law.
(Ord. No. 2004-11-4, § I, 11-8-04)

Sec. 2-141. Violation of a rule, offense, or order adopted under the comprehensive emergency management plan.

Any violation by any person, firm, or corporation of the provisions or terms of an emergency executive order or proclamation issued under the "Authorities and References" or "Emergency Authorities" sections of the Comprehensive Emergency Management Plan shall be a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(b) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.
(Ord. No. 2012-12-13, § I, 12-18-12)

Editor's note—Ord. No. 2012-12-13, § I, adopted December 18, 2012, repealed and reenacted section 2-141 in its entirety to read as herein set out. Formerly, section 2-141 pertained to violation of comprehensive emergency management plan or this article, and derived from Ord. No. 2004-11-4, § I, adopted November 8, 2004.

Secs. 2-142—2-155. Reserved.

ARTICLE VII. COMMUNITY RELATIONS COMMISSION*

Sec. 2-156. Established; composition; appointment of members.

(a) There is hereby established a "community relations commission" which shall consist of nine (9) regular members. Members will be appointed by the city council, broadly representative of the racial, religious, ethnic, professional, business groups, physically handicapped, and representatives from various economic strata and educational levels in the community. Priority shall be given to applicants residing within the Concerted Revitalization Plan (CRP) area, as such may be amended, for at least two (2) seats on the commission. Additionally, priority shall be given to applicants who are actively involved in Americans with Disability Act ("ADA") compliance concerns or with mental health issues for at least one (1) seat on the commission each.

(b) No employee of the city or the county shall be appointed as a regular member of this commission.

(c) All members of the commission are subject to removal in accordance to the city council's current policy with regard to required attendance at city board, commission, and committee meetings. In addition, the members of the commission may be removed at any time by the city council with or without cause.
(Ord. No. 98-1-3, § IV, 1-12-98; Ord. No. 2002-4-5, § I, 4-1-02; Ord. No. 2020-10-10, § I, 10-26-20; Ord. No. 2022-8-11, § I, 8-22-22)

*__Editor's note—__Ord. No. 98-1-3, § III, adopted Jan. 12, 1998, repealed provisions formerly codified as Art. VII of Ch. 2. Former Art. VII, §§ 2-156—2-163, pertained to the community relations commission and derived from Ord. No. 87-8-3, §§ II—VIII, adopted Aug. 10, 1987; Ord. No. 88-7-18, §§ I, II, adopted July 25, 1988; Ord. No. 89-5-19, §§ I, II, adopted May 22, 1989; Ord. No. 92-8-16, § I, adopted Aug. 10, 1992; and Ord. No. 97-10-32, § I, adopted Oct. 27, 1997. Section IV of Ord. No. 98-1-3 adopted new provisions as Art. VII to read as herein set out.

__State law reference—__Discrimination against persons because of race, religion, color, sex or national origin, Vernon's Ann. Civ. St., art. 6252-16.

__State constitution reference—__Equal rights, Art. I, § 3.

Sec. 2-157. Terms of office; compensation.

The term of office of each member of the community relations commission appointed on or after July 2003 shall be for two (2) years. All members shall serve without compensation.
(Ord. No. 98-1-3, § IV, 1-12-98; Ord. No. 2005-4-27, § I, 4-25-05; Ord. No. 2020-10-10, § I, 10-26-20)

Sec. 2-158. Officers; duties of secretary.

The chairman of the community relations commission shall be appointed by the city council. The city manager shall provide staff support as deemed necessary to carry out duties and responsibilities of the commission. The support duties shall include service as secretary to the commission, keeping minutes of the commission's meetings and furnishing of copies of said minutes to the mayor and city council.
(Ord. No. 98-1-3, § IV, 1-12-98; Ord. No. 2020-10-10, § I, 10-26-20)

Sec. 2-159. Meetings; quorum.

The commission shall meet on call as required to carry out duties and responsibilities as addressed in this article. The commission shall meet at least once every three (3) months to review pending business and make general recommendations to the city council regarding future agendas or items for review by the commission. Agendas shall consist of deliberations upon items as directed or previously approved by city council.

A majority of the regular membership of the commission shall constitute a quorum. A quorum must be present to convene a meeting and to take formal action as far as submitting recommendations to the city council.
(Ord. No. 98-1-3, § IV, 1-12-98; Ord. No. 2020-10-10, § I, 10-26-20)

Sec. 2-160. Duties and responsibilities.

The duties and responsibilities of the community relations commission shall be to serve as a hearing board to address significant issues as approved or directed by the city council. In cooperation with the mayor, city council, city manager, and all other city agencies, boards, and

officials related to any such problems, the community relations commission will review human/social needs and recommend funding allocations to the city council. The commission shall review and provide a recommendation to city council regarding four (4) percent and nine (9) percent housing tax credit resolution applications. Any such review shall be finalized by a report and recommendation to the city council. Unless prior approval is given by the council representative to the commission, all communications and representations regarding the duties, and responsibilities of the commission outside of the meeting of this commission shall be made by report and recommendation to the city council.
(Ord. No. 98-1-3, § IV, 1-12-98; Ord. No. 2020-10-10, § I, 10-26-20)

Sec. 2-161. Voting privileges; conflict of interest.

Each regular member of the commission, including the chairperson, shall have one (1) vote. No commissioner who is on the board of a nonprofit organization shall discuss, deliberate, or vote on the nonprofit organization's application request for funding and shall abstain on all matters relating thereto.
(Ord. No. 98-1-3, § IV, 1-12-98; Ord. No. 98-5-22, § I, 5-26-98; Ord. No. 2012-6-20, § I, 6-25-12; Ord. No. 2020-10-10, § I, 10-26-20)

Secs. 2-162—2-175. Reserved.

Editor's note—Ord. No. 2012-6-5, § I, adopted June 11, 2012, repealed the former section 2-162 in its entirety, which pertained to the liaison to multi-ethnic committee and derived from Ord. No. 98-1-3, § IV, adopted January 12, 1998.

ARTICLE VIII. RESERVED*

Secs. 2-176—2-200. Reserved.

ARTICLE IX. RESERVED†

Secs. 2-201—2-215. Reserved.

ARTICLE X. RESERVED‡

Secs. 2-216—2-230. Reserved.

ARTICLE XI. RESERVED**

Secs. 2-231—2-240. Reserved.

*__Editor's note—__Section I of Ord. No. 94-1-14, adopted Jan. 10, 1994, repealed Art. VIII in its entirety. Formerly, Art. VIII consisted of §§ 2-176—2-181, which pertained to sister cities board of directors and derived from §§ II—VIII of Ord. No. 92-6-27-A, adopted June 29, 1992.

†__Editor's note—__Ord. No. 2008-9-14, § III, adopted September 8, 2008, repealed article IX, §§ 2-201—2-208 in its entirety, which pertained to the transportation advisory committee, and derived from Ord. No. 98-3-8, § II, adopted March 16, 1998.

‡__Editor's note—__Ord. No. 2009-8-23, § I, adopted August 24, 2009, repealed the former article X, §§ 2-216—2-220 in its entirety, which pertained to the impact fee advisory committee, and derived from Ord. No. 89-12-14, §§ II—IV, adopted December 11, 1989.

**__Editor's note—__Ord. No. 2008-9-14, § II, adopted September 8, 2008, repealed article XI, §§ 2-231—2-235 in its entirety, which pertained to the Plano global advisory committee, and derived from Ord. No. 2007-6-10, § I, adopted June 11, 2007.

ARTICLE XII. SENIOR ADVISORY BOARD*

Sec. 2-241. Created; purpose.

A senior advisory board is herein created to generate broad-based public awareness of and support for senior citizens. This is to be accomplished through a membership of the community interested in senior issues. The board shall be advisory, evaluating current issues affecting senior citizens and bringing them to the attention of the city council or other boards, commissions, and agencies. The board shall not have responsibility or authority over public officials or employees of the city.
(Ord. No. 90-12-14, § I, 12-18-90; Ord. No. 2017-5-4, § IV, 5-8-17)

Sec. 2-242. Membership.

The senior advisory board shall consist of nine (9) members appointed by the city council. Terms of office are for a period of two (2) years, and shall expire on a staggered basis on October 31 of each year. Members currently serving on the board shall continue serving until their present terms expire. The membership shall include a cross-section of the community interested in senior issues.
(Ord. No. 90-12-14, § II, 12-18-90; Ord. No. 92-6-20, § IV, 6-22-92; Ord. No. 2002-4-4, § I, 4-1-02; Ord. No. 2004-10-6, § I, 10-11-04; Ord. No. 2017-5-4, § V, 5-8-17)

Sec. 2-243. Officers.

A chairperson shall be appointed by the city council from the membership for a one-year term. The board shall also have a vice chairperson elected by its members for a one-year term.
(Ord. No. 90-12-14, § III, 12-18-90; Ord. No. 2012-6-4, § III, 6-11-12)

Sec. 2-244. Meetings; quorum.

The board shall hold quarterly meetings and may meet more frequently as needed for the

*__Editor's Note—__Ordinance No. 90-12-14, adopted Dec. 18, 1990, did not specifically amend this Code. Sections I—VII of such ordinance have been codified herein as §§ 2-241—2-247 at the editor's discretion.

conduct of its business, and shall establish rules and regulations for the performance of its duties. A majority of board members shall constitute a quorum. A vote of the simple majority of the quorum shall be required for any action taken by the board.
(Ord. No. 90-12-14, § IV, 12-18-90; Ord. No. 92-6-20, § IV, 6-22-92; Ord. No. 2008-9-10, § III, 9-8-08)

Sec. 2-245. Removal of members; attendance.

All members of the board are subject to removal in accordance to the city council's current policy with regard to required attendance at city board, commission, and committee meetings. In addition, the members of the board may be removed at any time by the city council with or without cause.
(Ord. No. 90-12-14, § V, 12-18-90)

Sec. 2-246. Duties.

The board shall have the following duties:

(1) Advise the city council on issues of importance to seniors living in Plano.

(2) Submit recommendations to the city council on policies and programs within the traditional scope of the city council powers and responsibilities, which policies and program will be of benefit to seniors.

(3) Participate on behalf of the city on boards or commissions relating to the interests of seniors and to sponsor or cosponsor appropriate forums and programs on seniors issues and services.

(4) Raise the public awareness of seniors' needs and issues.

(Ord. No. 90-12-14, § VI, 12-18-90)

Sec. 2-247. Reports.

An annual report shall be presented by the board to inform the city council of the board's interaction, activities, and progress as related to its established purpose no later than June 30th of each year. Additional reports shall be submitted as requested by either the city council or the board.
(Ord. No. 90-12-14, § VII, 12-18-90)

Secs. 2-248—2-250. Reserved.

ARTICLE XIII. CULTURAL ARTS COMMISSION

Sec. 2-251. Created; purpose.

A cultural arts commission is herein created to be responsible for advising the city council on the distribution of city grants to various cultural arts organizations, agencies, or groups. The commission shall be advisory, evaluating and prioritizing the manner in which various cultural arts organizations, agencies or groups are to receive city funds. The commission shall not have responsibility or authority over public officials or employees of the city.

No commissioner who is on the board of a nonprofit organization shall discuss, deliberate or vote on the nonprofit organization's application request for funding and shall abstain on all matters relating thereto.
(Ord. No. 91-2-9, § I, 2-11-91; Ord. No. 2002-4-6, § I, 4-1-02; Ord. No. 2012-6-18, § I, 6-25-12; Ord. No. 2021-8-12, § II, 8-23-21)

Sec. 2-252. Membership.

The cultural arts commission shall consist of seven (7) members appointed by the city council. Terms of office are for a period of two (2) years, and shall expire on a staggered basis on October 31 of each year. Members currently serving on the commission shall continue serving on the commission until their present terms expire. The membership shall include a cross-section of the community interested in the various cultural arts available in the city. The city council will fill any and all vacancies on the commission.
(Ord. No. 91-2-9, § II, 2-11-91; Ord. No. 92-6-20, § II, 6-22-92; Ord. No. 2002-4-6, § I, 4-1-02; Ord. No. 2021-8-12, § III, 8-23-21)

Sec. 2-253. Officers.

A chairperson shall be appointed by the city council from the membership for a one-year term. The board shall also have a vice chairperson elected by its members for a one-year term.
(Ord. No. 91-2-9, § III, 2-11-91; Ord. No. 2012-6-18, § I, 6-25-12)

Sec. 2-254. Meetings; quorum.

Meetings for the cultural arts commission will be called as needed by the chairperson or vice chairperson of the commission. A majority of commission members shall constitute a quorum. A vote of the simple majority of the quorum shall be required for any action taken by the commission.
(Ord. No. 91-2-9, § IV, 2-11-91; Ord. No. 92-6-20, § II, 6-22-92; Ord. No. 2021-8-12, § IV, 8-23-21)

Sec. 2-255. Removal of members; attendance.

All members of the commission are subject to removal in accordance to the city council's current policy with regard to required attendance at city board, commission, and committee meetings. In addition, the members of the commission may be removed at any time by the city council with or without cause.
(Ord. No. 91-2-9, § V, 2-11-91)

Sec. 2-256. Duties.

The commission shall have the following duties:

(1) Receive grants applications for area cultural arts.

(2) Review grants applications and make recommendations to the city council as to the following:

a. Grants to be awarded.

b. A list of unfunded requests in priority order.

(3) Perform other duties as assigned by the city council.

(Ord. No. 91-2-9, § VI, 2-11-91; Ord. No. 96-8-23, § I, 8-26-96; Ord. No. 2002-4-6, § I, 4-1-02; Ord. No. 2021-8-12, § V, 8-23-21)

Sec. 2-257. Reports.

A report shall be presented to the city council not later than August 1st of each year. This report shall describe each of the two (2) recommendations mentioned in subsection 2-256(2). In addition, it shall describe the commission interaction, activities, and progress as related to its established purpose. Additional reports shall be submitted as requested by the city council.
(Ord. No. 91-2-9, § VII, 2-11-91; Ord. No. 2012-6-18, § I, 6-25-12)

Secs. 2-258—2-260. Reserved.

ARTICLE XIV. RESERVED*

Secs. 2-261—2-280. Reserved.

ARTICLE XV. COMMUNITY SUBSTANCE ABUSE PREVENTION ADVISORY COMMITTEE†

Sec. 2-281. Purpose.

A community substance abuse prevention advisory committee (previously the ad hoc community substance abuse task force) is hereby created as a jointly sponsored subject of the City of Plano, Plano Independent School District, and Plano Chamber of Commerce. This committee is charged to communicate awareness to the citizens of Plano regarding drug and substance abuse problems and to coordinate review of programs and services to reduce the incidences of substance abuse and related crime in the community. This is to be accomplished through membership

*__Editor's note—__Ord. No. 98-1-3, §§ I, II, adopted Jan. 12, 1998, repealed provisions formerly codified as Art. XIV of Ch. 2. Former Art. VII, §§ 2-261—2-267, pertained to the community services commission and derived from Ord. No. 91-2-11, §§ I—VII, adopted Feb. 11, 1991; Ord. No. 91-3-25, § I, adopted March 25, 1991; Ord. No. 92-6-20, § I, adopted June 22, 1992; and Ord. No. 96-8-22, § I, adopted Aug. 26, 1996.

†__Editor's note—__Ord. No. 90-11-8, §§ I—VI, adopted November 12, 1990, did not specifically amend the Code; therefore, inclusion as Art. XV, §§ 2-281—2-286, was at the discretion of the editor.

representative of the three (3) sponsoring entities. The committee is to act in an educational, informational, and advisory capacity.
(Ord. No. 90-11-8, § I, 11-12-90)

Sec. 2-282. Membership.

The community substance abuse prevention advisory committee shall consist of nine (9) members appointed as follows:

One (1) Plano City Council member appointed by the mayor and approved by the city council.

One (1) Plano Independent School District board of education member appointed by the president of the board and approved by the remainder of the board. Term shall be determined by the board.

One (1) board member of the Plano Chamber of Commerce appointed by the chairman of the board. Term shall be determined by the board.

Two (2) community members appointed by the Plano City Council upon a recommendation of the executive committee as comprised under section 2-283. Terms of office for the members appointed by the Plano City Council shall be staggered and for a period of two (2) years, to expire on June 30 of each year.

Two (2) community members appointed by the Plano Independent School District Board upon a recommendation of the executive committee as comprised under section 2-283.

Two (2) community members appointed by the Plano Chamber of Commerce board of directors upon a recommendation of the executive committee as comprised under section 2-283.

Membership shall include a cross-section of the community affected by and interested in substance abuse prevention. The committee may establish advisory committees or other ad hoc groups to address specific projects or conduct appropriate review of activities as determined by the committee. These advisory or ad hoc appointments shall be made by the three-member executive committee representing the City of Plano, Plano Independent School District, and Plano Chamber of Commerce.
(Ord. No. 90-11-8, § II, 11-12-90; Ord. No. 92-7-29, § I, 7-27-92)

Sec. 2-283. Officers.

A chairperson shall be selected from among the appointed officials from either the Plano City Council, Plano Independent School District board, or the Plano Chamber of Commerce board. The committee shall also have a vice-chairperson selected from the same group. These selections shall be by mutual agreement of the three (3) officials so appointed. The three (3) appointed members from Plano City Council, Plano Independent School District board and Plano Chamber of Commerce Board shall comprise the executive committee.

The chief of police of the City of Plano, or his designee, will serve as the ex officio secretary for the committee in a non-voting capacity. Additional staff support for functions of the committee will be provided by appropriate staff from the Plano Independent School District and Plano Chamber of Commerce.
(Ord. No. 90-11-8, § III, 11-12-90)

Sec. 2-284. Meetings.

The committee shall hold meetings as required for the conduct of its business. Meetings shall be called by the chairperson or vice-chairperson. A quorum is fifty (50) percent of the full membership of the committee, with the majority of members present required for voting. The committee may establish other rules and regulations as may be necessary for the performance of its duties.
(Ord. No. 90-11-8, § IV, 11-12-90)

Sec. 2-285. Removal.

The members of the committee shall be subject to removal consistent to rules or procedures of the appointing entity.
(Ord. No. 90-11-8, § V, 11-12-90)

Sec. 2-286. Duties.

The committee shall have the following duties:

(1) Generate community awareness of and support for substance abuse prevention through information and educational activities.

(2) Serve as a forum for public/private sector input on substance abuse prevention issues.

(3) Submit recommendations to the sponsoring entities on matters relating to substance abuse prevention in general.

(4) Establish special committees or ad hoc groups as appropriate to address pending issues/projects or recommendations of the committee.

(Ord. No. 90-11-8, § VI, 11-12-90)

Secs. 2-287—2-300. Reserved.

ARTICLE XVI. RESERVED*

Secs. 2-301—2-310. Reserved.

ARTICLE XVII. BOARD AND COMMISSION REVIEW COMMITTEE†

Sec. 2-311. Created.

A board and commission review committee is hereby created to make recommendations to the City Council of the City of Plano as to the advisability of abolition, continuation or reorganization of boards and commissions of the city. The committee shall by advisory in nature and shall not have responsibility or authority over any board or commission of the city.

(Ord. No. 2003-3-9, § II, 3-24-03)

*__Editor's note—__Ord. No. 2015-9-18, § I, adopted September 28, 2015, repealed the former article XVI, §§ 2-301—2-304 in its entirety, which pertained to the self-sufficiency committee, and derived from Ord. No. 92-6-17, §§ I—IV, adopted June 22, 1992; Ord. No. 93-2-32, § I, adopted March 22, 1993; Ord. No. 95-11-8, § I, adopted November 6, 1995; Ord. No. 2000-11-7, § I, adopted November 6, 2000; Ord. No. 2005-4-26, § I, adopted April 25, 2005, and Ord. No. 2007-3-9, § I, adopted March 20, 2007.

†__Editor's note—__Ord. No. 2003-3-9, § I, repealed art. XVII, §§ 2-311—2-316, in its entirety. Former art. XVII pertained to the sunset advisory commission as enacted by Ord. No. 92-10-36, §§ I—VI, adopted Oct. 26, 1992. Section II of Ord. No. 2003-3-9 provided for the enactment of a new art. XVII, §§ 2-311—2-314 to read as herein set out. See the Code Comparative Table.

Sec. 2-312. Terms of office.

The board and commission review committee shall consist of two (2) council members to be appointed by the mayor.
(Ord. No. 2003-3-9, § II, 3-24-03)

Sec. 2-313. Duties and responsibilities.

The committee shall have the following duties and responsibilities:

(1) Prepare and keep current a list of all existing boards and commissions of the city. The committee shall prioritize and set a review schedule of such boards and commissions utilizing input from city council board and commission liaisons. All boards and commissions shall be reviewed at least every five (5) years.

(2) The committee shall review and conduct a performance evaluation of those boards and commissions on the review schedule.

(3) Present a follow-up report to the city council of the committee's recommendations as to whether the reviewed boards and commissions should be abolished, continued or reorganized.

(4) Monitor implementation of prior city council approved recommendations and actions.

(Ord. No. 2003-3-9, § II, 3-24-03; Ord. No. 2011-3-19, § I, 3-28-11)

Sec. 2-314. Criteria.

The committee shall consider the following criteria in determining whether a public need exists for the abolition, continuation or reorganization of a city board or commission:

(1) The efficiency with which the board or commission operates;

(2) Identification of the objectives intended for the board or commission and the problem or need that the board or commission was intended to address, the extent to which the objectives have been achieved, and any activities of the board or commission in addition to those assigned;

(3) Assessment of alternative methods of performing the duties and responsibilities that the board or commission performs that would benefit the city and the public;

(4) The extent to which the board or commission is needed and is used;

(5) The extent to which the jurisdiction of the board or commission and its duties and responsibilities overlap or duplicate those of another board or commission, and the extent to which the programs administered can be consolidated with the programs of other boards or commissions;

(6) Whether the board or commission has recommended or advised the city council of changes or actions calculated to be of benefit to the city and its citizens;

(7) The extent to which the agency has encouraged participation by the public in its activities and the extent to which the public participation has resulted in achieving the goals and objectives of the board or commission;

(8) The extent to which the board or commission complies with the Texas Public Information Act, Texas Open Meetings Act and other applicable state and federal law;

(9) The loss of federal or state funds or grants if the board or commission is abolished.

(Ord. No. 2003-3-9, § II, 3-24-03)

Secs. 2-315—2-320. Reserved.

ARTICLE XVIII. RESERVED*

Secs. 2-321—2-334. Reserved.

*__Editor's note—__Ord. No. 2009-4-18, § I, adopted April 27, 2009, repealed the former article XVIII, §§ 2-321—2-328 in its entirety, which pertained to the youth advisory commission, and derived from Ord. No. 93-7-20, §§ I—VIII, adopted July 26, 1993; Ord. No. 95-8-11, § I, adopted August 14, 1995; Ord. No. 98-5-28, § I, adopted May 26, 1998, and Ord. No. 2005-10-34, § I, adopted October 24, 2005.

ARTICLE XIX. ANIMAL SHELTER ADVISORY COMMITTEE*

Sec. 2-335. Created; purpose.

An animal shelter advisory committee is hereby created to assist the city and its environmental health department in communicating awareness to the citizens of Plano regarding the services, procedures, and compliance with state regulations concerning the operation of animal shelters and coordinating review of programs and services to make recommendations for improvements in those programs and services to better serve the community. The committee shall be advisory in nature and shall not have any responsibility or authority over any board, commission, public official or employee of the city.
(Ord. No. 95-7-14, § I, 7-10-95)

Sec. 2-336. Members.

The animal shelter advisory committee shall consist of seven (7) members appointed by the city council as follows:

One (1) licensed veterinarian;

One (1) municipal official;

One (1) person whose duties include the daily operation of an animal shelter and serves as the City of Plano Animal Services Manager.

One (1) representative from an animal welfare organization; and

Three (3) people who reside in the city.
(Ord. No. 95-7-14, § II, 7-10-95; Ord. No. 98-10-16, § I, 10-26-98; Ord. No. 2003-9-47, § I, 9-22-03; Ord. No. 2004-10-26, § I, 10-26-04)

Sec. 2-337. Terms; vacancies.

The terms of office of each member of the animal shelter advisory committee appointed on or after September 2003 shall be for two (2) years. Terms shall expire on October 31 of each year, and the city council shall fill any and all vacancies on the committee.
(Ord. No. 95-7-14, § III, 7-10-95; Ord. No. 96-6-12, § I, 6-10-96; Ord. No. 2005-4-25, § I, 4-25-05)

Sec. 2-338. Officers.

The city council shall appoint a chairperson for a one (1) year term. The committee shall have a vice-chairperson who is elected by its members for a one (1) year term. The City of Plano Animal Services Manager shall serve as permanent secretary.
(Ord. No. 95-7-14, § IV, 7-10-95; Ord. No. 2002-10-21, § I, 10-14-02; Ord. No. 2003-9-47, § III, 9-22-03)

Sec. 2-339. Meetings; quorum.

The animal shelter advisory committee shall meet four (4) times per year, during the months of January, April, July and October. Additional meetings shall be called as needed by the chairperson or vice chairperson of the committee. A simple majority of the committee shall constitute a quorum. A vote of the simple majority of the quorum shall be required for any action taken by the committee.
(Ord. No. 95-7-14, § V, 7-10-95; Ord. No. 2003-9-47, § II, 9-22-03)

Sec. 2-340. Removal of members.

All members of the committee are subject to removal in accordance with the city council's current policy with regard to required attendance at city board, commission and committee meetings. In addition, the members of the committee may be removed at any time by the city council with or without cause.
(Ord. No. 95-7-14, § VI, 7-10-95)

Sec. 2-341. Duties.

The committee shall have the following duties:

(1) To assist the Animal Services Division of the Environmental Health Department of the City in complying with requirements of Chapter 823, Health and Safety Code,

*__Editor's note—__Ordinance No. 95-7-14, adopted July 10, 1995, did not specifically amend this Code; hence, codification of §§ I—VII of said ordinance as §§ 2-335—2-341 herein was at the editor's discretion.

__Cross reference—__Animal regulations, Ch. 4.

V.T.C.A. and other applicable state and local laws, by submitting recommendations to the animal services division.

(2) Submit an annual report to the city council not later than August 1 of each year. The report shall describe the committee's recommendations, interaction, activities, and progress as related to its established purpose. Additional reports shall be submitted as requested by the city council.

(Ord. No. 95-7-14, § VII, 7-10-95)

Secs. 2-342—2-350. Reserved.

ARTICLE XX. REMOVAL OF BOARD, COMMISSION, AND COMMITTEE MEMBERS

Sec. 2-351. Removal of board, commission, and committee members.

Notwithstanding any other provisions in this chapter or in the Code of Ordinances, all members of all city boards, commissions, and committees may be removed at any time by the city council with or without cause, unless state law requires otherwise.

(Ord. No. 2012-7-13, § I, 7-23-12)

Secs. 2-352—2-359. Reserved.

ARTICLE XXI. RESERVED*

ARTICLE XXII. RESERVED†

*__Editor's note—__Ord. No. 2007-8-8, § I, adopted Aug. 13, 2007, repealed art. XII, §§ 2-360—2-368, in its entirety. Formerly, said article pertained to the technology commission as enacted by Ord. No. 2000-11-6, adopted Nov. 6, 2000.

†__Editor's note—__Ord. No. 2008-9-14, § IV, adopted September 8, 2008, repealed article XXII, §§ 2-375—2-382 in its entirety, which pertained to the Plano transition and revitalization commission, and derived from Ord. No. 2000-6-25, § II, adopted June 26, 2000.

Chapter 3

ALCOHOLIC BEVERAGES*

*Cross references—Food and food establishments, Ch. 9; licenses and business regulations, Ch. 11; taxation, Ch. 20; zoning, App. A.

Sec. 3-1. Penalty.

Any person violating any provision of this chapter shall be deemed guilty of a misdemeanor and upon conviction thereof, shall be punished as provided in section 1-4.
(Ord. No. 77-12-1, § 5, 12-9-77)

Sec. 3-2. Sale of alcoholic beverages near church, school or public hospital.

No person shall sell alcoholic beverages if the place of business is within three hundred (300) feet of a church, public or private school, or public hospital except as provided by the Texas Alcoholic Beverage Code. The sale of alcoholic beverages is also prohibited within one thousand (1,000) feet of a private school if the city council adopts by resolution a request for the one thousand (1,000) foot separation from the governing body of a private school. The measurement of the distance between the place of business where alcoholic beverages are sold and the church or public hospital shall be along the property lines of the street fronts and from front door to front door, and in direct line across intersections. The measurement of the distance between the place of business where alcoholic beverages are sold and the public or private school shall be:

(a) In a direct line from the property line of the public or private school to the property line of the place of business, and in a direct line across intersections; or

(b) If the permit or license holder is located on or above the fifth story of a multistory building, in a direct line from the property line of the public or private school to the property line of the place of business, in a direct line across intersections, and vertically up the building at the property line to the base of the floor on which the permit or license holder is located.

(Ord. No. 77-12-1, § 1, 12-9-77; Ord. No. 2005-5-15, § II, 5-17-05)

State law references—Authority for above sections, V.T.C.A. Alcoholic Beverage Code, § 109.33; definitions, V.T.C.A. Alcoholic Beverage Code, § 1.04.

Sec. 3-3. Manufacturing, importing, selling, etc.—Unlawful in districts zoned residential.

It shall be unlawful for any person to manufacture, distill, brew, import, store for purpose of sale, distribute or sell any alcoholic beverages in any residentially zoned district within the City of Plano except for a winery where authorized by the City of Plano Zoning Ordinance.
(Ord. No. 77-12-1, § 2, 12-9-77; Ord. No. 2005-5-15, § III, 5-17-05; Ord. No. 2011-6-19, § I, 6-27-11; Ord. No. 2014-1-6, § I, 1-13-14)

Sec. 3-4. Permit required; fees.

No person shall sell alcoholic beverages within the city without first paying the appropriate fee to the city secretary and obtaining a city permit to sell alcoholic beverages at a specific location. The fee shall be equal to one-half (½) of the fee charged by the state for the particular license issued by the Texas Alcoholic Beverage Commission, except when said fee is waived according to the provisions of the Texas Alcoholic Beverage Code. Following payment of the fee and approval of the permit application, as set forth herein, the city secretary shall issue a permit for that location for a period of two (2) years.
(Ord. No. 77-12-1, § 3, 12-9-77; Ord. No. 2005-5-15, § IV, 5-17-05; Ord. No. 2011-12-13, § I, 12-20-11)

State law reference—Local permit fee, V.T.C.A. Alcoholic Beverage Code, § 11.38.

Sec. 3-5. Permit application review; certificate of wet/dry status.

Prior to issuing a city permit to applicant for the proposed location, the city secretary shall certify whether the location is located in an area that is wet and that the sale of alcoholic beverages at this location is not prohibited by Charter or ordinance. The city secretary shall keep a record of all permits and certificates issued under this chapter.
(Ord. No. 77-12-1, § 4, 12-9-77; Ord. No. 2005-5-15, § V, 5-17-05)

State law reference—Local license, V.T.C.A. Alcoholic Beverage Code, § 61.36.

Sec. 3-6. Consumption of alcoholic beverages in certain public places.

(a) It shall be unlawful for any person to consume any alcoholic beverage in any public or commercial parking area or a private multi-

tenant residential parking area, or in any public street, alley or sidewalk in the city, with the following exceptions:

(1) Persons consuming alcoholic beverages on property that is permitted or licensed by the Texas Alcoholic Beverage Commission to serve alcoholic beverages; or

(2) Persons consuming alcoholic beverages on property permitted for a Special Event as set forth in Chapter 11, Article VIII of the Plano Code of Ordinances, only where such permit authorizes the service of alcohol.

(b) The chief of police or other police officer of the city or any peace officer within the limits of the city may arrest without warrant any person who violates the terms of this section and the officer or person making the arrest is justified in adopting all of the measures which he might adopt in cases of arrest under warrant; provided further, that in all cases of arrest without warrant the officer making the arrest shall immediately take the person arrested before the nearest or most accessible magistrate having jurisdiction.

(c) Any person found guilty of violating the terms of this section shall be deemed guilty of a misdemeanor, and upon conviction therefore, shall be punished as provided in section 1-4 (b).
(Ord. No. 68-8-1, §§ 1—4, 8-12-68; Ord. No. 2004-12-14, § II, 12-13-04; Ord. No. 2005-7-4, § II, 7-25-05; Ord. No. 2009-5-7, § I, 5-11-09)

Editor's note—Ord. No. 2009-5-7, § I, adopted May 11, 2009, changed the title of section 3-6 from "Consumption of alcoholic beverages in public streets, alleys or sidewalks" to "Consumption of alcoholic beverages in certain public places."

Sec. 3-7. Late hours operation.

The holder of a mixed beverage late hours permit issued by the state may offer mixed beverages for sale in the corporate city limits of the City of Plano, Texas on Sunday between the hours of 1:00 a.m. and 2:00 a.m. and on any other day between the hours of 12:00 a.m. and 2:00 a.m. in accordance with the State Alcoholic Beverage Code.
(Ord. No. 2005-7-8, § II, 7-25-05)

Sec. 3-8. Late hours permit; fees.

No person shall sell mixed beverages between 1:00 a.m. and 2:00 a.m. on Sunday and on any other day between 12:00 a.m. and 2:00 a.m. within the corporate city limits of the City of Plano, Texas without first paying the appropriate fee to the city secretary and obtaining a city mixed beverage late hours permit. The fee shall be equal to one-half (½) of the fee charged by the state for a mixed beverage late hours permit, except when said fee is waived according to the provisions of the Texas Alcoholic Beverage Code. Following payment of the fee and approval of the late hours permit application, the city secretary shall issue a mixed beverage late hours permit for that location for a period of two (2) years.
(Ord. No. 2005-7-8, § III, 7-25-05; Ord. No. 2011-12-13, § II, 12-20-11)

[The next page is 263]

Chapter 4

ANIMALS*

Art. I.	**Definitions and Enforcement, §§ 4-1—4-25**
Art. II.	**Treatment of Animals, §§ 4-26—4-50**
Art. III.	**Public Nuisances, §§ 4-51—4-60**
Art. IV.	**Impoundment, Redemption and Disposition of Animals, §§ 4-61—4-80**
Art. V.	**Multiple Animals, §§ 4-81—4-90**
Art. VI.	**Rabies and Zoonosis Control, §§ 4-91—4-110**
Art. VII.	**Animal Identification and Registration, §§ 4-111—4-120**
Art. VIII.	**Animal Businesses, §§ 4-121—4-150**
Art. IX.	**Dangerous Animals, §§ 4-151—4-180**
Art. X.	**Wild Animals, Bees, and Livestock, §§ 4-181—4-200**
Art. XI.	**Miscellaneous Offenses, §§ 4-201—4-205**
Art. XII.	**Search and Rescue Training in Public Places, §§ 4-206, 4-207**

*__Editor's note—__Ord. No. 2021-9-24, §§ I, II, adopted September 27, 2021, repealed the former chapter 4, §§ 4-1—4-5, 4-26—4-29, 4-51, 4-61—4-63, 4-81, 4-82, 4-91—4-94, 4-111, 4-121—4-131, 4-151—4-159, 4-181—4-185, 4-201—4-207, and enacted a new chapter 4 as set out herein. The former chapter 4 pertained to similar subject matter and derived from Ord. No. 2016-6-25, § II, adopted June 28, 2016.

__Cross references—__Animal shelter advisory committee, § 2-335 et seq.; food and food establishments, Ch. 9; licenses and business regulations, Ch. 11; motor vehicles and traffic, Ch. 12; parks and recreation, Ch. 15; zoning, App. A.

__State law references—__Animals, Vernon's Ann. Civ. St., art. 180 et seq.; cruelty to animals, V.T.C.A. Penal Code, § 42.11; dog fighting, V.T.C.A. Penal Code, § 42.111; rabies control, Vernon's Ann. Civ. St., art 4477-6a; Local Public Health Reorganization Act, Vernon's Ann. Civ. St., art. 4443b; animal shelters in certain cities, Vernon's Ann. Civ. St., art. 4477-6b.

ARTICLE I. DEFINITIONS AND ENFORCEMENT

Sec. 4-1. Definitions.

Unless otherwise expressly stated, the following words, terms, and phrases shall have the following meanings when used in this chapter:

Abandon means to fail to adequately provide an animal with one (1) or more of the necessities of life, including but not limited to, air, food, potable water, sanitary conditions, shelter, protection from the heat, cold, or other environmental conditions, or under other circumstances that may cause bodily injury, serious bodily injury, or death of the animal, for twenty-four (24) or more hours, or to leave an animal in the care, custody, or control of another person without his or her consent.

Accessory dwelling unit means a dwelling unit that is clearly subordinate to, but detached from, the primary dwelling unit on the same platted lot.

Adult animal means an animal that is four (4) months of age or older.

Animal establishment means any permanent facility or business that has care, custody, or control of animals within the City of Plano including, but not limited to, pet shops, grooming facilities, boarding kennels, and animal auction facilities. This term does not include veterinary or medical facilities, research or other facilities licensed by government agencies, wildlife educational centers, and zoological parks.

Animal exhibition means any temporary spectacle, display, event, exhibition or act featuring one (1) or more performing animals including, but not limited to, circuses, pony rides, animal exhibits, weight pull events, and petting zoos. This term does not include resident or non-resident dog and cat shows which are sponsored by the animal services department. For this definition, temporary means lasting seven (7) days or less.

Animal fighting paraphernalia means any item or equipment that is designed, adapted, or used for animal fighting purposes, including, but not limited to, instruments designed, adapted, or used in a manner that attaches to the leg of a bird, such as a knife, gaff, or other sharp instrument, or items used to train or condition animals to fight, such as hanging devices or "bite sticks."

Animal housing enclosure means any structure or other enclosure contained within the owner's property limits and designed, adapted, or used to segregate an animal to a smaller area or restrict an animal to a limited space, including, but not limited to, pens, kennels, dog runs, rooms, cages, compartments, hutches, coops, and fenced portions of a yard or property. This term does not include the term shelter as defined in this section.

Animal services director means the director of the City of Plano Animal Services Department and his authorized designees.

Animal services facility means an establishment operated by the City of Plano for the temporary confinement, safekeeping, and control of animals which come into the custody of the City of Plano.

Animal services officer means a person designated by the city to represent and act for the city in the impounding of animals, controlling of animals running at large, and enforcing the provisions of this chapter and all regulations relating to animals as authorized by state or federal law.

Assistance animal has the meaning assigned in V.T.C.A. Human Resources Code, ch. 121.

At large means an animal that meets at least one (1) of the following criteria:

(1) An animal that is not confined to the premises of the owner by substantial physical means of restraint of sufficient height, strength, and/or manner of construction to preclude the animal from leaving the premises of the owner or being able to come within six (6) feet of any public area;

(2) An animal that is not under direct physical control of a person by means of a tether of sufficient strength and of a length of not more than six (6) feet.

The term "at large" does not apply to an animal that is lawfully in any off-leash site or dog park authorized by the City of Plano or the City of Plano Code of Ordinances, so long as the person with care, custody, or control of the animal is in compliance with all other requirements of the Plano Code of Ordinances. This definition does not apply to an indigenous wild or feral animal.

Auction means any facility where animals are regularly bought, sold, or traded to the highest bidder. This definition does not apply to individual sales of animals by private owners.

Backyard cottage means a detached dwelling unit subordinate to and located on the same lot as a single-family residence (detached) dwelling unit.

Basic grooming means maintaining the eyes, ears, beaks, hooves, feet, nails, coat, and skin of an animal in such a manner that is reasonably necessary for the health and safety of the animal.

Business day means a day during which the City of Plano Animal Shelter is open for business.

Bodily injury means physical pain, illness, or any impairment of physical condition that would cause a reasonably prudent person to seek treatment from a medical professional or veterinarian without regard to whether the person actually sought the treatment. This term includes, but is not limited to, a bite or scratch wound and any bodily injury resulting from the victim attempting to escape or prevent contact with the injuring animal.

Cat means a domesticated member of the feline family (Felis domesticus) other than a lion, tiger, bobcat, jaguar, panther, leopard, cougar or other prohibited feline, or any hybrid thereof.

Chicken coop means a covered, predator-resistant chicken house that is designed to be easily accessed, cleaned, and maintained, and meets all the specifications for a shelter, animal housing enclosure, and any other applicable requirements of this chapter.

City means the City of Plano.

City enforcement agent means any designee of the City of Plano Animal Services Director, any animal services officer, or law enforcement officer that is employed by the City of Plano.

Commercial breeder means any owner who breeds animals or transfers ownership of more than twelve (12) animals or more than two (2) litters, clutches, or other groups of offspring (whichever is greater) of any breeding animal during any twelve (12) consecutive month period to another person for the purpose of breeding, show, personal pet, slaughter, or resale to a third person.

Conviction means:

(1) An adjudication of guilt;

(2) A sentence imposed by a court;

(3) A court order of community supervision, including deferred adjudication.

Culpable mental states: with regards to a person's acts, the words intentionally, knowingly, recklessly, and with criminal negligence have the meanings assigned in V.T.C.A. Penal Code, ch. 6, as amended.

Currently vaccinated means an animal that is considered to have a current anti-rabies vaccination according to the Texas State Rabies Control Act, as amended, and the minimum standards established by the appropriate state agency or rule-making board.

*Dangerous anima*l means:

(1) An animal that makes an unprovoked attack on a person that causes bodily injury and occurs in a place other than an enclosure in which the animal was being kept and that was reasonably certain to prevent the animal from leaving the enclosure on its own; or

(2) An animal that commits unprovoked acts in a place other than an enclosure in which the animal was being kept and that was reasonably certain to prevent the animal from leaving the enclosure on its own and those acts cause a person to

reasonably believe that the animal will attack and cause bodily injury to that person; or

(3) An animal that commits an unprovoked attack on a human being that causes serious bodily injury or death and occurs in an enclosure in which the animal was being kept and that was reasonably certain to prevent the animal from leaving the enclosure on its own unless the person who was attacked was trespassing or otherwise violating the law by being within the enclosure;

(4) An animal that is at large and commits an unprovoked attack on a domestic animal that causes the death of the attacked animal; or

(5) An animal that is at large and commits an unprovoked attack on a domestic animal that causes serious bodily injury to the attacked animal and the attacking animal has already committed at least one unprovoked attack on a previous occasion against a human being or domestic animal.

(6) The term dangerous animal does not include an animal that commits an unprovoked attack on a human being in an enclosure in which the animal was being kept and that was reasonably certain to prevent the animal from leaving the enclosure where the person who was attacked was trespassing or otherwise violating the law by entering the enclosure;

Department means the City of Plano Animal Services Department.

Designated caretaker means the provisional assumption of ownership for the purposes of administering preventative immunizations and treatment including emergent humane euthanasia as directed by a licensed veterinarian in the event of suffering during an animal's stray hold period at an impound facility.

Direct physical control means having precautions in place so the person may exercise physical control over the animal in the event it should become necessary to do so to protect the animal, a human, or another animal from harm. For the purposes of this chapter, voice control, shock collars, e-collars, and collar-mounted electronic training devices, regardless of the animal's proximity or training status, shall not be considered direct physical control.

Dog means a domesticated member of the canine family (Canis familiaris), other than a wolf, jackal, fox, dingo, coyote, or other prohibited canine, or any hybrid thereof.

Domestic animal means any animal that lawfully may be kept as a pet or as livestock within the City of Plano so long as all of the required provisions of this chapter are met, ownership or possession of said animal is not prohibited by any international, federal, local or state law, and it is not a wild animal, as defined herein, including but not limited, to the following animals:

(1) *Reptiles.* Any non-venomous reptile that does not typically reach total lengths greater than eight (8) feet;

(2) *Birds.* Any birds commonly kept as pets, or any bird kept for falconry purposes by a state and federally permitted falconer;

(3) *Amphibians.* Any frogs or toads commonly kept as pets;

(4) *Fish.* Any fish commonly kept as pets; and

(5) *Mammals.* Any mammals commonly kept as pets or livestock including, but not limited to, dogs, cats, ferrets, rabbits, guinea pigs, hamsters, hedgehogs, rats, mice, chinchillas, sugar gliders, horses, cows, alpacas, and llamas.

Dwelling unit means a building or portion of a building which is arranged, occupied, or intended to be occupied as living quarters of a family and including facilities for food preparation, sleeping, and sanitation.

Estray means any branded or unbranded livestock, fowl, exotic livestock, or exotic fowl found running at large.

Estrus means a regular period of reproductive excitement in female mammals, during which the animal seeks to mate.

Euthanasia means the termination of an animal by a person using methods authorized by state and federal laws.

Exercise yard means an enclosure attached to a chicken coop that provides exercise for backyard chickens and is constructed to prevent the backyard chickens from escaping such enclosure and offers protection from predators.

Feral animal means any unowned, untamed animal living in the wild that will not voluntarily accept handling by human beings despite usually being considered a domestic animal.

Health director means the director of the City of Plano Environmental Health Department and his authorized designees.

Humane trap means any trap designed to capture an animal without injuring the animal.

Identification means any acceptable method, such as microchipping, registration tag, or tattoo, which can be used to readily trace the current ownership of an animal.

Impound means the placing of an animal in the city's animal services facility.

Inhumane treatment of animals means any treatment of an animal prohibited by any provision of this chapter or described in article II, section 4-26 of this chapter

Intact means any animal that has not been sterilized.

Kennel means any lot, building, structure, enclosure, or premises where five (5) or more adult animals are kept and wherein any person engages in the business of boarding, breeding, buying, letting for hire, training for a fee, or selling dogs, cats, or other animals.

Livestock means or includes domesticated animals typically kept to provide food or fiber or perform work, whether or not they actually provide these functions, including but not limited to, regardless of age, sex, or breed: horses, consisting of all equine species including ponies, mules, donkeys, jackasses, and burros; cattle, consisting of all bovine species; sheep, consisting of all ovine species; llamas and alpacas; goats, consisting of all caprine species; rabbits kept primarily outdoors or raised as a food or fiber source; chickens, ducks, and other fowl; and pigs or hogs, consisting of all swine species.

Local rabies control authority (LRCA) means the person designated by the governing body of a municipality to enforce the Texas Health and Safety Code, as amended.

Local rabies control incident (LRCI) means any bite, scratch, or other injury to a person caused by a warm-blooded animal that breaks the victim's skin and/or causes him or her to bleed and potentially come into contact with the injuring animal's saliva and could therefore allow the rabies virus to be transmitted from the animal to the person.

Microchip implant means a passive electronic device that is injected into an animal by means of a hypodermic-type syringe device. Each microchip shall contain a unique and original number that is read by an electronic scanning device for purposes of animal identification and recovery by the animal's owners. The microchip implant shall be supplied with an exterior collar-type tag for purposes of an external means of notifying others that the animal has been implanted with a microchip.

Microchip reader means an electronic scanner with an operating frequency that is able to detect a microchip that has been implanted in an animal, and displays the number of the microchip to its operator. The microchip reader shall be of a type that activates and displays the number of a microchip manufactured by multiple vendors.

NASAR means the National Association for Search and Rescue, which is a non-profit corporation that provides training and certification resources for search and rescue, and emergency rescue efforts.

Nesting box is a clean, dry, enclosed area in a coop designed to facilitate egg laying that is large enough to allow each hen being kept to sit,

stand up, and turn around easily, with sufficient bedding material or nest pads to reduce egg breakage during laying.

Notice means by personal service, certified mail (return receipt requested), or a written notice left at the entrance to the premises where the animal is harbored.

Notify and notification, unless otherwise defined in this chapter, a requirement to notify the department, means to contact the department at (972) 769-4360 and speak with an employee of the department or leave a voicemail. Notification shall be made immediately, but only as soon as can be done so safely.

Offer to transfer ownership means to offer to convey ownership rights, in person, electronically, or by any other means, of an animal from one (1) person to another by any means, including, but not limited to, auctioning, selling, giving away, delivering, trading, or bartering.

Owner means any person or persons, firm, partnership, corporation, association or entity that harbors, shelters, keeps, controls, manages, possesses or has whole or part interest in any animal. The occupant, owner or head of household of any premises where an animal remains for seventy-two (72) hours or more shall be presumed to be the owner of the animal. The presumption may be rebutted with proof that the animal has been reported to the Department as a stray animal as required in section 4-201 of this chapter. A property owner, occupant, or head of household of any premises on which a dog or cat remains or customarily returns to is an owner for purposes of this chapter. If a person under the age of seventeen (17) years owns an animal, the parent, legal guardian, or the head of the household shall be the owner for purposes of this chapter. There may be more than one (1) person who is the owner or responsible for an animal. This term shall include persons who are in temporary possession of the animal, including but not limited to, pet sitters, groomers, boarders, walkers, and trainers.

Owner's agent means a person who has been authorized by the owner to act on his behalf.

Person shall have the meaning assigned in chapter 1, section 1-3 of the City of Plano Code of Ordinances. The term person shall include the term owner.

Pet grooming facility means an establishment that provides basic grooming for domestic animals but does not routinely board animals for a fee. For the purposes of this chapter, a veterinary clinic that provides basic grooming is not a pet grooming facility.

Police service animal means an animal owned by the City of Plano, or other governmental law enforcement agency, specifically trained or equipped to assist personnel in a law enforcement capacity.

Pony ride means the use of any horse, pony, mule, donkey, jackass or burro to provide rides to, or to pull wagons containing, individuals other than the animals' owners, whether gratuitously or for a fee.

Private animal sale means the individual transfer of ownership of an animal, other than a wild animal, by a private owner to another private owner that occurs on the property of either the seller or buyer.

Private owner means an owner who is not a permitted commercial breeder or permitted animal establishment.

Quarantine means to confine and isolate from human beings and other animals in a state-approved quarantine facility or in compliance with all stipulations of a home quarantine when allowed by the local rabies control authority. The quarantine period for a dog, cat, or a domestic ferret for rabies observation is two hundred forty (240) hours from the date and time of the bite, scratch or other exposure, or as specified by state law or rule.

Releasing agency means any public or private animal pound, shelter, or humane organization. The term does not include an individual who occasionally renders humane assistance or shelter in the individual's home to a dog or cat.

Restrain means to control an animal by physical means.

Roosting space means a perching area made of non-metallic material that is elevated above the floor level of the nesting box(es), located so that all housed chickens can sit, stand up, and turn around without coming into contact with a wall, the ceiling, or a perch above it, and staggered so that no roosting space is directly above or below it.

SARTECH III means basic level of certification of persons issued by the National Association for Search and Rescue.

Search and rescue activity means any activity by a trained search and rescue dog under the direction and control of a non-profit search and rescue organization or governmental entity to assist in the location of lost or missing persons or for other law enforcement or public safety purposes being performed at the request of a law enforcement agency.

Search and rescue organization means a group of volunteers operating as a non-profit organization that trains dogs to assist in the location of lost or missing persons or for other law enforcement or public safety purposes.

Search and rescue training means authorized training of a dog to provide search and rescue activities by a member of a permitted search and rescue organization in compliance with the requirements of their permit.

Secure enclosure means an animal housing enclosure that meets all of the following criteria:

(1) Is located inside a separate fenced area;

(2) Is locked;

(3) Is capable of preventing the entry of the general public, including children;

(4) Is capable of preventing the escape or release of an animal in the enclosure;

(5) Is clearly marked as containing a dangerous animal;

(6) Has an attached, secure roof;

(7) Has a concrete floor or sides buried not less than two (2) feet into the ground and constructed to prevent the animal from digging under the secure enclosure and escaping;

(8) Is located a minimum of five (5) feet from any fence line or wall that abuts private property or a public area; and

(9) Complies with all additional requirements as established and provided in writing to the owner by the animal services department or this chapter.

Serious bodily injury means an injury characterized by severe bite wounds or severe ripping and tearing of muscle that would cause a reasonably prudent person to seek treatment from a medical professional and would require hospitalization without regard to whether the person actually sought medical treatment.

Shelter means a structure that is capable of adequately providing cover and protection from heat, cold, and other environmental conditions. At minimum, a shelter must have three (3) sides, a top, and a bottom and must be adequately ventilated. It must have bedding material. It must be large enough so that the animal can enter, stand, turn around, and lie down, but small enough to prevent the loss of body heat during cold weather.

Sterilized means an animal rendered incapable of reproduction.

Tether means any leash, chain, cord, rope, or other means of restraining an animal or the act of chaining, tying, fastening or otherwise securing an animal to a fixed point so that it can move or range only within certain limits.

Transfer ownership means to convey ownership rights of an animal from one (1) person to another by any means.

Twelve (12) consecutive month period means the twelve (12) month period immediately preceding the date of an event.

Unprovoked means that the animal was not hit, kicked, pulled, struck, pinched, poked, prodded, shocked, or squeezed by a person with an object or part of the person's body, or otherwise teased or tormented in any manner.

Vaccination means the inoculation of an animal with an anti-rabies vaccine that is licensed by the United States Department of Agriculture for use in that species and which is administered in

accordance with the label's directions and all state and federal laws for the purpose of immunizing the animal against rabies.

Veterinary hospital means any establishment maintained and operated by a licensed veterinarian for surgery, diagnosis, and treatment of illnesses, diseases, and injuries of animals.

Wild animal means any animal not normally considered domesticated, regardless of the state or duration of captivity, that can typically be found in a wild state which, because of its size, vicious nature, potential disease threat, or other natural characteristic(s), would constitute a danger to human life, property or domestic animals, or any animal that is restricted from ownership by any international, federal, or state law including, but not limited to, the following animals:

(1) *Reptiles:* venomous reptiles, crocodiles, alligators, any reptile that typically reaches a total length greater than eight (8) feet, and iguanas;

(2) *Birds:* emus, ostriches, or rheas;

(3) *Mammals:* ocelots, lions, tigers, jaguars, leopards, cougars, bobcats, wolves, dingoes, coyotes, jackals, elephants, armadillos, kangaroos, wallabies, wallaroos, opossums, beavers, porcupines, weasels, martins, minks, badgers, pandas, bears, raccoons, bats, foxes, skunks, cheetahs, servals, caracals, hyenas, squirrels, wild rabbits, or non-human primates;

(4) Any species illegal to own under federal or state law, or any animal which is, or may be hereafter, listed as a "high risk" animal in the Texas Rabies Control Act;

(5) Any hybrid of any animal classified as a wild animal.

Wild animal class I means non-native wildlife that present a serious threat to public health or safety including, but not limited to, chimpanzees, gorillas, gibbons, drills, mandrills, orangutans, baboons, siamangs, cheetahs, leopards, jaguars, tigers, lions, cougars, panthers, bears, rhinoceros, elephants, hippopotamuses, alligators, crocodiles (except dwarf), gavials, black caimans, Komodo dragons, venomous reptiles, and any hybrid of any animal classified as a wild animal class I. For the purposes of this chapter, all wild animals class I are wild animals by definition and subject to regulation as either or both.

Wildlife educational center means an organization that has met all of the state and federal requirements to possess and display wild or domestic animals for educational purposes.

Wildlife rehabilitator means a person holding all current state and/or federal permits needed to temporarily house allowed native wild animal species in his or her possession with the goal of rehabilitating the animal(s) and releasing it back into its natural habitat in accordance with all state and federal laws.

Zoological educational outreach display means any temporary spectacle, display, event, exhibition, or act where the operator has met all state and federal requirements to possess and display domestic, wild, or wild class I animals for educational purposes and is accredited through the American Zoological Association or Zoological Association of America. For this definition, temporary shall mean lasting seven (7) days or less.

Zoological park means a government-operated facility displaying or exhibiting one (1) or more species of non-domesticated animals.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-2. Enforcement, seizures and penalties.

(a) The animal services director and his designees shall be responsible for the enforcement of this chapter and all other ordinances in the City of Plano Code of Ordinances pertaining to animals, unless otherwise provided by law or this chapter.

(b) The animal services director and his designees shall be responsible for the enforcement of all laws and regulations of the State of Texas pertaining to animals that authorize the local health authority or animal services officers to enforce the same.

(c) Any person violating any provision of this chapter by committing a prohibited act or by failing to commit a required act may be issued a notice to appear or summons to appear for such violation, and upon conviction thereof, the person shall be deemed guilty of a misdemeanor and punished as provided in subsection 1-4(b) of the Code of Ordinances of the City of Plano.

(d) Each twenty-four (24) hour period of violation, and each separate animal or condition in violation of any provision of this chapter, shall constitute a separate offense.

(e) For the purpose of proving violations of this chapter, the requirement of a culpable mental state is expressly waived, unless otherwise stated. If the definition of an offense under this chapter does not prescribe a culpable mental state, then a culpable mental state is not an element of the offense and is not required to be proven for conviction of the offense. Such offense shall be punishable by a fine not to exceed five hundred dollars and no cents ($500.00).

(f) City enforcement agents are authorized to seek a warrant or order from a court of competent jurisdiction to enforce this chapter, pursuant to all applicable local, state, and federal laws.

(g) City enforcement agents shall have the power to search, seize and impound an animal with a warrant or court order under one (1) or more of the following conditions:

(1) When the city enforcement agent has probable cause to believe that the animal creates a nuisance as described in subsection 4-51(a) of this chapter;

(2) When the city enforcement agent has probable cause to believe that the animal has been abandoned or is being treated inhumanely as described in this chapter;

(3) When the city enforcement agent has probable cause to believe that the animal has rabies or has been exposed to rabies;

(4) When the city enforcement agent has probable cause to believe that the animal is not being quarantined for rabies observation under appropriate conditions as defined in this chapter;

(5) When the city enforcement agent has probable cause to believe that the animal meets the definition of a dangerous animal as defined in this chapter;

(6) When the city enforcement agent has probable cause to believe that the animal has been involved in a LRCI; or

(7) When the city enforcement agent has probable cause to believe that the animal is being possessed or harbored in violation of this chapter.

(h) City enforcement agents shall have the power to search, seize and impound an animal without a warrant or court order, with probable cause as set forth in subsection 4-2(g), and section 1-7, of the Code of Ordinances of the City of Plano, under the following conditions:

(1) On public property, in all cases;

(2) On private property, if:

a. The consent of the resident or property owner, or someone with apparent authority to consent, is obtained; or

b. Exigent circumstances exist, the city enforcement agent reasonably believes that there is imminent danger of serious bodily injury or death to a human being, another animal, or the animal in question, and there is insufficient time to obtain a warrant.

(3) Upon the request of a peace officer if the owner is not available and there is no one seventeen (17) years of age or older to accept responsibility for the animal.

(i) A city enforcement agent shall have forty-eight (48) hours or the next day the municipal court is open for business, whichever is later, from the time of the animal's seizure to request a hearing in the Plano Municipal Court to determine the disposition of the animal in accordance with this chapter. If no hearing is requested, the animal shall be returned to its owner upon request from the owner.

(j) The city enforcement agent is authorized to use necessary force, including but not limited to breaking a vehicle's window, to make lawful seizures of animals pursuant to this chapter, subject to all local, state, and federal laws and court orders.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-3. Duties.

(a) The animal services director or his designee shall act as the local rabies control authority for the city. If the animal services director position is vacant or he is unavailable, and his designee has not been identified, then the city manager shall designate the local rabies control authority.

(b) Any city enforcement agent shall have the authority to issue notices to appear and file probable cause affidavits for any violations of this chapter, to file affidavits supporting search and/or seizure warrants, and any other power or duty stated within the terms of this chapter.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-4. City exempt.

City facilities and operations are exempt from the requirements of this chapter.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-5. Fees.

All fees for this chapter shall be reviewed, set and adopted by a resolution of the city council. The following is not intended to be an exhaustive listing of fees. Fees shall be assessed for: annual registrations; dangerous animal registrations; lost registration tag; permits for animal businesses; impounded animals; boarding of animals; sterilization of animals; implanting microchips in animals; adoption of animals; vaccination of animals; disposal of deceased animals; local rabies control authority incidents; livestock capture.

The animal services director or his designee shall have the authority to reduce, refund, or waive fees under this chapter.
(Ord. No. 2021-9-24, § II, 9-27-21)

Secs. 4-6—4-25. Reserved.

ARTICLE II. TREATMENT OF ANIMALS

Sec. 4-26. Inhumane treatment of animals.

(a) A person commits an offense if, either through his action or omission, he:

(1) Docks the tail or removes the dew claws of an animal over five (5) days of age, or crops the ears of an animal of any age, unless he is licensed to practice veterinary medicine in the State of Texas;

(2) Transfers ownership or otherwise physically removes from its mother any dog, cat, ferret, or rabbit less than six (6) weeks old, or any other animal that is not yet weaned, except as advised by a licensed veterinarian;

(3) Dyes or otherwise artificially colors any animal;

(4) Displays, transfers ownership, or offers to transfer ownership of any dyed or otherwise artificially colored animal;

(5) Abandons any animal that he or she has possession or ownership of at the animal services facility, at any other place of business, on public property, or with any person that has not consented or has revoked consent to be responsible for the care of the animal;

(6) Fails to reclaim any animal that he owns from the animal services facility or any person who had temporary possession of the animal;

(7) Fails to notify the department within twenty-four (24) hours after a motor vehicle being operated by him strikes an animal;

(8) Euthanizes, kills or attempts to euthanize or kill an animal in a manner other than one allowed in this chapter;

(9) Carries or transports an animal in any motor vehicle, conveyance, or trailer and fails to effectively restrain the animal so

as to prevent the animal from leaving or being accidentally thrown from the vehicle, conveyance, or trailer;

(10) Places or confines an animal, or allows an animal to be placed or confined, in a motor vehicle, conveyance, or trailer without providing adequately for the necessities of life, including air, food, potable water, sanitary conditions, shelter, or protection from the heat, cold, or other environmental condition, or under other circumstances that may cause bodily injury, serious bodily injury, or death of the animal;

(11) Causes or allows an animal to remain in its own filth;

(12) Owns or has care, custody, or control of an animal having an infestation of ticks, fleas, or other parasites, without having the animal treated by a veterinarian or following a proper commercially available treatment regimen for the infestation;

(13) Owns or has care, custody, or control of an animal having an obvious or diagnosed illness, injury, or communicable illness transmittable to animal or human, without having the animal treated by a veterinarian or following a proper treatment regimen for the injury or illness;

(14) Fails to provide basic grooming for an animal;

(15) Causes, allows, or trains an animal to fight another animal or possesses animal fighting paraphernalia or training equipment;

(16) Fails to adequately provide an animal owned by him or under his care, custody, or control with necessities of life, including food, potable, non-frozen water in a clean container suitable for the size, species, and number of animals being housed, sanitary conditions, shelter, and protection from heat, cold, and other environmental conditions or circumstances that may cause bodily injury, serious bodily injury or death of the animal;

(17) Mutilates or allows to be mutilated any dead animal for reasons other than food preparation or taxidermy. Dissection in compliance with medical or veterinary research, medical or veterinary necropsy, and bona fide educational use of dead animals shall not be considered mutilation;

(18) Attaches or allows to be attached a collar or harness to an animal that is of an inadequate size so that it restricts the animal's growth or causes damage to the animal's skin;

(19) Attaches or allows to be attached a tether that is not appropriately sized for the animal or so heavy as to restrict or burden the animal's movements;

(20) Displays, transfers ownership, or offers to transfer ownership of any turtle with a carapace of less than four (4) inches in length;

(21) Teases, taunts, beats, or provokes an aggressive reaction from an animal; or

(22) Fails to prevent the breeding of flies, mosquitos, or other insects or the growth of plant material in any water troughs, bowls, tanks, or other containers.

(b) Animals seized pursuant to this section may be impounded and the city enforcement agent may petition the municipal court for a hearing to determine whether the animal was inhumanely treated and to determine the disposition of the animal. The petition shall be filed within forty-eight (48) hours of the seizure. If the court is not open during this forty-eight (48) hour period, the petition shall be filed the next day the court is open for business. If a hearing is not requested, then the animal shall be returned to the owner upon request of the owner.

(c) This section shall not be interpreted to restrict the lawful activities and legitimate operations of rodeos, 4H clubs, or FFA clubs.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-27. Placement and baiting of animal traps and poison.

(a) Humane traps shall be used to trap animals within the city, whether on public or private property. The person who places the trap, or who requests its placement, shall be responsible for checking the trap, the care of the animal while it is in the trap, and the notification to the department of any captured animal. All traps shall be checked at least daily.

No traps shall be placed upon public property without written permission from the department. It shall be the responsibility of the person setting the trap to properly label the trap indicating the name and contact information for the owner and the date permission was obtained from the department.

(b) All captured domesticated animals shall be turned over to the department, unless the animal is captured as part of a feral animal neutering program that has obtained written permission from the animal services director to place traps within the city. All captured wild animals shall be turned over to the department, a wildlife educational center, or state-licensed wildlife rehabilitator within twenty-four (24) hours.

(c) *Offenses.* A person commits an offense if he:

(1) Places, or places and baits, or allows the placing or placing and baiting, of an steel-jawed trap (commonly known as a "bear trap", "wolf trap", "leg hold trap", or "coyote trap"), a body hold trap (commonly known as "connibear trap"), any snare trap, any noose-type trap, or any other trap designed, used, or adapted to be lethal or cause serious bodily injury or death of an animal;

(2) Places or allows the placing of any substance, article, or bait that has in any manner been treated with any poisonous or toxic substance, including anti-freeze, or any drug in any place accessible to human beings, birds, dogs, cats or other animals with the intent to kill or harm animals;

(3) Fails to check a trap he has placed, placed and baited, or allowed to be placed or placed and baited at least once every twenty-four (24) hours;

(4) Places, or places and baits, or allows the placing or placing and baiting of any trap when the overnight low temperature is expected to be below forty (40) degrees Fahrenheit without first obtaining written permission from the department;

(5) Places, or places and baits, or allows the placing or placing and baiting of any trap under conditions which may endanger the health of the animal due to exposure to rain, snow, extreme temperatures, lack of food or water, or under other circumstances that may cause bodily injury, serious bodily injury or death of the animal, whether or not such injury occurs;

(6) Euthanizes, kills or attempts to euthanize or kill a trapped animal in a manner other than one specifically allowed in this chapter;

(7) Places or places and baits a trap or allows the placing or placing and baiting of any trap designed for trapping animals in any highway, street, alley, or other public place within the incorporated limits of the city unless specific written permission by the department has been granted. This subsection shall not apply to a city enforcement agent or an agency working in compliance with written permission from the department for placing the trap on public property;

(8) Removes, alters, damages, or otherwise tampers with a trap or equipment belonging to or placed at the request of the department; or

(9) Places, or places and baits a trap, other than a commercially available trap solely designed to exterminate mice, rats, or insects, for commercial profit, without identifying the trap with the name, telephone number, and Texas Department of Agriculture structural pest control

applicator license number of the applicator who placed or placed and baited the trap.

(d) Any trap found to be set in violation of this chapter may be confiscated by a city enforcement agent and held as evidence in the case for the offense.

(e) This section shall not be interpreted to restrict the extermination of rats, mice, or insects, through the use of traps, poisons, or other commercially available means when used in that person's residence, property, accessory structure, or commercial establishment and in accordance with the manufacturer's directions as long as reasonable precautions are taken to ensure that no human, pet, or wild animal, other than the targeted species, comes into contact with the traps, poisons, or other means and that does not violate any other section of this chapter.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-28. Tethering animals.

(a) A person commits an offense if he tethers an animal to a stationary object for any length of time except as allowed by subsections (b) and (c) of this section.

(b) Restraint on the owner's property or for a lawful animal event, veterinary treatment, grooming, training, law enforcement activity, or when needed to protect the safety or welfare of a person or animal, shall be allowed provided that all of the following conditions are met:

(1) The animal's owner maintains continuous, direct physical control of the animal throughout the period of restraint;

(2) The tether is attached to a properly fitting collar or harness and is not wrapped around the animal's neck. Choke or prong-type collars are prohibited;

(3) The tether is designed and placed in a manner to prevent entanglement or injury; and

(4) The tether does not allow the animal to move outside the person's property or come within ten (10) feet of public property if tethered outside a fenced area.

(c) A "skyline" type aerial trolley consisting of a line that is strung between two (2) fixed points that are at least twenty (20) feet apart with a down line that is at least five (5) feet in length is allowed as long as the requirements of subsections 4-28(b)(2), (b)(3), and (b)(4) are met and the animal is enclosed behind a fence of adequate size and strength capable of preventing the general public, including children, and other animals from entering the area.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-29. Animal housing enclosure requirements.

(a) All animal housing enclosures must be securely built, adequately sized for the kind, size, and number of animals housed, maintained in a sanitary condition so that flies or mosquitoes are not allowed to breed and odors are not offensive to adjacent residences or businesses, in compliance with all other requirements of this chapter, city zoning laws, and the following minimum standards:

(1) Enclosures housing fewer than five (5) animals must be at least twenty (20) feet from any adjacent building, excluding any building owned by the owner of the animals;

(2) Enclosures housing five (5) or more animals must be at least fifty (50) feet from any adjacent building, excluding any building owned by the owner of the animals;

(3) Enclosures used as an area for a dog to regularly eat, sleep, drink, and/or eliminate must have at least one hundred (100) square feet of space for each dog six (6) months of age or older that is housed there;

(4) In addition to all other requirements under this chapter, enclosures used to house backyard hens must have an enclosed coop with at least four (4) square feet of space for each hen housed and an attached exercise yard that has at least eight (8) square feet of space per hen housed. The coop may be located above

the exercise yard provided that the maximum height is in compliance with all accessory building restrictions; and

(5) Enclosures shall be located, constructed, and maintained so that the animals being housed are protected from inclement weather, harassment, stings and bites from insects, and attacks by other animals.

(b) A person commits an offense if he fails to provide an enclosure or enclosures meeting the criteria set forth in this section.

(c) Dangerous animal enclosures shall also meet the requirements of a secure enclosure as set out in this chapter.
(Ord. No. 2021-9-24, § II, 9-27-21)

Secs. 4-30—4-50. Reserved.

ARTICLE III. PUBLIC NUISANCES

Sec. 4-51. Nuisances.

(a) A person commits an offense if the person is an owner of an animal and the person permits, or by insufficient control allows, any of the following to occur:

(1) Creation of any condition on the owner's property, or that carries over to an adjacent property, that renders the ground, the water, the air or the food hazardous or injurious to human or animal life or health or that is offensive to the senses or that is detrimental to the public health;

(2) The animal to be at large as defined by this chapter;

(3) Creation of a condition conducive to the breeding of flies, mosquitoes, ticks, fleas, or other pests;

(4) Breeding or causing to be bred any animal within the public view; or

(5) Allowing any female animal in estrus to be on any public property, or any private property not owned by the animal's owner, except to transport said animal to a veterinarian for treatment or to a planned breeding in compliance with all other provisions of this chapter.

(b) A person commits an offense if the person causes an animal not owned by him to be at-large by intentionally, knowingly, or recklessly releasing a confined animal.

(c) A person commits an offense if the person is the owner of an animal and the person fails to immediately remove and dispose of any excreta the animal produces.

(d) A person commits an offense if the person is the owner of an animal and fails to visibly have in his possession materials that can be used to immediately remove and dispose of any excreta the animal produces.

(e) It is an affirmative defense to prosecution under subsections 4-51(c) and (d) if the owner proves by preponderance of the evidence that:

(1) The property where the animal defecated was owned, leased, or controlled by the owner of the animal at the time it defecated;

(2) The animal was an assistance animal, and at the time it defecated, the animal was in the presence of its disabled person or was present on the property of its disabled person;

(3) The owner of the property or person in control of the property had given prior consent for the animal to defecate on the property;

(4) The animal is a police service animal being used in official law enforcement activities; or

(5) The animal is under the direction and control of a non-profit search and rescue organization participating in an authorized search and rescue activity.

(f) It is an affirmative defense to prosecution under subsections 4-51(a)(2), (a)(4) and (a)(5) if the owner proves by a preponderance of the evidence that the animal was at large due to

forces of nature, fire, or the criminal act of a third party who was not residing at the animal owner's residence.

(g) After the third offense resulting in conviction, as defined in this chapter, of any person with care, custody, or control of an animal, for violating subsection 4-51(a) in any twelve (12) consecutive month period, a city enforcement agent may petition the City of Plano Municipal Court for a hearing to determine if such animal is a continuing public nuisance. After the hearing, a Plano municipal court judge may order the:

(1) Disposition of the animal as provided in article IV of this chapter, except that the animal may not be returned to the location where the animal resided at the time of the nuisance action;

(2) Exclusion from the city limits of Plano of the animal; or

(3) Return of the animal to the owner.

(h) After an order in subsection (g) is issued by the municipal court, the owner shall comply with the order or within the time specified in the court order, or if no time for compliance is specified in the order, within forty-eight (48) hours after the order is signed by the judge.

(i) If a judge orders that the animal is to be removed from the city limits of Plano, the owner shall provide the address of the location of the animal to the animal services director in writing within seventy-two (72) hours of the signing of the order.
(Ord. No. 2021-9-24, § II, 9-27-21)

Secs. 4-52—4-60. Reserved.

ARTICLE IV. IMPOUNDMENT, REDEMPTION AND DISPOSITION OF ANIMALS

Sec. 4-61. Impoundment.

(a) *Impoundment.*

(1) *Rabies.* The city enforcement agent shall impound and quarantine any animal that he has probable cause to believe was exposed to or infected with rabies. Any animal that exhibits symptoms of the rabies disease during quarantine shall be euthanized;

(2) *Owner's absence.* The city enforcement agent shall impound an animal at the request of a peace officer or owner of the property where the animal is located when the owner of the animal has been arrested, hospitalized, is missing, has died, or when the owner is being lawfully evicted from his premises and there is no person present seventeen (17) years of age or older who will assume responsibility for the animal;

(3) *Animal at large.* The city enforcement agent may impound an animal found to be at large;

(4) *Dangerous animal.* The city enforcement agent shall follow the procedures for impoundment of dangerous animals set forth in article IX of this chapter;

(5) *Unauthorized possession.* The city enforcement agent may impound an animal if the city enforcement agent has probable cause to believe the animal is being possessed in violation of local, state, or federal law;

(6) *Inhumane treatment.* The city enforcement agent may impound an animal if the city enforcement agent has probable cause to believe the animal has been inhumanely treated as defined by this chapter; or

(7) *LRCI.* The city enforcement agent may impound and quarantine an animal the agent has probable cause to believe has been involved in a LRCI.

(b) The animal shelter shall be considered the designated caretaker of an impounded animal immediately upon intake at the shelter. After the expiration of any required holding period, the city shall become the full owner of the animal in question and may dispose of it in accordance with this chapter.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-62. Redemption of impounded animals.

(a) In order for a person to redeem an impounded animal he must meet the following requirements:

(1) *Conditions for redemption of animals:*

a. Rabies vaccination of the animal is required.

1. For the purposes of this subsection, sufficient proof of an animal's current rabies vaccination shall be either a rabies vaccination certificate issued by a licensed veterinarian or verbal or written confirmation of a current rabies vaccination by the licensed veterinarian who administered the vaccination.

2. If the owner cannot prove that the animal has a current rabies vaccination, the owner shall pay a fee to have a rabies vaccination given prior to the release of the animal.

3. If a vaccination cannot be given at the time of the redemption the owner shall have seven (7) business days to provide written proof of obtaining a current rabies vaccination to the city enforcement agent.

4. If, in the opinion of a licensed veterinarian, the rabies vaccination should not be given within the seven (7) business day period, the owner must provide a signed statement from the veterinarian stating why the vaccine should be temporarily delayed and when the vaccine may be given. The owner shall provide written proof of the administering of the vaccination to a city enforcement agent within forty-eight (48) hours.

(2) *A microchip implant in the animal is required.* If the animal is not already identifiable by microchip, the owner shall pay a fee to have a microchip implanted into the animal prior to release.

(3) *Sterilization of the animal is required.*

a. The owner shall submit proof of having the animal sterilized within thirty (30) days of its release. The proof shall be a completed sterilization certification form provided by the animal services facility that is signed by the sterilizing veterinarian.

b. Subsection 4-62(a)(3)a. shall not apply if the owner provides proof that the animal has a current city registration and rabies vaccination, the animal is identified by microchip or visible identification, and one or more of the following conditions is met at the time of impoundment:

1. Either the animal is registered with a national registry; or the animal is a sporting dog, livestock dog, or working dog, and the owner was a member of a national breed club, local breed club, or sporting or hunting club; or

2. The animal was a professionally trained assistance or police service animal; or

3. The animal was at large due to forces of nature, fire, or the criminal act of a third party who was not residing at the animal owner's residence.

c. Nothing in this subsection shall be construed as permitting sterilized dogs and cats to run at large.

d. Upon the animal's first impound in any twelve (12) month period, and the owner chooses to have his animal sterilized prior to redemption, his impound fee shall be waived. The

owner shall pay a sterilization fee and any other applicable fees prior to the animal being returned.

e. Any animal that is impounded a second time in any consecutive twelve (12) month period shall be sterilized prior to redemption by the owner. This subsection shall not apply if the animal was at large due to forces of nature, fire, or the criminal act of a third party who was not residing at the animal owner's residence.

(4) *City registration required.*

a. If the owner cannot prove that the animal has a current city registration, the owner shall pay a fee to have the animal registered as required by article VII of this chapter.

b. If the owner cannot prove that the animal has a current rabies vaccination, and a vaccination cannot be given at the time of redemption, the owner shall pay a fee to have the animal registered as required by article VII of this chapter and given seven (7) business days to provide written proof of a current rabies vaccination to the city enforcement agent. The registration shall not be considered valid until the proof of rabies vaccination is provided by the owner.

(5) *Payment of fees.* The owner must pay all applicable fees before the animal is released.

(6) *Wild animals.* Impounded wild animals kept in violation of this chapter may not be redeemed and may be placed with a wildlife rehabilitator or wildlife educational center or euthanized at the animal services director's discretion.

(7) A person commits an offense if he fails to provide the proof of rabies vaccination required in subsection 4-62(a)(1)c. or (a)(1)d.

(8) A person commits an offense if he fails to provide the proof of sterilization required in subsection 4-62(a)(3)a.

(9) A person commits an offense if he fails to provide the proof of city registration required in subsection 4-62(a)(4)b.

(b) This section shall not apply if the animal was impounded:

(1) For being inhumanely treated as defined in this chapter and a hearing is pending or shall be pending to determine the disposition of the animal;

(2) As a dangerous animal as defined in this chapter and a hearing is pending or shall be pending to determine the disposition of the animal; or

(3) For investigation of rabies and the quarantine period has not expired.

(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-63. Disposition of animals.

(a) *Time limits.*

(1) Impounded animals with no means of traceable identification shall be kept for not less than three (3) business days, unless earlier reclaimed by the owner or the owner's agent or euthanized as allowed by this chapter.

(2) Animals with any type of traceable identification shall be kept for not less than ten (10) business days, or not less than three (3) business days from the time the owner is notified, whichever is the shorter time period, unless earlier reclaimed by the owner or the owner's agent or euthanized as allowed by this chapter.

(3) An animal impounded at the request of a peace officer or property owner as required by subsection 4-61(a)(2) of this chapter shall be kept for not less than ten (10) business days unless earlier reclaimed by the owner or the owner's agent or euthanized as allowed by this chapter.

(4) An impoundment period is not required for an animal voluntarily released to the department by its owner.

(5) An impoundment period is not required for any wild animal.

(b) *Injured or diseased animals.*

(1) Any impounded animal, registered or unregistered, which appears to be suffering from serious bodily injury or disease and which is in great pain or suffering and probably will not recover or which appears to have an infectious disease which is a danger to humans or to other animals may be euthanized.

(2) Any animal that is not displaying any type of identification and which due to its violent or feral nature poses a substantial risk of bodily injury to the safety of department staff may be euthanized.

(c) After the expiration of any required impoundment period or immediately after being voluntarily released by its owner, the animal shall become the property of the City of Plano, all ownership rights for the animal shall transfer to the City of Plano, and the department may dispose of the animal by any of the following methods, taking into consideration factors that may include, but not be limited to, the animal's behavior, aggressive tendencies, feral characteristics, health, and housing space availability, within the sole discretion of the animal services director:

(1) *Adoption.*

a. The department shall be authorized to place for adoption dogs or cats impounded by city under the following conditions:

1. The department shall evaluate all animals to determine if it is an adoption candidate, based on its health, temperament, and appropriateness for vaccination. However, authorization to place a dog or cat for adoption shall not constitute a warranty of the health, temperament, or age of the animal.

2. There will be an adoption fee for all dogs and cats at an amount set by the Plano City Council. The fee will include the cost of sterilization, vaccination, implantation of a microchip, and licensing.

3. All animals adopted from the animal services facility shall be implanted with a microchip, vaccinated against rabies according to state guidelines, and sterilized.

4. If, in the opinion of a licensed veterinarian, there is a legitimate health risk justifying the delay of sterilization, the person adopting the animal must provide a signed statement from the veterinarian stating why the sterilization should be delayed and when the procedure may be performed. A legitimate health risk cannot be based solely on the age of the animal if the animal is at least eight (8) weeks old. The owner shall provide written proof to the department of the completed sterilization within forty-eight (48) hours of the procedure.

b. If an adopted animal dies on or before the sterilization completion date, the adopting person must provide written documentation to the department that the animal has died.

c. If an adopted animal is lost or stolen before the sterilization date, the adopting person must provide written documentation to the department stating that the animal is lost or stolen and a copy of the police report, if any, of the theft. In order to be sufficient, the letter shall be

delivered to the department not later than the seventh (7th) business day after the date of the animal's disappearance and shall describe the circumstances surrounding the disappearance and the date of disappearance.

(2) *Transfer to releasing agency or foster care.*

a. The department may transfer ownership of the animal to a releasing agency that has a signed transfer agreement for dogs and cats on file with the department provided that the group sterilizes and microchips the animal prior to placing it into an adoptive home.

b. The department may temporarily place the animal in a foster home that has a signed foster agreement for dogs and cats on file with the department.

(3) *Euthanasia.* The department may euthanize the animal due to the animal's health or temperament, space limitations, or as otherwise deemed necessary by the animal services director.

(d) All decisions related to the disposition of an animal pursuant to subsection 4-63(c) shall be made at the sole discretion of the animal services director or his designee unless otherwise mandated by law or a court order.

(e) A person commits an offense if he fails to provide the proof required in subsection 4-63(c)(1)a.3.
(Ord. No. 2021-9-24, § II, 9-27-21)

Secs. 4-64—4-80. Reserved.

ARTICLE V. MULTIPLE ANIMALS

Sec. 4-81. Permit required for multiple pets.

(a) Except as provided by this section, an individual property with one (1) legal dwelling unit, not including dwelling units that are backyard cottages or accessory dwelling units, shall harbor no more than ten (10) adult animals, no more than four (4) of which may be intact dogs and cats. Any dwelling unit on a property that does not meet the above shall harbor no more than five (5) adult animals, no more than one (1) of which may be an intact dog or cat. No property shall harbor more than one (1) litter, clutch, or other group of offspring, whether whole or in part, at any time.

(b) Any person desiring to keep more animals than allowed by subsection (a) may apply with the department for a multiple pet permit. The applicant shall pay an application fee at the time of filing.

(c) The department shall issue the permit if the following conditions are met:

(1) *Inspection required.* Applicants shall submit to an in-home inspection by the city enforcement agent prior to the issuance of a multiple pet permit. A permit shall not be issued if the inspection determines:

a. That the requested number of animals cannot be maintained without creating noise or odor nuisances;

b. That the requested number of animals cannot be maintained in a healthy and sanitary environment;

c. The number of intact dogs and cats exceeds subsection 4-81(a);

d. That any animal at the location is not in compliance with all provisions of this chapter.

(2) *No inspection required.* Applicants who provide proof of having a current multiple pet permit, and who have not obtained additional animals since their last inspection, and have had no enforcement actions for violating this chapter during the preceding twelve (12) months, may be issued a permit by mail without inspection. The department may require an inspection during reasonable hours at their discretion regardless of the applicant's history.

(d) All multiple pet permits issued under this section shall be valid for one (1) year from the date of issuance, and shall be valid only as to the applicant and location for which it was originally issued.

(e) A person commits an offense if the person is a holder of a multiple pet permit and he refuses, upon request by a city enforcement agent during reasonable hours, to make his animals, premises, facilities, equipment, and any necessary registrations or permits, available for inspection.

(f) A person commits an offense if the person is a holder of a multiple pet permit and he refuses to show his permit upon request by a city enforcement agent.

(g) A person commits an offense if he harbors a greater number of animals than allowed in subsection 4-81(a) without obtaining a multiple pet permit.

(h) A person commits an offense if he is the holder of a multiple pet permit and harbors more animals than authorized in his permit.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-82. Revocation, denial and appeal.

(a) A city enforcement agent may revoke a multiple pet permit issued under section 4-81 or refuse to issue a permit if the permittee or applicant fails to meet the standards required in section 4-81, refuses to permit inspections of the premises, or violates any provision of this chapter.

(b) A denial or revocation of a permit may be appealed to the animal services director. The appeal must be made in writing within fifteen (15) days of receiving written notice of the permit denial or revocation from the department. If no appeal request is received within the fifteen-day period, the denial or revocation of the permit becomes final. Upon receiving an appeal, the animal services director or his designee shall hold a hearing at a time and place of his designation within fifteen (15) days of the appeal being received by the department.

(c) The decision of the animal services director on the appeal of the denial or revocation of a multiple pet permit shall be final.

(d) The permittee or applicant may reapply for a new permit under section 4-81 at any time.
(Ord. No. 2021-9-24, § II, 9-27-21)

Secs. 4-83—4-90. Reserved.

ARTICLE VI. RABIES AND ZOONOSIS CONTROL

Sec. 4-91. State regulations adopted.

The City of Plano hereby adopts by reference the Texas State Rabies Control Act, as amended, and the standards established by the appropriate state agency or rule-making board as minimum standards for rabies control and quarantine provisions within the City of Plano.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-92. Rabies tag and vaccination certificate.

(a) All animals that are required by the Texas State Rabies Control Act to have a rabies vaccination must have their current rabies tag affixed to a properly fitted collar or harness at all times. The owner shall retain the rabies vaccination certificate and make it available for inspection upon request by a city enforcement agent.

(b) Rabies vaccination certificates will be valid for a period of time as determined by the issuing veterinarian in accordance with the Texas State Rabies Control Act.

(c) A person commits an offense if he is the owner of an animal and fails to have the animal vaccinated as required by the Texas State Rabies Control Act.

(d) A person commits an offense if he presents a rabies vaccination certificate to a city enforcement agent for any animal other than the animal for which the certificate was issued.

(e) A person commits an offense if he attaches a rabies tag to any animal's collar or harness other than the animal for which the tag was issued.

(f) A person commits an offense if he fails to display the rabies tag as required by this section.

(g) A person commits an offense if he fails to provide proof of rabies vaccination upon request from a city enforcement agent.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-93. Notification of local rabies control incidents or zoonotic disease.

(a) Any licensed veterinarian or technician working for a veterinarian who diagnoses, examines, or treats any animal diagnosed to have, or suspected to have, rabies, a non-natural infection of anthrax, avian influenza, brucellosis, campylobacteriosis, Escherichia coli 0157:H7, hantavirus, Lyme Disease, monkey pox, plague, Q-fever, rabies, Rocky Mountain Spotted Fever, Salmonellosis, Tularemia, West Nile virus, or any other zoonotic encephalitis, or other zoonotic diseases transmissible to humans, shall immediately report their findings to the department.

(b) Any physician or other medical or veterinary practitioner having knowledge of a local rabies control incident shall notify the department of the names, addresses and phone numbers of persons or animals treated.

(c) Any person owning or possessing an animal which has been involved in a local rabies control incident, or any other person having knowledge of the local rabies control incident, shall notify the Department.

(d) A person commits an offense if he has knowledge of a local rabies control incident and fails to notify the department within forty-eight (48) hours.

(e) A person commits an offense if he has knowledge of any potential disease as listed in this section and fails to notify the department within twenty-four (24) hours.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-94. Quarantine.

(a) Any animal that a city enforcement agent has probable cause to believe was exposed to or is infected with rabies, or that the agent has probable cause to believe has been involved in a local rabies control incident, shall be placed under quarantine. Animals shall be quarantined according to state law and rules and if the animal is not already identifiable by microchip, the owner shall pay a fee to have a microchip implanted into the animal prior to release. The seizure of animals for quarantine shall be pursuant to section 4-2 of this chapter.

(b) Upon request by the owner, a home quarantine may be allowed if the animal services director determines all state requirements for a home quarantine are met and the owner complies with all of the following requirements:

(1) Isolates the animal from all people and pets other than those that lived with the biting animal at the quarantining residence prior to the local rabies control incident;

(2) Agrees to allow a city enforcement agent to inspect the animal and residence at any reasonable time during the quarantine period;

(3) Agrees to contact the department immediately if the animal escapes from the residence, dies, attacks any other person or animal, exhibits any change in behavior, or exhibits any sign of illness;

(4) Confines the animal inside a residence or dwelling at all times other than times for evacuation of waste material. During evacuation, the animal shall be kept on a tether not more than six (6) feet in length and must remain under the direct physical control of an adult at all times;

(5) Agrees to keep the animal at the approved residence or dwelling throughout the quarantine period unless prior written approval to move the animal is obtained from the animal services director;

(6) Agrees to keep the animal under quarantine until the animal is cleared by the animal services director;

(7) Implants and registers a microchip in the animal in compliance with this chapter; and

(8) Agrees to immediately turn the animal over to a state-approved rabies quarantine facility for the duration of the quarantine period as ordered by the animal services director if any section of this chapter is violated.

(c) A person commits an offense if the person fails or refuses to immediately comply with the animal services director's order to quarantine at the owner's residence or present for quarantine or testing at a state approved rabies quarantine facility, any animal that the animal services director has probable cause to believe has been involved in a local rabies control incident.

(d) A person commits an offense if the person fails or refuses to provide proof of complying with the animal services director's order to implant and register a microchip in any animal that the animal services director has probable cause to believe has been involved in a local rabies control incident.

(e) Should a potential outbreak of rabies within the city be suspected and the danger to the public safety from rabid animals be reasonably imminent, the health director is hereby authorized to issue a quarantine proclamation, ordering persons owning, keeping, or harboring dogs, cats or other warm-blooded animals to muzzle the same or confine them for the time as may be specified in the quarantine proclamation. Upon the publication of the proclamation by local newspapers, persons owning or harboring animals addressed by the proclamation shall confine them to premises unless they are effectively muzzled and under the control of an adult person by a tether not more than six (6) feet in length. After publication of the proclamation, an animal found to be in violation of the order or at large may be impounded or destroyed by a city enforcement agent if such agent is unable, with reasonable effort, to apprehend the animal for impoundment.

(f) A person commits an offense if the person fails or refuses to immediately comply with the health director's order to quarantine an animal in response to a potential outbreak of rabies.
(Ord. No. 2021-9-24, § II, 9-27-21)

Secs. 4-95—4-110. Reserved.

ARTICLE VII. ANIMAL IDENTIFICATION AND REGISTRATION

Sec. 4-111. City registration required.

(a) All animals that are required by the Texas State Rabies Control Act to have a rabies vaccination must also be registered with the city. The city registration tag must be affixed to a properly fitted collar or harness at all times. The owner shall retain proof of the animal's city registration and make it available for inspection upon request by a city enforcement agent.

(b) Subsection 4-111(a) does not apply to animals temporarily within the city for a period not to exceed fourteen (14) days.

(c) City registrations shall be on forms and tags furnished by the animal services director and shall be issued subject to the provisions of this chapter.

(d) The department shall not issue a registration tag to an animal that is not currently vaccinated against rabies.

(e) Registration tags shall be renewed annually.

(f) A person commits an offense if he affixes a city registration tag to any animal's collar or harness other than the animal for which it was issued.

(g) A person commits an offense if he is the owner of a dog, cat, or ferret over the age of four (4) months within the City of Plano and does not have a current city registration for the animal.

(h) A person commits an offense if he fails to display the registration tag as required by this section.
(Ord. No. 2021-9-24, § II, 9-27-21)

Secs. 4-112—4-120. Reserved.

ARTICLE VIII. ANIMAL BUSINESSES

Sec. 4-121. Permit required for animal establishments and commercial breeders.

(a) Persons wishing to operate an animal establishment or to become a commercial breeder within the City of Plano must apply for an animal establishment or commercial breeder permit. A permit shall be issued if the requisite fee is paid and the applicant complies with the following conditions:

(1) Cold and hot water and appropriate disinfecting/sanitizing chemicals for washing and disinfecting cages are easily accessible to all parts of the animal housing areas;

(2) Fresh, potable water shall be available to all animals at all times. Containers are cleaned and disinfected each day. All water containers shall be removable for cleaning and mounted, placed, or weighted so the animal cannot turn them over;

(3) The ambient temperature in the animal housing areas is maintained between sixty (60) and seventy-nine (79) degrees Fahrenheit at all times. The temperature and humidity in individual cages are maintained at levels that are healthful for the species of animals being housed and adequate ventilation is maintained in all animal housing areas;

(4) All cages and enclosures are constructed of a nonporous material for easy cleaning and disinfecting. Each cage and enclosure is of sufficient size that at minimum the animal will have room to stand, turn, and lie down in a natural position. Each cage and enclosure is thoroughly cleaned and disinfected each day. Each cage and enclosure is locked or otherwise secured to prevent the escape of any animal being kept. Injured or ill animals shall be kept isolated from healthy animals;

(5) Daily feeding records are maintained to ensure that all animals are fed a proper and nutritious diet specific to the species' needs. The daily feeding records shall be maintained or posted in a readily accessible location. All veterinarians' orders must be in writing and kept on record and available for inspection during the animal establishment's or commercial breeder's regular business hours. In general, all animals under six (6) months of age are to be fed at least two (2) times per twenty-four (24) hour period, or as advised by a veterinarian, and all other animals must be fed at least one (1) time per twenty-four (24) hour period, or as advised by a veterinarian. Food for each animal shall be served in a clean dish so constructed or mounted that the animal cannot readily tip it over and be of the type that are removable for cleaning. Disposable feeding dishes are acceptable for one-time use only. Animals that do not require daily feedings are exempt from the daily feeding requirement; however, feeding records shall be maintained and the animal shall be kept in a healthful body condition;

(6) Each bird must have sufficient room to stand upright without touching the top of their housing area and to spread their wings fully without touching the side of their housing area. Each bird shall have access to a perch that is placed horizontal to other perches in the same cage and is of adequate size for the species being housed. The housing area must be sufficiently ventilated. Large birds shall have separate cages from smaller birds. There shall be clean water and suitable food available to the birds at all times and all troughs or other receptacles must be easily accessible to the birds and placed so that the birds cannot turn them over or defile their contents. Injured, diseased, or dead birds shall be immediately removed from housing areas holding healthy birds;

(7) There is sufficient clean, dry bedding to meet needs of each individual animal;

(8) All animals are fed and watered, and all cages cleaned and disinfected every day including Sundays and holidays;

(9) All dogs, cats, and ferrets four (4) months of age or older have proof of being currently vaccinated against rabies; and

(10) Written procedures are in place to notify the department of any local rabies control incident as required by section 4-93 of this chapter.

(b) A person commits an offense if he transfers ownership, offers to transfer ownership of any animal, provides boarding or daycare for any animal, places any animal up for auction, or otherwise provides services or engages in activities that require an animal establishment or commercial breeder permit without possessing a valid animal establishment or commercial breeder permit.

(1) It is an affirmative defense to subsection 4-121(b) if the transfer was a private sale of the animal as authorized by this chapter.

(c) A person commits an offense if he owns, operates, manages, or represents an animal establishment or commercial breeding service and is in possession of, transfers ownership of, or offers to transfer ownership of any animal other than a domestic animal or female chicken.

(d) A person commits an offense if he owns, operates, manages, or represents an animal establishment or commercial breeding service and has a permit issued under this section and refuses, upon request by the department, to make his animals, the portion of the premises that house or are used to service the animals, equipment, and any necessary registrations, veterinary records, feeding logs or permits available for inspection during regular business hours. If there are no set business hours, then the inspection may occur during reasonable hours.

(e) A person commits an offense if he has a permit issued under this section and fails to comply with any condition required in subsection 4-121(a) or with any other condition of his permit. Each animal or condition in violation of this chapter shall constitute a separate offense. (Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-122. Permit required for animal exhibition.

(a) The presenter or owner of the animal exhibition, or the property owner where the exhibit is to take place, must apply for an animal exhibition permit at least thirty (30) business days before the performance or display and provide exact dates, times, locations, transportation and housing arrangements, and animals involved in each performance or display. Permits shall only be issued to animal exhibitions that are in possession of all state and federal permits required to present such exhibitions. A permit shall be issued and remain valid for an exhibition period of not more than seven (7) days if the animal exhibition pays the required fee and complies with the following requirements:

(1) All cages or other animal housing areas are kept clean and free of wastes;

(2) Fresh, potable water is available to all animals at all times. Containers for food and water are cleaned and disinfected each day. All water containers shall be removable for cleaning and mounted, placed, or weighted so the animal cannot turn them over;

(3) If indoors, the ambient temperature in the animal housing areas is maintained between sixty (60) and seventy-nine (79) degrees Fahrenheit at all times. The temperature in individual cages is maintained at a level that is healthful for the species of animals being housed and adequate ventilation is maintained in all animal housing areas. If outdoors, the exhibition must immediately be halted if at any time the heat index exceeds ninety-five (95) degrees Fahrenheit;

(4) All cages and enclosures are constructed of a nonporous material for easy cleaning and disinfecting. Each cage and enclosure is of sufficient size that at minimum the animal will have room to stand, turn,

and lie down in a natural position. Each cage and enclosure is thoroughly cleaned and disinfected each day. Each cage and enclosure is of sufficient strength to contain the animal being housed within it. Each cage and enclosure is locked or otherwise secured to prevent the escape of any animal being kept;

(5) Daily feeding records are maintained to ensure that all animals are fed a proper and nutritious diet specific to the species' needs. The daily feeding records shall be maintained or posted in a readily accessible location. All veterinarians' orders must be in writing and kept on record and available for inspection during the animal exhibition's regular business hours. In general, all animals under six (6) months of age are to be fed at least two (2) times per twenty-four (24) hour period, or as advised by a veterinarian, and all other animals must be fed at least one (1) time per twenty-four (24) hour period, or as advised by a veterinarian. Food for each animal shall be served in a clean dish so constructed or mounted that the animal cannot readily tip it over and be of the type that is removable for cleaning. Disposable feeding dishes are acceptable for one (1) time use only. Animals that do not require daily feedings are exempt from the daily feeding requirement; however, feeding records shall be maintained and the animal shall be kept in a healthful body condition;

(6) Animals exhibiting any sign or symptom of illness or disease, such as diarrhea, vomiting, nasal discharge, or malaise, shall immediately be removed from the animal exhibition;

(7) All animals being exhibited must have a health certificate that was issued by a licensed veterinarian within the twelve (12) months preceding the first day of the animal exhibition;

(8) Each bird must have sufficient room to stand upright without touching the top of its housing area and to spread its wings fully without touching a side of its housing area. Each bird shall have access to a perch that is placed horizontal to other perches in the same cage and is of adequate size for the species being housed. The housing area must be sufficiently ventilated. The housing area must be cleaned every day and disinfected when birds are sold or otherwise transferred. Large birds shall have separate cages from smaller birds. There shall be clean water and suitable food available to the birds at all times and all troughs or other receptacles must be easily accessible to the birds and placed so that the birds cannot turn them over or defile their contents. Injured, diseased, or dead birds shall be immediately removed from housing areas holding healthy birds;

(9) There is sufficient clean, dry bedding to meet needs of each individual animal;

(10) All animals are fed and watered, and all cages are cleaned and disinfected every day during the exhibition, including Sundays and holidays;

(11) All animals required by the Texas State Rabies Control Act to have a rabies vaccination must have proof of being currently vaccinated against rabies;

(12) Animals being used to give rides or doing other work are in good physical condition, including their hooves or feet, and given not less than a thirty (30) minute break for each three (3) hours worked;

(13) All areas used by the exhibitor are thoroughly cleaned and all wastes are properly disposed of at the conclusion of the exhibition. All manure and soiled bedding shall be removed immediately and all animal waste and specific tools for its removal must be stored in designated areas restricted from public access;

(14) Written procedures are in place to notify the department of any local rabies control incident as required by section 4-93 of this chapter;

(15) The animal exhibition is divided into three (3) distinct areas that are separated by barriers:

a. *Non-animal areas:* Where animals, with the exception of service animals, are not permitted;

b. *Transition areas:* Located at both entrances and exits to animal areas; and

c. *Animal areas:* Where animal contact with human beings is possible.

(16) The animal exhibition shall be designed so that there is a single entrance transition area leading to the animal area and a separate exit transition area leading out of the animal area. The permit holder shall be responsible for controlling visitor traffic to prevent overcrowding in any of these areas;

(17) Entrance transition areas must be designed to facilitate education. Signs shall be posted at all entry transition areas notifying visitors that they are entering an animal area and that they are not to eat, drink, smoke, place their hands in their mouths, or use bottles or pacifiers while in the animal area. Signs warning that senior citizens, pregnant women, young children, and persons who are immunocompromised or mentally impaired are at an increased risk of disease, illness, or injury and should take extra precautions to protect themselves shall also be posted in the entrance transition area;

(18) Strollers, food, and beverages are allowed to be possessed, prepared, served, or consumed only in non-animal areas. The animal exhibition permit applicant must provide storage or holding areas for these items for visitors;

(19) Exit transition areas must be designed to facilitate hand washing. Signs shall be posted instructing visitors to wash their hands and illustrating proper hand-washing techniques. An appropriate number of hand washing stations shall be present in the exit transitional area. Hand washing stations must be accessible for all visitors, including children and persons with disabilities. Hand washing stations shall comply with all local, state, and federal waste water restrictions and requirements. A staff member must be positioned in the exit transition area at all times to encourage hand washing;

(20) Animal areas must provide adequate ventilation for both animals and people. Visitors may not be allowed to access animal food or water sources. Toys, pacifiers, baby bottles, strollers, food, beverages, or tobacco products may not be present in the animal area at any time. All manure and soiled bedding shall be removed immediately and all animal waste and specific tools for its removal must be stored in designated areas restricted from public access. Animals exhibiting any sign of illness or disease, such as diarrhea, vomiting, nasal discharge, or malaise, shall immediately be removed from the animal area. No pregnant animal may be exhibited at any time. Every animal that is required by state law to have rabies vaccinations must have the appropriate documentation stating that this requirement has been met. Every animal being exhibited must have a health certificate that was issued by a licensed veterinarian within the twelve (12) months preceding the last date of the animal exhibition; and

(21) Any wild animal, as defined in this chapter, may not be exhibited in any animal exhibition or otherwise possessed within the City of Plano, unless the possession is specifically allowed by and complies with another section of this chapter.

(b) A person commits an offense if he owns, operates, manages, or represents an animal exhibition that requires a permit and denies or refuses to make available for inspection, upon request by the department during business hours of the animal exhibition, the animals, that portion of the premises used to house or service the animals,

the facilities for the animal exhibition, equipment for the animal exhibition, including any equipment used to transport the animals, or any necessary registrations, records, feeding logs, or permits.

(c) A person commits an offense if he owns, operates, manages, represents, or hires an animal exhibition without a valid permit. Each animal or condition found in violation of this chapter during an animal exhibition that does not possess a valid permit shall constitute a separate offense.

(d) A person commits an offense if he owns, operates, manages, represents, or hires an animal exhibition under this section and fails to maintain any condition in subsection 4-122(a). Each animal or condition in violation of this chapter shall constitute a separate offense.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-123. Permit required for pet grooming facilities.

(a) Persons wishing to operate a pet grooming facility within the City of Plano must apply for a pet grooming facility permit. A permit shall be issued if the requisite fee is paid, and the applicant complies with the following requirements:

(1) Cold and hot water and appropriate chemicals for disinfection/sanitizing of cages, grooming tables, and grooming utensils is easily accessible to all parts of the animal housing areas;

(2) The ambient temperature in the animal housing areas is maintained between sixty (60) and seventy-nine (79) degrees Fahrenheit at all times. The temperature and ventilation is maintained in all individual animal housing areas at levels that are healthful for the species and type of animals being housed;

(3) All cages and enclosures are constructed of a nonporous material for easy cleaning and disinfecting. Each cage and enclosure is of sufficient size that at minimum the animal will have room to stand, turn, and lie down in a natural position. Each cage and enclosure is thoroughly cleaned and disinfected after each use;

(4) When necessary, there is sufficient clean, dry bedding to meet needs of each individual animal;

(5) All animals held overnight must be fed and watered, and all cages housing animals cleaned every day including Sundays and holidays;

(6) Written procedures are in place to notify the department of any local rabies control incident as required by section 4-93 of this chapter.

(b) A person commits an offense if he owns, operates, manages, or represents a pet grooming facility that requires a permit and refuses, upon request by the department during business hours, to make his animals, that portion of the premises used to house or service the animals, facilities, equipment, and any necessary registrations, veterinary records, feeding logs or permits available for inspection for the purpose of ascertaining compliance with the provisions of this chapter.

(c) A person commits an offense if he owns, operates, manages, or represents a pet grooming facility and fails to comply with any requirement set forth in subsection 4-123(a). Each animal or condition in violation of this chapter shall constitute a separate offense.

(d) A person commits an offense if he owns, operates, manages or represents a pet grooming facility without a valid permit.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-124. Permit required for zoological educational outreach display

(a) The presenter or owner of a zoological educational outreach display must apply for an annual permit from the department. The presenter or owner of the zoological educational outreach display or the property owner where the display is to take place must provide written notice to the department at least fourteen (14) days prior to the display. The written notice must include the exact dates, times, locations, transportation and housing arrangements, and

animals involved in each performance or display. The display may not last longer than seven (7) days and must comply with the following conditions:

(1) All cages or other animal housing areas are kept clean and free of wastes;

(2) Fresh, potable water is available to all animals. Containers for food and water are cleaned and disinfected each day. All water containers shall be removable for cleaning and mounted, placed, or weighted so the animal cannot turn them over;

(3) If indoors, the ambient temperature in the animal housing areas is maintained between sixty (60) and seventy-nine (79) degrees Fahrenheit at all times. The temperature and ventilation is maintained in all individual animal housing areas at levels that are healthful for the species and type of animals being housed. If outdoors, the display must immediately be halted if at any time the heat index exceeds ninety-five (95) degrees Fahrenheit;

(4) All cages and enclosures are constructed of a nonporous material for easy cleaning and disinfecting. Each cage and enclosure is of sufficient size that at minimum the animal will have room to stand, turn, and lie down in a natural position. Each cage and enclosure is thoroughly cleaned and disinfected each day. Each cage and enclosure is of sufficient strength to contain the animal being housed within it. Each cage and enclosure is locked or otherwise secured to prevent the escape of any animal being kept;

(5) Daily feeding records are maintained to ensure that all animals are fed a proper and nutritious diet specific to the species' needs. The daily feeding records shall be maintained or posted in a readily accessible location. All veterinarians' orders must be in writing and kept on record and available for inspection during the animal display's regular business hours. In general, all animals under six (6) months of age are to be fed at least two (2) times per twenty-four (24) hour period, or as advised by a veterinarian, and all other animals must be fed at least one (1) time per twenty-four (24) hour period, or as advised by a veterinarian. Food for each animal shall be served in a clean dish so constructed or mounted that the animal cannot readily tip it over and be of the type that are removable for cleaning. Disposable feeding dishes are acceptable for one-time use only. Animals that do not require daily feedings are exempt from the daily feeding requirement; however, feeding records shall be maintained and the animal shall be kept in a healthful body condition;

(6) Animals exhibiting any sign or symptom of illness or disease, such as diarrhea, vomiting, nasal discharge, or malaise, shall immediately be removed from the animal display;

(7) All animals being displayed must have a health certificate that was issued by a licensed veterinarian within the twelve (12) months preceding the first day of the animal display;

(8) Each bird must have sufficient room to stand upright without touching the top of their housing area and to spread their wings fully without touching a side of their housing area. Each bird shall have access to a perch that is placed horizontal to other perches in the same cage and is of adequate size for the species being housed. The housing area must be sufficiently ventilated. The housing area must be cleaned every day and disinfected when birds are sold or otherwise transferred. Large birds shall have separate cages from smaller birds. There shall be clean water and suitable food available to the birds at all times and all troughs or other receptacles must be easily accessible to the birds and placed so that the birds cannot turn them over or defile their contents. Injured, diseased, or dead birds shall be immediately removed from housing areas holding healthy birds;

(9) There is sufficient clean, dry bedding to meet needs of each individual animal;

(10) All animals are fed and watered, and all cages are cleaned and disinfected every day during the animal display, including Sundays and holidays;

(11) All animals required by the Texas State Rabies Control Act to have a rabies vaccination must have proof of being currently vaccinated against rabies;

(12) All areas used by the presenter are thoroughly cleaned and all wastes are properly disposed of at the conclusion of the display. All manure and soiled bedding shall be removed immediately and all animal waste and specific tools for its removal must be stored in designated areas restricted from public access;

(13) Written procedures are in place to notify the department of any local rabies control incident as required by section 4-93 of this chapter;

(14) The zoological educational outreach display shall be divided into two (2) distinct areas that are separated by a space of no less than six (6) feet to prevent accidental contact between an animal and a spectator. The permit holder and presenter shall be responsible for controlling visitor traffic to prevent overcrowding in either of these areas;

(15) The permit holder shall post signs and verbally notify visitors that that they are not allowed to touch, approach, or otherwise make direct contact with an animal being displayed unless specifically allowed by the permit holder or his representative;

(16) All areas must provide adequate ventilation for both animals and people;

(17) All displayed animals must be controlled with the restraint requirements of this chapter and any wild or wild class I animals must be under direct physical control of the permit holder or his representative at all times unless the animal is confined by a transport or holding cage designed to prevent its escape. If the direct physical control is by means of a tether, it must be of proper strength to control the animal, attached via an appropriately sized and fitted collar or harness, and of a length of not more than three (3) feet. Birds may give free-flight demonstrations provided that the display is indoors and the birds are under the direct physical control of the permit holder or his representative when not in flight;

(18) Contact with domestic and properly restrained wild animals may occur provided that the permit holder complies with all of the following:

a. Allows human contact with wild animals only if the wild animal is under direct supervision of the permit holder or his representative to prevent injuries to the audience and the wild animal;

b. Posts signs at all entry areas notifying visitors that they are entering an animal area and that they are not to eat, drink, smoke, place their hands in their mouths, or use bottles or pacifiers while in the animal area and warning visitors that senior citizens, pregnant women, young children, and persons who are immunocompromised or mentally impaired are at an increased risk of disease, illness, or injury and should take extra precautions to protect themselves;

c. Prohibits strollers, food, and beverages from being possessed, prepared, served, or consumed in the display area and provides storage or holding areas for these items for visitors; and

d. Provides hand washing stations and/or hand sanitizer for all audience members that come into direct contact with an animal. These facilities must be accessible for all visitors, including children and persons

with disabilities. Hand washing stations shall comply with all local, state, and federal waste water restrictions and requirements.

(19) Any wild animal class I, as defined in this chapter, may not be displayed or otherwise possessed within the city, unless the possession is specifically allowed by and complies with another section of this chapter. For the purposes of this chapter, the animal services director shall make the determination of whether any animal in question is a class I wild animal pursuant to the definitions in section 4-1 of this chapter.

a. The animal services director may allow a wild animal class I to be displayed provided that permission to do so is requested in writing by the permit holder at least fourteen (14) days prior to the start of the event and:

1. The wild animal class I to be displayed is of a species that is typically less than one hundred fifty (150) pounds when fully grown, regardless of the animal's size at the time of the display;

2. The wild animal class I was born and raised in captivity;

3. The wild animal class I is not a venomous reptile unless the reptile is going to be continually contained within a locked, escape-proof cage or enclosure with solid walls to prevent contact with a person;

4. The permit holder provides a written plan of containment, restraint, and course of action should the wild animal class I escape;

5. A physical barrier is in place between the wild animal class I and the audience and no direct contact with the animal is allowed by anyone other than the permit holder or his representative;

6. The permit holder possesses all of the necessary state and/or federal permits to possess and display all animals in the display;

7. The animal services director is able to be at the display the entire time the wild animal class I is on-site; and

8. The permit holder agrees to comply with the animal services director's order to immediately stop the display and/or remove the wild animal class I if there is any reason to believe such action is necessary.

(20) The permit holder must make available the state and federal permits granting him the authority to possess and display domestic or wild animals, as defined in this chapter, for educational purposes;

(21) The permit holder must provide proof of accreditation from the American Zoological Association or Zoological Association of America; and

(22) The animal services director shall waive the permit fee if the permit holder is recognized by the Internal Revenue Service as a non-profit organization.

(b) A person commits an offense if he owns, operates, manages, or represents a zoological educational outreach display that requires a permit and denies or refuses to make available for inspection, upon request by the department during the hour before and entire duration of the zoological educational outreach display, his animals, that portion of the premises used to house or service the animals, the facilities for the animal display, equipment for the animal display, or any necessary registrations, records, feeding logs or permits.

(c) A person commits an offense if he owns, operates, manages, represents, or hires a zoological educational outreach display without a valid permit.

(d) A person commits an offense if he owns, operates, manages, represents, or hires a zoological educational outreach display and fails to maintain any condition in subsection 4-124(a). Each animal or condition in violation of this chapter shall constitute a separate offense.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-125. Wildlife educational centers.

(a) A wildlife educational center, as defined herein, shall obtain a wildlife educational center permit from the animal services director and shall comply with any and all applicable local, federal and state regulations. The animal services director shall require the owner or operator of the center to present proof that the center has all the required federal and state permits prior to issuing the permit.

(b) Permitted wildlife educational centers shall obtain written permission from the animal services director to keep any non-indigenous wild animal or any class I wild animal and shall meet all housing requirements set forth by the animal services director for the purposes of safely housing the animal.

(c) The animal services director shall waive the permit fee if the center is a non-profit center.

(d) A person commits an offense if he owns, operates manages, or represents a wildlife educational center which has a permit issued by the city and he refuses, upon request by the department, to make his animals, the portion of his premises used to house or service the animals, facilities, equipment, and any necessary registrations or permits available for inspection during the establishment's regular business hours or at any other reasonable hour.

(e) A person commits an offense if he owns, operates manages, or represents a wildlife educational center without a permit or if he owns, operates manages, or represents a wildlife education center and fails to maintain any condition in section 4-125. Each animal or condition in violation of this chapter shall constitute a separate offense.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-126. Wildlife rehabilitators.

(a) All wildlife rehabilitators, as defined herein, shall obtain a wildlife rehabilitator permit from the animal services director and shall comply with any and all applicable federal state and local regulations regarding the handling and release of wildlife. The animal services director shall require wildlife rehabilitator to present proof that he has any required federal and state permits for wildlife rehabilitation prior to issuing the permit.

(b) A person commits an offense if he is a permitted wildlife rehabilitator and he refuses, upon request by the department, to make his animals, the portion of his premises that is used to house or service animals, facilities, equipment, and any necessary registrations or permits available for inspection during business hours. If there are no regular business hours, then the inspection may occur during reasonable hours.

(c) A person commits an offense if he operates as a wildlife rehabilitator and fails to register with the department.

(d) A person commits an offense if he operates as a wildlife rehabilitator and is in possession of:

(1) Non-native wildlife;

(2) Venomous reptiles;

(3) Native wild cats, including but not limited to, ocelots, jaguarundis, margays, bobcats, and cougars;

(4) Native wild canines including, but not limited to, wolves, coyotes, and foxes;

(5) Native javelinas, feral hogs, or deer; or

(6) Any hybrid of any animal whose possession is prohibited by this chapter.

(e) The prohibition in 4-126 (d) shall not apply to the otherwise legal possession of deer on property that is properly zoned for livestock.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-127. Display of permits required.

A person commits an offense if he holds a permit for an animal establishment, commercial breeder, animal exhibition, pet grooming facility, zoological educational outreach display, or wildlife educational center and fails to prominently display a copy of the current permit in a public area at all times. A person commits an offense if he holds a permit as a wildlife rehabilitator and fails to provide proof of such permit at the request of any city enforcement agent.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-128. Imminent health hazard.

(a) *Ceasing operations and reporting.*

(1) All permit holders shall immediately discontinue operations and notify the department if an imminent health hazard may exist because of an emergency, such as a fire, flood, extended interruption of electrical or water service, sewage backup, misuse of poisonous or toxic materials, onset of an apparent contagious illness outbreak, or other circumstance that may endanger public health or the health of the animals possessed in that location.

(2) A permit holder need not discontinue operations in an area that is unaffected by the imminent health hazard, provided that the unaffected area is able to be completely separated from the affected area and no animals or the public are allowed or kept in the affected area.

(3) If the permit holder fails to immediately cease operations, the animal services director may issue a written order to the permit holder to cease operations. Any animals found to be in the affected area shall be immediately impounded by a city enforcement agent until such time as the animal(s) can be returned to their rightful owner(s) or until the permit holder gains permission to resume operations in accordance with this chapter.

(b) If operations are discontinued as specified under subsection 4-128(a), the permit holder shall obtain written approval from the animal services director prior to resuming operations.

(c) A person commits an offense if they fail to comply with the requirements of subsection 4-128(a).

(d) A person commits an offense if he resumes operations after they are discontinued without obtaining written approval as required in subsection 4-128(b).
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-129. Emergency suspension of permit and appeal.

(a) A city enforcement agent may issue a notice of suspension of a permit issued under this chapter without prior warning, notice, or hearing if the permittee fails to meet the standards required in this chapter, refuses to make the premises or animals in his possession available for an inspection, fails to comply with any condition of his permit, or violates this chapter in any other way, if the notice:

(1) States the reason(s) for the suspension;

(2) States the evidence that the permit holder shall provide in order to demonstrate that the reason(s) for suspension have been eliminated;

(3) States that the permit holder may request an appeal hearing by submitting a timely request to animal services director; and

(4) Provides the name and the address of the animal services director to whom a request for appeal hearing may be made.

(b) An appeal of a suspension must be made in writing within fifteen (15) days of the issuance of the notice of suspension of a permit. If no appeal request is received within the fifteen (15) day period, the suspension of the permit becomes final.

(c) Upon receiving an appeal, the animal services director shall hold a hearing at a time and place of his designation within fifteen (15) days of the notice of appeal being received. Based upon the recorded evidence of the hearing, the animal services director shall make a final ruling.

(d) The decision of the animal services director shall be final.

(e) The permit holder may apply for a permit reinstatement under this section any time after the reason(s) for the suspension have been eliminated. The permit holder shall obtain written approval from the animal services director prior to resuming operations.

(f) A person commits an offense if he resumes operations after his permit is suspended without obtaining written approval as required in subsection 4-129(e).

(g) The issuance of a suspension shall be a remedy in addition to, and not in lieu of, any penalty authorized by this chapter, and shall not limit any other rights of the department to pursue other enforcement actions or remedies to address any violation of the provisions of this chapter.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-130. Permit revocation, denial, and appeal.

(a) An animal services officer may issue a notice of revocation of any permit or deny an application for a permit under this chapter without prior warning, notice, or hearing if the permittee or applicant fails to meet the standards required in this chapter, refuses to make the premises or animals in his possession available for an inspection, seriously or repeatedly violates this chapter in ways that threaten the health or well-being of the permit holder's or applicant's customers, employees, neighbors, or animals in their care, fails to comply with any condition of his permit, or otherwise violates this chapter in any other way, if the notice:

(1) States the reason(s) for the revocation or denial;

(2) States that the permit holder may request an appeal hearing by submitting a timely request to animal services director; and

(3) Provides the name and the address of the animal services director to whom a request for appeal hearing may be made.

(b) An appeal of a revocation or denial must be made in writing within fifteen (15) days of the issuance of the notice of revocation or denial of a permit. If no appeal request is received within the fifteen (15) day period, the revocation or denial of the permit becomes final.

(c) Upon receiving an appeal, the animal services director shall hold a hearing at a time and place of his designation within fifteen (15) days of the notice of appeal being received. Based upon the recorded evidence of the hearing, the animal services director shall make a final ruling.

(d) The decision of the animal services director shall be final.

(e) The permittee or applicant may reapply for a new permit under this chapter at any time.

(f) The issuance of a suspension shall be a remedy in addition to, and not in lieu of, any penalty authorized by this chapter, and shall not limit any other rights of the department to pursue other enforcement actions or remedies to address any violation of the provisions of this chapter.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-131. Private animal sales.

(a) No owner or person shall advertise, display, transfer ownership or offer to transfer ownership of any dog, cat, or ferret over four (4) months of age that is not sterilized, implanted with a microchip, and currently vaccinated against rabies.

(b) The sterilization requirement in subsection (a) shall not apply if the owner can provide proof that the animal meets one (1) or more of the following conditions:

(1) The animal was registered with a national registry or was a sporting dog, livestock dog, working dog, performance dog or the owner was a member of a national breed club, local breed club, sporting or hunting club, or performance club; or

(2) The animal was a professionally trained assistance or police service animal.

(c) A releasing agency, with written permission from the department, may transfer ownership of animals provided that the following conditions are met:

(1) All other provisions of this chapter are complied with;

(2) All displayed animals are sterilized;

(3) All displayed animals over three (3) months of age have been vaccinated against rabies in accordance with this chapter;

(4) All displayed animals have been implanted with a microchip; and

(5) The agency keeps a record for each animal adopted, including the contact information of each new owner and the microchip information and proof of vaccination and sterilization for each animal adopted.

(d) A person commits an offense if he advertises, displays, transfers ownership, or offers to transfer ownership of more than twelve (12) animals or more than two (2) litters, clutches, or other groups of offspring (whichever is greater) of any breeding animal during any twelve (12) consecutive month period to another person for the purpose of breeding, show, personal pet, or resale to a third person, without first obtaining a commercial breeder permit, unless the owner or person is a governmental agency acting in an official capacity or a releasing agency acting in accordance with all other provisions of this chapter.

(e) A person commits an offense if he advertises, displays, transfers ownership, or offers to transfer ownership of any live animal on any public property without written permission from the department.

(f) A person commits an offense if he advertises, displays, transfers ownership, or offers to transfer ownership of any live animal on any private property that is not owned or leased by the person displaying the animal.
(Ord. No. 2021-9-24, § II, 9-27-21)

Secs. 4-132—4-150. Reserved.

ARTICLE IX. DANGEROUS ANIMALS

Sec. 4-151. Complaints.

(a) Upon receipt of a sworn, written complaint by any person over the age of eighteen (18) years charging that a particular domestic animal is a dangerous animal as defined in this chapter, the city enforcement agent shall investigate the complaint, and if there is sufficient evidence of dangerousness, a hearing before the animal services director or his designee shall be held to determine whether the animal is dangerous, unless the matter is resolved by agreement of the animal services director and owner of the animal that is the subject of the complaint prior to the hearing. To be considered valid, a sworn, written complaint shall contain at least the following information:

(1) Name, address and telephone number of complainant(s) and other witnesses;

(2) A description of the animal and the address where it resides, and, if known, the name and telephone number of the owner of the animal;

(3) A statement describing the facts upon which the complaint is based including: a description of the incident or incidents which cause the complainant to believe the animal is a dangerous animal; the date, time and location of the incident; a description of the injuries sustained and whether medical assistance was sought and the outcome of that treatment; and

(4) Any other facts that the complainant believes to be important.

(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-152. Impoundment pending hearing.

(a) Prior to the hearing before the animal services director, the animal shall be impounded and boarded at the owner's expense at the animal services facility, or any other state approved quarantine facility, pending the outcome of the hearing. If the animal that is the subject of

the hearing was already impounded for being an animal at large, was seized pursuant to this chapter, or was abandoned at the animal services facility, the animal shall remain impounded until the conclusion of the hearing.

(b) A person commits an offense if he interferes with the lawful seizure or impoundment of an animal by a city enforcement agent.

(c) A person commits an offense if he harbors, hides, transports, or secures the transport for any animal for the purpose of preventing its impoundment.

(d) A person commits an offense if the person operates or manages a quarantine facility other than the animal services facility, and he fails to properly confine the animal to prevent its escape, releases it to any person, or fails to account for the animal's whereabouts.

(1) Subsection 4-152(d) shall not apply if the person operating or managing the quarantine facility first obtains written permission from the animal services director to release the animal.

(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-153. Hearing.

(a) The hearing before the animal services director to determine if an animal is a dangerous animal shall be conducted within twenty (20) business days after receipt of the sworn complaint, impoundment, or seizure of the animal, whichever occurs later.

(b) Notice of the hearing before the animal services director shall be provided by the animal services director or his designee to the owner of the animal and all complainants who provided a sworn complaint by certified mail, return receipt requested or by personal service. At the hearing before the animal services director, any interested party, including the city attorney or his or her designee, shall be given opportunity to present evidence on the issue of whether the animal is dangerous.

(c) Upon conclusion of a hearing to determine if an animal is a dangerous animal, the animal services director may find that the animal is not dangerous and order that it be promptly returned to its owner's custody after all impound and board fees have been paid. The animal services director shall have the authority to refund, reduce, or waive any fees incurred to the owner.

(d) If the animal services director makes a finding that the animal meets the definition of a dangerous animal as described in section 4-1 of this chapter and that the destruction, removal, or registration of the animal is necessary to preserve the public health, safety, or welfare, then the animal services director shall order one (1) of the following:

(1) Euthanasia of the dangerous animal:

a. shall be ordered if the animal services director makes a finding that the animal caused the death of a person;

b. may be ordered if the animal services director makes a finding that the animal caused serious bodily injury or bodily injury to a person;

c. may be ordered if the animal services director makes a finding that the animal was outside its enclosure or yard and caused serious bodily injury or death to another animal;

d. may be ordered if the animal services director makes a finding that the animal was outside its enclosure or yard and caused bodily injury to another animal and has made at least one (1) unprovoked attack against an animal or person on a previous occasion;

e. may be ordered if the owner of the animal requests euthanasia of the animal.

(2) Removal of the dangerous animal from within the city limits.

a. Prior to the release of the animal from quarantine the owner shall make the animal available to the animal services facility for scanning of the microchip implanted in the

animal and provide to the animal services director, in writing, all of the following:

1. The destination address of where the animal is to reside and the name of the person who will have care, custody, or control of the animal at the destination address;
2. Proof that the owner has alerted the agency responsible for animal services in that area; and
3. Proof that a microchip has been implanted into the animal.

b. A person commits an offense if he removes the animal from the city under this section and fails to:

1. Implant a microchip in the animal; or
2. Provide proof of the implanting of the microchip; or
3. Make the animal available for scanning.

c. A person commits an offense if he removes the animal from a state approved quarantine facility prior to complying with the notice requirements in subsection 4-153(d)(2).

d. A person commits an offense if he allows an animal that has been determined to be a dangerous animal and ordered to be removed from the city limits to return to the city limits.

(3) Return to the owner as a registered dangerous animal after the owner demonstrates compliance with this chapter and the following requirements. The owner shall maintain compliance with all of the following requirements for the remainder of the dangerous animal's life while the dangerous animal is located or resides in the city:

a. Obtain and maintain liability insurance coverage or showing financial responsibility in an amount of at least two hundred and fifty thousand dollars ($250,000.00) to cover damages resulting from an attack by the Dangerous Animal causing bodily injury, serious bodily injury or death to a person or another animal. A certificate of insurance or other evidence of meeting the above requirements shall be kept on file at the animal services facility;

b. Registering the dangerous animal with the City of Plano by providing the name and address of the owner; the breed, age, sex, color and any other identifying marks of the animal; the address where the animal is to be kept; and at least two (2) color photographs that clearly identify the dangerous animal;

c. Provide proof of animal sterilization;

d. Construct and maintain a secure enclosure for the animal;

e. Post and maintain signs giving notice of a dangerous animal in the area or on the premises in which the animal is confined. The signs shall be conspicuously posted at both the front and rear property entrances and shall bear letters not less than two (2) inches high, stating "DANGEROUS ANIMAL ON PREMISES";

f. Provide and maintain on the animal a fluorescent yellow collar visible at fifty (50) feet in normal daylight with an attached tag provided by the department to the collar that is worn at all times so that the animal can be easily identified;

g. Implant and maintain a microchip into the animal and register it for life with the department and a recognized national registry;

h. Provide written notice of the animal's designation as dangerous to the owner or landlord of the property where the animal will be kept; and

i. Pay the appropriate dangerous animal annual permit fee.

(e) The owner shall have thirty (30) days from the determination by the animal services director that the animal is dangerous to comply with all of the required conditions as set forth by this chapter and the order of the animal services director, unless the determination is appealed pursuant to V.T.C.A. Health and Safety Code, § 822.0421, as amended. If the owner fails to provide proof of compliance with all of the requirements in the order, and the order is not appealed pursuant to V.T.C.A. Health and Safety Code, § 822.0421 as amended, the animal may be euthanized on the thirty-first (31st) day following the order of the animal services director.

(f) A person commits an offense if he allows an animal that has been determined to be a dangerous animal to be kept or remain in any duplex or in any multi-family, residentially zoned property.

(g) A person commits an offense if he allows an animal that has been determined to be a dangerous animal to be kept or remain on a porch, patio, or in any part of a house or structure that would allow the animal to exit of its own volition.

(h) A person commits an offense if he allows an animal that has been determined to be a dangerous animal to be kept in a house or structure when any window is open or when any screen window or screen door is the only obstacle preventing the animal from exiting the structure.

(i) A person commits an offense if he allows an animal that has been determined to be a dangerous animal to be outside of the owner's residence or its secure enclosure unless the animal is under continuous direct physical control by a person of competent mental and physical ability to restrain the animal under all circumstances.

(j) A person commits an offense if he allows an animal that has been determined to be a dangerous animal tethered to an inanimate object, including, but not limited to a tree, post, or building, for any length of time.

(k) A person commits an offense if he allows an animal that has been determined to be a dangerous animal to be outside its secure enclosure without being securely fitted with a muzzle that will prevent the animal from biting other animals or human beings without causing injury to the animal or interfering with its vision or respiration.

(l) A person commits an offense if he is the owner of a permitted dangerous animal and refuses, upon request by the department, to make his animal, premises, facilities, equipment, and any necessary permits available for inspection at any reasonable time.

(m) A person commits an offense if he is the owner of a dangerous animal and he fails to maintain the requirements in subsection 4-153(d)(3) for the remainder of the animal's life.

(n) No domestic animal may be found to be a dangerous animal if the animal services director finds sufficient evidence that:

(1) The threat, injury, or damage was sustained by a person who at the time was committing or attempting to commit a willful trespass or other tort upon the premises occupied by the owner of the animal;

(2) The person was teasing, tormenting, abusing, or assaulting the animal or has in the past been observed to have teased, tormented, abused, or assaulted the animal;

(3) The person attacked was committing or attempting to commit a crime;

(4) The animal attacked was at large at the time of the incident, unless the attacking animal was also at large at the time of the incident and:

a. The attacking animal has committed an unprovoked attack on another person or animal on at least one (1) previous occasion; or

b. The animal attacked died as a result of the injuries it sustained during the attack.

(5) The animal attacked or killed at the time of the incident was teasing, tormenting, abusing, or attacking the alleged dangerous animal or if the animal attacked was not a domestic animal;

(6) The animal was protecting or defending a person within the immediate vicinity of the animal from an unjustified attack or assault;

(7) The animal was injured and responding to pain;

(8) The complaint filed against it is based solely on the animal's breed, size, or physical appearance; or

(9) The attack, bite, or mauling occurred while the dog was being used by a peace officer for law enforcement purposes.

(o) If the animal services director finds probable cause to believe that an animal was at-large and involved in an incident that led to the filing of a dangerous animal complaint, and if the animal is not already identifiable by microchip, the owner shall pay a fee to have a microchip implanted into the animal regardless of whether it is deemed a dangerous animal or not.

(p) A person commits an offense if the person fails or refuses to provide proof of complying with the animal services director's order to implant and register a microchip as required in subsection (o).
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-154. Dangerous animal: escape, death or subsequent attack.

(a) In the event that a registered dangerous animal escapes its enclosure or attacks a human being or another animal, the owner of the dangerous animal shall notify the department. Additionally, the owner shall provide written documentation of the incident to the animal services director within one (1) business day of becoming aware of the escape or attack. The written documentation may be delivered by hand, U.S. mail or email.

(1) A person commits an offense if he fails to provide notice as required in subsection 4-154(a).

(2) A person commits an offense if he fails to provide written documentation as required in subsection 4-154(a).

(b) In the event that a registered dangerous animal dies, the owner must present the body of the animal to the department or a licensed veterinarian for verification by microchip identification before disposal of its body. If the owner presents the animal to a licensed veterinarian, the owner shall provide written verification of the microchip reading to the department within three (3) business days of the scanning.

(1) A person commits an offense if he fails to have the identity of the dead animal verified by microchip scanning as required in subsection 4-154(b).

(2) A person commits an offense if he fails to provide verification of the scanning as required in subsection 4-154(b).
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-155. Transferring ownership of registered dangerous animal.

(a) Prior to relocating, transferring ownership, offering to transfer ownership, or otherwise moving or offering to move in any way a registered dangerous animal, either inside or outside the city limits, the owner shall notify the animal services director in writing of his intention. If ownership is to be transferred, the notification shall include the name and address of the proposed new owner of the animal.

(b) If ownership of the animal is being transferred to a person who resides within the city limits of Plano, the new owner will be required to provide proof to the animal services director of complying with all provisions of this chapter before the animal can be moved from the previous owner's custody.

(c) If the animal is being moved outside the city limits, the owner must provide, in writing to the animal services director, proof that the new owner has alerted the agency responsible for animal services in that area.

(d) A person commits an offense if he fails to comply with the requirements of section 4-155.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-156. Violations of conditions by owner of a registered dangerous animal.

(a) In the event that any owner of a registered dangerous animal violates any provision of this chapter, court order, or lawful order of the animal services director, the animal may be immediately seized and impounded by a city enforcement agent.

(b) The registered dangerous animal shall be seized immediately if the animal bites, injures, or attacks a human being or another animal.

(c) A dangerous animal hearing shall be held in accordance with section 4-153.

(d) If the seizure or impoundment of a dangerous animal for violating any provision of this chapter cannot be made with safety, and the dangerous animal is putting people or other animals at risk of being attacked, the animal may be destroyed without prior notice to the owner.

(e) It is an exception to the seizure of the animal under this section if the person attacked or injured was at the time committing a willful trespass, crime, or other tort upon the premises occupied by the owner of the animal.

(f) It is an exception to the seizure of the animal under this section if the animal which was injured was inside the fence line or secure enclosure area maintained by the owner of the registered dangerous animal.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-157. Appeal.

(a) Orders of the animal services director pertaining to a dangerous animal may be appealed to the Plano Municipal Court. Appeals to the court shall be made by the owner filing a written notice of appeal with the court not later than the fifteenth (15th) day after the date the animal services director's determination or order was entered. During the pendency of the appeal, the order of the animal services director shall be suspended, and the animal shall remain impounded at the owner's expense at the animal services facility or other state approved quarantine facility for observation. The decision of the municipal court may be appealed to a court of competent jurisdiction.

(b) The appeal before the municipal court shall be a trial de novo. The standard procedures for trial settings in the municipal court shall be used for these appeals.

(c) The owner filing the appeal shall file an appeal bond with the municipal court in the amount determined by the court to adequately cover the estimated costs of housing and caring for the impounded animal during the appeal process, and the owner shall comply with all other requirements and restrictions imposed by the court as conditions of the appeal bond pursuant to V.T.C.A. Health and Safety Code, 822.047, as amended. The bond shall be used to cover the cost of daily care of the animal. Should the judge or jury determine the animal is not dangerous the appeal bond may be returned if the amount has not been assessed as costs of daily care.

(d) The owner shall be responsible for any costs beyond feeding, including but not limited to: veterinary care, immunizations, medications, and care for other animals or employees injured by the animal.

(e) The judge or jury may render a verdict in the appeal which conforms to the findings in section 4-153 of this chapter.

(f) The defenses to conduct found in subsection 4-153(n) shall be affirmative defenses in the trial de novo.

(g) The owner shall pay all assessed costs before the animal is released to the owner.

(h) The owner may appeal the decision of the municipal court in the manner described by V.T.C.A. Health and Safety Code, 822.0424, as amended.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-158. Animals deemed dangerous by other jurisdictions.

(a) The owner of an animal that has been determined to be dangerous by another jurisdiction, under guidelines similar to those in this chapter, is prohibited from bringing the animal

into the city. Any animal that is brought into the city in violation of this section shall immediately be turned over to a city enforcement agent. On the sixteenth (16th) day, the impounded animal may be considered abandoned and disposed of as authorized in this chapter. The owner may elect to immediately remove the animal from the city and shall comply with the notice requirements of this chapter.

(1) A person commits an offense if he is the owner of an animal that has been determined to be dangerous by another jurisdiction and brings such animal into the city limits.

(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-159. Listing of registered dangerous animals.

The animal services director shall publish a list available to any citizen that states the identifying information of all animals deemed dangerous. The dangerous animal's address, description, and pictures shall be included as well as any other information deemed pertinent. The list shall be available at the animal services facility and on the city's webpage.

(Ord. No. 2021-9-24, § II, 9-27-21)

Secs. 4-160—4-180. Reserved.

ARTICLE X. WILD ANIMALS, BEES, AND LIVESTOCK

Sec. 4-181. Keeping wild animals.

(a) A person commits an offense if he possesses any wild animal within the City of Plano, with the following exceptions:

(1) A governmental agency or entity performing a governmental function;

(2) A zoological park;

(3) A permitted wildlife educational center that is also in possession of all necessary state and federal permits to possess the animal and is in compliance with all restrictions of the state and/or federal permits;

(4) A registered wildlife rehabilitator in possession of an allowed indigenous wild animal who holds all necessary state and federal permits to possess the animal and is in compliance with all restrictions of this chapter and their state and/or federal permits; or

(5) A permitted zoological educational outreach display that is also in possession of all necessary state and federal permits to possess the animal and is in compliance with all restrictions of this chapter and their state and/or federal permits.

(b) For the purposes of this chapter, the animal services director shall make the determination of whether any animal in question is a domestic animal or a wild animal and whether any wild animal is indigenous or allowed pursuant to the definitions in section 4-1 of this chapter.

(c) A person commits an offense if he is aware of a wild animal being possessed in the City of Plano and fails to notify the department.

(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-182. Sale of wild animals.

(a) A person commits an offense if he transfers ownership or offers to transfer ownership of any wild animal, unless allowed by another provision of this chapter.

(b) This section shall not be interpreted to restrict a person from giving ill, injured, or orphaned wildlife to a registered wildlife rehabilitator or to a permitted wildlife educational center. This section shall not be interpreted to restrict a permitted wildlife educational center from transferring wild animals to another educational center, zoological park, or other facility capable of legally caring for the animal.

(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-183. Bee-keeping.

(a) A person commits an offense if he keeps or allows bees, their hives, or any abandoned hives within the city limits. Honey bees may be kept if all of the following conditions are met:

(1) All hives shall be surrounded by barriers placed at least ten (10) feet from the hive

and not less than eight (8) feet in height that change the flight path of the bees as they leave the hives;

(2) There shall be no more than three (3) hives per city lot;

(3) There is an adequate source of water within twenty (20) feet of all hives;

(4) There may be maintained one (1) nucleus for each two (2) colonies. The nucleus shall not exceed one (1) ten-frame hive body. Each nucleus shall be disposed of within sixty (60) days after it is acquired;

(5) Each hive must be re-queened at least once every twenty-four (24) months; and

(6) The owner notifies the city enforcement agent, in writing, of the location and number of hives in his possession. Additionally, the owner shall keep purchase receipts and written records of the exact dates he re-queens each hive for at least two (2) years.

(b) A person commits an offense if he owns, harbors, or possesses bees and refuses, upon request by the department, to make his bees, premises, facilities, or equipment available for inspection during reasonable hours.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-184. Keeping livestock; nuisance conditions.

(a) A person commits an offense if he keeps livestock within the corporate limits of the city, except in conformance with the zoning ordinances of the city and as specifically provided by this chapter.

(b) A person commits an offense if he keeps livestock in pens or enclosed areas in such a manner as to create odors or noise which are offensive to other persons living nearby.

(c) A person commits an offense if he fails to dispose of manure and other excrement in such a manner as to prevent the odor from becoming offensive or causing unhealthy conditions to persons.

(d) A person commits an offense if he engages in or practices any falconry activities on any public land without obtaining prior written permission from the animal services director. Permission may only be granted for the purposes of controlling and removing avian species deemed a nuisance.

(e) Any hog or swine being legally kept within the city limits prior to February 1, 2009, shall be allowed to remain within the city so long as the owner complies with all other requirements of this chapter.

(f) Veterinary hospitals, wildlife educational centers, school agricultural barns, and fair grounds, when hogs or swine are kept therein for exhibition or veterinary treatment purposes, are exempt from this section provided that all pens, barns, stables, or other housing facilities meet the requirements of the city building code and zoning ordinance, and are maintained in such a way as to prevent them from creating a nuisance for any surrounding businesses or residences.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-185. Keeping of backyard hens.

(a) An individual property with one (1) legal dwelling unit, not including dwelling units that are backyard cottages or accessory dwelling units, may keep backyard hens subject to the following requirements and all other applicable provisions of this chapter. The keeping of roosters or any other fowl is prohibited; only chicken hens shall be permitted; and all references herein this section to poultry or chickens shall mean chicken hens only.

(b) Legal farm, ranch, garden, or orchard uses, as defined by the zoning ordinance, are exempt from regulation under this section.

(c) A person desiring to keep poultry pursuant to this section must first apply for a backyard hen permit from the department. In addition to paying a non-refundable application fee in an amount established from time to time by resolution of the city council at the time of filing, the applicant shall also:

(1) Submit a complete permit application on a form provided by the Department;

(2) Provide floorplans and side elevations for the proposed animal housing enclosure or if a commercially available coop is acquired, the manufacturer, model, and size of the coop;

(3) Provide a site drawing showing the proposed location for the animal housing enclosure that includes all property lines, building lines, setbacks, and other structures located on the property;

(4) Provide written, notarized authorization from the property owner allowing backyard hens if the applicant is a person other than the owner of the property on which the backyard hen(s) will be kept; and

(5) Provide one-time proof of completion of an educational course approved by the department on backyard hen care and sanitation.

(d) Prior to the issuance of a backyard hen permit, a site inspection may be conducted to verify compliance with the requirements of this section. Applicants who provide proof of having a current backyard hen permit, who have not obtained additional animals since their last inspection, and have had no verified complaints and/or enforcement actions for violating this chapter during the preceding twelve (12) months, may be issued a permit without inspection. The department may require an inspection during reasonable hours at the department's discretion regardless of the applicant's history.

(e) All backyard hen permits issued under this section shall be valid for one (1) year from the date of issuance. No more than one (1) backyard hen permit may be issued for any individual property, tract or residential lot. The permit is nontransferable and shall be valid only for the applicant and location for which it was originally issued. In the event the permit holder no longer resides at the property for which the permit was issued or ceases to harbor or keep backyard hens on the property, the permit terminates without refund.

(f) A person commits an offense if he fails to comply with any of the following restrictions:

(1) Backyard hens(s) shall be kept within a secure animal housing enclosure that is constructed and maintained in compliance with all requirements of this chapter, all requirements for accessory buildings, whether or not such permit is required, and be located behind a fence that is at least six (6) feet in height. Backyard hens shall be kept at all times within the secure animal housing enclosure except:

a. When being removed to be transported to, or returned from, a location off of the property;

b. During daylight hours when they are under the direct supervision of an adult, backyard hens may roam in a yard provided that it is enclosed by a perimeter fence not less than six (6) feet in height; or

c. When being temporarily confined in a garage or indoor space during periods of extreme cold or brooding.

(2) Coops shall have a minimum of ten (10) inches of roosting space for each backyard hen kept;

(3) There shall be at least one (1) nesting box for every four (4) hens kept;

(4) Hay, grain, feed, and all other food sources must be stored in secure containers that are not accessible to rats, flies, mosquitos, or other rodents and insects;

(5) Manure and soiled bedding material must be immediately disposed of, properly composted, or stored in secure containers that are not accessible to rats, flies, mosquitos, or other rodents and insects;

(6) Food scraps, kitchen scraps, or other perishable food items cannot be fed on the ground or in any container other than an impervious container or on an impervious platform;

(7) Any backyard hen byproducts, including but not limited to eggs, meat, or manure, may not be sold or offered to be sold under the direction of, or with the consent of, a backyard hen permit holder except

for the sale of backyard hen byproducts in accordance with all applicable federal, state, and local regulations; and

(8) All backyard hens must have their wings properly clipped and maintained so as to prevent them from flying over the fence.

(g) A person commits an offense if the person is a holder of a backyard hen permit and he refuses, upon request by a city enforcement agent during reasonable hours, to make his animals, premises, facilities, equipment, and any necessary registrations or permits, available for inspection.

(h) A person commits an offense if the person is a holder of a backyard hen permit and he refuses to show his permit upon request by a city enforcement agent.

(i) A person commits an offense if he harbors backyard hens without first obtaining a valid backyard hen permit.

(j) This section shall not supersede, replace or have control over any recorded deed restrictions, covenants, home owner association rules, or other applicable restrictions that prohibit the keeping of fowl or backyard hens on such property.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-186. Revocation, denial and appeal.

(a) A city enforcement agent may revoke a backyard hen permit issued under section 4-185 or refuse to issue a permit if the permittee or applicant fails to meet the standards required in section 4-185, refuses to permit inspections of the premises, or violates any provision of this chapter.

(b) Revocations, denials, and appeals of this permit shall be handled in accordance with section 4-130 of this chapter.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-187. Estray.

A person commits an offense if he is the owner of livestock and allows an estray to be unattended upon any public street, alley, thoroughfare or upon the property of another in the corporate city limits of Plano.
(Ord. No. 2021-9-24, § II, 9-27-21)

Secs. 4-188—4-200. Reserved.

ARTICLE XI. MISCELLANEOUS OFFENSES

Sec. 4-201. Retention of animals at large.

A person commits an offense if the person confines an at-large animal, other than one (1) already owned by the person, on his property without notifying the department of the confinement within twenty-four (24) hours.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-202. Interference; filing of false claims or reports.

(a) A person commits an offense if he prevents, interferes with, obstructs, or gives false information to any city enforcement agent who is in the lawful discharge of his duties under this chapter, state, local or federal laws.

(b) A person commits an offense if he fails to comply with any lawful order of a city enforcement agent issued by the agent during the enforcement of this chapter, state, local or federal laws.

(c) A person commits an offense if he makes a claim of ownership for an animal that he knows is false.

(d) A person commits an offense if he makes a report of a violation of city ordinance or state, local or federal law that he knows is false.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-203. Inducement prohibited.

(a) A person commits an offense if the person transfers ownership, or offers to transfer ownership, of any live animal which is physically present at an event or business as a prize or as an inducement:

(1) To enter any contest, game, raffle, auction, or other competition; or

(2) To enter into a business agreement.

(b) This section shall not be interpreted to restrict any livestock from being offered for sale at a public auction house or livestock show or barn, provided that the sale does not otherwise violate any other section of this chapter or any other state, local or federal law.

(c) Subsection (a) shall not apply if the prize or inducement offered was a gift certificate or other document that could be exchanged for a live animal on a subsequent date and time.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-204. Parking of vehicles used to transport animals.

A person commits an offense if he parks a truck, trailer, or other vehicle that is used for the hauling of livestock, animals or fowl in a residential area of the City of Plano and the vehicle is creating odors, gases or fumes that are offensive to a person of reasonable sensibilities.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-205. Slaughtering of animals within public view.

A person commits an offense if he slaughters an animal in an area that is open to the view of the general public.
(Ord. No. 2021-9-24, § II, 9-27-21)

ARTICLE XII. SEARCH AND RESCUE TRAINING IN PUBLIC PLACES

Sec. 4-206. Permit required.

(a) After securing a permit from the animal services department, search and rescue training may be conducted by qualified members of search and rescue organizations in designated areas of city parks between the hours of 5:00 a.m. and 11:00 p.m., unless different hours have been designated for the park facility.

(b) Members of the search and rescue organization must possess at least a NASAR SARTECH III level of certification or a comparable level of certification before being eligible to conduct search and rescue training under this program.

(c) A search and rescue organization seeking a search and rescue training permit shall submit a complete permit application to the animal services department and provide the following information:

(1) Contact information for the search and rescue organization and the individuals authorized to conduct search and rescue training on behalf of the organization;

(2) Copy of the NASAR SARTECH III certification or its equivalent for each of the individuals conducting search and rescue training;

(3) Copy of the search and rescue organization's training materials;

(4) Copy of vaccination and registration records for each dog participating in search and rescue training; and

(5) Proof of general liability insurance coverage in the amount of one hundred thousand dollars ($100,000.00). The insurance carrier of this policy must be rated "A-" or better by A.M. Best's Key Rating Guide and licenses to do business in the State of Texas. In addition, the policy shall include the City of Plano, its officers, agents, employees, and representatives as additional insured parties and should contain a thirty (30) day written notice of cancellation. A certificate of insurance for the required coverage must be submitted to the animal services division at least two (2) weeks prior to the event.

(d) Prior to conducting any training, a permit holder must provide a written request to conduct search and rescue training to the Plano Animal Services Director and a designated Plano Parks Department staff member at least ten (10) business days prior to the start of training. Each written request must state the time and date of each training session, the number of trainers involved in each training session and the number of dogs to be trained. A request may be denied based on availability of the training site.

(e) It shall be unlawful for any person to conduct search and rescue training under this section without a permit from the animal services division.

(f) It shall be unlawful for any person who has received a permit for search and rescue training to fail to comply with any permit requirement or provision of this article. Each animal or condition found in violation of this chapter shall constitute a separate offense.
(Ord. No. 2021-9-24, § II, 9-27-21)

Sec. 4-207. Revocation, denial and appeal.

(a) A city enforcement agent may revoke or refuse to issue a permit if requirements under subsections 4-206(a)—(d) are not met.

(b) Denial or revocation of a permit may be appealed to the animal services director. The appeal must be made in writing within fifteen (15) business days of receiving written notice of permit denial or revocation from the city enforcement agent. If no appeal request is received within a fifteen (15) business day period, denial or revocation of the permit becomes final. Upon receiving an appeal, the animal services director will hold a hearing at a time and place of the Director's designation within fifteen (15) business days of the appeal being received. Based upon available evidence, the animal services director will make a final ruling. The decision of the animal services director shall be final.

(c) A search and rescue organization whose training permit has been revoked may re-apply for another permit after six (6) months from the date of revocation.
(Ord. No. 2021-9-24, § II, 9-27-21)

[The next page is 321]

Chapter 5

RESERVED*

*__Editor's note__—Ord. No. 2011-5-16, § I, adopted May 23, 2011, repealed the former article II, §§ 5-16—5-32, in effect rescinding chapter 5 in its entirety. Formerly, chapter 5 pertained to aviation and derived from Ord. No. 84-2-20, §§ 1—16, 18, adopted February 27, 1984, and Ord. No. 84-9-26, § I, adopted September 24, 1984.

[The next page is 375]

Chapter 6

BUILDINGS AND BUILDING REGULATIONS*

Art. I. **In General, §§ 6-1—6-15**
- Div. 1. In General, §§ 6-1, 6-2
- Div. 2. Building Standards Commission, §§ 6-3—6-12
  - Subdiv. A. Hearings, Penalties and Appeal, §§ 6-3—6-12
- Div. 3. Criminal Offense and Penalty, §§ 6-13—6-15

Art. II. **Building Code, §§ 6-16—6-44**
- Div. 1. Generally, §§ 6-16—6-36
- Div. 2. Amendments, §§ 6-37—6-44

Art. III. **Property Maintenance Code, §§ 6-45—6-110**
- Div. 1. Generally, §§ 6-45—6-49
- Div. 2. Amendments, §§ 6-50—6-59
- Div. 3. Registration and Inspection of Multi-Family Dwelling Complexes, §§ 6-60—6-90
- Div. 4. Registration and Inspection of Hotel/Motel Properties, §§ 6-91—6-110

Art. IV. **Temporary and Nonconforming Buildings, §§ 6-111—6-130**

Art. V. **Reserved, §§ 6-131—150**

Art. VI. **House Moving, §§ 6-151—6-175**
- Div. 1. Generally, § 6-151
- Div. 2. Permit, §§ 6-152—6-154
- Div. 3. Standards for Issuance of Permit, §§ 6-155—6-165
- Div. 4. Surety Bond and Insurance Requirements, §§ 6-166, 6-167
- Div. 5. Violations, §§ 6-168—6-175

Art. VII. **Fences, §§ 6-176—6-220**
- Div. 1. Generally, §§ 6-176—6-200
- Div. 2. Height, §§ 6-201—6-220

Art. VIII. **Plumbing and Mechanical Equipment, §§ 6-221—6-270**
- Div. 1. Generally, §§ 6-221—6-235
- Div. 2. Plumbing Code, §§ 6-236—6-250
- Div. 3. Mechanical Code, §§ 6-251—6-270

Art. IX. **Electrical Code, §§ 6-271—6-435**
- Div. 1. Generally, §§ 6-271—6-274
- Div. 2. Amendments, §§ 6-275—6-300
- Div. 3. Application, §§ 6-301—6-317
- Div. 4. Electrical Inspector, §§ 6-318—6-326
- Div. 5. Registration (Licensing) of Electricians, §§ 6-327—6-350
- Div. 6. Work Permits, §§ 6-351—6-435

Art. X. **Swimming Pools, §§ 6-436—6-465**
- Div. 1. Generally, §§ 6-436—6-452

***Charter references—**Authority of council to adopt building code, § 3.07(g); authority to establish and control construction within fire limits, and to remove dangerous buildings, § 3.07(l).

Cross references—Administration, Ch. 2; fire prevention and protection, Ch. 8; licenses and business regulations, Ch. 11; planning and development, Ch. 16; streets and sidewalks, Ch. 19; utilities, Ch. 21; zoning, App. A; cable television franchise, App. B; impact fee advisory committee, § 2-216 et seq.; erection and maintenance of walls, screens, hedges, etc. § 14-9; operation of power equipment in residential zones restricted, § 14-88(4); erosion control, § 14-92 et seq.; hazardous material spills, § 14-106 et seq.; landscaping streets, § 15-101 et seq.

State law references—Frame building regulations, Vernon's Ann. Civ. St., art. 1067; building lines on streets, Vernon's Ann. Civ. St., art. 1105a; power of city to regulate buildings, Vernon's Ann. Civ. St., art. 1175(18), (22), (25), (26), (29), (35), (36); Manufactured Housing Standards, Vernon's Ann. Civ. St., art. 5221f.

Div. 2. Public Swimming Pools, Spas, and Interactive Water Features and Fountains, §§ 6-453—6-465
Art. XI. Outdoor Lighting, §§ 6-466—6-485
Art. XII. Temporary Signs, §§ 6-486—6-560
Div. 1. Definitions, § 6-486
Div. 2. Prohibited Signs, § 6-487
Div. 3. Permitted Signs, §§ 6-488—6-496
Div. 4. Permit Requirements and Exemptions, § 6-497
Div. 5. Violations and Enforcement, §§ 6-498, 6-499
Div. 6. Flags and Flagpoles, §§ 6-500—6-560
Art. XIII. Irrigation Systems, §§ 6-561—6-620
Art. XIV. Solid Waste Removal from Construction Sites, §§ 6-621—6-650
Art. XV. Administrative Code, §§ 6-651—6-660
Art. XVI. Building Security Code, §§ 6-661—6-670
Art. XVII. Building Conservation Code, §§ 6-671—6-683
Art. XVIII. Energy Conservation Code, §§ 6-684—6-695
Div. 1. Generally, §§ 6-684, 6-685
Div. 2. Amendments, §§ 6-686—6-695
Art. XIX. Fuel Gas Code, §§ 6-696—6-707
Div. 1. Generally, §§ 6-696, 6-697
Div. 2. Amendments, §§ 6-698—6-707
Art. XX. Residential Code, §§ 6-708—6-710
Div. 1. Generally, §§ 6-708, 6-709
Div. 2. Amendments, § 6-710
Art. XXI. Outdoor Toilet Facilities, §§ 6-711—6-715
Art. XXII. Existing Building Code, §§ 6-716—6-719
Div. 1. Generally, §§ 6-716—6-719
Art. XXIII. Swimming Pool and Spa Code, §§ 6-720—6-729
Div. 1. Generally, §§ 6-720, 6-721
Div. 2. Amendments, §§ 6-722—6-729
Art. XXIV. Registration of Short-Term Rental Properties, §§ 6-730—6-769

ARTICLE I. IN GENERAL*

DIVISION 1. IN GENERAL

Sec. 6-1. Purpose of article.

The purpose of this article is to set forth regulations, enforcement authority for regulating building standards for the City of Plano, including establishing the power and duties of the building standards commission; creating penalty provisions and allowing civil relief, as allowed by all applicable law. All buildings, both existing and new, and all parts thereof, shall maintain minimum standards for continued use and occupancy in accordance with article III "property maintenance code" as amended of Chapter 6.
(Ord. No. 2004-10-7, § II, 10-11-04)

Sec. 6-2. Reserved.

DIVISION 2. BUILDING STANDARDS COMMISSION

Sec. 6-3. Building standards commission organization and authority.

(a) *Structure.*

(1) The building standards commission will consist of eight (8) members, duly appointed by the city council for two-year terms. Each member is removable for cause on a written charge. Prior to making a decision regarding removal, the city council must hold a public hearing on the matter if requested by the commission member subject to the removal action.

(2) City council may appoint up to two (2) alternate members of the building standards commission who shall serve in the absence of one (1) or more of the regular members. The alternate members, when appointed, shall serve the same period as the regular members, when appointed, which is for a term of two (2) years expiring October 31st of the appropriate year, and any vacancy shall be filled in the same manner as for regular members, and alternate members shall be subject to removal under the same provisions as regular members.

(3) The city council must fill any and all vacancies.

(4) The city council will appoint a commission chair, who has authority to administer oaths and compel witness attendance at commission hearings. The chair may designate an "acting chair," who in the chair's absence will have the same authority as the chair.

(b) *Proceedings of commission.*

(1) The building standards commission will meet at the call of the commission's chair and at all other times determined by the commission. All commission meetings are open to the public.

(2) The commission must adopt rules to govern its proceedings that are consistent with this chapter and the statutes of the State of Texas. The rules should establish hearing procedures that give ample opportunity for presentation of evidence and testimony by all interested parties. The city's building official will present all matters to the commission. The presence of at least five (5) commission members is necessary to hear a matter.

(3) Minutes must be kept of the commission's proceedings that reflect each member's vote, decision to vote, decision to abstain, or absence from the hearing for each and every matter. The minutes are available to the public.

(4) A majority vote of the members voting on a matter is necessary to take action on any matter before the commission.

*__Editor's note—__Ord. No. 2004-10-7, § I, adopted Oct. 11, 2004, repealed art. I, §§ 6-1—6-15, in its entirety. Section II of said ordinance provided for the addition of a new art. I to read as herein set out. Formerly, said article pertained to similar subject matter. See the Code Comparative Table for a detailed analysis of inclusion.

(c) *Powers and duties.*

(1) *Jurisdiction.* The building standards commission has authority to enforce the enumerated health and safety ordinances as authorized by V.T.C.A. Local Government Code, ch. 54, subch. C, as amended. Specifically, the commission hears cases relative to ordinances:

a. For the preservation of public safety, the materials or methods used to construct a building or improvement, including the foundation, structural elements, electrical wiring or apparatus, plumbing and fixtures, and entrances or exits;

b. Relating to the fire safety of a building or improvement, including provisions for materials, types of construction or design, warning devices, availability of water supply for extinguishing fires, or location, design, or width of entrances or exits;

c. Relating to dangerously damaged or deteriorated buildings or improvements;

d. Relating to conditions involving vegetation, landscape, trees, bushes, shrubs, vines, brush, ground-cover plants or other similar matter that causes a public safety hazard; or

e. Relating to a building code as it pertains to the condition, use, or appearance of property in the City of Plano.

(2) *Enforcement.* After hearing a matter and finding an ordinance violation, the commission may:

a. Declare a building substandard in accordance with the powers granted by subchapter C, Chapter 54, Texas Local Government Code, as amended;

b. Order the reduction in occupancy of an overcrowded structure, the immediate removal of persons or property found on private property, enter on private property to secure the removal of persons if it is determined that conditions exist on the property that constitute a danger to the health, safety, or welfare of the occupants and order action to remedy, alleviate or remove any substandard building found to exist. The city is not responsible for relocation expenses incurred by persons who are removed from their property.

c. Require the demolition of a structure found to be a public nuisance;

d. Require within a fixed period that the property owner repair the structure and bring same into compliance with current codes and applicable standards;

e. Require the correction of a dangerous condition, as defined by city ordinance or state law, on the land. If the correction is not made within the time period ordered by the board, correction may be accomplished by city staff or private contractor. Costs of correction are the responsibility of the owner;

f. Require that dangerous unoccupied structures be secure against entry;

g. Issue orders or directives to any peace officer of the state to enforce and carry out the lawful orders or directives of the commission; and

h. Determine the amount and duration of the civil penalty the city may recover under subchapter B of Chapter 54, Texas Local Government Code, as amended.

(3) *Code interpretation, use of alternative materials and appeal.*

a. The building standards commission has authority to hear appeals from a decision of the fire chief or the building official related to:

1. The use of alternate materials and construction methods; or

2. Interpretations of the fire code or building codes as adopted by the city.

b. The commission may not grant variances for use of alternative materials or construction methods. Rather, the commission may only make a determination as to whether the alternative material or construction method equally meets the applicable code's standards, especially considering the alternative's adequacy, stability, strength, sanitation, and safety for the public's health and welfare.

c. The building inspections department shall maintain a master fee schedule for appeals filed with the building standards commission under subsection 6-3(a), and heard at a regularly scheduled meeting of the commission.

d. Applicants requesting placement on the building standards commission agenda for a meeting other than a regularly scheduled meeting must pay an additional two hundred fifty dollar ($250.00) fee.

e. An applicant must remit the applicable fee(s) at the time of filing of the appeal under subsection 6-3(a).

f. The commission may modify or reverse a decision of the fire chief or the building code official only by a concurring vote of at least four (4) commission members.

(4) *Other functions.* The building standards commission also has the following responsibilities:

a. To study proposed amendments to the fire and building codes, and make recommendations to the city council regarding such amendments;

b. To hear from any person requesting a change to the fire and building codes as adopted by the city;

c. To act as an advisor to the fire chief and the building official;

d. To review for reinstatement contractor's registration after revocation by the chief building official; and

e. To manage any additional duties, powers, and responsibilities assigned by the city council in compliance with the City Charter and laws of the State of Texas.

(Ord. No. 2004-10-7, § II, 10-11-04; Ord. No. 2009-11-7, §§ I—III, 11-9-09; Ord. No. 2011-1-14, § I, 1-10-11; Ord. No. 2013-8-7, § I, 8-12-13; Ord. No. 2020-6-5, §§ I, II, 6-8-20; Ord. No. 2021-9-21, § III, 9-27-21; Ord. No. 2022-8-10, § I, 8-22-22)

Subdivision A. Hearing, Penalties and Appeal

Sec. 6-4. Notice of commission hearing required.

(a) *Notice of hearing.*

(1) Notice of the proceeding that includes the date, time and place of the hearing must be provided at least ten (10) days before the date of a building standards commission hearing under subsection 6-3(b):

a. By personal delivery or by certified mail, return receipt requested, to the record owners of the affected property, and each holder of a recorded lien against the affected property, as shown by the records in the office of the county clerk of the county in which the affected property is located if the address of the lienholder is ascertainable from the deed of trust establishing the lien and/or other applicable instruments on file in the office of the county clerk;

b. To all unknown owners, by posting a copy of the notice on the front door of each improvement situated on the affected property or as close to the front door as practicable.

(2) The notice must also be published in a newspaper of general circulation in the city on one (1) occasion on or before the tenth day before the date of the scheduled proceeding.

(3) The city may file notice of a commission proceeding in the official public records of real property in the county where the affected property is located.

(b) *Due diligence in providing notice.* To determine the identity and address of an owner or lienholder of the property requiring notice under subsection 6-4(a), the city must conduct a search of the following records:

(1) County real property records of the county in which the property is located;

(2) Appraisal district records of the appraisal district in which the property is located;

(3) Records of the secretary of state, if the property owner or lienholder is a corporation, partnership, or other business association;

(4) Assumed name records of the county in which the property is located;

(5) Tax records of the city; and

(6) Utility records of the city.

(c) *Effect of mailing notice.* When a notice is mailed in accordance with subsection 6-4(a) to a property owner or a lienholder and the United States Postal Service returns the notice as "refused" or "unclaimed," the notice is valid and is considered delivered.
(Ord. No. 2004-10-7, § II, 10-11-04)

Sec. 6-5. Notice of commission decision.

(a) The city will promptly personally deliver or mail by first class mail, certified return receipt requested, a copy of the commission's final decision and order to all persons who are required notification under section 6-4. The commission must also file a copy of the order in the city secretary's office.

(b) Within ten (10) days of the date of personal delivery or mailing of the final order, the decision must also be published one (1) time in a newspaper of general circulation in the city an abbreviated copy of the final order, including the street address or legal description of the property, the date of the hearing, a brief statement indicating the results of the order, and a statement that a complete copy of the order is obtainable from the city secretary's office.
(Ord. No. 2004-10-7, § II, 10-11-04)

Sec. 6-6. Civil penalty.

(a) Under subsection 6-3(c)(2)k., the building standards commission may assess a civil penalty against the owner or the owner's representative with control over the premises if:

(1) The owner or owner's representative received actual notice of the provisions of this article.

(2) After receiving notice, the owner or owner's representative committed acts in violation of this article or failed to take action necessary for compliance with this article.

(b) The civil penalty may not exceed the maximum allowed by subchapter C of Chapter 54 of the Texas Local Government Code.

(c) The determination of a civil penalty by the building standards commission is final and binding. In a civil suit brought by the city for final judgment, the commission's determination of a civil penalty constitutes prima facie evidence of the penalty in any court of competent jurisdiction.

(d) To enforce this civil penalty, the city secretary shall file with the Collin County District Clerk a certified copy of the order of the commission establishing the amount and duration of the penalty.
(Ord. No. 2004-10-7, § II, 10-11-04)

Sec. 6-7. Judicial review of commission decision.

An appeal of the commission decision is allowed as provided by Chapter 54 of the Local Government Code.
(Ord. No. 2004-10-7, § II, 10-11-04)

Sec. 6-8. Commission decision final.

If no appeals are taken from the decision of the commission within the required period, the decision of the commission is, in all things, final and binding.
(Ord. No. 2004-10-7, § II, 10-11-04)

Secs. 6-9—6-12. Reserved.

DIVISION 3. CRIMINAL OFFENSE AND PENALTY

Sec. 6-13. Failure to comply with commission order is a criminal offense.

A person commits an offense if the person fails to comply with a final order issued by the building and standards commission under this chapter. Each day that a person fails to comply with a final order is a separate offense. An offense under this section is a class C misdemeanor. The maximum penalty shall be two thousand dollars ($2,000.00) per offense, per occurrence. Proof of a culpable mental state is not required for conviction of an offense under this chapter.
(Ord. No. 2004-10-7, § II, 10-11-04)

Sec. 6-14. Remedies.

The remedies provided in this article are inclusive, and in no way prohibit the city from exercising any other remedy authorized by law, including proceedings under the jurisdiction of the municipal court.
(Ord. No. 2004-10-7, § II, 10-11-04)

Sec. 6-15. Reserved.

ARTICLE II. BUILDING CODE*

DIVISION 1. GENERALLY

Sec. 6-16. Penalty.

Any violation of the provisions or terms of this article by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with section 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.
(Ord. No. 2016-3-11, § II, 3-14-16; Ord. No. 2018-11-9, § II, 11-26-18, eff. 1-1-19; Ord. No. 2022-1-10, § II, 1-24-22; Ord. No. 2025-6-14, § II, 6-9-25)

Sec. 6-17. Adopted.

The 2024 Edition of the International Building Code, a publication of the International Code Council (I.C.C.), is hereby adopted and designated as the Building Code of the City of Plano to the same extent as if such Code were copied verbatim in this article, subject to deletions, additions, and amendments prescribed in this article. A copy of the 2024 Edition of the International Building Code is on file in the office of the city secretary.
(Ord. No. 2016-3-11, § II, 3-14-16; Ord. No. 2018-11-9, § II, 11-26-18, eff. 1-1-19; Ord. No. 2022-1-10, § II, 1-24-22; Ord. No. 2025-6-14, § II, 6-9-25)

Secs. 6-18—6-36. Reserved.

*__Editor's note—__Ord. No. 2016-3-11, §§ I, II, adopted March 14, 2016, repealed and reenacted article II in its entirety to read as herein set out. Formerly, article II pertained to similar subject matter, and derived from Ord. No. 2013-10-24, § II, adopted October 28, 2013, and Ord. No. 2015-3-8, § I, adopted March 17, 2015.

__Charter reference—__Authority of council to adopt building code, § 3.07(g).

__Cross reference—__Solid waste removal from construction sites, § 6-621 et seq.

DIVISION 2. AMENDMENTS

Sec. 6-37. Deletions, additions, amendments.

The following deletions, additions, and amendments to the International Building Code adopted in this Division are hereby approved and adopted:

Sec. 101.4; change section to read as follows (Sections 101.4.1 through 101.4.7 to remain unchanged):

Sec. 101.4 Referenced codes. The other codes listed in Sections 101.4.1 through 101.4.8 and referenced elsewhere in this code, when specifically adopted, shall be considered part of the requirements of this code to the prescribed extent of each such reference. Whenever amendments have been adopted to the referenced codes and standards, each reference to said code and standard shall be considered to reference the amendments as well. Any reference to NFPA 70 or the Electrical Code shall mean the Electrical Code as adopted.

Sec. 101.4.8; add the following new section:

Sec. 101.4.8 Electrical. The provisions of the *Electrical Code* shall apply to the installation of electrical systems, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings and appurtenances thereto.

Secs. 103 and 103.1;change to read as follows [Sections 103.2 and 103.3 to remain unchanged]:

SECTION 103 BUILDING INSPECTIONS DEPARTMENT.

Sec. 103.1 Creation of enforcement agency. The Building Inspections Department ("agency") is hereby created and the official in charge thereof shall be known as the building official. The function of the agency shall be the implementation, administration and enforcement of the provisions of the code.

Sec. 104.2.4.1 Flood hazard areas; delete section in its entirety.

Sec. 104.3.1 Determination of substantially improved or substantially damaged existing buildings and structures in flood hazard areas; delete section in its entirety.

Sec. 105.1.1 change section to read as follows:

Sec. 105.1.1 Toilet facilities. At least one permanent or temporary toilet facility shall be maintained at every site where a building permit has been issued, as long as a building permit is active for the project.

Permanent toilet facility is defined as a room in an existing building or in the building being constructed with a water closet installed in such a room that conforms to the Plumbing Code and is continuously available to all workers involved in a construction project.

Temporary toilet facility is defined as a portable, fully enclosed, chemically sanitized toilet, which is serviced and cleaned at least once each week.

A Stop Work Order may be issued for any project not in compliance with this section.

Sec. 105.1.2 Annual permit records; delete section in its entirety.

Sec. 105.2 change the Building category to read as follows (all other provisions and text of Section 105.2 to remain unchanged):

Building:

1. One-story detached accessory structures used as tool and storage sheds, playhouses and similar uses, provided that the floor area is not greater than 120 square feet (11 m^2).
2. [Item deleted.]
3. Oil derricks.
4. Retaining walls that are not over 4 feet (1219 mm) in height measured from the bottom of the footing to the top of the wall, unless supporting a surcharge or impounding Class I, II or IIIA liquids.
5. Water tanks supported directly on grade if the capacity is not greater than 5,000 gallons (18 925 L) and the ratio of height to diameter or width is not greater than 2:1.
6. Sidewalks and driveways not more than 30 inches (762 mm) above adjacent grade,

and not over any *basement* or *story* below, and that are not part of an *accessible route* and not in the city right-of-way.

7. Painting, papering, tiling, carpeting, cabinets, counter tops and similar finish work.
8. Temporary motion picture, television and theater stage sets and scenery.
9. Prefabricated *swimming pools* accessory to a Group R-3 occupancy that are less than 24 inches (610 mm) deep, are not greater than 5,000 gallons (18 925 L), and are installed entirely above ground.
10. [Item deleted.]
11. Swings and other playground equipment accessory to detached one- and two-family *dwellings*.
12. Window awnings in Group R-3 and U occupancies, supported by an *exterior wall* that do not project more than 54 inches (1372 mm) from the *exterior wall* and do not require additional support.
13. Non-fixed and movable fixtures, cases, racks, counters and partitions not over 5 feet 9 inches (1753 mm) in height.

Sec. 105.3 change section to read as follows:

Sec. 105.3 Application for permit. To obtain a permit, the applicant shall first file an application therefor in writing on a form furnished by the department of building inspections for that purpose. Such application shall:

1. Identify and describe the work to be covered by the *permit* for which application is made.
2. Describe the land on which the proposed work is to be done by legal description, street address, or similar description that will readily identify and definitely locate the proposed building or work.
3. Indicate the use and occupancy for which the proposed work is intended.
4. Be accompanied by *construction documents* and other information as required in Section 107.
5. State the valuation of the proposed work.
6. Be signed by the applicant, or the applicant's authorized agent.
7. Give such other data and information as required by the *building official*.
8. Be issued to a registered contractor.

General: To obtain a permit, the applicant shall be registered as a contractor. A contractor may register by making application on forms provided by the *building official*.

Exception:

1. Homeowners may obtain permits for their private residence without being registered, however a contractor working under the homeowner's permit must meet state requirements for license registration.
2. Contractors exempt from local registration fees must show proof of state license.

Revocation/Suspension: A contractor's registration may be suspended for the following causes:

1. The contractor fails to finalize permits by obtaining the required approved inspections.
2. The contractor allows use or occupancy of a structure for which a permit was obtained without first obtaining the required authorization.
3. Expiration, suspension or revocation of required license or insurance.

Sec. 105.3.1; change section to read as follows:

Sec. 105.3.1 Action on application. The *building official* shall examine or cause to be examined applications for *permits* and amendments thereto within a reasonable time after filing in compliance with state law. If the application or the *construction documents* do not conform to the requirements of pertinent laws, the *building official* shall reject such application in writing, stating the reasons therefor. If the *building official* is satisfied that the proposed work conforms to the requirements of this code and laws and ordinances applicable thereto, the *building official* shall issue a *permit* therefor as soon as practicable.

A demolition permit may be withheld for any building or structure within the Plano Historic Building and Site Survey as designated in the Preservation Plan for a period not exceeding thirty (30) days pending review by the Heritage Commission.

Sec. 105; change Section 105 by adding a new Section 105.8 to read as follows:

Sec. 105.8. Withdrawn permits. *Permits* may be withdrawn by the applicant if no work has commenced on the project. Permit fees exceeding $100.00 may be partially refunded. Where applicable, fees will be refunded at 80 percent of their original value, excluding the plan review and fire protection plan review deposits.

Permits for which work has commenced may not be withdrawn unless a subsequent permittee has obtained a *permit* to complete the work, or when work has started unless an inspection has been made and the building official has determined that the existing work has created no violation of any code or ordinance.

Expired *permits* may be withdrawn if determined by the *building official* that no work has commenced. Withdrawn *permits* with fees of less than one hundred ($100) dollars are nonrefundable.

Sec. 107.3.1; change section to read as follows:

Sec. 107.3.1 Approval of construction documents. When the *building official* issues a *permit*, the *construction documents* shall be *approved*, in writing, or by a stamp which states, "APPROVED AND APPROVED AS NOTED BY THE BUILDING OFFICIAL." One set of *construction documents* so reviewed shall be retained by the *building official*. The other set shall be returned to the applicant, shall be kept at the site of the work, and shall be open to inspection by the *building official* or a duly authorized representative.

Sec. 109; change Section 109 by adding Sections 109.7, 109.8, 109.9, and 109.10 to read as follows:

Sec. 109.7 Re-inspection fee. A fee, as established by city council resolution, may be charged when:

1. The inspection called for is not ready when the inspector arrives.
2. No building address or permit card is clearly posted.
3. City-approved plans are not on the job site available to the inspector.
4. The building is locked or work otherwise is not available for inspection when called.
5. The job site is red-tagged twice for the same item.
6. The original red tag has been removed from the job site.
7. There is a failure to maintain erosion control, trash control, or tree protection.

Any re-inspection fees assessed shall be paid before any more inspections are made on that job site.

Sec. 109.8 Work without a permit; Investigation. Whenever work for which a *permit* is required by this code has been commenced without first obtaining a *permit*, a special investigation shall be made before a *permit* may be issued for such work.

Sec. 109.9 Fee. An investigation fee, in addition to the permit fee, shall be collected whether or not a *permit* is subsequently issued. The investigation fee shall be equal to the amount of the permit fee required by this code or the city fee schedule, as applicable. The payment of such investigation fee shall not exempt the applicant from compliance with all other provisions of either this code or the technical codes nor from penalty prescribed by law.

Sec. 109.10 Unauthorized cover up fee. Any work concealed without first obtaining the required inspection in violation of Section 110 shall be assessed a fee as established by the city fee schedule.

Section 110.3.6; Lath, gypsum board and gypsum panel product inspection; the Exception is deleted in its entirety; remainder of section is unchanged.

Sections 111.1, 111.2, 111.2.1 and 111.2.2; amended and added to read as follows:

Sec. 111.1 Change of occupancy. A building or structure shall not be used or occupied in whole or in part until the building official has issued a certificate of occupancy therefor as provided herein. A change in legal or assumed name of the business, the names of the business owners, the occupancy classification of a building or structure, or any change in the purpose of, or a change in the level of activity within, a building or structure or portion thereof shall not be made before issuance of a new certificate of occupancy. Issuance of a certificate of occupancy shall not be construed as an approval of a violation of the provisions of this code or of other ordinances of the jurisdiction. Certificates presuming to give authority to violate or cancel the provisions of this code or other ordinances of the jurisdiction shall not be valid.

Sec. 111.2 Certificate issued. After the building official inspects the building or structure and does not find violations of this code or other laws that are enforced by the department, the building official shall issue a certificate of occupancy that contains the following:

1. The permit number.
2. The address of the structure.
3. The legal or assumed name of the business.
4. The name(s) and addresses of owner(s).
5. A description of that portion of the structure for which the certificate is issued.
6. A statement that the described portion of the structure has been inspected for compliance with the requirements of this code.
7. The name of the building official.
8. The edition of the code under which the permit was issued.
9. The use and occupancy, in accordance with the provisions of Chapter 3 and the Comprehensive Zoning Ordinance.
10. The type of construction as defined in Chapter 6.
11. The design occupant load.
12. Where an automatic sprinkler system is provided, whether the sprinkler system is required.
13. Any special stipulations and conditions of the building permit.

Sec. 111.2.1 Grace period for changes to information provided within a certificate of occupancy issued by the building official. The designated contact person, authorized agent, or owner(s) must submit an application for a new certificate of occupancy regarding a change to any of the following within 30 days of such change:

1. The legal or assumed name of the business;
2. The name(s) of the business owner(s).

Sec. 111.2.2 Voluntary surrender of a certificate of occupancy. An owner of the occupancy may voluntarily surrender their certificate of occupancy. A voluntary surrender of a certificate of occupancy must be presented to the building official in writing. Upon the building official's receipt of the written statement of surrender, the certificate of occupancy is void, and no use or occupancy, in whole or in part, may be made of the building or structure until a new certificate of occupancy has been applied for and issued by the building official.

Section 113; change the title of the section and Section 113.1 to read as follows:

SECTION 113 BUILDING STANDARDS COMMISSION.

Sec. 113.1 General. In order to hear and decide appeals of orders, decisions, or determinations made by the *building official* relative to the application and interpretation

of this code, there shall be and is hereby created a building standards commission ("commission," "board," or "board of appeals"). The commission shall be appointed by the Plano City Council and shall hold office at its pleasure. The commission shall adopt rules of procedure for conducting its business and shall render all decisions and findings in writing to the appellant with a duplicate copy to the *building official*.

Sections 111.4 and 111.4.1; amended and added to read as follows:

Sec. 111.4 Revocation. The building official is authorized to suspend or revoke a certificate of occupancy or completion issued under the provisions of this code, in writing, in the following instances:

1. The certificate was issued in error.
2. The certificate was issued on the basis of incorrect information supplied by the applicant or certificate holder.
3. The applicant or certificate holder failed to obtain a new certificate of occupancy after a change of occupancy in accordance with Section 111.1 or a change to the ownership of the business or in the legal or assumed name of the business, in accordance with the provisions of Section 111.2.1.
4. Where it is determined that the building or structure or portion thereof is in violation of the provisions of this code or other ordinance of this jurisdiction.

Sec. 111.4.1 Revocation procedures for a certificate of occupancy. If the certificate of occupancy is revoked as a result of error, misinformation, or violation of any provision in the Plano Zoning Ordinance, the appeal procedures contained in the Zoning Ordinance apply and must be followed. If the certificate of occupancy is revoked as a result of error, misinformation, or violation of any provision of this code or other ordinance of this jurisdiction that is not contained in the Zoning Ordinance, the appeal procedures contained in this code apply and must be followed.

Section 202; change the definition of "Ambulatory Care Facility" as follows:

AMBULATORY CARE FACILITY. Buildings or portions thereof used to provide medical, surgical, psychiatric, nursing or similar care on a less than 24-hour basis to persons who are rendered incapable of self-preservation by the services provided. This group may include, but not be limited to, the following:

- Dialysis centers
- Sedation dentistry
- Surgery centers
- Colonic centers
- Psychiatric centers

Section 202; add a definition of "Assisting Living Facilities" to read as follows:

ASSISTED LIVING FACILITIES. A building or part thereof housing persons, on a 24-hour basis, who because of age, mental disability or other reasons, live in a supervised residential environment which provides personal care services. The occupants are capable of responding to an emergency situation without physical assistance from staff.

Section 202; add a definition of "High-piled Combustible Storage" to read as follows:

HIGH-PILED COMBUSTIBLE STORAGE.

1. Storage of combustible materials in closely packed piles or combustible materials on pallets, in racks or on shelves where the top of storage is greater than 12 feet (3658 mm) in height. Where required by the *fire code official*, *high-piled combustible storage* also includes certain high-hazard commodities, such as rubber tires, Group A plastics, *flammable liquids*, idle pallets and similar commodities, where the top of storage is greater than 6 feet (1829 mm) in height.
2. Any building classified as a group S Occupancy or Speculative Building exceeding 6,000 sq. ft. that has a clear height in excess of 14 feet, making it possible to be used for storage in excess of 12 feet, shall be considered to be high-piled storage.

When a specific product cannot be identified (speculative warehouse), a fire protection system and life safety features shall be installed for Class IV commodities, to the maximum pile height.

Section 202; change the definition of "High-Rise Building" to read as follows:

HIGH-RISE BUILDING. A building with an occupied floor located more than 55 feet (16 764 mm) above the lowest level of fire department vehicle access.

Section 202; change the definition of "Repair Garage" to read as follows:

REPAIR GARAGE. A building, structure or portion thereof used for servicing or repairing motor vehicles. This occupancy shall also include garages involved in minor repair, modification and servicing of motor vehicles for items such as lube changes, inspections, windshield repair or replacement, shocks, minor part replacement, and other such minor repairs.

Section 202; change the definition of "Special Inspector" to read as follows:

SPECIAL INSPECTOR. A qualified person employed or retained by an *approved* agency who shall prove to the satisfaction of the registered design professional in responsible charge and the *building official* as having the competence necessary to inspect a particular type of construction requiring *special inspection*.

Section 303.1.3; change section to read as follows:

Sec. 303.1.3 Associated with Group E occupancies. A room or space used for assembly purposes that is associated with a Group E occupancy is not considered a separate occupancy, except when applying the assembly requirements of Chapters 10 and 11.

Section 304.1; add the following to the list of occupancies in Section 304.1 Business Group B:

Fire stations

Police stations with detention facilities for 5 or less

Table 307.1.1 Hazardous Materials Exemptions; change the exemption for "Cleaning establishments with combustible liquid solvents" in Table 307.1.1 to read as follows:

Table 307.1.1 Hazardous Materials Exemptions.

Cleaning establishments with combustible liquid solvents having a flash point of 140°F (60°C) or higher in closed systems employing equipment listed by an approved testing agency, provided that this occupancy is separated from all other areas of the building by 1-hour fire barriers constructed in accordance with Section 707 of 1-hour horizontal assemblies constructed in accordance with Section 711 or both. See also IFC Chapter 21, Dry Cleaning Plant provisions.

Section 403.1; change section to read as follows:

Sec. 403.1 Applicability. *High-rise buildings* shall comply with Sections 403.2 through 403.6.

Exceptions: The provisions of Sections 403.2 through 403.6 shall not apply to the following buildings and structures:

1. Airport traffic control towers in accordance with Section 412.2.
2. *Open parking garages* in accordance with Section 406.5.
3. The open air portion of a building containing a Group A-5 occupancy in accordance with Section 303.6.
4. Special industrial occupancies in accordance with Section 503.1.1.
5. Buildings containing any one of the following:

   5.1 A Group H-1 occupancy.

5.2 A Group H-2 occupancy in accordance with Section 415.8, 415.9.2, 415.9.3 or 426.1

5.3 A Group H-3 occupancy in accordance with Section 415.8.

Sec. 403.3; change section to read as follows (Exception deleted):

Sec. 403.3 Automatic sprinkler system. Buildings and structures shall be equipped throughout with an *automatic sprinkler system* in accordance with Section 903.3.1.1 and a secondary water supply where required by Section 403.3.3.

Section 403.3.2; change section to read as follows:

Sec. 403.3.2 Water supply to required fire pumps. In buildings that are more than 120 feet (36.5 m) in building height, required fire pumps shall be supplied by connections to no fewer than two water mains located in different streets. Separate supply piping shall be provided between each connection to the water main and the pumps. Each connection and the supply piping between the connection and the pumps shall be sized to supply the flow and pressure required for the pumps to operate.

Exception: Two connections to the same main shall be permitted provided that the main is valved such that an interruption can be isolated so that the water supply will continue without interruption through no fewer than one of the connections.

Section 406.3.3.1; change section to read as follows:

Sec. 406.3.3.1 Carport separation. A fire separation is not required between a Group R-2 and U carport provided that the carport is entirely open on all sides and that the distance between the two is at least 10 feet (3048 mm).

A separation is not required between any occupancy and an accessory U carport provided the carport is entirely open on all sides, the eave-to-eave or eave-to-property line (assumed or real) horizontal separation is at least 5 (five) feet, constructed of noncombustible materials and for the storage of automobiles. Shade structures used for commercial playgrounds or commercial use do not require fire separations provided shading materials have flame-retardant certificates and framing members are of non-combustible construction.

Section 502.1; change section to read as follows:

Sec. 502.1 Address identification. Approved numerals of minimum six (6) inches in height and of a color contrasting with the background designating address shall be placed on all new and existing buildings or structures as to be plainly visible and legible from the street or road fronting the property and from all rear alleyways where said alleyways exist. Where buildings do not immediately front a street, approved six (6) inch in height building numerals or address and three (3) inch in height suite/apartment numerals of a color contrasting with the background of the building shall be placed on all new and existing buildings or structures. Numerals or addresses shall be posted on a minimum twenty (20) inch by thirty (30) inch background or border.

Section 503.1; change section to read as follows:

Sec. 503.1 General. Unless otherwise specifically modified in Chapter 4 and this chapter, *building height*, number of *stories* and *building area* shall not exceed the limits specified in Sections 504 and 506 based on the type of construction as determined by Section 602 and the occupancies as determined by Section 302 except as modified hereafter. *Building height*, number of *stories* and *building area* provisions shall be applied independently. For the purposes of determining area limitations, height limitations and type of construction, each portion of a building separated by one or more *fire walls* complying with Section 706 shall be considered to be a separate building. Where a building contains more than one distinct type of construction, the building shall comply with the more restrictive *building area*, *height*, and *stories* for the lesser type of construction or be separated by *fire walls*, except as allowed in Section 510.

Table 506.2 Allowable Area Factor in Square Feet; *delete footnote "i" from the table.*

Sec. 506.3.1; change section to read as follows:

Sec. 506.3.1 Minimum percentage of perimeter. To qualify for an area factor increase based on frontage, a *building* shall have not less than 25 percent of it perimeter on a *public way* or open space. Such open space shall be either on the same *lot* or dedicated for public use and shall be accessed from a street or approved *fire lane*. In order to be considered as accessible, if not in direct contact with a street or *fire lane*, a minimum 10-foot-wide pathway meeting fire department access from the street or approved *fire lane* shall be provided.

Section 602.1.1; change section to read as follows:

Sec. 602.1.1 Minimum requirements. A *building* or portion thereof shall not be required to conform to the details of a type of construction higher than that type which meets the minimum requirements based on occupancy even though certain features of such a *building* actually conform to a higher type of construction. Where a *building* contains more than one distinct type of construction, the *building* shall comply with the most restrictive *building area*, *height*, and *stories*, for the lesser type of construction or be separated by *fire walls* in accordance with Section 706.

Sec. 708.4.3; change Exception 1 of Section 708.4.3 "Fireblocks and draftstops in combustible construction" to read as follows (remainder of section and exceptions are unchanged):

1. Buildings equipped with an *automatic sprinkler system* installed throughout in accordance with Section 903.3.1.1, or in accordance with Section 903.3.1.2 provided that protection is provided in the space between the top of the *fire partition* and underside of the floor or roof sheathing, deck or slab above as required for systems complying with Section 903.3.1.1. Portions of buildings containing concealed spaces filled with noncombustible insulation, as permitted for sprinkler omission, shall not apply to this exception for draftstopping.

Sec. 718.3; change Exception of Section 718.3 "Draftstops in floors" to read as follows (remainder of section is unchanged):

Exception: Buildings equipped throughout with an *automatic sprinkler system* in accordance with Section 903.3.1.1 and provided that in combustible construction, sprinkler protection is provided in the floor space.

Sec. 718.4; change Exception of Section 718.4 "Draftstops in attics" to read as follows (remainder of section is unchanged):

Exception: Buildings equipped throughout with an *automatic sprinkler system* in accordance with Section 903.3.1.1 and provided that in combustible construction, sprinkler protection is provided in the attic space.

SECTION 901 GENERAL.

Sec. 901.5; amended by the addition of the following to the first paragraph:

All required tests shall be conducted by and at the expense of the owner or his representative. The Fire Department shall not be held responsible for any damages incurred in such test. Where it is required that the Fire Department witness any such test, such test shall be scheduled with a minimum of 48-hour notice to the Fire Chief or his representative.

Sec. 901.7 is amended to read as follows:

Sec. 901.7 Systems out of service. Where a required fire protection system is out of service or in the event of an excessive number of activations, alarms or unwanted alarms, the fire department and the code official shall be notified immediately and, where required by the code official, the building shall either be evacuated or standby personnel shall be provided for all occupants left unprotected by the shut down until the fire protection system has been returned to service.

Where utilized, standby personnel shall be provided with at least one approved means for notification of the fire department and their only duty shall be to perform constant patrols of the protected premises and keep watch for fires.

SECTION 903 AUTOMATIC SPRINKLER SYSTEMS.

Sec. 903.1.1 is amended to read as follows:

Sec. 903.1.1 Alternative protection. Alternative automatic fire-extinguishing systems complying with Section 904 shall be permitted in addition to automatic sprinkler protection where recognized by the applicable standard and, or as approved by the *fire code official*.

Sec. 903.2 is amended to read as follows:

Sec. 903.2 Where required. Approved automatic sprinkler systems in new buildings and structures shall be provided in the locations described in Sections 903.2.1 through 903.2.12. Automatic Sprinklers shall not be installed in elevator machine rooms, elevator machines spaces, and elevator hoist ways. Storage shall not be allowed within the elevator machine room.

Sec. 903.2 is amended by deleting the Exception.

Secs. 903.2.1.1, 903.2.1.3, 903.2.1.4, are amended to read as follows:

Sec. 903.2.1.1 Group A-1. An automatic sprinkler system shall be provided for Group A-1 Occupancies where one of the following conditions exists:

1. The fire area exceeds 6,000 square feet ($557.4m^2$).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than the level of exit discharge.
4. The fire area contains a multi theater complex.

Sec. 903.2.1.3 Group A-3. An automatic sprinkler system shall be for Group A-3 Occupancies where one of the following conditions exists:

1. The fire area exceeds 6,000 square feet ($557.4m^2$).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than the level of exit discharge.

Sec. 903.2.1.4 Group A-4. An automatic sprinkler system shall be provided for Group A-4 Occupancies where one of the following conditions exists:

1. The fire area exceeds 6,000 square feet ($557.4m^2$).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than the level of exit discharge.

Sec. 903.2.2 is amended to read as follows:

Sec. 903.2.2 Group B. An automatic sprinkler system shall be provided for Group B occupancies as required in Sections 903.2.2.1, 9.3.2.2.2, and 903.2.2.3.

Add new section 903.2.2.3 to read as follows:

Sec. 903.2.2.3 Fire area. Where a Group B fire area exceeds 6,000 square feet (557.4 meters squared).

Secs. 903.2.3, 903.2.4, 903.2.4.2, 903.2.7, 903.2.9, 903.2.9.1, and 903.2.9.3 are amended to read as follows:

Sec. 903.2.3 Group E. An automatic sprinkler system shall be provided for Group E Occupancies where one of the following conditions exists:

1. Throughout all Group E fire areas greater than 6,000 square feet ($557.4m^2$) in area.
2. Throughout every portion of educational building below the level of exit discharge.

   Exception: An automatic sprinkler system is not required in any fire area or area below the level of exit discharge where every classroom throughout the building has at least one exterior exit door at ground level.
3. The Group E fire area has an occupant load of 300 or more.

Sec. 903.2.4 Group F-1. An automatic sprinkler system shall be provided throughout all buildings containing a Group F-1 Occupancy where one of the following conditions exists:

1. Where a Group F-1 fire area exceeds 6,000 square feet ($557.4m^2$);

2. Where a Group F-1 fire area is located more than three stories above grade plane; or

3. Where combined area of all Group F-1 fire areas on all floors, including any mezzanines, exceeds 24,000 square feet ($2230m^2$).

4. A Group F-1 occupancy is used to manufacture lithium-ion or lithium metal batteries.

5. A Group F-1 occupancy is used to manufacture vehicles, energy storage systems or equipment containing lithium-ion or lithium metal batteries where the batteries are installed as part of the manufacturing process.

Sec. 903.2.4.2 Group F-1 distilled spirits. An automatic sprinkler system shall be provided throughout a Group F-1 fire area used for the manufacture of distilled spirits involving more than 120 gallons of distilled spirits (>20% alcohol) in the fire area at any one time.

Sec. 903.2.7 Group M. An automatic sprinkler system shall be provided throughout all buildings containing a Group M Occupancy where one of the following conditions exists:

1. Where a Group M fire area exceeds 6,000 square feet ($557.4m^2$).

2. Where a Group M fire area is located more than three stories above grade plane.

3. Where the combined area of all Group M fire areas on all floors, including any mezzanines, exceeds 24,000 square feet ($2230m^2$).

Sec. 903.2.9 Group S-1. An automatic sprinkler system shall be provided throughout all buildings containing a Group S-1 Occupancy where one of the following conditions exists:

1. A Group S-1 fire area exceeds 6,000 square feet ($557.4m^2$).

2. A Group S-1 fire area is located more than three stories above grade plane.

3. The combined area of all Group S-1 fire areas on all floors, including any mezzanines, exceeds 24,000 square feet ($2230m^2$).

4. A Group S-1 *fire area* used for the storage of commercial trucks or buses where the *fire area* exceeds 5,000 square feet ($464m^2$).

5. A Group S-1 fire area used for the storage of lithium-ion or lithium metal powered vehicles where the fire area exceeds 500 square feet ($46.4m^2$).

Sec. 903.2.9.1 Repair garages. An automatic sprinkler system shall be provided throughout all buildings used as Repair Garages where one of the following conditions exists:

1. Buildings two or more stories in height, including basements, with a fire area containing a repair garage exceeding 6,000 square feet ($557.4m^2$).

2. One-story buildings with a fire area containing a repair garage exceeding 6,000 square feet ($557.4m^2$).

3. Buildings with a repair garage servicing vehicles parked in the basement.

4. A Group S-1 *fire area* used for the repair of commercial trucks or buses where the *fire area* exceeds 5,000 square feet ($464m^2$).

5. A Group S-1 fire area used for the storage of lithium-ion or lithium metal powered vehicles where the fire area exceeds 500 square feet ($46.4m^2$).

Sec. 903.2.9.3 Group S-1 distilled spirits or wine. An automatic sprinkler system shall be provided throughout a Group S-1 fire area used for the bulk storage of distilled spirits or wine involving more than 120 gallons of distilled spirits or wine (>20% alcohol) in the fire area at any one time.

Sec. 903.2.9.4 is amended by the deleting the exception.

Sec. 903.2.9; add new Section 903.2.9.5 to read as follows:

Sec. 903.2.9.5 Self-service storage facility. An automatic sprinkler system shall be installed throughout all self-service storage facilities. A screen shall be installed at eighteen (18) inches below the level of the sprinkler heads to restrict storage above that level. This screen shall be a mesh of not less than one (1) inch nor greater than six (6) inches in size. The screen and its supports shall be installed such that all elements are at least eighteen (18) inches below any sprinkler heads.

Sec. 903.2.10 is amended be the addition of a 4th condition:

Sec. 903.2.10 Group S-2 parking garages. An *automatic sprinkler system* shall be provided throughout buildings classified as parking garages where any of the following conditions exist:

1. Where the *fire area* of the enclosed parking garage, in accordance with Section 406.6 of the *International Building Code*, exceeds 12,000 square feet (1115 m^2).
2. Where the enclosed parking garage, in accordance with Section 406.6 of the *International Building Code*, is located beneath other groups.

   Exception: Enclosed parking garages located beneath Group R-3 occupancies.
3. Where the *fire area* of the open parking garage, in accordance with Section 406.5 of the *International Building Code*, exceeds 48,000 square feet (4460 m^2).
4. Where two or more sides of the garage are not accessible by the Fire Department ladder truck.

Sec. 903.2.11.3 is amended to read as follows and deleting the exception:

Sec. 903.2.11.3 Buildings 35 feet or more in height. An automatic sprinkler system shall be installed throughout buildings that have one or more stories with an occupant load of 30 or more, other than penthouses in compliance with Section 1511 of the *International Building Code*, located 35 feet (10,688 mm) or more above the lowest level of fire department vehicle access, measured to the finished floor.

Sec. 903.2.11; add new Sections 903.2.11.7, 903.2.11.8, 903.2.11.9, and 903.2.11.10 to read as follows:

Sec. 903.2.11.7 High piled combustible storage. For any building with a clear height exceeding 12 feet (4,572 mm), see Chapter 32 to determine if those provisions apply.

Sec. 903.2.11.8 Spray booths and rooms. New and existing spray booths and spraying rooms shall be protected by an approved automatic fire-extinguishing system.

Sec. 903.2.11.9 Buildings over 6,000 sq. ft. An automatic sprinkler system shall be installed throughout all buildings over 6,000 sq. ft. and greater, and in all existing buildings that are enlarged to be 6,000 square feet or greater, and in buildings greater than 6,000 square feet which are enlarged. For the purpose of this provision, fire walls, fire barriers, or horizontal assemblies shall not define separate buildings.

Exceptions:

1. Parking garages in compliance with Section 903.2.10 of the International Fire Code.
2. When of non-combustible construction, the area of awning extension or free-standing canopies, both sides, and not used for display or storage shall not be considered for requiring sprinkler protection for areas greater than 6,000 square feet but less than otherwise required in this code.

Sec. 903.2.11.10 Expanded tenant spaces. Fire sprinklers shall be installed in all tenant spaces where the total fire area exceeds 6,000 square feet. For the purpose of fire sprinklers, fire walls, fire barriers, or horizontal assemblies shall not be used to separate single tenant fire areas.

Sec. 903.3.1.1.1 is amended to read as follows:

Sec. 903.3.1.1.1 Exempt locations. When approved by the fire code official, automatic

sprinklers shall not be required in the following rooms or areas where such rooms or areas are protected with an approved automatic fire detection system in accordance with Section 907.2 that will respond to visible or invisible particles of combustion. Sprinklers shall not be omitted from any room merely because it is damp, of fire-resistance-rated construction or contains electrical equipment.

1. Any room where the application of water, or flame and water, constitutes a serious life or fire hazard.

2. Generator and transformer rooms, under the direct control of a public utility, separated from the remainder of the building by walls and floor/ceiling or roof/ceiling assemblies having a fire-resistance rating of not less than 2 hours.

3. Elevator machine rooms, machinery spaces, and hoist ways, other than pits where such sprinklers would not necessitate shunt trip requirements under any circumstances.

Sec. 903.3.1.2 is amended by adding the following paragraph at the end.

Sec. 903.3.1.2 NFPA 13R Sprinkler Systems. Where allowed in buildings of Group R, up to and including four stories in height, automatic sprinklers shall be installed throughout in accordance with NFPA 13R. Sprinkler systems installed in accordance with 13R shall include sprinkler protections in combustible attics of buildings two (2) or more stories in height.

Sec. 903.3.1; add new Sections 903.3.1.4 and 903.3.1.5 to read as follows:

Sec. 903.3.1.4 Freeze protection. Freeze protection systems for automatic fire sprinkler systems shall be in accordance with the requirements of the applicable referenced NFPA standard and this section.

Sec. 903.3.1.4.1 Attics. Only dry-pipe, preaction, or listed antifreeze automatic fire sprinkler systems shall be allowed to protect attic spaces.

Exception: Wet-pipe fire sprinkler systems shall be allowed to protect non-ventilated attic spaces where:

1. The attic sprinklers are supplied by a separate floor control valve assembly to allow ease of draining the attic system without impairing sprinklers throughout the rest of the building, and

2. Adequate heat shall be provided for freeze protection as per the applicable referenced NFPA standard, and

3. The attic space is a part of the building's thermal, or heat, envelope, such that insulation is provided at the roof deck, rather than at the ceiling level.

Sec. 903.3.1.4.2 Heat trace/insulation. Heat trace/insulation shall only be allowed where approved by the fire code official for small sections of large diameter water-filled pipe.

Sec. 903.3.1.5 Installation. Automatic sprinkler and standpipe systems shall be installed with the following:

1. A single underground supply from a looped water main and point for the Fire Department Connection (FDC) shall be provided for all buildings.

2. Fire department connections for automatic sprinklers and standpipes shall be provided with one 5-inch Storz connection. For system demands greater than 150 psi an additional 2½ inch Siamese connection and sign identifying pressure demand shall be required. Each shall have an independent check valve.

3. All inspectors' test, ball-drips, and main-drains shall be piped directly to the outside of the building.

4. At least one inspection test valve shall be located at the remote system area.

5. Fire pumps shall be equipped with a properly sized test header.

6. Underground piping shall have a 10-foot minimum separation from all other utilities and placed in a separate trench.

Underground piping within 5 feet of the building may be combined with other utilities for entrance to the building.

7. Porches and balconies shall be sprinkled on all Group R-2 and R-3 occupancies.

8. A minimum of 4-feet of pipe between the check valve and inside wall of the Fire Department Connection.

Sec. 903.3.5 is amended to include a second paragraph to read as follows:

Water supply as required for automatic sprinkler and automatic standpipe systems shall be provided in conformance with the supply requirements of the respective standards; however, every fire protection system shall be designed with a 10-psi safety factor.

Sec. 903.3.9 is amended to read as follows:

Sec. 903.3.9 Floor control valves. Approved supervised indicating control valves shall be provided at the point of connection to the riser on each floor.

Sec. 903.4.1 is amended to include a second paragraph after the exceptions to read as follows:

Sec. 903.4.1 Electronic supervision. Sprinkler and standpipe system water-flow detectors shall be provided for each floor tap to the sprinkler system and shall cause an alarm upon detection of water flow for a minimum of 45 seconds and not more than 90 seconds. All control valves in the sprinkler and standpipe systems except for fire department hose connection valves shall be electrically supervised to initiate a supervisory signal at the central station upon tampering.

Sec. 903.4.3 is amended to include a second paragraph to read as follows:

Sec. 903.4.3 Alarms. The alarm device required on the exterior of the building shall be a weatherproof horn/strobe notification appliance with a minimum 75 candela strobe rating, installed as close as practicable to the fire department connection.

SECTION 905 STANDPIPE SYSTEMS.

Sec. 905.2 is amended to read as follows:

Sec. 905.2 Installation standards. Standpipe system shall be installed in accordance with this section and NFPA 14. Manual dry standpipe systems shall be supervised with a minimum of 10 psig and a maximum of 40 psig air pressure with a high/low alarm.

Sec. 905.3.2 Group A; is amended by deleting exceptions 1 and 2.

Sec 905.3 is amended by adding new Section 905.3.8 to read as follows:

Sec. 905.3.8 Travel distance. Class I standpipes shall also be required on all occupancies in which the distance from accessible points for Fire Department ingress to any point in the structure exceeds two hundred fifty feet (250') along the route that a fire hose is laid as measured from the fire lane.

Sec. 905.4 Location of class I standpipe hose connections ***item 5 is amended to read as follows:***

5. Where the roof has a slope less than four units vertical in 12 units horizontal (33.3-percent slope), each standpipe shall be provided with a two-way hose connection located either on the roof or at the highest landing of stairways with stair access to the roof. An additional hose connection shall be provided at the top of the most hydraulically remote standpipe for testing purposes.

Sec. 905.4 is amended to by the addition of item 7 as follows:

7. When required by this Chapter, standpipe connections shall be placed adjacent to all required exits to the structure and at two hundred feet (200') intervals along major corridors or pathways thereafter.

Sec. 905; is amended by deleting Section 905.5.

Sec. 905; is amended by deleting Section 905.6.

Sec. 905.9 is amended to add a second paragraph after the exceptions to read as follows:

Sec. 905.9 Valve supervision. Sprinkler and standpipe system water-flow detectors

shall be provided for each floor tap to the sprinkler system and shall cause an alarm upon detection of water flow for a minimum of 45 seconds and not more than 90 seconds. All control valves in the sprinkler and standpipe systems except for fire department hose connection valves shall be electrically supervised to initiate a supervisory signal at the central station upon tampering.

Sec. 905.11; is amended to read as follows:

Sec. 905.11 Locking standpipe outlet caps. Locking standpipe caps are on the outlets of dry standpipe connections where the responding fire department carries appropriate key wrenches for removal that are compatible with locking FDC connection caps. Locking caps are required on all new systems and existing systems where caps are missing.

Sec. 905 Standpipe systems is amended by adding section 905.13 to read as follows:

Sec. 905.13 Manual systems. Design required for such systems shall be provided in conformance with the supply requirements of the respective standards. However, every manual fire protection system shall be designed with a supply of 150 psi at the FDC.

SECTION 906 PORTABLE FIRE EXTINGUISHERS.

Sec. 906.1 is amended by deleting 906.1(1) exception 3.

SECTION 907 FIRE ALARM AND DETECTION SYSTEMS.

Sec. 907.1.1 is amended by adding the following sentence:

Sec. 907.1.1 Construction documents. Plans for fire alarm systems shall be in accordance with Plano Fire-Rescue's Fire Alarm Submittal Guidelines.

Sec. 907.1 is amended by adding new Section 907.1.4 to read as follows:

Sec. 907.1.4 Design standards. All alarm systems new or replacement shall be addressable. Alarm systems serving more than 20 smoke detectors shall be analog addressable.

Exception: Existing systems need not comply unless the total building remodel or expansion initiated after January 1, 1998, as adopted, exceeds 30% of the building. When cumulative building remodel or expansion exceeds 50% of the building must comply within 18 months of permit application.

Sec. 907.2.1 is amended to read as follows:

Sec. 907.2.1 Group A. A manual fire alarm system that activates the occupant notification system in accordance with new Section 907.5 shall be installed in Group A occupancies having an occupant load of 300 or more persons or more than 100 persons above or below the lowest level of exit discharge. Group A occupancies not separated from one another in accordance with Section 707.3.10 of the *International Building Code* shall be considered as a single occupancy for the purposes of applying this section. Portions of Group E occupancies occupied for assembly purposes shall be provided with a fire alarm system as required for the Group E occupancy.

Exception: Manual fire alarm boxes are not required where the building is equipped throughout with an automatic sprinkler system installed in accordance with Section 903.3.1.1 and the occupant notification appliances will activate throughout the notification zones upon sprinkler water flow.

Activation of fire alarm notification appliances shall:

1. Cause illumination of the *means of egress* with light of not less than 1 footcandle (11 lux) at the walking surface level, and
2. Stop any conflicting or confusing sounds and visual distractions.

Sec. 907.2.3 is amended to read as follows, Exceptions to remain:

Sec. 907.2.3 Group E. A manual alarm system that initiates the occupant notification signal utilizing an emergency voice/alarm communication system meeting the requirements of Section 907.5.2.2 and installed in accordance with Section 907.6 shall be installed in Group E educational occupancies. When *automatic sprinkler systems* or smoke detectors are

installed, such systems or detectors shall be connected to the building fire alarm system. An approved smoke detection system shall by installed in Group E day care occupancies. Unless separated by a minimum of 100' open space, all buildings, whether portable buildings or the main building, will be considered one building for alarm occupant load consideration and interconnection of alarm systems. Where automatic fire sprinklers are not provided, a full-coverage smoke detection system shall be provided in all Group E occupancies.

Sec. 907.2.3, Exception 1 is amended to read as follows:

1. A manual fire alarm system is not required in Group E educational and day care occupancies with an occupant load of less than 50 when provided with an approved automatic sprinkler system.

Sec. 907.2.3; add new Section 907.2.3.1 to read as follows:

Sec. 907.2.3.1 In-home daycare. Residential In-Home daycare with not more than 12 children shall use interconnected single station detectors in all habitable rooms.

Sec. 907.2.6; add new Section 907.2.6.4 to read as follows:

Sec. 907.2.6.4 Group I-4 occupancies. An approved smoke detection system shall be installed in Group I-4 occupancies. Where automatic fire sprinklers are not provided, a full-coverage smoke detection system shall be provided in all Group I-4 occupancies.

Sec. 907.2.10.1 is amended to read as follows, Exception to remain:

Sec. 907.2.10.1 Public and self-storage occupancies. A manual fire alarm system that activates the occupant notification system in accordance with Section 907.5 shall be installed in Group S public- and self-storage occupancies for interior *corridors* and interior common areas. Visible notification appliances are not required within storage units.

Sec. 907.2.13, exception 3 is amended to read as follows:

3. Buildings with an occupancy in Group A-5 in accordance with Section 303.1 of the *International Building Code*, when used for open air seating; however, this exception does not apply to accessory uses including but not limited to sky boxes, restaurants and similarly enclosed areas.

Sec. 907.4.2; add new Section 907.4.2.7 to read as follows:

Sec. 907.4.2.7 Type. Manual alarm actuating devices shall be an approved double action type.

Sec. 907.5.2; add new Section 907.5.2.4 to read as follows:

Sec. 907.5.2.4 I-2 and Group B occupancies.

Occupant notification systems are not required where private mode fire alarm systems are needed in critical care areas of I-2 and Group B Ambulatory Occupancies. A Chime sound shall be used as the audible notification at the constantly attended location and public areas where audible notification is required.

A visible alarm notification appliance installed in a nurses control station or other continuously attended staff location shall be provided as an acceptable alternative to the installation of audible alarm notification appliances throughout the occupancy.

In areas where private mode fire alarm system is being installed, audible alarm notification appliances are not required in critical care areas of Group I-2 and Group B - Ambulatory Occupancies.

Visible alarm notification appliances are not required in critical care areas of Group I-2 and Group B - Ambulatory Occupancies.

The private mode area and public mode area of the occupancy shall be identified on the plans for review.

Sec. 907.6.1; add new Section 907.6.1.1 to read as follows:

Sec. 907.6.1.1 Wiring Installation. All fire alarm systems shall be installed in such a manner that a failure of any single initiating device or single open in an signaling line circuit conductor will not interfere with the normal operation of other such devices. All signaling line circuits (SLC) shall be installed in such a way that a single open will not interfere with the operation of any addressable devices (Class A). Outgoing and return SLC conductors shall be installed in accordance with NFPA 72 requirements for Class A circuits and shall have a minimum of four feet of separation horizontal and one foot vertical between supply and return circuit conductors. Notification appliance circuits (NAC) may be installed as Class B circuits.

Sec. 907.6.3; is amended by deleting all four (4) exceptions.

Sec. 907.6.3; add new Sections 907.6.3.2 and 907.6.3.3 to read as follows:

Sec. 907.6.3.2 Communication Requirements. All alarm systems, new or replacement, shall transmit alarm, supervisory, and trouble signals descriptively to the approved central station, remote supervisory station or proprietary supervising station as defined in NFPA 72, with the device designation and location of addressable device identification. Alarms shall not be permitted to be transmitted as a General Alarm or Zone condition.

Sec. 907.6.3.3 Flow detectors and electronic monitoring. Sprinkler and standpipe system water flow detectors shall be provided for each floor zone to the sprinkler system and shall cause an alarm upon detection of water flow for a minimum of 45 seconds and not more than 90 seconds. All control valves in the sprinkler and standpipe systems except for fire department hose connection valves shall be electrically supervised to initiate a trouble signal at the central station upon tampering.

SECTION 910 SMOKE AND HEAT REMOVAL.

Sec. 910.2; add new Section 910.2.3 to read as follows:

Sec. 910.2.3 Group H. Buildings and portions thereof used as a Group H occupancy as follows:

1. In occupancies classified as Group H-2 or H-3, any of which are more than 15,000 square feet (1394m^2) in single floor area.

   Exception: Buildings of noncombustible construction containing only noncombustible materials.

2. In areas of buildings in Group H used for storing Class 2, 3 and 4 liquid and solid oxidizers, Class 1 and unclassified detonable organic peroxides, Class 3 and 4 unstable (reactive) materials, or Class 2 or 3 water-reactive materials as required for a high-hazard commodity classification.

   Exception. Buildings of noncombustible construction containing only noncombustible materials.

Sec. 910.3.1 is amended by adding the following sentence: Gravity operated drop out vents are prohibited.

SECTION 912.2 FIRE DEPARTMENT CONNECTIONS.

Sec. 912.2; add new Section 912.2.3 to read as follows:

Section 912.2.3 Hydrant distance. An approved fire hydrant shall be located within 100 feet of the fire department connection as the fire hose lays along an unobstructed path.

Sec. 912.4.1 is amended to read as follows:

Sec. 912.4.1 Locking Fire Department Connection Caps. All new fire department connections and existing where caps are missing shall be protected by Knox locking caps.

SECTION 913 FIRE PUMPS.

Sec. 913.2.1 is amended by adding the following paragraph and exception:

Sec. 913.2.1: Protection of Fire Pump Room. When located on the ground level, the fire pump room shall be provided with an

exterior fire department access door that is not less than 3 ft. in width and 6 ft. in height, regardless of any interior doors that are provided. A key box shall be provided at this door, as required by Section 506.1.

Exception: When it is necessary to locate the fire pump room on other levels or not at an exterior wall, the corridor leading to the fire pump room access from the exterior of the building shall be provided with equivalent fire resistance as that required for the pump room, or as approved by the fire code official. Access keys shall be provided in the key box as required by Section 506.1.

Sec. 913.4 is amended to read as follows:

Sec. 913.4 Valve Supervision. Where provided, the fire pump suction, discharge and bypass valves, and the isolation valves on the backflow prevention devices or assembly shall be supervised open by a central-station, proprietary, or remote-station signaling service.

The fire-pump system shall also be supervised for "loss of power", and "phase reversal" on supervisory circuits, and "pump running" as an alarm condition and shall report individually to the monitoring station.

SECTION 915 CARBON MONOXIDE (CO) DETECTION.

Sec. 915 delete all and replace as follows:

Sec. 915.1 General. New and existing building shall be provided with carbon monoxide (CO) detection in accordance with Sections 915.2 through 915.5.

Sec. 915.2 Where required. Carbon monoxide detection shall be provided in interior spaces, other than dwelling units, that are exposed to a carbon monoxide source in accordance with Sections 915.2.1 through 915.2.3. Carbon monoxide detection for dwelling units or sleeping units that are exposed to a carbon monoxide source shall be in accordance with Section 915.2.4.

Sec. 915.2.1 Interior spaces with direct carbon monoxide sources. In all occupancies, interior spaces with a direct carbon monoxide source shall be provided with carbon monoxide detection located in close proximity to the direct carbon monoxide source and in accordance with Section 915.3.

Exception: Where environmental conditions in an enclosed space are incompatible with carbon monoxide detection devices, carbon monoxide detection shall be provided in an approved adjacent location.

Sec. 915.2.2 Interior spaces adjacent to a space containing a carbon monoxide source. In Groups A, B, E, I, M and R Occupancies, interior spaces that are separated from and adjacent to an enclosed parking garage or an interior space that contains a direct carbon monoxide source shall be provided with carbon monoxide detection if there are communicating openings between the spaces. Detection devices shall be located in close proximity to communicating openings on the side that is furthest from the carbon monoxide source and in accordance with Section 915.3.

Exceptions:

1. Where communicating openings between the space containing a direct carbon monoxide source and the adjacent space are permanently sealed airtight, carbon monoxide detection is not required for the adjacent space.
2. Where the fire code official determines that the volume or configuration of the adjacent interior space is such that dilution or geometry would diminish the effectiveness of carbon monoxide detection devices located in such spaces, detection devices additional to those required by Section 915.2.1 shall be located on the side of communicating openings that is closest to the carbon monoxide source.

Sec. 915.2.3 Interior spaces with forced-indirect carbon monoxide sources. In all occupancies, interior spaces with a forced-indirect carbon monoxide source shall be provided with carbon monoxide detection in accordance with either of the following:

1. Detection in each space with a forced-indirect carbon monoxide source, located in accordance with Section 915.3.

2. Detection only in the first space served by the main duct leaving the forced-indirect carbon monoxide source, located in accordance with Section 915.3, with an audible and visual alarm signal provided at an approved location.

Sec. 915.2.4 Dwelling units and sleeping units. Carbon monoxide detection for dwelling units and sleeping units shall comply with Sections 915.2.4.1 and 915.2.4.2.

Sec. 915.2.4.1 Direct carbon monoxide sources. Where a direct carbon monoxide source is located in a bedroom or sleeping room, or a bathroom attached to either, carbon monoxide detection shall be installed in the bedroom or sleeping room. Where carbon monoxide detection is not installed in bedrooms or sleeping rooms, carbon monoxide detection shall be installed outside of each separate sleeping area in close proximity to bedrooms or sleeping rooms for either of the following conditions:

1. The dwelling unit or sleeping unit has a communicating opening to an attached, enclosed garage.

2. A direct carbon monoxide source is located in the dwelling unit or sleeping unit outside of bedrooms or sleeping rooms.

Sec. 915.2.4.2 Forced-indirect carbon monoxide sources. Bedrooms or sleeping rooms in dwelling units or sleeping units that are exposed to a forced-indirect carbon monoxide source shall be provided with carbon monoxide detection in accordance with Section 915.2.4.1 or Section 915.2.3.

Sec. 915.3 Location of detection devices. Carbon monoxide detection devices shall be installed in accordance with manufacturer's instructions in a location that avoids dead air spaces, turbulent air spaces, fresh air returns, open windows, and obstructions that would inhibit accumulation of carbon monoxide at the detection location. Carbon monoxide detection in air ducts or plenums shall not be permitted as an alternative to required detection locations.

Sec. 915.4 Permissible detection devices. Carbon monoxide detection shall be provided by a carbon monoxide detection system complying with Section 915.4.2 unless carbon monoxide alarms are permitted by Section 915.4.1.

Sec. 915.4.1 Carbon monoxide alarms. Carbon monoxide alarms complying with Sections 915.4.1.1 through 915.4.1.3 shall be permitted in lieu of a carbon monoxide detection system in both of the following:

1. Dwelling units and sleeping units.

2. Locations other than dwelling units or sleeping units, where approved, provided that the manufacturer's instructions do not prohibit installation in locations other than dwelling units or sleeping units and that the alarm signal for any carbon monoxide alarm installed in a normally unoccupied location is annunciated by an audible and visual signal in an approved location.

Sec. 915.4.1.1 Power source. In buildings with a wired power source, carbon monoxide alarms shall receive their primary power from a permanent connection to building wiring, with no disconnecting means other than for overcurrent protection, and shall be provided with a battery backup. In buildings without a wired power source, carbon monoxide alarms shall be battery powered.

Exception: For existing buildings not previously required to have carbon monoxide alarms permanently connected to a wired power source, existing battery-powered and plug-in with battery backup carbon monoxide alarms shall be permitted to remain in service. When replaced, replacement with battery-powered and plug-in with battery backup carbon monoxide alarms shall be permitted.

Sec. 915.4.1.2 Listings. Carbon monoxide alarms shall be listed in accordance with UL 2034. Combination carbon monoxide/smoke alarms shall also be listed in accordance with UL 217.

Sec. 915.4.1.3 Interconnection. Where more than one carbon monoxide alarm is installed, actuation of any alarm shall cause all of the alarms to signal an alarm condition.

Sec. 915.4.2 Carbon monoxide detection systems. Carbon monoxide detection systems shall be installed in accordance with NFPA 72.

Sec. 915.4.2.1 Fire alarm system integration. Where a building fire alarm system or combination fire alarm system, as defined in NFPA 72, is installed, carbon monoxide detection shall be provided by connecting carbon monoxide detectors to the fire alarm system. Where a building fire alarm system or a combination fire alarm system is not installed, carbon monoxide detection shall be provided by connecting carbon monoxide detectors to a carbon monoxide detection system complying with NFPA 72.

Sec. 915.4.2.2 Listings. Carbon monoxide detectors shall be listed in accordance with UL 2075. Combination carbon monoxide/ smoke detectors shall be listed in accordance with UL 268 and UL 2075.

Sec. 915.4.2.3 Alarm notification. For other than Group E Occupancies, activation of a carbon monoxide detector shall initiate alarm notification in accordance with any of the following:

1. An audible and visible alarm notification throughout the building and at the control unit.
2. Where specified in an approved fire safety plan, an audible and visible alarm in the signaling zone where the carbon monoxide has been detected and other signaling zones specified in the fire safety plan, and at the control unit.
3. Where a sounder base is provided for each detector, an audible alarm at the activated carbon monoxide detector and an audible and visible alarm at the control unit.

For Group E Occupancies having an occupant load of 30 or less, alarm notification shall be provided in an on-site location staffed by school personnel or in accordance with the notification requirements for other occupancies. For Group E occupancies having an occupant load of more than 30, an audible and visible alarm shall be provided in an onsite location staffed by school personnel.

Sec. 915.5 Maintenance. Carbon monoxide alarms and carbon monoxide detection systems shall be maintained in accordance with NFPA 72 and the manufacturer's instructions. Carbon monoxide alarms and carbon monoxide detectors that become inoperable or begin producing end-of-life signals shall be replaced.

Sec. 1006.2.1; change Section 1006.2.1 "Egress based on occupant load and common path of egress travel distance" by amending Exception 3 to read as follows:

3. Unoccupied rooftop mechanical rooms and penthouses are not required to comply with the common path of egress travel distance measurement.

Sec. 1006.2.2; change Section 1006.2.2 by adding a new Section 1006.2.2.7 to read as follows:

Sec. 1006.2.2.7 Electrical Rooms. For electrical rooms, special exiting requirements may apply. Reference the electrical code, as adopted.

Table 1010.2.4 Manual Bolts, automatic Flush Bolts and Constant Latching Bolts on the Inactive Leaf of a Pair of Doors; change amend Table by adding Group M and A occupancies to read as follows:

Group M to Line item #1 in Table 1010.2.4: Group B, F, M or S occupancies with occupant load less than 50. [Remainder unchanged]

Add Group A and M to Line item #2 in Table 1010.2.4: Group A, B, F, M or S occupancies where the building is equipped with an automatic sprinkler system in accordance with Section 903.3.1.1 and the inactive leaf is not needed to meet egress capacity requirements. *[Remainder unchanged]*

Sec. 1020.2 Construction; change section to add a new Exception 6 to read as follows:

6. In unsprinklered Group B occupancies, corridor walls and ceilings need not be of

fire-resistive construction within a single tenant space when the space is equipped with approved automatic smoke-detection within the *corridor*. The actuation of any detector must activate self-annunciating alarms audible in all areas within the *corridor*. Smoke detectors must be connected to an approved automatic fire alarm system where such system is provided.

Sec. 1030.1.1.1 Spaces under grandstands and bleachers; delete the section in its entirety.

Sec. 1101.1; change section to read as follows:

Sec. 1101.1 Scope. The provisions of this chapter shall control the design and construction of *facilities* for accessibility for individuals with disabilities.

Exception: Components of projects regulated by and registered with Architectural Barriers Division of Texas Department of Licensing and Regulation or regulated by and in compliance with the Fair Housing Act and Design Manual shall be deemed to be in compliance with the requirements of this chapter.

Sec. 1106 Parking and Passenger Loading Facilities; delete the section in its entirety.

Sec. 2702; change Section 2702 by adding a new Section 2702.5 to read as follows:

Sec. 2702.5 Designated critical operations areas (DCOA). In areas within a facility or site requiring continuous operation for the purpose of public safety, emergency management, national security or business continuity, the power system shall comply with NFPA 70 Article 708.

Sec. 2901.1; change section to read as follows:

[P] 2901.1 Scope. The provisions of this chapter and the *International Plumbing Code* shall govern the design, construction, erection and installation of plumbing components, appliances, equipment and systems used in *buildings* and structures covered by this code. Toilet and bathing rooms shall be constructed in accordance with Section 1210. Private sewage disposal systems shall conform to the *International Private Sewage Disposal Code*. The *International Fire Code*, the *International Property Maintenance Code* and the *International Plumbing Code* shall govern the use and maintenance of plumbing components, appliances, equipment and systems. The *International Existing Building Code* and the *International Plumbing Code* shall govern the alteration, *repair*, relocation, replacement and *addition* of plumbing components, *appliances*, *equipment* and systems. The provisions of this chapter are meant to work in coordination with the provisions of Chapter 4 of the *International Plumbing Code*. Should any conflicts arise between the two chapters, the *building official* shall determine which provision applies.

Sec. 2902.1; change section to read as follows:

Sec. 2902.1 Minimum number of fixtures. Plumbing fixtures shall be provided in the minimum number as shown in Table 2902.1 based on the actual use of the building or space. Uses not shown in Table 2902.1 shall be considered individually by the code official. The number of occupants shall be determined by this code. In other than E occupancies, the minimum number of fixtures in Table 2902.1 may be lowered, if requested in writing, by the applicant stating reasons for a reduced number and approved by the *building official*.

Table 2902.1; change table to add a footnote g to read as follows:

TABLE 2902.1 - MINIMUM NUMBER OF REQUIRED PLUMBING FIXTURES

NO.	CLASSIFICATION	DESCRIPTION	WATER CLOSETS (URINALS: SEE SECTION 424.2)		LAVATORIES		BATHTUBS/ SHOWERS	DRINKING FOUNTAINS (SEE SECTION 410)	OTHER
			MALE	FEMALE	MALE	FEMALE			
2	Business[g]	Buildings for the transaction of business, professional services, other services involving merchandise, office buildings, banks, ambulatory care, light industrial and similar uses	1 per 25 for the first 50 and 1 per 50 for the remainder exceeding 50		1 per 40 for the first 80 and 1 per 80 for the remainder exceeding 80		-	1 per 100[g]	1 service sink[e]
6	Mercantile[g]	Retail stores, service stations, shops, salesrooms, markets and shopping centers	1 per 500		1 per 750		-	1 per 1,000[g]	1 service sink[e]

g. Drinking fountains are not required in M occupancies with an occupant load of 100 or less, B occupancies with an occupant load of 25 or less, where drinking water is provided in a container free of charge.

Sec. 2902.1; change section by adding new Sections 2902.1.4, 2902.1.4.1, and 2902.1.4.2 to read as follows:

Sec. 2902.1.4 Additional fixtures for food preparation facilities. In addition to the fixtures required in this chapter, all food service *facilities* shall be provided with additional fixtures set out in this section.

Sec. 2902.1.4.1 Hand washing lavatory. At least one hand washing lavatory shall be provided for use by employees that is accessible from food preparation, food dispensing and ware washing areas. Additional hand washing lavatories may be required based on convenience of use by employees.

Sec. 2902.1.4.2 Service sink. In new or remodeled food service establishments, at least one service sink or one floor sink shall be provided so that it is conveniently located for the cleaning of mops or similar wet floor cleaning tool and for the disposal of mop water and similar liquid waste. The location of the service sink(s) and/or mop sink(s) shall be approved by the City of Plano Health Department.

Sec. 3002.1; change to read as follows:

Sec. 3002.1 Hoistway enclosure protection. A hoistway for elevators, dumbwaiters and other vertical-access devices shall comply with Sections 712 and 713. Where the hoistway is required to be enclosed, it shall be constructed as a shaft enclosure in accordance with 713. Refer to 712.1.10 for elevators in parking garages.

Exceptions: Elevators completely located within atriums shall not require hoistway enclosure protection.

Sec. 3005.4; change to read as follows:

Sec. 3005.4 Machine rooms, control rooms, machinery spaces and control spaces. The following rooms and spaces shall be enclosed with fire barriers constructed in accordance with Section 707 or horizontal assemblies constructed in accordance with Section 711, or both:

1. Machine rooms.
2. Control rooms.
3. Control spaces.
4. Machinery spaces outside of the hoistway enclosure.

The *fire-resistance rating* shall be not less than the required rating of the hoistway enclosure served by the machinery. Openings in the *fire barriers* shall be protected with assemblies having a *fire protection rating* not less than that required for the hoistway enclosure doors.

Exceptions:

1. For other than FSAE and occupant evacuation elevators, elevator machine rooms,

control rooms, machinery spaces and control spaces completely located within atriums shall not require enclosure protection.

2. For other than FSAE and occupant evacuation elevators, elevator machine rooms, control rooms, machinery spaces and control spaces in open or enclosed parking garages that serve only the parking garage, shall not require enclosure protection.

Sec. 3005.5; change section by adding new Subsections 3005.5.1, 3005.5.1.1, 3005.5.1.1.1, 3005.5.1.1.2, 3005.5.1.2, and 3005.5.1.3 to read as follows:

Sec. 3005.5.1 Fire protection in machine rooms, control rooms, machinery spaces and control spaces.

Sec. 3005.5.1.1 Automatic sprinkler system. The building shall be equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1, except as otherwise permitted by Section 903.3.1.1.1 and as prohibited by Section 3005.5.1.1.1.

Sec. 3005.5.1.1.1 Prohibited locations. Automatic sprinklers shall not be installed in machine rooms, elevator machinery spaces, control rooms, control spaces and elevator hoistways.

Sec. 3005.5.1.1.2 Sprinkler system monitoring. The sprinkler system shall have a sprinkler control valve supervisory switch and water-flow initiating device provided for each floor that is monitored by the building's fire alarm system.

Sec. 3005.5.1.2 Water protection. An approved method to prevent water from infiltrating into the hoistway enclosure from the operation of the automatic sprinkler system outside the elevator lobby shall be provided.

Sec. 3005.5.1.3 Shunt trip. Means for elevator shutdown in accordance with Section 3005.5 shall not be installed.

Sec. 3005; change section by adding a new Section 3005.7 to read as follows:

Sec. 3005.7 Storage. Storage shall not be allowed within the elevator machine room, control room, machinery spaces and or control spaces. Provide approved signage at each entry to the above-listed locations stating: "No Storage Allowed."

Sec. 3006.2; change section to read as follows:

Sec. 3006.2 Hoistway opening protection required. Elevator hoistway door openings shall be protected in accordance with Section 3006.3 where an elevator hoistway connects more than three *stories*, is required to be enclosed within a *shaft enclosure* in accordance with Section 712.1.1 and any of the following conditions apply:

1. The *building* is not protected throughout with an automatic sprinkler system in accordance with Section 903.3.1.1 or 903.3.1.2.

2. The *building* contains a Group I-1, Condition 2 occupancy.

3. The *building* contains a Group I-2 occupancy.

4. The *building* contains a Group I-3 occupancy.

5. The *building* is a high rise and the elevator hoistway is more than 55 feet (16 764 mm) in height. The height of the hoistway shall be measured from the lowest floor at or above grade to the highest floors served by the hoistway.

Sec. 3007.3; change section to read as follows:

Sec. 3007.3 Water protection. Water from the operation of an *automatic sprinkler system* outside the lobby shall be prevented from infiltrating into the hoistway enclosure in accordance with an approved method.

Sec. 3008.3; change section to read as follows:

Sec. 3008.3 Water protection. Water from the operation of an *automatic sprinkler system*

outside the lobby shall be prevented from infiltrating into the hoistway enclosure in accordance with an approved method.

(Ord. No. 2016-3-11, § II, 3-14-16; Ord. No. 2018-11-9, § II, 11-26-18, eff. 1-1-19; Ord. No. 2022-1-10, § II, 1-24-22; Ord. No. 2022-11-3, §§ I, II, 11-14-22; Ord. No. 2025-6-14, § II, 6-9-25; Ord. No. 2025-7-9, § I, 7-28-25)

Secs. 6-38—6-44. Reserved.

ARTICLE III. PROPERTY MAINTENANCE CODE*

DIVISION 1. GENERALLY†

Sec. 6-45. Offense and penalty.

Any person, firm, or corporation, having care custody and control of a property, who shall violate a provision of this code, or fail to comply therewith, or with any of the requirements thereof, shall be prosecuted within the limits provided by state or local laws. Each day that a violation remains shall be deemed a separate offense.

Any violation of the provisions or terms of this article by any person, firm or corporation having care, custody and control of a property shall be a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(Ord. No. 2016-3-14, § II, 3-14-16; Ord. No. 2018-11-10, § III, 11-26-18; Ord. No. 2022-1-11, §§ I, II, 1-24-22; Ord. No. 2025-6-4, § II, 6-9-25)

Sec. 6-46. Adopted.

The 2024 edition of the International Property Maintenance Code, including Appendix A, a publication of the International Code Council, is hereby adopted and designated as the property maintenance code of the City of Plano to the same extent as if such code were copied verbatim in this article, subject to the deletions, additions, and amendments prescribed in this article. A copy of the 2024 edition of the International Property Maintenance Code, including Appendix A, is on file in the office of the city secretary.

(Ord. No. 2016-3-14, § II, 3-14-16; Ord. No. 2018-11-10, § III, 11-26-18; Ord. No. 2022-1-11, §§ I, II, 1-24-22; Ord. No. 2025-6-4, § II, 6-9-25)

Sec. 6-47. Affirmative defenses.

An "Exception:" in the property maintenance code is not an exception as provided by V.T.C.A., Penal Code § 2.02, as amended, but may be asserted as an affirmative defense to prosecution. In such an instance, the following shall apply:

(1) The prosecuting attorney is not required to negate the existence of the defense in the accusation or complaint charging commission of the offense;

(2) The prosecuting attorney is not required to prove beyond a reasonable doubt that the defendant or defendant's conduct does not fall within the defense;

(3) The issue of the existence of an affirmative defense is not submitted to the jury unless evidence is admitted supporting the defense; and

(4) The burden of proof is on the defendant to prove such an affirmative defense by a preponderance of the evidence.

(Ord. No. 2016-3-14, § II, 3-14-16; Ord. No. 2018-11-10, § III, 11-26-18; Ord. No. 2022-1-11, §§ I, II, 1-24-22; Ord. No. 2025-6-4, § II, 6-9-25)

Secs. 6-48, 6-49. Reserved.

*__Editor's note—__Ord. No. 2004-9-30, § 1, adopted Sept. 27, 2004, repealed art. III, §§ 6-76—6-97, in its entirety. Section 2 of said ordinance provided for a new article III to read as herein set out. Formerly, said article pertained to unsafe structures generally as enacted by Ord. No. 84-10-19, § I, adopted Oct. 22, 1984; as amended. See the Code Comparative Table for a detailed analysis of inclusion.

†__Editor's note—__Ord. No. 2016-3-14, §§ I, II, adopted March 14, 2016, repealed and reenacted division 1 in its entirety to read as herein set out. Formerly, division 1, §§ 6-45, 6-46, pertained to similar subject matter, and derived from Ord. No. 2013-10-30, § II, adopted October 28, 2013.

DIVISION 2. AMENDMENTS*

Sec. 6-50. Deletions, additions and amendments to Chapter 1 of the 2024 International Property Maintenance Code.

The City of Plano hereby amends Chapter 1, *Scope and Administration,* of the 2024 International Property Maintenance Code as follows:

Subsec. 101.1, Title, is changed to read as follows:

> These regulations shall be known as the Property Maintenance Code of the City of Plano, TX, hereinafter referred to as "this code."

Subsec. 102.3, Application of Other Codes, is changed to read as follows:

> Repairs, additions or alterations to a structure, or changes of occupancy, shall be done in accordance with the procedures and provisions of the Building Codes as adopted by the City of Plano. Nothing in the Code shall be construed to cancel, modify or set aside any provision of the City of Plano Zoning Ordinance.

Sec. 103, Code Compliance Agency, is deleted in its entirety.

Subsec. 105.1, General, is changed to read as follows:

> The code official or the City Manager's designee(s) is hereby authorized and directed to enforce the provisions of this code.

Subsec. 106.1, General, is changed to read as follows:

> In order to hear and decide appeals of orders, decisions or determinations made by the code official relative to the application and interpretation of this code, any person directly affected by a decision of the code official or a notice or order issued under this code shall have the right to appeal to the Building Standards Commission, provided that a written application for appeal is filed within twenty (20) days after the day the decision, notice or order was issued. All decisions and findings shall be provided in writing to the appellant with a duplicate copy to the code official.

Subsec. 106.2, Limitations of authority, is changed to read as follows:

> An application for appeal shall be based on a claim that the true intent of this code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this code do not fully apply or an equivalent or better form of construction is proposed. The board shall not have authority to waive requirements of this code or interpret the administration of this code. A person's exercise of an appeal does not preclude or abate criminal enforcement for a violation of this code.

Subsec. 106.3, Qualifications, is deleted in its entirety.

Subsec. 107.2, Notice of violation, is deleted in its entirety.

Subsec. 107.3, Prosecution of violation, is deleted in its entirety.

Subsec. 107.4, Violation penalties, is deleted in its entirety.

Subsec. 107.5, Abatement of violation, is deleted in its entirety.

Sec. 108, Stop work order, is deleted in its entirety.

Subsec. 109.1, Unsafe conditions, is changed to read as follows:

> When a structure or equipment is found by the code official to be unsafe, or when a structure is found unfit for human occupancy, or is found unlawful, such structure shall be condemned pursuant to the provisions of this code.
>
> Notwithstanding anything in this Section to the contrary, the City expressly retains all statutory powers and rights to address unsafe structures.

*__Editor's note—__Ord. No. 2016-3-14, §§ I, III, adopted March 14, 2016, repealed and reenacted division 2 in its entirety to read as herein set out. Formerly, division 2 pertained to similar subject matter, and derived from Ord. No. 2013-10-30, § II, adopted October 28, 2013.

Subsection 109.3, Record, is changed to read as follows:

> The code official shall cause a report to be made on an unsafe condition. The report shall state the occupancy of the structure and the nature of the unsafe condition.

Subsection 109.4, Notice, is deleted in its entirety.

Subsection 109.4.1, Form, is deleted in its entirety.

Subsection 109.4.2, Method of service, is deleted in its entirety.

Subsection 111.1, General, is changed to read as follows:

> The code official, building official or Building Standards Commission may order the owner or owner's authorized agent of any structure, which in his, her, or its judgment after review is so deteriorated or dilapidated or has become so out of repair as to be dangerous, unsafe, unsanitary or otherwise unfit for human habitation or occupancy, and such that it is unreasonable to repair the structure, to demolish and remove such structure; or if such structure is capable of being made safe by repairs, to repair and make safe and sanitary, or to board up and hold for future repair or to demolish and remove at the owner's or owner's authorized agent's option; or where there has been a cessation of normal construction of any structure for a period of more than two years, the code official, building official or Building Standards Commission may order the owner or owner's authorized agent to demolish and remove such structure, or board up until future repair. Boarding the building up for future repair shall not extend beyond one year, unless approved by the building official, code official or Building Standards Commission.
>
> Notwithstanding anything in this Section to the contrary, the City and its Building Standards Commission expressly retain all statutory powers and rights to pursue demolition.

Subsection 111.2, Notices and orders, is deleted in its entirety.

(Ord. No. 2016-3-14, § III, 3-14-16; Ord. No. 2017-2-11, § II, 2-27-17; Ord. No. 2018-11-10, § III, 11-26-18; Ord. No. 2022-1-11, §§ I, II, 1-24-22; Ord. No. 2025-6-4, § II, 6-9-25)

Sec. 6-51. Deletions, additions and amendments to Chapter 2 of the 2024 International Property Maintenance Code.

The City of Plano hereby amends Chapter 2, *Definitions,* of the 2024 International Property Maintenance Code as follows:

Subsection 201.3, Terms defined in other codes, is changed to read as follows:

> Where terms are not defined in this code, they shall have the meanings ascribed to them as stated in the building codes as adopted by the City of Plano.
>
> **Exception:** When used within this code, the terms unsafe and dangerous shall have only the meaning ascribed to them in this code and shall not have the meanings ascribed to them by any other adopted codes.

Subsection 202, General Definitions, the following definitions are changed or added as follows:

> **BEDROOM.** Any room or space intended to be used for sleeping purposes in either a dwelling or sleeping unit.
>
> **COST OF SUCH DEMOLITION OR EMERGENCY REPAIRS.** The cost shall include the actual cost of the demolition or repair of the structure less revenues obtained if salvage was conducted prior to the demolition or repair. Costs shall include, but not be limited to, expenses incurred or necessitated related to demolition or emergency repairs, such as asbestos survey and abatement if necessary; costs of inspectors, testing agencies or experts retained relative to the demolition or emergency repairs; costs of testing; surveys for other materials that are controlled or regulated from being dumped in a landfill; title searches; mailing(s); postings; recording; and attorney fees expended for recovering of the cost of emergency repairs or to obtain or

enforce an order of demolition made by the code official, building official or Building Standards Commission.

GARBAGE. The animal or vegetable waste resulting from the handling, preparation, cooking and consumption of food and all decayable waste.

NOXIOUS WEED. Shall include poison ivy, poison oak, poison sumac, any plant designated by the Texas Department of Agriculture as a plant that can harm crops, livestock, the environment, or human health or any noxious plant identified in chapter 19 of the Texas Administrative Code.

OPEN STORAGE. The outside storage of goods, materials, merchandise, or equipment on a lot or tract including the placement of storage containers such as vaults, shipping containers or other vehicles for storage. Open storage does not include the storage of furniture, cooking equipment, heaters, firewood, fire pits, and other items designed to be stored outside of a residential building if stored in a manner which does not create a risk to the health or safety of the public or constitute a public nuisance.

PARKWAY. The area lying between the street right-of-way line of any public street and/or alley, and the curb line of the street and/or alley; or if there is no curb line, the paved portion of the street and/or alley.

SHRUB. A woody plant smaller than a tree, usually having multiple permanent stems branching from or near the ground. Including, but not limited to, bushes and hedges.

(Ord. No. 2016-3-14, § III, 3-14-16; Ord. No. 2017-2-11, § III, 2-27-17; Ord. No. 2018-11-10, § III, 11-26-18; Ord. No. 2022-1-11, §§ I, II, 1-24-22; Ord. No. 2025-6-4, § II, 6-9-25)

Sec. 6-52. Deletions, additions and amendments to Chapter 3 of the 2024 International Property Maintenance Code.

The City of Plano hereby amends Chapter 3, *General Requirements,* of the 2024 International Property Maintenance Code as follows:

Subsec. 301.3, Vacant structures and land, is changed to read as follows:

All vacant structures and premises thereof or vacant land shall be maintained in a clean, safe, secure and sanitary condition as provided herein so as not to cause a blighting problem or adversely affect the public health, safety or welfare.

Subsec. 301.4, Unlawful Structures, is added to read as follows:

It is an offense for an owner, owner's representative, occupant or person with care, custody or control of property to erect, alter or maintain an unlawful structure, as described in subsection 109.1.4 of this ordinance, upon said property.

Subsec. 301.5, Workmanship, is added to read as follows:

It is an offense for an owner, owner's representative, occupant or person with care, custody or control of property to make repairs, maintenance work, alterations or installations that are not performed in a workmanlike manner and installed in accordance with the manufacturer's instructions and intended uses.

Subsec. 302.1, Sanitation, is changed to read as follows:

All exterior property and premises shall be maintained in a clean, safe and sanitary condition.

Subsec. 302.2, Grading and drainage, is changed to read as follows:

Premises shall be graded and maintained as follows:

1. To prevent the erosion of soil onto public right of ways.

2. All exterior property and premises shall be maintained in a clean, safe and sanitary condition.

Subsection 302.4, Weeds, is changed to Exterior Property Maintenance and is changed to read as follows:

All exterior property areas shall be maintained in a safe and healthy manner.

1. It is an offense for an owner, owner's representative, occupant or person with care, custody or control of property to fail to maintain the exterior property as follows:
    a. All noxious weeds shall be prohibited.
    b. Dead or dying trees that adversely affect public health and safety shall be removed.
    c. Damaged trees that adversely affect public health and safety shall be trimmed to eliminate public health or safety concerns.
    d. Diseased or insect-infested trees, shrubs or other vegetation that adversely affect public health and safety shall be removed.
    e. Exterior property areas and landscaping shall be maintained to minimize property damage and eliminate public safety hazards.
    f. Trees, shrubs and all other vegetation shall be maintained to allow a vertical clearance of at least seven (7) feet above sidewalk pavement and fourteen (14) feet above street pavement.
    g. Trees, shrubs, boulders or other objects located along paved alleys shall be maintained one (1) foot back from the paved alley edge and so as to allow a vertical clearance of at least fourteen (14) feet.
    h. Turf grasses and groundcover that are located adjacent to alleys shall be maintained even with the paved edge.
    i. Gravel, pavers, bricks, concrete or asphalt that are located adjacent to the alley shall be maintained level with the paved alley surface, unless otherwise prohibited.
2. Conditions described in subsection 302.4(1) of this section constitute public health and safety hazards.
3. Abatement of public health and safety hazards:
    a. Upon failure to comply with the notice of violation, any duly authorized employee of the jurisdiction or contractor hired by the jurisdiction shall be authorized to enter upon the property in violation and cut or trim trees, shrubs, ground cover and all other vegetation thereon, and the costs incurred for such work shall be paid by the owner or agent responsible for the property. The charges to be collected by the city under this section shall include, in addition to the costs and expenses of cutting, trimming or correcting a condition upon a tract of land, the sum of two hundred fifty dollars ($250.00) per lot or tract of land, which sum is hereby found to be the cost to the City of administering the terms of this section.
    b. All expenses assessed shall bear interest at the rate of ten (10) percent per annum from the date the City incurs the expense. The City may bring suit to collect the charges, institute foreclosure proceedings, or both. The statement, as provided herein, or certified copy thereof, shall be prima facie evidence of the City's claim for charges or right to foreclose the lien. The owner or any other person responsible as provided herein, shall be jointly and severally liable for the charges.

Subsec. 302.8, Motor vehicles, is changed to read as follows:

Except as provided for in other regulations, inoperable or unlicensed motor vehicle shall

not be parked, kept or stored in public view, and vehicles shall not at any time be in a state of major disassembly, disrepair, or in the process of being stripped or dismantled. Painting of vehicles is prohibited unless conducted inside an approved spray booth.

Exception: A vehicle of any type is permitted to undergo major overhaul, including body work, provided that such work is performed inside a structure or similarly enclosed area designed and approved for such purposes.

Subsec. 302.9, Defacement of property, is deleted in its entirety.

Subsec. 302.10, Open storage prohibited, is added to read as follows:

It is an offense for an owner, owner's representative, occupant or person with care, custody or control of property to allow open storage, as defined in subsection 202 of this ordinance, in a residential district.

Subsec. 304.1.1, Potentially unsafe conditions, is changed to read as follows:

The following conditions are deemed potentially unsafe and shall be repaired or replaced to comply with the International Building Code or the International Residential Code, as adopted.

1. Structural members have deterioration or distress that appears to reduce their load-carrying capacity.
2. The anchorage of the floor or roof to walls or columns, and of wall and columns to foundations has deterioration or distress that appears to reduce its load-carrying capacity.
3. Structures or components thereof have deterioration or distress that appears to reduce its load-carrying capacity.
4. Siding and masonry joints including joints between the building envelope and the perimeter of windows, doors and skylights are not maintained, weather resistant or water tight.
5. Foundation systems that are not firmly supported by footings, are not plumb and free from open cracks and breaks, are not properly anchored or are not capable of supporting all nominal loads and resisting all load effects.
6. Exterior walls that are not anchored to supporting and supported elements or are not plumb and free of holes, cracks or breaks and loose or rotting materials, are not properly anchored or are not capable of supporting all nominal loads and resisting all load effects.
7. Roofing or roofing components that have defects that admit rain, roof surfaces with inadequate drainage, or any portion of the roof framing that is not in good repair with signs of deterioration, fatigue or without proper anchorage and incapable of supporting all nominal loads and resisting all load effects.
8. Flooring and flooring components with defects that affect serviceability or flooring components that show signs of deterioration or fatigue, are not properly anchored or are incapable of supporting all nominal loads and resisting all load effects.
9. Veneer, cornices, belt courses, corbels, trim, wall facings and similar decorative features not properly anchored or that are anchored with connections not capable of supporting all nominal loads and resisting all load effects.
10. Overhang extensions or projections including, but not limited to, trash chutes, canopies, marquees, signs, awnings, fire escapes, standpipes and exhaust ducts not properly anchored or that are anchored with connections not capable of supporting all nominal loads and resisting all load effects.
11. Exterior stairs, decks, porches, balconies, and all similar appurtenances attached thereto, including guards and handrails, are not structurally sound, not properly anchored or that are anchored with con-

nections not capable of supporting all nominal loads and resisting all load effects; or

12. Chimneys, cooling towers, smokestacks, and similar appurtenances not structurally sound or not properly anchored, or that are anchored with connections not capable of supporting all nominal loads and resisting all load effects.

Exceptions:

1. When substantiated otherwise by an approved method.

2. Demolition of unsafe conditions shall be permitted when approved by the code official.

Subsec. 304.2, Protective treatment, is changed to read as follows:

It is an offense for an owner, owner's representative, occupant or person with care, custody, or control of property to fail to maintain the protective treatment on any exterior surface in good condition, weather resistant or watertight, including but not limited to:

1. Exterior wood surfaces, other than decay-resistant woods, shall have an appropriate protective treatment;

2. Paint shall not be peeling, flaking or chipped;

3. Siding and masonry joints and joints between the building envelope and the perimeter of windows, doors, and skylights shall be sound;

4. Metal surfaces subject to rust or corrosion shall be coated to inhibit such rust and corrosion;

5. Metal surfaces with rust or corrosion shall be stabilized and coated to inhibit future rust and corrosion; and

6. Oxidation stains shall be removed from exterior surfaces unless the surface is designed for stabilization by oxidation.

Subsec. 304.3, Premises identification, is changed to read as follows:

Buildings shall have approved address numbers placed in a position to be plainly legible and visible from the street or road fronting the property and rear alleyway where such alleyway exists in accordance with the International Fire Code as adopted. These numbers shall contrast with their background. Address numbers shall be Arabic numerals or alphabet letters.

Subsec. 304.7, Roofs and drainage, is changed to read as follows:

It is an offense for an owner, owner's representative, occupant or person with care, custody, or control of property to fail to maintain a roof and roof drainage in good repair, free from defects, or in a manner that creates a nuisance, including but not limited to:

1. The roof and flashing shall be sound, tight and not have defects;

2. Roof drainage shall be adequate to prevent dampness or deterioration in the walls or interior portion of the structure;

3. Roof drains, gutters and downspouts shall be maintained in good repair and free from obstructions; and

4. Water runoff shall not be discharged in a manner that creates a public nuisance.

Subsec. 304.9, Overhang extensions, is changed to read as follows:

It is an offense for an owner, owner's representative, occupant or person with care, custody, or control of property to fail to maintain overhang extensions in good repair and sound condition. Overhang extensions shall include but is not limited to eaves, fascia, soffits, canopies, marquees, signs, metal awnings, fire escapes, standpipes, and exhaust ducts.

Subsec. 304.14, Insect screens, is changed to read as follows:

Every door, window and other outside opening required for ventilation of habitable rooms, food preparation areas, food service areas or any areas where products to be included or

utilized in food for human consumption are processed, manufactured, packaged or stored, shall be supplied with approved tightly fitting screens of not less than 16 mesh per inch (16 mesh per 25mm), and every screen door used for insect control shall have a self-closing device in good working condition.

Exception: Screens shall not be required where other approved means, such as air curtains or insect repellant fans, are employed.

Subsec. 305.1.1, Potentially unsafe conditions, is changed to read as follows:

The following conditions are deemed potentially unsafe and shall be repaired or replaced to comply with the International Building Code or the International Residential Code, as adopted:

1. The structural members have deterioration or distress that appears to reduce the load-carrying capacity;
2. The anchorage of the floor or roof to walls or columns, and of walls and columns to foundations have deterioration or distress that appears to reduce its load-carrying capacity;
3. Structures or components thereof have deterioration or distress that appears to reduce its load-carrying capacity;
4. Stairs, landings, balconies and all similar walking surfaces, including guards and handrails, are not structurally sound, not properly anchored or are anchored with connections not capable of supporting all nominal loads and resisting all load effects;
5. Foundation systems that are not firmly supported by footings are not plumb and free from open cracks and breaks, are not properly anchored or are not capable of supporting all nominal loads and resisting all load effects.

Exceptions:

1. When substantiated otherwise by an approved method.
2. Demolition of unsafe conditions shall be permitted when approved by the code official.

Subsec. 308.1, Accumulation of rubbish or garbage, is changed to read as follows:

All exterior property and premises, and the interior of every structure, shall be free from any accumulation of rubbish or garbage. Disposal of rubbish and garbage shall be in accordance with City of Plano Code of Ordinances, Chapter 18.

Subsec. 308.1.1, Refrigerators, is added to read as follows:

Refrigerators and similar equipment not in operation shall not be discarded, abandoned or stored on premises without first securing or removing the doors.

Subsec. 308.2 Disposal of rubbish, is deleted in its entirety.

Subsec. 308.2.1, Rubbish storage facilities, is deleted in its entirety.

Subsec. 308.2.2, Refrigerator, is deleted in its entirety.

(Ord. No. 2016-3-14, § III, 3-14-16; Ord. No. 2017-2-11, § IV, 2-27-17; Ord. No. 2018-11-10, § III, 11-26-18; Ord. No. 2022-1-11, §§ I, II, 1-24-22; Ord. No. 2025-6-4, § II, 6-9-25)

Sec. 6-53. Deletions, additions and amendments to Chapter 5 of the 2024 International Property Maintenance Code.

The City of Plano hereby amends Chapter 5, *Plumbing Facilities and Fixture Requirements,* of the 2024 International Property Maintenance Code as follows:

Subsec. 504.1, General, is changed to read as follows:

Plumbing systems and fixtures shall be properly installed and maintained in working order, and shall be kept free from obstructions, leaks and defects, be capable of performing the function for which such plumbing fixtures are designed, and shall be maintained in a safe, sanitary and functional condition.

Subsec. 505.3, Supply, is changed to read as follows:

> The water supply system of all occupied structures shall be installed and maintained to provide an active supply of water to plumbing fixtures, devices and appurtenances in sufficient volume and at pressures adequate to enable the fixtures to function properly, safely, and free from defects and leaks.

(Ord. No. 2016-3-14, § III, 3-14-16; Ord. No. 2017-2-11, § V, 2-27-17; Ord. No. 2018-11-10, § III, 11-26-18; Ord. No. 2022-1-11, §§ I, II, 1-24-22; Ord. No. 2025-6-4, § II, 6-9-25)

Sec. 6-54. Deletions, additions and amendments to Chapter 6 of the 2024 International Property Maintenance Code.

The City of Plano hereby amends Chapter 6, *Mechanical and Electrical Requirements,* of the 2024 International Property Maintenance Code as follows:

Subsec. 602.3, Heat supply, is changed to read as follows:

> Every owner and operator of any building who rents, leases or lets one or more dwelling units or sleeping units on terms, either expressed or implied, to furnish heat to the occupants thereof shall supply heat during the period from October 1 to May 1 to maintain a minimum temperature of 68°F (20°C) in all habitable rooms, bathrooms and toilet rooms.

Exceptions:

1. When the outdoor temperature is below the winter outdoor design temperature for the locality, maintenance of the minimum room temperature shall not be required provided that the heating system is operating at its full design capacity. The winter outdoor design temperature for the locality shall be as indicated in Appendix D of the International Plumbing Code, as adopted.
2. In areas where the average monthly temperature is above 30°F (-1°C), a minimum temperature of 65°F (18°C) shall be maintained.

Subsec. 602.4, Occupiable work spaces, is changed to insert the following dates:

> Indoor occupiable work spaces shall be supplied with heat during the period from October 1 to May 1 to maintain a minimum temperature of 65°F (18°C) during the period the spaces are occupied.

Exceptions:

1. Processing, storage and operation areas that require cooling or special temperature conditions.
2. Areas in which persons are primarily engaged in vigorous physical activities.

Subsec. 604.2, Service, is changed to read as follows:

> The size and usage of appliances and equipment shall serve as a basis for determining the need for additional facilities in accordance with the Building Codes as adopted by the City of Plano. Dwelling units shall be served by a three-wire, 120/240 volt, single-phase electrical service having a rating of not less than 60 amperes.

(Ord. No. 2016-3-14, § III, 3-14-16; Ord. No. 2018-11-10, § III, 11-26-18; Ord. No. 2022-1-11, §§ I, II, 1-24-22; Ord. No. 2025-6-4, § II, 6-9-25)

Sec. 6-55. Deletions, additions and amendments to Chapter 7 of the 2024 International Property Maintenance Code.

The City of Plano hereby amends Chapter 7, *Fire Safety Requirements,* of the 2024 International Property Maintenance Code as follows:

Subsec. 703.2, Unsafe conditions, is changed to read as follows:

> Where any components are not maintained and do not function as intended or do not have the fire resistance required by the code under which the building was constructed or altered, such components or portions thereof shall be deemed unsafe conditions in accordance with the International Fire Code, as adopted. Components or portions thereof determined to

be unsafe shall be repaired or replaced to conform to that code under which the building was constructed or altered.

Subsec. 703.3, Maintenance, is changed to read as follows:

The required fire-resistance rating of fire-resistance rated construction, including walls, firestops, shaft enclosures, partitions, smoke barriers, floors, fire-resistive coatings and sprayed fire-resistant materials applied to structural members and joint systems, shall be maintained in accordance with the International Fire Code, as adopted.

Subsec. 703.3.2, Smoke barriers and smoke partitions, is changed to read as follows:

Required smoke barriers and smoke partitions shall be maintained to prevent the passage of smoke.

Subsec. 703.4, Opening protectives, is changed to read as follows:

Opening protectives shall be maintained in an operative condition. The application of field-applied labels associated with the maintenance of opening protectives shall follow the requirements of the approved third-party certification organization accredited for listing the opening protective. Fire doors and smoke barrier doors shall not be blocked or obstructed, or otherwise made inoperable. Fusible links shall be replaced whenever fused or damaged. Fire door assemblies shall not be modified.

Subsec. 704.1, Inspection, testing and maintenance, is deleted in its entirety.

Subsec. 704.2, Standards, is deleted in its entirety.

Subsec. 704.3, System out of service, is deleted in its entirety.

Subsec. 704.4, Removal of or tampering with equipment, is deleted in its entirety.

Subsec. 704.5, Fire department connection, is deleted in its entirety.
(Ord. No. 2018-11-10, § III, 11-26-18; Ord. No. 2022-1-11, §§ I, II, 1-24-22; Ord. No. 2025-6-4, § II, 6-9-25)

Secs. 6-56—6-59. Reserved.

DIVISION 3. REGISTRATION AND INSPECTION OF MULTI-FAMILY DWELLING COMPLEXES

Sec. 6-60. Short title.

This division may be referred to as the "Multi-Family Dwelling Registration and Inspection Code."
(Ord. No. 2005-11-25, § I, 11-28-05; Ord. No. 2018-9-8, § I, 9-10-18)

Sec. 6-61. Definitions.

Unless a provision explicitly states otherwise, the following terms and phrases, as used in this article, shall have the meanings hereinafter designated. Where terms are not defined, they shall have their ordinary accepted meanings.

Accessory building or use means a building or use that is clearly subordinate to and functionally related to the primary building or use, which contributes to the comfort, convenience, or necessity of occupants of the primary building or use on the same platted lot.

Bedroom means any room or space used or intended to be used for sleeping purposes.

Building official means the official or other designated authority charged with the administration and enforcement of the building code, or the building official's duly authorized representative.

Code official means the official who is charged with the administration and enforcement of this code, or any duly authorized representative.

Common area means communal areas of the complex, including but not limited to hallways, stairways, lobby areas, laundry rooms, pool facilities, green spaces, recreation rooms and parking lots.

Director of neighborhood services or *director* means the code compliance director or the director's duly authorized representative who is charged with the administration and enforcement of this article.

Dwelling unit means a building or portion of a building which is arranged, occupied, or intended

to be occupied as living quarters of a family and including facilities for food preparation, sleeping and sanitation.

Exterior property means the open space on the premises and on adjoining property under the control of owners or operators of such premises.

Landlord means the owner, operator, lessor, management company, managing agent or on-site manager of a multi-family dwelling.

Multi-family dwelling/building/residence means any building or portion thereof that is five (5) years old or older, which is designed, built, rented, leased, or let to be occupied as five (5) or more dwelling units or apartments. The term shall not include hotels, motels, U.S. Department of Housing and Urban Development (HUD) approved Section 8 units, or such owner occupied dwelling units.

Occupancy means the purpose for which a building or portion thereof is utilized or occupied.

Occupant means any individual living or sleeping in a building, or having possession of a space within a building.

Owner means any person, agent, operator, firm or corporation having a legal or equitable interest in the property; or recorded in the official records of the state, county or municipality as holding title to the property; or otherwise having control of the property, including the guardian of the estate of any such person, and the executor or administrator of the estate of such person if ordered to take possession of real property by a court.

Person means an individual, corporation, partnership or any other group acting as a unit.

Premises means a lot, plot or parcel of land, easement or public way, including any structures thereon.

Tenant means a person, corporation, partnership or group other than the legal owner of record, occupying a building or portion thereof as a unit.

(Ord. No. 2005-11-25, § I, 11-28-05; Ord. No. 2007-1-19, §§ I, II, 1-22-07; Ord. No. 2008-12-3, § II, 12-8-08; Ord. No. 2016-6-10, § II, 6-13-16; Ord. No. 2018-9-8, § I, 9-10-18)

Sec. 6-62. Purpose.

The purpose of this division is to safeguard the life, health, safety, welfare, and property of the occupants of multi-family dwelling complexes and the general public by developing a process to enforce the minimum building standards and property maintenance codes; and to provide equitable and practical remedies for the violation of minimum building standards and property maintenance codes.

(Ord. No. 2005-11-25, § I, 11-28-05; Ord. No. 2018-9-8, § I, 9-10-18)

Sec. 6-63. Applicability and administration.

(a) This article shall apply to multi-family complexes located in the city which are five (5) years old or older with five (5) or more dwelling units.

(b) The director of neighborhood services and the director's authorized representatives are authorized to administer and enforce the provisions of this article.

(Ord. No. 2005-11-25, § I, 11-28-05; Ord. No. 2007-1-19, §§ I, II, 1-22-07; Ord. No. 2008-12-3, § III, 12-8-08; Ord. No. 2016-6-10, § III, 6-13-16; Ord. No. 2018-9-8, § I, 9-10-18)

Secs. 6-64—6-69. Reserved.

Sec. 6-70. Registration required.

(a) The landlord of a multi-family dwelling complex that is five (5) years old or older with five (5) or more dwelling units shall annually register the complex with the director of neighborhood services by October 31 of each calendar year.

(b) A registration is valid for one (1) calendar year, unless the ownership of the complex changes.

(c) If a change in ownership of the complex occurs during the period that a registration is otherwise valid, the landlord of the complex shall have thirty (30) days from the date the change of ownership occurred to file a new registration with the director of neighborhood services and shall pay a twenty-five dollar ($25.00) fee to re-issue the registration.

(d) Registration re-issues received after thirty (30) days of ownership change shall be assessed a late fee of seventy-five dollars ($75.00) at the time of registration re-issue.

(e) Annual registration or renewals postmarked or received after October 31 shall be assessed an additional fee increase of:

(1) Ten (10) percent of registration fee if within one (1) month of due date;

(2) Thirty (30) percent of registration fee if within two (2) months of due date;

(3) Fifty (50) percent of registration fee thereafter.

(f) All fees and assessments must be current with the city prior to the renewal of a registration certificate.

(g) The registration shall be on a form prescribed by the director of neighborhood services and shall at a minimum contain the following information about the complex:

(1) The trade name, physical address, business mailing address and total number of units;

(2) The names of designated employees or authorized representatives who shall be assigned to respond to emergency conditions and a telephone number where said employees can be contacted during any twenty-four (24) hour period. Emergency conditions shall include fire, natural disaster, flood, burst pipes, collapse hazard and violent crime;

(3) The names, addresses, and telephone numbers of the property owner, property manager, resident manager, registered agent, all federal, state, and local funding agencies; and the type of business entity which owns the complex;

(4) The names, addresses and telephone numbers of any mortgage lienholders.

(Ord. No. 2005-11-25, § I, 11-28-05; Ord. No. 2007-1-19, §§ I, II, 1-22-07; Ord. No. 2008-12-3, § IV, 12-8-08; Ord. No. 2011-4-16, § I, 4-25-11; Ord. No. 2016-6-10, § IV, 6-13-16; Ord. No. 2018-9-8, § I, 9-10-18)

Sec. 6-71. Fees.

(a) The landlord of a multi-family dwelling complex shall annually pay the city a fee to offset the city's cost of administration, registration and inspection.

(b) A fee of thirteen dollars ($13.00) per dwelling unit per year shall be submitted annually with the registration form required by section 6-70.

(c) The landlord of a multi-family dwelling complex that fails a periodic inspection as provided for in section 6-72 shall eliminate all violations identified at the time of the periodic inspection. Follow-up inspections shall be scheduled by the director or the director's representative after a period of time determined by the director or the director's representative to be sufficient for the landlord to abate the violations. Inspection fees shall be assessed as follows:

(1) Initial inspection and first re-inspection—No fee.

(2) Second re-inspection—Three hundred dollars ($300.00)/unit or public area.

(3) Third and subsequent re-inspections—Six hundred dollars ($600.00)/unit or public area.

(d) A fee of thirty dollars ($30.00) shall be submitted to reprint an already issued multifamily registration certificate.

(Ord. No. 2005-11-25, § I, 11-28-05; Ord. No. 2007-1-19, §§ I, II, 1-22-07; Ord. No. 2018-9-8, § I, 9-10-18; Ord. No. 2025-9-2, § I, 9-8-25)

Sec. 6-72. Inspection by director or director's designated representative.

(a) To determine compliance with minimum building and property maintenance standards in accordance with the International Property Maintenance Code and other applicable city codes and to determine compliance with this article, the director or director's designated representative may conduct:

(1) Periodic inspections;

(2) Follow-up inspections; and

(3) Inspections based on indications of code violations, including complaints filed with the director or director's designated representative.

(b) The following areas of a multi-family dwelling complex shall be subject to periodic inspection by the director or director's designated representative:

(1) All building exteriors;

(2) All exterior and interior common areas;

(3) All mechanical, maintenance, storage and equipment rooms and closets;

(4) Vacant dwelling units;

(5) Comparative sample of occupied dwelling units upon receipt of consent by the unit's tenant or other recourse as provided by law.

(c) Multi-family dwellings that are found to be maintained in accordance with minimum building and property maintenance standards during the initial inspection may receive a waiver of inspection and will not require a periodic property inspection for the following two (2) years unless a subsequent complaint is received prior to the next required systematic inspection.

(d) The director, building official or their designated representative may inspect portions of a multi-family dwelling complex as frequently as the director or building official deems necessary. Periodic inspections shall be scheduled annually, unless otherwise exempted by waiver of inspection, but no less frequently than once every three (3) years.

(e) The landlord of a multi-family dwelling complex shall make all exteriors, all interior and exterior public areas, and all vacant dwelling units of the complex available to the director or director's designated representative for inspections at all reasonable times subject to the authority provided by subsection (g) below.

(f) The director or director's designated representative is authorized to make follow-up inspections of a multi-family dwelling complex which fails a periodic inspection and to inspect all areas included in the periodic inspection until such time as the violations are abated.

(g) The authority granted to conduct inspections by the director or the director's designee in section 6-72 is subject to all limitations provided in state and federal law. If entry is refused or not obtained, the director or director's representative is authorized to seek a warrant allowed by V.T.C.A. Code of Criminal Procedure, Article 18.05.

(Ord. No. 2005-11-25, § I, 11-28-05; Ord. No. 2007-1-19, §§ I, II, 1-22-07; Ord. No. 2018-9-8, § I, 9-10-18)

Sec. 6-73. Landlord/tenant self inspections.

(a) The landlord or their designee of a multi-family dwelling complex shall inspect each dwelling unit within the complex:

(1) The inspection of a dwelling unit shall be conducted a minimum of once annually.

(2) The minimum building and property maintenance standards established by the International Property Maintenance Code and other applicable city codes shall be covered by the inspection, including but not limited to the following items:

a. Electrical facilities.

b. Plumbing facilities.

c. Heating facilities.

d. Ventilation.

e. Smoke detectors.

f. Occupancy limitations.

g. Means of ingress/egress.

h. Handrails and guardrails.

i. Rubbish and garbage.

(3) The inspection results shall be documented in writing on an inspection report prescribed by the director of neighborhood services.

(4) The landlord or their designee shall sign and date the inspection report at the time it is completed.

(5) The landlord or their designee shall provide the tenant with the results of the inspection.

(b) A landlord shall maintain reports of the inspections conducted pursuant to subsection (a) for all dwelling units within the multi-family dwelling complex.

(1) The report shall also include a notice for reporting code violations to the city as follows:

"TO REPORT UNRESOLVED VIOLATIONS OF CITY PROPERTY MAINTENANCE CODE FOR THESE PREMISES, PLEASE CONTACT THE NEIGHBORHOOD SERVICES DEPARTMENT AT (972) 208-8150."

(2) The inspection reports shall be maintained by the landlord for a minimum of three (3) years.

(Ord. No. 2005-11-25, § I, 11-28-05; Ord. No. 2007-1-19, §§ I, II, 1-22-07; Ord. No. 2016-6-10, § V, 6-13-16; Ord. No. 2018-9-8, § I, 9-10-18)

Sec. 6-74. Offenses.

A landlord commits an offense if the landlord:

(1) Operates a multi-family dwelling complex which is not currently registered with the director as required by this article;

(2) Fails to pay fees as required by this article;

(3) Maintains a property in violation of the city's property maintenance code or any other adopted code or ordinance;

(4) Fails to make landlord/tenant self-inspections as outlined in section 6-73;

(5) Fails to post the registration certificate or emergency contact signs as outlined in section 6-75; or

(6) Commits any other violation of this article.

(Ord. No. 2005-11-25, § I, 11-28-05; Ord. No. 2007-1-19, §§ I, II, 1-22-07; Ord. No. 2018-9-8, § I, 9-10-18)

Sec. 6-75. Posting.

Each multi-family dwelling complex described herein shall have prominently displayed in the front lobby/reception area or, for those properties without a front lobby/reception area, a conspicuous, publicly accessible area on the premises of the complex:

(1) Current and valid multi-family registration certificate.

(2) Signs posted by the owner or owners representative displaying a telephone number where emergency conditions can be reported during any twenty-four (24) hour period.

(Ord. No. 2005-11-25, § I, 11-28-05; Ord. No. 2018-9-8, § I, 9-10-18)

Secs. 6-76—6-79. Reserved.

Sec. 6-80. Enforcement.

(a) A violation of this division is a Class C misdemeanor punishable as stated in section 1-4(a) of this Code.

(b) Nothing in this article prohibits the City of Plano from enforcing civil and criminal enforcement remedies concurrently or availing itself of any other remedy allowed by law.

(Ord. No. 2005-11-25, § I, 11-28-05; Ord. No. 2018-9-8, § I, 9-10-18)

Secs. 6-81—6-90. Reserved.

DIVISION 4. REGISTRATION AND INSPECTION OF HOTEL/MOTEL PROPERTIES*

Sec. 6-91. Short title.

This division may be referred to as the "hotel/motel registration and inspection code."

(Ord. No. 2019-9-17, § I, 9-23-19)

*__Editor's note—__Ord. No. 2019-9-17, § I, adopted September 23, 2019, set out provisions intended for use as §§ 6-111—6-121. Since provisions were already set out in these sections, the new provisions were instead set out as §§ 6-91—6-101 at the editor's discretion.

Sec. 6-92. Definitions.

Unless a provision explicitly states otherwise, the following terms and phrases, as used in this division, shall have the meanings hereinafter designated. Where terms are not defined, they shall have their ordinary accepted meanings.

Building official means the official or other designated authority performing the duties of the chief building official of the city, or his or her duly authorized representative.

Common area means communal areas of the hotel/motel, including hallways, stairways, lobby areas, laundry rooms, pool facilities, green spaces, recreation rooms and parking lots.

Director of neighborhood services or director means the code compliance director or the director's duly authorized representative who is charged with the administration and enforcement of this division.

Hotel/motel means a building or group of buildings designed for and occupied as a temporary dwelling place of individuals and providing four (4) or more rooms suitable for daily or long-term occupancy. Hotel services including daily housekeeping and upkeep of furnishings must be provided.

Hotel/motel room means the portion of the hotel/motel which may be used by a guest as a temporary residence, including single rooms and suites.

Occupancy means the purpose for which a building or portion thereof is utilized or occupied.

Occupant means any individual living or sleeping in a building, or having a right to possession of a space within a hotel/motel room.

Operator means the manager, management company, managing agent or on-site manager of a hotel/motel.

Owner means any person, agent, operator, firm or corporation having a legal or equitable interest in the property; or recorded in the official records of the state, county or municipality as holding title to the property; or otherwise having control of the property, including the guardian of the estate of any such person, and the executor or administrator of the estate of such person if ordered to take possession of real property by a court.

Person means an individual, corporation, partnership or any other group acting as a unit.

Premises means a lot, plot or parcel of land, easement or public way, including any structures thereon.
(Ord. No. 2019-9-17, § I, 9-23-19)

Sec. 6-93. Purpose.

The purpose of this division is to safeguard the life, health, safety, welfare, and property of the occupants of hotel/motels and the general public by developing a process to enforce minimum building standards and property maintenance codes; and to provide equitable and practical remedies for the violation of minimum building standards and property maintenance codes.
(Ord. No. 2019-9-17, § I, 9-23-19)

Sec. 6-94. Applicability and administration.

(a) This division shall apply to hotel/motels located in the city which are five (5) years old or older with four (4) or more rooms.

(b) The neighborhood services director and the director's authorized representatives are authorized to administer and enforce the provisions of this division.
(Ord. No. 2019-9-17, § I, 9-23-19)

Sec. 6-95. Registration required.

(a) The owner or operator of a hotel/motel meeting the applicability in subsection 6-94(a) shall annually register the premises with the director of neighborhood services by April 30 of each calendar year.

(b) A registration is valid for one (1) calendar year, unless the ownership of the hotel/motel changes.

(c) If a change in ownership of the hotel/motel occurs during the period that a registration is otherwise valid, the new owner of the hotel/motel shall have thirty (30) days from the date the change of ownership occurred to file a new

registration with the director of neighborhood services and shall pay a twenty-five dollar ($25.00) fee to re-issue the registration.

(d) Registration re-issues received after thirty (30) days of ownership change shall be assessed a late fee of seventy-five dollars ($75.00) at the time of registration re-issue.

(e) Annual registration or renewals postmarked or received after April 30 shall be assessed an additional fee increase of:

(1) Ten (10) percent of registration fee, as outlined in section 6-96(b), if within one (1) month of due date;

(2) Thirty (30) percent of registration fee, as outlined in section 6-96(b), if within two (2) months of due date;

(3) Fifty (50) percent of registration fee, as outlined in section 6-96(b), thereafter.

(f) All fees and assessments must be current with the city prior to the renewal of a registration certificate.

(g) The registration shall be on a form prescribed by the neighborhood services director and shall at a minimum, contain the following information about the premises:

(1) The trade name, physical address, business mailing address and total number of units or hotel/motel rooms;

(2) The names of designated employees or authorized representatives who shall be assigned to respond to emergency conditions and a telephone number where said employees can be contacted during any twenty-four (24) hour period. Emergency conditions shall include fire, natural disaster, flood, burst pipes, collapse hazard and violent crime;

(3) The names, addresses, and telephone numbers of the property owner, operators, property manager, resident manager, registered agent, and all federal, state, and local funding agencies;

(4) The names, addresses and telephone numbers of any mortgage lienholders.

(h) An operator commits an offense if the operator operates a hotel/motel which is not currently registered with the director as prescribed.
(Ord. No. 2019-9-17, § I, 9-23-19)

Sec. 6-96. Registration fees.

(a) The owner or operator of a hotel/motel shall annually pay the city a fee to offset the city's cost of administration, registration and inspection.

(b) Hotel/motel owner or operators that have not received an inspection waiver or a previously awarded waiver has been rescinded or has expired as provided for in section 6-97 shall submit an annual fee often dollars ($10.00) per hotel/motel room per year with the registration form required by section 6-95.

(c) Hotel/motel owner or operators that have received an inspection waiver and the waiver has not been rescinded or has not expired as provided for in section 6-97 shall submit an annual fee of three hundred dollars ($300.00) per year with the registration form required by section 6-95.

(d) The owner or operator of a hotel/motel that fails a periodic inspection as provided for in section 6-97 shall eliminate all violations identified at the time of the periodic inspection. Follow-up inspections shall be scheduled by the director or the director's representative after a period of time determined by the director or the director's representative to be sufficient for the owner to abate the violations. Inspection fees shall be assessed as follows:

(1) Initial inspection and first re-inspection—No fee.

(2) Second re-inspection—Three hundred dollars ($300.00) per hotel/motel room or public area inspected.

(3) Third and subsequent re-inspections—Six hundred dollars ($600.00) per hotel/motel room or public area inspected.

(e) A fee of thirty dollars ($30.00) shall be submitted to reprint an already issued hotel/motel registration certificate.
(Ord. No. 2019-9-17, § I, 9-23-19; Ord. No. 2025-9-1, § I, 9-8-25)

Sec. 6-97. Inspection by director or director's designated representative.

(a) To determine compliance with minimum building and property maintenance standards in accordance with the International Property Maintenance Code and other applicable city codes and to determine compliance with this division, the director or director's designated representative may conduct:

(1) Annual inspections;

(2) Follow-up inspections; and

(3) Inspections based on indications of code violations, including complaints filed with the director or director's designated representative.

(b) The following areas of hotel/motels shall be subject to periodic inspection by the director or director's designated representative:

(1) All building exteriors;

(2) All exterior and interior common areas;

(3) All mechanical, maintenance, storage and equipment rooms and closets;

(4) Vacant hotel/motel room;

(5) Comparative sample of occupied hotel/motel rooms upon receipt of consent by the room's occupant or other recourse as provided by law.

(c) Hotel/motels that are found to be maintained in accordance with minimum building and property maintenance standards during the initial inspection may receive a waiver of inspection and will not require an annual inspection for the following two (2) years unless a subsequent complaint based violation is identified prior to the next required annual inspection.

(d) The director, building official or their designated representative may inspect portions of a hotel/motel as frequently as the director or building official deems necessary. Annual inspections shall be scheduled within three (3) months of any previous annual inspection, unless otherwise exempted by waiver of inspection, but no less frequently than once every three (3) years.

(e) The operator of a hotel/motel shall make all exteriors, all interior and exterior public areas, and all vacant hotel/motel rooms of the premises available to the director or director's designated representative for inspections at all reasonable times subject to the authority provided by subsection (g) below.

(f) The director or director's designated representative is authorized to make follow-up inspections of a hotel/motel premises which fails a periodic inspection and to inspect all areas included in the periodic inspection until such time as the violations are abated.

(g) The authority granted to conduct inspections by the director or the director's designee in this section is subject to all limitations provided in state and federal law. If entry is refused or not obtained, the director or director's representative is authorized to seek a warrant allowed by V.T.C.A. Code of Criminal Procedure, Article 18.05, as amended.
(Ord. No. 2019-9-17, § I, 9-23-19)

Sec. 6-98. Owner or operator self-inspections.

(a) The owner or operator of a hotel/motel premises or their designee shall inspect each hotel/motel room.

(1) The inspection of a hotel/motel room shall be conducted a minimum of once annually.

(2) The owner or operator or their designee shall sign and date each self-inspection report at the time of completion for each hotel/motel room upon the premises.

(3) The minimum building and property maintenance standards established by the International Property Maintenance Code and other applicable city codes

shall be covered by the inspection. Required items shall include but not be limited to the following:

a. Electrical facilities;

b. Plumbing facilities;

c. Heating facilities;

d. Ventilation;

e. Smoke detectors;

f. Occupancy limitations;

g. Means of ingress/egress;

h. Handrails and guardrails; and

i. Rubbish and garbage.

(b) An operator shall maintain reports of the inspections conducted pursuant to subsection (a) for all hotel/motel rooms within and on the premises.

(1) The reports shall be in written form on a form prescribed or approved by the director of neighborhood services or the director's designated representative.

(2) Any alterations to an approved form must be resubmitted for approval.

(3) The report shall include places for marking whether the hotel/motel room complies with the standards set by this section.

(4) The inspection reports shall be maintained on the premises by the operator for a minimum of three (3) years.

(Ord. No. 2019-9-17, § I, 9-23-19)

Sec. 6-99. Offenses.

An operator commits an offense if the operator:

(1) Operates a hotel/motel which is not currently registered with the director as required by this division;

(2) Fails to pay administrative or inspection fees as required by this division;

(3) Fails to make owner self-inspections as outlined in section 6-98;

(4) Fails to post registration certificates and emergency contact signs as outlined in section 6-100; or

(5) Commits any other violation of this division.

(Ord. No. 2019-9-17, § I, 9-23-19)

Sec. 6-100. Posting.

Each hotel/motel premises described herein shall have prominently displayed in a conspicuous, publicly accessible area on the premises of the hotel/motel:

(1) Current and valid registration certificates.

(2) If the property is not staffed continuously, then signs posted by the owner or owner's representative showing the names of designated employees or authorized representatives who shall be assigned to respond to emergency conditions and a telephone number where said employees can be contacted during any twenty-four (24) hour period.

(Ord. No. 2019-9-17, § I, 9-23-19)

Sec. 6-101. Enforcement.

(a) A violation of this division is a class C misdemeanor punishable as stated in section 1-4(a) of this Code.

(b) Nothing in this division prohibits the City of Plano from enforcing civil and criminal enforcement remedies concurrently or availing itself of any other remedy allowed by law.

(Ord. No. 2019-9-17, § I, 9-23-19)

Secs. 6-102—6-110. Reserved.

ARTICLE IV. TEMPORARY AND NONCONFORMING BUILDINGS*

Sec. 6-111. Regulations and procedures.

(a) It shall be unlawful for any person to build, erect, maintain and/or occupy any temporary building or like structure within the

*__Editor's note—__Section I of Ord. No. 94-1-12, adopted Jan. 10, 1994, amended this Art. IV to read as herein set out. Formerly, Art. IV consisted of §§ 6-111—6-114, which pertained to temporary and nonconforming buildings and derived from §§ 1—3 of Ord. No. 78-9-24, adopted Sep. 25, 1978; § 1 of Ord. No. 79-1-21, adopted Jan. 22, 1979; and § 1 of Ord. No. 83-6-24, adopted June 27, 1983.

corporate limits of the city unless such person shall have first obtained a permit for a temporary building issued by the building official of the city. Except for construction offices, in addition to the application, a ten thousand dollars ($10,000.00) surety bond payable to the City of Plano must be submitted. This bond must guarantee:

(1) The removal of the temporary building on or before the expiration of the certificate of occupancy for the temporary building; and

(2) Be in a form acceptable to the city.

(b) Temporary buildings shall only be an accessory to a conforming main use and shall only be of a use classified as an "M1" storage occupancy as defined by the building code, or be a construction office as described in the zoning ordinance.

(c) Application for a permit to erect, maintain and/or occupy a temporary building under the provisions of this section shall be submitted to the building official, on forms prescribed and provided by such official.

(d) Upon submission of an application for a permit for the erection, maintenance or occupancy of a temporary building as an accessory to the main use and building, the building official may issue a permit for the term requested by the applicant, but in no case shall such term exceed twelve (12) months. Any subsequent permit for a temporary building on the same property shall not be issued until a time period of six (6) months has elapsed. Construction offices shall be issued permits as set forth in the zoning ordinance.

The building official shall impose conditions requiring alterations or improvements to any temporary building for which a permit is issued under the terms of this subsection or the property upon which it is located as, in his opinion, are necessary to protect the health, safety and welfare of occupants, invitees or guests using such building. No temporary building shall be occupied under this subsection until all such requirements have been met. The satisfaction of all the requirements shall be evidenced by issuance of a certificate of occupancy. Any such conditions shall be noted in writing by the building official, and shall be appended to and be a condition of the permit and certificate of occupancy.

(e) Any variance to the provisions of this section shall be heard by the Plano Board of Adjustment.
(Ord. No. 94-1-12, § I, 1-10-94)

Sec. 6-112. Certain ordinances unaffected.

Nothing contained in this article shall be construed so as to amend, alter, change, or repeal any provisions or regulation of the comprehensive zoning ordinance of the city. Further, nothing contained in this article shall be construed so as to amend, alter, change or repeal any provision or regulation of the subdivision ordinance of the city or the building code of the city.
(Ord. No. 94-1-12, § I, 1-10-94)

Secs. 6-113—6-130. Reserved.

ARTICLE V. RESERVED*

Secs. 6-131—6-150. Reserved.

ARTICLE VI. HOUSE MOVING†

DIVISION 1. GENERALLY

Sec. 6-151. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section except where the context clearly indicates a different meaning:

Mover means any person, firm, or corporation which is responsible for moving a structure.

***Editor's note—**Ord. No. 2023-9-16, § I, adopted September 11, 2023, repealed §§ 6-131—6-137, which pertained to building lines on specific streets and derived from Ord. No. 63-9-7, §§ 1—7, 9-23-63.

†**Editor's note—**Section I of Ord. No. 96-6-35, adopted June 24, 1996, repealed Art. VI in its entirety. Formerly, Art. VI consisted of § 6-151—6-162, which pertained to house moving and derived from §§ 1—4 and 6 of Ord. 73-12-11, adopted Dec. 19, 1973, and § II of Ord. No. 89-10-27, adopted Oct. 23, 1989. Section II of Ord. No. 96-6-35 provided for a new Art. VI as herein set out.

Cross reference—Motor vehicles and traffic, Ch. 12.

Structure means that which is built or constructed, an edifice or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner.
(Ord. No. 96-6-35, § II, 6-24-96)

DIVISION 2. PERMIT

Sec. 6-152. Required.

It shall be unlawful for any person, firm, or corporation to move or cause to be moved a structure from one (1) location to another within the city, or to move a structure within the city to a point outside the city, or from a location outside the city to another location outside the city using city thoroughfares, without first obtaining a permit from the building official.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-153. Application required.

(a) The mover shall file an application with the building official upon forms provided by the city.

(b) Applications shall be filed not less than five (5) days prior to the planned moving date.

(c) A city map showing the proposed route shall be submitted with the application.

(d) The application shall include all of the following information:

(1) The name, address and telephone number of the person, firm or corporation moving the structure.

(2) Description of the structure being moved, including the maximum width, height, and length, along with the calculated or actual weight of the structure.

(3) Vehicle and trailer information, to include make/model, license number and current vehicle registration certificate.

(4) Present location of structure.

(5) Proposed location of structure to include address, legal description and zoning.

(6) Planned date and time of move.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-154. Exemptions.

A permit is not required when:

(1) The moving route originates outside the city and is confined to a state or federal highway with no stops within the city and with a destination outside the city;

(2) The structure does not exceed twelve (12) feet in width, forty (40) feet in length or more than thirteen and one-half (13½) feet in height when loaded, provided that the vehicle on which the structure is transported shall be equipped with rubber tires.
(Ord. No. 96-6-35, § II, 6-24-96)

DIVISION 3. STANDARDS FOR ISSUANCE OF PERMIT

Sec. 6-155. Historic properties.

A structure moving permit may be withheld for any structure within the Plano Historic Building and Site Survey as designated in the preservation plan for a period not exceeding thirty (30) days for review by the historic landmark preservation committee. If the historic landmark preservation committee fails to act within the thirty-day period, the structure moving permit shall be deemed to be approved by the committee for its purposes.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-156. Building permit required.

Prior to or at time of application for permit to move any structure to any location within the city, the owner of the lot or parcel to which the structure is proposed to be moved shall obtain a building permit in compliance with the building codes and zoning ordinances of the city. A foundation approved by the building official must be present on the site prior to issuance of a structure moving permit.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-157. Approvals required.

The applicant shall be required to obtain approval from the following prior to the issuance of a structure moving permit:

(1) Public works operations department.

(2) Police department.

(3) Development services department.

(4) Building inspection department.

(5) Telephone company.

(6) Electric company.

(7) Gas company.

(8) Television cable company.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-158. Escort.

No person, firm or corporation shall move any structure across or along any street, public right-of-way, or place within the city unless accompanied by an escort company or by a police officer designated by the Plano Police Department.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-159. Lights required.

While in transit, the structure shall be outlined with lights on each side in such a manner as to indicate the extreme width, height and length of the structure.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-160. State permit.

A copy of the state permit will be required when the proposed route includes a state highway.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-161. Utility wires.

The movers shall under no condition cut, raise, or move any wire or wires found across or along any street or alley and shall not remove the same from any post or support or damage the same, but shall stop all operations in the moving process until the wire is raised, cut or moved by an employee of the company owning or maintaining the wire.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-162. Occupancy of structure.

The structure shall be completed and ready for occupancy by meeting all codes within one hundred eighty (180) days from the time of its placement.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-163. Restoration of property.

The premises from which the structure was removed shall be left free from unsafe, unsanitary, or hazardous condition, including the cleaning up of the lot and restoration of the established grade. All utilities to the lot, including the sewer, water, gas and electrical, shall be terminated.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-164. Hours.

Structures may be moved only between the hours of 12:00 a.m. (midnight) and 5:00 a.m., except as may be approved by the building official or chief of police.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-165. Fees.

(a) Permit fees are as follows:

(1) Structures originating or terminating within the city shall pay a fee of not less than one hundred dollars ($100.00).

(2) Structures moving through the city only shall pay a fee of not less than fifty dollars ($50.00).

These fees are in addition to the building, plumbing, mechanical and electrical permit fees.

(b) The applicant shall be responsible for all fees charged by any of the following and shall be paid prior to the issuance of a permit.

(1) Public works operations department.

(2) Police department.

(3) Building inspection department.

(4) Any utility company that may be involved.
(Ord. No. 96-6-35, § II, 6-24-96)

DIVISION 4. SURETY BOND AND INSURANCE REQUIREMENTS

Sec. 6-166. Surety bond.

The building official shall require the applicant to deposit a bond in the amount of ten thousand dollars ($10,000.00) before the issuance of any permit to move a structure over the streets of the city. This bond shall be signed by the applicant and two (2) or more good and sufficient sureties, or by the applicant and a surety company authorized to make surety bonds in this state. Such bond shall be conditioned to indemnify any and all persons, firms or corporations and the city for any damage, loss, or reasonable and necessary expenses caused to or incurred by any persons, firms, or corporations or the city as a result of the moving of any structure, and such bond shall be for the use and benefit of all persons, firms, or corporations, including the city, who suffer any damage or loss to property or person or incur any reasonable and necessary expenses by reason of the moving of the structure. Provided that if any person making application for such permit desires to deposit a cash bond in the above-mentioned amount instead of the surety bond, he may do so. If the applicant is in the house moving business and contemplates moving more than one (1) structure in the period of one (1) year, he may present a blanket bond in the amount of ten thousand dollars ($10,000.00), conditioned as stated above, but covering all structures for which he may obtain permits during the year, and such bond shall be in force for a period of one (1) year and it shall apply to any and all structures that may be moved by the applicant during such year. All such bonds shall be approved by the building official and shall be retained by him in his office.
(Ord. No. 96-6-35, § II, 6-24-96)

Sec. 6-167. Certificate of insurance.

The building official shall require each applicant to furnish a valid certificate of insurance that is in force in the amount of one hundred thousand dollars ($100,000.00) per person for bodily injuries including death and not less than three hundred thousand dollars ($300,000.00) for bodily injuries including death to all persons on account of one (1) accident, and one hundred thousand dollars ($100,000.00) per incident for property damage. The insurance company shall be rated A-VI or better and shall meet guidelines established by the city risk manager. The policy shall be endorsed to include a ten-day notice of cancellation. The insurance certificate is to include the following:

(1) Name of the insurer.

(2) Insurance policy numbers.

(3) Policy period.

(4) Name and address of each insured.

(5) Policy limits that meet or exceed minimum requirements.

(6) Make and model of each covered vehicle.

(Ord. No. 96-6-35, § II, 6-24-96)

DIVISION 5. VIOLATIONS

Sec. 6-168. Penalty.

Any person violating any provision of this article or failing to observe any provision of this article shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be punished as provided in section 1-4.
(Ord. No. 96-6-35, § II, 6-24-96)

Secs. 6-169—6-175. Reserved.

ARTICLE VII. FENCES

DIVISION 1. GENERALLY

Sec. 6-176. Penalty.

Any person violating any provision of this article shall be deemed guilty of a misdemeanor and upon conviction thereof, shall be fined in the sum of not more than two thousand dollars ($2,000.00).
(Ord. No. 77-1-11, § 20, 1-24-77; Ord. No. 2017-2-10, §§ I, II, 2-27-17)

Sec. 6-177. Purpose.

The purpose of this article is to regulate the construction, erection, enlargement, alteration,

and maintenance of all fences within the boundaries of the city in order to provide a practical safeguarding of life, health, and property from hazards that may arise from improper construction of such installations.
(Ord. No. 77-1-11, § 2, 1-24-77; Ord. No. 2017-2-10, §§ I, II, 2-27-17)

Sec. 6-178. Fence construction and materials.

(a) No fence shall be constructed unless able to structurally support fencing materials as required in the most recently adopted building code, as amended.

(b) No permit is required for a person constructing a masonry fence less than twenty-four (24) inches in height or a masonry retaining wall less than forty-eight (48) inches in height. Retaining walls greater in height than forty-eight (48) inches shall be in compliance with a design submitted by a registered engineer. Any portion of a retaining wall must not interfere with or alter any drainage swale between lots.

(c) Chain link fencing shall be a minimum size of eleven (11) gauge or greater.

(d) Masonry fences (including concrete block) shall have exterior surfaces free from sharp projections.

(e) Fences shall only be constructed of materials approved by the chief building official or his designee and methods that ensure uniform construction throughout.

(f) Fences or wall enclosures around a swimming pool, hot-tub, or spa shall comply with the minimum requirements of each subsection of this article.

(g) Fence posts attached to or supported by other structures, including retaining walls, shall have a foundation and anchorage to prevent movement of any such structure or retaining wall.

(h) Fences shall not use rope; string; wire products such as, but not limited to chicken wire, hog wire, wire fabric, and similar welded or woven wire fabrics; chain; live bamboo; netting; cut or broken glass; paper; corrugated metal panels; galvanized sheet metal; plywood; or fiberglass panels, or any other materials that are not manufactured specifically as fencing materials. The chief building official or his designee may require the applicant to provide the manufacturer's standards to establish the manufacturer's intended use of a proposed fencing material.

(i) Fences shall not be constructed of damaged or unsafe materials.

(j) Used materials, equipment, and devices shall not be reused for construction of a fence unless it can be determined by the chief building official that they meet the requirements of the current building code for new materials.

(k) Fences shall not be constructed of metal panels on a residentially-zoned property.

(l) No fencing material and/or supports shall be located within a street or alley right-of-way.
(Ord. No. 2017-2-10, §§ I, II, 2-27-17)

Sec. 6-179. Permit to construct or alter.

(a) It shall be an offense for an owner, owner's representative, occupant or person with care, custody, or control of a property to construct or cause to be constructed, or to permit any person to construct fences, or to make any alterations, additions, or changes to fences, without first having procured a permit to do so from the building inspections department. Notwithstanding the foregoing, a permit shall not be required for alterations, additions, or changes if repairs do not exceed twenty-five (25) percent of the area of fences over a twelve-month period.

(b) When constructing new fences parallel to and within three (3) feet of existing fences on the same lot, existing fences shall be removed. The term "parallel" is defined as corresponding fences that run in the same direction as existing fences, but do not have to maintain a precise, constant distance from one another.
(Ord. No. 77-1-11, § 3, 1-24-77; Ord. No. 78-9-14, 9-25-78; Ord. No. 82-9-29, § 1, 9-27-82; Ord. No. 97-4-12, § I, 4-14-97; Ord. No. 2017-2-10, §§ I, II, 2-27-17; Ord. No. 2025-6-5, § I, 6-9-25)

Sec. 6-180. Electric fences.

(a) No fences that continuously conduct electrical current may be constructed or maintained in residential zoning districts.

(b) A battery charged fence, not to exceed twelve (12) volts, shall be allowed in commercially zoned districts. No permit shall be required for the erection and maintenance of a battery charged fence.
(Ord. No. 77-1-11, § 4, 1-24-77; Ord. No. 2017-2-10, §§ I, II, 2-27-17; Ord. No. 2019-11-10, § I, 11-25-19)

Cross reference—Electrical code, § 6-271 et seq.

Sec. 6-181. Compliance with other provisions.

All fences and fence locations shall conform to the requirements of the zoning ordinance of the city, and nothing in this article shall be construed as permitting construction of fences which would violate the provisions of the zoning ordinance as the same now exists or may be hereafter amended.
(Ord. No. 77-1-11, § 5, 1-24-77; Ord. No. 2017-2-10, §§ I, II, 2-27-17)

Cross references—Visibility obstructions, § 19-3; zoning, App. A.

Sec. 6-182. Location on or protrusion over city property.

No privately owned fences or guy wires, braces, or any other part of privately-owned fences shall be constructed upon, or caused to protrude over, property owned by the city.
(Ord. No. 77-1-11, § 6, 1-24-77; Ord. No. 2017-2-10, §§ I, II, 2-27-17)

Sec. 6-183. Fence arms.

Fence arms are permitted on fences located within industrial districts only, so long as they do not extend beyond the property line.
(Ord. No. 77-1-11, § 12, 1-24-77; Ord. No. 2017-2-10, §§ I, II, 2-27-17)

Sec. 6-184. Reserved.

Editor's note—Ord. No. 2017-2-10, §§ I, II, adopted Feb. 27, 2017, repealed § 6-184, which pertained to barbed wire on fences and derived from Ord. No. 77-1-11, § 13, adopted on Jan. 24, 1977.

Sec. 6-185. Inspection of new fences.

When any fence for which a permit has been issued under this article is completed, it must be inspected. The chief building official's office shall be notified upon completion of fences. The chief building official will issue a card of acceptance if fences comply with the provisions of this article or reject the fences if they do not so comply.
(Ord. No. 77-1-11, § 15, 1-24-77; Ord. No. 2017-2-10, §§ I, II, 2-27-17)

Sec. 6-186. Maintenance.

(a) It shall be an offense for an owner, owner's representative, occupant or person with care, custody, or control of a property to fail to construct a fence that is not in compliance with the requirements of this article.

(b) It shall be an offense for an owner, owner's representative, occupant or person with care, custody, or control of a property to fail to maintain a fence in good repair, including but not limited to:

(1) Not be more than ten (10) degrees out of vertical alignment with its base;

(2) Broken, loose, damaged, removed or missing fence parts having a combined total area of twenty (20) square feet or more shall be replaced or repaired;

(3) Any opening greater than four (4) inches in diameter in fences enclosing swimming pools or spas shall be covered at all times during which repair or replacement work is not actively being conducted;

(4) Shall not be located within a street, sidewalk, or alley right-of-way;

(5) Exterior supports shall not be used for vertical alignment;

(6) Panels, pickets, and rails shall be securely attached to vertical fence posts by nails, screws, bolts, rivets, or manufacturer-supplied fasteners;

(7) Shall not create a public safety hazard;

(8) All repairs will be completed in a workmanlike manner; (Workmanlike

manner means executed in a skilled manner, generally plumb, level, square, in line, and undamaged.)

(9) All repairs will be completed with materials of comparable composition; (Comparable composition means materials having similar color, size, shape, and quality as original fences for which the replacement or repair is being made.)

(10) Reconstruction, replacements, or repairs shall be completed only with products manufactured or designed for use as fencing materials. (The chief building official or his designee may require the applicant to provide the manufacturer's standards to establish the manufacturer's intended use of a proposed fencing material.)

(c) If any such opening as described in subsection (b)(3) is not securely covered, the code official may secure the opening in accordance with V.T.C.A. Local Government Code, § 214.101, as amended.

(d) Nothing herein shall be construed to prohibit the complete removal of fences, except fences enclosing a swimming pool or spa as to comply with all other local, state, and federal laws.
(Ord. No. 77-1-11, § 16, 1-24-77; Ord. No. 97-4-12, § II, 4-14-97; Ord. No. 2017-2-10, §§ I, II, 2-27-17; Ord. No. 2021-8-13, § I, 8-23-21; Ord. No. 2025-6-5, § II, 6-9-25)

Sec. 6-187. Enclosures for swimming pools.

(a) *Required.* Every swimming pool, or excavation designed or intended to ultimately become a swimming pool, while under construction as well as after completion, shall be continuously protected by an enclosure surrounding the pool or excavated area in such a manner as to make such pool or excavated area reasonably inaccessible to small children or animals. Subsection (a) of this section shall not apply to bodies of water other than swimming pools which are owned or controlled by the federal, state, county, or any agency, subdivision or department thereof and bodies of water located in natural drainageways.

(b) *Compliance.* All single family occupancies shall comply with the International Residential Code, as amended. Commercial occupancies shall comply with the most recently adopted building code, the Texas Health and Safety Code, and the Texas Administrative Code, each as amended.

(c) *Plans, inspection, approval.* All plans submitted to the city building inspections department for swimming pools to be constructed shall show compliance with the requirements of this section, and the final inspection and approval of all pools constructed shall be withheld until all requirements of this section have been complied with by the owner, purchaser under contract, lessee, tenant, or licensee. Approval from the health authority is required for public pools and spas.
(Ord. No. 77-1-11, § 18, 1-24-77; Ord. No. 2017-2-10, §§ I, II, 2-27-17)

Cross reference—Swimming pools, § 6-436 et seq.

Sec. 6-188. Drainage and floodway easements.

No fences shall be constructed within any drainage or floodway easement in the corporate limits of the city unless the city engineer or designee shall have first determined and advised the chief building official, in writing, that such fences shall, in all probability, not interfere with or impair the natural flow of water across the drainage or floodway easement.
(Ord. No. 77-1-11, § 19, 1-24-77; Ord. No. 2017-2-10, §§ I, II, 2-27-17)

Secs. 6-189—6-200. Reserved.

DIVISION 2. HEIGHT*

Sec. 6-201. Fence height.

Fence height shall be in accordance with the requirements of the zoning ordinance; com-

*__Editor's note—__Ord. No. 2017-2-10, §§ I, II, adopted Feb. 27, 2017, amended div. 2 in its entirety to read as herein set out. Former div. 2, §§ 6-201—6-205, pertained to similar subject matter and derived from Ord. No. 77-1-11, §§ 7—11, adopted Jan. 25, 1977; and Ord. No. 84-10-15, § I, adopted Oct. 22, 1984.

mercial pools/spas fence height shall also comply with the Texas Health and Safety Code and the Texas Administrative Code, each as amended.
(Ord. No. 2017-2-10, §§ I, II, 2-27-17)

Secs. 6-202—6-220. Reserved.

ARTICLE VIII. PLUMBING AND MECHANICAL EQUIPMENT*

DIVISION 1. GENERALLY

Sec. 6-221. Plumbing contractor's registration.

(a) All plumbing contractors who provide plumbing services to city residents or businesses shall be registered by the city on a form acceptable to the building official.

(b) City registration issued under this division shall expire annually on the date of the original registration. No permits or inspections will be issued or completed for a contractor whose registration has expired.
(Ord. No. 83-2-5, § II, 2-14-83; Ord. No. 2025-7-6, § I, 7-28-25)

Secs. 6-222, 6-223. Reserved.

Editor's note—Ord. No. 88-3-21, § 1, adopted March 14, 1988, repealed §§ 6-222 and 6-223, pertaining to the plumbing and mechanical board, as derived from Ord. No. 82-12-14, §§ 1, 2, adopted Dec. 13, 1982.

Secs. 6-224—6-235. Reserved.

DIVISION 2. PLUMBING CODE†

Sec. 6-236. Penalty.

(a) *Criminal penalties.* Any violation of the provisions or terms of this article by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with section 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(b) *Civil penalties.* The city may file a civil action for enforcement of this division with civil penalties up to one thousand dollars ($1,000.00) per day for each offense as authorized by V.T.C.A. Local Government Code, ch. 54, subch. B, as amended.
(Ord. No. 2016-3-10, § II, 3-14-16; Ord. No. 2018-11-11, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-12, § II, 1-24-22; Ord. No. 2025-6-7, § II, 6-9-25)

Sec. 6-237. Adopted.

The 2024 Edition of the International Plumbing Code a publication of the International Code Council (I.C.C.), is hereby adopted and designated as the plumbing code of the city, to the same extent as if such code were copied verbatim in this section, subject to the deletions, additions and amendments prescribed in this division. A copy of the 2024 Edition of the International Plumbing Code is on file in the office of the city secretary.
(Ord. No. 2016-3-10, § II, 3-14-16; Ord. No. 2018-11-11, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-12, § II, 1-24-22; Ord. No. 2025-6-7, § II, 6-9-25)

Sec. 6-238. Administrative authority.

For purposes of this division and interpreting the code adopted in this division, the term "administrative authority" shall mean the building official of the city, and his agents and employees who are hereby empowered with the authority to administer and enforce the provisions of this division and the plumbing code.
(Ord. No. 2016-3-10, § II, 3-14-16; Ord. No. 2018-11-11, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-12, § II, 1-24-22; Ord. No. 2025-6-7, § II, 6-9-25)

***State law reference—**Cities to prescribe rules and regulations relating to plumbing, Vernon's Ann. Civ. St., art. 6243-101, § 15.

†**Editor's note—**Ord. No. 2016-3-10, §§ I, II, adopted March 14, 2016, repealed and reenacted division 2 in its entirety to read as herein set out. Formerly, division 2 pertained to similar subject matter, and derived from Ord. No. 2013-10-26, § II, adopted October 28, 2013.

Sec. 6-239. Deletions, additions, amendments.

The following deletions, additions, and amendments to the International Plumbing Code adopted in this Division are hereby approved and adopted:

Table of Contents, Chapter 7, Section 713; *change to read as follows:*

713 Engineered Drainage Design 7-12

Sec. 102.8.2; change to read as follows:

Sec. 102.8.2 Provisions in referenced codes and standards. Where the extent of the reference to a referenced code or standard includes subject matter that is within the scope of this code, the provisions of this code, as applicable, shall take precedence over the provisions in the referenced code or standard. Any reference to NFPA 70 shall mean the National Electrical Code as adopted.

Sec. 112; delete entire section and insert the following:

SECTION 112 BUILDING STANDARDS COMMISSION.

Sec. 112.1 General. In order to hear and decide appeals of orders, decisions or determinations made by the code official relative to the application and interpretation of this code, there shall be and is hereby created a Building Standards Commission ("board"). The board shall be appointed by the Plano City Council and shall hold office at its pleasure. The board shall adopt rules of procedure for conducting its business and shall render all decisions in writing to the appellant with a duplicate copy to the code official.

Sec. 112.2 Limitations of authority. An application for appeal shall be based on a claim that the true intent of this code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this code do not fully apply, or an equivalent or better form of construction is proposed. The board shall not have the authority to waive requirements of this code or interpret the administration of this code.

Sec. 112.3 Qualifications. The board shall consist of members who are qualified by experience and training and are not employees of the City of Plano.

Sec. 112.4 Administration. The code official shall take immediate action in accordance with the decision of the board.

Sec. 301.6; change to read as follows:

Sec. 301.6 Prohibited locations. Plumbing systems shall not be located in an elevator shaft or in an elevator equipment room.

Exemption: Floor drains, sumps and sump pumps shall be permitted at the base of the shaft, provided that they are indirectly connected to the plumbing system and comply with Sections 317 and 1003.4.

Sec. 305.1; change to read as follows:

Sec. 305.1 Protection against contact. Metallic piping, except for cast iron, ductile iron and galvanized steel, shall not be placed in direct contact with steel framing members, concrete or cinder walls and floors or other masonry. Metallic piping shall not be placed in direct contact with corrosive soil. Where sheathing is used to prevent direct contact, the sheathing shall have a thickness of not less than 0.008 inch (8 mil) (0.203 mm) and the sheathing shall be made of approved material. Where sheathing protects piping that penetrates concrete or masonry walls or floors, the sheathing shall be installed in a manner that allows movement of the piping within the sheathing.

Sec. 305.4.1; change to read as follows:

Sec. 305.4.1 Sewer depth. Building sewers shall be a minimum of 12 inches (304 mm) below grade.

Section 306.2.5; add Section 306.2.5 to Section 306.2 to read as follows:

Sec. 306.2.5 Plastic sewer and DWV piping installation. Plastic sewer and DWV piping installed underground shall be installed in accordance with the manufacturers' installation instructions. Trench width shall be controlled to not exceed the outside the pipe

diameter plus 16 inches or in a trench which has a controlled width equal to the nominal diameter of the diameter of the piping multiplied by 1.25 plus 12 inches. The piping shall be bedded in 4 inches of granular fill and then backfilled compacting the side fill in 6-inch layers on each side of the piping. The compaction shall be to minimum of 85 percent standard proctor density and extend to a minimum of 6 inches above the top of the pipe.

Sect. 317 Elevator drainage; add Section 317 to Chapter 3 to read as follows:

SECTION 317 ELEVATOR DRAINAGE.

Sec. 317.1 Elevator Drainage. Drainage shall be provided in the elevator pits as required by the Elevator Code and as listed in this section. Drainage discharge, whether drainage is required or voluntary, shall comply with Section 317.4.

Sec. 317.2 Pits. (ASME A17.1-Section 2.2.1; Inquiry 07-50). A pit shall be provided for each individual elevator.

Sec. 317.3 Drainage. (ASME A17.1-Sections 2.2.2.3 thru 2.2.2.6):

Sec. 2.2.2.3. Permanent provisions shall be made to prevent accumulation of ground water in the pit.

Sec. 2.2.2.4. Drains and sump pumps, where provided, shall comply with the applicable plumbing code, and they shall be provided with a positive means to prevent water, gases, and odors from entering the hoistway.

Sec. 2.2.2.5. In elevators provided with Firefighters' Emergency Operation, a drain or sump pump shall be provided. The sump pump/drain shall have the capacity to remove a minimum of 11.4 m^3/h (3,000 gal/h) per elevator.

Sec. 2.2.2.6. Sumps and sump pumps in pits, where provide, shall be covered. The cover shall be secured and level with the pit floor.

Sec. 317.4 Discharge. Discharge shall comply with the following:

1. The sump shall discharge into the sanitary sewer system.
2. If installed in a location with possible contamination, a trap or interceptor rated for the expected flow rate with a minimum "storage" capacity equivalent to the volume of hydraulic fluid or oil that could be leaked into the sump, will be required prior to discharge into the sanitary sewer.
3. Discharge to the storm drainage system is not permitted.

Sec. 317.5 Other pipes, ducts or electrical wiring. See Building Code, Sections 3004.4 and 3005.6 and the following **ASME A17.1-Sections 2.8.2.2 and 2.8.3.4:**

(ASME A 17.1-Section 2.8.2.2) Only such electrical wiring, raceways, cables, coaxial wiring, and antennas used directly in connection with the elevator, including wiring for signals, for communication with the car, for lighting, heating, air conditioning, and ventilating the car, for fire detecting systems, for pit sump pumps, and for heating and lighting the hoistway and/or the machinery space, machine room, control space, or control room shall be permitted to be installed inside the hoistway, machinery space, machine room, control space, or control room.

(ASME A17.1-Section 2.8.3.4) Other pipes or ducts conveying gases, vapors or liquid and not used in connection with the operation of the elevator shall not be installed in any hoistway, machinery space, machine room, control space or control room. Where a machinery space, machine room, control space, control room, or hoistway extend above the roof of a building, pipes shall be permitted from roof drains to the closest point where they can be diverted out of this space. Pipes shall be covered to prevent leakage or condensate from entering the machine space, machine room, control space, control room, or hoistway.

Sec. 403.1; add a second paragraph to read as follows:

Sec. 403.1 Minimum number of fixtures. In other than E Occupancies, the minimum number of fixtures in Table 403.1 may be lowered, if requested in writing, by the applicant stating reasons for a reduction number and approved by the Building Official. Required

Table 403.1; *change Nos. 2 and 6 of Table 403.1 to add a footnote "g" to read as follows (remainder of table remains as written):*

TABLE 403.1 - MINIMUM NUMBER OF REQUIRED PLUMBING FIXTURES

NO.	CLASSIFICATION	DESCRIPTION	WATER CLOSETS (URINALS: SEE SECTION 424.2)		LAVATORIES		BATHTUBS/ SHOWERS	DRINKING FOUNTAINS (SEE SECTION 410)	OTHER
			MALE	FEMALE	MALE	FEMALE			
2	Business[g]	Buildings for the transaction of business, professional services, other services involving merchandise, office buildings, banks, ambulatory care, light industrial and similar uses	1 per 25 for the first 50 and 1 per 50 for the remainder exceeding 50		1 per 40 for the first 80 and 1 per 80 for the remainder exceeding 80		-	1 per 100[g]	1 service sink[e]
6	Mercantile[g]	Retail stores, service stations, shops, salesrooms, markets and shopping centers	1 per 500		1 per 750		-	1 per 1,000[g]	1 service sink[e]

g. Drinking fountains are not required in M Occupancies with an occupant load of 100 or less, B Occupancies with an occupant load of 25 or less, and for dining and/or drinking establishments.

Sec. 413.4; change to read as follows:

Sec. 413.4 Required location for floor drains. Floor drains shall be installed in the following areas:

1. Public laundries and in the central washing facilities of multiple family dwellings. In public laundries and in the central washing facilities of multiple family dwellings, the rooms containing automatic clothes washers shall be provided with floor drains located to readily drain the entire floor area. Such drains shall have a minimum outlet of not less than 3 inches (76 mm) in diameter.
2. Commercial kitchens. In lieu of floor drains in commercial kitchens, the code official may accept floor sinks.
3. Public restrooms.

Sec. 502.3; change to read as follows:

Sec. 502.3 Water heaters installed in attics. Attics containing a water heater shall be provided with an opening and unobstructed passageway large enough to allow removal of the water heater. The passageway shall be not less than 30 inches (762 mm) in height and 22 inches (559 mm) in width and not more than 20 feet (6096 mm) in length when measured along the centerline of the passageway from the opening to the water heater. The passageway shall have continuous solid flooring not less than 24 inches (61) mm) in width. A level service space not less than 30 inches (762 mm) in length and 30 inches (762 mm) in width shall be present at the front or service side of the water heater. The clear access opening dimensions shall be not less than 20 inches by 30 inches (508 mm by 762 mm) where such dimensions are large enough to allow removal of the water heater. At a minimum, for access to the attic space, provide one of the following:

1. A permanent stair. A pull-down stair with a minimum 300 lb. (136 kg) capacity.
2. An access door from an upper floor level.

3. Access Panel may be used in lieu of items 1 and 2 with prior approval of the Code Official due to building conditions.

Exception: The passageway and level service space are not required where the appliance is capable of being serviced and removed.

Sec. 502; add Section 502.6 to Section 502 to read as follows:

Sec. 502.6 Water heaters above ground or floor. When the attic, roof, mezzanine or platform in which a water heater is installed is more than eight (8) feet (2438 mm) above the ground or floor level, it shall be made accessible by a stairway or permanent ladder fastened to the building.

Exception: A maximum 10-gallon water heater (or larger with approval) is capable of being accessed through a lay-in ceiling and a water heater is installed is not more than ten (10) feet (3048 mm) above the ground or floor level and may be reached with a portable ladder.

Section 608.17.5; change to read as follows:

Sec. 608.17.5 Connections to lawn irrigation systems. The potable water supply to lawn irrigation systems shall be protected against backflow by an atmospheric-type vacuum breaker, a pressure-type vacuum breaker, a double-check assembly, or a reduced pressure principle backflow preventer. A valve shall not be installed downstream from an atmospheric vacuum breaker. Where chemicals are introduced into the system, the potable water supply shall be protected against backflow by a reduced pressure principle backflow preventer.

Sec. 608.18; change to read as follows:

Sec. 608.18 Protection of individual water supplies. An individual water supply shall be located and constructed so as to be safeguarded against contamination with Sections 608.17.1 through 608.17.8, and applicable local regulations.

Sec. 703.6 Combined Sanitary and Storm Public Sewer; Delete in its entirety.

Sec. 704; add Section 704.5 to Section 704 to read as follows:

Sec. 704.5 Single stack fittings. Single stack fittings with internal baffle, PVC schedule 40, or cast-iron single stack shall be designed by a registered engineer and comply with a national recognized standard.

Sec. 712.4; add Section 712.4.3 to Section 712.4 to read as follows:

Sec. 712.4.3 Dual Pump System. All sumps shall be automatically discharged and, when in any "public use" occupancy where the sump serves more than 10 fixture units, shall be provided with dual pumps or ejectors arranged to function independently in case of overload or mechanical failure. For storm drainage sumps and pumping systems, see Section 1113.

Sec. 713; change the title of Section 713 to read as follows:

SECTION 713 ENGINEERED DRAINAGE DESIGN.

Sec. 713.1; change Section 713.1 to read as follows:

Sec. 713.1 Design of drainage system. The sizing, design and layout of the drainage system shall be designed by a registered engineer using *approved* design methods.

Sec. 903.1.1; change to read as follows:

Sec. 903.1.1 Roof extension unprotected. Open vent pipes that extend through a roof shall terminate not less than six (6) inches (152 mm) above the roof.

Sec. 1003.4; change the exception under 1003.4 to read as follows:

Exception: For oil separators in elevator pits, see Section 317.

Sec. 1106.1; change to read as follows:

Sec. 1106.1 General. The size of the vertical conductors and leaders, building storm drains, building storm sewers, and any horizontal branches of such drains or sewers shall be based on six (6) inches per hour rainfall rate.

Sec. 1108.3; change to read as follows:

Sec. 1108.3 Sizing of secondary drains. Secondary (emergency) roof drain systems shall be sized in accordance with Section 1106. Scuppers shall be sized to prevent the depth of ponding water from exceeding that for which the roof was designed as determined by Section 1101.7. Scuppers shall not have an opening dimension of less than 4 inches (102 mm). The flow through the primary system shall not be considered when sizing the secondary roof drain system.

Sec. 1109, Combined sanitary and storm public sewer; delete the section in its entirety.

Sec. 1202.1 Nonflammable medical gases; delete Exceptions 1 and 2.

ASTM D2321; add D2321 to ASTM as a reference standard to Chapter 15 to read as follows:

ASTM D2321 - Underground Installation of Thermoplastic Pipe for Sewers and Other Gravity-Flow Applications. 306.2.5.

(Ord. No. 2016-3-10, § II, 3-14-16; Ord. No. 2018-11-11, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-12, § II, 1-24-22; Ord. No. 2025-6-7, § II, 6-9-25)

Secs. 6-240—6-250. Reserved.

DIVISION 3. MECHANICAL CODE*

Sec. 6-251. Penalty.

Any violation of the provisions or terms of this article by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with section 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(Ord. No. 2016-3-9, § II, 3-14-16; Ord. No. 2018-11-12, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-13, § II, 1-24-22; Ord. No. 2025-6-8, § II, 6-9-25)

*__Editor's note__—Ord. No. 2016-3-9, § II, adopted March 14, 2016, repealed and reenacted division 3 in its entirety to read as herein set out. Formerly, division 3 pertained to similar subject matter, and derived from Ord. No. 2013-10-27, § II, adopted October 28, 2013.

Sec. 6-252. Adopted.

The 2024 Edition of the International Mechanical Code, a publication of the International Code Council (I.C.C.), is hereby adopted and designated as the mechanical code of the city, to the same extent as if such code were copied verbatim in this section, subject to the deletions, amendments, and additions prescribed in this division. A copy of the 2024 Edition of the International Mechanical Code is on file in the office of the city secretary.

(Ord. No. 2016-3-9, § II, 3-14-16; Ord. No. 2018-11-12, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-13, § II, 1-24-22; Ord. No. 2025-6-8, § II, 6-9-25)

Sec. 6-253. Administrative authority.

For purposes of this division and interpreting the code adopted in this division, the term "administrative authority" shall mean the building official of the city, his agents, and employees who are hereby empowered with the authority to administer and enforce the provisions of this division and the mechanical code.

(Ord. No. 2016-3-9, § II, 3-14-16; Ord. No. 2018-11-12, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-13, § II, 1-24-22; Ord. No. 2025-6-8, § II, 6-9-25)

Sec. 6-254. Deletions, additions, amendments.

The following deletions, additions, and amendments to the 2024 International Mechanical Code adopted in this division are hereby approved and adopted:

Sec. 102.8.2; change to read as follows:

Sec. 102.8.2 Provisions in referenced codes and standards. Where the extent of the reference to a referenced code or standard includes subject matter that is within the scope of this code, the provisions of this code, as applicable, shall take precedence over the provisions in the referenced code or standard. Any reference to NFPA 70 shall mean the National Electrical Code as adopted.

Sec. 103.1; change to read as follows:

Sec. 103.1 Creation of agency. The City of Plano Building Inspections Department is hereby created and the official in charge thereof shall be known as the code official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

Sec. 112; delete the entire section and change to read as follows:

SECTION 112 BUILDING STANDARDS COMMISSION.

Sec. 112.1 General. In order to hear and decide appeals of orders, decisions or determinations made by the code official relative to the application and interpretation of this code, there shall be and is hereby created a Building Standards Commission ("board"). The board shall be appointed by the Plano City Council and shall hold office at its pleasure. The board shall adopt rules of procedure for conducting its business and shall render all decisions in writing to the appellant with a duplicate copy to the code official.

Sec. 114.2 Limitations of authority. An application for appeal shall be based on a claim that the true intent of this code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this code do not fully apply, or an equivalent or better form of construction is proposed. The board shall not have the authority to waive requirements of this code or interpret the administration of this code.

Sec. 114.3 Qualifications. The board shall consist of members who are qualified by experience and training and are not employees of the City of Plano.

Sec. 114.4 Administration. The code official shall take immediate action in accordance with the decision of the board.

Sec. 202; change to add a definition of Effective Dispersal Volume Charge as follows:

Effective Dispersal Volume Charge (EDVC). The maximum refrigerant charge permitted for an effective dispersal volume.

Section 202; change to add a definition of Refrigerant Detection System as follows:

Refrigerant Detection System. The product safety standard addresses both refrigerant detection systems and leak detection systems. In the product safety standard, a leak detection system means "a sensing system which responds to refrigerant leaking from a refrigerating system." A leak detection system may include gas sensing, ultrasonic, or other such methods that meet the standards UL 60335-2-40/CSA C22.2 No. 60335-2-40 or UL 60335-2-89/CSA C22.2 No. 60335-2-89. [ASHRAE 15-2022: 3.1]

Section 202; change to add a definition of Refrigerant Detector as follows:

Refrigerant Detector. Refrigerant detector means a "Refrigerant sensor". A refrigerant sensor or detector means a sensing element combined with electronic circuitry that provides a digital output or an analog signal output that corresponds to the sensed refrigerant gas concentration. [ASHRAE 15-2022: 3.1]

Section 306.3; change to read as follows:

Sec. 306.3 Appliances in Attics. Attics containing *appliances* shall be provided with an opening and unobstructed passageway large enough to allow removal of the largest *appliance*. The passageway shall be not less than 30 inches (762 mm) high and 22 inches (559 mm) wide and not more than 20 feet (6096 mm) in length measured along the centerline of the passageway from the opening to the *appliance*. The passageway shall have continuous solid flooring not less than 24 inches (610 mm) wide. A level service space not less than 30 inches (762 mm) deep and 30 inches (762 mm) wide shall be present at the front or service side of the *appliance*. The clear access opening dimensions shall be a minimum of 20 inches by 30 inches (508 mm by 762 mm), and large enough to allow removal of the largest *appliance*. At a minimum, for access to the attic space, provide one of the following:

1. A permanent stair.
2. A pull-down stair with a minimum 300 lb. (136 kg) capacity.

3. An access door from an upper floor level.

Exceptions:

1. The passageway and level service space are not required where the appliance is capable of being serviced and removed through the required opening with the approval of the code official.
2. Where the passageway is unobstructed and not less than 6 feet (1829 mm) high and 22 inches (559 mm) wide for its entire length, the passageway shall be not greater than 50 feet (15,250 mm) in length.

[Section 306.3.1 Electrical requirements to remain unchanged.]

Section 306.5; change the first paragraph of Section 306.5 to read as follows:

Sec. 306.5 Equipment and Appliances on Roofs or Elevated Structures. Where *equipment* requiring access or *appliances* are located on an elevated structure or the roof of a building such that personnel will have to climb higher than 16 feet (4877 mm) above grade to access such *equipment* or *appliances*, an interior or exterior means of access shall be provided. Exterior ladders providing roof access need not extend closer than 12 feet (2438 mm) to the finish grade or floor level below and shall extend to the *equipment* and *appliances'* level service space. Such access shall not require climbing over obstructions greater than 30 inches (762 mm) in height or walking on roofs having a slope greater than four units vertical in 12 units horizontal (33-percent slope). Such access shall not require the use of portable ladders. Where access involves climbing over parapet walls, the height shall be measured to the top of the parapet wall.

Sec. 306.5.1; change to read as follows:

Sec. 306.5.1 Sloped Roofs. Where *appliances*, *equipment*, fans or other components that require service are installed on a roof having a slope of three units vertical in 12 units horizontal (25-percent slope) or greater and having an edge more than 30 inches (762 mm) above grade at such edge, a catwalk at least 16 inches in width with substantial cleats spaced not more than 16 inches apart shall be provided from the roof access to a level platform at the *appliance*. The level platform shall be provided on each side of the *appliance* or *equipment* to which access is required for service, repair or maintenance. The platform shall be not less than 30 inches (762 mm) in any dimension and shall be provided with guards. The guards shall extend not less than 42 inches (1067 mm) above the platform, shall be constructed so as to prevent the passage of a 21-inch-diameter (533 mm) sphere and shall comply with the loading requirements for guards specified in the *International Building Code.* Access shall not require walking on roofs having a slope greater than four units vertical in 12 units horizontal (33-percent slope). Where access involves obstructions greater than 30 inches (762 mm) in height, such obstructions shall be provided with ladders installed in accordance with Section 306.5 or stairways installed in accordance with the requirements specified in the *International Building Code* in the path or travel to and from *appliances*, fans or *equipment* requiring service.

Sec. 306; add Section 306.6 to read as follows:

Sec. 306.6 Water Heaters above Ground or Floor. When the mezzanine or platform in which a water heater is installed is more than eight (8) feet (2438 mm) above the ground or floor level, it shall be made accessible by a stairway or permanent ladder fastened to the building.

Exception: A maximum 10-gallon water heater (or larger with approval) is capable of being accessed through a lay-in ceiling and the water heater installed is not more than ten (10) feet (3048 mm) above the ground or floor level and may be reached with a portable ladder.

Sec. 307.2.3 Auxiliary and secondary drain systems; amend item 2 in Section 307.2.3 to read as follows:

2. A separate overflow drain line shall be connected to the drain pan provided with the *equipment*. Such overflow drain shall

discharge to a conspicuous point of disposal to alert occupants in the event of a stoppage of the primary drain. The overflow drain line shall connect to the drain pan at a higher level than the primary drain connection. The conspicuous point shall not create a hazard such as dripping over a walking surface or other areas so as to create a nuisance.

Sec. 403.2.1 Recirculation of air; add an item 5 to Section 403.2.1 to read as follows:

5. Toilet rooms within private dwellings that contain only a water closet, lavatory, or combination thereof may be ventilated with an *approved* mechanical recirculating fan or similar device designed to remove odors from the air.

Sec. 501.3 Exhaust discharge; add a fourth exception to Section 501.3 to read as follows:

4. Toilet room exhaust ducts may terminate in a warehouse or shop area when infiltration of outside air is present.

Sec. 1104.2 Machinery room; change by adding an Exception 3 to read as follows:

3. Machinery Rooms are not required when in compliance with ASHRAE 15 Section 7.4.

Sec. 1104.3.1; add Section 1104.3.1.1 to read as follows:

Sec. 1104.3.1.1 Group A2L high-probability systems. High-probability systems using Group A2L refrigerants shall comply with ASHRAE 15 section 7.6.

Sec. 1109.2.5 Refrigerant pipe shafts; change the exceptions to read as follows:

Exceptions:

1. [Existing text to remain]

2. Piping in a direct refrigeration system where the refrigerant quantity does not exceed the limits of Table 1103.1 for the smallest occupied space through which the piping passes.

3. [Existing text to remain]

(Ord. No. 2016-3-9, § II, 3-14-16; Ord. No. 2018-11-12, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-13, § II, 1-24-22; Ord. No. 2025-6-8, § II, 6-9-25)

Secs. 6-255—6-270. Reserved.

ARTICLE IX. ELECTRICAL CODE*

DIVISION 1. GENERALLY

Sec. 6-271. Penalty.

Any person, firm or corporation found to be violating any term or provision of this article, shall be subject to a fine in accordance with section 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-272. Adopted.

The 2023 Edition of the National Electrical Code, as published by the National Fire Protection Association, a copy of which is on file in the office of the city secretary, is hereby adopted and designated as the electrical code of the city to the same extent as if such code were copied verbatim in this article.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-273. Short title.

The title of this article shall be the "Electrical Code of the City of Plano," and it may be cited as such.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

---

*__Editor's note—__Ord. No. 2014-11-15, § II, adopted Nov. 24, 2014, repealed the former Art. IX, §§ 6-271—6-357, and enacted a new Art. IX as set out herein. The former Art. IX pertained to similar subject matter and derived from Ord. No. 2011-1-12, § II, adopted Jan. 10, 2011.

Sec. 6-274. Definitions.

For the purposes of this article, certain terms, phrases, works and their derivatives shall be defined and meanings construed as set out in this section.

Authorized person means an individual or authorized representative of a firm or corporation who is currently licensed under the provisions of this article to do the work as permitted under the specific provisions of this article.

Board means the building standards commission as constituted in this article.

Electrical construction means and includes all work and material used in installing, maintaining and extending a system of electrical wiring and all appurtenances, apparatus, and equipment used in connection therewith, inside of or attached to any building or structure, lot or premises.

Electrical contractor means any person engaged in the business of installing, maintaining or altering, by contract, electrical conductors or equipment.

Electrician means a person who is engaged in the work of electrical construction, maintenance, or repair and who is qualified under the terms and provisions of this article.

Engineering supervision means supervision by a qualified State of Texas Licensed Professional Engineer engaged primarily in the design or maintenance of electrical installations as referenced by TBPELS 137.59(a) and (b), as acceptable by the AHJ.

Inspector means an individual who has been designated by the city as an electrical inspector.

Intersystem bonding termination means a device that provides a means for connecting intersystem bonding conductors for communication systems and other systems to the grounding electrode system. Bonding conductors for other systems shall not be larger than 6 AWG.

Kitchen means an area with a sink and permanent facilities for food preparation and cooking.

Maintenance means the act of keeping in a state of safe operating condition any conductor or piece of equipment used inside or outside, attached or connected to any building electrical system by replacement of units or elements thereof, but shall not include extensions of, or additions or alterations to an existing system or branch thereof.

Owner means any person, firm, partnership, or corporation holding legal title to or in any real property, building, or premises within the city limits.

Plans examiner means an individual who has been designated by the City of Plano to perform code review on plans submitted to the building inspections department for permitting.

Registered (licensed) means that the person has made application to the building inspections department and has satisfied the department that the person is qualified to do the work stated in the application, the necessary registration fees to date have been paid, and that the person's name is carried in the records of the electrical inspector as a person authorized to do electrical work as defined in this article.

Repair means the act of restoring to a safe and sound condition as an operating unit or element any conductor or piece of equipment used either inside or outside, attached or connected to a building electrical system, but shall not include extensions of or additions to an existing system or branch thereof.

Special permission means the written consent of the electrical inspector. Such permission shall be based upon a reasonable interpretation of this article with respect to a specific problem where a strict interpretation would create an injustice.

Texas Department of Licensing and Regulation (TDLR) is the umbrella licensing agency for the State of Texas that is responsible for regulating the Texas Electrical Safety and Licensing Act.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

DIVISION 2. AMENDMENTS

Sec. 6-275. Amendments.

The following amendments to the National Electrical Code adopted herein are hereby approved and adopted:

Art. 110.2; change to read as follows:

Art. 110.2 Approval. The conductors and equipment required or permitted by this *Code* shall be acceptable only if approved. Approval of equipment may be evident by listing and labeling of equipment by a Nationally Recognized Testing Lab (NRTL) with a certification mark of that laboratory or a qualified third party inspection agency or a field evaluation by a Field Evaluation Body accredited by either the International Code Council International Accreditation Service AC354 or ANSI National Accreditation Board programs and approved by the AHJ.

Exception: *Unlisted equipment that is relocated to another location within a jurisdiction or is field modified is subject to the approval by the AHJ. This approval may be by a field evaluation by a NRTL or qualified third-party inspection agency or a field evaluation by a Field Evaluation Body accredited by either the ICC IAS AC354 or ANAB programs and approved by the AHJ.*

Informational Note No. 1: See 90.7, Examination of Equipment for Safety, and 110.3, Examination, Identification, Installation, and Use of Equipment. See definitions of *Approved*, *Identified*, *Labeled*, and *Listed*.

Informational Note No. 2: Manufacturer's self-certification of equipment may not necessarily comply with US product safety standards as certified by a Nationally Recognized Testing Lab (NRTL).

Informational Note No. 3: National Fire Protection Association (NFPA) 790 and 791 provide an example of an approved method for qualifying a third-party inspection agency.

Art. 110.12 (B); change to read as follows:

(B) Integrity of Electrical Equipment and Connections. Internal parts of electrical equipment, including busbars, wiring terminals, insulators, and other surfaces, shall not be damaged or contaminated by foreign materials such as paint, plaster, cleaners, abrasives, corrosive residues or influences, fire, products of combustion, or water. There shall be no damaged parts that may adversely affect safe operation or mechanical strength of the equipment such as parts that are broken; bent; cut; or deteriorated by corrosion, chemical action, or overheating. Except where prohibited elsewhere in this Code, equipment shall be specifically evaluated by its manufacturer or a qualified testing laboratory prior to being returned to service.

Art. 210.8 (A); change to read as follows:

(A) Dwelling Units. All 125-volt through 250-volt receptacles installed in the following locations and supplied by single-phase branch circuits rated 150 volts or less to ground shall have ground-fault circuit-interrupter protection for personnel.

(1) Bathrooms

(2) Garages and also accessory buildings that have a floor located at or below grade-level not intended as habitable rooms and limited to storage areas, work areas, and areas of similar use

(3) Outdoors

(4) Crawl spaces - at or below grade-level

(5) Basements

(6) Kitchens

(7) Areas with sinks and permanent provisions for food preparation, beverage preparation, or cooking

(8) Sinks - where receptacles are installed within 1.8 m (6 ft) from the top inside edge of the bowl of the sink

(9) Boathouses

(10) Bathtubs or shower stalls - where receptacles are installed within 1.8 m (6 ft) of the outside edge of the bathtub or shower stall

(11) Laundry areas

(12) Indoor damp and wet locations

Exception No. 1: *Receptacles that are not readily accessible and are supplied by a branch circuit dedicated to electric snow-melting, deicing, or pipeline and vessel heating equipment shall be permitted to be installed in accordance with 426.28 or 427.22, as applicable.*

Exception No. 2: *A receptacle supplying only a permanently installed premises security system shall be permitted to omit ground-fault circuit-interrupter protection.*

Exception No. 3: *Listed weight-supporting ceiling receptacles (WSCR) utilized in combination with compatible weight-supporting attachment fittings (WSAF) installed for the purpose of supporting a ceiling luminaire or ceiling-suspended fan shall be permitted to omit ground-fault circuit-interrupter protection. If a general-purpose convenience receptacle is integral to the ceiling luminaire or ceiling-suspended fan, GFCI protection shall be provided.*

Exception No. 4: *Factory-installed receptacles that are not readily accessible and are mounted internally to exhaust fan assemblies shall not require GFCI protection unless required by the installation instruction or listing.*

Informational Note: See 760.41(B) and 760.121(B) for power supply requirements for fire alarm systems.

Art. 210.52 (C)(1); change to read as follows:

(1) **Wall Spaces.** Receptacle outlets shall be installed so that no point along the wall line is more than 600 mm (24 in.) measured horizontally from a receptacle outlet in that space. The location of the receptacles shall be in accordance with 210.52(C)(3).

Exception: *Receptacle outlets shall not be required directly behind a range, counter mounted cooking unit, or sink in the installation described in Figure 210.52(C)(1).*

Art. 210.52 (C)(2); change to read as follows:

(2) **Island and Peninsular Countertops and Work Surfaces.** Receptacle outlets, if installed to serve an island or peninsular countertop or work surface, shall be installed in accordance with 210.52(C)(3). If a receptacle outlet is not provided to serve an island or peninsular countertop or work surface, a Chapter 3 wiring method shall be installed and supplied from a small appliance branch circuit to a listed outlet box in the peninsular or island cabinet at an accessible location for future addition of a receptacle outlet to serve the island or peninsular countertop or work surface.

Art. 210.63 (B); change to read as follows:

(B) Other Electrical Equipment. In other than one- and two-family dwellings, a receptacle outlet shall be located as specified in 210.63(B)(1) and (B)(2).

(1) **Indoor Service Equipment.** The required receptacle outlet shall be located within the same room or area as the service equipment.

(2) **Indoor Equipment Requiring Dedicated Equipment Spaces.** Where equipment, other than service equipment, requires dedicated equipment space as specified in 110.26(E), the required receptacle outlet shall be located within the same room or area as the electrical equipment.

Art. 220.6; add a new article to read as follows:

Art. 220.6 Load Calculation. A load calculation shall be provided upon request when modifications to the electrical installation occur.

Article 230.85 (C); change to read as follows:

(C) Replacement. Where service equipment is replaced, all of the requirements of this section shall apply.

Exception: Where a pre-existing installation is code compliant with 230.70 and only meter sockets, service entrance conductors, or related raceways and fittings are replaced, the requirements of this section shall not apply.

Art. 250.50; change to read as follows:

Art. 250.50 Grounding Electrode System. All grounding electrodes as described in 250.52(A)(1) through (A)(7) that are present at each building or structure served shall be bonded together to form the grounding electrode system. Where none of these grounding electrodes exist, one or more of the grounding electrodes specified in 250.52(A)(4) through (A)(8) shall be installed and used. Any building or structure supplied by a service or feeder with a foundation, footing or piers shall have either: (a) a concrete encased electrode, (b) a ground ring, 2/0 AWG grounding electrode conductor connecting two eight (8) foot driven ground rods spaced a minimum of twenty (20) feet apart connected by a 2/0 AWG bonding conductor buried in a trench at least 30 inches deep, or (c) chemical electrode installed.

Exception: Concrete-encased electrodes of existing buildings or structures shall not be required to be part of the grounding electrode system where the steel reinforcing bars or rods are not accessible for use without disturbing the concrete.

Art. 408.4; change to read as follows:

Art. 408.4 Descriptions Required.

(A) Circuit Directory or Circuit Description. Every circuit and circuit modification shall be provided with a legible and permanent description that complies with all the following conditions as applicable:

(1) Located at each switch or circuit breaker in a switchboard or switchgear.

(2) Included in a circuit directory that is located on the face of, inside of, or in an approved location adjacent and permanently affixed to the panel door in the case of a panelboard.

(3) Clear, evident, and specific to the purpose or use of each circuit including spare positions with an unused overcurrent device.

(4) Described with a degree of detail and clarity that is unlikely to result in confusion between circuits.

(5) Not dependent on transient conditions of occupancy.

(6) Clear in explaining abbreviations and symbols when used.

(B) Source of Supply. All switchboards, switchgear, and panelboards supplied by a feeder(s) in other than one- or two-family dwellings shall be permanently marked in accordance with the following:

(1) With the identification and physical location of where the power originates.

(2) With a label that is permanently affixed and of sufficient durability to withstand the environment involved.

(3) Using a method that is not handwritten.

Art. 410.118; change to read as follows:

Art. 410.118 Access to Other Boxes. Luminaires recessed in the ceilings, floors, or walls shall not be used to access outlet, pull, or junction boxes or conduit bodies, unless the box or conduit body is an integral part of the listed luminaire.

Exception: Removable luminaires with a minimum measurement of 22 in. x 22 in. shall be permitted to be used as access to outlet, pull, junction boxes or conduit bodies.

Art. 422.31 (B); change to read as follows:

(B) Appliances Rated over 300 Volt-Amperes. For permanently connected appliances rated over 300 volt-amperes, the branch-circuit switch or circuit breaker shall be permitted to serve as the disconnecting means where the switch or circuit breaker is within sight from and is readily accessible to the appliance it serves or is capable

of being locked in the open position in accordance with 110.25 and is readily accessible to the appliance it serves.

Informational Note No. 1: For appliances employing unit switches, see 422.34.

Informational Note No. 2: The following means of access are considered to constitute readily accessible for this code change when conforming to the additional access requirements of the I Codes:

(1) A permanent stair.

(2) A pull-down stair with a minimum 300 lb. (136 kg) capacity.

(3) An access door from an upper floor level.

Article 500.8 (A); *change to read as follows:*

Art. 500.8 Equipment. Explosion-proof or dust-ignition-proof equipment shall not be permitted for use at temperatures lower than -25°C (-13°F) unless they are identified for low-temperature service. Articles 500 through 504 require equipment construction and installation that ensure safe performance under conditions of proper use and maintenance.

Informational Note No. 1: It is important that inspection authorities and users exercise more than ordinary care with regard to installation and maintenance.

Informational Note No. 2: Since there is no consistent relationship between explosion properties and ignition temperature, the two are independent requirements.

Informational Note No. 3: Low ambient conditions require special consideration. Explosion proof or dust-ignition proof equipment may not be suitable for use at temperatures lower than -25°C (-13°F) unless they are identified for low-temperature service. However, at low ambient temperatures, flammable concentrations of vapors may not exist in a location classified as Class I, Division 1 at normal ambient temperature.

(A) Suitability. Suitability of identified equipment shall be determined by one of the following:

(1) Equipment listing or labeling;

(2) Evidence of equipment evaluation from a qualified testing laboratory or inspection agency concerned with product evaluation; or

(3) By special Permission Only. Evidence acceptable to the authority having jurisdiction such as a manufacturer's self-evaluation accompanied by an owner's engineering judgment. An engineering judgement must be signed and sealed under supervision of a qualified State of Texas licensed professional engineer engaged primarily in the design of maintenance of electrical installations as referenced by TBPELS 137.59(a)(b) as acceptable by the AHJ.

Informational Note: Additional documentation for equipment may include certificates demonstrating compliance with applicable equipment standards, indicating special conditions of use, and other pertinent information.

[Remainder of Article 500.8 is unchanged.]

Informational Note No. 2 of Article 505.7; change to read as follows:

Informational Note No. 2: Electrical equipment that is dependent on the protection technique permitted by 500.8(A) might not be suitable for use at temperatures lower than -20°C (-4°F) unless they are identified for use at lower temperatures. Low ambient conditions require special consideration. At low ambient temperatures, flammable concentrations of vapors might not exist in a location classified Class I, Zones 0, 1, or 2 at normal ambient temperature.

Art. 505.7 (A); change to read as follows:

(A) Implementation of Zone Classification System. Classification of areas, engineer-

ing and design, selection of equipment and wiring methods, installation, and inspection shall be performed under the supervision of a qualified State of Texas licensed professional engineer engaged primarily in the design or maintenance of electrical installations as referenced by TBPELS 137.59(a)(b) as acceptable by the AHJ.

Art. 690.9 (D); change to read as follows:

(D) Transformers. Overcurrent protection for power transformers shall be installed in accordance with 705.30(F).

Art. 695.6 (A)(1); delete the exception and change to read as follows:

(1) **Services and On-Site Power Production Facilities.** Service conductors and conductors supplied by on-site power production facilities shall be physically routed outside a building(s) and shall be installed as service-entrance conductors in accordance with 230.6, 230.9, and Parts III and IV of Article 230. Where supply conductors cannot be physically routed outside of buildings, the conductors shall be permitted to be routed through the building(s) where installed in accordance with 230.6(1) or (2).

Art. 705.8 System Installation; change to read as follows:

Art. 705.8 System Installation. Installation of one or more electrical power production sources operating in parallel with a primary source(s) of electricity shall be performed only by qualified persons. During the installation there shall be on site one of the following:

(1) A person holding a Master Electrician License issued by the Texas Department of Licensing and Regulation.

(2) A person holding a Journeyman Electrician License issued by the Texas Department of Licensing and Regulation.

Art. 705.80 Power Source Capacity; change to read as follows:

Art. 705.80 Power Source Capacity. For interconnected power production sources that operate in island mode, capacity shall be calculated using the sum of all power source output maximum currents for the connected power production source. Solar photovoltaic (PV) and wind systems shall not be included in the sum capacity.

Art. 710.15 (A); delete the paragraph and information note in its entirety and change to read as follow:

Art. 710.15(A). Reserved.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Secs. 6-276—6-279. Reserved.

Sec. 6-280. Electrical signs.

All electrical display signs shall meet the requirements of other sections of this article and any rule or regulation of any other ordinance or code issued by authority of the governing body of the city and the National Electrical Code, and shall be constructed and installed in accordance with the special regulations set forth in this section. Permits for installation of signs shall be obtained from the building inspections department before any signs are installed. Permit fees shall be obtained and paid for in the manner and in the amount set forth in the fee schedule as adopted by the city council.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-281. Supervision of work; limitation on employment of apprentices.

(a) In the actual work of installing, maintaining, altering or repairing any electric conductors or equipment for which this article or other ordinance requires a permit, there shall be present and in direct supervision a qualified electrician of the proper classification. An electrical contractor or master electrician shall be liable and responsible for layout and technical supervision of any work which requires a permit and a journeyman or higher classified grade electri-

cian shall be in direct "on the job" supervision of work carried on specified in this article. Should it come to the attention of the electrical inspector or his assistants that such supervision and control are not being maintained, the Inspector may order the work to be discontinued and the person to whom the permit has been issued shall discontinue further work until proper supervision has been employed or supplied. Nothing in this section shall be construed as prohibiting the employment of apprentices assisting a person duly registered and qualified under the provisions of this article. It shall be unlawful to have more than four (4) apprentice electricians working under the supervision of a duly registered person on any one job.

(b) A homeowner may personally install electrical conductors or equipment within his place of residence if the owner applies for and receives a permit, pays required fees, does work in accordance with this code, and applies for an inspection. Work performed by a homeowner, under the provisions of this section must be done by himself on homestead premises owned and occupied by him without compensation. The homeowner shall not employ another person to assist him in any way on work done under the provisions of this section.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-282. Inspection and approval or rejection of rough work.

(a) When the rough wiring or installation work authorized by a permit issued under this article is complete on any permit issued under this article, the person responsible therefore shall notify the electrical inspector that the job is ready for inspection giving proper identification of the work and address. The electrical inspector shall then make an inspection of the electrical installation within twenty-four (24) hours from the time of notification (exclusive of Saturdays, Sundays and legal holidays).

(b) If such wiring or installation work has been installed in accordance with the terms or provisions of this article, the electrical inspector shall sign an inspection notice noting thereon the date of approval of the work. More than one (1) rough inspection may be made without charge when the progress of construction requires such inspection.

(c) If the electric wiring or installation of fixtures or equipment inspected under this section is found to be faulty or incorrectly or defectively installed, the electrical inspector shall attach an inspection notice showing rejection of the work and make available to the responsible person who installed such work information as to the changes necessary to be made in order that the work may conform to this article. The person responsible for such work shall, within twenty-four (24) hours from the time of notification; make or start to make changes ordered and shall proceed with the work until the same is completed. Upon completion thereof, he shall notify the electrical inspector to the effect that the defective work has been corrected. The latter then shall cause a re-inspection to be made, and if the work is found to comply with this article he shall sign the inspection card noting thereon the date of approval of the work. If the electrical inspector shall again find the work incorrectly installed, they shall notify the responsible person of the necessary changes and shall again re-inspect the work. If the responsible electrician does not make the required changes before the permit expires, contractor registration shall be cancelled and the inspector shall refuse to issue to any such person any further permits until the work in question is corrected and approved.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-283. Final inspection and approval or rejection of new work.

Upon completion of all electrical wiring or installations of fixtures or equipment in any building or on any premises for which a permit has been issued under this article, the permittee shall notify the electrical inspector that the work is ready for final inspection, giving the permit number and street address. The electrical inspector shall then cause inspection to be made within

twenty-four (24) hours from time of notification (exclusive of Sundays and legal holidays). If any faulty wiring or equipment is found, the electrician in charge shall be notified of the changes to be made in order that such work shall conform to this article. If such work is found to be correctly installed, replaced or repaired, the electrical inspector shall endorse his approval upon the inspection certificate stating that the wiring and installation work has been installed in accordance with the provisions of this article.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-284. Work not to be covered until approved.

It shall be unlawful for any person to cover or cause to be covered any part of a wiring installation with flooring, lath, wallboard, or other material until the electrical inspector has approved the wiring installation, in part or as a whole, as required by this article.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-285. Connection prior to issuance of certificate of approval.

(a) It shall be unlawful for any person to make connections from a source of electrical energy to any electrical wiring, devices or equipment on an installation for which a permit is required by this article, until a certificate of approval has been issued by the electrical inspector authorizing such connection, and the use of such wiring, devices or equipment.

(b) It shall be unlawful for any person to make connections from a source of electrical energy to any electrical wiring, devices or equipment which has been disconnected by order of the electrical inspector or the use of which has been prohibited for reasons set forth in this article until a certificate of approval has been issued by the inspector authorizing the reconnection and use of such wiring, devices or equipment.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-286. Removal of abandoned wire and unused poles and apparatus.

It shall be the duty of the electrical inspector to cause all abandoned wire, unused poles or electrical apparatus on the outside of the building or in streets or alleys to be removed at the expense of the owners thereof by giving such owners written notice.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-287. Inspections of existing installation—Complaint driven.

Upon receipt of a complaint of suspected violations of this article, the electrical inspector shall inspect/re-inspect electric wiring, electric devices and electric equipment previously installed, or that may be installed in any building of the city and within the scope of this article. If the installation of any such wiring, devices or equipment is found to be defective, dangerous or in an unsafe condition, the electrical inspector shall notify the owner in writing of such condition. The person owning, using or operating the same shall make the necessary repairs or changes required to place such wiring, devices or equipment in a safe condition, within five (5) days or any longer period specified by the electrical inspector. The electrical inspector shall immediately order the disconnection or discontinuance of electrical service to such wiring, device or equipment until the same has been made safe as directed.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-288. Unauthorized alternation of conductors or equipment.

It shall be unlawful for any unauthorized person to, in any manner, change or alter electrical conductors or equipment in or on any building. If, in the course of erecting a building or structure, electrical conductors or equipment have previously been installed in such a position as to interfere with the erection or completion of the structure, notice shall immediately be given the authorized person or firm using the electrical conductors or equipment, and shall be required to accomplish this needed change in accordance with this article.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-289. Service of notices or orders.

If the person to whom any order or notice issued pursuant to the provisions of this article is directed, cannot be found after reasonable search has been made, such order or notice may be served by posting the same in a conspicuous place upon the premises occupied by him or where the defects recited in the order or notice are alleged to exist, or on the premises which may be deemed unsafe or dangerous. Such service shall be equivalent to personal service of such order or notice. Any order to comply with the terms of such order or notice may be sent by mail in a sealed envelope with postage prepaid and directed to the address of the electrician, owner, lessee or occupant of the premises where the defects recited in the order are alleged to exist, and shall be equivalent to personal service of such order.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-290. Modification or waiver.

The electrical regulations of this article may be modified or waived in writing by the chief building official pursuant to section 90-4 of the electrical code, as amended, when such modification or waiver is reasonable and does not differ from the intent of this article and does not create an injustice. In all cases such waiver shall be obtained from the chief building official prior to starting the work, and a copy of the waiver shall be filed in the building inspections department office. A denial of such a waiver may be appealed to the building standards commission.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-291. Liability of city and owner of property for damages.

The regulations of this article shall not be construed to relieve from or lessen the responsibility or liability of any person owning, operating or installing electrical conductors, devices, appliances, fixtures, apparatus, motors, or equipment for damages to persons or buildings caused by any defect therein by reason of the inspection authorized in this division or the certificate of approved inspection issued by the electrical inspection section as provided in this division. The city shall not be held liable for any damages by reason of the enforcement of this article.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-292. Liability of electrical inspectors.

Where action is taken by the electrical inspectors to enforce the provisions of this article, such acts shall be done in the name of and on behalf of the city, and the inspectors, in so acting for the city, shall not render themselves personally liable for any damage which may accrue to person or property as a result of any act committed in the discharge of their duties.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Secs. 6-293—6-300. Reserved.

DIVISION 3. APPLICATION

Sec. 6-301. Compliance generally.

(a) The provisions of this article shall apply to all installations of and work done on electrical conductors, fittings, devices, motors, controls, appliances, fixtures, electronic devices, signs and gaseous tubing, within or on public and private buildings and premises, with exceptions as provided in this article.

(b) All installations of electrical conductors or equipment and all existing installations which are altered shall conform to the requirements for a sufficient and safe electrical structure and system under this article.

(c) Repair and maintenance work shall be such that if any electrical conductor or equipment is removed and later replaced, the same shall be replaced in accordance with the provision of this article
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-302. Radio and television transmitting equipment.

The provisions of this article shall apply to electrical equipment used for supplying electrical power for radio transmission in amateur radio transmitting stations and shall apply to all electrical equipment used for power supply to radio and television transmitting equipment, but shall not apply to other electrical equipment used for radio transmission.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-303. City, county and school districts departments and buildings.

The various departments and buildings of the city, the county, and of the Plano Independent School District shall be subject to the provisions of this article, but shall be exempt from the requirements of fees.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-304. Low voltage conductors and equipment.

This article shall not apply to low voltage, electrical conductors or equipment when served from a source of supply which is limited by design or construction, other than fuses, so that the voltage shall never exceed fifty (50) volts, and so that current in excess of ten (10) amperes on short circuit would not be possible.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Secs. 6-305—6-317. Reserved.

DIVISION 4. ELECTRICAL INSPECTOR

Sec. 6-318. Powers generally.

The electrical inspector shall have the following powers:

(1) To enforce the provisions of this article and issue citation to any person who violates any of such provisions.

(2) To enter any house by due process of law, if necessary, during reasonable hours, to examine any electrical wiring or installation of electrical wiring, fixtures or equipment therein, in the performance of his official duties.

(3) To order the electric disconnection of service where improper or defective wiring exists or where electrical construction or equipment has been installed without a permit as required in this article.

(4) To order compliance with provisions of this article where a change of occupancy occurs in a building which requires changes or alterations to existing wiring.

(5) To disconnect electrical service or services in cases of emergency where necessary, for safety of persons or property or where electrical equipment may interfere with the work of the fire department.

(6) To attach to electrical equipment or electrical meters any official notice or seal which might be necessary to prevent the use of electricity. It shall be unlawful for any person to use any such seal or break, change, destroy, tear, mutilate, cover or otherwise deface or injure any such notice or seal posted by an electrical inspector.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-319. Special rulings.

If a special ruling by the chief building official, or the official's designee, is necessary to govern electrical construction of some particular occupancy or building not covered by this chapter or by the National Electrical Code, as approved by the National Fire Protection Association and adopted in this article, whereby all wiring for similar types of occupancy or building will be changed in the future, a copy of such ruling shall be filed in the office of the chief building official and such special ruling shall be approved by the board before it becomes effective.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-320. Conflicts of interest.

It shall be unlawful for city electrical inspectors to engage in the business of the sale, installation or maintenance of electrical conductors, devices, appliances, fixtures, or other electrical equipment, either directly or indirectly, and they shall have no financial interest in any concern engaged in such business at any time while in the employ of the city as an electrical inspector without prior approval by the department head.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Secs. 6-321—6-326. Reserved.

DIVISION 5. REGISTRATION (LICENSING) OF ELECTRICIANS

Sec. 6-327. Required.

(a) It shall be unlawful for any person to engage in the business of installing, maintaining, altering or repairing any wiring, fixtures, or equipment used for conducting electricity for which a permit is required by this article, or for any person to in any manner undertake to execute such work, unless such person is licensed in accord with the Texas Department of Licensing and Regulation (TDLR) and has a current certificate of registration per section 6-328.

(b) Only persons who are employed by a registered electrical contractor or a registered electrical sign contractor with the appropriate license category may perform electrical work under the supervision of the master electrician, or master sign electrician, whichever is applicable.

(c) Persons who are not licensed electricians may carry out the following classes of work:

(1) The replacement of lamps, fuses and connection of portable devices to suitable receptacles, which have been permanently installed.

(2) The installation, alteration or repairing of any wiring, devices or equipment for the operation of a signal or the transmission of intelligence, where such wiring, devices, appliances, or equipment are operated at a voltage not exceeding fifty (50) volts between conductors and do not include generating equipment.

(3) The installation, alteration or repair of electrical wiring, devices, appliances and equipment by or for an electrical public service corporation operating under a franchise from the city when for the use of such corporation in the generation, transmission, distribution or metering of electrical energy or for the use of such a

corporation in the operation of street railways, signals or transmission of intelligence as specified in section 6-302.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-328. Classifications.

There shall be two (2) classes of local electrical registration as follows:

(1) Electrical contractor registration.

(2) Electrical sign contractor registration.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-329. Application.

(a) *Generally*. To secure a registration, as a qualified and competent electrician in either of the classes set out in this division, an application shall be made in writing and addressed to the building inspections department. The application shall show the applicant's name and address, and such other information as may be prescribed by the building inspections department and shall be made out on forms available in the office of the electrical inspector.

(b) *Electrical contractor*. An applicant for a registration as an electrical contractor shall file with the application an affidavit setting forth the name of the person who is the owner of the business, his address and that of the place of business; or if the business is a firm, partnership or corporation, the names of officers who own or operate the business and their addresses, the address of the business, and the name and address of the person who shall be responsible for the conduct and in charge of the business for all work done under this article. The applicant shall further state the method of supervision of work to be contracted by the firm and the name of the registered master electrician who is legally proficient as specified in this article, and shall be responsible for the actual installation, repair and/or maintenance of the electrical conductors and equipment which is to be carried on by the person, firm or corporation.

(c) *Electrical sign contractor*. An applicant for a registration as an electrical sign contractor shall file with the application an affidavit setting forth the name of the person who is the owner of the business, his address and that of the place of business; or if the business is a firm, partnership or corporation, the names of officers who own or operate the business and their addresses, the address of the business, and the name and address of the person who shall be responsible for the conduct and in charge of the business for all work done under this article. The applicant shall further state the method of supervision of work to be contracted by the firm and the name of the registered master sign electrician who is legally proficient as specified in this article, and shall be responsible for the actual installation, repair and/or maintenance of the electrical conductors and equipment which is to be carried on by the person, firm or corporation.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Secs. 6-330, 6-331. Reserved.

Sec. 6-332. Expiration and renewal of certificates.

City registration issued under this division shall expire annually on the date of the original registration. No permits or inspections will be issued or completed for a contractor whose registration has expired.

(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-333. Reserved.

Sec. 6-334. Registration not transferable.

Registration issued under this division shall not be transferable. It shall be unlawful for any person to lend, rent or transfer his registration

or any rights thereunder to any other person, or for any person to make use of any such rights which are not actually his own.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-335. Reserved.

Sec. 6-336. Altering registration.

It shall be unlawful for any person other than the electrical inspector at the direction of the building inspections department to alter or amend in any manner any registration issued under this division.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-337. Cards to be carried on person and exhibited upon request.

Every holder of a license issued by the Texas Department of Licensing and Regulation (TDLR) shall carry the license on their person at all times while doing electrical work and shall produce and exhibit it when requested by an electrical inspector or proper official of the city.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-338. False representations as to registration.

It shall be unlawful for any person to falsely represent themselves as a registered electrician of any class set forth in this division or to use the words "electrical contractor," "electrical sign contractor", or words of similar import or meaning on signs, cards, stationery, or by any other manner whatsoever, unless such person is properly registered within the meaning of the words used as provided in this article.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-339. Record of registration.

The building inspections department shall keep a record of the name and place of business of all persons to whom registration has been issued under this division, provided that the department shall not be responsible for the record of any person whose registration has not been renewed or has lapsed for a period in excess of twelve (12) months.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-340. License not transferable.

It shall be unlawful for any licensed master electrician, or master sign electrician to allow their license to be used by another electrician to permit any job of electrical wiring in the city.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-341. Suspension or revocation of registration.

(a) The chief building official, or the official's designee, shall have the power to temporarily suspend the registration of any electrical contractor, or electrical sign contractor who:

(1) Obtains a certificate by fraud or deceit;

(2) Takes out electrical permits in the name of some person, firm, or corporation authorized by law to do electrical work and thereafter permits an unauthorized person to do the work;

(3) Engages in any gross negligence, incompetence, or misconduct in the performance of electrical work within the jurisdiction of the city;

(4) Fails to obtain a permit for electrical work that is performed within the jurisdiction of the city; or

(5) Fails to obtain all necessary inspection approval required to complete the work as described in the permit.

(b) The building inspections department shall inform the board in writing of any temporary suspensions and the basis thereof within two (2) business days of issuing the temporary suspension. A hearing will be scheduled before the board not later than ten (10) business days from the date the temporary suspension was issued. The alleged violator shall be notified in writing via certified mail of the date, time and location of the hearing. The alleged violator may appear in person or thru counsel or both, at the time and place named in the notice and make defense to the same.

(c) The board shall have the power, through its chairman or secretary to administer oaths and to compel the attendance of witnesses before it by subpoena issued over the signature of the secretary of the board. The city attorney shall provide counsel for the board.

(d) If the accused admits liability or if upon a hearing the board, by vote of five (5) or more of its members, shall find them to be true, it shall enter a finding suspending or revoking the registration of such electrical contractor or electrical sign contractor. The board shall render a decision within forty-eight (48) hours of the hearing.

(e) The board shall, in reciting its decision after a hearing under this section, make provisions for reinstatement. Such reinstatement provisions shall be filed as a part of the record and a copy shall be made and given or mailed within twenty-four (24) hours to the electrical contractor or electrical sign contractor. Once the requirements have been fulfilled the electrical contractor or electrical sign contractor may notify the chief building official in writing of compliance. If the chief building official determines that all requirements have been fulfilled, the registration shall be reinstated. If the chief building official determines that all requirements have not been fulfilled, the registration shall not be reinstated. Failure to reinstate can be appealed to the board.

(f) The building inspections department shall inform the board in writing of any failure to reinstate within two (2) business days of issuing the denial. A hearing will be scheduled before the board not later than ten (10) business days from the date of the denial of reinstatement. The violator shall be notified in writing via certified mail of the date, time and location of the hearing. The violator may appear in person or by counsel or both, at the time and place named in the notice and make defense to the same.

(g) The board shall render a decision not later than forty-eight (48) hours after a hearing and a copy shall be made and given to the electrical contractor or electrical sign contractor within twenty-four (24) hours of the rendering of the decision.

(h) An electrical contractor or electrical sign contractor adversely affected by a decision of the board shall have the right to appeal the decision to the district court.

(i) It shall be unlawful for any person whose rights under a registration have been suspended or revoked to engage in or do electrical work for which this article requires a permit.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-342. Termination of registration.

Each registration, when issued under this division, shall be issued to a person, firm or corporation to be known as the holder of the registration, and should such firm or corporation dissolve or surrender its charter; such registration shall become null and void. No refund shall ever be made for the un-expired portion of the registration.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Secs. 6-343—6-350. Reserved.

DIVISION 6. WORK PERMITS

Sec. 6-351. Required.

(a) It shall be unlawful for any person to install or cause to be installed, or to permit any person to install, any electrical wiring, fixtures

or equipment, or to make any alterations, additions, changes or repairs, within the scope of this article, without first having procured a permit therefore issued by the electrical inspector. One (1) permit shall be allowed for each building for which rough work for electrical conductors or electrical equipment is installed.

(b) Notwithstanding the provisions of subsection (a), no permit shall be required for the making of a minor repair or for maintenance work, the replacement of lamps, or the connection of portable electrical equipment to suitable permanently installed receptacles. No permit shall be required of an appropriately registered person for the replacing of a refrigeration motor by another motor of the same horsepower and ampere rating, solenoid valves, low pressure controls, or other controls that are a part of the refrigeration system when the electrical supply to same is or has been properly installed by a registered electrician.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-352. Application.

Application for a permit required by this division shall be made in writing upon forms provided by the building inspections department. With such application there shall be filed, when requested by the electrical inspector, a diagram or plan showing clearly the character and kind of wiring or installation of fixtures or equipment to be done. The plan or diagram shall show the manner in which the electrical installation is to be made, or the character of any repairs to any existing electric installation. Such application shall include the following information; street and house number, name of addition where the work is to be done, name of the owner, kind of building, number of stories in the building, and a list of electrical fixtures and appliances to be installed.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-353. Fee.

Prior to issuance of a permit required by this division, the applicant therefore shall pay a permit fee in accordance with the schedule as adopted by the city council.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-354. To whom issued.

Permits may be issued to registered electrical contractors or electrical sign contractors qualified to secure permits as set forth in this article, or their duly authorized agents, and to owners to personally perform repair, maintenance or electrical construction work upon premises owned by them. Qualified registered electricians shall certify their duly authorized agents to the electrical inspector in the form of an affidavit stating that such registered electrician assumes all and full responsibility for any permit taken out or applied for by such agents. The certification shall be kept in the files of the building inspections department.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-355. Issuance or refusal.

When the plans examiner finds the application for a permit under this division to be correct and the diagram or plan and specifications, when requested are approved, and all fees have been paid, the permit will be issued. Upon receipt of such permit, the permittee may start or cause to start the proposed job and make the installation described, in the application, requesting inspection by the city inspectors in the proper sequence as the work progresses. If the plans relating to electrical wiring or installation of fixtures or equipment and the permit application are found to be incorrect or faulty, they shall be disapproved and the permit refused, and the electrical inspector shall notify the applicant,

listing the corrections necessary to comply with this article and rules and regulations of the inspection section.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-356. Permits for part jobs.

When one (1) electrical contractor completes the rough work, in whole or in part, on any electrical wiring or installation of fixtures or equipment and a second electrical contractor is called upon to complete the work, regular fees prescribed by this division shall be paid for the work to be done. Each electrical contractor shall be held responsible only for the work installed by the contractor. Before the second electrical contractor is issued a permit for the completion of electrical wiring or installation of fixtures or equipment, the electrical inspector shall first notify the electrician holding the original or first permit, if the electrician can be found, that the second permit is to be issued. The issuance of the second permit shall cancel the first permit and no refund of fees shall be made.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Sec. 6-357. Revocation of permit.

The chief building official shall have the right to revoke a permit issued under this division if there has been misrepresentation of facts or any violation of the provisions of this article.
(Ord. No. 2014-11-15, § II, 11-24-14; Ord. No. 2018-11-13, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-14, § II, 1-24-22; Ord. No. 2025-6-13, § II, 6-9-25)

Secs. 6-358—6-435. Reserved.

ARTICLE X. SWIMMING POOLS*

DIVISION 1. GENERALLY

Sec. 6-436. Definitions.

Barrier is a fence, wall, building wall or combination thereof that completely surrounds the swimming pool and obstructs access to the swimming pool.

Grade is the underlying surface, such as earth or a walking surface.

Residential swimming pool is a pool that is located on private property under control of the property owner or lessee, the use of which is limited to swimming, diving and/or recreational bathing by the members of the owner's or lessee's family and or their invited guests.

Spa is a hydro massage pool or tub for recreational or therapeutic use, not located in a health-care facility designed for immersion of users and usually having a filter, heater and

*__Editor's note—__Ord. No. 2006-9-26, § I, adopted Sept. 25, 2006 repealed Art. X, divs. 1, 2, in its entirety. Section 2 of said ordinance provided for a new Art. X to read as herein set out. Formerly, said article pertained to similar subject matter as enacted by Ord. No. 2000-8-35, § III, adopted Aug. 28, 2000; as amended. See the Code Comparative Table for a detailed analysis of inclusion.

Cross reference—Enclosures for swimming pools, § 6-187.

State law reference—Sanitation and health regulations for swimming pools and bath houses, Vernon's Ann. Civ. St., art. 4477-1, § 15.

motor-driven blower. The spa is intended for recreational bathing and contains water over twenty-four (24) inches deep

Swimming pool is any structure intended for swimming or recreational bathing that contains water over twenty-four (24) inches deep. This includes in-ground, aboveground, and on-ground swimming pools, and fixed-in-place wading pools.

(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-437. Residential and private swimming pools.

(a) Permit: Application for permit shall be made at the building inspection department.

(b) Submission of plans and specifications: No person shall begin construction of a private swimming pool or shall substantially alter or reconstruct any private swimming pool without first having submitted plans and specifications to the building inspection department for review and approval. All plans and specifications shall be submitted with two (2) copies as required. No permit to construct, alter, or renovate shall be issued until approval is granted by the building inspection department. All drawings submitted shall be neatly and plainly executed and must be legible.

(c) The application for a permit to construct or remodel a private swimming pool shall include normal plans and specifications together with supporting data on plans as may be required for the proper review of plans.

(d) The swimming pool and facilities shall be built in accordance with the plans as approved unless approval of changes has been given by the building inspections department.

(e) Any person desiring a permit required by this article shall refer to the fee schedule.

(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-438. Inspections.

The building inspection department is authorized to conduct inspections, to insure compliance with all provisions of this article and any other applicable laws and shall have right of entry, at any reasonable hour, to the swimming pool for this purpose.

(1) *Required inspections.*

a. Reinforcing steel and ground inspection.

b. Backwash to sanitary sewer through deep seal "P" trap inspection.

c. Gas line to pool heater inspection.

d. Decksteel and ground inspection.

e. Preplaster inspection and permanent fence inspection.

f. Pool final inspections.

(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-439. Minimum standards for pools.

(a) *Structural design.*

(1) In ground swimming pools shall be designed for the hydrostatic and soil forces external to the pool.

(2) The depth of the swimming pool shall maintain a ratio of one (1) unit vertical in one (1) unit horizontal from the nearest foundation up to a maximum depth of five (5) feet.

Exception: The building official may approve alternate designs prepared and sealed by a professional engineer.

(3) Sand or earth bottoms shall not be permitted as a finish for interior surfaces in a swimming pool.

(4) The pool shell and piping shall be so designed and constructed as to be winterized and protected from damage from freezing. Pool piping placed below ground shall have a minimum of six (6) inches of ground cover.

(5) Pool shell reinforcing steel shall be a minimum of #3 bars on twelve (12) inch centers with a minimum of twelve (12) inch overlap.

(b) *Dimensional design.*

(1) No limits are specified for shape of swimming pools except that consideration shall

be given to shape from the standpoint of safety and the recirculation of the swimming pool water.

(2) Water depths at the shallow end of the swimming area shall be three (3) feet minimum and four (4) feet maximum, except for special purpose pools. More shallow depths may be used in the non-swimming area.

(3) Walls in the shallow portion of the pool area shall be vertical from the water line for a minimum of two (2) feet three (3) inches from which point a tangent radius or vertical section can be used to join the wall section to the floor.

(4) The slope of the floor from the shallow end wall towards the deep end shall not exceed one (1) foot in seven (7) feet to the point of the first slope change.

(5) The point of the first slope change shall be defined as the point at which the floor slope exceeds one (1) foot in seven (7) [feet], and is at least six (6) feet from the shallow end wall.

(6) The slope of the floor from the point of first slope change to water depth of five (5) feet six (6) inches shall not exceed one (1) foot on the shallow side of the point of first slope change.

(7) In water depths over five (5) feet six (6) inches the slope of the floor shall not exceed one (1) foot in one (1) foot.

(8) If the point of the first slope change from the shallow end to the deep end occurs in water depths less than four (4) feet six (6) inches a permanently attached safety line, supported by buoys, shall be affixed to the sidewalls at a point at least one (1) foot on the shallow side of the point of first slope change.

(9) All slopes shall be uniform.

(10) Pools on which diving equipment is prohibited shall not be limited in width, length, or depth of water, except as provided in Section III-B.

(11) Pools on which diving equipment is installed shall comply with Section X of this Code.

(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-440. Inlets and outlets.

(a) *Anti-vortex covers:* Suction outlets other then skimmers for new pools and spas shall be provided with anti-vortex covers or grates that have been tested by a nationally recognized testing laboratory and comply with ASME/ANSI A112.19.8 MR 96, The installation of the anti-vortex covers or grates shall be according to manufactures specifications.

(b) All pools, except liner pools, shall be provided with an outlet at the deepest point for recirculating and emptying the pool.

(c) In pools with deep water at or near one (1) end, multiple outlets shall be provided where the width of the pool is more than thirty (30) feet. In such cases, outlets shall be spaced not more than thirty (30) feet apart, nor more than fifteen (15) feet from sidewalls.

(d) No direct connections to a sewer shall be permitted, and all drains from the pool to sewers shall be broken at a point where any sewage, which may break up from the sewer, will overflow to waste instead of reaching the pool.

(e) Adjustable and/or directional inlets for recirculating water shall be located to produce uniform circulation of water. Where water from the public system is added to the pool, admitting water to the pool by means of an air gap connection or vacuum breaker shall eliminate cross-connections between the public water system and the swimming pool water.

(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-441. Skimmers.

(a) Skimmers shall be installed on private swimming pools. At least one (1) skimming device shall be provided for each seven hundred fifty (750) square feet of surface area or fraction thereof. Where two (2) or more skimmers are required, they shall be so located as to minimize interference with each other and to insure proper skimming of the pool surface. Skimming devices shall

be built into the pool wall, shall develop sufficient velocity on the pool surface to induce floating oils and waste into the skimmer from the pool area, and shall meet the following general specifications:

(1) The piping and other pertinent components of skimmers shall be designed for a total capacity of at least eighty (80) percent of the required filter flow of the recirculation systems and shall have a flow-through rate of not less than twenty-seven (27) gallons per minute, three and seventy-five one hundredths ($3^{75}/_{100}$) gallons per minute per lineal inch of weir.

(2) The skimmer weir shall be automatically adjustable and shall operate freely with continuous actions to variations in water level over a range of at least four (4) inches. The weir shall operate at all flow variations described in subsection (1) of this section. The weir shall be of such buoyancy and design so as to develop an effective velocity.

(3) An easily removable and cleanable basket or screen through which all overflow water must pass shall be provided to trap large solids.

(4) The skimmer shall be of sturdy, corrosion-resistant materials.

(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-442. Sewer and waste water disposal.

(a) Drainage from pools: Drainage water from private pools into a sanitary sewer or separation tank. Maximum size drain to be connected to sanitary sewer shall not exceed three (3) inches in diameter. In no case shall water from private pools be pumped upon public property, as in alleys or streets.

(b) There shall be no direct physical connection between the sewer system and any drain from the swimming pool or recirculation system. Any pool or gutter drain or overflow from the recirculation system when discharged to the sewer system, shall connect through a suitable air gap so as to preclude possibility of backup of sewage or waste water into the swimming pool piping system.

(c) Deck drains: If used, deck drains shall not connect to sanitary sewer. The drains shall be designed to carry water to streets or alleys and shall not cause water to flow onto adjacent property.

(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-443. Recirculation system.

(a) A recirculation system, consisting of pumps, piping, filters, and other accessory equipment shall be provided which will clarify the pool volume of water with a turnover rate not exceeding twelve (12) hours.

(b) All piping shall be designed to reduce friction losses to a minimum and to carry the required quantity of water at a maximum velocity not to exceed ten (10) feet per second. Piping shall be of non-toxic material, resistant to corrosion, and able to withstand operating pressures.

(c) The recirculation system shall include a strainer to prevent hair, lint, and etc. from reaching the pump and filters. Strainers shall be corrosion-resistant with openings not more than three-sixteenths ($^3/_{16}$) of an inch in size, providing a free flow area at least four (4) times the area of pump suction line and shall be readily accessible for frequent cleaning.

(d) If vacuum cleaning is provided, it shall be an integral part of the recirculation system with sufficient connections located in the walls of the pool or surface skimmer.

(e) Pumps and motors shall be of adequate capacity to provide the required number of turnovers of pool water as specified in subsection (a) of this section, and whenever possible shall be so located as to eliminate the need for priming. If the pump or suction piping is located above the overflow level of the pool, the pump shall be self-priming. The pump or pumps shall be capable of providing flow adequate for the backwashing of filters.

(f) Heaters: Gas fired swimming pool heaters and swimming pool boilers must comply with all applicable American Standard Approval Requirements, including A.G.A. Oil burning equipment which must be approved by U.L. or other nationally recognized testing agency. All such equipment shall carry the corresponding seal for approval by the appropriate agencies.
(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-444. Sand type filters.

The following requirements are equally applicable to either gravity or pressure filters.

(1) Pressure sand filters shall be designed for a maximum filter rate of five (5) gallons per minute per square foot of bed area at time of maximum head loss with sufficient area to meet the design rate of flow required by the prescribed turnover.

(2) The under drain system shall be of corrosion-resistant and enduring material, so designed and of such material that the orifices or other openings will maintain approximately constant area. It shall be designed to provide even collection or distribution of the flow during filtration and backwashing.

(3) The filter system shall be provided with influent and effluent pressure gauges, backwash sight glass on the waste discharge line, and air relief valves at or near the high point of the filter.

(4) The filter system shall be designed with necessary valves and piping to permit:

a. Filtering of pool;

b. Individual backwashing of filters to waste at a rate of not less than nine (9) gallons per minute per square foot of filter area;

c. Complete drainage of all parts of the system;

d. The overall layout shall permit necessary maintenance, operation, and inspection in a convenient manner.

(5) Each filter in excess of 7.07 square feet of sand surface area shall be provided with an access opening of not less than a standard eleven (11) inch by fifteen (15) inch manhole and cover.

(6) The tank and its integral parts shall be constructed of substantial material capable of withstanding continuous anticipated usage and shall be designed for a pressure safety factor of four (4) based on the maximum shut off head of the pump. This shut off head for design purposes shall in no case be considered less than fifty (50) pound per square inch.

(7) Cartridge filters: Cartridge filters may be used instead of sand filters. The cartridge filter is not required to backwash to the sanitary sewer. All cartridge filters shall be installed per their listing and manufacturer's installation instructions.
(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-445. Ladders, recessed treads, and stairs.

(a) Recessed steps or ladders may be provided at the deep portion of the pool. Walk-in or recessed steps with grab rail or ladders may be provided in the pool and shall be of non-slip design and of corrosion-resistant materials. A minimum of one (1) ladder or recessed steps with grab rail or walk-in steps (stairway) shall be provided except where the diving area has a width in excess of thirty (30) feet at any point, and then there shall be a minimum of two (2) or a combination of the above. Handrails are recommended for walk-in steps.

(b) Supports, platforms, and steps for diving boards shall be of substantial construction and of sufficient structural strength to safely carry the maximum anticipated loads. Steps shall be of corrosion-resistant material, easily cleanable, and of non-slip design.
(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-446. Diving, jump boards, diving areas and slides.

(a) All diving boards, jump boards, diving areas and pool slides shall comply with the requirements as set forth in the 2003 edition of ANSI/

NSPI-5, The American National Standards for Residential In ground Swimming Pools Articles 5.8, 5.9, 5.10 and 5.11

(b) At least ten (10) feet of free and unobstructed headroom must be provided above diving boards.
(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-447. National Sanitation Foundation.

(a) With the approval and support of the National Swimming Pool Institute, and with the acceptance by the Joint Committee on Swimming Pools of the American Public Health Association, and in cooperation with the United States Public Health Service, the National Sanitation Foundation (N.S.F.) has prepared standards relating to various items of swimming pool equipment. Under Section 1.03 of the N.S.F. Standards, there is a clause entitled, "Review and Revision," which allows a "Seal of Approval" to be issued, with variations to these N.S.F. Standards, except for chemicals or chemical treatment, based on performance. Therefore, these variations shall be acceptable under this ordinance, and such items bearing N.S.F. "Seal of Approval" and properly listed shall be duly approved in view of this acceptable procedure, and other standards equal or equivalent to such N.S.F. Standards will be acceptable.
(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-448. Swimming pool enclosure.

(a) Swimming pools shall be enclosed with a barrier that complies with the latest edition of the building code as adopted by the building inspections department.
(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-449. Pool location on property.

(a) The pool shall be a minimum of three (3) feet from the property line.

(b) The pool and pool equipment shall not be located over any easements.
(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-450. Lighting, electrical, and plumbing requirements.

(a) Lighting and electrical requirements shall comply with Article 680 of the National Electrical Code.

(b) Plumbing shall comply with the International Plumbing Code.
(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-451. Appeals.

In order to determine the suitability of alternate materials and methods of construction and to provide for reasonable interpretations of this article, the building standards commission is hereby authorized to hear all appeals from decisions of the building official as may be made under the provisions of this article. The building standards commission shall render all decisions and findings, in writing, to the building official with a duplicate copy to the applicant.
(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-452. Reserved.

DIVISION 2. PUBLIC SWIMMING POOLS, SPAS, AND INTERACTIVE WATER FEATURES AND FOUNTAINS

Sec. 6-453. Standards for public swimming pools, spas, and interactive water features and fountains.

(a) All public swimming pools, spas, and interactive water features and fountains, hereinafter individually referred to as "facility," shall comply with the Texas Department of State Health Services Standards set forth in Texas Administrative Code, Title 25, Health Services, Part I, Department of State Health Services, Chapter 265, General Sanitation, Subchapter L, Standards for Public Pools and Spas and Subchapter M, Interactive Water Features and Fountains.

(b) Local authority may adopt standards that vary from the Texas Department of State Health Services Standards for Public Pools & Spas. The

following standards are those established by the City of Plano in order to further protect the public health and prevent disease and injury.

(1) *Water quality for new and existing pools & spas.*

a. Free chlorine levels shall be maintained from two (2) ppm to five (5) ppm.

b. pH levels shall be maintained from 7.2 to 7.8.

(2) *Specific safety features for new and existing pools & spas.*

a. Every pool & spa shall have a telephone or some other approved device for summoning aid in emergencies within one hundred fifty (150) feet of the pool or spa water. A sign in plain view of the pool or spa shall state in letters at least four (4) inches high: "In case of emergency, call 911 (or other number or action)"

(3) *Specific operation features for new and existing pools & spas.*

a. Exposed piping at new and existing pools shall be labeled to adequately identify the piping function and direction of flow.

b. Operators of Class C and D pools and spas shall obtain and maintain certification in either of the following courses or their equivalent:

1. Certified Aquatic Facility Operator (A.F.O.)

2. Certified Pool-Spa Operator (C.P.O.)

3. Pool Operator On Location (P.O.O.L.)

(Ord. No. 2006-9-26, § II, 9-25-06; Ord. No. 2018-9-6, § III, 9-10-18; Ord. No. 2019-5-12, § I, 5-28-19)

Sec. 6-454. Issuance of an operating health permit.

(a) No person shall operate a facility without first obtaining a valid health permit from the City of Plano Environmental Health and Sustainability Department. Each separate facility requires a separate permit. The permit shall be valid for one (1) year unless otherwise revoked as described in this article. Permit fees shall be reviewed, set, and adopted by resolution of the city council on a regular basis. A re-inspection fee will be charged to reopen facilities closed for non-compliance.

(b) Applications for a permit to operate a facility shall be made to the City of Plano Environmental Health and Sustainability Department on application forms prescribed and provided by the City of Plano. The applicant (person), corporation, or the person in charge of the subject premises (the manager) to whom the permit was issued shall be responsible for sanitation, safety, and proper maintenance of the facility and all physical and mechanical equipment and records.

(c) The City of Plano Environmental Health and Sustainability Department shall require the applicant or their designee for an operators permit provide proof of knowledge of these standards by taking and satisfactorily passing a written examination or by attendance at a training course on swimming pool operation, which is approved by the City of Plano Environmental Health and Sustainability Department.
(Ord. No. 2006-9-26, § II, 9-25-06; Ord. No. 2008-11-15, § II, 11-10-08; Ord. No. 2018-9-6, § III, 9-10-18; Ord. No. 2019-5-12, § I, 5-28-19)

Sec. 6-455. Revocation or suspension of operating permits.

(a) The City of Plano Environmental Health and Sustainability Department may deny, revoke, or suspend any operating permit for the failure of the applicant to comply with the provisions of these standards, or in cases where the operating permit has been obtained through non-disclosure, misrepresentation, or misstatement of a material fact.

(b) All notices or orders issued shall be either delivered personally or sent by certified mail to the person or corporation to whom the permit was issued or to the person in charge of the subject premises (manager). Except in cases of emergency or urgent public necessity, such notice

shall be delivered or mailed at least fifteen (15) days before any operating permit is revoked or suspended and shall state the reason(s) for such proposed revocation or suspension and notify that person of a right to appeal under section 6-456.

(c) An operating permit which has been revoked or suspended may be reissued upon proper application and upon presentation of evidence that the deficiencies and/or irregularities which caused the revocation or suspension, have been corrected.

(d) If the City of Plano Environmental Health and Sustainability Department determines that the operation or maintenance of any facility is such as to constitute an imminent hazard to the health and safety of the public, the operating permit shall be suspended immediately and the facility shall be closed for use and shall remain closed until the necessary remedial action has been completed.
(Ord. No. 2006-9-26, § II, 9-25-06; Ord. No. 2018-9-6, § III, 9-10-18; Ord. No. 2019-5-12, § I, 5-28-19)

Sec. 6-456. Appeals.

Any appeal from a final order or notice issued in connection with the requirements of this ordinance must be in writing and received by the director of environmental health and sustainability within fifteen (15) days after receipt of said order or notice. Final appeal shall be to the city manager through the executive director's office.
(Ord. No. 2006-9-26, § II, 9-25-06; Ord. No. 2018-9-6, § III, 9-10-18)

Sec. 6-457. Conflict of regulations.

In any cases where a provision of these regulations are found to be in conflict with a provision of any other ordinance or other regulation of the City of Plano existing on the effective date of these regulations, the provision which establishes the higher standard for the promotion and protection of the health and safety of the people shall prevail. In any case where a provision of these regulations is found to be in conflict with a provision of any other ordinance or regulation of the City of Plano existing on effective date of these regulations which establishes a lower standard for the promotion and protection of the health and safety of the people, the provisions of these regulations shall be deemed to prevail, and such other ordinances or regulations are hereby declared to be repealed to the extent that they may be found in conflict with these regulations.
(Ord. No. 2006-9-26, § II, 9-25-06)

Sec. 6-458. Enforcement; penalty for violations.

(a) It shall be unlawful for any person to violate any of the provisions of the City of Plano Code of Ordinances, division 2, public swimming pools, spas, and interactive water features and fountains regulations. Both the building inspections department and the environmental health and sustainability department shall enforce provisions set forth in division 2. Both the building official and the director of environmental health and sustainability and their designees have the authority to issue citations to persons violating the provisions of division 2. It shall be unlawful for any person to interfere with a building inspection or environmental health and sustainability representative in the performance of his or her duties as prescribed by these regulations.

(b) Any person, firm, company, partnership, corporation, or association violating any provision of this division shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be fined in the sum of not more than two thousand dollars ($2,000.00) for each such violation, and each and every day such violation shall continue shall be deemed to constitute a separate offense.
(Ord. No. 2006-9-26, § II, 9-25-06; Ord. No. 2018-9-6, § III, 9-10-18; Ord. No. 2019-5-12, § I, 5-28-19)

Secs. 6-459—6-465. Reserved.

ARTICLE XI. OUTDOOR LIGHTING*

Sec. 6-466. Definitions.

*__Editor's note—__Ord. No. 2021-11-6, § I, adopted November 22, 2021, repealed the former article XI, §§ 6-466—6-473 and enacted a new article XI as set out herein. The

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Approving authority means City of Plano or its duly authorized deputy, agent or representative.

Candela means the unit of luminous intensity in a given direction.

Class I lighting means lighting used outdoors where color rendition is important, including, but not limited to, in areas for sales, recreation, assembly, eating, repair, advertising displays, billboards, and other signs.

Class II lighting means lighting used outdoors where color rendition is not important, including, but not limited to, illumination for walkways, roadways, equipment yards, parking areas, and outdoor security.

Cutoff fixture means a fixture that provides a shielding of the light emitted.

Diffusing luminaire means a luminaire that scatters light substantially in all directions as contrasted with a directional luminaire which confines its light principally in an angle of less than one hundred eighty (180) degrees.

Floodlight means a luminaire designed to project its light in a well-defined area and is directional in character.

Floodlight beam means the angular spread of light between two (2) orthogonal planes each of which equal ten (10) percent of the maximum candelas within the beam.

Footcandle means the amount of illumination provided by one (1) lumen uniformly distributed on one (1) square foot of surface.

Fixture means the assembly that holds the lamp in a lighting system. It includes the elements designed to give light output control, such as a reflector (mirror) or defractor (lens), the ballast, housing and the attachment parts.

Fluorescent lamp means a usually tubular electric lamp having a coating of fluorescent material on its inner surface and containing mercury vapor whose bombardment by electrons from the cathode provides ultraviolet light which causes the material to emit visible light.

Fully shielded means light fixtures that are constructed so all light rays emitted by the fixture are projected below the horizontal plane passing through the lowest point on the fixture from which light is emitted, nearly one-hundred (100) percent cut-off type, as evidenced by the manufacturers photometric data.

Glare means direct lighting emitted from a luminary that causes reduced vision or temporary blindness.

High pressure sodium (HPS) means a high intensity discharge lamp where radiation is produced from sodium vapor at relatively high partial pressures (one hundred (100) tore). HPS is essentially point source light.

Horizontal plane means a line horizontal to the lowest point on the fixture from which light is emitted.

Illumination means the density of the luminous flux (lumens) incident on a surface. It is the quotient of the luminous flux divided by the area of the surface, expressed in footcandles.

Incandescent lamp means any lamp that produces light by heating a filament through use of an electric current.

Installed means attached or fixed in place, whether or not connected to a power source or any outdoor light fixture.

Lamp means the source of electric light. To be distinguished from the whole assembly, lamp is used to denote the bulb and its housing.

Light emitting diode (LED) means a semiconductor diode that emits light when a voltage is applied to it and that is used especially in electronic devices (as for an indicator light).

---

former article XI pertained to similar subject matter and derived from Ord. No. 85-5-27, adopted May 13, 1985; Ord. No. 2000-4-16, adopted April 24, 2000; Ord. No. 2001-6-7, adopted June 11, 2001; and Ord. No. 2008-4-10, adopted April 14, 2008.

Light nuisance means light that is likely to cause unreasonable discomfort or distress to a reasonable person or to unreasonably interfere with the use or enjoyment of property.

Light source means a device (such as a lamp) which produces visible energy as distinguished from devices or bodies which reflect or transmit light such as a luminaire.

Light trespass means light falling outside the boundary of property for which it was originally intended or needed. Also referred to as spillover light or obtrusive light.

Low pressure sodium (LPS) means a discharge lamp where the light is produced by radiation from sodium vapor at a relatively low partial pressure (about 0.001 tore). LPS is a "tube source" monochromatic light.

Lumen means the quantity of luminous flux intercepted by a surface of one (1) square foot, all points of which are one (1) foot from a uniform source of one (1) candela. A one-candela source provides 12.57 lumens.

Luminaire means a device or fixture containing a light source and means for directing and controlling the distribution of light from the source.

Luminance means the luminous intensity per unit projected area of a given surface viewed from a given direction for purposes of this article expressed in candelas divided by distance squared.

Mercury lamp means a high intensity discharge lamp where light is produced by radiation from mercury vapor.

Metal halide lamp means a high intensity discharge lamp where light is produced by radiation from metal halide vapor.

Neon, krypton or argon discharge tubes means family of artificial light sources that generate light by sending an electric discharge through an ionized gas, a plasma.

Outdoor lighting fixture means an outdoor artificial illumination device, whether permanent or portable, used for illumination outdoors, including, but not limited to, devices used for search, spot, or flood lighting and area lighting for buildings, structures, recreational facilities, parking, landscape, advertising displays, billboards, signs, public and private streets, and walkways.

Partially shielded means shielding so that the lower edge of the shield is at or below the centerline of the light source or lamp so as to minimize light transmission above the horizontal plane, or at least ninety (90) percent of the emitted light projects below the horizontal plane as evidenced by the manufacturer's photometric data.

Person shall mean any individual, corporation, association, firm, partnership or other entity with ownership, care, custody, or control over property.

Photometric means quantitative measurements of light levels and distribution.

Shielding means a physical structure intended to restrict emitted light.

Watt means the standard unit of power in the International System of Units (SI), equivalent to one (1) joule per second and equal to the power in a circuit in which a current of one (1) ampere flows across a potential difference of one (1) volt; 1000 watts is equal to one (1) kilowatt.
(Ord. No. 2021-11-6, § I, 11-22-21)

Sec. 6-467. Applicability.

This article applies to:

(1) Existing and new light installations.

(2) Commercial, industrial, and residential lighting.

(3) Light emanating from public or private properties.

(Ord. No. 2021-11-6, § I, 11-22-21)

Sec. 6-468. Offenses.

(a) It shall be an offense for any person to intentionally, knowingly, or recklessly emit or cause to be emitted a light nuisance:

(1) In a public place; or

(2) On private property that the person has no right to occupy.

(b) It shall be an offense for a person to intentionally, knowingly, or recklessly make, cause to be made, or allow a light nuisance on property owned by them or subject to their care, custody or control.

(c) The issuance of a certificate of occupancy, land occupancy permit, or other permit issued by City of Plano shall not be a defense to prosecution under this article unless otherwise expressly provided in this article.
(Ord. No. 2021-11-6, § I, 11-22-21)

Sec. 6-469. Presumptions.

(a) Light is presumed to be unreasonable and declared a light nuisance if:

(1) The illumination or luminance is in excess of the limitations, or if the luminaire is improperly shielded, as provided in the tables below:

Table 1: Illumination Limits

Zoning Category	*Footcandles*	
	Horizontal	*Vertical*
Single-family and two-family residential districts	0.25	0.25
Multiple-family residential districts	0.5	0.5
Nonresidential districts, streets	3.0	3.0
Light industrial districts	5.0	5.0
(A) The limit of illumination on neighboring property from one (1) establishment shall be based on the zoning category of the neighboring property. (B) Maximum computed or measured footcandles at the neighboring property line shall not exceed the limits found in this table.		

Table 2: Luminance Limits

Zoning Category	*Limit*
Single-family and two-family residential districts	0.02
Multiple-family residential districts	0.05
Nonresidential districts, streets	0.30
Light industrial districts	0.50
(A) The permitted luminance on neighboring property from one (1) establishment shall be calculated based on the zoning of the neighboring property. (B) The luminance as calculated in Section 6-473 (b) shall not exceed the value based on zoning category.	

Table 3: Shielding Requirements

Lamp Type	*Class I Lighting-Color Rendition Important*	*Class II Lighting-Color Rendition Not Important*
Low pressure sodium (LPS)	Fully shielded	Fully shielded
High pressure sodium (HPS)	Fully shielded	Fully shielded
Metal halide	Fully shielded	Fully shielded
Mercury vapor	Prohibited	Prohibited
Fluorescent	Partially or fully shielded	Fully shielded
Incandescent (over 150 watts/fixture)	Partially or fully shielded	Prohibited
Incandescent (under 150 watts/fixture)	Partially or fully shielded	Partially or fully shielded
Any light source 50 watts and under	Unshielded permitted	Unshielded permitted
Low intensity Neon, Krypton or Argon discharge tubes	Unshielded permitted	Unshielded permitted
Light emitting diode (LED)	Fully shielded	Fully shielded
(A) Shielding requirements apply to all outdoor lighting installations as specified in this table.		

(Ord. No. 2021-11-6, § I, 11-22-21)

Sec. 6-470. Affirmative defenses.

(a) It shall be an affirmative defense to prosecution under this article that:

(1) The lighting is installed by a governmental agency for public benefit on public rights-of-way, parks, and public recreation areas;

(2) The lighting is emergency lighting by police, fire, and/or municipal, state, or federal government authorities;

(3) The lighting is temporary holiday lighting on private property;

(4) The lighting is for public or private school outdoor recreational uses, including, but not limited to ball diamonds, playing fields, and tennis courts, if shielded to minimize light and glare from spilling over onto a residential zoned property. To constitute an affirmative defense, the maximum permitted illumination at the residential property line may not exceed two (2) foot-candles;

(5) Illumination at interior property lines on contiguous lots in a multi-tenant, non-residential development exceeds the limitations in subsection 6-469(a)(1) when the approving authority determines it necessary to provide adequate and constant lighting levels of adjoining parking areas, fire lanes and interior access roadways.

(Ord. No. 2021-11-6, § I, 11-22-21)

Sec. 6-471. Exemptions.

(a) *Permanent exemptions.*

(1) Navigation and airport lighting required by the FAA for operation of airplanes are exempt from this article.

(2) Emergency lighting by police, fire and/or other municipal, state or federal government authorities are exempt from this article.

(3) Seasonal decorative street lighting is exempt from this article.

(b) *Temporary exemptions.*

(1) The approving authority may approve temporary exemptions from the requirements of this article provided the duration of the approval is not more than fourteen (14) days from the date of approval. Temporary exemptions may be granted for two (2), two-week periods each calendar year per legal business. A two-week period will commence on the day the exemption is approved. The two (2), two-week periods shall not occur in the same or consecutive months. A legal business shall include any commercial, industrial, or institutional use for which a certificate of occupancy is issued.

(2) Any person may submit a written request, on a form prepared by the city, to the approving authority for a temporary exemption request. The request shall contain the following information:

a. Specific exemption(s) requested.

b. Type/use of outdoor lighting fixture involved.

c. Duration of time requested.

d. Type of lamp and calculated foot-candles.

e. Total wattage of lamp(s).

f. Proposed location of fixtures.

g. Previous temporary exemption requests.

h. Physical side of fixtures and type of shielding to be provided.

i. Such other data or information as may be required by the approving authority.

j. The approving authority shall have five (5) working days from the date of the submission request to act, in writing, on the request.

(3) Requests for renewal of exemptions shall be processed in the same way as the original request. Each renewal shall be valid for not more than fourteen (14) days.

(4) Approval of temporary exemptions will be based on the effect of location and use of outdoor lighting fixtures.

(Ord. No. 2021-11-6, § I, 11-22-21)

Sec. 6-472. Illumination computation.

Illumination at a point may be computed in lieu of measurement. Computation methods shall consist of a generally accepted Illuminating Engineering Society method, using certified photometric data furnished by the fixture manufacturer, lamp manufacturer, photometric laboratory, or other reliable authority satisfactory to the city. Computations shall be based on new, properly seasoned lamps, new and clean fixtures, and at rated voltage and wattage, with ballasts, lenses, shields, diffusers, and other appurtenances in place, and with proper regard taken for mounting height, relative elevation, natural and manmade objects.

(Ord. No. 2021-11-6, § I, 11-22-21)

Sec. 6-473. Luminance calculation.

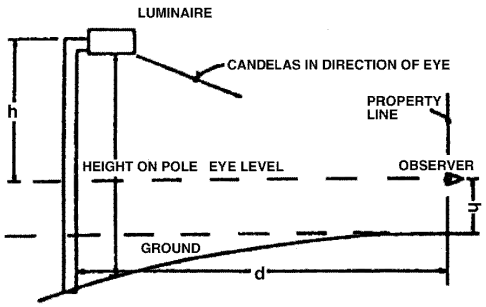
(a) *Calculations generally.* If illumination measurements are not practical and no other means of measuring fixture luminance is immediately available, a computational method as defined in subsection 6-473 (b) for measuring luminance may be used to determine compliance with this article.

(b) *Luminance calculations using luminaire photometric data.* For the purpose of this article, the luminance shall be computed by the formula:

$$L = \frac{I}{(d^2 + h^2)}$$

Where I is the fixture candelas in the direction of the point from which the calculations are to be made, d is the shortest distance in feet measured horizontally from the property line to a point directly under the luminaire, and h is the height of the luminaire above the eye level as explained in figure A below.

Figure A: Factors for Luminance Determination



(Ord. No. 2021-11-6, § I, 11-22-21)

Sec. 6-474. General requirements.

(a) Hours of operation shall be complied with in all installations, except as specified in subsection (h).

(b) Outdoor advertising, displays, and signs not exclusively illuminated internally, may only utilize illuminating devices mounted on the top and pointing downward on the advertising display structure. All such installations shall comply with all other provisions of this article.

(c) Exterior outdoor lights shall be constructed and installed in a manner consistent with this article and shall be located so as not to produce direct illumination across the building property line.

(d) Sky glow external outdoor lights shall be constructed and installed in a manner so as to conform with the requirements in subsection 6-469 (a)(1).

(e) Light trespass from external outdoor lights shall be constructed and installed in a manner so as to conform with requirements of this article.

(f) Luminaires which are directed toward a viewer shall be aimed in such a manner that the viewer's eye, at least five (5) feet above grade at or beyond the property line, shall not be exposed to fixture luminance within the floodlight beam of the luminaire.

(g) Outdoor advertising signs constructed of translucent materials and wholly illuminated from within do not require shielding.

(h) Class I lighting used for illumination of:

(1) Outdoor sales and eating areas, on-site advertising, assembly areas, repair areas and businesses may be operated during the hours that the facility is open to the public.

(2) Off-site advertising displays and billboards or signs may be operated from dusk to 11:00 p.m. only, unless fully shielded and pointing downwards from the horizontal plane.

(3) Recreational and sporting areas may operate from dusk to 11:00 p.m. except to conclude a specific recreational or sporting event, tournament or similar activity which was in progress prior to 11:00 p.m. For facilities owned, leased or otherwise controlled by the city, light usage may be extended to allow activities to begin after 11:00 p.m. with approval of the parks and recreation department. For approval, the activity must be part of a league, season or tournament which has an immediate completion deadline.

(i) Permitted class II lighting may be operated anytime (walkways, roadways, equipment yards, parking areas and outdoor security).

(j) The maximum outdoor initial computed or measured illuminance level on an establishment property shall not exceed twenty-five (25) footcandles at any point, except that lighting under canopies (such as service stations) shall not exceed forty (40) footcandles.

(k) Laser source and strobe lights, in addition to other high intensity light sources for advertising or entertainment, shall not be projected above the horizontal plane, unless a permit is obtained for specific events and timeframes.

(l) Searchlights are prohibited unless required in an emergency as declared by the city.
(Ord. No. 2021-11-6, § I, 11-22-21)

Sec. 6-475. Plan submittal and appeal.

(a) The applicant for any permit required by any provision of the laws of this city in connection with the proposed work involving outdoor lighting fixtures shall submit (as part of the application for a building permit) evidence that the proposed work will comply with this article. In order to determine compliance, the submission shall, at a minimum, contain the following information:

(1) Plans indicating the location on the premises, and the type of illuminating devices, fixtures, lamps, supports, reflectors and other devices;

(2) Description of the illuminating devices, fixtures, lamps, supports, reflectors and other devices may include, but is not limited to, catalog cuts by manufacturers and drawings (including sections where required); and

(3) Photometric data, such as that furnished by manufacturers, or similar data showing the angle of cutoff fixtures or light emissions.

(b) The above required plans, description and data shall be sufficiently complete to enable the plans examiner to readily determine whether the proposed lighting complies with the requirements of this article. If such plans, descriptions and data cannot enable this ready determination, by reason of the nature of configuration of the devices, fixtures or lamps proposed, the applicant shall additionally provide reports of tests submitted a plan review and verified by an engineer in the field.

(c) If any subdivision proposes to have installed street or other common public area outdoor lighting, the site plan shall contain a statement certifying that the applicable provisions of this article, the City of Plano Outdoor Lighting Code, will be adhered to.

(d) Should an applicant wish to change any outdoor light fixture or the type of light after the permit has been issued, the applicant shall submit a change request, together with adequate information to assure compliance this with article,

to the approving authority for approval. No substitution is permitted until the change request is granted by the approving authority.

(e) Appeal of any decision made by the approving authority under this article will be heard by the building standards commission. Commission decisions are final.
(Ord. No. 2021-11-6, § I, 11-22-21)

Sec. 6-476. Enforcement.

The city manager or the manager's designee shall have authority to enforce this article.
(Ord. No. 2021-11-6, § I, 11-22-21)

Sec. 6-477. Penalty.

(a) It shall be an offense to intentionally or knowingly fail to comply with any provision of this article. Any person intentionally or knowingly violating a provision of this article shall be punished by a fine not to exceed two thousand dollars ($2,000.00). Each day a violation occurs shall constitute a separate offense.

(b) *Repeat and habitual offenders.*

(1) If it is shown on the trial of an offense under this article that the defendant has previously been finally convicted of an offense under this article, on conviction the person shall be punished by a fine of not less than five hundred dollars ($500.00).

(2) If it is shown on the trial of an offense under this article that the defendant has previously been finally convicted of two (2) or more offenses under this article, on conviction the person shall be punished by a fine of not less than one thousand dollars ($1,000.00).

(3) This subsection for repeat and habitual offenders applies only to a person finally convicted of a second or subsequent offense within three (3) years of the date on which the most recent preceding offense was committed.
(Ord. No. 2021-11-6, § I, 11-22-21)

Secs. 6-478—6-485. Reserved.

ARTICLE XII. TEMPORARY SIGNS

DIVISION 1. DEFINITIONS

Sec. 6-486. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Banner means a temporary sign made of cloth, canvas, or other light fabric, except for sail banners, which are defined below.

Dilapidated or *deteriorated condition* means:

(1) Where elements of the surface or background have portions of the finished material missing, broken, or otherwise existing such that they are illegible.

(2) Where the structural support or frame members are visibly bent, broken, dented, or torn.

(3) Where the panel is visibly cracked or, in the case of wood and similar products, splintered in such a way as to constitute an unsightly or harmful condition.

(4) Where the sign or its elements are twisted, leaning, or at angles other than those at which it was originally erected (such as may result from being blown or the failure of a structural support).

(5) Where the message or wording can no longer be clearly read.

(6) Where the sign or its elements are not in compliance with the require-

ments of the current Electrical Code and/or the Building Code of the City of Plano.

Public right-of-way means the surface of, and the space above and below a public street, road, highway, freeway, land, path, public way or place, alley, court, boulevard, parkway, drive, or other easement now or hereafter held by or under the control of the city to which the city holds the property rights. The term is synonymous with "street," "public way," and "right-of-way." Private property does not include the area that is between the curb and outside edge of the sidewalk.

Sign means any device conveying either commercial or noncommercial messages or both commercial and noncommercial messages for visual communication that is used for the purpose of bringing the subject thereof to the attention of the public but not including any lawful display of merchandise. The term "sign" shall also mean and include any display of one (1) or more of the following:

(1) Any letter, numeral, figure, emblem, picture, outline, character, spectacle delineation, announcement, trademark, or logo.

(2) Multicolored bands, stripes, patterns, outlines, or delineations displayed for the purpose of commercial identification.

(3) Anything specified above in part or in combination by any means whereby the same are made visible from beyond the boundaries of the lot or parcel of property on which the same are displayed for the purpose of attracting attention outdoors to make anything known.

Sign—A-frame/sandwich board means self-supporting A-shaped sign with two (2) visible sides that is situated on or adjacent to a sidewalk.

Sign—Amenity means any sign advertising options, features, or conveniences offered by a business and installed in a manner which is temporary as defined by this article.

Sign—Development/construction means any onsite temporary sign pertaining to the development of land or construction of buildings and/or the identity of a developer or any related party, for such building or land.

Sign—Freestanding means an onsite sign or three-dimensional representation of a figure or object not attached to any building, supported by uprights, braces or some other approved support, which is capable of withstanding the stress from weight and wind load.

Sign—Garage sale means any sign advertising the sale of personal household goods in a residential zoning district or on the property of a nonprofit organization for which a garage sale permit has been issued.

Sign—Model home means any sign identifying a new home, either furnished or unfurnished, as being a builder's or contractor's model open to the public for inspection.

Sign—Noncommercial means any sign used for a noncommercial purpose.

Sign—Open house means a temporary sign for which the primary purpose is to provide direction to a residential property that is temporarily open to the public for preview.

Sign—Political means any sign relating to a particular candidate for a partisan or nonpartisan office, or to a political proposition or measure.

Sign—Portable means any sign that is not permanently attached to or affixed to the ground, a building, an object, or other fixed structure. This term specifically includes an advertising display affixed to or installed on a vehicle or other mobile unit, such as trailer, wheel, or skid.

Sign—Promotional means any temporary advertising items used to

promote a business. Such items include banners, flags, pennants, streamers, balloons, inflatable signs, and any legal sign allowed by this article.

Sign—Real estate means any onsite temporary sign pertaining to the sale or rental of property and advertising property only for the use for which it is legally zoned.

Sign—Sail banner means a self-supported wing, feather, blade, cone, or rectangular shaped flag mounted on a flexible pole.

Sign—Sandwich board. See Sign—A-frame.

Sign—Special event means signage allowed in conjunction with a special event permit.

Sign—Temporary means any sign used to display information relating to a land use or event of limited duration which is not rigidly and permanently installed in the ground, attached to a building, or as identified in this article.

Sign—Temporary directional means any temporary sign used to direct potential customers to a legal business location within the city limits of Plano.

Sign—Setback means the horizontal distance between a sign and the front or side property line, as measured from that part of the sign, including its extremities and supports nearest to any point on any imaginary vertical plane projecting vertically from the front or side property line.

(Ord. No. 2005-11-14, § 1, 11-14-05; Ord. No. 2006-6-33, § I, 6-26-06; Ord. No. 2012-5-14, § II, 5-29-12)

DIVISION 2. PROHIBITED SIGNS

Sec. 6-487. Prohibited signs.

Except as otherwise expressly allowed by this article, the following signs and conditions are prohibited:

(1) Signs displaying materials determined to be obscene by a court of law or prohibited by law, subject to the appeal and judicial review proceedings provided for in subsection 3.1601.9.f of the Comprehensive Zoning Ordinance.

(2) Signs placed in any location which by reason of their location will obstruct the view of any authorized traffic sign, signal, or other traffic control device by vehicular or pedestrian traffic. No sign shall be erected which, by reason of shape, color, size, design, or position, would be reasonably likely to create confusion with, to be confused as, or to interfere with any traffic signal or device which is authorized by the appropriate state or local government authorities. Further, no sign shall be placed in a location that will obstruct vision of a vehicle operator while entering, exiting, or traveling upon the public right-of-way.

(3) Signs placed so as to prevent or inhibit free ingress to or egress from any door, window, or any exit way required by the Building Code of the City of Plano or by fire department regulations.

(4) Portable signs, including those on vehicles where the intent is to use the vehicle as advertising. This provision does not restrict identification signs on vehicles or other signs attached to vehicles, which are legally licensed and operated upon public streets.

(5) A-frame and sandwich board signs except where allowed in a zoning district.

(6) Signs that are animated by any means not providing constant illumination, except time and temperature units. Signs which rotate or emit audible sound or visible matter. No sign shall be illuminated to such intensity or in such a manner so as to cause a glare or brightness to a degree that it constitutes a hazard or nuisance to vehicular traffic, pedestrians, or adjacent properties.

(7) Signs located on public property including, but not limited to, signs attached to any public utility pole or structure, street

light, tree, fence, fire hydrant, bridge, curb, sidewalk, park bench, or other location on public property.

(8) Balloons, flags, pennants, or other floating or inflatable signs or devices anchored to the ground or to any other structure, except, as allowed under the provisions of this article.

(9) Roof signs.

(10) Temporary signs except as allowed by this article.

(11) Amenity signs.

(12) Billboard signs.

(13) Signs attached to a standpipe or fire escape.

(14) Signs erected on or over public property or in the right-of-way of any thoroughfare within the City of Plano, unless the same is erected by the city or with the permission of the city for public purposes or as authorized by special event permit pursuant to section 6-496 of this Code.

(Exception: Signs located in the downtown business/government district may be erected over the public sidewalk provided the sign projects no more than the width of the sidewalk minus one (1) foot and provided the clearance between the bottom of the sign and the sidewalk below is a minimum of seven (7) feet.)

(15) No person shall attach any sign, paper, or other material, or paint, stencil, or write any name, number (except house numbers), or otherwise mark on any sidewalk, curb, gutter, street, utility pole, public building, or structure, except as otherwise allowed by this article.

(16) No person shall place on or suspend from any building, light fixture, pole structure, sidewalk, parkway, driveway, or parking area any goods, wares, merchandise, or other advertising object or structure for the purpose of advertising such items other than a sign, as defined, regulated, and prescribed by this article, except as otherwise allowed by this article.

(17) It shall be unlawful for any person to place or cause to be placed any private temporary directional sign(s) within the City of Plano on any public right-of-way of any major or minor thoroughfare (street designated as Type A, B, C, D, E, F, or G in the City of Plano Thoroughfare Plan). The building official may impound all signs in violation of this section.

(18) Searchlights.

(19) Offsite/premise signs (except as allowed in subsection 3.1503.5.i of the City of Plano Comprehensive Zoning Ordinance).

(Ord. No. 2005-11-14, § I, 11-14-05; Ord. No. 2011-9-26, § II, 9-26-11; Ord. No. 2013-10-15, § I, 10-14-13; Ord. No. 2014-2-11, § I, 2-24-14)

DIVISION 3. PERMITTED SIGNS

Sec. 6-488. Banners.

A temporary banner is allowed and shall be securely attached to the building face. One (1) banner may be displayed on each elevation of the building, with a maximum of two (2) per building or tenant space. Each business shall be allowed three (3) banner permits per calendar year, and each permit shall be good for a maximum of six (6) weeks. Banners shall be kept in good repair and remain firmly anchored or secured. Commercial banners are prohibited in single-family residential districts.

(Ord. No. 2005-11-14, § I, 11-14-05; Ord. No. 2009-5-16, § I, 5-11-09)

Sec. 6-489. Development/construction signs.

Development or construction signs may be erected in nonresidential and residential zoning districts. Such signs shall relate only to the property or subdivision on which they are located and shall not exceed one hundred (100) square feet with a maximum height of twenty (20) feet. Required setback shall be twenty (20) feet from the front property line. Each property or subdivision may have one (1) such sign or one (1) for

each fifty (50) acres or portion thereof. A development or construction sign shall be removed upon completion of the project or subdivision.
(Ord. No. 2005-11-14, § I, 11-14-05)

Sec. 6-490. Model home signs.

Model home signs may be erected in residential zoning districts and shall not exceed sixteen (16) square feet with a maximum height of six (6) feet. Required setback shall be fifty (50) percent of the distance between the front property line and the building but no less than ten (10) feet from the front property line. Model home signs are limited to one (1) per premise. Each builder in a subdivision may have one (1) model home sign, and the permit for such sign shall be granted for a period of time to coincide with the validity of the model home's certificate of occupancy.
(Ord. No. 2005-11-14, § I, 11-14-05)

Sec. 6-491. Political signs/noncommercial purpose signs.

(1) Political and noncommercial purpose signs thirty-six (36) square feet or less are allowed on private property with the consent of the property owner.

(2) Notwithstanding subsection 6-487(7) herein and pursuant to Section 61.003 of the Texas Election Code, political and noncommercial signs are prohibited on public property as follows:

(a) Except where otherwise prohibited by state law or this article, political and noncommercial signs may be placed on city owned or controlled property being used as an active polling place only as follows:

(1) No sign shall exceed four (4) square feet in size; and

(2) No signs shall exceed forty-two (42) inches in height measured from street or grade level; and

(3) Signs shall be setback from a demarcated area as designated by the chief building official or his/her designee. The setback shall be approximately eight (8) feet from the property lines of the active polling location except where the chief building official modifies the distance requirement to prevent obstruction of ingress and egress or to protect safety sight lines for vehicles; and

(4) Signs may be displayed at active polling places no earlier than one (1) day prior to the first day of voting at each polling place and must be removed within three (3) days following the last day of voting at each polling place for each primary, general and special election; and

(5) Signs are prohibited in the rights-of-way at all times.

(b) City staff may remove and dispose of any sign placed on public property or within the rights-of-way in violation of this section.

(Ord. No. 2005-11-14, § I, 11-14-05; Ord. No. 2013-10-15, § II, 10-14-13; Ord. No. 2014-2-11, § II, 2-24-14; Ord. No. 2021-9-20, § I, 9-27-21; Ord. No. 2025-1-12, § I, 1-27-25)

Sec. 6-492. Real estate signs.

Real estate signs may be erected in nonresidential and residential zoning districts and shall not exceed thirty-two (32) square feet with a maximum height of fifteen (15) feet. Required setback shall be eight (8) feet from front property line, and signs are limited to one (1) per street front. A real estate sign shall be removed upon the sale of the property. Real estate signs advertising the lease of individual units in multifamily districts shall be allowed upon issuance of a certificate of occupancy for a period not to exceed one (1) year.
(Ord. No. 2005-11-14, § I, 11-14-05)

Sec. 6-492.1. Open house signs.

An off site open house sign size is limited to four (4) square feet with a maximum height of thirty (30) inches and may be placed on residential property with the consent of the owner. Off site open house signs will only be allowed from 9:00 a.m. on Saturday to 6:00 p.m. on the following

Sunday in the same weekend. Off site open house signs shall not be displayed on weekdays. (Ord. No. 2006-6-33, § II, 6-26-06)

Sec. 6-493. Promotional signage.

(a) Promotional signage is allowed for two (2), two-week periods each calendar year per legal business. A two-week period will commence on the first day promotional signage is displayed. The two (2), two-week periods shall not occur in the same or consecutive months. A legal business shall include any commercial, industrial, or institutional use for which the building inspection department has issued a certificate of occupancy. In the case of a special promotion for a grand opening celebration, one (1) period may be extended to a three-week period provided the promotion commences within the first three (3) months of the date of issuance of a certificate of occupancy, and the grand opening is limited to the address noted on the certificate of occupancy.

(b) Promotional signage may include banners, sail banners, flags, pennants, streamers, balloons, inflatable signs, and any legal signs allowed by this article. Any device, except sail banners, described as promotional signage shall not exceed an overall height of thirty-five (35) feet.

(c) A separate permit is required for each two-week period promotional signage will be used. If any device described as promotional signage in the above paragraph is installed prior to issuance of a permit, and investigation fee will be assessed in addition to the permit fee.

(d) Promotional signage shall be contained on the property of the legal business and shall not extend into the city right-of-way. Signage shall not be located in any sight visibility triangle nor shall any combustible materials be placed in contact with lighted signs or any electrical fixtures. (Ord. No. 2005-11-14, § I, 11-14-05; Ord. No. 2012-5-14, § III, 5-29-12)

Sec. 6-493.1. Additional regulations for sail banner signs.

All provisions of section 6-493 shall apply to sail banner signs. The following additional regulations shall also apply to sail banner signs:

(a) *Height and width restrictions.* A sail banner shall have a maximum height of eighteen (18) feet, and a maximum width (at its widest point) of three (3) feet.

(b) *Number.* Two (2) sail banners are allowed per legal business for a single-tenant property. For a multi-tenant property, two (2) sail banners are allowed at any given time. Tenants in a multi-tenant property shall be required to obtain the signature of the building's manager or owner as a joint applicant.

(c) *Spacing requirements.* Sail banners placed along contiguous street frontage must be spaced a minimum of thirty (30) feet apart.

(d) *Sign placement plan.* A sign placement plan indicating sail banner locations on the property shall be submitted with each permit application.

(e) *Setback.* Sail banners shall have a minimum setback of ten (10) feet from the back of the curb.

(Ord. No. 2012-5-14, § III, 5-29-12)

Sec. 6-494. Signage for temporary/seasonal businesses.

Seasonal business signs are reviewed as part of the issuance of a seasonal business permit as set out in section 11-156 of chapter 11, Licenses and Building Regulations of this Code, and shall be limited to one (1) of the following:

(1) A temporary, freestanding sign, maximum thirty-two (32) square feet in area with an eight (8) foot setback from the front property line.

(2) An onsite banner, maximum thirty-two (32) square feet in area with an eight (8) foot setback from the front property line.

The banner must be securely installed and be completely mounted on a rigid surface.

(Ord. No. 2005-11-14, § I, 11-14-05)

Sec. 6-495. Garage sale signs.

Garage sale signs may be displayed on private property with the consent of the owner on the day of the sale and shall not exceed a maximum of eight (8) square feet. Private property does not include the area that is between the curb and outside edge of the sidewalk.

(Ord. No. 2005-11-14, § I, 11-14-05)

Sec. 6-496. Special event signage.

Special event signage shall be reviewed as part of the overall special event permit as set out in section 11-311 of chapter 11, Licenses and building regulations of this Code, and shall be limited to the following:

(1) Promotional signage shall be allowed as authorized by the special event permit, and shall be:

a. Placed only upon the property holding the event;

b. Placed no earlier than fourteen (14) days prior to the event and removed within twenty-four (24) hours after the event; and

c. Limited to one freestanding sign with a maximum surface area of one hundred (100) square feet and fifteen (15) feet in height.

(2) Temporary directional signs shall be allowed in the public right-of-way adjacent to a special event route as authorized by the special event permit, and shall be:

a. Placed only along the event route of a special event occurring in the adjacent right-of-way,

b. Placed no earlier than twenty-four (24) hours prior to the event and removed within twenty-four (24) hours after the event;

c. Limited to freestanding signs with a maximum size of 18 inches by 24 inches (18" × 24"). The special event permit shall specify the maximum number of signs allowed according to event size;

d. Limited to directing participants along the event route; and

e. Prohibited from:

1. Being attached to any pole, public building, or other structure;

2. Advertising the event; or

3. Directing the public to or from the event site.

(Ord. No. 2005-11-14, § I, 11-14-05; Ord. No. 2011-9-26, § II, 9-26-11)

DIVISION 4. PERMIT REQUIREMENTS AND EXEMPTIONS

Sec. 6-497. Exempt signs.

All signs allowed under this article must obtain a permit from the Building Official of the City of Plano unless specifically exempt. The following signs are exempt from the permit requirement; however, such signs shall comply with all other ordinance requirements:

(1) Signs not exceeding eight (8) square feet in area which advertise the sale, rental, or lease of the premises on which such signs are located.

(2) Signs not exceeding sixteen (16) square feet in area when located upon the premises of a public, charitable, or religious organization.

(3) Signs located inside a building and which are not displayed so as to be visible from outside the building including, but not limited to, signs located in covered mall buildings.

(4) Temporary contractor signs not exceeding sixteen (16) square feet in area provided they comply with all other requirements of this article.

(5) Political and noncommercial purpose signs on private property.

(6) Incidental signs provided they comply with all other requirements of this article.

(7) Memorial signs or tablets, names of buildings, and date of erection, when cut into any masonry surface or when constructed of bronze or other noncombustible materials.

(8) Temporary or seasonal sale signage provided that they comply with all other requirements of this article.

(9) Traffic or street signs, legal notices, railroad crossing signs, danger, and such emergency, temporary or non-advertising signs as approved by the City of Plano.

(10) Window signs provided all other requirements of the article are met.

(11) Garage sale signs provided that they comply with all other requirements of this article.

(12) Copy change only for signs otherwise allowed under this article.

(13) Nameplates not exceeding one (1) square foot in area.

(14) Onsite directional signs provided that they comply with all other requirements of this article.

(15) Occupational signs provided then they comply with all other requirements of this article.

(16) Flags and flagpoles under twenty (20) feet in height provided that they comply with all other requirements of this article.

(17) Signage for special event permits shall be reviewed with the special events permits and shall comply with all requirements of this article.

(18) Sign facings when replaced for the same business.

(19) Replacement of letters on non-illuminated wall signs with identical letters (same shape and size).

(Ord. No. 2005-11-14, § I, 11-14-05)

DIVISION 5. VIOLATIONS AND ENFORCEMENT

Sec. 6-498. Violations.

(a) A person is responsible for a violation of this article if the person is:

(1) The permit holder, owner, agent, or person(s) having the beneficial use of the sign;

(2) The owner of the land or structure on which the sign is located; or

(3) The person in charge of erecting the sign.

(b) It shall be unlawful for any person to erect, replace, alter, or relocate any sign within the City of Plano, or cause the same to be done, without first obtaining a permit to do so from the Building Official of the City of Plano, except for those signs exempt from a permit under section 6-497 of this article.

(c) It shall be unlawful for any person to use, maintain, or otherwise allow the continued existence of any sign for which the required permit was not obtained.

(d) It shall be unlawful for any person to install, construct, or display a prohibited sign, as defined herein, or any sign in violation of the provisions of this article within the City of Plano.

(e) It shall be unlawful for any person to violate any term or provision of this article.
(Ord. No. 2005-11-14, § I, 11-14-05)

Sec. 6-499. Enforcement.

(a) *Authority.* The building official, or his respective designee(s), any peace officer, and any code enforcement officer is hereby authorized to issue a citation and to order the repair or removal of any dilapidated, deteriorated, abandoned, illegal, or prohibited signs from property within the corporate city limits of Plano, in accordance with the enforcement mechanisms set forth in this section.

(b) *Removal of sign.*

(1) Signs placed on public or city-owned property within the corporate limits of the City of Plano in violation of the law

shall be removed and disposed of immediately without notice to interested parties.

(2) The city may remove a sign from private property which the building official finds to be an immediate and imminent threat to the public safety because of its dilapidated, deteriorated, or structural condition. If an emergency removal is required, within five (5) business days of the removal, the official shall notify in writing the owner of the sign, if known, and property owner where the sign was found of the grounds for removal. If impounded, the official shall notify in writing the owner of the sign, if known, and property owner of the process for retrieval. Notice to the owner is not a prerequisite to the removal of the sign.

(Ord. No. 2005-11-14, § I, 11-14-05)

DIVISION 6. FLAGS AND FLAGPOLES

Sec. 6-500. Definitions.

Downtown sign district. Encompasses all properties that are zoned downtown business/government. The downtown sign district is further classified into two (2) areas—Area A and Area B. The boundary of Area A is defined as follows:

BEING a 17.86 acre tract of land situated in Collin County, Texas, and being more particularly described as follows:

BEGINNING at the intersection of centerline of Municipal Avenue (variable R-O-W) with the centerline of 15th Street (variable R-O-W) to a point for a corner;

THENCE continuing west along said 15th Street centerline to a point for a corner at the intersection of 15th Street and the centerline of K Avenue (variable R-O-W);

THENCE continuing north along said K Avenue centerline to a point for a corner at the intersection of K Avenue and the centerline of 16th Street (variable R-O-W);

THENCE continuing along said 16th Street centerline to a point for a corner at the intersection of 16th Street and the centerline of the Dallas Area Rapid Transit (DART) R-O-W (variable R-O-W) located in Tract 68 of the Sanford Beck Survey, City of Plano, Collin County, Texas;

THENCE continuing south a distance of one thousand one hundred twenty-five (1,125) feet along said DART R-O-W to a point for a corner intersecting the centerline of 14th Street (variable R-O-W);

THENCE continuing east following along said 14th Street centerline to a point for a corner at the intersection of 14th Street and the centerline of Municipal Avenue;

THENCE continuing north along said Municipal Avenue centerline back to the PLACE OF BEGINNING and containing 17.86 (seven hundred seventy-seven thousand, nine hundred eighty-two (777,982) square feet) acres of land;

Area B consists of all properties within the downtown business/government zoning that are not within the boundary of Area A.

Flag means a piece of cloth, canvas, or other light fabric, usually rectangular in shape, containing distinctive design or message.

(Ord. No. 2007-9-30, § I, 9-24-07)

Sec. 6-501. Flag regulations for the entire city excluding downtown sign district.

(a) Flagpoles shall be limited to a maximum height of fifty (50) feet, except that this requirement may be altered or waived if the city council determines that such alteration or waiver is not detrimental to neighboring property.

(b) A single flag which shows an emblem or logo of a firm or corporation is allowed on the premises of the firm or corporation when it is erected on a freestanding flagpole with a minimum setback of eight (8) feet behind the property line. In addition to flags, emblems, and insignia of any governmental body and decorative displays for holidays or public demonstrations which do

not contain advertising and are used as such are allowed. Maximum height shall not exceed fifty (50) feet.
(Ord. No. 2007-9-30, § I, 9-24-07)

Sec. 6-502. Flag regulations for the downtown sign district.

(a) Flags are permitted in each sub-area of the downtown sign district.

(b) Flag standards for the downtown sign district are as follows:

(1) *General.* Flags that display emblems or insignia of any governmental body or decorative display for holidays or public demonstrations that do not contain advertising are allowed.

(2) *Location.* Flags may be attached to a building but may not extend above the roof or parapet of the building. Flags on freestanding poles are allowed only in Area B of the district, and must have a minimum setback of eight (8) feet behind the property line.

(3) *Height.* Flags shall not exceed thirty (30) feet in height, except that this requirement may be altered or waived if the city council determines that such alteration or waiver is not detrimental to neighboring property.

(Ord. No. 2007-9-30, § I, 9-24-07)

Secs. 6-503—6-560. Reserved.

ARTICLE XIII. IRRIGATION SYSTEMS*

Sec. 6-561. Definitions.

The following words and terms have the following meanings, unless the context clearly indicates otherwise:

(1) *Air gap separation (AG)*—A complete physical separation between the free flowing discharge end of a potable water supply pipeline and an open or non-pressure receiving vessel.

(2) *Atmospheric vacuum breaker (AVB)*—An assembly containing a float check, a check seat, and an air inlet port. Atmospheric vacuum breakers shall not be subjected to back pressure situations.

(3) *Auxiliary water supply*—Any water supply other then the City of Plano's approved public water supply, including water from another public water supply or from a natural source including, but not limited to, wells, cisterns, springs, rivers, streams, used waters, or industrial fluids.

(4) *Backflow prevention*—The mechanical prevention of reverse flow, or back siphonage, of nonpotable water from an irrigation system into the potable water source.

(5) *Backflow prevention assembly*—An assembly which, when properly installed between the City water supply system and the terminus or point of ultimate use will prevent backflow. Examples of such include, but are not limited to, reduced pressure backflow assemblies, double check valve assemblies, pressure vacuum breakers, and air gap separation.

(6) *City*—The City of Plano, Texas and its duly authorized representatives.

(7) *Commission*—The Commission on Environmental Quality.

(8) *Completion of irrigation system installation*—When the landscape irrigation system has been installed, all minimum standards met, all tests performed, and the irrigator is satisfied that the system is operating correctly.

(9) *Consulting*—The act of providing advice, guidance, review or recommendations related to landscape irrigation systems.

(10) *Cross-connection*—A physical connection between a public water system and either another supply of unknown or questionable quality, any source which may contain contaminating or polluting substances,

*__Editor's note—__Prior to the reenactment of article XIII by Ord. No. 2008-12-4, § I, adopted December 8, 2008, Ord. No. 2004-9-30, § 1, adopted September 27, 2004, repealed art. XIII, divs. 1—4, in its entirety. Formerly, said article pertained to the nonresidential property code as enacted by section I of Ord. No. 91-5-10, adopted May 13, 1991; as admitted.

or any source of water treated to a lesser degree than approved or auxiliary water supply source in the treatment process.

(11) *Design*—The act of determining the various elements of a landscape irrigation system that will include, but not be limited to, elements such as collecting site specific information, defining the scope of the project, defining plant watering needs, selecting and laying out emission devices, locating system components, conducting hydraulics calculations, identifying any local regulatory requirements, or scheduling irrigation work at a site. Completion of the various components will result in an irrigation plan.

(12) *Design pressure*—The pressure that is required for an emission device to operate properly. Design pressure is calculated by adding the operating pressure necessary at an emission device to the total of all pressure losses accumulated from an emission device to the water source.

(13) *Double check valve (DC)*—An assembly composed of two (2) independently acting, approved check valves, including tightly closing resilient seated shutoff valves attached at each end of the assembly and fitted with properly located resilient-seated test cocks.

(14) *Emission device*—Any device that is contained within an irrigation system and that is used to apply water. Common emission devices in an irrigation system include, but are not limited to, spray and rotary sprinkler heads, and drip irrigation emitters.

(15) *Employed*—Engaged or hired to provide consulting services or perform any activity relating to the sale, design, installation, maintenance, alteration, repair, or service to irrigation systems. A person is employed if that person is in an employer-employee relationship as defined by Internal Revenue Code, 26 United States Code Service, §3212(d) based on the behavioral control, financial control, and the type of relationship involved in performing employment related tasks.

(16) *Head-to-head spacing*—The spacing of spray or rotary heads equal to the manufacturers published radius of the head.

(17) *Health hazard*—A cross connection, potential cross connection, or other situation involving any substance that could cause death, illness, spread of disease, or has a high probability of causing such effects if introduced into the potable drinking water supply.

(18) *Hydraulics*—The science of dynamic and static water; the mathematical computation of determining pressure losses and pressure requirements of an irrigation system.

(19) *Inspector*—A licensed plumbing inspector, water district operator, other governmental entity, or irrigation inspector who inspects irrigation systems and performs other enforcement duties for a municipality or water district as an employee or as a contractor.

(20) *Installer*—A person who actually connects an irrigation system to a private or public raw or potable water supply system or any water supply, who is licensed according to 30 TAC Chapter 30 (relating to occupational licenses and registrations).

(21) *Irrigation inspector*—A person who inspects irrigation systems and performs other enforcement duties for a municipality or water district as an employee or as a contractor and is required to be licensed under 30 TAC Chapter 30 (relating to occupational licenses and registrations).

(22) *Irrigation plan*—A scaled drawing of a landscape irrigation system which lists required information, the scope of the project, and represents the changes made in the installation of the irrigation system.

(23) *Irrigation services*—Selling, designing, installing, maintaining, altering, repairing, servicing, permitting, providing consulting services regarding, or connecting an irrigation system to a water supply.

(24) *Irrigation system*—An assembly of component parts that is permanently installed for the controlled distribution and conservation of water to irrigate any type of landscape vegetation in any location, and/or to reduce dust or control erosion. This term does not include a system that is used on or by an agricultural operation as defined by V.T.C.A., Agricultural Code § 251.002.

(25) *Irrigation technician*—A person who works under the supervision of a licensed irrigator to install, maintain, alter, repair, service or supervise installation of an irrigation system, including the connection of such system in or to a private or public, raw or potable water supply system or any water supply, and who is required to be licensed under 30 TAC Chapter 30 (relating to occupational licenses and registrations).

(26) *Irrigation zone*—A subdivision of an irrigation system with a matched precipitation rate based on plant material type (such as turf, shrubs, or trees), microclimate factors (such as sun/shade ratio), topographic features (such as slope) and soil conditions (such as sand, loam, clay, or combination) or for hydrological control.

(27) *Irrigator*—A person who sells, designs, offers consultations regarding, installs, maintains, alters, repairs, services or supervises the installation of an irrigation system, including the connection of such system to a private or public, raw or potable water supply system or any water supply, and who is required to be licensed under 30 TAC Chapter 30.

(28) *Irrigator-in-charge*—The irrigator responsible for all irrigation work performed by an exempt business owner, including, but not limited to obtaining permits, developing design plans, supervising the work of other irrigators or irrigation technicians, and installing, selling, maintaining, altering, repairing, or servicing a landscape irrigation system.

(29) *Landscape irrigation*—The science of applying the necessary amount of water to promote or sustain healthy growth of plant material or turf.

(30) *License*—An occupational license that is issued by the commission under 30 TAC Chapter 30 to an individual that authorizes the individual to engage in an activity that is covered by 30 TAC Chapter 30.

(31) *Mainline*—A pipe within an irrigation system that delivers water from the water source to the individual zone valves.

(32) *Maintenance checklist*—A document made available to the irrigation system's owner or owner's representative that contains information regarding the operation and maintenance of the irrigation system, including, but not limited to: checking and repairing the irrigation system, setting the automatic controller, checking the rain or moisture sensor, cleaning filters, pruning grass and plants away from irrigation emitters, using and operating the irrigation system, the precipitation rates of each irrigation zone within the system, any water conservation measures currently in effect from the water purveyor, the name of the water purveyor, a suggested seasonal or monthly watering schedule based on current evapotranspiration data for the geographic region, and the minimum water requirements for the plant material in each zone based on the soil type and plant material where the system is installed.

(33) *Major maintenance, alteration, repair, or service*—Any activity that involves opening to the atmosphere the irrigation main line at any point prior to the discharge side of any irrigation zone control valve. This includes, but is not limited to, repairing or connecting into a main supply pipe, replacing a zone control valve, or

repairing a zone control valve in a manner that opens the system to the atmosphere.

(34) *Master valve*—A remote control valve located after the backflow prevention device that controls the flow of water to the irrigation system mainline.

(35) *Matched precipitation rate*—The condition in which all sprinkler heads within an irrigation zone apply water at the same rate.

(36) *New installation*—An irrigation system installed at a location where one did not previously exist.

(37) *Non-health hazard*—A cross-connection or potential cross connection involving any substance that generally would not be a health hazard but would constitute a nuisance, or be aesthetically objectionable, if introduced into the potable water supply.

(38) *Non-potable water*—A water supply, which has not been approved, for human consumption by the commission.

(39) *Pass-through contract*—A written contract between a contractor or builder and a licensed irrigator or exempt business owner to perform part or all of the irrigation services relating to an irrigation system.

(40) *Potable water*—Any public water supply which has been investigated and approved by the commission as satisfactory for drinking, culinary and domestic purposes.

(41) *Pressure vacuum breaker*—An assembly which contains an independently operating internally loaded check valve and an independently operating loaded air inlet valve located on the discharge side of the check valve, with properly located resilient-seated test cocks and tightly closing resilient-seated shutoff valves attached at each end of the assembly. Pressure vacuum breakers shall not be subjected to back pressure situations.

(42) *Reclaimed water*—Domestic or municipal wastewater which has been treated to a quality suitable for beneficial use, such as landscape irrigation.

(43) *Records of landscape irrigation activities*—The irrigation plans, contracts, warranty information, invoices, copies of permits, and other documents that relate to the installation, maintenance, alteration, repair, or service of a landscape irrigation system.

(44) *Reduced pressure principle backflow prevention assembly (RP)*—An assembly containing two independently acting approved check vales together with a hydraulically operating, mechanically independent pressure differential relief valve located between the check valves and at the same time below the first check valve. The unit includes properly located resilient-seated test cocks and two (2) tightly-closing resilient seated shutoff valves at each end of the assembly.

(45) *Static water pressure*—The pressure of water when it is not moving.

(46) *Supervision*—The on-the-job oversight and direction by a licensed irrigator who is fulfilling his or her professional responsibility to the client and/or employer in compliance with local or state requirements. Also a licensed installer working under the direction of a licensed irrigator or beginning January 1, 2009, an irrigation technician who is working under the direction of a licensed irrigator to install, maintain, alter, repair or service an irrigation system.

(47) *Water conservation*—The design, installation, service, and operation of an irrigation system in a manner that prevents the waste of water, promotes the most efficient use of water, and applies the least amount of water that is required to maintain healthy individual plant material or turf, reduce dust, and control erosion.

(48) *Zone flow*—A measurement, in gallons per minute or gallons per hour, of the actual flow of water through a zone valve, calculated by individually opening each zone valve and obtaining a valid reading after the pressure has stabilized. For design purposes, the zone flow is the total flow of all nozzles in the zone at a specific pressure.

(49) *Zone valve*—An automatic valve that controls a single zone of a landscape irrigation system.

(Ord. No. 2008-12-4, § I, 12-8-08)

Sec. 6-562. Valid license required.

Any person who connects an irrigation system to the water supply within the city must hold a valid irrigation license, as defined by 30 TAC Chapter 30 and required by V.T.C.A., Occupations Code ch. 1903, or a state plumbing license.

Exception. A property owner is not required to be licensed in accordance with V.T.C.A., Occupations Code § 1903.002(c)(1) if he or she is performing irrigation work in a building or on a premises owned or occupied by the person as the person's home. A home or property owner who installs an irrigation system must meet the standards contained in 30 TAC Chapter 344 regarding spacing, water pressure, spraying water over impervious materials, rain or moisture shut-off devices or other technology, backflow and isolation valves. The city may, at any point, adopt more stringent requirements for a home or property owner who installs an irrigation system (see V.T.C.A., Occupations Code § 1903.002 for other exemptions to the licensing requirement).
(Ord. No. 2008-12-4, § I, 12-8-08)

Sec. 6-563. Permit required.

It shall be unlawful for any person to install or cause to be installed, or to permit any person to install an irrigation system, or to make any alterations, additions or changes to an irrigation system, without first having procured a permit to do so from the building official. Any plan approved for a permit must be in compliance with the requirements of this chapter.

Exemptions:

1. An irrigation system that is an on-site sewage disposal system, as defined by V.T.C.A., Health and Safety Code § 355.002; or
2. An irrigation system used on or by an agricultural operation as defined by V.T.C.A., Agriculture Code § 251.002; or
3. An irrigation system connected to a groundwater well used by the property owner for domestic use.

(Ord. No. 2008-12-4, § I, 12-8-08)

Sec. 6-564. Backflow prevention methods and devices.

(a) Any irrigation system that is connected to the potable water supply must be connected through a backflow prevention method approved by the Commission. The backflow prevention assembly must be approved by a laboratory that has equivalent capabilities for both the laboratory and field evaluation of backflow prevention assemblies and the University of Southern California Foundation for Cross-Connection Control and Hydraulic Research. The backflow prevention assembly must be installed in accordance with the laboratory approval standards.

(b) If conditions that present a health hazard exist, one (1) of the following methods must be used to prevent backflow:

(1) An air gap may be used if:

(A) There is an unobstructed physical separation; and

(B) The distance from the lowest point of the water supply outlet to the flood rim of the fixture or assembly into which the outlet discharges is at least one (1) inch or twice the diameter of the water supply outlet, whichever is greater.

(2) Reduced pressure principle backflow prevention assemblies may be used if:

(A) The assembly is installed with the termination point a minimum of twelve (12) inches above finished

grade in a location that will ensure that the assembly will not become submerged; and

(B) Drainage is provided for any water that may be discharged through the assembly relief valve.

(3) Pressure vacuum breakers may be used if:

(A) No back-pressure condition will occur; and

(B) The device is installed at a minimum of twelve (12) inches above any downstream piping and the highest downstream opening. Pop-up sprinklers are measured from the retracted position from the top of the sprinkler.

(4) Atmospheric vacuum breakers may be used if:

(A) No back-pressure will be present;

(B) There are no shutoff valves downstream from the atmospheric vacuum breaker;

(C) The device is installed at a minimum of six (6) inches above any downstream piping and the highest downstream opening. Pop-up sprinklers are measured from the retracted position from the top of the sprinkler;

(D) There is no continuous pressure on the supply side of the atmospheric vacuum breaker for more than twelve (12) hours in any 24-hour period; and

(E) A separate atmospheric vacuum breaker is installed on the discharge side of each irrigation control valve, between the valve and all the emission devices that the valve controls.

(c) Backflow prevention assemblies used in applications designated as health hazards must be tested upon installation and annually thereafter.

(d) If there are no conditions that present a health hazard, double check valve backflow prevention assemblies may be used to prevent backflow if the device is tested upon installation and test cocks are used for testing only.

(e) If a double check valve is installed below ground:

(1) Test cocks must be plugged, except when the double check valve is being tested;

(2) Test cock plugs must be threaded, water-tight, and made of non-ferrous material;

(3) A y-type strainer is installed on the inlet side of the double check valve;

(4) There must be a clearance between any fill material and the bottom of the double check valve to allow space for testing and repair; and

(5) There must be space on the side of the double check valve to test and repair the double check valve.

(f) If an existing irrigation system without a backflow-prevention assembly requires major maintenance, alteration, repair, or service, the system must be connected to the potable water supply through an approved, properly installed backflow prevention method before any major maintenance, alteration, repair, or service is performed.

(g) The irrigator shall ensure the backflow prevention device is tested prior to being placed into service and the test results provided to the local water purveyor and the irrigation system's owner or owner's representative within ten (10) calendar days of testing of the backflow prevention assembly.

(h) The city is not responsible for any pressure loss created by the installation of a backflow assembly.
(Ord. No. 2008-12-4, § I, 12-8-08; Ord. No. 2009-2-10, § I, 2-17-09)

Sec. 6-565. Specific conditions and cross-connection control.

(a) Before any chemical is added to an irrigation system connected to the potable water supply, the irrigation system must be connected through a reduced pressure principle backflow prevention assembly or air gap.

(b) Connection of any auxiliary water supply to an irrigation system that is connected to the potable water supply can only be done if the irrigation system is connected to the potable water supply through a reduced pressure backflow prevention assembly or an air gap separation.

(c) Irrigation system components with chemical additives induced by aspiration, injection, or emission system connected to any potable water supply must be connected through a reduced pressure principle backflow assembly.

(d) If an irrigation system is designed or installed on a property that is served by an on-site sewage facility, as defined in 30 TAC Chapter 285, then:

(1) All irrigation piping and valves must meet the separation distances from the on-site sewage facilities system as required for a private water line in 30 TAC Section 285.91(10);

(2) Any connections using a private or public potable water source that is not the city's potable water system must be connected to the water source through a reduced pressure principle backflow prevention assembly as defined in 30 TAC Section 344.50; and

(3) Any water from the irrigation system that is applied to the surface of the area utilized by the on-site sewage facility system must be controlled on a separate irrigation zone or zones so as to allow complete control of any irrigation to that area so that there will not be excess water that would prevent the on-site sewage facilities system from operating effectively.

(e) Quick couplers or hose connections of any type installed within the irrigation system shall require the proper installation of a reduced pressure backflow prevention assembly. The assembly shall be tested upon installation and annually thereafter.
(Ord. No. 2008-12-4, § I, 12-8-08)

Sec. 6-566. Water conservation.

All irrigation systems shall be designed, installed, maintained, altered, repaired, serviced, and operated in a manner that will promote water conservation as defined in the definitions section of this chapter.
(Ord. No. 2008-12-4, § I, 12-8-08)

Sec. 6-567. Irrigation plan design: Minimum standards.

(a) An irrigator shall prepare an irrigation plan for each site where a new irrigation system will be installed. A paper or electronic copy of the irrigation plan must be on the job site at all times during the installation of the irrigation system. A drawing showing the actual installation of the system is due to each irrigation system owner after all new irrigation system installations. During the installation of the irrigation system, variances from the original plan may be authorized by the licensed irrigator if the variance from the plan does not:

(1) Diminish the operational integrity of the irrigation system;

(2) Violate any requirements of this article; and

(3) Go unnoted in red on the irrigation plan.

(b) The irrigation plan must include complete coverage of the area to be irrigated. If a system does not provide complete coverage of the area to be irrigated, it must be noted on the irrigation plan.

(c) All irrigation plans used for construction must be drawn to scale. The plan must include, at a minimum, the following information:

(1) The irrigator's seal, signature, and date of signing;

(2) All major physical features and the boundaries of the areas to be watered;

(3) A North arrow;

(4) A legend;

(5) The zone flow measurement for each zone;

(6) Location and type of each:

(A) Controller;

(B) Sensor (for example, but not limited to, rain, moisture, wind, flow, or freeze);

(7) Location, type, and size of each:

(A) Water source, such as, but not limited to a water meter and point(s) of connection;

(B) Backflow prevention assembly;

(C) Water emission device, including, but not limited to, spray heads, rotary sprinkler heads, quick-couplers, bubblers, drip, or micro-sprays;

(D) Valve, including but not limited to, zone valves, master valves, and isolation valves;

(E) Pressure regulation component; and

(F) Main line and lateral piping;

(8) The scale used; and

(9) The design pressure.

(Ord. No. 2008-12-4, § I, 12-8-08)

Sec. 6-568. Design and installation: Minimum requirements.

(a) No irrigation design or installation shall require the use of any component, including the water meter, in a way which exceeds the manufacturer's published performance limitations for the component.

(b) Spacing.

(1) The maximum spacing between emission devices must not exceed the manufacturer's published radius or spacing of the device(s). The radius or spacing is determined by referring to the manufacturer's published specifications for a specific emission device at a specific operating pressure.

(2) New irrigation systems shall not utilize above-ground spray emission devices in landscapes that are less than forty-eight (48) inches not including the impervious surfaces in either length or width and which contain impervious pedestrian or vehicular traffic surfaces along two (2) or more perimeters. If pop-up sprays or rotary sprinkler heads are used in a new irrigation system, the sprinkler heads must direct flow away from any adjacent surface and shall not be installed closer than four (4) inches from a hardscape, such as, but not limited to, a building foundation, fence, concrete, asphalt, pavers, or stones set with mortar.

(3) Narrow paved walkways, jogging paths, golf cart paths or other small areas located in cemeteries, parks, golf courses or other public areas may be exempted from this requirement if the runoff drains into a landscaped area.

(c) Water pressure. Emission devices must be installed to operate at the minimum and not above the maximum sprinkler head pressure as published by the manufacturer for the nozzle and head spacing that is used. Methods to achieve the water pressure requirements include, but are not limited to, flow control valves, a pressure regulator, or pressure compensating spray heads.

(d) Piping. Piping in irrigation systems must be designed and installed so that the flow of water in the pipe will not exceed a velocity of five (5) feet per second for polyvinyl chloride (PVC) pipe.

(e) Irrigation zones. Irrigation systems shall have separate zones based on plant material type, microclimate factors, topographic features, soil conditions, and hydrological requirements.

(f) Matched precipitation rate. Zones must be designed and installed so that all of the emission devices in that zone irrigate at the same precipitation rate.

(g) Irrigation systems shall not spray water over surfaces made of concrete, asphalt, brick, wood, stones set with mortar, or any other impervious material, such as, but not limited to, walls, fences, sidewalks, streets, etc.

(h) Master valve. When provided, a master valve shall be installed on the discharge side of the backflow prevention device on all new installations.

(i) PVC pipe primer solvent. All new irrigation systems that are installed using PVC pipe and fittings shall be primed with a colored primer prior to applying the PVC cement in accordance with the International Plumbing Code (Section 605).

(j) Rain, moisture, and freeze shut-off devices or other technology. All new automatically controlled irrigation systems must include sensors or other technology designed to inhibit or interrupt operation of the irrigation system during periods of moisture, rainfall, and freezing temperatures. Rain, moisture, and freeze shut-off technology must be installed according to the manufacturer's published recommendations. Repairs to existing automatic irrigation systems that require replacement of an existing controller must include a sensor or other technology designed to inhibit or interrupt operation of the irrigation system during periods of moisture, rainfall, and freezing temperatures.

(k) Isolation valve. All new irrigation systems must include an isolation valve between the water meter and the backflow prevention assembly.

(l) Depth coverage of piping. Piping in all irrigation systems must be installed according to the manufacturer's published specifications for depth coverage of piping.

(1) If the manufacturer has not published specifications for depth coverage of piping, the piping must be installed to provide minimum depth coverage of six (6) inches of select backfill, between the top of the pipe and the natural grade of the topsoil. All portions of the irrigation system that fail to meet this standard must be noted on the irrigation plan. If the area being irrigated has rock at a depth of six (6) inches or less, select backfill may be mounded over the pipe. Mounding must be noted on the irrigation plan and discussed with the irrigation system owner or owner's representative to address any safety issues.

(2) If a utility, man-made structure or roots create an unavoidable obstacle, which makes the six-inch depth coverage requirement impractical, the piping shall be installed to provide a minimum of two (2) inches of select backfill between the top of the pipe and the natural grade of the topsoil.

(3) All trenches and holes created during installation of an irrigation system must be backfilled and compacted to the original grade.

(m) Wiring irrigation systems.

(1) Underground electrical wiring used to connect an automatic controller to any electrical component of the irrigation system must be listed by Underwriters Laboratories as acceptable for burial underground.

(2) Electrical wiring that connects any electrical components of an irrigation system must be sized according to the manufacturer's recommendation.

(3) Electrical wire splices which may be exposed to moisture must be waterproof as certified by the wire splice manufacturer.

(4) Underground electrical wiring that connects an automatic controller to any electrical component of the irrigation system must be buried with a minimum of six (6) inches of select backfill.

(n) Water contained within the piping of an irrigation system is deemed to be non-potable. No drinking or domestic water usage, such as, but not limited to, filling swimming pools or decorative fountains, shall be connected to an irrigation system. If a hose bib (an outdoor water faucet that has hose threads on the spout) is connected to an irrigation system for the purpose of providing supplemental water to an area, the hose bib must be installed using a quick coupler key on a quick coupler installed in a covered

purple valve box and the hose bib and any hoses connected to the bib must be labeled "non potable, not safe for drinking." An isolation valve must be installed upstream of a quick coupler connecting a hose bib to an irrigation system.

(o) Beginning January 1, 2010, either a licensed irrigator or a licensed irrigation technician shall be on-site at all times while the landscape irrigation system is being installed. When an irrigator is not onsite, the irrigator shall be responsible for ensuring that a licensed irrigation technician is on-site to supervise the installation of the irrigation system.
(Ord. No. 2008-12-4, § I, 12-8-08; Ord. No. 2009-2-10, § I, 2-17-09)

Sec. 6-569. Completion of irrigation system installation.

Upon completion of the irrigation system, the irrigator or irrigation technician who provided supervision for the on-site installation shall be required to complete four (4) items:

(1) A final "walk through" with the irrigation system's owner or the owner's representative to explain the operation of the system;

(2) The maintenance checklist on which the irrigator or irrigation technician shall obtain the signature of the irrigation system's owner or owner's representative and shall sign, date, and seal the checklist. If the irrigation system's owner or owner's representative is unwilling or unable to sign the maintenance checklist, the irrigator shall note the time and date of the refusal on the irrigation system's owner or owner's representative's signature line. The irrigation system owner or owner's representative will be given the original maintenance checklist and a duplicate copy of the maintenance checklist shall be maintained by the irrigator. The items on the maintenance checklist shall include but are not limited to:

(A) The manufacturer's manual for the automatic controller, if the system is automatic;

(B) A seasonal (spring, summer, fall, winter) watering schedule based on either current/real time evapotranspiration or monthly historical reference evapotranspiration (historical ET) data, monthly effective rainfall estimates, plant landscape coefficient factors, and site factors;

(C) A list of components, such as the nozzle, or pump filters, and other such components; that require maintenance and the recommended frequency for the service; and

(D) The statement, "This irrigation system has been installed in accordance with all applicable state and local laws, ordinances, rules, regulations or orders. I have tested the system and determined that it has been installed according to the Irrigation Plan and is properly adjusted for the most efficient application of water at this time."

(3) A permanent sticker which contains the irrigator's name, license number, company name, telephone number and the dates of the warranty period shall be affixed to each automatic controller installed by the irrigator or irrigation technician. If the irrigation system is manual, the sticker shall be affixed to the original maintenance checklist. The information contained on the sticker must be printed with waterproof ink and include:

(4) The irrigation plan indicating the actual installation of the system must be provided to the irrigation system's owner or owner representative.
(Ord. No. 2008-12-4, § I, 12-8-08)

Sec. 6-570. Maintenance, alteration, repair, or service of irrigation systems.

(a) The licensed irrigator is responsible for all work that the irrigator performed during the maintenance, alteration, repair, or service of an irrigation system during the warranty period.

The irrigator or business owner is not responsible for the professional negligence of any other irrigator who subsequently conducts any irrigation service on the same irrigation system.

(b) All trenches and holes created during the maintenance, alteration, repair, or service of an irrigation system must be returned to the original grade with compacted select backfill.

(c) Colored PVC pipe primer solvent must be used on all pipes and fittings used in the maintenance, alteration, repair, or service of an irrigation system in accordance with the International Plumbing Code (Section 605).

(d) When maintenance, alteration, repair or service of an irrigation system involves excavation work at the water meter or backflow prevention device, an isolation valve shall be installed, if an isolation valve is not present.
(Ord. No. 2008-12-4, § I, 12-8-08)

Sec. 6-571. Reclaimed water.

Reclaimed water may be utilized in landscape irrigation systems if:

(1) There is no direct contact with edible crops, unless the crop is pasteurized before consumption;

(2) The irrigation system does not spray water across property lines that do not belong to the irrigation system's owner;

(3) The irrigation system is installed using purple components;

(4) The domestic potable water line is connected using an air gap or a reduced pressure principle backflow prevention device, in accordance with § 290.47(i) of this title (relating to appendices);

(5) A minimum of an eight-inch by eight-inch sign, in English and Spanish, is prominently posted on/in the area that is being irrigated, that reads, "RECLAIMED WATER - DO NOT DRINK" and "AGUA DE RECUPERACIÓN - NO BEBER"; and

(6) Backflow prevention on the reclaimed water supply line shall be in accordance with the regulations of the city's water provider.
(Ord. No. 2008-12-4, § I, 12-8-08)

Sec. 6-572. Items not covered by this article.

Any item not covered by this article and required by law shall be governed by the Texas Occupations Code, the Texas Water Code, Title 30 of the Texas Administrative Code, and any other applicable state statute or TCEQ rule.
(Ord. No. 2008-12-4, § I, 12-8-08)

Sec. 6-573. Fees.

Prior to issuance of a permit the applicant shall pay a permit fee in accordance with the City of Plano building inspections fee schedule as adopted by the city council, as it exists or may be amended.
(Ord. No. 2008-12-4, § I, 12-8-08)

Sec. 6-574. Enforcement.

(a) The city shall have the power to administer and enforce the provisions of this chapter as may be required by governing law. Any person, firm, corporation or agent who shall violate a provision of this code, or fails to comply therewith, or with any of the requirements thereof, is subject to suit for injunctive relief as well as prosecution for criminal violations.

(b) Any person, firm or corporation found to be violating any term or provision of this article, shall be subject to a fine in accordance with subsection 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

An offense under this chapter is a Class C misdemeanor.

(c) Nothing in this chapter shall be construed as a waiver of the city's right to bring a civil action to enforce the provisions of this chapter and to seek remedies as allowed by law, including, but not limited to the following:

(1) Injunctive relief to prevent specific conduct that violates the ordinance or to require specific conduct that is necessary for compliance with the ordinance; and

(2) Other available relief.
(Ord. No. 2008-12-4, § I, 12-8-08)

Secs. 6-575—6-620. Reserved.

ARTICLE XIV. SOLID WASTE REMOVAL FROM CONSTRUCTION SITES*

Sec. 6-621. Generally.

It shall be unlawful for any person, company or corporation to engage in the business of solid waste removal from construction sites without registering with the building inspection department of the city as a construction solid waste disposal contractor (hereinafter referred to as a registered contractor). However, such registration shall not permit or authorize collection of solid waste from construction sites through the use of roll-off, open-top containers; roll-off, closed-top containers; roll-off compaction containers; or any reusable receptacles with a volume of between two (2) cubic yards and ten (10) cubic yards, inclusive, designed for use with a front-end loading refuse truck.

A registration pursuant to this article is only for the removal of solid waste from a construction site that is not considered to be toxic or hazardous waste under any state or federal law or rule. All liquid or solid waste regulated by any state or federal agency must be disposed of under such agency's rules.
(Ord. No. 2025-7-7, § I, 7-28-25)

Sec. 6-622. Construction solid waste disposal contractor—Application for registration.

An applicant for registration as a construction solid waste disposal contractor must provide the following:

(1) Business name.

(2) Owner's name and driver's license number.

(3) Business address.

(4) Business phone number.

(5) List of vehicles used for waste removal:

a. Make.

b. Model.

c. License plate number.

(6) Proof of current bond of ten thousand dollars ($10,000.00) on a form provided or approved by the City of Plano.

(7) Registration fee of twenty dollars ($20.00), includes registration of one vehicle, plus ten dollars ($10.00) for each additional vehicle used by the construction solid waste disposal contractor.
(Ord. No. 2025-7-7, § I, 7-28-25)

Sec. 6-623. Same—Renewal of registration.

A registration must be renewed each year and the information listed in section 6-622 must be provided, as well as a copy of the renewal of the bond, along with a renewal fee of ten dollars ($10.00) per vehicle.
(Ord. No. 2025-7-7, § I, 7-28-25)

Sec. 6-624. Reserved.
(Ord. No. 2025-7-7, § I, 7-28-25)

Sec. 6-625. Contractor's registration revocation.

A contractor's registration may be revoked, upon the building official's mailing of written notice of revocation of contractor's registration to the contractor at the business address specified in the registration, for the following reasons:

(1) Failing to keep a current bond filed in the building inspections department.

(2) Being observed by the building official or his representative placing construction debris or any other solid waste in any location other than a legal solid waste disposal site, or being convicted of such action in municipal court.

(3) Being observed by the building official or his representative improperly securing a

*__Editor's note—__Ord. No. 2025-7-7, § I, adopted July 28, 2025, repealed the former Art. XIV, §§ 6-621—6-629, and enacted a new Art. XIX as set out herein. The former Art. XIX pertained to similar subject matter and derived from Ord. No. 91-6-28, §§ I(1)—(8), II, 6-24-91; Ord. No. 92-3-17, §§ I, II, 3-12-92.

load while in transit to a disposal site, or being convicted or such action in municipal court.

(4) Validating a building permit for an unregistered subcontractor.

(5) Hauling from a construction site for which the contractor did not validate the building permit.

(6) Violating section 18-12 or other requirement of the City of Plano Code of Ordinances relating to construction or construction safety.

(Ord. No. 2025-7-7, § I, 7-28-25)

Sec. 6-626. Restoration of revoked contractor's registration.

A contractor may appeal the revocation of his registration to the Building Standards Commission, who shall either have the authority to overrule the decision of the building official the revocation or establish terms by which the registration may be restored. The contractor's appeal must be in writing and filed with the building official within ten (10) business days after the building official's mailing of the notice of revocation of the contractor's registration. The building official shall give the contractor at least ten days written notice of meeting of the Building Standards Commission during which the appeal will be conducted.

(Ord. No. 2025-7-7, § I, 7-28-25)

Sec. 6-627. Validation of building permits.

A building or pool permit must be validated in writing by a registered contract prior to its issuance.

Exceptions:

(1) Permits for work done by a homeowner at his homestead.

(2) Permits for alterations or additions with a valuation of less than ten thousand dollars ($10,000.00).

(3) When the applicant for the permit shows evidence that he has contracted with a waste company that is licensed by the city for that purpose.

(4) Permits for accessory buildings at single-family residences.

(Ord. No. 2025-7-7, § I, 7-28-25)

Sec. 6-628. Stop work orders.

If an unregistered waste removal contractor is permitted to conduct business at a construction site, the building official may issue a stop work order at that site until such time as the contractor obtains his registration and the validation on the building permit for that site is corrected, or until such time as the unregistered contractor discontinues work at the site. If an unregistered contractor removes waste from a site, work may be stopped until such time as the holder of the building permit provides satisfactory evidence to the building official that the waste was deposited in a legal solid waste disposal site.

(Ord. No. 2025-7-7, § I, 7-28-25)

Sec. 6-629. Penalty for article violation.

Any person, firm, or corporation violating any of the provisions or terms of this article shall be subject to a penalty as provided for in section 1-4 of the City of Plano Code of Ordinances.

(Ord. No. 2025-7-7, § I, 7-28-25)

Secs. 6-630—6-650. Reserved.

(Ord. No. 2025-7-7, § I, 7-28-25)

ARTICLE XV. ADMINISTRATIVE CODE*

Sec. 6-651. Penalties.

(a) *Criminal.* Any person, firm, or corporation violating any of the provisions or terms of this article or the code adopted herein shall be deemed guilty of a misdemeanor and, upon conviction thereof, be subject to a fine not exceeding two thousand dollars ($2,000.00) for each offense,

*__Editor's note—__Ord. No. 98-5-5, § I, adopted May 11, 1998, repealed former Art. XV of Ch. 6 in its entirety, which pertained to the administrative code and derived from Ord. No. 92-3-28, §§ I, II, adopted March 23, 1992; Ord. No. 92-7-39, § I, adopted July 27, 1992; Ord. No. 92-9-19, § I, adopted Sept. 14, 1992; Ord. No. 93-9-1, § I, adopted Sept. 7, 1993; and Ord. No. 95-11-31, §§ I, II, adopted Nov. 20, 1995. Section II of Ord. No. 98-5-5 enacted new provisions as Art. XV to read as herein set out.

and each and every day such violation shall continue shall be deemed to constitute a separate offense.

(b) *Civil.* The city may file a civil action for enforcement of this article with civil penalties up to one thousand dollars ($1,000.00) per day for each offense as authorized by subchapter B of Chapter 54 of the Texas Local Government Code, as amended.
(Ord. No. 98-5-5, § II, 5-11-98)

Sec. 6-652. Adopted.

The 1997 edition of the Uniform Administrative Code, a publication of the International Conference of Building Officials, along with the appendices of such code, is hereby adopted and designated as the administrative code of the city to the same extent as if such code were copied verbatim in this article, subject to the deletions, additions, and amendments prescribed in this article. A copy of the 1997 edition of the Uniform Administrative Code is on file in the office of the city secretary.
(Ord. No. 98-5-5, § II, 5-11-98)

Sec. 6-653. Deletions, additions, and amendments.

The following deletions, additions and amendments to the Uniform Administrative Code adopted in this article are hereby approved and adopted:

(1) *Chapter 1, Title, Scope and General.*

Section 102.6, Moved Buildings, is amended by the addition of the following exception:

Exception: Relocated buildings within the jurisdiction may comply with the requirements of the Uniform Code for Building Conservation when the building has been pre-designated or designated as a heritage resource.

Section 103, Definitions, add definitions as follows:

Licensing:

a. Electrical license is authorization issued under the provisions set out in the Code of Ordinances of the City of Plano, allowing an individual to perform work which is controlled by the city electrical code.

b. Mechanical license is authorization issued by the State of Texas allowing an individual to install air conditioning, heating and ventilating systems or their components.

c. Plumbing license is a license issued by the State of Texas under the provisions of Article 6243.101, Vernon's Texas Civil Statutes, as amended (known as "The Plumbing License Law of 1974").

d. Registration is a contractor's registration obtained from the City of Plano.

Toilets:

a. *Permanent toilet facilities:* A room in an existing building or

in the building being constructed with a water closet installed in such room which conforms to the plumbing code, and is continuously available to all workers involved in a construction project.

b. *Temporary toilet facilities:* A portable, fully enclosed, chemically sanitized toilet which is serviced and cleaned at least once a week.

Section 108 is added as follows:

Registration.

a. General. Any person submitting application or validation to obtain a permit in the City of Plano shall be registered as a contractor.

Exception: Homeowners may obtain permits to do work at their residence without being registered.

b. Registration Requirements. Contractors may register by making application on forms provided by the building official. Electrical, irrigation, mechanical and plumbing contractors shall provide proof of required license.

c. Revocation/Suspension. A contractor's registration may be suspended for the following causes:

1. The contractor fails to finalize permits by obtaining the required, approved inspections.
2. The contractor allows use or occupancy of the structure for which a permit was obtained without first obtaining the required authorization.
3. The contractor has been found by the building standards commission to have been grossly negligent in the performance of his/her work. For the purposes of this section, a contractor may be found to have acted in a grossly negligent manner if such contractor has received six (6) municipal court convictions for City Code violations and if such violations occurred in the twelve-month period preceding the revocation/suspension action before the commission.
4. Expiration, suspension or revocation of required license, bond or insurance.

Section 109 is added to read as follows:

Every construction project requiring a building permit within the city limits of the City of Plano shall have adequate toilet facilities for workers associated with the project.

The following shall be considered adequate facilities:

Residential Construction Projects (Single-family).

At least one (1) permanent or temporary toilet facility shall be maintained in each subdivision for the employees or subcontractors of each builder holding a permit for a building in that subdivision. A toilet facility must be provided by each builder as long as the builder holds an active building permit in the subdivision.

Commercial Construction (Including Multi-Family).

At least one (1) permanent or temporary toilet facility shall be maintained at every site where a

building permit has been issued, as long as a building permit is active for the project.

In addition to the justifications in the building code and in addition to other remedies, the building official may issue a stop work order as described in the building code for any work done on a project not in compliance with this section.

(2) *Chapter 2, Organization and Enforcement.*

Subsection 202.4, Stop Orders, is amended by the addition of the following paragraphs:

a. Whenever work is being done that is authorized by a permit, and construction debris from that work is not confined to a container or to a site on the property; and such construction debris poses a threat to public health, safety and comfort so that it constitutes a nuisance, the building official or his designee shall give a written notice identifying the location and nature of such noncompliance and the contractor shall clean up the construction debris within twenty-four (24) hours of receiving written notice of the violation.

At the end of the twenty-four (24) hour period, city shall re-inspect the site and shall assess a re-inspection fee. If at the time of such re-inspection, the construction debris is not confined at the site in accordance with the provisions of this section, city may issue a stop work order for the violation. When a stop work order has been issued, a re-inspection fee shall be assessed and a municipal court citation may be issued. To obtain a re-inspection for removal of the stop work order, a request must be submitted therefor and a re-inspection fee, as set by the building inspection department shall be paid.

Section 204, Board of Appeals, is changed so that the section title shall read "Building Standards Commission."

(3) *Chapter 3, Permits and Inspections.*

Add a *Subsection 301.1.1* to read as follows:

Registration required. No person shall be allowed to obtain a permit or provide a validation for a permit for the purpose of contracting any general, electrical, mechanical or plumbing work unless that person holds the appropriate registration for that work.

Exception: Registration is not required for a homeowner to obtain a permit to do work at their own residence.

Subsection 301.2.1, Building Permits. Item numbers 1 and 2 of the first paragraph are deleted in their entirety, and the remaining items are renumbered accordingly.

Section 302.3, Information on Plans and Specifications, add the following paragraphs:

Foundation plans shall be submitted with each application. These plans shall be designed by an engineer licensed by the State of Texas and shall bear that engineer's seal.

Exception: These plans shall not be required for Group U, Division 1 occupancies when not attached to another occupancy or Group U, Division 2 other than those which are required by separate ordinance.

All structural plans for residential buildings in excess of seven thousand (7,000) square feet in area shall be designed by an engineer licensed by the State of Texas and shall bear that engineer's seal.

Section 303.1 Issuance, add a paragraph:

A demolition permit may be withheld for any building or structure within the Plano Historic Building and Site Survey as designated in the Preservation Plan for a period not exceeding thirty (30) days pending review by the Heritage Commission.

Amend *Section 303.4, Expiration,* the first paragraph to read as follows:

Every permit issued by the building official under the provisions of this code shall expire by limitation and become null and void if the building or work authorized by such permit is not commenced within one hundred eighty (180) days from the date of such permit, or if the building or work authorized by such permit is suspended or abandoned at any time after the work is commenced for a period of one hundred eighty (180) days. Before such work can be recommenced, the permit shall be renewed and the fee to renew shall be one-half (1/2) the amount required for a new permit for such work, provided no changes have been made or will be made in the original plans and specifications for such work; and provided further that such suspension or abandonment has not exceeded six (6) months from the date of expiration. If the work has been abandoned for a period exceeding six (6) months from the date of expiration, the permittee shall pay a full permit fee for a new permit. Permits may only be renewed one (1) time. Permits which expire with outstanding failed inspections shall only be valid for a period of thirty (30) days from their renewal date unless specifically extended by the building official.

Add a *Section 303.6* to read as follows:

Permits may be withdrawn by the applicant if no work has commenced on the project. Permit fees exceeding fifty dollars ($50.00) may be partially refunded. Where applicable, fees will be refunded at eighty (80) percent of their original value, excluding the plan review and fire protection plan review deposits.

Permits for which work has commenced may not be withdrawn unless a subsequent permittee has obtained a permit to complete the work, or when work has started unless an inspection has been made and the building official has determined that the existing work has created no violation of any code or ordinance.

Expired permits may not be withdrawn.

Withdrawn permits with fees of less than fifty dollars ($50.00) are nonrefundable.

Section 304.2, delete the first sentence and replace with the following:

The fee for each permit shall be as set forth by the city council resolution.

Add a *Section 304.2.1* to [read] as follows:

Fire Protection Plan Review Fee. All new and existing construction shall be assessed a fire protection plan review fee in addition to the permit fees. Said plan review fee shall be paid at the time of submitting building plans and specifications for review.

Subsection 309.1, Use or Occupancy, first paragraph, is changed to read as follows and the exception thereunder is retained:

Buildings or structures shall not be used or occupied nor shall a change in existing occupancy classification or reoccupancy of a building or structure or portion thereof

be made until the building official has issued a certificate of occupancy therefor as provided herein.

Subsection 309.2, Change in Use, is amended by the addition of the following paragraph:

A change in occupant shall require that a corrected certificate be issued which will correctly reflect the current occupant. An inspection of the property shall be made to verify that the property complies with the provisions of the Plano Nonresidential Property Code.

(Ord. No. 98-5-5, § II, 5-11-98; Ord. No. 98-8-36, § I, 8-24-98)

Secs. 6-654—6-660. Reserved.

ARTICLE XVI. BUILDING SECURITY CODE*

Sec. 6-661. Penalties.

(a) *Criminal.* Any person, firm, or corporation violating any of the provisions or terms of this article or the code adopted herein shall be deemed guilty of a misdemeanor and, upon conviction thereof, be subject to a fine not exceeding two thousand dollars ($2,000.00) for each offense, and each and every day such violation shall continue shall be deemed to constitute a separate offense.

(b) *Civil.* The city may file a civil action for enforcement of this article with civil penalties up to one thousand dollars ($1,000.00) per day for each offense as authorized by subchapter B of Chapter 54 of the Texas Local Government Code, as amended.

(Ord. No. 98-3-29, § II, 3-23-98; Ord. No. 98-4-18, § II, 4-27-98)

*__Editor's note—__Ord. No. 98-3-29, § I, adopted March 23, 1998, repealed provisions formerly set out as Art. XVI of Ch. 6. Former Art. XVI, §§ 6-661, 6-662, pertained to the building security code and derived from Ord. No. 93-9-26, §§ I, II, adopted Sept. 13, 1993. Section II of Ord. No. 98-3-29 adopted new provisions as Art. XVI to read as herein set out.

Sec. 6-662. Adopted.

The 1997 edition of the Uniform Building Security Code, a publication of the International Conference of Building Officials, along with the appendices and guidelines of such code, is hereby adopted and designated as the building security code of the City of Plano to the same extent as if such code were copied verbatim in this article, subject to deletions, additions, and amendments prescribed in this article. A copy of the 1997 edition of the Uniform Building Security Code is on file in the office of the city secretary.

(Ord. No. 98-3-29, § II, 3-23-98)

Sec. 6-663. Administrative authority.

For purposes of this article and interpreting the code adopted in this article, the term "administrative authority" shall mean the building official of the city, his agents and employees who are hereby empowered with the authority to administer and enforce the provisions of the article and the building security code.

(Ord. No. 98-3-29, § II, 3-23-98)

Sec. 6-664. Deletions, additions, and amendments.

The following amendments to the Uniform Building Security Code adopted herein are hereby approved and adopted:

(1) *Appendix Chapter 10, Security Provisions.*

Subsection 1016.1, General, of Section 1016, Swinging Doors, is changed to read as follows:

Swinging doors regulated by this chapter required for security shall be a minimum one and three-eighths-inch solid wood door or approved alternate.

Subsection 1016.4, Locking Hardware, of Section 1016, Swinging Doors, is changed to read as follows:

Single swinging doors and the active leaf of doors in pairs equipped with an approved exterior key operating dead-

bolt. See Chapter 10 of the Uniform Building Code for requirements on door operation for exiting.

(Ord. No. 98-3-29, § II, 3-23-98)

Secs. 6-665—6-670. Reserved.

ARTICLE XVII. BUILDING CONSERVATION CODE*

Sec. 6-671. Penalties.

(a) *Criminal.* Any person, firm, or corporation violating any of the provisions or terms of this article or the code adopted herein shall be deemed guilty of a misdemeanor and, upon conviction thereof, be subject to a fine not exceeding two thousand dollars ($2,000.00) for each offense, and each and every day such violation shall continue shall be deemed to constitute a separate offense.

(b) *Civil.* The city may file a civil action for enforcement of this article with civil penalties up to one thousand dollars ($1,000.00) per day for each offense as authorized by subchapter B of Chapter 54 of the Texas Local Government Code, as amended.

(Ord. No. 98-3-28, § II, 3-23-98; Ord. No. 98-4-21, § II, 4-27-98)

Sec. 6-672. Adopted.

The 1997 edition of the Uniform Code for Building Conservation, a publication of the International Conference of Building Officials along with the appendices and guidelines of such code, is hereby adopted and designated as the building conservation code of the city to the same extent as if such code were copied verbatim in this article, subject to deletions, additions, and amendments prescribed in this article. A copy of the 1997 edition of the Uniform Code for Building Conservation is on file in the office of the city secretary.

(Ord. No. 98-3-28, § II, 3-23-98)

Sec. 6-673. Administrative authority.

For purposes of this article and interpreting the code adopted in this article, the term "administrative authority" shall mean the building official of the city, his agents and employees who are hereby empowered with the authority to administer and enforce the provisions of the article and the building conservation code.

(Ord. No. 98-3-28, § II, 3-23-98)

Sec. 6-674. Deletions, additions, and amendments.

The following deletions, additions, and amendments to the Uniform Code for Building Conservation adopted herein are hereby approved and adopted:

(1) *Chapter 2, Enforcement and Permits.*

Section 207, Building Conservation Advisory and Appeal Board, is amended so that the section title shall read "Building Standards Commission".

(1.1) *Chapter 3, Definitions.*

Delete the definition for *Historic Building.*

Add the following definition:

Pre-Designated or Designated Heritage Resource Building is a building or structure that has been designated by official action of the legally constituted authority of this jurisdiction as having special historical or architectural significance.

(2) *Appendix Chapter 2, Life-Safety Requirements for Existing High-Rise Buildings,* is deleted in its entirety.

(3) *Appendix Chapter 4, Energy Conservation,* is deleted in its entirety.

(Ord. No. 98-3-28, § II, 3-23-98; Ord. No. 98-8-37, § I, 8-24-98)

Secs. 6-675—6-683. Reserved.

*__Editor's note__—Ord. No. 98-3-28, § I, adopted March 23, 1998, repealed provisions formerly set out as Art. XVII of Ch. 6. Former Art. XVII, §§ 6-671—6-673, pertained to the building conservation code and derived from Ord. No. 94-10-34, § I, adopted Oct. 24, 1994. Section II of Ord. No. 98-3-28 adopted new provisions as Art. XVII to read as herein set out.

ARTICLE XVIII. ENERGY CONSERVATION CODE*

DIVISION 1. GENERALLY

Sec. 6-684. Penalty.

Any violation of the provisions or terms of this article by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with section 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.
(Ord. No. 2016-3-7, § II, 3-14-16; Ord. No. 2018-11-14, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-15, § II, 1-24-22; Ord. No. 2025-6-10, § II, 6-9-25)

Sec. 6-685. Adopted.

The 2024 Edition of the International Energy Conservation Code, a publication of the International Code Council (I.C.C.), is hereby adopted and designated as the Energy Conservation Code of the city to the same extent as if such code were copied verbatim in this article, subject to deletions, additions, and amendments prescribed in this article. A copy of the 2024 Edition of the International Energy Conservation Code is on file in the office of the city secretary.
(Ord. No. 2016-3-7, § II, 3-14-16; Ord. No. 2018-11-14, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-15, § II, 1-24-22; Ord. No. 2025-6-10, § II, 6-9-25)

*__Editor's note—__Ord. No. 2016-3-7, §§ I, II, adopted March 14, 2016, repealed and reenacted article XVIII in its entirety to read as herein set out. Formerly, article XVIII pertained to similar subject matter, and derived from Ord. No. 2013-10-29, § II, adopted October 28, 2013; Ord. No. 2014-1-5, § I, adopted January 13, 2014.

DIVISION 2. AMENDMENTS

Sec. 6-686. Deletions, additions, amendments.

The following deletions, additions, and amendments to the International Energy Conservation Code adopted herein are hereby approved and adopted:

Sec. C104.1; change section C104.1 by adding a new Section C104.1.2 to read as follows:

Sec. C104.1.2 Alternative compliance. A building certified by a national, state, or local accredited energy efficiency program and determined by the Energy Systems Laboratory to be in compliance with the energy efficiency requirements of this section may, at the option of the *code official*, be considered in compliance. The United States Environmental Protection Agency's Energy Star Program certification of energy code equivalency shall be considered in compliance.

Sec. C403.7.4.1; change to read as follows:

Sec. C403.7.4.1 Nontransient dwelling units. Nontransient dwelling units shall be provided with outdoor air energy recovery ventilation systems complying with not less than one of the following:

1. The system shall have an *enthalpy recovery ratio* of not less than 50 percent at cooling design condition and not less than 60 percent at heating design condition.
2. The system shall have a sensible recovery efficiency (SRE) that is not less than 65 percent at 32°F (0°C) and, in Climate Zones 0A, 1A, 2A and 3A, shall have a net moisture transfer (NMT) that is not less than 40 percent at 95°F (35°C). SRE and NMT shall be determined from a *listed* value or from interpolation of *listed* values at an airflow not less than the design airflow, based on testing in accordance with CAN/CSA C439.

Exceptions:

1. Nontransient dwelling units in Climate Zone 3C.

2. Nontransient dwelling units with not more than 500 square feet (46 m^2) of *conditioned floor area* in Climate Zones 0, 1, 2, 3, 4C and 5C.

3. *Enthalpy recovery ratio* requirements at heating design condition in Climate Zones 0, 1 and 2.

4. *Enthalpy recovery ratio* requirements at cooling design condition in Climate Zones 4, 5, 6, 7 and 8.

5. Dwelling units using ventilation systems per the Fan Efficacy Table in R406, shall be considered in compliance.

Sec. C405.2.10; delete Section C405.2.10 "Sleeping unit and dwelling unit lighting and switched receptacle controls" in its entirety.

Sec. R104; change Section R104.1 by adding a new Section R104.1.2 (N1101.4.1) to read as follows:

Sec. R104.1.2 (N1101.4.1) Alternative compliance. A building certified by a national, state, or local accredited energy efficiency program and determined by the Energy Systems Laboratory to be in compliance with the energy efficiency requirements of this section may, at the option of the *code official*, be considered in compliance. The United States Environmental Protection Agency's Energy Star Program certification of energy code equivalency shall be considered in compliance. Regardless of the program or the path to compliance, each one- and two-family dwelling shall be tested for air and duct leakage as prescribed in Section R402.4.1.2 (N1102.4.1.2) and R403.3.3 (N1103.3.3), respectively.

Sec. R105.2.2; delete Section R105.2.2 "Solar-ready system" in its entirety.

Sec. R106.3; delete Section R106.3 "Permit valuation" in its entirety.

Sec. R202 (N1101.6); change Section R202 by adding the following definition:

DYNAMIC GLAZING. Any fenestration product that has the fully reversible ability to change its performance properties, including *U*-factor, solar heat gain coefficient (SHGC), or visible transmittance (VT).

Sec. R401.2.1; change to read as follows:

Sec. R401.2.1 Prescriptive Compliance Option. The Prescriptive Compliance Option requires compliance with Sections R401 through R404.

Table R402.1.2; *change a portion of Table R402.1.2 "Maximum Assembly U-Factors and Fenestration Requirements" to add an additional category and subnote "f" to read as follows (remainder of Table is unchanged):*

Climate Zone	3
Attic roofline *U*-factor[f]	**0.035**

f. Air-impermeable insultation located at the attic roofline but below the roof deck may be used if mechanical equipment and air distribution system are located entirely within the building thermal envelope. "Air-impermeable shall be defined as having an air permeance not exceeding 0.2 L/s- m 2 at 75 Pa Pressure differential tested according to ASTM E 2178 or ASTM E 283.

Table R402.1.3; *change a portion of Table R402.1.3 "Insulation Minimum R-Values and Fenestration Requirements by Component" to add an additional category and subnote "i" to read as follows (remainder of Table is unchanged):*

Climate Zone	3
Attic roofline *R*-value[i]	**30+0** *ci*

i. Air-impermeable insulation of R-30&0 or greater located at the attic roofline but below the roof deck may be used if mechanical equipment and air distribution system are located entirely within the building thermal envelope. "Air-impermeable" shall be defined as having an air permeance not exceeding 0.02 L/s-m 2 at 75 Pa pressure differential tested according to ASTM E 2178 or ASTM E 283.

Sec. R402.2.10 (N1102.2.10); change to read as follows:

Sec. R402.2.10 (N1102.2.10) Slab-on-grade floors. Slab-on-grade floors with a floor surface within 24 inches (610 mm) above or below grade shall be insulated in accordance with Section R402.2.10.1 or R402.2.10.2.

Exception: Slab-edge insulation is not required in jurisdictions designated by the code official as having a moderate to heavy or very heavy termite infestation probability.

Sec. R402.5.5 (N1102.5.5); change to read as follows:

Sec. R402.5.5 (N1102.5.5) Air-sealed electrical and communication outlet boxes. Air-sealed electrical and communication outlet boxes that penetrated the *air barrier* of the *building thermal envelope* shall be caulked, taped, gasketed or otherwise sealed to the *air barrier* element being penetrated. Air-sealed boxes shall be buried in or surrounded by insulation. Air-sealed boxes shall be tested and marked in accordance with NEMA OS 4. Air-sealed boxes shall be installed in accordance with the manufacturer's instructions.

Exception: Boxes may be air-sealed in the field using caulk, tape, gasket or other approved method to prevent air leakage through the box in lieu of NEMA OS 4 boxes. Boxes air-sealed in the field shall be sealed to the air barrier element being penetrated and installed in accordance with manufacturer's instructions.

Sec. R404.2; delete Section R404.2 "Interior lighting controls" in its entirety.

Table R405.4.2(1) (N1105.4.2(1)); change Table R405.4.2(1) "Specifications for the Standard Reference and Proposed Designs" by amending the Foundations building component and adding a subnote "n" to read as follows (remainder of Table is unchanged):

BUILDING COMPONENT	STANDARD REFERENCE DESIGN	PROPOSED DESIGN
Foundations	Type: same as proposed.	As proposed
	Foundation wall or slab extension above grade: 1 foot (30 cm). Foundation wall or slab extension below grade: same as proposed Foundation wall or slab perimeter length: same as proposed. Soil characteristics: same as proposed.	As proposed
	Foundation wall U-factor and slab-on-grade F-factor: as specified in Table R402.1.2.[n]	As proposed

For SI: 1 square foot = 0.93 m^2, 1 British thermal unit = 1055 J, 1 pound per square foot = 4.88 kg/m^2, 1 gallon (US) = 3.785 L, °C = (°F-32)/1.8, 1 degree = 0.79 rad.

n. In accordance with Section R402.2.10, a maximum *F*-factor of 0.73 shall apply for the reference design in jurisdictions designated by the *code official* as having a moderate to heavy or very heavy termite infestation probability.

Table R406.5 (N1106.5); change a portion of Table R406.5 "Maximum Energy Rating Index" to read as follows (remainder of Table is unchanged):

TABLE R406.5[1]
MAXIMUM ENERGY RATING INDEX

CLIMATE ZONE	ENERGY RATING INDEX Not including OPP	ENERGY RATING INDEX with OPP
3	59	

[1] This table is effective from September 1, 2022 until August 31, 2025.

TABLE R406.5 [2]
MAXIMUM ENERGY RATING INDEX

CLIMATE ZONE	ENERGY RATING INDEX Not including OPP	ENERGY RATING INDEX with OPP
3	57	

[2] The table is effective from September 1, 2025 to August 31, 2028.

TABLE R406.5 *(N1106.5)* [3]
MAXIMUM ENERGY RATING INDEX

CLIMATE ZONE	ENERGY RATING INDEX Not including OPP	ENERGY RATING INDEX WITH OPP
3	55	

[3] This table is effective on or after September 1, 2028.

Section R408; Section R408 "Additional Efficiency Requirements" is deleted in its entirety.
(Ord. No. 2016-3-7, § II, 3-14-16; Ord. No. 2018-11-14, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-15, § II, 1-24-22; Ord. No. 2025-6-10, § II, 6-9-25)

Secs. 6-687—6-695. Reserved.

ARTICLE XIX. FUEL GAS CODE*

DIVISION 1. GENERALLY

Sec. 6-696. Penalty.

Any violation of the provisions or terms of this article by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with section 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.
(Ord. No. 2016-3-8, § II, 3-14-16; Ord. No. 2018-11-15, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-16, § II, 1-24-22; Ord. No. 2025-6-9, § II, 6-9-25)

Sec. 6-697. Adopted.

The 2024 Edition of the International Fuel Gas Code, a publication of the International Code Council (I.C.C.) is hereby adopted and designated as the Fuel Gas Code of the City of Plano to the same extent as if such Code were copied verbatim in this article, subject to deletions, additions, and amendments prescribed in this article. A copy of the 2024 Edition of the International Fuel Gas Code is on file in the office of the city secretary.
(Ord. No. 2016-3-8, § II, 3-14-16; Ord. No. 2018-11-15, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-16, § II, 1-24-22; Ord. No. 2025-6-9, § II, 6-9-25)

DIVISION 2. AMENDMENTS

Sec. 6-698. Deletions, additions, amendments.

Sec. 102.2; add an exception to read as follows:

Exception: Existing dwelling units shall comply with Section 621.2.

Sec. 102.8.2; change to read as follows:

Sec. 102.8.2 Provisions in referenced codes and standards. Where the extent of the reference to a referenced code or standard includes subject matter that is within the scope of this code, the provisions of this code, as applicable, shall take preference over the provisions in the referenced code or standard. Any reference to NFPA 70 shall mean the National Electrical Code as adopted.

Section 306.3; change to read as follows:

Sec. 306.3 Appliances in attics. Attics containing *appliances* shall be provided with

*__Editor's note—__Ord. No. 2016-3-8, §§ I, II, adopted March 14, 2016, repealed and reenacted article XIX in its entirety to read as herein set out. Formerly, article XIX pertained to similar subject matter, and derived from Ord. No. 2013-10-28, § II, adopted October 28, 2013.

an opening and unobstructed passageway large enough to allow removal of the largest *appliance.* The passageway shall be not less than 30 inches (762 mm) high and 22 inches (599 mm) wide and to more than 20 feet (6096 mm) in length measured along the centerline of the passageway from the opening to the *appliance.* The passageway shall have continuous solid flooring not less than 24 inches (610 mm) wide. A level service space not less than 30 inches (762 mm) deep and 30 inches (762 mm) wide shall be present at the front or service side of the *appliance.* The clear access opening dimensions shall be not less than 20 inches by 30 inches (508 mm by 762 mm), and large enough to allow removal of the largest appliance. A minimum access to the attic space shall be provided by one of the following means:

1. A permanent Stair.
2. A pull-down stair with a minimum 300 lb (136 kg) capacity.
3. An access door from an upper floor level.

Exceptions:

1. The passageway and level service space are not required where the *appliance* is capable of being serviced and removed through the required opening with the approval of the code official.
2. Where the passageway is unobstructed and not less than 6 feet (1829 mm) high and 22 inches (559 mm) wide for its entire length, the passageway shall be not greater than 50 feet (15,250 mm) in length.

Section 306.5; change the first paragraph of Section 306.5 to read as follows:

Sec. 306.5 Equipment and Appliances on Roofs or Elevated Structures. Where equipment requiring access or appliances are located on an elevated structure or the roof of a building such that personnel will have to climb higher than 16 feet (4877 mm) above grade to access such equipment or appliances, an interior or exterior means of access shall be provided. Exterior ladders providing roof access need not extend closer than 12 feet (2438 mm) to the finish grade or floor level below and shall extend to the equipment and appliances' level service space. Such access shall not require climbing over obstructions greater than 30 inches (762 mm) in height or walking on roofs having a slope greater than 4 units vertical in 12 units horizontal (33-percent slope). Such access shall not require the use of portable ladders.

Sec. 306.5.1; change to read as follows:

Sec. 306.5.1 Sloped roofs. Where appliances, equipment, fans or other components that require service are installed on a roof having a slope of 3 units vertical in 12 units horizontal (25-percent slope) or greater and having an edge more than 30 inches (762 mm) above grade at such edge, a catwalk, at least 16 inches in width with substantial cleats spaced not more than 16 inches apart, shall be provided from the roof access to a level platform at the appliance. The level platform shall be provided on each side of the appliance to which access is required for service, repair or maintenance. The platform shall be not less than 30 inches (762 mm) in any dimension and shall be provided with guards. The guards shall extend not less than 42 inches (1067 mm) above the platform, shall be constructed so as to prevent the passage of a 21-inch-diameter (533 mm) sphere and shall comply with the loading requirements for guards specified in the *International Building Code.*

Sec. 401.5; add a second paragraph to Section 401.5 to read as follows:

Both ends of each section of medium pressure gas piping shall identify its operating gas pressure with an approved tag. The tags are to be composed of aluminum or stainless steel and the following wording shall be stamped into the tag:

"WARNING
½ to 5 psi gas pressure
Do Not Remove"

Sec. 404.12; change to read as follows:

Sec. 404.12 Minimum burial depth. Underground piping systems shall be installed a minimum depth of 18 inches (458 mm) top of pipe below grade.

Sec. 404.12.1; delete section in its entirety.

Sec. 406.4; change to read as follows:

Sec. 406.4 Test pressure measurement. Test pressure shall be measured with a manometer or with a pressure-measuring device designed and calibrated to read, record, or indicate a pressure loss caused by leakage during the pressure test period. The source of pressure shall be isolated before the pressure tests are made. Mechanical gauges used to measure test pressures shall have a range such that the highest end of the scale is not greater than five times the test pressure. Spring type gauges do not meet the requirement of a calibrated gauge.

Sec. 406.4.1; change to read as follows:

Sec. 406.4.1 Test pressure. The test pressure to be used shall be no less than 3 psig (20 kPa gauge), or at the discretion of the Code Official, the piping and valves may be tested at a pressure of at least six (6) inches (152 mm) of mercury, measured with a manometer or slope gauge. For tests requiring a pressure of 3 psig, diaphragm gauges shall utilize a dial with a minimum diameter of three and one-half inches (3½"), a set hand, 1/10 pound incrementation and pressure range not to exceed 15 psi for tests requiring a pressure of 3 psig. For tests requiring a pressure of 10 psig, diaphragm gauges shall utilize a dial with a minimum diameter of three and one-half inches (3½"), a set hand, a minimum of 2/10 pound incrementation and a pressure range not to exceed 50 psi. For welded piping, and for piping carrying gas at pressures in excess of fourteen (14) inches water column pressure (3.48 kPa) (1/2 psi) and less than 200 inches of water column pressure (52.2 kPa) (7.5 psi), the test pressure shall not be less than ten (10) pounds per square inch (69.6 kPa). For piping carrying gas at a pressure that exceeds 200 inches of water column (52.2 kPa) (7.5 psi), the test pressure shall be not less than one and one-half times the proposed maximum working pressure.

Diaphragm gauges used for testing must display a current calibration and be in good working condition. The appropriate test must be applied to the diaphragm gauge used for testing.

Sec. 408.2 Drips; delete this section in its entirety.

Sec. 408.3 Location of Drips; delete this section in its entirety.

Sec. 408.4 Sediment Trap; delete this section in its entirety.

Sec. 409.1; add a new Section 409.1.4 to Section 409.1 to read as follows:

Sec. 409.1.4 Valves in CSST installations. Shutoff valves installed with corrugated stainless steel (CSST) piping systems shall be supported with an approved termination fitting, or equivalent support, suitable for the size of the valves, of adequate strength and quality, and located at intervals so as to prevent or damp out excessive vibration but in no case greater than 12-inches from the center of the valve. Supports shall be installed so as not to interfere with the free expansion and contraction of the system's piping, fittings, and valves between anchors. All valves and supports shall be designed and installed so they will not disengage by movement of the supporting piping.

Sec. 410.1; add a second paragraph and exception to Section 410.1 Pressure Regulators read as follows:

Access to regulators shall comply with the requirements for access to appliances as specified in Section 306.

Exception: A passageway or level service space is not required when the regulator is capable of being serviced and removed through the required attic opening.

Sec. 621.2; add an exception to Section 621.2 Prohibited Use to read as follows:

Exception: Existing approved unvented heaters may continue to be used in dwelling units, in accordance with the code provisions in effect when installed, when approved by the

Code Official unless an unsafe condition is determined to exist as described in Section 108.7.

(Ord. No. 2016-3-8, § II, 3-14-16; Ord. No. 2018-11-15, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-16, § II, 1-24-22; Ord. No. 2025-6-9, § II, 6-9-25)

Secs. 6-699—6-707. Reserved.

ARTICLE XX. RESIDENTIAL CODE*

DIVISION 1. GENERALLY

Sec. 6-708. Penalty.

Any person, firm or corporation found to be violating any term or provision of this article, shall be subject to a fine in accordance with section 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(Ord. No. 2016-3-12, § II, 3-14-16; Ord. No. 2018-11-16, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-17, § II, 1-24-22; Ord. No. 2025-6-15, § II, 6-9-25)

Sec. 6-709. Adopted.

The 2024 Edition of the International Residential Code, a publication of the International Code Council (I.C.C.), is hereby adopted and designated as the Residential Code of the City of Plano to the same extent as if such code were copied verbatim in this article, subject to deletions, additions, and amendments prescribed in this article. A copy of the 2024 Edition of the International Residential Code is on file in the office of the city secretary.

(Ord. No. 2016-3-12, § II, 3-14-16; Ord. No. 2018-11-16, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-17, § II, 1-24-22; Ord. No. 2025-6-15, § II, 6-9-25)

*__Editor's note—__Ord. No. 2016-3-12, §§ I, II, adopted March 14, 2016, repealed and reenacted article XX in its entirety to read as herein set out. Formerly, article XX pertained to similar subject matter, and derived from Ord. No. 2013-10-25, § II, adopted October 28, 2013.

DIVISION 2. AMENDMENTS

Section 6-710. Deletions, additions, amendments.

The following deletions, additions, and amendments to the International Residential Code adopted herein are hereby approved and adopted:

Sec. R101.1; change the section to read as follows:

Sec. R101.1 Title. These regulations shall be known as the *Residential Code for One- and Two-family Dwellings* of the City of Plano, Texas hereinafter referred to as "this *code*."

Sec. R102.4; change the section to read as follows:

Sec. R102.4 Referenced codes and standards. The *codes*, when specifically adopted, and standards referenced in this *code* shall be considered part of the requirements of this *code* to the prescribed extent of each such reference and as further regulated in Sections R102.4.1 and R102.4.2. Whenever amendments have been adopted to the referenced *codes* and standards, each reference to said *code* and standard shall be considered to reference the amendments as well. Any reference made to NFPA 70 or the *Electrical Code* shall mean the *Electrical Code* as adopted.

Secs. R103 and R103.1; change the section to read as follows [Sections R103.2 and R103.3 to remain unchanged]:

SECTION R103 — BUILDING INSPECTIONS DEPARTMENT.

Sec. R103.1 Creation of enforcement agency. The Building Inspections Department is hereby created and the official in charge thereof shall be known as the *building official*.

Sec. R104.2.3.1 Flood hazard areas; this section is deleted in its entirety.

Sec. R104.3.1 Determination of substantially improved or substantially damaged existing buildings in flood hazard areas; this section is deleted in its entirety.

Sec. R104.7; change the section to read as follows:

Sec. R104.7 Official records. The *building official* shall keep official records as required in Sections R104.7.1 through R104.7.5. Such official records shall be retained for as long as the building or structure to which such records relate remains in existence, unless otherwise provided by other regulations.

Sec. R105.2; change the Building category of Section R105.2 "Work exempt from permit" to read as follows (all other provisions and text of Section 105.2 to remain unchanged):

Building:

1. One-*story* detached *accessory structures*, provided that the floor area does not exceed 120 square feet.
2. [Deleted.]
3. *Retaining walls* that are not over 4 feet (1219 mm) in height measured from the bottom of the footing to the top of the wall, unless supporting a surcharge.
4. Water tanks supported directly upon *grade* if the capacity does not exceed 5,000 gallons (18 927 L) and the ratio of height to diameter or width does not exceed 2 to 1.
5. [Deleted.]
6. Painting, papering, tiling, carpeting, cabinets, counter tops and similar finish work.
7. Prefabricated swimming pools that are less than 24 inches (610 mm) deep.
8. Swings and other playground equipment.
9. Window awnings supported by an exterior wall that do not project more than 54 inches (1372 mm) from the exterior wall and do not require additional support.
10. Decks not exceeding 200 square feet (18.58 m^2) in area, that are not more than 30 inches (762 mm) above *grade* at any point, are not attached to a *dwelling* or *townhouse* and do not serve the exit door required by Section R311.4.

Sec. R105.3; change the section to read as follows:

Sec. R105.3 Application for permit.

A. To obtain a *permit*, the applicant shall first file an application therefor in writing on a form furnished by the department of building safety for that purpose. Such application shall:
   1. Identify and describe the work to be covered by the *permit* for which application is made.
   2. Describe the land on which the proposed work is to be done by legal description, street address or similar description that will readily identify and definitely locate the proposed *building* or work.
   3. Indicate the use and occupancy for which the proposed work is intended.
   4. Be accompanied by *construction documents* and other information as required in Section R106.1.
   5. [Deleted.]
   6. Be signed by the applicant or the applicant's authorized agent.
   7. Give such other data and information as required by the *building official*.

B. To obtain a permit, the applicant shall be registered as a contractor. Such registration requirements are as follows:
   1. Contractors shall register by making application on forms provided by the building official.
   2. Electrical, irrigation, mechanical, and plumbing contractors shall provide proof of required State of Texas licenses and insurance.

3. A contractor's registration may be suspended for the following causes:
   a. The contractor fails to finalize permits by obtaining the required, approved inspections.
   b. The contractor allows use or occupancy of a structure for which a permit was obtained without first obtaining the required authorization.
   c. Expiration, suspension or revocation of required license, bond, or insurance.

Exception: Homeowners may obtain permits to do work at their residence without being registered.

Section R105.3.1; change the section to read as follows:

Sec. R105.3.1 Action on application. The *building official* shall examine or cause to be examined applications for *permits* and amendments thereto within a reasonable time after filing. If the application or the *construction documents* do not conform to the requirements of pertinent laws, the *building official* shall reject such application in writing stating the reasons thereof. If the *building official* is satisfied that the proposed work conforms to the requirements of this code and laws and ordinances applicable thereto, the *building official* shall issue a *permit* therefor as soon as practicable. A demolition permit may be withheld for any building or structure within the Plano Historic Building and Site Survey, as designated in the Preservation Plan, for a period not exceeding thirty (30) days pending review by the Heritage Commission.

Section R105.10; change Section R105 by adding a new Section R105.10 to read as follows:

Sec. R105.10 Withdrawn permits. *Permits* may be withdrawn by the applicant if no work has commenced on the project. Permit fees exceeding $100.00 may be partially refunded. Where applicable, fees will be refunded at 80 percent of their original value, excluding the plan review and fire protection plan review deposits.

Permits for which work has commenced may not be withdrawn unless a subsequent permittee has obtained a *permit* to complete the work, or when work has started unless an inspection has been made and the *building official* has determined that the existing work has created no violation of any code or ordinance.

Expired *permits* may be withdrawn if determined by the *building official* that no work has commenced.

Withdrawn *permits* with fees of less than one hundred dollars ($100) are nonrefundable.

Sec. R106.1.3; change the section to read as follows:

Sec. R106.1.3 Information on braced wall design. For buildings and structures utilizing braced wall design, and where required by the *building official*, braced wall lines shall be identified on the *construction documents* and shall be designed by an engineer licensed by the State of Texas. Pertinent information including, but not limited to, bracing methods, location and length of braced wall panels and foundation requirements of braced wall panels at top and bottom shall be provided.

Sec. R106.3.1; change the section to read as follows:

Sec. R106.3.1 Approval of construction documents. When the *building official* issues a permit, the *construction documents* shall be approved, in writing, or by a stamp which states "APPROVED and APPROVED AS NOTED BY THE BUILDING OFFICIAL." One set of *construction documents* so reviewed shall be retained by the *building official*. The other set shall be returned to the applicant, shall be kept at the site of work, and shall be open to inspection by the *building official* or a duly authorized representative.

Sec. R107; change Section R107 by adding a new Section R107.2.1 to read as follows:

Sec. R107.2.1 Adequate toilet facilities. In partially completed phased subdivisions or projects, more than one permanent or temporary toilet may be required, but not less

than one shall be provided and at least one permanent or temporary toilet facility shall be maintained in each subdivision or project for the employees or subcontractors of each builder holding a permit for a building in that subdivision or project. A toilet facility must be provided by each builder as long as the builder holds an active *building permit* in the subdivision or project.

For purposes of this section, permanent toilet facility is defined as a room in an existing building or in the building being constructed with a water closet installed in such a room that conforms to the *Plumbing Code* and is continuously available to all workers involved in a construction project. Temporary toilet facility is defined as a portable, fully enclosed, chemically sanitized toilet, which is serviced and cleaned at least once each week. A Stop Work Order may be issued for any project not in compliance with this section.

Sec. R108; change Section R108 by adding a new Section 108.7 to read as follows:

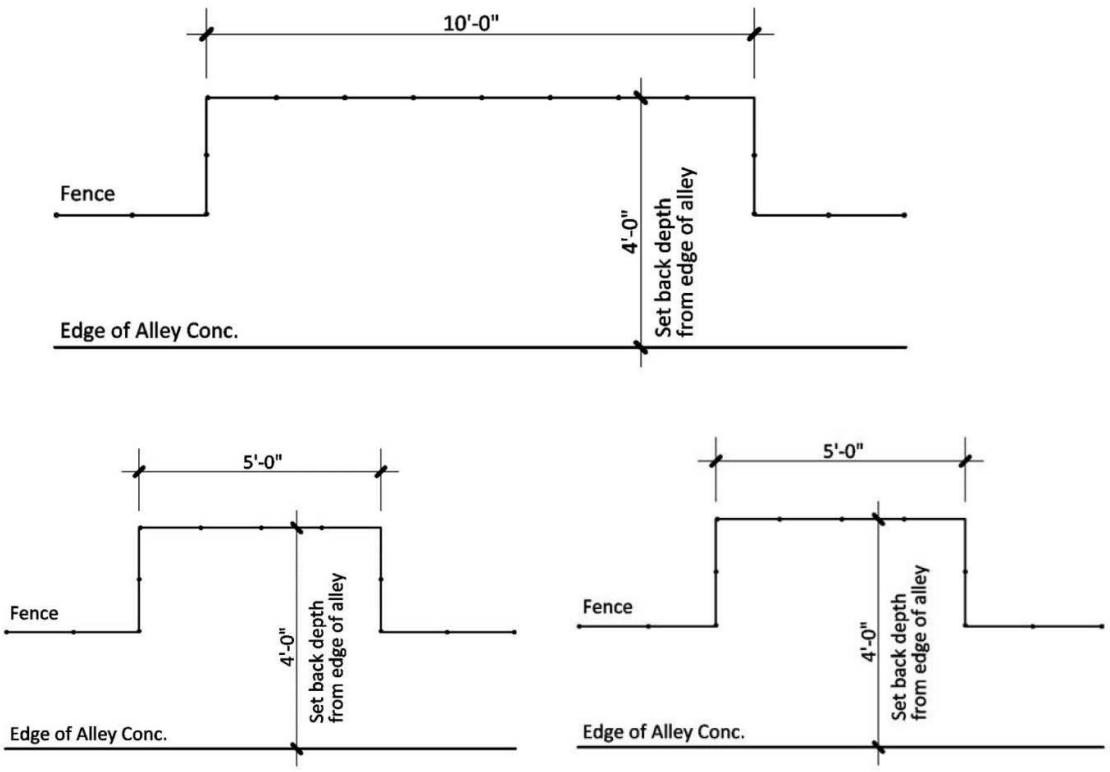
Sec. R108.7 Re-inspection fee. A re-inspection fee may be charged due to one of the following occurrences:

1. The inspection called for is not ready when the inspector arrives.
2. No building address or permit card is clearly posted.
3. Approved plans are not on the job site available to the inspector.
4. The building is locked or work otherwise not available for inspection when called.
5. The job site is red-tagged twice for the same item.
6. Violations exist on the property including failure to maintain erosion control, trash control or tree protection.

Sec. R109.1.5; change Section R109.1.5 to add a new Section 109.1.5.2 and Figure R109.1.5.2 to read as follows:

Sec. R109.1.5.2 Fences with rolling gates. Where a fence with a rolling gate is constructed, a trash dumpster service access pad shall be installed. The trash dumpster service access pad shall be a ten foot by four foot (10x4) space, setback four (4) feet from the edge of the alley, or shall be two (2) five foot by four foot (5x4) spaces, setback four (4) feet from the edge of the alley. See Figure 109.1.5.2.

FIGURE R 109.1.5.2 - FENCE LAYOUTS FOR ROLLING GATES



Section R110.1; *change the section to read as follows:*

Sec. R110.1 Use and change of occupancy. A *building* or structure shall not be used or occupied in whole or in part, and a *change of occupancy* of a *building* or structure or portion thereof shall not be made, until the *building official* has issued an approval thereof as provided herein. Issuance of an approval shall not be construed as approval of a violation of the provisions of this code or any other ordinance of the *jurisdiction*. Certificates presuming to give authority to violate or cancel the provisions of this code or other ordinances of the *jurisdiction* shall not be valid.

Exceptions:

1. Certificates of occupancy are not required for work exempt from *permits* under Section R105.2.
2. Accessory *buildings* or structures.

Sec. R110.2 Certificate issued; delete section in its entirety.

Sec. R110.3; change section to read as follows:

Sec. R110.3 Temporary occupancy. The *building official* is authorized to issue a temporary approval before the completion of the entire work covered by the *permit*, provided that such portion or portions shall be occupied safely. The *building official* shall set a time period during which the temporary approval is valid.

Sec. R110.4; change section to read as follows:

Sec. R110.4 Revocation. The *building official* is authorized to suspend or revoke an approval issued under the provisions of this code, in writing, whenever the occupancy approval is issued in error, or on the basis of incorrect

information supplied, or where it is determined that the *building* or structure or portion thereof is in violation of the provisions of this code or other ordinance of the *jurisdiction*.

Sec. R112; change the title of the section to read as follows:

SECTION R112
BUILDING STANDARDS COMMISSION.

Sec. R114; change Section R114 by adding a new Section R114.5 to read as follows:

Sec. R114.5 Construction debris.

1. Whenever work is being done that is authorized by a permit, and construction debris from that work is not confined to a container or to a site on the property approved by the *building official* or his designee, and such construction debris poses a threat to public health, safety, and comfort so that it constitutes a nuisance, the *building official* or his designee may order the work stopped and the contractor shall clean up the construction debris within thirty-six (36) hours of receiving notice of the violation. After the expiration of the thirty-six (36) hour period, contractor shall pay the city a re-inspection fee to off-set costs incurred by the city due to the necessary re-inspection before the stop work order is lifted.
2. As used herein, the term "construction debris" shall include all materials utilized in the construction process, including all litter and debris deposited and left remaining upon the premises of a job site by a contractor, subcontractor, and their employees, agents, and assigns.
3. As used herein "costs" shall mean all expense incurred by the city for the cleaning of the job site and the amount of any unpaid municipal court fine.

Sec. R202; change the definition of "Townhouse Unit" in Section R202 "Definitions" to read as follows:

TOWNHOUSE UNIT. A single-family dwelling unit separated by property lines in a townhouse that extends from foundation to roof and that has a *yard* or *public way* on at least two sides.

Sec. R202; add definitions of "Floor Area, Gross" and "Recreation Room" to Section R202 "Definitions" to read as follows:

FLOOR AREA, GROSS. The floor area within the inside perimeter of the exterior walls of the building under consideration, exclusive of vent shafts and courts, without deduction for corridors, stairways, closets, the thickness of interior walls, columns, or other features. The floor area of a building, or portion thereof, not provided with surrounding exterior walls shall be usable area under the horizontal projection of the roof or floor above. The gross floor area shall not include shafts with no openings or interior courts.

RECREATION ROOM. A room in a dwelling unit, which is intended for such uses as viewing television or films, listening to recordings, or participating in video or similar games. The area of this room is not to exceed one-tenth of the floor area of the habitable space of the dwelling unit.

Table R301.2 (1); change Table R-301.2 to read as follows:

TABLE R-301.2
CLIMATIC AND GEOGRAPHIC DESIGN CRITERIA

GROUND SNOW LOAD	WIND DESIGN				SEISMIC DESIGN CATEGORY[f]	SUBJECT TO DAMAGE FROM			WINTER DESIGN TEMP[e]	ICE BARRIER UNDER-LAYMENT[h]	FLOOD HAZARDS[g]	AIR FREEZING INDEX[i]	MEAN ANNUAL TEMP[j]
	SPEED[d] (MPH)	Topographic Effects[k]	Special Wind Region[l]	Windborne Debris Zone[m]		Weathering a	Frost Line Depth[b]	Termite[c]					
9 lb/ft	105 (3 sec-gust)/ 33 ft. above ground Exposure C	No	No	No	A	Moderate	6"	Very Heavy	22^0 F	No	Local Code	150	64.9^0 F

Delete remainder of table Manual J Design Criteria and footnote N

Sec. R302.1; change Section R302.1 "Exterior walls" by adding an Exception 6 to read as follows:

6. Open non-combustible carport structures may be constructed when also approved within adopted ordinances.

Sec. R302.2.6; change Section R302.2.6 "Structural independence" by deleting Exception 6 (remainder of section and exceptions unchanged).

Sec. R302.5.1; change section to read as follows:

Sec. R302.5.1 Opening protection. Openings from a private garage directly into a room used for sleeping purposes shall not be permitted. Other openings between the garage and dwelling unit shall be equipped with solid wood doors not less than 1⅜ inches (35 mm) in thickness, solid or honeycomb-core steel doors not less than 1⅜ inches (35 mm) thick, or 20-minute fire-rated doors.

Sec. R306 Flood Resistant Construction; delete the section in its entirety.

Sec. R308.1; change section to read as follows:

Sec. R308.1 Address identification. *Buildings* shall be provided with *approved* address identification. The address identification shall be legible and placed in a position that is visible from the street or road fronting the property, and from rear alleyways adjacent to the property. Address identification characters shall contrast with their background. Address numbers shall be Arabic numbers or alphabetical letters. Numbers shall not be spelled out. Each character shall be not less than 4 inches (102 mm) in height with a stroke width of not less than 0.5 inch (12.7 mm). Where required by the fire code official, address identification shall be provided in additional *approved* locations to facilitate emergency response. Where access is by means of a private road and the building address cannot be viewed from the *public way*, a monument, pole or other sign or means shall be used to identify the structure. Address identification shall be maintained.

Sec. R309; delete Sections R309.2 "One- and two-family dwellings automatic sprinkler systems" and R309.2.1 "Design and installation" in their entirety.

Sec. R316 Habitable Attics; delete the section in its entirety.

Sec. R325.2; amend the exception in Section R325.2 "Bathrooms" to read as follows:

Exception: The glazed areas shall not be required where artificial light and a *local exhaust* system are provided. The minimum *local exhaust* rates shall be determined in accordance with Section M1505. Exhaust air from the space shall be exhausted directly to the outdoors. Spaces containing only a water closet, or water closet and a lavatory, may be

ventilated with an approved mechanical recirculating fan or similar device designed to remove odors from the air.

Sec. R327; change by adding new Section R327.3 and new Figure 327.3 to read as follows:

Sec. R327.3 Blocking locations. Required at one toilet at grade level with blocking installed at rear wall and one wall adjacent to toilet and at one tub or shower at grade level. Blocking as shown in Figure R327.3.

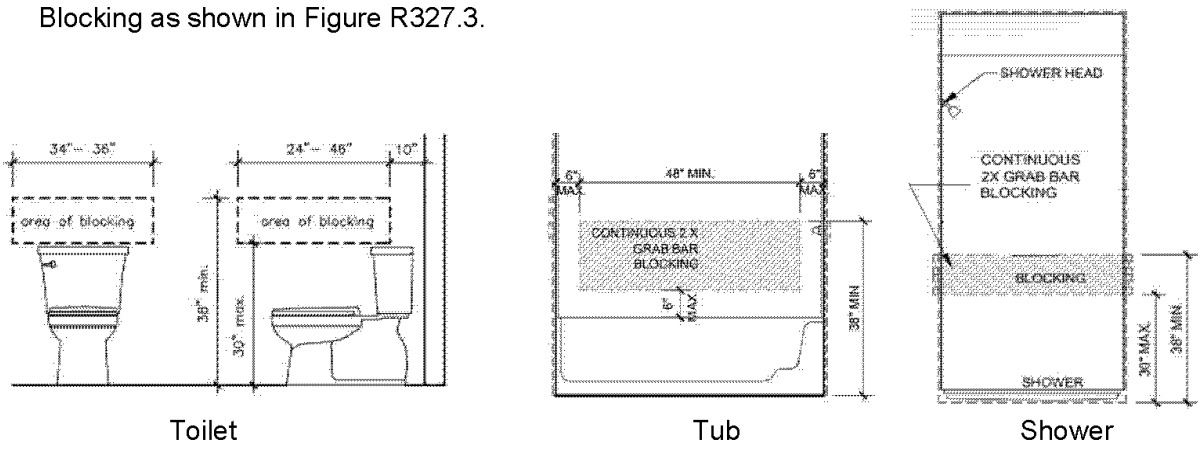
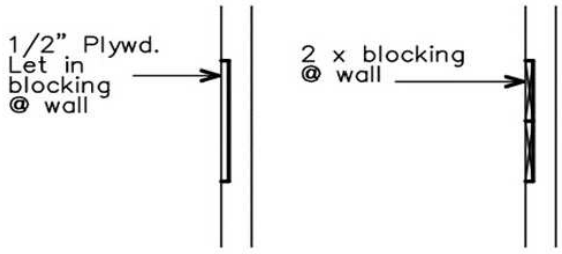


Figure R327.3

Sec. R327; change by adding new Section R327.4 and new Figure 327.4 to read as follows:

Sec. R327.4 Wall blocking. Blocking may be ½" plywood or 2 × solid wood blocking, or equivalent, flush with wall as shown in Figure R327.4.

Figure R327.4



Sec. 328; change Section R328 "Swimming Pools, Spas and Hot Tubs" by adding a new Section 328.1.1 to read as follows:

Sec. 328.1.1 Adjacency to Structural Foundation. Depth of the swimming pool and spa shall maintain a ratio of 1:1 from the nearest building foundation or footing of a retaining wall.

Exception: A sealed engineered design drawing of the proposed new structure shall be submitted for approval.

Sec. R401.2, change section to read as follows:

Sec. R401.2. Requirements. Foundation construction shall be capable of accommodating all loads in accordance with Section R301 and of transmitting the resulting loads to the supporting soil. Fill soils that support footings and foundations shall be designed, installed and tested in accordance with accepted engineering practice. Every foundation and/or footing, or any size addition to an existing

post-tension foundation, regulated by this code shall be designed and sealed by a Texas-registered engineer.

Sec. R602.6; change section to read as follows.

Sec. R602.6.1; change section to read as follows:

Sec. R602.6.1 Drilling and notching of top plate. When piping or ductwork is placed in or partly in an exterior wall or interior *load-bearing wall*, necessitating cutting, drilling or notching of the top plate by more than 50 percent of its width, a galvanized metal tie not less than 0.054-inch-thick (1.37 mm) (16 Ga) and 5 inches (127 mm) wide shall be fastened across and to the plate at each side of the opening with not less than eight 10d (0.148 inch diameter) having a minimum length of 1½ inches (38 mm) at each side or equivalent. Fasteners will be offset to prevent splitting of the top plate material. The metal tie must extend a minimum of 6 inches past the opening. See figure R602.6.1.

Exception: Where the entire side of the wall with the notch or cut is covered by wood *structural panel sheathing*.

Figure R602.6.1; delete the figure and insert the following figure:

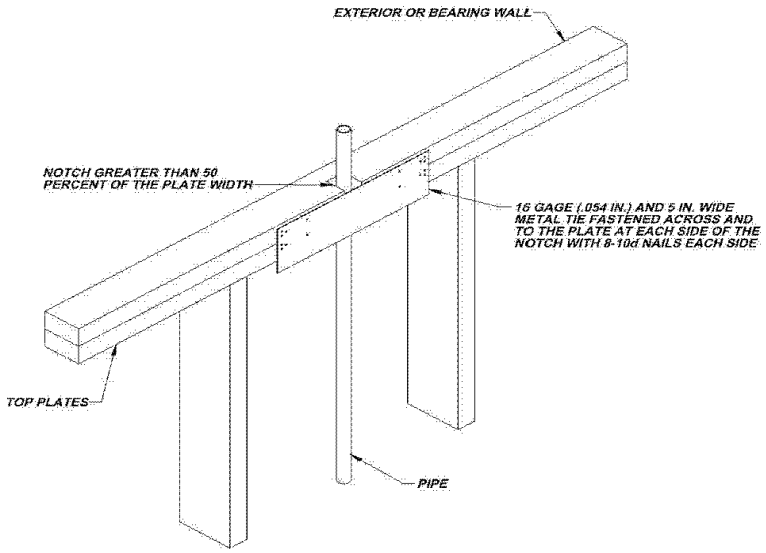


Table R603.7(2); change Table R603.7(2) "Header to King Stud Connection Requirements" by amending the footnotes to read as follows:

a. All screw sizes shown are minimum size, not to exceed 2 sizes larger.

b. Deleted.

c. Deleted.

d. Minimum Grade 33 ksi steel shall be used for 33 mil and 43 mil thicknesses. Minimum Grade 50 ksi steel shall be used for 54 and 68 mil thicknesses.

Sec. R703; change Section R703 "Exterior Wall Covering" by adding a new Section R703.8.4.1.2 "Veneer Ties for Wall Studs" to read as follows:

Sec. R703.8.4.1.2 Veneer Ties for Wall Studs. In stud framed exterior walls, all ties may be anchored to studs as follows:

1. When studs are 16 in (407 mm) o.c., stud ties shall be spaced no further apart than 24 in (737 mm) vertically starting approximately 12 in (381 mm) from the foundation; or

2. When studs are 24 in (610 mm) o.c., stud ties shall be spaced no further apart than

16 in (483 mm) vertically starting approximately 8 in (254 mm) from the foundation.

Section R902.1 Roof assemblies; change Section R902.1 by adding a new exception to read as follows:

5. Non-classified roof coverings shall be permitted on one-story detached *accessory structures* used as tool and storage sheds, playhouses, and similar uses, provided the floor area does not exceed 120 square feet.

Sec. R1005.9 Factory-built chimney offsets; delete this section in its entirety.

Chapter 11 [RE]; delete the chapter in its entirety and insert the following:

CHAPTER 11 [RE].

Refer to the 2024 International Energy and Conservation Code for energy code provisions and recommended amendments.

Sec. M1305.1.2; change section to read as follows:

Sec. M1305.1.2 Appliances in attics. Attics containing *appliances* shall be provided with an opening and a clear and unobstructed passageway large enough to allow removal of the largest *appliance*, but not less than 30 inches (762 mm) high and 22 inches (559 mm) wide and not more than 20 feet (6096 mm) long measured along the centerline of the passageway from the opening to the *appliance*. The passageway shall have continuous solid flooring in accordance with Chapter 5 not less than 24 inches (610 mm) wide. A level service space not less than 30 inches (762 mm) deep and 30 inches (762 mm) wide shall be present along all sides of the *appliance* where access is required. The clear access opening dimensions shall be not less than 20 inches by 30 inches (508 mm by 762 mm), and large enough to allow removal of the largest *appliance*. At a minimum, for access to the attic space, provide one of the following:

1. A permanent stair.
2. A pull-down stair with a minimum 300 lb. (136 kg) capacity.
3. An access door from an upper floor level.

Exceptions:

1. The passageway and level service space are not required where the appliance is capable of being serviced and removed through the required opening with the approval of the code official.
2. Where the passageway is unobstructed and not less than 6 feet (1829 mm) high and 22 inches (559 mm) wide for its entire length, the passageway shall be not greater than 50 feet (15,250 mm) in length.

[Section M1305.1.2.1 Electrical requirements to remain unchanged.]

Section M1411.3; change section to read as follows:

Sec. M1411.3 Condensate disposal. Condensate from all cooling coils or evaporators shall be conveyed from the drain pan outlet to a sanitary sewer through a trap, by means of a direct or indirect drain. Such piping shall maintain a minimum horizontal slope in the direction of discharge of not less than ⅛-unit vertical in 12 units horizontal (1-percent slope). Condensate shall not discharge into a street, alley or other area where it would cause a nuisance.

Sec. M1411.3.1; change section by revising the text of Items 3 and 4 to read as follows:

3. An auxiliary drain pan without a separate drain line shall be installed under the coils on which condensation will occur. This pan shall be equipped with a water level detection device conforming to UL 508 that will shut off the *equipment* served prior to overflow of the pan. The pan shall be equipped with a fitting to allow for drainage. The auxiliary drain pan shall be constructed in accordance with Item 1 of this section. A water level detection device may be installed only with prior approval of the *building official*.
4. A water level detection device conforming to UL 508 shall be installed that will shut off the *equipment* served in the

event that the primary drain is blocked. The device shall be installed in the primary drain line, the overflow drain line or the *equipment*-supplied drain pan, located at a point higher than the primary drain line connection and below the overflow rim of such pan. A water level detection device may be installed only with prior approval of the *building official*.

Sec. M1401 General; change section by adding a new Section M1401.1.1 "Air conditioning equipment" to read as follows:

Sec. M1401.1.1 Air conditioning equipment. All residential dwelling units shall be installed with and air conditioning system with the ability to condition and maintain conditioned air 20 degrees below the ambient outside air temperature in all habitable spaces.

Sec. M1411.9; change section to read as follows:

Sec. M1411.9 Condensate disposal. Condensate from all cooling coils or evaporators shall be conveyed from the drain pan outlet to an *approved* place of disposal to a sanitary sewer through a trap, by means of a direct or indirect drain. Such piping shall maintain a minimum horizontal slope in the direction of discharge of not less than ⅛-unit vertical in 12cunits horizontal (1-percent slope). Condensate shall not discharge into a street, alley, or other area where it would cause a nuisance.

Sec. M1411.9.1; change Section M1411.9.1 "Auxiliary and secondary drain systems" by amending Items 3 and 4 to read as follows:

3. An auxiliary drain pan without a separate drain line shall be installed under the coils on which condensation will occur. This pan shall be equipped with a water level detection device conforming to UL 508 that will shut off the *equipment* served prior to overflow of the pan. The pan shall be equipped with a fitting to allow for drainage. The auxiliary drain pan shall be constructed in accordance with Item 1 of this section. A water level detection device may be installed only with prior approval of the building official.
4. A water level detection device conforming to UL 508 shall be installed that will shut off the equipment served in the event that the primary drain is blocked. The device shall be installed in the primary drain line, the overflow drain line or the equipment-supplied drain pan, located at a point higher than the primary drain line connection and below the overflow rim of such pan. A water level detection device may be installed only with prior approval of the building official.

Sec. M1411.9.1.1; change section to read as follows:

Sec. M1411.9.1.1 Water-level monitoring devices. On down-flow units and other coils that do not have secondary drain or provisions to install a secondary or auxiliary drain pan, a water-level monitoring device shall be installed inside the primary drain pan. This device shall shut off the *equipment* served in the event that the primary drain becomes restricted. Devices shall not be installed in the drain line. A water level detection device may be installed only with prior approval of the building official.

Sec. M1503.6; change section and exception to read as follows (Sections M1503.6.1 and M1503.6.2 remain unchanged):

Sec. M1503.6 Makeup air required. Where one or more gas, liquid or solid fuel-burning appliance that is neither direct-vent nor uses a mechanical draft venting system is located within a dwelling unit's air barrier, each exhaust system capable of exhausting in excess of 400 cubic feet per minute (0.19 m^3/s) shall be mechanically or passively provided with makeup air at a rate approximate to the difference between exhaust air rate and 400 cubic feet per minute. Such makeup air systems shall be equipped with not fewer than one damper complying with Section M1503.6.2.

Exception: Makeup air is not required for exhaust systems installed for the exclusive purpose of space cooling and intended to be operated only when windows or other air inlets are open. Where all appliances in the house are of

sealed combustion, power-vent, unvented, or electric, the exhaust hood system shall be permitted to exhaust up to 600 cubic feet per minute (0.28 m^3/s) without providing makeup air. Exhaust hood systems capable of exhausting in excess of 600 cubic feet per minute (0.28 m^3/s) shall be provided with a makeup air at a rate approximately to the difference between the exhaust air rate and 600 cubic feet per minute.

Sec. M2005.2; change section to read as follows:

Sec. M2005.2 Prohibited locations. Fuel-fired water heaters shall not be installed in a room used as a storage closet. Water heaters located in a bedroom or bathroom shall be installed in a sealed enclosure so that *combustion air* will not be taken from the living space. Access to such enclosure may be from the bedroom or bathroom when through a solid door, weather-stripped in accordance with the exterior door air leakage requirements of the *International Energy Conservation Code* and equipped with an *approved* self-closing device. Installation of direct-vent water heaters within an enclosure is not required.

Sec. G2408.3 (305.5) Private garages; delete section in its entirety.

Sec. G2415.2 (404.2); change section to read as follows:

Sec. G2415.2 (404.2) CSST. CSST piping systems shall be installed in accordance with the terms of their approval, the conditions of listing, the manufacturer's instructions and this code. Both ends of each section of medium pressure gas piping shall identify its operating gas pressure with an *approved* tag. The tags are to be composed of aluminum or stainless steel and the following wording shall be stamped into the tag:

"WARNING: ½ to 5 psi gas pressure - Do Not Remove"

Sec. G2415.12 (404.12); change section to read as follows:

Sec. G2415.12 (404.12) Minimum burial depth. Underground *piping systems* shall be installed a minimum depth of 18 inches (457 mm) below grade.

Secc. G2415.12.1 (404.12.1) Individual outdoor appliances; section deleted in its entirety.

Sec. G2417.1 (406.1); change section to read as follows:

Sec. G2417.1 (406.1) General. Prior to acceptance and initial operation, all *piping* installations shall be inspected and *pressure tested* to determine that the materials, design, fabrication, and installation practices comply with the requirements of this *code*. The *permit* holder shall make the applicable tests prescribed in Sections 2417.1.1 through 2417.1.5 to determine compliance with the provisions of this *code*. The *permit* holder shall give reasonable advance notice to the *building official* when the *piping system* is ready for testing. The *equipment*, material, power and labor necessary for the inspections and test shall be furnished by the *permit* holder and the *permit* holder shall be responsible for determining that the work will withstand the test pressure prescribed in the following tests.

Sec. G2417.4; change section to read as follows:

Sec. G2417.4 (406.4) Test pressure measurement. Test pressure shall be measured with a monometer or with a pressure-measuring device designed and calibrated to read, record, or indicate a pressure loss caused by leakage during the pressure test period. The source of pressure shall be isolated before the pressure tests are made.

Sec. G2417.4.1; change section to read as follows:

Sec. G2417.4.1 (406.4.1) Test pressure. The test pressure to be used shall be no less than 3 psig (20 kPa gauge), or at the discretion of the code official, the piping and valves may be tested at a pressure of at least six (6) inches (152 mm) of mercury, measured with a manometer or slope gauge. For tests requiring a pressure of 3 psig, diaphragm gauges shall utilize a dial with a minimum diameter of three and one-half inches (3½"), a set hand, 1/10 pound incrementation and pressure range not to exceed 6 psi for tests requiring a pressure of 3 psig. For tests requiring a pressure of 10 psig, diaphragm gauges shall

utilize a dial with a minimum diameter of three and one-half inches (3½"), a set hand, a minimum of 2/10 pound incrementation and a pressure range not to exceed 20 psi. For welded piping, and for piping carrying gas at pressures in excess of fourteen (14) inches water column pressure (3.48 kPa) (1/2 psi) and less than 200 inches of water column pressure (52.2 kPa) (7.5 psi), the test pressure shall not be less than ten (10) pounds per square inch (69.6 kPa). For piping carrying gas at a pressure that exceeds 200 inches of water column (52.2 kPa) (7.5 psi), the test pressure shall be not less than one and one-half times the proposed maximum working pressure.

Diaphragm gauges used for testing must display a current calibration and be in good working condition. The appropriate test must be applied to the diaphragm gauge used for testing.

Sec. G2417.4.2; change section to read as follows:

Sec. G2417.4.2 (406.4.2) Test duration. The test duration shall be held for a length of time satisfactory to the *building official*, but in no case for less than fifteen (15) minutes. For welded *piping*, and for *piping* carrying gas at pressures in excess of fourteen (14) inches water column pressure (3.48 kPa), the test duration shall be held for a length of time satisfactory to the *building official*, but in no case for less than thirty (30) minutes.

Sec. G2420.1 (406.1); change section by adding a new Section G2420.1.4 to read as follows:

Sec. G2420.1.4 Valves in CSST installations. Shutoff *valves* installed with corrugated stainless steel (CSST) *piping systems* shall be supported with an approved termination fitting, or equivalent support, suitable for the size of the *valves*, of adequate strength and quality, and located at intervals so as to prevent or damp out excessive vibration but in no case greater than 12-inches from the center of the *valve*. Supports shall be installed so as not to interfere with the free expansion and contraction of the system's *piping*, fittings, and *valves* between anchors. All *valves* and supports shall be designed and installed so they will not be disengaged by movement of the supporting *piping*.

Sec. G2420.5.1 (409.5.1); change section to read as follows:

Sec. G2420.5.1 (409.5.1) Located within the same room. The shutoff valve shall be located in the same room as the *appliance*. The shutoff valve shall be within 6 feet (1829 mm) of the *appliance*, and shall be installed upstream of the union, connector or quick disconnect device it serves. Such shutoff *valves* shall be provided with *access*. Shutoff valves serving movable *appliances*, such as cooking *appliances* and clothes dryers, shall be considered to be provided with access where installed behind such *appliances*. *Appliance shutoff valves* located in the firebox if a *fireplace* shall be installed in accordance with the *appliance* manufacturer's instructions. A secondary shutoff valve must be installed within 3 feet (914 mm) of the firebox if *appliance* shutoff is located in the firebox.

Sec. G2421.1 (410.1); change section to read as follows:

Sec. G2421.1 (410.1) Pressure regulators. A line *pressure regulator* shall be installed where the *appliance* is designed to operate at a lower pressure than the supply pressure. *Line gas pressure regulators* shall be *listed* as complying with ANSI Z21.80. *Access* shall be provided to *pressure regulators*. *Pressure regulators* shall be protected from physical damage. *Regulators* installed on the exterior of the building shall be *approved* for outdoor installation. Access to *regulators* shall comply with the requirements for access to *appliances* as specified in Section M1305.

Exception: A passageway or level service space is not required when the *regulator* is capable of being serviced and removed through the required *attic* opening.

Sec. G2422.1.2.3 (411.1.3.3) Prohibited locations and penetrations; change section by deleting Exceptions 1 and 4 in their entirety.

Sec. G2445.2 (621.2); change section to read as follows:

Sec. G2445.2 (621.2) Prohibited use. One or more *unvented room heaters* shall not be used as the sole source of comfort heating in a *dwelling unit*.

Exception: Existing *approved unvented room heaters* may continue to be used in *dwelling units*, in accordance with the *code* provisions in effect when installed, when *approved* by the *building official* unless an unsafe condition is determined to exist as described in Section 108.7 of the *International Fuel Gas Code*.

Sec. G2448.1.1 (624.1.1); change section to read as follows:

Sec. G2448.1.1 (624.1.1) Installation requirements. The requirements for *water heaters* relative to access, sizing, *relief valves*, drain pans and scald protection shall be in accordance with this *code.*

Sec. P2603.3; change section to read as follows:

Sec. P2603.3 Protection against corrosion. Metallic piping, except for cast iron, ductile iron and galvanized steel, shall not be placed in direct contact with steel framing members, concrete or cinder walls and floors or other masonry. Metallic piping shall not be placed in direct contact with corrosive soil. Where sheathing is used to prevent direct contact, the sheathing shall have a thickness of not less than 0.008 inch (8 mil) (0.203 mm) and the sheathing shall be made of approved material. Where sheathing protects piping that penetrates concrete or masonry walls or floors, the sheathing shall be installed in a manner that allows movement of the piping within the sheathing.

Sec. P2603.5.1; change section to read as follows:

Sec. P2603.5.1 Sewer depth. Building sewers that connect to private sewage disposal systems shall be a minimum of 12 inches (304 mm) below finished grade at the point of septic tank connection. Building sewers shall be a minimum of 12 inches (304 mm) below grade.

Sec. P2604; change by adding Section P2604.2.1 to read as follows:

Sec. P2604.2.1 Plastic sewer and DWV piping installation. Plastic sewer and DWV piping installed underground shall be installed in accordance with the manufacturer's installation instructions. Trench width shall be controlled to not exceed the outside the pipe diameter plus 16 inches or in a trench which has a controlled width equal to the nominal diameter of the piping multiplied by 1.25 plus 12 inches. The piping shall be bedded in 4 inches of granular fill and then backfilled compacting the side fill in 6-inch layers on each side of the piping. The compaction shall be to minimum of 85 percent standard proctor density and extend to a minimum of 6 inches above the top of the pipe.

Sec. P2801.5.1; change section to read as follows:

Sec. P2801.6.1 Pan size and drain. The pan shall be not less than 1½ inches (38 mm) in depth and shall be of sufficient size and shape to receive all dripping or condensate from the tank or water heater. The pan shall be drained by an *indirect waste pipe* having a diameter of not less than ¾ inch (19 mm). Piping for safety pan drains shall be of those materials listed in Table P2906.5.

Multiple pan drains may terminate to a single discharge piping system when *approved* by the administrative authority and permitted by the manufactures installation instructions and installed with those instructions. Where a pan drain was not previously installed, a pan drain shall not be required for a replacement water heater installation.

Sec. P2804.6.1; change section to read as follows:

Sec. P2804.6.1 Requirements for discharge piping. The discharge piping serving a pressure relief valve, temperature relief valve or combination thereof shall:

1. Not be directly connected to the drainage system.

2. Discharge through an air gap.

3. Not be smaller than the diameter of the outlet of the valve served and shall discharge full size to the air gap.
4. Serve a single relief device and shall not connect to piping serving any other relief device or equipment.

   Exception: Multiple relief devices may be installed to a single T & P discharge piping system when approved by the administrative authority and permitted by the manufactures installation instructions and installed with those instructions.
5. Discharge to an approved location or to the outdoors.
6. Discharge in a manner that does not cause personal injury or structural damage.
7. Discharge to a termination point that is readily observable by the building occupants.
8. Not be trapped.
9. Be installed to flow by gravity.
10. Terminate not more than 6 inches (152 mm) and not less than two times the discharge pipe diameter above the floor or waste receptor flood level rim.
11. Not have a threaded connection at the end of the piping.
12. Not have valves or tee fittings.
13. Be constructed of those materials indicated in Section P2906.5 or materials tested, rated and *approved* for such use in accordance with ASME A112.4.1.
14. Be one nominal size larger than the size of the relief-valve outlet, where the relief valve discharge piping is installed with insert fittings. The outlet end of such tubing shall be fastened in place.

Sec. P2902.5.3; change section to read as follows:

Sec. P2902.5.3 Lawn irrigation systems. The potable water supply to lawn irrigation systems shall be protected against backflow by an atmospheric-type vacuum breaker, a pressure type vacuum breaker, a double-check assembly or a reduced pressure principle backflow preventer. A valve shall not be installed downstream from an atmospheric vacuum breaker. Where chemicals are introduced into the system, the potable water supply shall be protected against backflow by a reduced pressure principle backflow preventer.

Sec. P3003.9.2; delete exceptions and change sections to read as follows:

Sec. P3003.9.2 Solvent cementing. Joint surfaces shall be clean and free from moisture. A purple primer that conforms to ASTM F 656 shall be applied. Solvent cement not purple in color and conforming to ASTM D 2564, CSA B137.3, CSA B181.2 or CSA B182.1 shall be applied to all joint surfaces. The joint shall be made while the cement is wet and shall be in accordance with ASTM D 2855. Solvent cement joints shall be permitted above or below ground.

Sec. P3111 Combination waste and vent systems; delete the section in its entirety.

Sec. P3112.2 Vent Collection; delete existing section and replace with the following:

Sec. P3112.2 Installation. Traps for island sinks and similar equipment shall be roughed in above the floor and may be vented by extending the vent as high as possible, but not less than the drainboard height and then returning it downward and connecting it to the horizontal sink drain immediately downstream from the vertical fixture drain. The return vent shall be connected to the horizontal drain through a wye-branch fitting and shall, in addition, be provided with a foot vent taken off the vertical fixture vent by means of a wye-branch immediately below the floor and extending to the nearest partition and then through the roof to the open air or may be connected to other vents at a point not less than six (6) inches (152 mm) above the flood level rim of the fixtures served. Drainage fittings shall be used on all parts of the vent below the floor level and a minimum slope of one-quarter (¼) inch per foot (20.9 mm/m) back to the drain shall be maintained. The return bend used under the drain-board shall be a one (1) piece fitting or an assembly

of a forty-five (45) degree (0.79 radius), a ninety (90) degree (1.6 radius) and a forty-five (45) degree (0.79 radius) elbow in the order named. Pipe sizing shall be as elsewhere required in this Code. The island sink drain, upstream of the return vent, shall serve no other fixtures. An accessible cleanout shall be installed in the vertical portion of the foot vent.

Appendix BB Tiny Houses; change the code by adding Appendix BB "Tiny Houses" as mandatory provisions.
(Ord. No. 2016-3-12, § II, 3-14-16; Ord. No. 2018-11-16, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-17, §§ I, II, 1-24-22; Ord. No. 2022-11-4, §§ I, II, 11-14-22; Ord. No. 2025-6-15, § II, 6-9-25)

ARTICLE XXI. OUTDOOR TOILET FACILITIES

Sec. 6-711. Definitions.

Person shall include any individual, firm, partnership, association, business, corporation, or other entity.

Portable toilet means one or more commercially manufactured or assembled toilet facilities that are portable and are not designed or intended for connection to a sewer system with a standard connection. Portable toilets shall include, but not be limited to commercially manufactured pump out of portables, privy vaults, water flush toilets or chemical toilets that have a water tight, impervious pail or tank containing a chemical solution placed immediately beneath the seat or urinal and a pipe or conduit connecting the riser with the tank.
(Ord. No. 2011-12-6, § I, 12-12-11)

Sec. 6-712. Requirements for portable toilets.

(a) The use of portable toilets shall be required as follows:

(1) All properties subject to a land occupancy permit where the property is used as commercial amusement (outdoor), fair grounds/exhibition area, or private recreation facility or area pursuant to the City of Plano Zoning Ordinance shall have the following:

(i) A minimum of two (2) portable toilets on the property at all times; and

(ii) Additional portable toilets as required by the chart below with the two (2) portable toilets required by subsection 6-712(a)(1)(i) above counting towards the totals required by the chart.

(2) At construction project sites pursuant to section 6-37 of the City Code of Ordinances.

(3) For itinerant vendors on private property pursuant to section 11-156 of the City Code of Ordinances.

(4) For special events pursuant to section 11-314 of the City Code of Ordinances.

Persons on Site	*Average Hours at Event*							
	3	*4*	*5*	*6*	*7*	*8*	*9*	*10*
250—499	2	3	3	3	4	4	5	6
500—999	4	5	6	7	9	9	10	12
1000—1999	8	8	9	9	11	12	13	13
2000—2999	9	12	14	16	18	20	23	25
3000—3999	12	16	20	24	26	30	34	38
4000—4999	16	22	25	30	35	40	45	50
5000—9999	20	25	31	38	44	50	56	63
10,000—14,999	38	50	63	75	88	100	113	125
15,000—19,999	56	75	94	113	131	150	169	188
20,000—24,999	75	100	125	150	175	200	225	250
25,000—29,999	99	130	160	191	221	252	282	313

Persons on Site	*Average Hours at Event*							
	3	*4*	*5*	*6*	*7*	*8*	*9*	*10*
30,000—34,999	119	156	192	229	266	302	339	376
35,000 and above	139	181	224	267	310	352	395	438

(Ord. No. 2011-12-6, § I, 12-12-11)

Sec. 6-713. Maintenance and operation.

(a) The following maintenance requirements shall apply to all uses of portable toilets:

(1) Portable toilets must be maintained in a clean and sanitary manner at all times to prevent trash, vermin, or the production of noxious or offensive odors, and must be on a regular maintenance schedule. If the holding tank becomes full, the portable toilet must be immediately serviced.

(2) Portable toilets must be structurally sound, safe, and in good working condition at all times.

(3) Portable toilets shall not obstruct public property or access to public property.

(4) Contents of portable toilets shall not be discharged into storm sewers, placed, spilt, or deposited onto the surface of the ground, or allowed to flow, seep, or drain into any adjacent waters.

(5) Portable toilets required by subsection 6-712(a)(1) that remain on the property in excess of seventy-two (72) hours shall be screened by an enclosure on three (3) sides with a swinging gate on the maintenance side. The minimum height of the enclosure and gate shall be eight (8) feet and shall be constructed of wood fencing or an alternate fencing material that has been approved by the building official.

(Ord. No. 2011-12-6, § I, 12-12-11)

Sec. 6-714. Prohibited uses.

(a) The following uses of portable toilets are prohibited:

(1) The use of portable toilets for the purpose of providing sewer service to a site or facility when service has been discontinued due to delinquency of the utility account is prohibited.

(2) The use of portable toilets in lieu of connecting a permanently constructed toilet facility to the city's sanitary sewer system is prohibited.

(3) The use of any portable toilet that is not commercially manufactured is prohibited.

(4) Installing or maintaining a portable toilet is prohibited unless otherwise authorized by federal, state, or local law, or except as provided herein.

(Ord. No. 2011-12-6, § I, 12-12-11)

Sec. 6-715. Enforcement.

(a) A person, owner, lessee, tenant, agent, or person responsible for any property subject hereto that knowingly violates any of the provisions or terms of this article shall be guilty of a misdemeanor and, upon conviction, punished as provided in subsection 1-4(a) of the Code of Ordinances of the City of Plano for each offense. Each and every day any such violation shall continue constitutes a separate offense.

(b) The following uses are exceptions to this article:

(1) Use by governmental agencies for public benefit on public rights-of-way, parks, and public recreation areas.

(2) Use for emergency operations by police departments, fire departments, or other municipal, state, or federal government authorities.

(Ord. No. 2011-12-6, § I, 12-12-11)

ARTICLE XXII. EXISTING BUILDING CODE

DIVISION 1. GENERALLY

Sec. 6-716. Penalty.

(a) *Criminal.* Any violation of the provisions or terms of this article by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with section 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(b) *Civil.* The city may file a civil action for enforcement of this division with civil penalties up to one thousand dollars ($1,000.00) per day for each offense as authorized by V.T.C.A. Local Government Code ch. 54, subch. B, as amended.
(Ord. No. 2016-3-6, § I, 3-14-16; Ord. No. 2018-11-17, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-18, § II, 1-24-22; Ord. No. 2025-6-11, § II, 6-9-25)

Sec. 6-717. Adopted.

The 2024 Edition of the International Existing Building Code, a publication of the International Code Council (I.C.C.) is hereby adopted and designated as the existing building code of the city, to the same extent as if such code were copied verbatim in this section, subject to the deletions, additions and amendments prescribed in this division. A copy of the 2024 Edition of the International Existing Building Code is on file in the office of the city secretary.
(Ord. No. 2016-3-6, § I, 3-14-16; Ord. No. 2018-11-17, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-18, § II, 1-24-22; Ord. No. 2025-6-11, § II, 6-9-25)

Sec. 6-718. Administrative authority.

For purposes of this division and interpreting the Code adopted in this division, the term "administrative authority" shall mean the building official of the city, and his agents and employees who are hereby empowered with the authority to administer and enforce the provisions of this division and the existing building code.
(Ord. No. 2016-3-6, § I, 3-14-16; Ord. No. 2018-11-17, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-18, § II, 1-24-22; Ord. No. 2025-6-11, § II, 6-9-25)

Sec. 6-719. Deletions, additions, amendments.

The following deletions, additions, and amendments to the International Existing Building Code adopted in this division are hereby approved and adopted:

Sec. 102.4; change to read as follows:

> **Sec. 102.4 Referenced codes and standards.** The codes, when specifically adopted, and standards referenced in this code shall be considered part of the requirements of this code to the prescribed extent of each such reference and as further regulated in Sections 102.4.1 and 102.4.2.

[Remainder of section unchanged.]

Sec. 202; change definition of "Existing Structure" to read as follows:

> **Existing Structure.** A building, structure, or space, with an approved final inspection issued under a code edition which is at least 2 published code editions preceding the currently adopted building code; a building, structure, or space that is currently undergoing a change of occupancy or use.

Sec. 302.2; amend to read as follows:

> **Sec. 302.2 Additional codes.** Alterations, repairs, additions and changes of occupancy to, or relocation of, existing buildings and structures shall comply with the provisions for alterations, repairs, additions and changes of occupancy or relocation, respectively, in this code and the International Energy Conservation Code, International Fire Code, International Fuel Gas Code, International Mechanical Code, International Plumbing Code, International Property Maintenance Code, International Residential Code and NFPA 70 and any other codes or other ordinances adopted

by the City. Where provisions of the other codes conflict with provisions of this code, the provisions of this code shall take precedence.

Sec. 306.1; change to read as follows:

Sec. 306.1 Scope. The provisions of Sections 306.1 through 306.7.16 apply to maintenance and *repair, change of occupancy, additions* and *alterations* to *existing buildings*, including those identified as *historic buildings*.

Exception: Components of projects regulated by and registered with Architectural Barriers Division of Texas Department of Licensing and Regulation shall be deemed to be in compliance with the requirements of this chapter.

Sec. 309.2.1 Automated sprinkler systems; delete this section.

Sec. 401.3 Flood hazard areas; delete this section.

Sec. 405.2.6 Flood hazard areas; delete this section.

Sec. 502.2 Flood hazard areas; delete this section.

Sec. 503.2 Flood hazard areas; delete this section.

Sec. 503.18; change to read as follows:

Sec. 503.18 Enhanced classroom acoustics. In Group E occupancies, where the work area exceeds 50 percent of the building area, enhanced classroom acoustics shall be provided in all classrooms with a volume of 20,000 cubic feet (565 m^3) or less. Enhanced classroom acoustics shall comply with the reverberation time in Section 808 of ICC A117.1.

Exception: Compliance with the Texas Accessibility Standards is not considered equivalent compliance for the purpose of enforcement of this code section.

Sec. 504.1.2 change to read as follows:

Sec. 504.1.2 Existing fire escapes. Existing fire escapes shall continue to be accepted as a component in the means of egress in existing buildings only. Existing fire escapes shall be permitted to be repaired or replaced.

Sec. 504.1.3 New fire escapes; delete this section.

Sec. 507.3 Flood hazard areas; delete this section.

Sec. 701.3 Flood hazard areas; delete this section.

Sec. 702.7; change to read as follows:

Sec. 702.7 Materials and methods. All new work shall comply with the materials and methods requirements in the *International Building Code*, *International Energy Conservation Code*, *International Mechanical Code*, *National Electrical Code*, and *International Plumbing Code*, as applicable, that specify material standards, detail of installation and connection, joints, penetrations and continuity of any element, component, or system in the building.

Sec. 802.5.1; change to read as follows:

Sec. 802.5.1 Minimum requirement. Every portion of open-sided walking surfaces, including *mezzanines*, *equipment platforms*, *aisles*, *stairs*, *ramps* and landings that are more than 30 inches (762 mm) above the floor or grade below and are not provided with guards, or those in which the existing guards are judged to be in danger of collapsing, shall be provided with guards.

Section 803.1; change to read as follows:

803.1 Scope. The requirements of this section shall be limited to *work areas* in which Level 2 *alterations* are being performed, and where specified they shall apply throughout the floor on which the *work areas* are located or otherwise beyond the *work area*. For the purpose of fire sprinkler protection and fire alarm requirements included in this section, the *work area* shall be extended to include at least the entire tenant space or spaces bounded by walls capable of resisting the passage of smoke containing the subject *work area*, and if the *work area* includes a corridor, hallway, or other exit access, then such corridor, hallway, or other exit access shall be protected in its entirety on that particular floor level.

Sec. 803.2.6; change to read as follows:

Sec. 803.2.6 Supervision. Fire sprinkler systems required by this section shall be supervised by one of the following methods:

1. Approved central station system in accordance with NFPA 72.
2. Approved proprietary system in accordance with NFPA 72.
3. Approved remote station system of the jurisdiction in accordance with NFPA 72.
4. Where approved by the *code official*, approved local alarm service that will cause the sounding of an alarm in accordance with NFPA 72.

Exception: Supervision is not required where the Fire Code does not require such for new construction.

Sec. 803.3; change section to read as follows (Exceptions also deleted):

Sec. 803.3 Standpipes. Refer to Section 1103.6 of the Fire Code for retroactive standpipe requirements.

Section 804.2; change to read as follows:

Sec. 804.2 General. The means of egress shall comply with the requirements of this section.

Exception: Means of egress complying with the requirements of the building code under which the building was constructed shall be considered to be compliant means of egress if, in the opinion of the *code official*, they do not constitute a distinct hazard to life.

Section 804.5.1.2; change to read as follows:

Sec. 804.5.1.2 Fire escapes required. For other than Group I-2, where more than one exit is required, an existing fire escape complying with section 805.3.1.2.1 shall be accepted as providing one of the required means of egress.

Section 804.5.1.2.1; change to read as follows:

Sec. 804.5.1.2.1 Fire escape access and details. Fire escapes shall comply with all of the following requirements:

1. Occupants shall have unobstructed access to the fire escape without having to pass through a room subject to locking.
2. Access to a new fire escape shall be through a door, except that windows shall be permitted to provide access from single dwelling units or sleeping units in Group R-1, R-2 and I-1 occupancies or to provide access from spaces having a maximum occupant load of 10 in other occupancy classifications.
   2.1. The window shall have a minimum net clear opening of 5.7 square feet (0.53 m^2) or 5 square feet (0.46 m^2) where located at grade.
   2.2. The minimum net clear opening height shall be 24 inches (610 mm) and net clear opening width shall be 20 inches (508 mm).
   2.3. The bottom of the clear opening shall not be greater than 44 inches (1118 mm) above the floor.
   2.4. The operation of the window shall comply with the operational constraints of the *International Building Code*.
3. [Item deleted.]
4. Openings within 10 feet (3048 mm) of fire escape stairways shall be protected by fire assemblies having minimum ¾-hour fire-resistance ratings.

   Exception: Opening protection shall not be required in buildings equipped throughout with an *approved* automatic sprinkler system.
5. In all buildings of Group E occupancy up to and including the 12th grade, buildings of Group I occupancy, boarding houses, and childcare centers, ladders of any type are prohibited on fire escapes used as a required means of egress.

Sec. 804.7.2; change to read as follows:

Sec. 804.7.2 Transoms. In all buildings of Group B, E, I-1, I-2, R-1, and R-2 occupancies, all transoms in corridor walls in *work areas* shall be either glazed with ¼-inch (6.4 mm) wired glass set in metal frames or other glazing assemblies having a fire protection rating as required for the door and permanently secured in the closed position or seated with materials consistent with the corridor construction.

Sec. 904.1; change to read as follows:

Sec. 904.1 Automatic sprinkler systems. An automatic sprinkler system shall be provided in a work area where required by Section 803.2 of this section. For the purpose of fire sprinkler protection and fire alarm requirements included in this section, the *work area* shall be extended to include at least the entire tenant space or spaces bounded by walls containing the subject *work area*, and if the *work area* includes a corridor, hallway, or other exit access, then such corridor, hallway, or other exit access shall be protected in its entirety on that particular floor level.

Sec. 904.1.1; change to read as follows:

Sec. 904.1.1 High-rise buildings. An automatic sprinkler system shall be provided in work areas of high-rise buildings.

Sec. 1011.2.1; change to read as follows:

Sec. 1011.2.1 Automatic sprinkler system. The installation of an automatic sprinkler system shall be required where there is a *change of occupancy* classification and Chapter 9 of the current International Building Code requires an automatic sprinkler system based on the new occupancy or where there is a change of occupancy within the space where there is a different fire protection system threshold requirement in Chapter 9 of the current International Building Code than exists in the current building or space. The installation of the automatic sprinkler system shall be required within the area of the *change of occupancy* and areas of the building not separated horizontally and vertically from the change of occupancy by a fire barrier or fire wall.

Sec. 1103.3 Flood hazard areas; delete the section in its entirety.

Sec. 1201.4 Flood hazard areas; delete the section in its entirety.

Sec. 1303.1.3 Compliance with flood hazard provisions; delete the section in its entirety.

Sec. 1402.6 Flood hazard areas; delete the section in its entirety.

Sec. 1502.1; change to read as follows:

Sec. 1502.1 Site safety plan. The owner or owner's authorized agent shall be responsible for the development, implementation, and maintenance of an approved, written site safety plan establishing a fire prevention program at the project site applicable throughout all phases of the construction, repair, alteration or demolition work. Any changes to the plan shall address the requirements of this chapter and other applicable portions of the International Fire Code, the duties of staff, and the staff training requirements. The plan shall be submitted for approval in accordance with the International Fire Code, and be approved by the Fire Department before a building permit is issued.

Sec. 1502.3.1; change to read as follows:

Sec. 1502.3.1 Violations. Failure to properly conduct, document and maintain documentation required by this section shall constitute an unlawful act in accordance with Section 113.1 and shall result in the issuance of a notice of violation by the Fire code official to the site safety director. Upon the third offense, the Fire code official, based on their findings, shall request a stop work order enforcement be implemented to the code official in accordance with Section 114, and work shall not resume until satisfactory assurances of future compliance have been presented to and approved by the code official.

Sec. 1512.1 change to read as follows:

> **Sec. 1512.1 When required.** An approved water supply for fire protection, either temporary or permanent, shall be made available as soon as combustible material arrives on the site or as determined by the code official. The water supply design and the timing of the water supply installation relative to building construction shall comply with the adopted Fire Code.

Sec. 1512.2 Combustible building materials; delete section in its entirety.

Sec. 1512.3 Vertical construction of Types III, IV, and V construction; delete section in its entirety.

Sec. 1512.3.1 Fire separation up to 30 feet; delete section in its entirety.

Sec. 1512.3.2 Fire separation of 30 feet up to 60 feet; delete section in its entirety.

Sec. 1512.3.3 Fire separation of 60 feet or greater; delete section in its entirety.

Sec. 1512.4 Vertical construction, Types I and II construction; delete section in its entirety.

Sec. 1512.5 Standpipe supply; delete section in its entirety.

(Ord. No. 2016-3-6, § I, 3-14-16; Ord. No. 2018-11-17, § II, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-18, § II, 1-24-22; Ord. No. 2025-6-11, § II, 6-9-25)

ARTICLE XXIII. SWIMMING POOL AND SPA CODE

DIVISION 1. GENERALLY

Sec. 6-720. Penalty.

Any violation of the provisions or terms of this article by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with section 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(Ord. No. 2018-11-18, § I, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-19, § II, 1-24-22; Ord. No. 2025-6-12, § II, 6-9-25)

Sec. 6-721. Adopted.

The 2024 Edition of the International Swimming Pool and Spa Code, a publication of the International Code Council (I.C.C.), is hereby adopted and designated as the Swimming Pool and Spa Code of the City of Plano to the same extent as if such code were copied verbatim in this article, subject to deletions, additions, and amendments prescribed in this article. A copy of the 2024 Edition of the International Swimming Pool and Spa Code is on file in the office of the city secretary.

(Ord. No. 2018-11-18, § I, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-19, § II, 1-24-22; Ord. No. 2025-6-12, § II, 6-9-25)

DIVISION 2. AMENDMENTS

Sec. 6-722. Deletions, additions, amendments.

The following deletions, additions, and amendments to the International Swimming Pool and Spa Code adopted herein are hereby approved and adopted:

Sec. 102.9; change to read as follows:

> **Sec. 102.9 Other laws.** The provisions of this code shall not be deemed to nullify any provisions of local, state or federal law, to include but not limited to:
>
> 1. Texas Department of State Health Services (TDSHS); *Standards for Public Pools and Spas;* § 285.181 through § 285.208, (TDSHS rules do not apply to pools serving one- and two-family dwellings or townhouses).
> 2. *Texas Department of Licensing and Regulation (TDLR); 2012 Texas Accessibility Standards (TAS*), TAS provide the scoping and technical requirements for accessibility for Swimming Pool, wading

pools and spas and shall comply with *2012 TAS, Section 242* (TAS rules do not apply to pools serving one- and two-family dwellings or townhouses).

Exception: Elements regulated under Texas Department of Licensing and Regulation (TDLR) and built in accordance with TDLR approved plans, including any variances or waivers granted by the TDLR, shall be deemed to be in compliance with the requirements of this Chapter.

Sec. 103.1; change to read as follows:

Sec. 103.1 Creation of enforcement agency. The Building Inspections Department ("agency") is hereby created and the official in charge thereof shall be known as the *code official*. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

Sec. 113.4; change to read as follows:

Sec. 113.4 Violation penalties. Any person who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter or repair a pool or spa in violation of the *approved* construction documents or directive of the *code official*, or of a permit or certificate issued under the provisions of this code, may be punishable for each day of the violation set forth by the authority having jurisdiction.

Sec. 202; Environmental Health Department; insert definition to read as follows:

ENVIRONMENTAL HEALTH DEPARTMENT regulates the operation of public pools. Routine inspections on pools and spas open to the public are conducted to document compliance with the standards set forth in State law.

Sec. 305.1 change to read as follows:

Sec. 305.1 General. The provisions of this section shall apply to the design of barriers for restricting entry into areas having pools and spas. In only one- and two-family dwellings and townhouses, where spas or hot tubs are equipped with a lockable safety cover complying with ASTM F1346 and swimming pools are equipped with a powered safety cover that complies with ASTM F1346, the areas where those spas, hot tubs or pools are located shall not be required to comply with Sections 305.2 through 305.7.

Sec. 305.2 change to read as follows:

Sec. 305.2 Outdoor swimming pools and spas. Outdoor pools and spas and indoor swimming pools shall be surrounded by a barrier that complies with Sections 305.2.1 through 305.7 and in accordance with the Texas Administrative Code, Texas Health and Safety Code 757 for public pools.

Sec. 305.2.8.1; add a Section 305.2.8.1 to Section 305.2.8 to read as follows:

Sec. 305.2.8.1 Chain link fencing prohibited. Chain link fencing is not permitted as a barrier in public pools built after January 1, 1994.

Sec. 305.4; change to read as follows:

Sec. 305.4 Structure wall as a barrier. Where a wall of a dwelling or structure of a one- or two-family dwelling or townhouse or its accessory structure serves as part of the barrier and where doors provide direct access to the pool or spa through that wall, one of the following shall be required:

1. Operable windows having a sill height of less than 48 inches (1219 mm) above the indoor finished floor, doors and gates shall have an alarm that produces an audible warning when the window, door or their screens are opened. The alarm shall be *listed* and labeled as a water hazard entrance alarm in accordance with UL 2017.
2. In dwellings not required to be Accessible units, Type A units or Type B units, the operable parts of the alarm deactivation switches shall be located at not less than 54 inches (1372 mm) above the finished floor.
3. In dwellings that are required to be Accessible units, Type A units or Type B units, the operable parts of the alarm deactivation switches shall be located

not greater than 54 inches (1372 mm) and not less than 48 inches (1219 mm) above the finished floor.

4. In structures other than dwellings, the operable parts of the alarm deactivation switches shall be located not greater than 54 inches (1372 mm) and not less than 48 inches (1219 mm) above the finished floor.

5. A *safety cover* that is *listed* and *labeled* in accordance with ASTM F1346 is installed for the pools and spas.

6. An *approved* means of protection, such as self-closing doors with self-latching devices, is provided. Such means of protection shall provide a degree of protection that is not less than the protection afforded by Item 1 or 2.

The wall of a building with windows in accordance with *2024 International Building Code, Section 1031* in Group R2 occupancies shall not be used as part of a pool enclosure. Other windows that are part of a pool yard enclosure shall be permanently closed and unable to be opened for public pools.

Sec. 305.6; change to read as follows:

Sec. 305.6 Natural barriers used in a one- and two-family dwelling or townhouse. In the case where the pool or spa area abuts the edge of a lake or other natural body of water, public access is not permitted or allowed along the shoreline, and required barriers extend to and beyond the water's edge a minimum of eighteen (18) inches, a barrier is not required between the natural body of water shoreline and the pool or spa.

Sec. 307.1.5 Accessibility; add an exception to Section to 307.1.5 to read as follows:

Exception: Components of projects regulated by and registered with Architectural Barriers Division of the Texas Department of Licensing and Regulation shall be deemed to be in compliance with the requirements of this chapter.

Sec. 307.2.2.2; add a Section 307.2.2.2 and an exception to Section 307.2.2 to read as follows:

Sec. 307.2.2.2 Adjacency to Structural Foundation. Depth of the swimming pool and spa shall maintain a ratio of 1:1 from the nearest building foundation or footing of a retaining wall.

Exception: A sealed engineered design drawing of the proposed new structure shall be submitted for approval.

Sec. 310.1; change to read as follows and delete the exception:

Sec. 310.1 General. Suction entrapment avoidance for pools and spas shall be provided in accordance with APSP7 or for public swimming pools in accordance with State of Texas Rules for Public Swimming Pools and Spas, Title 25 TAC Chapter 265 Subchapter L, Rule § 265.190.

Sec. 314.7; change to read as follows and delete the exception:

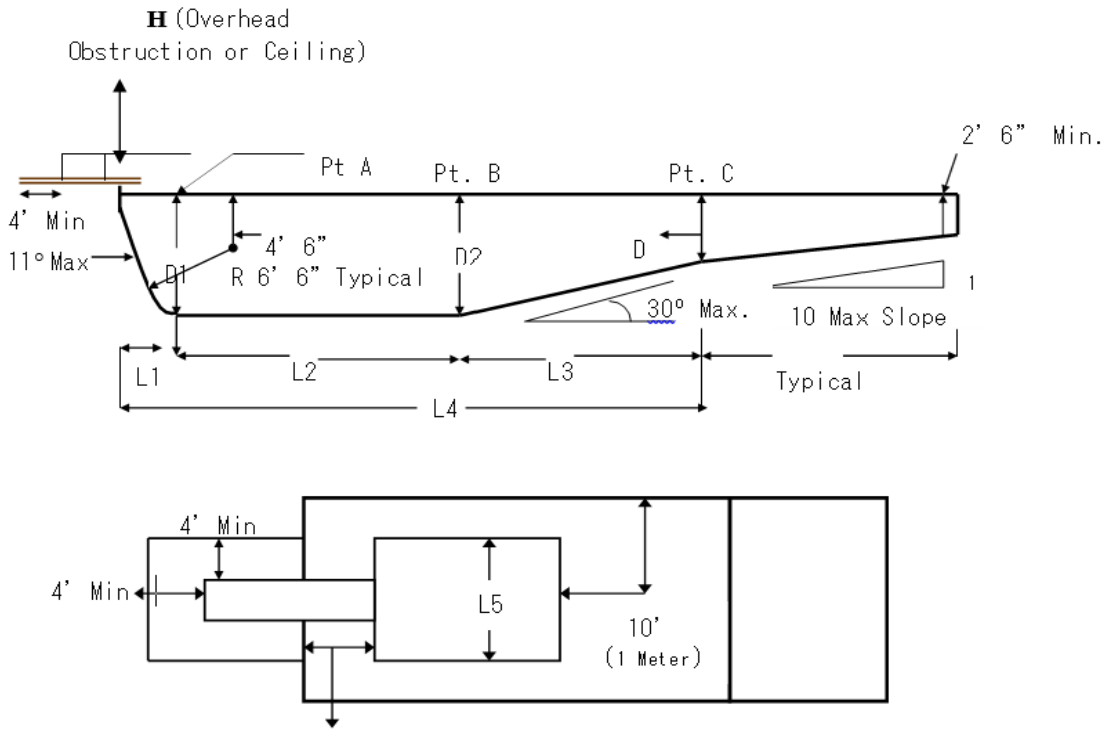
Sec. 314.7 Emergency shutoff switch for spas and hot tubs. A clearly labeled emergency shutoff or control switch for the purpose of stopping the motor(s) that provide power to the recirculation system and jet system shall be installed at a point readily accessible to the users and not less than 1.5 m (5 ft.) away, adjacent to, and within sight of the spa or hot tub. This requirement shall not apply to one- and two-family dwellings and townhouses.

Sec. 402.12; change to read as follows (delete Table 402.12 and Figure 402.12):

Sec. 402.12 Water envelopes. The minimum diving water envelopes shall be in accordance with Texas Department of State Health Services, Administrative Code Title 25, Chapter 265, Section 186(e) and Figure 25 TAC 256.186(e)(6).

Figure 25 TAC 256.186(e)(6)

Maximum Diving Board Height Over Water	**¾ Meter**	**1 Meter**	**3 Meters**
Max. Diving Board Length	12 ft.	16 ft.	16 ft.
Minimum Diving Board Overhang	2 ft. 6 in.	5 ft.	5 ft.
D1 Minimum	8 ft. 6 in.	11 ft. 2 in.	12 ft. 2 in.
D2 Minimum	9 ft.	10 ft. 10 in.	11 ft. 10 in.
D3 Minimum	4 ft.	6 ft.	6 ft.
L1 Minimum	4 ft.	5 ft.	5 ft.
L2 Minimum	12 ft.	16 ft. 5 in.	19 ft. 9 in.
L3 Minimum	14 ft. 10 in.	13 ft. 2 in.	13 ft. 11 in.
L4 Minimum	30 ft. 10 in.	34 ft. 7 in.	38 ft. 8 in.
L5 Minimum	8 ft.	10 ft.	13 ft.
H Minimum	16 ft.	16 ft.	16 ft.
From Plummet to Pool Wall at Side	9 ft.	10 ft.	11 ft. 6 in.
From Plummet to Adjacent Plummet	10 ft.	10 ft.	10 ft.



Secs. 411.2.1 and 411.2.2; change to read as follows:

Sec. 411.2.1 Tread dimensions and area. Treads shall have a minimum unobstructed horizontal depth (i.e., horizontal run) of 12 inches and a minimum width of 20 inches.

Sec. 411.2.2 Risers. Risers for steps shall have a maximum uniform height of 10 inches, with the bottom riser height allowed to taper to zero.

Secs. 411.5.1 and 411.5.2; change to read as follows:

Sec. 411.5.1 Swimouts. Swimouts, located in either the deep or shallow area of a pool, shall comply with all of the following:

1. The horizontal surface shall be not greater than 20 inches (508 mm) below the waterline.
2. An unobstructed surface shall be provided that is equal to or greater than that required for the top tread of the pool stairs in accordance with Section 411.2.
3. Where used as an entry and exit access, swimouts shall be provided with steps that comply with the pool stair requirements of Section 411.2.
4. The leading edge shall be visibly set apart and provided with a horizontal solid or broken stripe at least 1 inch wide on the top surface along the front leading edge of each step. This stripe shall be plainly visible to persons on the pool deck. The stripe shall be a contrasting color to the background on which it is applied, and the color shall be permanent in nature and shall be a slip-resistant surface.

Sec. 411.5.2 Underwater seats and benches. Underwater seats and benches, whether used alone or in conjunction with pool stairs, shall comply with all of the following:

1. The horizontal surface shall be not greater than 20 inches (508 mm) below the waterline.
2. An unobstructed surface shall be provided that is not less than 10 inches (254 mm) in depth and not less than 24 inches (607 mm) in width.
3. Underwater seats and benches shall not be used as the required entry and exit access.
4. Where underwater seats are located in the deep area of the pool where manufactured or constructed diving equipment is installed, such seats shall be located outside of the minimum diving water envelope for diving equipment.
5. The leading edge shall be visually set apart and provided with a horizontal solid or broken stripe at least 1 inch wide on the top surface along the front leading edge of each step. This stripe shall be plainly visible to persons on the pool deck. The stripe shall be a contrasting color to the background on which it is applied, and the color shall be permanent in nature and shall be a slip-resistant surface.
6. The horizontal surface shall be at or below the waterline.
7. A tanning edge or sun shelf used as the required entry and exit access shall be located not greater than 12 inches (305 mm) below the waterline.

Sec. 610.5.1; change to read as follows:

Sec. 610.5.1 Uniform height of 10 inches. Except for the bottom riser, risers at the centerline shall have a maximum uniform height of 10 inches (254 mm). The bottom riser height shall be permitted to vary from the other risers.

Sec. 804.1; change to read as follows:

Sec. 804.1 General. The minimum diving water envelopes shall be in accordance with Table 804.1 and Figure 804.1, or the manufacturer's specifications, whichever is greater. Negative construction tolerances shall not be applied to the dimensions of the minimum diving water envelopes given in Table 804.1.

(Ord. No. 2018-11-18, § I, 11-26-18, eff. 1-2-19; Ord. No. 2022-1-19, § II, 1-24-22; Ord. No. 2025-6-12, § II, 6-9-25)

Secs. 6-723—6-729. Reserved.

ARTICLE XXIV. REGISTRATION OF SHORT-TERM RENTAL PROPERTIES

Sec. 6-730. Short title.

This article may be referred to as the "Short-Term Rental Code".
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-731. Definitions.

Any terms not defined in this article shall be defined as they are in the City of Plano Zoning Ordinance. Any terms not defined in this article or in the zoning ordinance shall have their ordinary accepted meanings. The following terms and phrases, as used in this article, are defined as follows:

Advertise or Promote means to offer an STR for rental in any medium, including but not limited to, newspaper, magazine, handbill, brochure, website, social media, or mobile application.

Applicant means a person applying for registration of an STR.

Booking service means any reservation and/or payment service provided by a person or entity that facilitates an STR rental transaction between an owner and a prospective occupant, and for which the person or entity collects or receives, directly or indirectly through an agent or intermediary, a fee in connection with the reservation or payment services provided for the STR transaction.

Criminal conduct means any violation of local, state, or federal law. Criminal conduct includes, but is not limited to, violation of the City of Plano Code of Ordinances, the City of Plano Zoning Ordinance, or state or federal law. Proof of criminal conduct may include, but does not require, criminal enforcement action, criminal prosecution, an adjudication of guilt, or a criminal defendant's plea of no contest or guilty.

Designated contact means an individual designated to respond to a report or request regarding an emergency condition, property or building maintenance condition, nuisance or criminal conduct at an STR.

Director means the director of the department of the City of Plano designated by the city manager to administer and enforce the provisions of this article and any person or persons designated by the director to represent the department for this purpose.

Hosting platform means a person or entity that participates in the STR business by providing, and collecting or receiving a fee for, booking services through which an owner may offer an STR. Hosting platforms usually, though not necessarily, provide booking services through an online platform that allows an owner to advertise the STR through a website provided by the hosting platform and the hosting platform conducts a transaction by which potential occupants arrange their use and their payment, whether the would-be occupant pays rent directly to the owner or to the hosting platform.

Noise monitoring device means a device capable of all of the following: (i) monitoring noise levels, (ii) detecting exposure to noise levels that exceed an acceptable level for more than a continuous five-minute period, (iii) sending realtime alerts to the subject short-term rental owner and operator, and (iv) being programmed to receive realtime alerts if noise levels continuously exceed an acceptable level for the five-minute period. The noise monitoring device shall comply with all laws, rules and regulations regarding privacy.

Nuisance incident means an incident involving criminal conduct, as defined by city ordinance, state law, or federal law, committed at the premises of the STR by an occupant, guest or visitor of the STR, that tends to substantially interfere with the use or enjoyment of private or public property by causing unreasonable discomfort or annoyance to persons of ordinary sensibilities attempting to use and enjoy their property, including, but not limited to, conduct involving assault, sexual misconduct, public order and decency, alcohol, drugs, weapons, noise, trash, and parking.

Occupant means any person lawfully living in, sleeping in or possessing an STR. A person is not required to be paying rent, providing in-kind services, or named in any lease, contract or other legal document to be considered an occupant.

Operate means to do any of the following for an STR: rent or lease; offer, advertise, or market to rent or lease; or enter into an agreement to rent or lease.

Operator means a natural person designated on the registration application as the operator. For live-in management STRs as defined by the City of Plano Zoning Ordinance, the operator is the person who stays in the dwelling overnight whenever guests are present at the STR.

Owner means any person, agent, firm or trust who: (1) has a legal or equitable interest in the STR and their designee; (2) is recorded in the official records of the county as holding title to the STR; or (3) has control of the STR, including the guardian of the estate of any such person, and the executor of the estate of such person if ordered to take possession of the STR by a court.

Person means an individual, corporation, association, partnership or other entity acting as a group.

Premises means any parcel of real property together with all buildings and structures thereon used as an STR and any public property immediately adjacent to the STR that is used because of the use of the STR, such as the public right-of-way used for parking, or the sidewalk used to access the STR.

Registrant means a person who has applied for and been approved for registration and operation of an STR.

Registration means approval by the director of an application to operate an STR.

Serious incident means an incident involving criminal conduct, as defined by city ordinance, state law, or federal law, committed at the premises of the STR by an occupant, guest or visitor of the STR that substantially interferes with the use or enjoyment of private or public property and is reasonably likely to induce fear in persons of ordinary sensibilities, including but not limited to, conduct involving child abuse, sexual offenses, discharge of firearms, and offenses causing serious bodily injury or death.

Short-term rental (STR) means any portion, or all, of a dwelling unit offered or used for transient lodging, in exchange for compensation, for less than thirty (30) consecutive days. This definition of short-term rental includes all uses defined as short-term rentals in the City of Plano Zoning Ordinance, but does not include temporary accessory housing shelter.

Video monitoring device means an outdoor camera or other device, which captures, records or broadcasts video.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-732. Purpose.

The purpose of this article is to develop a process to identify STRs and their owners and others responsible for their operation, management, and ensuring compliance with applicable law; to register and self-inspect STRs; and to provide equitable and practical remedies for violations of this article in order to protect the general health, safety and welfare of occupants and others in the community. Registration of short-term rentals is a privilege, rather than a right.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-733. Applicability, administration, and training.

(a) This article shall apply to STRs located in the city. The director is authorized to administer and enforce the provisions of this article.

(b) Registration of a short-term rental with the City of Plano does not supersede any prohibition or requirement placed upon a short-term rental owner by a lease, private contract or property covenant, such as a deed restriction or binding HOA rules.

(c) The director may provide training to be completed by an applicant for STR registration. The director establishes the training and shall include at least the following: requirements of this article, noise regulations, parking requirements, trash pickup, human trafficking awareness and prevention, and property maintenance requirements. The director may discount registration up to a maximum of one hundred dollars ($100.00) for completion of training. Training

will be offered annually and owners who complete the annual training will be eligible for this discount when renewing their registration.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-734. Requirements of hosting platforms.

(a) All hosting platforms shall provide the following information in a notice to any person listing an STR located within the city through the hosting platform's service. The notice shall be provided prior to the person listing the premises and shall include the following information: THE SHORT-TERM RENTAL CODE OF THE CODE OF ORDINANCES OF THE CITY OF PLANO PROHIBITS THE SHORT-TERM RENTAL OF PREMISES WITHIN THE CITY OF PLANO WITHOUT AN ACTIVE SHORT-TERM RENTAL REGISTRATION.

(b) Notwithstanding any other provision of this article, nothing shall relieve any owner, person, occupant or hosting platform of the obligations imposed by applicable local, state, and federal law including this Code and the Texas Tax Code. Further, nothing in this article shall be construed to limit any remedies available under applicable local, state, and federal law.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-735. Registration required.

(a) No STR may be operated without an approved, valid STR registration from the city.

(b) Every individual dwelling unit operated as an STR within a common structure or building, regardless of ownership or management, shall require a separate, individual registration.

(c) A new STR owner who purchases a property with a current, valid registration on the property as of the date of purchase will be allowed to legally operate the STR on that property without updating the registration for up to thirty (30) days following the date the STR property ownership is transferred.

(d) The following are required for issuance of an STR registration:

(1) Along with the completed registration application described in the subsection below, the applicant shall provide evidence of one of the following: a) that the STR is allowed by right in the zoning district where the STR will operate; or b) that the STR is allowed by specific use permit in the zoning district where the STR will operate and an SUP has been issued for the property; or c) that the applicant has received a determination by the city, pursuant to article 7, nonconformities, of the zoning ordinance establishing that:

i. The STR is a nonconforming use because it was in operation on the subject property prior to May 15, 2023, which is the effective date of Ordinance No. 2023-5-1; or

ii. The owner had an investment-backed expectation in creating an STR on the subject property prior to May 15, 2023, which is the effective date of Ordinance No. 2023-5-1.

(2) A completed registration application must be submitted on a form prescribed by the director containing, at a minimum, the following, as applicable:

i. Business or trade name, physical address, and business mailing address of the STR; identity and contact information (including legal name, mailing address, email addresses, and telephone number), for every owner, operator, manager, partner, and mortgage lien holder of the STR or premises where it is located, including the registered agent for any entity;

ii. Complete contact information for all designated contacts, including legal name, residential and business mailing addresses, email address, telephone number, copy of government-issued identification, and dates and times of availability as a designated contact;

iii. Copy of government-issued identification for the primary applicant for registration;

iv. Depiction of the floor plan, including room dimensions, that identifies sleeping areas, dining areas, living areas, furniture layout, evacuation routes, and location of all fire extinguishers, noise monitoring devices, outdoor video monitoring devices, and smoke and carbon monoxide detectors;

v. Photographs of all interior and exterior rooms, hallways and spaces that are offered for use as an STR;

vi. Proof of insurance as required by this article;

vii. Identity and contact information for the property owners' association, if any, of which the premises are included in a dedicatory instrument;

viii. A list of all hosting platforms and other media that the applicant will use to advertise the STR, and a link to each listing for the STR on a hosting platform;

ix. A copy of the proposed host rules for the STR, including any rule on maximum number of guests;

x. For live-in management STRs, the designated operator;

xi. A sworn statement by the owner that:

1. There is no prohibition on operation of an STR at the premises by a lease, property covenant, private contract, binding HOA rule, or other agreement;

2. The STR is in compliance and will continue to comply with all requirements of this article and all applicable local, state, and federal law;

3. The applicant has provided accurate and complete information on all documents submitted to the city pursuant to this article;

4. All applicable fees and assessments on the premises used as an STR have been paid and shall continue to be paid including hotel occupancy taxes. If an STR is booked through a hosting platform that has entered into a contract with the city to collect hotel occupancy taxes ("a Hosting Platform Agreement"), then the owner is not required to remit the hotel occupancy taxes for that booking if it is remitted by the hosting platform; and

5. There is no property right in an STR registration and it is issued at the city's discretion and subject to revocation or denial in accordance with the terms of this article;

xii. All other information as may be required by this article.

(e) Applications shall be considered complete when all documentation required under this article has been submitted, all training is completed, and all registration fees have been paid.

(f) Incomplete applications will not be accepted.

(g) An STR registration may be approved and issued by the director if the STR application satisfies all conditions of this article.

(h) All city fees due from the owner and city assessments levied upon premises must be paid prior to the registration or renewal of an STR registration by the city.

(i) A registration to operate an STR is nontransferable and shall not be assigned nor transferred to another owner, operator or location. Any attempt to transfer a registration or attempt to use another person's registration is a violation of this article.

(j) The registration granted by this article is a regulated privilege, not a right, and can be revoked or suspended by the city in accordance with the provisions provided herein.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-736. Designated contact.

(a) As part of the registration application, applicant, owner, or registrant shall designate one or more designated contacts for the STR. A designated contact may be an owner, applicant, operator, registrant, or a designee and shall meet the following criteria:

(1) Accessible by telephone;

(2) Able to respond or resolve the report or request and arrive on site, if required, within one hour of being contacted, or within a reasonable time considering the circumstances;

(3) Authorized to make decisions regarding the premises, STR, and its occupants.

(b) The owner shall ensure the designated contact(s) is/are available and authorized to act as described in subsection (a) above during all periods of guest occupancy, including nights and weekends, to facilitate compliance with this article.

(c) The city recommends that the designated contact be local to the DFW area to assist with the required accessibility, responsiveness, and authority, but a nonlocal designated contact is acceptable so long as the required accessibility, responsiveness and authority under this section is maintained.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-737. Expiration of registration; renewals.

(a) A registration is valid for one calendar year after the date of issuance, unless suspended or revoked pursuant to this article or there is a change in ownership of the STR.

(b) Every complete renewal application for an STR registration shall include updates, if any, to the information contained in the original registration application or any subsequent renewals. The registrant shall sign a statement affirming that there is either no change to such information, or that any updated information is accurate and complete. The director may require additional information to ensure compliance with this article.

(c) A renewal application for an STR registration submitted after the expiration of the most current registration shall be treated as an application for a new registration as described in this article.

(d) No STR registration may be renewed without a completed renewal application and payment of the renewal application fee prior to the expiry of the current registration.

(e) An application for renewal may be denied if the premises cannot be legally used as a short-term rental as determined under the provisions of the City of Plano Zoning Ordinance, other law, private contract, or property covenant, including, but not limited to, deed restrictions and binding HOA rules. The city, however, is not responsible for interpreting or enforcing property covenants or private contracts.

(f) The director may renew the registration of an STR if the renewal application satisfies all conditions of this article and all applicable local, state, and federal law.

(g) A renewal application must include a completed copy of the prior year's annual self-inspection report.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-738. Application fees.

(a) A non-refundable fee of three hundred dollars ($300.00) shall be submitted with each registration or renewal application for an STR.

(b) A non-refundable fee of two hundred dollars ($200.00) shall be submitted with a renewal application for an STR in which an owner can show that the STR has not been the subject of a nuisance incident or serious incident within the previous twelve (12) months.

(c) A fee of twenty-five dollars ($25.00) shall be submitted to reprint an already issued registration certificate.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-739. Proof of insurance required.

No STR shall be operated without liability insurance that provides coverage of at least one million dollars ($1,000,000) per occurrence. A certificate of insurance shall be on file with the director. Proof of insurance shall be required at the time of application and notice of cancelation or change of insurance shall be made to the director within thirty (30) calendar days.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-740. Hotel occupancy taxes; request for occupancy history.

No STR shall be operated without payment of hotel occupancy taxes as required under state law. Upon request of the city, the registrant shall remit, within thirty (30) calendar days, an accounting of all occupants who rented the STR and the hotel occupancy taxes paid therefor.

The owner, however, is not required to provide such accounting for STRs rented with a hosting platform that has entered into a hosting platform agreement with the city. If, however, the city receives a complaint about failure to pay hotel occupancy taxes or the city determines, independent of information gained from the Hosting Platform Agreement or information received pursuant to that agreement that there is reason to believe the hotel occupancy taxes have not been paid, then the city may audit the owner for compliance with the hotel occupancy tax laws.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-741. Owner self-inspections and record retention.

(a) Registrant shall fully inspect each STR in compliance with this article. Self inspections by the owner shall be conducted at least once a year. The director shall provide a list indicating the areas to be self-inspected by owner. Owner shall sign and date each self-inspection report at the time the self-inspection is completed for each STR and provide it to the director upon request. Self-inspection reports shall be in writing and on a form prescribed or approved by the director.

(b) All documents related to the self-inspection, and the inspection reports shall be maintained by the registrant for a minimum of three (3) years from the date of approval by the director.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-742. Noise and video monitoring.

Each STR shall be equipped with a noise-monitoring device, and all data produced by this device shall be retained for a period of one hundred eighty (180) days. Data shall not include data protected by privacy laws, rules and regulations, including but not limited to V.T.C.A., Penal Code § 16.02.

Each STR shall be equipped with an outdoor video monitoring device for security purposes in a conspicuous area where there is not a reasonable expectation of privacy.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-743. Registration and host rules to be displayed.

Each STR shall provide, in a conspicuous, publicly accessible area inside the front entrance(s) of the STR:

(a) A copy of the current and valid registration certificate;

(b) The contact information for the designated contact(s);

(c) Pertinent local and state information, regulations, and laws, in a format to be provided by the director, as it relates to the use of the STR by the occupant; and

(d) Host rules for the STR.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-744. Advertising, promoting or allowing primary use as an assembly hall prohibited.

(a) The registrant shall update the information provided pursuant to section 6-735(d)(2)(viii), in a method determined by the director, within twenty-four (24) hours of a new, revised or removed advertisement or promotion.

(b) An owner, registrant or occupant shall not advertise, promote or allow a short term rental for use that would be consistent with primary use as an "assembly hall" under the City of Plano Zoning Ordinance.

(c) The owner and the registrant is presumed to have allowed an advertisement or promotion on a hosting platform identified pursuant to section 6-735(d)(2)(viii).
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-745. Denial, suspension or revocation of short term rental registration.

(a) *Suspension pending new application.* A registration may be suspended, and a registrant may reapply immediately, if the director determines, by a preponderance of the evidence, any of the following:

(1) Previous registration was issued in error; or

(2) Previous registration was issued on the basis of incomplete or incorrect information provided by applicant, registrant or owner.

(b) *Suspension for three months.* An application for registration or renewal may be denied or a registration may be suspended for three (3) months, if the director determines, by a preponderance of the evidence, any of the following:

(1) Failure to maintain or to provide upon request from the director proof of insurance in compliance with this article and consistent with the registration application.

(2) Failure of the owner to designate a contact as required by section 6-736(a) or failure of the owner to ensure the designated contact is available and authorized to act as required by section 6-736(b).

(3) Failure of the designated contact to meet the requirements of section 6-736(a) during all periods of guest occupancy, including nights and weekends, to facilitate compliance with this article.

(c) *Suspension for six months, nuisance incident.* If the director determines, by a preponderance of the evidence, that one nuisance incident occurred at the STR premises within six (6) months preceding the date of the application, then an application for registration may be denied until six (6) months after the date of the nuisance incident.

If the director determines that one nuisance incident occurred at the STR premises while the STR was registered, the registration may be suspended for six (6) months.

(d) *Suspension for one year, nuisance incident, serious incident, or operation of an STR without a valid registration.* If the director determines, by a preponderance of the evidence, that two (2) or more nuisance incidents occurred at the STR premises within one (1) year preceding the date of the application, or that one serious incident occurred and the director determines that the registrant was aware of but consciously disregarded a substantial risk of the serious incident occurring, then an application for registration may be denied until one year after the date of the last nuisance incident.

If the director determines, by a preponderance of the evidence, that two or more nuisance incidents occurred at the STR premises while the STR was registered, or one (1) serious incident occurred and the director determines that the registrant was aware of but consciously disregarded a substantial risk of the serious incident, then the registration may be suspended for one (1) year.

If the director determines, by a preponderance of the evidence, that an STR was operated, advertised or promoted without a valid registration, then the application for registration may be denied for one (1) year.

(e) *Other violations not specially addressed.* An application for registration or renewal may be denied for a period of three (3) months or a registration may be suspended for three (3) months, if the director determines, by a preponderance of the evidence, that the registrant, owner or designated person failed or refused to comply with a requirement of this article, other than the

requirements specifically addressed in this section, and remains in non-compliance ten (10) business days after being notified in writing of such non-compliance.

(f) *Presumption of nuisance incident.* A nuisance incident is presumed if enforcement action was taken by law enforcement or code enforcement, including, but not limited to, issuance of a citation, notice to appear, or summons; an arrest; or issuance of a warrant for arrest for the criminal conduct at the premises of the STR or committed by an occupant or guest of the STR during the rental period.

(g) *Nuisance incident or serious incident reported by owner.* In a determination or proceeding to deny, suspend or revoke a short-term rental registration based on a nuisance incident or serious nuisance incident, in order to encourage voluntary and prompt reporting of criminal conduct, the director may disregard such incident if the following criteria is met:

(1) An owner, operator, or manager of the STR reported such incident immediately to law enforcement and/or code enforcement agents responsible for investigating such incident;

(2) The reporting person and STR owner were fully cooperative in the investigation of such incident by law enforcement and code enforcement; and

(3) The reporting person was not criminally responsible for the conduct reported and was not reckless in the rental of the STR.

(h) *Denial or revocation for illegal use.* An application for registration or renewal will be denied or a registration will be revoked permanently if:

(1) The premises cannot be legally used as a short-term rental as determined under the provisions of the City of Plano Zoning Ordinance, such as situations where the property owner has intentionally abandoned a nonconforming use; or

(2) In the opinion of the city, the premises cannot be legally used as a short-term rental by other law, private contract or property covenant, including but not limited to deed restrictions, HOA rules, or leases. The city, however, is not responsible for interpreting or enforcing property covenants or private contracts.

(i) *Prior incidents.* No suspension or revocation may be based upon nuisance incidents that occurred prior to the adoption of this article.

(j) *Action during suspension.* While a registration is suspended, the registration is inactive. The premises may not be advertised as available for use, or used, as an STR on an inactive registration.

(k) *Term of suspension.* If the term of the suspension of an STR registration is shorter than the amount of time left before the registration expires, the registration becomes valid the day after the suspension concludes. If the term of the suspension of an STR registration is longer than the amount of time left before registration expires, the applicant may not be granted a new registration until the day after the suspension concludes.

(l) *Notice of director determination.* Notice of the determination of denial, suspension or revocation shall be given to the applicant or registrant in writing, with the reasons for the denial, suspension or revocation. Such notice of determination shall be served either by personal service, express mail service, or by United States mail to the applicant or registrant's last known address. In cases of suspension or revocation, the service of the suspension or revocation shall become effective the day following personal service, or, if mailed, five (5) business days from the date of mailing.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-746. Hearing to contest the director's determination of denial of an application, or suspension or revocation of a registration.

(a) If the determination of denial, suspension or revocation is based upon absence of nonconforming status, then the process for determination and appeal is found in articles 5 and 7 of the City of Plano Zoning Ordinance.

(b) To contest the determination of denial, suspension or revocation of a registration, the applicant or registrant shall file a written request for a hearing with the director within ten (10) business days following service of such notice. If no written request for hearing is filed within ten (10) business days, the denial, suspension or revocation is sustained.

(c) The director shall give notice of the date and time of the hearing to the appellant and conduct the hearing within twenty (20) business days of the date on which the notice of appeal was filed with the director, unless otherwise agreed by the parties.

(d) A request for hearing shall stay the denial, suspension or revocation of the registration unless the director determines an immediate denial, suspension or revocation is necessary because of urgent concern for physical safety.

(e) Based upon the evidence presented at such hearing, the director shall sustain, modify or rescind the determination by written decision supported by reasoning and findings of fact.

(f) If no appeal is timely filed with the city manager, the director's decision is final.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-747. Final appeal to city manager.

(a) An applicant or registrant may appeal a decision made pursuant to section 6-746(e) to the city manager. All appeals to the city manager shall be made in writing and received no less than ten (10) business days after any final decision made by the director in accordance with the sections above.

(b) The city manager shall give notice of and conduct a hearing within twenty (20) business days from receipt of the applicant or registrant's appeal request, unless otherwise agreed by the parties.

(c) An appeal shall stay the denial, suspension or revocation of the registration unless the city manager determines an immediate denial, suspension or revocation is necessary because of urgent concern for physical safety.

(d) Based upon the evidence presented at such hearing, the city manager shall sustain, modify or rescind the determination by written decision supported by reasoning and findings of fact.

(e) The decision shall be furnished to the applicant or registrant.

(f) If a determination of suspension or revocation is reversed, the registration shall be reinstated immediately. If a determination of denial is reversed, the registration shall be issued within five (5) business days.

(g) The determination of the city manager or the city manager's designee shall be final on the date the written decision is signed.

(h) For purposes of this section, city manager includes his designee.
(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-748. Offenses.

(a) It shall be an offense for any person to operate an STR and:

(1) Fail to have a valid registration for the STR;

(2) Fail to pay registration fees as required in this article;

(3) Fail to comply with self-inspection requirements or record-retention as required in this article;

(4) Fail to provide information as required in section 6-743;

(5) Advertise, promote, or allow the use of an STR that is not in compliance with the STR registration, this article or other law. The registrant is presumed to have allowed an advertisement or promotion on a hosting platform identified pursuant to section 6-735(d)(2)(viii);

(6) Operate the STR using a registration number not assigned to the owner or registrant, or to a different address, or to a different dwelling unit;

(7) Operate the STR without current, valid insurance in compliance with this article;

(8) Fail to provide within thirty (30) days following a request by the director an accounting of payment of hotel occupancy taxes and history of occupants as required in this article;

(9) Fail to designate a contact as required by section 6-736(a);

(10) Fail to ensure the designated contact(s) is/are available and authorized to act as described in section 6-736(a) above during all periods of guest occupancy, including nights and weekends, to facilitate compliance with this article;

(11) Fail to provide complete and accurate information in an application for registration or renewal of registration of an STR; or

(12) Fail to notify the director within seventy-two (72) hours after information in an application or approved STR registration becomes inaccurate, excluding information regarding the change in the ownership of the STR.

(b) It shall be an offense for a person to operate an STR and intentionally, knowingly, or recklessly allow the use of the STR:

(1) To promote or engage in an illegal activity;

(2) By one or more persons in violation of the Residency Restrictions for Child Predator Offenders as set forth in section 14-123 of this Code or in violation of Registration Requirements in V.T.C.A., Code of Criminal Procedure Ch. 62;

(3) To promote or engage in illegal distribution or possession with intent to distribute marijuana, a dangerous drug, or any controlled substance, as defined by the Texas Health and Safety Code;

(4) To promote or engage in selling alcohol or another activity that requires a permit or license under the Texas Alcoholic Beverage Code;

(5) To operate as a sexually oriented business as defined in section 17.5-2 of this Code; or

(6) As an "assembly hall" as defined in the City of Plano Zoning Ordinance unless the short-term rental is located in a district where assembly hall use is permitted.

(Ord. No. 2024-4-14, § I, 4-22-24)

Sec. 6-749. Enforcement.

(a) Any violation of this article is a Class C misdemeanor punishable as stated in section 1-4(b) of the City Code of Ordinance by a fine not to exceed five hundred dollars ($500.00) for each offense. Every day a violation continues shall constitute a separate offense.

(b) Nothing in this article prohibits the city from using civil and criminal enforcement remedies concurrently or availing itself of any other remedy allowed by law. The city may seek injunctive relief to prevent, restrain or correct unlawful use or illegal acts on the premises pursuant to V.T.C.A., Local Government Code Ch. 211 or bring a civil action or seek injunctive relief under V.T.C.A., Local Government Code Ch. 54.

(Ord. No. 2024-4-14, § I, 4-22-24)

Secs. 6-750—6-769. Reserved.

Chapter 7

CABLE TELEVISION*

Art. I.	**In General, §§ 7-1—7-15**
Art. II.	**Rates, §§ 7-16—7-35**
Art. III.	**Programming Guidelines for Community Service Channels, §§ 7-36—7-49**
Art. IV.	**Multichannel Video Providers §§ 7-50, 7-51**

*__Cross references—__Administration, Ch. 2; licenses and business regulations, Ch. 11; streets and sidewalks, Ch. 19; utilities, Ch. 21; zoning, App. A; cable television franchise, App. B; application of electrical code to radio and television transmitting equipment, § 6-308.

ARTICLE I. IN GENERAL

Secs. 7-1—7-15. Reserved.

ARTICLE II. RATES*

Sec. 7-16. Definitions.

In this article:

Basic cable rates means the monthly charges for a subscription to the basic service tier and the associated equipment.

Basic service tier means a separately available service tier to which subscription is required for access to any other tier of service, including as a minimum, but not limited to, all must-carry signals, all PEG channels, and all domestic television signals other than superstations.

Benchmark means a per channel rate of charge for cable service and associated equipment which the FCC has determined is reasonable.

Cable Act of 1992 means the Cable Television Consumer Protection and Competition Act of 1992.

Cable operator means any person or group of persons:

(1) Who provide cable service over a cable system and directly or through one (1) or more affiliates owns a significant interest in such a cable system; or

(2) Who otherwise controls or is responsible for, through any arrangement, the management and operation of such a cable system.

Channel means a unit of cable service identified and selected by a channel number or similar designation.

Cost of service showing means a filing in which the cable operator attempts to show that the benchmark rate or the price cap is not sufficient to allow the cable operator to fully recover the costs of providing the basic service tier and to continue to attract capital.

FCC means the Federal Communications Commission.

Initial basic cable rates means the rates that the cable operator is charging for the basic service tier, including charges for associated equipment, at the time the city notifies the cable operator of the city's qualification and intent to regulate basic cable rates.

Must-carry signal means the signal of any local broadcast station (except superstations) which is required to be carried on the basic service tier.

PEG channel means the channel capacity designated for public, educational, or governmental use, and facilities and equipment for the use of that channel capacity.

Price cap means the ceiling set by the FCC on future increases in basic cable rates regulated by the city, based on a formula using the GNP fixed weight price index, reflecting general increases in the cost of doing business and changes in overall inflation.

Reasonable rate standard means a per channel rate that is at, or below, the benchmark or price cap level.

Superstation means any nonlocal broadcast signal secondarily transmitted by satellite.
(Ord. No. 93-10-13, § 1, 10-11-93)

Sec. 7-17. Initial review of basic cable rates.

(a) *Notice.* Upon the adoption of this article and the certification of the city by the FCC, the city shall immediately notify all cable operators in the city, by certified mail, return receipt requested, that the city intends to regulate subscriber rates charged for the basic service tier and associated equipment as authorized by the Cable Act of 1992.

(b) *Cable operator response.* Within thirty (30) days of receiving notice from the city, a cable operator shall file with the city, its current rates for the basic service tier and associated equipment

*Editor's note—Ordinance No. 93-10-13, adopted Oct. 11, 1993, did not specifically amend this Code; hence, codification of §§ 1—6 of said ordinance as §§ 7-16—7-21 herein was at the editor's discretion. Previously, this Art. II, §§ 7-16—7-23, pertaining to the CATV advisory board and deriving from §§ 1—8 of Ord. No. 82-9-13, adopted Sep. 13, 1982, and §§ I and II of Ord. No. 88-10-9, adopted Oct. 10, 1988, had been repealed by § I of Ord. No. 90-2-11, adopted Feb. 12, 1990.

and any supporting material concerning the reasonableness of its rates.

(c) *Expedited determination and public hearing.*

(1) If the city council is able to expeditiously determine that the cable operator's rates for the basic service tier and associated equipment are within the FCC's reasonable rate standard, as determined by the applicable benchmark, the city council shall:

a. Hold a public hearing at which interested persons may express their views; and

b. Act to approve the rates within thirty (30) days from the date the cable operator filed its basic cable rates with the city.

(2) If the city council takes no action within thirty (30) days from the date the cable operator filed its basic cable rates with the city, the proposed rates will continue in effect.

(d) *Extended review period.*

(1) If the city council is unable to determine whether the rates in issue are within the FCC's reasonable rate standard based on the material before it, or if the cable operator submits a cost-of-service showing, the city council shall, within thirty (30) days from the date the cable operator filed its basic cable rates with the city and by adoption of a formal resolution, invoke the following additional periods of time, as applicable, to make a final determination:

a. Ninety (90) days if the city council needs more time to ensure that a rate is within the FCC's reasonable rate standard; or

b. One hundred fifty (150) days if the cable operator has submitted a cost-of-service showing seeking to justify a rate above the applicable benchmark.

(2) If the city council has not made a decision within the ninety- or one hundred fifty-day period, the city council shall issue a brief written order at the end of the period requesting the cable operator to keep accurate account of all amounts received by reason of the proposed rate and on whose behalf the amounts are paid.

(e) *Public hearing.* During the extended review period and before taking action on the proposed rate, the city council shall hold at least one (1) public hearing at which interested persons may express their views and record objections.

(f) *Objections.* An interested person who wishes to make an objection to the proposed initial basic rate may request the city secretary to record the objection during the public hearing or may submit the objection in writing anytime before the decision resolution is adopted. In order for an objection to be made part of the record, the objector must provide the city secretary with the objector's name and address.

(g) *Benchmark analysis.* If a cable operator submits its current basic cable rate schedule as being in compliance with the FCC's reasonable rate standard, the city council shall review the rates using the benchmark analysis in accordance with the standard form authorized by the FCC. Based on the city council's findings, the initial basic cable rates shall be established as follows:

(1) If the current basic cable rates are below the benchmark, those rates shall become the initial basic cable rates and the cable operator's rates will be capped at that level.

(2) If the current basic cable rates exceed the benchmark, the rates shall be the greater of the cable operator's per channel rate on September 30, 1992, reduced by ten (10) percent, or the applicable benchmark, adjusted for inflation and any change in the number of channels occurring between September 30, 1992, and the initial date of regulation.

(3) If the current basic cable rates exceed the benchmark, but the cable operator's per channel rate was below the benchmark on September 30, 1992, the initial basic cable rate shall be the benchmark, adjusted for inflation.

(h) *Cost-of-service showings.* If a cable operator does not wish to reduce the rates to the permitted

level, the cable operator shall have the opportunity to submit a cost-of-service showing in an attempt to justify an initial basic cable rate above the FCC's reasonable rate standard. The city council will review a cost-of-service submission pursuant to FCC standards for cost-of-service review. The city council may approve initial basic cable rates above the benchmark if the cable operator makes the necessary showing; however, a cost-of-service determination resulting in rates below the benchmark or below the cable operator's September 30, 1992 rates minus ten (10) percent, will prescribe the cable operator's new rates.

(i) *Decision.*

(1) *By formal resolution.* After completion of its review of the cable operator's proposed rates, the city council shall adopt its decision by formal resolution. The decision shall include one (1) of the following:

a. If the proposal is within the FCC's reasonable rate standard or is justified by a cost-of-service analysis, the city council shall approve the initial basic cable rates proposed by the cable operator; or

b. If the proposal is not within the FCC's reasonable rate standard and the cost-of-service analysis, if any, does not justify the proposed rates, the city council shall establish initial basic cable rates that are within the FCC's reasonable rate standard or that are justified by a cost-of-service analysis.

(2) *Rollbacks and refunds.* If the city council determines that the initial basic cable rates as submitted exceed the reasonable rate standard or that the cable operator's cost-of-service showing justifies lower rates, the city council may order the rates reduced in accordance with paragraph (g) or (h) above, as applicable. In addition, the city council may order the cable operator to pay to subscribers, refunds of the excessive portion of the rates with interest (computed at applicable rates published by the Internal Revenue Service for tax refunds and additional tax payments), retroactive to September 1, 1993. The method for paying any refund and the interest rate will be in accordance with FCC regulations as directed in the city council's decision resolution.

(3) *Statement of reasons for decision and public notice.* If rates proposed by a cable operator are disapproved in whole or in part, or if there were objections made by other parties to the proposed rates, the resolution must state the reasons for the decision and the city council must give public notice of its decision. Public notice will be given by advertisement once in the official newspaper of the city.

(j) *Appeal.* The city council's decision concerning rates for the basic service tier or associated equipment, may be appealed to the FCC in accordance with applicable federal regulations.
(Ord. No. 93-10-13, § 2, 10-11-93)

Sec. 7-18. Review of request for increase in basic cable rates.

(a) *Notice.* A cable operator in the city who wishes to increase the rates for the basic service tier or associated equipment shall file a request with the city and notify all subscribers at least thirty (30) days before the cable operator desires the increase to take effect. This notice may not be given more often than annually and not until at least one (1) year after the determination of the initial basic cable rates.

(b) *Expedited determination and public hearing.*

(1) If the city council is able to expeditiously determine that the cable operator's rate increase request for basic cable service is within the FCC's reasonable rate standard, as determined by the applicable price cap, the city council shall:

a. Hold a public hearing at which interested persons may express their views; and

b. Act to approve the rate increase within thirty (30) days from the date the cable operator filed its request with the city.

(2) If the city council takes no action within thirty (30) days from the date the cable op-

erator filed its request with the city, the proposed rates will go into effect.

(c) *Extended review period.*

(1) If the city council is unable to determine whether the rate increase is within the FCC's reasonable rate standard based on the material before it, or if the cable operator submits a cost-of-service showing, the city council shall, by adoption of a formal resolution, invoke the following additional periods of time, as applicable, to make a final determination:

a. Ninety (90) days if the city council needs more time to ensure that the requested increase is within the FCC's reasonable rate standard as determined by the applicable price cap; and

b. One hundred fifty (150) days if the cable operator has submitted a cost-of-service showing seeking to justify a rate increase above the applicable price cap.

(2) The proposed rate increase is tolled during the extended review period.

(3) If the city council has not made a decision within the ninety- or one hundred fifty-day period, the city council shall issue a brief written order at the end of the period requesting the cable operator to keep accurate account of all amounts received by reason of the proposed rate increase and on whose behalf the amounts are paid.

(d) *Public hearing.* During the extended review period and before taking action on the requested rate increase, the city council shall hold at least one (1) public hearing at which interested persons may express their views and record objections.

(e) *Objections.* An interested person who wishes to make an objection to the proposed rate increase may request the city secretary to record the objection during the public hearing or may submit the objection in writing anytime before the decision resolution is adopted. In order for an objection to be made part of the record, the objector must provide the city secretary with the objector's name and address.

(f) *Delayed determination.* If the city council is unable to make a final determination concerning a requested rate increase within the extended time period, the cable operator may put the increase into effect, subject to subsequent refund if the city council later issues a decision disapproving any portion of the increase.

(g) *Price cap analysis.* If a cable operator presents its request for a rate increase as being in compliance with the FCC's price cap, the city council shall review the rate using the price cap analysis in accordance with the standard form authorized by the FCC. Based on the city council's findings, the basic cable rates shall be established as follows:

(1) If the proposed basic cable rate increase is within the price cap established by the FCC, the proposed rates shall become the new basic cable rates.

(2) If the proposed basic cable rate increase exceeds the price cap established by the FCC, the city council shall disapprove the proposed rate increase and order an increase that is in compliance with the price cap.

(h) *Cost-of-service showings.* If a cable operator submits a cost-of-service showing in an attempt to justify a rate increase above the price cap, the city council will review the submission pursuant to the FCC standards for cost-of-service review. The city council may approve a rate increase above the price cap if the cable operator makes the necessary showing; however, a cost-of-service determination resulting in a rate below the price cap or below the cable operator's then current rate will prescribe the cable operator's new rate.

(i) *Decision.* The city council's decision concerning the requested rate increase, shall be adopted by formal resolution. If a rate increase proposed by a cable operator is disapproved in whole or in part, or if objections were made by other parties to the proposed rate increase, the resolution must state the reasons for the decision. Objections may be made at the public hearing by a person requesting the city secretary to record the objection or may be submitted in writing at anytime before the decision resolution is adopted.

(j) *Refunds.*

(1) The city council may order refunds of subscribers' rate payments with interest if:

a. The city council was unable to make a decision within the extended time pe-

riod as described in paragraph (c) above; and

b. The cable operator implemented the rate increase at the end of the extended review period; and

c. The city council determines that the rate increase as submitted exceeds the applicable price cap or that the cable operator failed to justify the rate increase by a cost-of-service showing, and the city council disapproves any portion of the rate increase.

(2) The method for paying any refund and the interest rate will be in accordance with FCC regulations as directed in the city council's decision resolution.

(k) *Appeal.* The city council's decision concerning rates for the basic service tier or associated equipment, may be appealed to the FCC in accordance with applicable federal regulations. (Ord. No. 93-10-13, § 3, 10-11-93)

Sec. 7-19. Cable operator information.

(a) *City may require.*

(1) In those cases when the cable operator has submitted initial rates or proposed an increase that exceeds the reasonable rate standard, the city council may require the cable operator to produce information in addition to that submitted, including proprietary information, if needed to make a rate determination. In these cases, a cable operator may request the information be kept confidential in accordance with this section.

(2) In cases where initial or proposed rates comply with the reasonable rate standard, the city council may request additional information only in order to document that the cable operator's rates are in accord with the standard.

(b) *Request for confidentiality.*

(1) A cable operator submitting proprietary information to the city council may request in writing that the information not be made routinely available for public inspection. A copy of the request shall be attached to and cover all of the information and all copies of the information to which it applies. Any such request shall be submitted to the office of the city attorney to ensure compliance with chapter 552, Government Code, V.T.C.A., the Open Records Act.

(2) If feasible, the information to which the request applies shall be physically separated from any information to which the request does not apply. If this is not feasible, the portion of the information to which the request applies shall be identified.

(3) Each request shall contain a statement of the reasons for withholding inspection and a statement of the facts upon which those reasons are based.

(4) Casual requests which do not comply with the requirements of this subsection, shall not be considered.

(c) *City council action.* Requests which comply with the requirements of subsection (b), will be acted upon by the city council. The city council will grant the request if the cable operator presents by a preponderance of the evidence, a case for nondisclosure consistent with applicable federal regulations. If the request is granted, the ruling will be placed in a public file in lieu of the information withheld from public inspection. If the request does not present a case for nondisclosure and the city council denies the request, the city council shall take one of the following actions:

(1) If the information has been submitted voluntarily without any direction from the city, the cable operator may request that the city return the information without considering it. Ordinarily, the city will comply with this request. Only in the unusual instance that the public interest so requires, will the information be made available for public inspection.

(2) If the information was required to be submitted by the city council, the information will be made available for public inspection.

(d) *Appeal.* If the city council denies the request for confidentiality, the cable operator may seek review of that decision from the FCC within five (5) working days of the city council's decision, and the release of the information will be stayed pending review.
(Ord. No. 93-10-13, § 4, 10-11-93)

Sec. 7-20. Automatic rate adjustments.

(a) *Annual inflation adjustment.* In accordance with FCC regulations, the cable operator may adjust its capped base per channel rate for the basic service tier annually by the final GNP-PI index.

(b) *Other external costs.*

(1) The FCC regulations also allow the cable operator to increase its rate for the basic service tier automatically to reflect certain external cost factors to the extent that the increase in cost of those factors exceeds the GNP-PI. These factors include retransmission consent fees, programming costs, state and local taxes applicable to the provision of cable television service, and costs of franchise requirements. The total cost of an increase in a franchise fee may be automatically added to the base per channel rate, without regard to its relation to the GNP-PI.

(2) For all categories of external costs other than retransmission consent and franchise fees, the starting date for measuring changes in external costs for which the basic service per channel rate may be adjusted will be the date on which the basic service tier becomes subject to regulations or February 28, 1994, whichever occurs first. The permitted per channel charge may not be adjusted for costs of retransmission consent fees or changes in those fees incurred before October 6, 1994.

(c) *Notification and review.* The cable operator shall notify the city at least thirty (30) days in advance of a rate increase based on automatic adjustment items. The city shall review the increase to determine whether the item or items qualify as automatic adjustments. If the city makes no objection within thirty (30) days of receiving notice of the increase, the increase may go into effect.
(Ord. No. 93-10-13, § 5, 10-11-93)

Sec. 7-21. Enforcement.

(a) *Refunds.* The city may order the cable operator to refund to subscribers a portion of previously paid rates under the following circumstances:

(1) A portion of the previously paid rates have been determined to be in excess of the permitted tier charge or above the actual cost of equipment; or

(2) The cable operator has failed to comply with a valid rate order issued by the city.

(b) *Fines.* If the cable operator fails to comply with a rate decision or refund order, the cable operator shall be subject to a fine of five hundred dollars ($500.00) for each day the cable operator fails to comply.
(Ord. No. 93-10-13, § 6, 10-11-93)

Secs. 7-22—7-35. Reserved.

ARTICLE III. PROGRAMMING GUIDELINES FOR COMMUNITY SERVICE CHANNELS

Sec. 7-36. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Advertising means telling about or praising a product, service, business, etc., so as to make people want to buy; intentionally showing business or product names, logos, or symbols as promotion; having the intent to make a profit.

Community member means a resident of the city and members of organizations and agencies which serve the city.

Defamation means attacking or injuring the reputation or honor of a person, group, organization, race, etc., by false or malicious statements; to malign, slander, libel, or disgrace.

Obscenity shall be as defined in Chapter 43.21 of the Texas Penal Code, as presently exists or hereafter amended.

Profanity means using debase or improper language which is considered offensive to the general public and/or contrary to Federal Communications Commission standards.
(Res. No. 85-8-8(R), § I, 8-12-85)

Sec. 7-37. Implementation by CATV advisory board.

The CATV advisory board established in this chapter is hereby authorized to oversee the implementation of this article.
(Res. No. 85-8-8(R), § II, 8-12-85)

Note—See the editor's note to Art. II of this chapter.

Sec. 7-38. Purpose of community service channels.

The purpose of community service channels for local access is to provide the community a medium for individuals, organizations, and institutions to communicate with the citizens of the city via channels on the cable television network. Equipment, facilities and channels are available for community use to develop noncommercial programs. The objective is to encourage a wide diversity of programming and accessibility.
(Res. No. 85-8-8(R), § I, 8-12-85)

Sec. 7-39. Prerequisites to using production facilities.

In order to use the production facilities of Telecable of Plano (referred to in this article as "Telecable"), a community member must have taken a training course provided by Telecable or demonstrated production capability and familiarity with the production equipment to Telecable's staff and meet the ongoing requirements of Telecable's operating practices.
(Res. No. 85-8-8(R), § I, 8-12-85)

Sec. 7-40. Prohibited materials.

No individual will be denied access to community service channels on the basis of race, sex, age, physical disability, religious or political belief. The only materials prohibited from appearing on the community service channels are the following:

(1) Any advertising which promotes the sale of any product or service;

(2) Any direct solicitation of funds for any reason;

(3) Any material which is obscene or indecent;

(4) Any material which violates federal or state statutes or law;

(5) Any material with explicit sexual interaction or material designed to arouse sexual desire.

(Res. No. 85-8-8(R), § I, 8-12-85)

Sec. 7-41. Scheduling.

(a) Any community member may submit a request for time on the designated community service channels. Applications for time may be made through the CATV office at the municipal building (or such other facility as may be designated).

(b) Applications for channel time shall be submitted in writing at least two (2) weeks in advance and shall identify the proposed uses or group by name and address and shall be complete as to all information requested on the application form.

(c) Any requests on behalf of a minor shall be signed by a responsible adult.

(d) All requests for channel time shall be processed on a fair and equitable basis, depending upon the availability of channel time. Applicant may specify alternates and times in the initial request.

(e) If scheduling allows, a taped program may be repeated during any weekly period. Original cablecasts of any type will have priority.

(f) Regularly scheduled series time slots will be allocated at the discretion of CATV staff, providing ample time is available. Series will be allocated a maximum period of six (6) weeks. After this time a new application for time is

required. Reapplication will be considered in respect to scheduling demands. If a series producer fails to submit new, original programming for more than two (2) consecutive weeks, staff may at its discretion, assign the remaining portion of the series time to another use.
(Res. No. 85-8-8(R), § I, 8-12-85)

Sec. 7-42. Compliance with article.

(a) The programming material presented on the community service channels will comply with the agreements between Telecable and the city. It will be the sole responsibility of program initiators, producers and crews to make sure program production and final content comply with this article and community service policies. Program initiators, producers and crews will be responsible for any libelous or defamatory content. The city will not be responsible for any breach of this article.

(b) All videotapes of programs and scripts of programs to be cablecast (except on-the-spot coverage of bona fide newsworthy events) shall be submitted to the Telecable staff at least one (1) week prior to presentation so that there will be an opportunity for review for content as desired by the staff.

(c) The judgement of the Telecable staff and/or the CATV advisory board and the city with respect to the use of the particular scheduled program shall be final.

Note—See the editor's note to Art. II of this chapter.

(d) All videotapes submitted for showing on community service channels will be evaluated as to technical quality and will be required to meet Telecable's technical standards.
(Res. No. 85-8-8(R), § I, 8-12-85)

Sec. 7-43. Subject to review, revision.

All policies as to the use of community service channels are subject to review at any time by the CATV advisory board and/or the city council. This article may be revised at any time by the CATV advisory board or the city.
(Res. No. 85-8-8(R), § I, 8-12-85)

Note—See the editor's note to Art. II of this chapter.

Secs. 7-44—7-49. Reserved.

ARTICLE IV. MULTICHANNEL VIDEO PROVIDERS

Sec. 7-50. Franchise required.

All multichannel video providers shall obtain a franchise from the City of Plano prior to providing services to any resident, business, or person within the city and shall have a franchise in full force and effect at all times while such service is being provided.

No person, firm, or corporation may construct a multichannel video system in the city without first obtaining from the city a franchise authorizing the construction.
(Ord. No. 99-3-17, § I, 3-22-99)

Sec. 7-51. Definitions.

[For the purposes of this article, the following words, terms and phrases shall have the meanings herein set out:]

Construct as used herein includes:

(1) The installation of lines, fibers or facilities that are in or cross any of the streets, highways or public rights-of-way within the city for use as part of a multichannel video system, or

(2) The connection of other facilities directly or indirectly to previously existing lines, fibers or facilities that are in or cross any of the streets, highways or public rights-of-way within the city for use as part of a multichannel video system.

Multichannel video provider means a person or entity who meets one (1) or more of the following tests:

(1) The provider is a cable operator, as such term is defined in the Federal Cable Act, being Title VI of the Federal Communications Act of 1934, 47 U.S.C. Section 521, et seq., or is otherwise required to obtain a franchise, as such term is defined in such Act.

(2) The provider is an operator of an open video system, as such term is defined in Title VI of the Federal Communications Act of 1934 and implementing regulations.

(3) Any person or entity who provides multichannel video service to a resident, business, or person within the City of Plano where such service is transmitted in whole or in part via wires or lines that are in or cross any public rights-of-way within the city. The preceding sentence shall apply whether the provider owns, leases, or otherwise obtains the right to use such wires or lines, including wires or lines of a telecommunications provider used pursuant to tariff or otherwise for such purpose.

(4) A person or entity providing multichannel video service who is otherwise required to obtain a franchise or similar permission or approval under applicable law.

Multichannel video service means multiple channels of video programming where the individual video channels are generally considered comparable to programming provided by a television broadcast station or by a direct-to-home satellite service.

Multichannel video system includes:

(1) A cable system, as such term is defined in Title VI of the Federal Communications Act of 1934,

(2) An open video system, as such term is defined in Title VI of the Federal Communications Act of 1934 and implementing regulations, and

(3) Any other system which provides multichannel video service to a resident, business or person within the city, where such service is transmitted in whole or in part via wires or lines that are in or cross any public rights-of-way within the city. The preceding sentence shall apply whether the provider owns, leases or otherwise obtains the right to use such wires or lines, including wires or lines of a telecommunications provider used pursuant to tariff or otherwise for such purpose.

(Ord. No. 99-3-17, § I, 3-22-99)

[The next page is 501]

Chapter 7.5

EMERGENCY SERVICES*

Art. I. In General, §§ 7.5-1—7.5-15
Art. II. 9-1-1 Service, §§ 7.5-16—7.5-19

*Cross references—Emergency management, § 2-136 et seq.; alarm systems, § 11-221 et seq.; police, Ch. 17.

ARTICLE I. IN GENERAL

Secs. 7.5-1—7.5-15. Reserved.

ARTICLE II. 9-1-1 SERVICE*

Sec. 7.5-16. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Local exchange access line or *equivalent local exchange access line* mean the physical voice grade telecommunications connection or the cable or broadband transport facilities, or any combination of these facilities, between an end user customer's premises, and a service provider's network that, when the digits 9-1-1 are dialed, provides the end user customer access to a public safety network. Each such connection (e.g. individual channel) provided to an end user customer shall constitute a separate "local exchange access line" or "equivalent local exchange access line." A service provider that bills federal subscriber line charges on all its retail lines and services to all its end user customers may use the federal subscriber line charge as an alternative definition and may bill, collect, and remit 9-1-1 emergency service fees on that basis.

Local exchange access line or *equivalent local exchange access line* do not include coin-operated public telephone equipment, public telephone equipment operated by card reader, commercial mobile radio service that provides access to a paging or other one-way signaling service, a communication channel suitable only for data transmission, a line from a telecommunications service provider to an Internet service provider for the Internet service provider's data modem lines only to provide its Internet access service and that are not capable of transmitting voice messages, a wireless roaming service or other nonvocal commercial mobile radio service, a private telecommunications system, or a wireless telecommunications connection subject to Texas Health and Safety Code, § 771.0711.

9-1-1 service means a telecommunications service through which the user of a public telephone system has the ability to reach the city's public safety answering point by dialing the digits 9-1-1.

9-1-1 emergency service system means a system of processing emergency 9-1-1 calls.

Public safety answering point means the city communications facility that:

(1) Is operated continuously;

(2) Is assigned the responsibility to receive 9-1-1 calls and to dispatch emergency response services directly or to transfer or relay emergency 9-1-1 calls to other public safety agencies;

(3) Is the first point of receipt by a public safety agency of a 9-1-1 call; and

(4) Serves the city.

Service provider means an entity providing local exchange access lines and/or equivalent local exchange access lines to a service user in the city.

Service user means a person or business entity that is provided local exchange access lines or equivalent local exchange access lines in the city. (Ord. No. 96-1-30, § I, 1-22-96; Ord. No. 2005-4-10, § I, 4-11-05)

Sec. 7.5-17. Service fee.

There is hereby imposed on each service user's local exchange access line and equivalent local exchange access line in the city a 9-1-1 service fee of eighty-two and one-half cent ($0.825) per month for each residential line and one dollar ($1.00) per month for each business line. Such 9-1-1 service fee shall be used only to provide for

*__Editor's note—__Section I of Ord. No. 96-1-30, adopted Jan. 22, 1996, repealed this article. Formerly, Art. II consisted of §§ 7.5-16—7.5-18, which pertained to 9-1-1 emergency telephone service and derived from §§ I—III of Ord. No. 91-8-32, adopted Aug. 26, 1991. Section I of Ord. No. 96-1-30 provided further for the addition §§ 7.5-16—7.5-19 as herein set out.

the purchase, installation, operation, and maintenance expenses of 9-1-1 service, including required personnel.
(Ord. No. 96-1-30, § I, 1-22-96; Ord. No. 2025-9-13, § I, 9-16-25)

Sec. 7.5-18. Execution of contracts with 9-1-1 service providers.

The city manager, or his designee, is hereby authorized to execute a contract or contracts on behalf of the city with any service provider, pursuant to the provisions of this article, to provide for the billing and collection of fees imposed by the city pursuant to the provisions hereof.
(Ord. No. 96-1-30, § I, 1-22-96)

Sec. 7.5-19. Restrictions and limitations on 9-1-1 service fee.

The 9-1-1 service fee imposed by this article shall be subject to the following restrictions and limitations:

(1) The 9-1-1 service fee may only be imposed upon service users' local exchange access lines and equivalent local exchange access lines.

(2) The 9-1-1 service fee may not be imposed upon more than one hundred (100) local exchange access lines per service user per location, or more than one hundred (100) local exchange access lines for a single business entity at a single location unless the lines or services are used by residents of the location. The fee limitation of this section shall not apply to equivalent local exchange access lines.

(3) The 9-1-1 service fee may not be imposed upon any coin-operated or coin/card reader operated telephone equipment.

(4) The 9-1-1 service fee shall be stated separately on each service user's bill.

(5) The 9-1-1 service fee shall have uniform application within the municipal boundaries of the city.

(6) Each service provider not already remitting 9-1-1 service fees should be advised in writing of the amount of the 9-1-1 service fee to be applied to each type of service at least ninety (90) days prior to the first billing date.

(7) No service provider will be obliged or authorized to take any legal action to enforce the collection of any billed 9-1-1 service fee.

(8) No service provider will disconnect any service user's telephone service for failure to pay the 9-1-1 service fee.

(9) Each service provider will assess a 9-1-1 service fee to each service user on a monthly basis and will remit the collected 9-1-1 service fee to the city no later than sixty (60) days after the close of the month in which such 9-1-1 service fees were assessed.

(10) Each service provider will retain from its remittance to the city two (2) percent of the collected 9-1-1 service fees as its compensation for performing its obligations under the contract.

(11) Each service provider shall complete a remittance report in the form provided by the city, and the remittance report shall accompany the remitted 9-1-1 service fees.

(12) Each service provider will provide the city with a list of any service users who have refused to pay the 9-1-1 service fee. This list shall be provided a minimum of once per calendar year.

(13) Each service provider will retain records of the amount of 9-1-1 service fees collected for a period not to exceed two (2) years from the date of collection.

(14) Should the city desire to audit the records of collected fees from any service provider, it may do so at the city's sole cost and expense.

(15) All federal service users located in the city are exempt from the 9-1-1 service fee.

(Ord. No. 96-1-30, § I, 1-22-96)

[The next page is 535]

Chapter 8

FIRE PREVENTION AND PROTECTION*

Art. I. In General, §§ 8-1—8-15
Art. II. Fire Code, §§ 8-16—8-18
Art. III. Fire Inspection Program, § 8-19
Art. IV. Mobile Community Healthcare Program, § 8-20

***Charter reference—**Plans for areas destroyed by disaster, § 3.07(j).

Cross references—Administration, Ch. 2; aviation, Ch. 5; buildings and building regulations, Ch. 6; motor vehicles and traffic, Ch. 12; parks and recreation, Ch. 15; police, Ch. 17; solid waste, Ch. 18; utilities, Ch. 21; certification pay plan for classified members of the police and fire departments, § 2-42; code of conduct, § 2-96 et seq.; construction review board, §§ 6-1, 6-2; fire protection requirements for property, § 6-525; alarm system inspections, § 11-223; authority of officers of fire department to direct traffic, § 12-6; weeds, rubbish or unsanitary matter, § 14-3; hazardous waste spills, § 14-106 et seq.

State law references—Fire protection outside city, Vernon's Ann. Civ. St., art. 2351a-1; fire escapes, Vernon's Ann. Civ. St., art. 3955 et seq.; liquefied petroleum gas, V.T.C.A. National Resources Code, § 113.001 et seq.; arson, V.T.C.A. Penal Code, § 28.02.

ARTICLE I. IN GENERAL

Secs. 8-1, 8-2. Reserved.

Editor's note—Ord. No. 87-12-19, § 29, adopted Dec. 28, 1987, repealed Ord. No. 84-9-20, adopted Sept. 10, 1984, §§ 26 and 30 of which comprised §§ 8-1 and 8-2, concerning penalty for violations of this chapter and injunctive relief.

Sec. 8-3. City ambulance service.

(a) The following user fees are hereby approved, adopted and levied, and shall be paid by those individuals and/or organizations making use of the city's fire department ambulance service: The basic life support (BLS) fee for medical care rendered is one thousand thirty-five dollars ($1,035.00); the advanced life support (ALS) fee for medical care rendered is one thousand one hundred seventeen dollars and fifty cents ($1,117.50); the advanced life support (ALS2) fee for medical care rendered is one thousand one hundred forty-seven dollars and fifty cents ($1,147.50). A transportation fee of twenty-two dollars and fifty cents ($22.50) per mile from the incident location to the medical facility will apply to all transports. In addition to the above charges, when applicable, a seventy-five dollar ($75.00) medication administration fee and/or a one hundred fifty dollar ($150.00) non-resident fee will be charged per person per incident.

(b) The following user fees are hereby approved, adopted and levied, and shall be paid by those individuals and/or organizations making use of the city's fire department ambulance service. For EMS standby at Special Events, the following fee schedule applies:

(1) EMS cart + two (2) paramedics at $110.00 per hour.

(2) First Aid Tent + two (2) paramedics at $110.00 per hour.

(3) EMS cart + bike medics + four (4) paramedics at $210.10 per hour.

(4) MICU* + two (2) paramedics at $313.50 per hour.

* Minimum of four (4) hours per paramedic to be charged to the event as established by ordinance.

* Plano Fire Rescue's MICUs are subject to vehicle availability. Patients transported to the hospital will be billed at the established rate.

The user fees established above shall be collected by the accounting department, and upon receipt thereof, shall be credited to the general fund as an offset to the cost of providing the fire department service for which the fee is being charged.

(Res. No. 82-11-6(R), §§ 1—4, 11-8-82; Ord. No. 83-12-4, §§ II, III, 12-12-83; Ord. No. 86-9-21(R), §§ II—IV, 9-22-86; Ord. No. 89-9-3, §§ II—IV, 9-11-89; Ord. No. 92-9-19, § III, 9-14-92; Ord. No. 93-8-16, § I, 8-9-93; Ord. No. 94-9-42, § I, 9-26-94; Ord. No. 95-9-37, § I, 9-25-95; Ord. No. 96-11-8, § I, 11-11-96; Ord. No. 99-9-27, § I, 9-27-99; Ord. No. 2002-9-14, § I, 9-9-02; Ord. No. 2003-9-12, § I, 9-8-03; Ord. No. 2005-9-24, § 1, 9-26-05; Ord. No. 2008-9-33, § I, 9-22-08; Ord. No. 2011-10-7, § I, 10-10-11; Ord. No. 2013-9-29, § I, 9-23-13; Ord. No. 2020-10-2, § I, 10-12-20; Ord. No. 2025-3-6, § I, 3-24-25; Ord. No. 2025-9-12, § I, 9-16-25)

Sec. 8-4. Mutual aid disaster agreements.

The fire chief of the city is hereby authorized to execute, on behalf of the city, mutual aid disaster agreements.

(Res. No. 84-3-3(R), § I, 3-12-84)

Editor's note—An agreement for mutual aid in disaster assistance, executed by the City of Plano and other governmental units, became effective on February 1, 1984. See attachment to Res. No. 84-3-3(R).

Cross reference—Emergency management, § 2-136 et seq.

State law references—Interlocal Cooperation Act, Vernon's Ann. Civ. St., art. 4413(32c); Texas Disaster Act of 1975, Vernon's Ann. Civ. St., art. 6889-7.

Sec. 8-5. Reserved.

Editor's note—Ord. No. 92-9-33, adopted September 28, 1992, amended this Code by repealing § 8-5, pertaining to the fire safety education advisory committee as derived from Ord. No. 87-1-20, §§ I—VII, adopted January 12, 1987 and Ord. No. 89-5-18, § I, adopted May 22, 1989.

Secs. 8-6—8-15. Reserved.

ARTICLE II. FIRE CODE*

Sec. 8-16. Enforcement, abatement.

(a) The fire code official and his designees are authorized to enforce this article through all available criminal and civil remedies.

(b) It shall be an offense for any person, corporation, or association to intentionally, knowingly, or recklessly violate any provision in this article.

(c) Any person, corporation, or association adjudged guilty of violating any provision in this article shall be fined in an amount not to exceed two thousand dollars ($2,000.00) for each offense, unless a different penalty is specified for violation of a specific provision in this article. Each and every day a violation continues constitutes a separate offense.

(d) In addition to criminal enforcement for violation of any provision in this article, the fire code official and his designees are authorized to institute appropriate actions to prevent unlawful construction or to restrain, correct, or abate a condition in violation of a provision in this article; to prevent illegal occupancy of a structure or premises; and to stop an illegal act or conduct of business or occupancy of a structure on or about any premises.
(Ord. No. 2016-3-5, § II, 3-14-16; Ord. No. 2018-11-19, § II, 11-26-18; Ord. No. 2020-7-3, § I, 7-27-20; Ord. No. 2022-1-20, § II, 1-24-22)

Sec. 8-17. Adoption of International Fire Code.

The 2024 Edition of the International Fire Code, including Appendices B, E, F, and L, a publication of the International Code Council, is hereby adopted and designated as the fire code of the city, to the same extent as if such code were copied verbatim in this section, subject to the deletions, additions and amendments prescribed in this section. A copy of the 2024 Edition of the International Fire Code is on file in the office of the city secretary.

SECTION 101 SCOPE AND GENERAL REQUIREMENTS.

Section 101.1 Title. These regulations shall be known as the Fire Code of the City of Plano, hereinafter referred to as "this code."

SECTION 102 APPLICABILITY.

Sec. 102.1 amend #3 to read as follows:

3. Existing structures, facilities and conditions when required in Chapter 11 or in specific sections of this code.

SECTION 103 CODE COMPLIANCE AGENCY.

Sec. 103.1 is amended to read as follows:

Sec. 103.1 Creation of agency. Plano Fire-Rescue's, Fire Prevention Section is hereby created and the official in charge thereof shall be known as the *fire code official*. The function of the agency shall be the implementation, administration, and enforcement of the provisions of this code.

SECTION 104 DUTIES AND POWERS OF THE FIRE CODE OFFICIAL.

Sec. 104 add new section 104.12 to read as follows:

Sec. 104.12 Fire prevention bureau personnel and police. The chief and members of the fire prevention bureau shall have the power to issue citations for violations of this code. When requested to do so by the fire chief, the chief of police is authorized to assign such available police officers as necessary to assist the fire department in enforcing the provisions of this code.

SECTION 108 FEES.

Sec. 108 is amended by deleting Section 108.3

---

*__Editor's note—__Ord. No. 2016-3-5, §§ I, II, adopted March 14, 2016, repealed and reenacted article II in its entirety to read as herein set out. Formerly, article II pertained to similar subject matter, and derived from Ord. No. 2013-10-22, § II, adopted October 28, 2013.

Cross reference—Hazardous material spills, § 14-106 et seq.

State law references—Flammable liquids at service stations, V.T.C.A. Health and Safety Code, § 753.001 et seq.; liquefied petroleum gas, V.T.C.A. Natural Resources Code, § 113.001 et seq.; seizure of hazardous substances, Vernon's Ann. Civ. St., art. 4476-13, § 11.

SECTION 113 VIOLATIONS.

Sec. 113.3, Notice of violation, is deleted in its entirety.

Subsection 113.3.1, Service, is deleted in its entirety.

Subsection 113.3.2, Compliance with orders and notices, is deleted in its entirety.

Subsection 113.3.3, Prosecution of violations, is deleted in its entirety.

Sec. 113.4, Violations Penalties, is deleted in its entirety.

SECTION 202 GENERAL DEFINITIONS.

Sec. 202; the following are amended to read as follows:

ATRIUM. An opening connecting three or more stories, other than enclosed *stairways*, elevators, hoist ways, escalators, plumbing, electrical, air-conditioning or other equipment, which is closed at the top and not defined as a mall. Stories, as used in this definition, do not include balconies within assembly groups or *mezzanines* that comply with Section 505 of the International Building Code.

HIGH-PILED COMBUSTIBLE STORAGE.

Sec. 202; add a second paragraph to the definition of "High-Piled Combustible Storage" to read as follows:

Any building exceeding 6,000 sq. ft. that has a clear height in excess of 12 feet, shall be considered to be high-piled storage and shall comply with the provisions of this section. When a specific product cannot be identified, a fire protection system shall be installed as for Class IV commodities, to the maximum pile height.

HIGH-RISE BUILDING. A building having floors used for human occupancy located more than 55 feet (16,764 mm) above the lowest level of fire department vehicle access.

REPAIR GARAGE. A building, structure or portion thereof used for servicing or repairing motor vehicles. This occupancy shall also include garages involved in minor repair, modification, and servicing of motor vehicles for items such as lube changes, inspections, windshield repair or replacement, shocks, minor part replacement, and other such minor repairs.

STANDPIPES, TYPES OF, MANUAL DRY. A dry standpipe system that does not have a permanent water supply attached to the system. Manual dry standpipe systems require water from a fire department pumper to be pumped into the system through the fire department connection in order to supply the system demand. The system must be supervised as specified in Section 905.9.

Sec. 202 is amended by the addition of the following:

SELF-SERVICE STORAGE FACILITY. Real property designed and used for the purpose of renting or leasing individual storage spaces to customers for the purpose of storing and removing personal property on a self-service basis.

STANDBY PERSONNEL. Qualified fire service personnel, approved by the Fire Chief. When utilized, the number required shall be as directed by the Fire Chief. Charges for the utilization of fire service personnel shall be as normally calculated by the jurisdiction.

Sec. 203.2.3 is amended to read as follows:

Sec. 203.2.3 Associated with Group E occupancies. A room or space used for assembly purposes that is associated with a Group E occupancy is not considered a separate occupancy, except when applying the assembly requirements of Chapters 10 and 11.

Section 307 Open Burning, Recreational Fires and Portable Outdoor Fireplaces.

Sec. 307.1.1 is amended to read as follows:

Sec. 307.1.1 Prohibited Open Burning. Open burning shall be prohibited within the City of Plano.

Sec. 308 Open Flames.

Section 308.1.6; Exception #3 is amended to read as follows:

Exception:

3. Torches or flame-producing devices in accordance with Section 308.1.3.

Sec. 308 add new section 308.1.11 to read as follows:

Sec. 308.1.11 Open-flame Cooking Devices. Open flame cooking devices shall comply with Section 4104.

SECTION 311 VACANT PREMISES.

Section 311.5 is amended to read as follows:

Sec. 311.5 Placards. The Fire Code Official is authorized to require marking of any vacant or abandoned buildings or structures determined to be unsafe pursuant to Section 115 of this code relating to structural or interior hazards, shall be marked as required by Sections 311.5.1 through 311.5.5.

SECTION 314 INDOOR DISPLAYS.

Sec. 314.4 is amended by adding a section 5 to read as follows:

5. Electric vehicles shall not be charged inside buildings, other than where approved in parking garages.

Chapter 3 General Requirements is amended by adding sections 323 and sections 323.1 through 323.3 to read as follows:

SECTION 323 ELECTRIC VEHICLES (EV).

Sec. 323.1 Electric vehicle charging stations. Electric vehicle (EV) charging stations shall not be located inside buildings, except where approved for parking garage locations as per the National Electrical Code.

Sec. 323.1.1 Charging stations inside parking garage. EV charging stations located in parking garages shall be located at grade level along the exterior perimeter walls and shall be within 150 feet from a fire apparatus access roadway or shall be located on the top level of the garage with no roof above.

Sec. 323.1.2 Charging stations inside R-3 and R-4 occupancies. Approved charging stations in a private garage shall have a listed heat alarm installed in the garage and interconnected to the smoke alarms inside the dwelling.

Sec. 323.2 Disconnect. Locations containing EV charging stations shall be provided with a clearly identified and readily accessible emergency disconnect installed in an approved location.

The emergency disconnects for EV charging stations shall be located within 100 feet (30,480 mm) of, but not less than 20 feet (6'096 mm) from the charging stations, unless otherwise approved by the fire code official.

Sec. 323.2.1 Height. The height of the emergency disconnect switch shall be not less than 42 inches (1067 mm) and not more than 48 inches (1219 mm) measured vertically, from the floor level to the activating button.

Sec. 323.2.2 Emergency disconnect sign. Emergency disconnect devices shall be distinctly labeled as: "EMERGENCY ELECTRIC VEHICLE CHARGER DISCONNECT." Signs shall be permanently affixed to the building or structure in an approved manner and placed in an approved location, and shall consist of the following:

1. White reflective background with red letters;
2. Weather-resistant durable material; and
3. Lettering not less than 2 inches (51 mm) high.

Sec. 323.3 Damaged electric vehicle batteries. Damaged EV batteries shall not be stored inside any building.

SECTION 401 GENERAL.

Sec. 401.3; add Section 401.3.4 to read as follows:

Sec. 401.3.4 False Alarms and Nuisance Alarms. False alarms, nuisance alarms, and unwanted alarms shall not be given, signaled or transmitted or caused or permitted to be given, signaled or transmitted in any manner.

SECTION 501 GENERAL.

Sec. 501.4 is amended to read as follows:

Sec. 501.4 Timing of installation. When fire apparatus access roads and a water supply for fire protection is required to be installed for any structure or development, they shall be installed, tested, and approved prior to the time of which construction has progressed beyond completion of the foundation of any structure.

SECTION 503 FIRE APPARATUS ACCESS ROADS.

Sec. 503.1.1 is amended by the addition of the following to the first paragraph:

Sec. 503.1.1 Building and Facilities. The 150 feet (150') shall be measured along a ten foot (10') wide unobstructed pathway around the external walls of the structure. The grade shall not exceed six (6) percent. The provision of this section notwithstanding, fire lanes may be required to be located within thirty feet (30') of a building if deemed to be reasonably necessary by the Fire Chief to enable proper protection of the building. A five (5) foot wide level pathway shall be provided unobstructed through all barriers. A continuous row of parking between the fire lane and the structure shall be considered a barrier.

Fire lane and access easements shall be provided to serve all buildings through parking areas, to service entrances of buildings, loading areas and trash collection areas, and other areas deemed necessary to be available to fire and emergency vehicles. The Fire Chief is authorized to designate additional requirements for fire lanes where the same is reasonably necessary so as to provide access for fire and rescue personnel.

Fire lanes provided during the platting process shall be so indicated on the plat as an easement. Where fire lanes are provided and a plat is not required, the limits of the fire lane shall be shown on a site plan and placed on permanent file with the Fire Marshal and City Planning Department.

No owner or person in charge of any premises served by a fire lane or access easement shall abandon, restrict or close any fire lane or easement without first securing from the City of Plano approval of an amended plat or other acceptable legal instrument showing the removal of the fire lane.

Sec. 503.1.2 is amended by the addition of the following to the first paragraph:

Sec. 503.1.2 Additional Access. All structures and subdivisions shall provide two points of access. The two points of access shall be a minimum of 140 feet apart. The maximum block length shall be 1,200' and the maximum cul-de-sac length shall not exceed 600' in length as measured from the centerline of the intersection, street to the center point of the radius.

Sec. 503.2.1 is amended to read as follows:

Sec. 503.2.1 Dimensions. Fire apparatus access roads shall have an unobstructed width of not less than 24 feet (7,315 mm), except for approved security gates in accordance with Section 503.6, and an unobstructed vertical clearance of not less than 14 feet (4,267 mm).

Any such fire lane easement shall either connect both ends to a dedicated street or be provided with a turnaround having a minimum outer radius of 50 feet. If two or more interconnecting lanes are provided, interior radius for that connection shall be required in accordance with the following:

For 90 degree or greater turns only

24' fire lane - minimum radius 20'

30' fire lane - minimum radius 10'

For turns tighter than 90 degrees, American Association of State and Highway Transportation Officials (AASHTO) Geometric Design of Highways and Streets shall be utilized.

Sec. 503.2.2 is amended to read as follows:

Sec. 503.2.2 Authority. The *fire code official* shall have the authority to require an increase in the minimum access widths and vertical clearances where they are inadequate for fire or rescue operations.

Sec. 503.2.3 Surface is amended to read as follows:

Sec. 503.2.3 Surface. Fire lanes shall be constructed of an asphalt or concrete surface capable of supporting the imposed loads of 85,000 pounds for fire apparatus and meeting the requirements of the City of Plano parking lot standards. Those portions of the fire lane within sixty feet (60') of the structure to be protected shall be constructed with 6-inch thick, 3000 psi concrete or 5-inch thick, 3600 psi concrete reinforced with No. 3 bars spaced 24 inches on centers both ways and with sub-grade to a density not less than 95 percent as determined by TSDHPT Test Method Tex-113. Portions of the fire lane constructed of asphalt shall be ninety-five (95) percent compaction with a 6-inch asphalt stabilized base and 2-inch type D hot mix asphalt concrete. (State Highway specification number 292.) Whenever forty percent (40%) of existing, non-conforming fire lanes are replaced within a twelve-month period, the entire fire lane shall be replaced according to current standards.

All fire lanes shall be maintained and kept in a good state of repair at all times by the owner and the City of Plano shall not be responsible for the maintenance thereof. It shall further be the responsibility of the owner to insure that all fire lane markings required by Sec. 503.3 be kept so that they are easily distinguishable by the public.

Sec. 503.2 is amended by the deleting Section 503.2.5.

Sec. 503.2.6 is amended by the addition of the following:

Sec. 503.2.6 Bridges and elevated surfaces. All bridges and fire lane grades shall meet the City of Plano Engineering specifications.

Sec. 503.3 is amended to read as follows:

Sec. 503.3 Marking. Approved striping or, when allowed by the code official, signs, or both shall be provided for fire apparatus access roads to identify such roads or prohibit the obstruction thereof. Signs and striping shall be maintained in a clean and legible condition at all times and be replaced or repaired when necessary to provide adequate visibility.

(1) STRIPING - Fire apparatus access roads shall be marked by painted lines of red traffic paint six inches (6") in width to show the boundaries of the lane. The words "NO PARKING FIRE LANE" or "fire lane no parking" shall appear in four inch (4") white letters at 25-foot intervals on the red border markings along both sides of the fire lanes. Where a curb is available, the striping shall be on the vertical face of the curb.

(2) SIGNS - shall read "NO PARKING FIRE LANE" or "FIRE LANE NO PARKING" and shall be 12" wide and 18" high. Signs shall be painted on a white background with letters and borders in red, using not less than 2" lettering. Signs shall be permanently affixed to a stationary post and the bottom of the sign shall be six feet, six inches (6'6") above finished grade. Signs shall be spaced not more than fifty feet (50') apart. Signs may be installed on permanent buildings or walls or as approved by the Fire Chief.

Sec. 503.4 is amended to read as follows:

Sec. 503.4 Obstruction of fire apparatus access road or fire lane.

(a) It shall be an offense for any person to obstruct any portion of a fire apparatus access road or fire lane.

(b) It shall be an offense for any person, corporation, or association with ownership in or care, custody, or control over property to intentionally, knowingly, or recklessly cause or allow any obstruction of any portion of a fire apparatus access road or fire lane on the property.

(c) It shall be an offense for any person, corporation, or association with ownership in or care, custody, or control over property to intentionally, knowingly, or recklessly fail to mark or maintain a fire apparatus access road in compliance with Section 503 of this Article.

(d) Obstruction with Motor Vehicle.

a. *Presumption.* In a prosecution under Sec. 503.4 (a), where the obstruction resulted from the parking, standing, or stopping of a motor vehicle, it is presumed that the registered owner of the motor vehicle is the person who left the vehicle standing at the time of offense.

b. *Penalty for Obstruction with Motor Vehicle.* In a prosecution under Sec. 503.4 (a), where the obstruction resulted from the parking, standing, or stopping of a motor vehicle, a person adjudged guilty shall be fined in an amount not to exceed five hundred dollars ($500.00), notwithstanding any other penalty in the City of Plano Code of Ordinances. Each and every day any such violation continues constitutes a separate offense.

(e) General Penalty. A person, corporation or association adjudged guilty of violating Sec. 503.4 (a) where the obstruction did not result from the parking, standing or stopping of a motor vehicle, or adjudged guilty of violating Sec. 503.4 (b) or (c), shall be fined in an amount not to exceed two thousand dollars ($2,000.00), in accordance with City of Plano Code of Ordinances, Sec. 8-16. Each and every day any such violation continues constitutes a separate offense.

Sec. 503.6 is amended to read as follows:

Sec. 503.6 Security gates. Where security fencing is necessary, the owner shall provide gates or openings which may be secured. Gates when provided must open fully in either direction or be of a sliding or raised arm type. The main entry gates serving Group R & I occupancies shall be equipped with an approved automated entry system. All other entry points along the fire lane must be automated or Knox compatible as approved by the Fire Chief, to permit immediate access by fire personnel and equipment in the event of fire or emergency.

SECTION 505 PREMISES IDENTIFICATION.

Sec. 505.1 is amended to read as follows:

Sec. 505.1 Address Identification. Approved numerals of a minimum 6" height and of a color contrasting with the background designating the address shall be placed on all new and existing buildings or structures in such a position as to be plainly visible and legible from the street or road fronting the property and from all rear alleyways where said alleyways exist. Where buildings do not immediately front a street, approved 6-inch height building numerals or address and 3-inch height suite/apartment numerals of a color contrasting with the background of the building shall be placed on all new and existing buildings or structures. Numerals or addresses shall be posted on a minimum 20 inch by 30-inch background or border. Address numbers shall be Arabic numerals or alphabet letters. The minimum stroke width shall be 0.5 inches. Where required by the fire code official, address identification shall be provided in additional approved locations to facilitate emergency response.

Exception. R-3 Single Family occupancies shall have approved numerals of a minimum 4-inches in height and a color contrasting with the background clearly visible and legible from the street fronting the property and rear alleyway where such alleyway exists.

Sec. 505 is amended by the addition of the following:

Sec. 505.3 Address Marking in Parking Garages. An approved sign displaying the building name and address with a minimum 1-inch-high letters and numerals on a contrasting background in new and existing parking garages. The signs shall be located in each elevator lobby and at the entrance to each stairwell.

SECTION 506 KEY BOXES.

Sec. 506.1 add new Section 506.1.3 to read as follows:

Sec. 506.1.3 Knox Box approved locations. A key box shall be provided at the

entrances to each sprinkler riser room and pump room. An additional key box shall be provided at the main entrance of large facilities typically where the remote annunciator or fire alarm control panel is located.

SECTION 507 FIRE PROTECTION WATER SUPPLIES.

Sec. 507.4 is amended to read as follows:

Sec. 507.4 Water supply test. The water supply test used for hydraulic calculation of fire protection systems shall be conducted in accordance with NFPA 291 "Recommended Practice for Fire Flow Testing and Marking of Hydrants" and within one year of sprinkler plan submittal. The exact location of the static/residual hydrant and the flow hydrant shall be indicated on the design drawings.

Sec. 507.5.1 is amended to read as follows:

Sec. 507.5.1 Where Required. As properties develop, fire hydrants shall be located at all intersecting streets and at the maximum spacing indicated in Table 903.4.2. Distances between hydrants shall be measured along the route that fire hose is laid by a fire vehicle from hydrant to hydrant.

Maximum Distance Between Hydrants

OCCUPANCY	SPRINKLERED	NOT SPRINKLERED
Residential (1 & 2 Family)	600 feet	500 feet
Residential (Multi Family)	400 feet	300 feet
All Other	500 feet	300 feet

Table 903.4.2

1. *PROTECTED PROPERTIES.* Fire hydrants required to provide a supplemental water supply for automatic fire protection system shall be within 100 feet of the fire department connection for such system and shall have an isolation valve located between the connections to a looped main.
2. *FIRE HYDRANT LOCATIONS.* Fire hydrants shall be located 4 feet to 7 feet back of curb or fire lane and shall not be located in the bulb of a cul-de-sac.
3. *MINIMUM NUMBER OF FIRE HYDRANTS.* There shall be a minimum of two (2) fire hydrants serving each property within the prescribed distances listed above.

SECTION 509 FIRE PROTECTION AND UTILITY EQUIPMENT IDENTIFICATION AND ACCESS.

Add Section 509.1.2 to read as follows:

Sec. 509.1.2 Sign Requirements. Unless more stringent requirements apply, lettering for signs required by this section shall have a minimum height of ¾ inch when located inside a building and 2 inches when located outside, or as approved by the *fire code official*. The letters shall be of a color that contrasts with the background.

SECtION 510 EMERGENCY RESPONDER COMMUNICATIONS ENHANCEMENT SYSTEMS

Add paragraph at the end of Sec. 510.6.1 to read as follows:

The inspection radio contractor shall provide an annual inspection tag/sticker on the ERCES' BDA and any remote annunciator. Tag/sticker shall identify approved inspection contractor's name, physical address, phone number, an FCC license number, and inspector's name, as well as the date of inspection. System shall not be tagged until all inspection requirements of this section are conducted. Tag/sticker shall be blue in color for a passing system. Tag/sticker shall be red in color for a failing system with reasons for failure indicated on the tag if possible. If red tag/sticker is placed, AHJ/Fire Marshal shall be notified within a maximum of 24 hours.

SECTION 605 FUEL-FIRED APPLIANCES.

Secs. 605.4 through 605.4.2.2; is amended to read as follows:

Sec. 605.4 Fuel oil storage systems. Fuel oil storage systems shall be installed and maintained in accordance with this code. Tanks and fuel-oil piping systems shall be installed

in accordance with Chapter 13 of the International Mechanical Code and Chapter 57.

Sec. 605.4.1 Fuel oil storage in outside, above-ground tanks. Where connected to a fuel oil piping system, the maximum amount of fuel oil storage allowed outside above ground without additional protection shall be 660 gallons (2498 L). The storage of fuel oil above ground in quantities exceeding 660 gallons (2498 L) shall comply with NFPA 31 and Chapter 57.

Sec. 605.4.1.1 Approval. Outdoor fuel oil storage tanks shall be in accordance with UL 142 or UL 2085, and also listed as double-wall/secondary containment tanks.

Sec. 605.4.2 Fuel oil storage inside buildings. Fuel oil storage inside buildings shall comply with Sections 605.4.2.1 through 605.4.2.8 and Chapter 57.

Sec. 605.4.2.1 Approval. Indoor fuel oil storage tanks shall be in accordance with UL 80, UL 142 or UL 2085.

Sec. 605.4.2.2 Quantity limits. One or more fuel oil storage tanks containing Class II or III combustible liquid shall be permitted in a building. The aggregate capacity of all tanks shall not exceed the following:

1. 660 gallons (2498 L) in non-sprinkled buildings, where stored in a tank complying with UL 80, UL 142 or UL 2085, and also listed as a double-wall/secondary containment tank for Class II liquids.
2. 1,320 gallons (4996 L) in buildings equipped with an automatic sprinkler system in accordance with Section 903.3.1.1, where stored in a tank complying with UL 142 or UL 2085. The tank shall be listed as a secondary containment tank, and the secondary containment shall be monitored visually or automatically.
3. 3,000 gallons (11 356 L) in buildings equipped with an automatic sprinkler system in accordance with Section 903.3.1.1, where stored in protected aboveground tanks complying with UL 2085 and Section 5704.2.9.7. The tank shall be listed as a secondary containment tank, as required by UL 2085, and the secondary containment shall be monitored visually or automatically.

SECTION 807 DECORATIVE MATERIALS AND ARTIFICIAL DECORATIVE VEGETATION IN NEW AND EXISTING BUILDINGS.

Secss. 807.5.2.2 and 807.5.5.2 are amended by the addition of an exception:

Sec. 807.5.2.2 Artwork in corridors. Artwork and teaching materials shall be limited on the walls of *corridors* to not more than 20 percent of the wall area.

Exception: Corridors protected by an approved automatic sprinkler system installed in accordance with Section 903.3.1.1 shall be limited to 50 percent of the wall area.

Sec. 807.5.5.2 Artwork in corridors. Artwork and teaching materials shall be limited on the walls of *corridors* to not more than 20 percent of the wall area.

Exception: Corridors protected by an approved automatic sprinkler system installed in accordance with Section 903.3.1.1 shall be limited to 50 percent of the wall area.

SECTION 901 GENERAL.

Sec. 901.5; amended by the addition of the following to the first paragraph:

All required tests shall be conducted by and at the expense of the owner or his representative. The Fire Department shall not be held responsible for any damages incurred in such test. Where it is required that the Fire Department witness any such test, such test shall be scheduled with a minimum of 48-hour notice to the Fire Chief or his representative.

Sec. 901.7 is amended to read as follows:

Sec. 901.7 Systems out of service. Where a required fire protection system is out of service or in the event of an excessive number of activations, alarms or unwanted alarms, the fire department and the code official shall be notified immediately and, where required by the code official, the building shall either be

evacuated or standby personnel shall be provided for all occupants left unprotected by the shut down until the fire protection system has been returned to service.

Where utilized, standby personnel shall be provided with at least one approved means for notification of the fire department and their only duty shall be to perform constant patrols of the protected premises and keep watch for fires.

SECTION 903 AUTOMATIC SPRINKLER SYSTEMS.

Sec. 903.1.1 is amended to read as follows:

Sec. 903.1.1 Alternative protection. Alternative automatic fire-extinguishing systems complying with Section 904 shall be permitted in addition to automatic sprinkler protection where recognized by the applicable standard and, or as approved by the *fire code official*.

Sec. 903.2 is amended to read as follows:

Sec. 903.2 Where required. Approved automatic sprinkler systems in new buildings and structures shall be provided in the locations described in Sections 903.2.1 through 903.2.12. Automatic Sprinklers shall not be installed in elevator machine rooms, elevator machines spaces, and elevator hoist ways. Storage shall not be allowed within the elevator machine room.

Sec. 903.2 is amended by deleting the Exception:

Secs. 903.2.1.1, 903.2.1.3, 903.2.1.4, are amended to read as follows:

Sec. 903.2.1.1 Group A-1. An automatic sprinkler system shall be provided for Group A-1 Occupancies where one of the following conditions exists:

1. The fire area exceeds 6,000 square feet ($557.4m^2$).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than the level of exit discharge.
4. The fire area contains a multi theater complex.

Sec. 903.2.1.3 Group A-3. An automatic sprinkler system shall be for Group A-3 Occupancies where one of the following conditions exists:

1. The fire area exceeds 6,000 square feet ($557.4m^2$).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than the level of exit discharge.

Sec. 903.2.1.4 Group A-4. An automatic sprinkler system shall be provided for Group A-4 Occupancies where one of the following conditions exists:

1. The fire area exceeds 6,000 square feet ($557.4m^2$).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than the level of exit discharge.

Sec. 903.2.2 is amended to read as follows:

903.2.2 Group B. An automatic sprinkler system shall be provided for Group B occupancies as required in Sections 903.2.2.1, 9.3.2.2.2, and 903.2.2.3.

Add new section 903.2.2.3 to read as follows:

Sec. 903.2.2.3 Fire area. Where a Group B fire area exceeds 6,000 square feet (557.4 meters squared).

Secs. 903.2.3, 903.2.4, 903.2.4.2, 903.2.7, 903.2.9, 903.2.9.1, and 903.2.9.3 are amended to read as follows:

Sec. 903.2.3 Group E. An automatic sprinkler system shall be provided for Group E Occupancies where one of the following conditions exists:

1. Throughout all Group E fire areas greater than 6,000 square feet ($557.4m^2$) in area;
2. Throughout every portion of educational building below the level of exit discharge.

   Exception: An automatic sprinkler system is not required in any fire area or area below the level of exit discharge where every classroom throughout the building has at least one exterior exit door at ground level.

3. The Group E fire area has an occupant load of 300 or more.

Sec. 903.2.4 Group F-1. An automatic sprinkler system shall be provided throughout all buildings containing a Group F-1 Occupancy where one of the following conditions exists:

1. Where a Group F-1 fire area exceeds 6,000 square feet (557.4m^2);
2. Where a Group F-1 fire area is located more than three stories above grade plane; or
3. Where combined area of all Group F-1 fire areas on all floors, including any mezzanines, exceeds 24,000 square feet (2230m^2).
4. A Group F-1 occupancy is used to manufacture lithium-ion or lithium metal batteries.
5. A Group F-1 occupancy is used to manufacture vehicles, energy storage systems or equipment containing lithium-ion or lithium metal batteries where the batteries are installed as part of the manufacturing process.

Sec. 903.2.4.2 Group F-1 distilled spirits. An automatic sprinkler system shall be provided throughout a Group F-1 fire area used for the manufacture of distilled spirits involving more than 120 gallons of distilled spirits (>20% alcohol) in the fire area at any one time.

Sec. 903.2.7 Group M. An automatic sprinkler system shall be provided throughout all buildings containing a Group M Occupancy where one of the following conditions exists:

1. Where a Group M fire area exceeds 6,000 square feet (557.4m^2).
2. Where a Group M fire area is located more than three stories above grade plane.
3. Where the combined area of all Group M fire areas on all floors, including any mezzanines, exceeds 24,000 square feet (2230m^2).

Sec. 903.2.9 Group S-1. An automatic sprinkler system shall be provided throughout all buildings containing a Group S-1 Occupancy where one of the following conditions exists:

1. A Group S-1 fire area exceeds 6,000 square feet (557.4m^2).
2. A Group S-1 fire area is located more than three stories above grade plane.
3. The combined area of all Group S-1 fire areas on all floors, including any mezzanines, exceeds 24,000 square feet (2230m^2).
4. A Group S-1 *fire area* used for the storage of commercial trucks or buses where the *fire area* exceeds 5,000 square feet (464m^2).
5. A Group S-1 fire area used for the storage of lithium-ion or lithium metal powered vehicles where the fire area exceeds 500 square feet (46.4m squared).

Sec. 903.2.9.1 Repair Garages. An automatic sprinkler system shall be provided throughout all buildings used as Repair Garages where one of the following conditions exists:

1. Buildings two or more stories in height, including basements, with a fire area containing a repair garage exceeding 6,000 square feet (557.4m^2).
2. One-story buildings with a fire area containing a repair garage exceeding 6,000 square feet (557.4m^2).
3. Buildings with a repair garage servicing vehicles parked in the basement.
4. A Group S-1 *fire area* used for the repair of commercial trucks or buses where the *fire area* exceeds 5,000 square feet (464m^2).
5. A Group S-1 fire area used for the storage of lithium-ion or lithium metal powered vehicles where the fire area exceeds 500 square feet (46.4 meter squared).

Sec. 903.2.9.3 Group S-1 distilled spirits or wine. An automatic sprinkler system shall be provided throughout a Group S-1 fire area used

for the bulk storage of distilled spirits or wine involving more than 120 gallons of distilled spirits or wine (>20% alcohol) in the fire area at any one time.

Sec. 903.2.9.4 is amended by the deleting the exception.

Sec. 903.2.9; add new Section 903.2.9.5 to read as follows:

Sec. 903.2.9.5 Self-service storage facility. An automatic sprinkler system shall be installed throughout all self-service storage facilities. A screen shall be installed at eighteen (18) inches below the level of the sprinkler heads to restrict storage above that level. This screen shall be a mesh of not less than one (1) inch nor greater than six (6) inches in size. The screen and its supports shall be installed such that all elements are at least eighteen (18) inches below any sprinkler heads.

Sec. 903.2.10 is amended be the addition of a 4th condition:

Sec. 903.2.10 Group S-2 parking garages. An *automatic sprinkler system* shall be provided throughout buildings classified as parking garages where any of the following conditions exist:

1. Where the *fire area* of the enclosed parking garage, in accordance with Section 406.6 of the *International Building Code*, exceeds 12,000 square feet (1115 m^2).

2. Where the enclosed parking garage, in accordance with Section 406.6 of the *International Building Code*, is located beneath other groups.

   Exception: Enclosed parking garages located beneath Group R-3 occupancies.

3. Where the *fire area* of the open parking garage, in accordance with Section 406.5 of the *International Building Code*, exceeds 48,000 square feet (4460 m^2).

4. Where two or more sides of the garage are not accessible by the Fire Department ladder truck.

Sec. 903.2.11.3 is amended to read as follows and deleting the exception:

903.2.11.3 Buildings 35 feet or more in height. An automatic sprinkler system shall be installed throughout buildings that have one or more stories with an occupant load of 30 or more, other than penthouses in compliance with Section 1511 of the *International Building Code*, located 35 feet (10,688 mm) or more above the lowest level of fire department vehicle access, measured to the finished floor.

Sec. 903.2.11; add new Sections 903.2.11.7, 903.2.11.8, 903.2.11.9, and 903.2.11.10 to read as follows:

Sec. 903.2.11.7 High piled combustible storage. For any building with a clear height exceeding 12 feet (4,572 mm), see Chapter 32 to determine if those provisions apply.

Sec. 903.2.11.8 Spray booths and rooms. New and existing spray booths and spraying rooms shall be protected by an approved automatic fire-extinguishing system.

Sec. 903.2.11.9 Buildings over 6,000 sq. ft. An automatic sprinkler system shall be installed throughout all buildings over 6,000 sq. ft. and greater, and in all existing buildings that are enlarged to be 6,000 square feet or greater, and in buildings greater than 6,000 square feet which are enlarged. For the purpose of this provision, fire walls, fire barriers, or horizontal assemblies shall not define separate buildings.

Exceptions:

1. Parking garages in compliance with Section 903.2.10 of the International Fire Code.

2. When of non-combustible construction, the area of awning extension or free-standing canopies, both sides, and not used for display or storage shall not be considered for requiring sprinkler protection for areas greater than 6,000 square feet but less than otherwise required in this code.

Sec. 903.2.11.10 Expanded Tenant Spaces. Fire sprinklers shall be installed in all tenant

spaces where the total fire area exceeds 6,000 square feet. For the purpose of fire sprinklers, fire walls, fire barriers, or horizontal assemblies shall not be used to separate single tenant fire areas.

Sec. 903.3.1.1.1 is amended to read as follows:

Sec. 903.3.1.1.1 Exempt locations. When approved by the fire code official, automatic sprinklers shall not be required in the following rooms or areas where such rooms or areas are protected with an approved automatic fire detection system in accordance with Section 907.2 that will respond to visible or invisible particles of combustion. Sprinklers shall not be omitted from any room merely because it is damp, of fire-resistance-rated construction or contains electrical equipment.

1. Any room where the application of water, or flame and water, constitutes a serious life or fire hazard.
2. Generator and transformer rooms, under the direct control of a public utility, separated from the remainder of the building by walls and floor/ceiling or roof/ceiling assemblies having a fire-resistance rating of not less than 2 hours.
3. Elevator machine rooms, machinery spaces, and hoist ways, other than pits where such sprinklers would not necessitate shunt trip requirements under any circumstances.

Sec. 903.3.1.2 is amended by adding the following paragraph at the end:

Sec. 903.3.1.2 NFPA 13R Sprinkler Systems. Where allowed in buildings of Group R, up to and including four stories in height, automatic sprinklers shall be installed throughout in accordance with NFPA 13R. Sprinkler systems installed in accordance with 13R shall include sprinkler protections in combustible attics of buildings two (2) or more stories in height.

Sec. 903.3.1; add new Sections 903.3.1.4 and 903.3.1.5 to read as follows:

Sec. 903.3.1.4 Freeze Protection. Freeze protection systems for automatic fire sprinkler systems shall be in accordance with the requirements of the applicable referenced NFPA standard and this section.

903.3.1.4.1 Attics. Only dry-pipe, preaction, or listed antifreeze automatic fire sprinkler systems shall be allowed to protect attic spaces.

Exception: Wet-pipe fire sprinkler systems shall be allowed to protect non-ventilated attic spaces where:

1. The attic sprinklers are supplied by a separate floor control valve assembly to allow ease of draining the attic system without impairing sprinklers throughout the rest of the building, and
2. Adequate heat shall be provided for freeze protection as per the applicable referenced NFPA standard, and
3. The attic space is a part of the building's thermal, or heat, envelope, such that insulation is provided at the roof deck, rather than at the ceiling level.

903.3.1.4.2 Heat trace/insulation. Heat trace/insulation shall only be allowed where approved by the fire code official for small sections of large diameter water-filled pipe.

Sec. 903.3.1.5 Installation. Automatic sprinkler and standpipe systems shall be installed with the following:

1. A single underground supply from a looped water main and point for the Fire Department Connection (FDC) shall be provided for all buildings.
2. Fire department connections for automatic sprinklers and standpipes shall be provided with one 5-inch Storz connection. For system demands greater than 150 psi an additional 2½ inch Siamese connection and sign identifying pressure demand shall be required. Each shall have an independent check valve.
3. All inspectors' test, ball-drips, and main-drains shall be piped directly to the outside of the building.
4. At least one inspection test valve shall be located at the remote system area.

5. Fire pumps shall be equipped with a properly sized test header.

6. Underground piping shall have a 10-foot minimum separation from all other utilities and placed in a separate trench. Underground piping within 5 feet of the building may be combined with other utilities for entrance to the building.

7. Porches and balconies shall be sprinkled on all Group R-2 and R-3 occupancies.

8. A minimum of 4-feet of pipe between the check valve and inside wall of the Fire Department Connection.

Sec. 903.3.5 is amended to include a second paragraph to read as follows:

Water supply as required for automatic sprinkler and automatic standpipe systems shall be provided in conformance with the supply requirements of the respective standards; however, every fire protection system shall be designed with a 10-psi safety factor.

Sec. 903.3.9 is amended to read as follows:

Sec. 903.3.9 Floor control valves. Approved supervised indicating control valves shall be provided at the point of connection to the riser on each floor.

Sec. 903.4.1 is amended to include a second paragraph after the exceptions to read as follows:

Sec. 903.4.1 Electronic Supervision. Sprinkler and standpipe system water-flow detectors shall be provided for each floor tap to the sprinkler system and shall cause an alarm upon detection of water flow for a minimum of 45 seconds and not more than 90 seconds. All control valves in the sprinkler and standpipe systems except for fire department hose connection valves shall be electrically supervised to initiate a supervisory signal at the central station upon tampering.

Sec. 903.4.3 is amended to include a second paragraph to read as follows:

Sec. 903.4.3 Alarms. The alarm device required on the exterior of the building shall be a weatherproof horn/strobe notification appliance with a minimum 75 candela strobe rating, installed as close as practicable to the fire department connection.

SECTION 905 STANDPIPE SYSTEMS.

Sec. 905.2 is amended to read as follows:

Sec. 905.2 Installation standards. Standpipe system shall be installed in accordance with this section and NFPA 14. Manual dry standpipe systems shall be supervised with a minimum of 10 psig and a maximum of 40 psig air pressure with a high/low alarm.

Sec. 905.3.2 Group A; is amended by deleting exceptions 1 and 2.

Sec. 905.3 is amended by adding new Section 905.3.8 to read as follows:

Sec. 905.3.8 Travel Distance. Class I standpipes shall also be required on all occupancies in which the distance from accessible points for Fire Department ingress to any point in the structure exceeds two hundred fifty feet (250') along the route that a fire hose is laid as measured from the fire lane.

Sec. 905.4 Location of Class I standpipe hose connections item 5 is amended to read as follows:

5. Where the roof has a slope less than four units vertical in 12 units horizontal (33.3-percent slope), each standpipe shall be provided with a two-way hose connection located either on the roof or at the highest landing of stairways with stair access to the roof. An additional hose connection shall be provided at the top of the most hydraulically remote standpipe for testing purposes.

Sec. 905.4 is amended to by the addition of item 7 as follows:

7. When required by this Chapter, standpipe connections shall be placed adjacent to all required exits to the structure and at two hundred feet (200') intervals along major corridors or pathways thereafter.

Sec. 905; is amended by deleting Section 905.5.

Sec. 905; is amended by deleting Section 905.6.

Sec. 905.9 is amended to add a second paragraph after the exceptions to read as follows:

Sec. 905.9 Valve Supervision. Sprinkler and standpipe system water-flow detectors shall be provided for each floor tap to the sprinkler system and shall cause an alarm upon detection of water flow for a minimum of 45 seconds and not more than 90 seconds. All control valves in the sprinkler and standpipe systems except for fire department hose connection valves shall be electrically supervised to initiate a supervisory signal at the central station upon tampering.

Sec. 905.11; is amended to read as follows:

Sec. 905.11 Locking Standpipe Outlet Caps. Locking standpipe caps are on the outlets of dry standpipe connections where the responding fire department carries appropriate key wrenches for removal that are compatible with locking FDC connection caps. Locking caps are required on all new systems and existing systems where caps are missing.

Sec. 905 Standpipe systems is amended by adding section 905.13 to read as follows:

Sec. 905.13 Manual Systems. Design required for such systems shall be provided in conformance with the supply requirements of the respective standards. However, every manual fire protection system shall be designed with a supply of 150 psi at the FDC.

SECTION 906 PORTABLE FIRE EXTINGUISHERS.

Sec. 906.1 is amended by deleting 906.1(1) exception 3.

SECTION 907 FIRE ALARM AND DETECTION SYSTEMS.

Sec. 907.1.1 is amended by adding the following sentence:

Sec. 907.1.1 Construction documents. Plans for fire alarm systems shall be in accordance with Plano Fire-Rescue's Fire Alarm Submittal Guidelines.

Sec. 907.1 is amended by adding new Section 907.1.4 to read as follows:

Sec. 907.1.4 Design Standards. All alarm systems new or replacement shall be addressable. Alarm systems serving more than 20 smoke detectors shall be analog addressable.

Exception: Existing systems need not comply unless the total building remodel or expansion initiated after January 1, 1998, as adopted, exceeds 30% of the building. When cumulative building remodel or expansion exceeds 50% of the building must comply within 18 months of permit application.

Sec. 907.2.1 is amended to read as follows:

Sec. 907.2.1 Group A. A manual fire alarm system that activates the occupant notification system in accordance with new Section 907.5 shall be installed in Group A occupancies having an occupant load of 300 or more persons or more than 100 persons above or below the lowest level of exit discharge. Group A occupancies not separated from one another in accordance with Section 707.3.10 of the *International Building Code* shall be considered as a single occupancy for the purposes of applying this section. Portions of Group E occupancies occupied for assembly purposes shall be provided with a fire alarm system as required for the Group E occupancy.

Exception: Manual fire alarm boxes are not required where the building is equipped throughout with an automatic sprinkler system installed in accordance with Section 903.3.1.1 and the occupant notification appliances will activate throughout the notification zones upon sprinkler water flow.

Activation of fire alarm notification appliances shall:

1. Cause illumination of the *means of egress* with light of not less than 1 footcandle (11 lux) at the walking surface level, and

2. Stop any conflicting or confusing sounds and visual distractions.

Sec. 907.2.3 is amended to read as follows, Exceptions to remain:

Sec. 907.2.3 Group E. A manual alarm system that initiates the occupant notification signal utilizing an emergency voice/alarm communication system meeting the requirements of Section 907.5.2.2 and installed in accordance with Section 907.6 shall be installed in Group E educational occupancies. When *automatic sprinkler systems* or smoke detectors are installed, such systems or detectors shall be connected to the building fire alarm system. An approved smoke detection system shall by installed in Group E day care occupancies. Unless separated by a minimum of 100' open space, all buildings, whether portable buildings or the main building, will be considered one building for alarm occupant load consideration and interconnection of alarm systems. Where automatic fire sprinklers are not provided, a full-coverage smoke detection system shall be provided in all Group E occupancies.

Sec. 907.2.3, Exception 1 is amended to read as follows:

1. A manual fire alarm system is not required in Group E educational and day care occupancies with an occupant load of less than 50 when provided with an approved automatic sprinkler system.

Sec. 907.2.3; add new Section 907.2.3.1 to read as follows:

Sec. 907.2.3.1 In-Home Daycare. Residential In-Home daycare with not more than 12 children shall use interconnected single station detectors in all habitable rooms.

Sec. 907.2.6; add new Section 907.2.6.4 to read as follows:

Sec. 907.2.6.4 Group I-4 Occupancies. An approved smoke detection system shall be installed in Group I-4 occupancies. Where automatic fire sprinklers are not provided, a full-coverage smoke detection system shall be provided in all Group I-4 occupancies.

Sec. 907.2.10.1 is amended to read as follows, Exception to remain:

Sec. 907.2.10.1 Public and Self-Storage occupancies. A manual fire alarm system that activates the occupant notification system in accordance with Section 907.5 shall be installed in Group S public- and self-storage occupancies for interior *corridors* and interior common areas. Visible notification appliances are not required within storage units.

Sec. 907.2.13, exception 3 is amended to read as follows:

3. Buildings with an occupancy in Group A-5 in accordance with Section 303.1 of the *International Building Code*, when used for open air seating; however, this exception does not apply to accessory uses including but not limited to sky boxes, restaurants and similarly enclosed areas.

Sec. 907.4.2; add new Section 907.4.2.7 to read as follows:

Sec. 907.4.2.7 Type. Manual alarm actuating devices shall be an approved double action type.

Sec. 907.5.2; add new Section 907.5.2.4 to read as follows:

Sec. 907.5.2.4 I-2 and Group B Occupancies.

Occupant notification systems are not required where private mode fire alarm systems are needed in critical care areas of I-2 and Group B Ambulatory Occupancies. A Chime sound shall be used as the audible notification at the constantly attended location and public areas where audible notification is required.

A visible alarm notification appliance installed in a nurses control station or other continuously attended staff location shall be provided as an acceptable alternative to the installation of audible alarm notification appliances throughout the occupancy.

In areas where private mode fire alarm system is being installed, audible alarm notification

appliances are not required in critical care areas of Group I-2 and Group B- Ambulatory Occupancies.

Visible alarm notification appliances are not required in critical care areas of Group I-2 and Group B - Ambulatory Occupancies.

The private mode area and public mode area of the occupancy **shall be identified on the plans** for review.

Sec. 907.6.1; add new Section 907.6.1.1 to read as follows:

Sec. 907.6.1.1 Wiring Installation. All fire alarm systems shall be installed in such a manner that a failure of any single initiating device or single open in an signaling line circuit conductor will not interfere with the normal operation of other such devices. All signaling line circuits (SLC) shall be installed in such a way that a single open will not interfere with the operation of any addressable devices (Class A). Outgoing and return SLC conductors shall be installed in accordance with NFPA 72 requirements for Class A circuits and shall have a minimum of four feet of separation horizontal and one foot vertical between supply and return circuit conductors. Notification appliance circuits (NAC) may be installed as Class B circuits.

Sec. 907.6.3; is amended by deleting all four (4) exceptions.

Sec. 907.6.3; add new Sections 907.6.3.2 and 907.6.3.3 to read as follows:

Sec. 907.6.3.2 Communication Requirements. All alarm systems, new or replacement, shall transmit alarm, supervisory, and trouble signals descriptively to the approved central station, remote supervisory station or proprietary supervising station as defined in NFPA 72, with the device designation and location of addressable device identification. Alarms shall not be permitted to be transmitted as a General Alarm or Zone condition.

Sec. 907.6.3.3 Flow detectors and electronic monitoring. Sprinkler and standpipe system water flow detectors shall be provided for each floor zone to the sprinkler system and shall cause an alarm upon detection of water flow for a minimum of 45 seconds and not more than 90 seconds. All control valves in the sprinkler and standpipe systems except for fire department hose connection valves shall be electrically supervised to initiate a trouble signal at the central station upon tampering.

SECTION 910 SMOKE AND HEAT REMOVAL.

Sec. 910.2; add new Section 910.2.3 to read as follows:

Sec. 910.2.3 Group H. Buildings and portions thereof used as a Group H occupancy as follows:

1. In occupancies classified as Group H-2 or H-3, any of which are more than 15,000 square feet (1394m^2) in single floor area.

   Exception: Buildings of noncombustible construction containing only noncombustible materials.

2. In areas of buildings in Group H used for storing Class 2, 3 and 4 liquid and solid oxidizers, Class 1 and unclassified detonable organic peroxides, Class 3 and 4 unstable (reactive) materials, or Class 2 or 3 water-reactive materials as required for a high-hazard commodity classification.

   Exception: Buildings of noncombustible construction containing only noncombustible materials.

Sec. 910.3.1 is amended by adding the following sentence: Gravity operated drop out vents are prohibited.

SECTION 912.2 FIRE DEPARTMENT CONNECTIONS.

Sec. 912.2; add new Section 912.2.3 to read as follows:

Section 912.2.3 Hydrant distance. An approved fire hydrant shall be located within 100 feet of the fire department connection as the fire hose lays along an unobstructed path.

Sec. 912.4.1 is amended to read as follows:

Sec. 912.4.1 Locking Fire Department Connection Caps. All new fire department connections and existing where caps are missing shall be protected by Knox locking caps.

SECTION 913 FIRE PUMPS.

Sec. 913.2.1 is amended by adding the following paragraph and exception:

Sec. 913.2.1: Protection of Fire Pump Room. When located on the ground level, the fire pump room shall be provided with an exterior fire department access door that is not less than 3 ft. in width and 6 ft. in height, regardless of any interior doors that are provided. A key box shall be provided at this door, as required by Section 506.1.

Exception: When it is necessary to locate the fire pump room on other levels or not at an exterior wall, the corridor leading to the fire pump room access from the exterior of the building shall be provided with equivalent fire resistance as that required for the pump room, or as approved by the fire code official. Access keys shall be provided in the key box as required by Section 506.1.

Sec. 913.4 is amended to read as follows:

Sec. 913.4 Valve Supervision. Where provided, the fire pump suction, discharge and bypass valves, and the isolation valves on the backflow prevention devices or assembly shall be supervised open by a central-station, proprietary, or remote-station signaling service.

The fire-pump system shall also be supervised for "loss of power", and "phase reversal" on supervisory circuits, and "pump running" as an alarm condition and shall report individually to the monitoring station.

SECTION 915 CARBON MONOXIDE (CO) DETECTION.

Sec. 915 delete all and replace as follows:

Sec. 915.1 General. New and existing building shall be provided with carbon monoxide (CO) detection in accordance with Sections 915.2 through 915.5.

Sec. 915.2 Where required. Carbon monoxide detection shall be provided in interior spaces, other than dwelling units, that are exposed to a carbon monoxide source in accordance with Sections 915.2.1 through 915.2.3. Carbon monoxide detection for dwelling units or sleeping units that are exposed to a carbon monoxide source shall be in accordance with Section 915.2.4.

Sec. 915.2.1 Interior spaces with direct carbon monoxide sources. In all occupancies, interior spaces with a direct carbon monoxide source shall be provided with carbon monoxide detection located in close proximity to the direct carbon monoxide source and in accordance with Section 915.3.

Exception: Where environmental conditions in an enclosed space are incompatible with carbon monoxide detection devices, carbon monoxide detection shall be provided in an approved adjacent location.

Sec. 915.2.2 Interior spaces adjacent to a space containing a carbon monoxide source. In Groups A, B, E, I, M and R Occupancies, interior spaces that are separated from and adjacent to an enclosed parking garage or an interior space that contains a direct carbon monoxide source shall be provided with carbon monoxide detection if there are communicating openings between the spaces. Detection devices shall be located in close proximity to communicating openings on the side that is furthest from the carbon monoxide source and in accordance with Section 915.3.

Exceptions:

1. Where communicating openings between the space containing a direct carbon monoxide source and the adjacent space are permanently sealed airtight, carbon monoxide detection is not required for the adjacent space.
2. Where the fire code official determines that the volume or configuration of the adjacent interior space is such that dilution or geometry would diminish the effectiveness of carbon monoxide detection devices located in such spaces, detec-

tion devices additional to those required by Section 915.2.1 shall be located on the side of communicating openings that is closest to the carbon monoxide source.

Sec. 915.2.3 Interior spaces with forced-indirect carbon monoxide sources. In all occupancies, interior spaces with a forced-indirect carbon monoxide source shall be provided with carbon monoxide detection in accordance with either of the following:

1. Detection in each space with a forced-indirect carbon monoxide source, located in accordance with Section 915.3.
2. Detection only in the first space served by the main duct leaving the forced-indirect carbon monoxide source, located in accordance with Section 915.3, with an audible and visual alarm signal provided at an approved location.

Sec. 915.2.4 Dwelling units and sleeping units. Carbon monoxide detection for dwelling units and sleeping units shall comply with Sections 915.2.4.1 and 915.2.4.2.

Sec. 915.2.4.1 Direct carbon monoxide sources. Where a direct carbon monoxide source is located in a bedroom or sleeping room, or a bathroom attached to either, carbon monoxide detection shall be installed in the bedroom or sleeping room. Where carbon monoxide detection is not installed in bedrooms or sleeping rooms, carbon monoxide detection shall be installed outside of each separate sleeping area in close proximity to bedrooms or sleeping rooms for either of the following conditions:

1. The dwelling unit or sleeping unit has a communicating opening to an attached, enclosed garage.
2. A direct carbon monoxide source is located in the dwelling unit or sleeping unit outside of bedrooms or sleeping rooms.

Sec. 915.2.4.2 Forced-indirect carbon monoxide sources. Bedrooms or sleeping rooms in dwelling units or sleeping units that are exposed to a forced-indirect carbon monoxide source shall be provided with carbon monoxide detection in accordance with Section 915.2.4.1 or Section 915.2.3.

Sec. 915.3 Location of detection devices. Carbon monoxide detection devices shall be installed in accordance with manufacturer's instructions in a location that avoids dead air spaces, turbulent air spaces, fresh air returns, open windows, and obstructions that would inhibit accumulation of carbon monoxide at the detection location. Carbon monoxide detection in air ducts or plenums shall not be permitted as an alternative to required detection locations.

Sec. 915.4 Permissible detection devices. Carbon monoxide detection shall be provided by a carbon monoxide detection system complying with Section 915.4.2 unless carbon monoxide alarms are permitted by Section 915.4.1.

Sec. 915.4.1 Carbon monoxide alarms. Carbon monoxide alarms complying with Sections 915.4.1.1 through 915.4.1.3 shall be permitted in lieu of a carbon monoxide detection system in both of the following:

1. Dwelling units and sleeping units.
2. Locations other than dwelling units or sleeping units, where approved, provided that the manufacturer's instructions do not prohibit installation in locations other than dwelling units or sleeping units and that the alarm signal for any carbon monoxide alarm installed in a normally unoccupied location is annunciated by an audible and visual signal in an approved location.

Sec. 915.4.1.1 Power source. In buildings with a wired power source, carbon monoxide alarms shall receive their primary power from a permanent connection to building wiring, with no disconnecting means other than for overcurrent protection, and shall be provided with a battery backup. In buildings without a wired power source, carbon monoxide alarms shall be battery powered.

Exception: For existing buildings not previously required to have carbon monoxide alarms

permanently connected to a wired power source, existing battery-powered and plug-in with battery backup carbon monoxide alarms shall be permitted to remain in service. When replaced, replacement with battery-powered and plug-in with battery backup carbon monoxide alarms shall be permitted.

Sec. 915.4.1.2 Listings. Carbon monoxide alarms shall be listed in accordance with UL 2034. Combination carbon monoxide/smoke alarms shall also be listed in accordance with UL 217.

Sec. 915.4.1.3 Interconnection. Where more than one carbon monoxide alarm is installed, actuation of any alarm shall cause all of the alarms to signal an alarm condition.

Sec. 915.4.2 Carbon monoxide detection systems. Carbon monoxide detection systems shall be installed in accordance with NFPA 72.

Sec. 915.4.2.1 Fire alarm system integration. Where a building fire alarm system or combination fire alarm system, as defined in NFPA 72, is installed, carbon monoxide detection shall be provided by connecting carbon monoxide detectors to the fire alarm system. Where a building fire alarm system or a combination fire alarm system is not installed, carbon monoxide detection shall be provided by connecting carbon monoxide detectors to a carbon monoxide detection system complying with NFPA 72.

Sec. 915.4.2.2 Listings. Carbon monoxide detectors shall be listed in accordance with UL 2075. Combination carbon monoxide/smoke detectors shall be listed in accordance with UL 268 and UL 2075.

Sec. 915.4.2.3 Alarm notification. For other than Group E Occupancies, activation of a carbon monoxide detector shall initiate alarm notification in accordance with any of the following:

1. An audible and visible alarm notification throughout the building and at the control unit.
2. Where specified in an approved fire safety plan, an audible and visible alarm in the signaling zone where the carbon monoxide has been detected and other signaling zones specified in the fire safety plan, and at the control unit.
3. Where a sounder base is provided for each detector, an audible alarm at the activated carbon monoxide detector and an audible and visible alarm at the control unit.

For Group E Occupancies having an occupant load of 30 or less, alarm notification shall be provided in an on-site location staffed by school personnel or in accordance with the notification requirements for other occupancies. For Group E occupancies having an occupant load of more than 30, an audible and visible alarm shall be provided in an onsite location staffed by school personnel.

Sec. 915.5 Maintenance. Carbon monoxide alarms and carbon monoxide detection systems shall be maintained in accordance with NFPA 72 and the manufacturer's instructions. Carbon monoxide alarms and carbon monoxide detectors that become inoperable or begin producing end-of-life signals shall be replaced.

SECTION 1004 OCCUPANT LOAD.

Sec. 1004.5 is amended by deletion of the exception:

Section 1006.2.1 exception 3 is amended to read as follows:

3. Unoccupied rooftop mechanical rooms and penthouses are not required to comply with common path of egress travel distance measurements.

Table 1010.2.4; amend Table - Manual Bolts, Automatic Flush Bolts and Constant Latching Bolts on Inactive Leaf of A pair of Doors; to add Group M and A occupancies as follows:

Add Group M to Line item #1 in Table 1010.2.4: Group B, F, M or S occupancies with occupant load less than 50. (remainder unchanged)

Add Group A and M to line item #2 in Table 1010.2.4: Group A, B, F, M, or S occupancies where the building is equipped . . . (remainder unchanged)

SECTION 1020 CORRIDORS.

Section 1020.2 Construction; add exception 6 to read as follows:

6. In group B occupancies, corridor walls and ceilings need not be of fire-resistive construction within a single tenant space when the space is equipped with approved automatic smoke-detection within the corridor. The actuation of any detector must activate self-annunciating alarms audible in all areas within the corridor. Smoke detectors must be connected to an approved automatic fire alarm system where such system is provided.

Sec. 1030.1.1.1 Spaces under grandstands and bleachers; is amended by the deletion of this section.

SECTION 1103 FIRE SAFETY REQUIREMENT FOR EXISTING BUILDINGS.

Sec. 1103; add new Sections 1103.5.6, 1103.5.7, and 1103.7.7 to read as follows:

Sec. 1103.5.6 Spray booths and rooms. Existing spray booths and spray rooms shall be protected by an approved automatic fire-extinguishing system in accordance with Section 2404.

Sec. 1103.5.7 Existing R-1, 2, 3, and 4 Occupancies: In R-1, 2, 3, and 4 occupancies where a fire has occurred and displaces one or more occupants, the affected building shall be fire-sprinkled prior to re-occupancy of the unit/building.

Sec. 1103.7.7 Fire Alarm System Design Standards. All alarm systems new or replacement shall be addressable. Alarm systems serving more than 20 smoke detectors shall be analog addressable.

Exception: Existing systems need not comply unless the total building remodel or expansion initiated after January 1, 1998, as adopted, exceeds 30% of the building. When cumulative building remodel or expansion exceeds 50% of the building must comply within 18 months of permit application.

Sec. 1103.9 is amended to read as follows:

Sec. 1103.9 Carbon monoxide detection. Carbon monoxide detection shall be installed in existing building in accordance with Section 915.

SECTION 1201 GENERAL.

Section 1201 is amended by the addition of new section 1201.4 to read as follows:

Section 1201.4 Electrical Shutdown. Energy Systems including solar photovoltaic power systems, stationary fuel cell power systems, Electrical energy storage systems, shall have a remote power shut down box. The location shall be at an approved exterior door entrance. The box shall only be accessible by the fire department and shall be keyed to the fire departments Key Box as outlined in section 506 on the International Fire Code.

Section 1207.2 is amended to read as follows:

Section 1207.2 Commissioning, decommissioning, operation and maintenance. Commissioning, decommissioning, operation and maintenance shall be conducted in accordance with this section. In addition to the ordinary inspection and test requirements that buildings, structures and parts thereof are required to undergo, Energy Storage Systems subject to the provisions of Section 1207 shall undergo special inspections and tests sufficient to verify the proper commissioning of the Energy Storage System in its final installed condition. The design submission accompanying the construction documents shall clearly detail procedures and methods to be used and the items subject to such inspections and tests. Such commissioning shall be in accordance with generally accepted engineering practice and, where possible, based on published standards for the particular testing involved. The special inspections and tests required by this section shall be conducted under the same terms as in Chapter 17 of the International Building Code.

SECTION 3307 FIRE DEPARTMENT SITE ACCESS AND WATER SUPPLY.

Sec. 3307.1; is amended to read as follows:

Sec. 3307.1 Required access. When fire apparatus access roads are required to be installed for any structure or development, they shall be approved and installed prior to the time of which construction has progressed beyond completion of the foundation of any structure.

SECTION 4104 - PORTABLE FUEL-FIRED COOKING APPLIANCES.

Sec. 4104.2; Change to read as follows:

Sec. 4104.2 Open-flame cooking devices. Charcoal grills and other similar devices used for cooking shall not be located or used on combustible balconies, decks, or within 10 feet (3048 mm) of combustible construction.

Exceptions:

1. One- and two-family dwellings.
2. Where buildings, balconies and decks are protected by an approved automatic sprinkler system.

SECTION 5601 GENERAL.

Sec. 5601.1.3; is amended to read as follows:

Sec. 5601.1.3 Fireworks. The possession, manufacture, storage, sale, handling and use of fireworks are prohibited.

Exceptions:

1. Only when approved for fireworks displays, storage and handling of fireworks as provided in Sections 5604 and 5608.
2. The use of fireworks for approved display as permitted in Section 5608.

The presence or use of fireworks within the jurisdiction of the City of Plano in violation of this ordinance is hereby declared to be a common and public nuisance. The restrictions of this Section shall be applicable and in force throughout the territory of the City of Plano, Texas, and extending for a distance outside the City limits for a total of 5,000 feet; provided that this Section shall not be in effect within any portion of such 5,000 feet area which is contained within the territory of any other municipal corporation.

Sec. 5601.3 is amended to read as follows:

Sec. 5601.3 Prohibited explosives. Permits shall not be issued or renewed for possession, manufacture, storage, handling, sale or use of explosives within the city limits of Plano.

SECTION 5608 FIREWORKS DISPLAY.

Sec. 5608; add new Section 5608.11 to read as follows:

Sec. 5608.11 Ignition. Aerial shells shall be ignited by lighting the tips of fuses by an electrical ignition source except when manual ignition is approved by the Fire Chief. Operators shall not place any part of their bodies over the throat of the mortar.

SECTION 5703 GENERAL REQUIREMENTS.

Sec. 5703.6 is amended to add the following sentence:

An approved method of secondary containment shall be provided for underground tank and piping systems.

SECTION 5704 STORAGE.

Sec. 5704.2.7; is amended by the addition of the following:

Secondary containment shall be provided for all Above and Underground Storage Tanks (UST) and product lines in the form of double wall tanks and piping. Alternate methods of secondary containment may be used if approved by the Chief.

Sec. 5704.2.9.6.1 is amended to read as follows:

Sec. 5704.2.9.6.1 Location where above-ground tanks are prohibited. The storage of flammable or combustible liquids in outside above ground tanks is prohibited within each and every zoning district within the City of Plano with the exception of those districts which are zoned for light industrial zoning use. Installation of above ground tanks in other than light industrial zoning districts shall be permitted at the discretion of the Fire Chief following his review of the proposed

installation location, and the fire protection for the storage area. Tanks shall not be located within one hundred feet (100') of the property line of any Group E, I or R occupancies.

Exception: Above-Ground UL 142 fuel tanks up to 3,000 gal. containing Class II combustible liquid suppling only generators. Above-ground UL 2085 fuel tanks from 3,001 to 12,000 gal. containing Class II combustible liquid suppling only generators.

Sec. 5704.2.11.4; is amended to read as follows:

Sec. 5704.2.11.4 Leak prevention. Leak prevention for underground tanks shall comply with Sections 5704.2.11.4.1 through 5704.2.11.4.3. An approved method of secondary containment shall be provided for underground tank and piping systems.

Sec. 5704.2.11.4.2; is amended to read as follows:

Sec. 5704.2.11.4.2 Leak detection. Underground storage tank systems shall be provided with an approved method of leak detection from any component of the system that is designed and installed in accordance with NFPA 30 and as specified in Section 5704.2.11.4.3.

Sec. 5704.2.11.4 is amended by the addition of the following:

Sec. 5704.2.11.4.3 Observation Wells. Approved sampling tubes of a minimum 6 inches in diameter shall be installed in the backfill material of each underground flammable or combustible liquid storage tank. The tubes shall extend from a point 12 inches below the average grade of the excavation to ground level and shall be provided with suitable surface access caps. Each tank site shall provide a sampling sump at the corners of the excavation with a minimum of 4 sumps. Sampling tubes shall be placed in the product line excavation within 10 feet of the tank excavation and one every 50 feet routed along product lines towards the dispensers. A minimum of two are required.

SECTION 5804 STORAGE.

Sec. 5804.2; is amended by the addition of the following:

Sec. 5804.2.1 Maximum capacity within established limits. Tanks shall not be located within one hundred feet (100') of the property line of any Group A, E, I, or R occupancies.

Appendix L Requirements for Fire Fighter Air Replenishment Systems

Sec. L101; add new Section L101.2 to read as follows:

Sec. L101.2 Required Location. In new buildings, fill stations shall be required when any of the following conditions occur:

1. Any new building 5 or more stories in height.
2. Any new building with 2 or more floors below grade.
3. Any new building 500,000 square feet or more in size.

Each stairwell shall have a supply riser. SCBA fill stations shall be located on odd numbered floors in the primary stairwell and on even numbered stairs in the secondary stairwells. The primary stairwell will be the stair located closest to the main entrance.

Sec. L104.5 is amended to read as follows:

Sec. L104.5 Breathing air supply. Where a fire department mobile air unit is available, the FARS shall be supplied by an external mobile air connection in accordance with Section L104.14. A stored pressure air supply shall be provided in accordance with Section L104.5.1. A stored pressure air supply shall be added to a system supplied by an external mobile air connection provided that a means to bypass the stored pressure air supply is located at the external mobile air connection.

Sec. L104; is amended by deleting Section L104.13.1 Location.

Sec. L104.13.2 (5) is amended to read as follows:

Sec. L104.13.2 (5) Fill stations providing for the direct refilling of the fire fighters' breathing air cylinders using Rapid Intervention

Crew/Company Universal Air Connection (RIC/UAC) fittings shall be used in lieu of cylinder fill stations that utilize containment areas.

Sec. L104.14; add paragraph to read as follows:

Sec. L104.14 External mobile air connection. The external mobile air connection shall be located with approved separation from the Fire Department Connection (FDC) to allow functionality of both devices by first responders: shall be visible from and within 50 ft. of a fire apparatus access road along an unobstructed path: and shall be located in an approved signed and secured cabinet.

(Ord. No. 2016-3-5, § II, 3-14-16; Ord. No. 2018-11-19, § II, 11-26-18; Ord. No. 2022-1-20, § III, 1-24-22; Ord. No. 2025-6-2, § II, 6-9-25)

Sec. 8-18. Reserved.

ARTICLE III. FIRE INSPECTION PROGRAM

Sec. 8-19. Fire inspection program.

(a) *Purpose.* The purpose of this section is to establish the fire inspection program and authorize the fire department to conduct inspection of commercial and industrial businesses for fire hazards and compliance with the International Fire Code.

(b) *Authority to inspect.* In addition to the authority to inspect provided under the International Fire Code, the fire department is authorized to inspect commercial and industrial businesses on either an annual or biennial basis for fire hazards and compliance with the International Fire Code.

(c) *Frequency of inspection.* Businesses that are issued a certificate of occupancy by the City of Plano Building Inspections Department are subject to inspection as follows:

(1) Businesses that are less than twenty thousand (20,000) square feet and do not serve or sell alcohol as part of the business operation are subject to biennial inspection.

(2) Businesses that are twenty thousand (20,000) square feet or greater, or any size business that serves or sells alcohol are subject to annual inspection.

(3) Residential dwellings not permitted for commercial use are not subject to inspection under this article.

(Ord. No. 2013-10-23, § I, 10-28-13; Ord. No. 2023-9-4, § I, 9-11-23)

ARTICLE IV. MOBILE COMMUNITY HEALTHCARE PROGRAM

Sec. 8-20. Mobile community healthcare program.

(a) *Purpose.* The purpose of this section is to establish the mobile community healthcare program and authorize fire-rescue paramedics to provide emergency medical services by performing appropriate medical interventions to certain individuals at their residences who routinely and frequently call 9-1-1 requesting emergency medical services within the City of Plano.

(b) *Authority to provide emergency medical services.* V.T.C.A., Health and Safety Code ch. 773, as amended; V.T.C.A., Occupations Code ch. 157, as amended; and Title 22 of the Texas Administrative Code Chapter 197, as amended, authorize fire-rescue paramedics who are supervised by a physician licensed to practice medicine in Texas to provide emergency medical services.

(c) *Mobile community healthcare program.*

(1) Under the mobile community healthcare program, fire-rescue paramedics who are under the supervision of a physician licensed to practice medicine in Texas may use emergency medical services vehicles to provide emergency medical services, including immunization and vaccinations, to:

a. Individuals who meet criteria established by the fire chief, or designee; and/or

b. Individuals identified through a contract executed under subsection (4) below.

(2) The fire chief, or designee, shall promulgate standard operating procedures regarding emergency medical services provided by fire-rescue paramedics as part of the mobile community healthcare program.

(3) A physician licensed to practice medicine in Texas shall develop, implement, and revise protocols and standing delegation orders regarding emergency medical services provided by fire-rescue paramedics as part of the mobile community healthcare program.

(4) The city manager, or designee, is hereby authorized to execute a contract or contracts on behalf of the city with any hospital within Plano city limits authorizing fire-rescue paramedics, through the mobile community healthcare program, to provide emergency medical services to certain individuals who reside in the city, meet criteria established by a contract, and are designated by the contracting hospital. These contracts with hospitals must:

a. Require that any emergency medical services provided by fire-rescue paramedics shall be provided under the supervision of the individual's treating physician or the appropriate hospital medical staff and through the exercise of the supervising physician's independent medical judgment;

b. Require that the hospital develop treatment protocols for their discharged individuals receiving emergency medical services from fire-rescue paramedics through the mobile community healthcare program, and that those treatment protocols are deemed by the medical director to be within the scope of the fire-rescue paramedics' certification; and

c. Require that any medications prescribed to individuals participating in the mobile community healthcare program will be prescribed by the individual's treating physician or the appropriate hospital medical staff based on the prescribing physician's relationship with the individual.

(5) Nothing in this article shall be construed to restrict a physician from delegating administrative and technical or clinical tasks not involving the exercise of independent medical judgment to those specifically trained individuals instructed and directed by a licensed physician who accepts responsibility for the acts of such allied health personnel. Further, nothing shall be construed to relieve the supervising physician of the professional or legal responsibility for the care and treatment of his or her patients.

(Ord. No. 2016-1-7, § I, 1-11-16)

[The next page is 597]

Chapter 9

FOOD CODE*

Article I. General Provisions

Sec. 9-1. Title.
Sec. 9-2. Construction; governing law; venue.
Sec. 9-3. Scope.
Sec. 9-4. Purpose; objectives; applicability.
Sec. 9-5. Definitions.

Article II. Management and Personnel

Sec. 9-6. Supervision.
Sec. 9-7. Employee health.
Sec. 9-8. Employee exclusions and restrictions.
Sec. 9-9. Employee removal, adjustments, or retention of exclusions and restrictions.
Sec. 9-10. Personal cleanliness.
Sec. 9-11. Hygienic practices.
Sec. 9-12. Responding to contamination events.

Article III. Food

Division 1. Characteristics; Sources, Specifications, and Original Containers and Records

Sec. 9-13. Characteristics.
Sec. 9-14. Sources, specifications, and original containers and records.
Sec. 9-15. Specifications for receiving.
Sec. 9-16. Commercially processed.
Sec. 9-17. Original containers and records.
Sec. 9-17.1. Donation of food.

Division 2. Protection from Contamination After Receiving

Sec. 9-18. Preventing contamination by employees.
Sec. 9-19. Preventing food and ingredient contamination.
Sec. 9-20. Preventing the contamination of ice used as a coolant.
Sec. 9-21. Preventing contamination from equipment, utensils, and linens.
Sec. 9-22. Preventing contamination from the premises.
Sec. 9-23. Preventing contamination by consumers.
Sec. 9-24. Buffet notification.
Sec. 9-24.1. Preventing contamination from other sources.

---

*__Editor's note—__Ord. No. 2025-4-2, § 1, adopted April 14, 2025, repealed and reenacted chapter 9 in its entirety to read as herein set out. Formerly, chapter 9, article I, pertained to similar subject matter, and derived from Ord. No. 2018-4-6, § I, 4-23-18, eff. 7-1-18; Ord. No. 2019-9-16, § I, 9-23-19.

__Charter reference—__Sanitary regulations, § 2.01.

__Cross references—__Alcoholic beverages, Ch. 3; animals and fowl, Ch. 4; licenses and business regulations, Ch. 11; motor vehicles and traffic, Ch. 12; parks and recreation, Ch. 15; solid waste, Ch. 18; utilities, Ch. 21; zoning, App. A.

__State law references—__Dairy products, Vernon's Ann. Civ. St., art. 165-3 and V.T.C.A. Agriculture Code, § 13.201 et seq.; meat and poultry inspection, Vernon's Ann. Civ. St., art. 4476-7; restaurants, Vernon's Ann. Civ. St., art. 4476-9 et seq.; food inspection, etc., by cities, Vernon's Ann. Civ. St., arts. 1015(5), 1175(19); food and drugs generally, Vernon's Ann. Civ. St., art. 4465a et seq.; Food, Drug and Cosmetic Act, Vernon's Ann. Civ. St., art. 4476-5; nuisances, Vernon's Ann. Civ. St., art. 4477-1, § 2.

Division 3. Destruction of organisms of public health concern.

Sec. 9-25. Cooking.
Sec. 9-26. Freezing.
Sec. 9-27. Reheating for hot holding.
Sec. 9-28. Treating juices.

Division 4. Limitation of Growth of Organisms of Public Health Concern

Sec. 9-29. Temperature and time control.
Sec. 9-30. Specialized processing methods.

Division 5. Food Identity, Presentation, and On-Premises Labeling

Sec. 9-31. Accurate representation.
Sec. 9-32. Labeling.
Sec. 9-33. Consumer advisory.

Division 6. Contaminated Food

Sec. 9-34. Disposition.

Division 7. Special Requirements for Highly Susceptible Populations

Sec. 9-35. Additional safeguards.

Article IV. Equipment, Utensils, and Linens

Sec. 9-36. Materials for construction and repair.
Sec. 9-37. Design and construction.
Sec. 9-38. Numbers and capacities; equipment, utensils, cleaning agents.
Sec. 9-39. Location and installation.
Sec. 9-40. Maintenance and operation; equipment, utensils and measuring devices.
Sec. 9-41. Cleaning of equipment and utensils.
Sec. 9-42. Sanitization of equipment and utensils.
Sec. 9-43. Laundering.
Sec. 9-44. Protection of clean items.

Article V. Water, Plumbing, and Waste

Sec. 9-45. Water.
Sec. 9-46. Plumbing system.
Sec. 9-47. Mobile water tank and mobile food establishment water tank.
Sec. 9-48. Sewage, other liquid waste, and rainwater.
Sec. 9-49. Refuse, recyclables, and returnables.

Article VI. Physical Facilities

Sec. 9-50. Materials for construction and repair.
Sec. 9-51. Design, construction, and installation.
Sec. 9-52. Numbers and capacities.
Sec. 9-53. Location and placement.
Sec. 9-54. Maintenance and operation; premises.

Article VII. Poisonous or Toxic Materials

Sec. 9-55. Labeling and identification.
Sec. 9-56. Operational supplies and applications.

Sec. 9-57. Stock and retail sale.

Article VIII. Requirements Applicable to Certain Establishments

Sec. 9-58. Mobile food units.
Sec. 9-59. Temporary food establishments.
Sec. 9-60. Bed and breakfast.
Sec. 9-61. Outfitter operations.
Sec. 9-62. Self-service food markets.
Sec. 9-63. Farmer's markets.

Article IX. Compliance

Sec. 9-64. Code applicability.
Sec. 9-65. Plan submission and approval.
Sec. 9-66. Confidentiality, trade secrets.
Sec. 9-67. Construction inspection and approval, preoperational inspections.
Sec. 9-68. Permit to operate.
Sec. 9-69. Inspections and correction of violations.
Sec. 9-70. Investigation and control.

Article X. Enforcement

Sec. 9-71. Authority for enforcement; offenses.
Sec. 9-72. Suspension, revocation of permit.
Sec. 9-73. Appeal of decision.
Sec. 9-74. Fees.
Sec. 9-75. Penalties.

ARTICLE I. GENERAL PROVISIONS

Sec. 9-1. Title.

This chapter shall be known and cited as the Food Code for the City of Plano, Texas.
(Ord. No. 2025-4-2, § I, 4-14-25)

Sec. 9-2. Construction; governing law; venue.

This chapter shall be construed under and in accordance with the laws of the State of Texas and the City Charter and City Code to the extent that such Charter and City Code are not in conflict with or in violation of the Constitution and laws of the United States or the State of Texas. All obligations of the parties hereunder are performable in Collin County and/or Denton County, Texas.
(Ord. No. 2025-4-2, § I, 4-14-25)

Sec. 9-3. Scope.

This chapter shall be effective within the geographical limits of the city, including any areas subsequently annexed by the city.
(Ord. No. 2025-4-2, § I, 4-14-25)

Sec. 9-4. Purpose; objectives; applicability.

(a) *Purpose.* The provisions of this chapter safeguard the public health, provide food to consumers that is safe, unadulterated, and honestly presented, and establish uniform requirements for food service operations.

(b) *Objectives.* The objectives of this chapter are to provide one set of uniform regulations establishing a system of prevention and overlapping safeguards to minimize foodborne illness; ensure employee health, industry manager knowledge, safe food, nontoxic and cleanable equipment, and acceptable levels of sanitation on food establishment premises; and promote fair dealings with the public.

(c) *Applicability.* The requirements of this chapter apply to any food establishment as defined in section 9-5 of this Code and operating within the City of Plano.
(Ord. No. 2025-4-2, § I, 4-14-25)

Sec. 9-5. Definitions.

Accredited program means a food manager certification program that has been evaluated and listed by the Texas Department of State Health Services ("State") and conforms to standards set by the State.

Additive has the meaning stated in the Federal Food, Drug, and Cosmetic Act, § 201(s) and 21 CFR 170.3(e)(1) for "Food Additive" and in the Federal Food, Drug, and Cosmetic Act, § 201(t) and 21 CFR 70.3(f) for "Color Additive."

Administrative fee means the permit processing and inspection fee(s).

Adulterated food means a food deemed to be adulterated as specified in the V.T.C.A. Health and Safety Code, § 431.081.

Approved means acceptable to the department based on a determination of conformity with principles, practices, and generally recognized standards that protect public health and documented in writing if not otherwise stated in this Code or State or Federal law.

Arm's length transaction means a sale of a business for consideration that reflects the fair market value of such business or its assets between two informed and willing parties that are not made, wholly or in part, for the purpose of enabling the seller to avoid liability for violations issued by the department. A sale shall be presumed not to be an arm's length transaction if it is:

(1) A sale to an individual, or to a corporation or other business that is owned by the spouse, domestic partner, parent, grandparent, child, or stepchild of any of any of the sellers, or is the direct descendent of a grandparent, the spouse or domestic partner of any of the sellers;

(2) A sale to an individual or entity that has a business or financial interest in the seller; or

(3) A sale to an entity in which any of the sellers has a business or financial relationship in the entity.

Asymptomatic means without obvious symptoms; not showing or producing indications of a disease or other medical condition, such as an individual infected with a pathogen but not exhibiting or producing any signs or symptoms of vomiting, diarrhea, or jaundice. This includes not showing symptoms because symptoms have resolved or subsided, or because symptoms never manifested.

a_w means water activity which is a measure of the free moisture in a FOOD, is the quotient of the water vapor pressure of the substance divided by the vapor pressure of pure water at the same temperature, and is indicated by the symbol a_w.

Balut means an embryo inside a fertile egg that has been incubated for a period sufficient for the embryo to reach a specific stage of development after which it is removed from incubation before hatching.

Bed and breakfast extended means an establishment with more than seven rooms for rent or an establishment that provides food service other than breakfast to overnight guests.

Bed and breakfast food establishment means a bed and breakfast that provides food service to customers in addition to its overnight guests.

Bed and breakfast limited means an establishment that has seven or fewer rooms for rent, serves breakfast to overnight guests, and is not a retail food establishment.

Beverage means a liquid for drinking, including water.

Bottled drinking water means water that is sealed in bottles, packages, or other containers and offered for sale for human consumption, including bottled mineral water.

Casing means a tubular container for sausage products made of either natural or artificial (synthetic) material.

Central preparation facility means an approved and permitted facility or space where food is prepared, stored, and packaged.

Certification number means the unique identification number issued by the Shellfish Control Authority to each dealer for each location. Each certification number shall consist to a one-to-five-digit Arabic number preceded by the two letter State abbreviation and followed by a two-letter abbreviation for the type of activity or activities the dealer is qualified to perform in accordance with this provision of the National Shellfish Sanitation Program using the terms in the following tables:

Table A. Certifications

Acronym	*Term*
SP	Shucker Packer
RP	Repacker
SS	Shellstock Shipper
RS	Reshipper
DP	Depuration

Table B. Permits

Acronym	*Term*
PHP	Post-Harvest Processing
AQ	Aquaculture
WS	Wet Storage

CIP means cleaned in place by the circulation or flowing by mechanical means through a piping system of a detergent solution, water rinse, and sanitizing solution onto or over equipment surfaces that require cleaning, such as the method used, in part, to clean and sanitize a frozen dessert machine. It does not include the cleaning of equipment such as band saws, slicers, or mixers that are subjected to in-place manual cleaning without the use of a CIP system.

Code means chapter 9, the Food Code, of the Code of Ordinances of the City of Plano, Texas.

Code of Federal Regulations (CFR) means any citation to the CFR sequentially to Title, Part, and Section numbers, such as 40 CFR 180.194 refers to Title 40, Part 180, Section 194.

Commingle means the act of combining different lots of shellfish.

Comminuted means reduced in size by methods including chopping, flaking, grinding, or mincing, including fish or meat products that are reduced in size and restructured or reformulated such as gefilte fish, gyros, ground beef, and sausage, and a mixture of two (2) or more types

of meat that have been reduced in size and combined, such as sausages made from two (2) or more meats.

Common carrier means an individual or business that advertises to the public that it is available for hire to transport people of property, including food, in exchange for a fee.

Compliance inspection means a required additional inspection as a result of noncompliance observed during an initial or routine inspection.

Conditional employee means a potential food employee to whom a job offer is made, conditional on responses to subsequent medical questions or examinations designed to identify potential food employees who may be suffering from a disease that can be transmitted through food and done in compliance with Title 1 of the Americans with Disabilities Act of 1990.

Confirmed disease outbreak means a foodborne disease outbreak in which laboratory analysis of appropriate specimens identifies a causative agent and epidemiological analysis implicates the food as the source of the illness.

Consumer means a person who is a member of the public, takes possession of food, is not functioning in the capacity of an operator of a food establishment or food processing plant, and does not offer the food for resale.

Core item means a provision in this Code that is not designated as a priority item or a priority foundation item, including an item that usually relates to general sanitation, operational controls, sanitation standard operating procedures (SSOPs), facilities or structures, equipment design, or general maintenance.

Corrosion-resistant material means a material that maintains acceptable surface cleanability characteristics under prolonged influence of the food to be contacted, the normal use of cleaning compounds and sanitizing solutions, and other conditions of the use environment.

Cottage food production means an individual, operating out of the individual's home, who:

(1) Produces at the individual's home:

(a) A baked good that is not a time and temperature control for safety food (TCS food), as defined in § 229.661(b)(13) of Chapter 229, of Title 25, of the Texas Administrative Code (relating to Cottage Food Production Operations);

(b) Candy;

(c) Coated and uncoated nuts;

(d) Unroasted nut butters;

(e) Fruit butters;

(f) A canned jam or jelly;

(g) A fruit pie;

(h) Dehydrated fruit or vegetables, including dried beans;

(i) Popcorn and popcorn snacks;

(j) Cereal, including granola;

(k) Dry mix;

(l) Vinegar;

(m) Pickled fruit or vegetables, including beets and carrots, that are preserved in vinegar, brine, or a similar solution at an equilibrium pH value of 4.6 or less;

(n) Mustard;

(o) Roasted coffee or dry tea;

(p) A dried herb or dried-herb mix;

(q) Plant-based acidified canned goods;

(r) Fermented vegetable products, including products that are refrigerated to preserve quality;

(s) Frozen raw and uncut fruit or vegetables; or

(t) Any other food that is not a TCS food, as defined in § 229.661(b)(13) of Chapter 229, Title 25, of the Texas Administrative Code; and

(2) Has an annual gross income of fifty thousand dollars ($50,000.00) or less from the sale of food described by paragraph (1) of this definition;

(3) Sells foods produced under paragraph (1) of this definition only directly to consumers; and

(4) Delivers products to the consumer at the point of sale or another location designated by the consumer.

Counter-mounted equipment means equipment that is not portable and is designed to be mounted off the floor on a table, counter, or shelf.

Critical control point means a point or procedure in a specific food system where loss of control may result in an unacceptable health risk.

Critical limit means the maximum or minimum value to which a physical, biological, or chemical parameter must be controlled at a critical control point to minimize the risk that the identified food safety hazard may occur.

Cut leafy greens means fresh leafy greens whose leaves have been cut, shredded, sliced, chopped, or torn, including iceberg lettuce, romaine lettuce, leaf lettuce, butter lettuce, baby leaf lettuce (i.e., immature lettuce or leafy greens), escarole, endive, spring mix, spinach, cabbage, kale, arugula and chard. The term does not include herbs such as cilantro or parsley.

Dealer means a person who is authorized by a shellfish control authority for the activities of shellstock shipper, shucker-packer, repacker, reshipper, or depuration processor of molluscan shellfish according to the provisions of the national shellfish sanitation program.

Demonstration means the preparation of food as an example, sample, instruction, or for marketing purposes at an event including, but not limited to, a farmer's market, fair, restaurant food show, or other similar event.

Department means the City of Plano Environmental Health and Sustainability Department.

Disclosure means a written statement that clearly identifies the animal-derived foods which are, or can be ordered, raw, undercooked, or without otherwise being processed to eliminate pathogens, or items that contain an ingredient that is raw, undercooked, or without otherwise being processed to eliminate pathogens.

Drinking water means water traditionally known as "potable water" and meets the standards set forth in 30 TAC Chapter 290, Subchapter F (relating to Drinking Water Standards Governing Drinking Water Quality and Reporting Requirements for Public Water Systems). It includes the term "water" except where the term used connotes that the water is not potable, such as "boiler water," "mop water," "rainwater," wastewater," and "non-drinking water."

Dry storage area means a room or area designated for the storage of packaged or containerized bulk food that is not time/temperature control for safety food and dry goods such as single-service items.

Easily cleanable means a characteristic of a surface that allows effective removal of soil by normal cleaning methods, is dependent on the material, design, construction, and installation of the surface, and varies with the likelihood of the surface's role in introducing pathogenic or toxigenic agents or other contaminants into food based on the surface's approved placement, purpose, and use. This includes a tiered application of the criteria that qualify the surface as easily cleanable to different situations in which varying degrees of cleanability are required such as the appropriateness of stainless steel for a food preparation surface as opposed to the lack of need for stainless steel to be used for floors or for tables used for consumer dining, or the need for a different degree of cleanability for a utilitarian attachment or accessory in the kitchen as opposed to a decorative attachment or accessory in the consumer dining area.

Easily movable means:

(1) Portable, mounted on casters, gliders, or rollers, or provided with a mechanical means to safely tilt a unit of equipment for cleaning; and

(2) Having no utility connection, a utility connection that disconnects quickly, or a flexible utility connection line of sufficient length to allow the equipment to be moved for cleaning of the equipment and adjacent area.

Egg means the shell egg of avian species such as chicken, duck, goose, guinea, quail, ratites, or turkey. The term does not include a balut, the egg of reptile species such as alligator, or an egg product.

Egg product means all, or a portion of, the contents found inside eggs separated from the shell and pasteurized in a food processing plant, with or without added ingredients, intended for human consumption, such as dried, frozen or liquid eggs. The term does not include food which contains eggs only in a relatively small proportion such as cake mixes.

Electric Code means the Electric Code as adopted and amended by the City of Plano.

Employee means the permit holder, person in charge, food employee, person having supervisory or management duties, person on the payroll, family member, volunteer, person performing work under contractual agreement, or other person working in a food establishment.

EPA means the U.S. Environmental Protection Agency.

Equipment means an article that is used in the operation of a food establishment such as a freezer, grinder, hood, ice maker, meat block, mixer, oven, reach-in refrigerator, scale, sink, slicer, stove, table, temperature measuring device for ambient air, vending machine, or warewashing machine. Equipment does not include apparatuses used for handling or storing large quantities of packaged foods that are received from a supplier in a cased or overwrapped lot, such as hand trucks, forklifts, dollies, pallets, racks, and skids.

Event means a unique public gathering at which food products are served and for which the department grants permission, whether by permit, license, or another official written document.

Exclude means to prevent a person from working as an employee in a food establishment or entering a food establishment as an employee.

Exotic animal means a member of a species of game animals not indigenous to the State of Texas, including axis deer, nilgai antelope, red sheep, or other cloven-hoofed ruminant animals.

Farmer's market means a farmer's market as defined in Texas Administrative Code § 229.702.

FDA means the U.S. Food and Drug Administration.

Fire Code means the Fire Code as adopted and amended by the City of Plano.

Fish means fresh or saltwater finfish, Crustaceans, and other forms of aquatic life (including alligator, frog, aquatic turtle, jellyfish, sea cucumber, and sea urchin and the roe of such animals) other than birds or mammals, and all mollusks, if such animal life is intended for human consumption. This includes an edible human food product derived in whole or in part from fish, including fish that has been processed in any manner.

Food means a raw, cooked, or processed edible substance, ice, beverage, or ingredient used or intended for use or for sale in whole or in part for human consumption, or chewing gum.

Foodborne disease outbreak means the occurrence of two (2) or more cases of a similar illness resulting from the ingestion of a common food.

Food-contact surface means any one of the following:

(1) A surface of equipment or a utensil with which food normally comes into contact.

(2) A surface of equipment or a utensil from which food may drain, drip, or splash into a food, or onto a surface normally in contact with food.

Food employee means an individual working with unpackaged food, food equipment or utensils, or food-contact surfaces.

Flood establishment means an operation that:

(1) Stores, prepares, packages, serves, or vends food directly to the consumer, or

otherwise provides food for human consumption, such as a restaurant, retail food store, satellite or catered feeding location, catering operation if the operation provides food directly to a consumer or to a conveyance used to transport people, market, vending machine location, self-service food market, conveyance used to transport people, institution, or food bank; and

(2) Relinquishes possession of food to a consumer directly, or indirectly through a delivery service, such as home delivery of grocery orders or restaurant takeout orders, or delivery service that is provided by common carriers.

A food establishment includes an element of the operation, such as a transportation vehicle or a central preparation facility that supplies a vending location or satellite feeding location unless the vending or feeding location is permitted by the city, and an operation that is conducted in a mobile, stationary, temporary, or permanent facility or location and where consumption is on or off the premises regardless if there is a charge for the food. A food establishment does not include an establishment that offers only prepackaged foods that are not TCS foods, a produce stand that only offers whole, uncut fresh fruits and vegetables, a food processing plant (including one that is located on the premises of a food establishment), a cottage food production operation, a bed and breakfast limited as defined in this code, or a private home that receives catered or home-delivered food.

Food processing plant means a commercial operation that manufactures, packages, labels, or stores food for human consumption, and provides food for sale or distribution to other business entities such as food processing plants or food establishments. Food processing plant does not include a food establishment.

Game animals means wild animals that are indigenous to Texas and not amenable to the Texas Meat and Poultry Inspection Act, V.T.C.A. Health and Safety Code, Ch. 433, for which the hunter must obtain a hunting license from the Texas Parks and Wildlife Department before hunting animals, such as white-tailed deer, mule deer, prong-horn antelope, and big horn sheep.

General use pesticide means a pesticide that is not classified by the U.S. Environmental Protection Agency for restricted use such as specified in 40 CFR § 152.175 or is not limited to use by or under the direct supervision of a certified applicator licensed by the Texas Department of Agriculture or by the Texas Structural Pest Control Service as applicable.

Grade A standards means the requirements of the United States Public Health Service/FDA "Grade A Pasteurized Milk Ordinance" with which certain fluid and dry milk and milk products comply.

Grease trap means a grease trap or interceptor as defined in the city's Plumbing Code, as amended.

Group residence means a private or public housing corporation or institutional facility that provides living quarters and meals. The term includes a domicile for unrelated persons, such as a retirement home, correctional facility, or a long-term care facility.

HACCP plan means a written document that delineates the formal procedures for following the hazard analysis and critical control point principles developed by the national advisory committee on microbiological criteria for foods.

Handwashing sink means a lavatory, a basin or vessel for washing, a wash basin, or a plumbing fixture especially placed for use in personal hygiene and designed for the washing of the hands, including an automatic handwashing facility.

Hazard means a biological, chemical, or physical property that may cause an unacceptable consumer health risk.

Health practitioner means a physician licensed to practice medicine, or if allowed by law, a nurse practitioner, physician assistant, or similar medical professional.

Hermetically sealed container means a container that is designed and intended to be

secure against the entry of microorganisms and, in the case of low acid canned foods, to maintain the commercial sterility of its contents after processing.

Highly susceptible population means persons who are more likely than other people in the general population to experience foodborne disease because they are:

(1) Immunocompromised; preschool age children, or older adults; and

(2) Obtaining food at a facility that provides services such as custodial care, health care, or assisted living, such as a child or adult day care center, kidney dialysis center, hospital or nursing home, or nutritional or socialization services such as a senior center.

Imminent health hazard means a significant threat or danger to health that is considered to exist when there is evidence sufficient to show that a product, practice, circumstance, or event creates a situation that requires immediate correction or cessation of operation to prevent injury based on the number of potential injuries, and the nature, severity, and duration of the anticipated injury.

Injected means manipulating meat to which a solution has been introduced into its interior by processes that are referred to as "injecting," "pump marinating," or "stitch pumping".

In-shell product means non-living, processed shellfish with one (1) or both shells present.

Intact meat means a cut of whole muscle(s) meat that has not undergone comminution, mechanical tenderization, vacuum tumbling with solutions, reconstruction, cubing or pounding.

Juice means the aqueous liquid expressed or extracted from one (1) or more fruits or vegetables, purees of the edible portions of one (1) or more fruits or vegetables, or any concentrates of such liquid or puree. The term does not include, for purposes of HACCP, liquids, purees, or concentrates that are not used as beverages or ingredients of beverages.

Kitchenware means food preparation and storage utensils.

Law means applicable local, state, and federal statutes, regulations, and ordinances.

Light in color means a surface which has a light reflective value (LRV) of 60 to 100.

Linens means fabric items such as cloth hampers, cloth napkins, table cloths, wiping cloths, and work garments including cloth gloves.

Livestock means cattle, bison, sheep, swine, goats, horses, mules, other equine, poultry, domesticated rabbits, exotic animals, or domesticated game birds.

Major food allergen means: (1) milk, egg, fish (such as bass, flounder, cod, and including Crustacean shellfish such as crab, lobster, or shrimp), tree nuts (such as almonds, pecans, or walnuts), wheat, peanuts, soybeans, and sesame, or (2) a food ingredient that contains protein derived from a food, as specified in this definition. This term does not include any highly refined oil derived from a food specified in this definition and any ingredient derived from such highly refined oil, or any ingredient that is exempt under the petition or notification process specified in the Food Allergen Labeling and Consumer Protection Act of 2004 (Public Law 108-282).

Meat means the flesh of animals used as food including the dressed flesh of cattle, swine, sheep, or goats and other edible animals, except fish, poultry, and wild game animals as specified under sections 9-14(g)(1)c. and 9-14(g)(1)d.

Mechanical Code means the Mechanical Code, as adopted and amended by the City of Plano.

Mechanically tenderized means manipulating meat by piercing with a set of needles, pins, blades or any mechanical device, which breaks up muscle fiber and tough connective tissue, to increase tenderness. This includes injection, scoring, and processes which may be referred to as "blade tenderizing," "jaccarding," "pinning," or "needling."

mg/L means milligrams per liter which is the metric equivalent of parts per million (ppm).

Mobile food establishment (MFE) means a vehicle-mounted, self or otherwise propelled, self-

contained food service operation designed to be readily movable (including catering trucks, trailers, push carts, and roadside vendors) and used to store, prepare, display, serve, or sell food. An MFE must completely retain its mobility at all times. This term does not include a stand or booth. A roadside food vendor is classified as an MFE.

Molluscan shellfish means any edible species of fresh or frozen oysters, clams, mussels, and scallops or edible portions thereof, except when the scallop product consists only of the shucked adductor muscle. Molluscan shellfish includes shellstock, shucked shellfish and in-shell products.

Non-continuous cooking means the cooking of food in a food establishment using a process in which the initial heating of the food is intentionally halted so that it may be cooled and held for complete cooking at a later time prior to sale or service. This term does not include cooking procedures that only involve temporarily interrupting or slowing an otherwise continuous cooking process.

Outfitter operation means any operation, such as trail rides, bus tours, harbor cruises, or river raft trips, in which food is offered to patrons and which operates out of a central preparation location or food establishment.

Packaged means bottled, canned, cartoned, bagged, or wrapped, whether packaged in a food establishment or a food processing plant. This term does not include wrapped or placed in a carry-out container to protect the food during service or delivery to the consumer, by a food employee, upon consumer request.

Permit means the document issued by the City of Plano authorizing a person to operate a food establishment.

Permit holder means the entity that is legally responsible for the operation of the food establishment such as the owner, the owner's agent, or other person, and possesses a valid permit to operate a food establishment.

Person means an individual, association, corporation, partnership, or other entity with ownership, care, custody, or control over a food establishment, including, but not limited to the permit or license holder, employee, food employee, or person-in-charge.

Person-in-charge means the individual present at a food establishment who is responsible for the operation at the time of inspection.

Personal care items mean items or substances that may be poisonous, toxic, or a source of contamination and are used to maintain or enhance a person's health, hygiene, or appearance, including items such as medicines, first aid supplies, and other items such as cosmetics, and toiletries such as toothpaste and mouthwash.

pH means the symbol for the negative logarithm of the hydrogen ion concentration, which is a measure of the degree of acidity or alkalinity of a solution. Values between 0 and 7 indicate acidity and values between 7 and 14 indicate alkalinity. The value for pure distilled water is 7, which is considered neutral.

Physical facilities means the structure and interior surfaces of a food establishment including accessories such as soap and towel dispensers and attachments such as light fixtures and heating or air conditioning system vents.

Plumbing Code means the Plumbing Code, as adopted and amended by the City of Plano.

Plumbing fixture means a receptacle or device that is permanently or temporarily connected to the water distribution system of the premises and demands a supply of water from the system or receptacle or device that discharges used water, waste materials, or sewage directly or indirectly to the drainage system of the premises.

Plumbing system means the water supply and distribution pipes, plumbing fixtures and traps, soil, waste, and vent pipes, sanitary and storm sewers and building drains, including their respective connections, devices, and appurtenances within the premises, and water-treating equipment.

Poisonous or toxic materials means substances that are not intended for ingestion and are included in five (5) categories:

(1) Cleaners and sanitizers, which include cleaning and sanitizing agents and agents such as caustics, acids, drying agents, polishes, and other chemicals.

(2) Pesticides, except sanitizers, which include substances such as insecticides and rodenticides.

(3) Substances necessary for the operation and maintenance of the establishment such as nonfood grade lubricants and personal care items that may be deleterious to health.

(4) Substances that are not necessary for the operation and maintenance of the establishment and are on the premises for retail sale, such as petroleum products and paints.

(5) Restricted use pesticide means a pesticide product that contains the active ingredients specified in 40 CFR 152.175 Pesticides classified for restricted use, and that is limited to use by or under the direct supervision of a certified applicator.

Poultry means any domesticated bird (chickens, turkeys, ducks, geese, guineas, ratites, or squabs), whether live or dead, as defined in 9 CFR 381.1 poultry products inspection regulations definitions, poultry, and any migratory waterfowl or game bird, pheasant, partridge, quail, grouse, or pigeon, whether live or dead, as defined in 9 CFR 362.1 voluntary poultry inspection regulations, definitions.

Potable means water suitable or safe for human consumption.

Premises means:

(1) The physical facility, its contents, and the contiguous land or property under the control of the permit holder; or

(2) The physical facility, its contents, and the land or property not described in subparagraph (1) of this definition if its facilities and contents are under the control of the permit holder and may impact food establishment personnel, facilities, or operations, and a food establishment is only one (1) component of a larger operation such as a health care facility, hotel, motel, school, recreational camp, or prison.

Primal cut means a basic major cut into which carcasses and sides of meat are separated, such as a beef round, pork loin, lamb flank, or veal breast.

Priority item means a provision in this Code whose application contributes directly to the elimination, prevention or reduction to an acceptable level, hazards associated with foodborne illness or injury and there is no other provision that more directly controls the hazard, including items with a quantifiable measure to show control of hazards such as cooking, reheating, cooling, handwashing, and an item that is denoted in this Code with a superscript P-^{P}.

Priority foundation item means a provision in this Code whose application supports, facilitates, or enables one (1) or more priority items, including an item that requires the purposeful incorporation of specific actions, equipment or procedures by industry management to attain control of risk factors that contribute to foodborne illness or injury such as personnel training, infrastructure or necessary equipment, HACCP plans, documentation or record keeping, and labeling, and an item that is denoted in this Code with a superscript Pf-^{Pf}.

Private event means an event at which food and/or beverages are offered to participants, and where entry to the event is limited to private invitation from the event organization, group, club, association, or institution.

Private water system means a drinking water system that is not connected to a public water system and not regulated by the Texas Commission on Environmental Quality.

Produce means farm-produced crops intended for human consumption, including, but not limited to, whole vegetables, plants, nuts in the shell, honey and fruit.

Production kitchen means a facility that engages in the production of edible food products that are given or sold to the public either on-site or at another location(s). It may be operated by the owner, or rented, leased, or contracted by another individual(s), organization(s), or corporation(s) who will actually produce the food products.

Public event means an event at which food and/or beverages are offered and that is advertised to the general public by any means, or which requires a special event permit as defined in chapter 11 of City of Plano, Code of Ordinances, as amended.

Public water system means a drinking water system that complies with 30 TAC §§ 290.101—290.122 (relating to Drinking Water Standards Governing Drinking Water Quality and Reporting Requirements for Public Water Systems).

Pushcart means a non-self-propelled MFU limited to serving foods requiring a limited amount of preparation as authorized by the City of Plano and readily movable by one (1) or two (2) persons and requiring the support of a central preparation facility. A pushcart is classified as an MFU. This term does not include non-self-propelled units owned and operated within a retail food store.

Ratite means a flightless bird such as an emu, ostrich, or rhea.

Ready to eat food means food that: (1) is in a form that is edible without additional preparation to achieve food safety, as specified under one of the following: Sections 9-25(a)(1) or (2), section 9-25(b), or section 9-26(a), or as specified in section 9-25(a)(3); (2) is a raw or partially cooked animal food and the consumer is advised as specified in sections 9-25(a)(4)a. and c.; or (3) is prepared in accordance with a variance that is granted as specified in section 9-25(a)(4)d. and may receive additional preparation for palatability or aesthetic, epicurean, gastronomic, or culinary purposes. This term includes:

(1) Raw animal food that is cooked as specified under sections 9-25(a) or (b), or frozen as specified under section 9-26(a).

(2) Raw fruits and vegetables that are washed as specified section 9-19(e).

(3) Plant foods that are cooked for hot holding, as specified under section 9-25(c).

(4) All time/temperature control for safety food that is cooked to the temperature and time required for the specific food under section 9-25 and cooled as specified under section 9-29(d).

(5) Plant food for which further washing, cooking, or other processing is not required for food safety, and from which rinds, peels, husks, or shells, if naturally present are removed.

(6) Substances derived from plants such as spices, seasonings, and sugar.

(7) A bakery item such as bread, cakes, pies, fillings, or icing for which further cooking is not required for food safety.

(8) The following products that are produced in accordance with USDA guidelines and that have received a lethality treatment for pathogens: dry, fermented sausages, such as dry salami or pepperoni; salt-cured meat and poultry products, such as prosciutto ham, country cured ham, and parma ham; and dried meat and poultry products, such as jerky or beef sticks.

(9) Foods manufactured as specified in 21 CFR Part 113, Thermally Processed Low-Acid Foods Packaged in Hermetically Sealed Containers.

Ready to eat food does not include commercially packaged food that bears a manufacturer's cooking instruction or food for which the manufacturer has provided information that it has not been processed to control pathogens.

Reduced oxygen packaging means the reduction of the amount of oxygen in a package by removing oxygen, displacing oxygen and replacing it with another gas or combination of gases, or otherwise controlling the oxygen content to a level below that normally found in the atmosphere (approximately twenty-one (21) percent at sea level), and a process as specified in this definition that involves a food for which the hazards Clostridium botulinum or Listeria monocytogenes require control in the final packaged form. This term includes the following:

(1) Vacuum packaging, in which air is removed from a package of food and the package is hermetically sealed so that a vacuum remains inside the package.

(2) Modified atmosphere packaging, in which the atmosphere of a package of food is modified so that its composition is different from air but the atmosphere may change over time due to the permeability of the packaging material or the respiration of the food, modified atmosphere packaging includes reduction in the proportion of oxygen, total replacement of oxygen, or an increase in the proportion of other gases such as carbon dioxide or nitrogen.

(3) Controlled atmosphere packaging, in which the atmosphere of a package of food is modified so that until the package is opened, its composition is different from air, and continuous control of that atmosphere is maintained, such as by using oxygen scavengers or a combination of total replacement of oxygen, nonrespiring food, and impermeable packaging material.

(4) Cook chill packaging, in which cooked food is hot filled into impermeable bags that are then sealed or crimped closed. The bagged food is rapidly chilled and refrigerated at temperatures that inhibit the growth of psychrotrophic pathogens.

(5) Sous vide packaging, in which raw or partially cooked food is vacuum packaged in an impermeable bag, cooked in the bag, rapidly chilled, and refrigerated at temperatures that inhibit the growth of psychrotrophic pathogens.

Refuse means solid waste not carried by water through the sewage system.

Regulatory authority means the department unless the content specifies otherwise.

Reminder means a written statement concerning the health risk of consuming animal foods raw, undercooked, or without otherwise being processed to eliminate pathogens.

Re-service means the transfer of food that is unused and returned by a consumer after being served or sold and in the possession of the consumer, to another person.

Restrict means to limit the activities of a food employee so that there is no risk of transmitting a disease that is transmissible through food and the food employee does not work with exposed food, clean equipment, utensils, linens, or unwrapped single-service or single-use articles.

Restricted egg means any check, dirty egg, incubator reject, inedible, leaker, or loss as defined in 9 CFR 590.

Restricted use pesticide means a pesticide product that contains the active ingredients specified in 40 CFR 152.175 Pesticides classified for restricted use, and that is limited to use by or under the direct supervision of a certified applicator.

Risk means the likelihood that an adverse health effect will occur within a population as a result of a hazard in a food.

Roadside food vendor means a person who operates a mobile retail food store from a temporary location adjacent to a public road or highway. Food is not prepared or processed by a roadside food vendor. A roadside food vendor is classified as an MFE.

Safe material means an article manufactured from or composed of materials that may not reasonably be expected to result, directly or indirectly, in article becoming a component of or otherwise affecting the characteristics of any food, an additive that is used as specified in the V.T.C.A. Health and Safety Code, Ch. 431, or other materials that are not additives and that are used in conformity with applicable regulations of the U.S. Food and Drug Administration.

Sampling means the preparation of food as an example, instruction, or for marketing purposes at an event including, but not limited to, a farmer's market, fair, restaurant food show, or other similar event that is served, sold, or otherwise offered for human consumption.

Sanitization means the application of cumulative heat or chemicals on cleaned food-contact surfaces that, when evaluated for efficacy, is sufficient to yield a reduction of 5 logs, which is

equal to a 99.999 percent reduction, of representative disease microorganisms of public health importance.

Sealed means free of cracks or other openings that allow the entry or passage of moisture.

Self-service food market means a market that is unstaffed and offers prepackaged non-TCS food and prepackaged refrigerated or frozen TCS food that is stored in equipment that complies with section 9-62 (relating to self-service food markets).

Service animal means a canine that is individually trained to do work or perform tasks for the benefit of an individual with a disability, including a physical, sensory, psychiatric, intellectual, or other mental disability as specified in V.T.C.A. Health and Safety Code, § 437.023.

Servicing area means an operating base location to which a mobile food establishment or transportation vehicle returns regularly for such things as vehicle and equipment cleaning, discharging liquid or solid wastes, refilling water tanks and ice bins, and boarding food.

Sewage means liquid waste containing animal or vegetable matter in suspension or solution and may include liquids containing chemicals in solution.

Shellfish control authority means a state, federal, foreign, tribal, or other government entity legally responsible for administering a program that includes certification of molluscan shellfish harvesters and dealers for interstate commerce.

Shellstock means live, in-shell molluscan shellfish in the shell.

Shiga toxin-producing Escherichia coli (STEC) means any E. coli capable of producing Shiga toxins (also called verocytotoxins). STEC infections can be asymptomatic or may result in a spectrum of illness ranging from mild non-bloody diarrhea, to hemorrhagic colitis (i.e., bloody diarrhea), to hemolytic uremic syndrome (HUS-a type of kidney failure). Examples of serotypes of STEC include: E. coli O157:H7; E. coli O157:NM; E. coli O26:H11; E. coli 0145:NM; E. coli O103:H2; and E. coli O111:NM. STEC are sometimes referred to as VTEC (verocytotoxigenic E. coli) or as EHEC (Enterohemorrhagic E. coli). EHEC are a subset of STEC which can cause hemorrhagic colitis or HUS.

Shucked shellfish means molluscan shellfish that have both shells removed.

Single-service articles means tableware, carry-out utensils, and other items such as bags, containers, placemats, stirrers, straws, toothpicks, and wrappers that are designed and constructed for one time-one person use, after which they are intended for discard.

Single-use articles means utensils and bulk food containers designed and constructed to be used once and discarded. This term includes items such as wax paper, butcher paper, plastic wrap, formed aluminum food containers, jars, plastic tubs or buckets, bread wrappers, pickle barrels, ketchup bottles, and number 10 cans which do not meet the materials, durability, strength, and cleanability specifications sections 9-113, 9-123, and 9-125 for multiuse utensils.

Slacking means the process of moderating the temperature of a food such as allowing a food to gradually increase from a temperature of -23°C (-10°F) to -4°C (25°F) in preparation for deep-fat frying or to facilitate even heat penetration during the cooking of previously block-frozen food such as shrimp.

Smooth means a food-contact surface having a surface free of pits and inclusions with a cleanability equal to or exceeding that of (100 grit) number 3 stainless steel, a nonfood-contact surface of equipment having a surface equal to that of commercial grade hot-rolled steel free of visible scale, and a floor, wall, or ceiling having an even or level surface with no roughness or projections that render it difficult to clean.

Tableware means eating, drinking, and serving utensils for table use such as flatware including forks, knives, and spoons; hollowware including bowls, cups, serving dishes, and tumblers; and plates.

Temperature measuring device means a thermometer, thermocouple, thermistor, or other device that indicates the temperature of food, air, or water.

Temporary food establishment means a food establishment that operates for a period of no more than fourteen (14) consecutive days in conjunction with a single event or celebration.

Time/Temperature Control for Safety Food (formerly "potentially hazardous food" (PHF)) means a food that requires time/temperature control for safety (TCS) to limit pathogenic microorganism growth or toxin formation, including an animal food that is raw or heat-treated, a plant food that is heat-treated or consists of raw seed sprouts, cut melons, cut leafy greens, cut tomatoes or mixtures of cut tomatoes that are not modified in a way so that they are unable to support pathogenic microorganism growth or toxin formation, or garlic-in-oil mixtures that are not modified in a way so that they are unable to support pathogenic microorganism growth or toxin formation, and except as specified in this definition, a food that because of the interaction of it's A_W and pH values is designated as Product Assessment Required (PA) in Table A or B of this definition below. This term does not include:

(1) An air-cooled hard-boiled egg with shell intact, or an egg with shell intact that is not hard-boiled, but has been pasteurized to destroy all viable salmonellae.

(2) A food in an unopened hermetically sealed container that is commercially processed to achieve and maintain commercial sterility under conditions of non-refrigerated storage and distribution.

(3) A food that because of its pH or A_w value, or interaction of A_w and pH values, is designated as a non-TCS food in Table A or B of this definition.

(4) A food that is designated as Product Assessment Required (PA) in Table A or B of this definition and has undergone a Product Assessment showing that the growth or toxin formation of pathogenic microorganisms that are reasonably likely to occur in that food is precluded due to: (a) intrinsic factors including added or natural characteristics of the food such as preservatives, antimicrobials, humectants, acidulants, or nutrients, (b) extrinsic factors including environmental or operational factors that affect the food such as packaging, modified atmosphere such as reduced oxygen packaging, shelf life and use, or temperature range of storage and use, or (c) a combination of intrinsic and extrinsic factors.

(5) A food that does not support the growth or toxin formation of pathogenic microorganisms in accordance with one of the paragraphs (1)—(4) of this definition even though the food may contain a pathogenic microorganism or chemical or physical contaminant at a level sufficient to cause illness or injury.

Table A. Interaction of pH and AW for control of spores in food heat-treated to destroy vegetative cells and subsequently packaged

A_w Values	pH 4.6 or LESS	pH:>4.6-5.6	pH: >5.6
≤0.92	non-TCS food*	non-TCS food	non-TCS food
>0.92—0.95	non-TCS	non-TCS food	PA**
>0.95	non-TCS food	PA	PA

* TCS food means Time/Temperature Control for Safety Food.

** PA means Product Assessment required.

Table B. Interaction of pH and A_W for control of vegetative cells and spores in food not heat-treated or heat-treated but not packaged

A_w VALUES	pH: <4.2	pH: 4.2-4.6	pH: >4.6-5.0	pH: >5.0
<0.88	non-TCS food*	non-TCS food	non-TCS food	non-TCS food
0.88—0.90	non-TCS food	non-TCS food	non-TCS food	PA**
>0.90—0.92	non-TCS food	non-TCS food	PA	PA
>0.92	non-TCS food	PA	PA	PA

* TCS food means Time/Temperature Control for Safety Food

** PA means Product Assessment required

Tobacco product means a tobacco product as defined in the Federal Food, Drug and Cosmetic Act § 201(rr) (21 U.S.C. 321(rr)).

USDA means the U.S. Department of Agriculture.

Utensil means a food-contact implement or container used in the storage, preparation, transportation, dispensing, sale, or service of food, such as kitchenware or tableware that is multiuse, single-service, or single-use; gloves used in contact with food; temperature sensing probes of food temperature measuring devices; and probe-type price or identification tags used in contact with food.

Variance means a written document issued by the Department that authorizes a modification or waiver of one (1) or more requirements of this Code if, in the opinion of the department, a health hazard or nuisance will not result from the modification or waiver.

Vending machine means a self-service device that, upon insertion of a coin, paper currency, token, card, or key, or by electronic transaction or optional manual operation, dispenses unit servings of food in bulk or in packages without the necessity of replenishing the device between each vending operation.

Vending machine location means the room, enclosure, space, or area where one (1) or more vending machines are installed and operated and that includes the storage areas and areas on the premises that are used to service and maintain the vending machines. This term does not include a self-service food market.

Warewashing means the cleaning and sanitizing of utensils and food-contact surfaces of equipment.

Whole-muscle, intact beef means whole muscle beef that is not injected, mechanically tenderized, reconstructed, or scored and marinated, from which beefsteaks may be cut.
(Ord. No. 2025-4-2, § 1, 4-14-25)

ARTICLE II. MANAGEMENT AND PERSONNEL

Sec. 9-6. Supervision.

(a) *Responsibility.*

(1) Except as specified in paragraph (2) or (3) below, the permit holder shall be the person in charge or shall designate a person in charge and shall ensure that a person in charge is present at the food establishment during all hours of operation.[Pf]

(2) In a food establishment with two (2) or more separately permitted departments that are the legal responsibility of the same permit holder and that are located on the same premises, the permit holder may, during specific time periods when food is not being prepared, packaged, or served, designate a single person in charge who is present on the premises during all hours of operation, and who is responsible for each separately permitted food establishment on the premises.[Pf]

(3) This subsection does not apply to certain types of food establishments deemed by the department to pose minimal risk of causing, or contributing to, foodborne illness based on the nature of the operation and extent of the food preparation.[Pf]

(b) *Knowledge.*

(1) *General knowledge.* Based on the risks inherent to the food operation, during inspections and upon request, the person in charge shall demonstrate to the department knowledge of foodborne disease prevention, application of the hazard analysis and critical control point principles, and the requirements of this Code. The person in charge shall demonstrate this knowledge by:

a. Complying with this Code by having no violations of priority items during the current inspection;[Pf]

b. Being a certified food protection manager who has shown proficiency

of required information through passing a test that is part of an accredited program;[Pf] or

c. Responding correctly to the inspector's questions as they relate to the specific food operation. The areas of knowledge include:

(i) Describing the relationship between the prevention of foodborne disease and the personal hygiene of a food employee.[Pf]

(ii) Explaining the responsibility of the person in charge for preventing the transmission of foodborne disease by a food employee who has a disease or medical condition that may cause foodborne disease.[Pf]

(iii) Describing the symptoms associated with the diseases that are transmissible through food.[Pf]

(iv) Explaining the significance of the relationship between maintaining the time and temperature of time/temperature control for safety food and the prevention of foodborne illness.[Pf]

(v) Explaining the hazards involved in the consumption of raw or undercooked meat, poultry, eggs, and fish.[Pf]

(vi) Stating the required food temperatures and times for safe cooking of time/temperature control for safety food including meat, poultry, eggs, and fish.[Pf]

(vii) Stating the required temperatures and times for the safe refrigerated storage, hot holding, cooling, and reheating of time/temperature control for safety food.[Pf]

(viii) Describing the relationship between the prevention of foodborne illness and the management and control of the following:

(aa) Cross contamination.[Pf]

(bb) Hand contact with ready-to-eat foods.[Pf]

(cc) Handwashing.[Pf]

(dd) Maintaining the food establishment in a clean condition and in good repair.[Pf]

(ix) Describing foods identified as major food allergens and the symptoms that a major food allergen could cause in a sensitive individual who has an allergic reaction.[Pf]

(x) Explaining the relationship between food safety and providing equipment that is sufficient in number and capacity, and properly designed, constructed, located, installed, operated, maintained, and cleaned.[Pf]

(xi) Explaining correct procedures for cleaning and sanitizing utensils and food-contact surfaces of equipment.[Pf]

(xii) Identifying the source of water used and measures taken to ensure that it remains protected from contamination such as providing protection from backflow and precluding the creation of cross connections.[Pf]

(xiii) Identifying poisonous or toxic materials in the food establishment and the procedures necessary to ensure that they are safely stored, dispensed, used, and disposed of according to law.[Pf]

(xiv) Identifying critical control points in the operation from purchasing through sale or service that when not controlled may contribute to the transmission of foodborne illness and explaining steps taken to ensure that the points are controlled in accordance with the requirements of this Code.[Pf]

(xv) Explaining the details of how the person in charge and food employees comply with the HACCP plan if a plan is required by the law, this Code, or an agreement between the regulatory authority and the food establishment.[Pf]

(xvi) Explaining the responsibilities, rights, and authorities assigned by this code to the food employee, conditional employee, person in charge, and regulatory authority.[Pf]

(xvii) Explaining how the person in charge, food employees, and conditional employees comply with reporting responsibilities and exclusion or restriction of food employee.[Pf]

(2) *Certified food protection manager.* Except as provided in this paragraph, the person in charge shall be a certified food protection manager who has shown proficiency of required information through passing a test that is part of an accredited program and shall be present at the food establishment during all hours of operation.[Pf] This section does not apply to certain types of food establishments deemed by the Department to pose minimal risk of causing, or contributing to, foodborne illness based on the nature of the operation and extent of food preparation, including but not limited to:

a. Establishments that handle only prepackaged food and do not package food.

b. Establishments that do not prepare or handle exposed Time/Temperature Control for Safety (TCS).

c. Temporary food establishments.

(3) *Food handlers training.* All food employees, except for the certified food protection manager, shall successfully complete an accredited food handler training course within thirty (30) days of employment.[Pf] This requirement does not apply to temporary food establishments.

(4) *Posting of certificates.* The original food protection manager certificate must be posted in the food establishment using a location conspicuous to consumers. The food establishment must maintain, on the premises, a certificate of completion of the food handler training course for each food employee. Copies of certificates must be made available to the Department upon request.

(c) *Duties.*

(1) *Person in charge.* The person in charge shall ensure that:

a. Food establishment operations are not conducted in a private home or in a room used as living or sleeping quarters as specified under section 9-51(b)(11);[Pf]

b. Persons unnecessary to the food establishment operation are not allowed in the food preparation, food storage, or warewashing areas, except that brief visits and tours may be authorized by the person in charge if steps are taken to ensure that exposed food; clean equipment, utensils, and linens; and unwrapped single-service and single-use articles are protected from contamination;[Pf]

c. Employees and other persons such as delivery and maintenance persons and pesticide applicators entering the food preparation, food storage, and warewashing areas comply with this Code;[Pf]

d. Employees are effectively cleaning their hands, by routinely monitoring the employees' handwashing;[Pf]

2. Employees are visibly observing foods as they are received to determine that they are from approved sources, delivered at the required temperatures, protected from contamination, unadultered, and accurately presented, by routinely monitoring the employees' observations and periodically evaluating foods upon their receipt;[Pf]

f. Employees are verifying that foods delivered to the food establishment during non-operating hours are from approved sources and are placed into appropriate storage locations such that they are maintained at the required temperatures, protected from contamination, unadulterated, and accurately presented;[Pf]

g. Employees are properly cooking time/temperature control for safety food, being particularly careful in cooking those foods known to cause severe foodborne illness and death, such as eggs and comminuted meats, through daily oversight of the employees' routine monitoring of the cooking temperatures using appropriate temperature measuring devices properly scaled and calibrated as specified under sections 9-37(c)(1) and 9-40(b)(1)b.;[Pf]

h. Employees are using proper methods to rapidly cool time/temperature control for safety foods that are not held hot or are not for consumption within four (4) hours, through daily oversight of the employees' routine monitoring of food temperatures during cooling;[Pf]

i. Employees are properly maintaining the temperatures of time/temperature control for safety foods during hot and cold holding through daily oversight of the employees' routine monitoring of food temperatures;[Pf]

j. Employees are properly maintaining the temperature of time/temperature control for safety foods during thawing through daily oversight of the employee's routine monitoring of food temperatures;[Pf]

k. Consumers who order raw or partially cooked ready-to-eat foods of animal origin are informed as specified under section 9-33(a) that the food is not cooked sufficiently to ensure its safety;[Pf]

l. Employees are properly sanitizing cleaned multiuse equipment and utensils before they are reused, through routine monitoring of solution temperature and exposure time for hot water sanitizing, and chemical concentration, pH, temperature, and exposure time for chemical sanitizing;[Pf]

m. Consumers are notified that clean tableware is to be used when they return to self-service areas such as salad bars and buffets as specified under section 9-21(f);[Pf]

n. Except when approval is obtained from the regulatory authority as specified in section 9-18(a)(5), employees are preventing cross contamination of ready-to-eat food with bare hands by properly using suitable utensils such as deli tissue, spatulas, tongs, single-use gloves, or dispensing equipment;[Pf]

o. Employees are properly trained in food safety, including food allergy awareness, as it relates to their assigned duties. Food allergy awareness includes describing foods identified as major allergens and the symptoms that a major food allergen could cause in a sensitive individual who has an allergic reaction;[Pf]

p. Food employees and conditional employees are informed in a verifiable manner of their responsibility to report in accordance with law, to the person in charge, information about their health and activities as they relate to diseases that are transmissible through food, as specified under section 9-7(a);[Pf] and

q. Written procedures and plans, where specified by this Code and as developed by the food establishment, are maintained and implemented as required.[Pf]

(Ord. No. 2025-4-2, § I, 4-14-25)

Sec. 9-7. Employee health.

(a) *Responsibility of permit holder, person in charge, and conditional employees.*

(1) The permit holder shall require food employees and conditional employees to report to the person in charge information about their health and activities as they relate to diseases that are transmissible through food. A food employee or conditional employee shall report the information in a manner that allows the person in charge to reduce the risk of foodborne disease transmission, including providing necessary additional information, such as the date of onset of symptoms and an illness, or of a diagnosis without symptoms, if the food employee or conditional employee:

a. Has any of the following symptoms (reportable symptoms):

(i) Vomiting.[P]

(ii) Diarrhea.[P]

(iii) Jaundice.[P]

(iv) Sore throat with fever.[P]

(v) A lesion containing pus such as a boil or infected wound that is open or draining and is on the hands or wrists, unless an impermeable cover such as a finger cot or stall protects the lesion and a single-use glove is worn over the impermeable cover, on exposed portions of the arms, unless the lesion is protected by an impermeable cover, or on other parts of the body, unless the lesion is covered by a dry, durable, tight-fitting bandage.[P]

b. Has an illness diagnosed by a health practitioner (reportable diagnosis) due to:

(i) Norovirus.[P]

(ii) Hepatitis A virus.[P]

(iii) Shigella spp.[P]

(iv) SHIGA TOXIN-PRODUCING ESCHERICHIA COLL.[P]

(v) Typhoid fever (caused by Salmonella Typhi).[P]

(vi) Salmonella (nontyphoidal).[P]

c. Had Typhoid fever, diagnosed by a health practitioner, within the past three (3) months, without having received antibiotic therapy, as determined by a health practitioner (reportable past illness).[P]

d. Has been exposed to, or is the suspected source of, a confirmed disease outbreak (reportable history of exposure), because the food employee or conditional employee consumed or prepared food implicated in the outbreak, or consumed food at an event prepared by a person who is infected or ill with:

(i) Norovirus within the past forty-eight (48) hours of the last exposure.[P]

(ii) SHIGA TOXIN-PRODUCING ESCHERICHIA COLI or Shigella spp. within the past three (3) days of the last exposure.[P]

(iii) Typhoid fever within the past fourteen (14) days of the last exposure.[P]

(iv) Hepatitis A virus within the past thirty (30) days of the last exposure.[P]

e. Has been exposed by attending or working in a setting where there is a confirmed disease outbreak, or living in the same household as, and has knowledge about, an individual who works or attends a setting where there is a confirmed disease outbreak, or living in the same household as, and has knowledge about, an individual diagnosed with an illness (reportable history of exposure) caused by:

(i) Norovirus within the past forty-eight (48) hours of the last exposure.[P]

(ii) SHIGA TOXIN-PRODUCING ESCHERICHIA COLI or Shigella spp. within the past three (3) days of the last exposure.[P]

(iii) Typhoid fever (caused by Salmonella Typhi) within the past fourteen (14) days of the last exposure.[P]

(iv) Hepatitis A virus within the past thirty (30) days of the last exposure.[P]

(2) The person in charge shall notify the regulatory authority when a food employee is:

a. Jaundiced,[Pf] or

b. Diagnosed with an illness due to a pathogen as follows[Pf]:

(i) Norovirus.

(ii) Hepatitis A virus.

(iii) Shigella spp.

(iv) SHIGA TOXIN-PRODUCING ESCHERICHIA COLL.

(v) Typhoid fever (caused by Salmonella Typhi).

(vi) Salmonella (nontyphoidal).

(3) The person in charge shall ensure that a conditional employee: (1) who exhibits or reports a symptom, or who reports a diagnosed illness as specified under paragraphs (1)a.—c. of this subsection, is prohibited from becoming a food employee until the conditional employee meets the criteria for the specific symptoms or diagnosed illness as specified under section 9-9[P]; and (2) who will work as a food employee in a food establishment that serves as a highly susceptible population and reports a history of exposure as specified under paragraphs (1)d., e., is prohibited from becoming a food employee until the conditional employee meets the criteria as specified under section 9-9(10).[P]

(4) The person in charge shall ensure that a food employee who exhibits or reports a symptom, or who reports a diagnosed illness or a history of exposure as specified under paragraphs (a)(1)—(5) of this subsection is excluded as specified under section 9-8(1) through (3) and paragraphs (4)a., (5)a., (6)a., or (8)a. and in compliance with the provisions specified under sections 9-9(1)—(8),[P] or restricted as specified under sections 9-8(4)b., (5)b., (6)b., (7), (8)b., or section 9-8(9) or (10) and in compliance with the provisions specified under sections 9-9(e)—(k).[P]

(5) A food employee or conditional employee shall report to the person in charge the information as specified under paragraph (a) of this subsection.[Pf]

(6) A food employee shall comply with an exclusion as specified under sections 9-8(1)—(3) and sections 9-8(4)a., (5)a., (6)a., (7), or (8)a. and with the provisions specified under sections 9-9(b)—(i),[P] or comply with a restriction as specified under sections 9-8(4)b., (5)b., (6)b., (7), (8)b., or sections 9-8(8), (9), or (10) and comply with the provisions specified under sections 9-9(e)—(k).[P]

(b) *Signage.* A food establishment must post a sign or poster, clearly visible to food employees, by all handwashing sinks. The sign or poster must notify food employees to report symptoms

and diagnosis information about their health as it related to diseases that are transmissible through food.
(Ord. No. 2025-4-2, § I, 4-14-25)

Sec. 9-8. Employee exclusions and restrictions.

The person in charge shall exclude or restrict a food employee from a food establishment in accordance with the following:

(1) Except when the symptom is from a noninfectious condition, exclude a food employee if the food employee is:

a. Symptomatic with vomiting or diarrhea;[P] or

b. Symptomatic with vomiting or diarrhea and diagnosed with an infection from Norovirus, Shigella spp., Salmonella (nontyphoidal), or SHIGA TOXIN PRODUCING ESCHERICHIA COLI.[P]

(2) Exclude a food employee who is:

a. Jaundiced and the onset of jaundice occurred within the last seven (7) calendar days, unless the food employee provides to the person in charge written medical documentation from a health practitioner specifying that the jaundice is not caused by hepatitis A virus or other fecal-orally transmitted infection;[P]

b. Diagnosed with an infection from hepatitis A virus within fourteen (14) calendar days from the onset of any illness symptoms, or within seven (7) calendar days of the onset of jaundice;[P]or

c. Diagnosed with an infection from hepatitis A virus without developing symptoms.[P]

(3) Exclude a food employee who is diagnosed with Typhoid fever, or reports having had Typhoid fever within the past three (3) months as specified under section 9-7(a)(1)d.[P]

(4) If a food employee is diagnosed with an infection from norovirus and is asymptomatic:

a. Exclude the food employee who works in a food establishment serving a highly susceptible population;[P] or

b. Restrict the food employee who works in a food establishment not serving a highly susceptible population.[P]

(5) If a food employee is diagnosed with an infection from Shigella spp. and is asymptomatic:

a. Exclude the food employee who works in a food establishment serving a highly susceptible population;[P] or

b. Restrict the food employee who works in a food establishment not serving a highly susceptible population.[P]

(6) If a food employee is diagnosed with an infection from SHIGA TOXIN-PRODUCING ESCHERICHIA COLI and is asymptomatic:

a. Exclude the food employee who works in a food establishment serving a highly susceptible population;[P] or

b. Restrict the food employee who works in a food establishment not serving a highly susceptible population.[P]

(7) If a food employee is diagnosed with an infection from Salmonella (nontyphoidal) and is asymptomatic, restrict the food employee who works in a food establishment serving a highly susceptible population or in a food establishment not serving a highly susceptible population.[P]

(8) If a food employee is ill with symptoms of acute onset of sore throat with fever:

a. Exclude the food employee who works in a food establishment serving a highly susceptible population;[P] or

b. Restrict the food employee who works in a food establishment not serving a highly susceptible population.[P]

(9) If a food employee is infected with a skin lesion containing pus such as a boil or infected wound that is open or draining and not properly covered as specified under section 9-7(a)(1)a.(v), restrict the food employee.[P]

(10) If a food employee is exposed to a foodborne pathogen as specified under section 9-7(a)(1)d.(i) through (iv) or section (a)(1)e.(i) through (iv), restrict the food employee who works in a food establishment serving a highly susceptible population.[P]

(Ord. No. 2025-4-2, § I, 4-14-25)

Sec. 9-9. Employee removal, adjustments, or retention of exclusions and restrictions.

(a) The person in charge shall adhere to the following conditions when removing, adjusting, or retaining the exclusion or restriction of a food employee.

(b) Except when a food employee is diagnosed with Typhoid fever or an infection from hepatitis A virus:

(1) Reinstate a food employee who was excluded as specified under section 9-8(1)a. if the food employee is asymptomatic for at least twenty-four (24) hours,[P] or provides to the person in charge written medical documentation from a health practitioner that states the symptom is from a noninfectious condition.[P]

(2) If a food employee was diagnosed with an infection from Norovirus and excluded as specified under section 9-8(1)b.:

a. Restrict the food employee, who is asymptomatic for at least twenty-four (24) hours and works in a food establishment not serving a highly susceptible population, until the conditions for reinstatement as specified under subsections (e)(1) or (e)(2) of this section are met;[P]or

b. Retain the exclusion for the food employee, who is asymptomatic for at least twenty-four (24) hours and works in a food establishment that serves a highly susceptible population, until the conditions for reinstatement as specified under subsections (e)(1) or (e)(2) of this section are met.[P]

(3) If a food employee was diagnosed with an infection from Shigella spp. and excluded as specified under section 9-8(1)b.:

a. Restrict the food employee, who is asymptomatic for at least twenty-four (24) hours and works in a food establishment not serving a highly susceptible population, until the conditions for reinstatement as specified under subsections (e)(1) or (e)(2) are met;[P] or

b. Retain the exclusion for the food employee, who is asymptomatic for at least twenty-four (24) hours and works in a food establishment that serves a highly susceptible population, until the conditions for reinstatement as specified under subsections (e)(1) or (e)(2), or (e)(1) and (b)(3)a. of this section are met.[P]

(4) If a food employee was diagnosed with an infection from Shiga Toxin-Producing ESCHERICHIA COLI and excluded as specified section 9-8(1)b.:

a. For at least twenty-four (24) hours and works in a food establishment not serving a highly susceptible population, until the conditions for reinstatement as specified under subsections (6)a. or (6)b. of this section are met;[P] or

b. Retain the exclusion for the food employee, who is asymptomatic for at least twenty-four (24) hours and works in a food establishment that serves a highly susceptible population, until the conditions for

reinstatement as specified under subsections (6)a. or (6)b. of this section are met.[P]

(5) If a food employee was diagnosed with an infection from Salmonella (nontyphoidal) and excluded as specified under section 9-8(1)b.:

a. Restrict the food employee, who is asymptomatic for at least thirty (30) days until conditions for reinstatement as specified under subsections (h)(1) or (h)(2) of this section are met;[P] or

b. Retain the exclusion for the food employee who is symptomatic, until conditions for reinstatement as specified under subsections (h)(1) or (h)(2) of this section are met.[P]

(c) If a food employee is diagnosed with Typhoid fever or an infection from hepatitis A virus:

(1) Reinstate a food employee who was excluded as specified under section 9-8(2) if the person in charge obtains approval from the department and one (1) of the following conditions is met:

a. The food employee has been jaundiced for more than seven (7) calendar days.[P]

b. The anicteric food employee has been symptomatic with symptoms other than jaundice for more than fourteen (14) calendar days.[P]

c. The food employee provides to the person in charge written medical documentation from a health practitioner stating that the food employee is free of a hepatitis A virus infection.[P]

(d) If the food employee is diagnosed with Typhoid fever and excluded as specified section 9-8(3), reinstate the food employee if the person in charge obtains approval from the regulatory authority,[P] and the food employee provides to the person in charge written medical documentation from a health practitioner that states the food employee is free from Typhoid fever.[P]

(e) If the food employee is diagnosed with Norovirus and excluded as specified under sections 9-8(1)b. or 9-8(4)a. who was restricted under section 9-8(4)b., reinstate if the person in charge obtains approval from the department and one (1) of the following conditions is met:

(1) The excluded or restricted food employee provides to the person in charge written medical documentation from a health practitioner stating that the food employee is free of a norovirus infection.[P]

(2) The food employee was excluded or restricted after symptoms of vomiting or diarrhea resolved, and more than forty-eight (48) hours have passed since the food employee became asymptomatic.[P]

(3) The food employee was excluded or restricted and did not develop symptoms and more than forty-eight (48) hours have passed since the food employee was diagnosed.[P]

(f) If the food employee is diagnosed with Shigella spp. and excluded as specified subparagraphs 2-201.12(a)(2) or (e)(1) or who was restricted under subparagraph 2-201.12(e)(2), reinstate if the person in charge obtains approval from the department and one (1) of the following conditions is met:

(1) The excluded or restricted food employee provides to the person in charge written medical documentation from a health practitioner stating that the food employee is free of a Shigella spp. infection based on test results showing two (2) consecutive negative stool specimen cultures that are taken not earlier than forty-eight (48) hours after discontinuance of antibiotics[P] and at least twenty-four (24) hours apart.[P]

(2) The food employee was excluded or restricted after symptoms of vomiting or diarrhea resolved, and more than seven (7) calendar days have passed since the food employee became asymptomatic.[P]

(3) The food employee was excluded or restricted and did not develop symptoms

and more than seven (7) calendar days have passed since the food employee was diagnosed.[P]

(g) If the food employee is diagnosed with Shiga Toxin-Producing ESCHERICHIA COLI and was excluded or restricted as specified under sections 9-8(1)b. and 9-8(6)a. or who was restricted undersection 9-8(6)b., reinstate if the person in charge obtains approval from the department and one (1) of the following conditions is met:

(1) The excluded or restricted food employee provides to the person in charge written medical documentation from a health practitioner stating that the food employee is free of an infection from Shiga Toxin-Producing ESCHERICHIA COLI based on test results that show two (2) consecutive negative stool specimen cultures that are taken not earlier than forty-eight (48) hours after discontinuance of antibiotics and at least twenty-four (24) hours apart.[P]

(2) The food employee was excluded or restricted after symptoms of vomiting or diarrhea resolved and more than seven (7) calendar days have passed since the food employee became asymptomatic.[P]

(3) The food employee was excluded or restricted and did not develop symptoms and more than seven (7) days have passed since the food employee was diagnosed.

(h) If the food employee is diagnosed with Salmonella (nontyphoidal) and was excluded or restricted as specified under section 9-8(1)b. or who was restricted as specified under section 9-8(7), reinstate if the person in charge obtains approval from the department and one (1) of the following conditions is met:

(1) The excluded or restricted food employee provides to the person in charge written medical documentation from a health practitioner stating that the food employee is free of a Salmonella (nontyphoidal) infection based on test results showing two (2) consecutive negative stool specimen cultures that are taken not earlier than forty-eight (48) hours after discontinuance of antibiotics and at least twenty-four (24) hours apart.[P]

(2) The food employee was restricted after symptoms of vomiting or diarrhea resolved, and more than thirty (30) days have passed since the food employee became asymptomatic.[P]

(3) The food employee was excluded or restricted and did not develop symptoms and more than thirty (30) days have passed since the food employee was diagnosed.[P]

(i) If the food employee is diagnosed with a sore throat and fever and was excluded or restricted as specified under sections 9-8(8)a. or b., reinstate if the food employee provides to the person in charge written medical documentation from a health practitioner stating that the food employee meets one (1) of the following conditions:

(1) Has received antibiotic therapy for Streptococcus pyogenes infection for more than twenty-four (24) hours.[P]

(2) Has at least one (1) negative throat specimen culture for Streptococcus pyogenes infection.[P]

(3) Is otherwise determined by a health practitioner to be free of a Streptococcus pyogenes infection.[P]

(j) If the food employee is diagnosed with an uncovered infected wound or pustular boil and was restricted as specified under section 9-8(9), reinstate if the skin, infected wound, cut, or pustular boil is properly covered with one (1) of the following:

(1) An impermeable cover such as a finger cot or stall and a single-use glove over the impermeable cover if the infected wound or pustular boil is on the hand, finger, or wrist.[P]

(2) An impermeable cover on the arm if the infected wound or pustular boil is on the arm.[P]

(3) A dry, durable, tight-fitting bandage if the infected wound or pustular boil is on another part of the body.[P]

(k) If a food employee is exposed to a one of the foodborne pathogens under sections 9-7(a)(1)d.(i)—(iv) or 9-7(a)(1)e.(i)—(iv) and the employee works in a food establishment serving a highly susceptible population, reinstate the employee who was restricted under section 9-8(10) as follows:

(l) Norovirus - One (1) of the conditions is met:

a. More than forty-eight (48) hours have passed since the last day the food employee was potentially exposed.[P]

b. More than forty-eight (48) hours have passed since the food employee's household contact became asymptomatic.[P]

(2) Shigella spp. or Shiga Toxin-Producing ESCHERICHIA COLI - One of the following conditions is met:

a. More than three (3) calendar days have passed since the last day the food employee was potentially exposed.[P]

b. More than three (3) calendar days have passed since the food employee's household contact became asymptomatic.[P]

(3) Typhoid fever (caused by Salmonella Typhi) - One of the following conditions is met:

a. More than fourteen (14) calendar days have passed since the last day the food employee was potentially exposed.[P]

b. More than fourteen (14) calendar days have passed since the food employee's household contact became asymptomatic.[P]

(4) Hepatitis A virus - One of the following conditions is met:

a. The food employee is immune to hepatitis A virus infection because of a prior illness from hepatitis A.[P]

b. The food employee is immune to hepatitis A virus infection because of vaccination against hepatitis A.[P]

c. The food employee is immune to hepatitis A virus infection because of IgG administration.[P]

d. More than thirty (30) calendar days have passed since the last day the food employee was potentially exposed.[P]

e. More than thirty (30) calendar days have passed since the food employee's household contact became jaundiced.[P]

f. The food employee does not use an alternative procedure that allows bare hand contact with ready-to eat food until at least thirty (30) days after the potential exposure, as specified in subsections (k)(4)d. and e. of this section, and the food employee receives additional training about:

(i) Hepatitis A symptoms and preventing the transmission of infection;[P]

(ii) Proper handwashing procedures;[P] and

(iii) Protecting ready-to-eat food from contamination introduced by bare hand contact.[P]

(Ord. No. 2025-4-2, § I, 4-14-25)

Sec. 9-10. Personal cleanliness.

(a) *Hands and arms.*

(1) *Clean condition.* Food employees shall keep their hands and exposed portions of their arms clean.[P]

(2) *Cleaning procedure.*

a. Except as specified in subparagraph (d) of this paragraph, food employees shall clean their hands and exposed portions of their arms, including surrogate prosthetic devices for hands or arms, for at least twenty (20) seconds, using a cleaning

compound in a handwashing sink that is equipped as specified under section 9-8 and section 9-52(a).[P]

b. Food employees shall use the following cleaning procedure in the order stated to clean their hands and exposed portions of their arms, including surrogate prosthetic devices for hands and arms:

(i) Rinse under clean, running warm water.[P]

(ii) Apply an amount of cleaning compound recommended by the cleaning compound manufacturer.

(iii) Rub together vigorously for at least ten (10) to fifteen (15) seconds while paying particular attention to removing soil from underneath the fingernails during the cleaning procedure, and creating friction on the surfaces of the hands and arms or surrogate prosthetic devices for hands and arms, finger tips, and areas between the fingers.[P]

(iv) Thoroughly rinse under clean, running warm water.[P]

(v) Immediately follow the cleaning procedure with thorough drying using a method as specified under section 9-52(a)(3).[P]

c. To avoid re-contaminating their hands or surrogate prosthetic devices, food employees may use disposable paper towels or similar clean barriers when touching surfaces such as manually operated faucet handles on a handwashing sink or the handle of a restroom door.

d. If approved and capable of removing the types of soils encountered in the food operations involved, an automatic handwashing facility may be used by food employees to clean their hands or surrogate prosthetic devices.

(3) *Special handwash procedures.* Reserved.

(4) *When to wash.* Food employees shall clean their hands and exposed portions of their arms as specified under paragraph (a)(2) above immediately before engaging in food preparation, including working with exposed food, clean equipment and utensils, and unwrapped single-service and single-use articles[P] and:

a. After touching bare human body parts other than clean hands and clean, exposed portions of arms;[P]

b. After using the toilet room;[P]

c. After caring for or handling service animals or aquatic animals as specified in section 9-11(c)(2);[P]

d. Except as specified in section 9-11(a)(1)b., after coughing, sneezing, using a handkerchief or disposable tissue, using tobacco products, eating, or drinking;[P]

e. After handling soiled equipment or utensils;[P]

f. During food preparation, as often as necessary to remove soil and contamination and to prevent cross contamination when changing tasks;[P]

g. When switching between working with raw food and working with ready-to-eat food;[P]

h. Before donning gloves to initiate a task that involves working with food;[P] and

i. After engaging in other activities that contaminate the hands.[P]

(5) *Where to wash.* Food employees shall clean their hands in a handwashing sink or approved automatic handwashing facility and may not clean their hands in a sink used for food preparation or ware-

washing, or in a service sink or a curbed cleaning facility used for the disposal of mop water and similar liquid waste.[Pf]

(6) *Hand antiseptics.*

a. A hand antiseptic used as a topical application, a hand antiseptic solution used as a hand dip, or a hand antiseptic soap must:

(i) Comply with one (1) of the following:

(aa) Be an approved drug that is listed in the FDA publication Approved Drug Products with Therapeutic Equivalence Evaluations as an approved drug based on safety and effectiveness.[Pf]

(bb) Have active antimicrobial ingredients that are listed in the FDA monograph for OTC Health-Care Antiseptic Drug Products as an antiseptic handwash;[Pf]

(ii) Consist only of components which the intended use of each complies with one (1) of the following:

(aa) A threshold of regulation exemption under 21 CFR 170.39 - Threshold of regulation for substances used in food-contact articles.[Pf]

(bb) 21 CFR 178 - Indirect Food Additives: Adjuvants, Production Aids, and Sanitizers as regulated for use as a food additive with conditions of safe use.[Pf]

(cc) A determination of generally recognized as safe (GRAS). Partial listings of substances with food uses that are GRAS may be found in 21 CFR 182 - Substances Generally Recognized as Safe, 21 CFR 184 - Direct Food Substances Affirmed as Generally Recognized as Safe, or 21 CFR 186 - Indirect Food Substances Affirmed as Generally Recognized as Safe for use in contact with food, and in FDA's Inventory of GRAS Notices.[Pf]

(dd) A prior sanction listed under 21 CFR 181 - Prior Sanctioned Food Ingredients.[Pf]

(ee) A Food Contact Notification that is effective;[Pf] and

(iii) Be applied only to hands that are cleaned as specified under subsection (a)(2).[Pf]

b. If a hand antiseptic or a hand antiseptic solution used as a hand dip does not meet the criteria specified under paragraph (6)a. of this subsection, use must be followed by thorough hand rinsing in clean water before hand contact with food or by the use of gloves,[Pf] or limited to situations that involve no direct contact with food by the bare hands.[Pf]

c. A hand antiseptic solution used as a hand dip must be maintained clean and at a strength equivalent to at least 100 MG/L chlorine.[Pf]

(b) *Fingernails.*

(1) Food employees shall keep their fingernails trimmed, filed, and maintained so that edges and surfaces are cleanable and smooth.[Pf]

(2) Unless wearing intact gloves in good repair, a food employee may not wear fingernail polish, nail attachments, or artificial fingernails when working with exposed food.[P]

(c) *Jewelry.* Except for a plain ring such as a wedding band, while preparing food, food employees may not wear jewelry including medical information jewelry on their arms and hands.

(d) *Outer clothing.* Food employees shall wear clean outer clothing to prevent contamination of food, equipment, utensils, linens, and single-service and single-use articles.
(Ord. No. 2025-4-2, § I, 4-14-25)

Sec. 9-11. Hygienic practices.

(a) *Food contamination prevention.*

(1) *Eating, drinking and using tobacco.*

a. Except as specified in subparagraph (b) of this paragraph, an employee shall only eat, drink, or use any form of tobacco products in designated areas where no contamination of exposed food, clean equipment, utensils, and linens, unwrapped single-service and single-use articles, or other items needing protection may result.

b. A food employee may drink from a closed beverage container if the container is handled to prevent contamination of:

(i) The employee's hands;

(ii) The container; and

(iii) Exposed food, clean equipment, utensils, and linens, and unwrapped single-service and single-use articles.

(2) *Discharges from the eyes, nose, and mouth.* No food employee experiencing persistent sneezing, coughing, or a runny nose that causes discharges from the eyes, nose, or mouth may work with exposed food, clean equipment, utensils, and linens, or unwrapped single-service or single-use articles.

(3) *Use of bandages, finger cots, or finger stalls.* If used, an impermeable cover such as a bandage, finger cot, or finger stall located on the wrist, hand, or finger of a food employee working with exposed food must be covered with a single-use glove.

(b) *Hair restraints - effectiveness.*

(1) Except as provided in paragraph (2) of this subsection, food employees shall wear hair restraints such as hats, hair coverings or nets, beard restraints, and clothing that covers body hair, that are designed and worn to effectively keep their hair from contacting exposed food, clean equipment, utensils and linens, and unwrapped single-service and single-use articles.

(2) This subsection does not apply to food employees such as counter staff who only serve beverages and wrapped or packaged foods, hostesses, and wait staff if they present a minimal risk of contaminating exposed food, clean equipment, utensils and linens, and unwrapped single-service and single-use articles.

(c) *Animals - handling prohibitions.*

(1) Except as specified in paragraph (2) of this subsection, food employees may not care for or handle animals that may be present such as patrol dogs, service animals, or pets that are allowed as specified in section 9-54(a)(15)b.(ii)—(v).[Pf]

(2) Food employees with service animals may handle or care for their service animals and food employees may handle or care for fish in aquariums or molluscan shellfish or Crustacea in display tanks if they wash their hands as specified under sections 9-10(a)(2) and 9-10(a)(4)c.
(Ord. No. 2025-4-2, § I, 4-14-25)

Sec. 9-12. Responding to contamination events.

A food establishment must have written procedures for employees to follow and equipment listed in the written procedures when responding to vomiting or diarrheal events that involve the discharge of vomitus or fecal matter onto surfaces in the food establishment. The procedures must address the specific actions

employees must take to minimize the spread of contamination and the exposure of employees, consumers, food, and surfaces to vomitus or fecal matter.[Pf]
(Ord. No. 2025-4-2, § I, 4-14-25)

ARTICLE III. FOOD

DIVISION 1. CHARACTERISTICS; SOURCES, SPECIFICATIONS, AND ORIGINAL CONTAINERS AND RECORDS

Sec. 9-13. Characteristics.

Food must be safe, unadulterated, and, as specified under section 9-31(b), honestly presented.[P]
(Ord. No. 2025-4-2, § I, 4-14-25)

Sec. 9-14. Sources, specifications, and original containers and records.

(a) *Compliance with food law.*

(1) Food must be obtained from sources that comply with law.[P]

(2) Food prepared in a private home may not be used or offered for human consumption in a food establishment unless allowed under Texas cottage food laws.[P]

(3) Packaged food must be labeled as specified in law, including 21 CFR 101 Food Labeling, 9 CFR 317 Labeling, Marking Devices, and Containers, and 9 CFR 381 Subpart N Labeling and Containers, and as specified under sections 9-15(g) and (h).[Pf]

(4) Fish, other than those specified in section 9-26(a)(2), that are intended for consumption in raw or undercooked form and allowed as specified in section 9-25(a)(4), may be offered for sale or service if they are obtained from a supplier that freezes the fish as specified under section 9-26(a); or if they are frozen on the premises as specified under section 9-26(a) and records are retained as specified under section 9-26(b).

(5) Whole-muscle, intact beef steaks that are intended for consumption in an undercooked form without a consumer advisory as specified in section 9-26(a)(3) shall be:

a. Obtained from a food processing plant that does not mechanically tenderize, vacuum tumble with solutions, reconstruct, cube or pound these whole-muscle, intact beef steaks,[Pf] or

b. Deemed acceptable by the department based on other evidence, such as written buyer specifications or invoices, that indicates that the steaks meet the definition of whole-muscle, intact beef,[Pf] and

c. If individually cut in a food establishment:

(i) Cut from whole-muscle intact beef that is received from a food processing plant as specified in paragraph (5)a. of this subsection or identified as specified in paragraph (5)b. of this subsection;[P] and

(ii) Prepared so they remain intact.[Pf]

(6) Meat and poultry that is not a ready-to-eat food and is in a packaged form when it is offered for sale or otherwise offered for consumption, must be labeled to include safe handling instructions as specified in law, including 9 CFR 317.2(1) and 9 CFR 381.125(b).

(7) Eggs that have not been specifically treated to destroy all viable Salmonellae must be labeled to include safe handling instructions as specified in Law, including 21 CFR 101.17(h).

(b) *Food in a hermetically sealed container.* Food in a hermetically sealed container must be obtained from a food processing plant that is regulated by the food regulatory agency that has jurisdiction over the plant.[P]

(c) *Fluid milk and milk products.* Fluid milk and milk products must be obtained from sources that comply with Grade A standards as specified in law.[P]

(d) *Fish.*

(1) Fish that are received for sale or service must be commercially and legally caught or harvested,[P] or approved for sale or service.[P]

(2) Molluscan shellfish that are recreationally caught may not be received for sale or service.[P]

(e) *Molluscan shellfish.*

(1) Molluscan shellfish must be obtained from sources according to law and the requirements specified in the U.S. Department of Health and Human Services, Public Health Service, Food and Drug Administration, National Shellfish Sanitation Program Guide for the Control of Molluscan Shellfish.[P]

(2) Molluscan shellfish received in interstate commerce must be from sources that are listed in the Interstate Certified Shellfish Shippers List.[P]

(f) *Wild mushrooms.*

(1) Except as specified in paragraph (2) of this subsection, mushroom species picked in the wild must not be offered for sale or service by a food establishment unless the food establishment has been approved to do so.[P]

(2) This section does not apply to:

a. Cultivated wild mushroom species that are grown, harvested, and processed in an operation that is regulated by the food regulatory agency that has jurisdiction over the operation; or

b. Wild mushroom species if they are in packaged form and are the product of a food processing plant that is regulated by the food regulatory agency that has jurisdiction over the plant.

(g) *Game animals.*

(1) If game animals are received for sale or service, they must be:

a. Commercially raised for food,[P] and:

(i) Raised, slaughtered, and processed under a voluntary inspection program that is conducted by the agency that has animal health jurisdiction,[P] or

(ii) Under a routine inspection program conducted by a regulatory agency other than the agency that has animal health jurisdiction,[P] and

(iii) Raised, slaughtered, and processed according to:

(aa) Laws governing meat and poultry as determined by the agency that has animal health jurisdiction and the agency that conducts the inspection program;[P] and

(bb) Requirements which are developed by the agency that has animal health jurisdiction and the agency that conducts the inspection program with consideration of factors such as the need for antemortem and postmortem examination by an approved veterinarian or veterinarian's designee;[P]

b. Under a voluntary inspection program administered by the USDA for game animals such as exotic animals (reindeer, elk, deer, antelope, water buffalo, or bison) that are "inspected and approved" in accordance with 9 CFR 352 Exotic Animals; Voluntary Inspection or rabbits that are "inspected and certified" in accordance with 9 CFR 354 Voluntary Inspection of Rabbits and Edible Products Thereof;[P]

c. As allowed by law, for wild game animals that are live-caught:

(i) Under a routine inspection program conducted by a regulatory agency such as the agency that has animal health jurisdiction,[P] and

(ii) Slaughtered and processed according to:

(aa) Laws governing meat and poultry as determined by the agency that has animal health jurisdiction and the agency that conducts the inspection program;[P] and

(bb) Requirements which are developed by the agency that has animal health jurisdiction and the agency that conducts the inspection program with consideration of factors such as the need for antemortem and postmortem examination by an approved veterinarian or veterinarian's designee;[P] or

d. As allowed by law, for field-dressed wild game animals under a routine inspection program that ensures the animals:

(i) Receive a postmortem examination by an approved veterinarian or veterinarian's designee,[P] or

(ii) Are field-dressed and transported according to requirements specified by the agency that has animal health jurisdiction and the agency that conducts the inspection program,[P]and

(iii) Are processed according to laws governing meat and poultry as determined by the agency that has animal health jurisdiction and the agency that conducts the inspection program.[P]

(2) A game animal may not be received for sale or service if it is a species of wildlife that is listed in 50 CFR 17 Endangered and threatened wildlife and plants.

(h) *Approved sources for exotic game animals.*

(1) *Exotic animals.* If exotic animals are received for sale or service, they must:

a. Be commercially raised for food;[P] and

(i) Raised, slaughtered, processed, and deemed to be "inspected and passed under a meat and poultry inspection program administered by the U.S. Department of Agriculture (USDA) in accordance with 9 CFR 352, Exotic Animals; Voluntary Inspection;[P] or

(ii) Raised, slaughtered, processed, and deemed to be "inspected and passed under a meat and poultry inspection program administered by Texas Department of State Health Services or any other state meat inspection program deemed equal to USDA inspection;[P]

b. As allowed by law, for exotic animals that are live caught, be slaughtered and processed as required in subparagraph a.(i) and (ii) of this paragraph;[P] and

c. As allowed by law, exotic animals that are field dresses:

(i) Receive an antemortem and postmortem examination by the appropriate inspection personnel as described in subparagraph a.(i) and (ii) of this paragraph;[P] and

(ii) Be transported and processed according to the requirements specified by the appropriate

regulatory authority as described in subparagraph a.(i) and (ii) of this paragraph.[P]

(2) *Cooking.* Exotic animals must be cooked to heat all parts of the food to a temperature and for a time that complies with one (1) of the methods for cooking game animals according to section 9-26(a), and under a voluntary inspection program as specified in paragraph (1) of this subsection.[P]

(Ord. No. 2025-4-2, § I, 4-14-25)

Sec. 9-15. Specifications for receiving.

(a) *Temperature.*

(1) Except as specified in this subsection, refrigerated, time/temperature control for safety food must be at a temperature of 5°C (41°F) or below when received.[P]

(2) If a temperature other than 5°C (41 °F) for a time/temperature control for safety food is specified in law governing its distribution the food may be received at the specified temperature.

(3) Raw eggs must be received in refrigerated equipment that maintains an ambient air temperature of 7°C (45°F) or less.[P]

(4) Time/temperature control for safety food that is cooked to a temperature and for a time specified under sections 9-26(a)—(c) and received hot must be at a temperature of 57°C (135°F) or above.[P]

(5) Grade A pasteurized milk must be received in refrigerated equipment that maintains an ambient air temperature of 7°C (45°F) or less.[P]

(6) Molluscan shellfish must be received in refrigerated equipment or on ice that maintains a temperature of 7°C (45°F) or less, as required in the Texas Molluscan Shellfish Rules, § 241.61(a) of Title 25, Health Services, of the Texas Administrative Code (relating to Molluscan Shell Stock Temperature Control).[P]

(7) A food that is labeled frozen and shipped frozen by a food processing plant must be received frozen.[Pf]

(8) Upon receipt, time/temperature control for safety food must be free of evidence of previous temperature abuse.[P]

(b) *Additives.* Food may not contain unapproved food additives or additives that exceed amounts specified in 21 CFR 170-180 relating to food additives, generally recognized as safe or prior sanctioned substances that exceed amounts specified in 21 CFR 181-186, substances that exceed amounts specified in 9 CFR Subpart C Section 424.21(b) Food ingredients and sources of radiation, or pesticide residues that exceed provisions specified in 40 CFR 180 Tolerances for pesticides chemicals in food, and exceptions.[P]

(c) *Chicken eggs.* Chicken eggs must be received clean and sound and may not exceed the restricted egg tolerances for U.S. Consumer Grade B as specified in 7 CFR 56, Voluntary Grading of Shell Eggs and United States Standards, Grades, and Weight Classes for Shell Eggs, and 9 CFR 590, Inspection of Eggs and Egg Products.[P]

(d) *Eggs and milk products, pasteurized.*

(1) Egg products must be obtained pasteurized.[P]

(2) Fluid and dry milk and milk products must be obtained pasteurized and comply with Grade A standards as specified in law.[P]

(3) Frozen milk products, such as ice cream, must be obtained pasteurized in accordance with the Frozen Desserts Manufacturer Licensing Act, V.T.C.A. Health and Safety Code, Ch. 440, and 21 CFR 135 Frozen Desserts.[P]

(4) Cheese must be obtained pasteurized unless alternative procedures to pasteurization are specified in the CFR, such as 21 CFR 133 - Cheeses and related cheese products, for curing certain cheese varieties.[P]

(e) *Packaging integrity.* Food packages must be in good condition and protect the integrity of the contents so that the food is not exposed to adulteration or potential contaminants.[Pf]

(f) *Ice.* Ice for use as a food or a cooling medium must be made from drinking water.[P]

(g) *Shellstock, condition.* When received by a food establishment, shellstock must be reasonably free of mud, dead shellstock, and shellstock with broken shells. Dead shellstock with badly broken shells must be discarded.

(h) *Molluscan shellfish, packaging and identification.*

(1) Except as specified in subparagraph (2)a., molluscan shellfish shall be obtained in nonreturnable packages or containers which bear a legible tag or label that identifies the:[Pf]

a. Source, and are affixed by a dealer that depurates, packs, ships or reships the molluscan shellfish, as specified in the National Shellfish Sanitation Program (NSSP) Guide for the Control of Molluscan Shellfish (Model Ordinance);[Pf] and

(B) "Sell by" or "best if used by" date for shucked shellfish packages with a capacity of less than 1.89 L (one-half gallon) or the date shucked for packages with a capacity of 1.89 L (one-half gallon) or more.[Pf]

(2) When a two-tag harvester or dealer system is used, the dealer tag must meet the requirements identified in paragraph (1)a. of this subsection. When both the dealer and harvester tags appear on the container, the dealer's tag is not required to duplicate the information on the harvester's tag.

(3) A container of raw shucked shellfish that does not bear a tag or label or which bears a tag or label which does not contain all the information as specified under the Model Ordinance shall be subject to a hold order, as allowed by law, or seizure and destruction in accordance with 21 CFR Subpart D - Specific Administrative Decisions Regarding Interstate Shipments, Section 1240.60(d).

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-16. Commercially processed.

(a) Pre-packaged juice must:

(1) Be obtained from a processor with a HACCP system as specified in 21 CFR Part 120 Hazard Analysis and Critical Control (HACCP) Systems;[Pf] and

(2) Be obtained pasteurized or otherwise treated to attain a 5-log reduction of the most resistant microorganism of public health significance as specified in 21 CFR Part 120.24 Process Controls.[P]

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-17. Original containers and records.

(a) *Molluscan shellfish, original container.*

(1) Except as specified in paragraphs (2)—(5) of this subsection, molluscan shellfish may not be removed from the container in which they are received other than immediately before sale or preparation for service.

(2) Molluscan shellfish from one tagged or labeled container shall not be commingled with molluscan shellfish from another container with different certification numbers, different harvest dates, or different growing areas identified on the tag or label before being ordered by the consumer.[Pf]

(3) For display purposes, shellstock or in-shell product may be removed from the container in which they are received, displayed on drained ice, or held in a display container, and a quantity specified by a consumer may be removed from the display or display container and provided to the consumer if:

a. The source of the shellstock or in-shell product on display is identified as specified under section 9-15(h) and recorded as specified under section 9-17(b); and

b. The shellstock or in-shell product are protected from contamination.

(4) Shucked shellfish may be removed from the container in which they were received and held in a display container from which individual servings are dispensed upon a consumer's request if:

a. The labeling information for the shellfish on display as specified under section 9-15(g) is retained and correlated to the date when, or dates during which, the shellfish are sold or served; and

b. The shellfish are protected from contamination.

(5) Shucked shellfish may be removed from the container in which they were received and repacked in consumer self-service containers where allowed by law if:

a. The labeling information for the shellfish is on each consumer self-service container as specified under section 9-15(g) and sections 9-32(a)(1) and 9-32(a)(2)a.—e.;

b. The labeling information as specified under section 9-15(g) is retained and correlated with the date when, or dates during which, the shellfish are sold or served;

c. The labeling information and dates specified under subparagraph (b) of this paragraph section are maintained for ninety (90) days; and

d. The shellfish are protected from contamination.

(b) *Molluscan shellfish, maintaining identification.*

(1) Except as specified under paragraph (3)b. of this subsection, molluscan shellfish tags or labels must remain attached to the container in which the shellstock are received until the container is empty.[Pf]

(2) The date when the last molluscan shellfish from the container is sold or served must be recorded on the tag, label, or invoice.[Pf]

(3) The identity of the source of molluscan shellfish that are sold or served must be maintained by retaining shellstock tags or labels for ninety (90) calendar days from the date that is recorded on the tag or label, as specified under subparagraph b. of this paragraph, by:[Pf]

a. Using an approved record keeping system that keeps the tags or labels in chronological order correlated to the date that is recorded on the tag or label, as specified under paragraph (3)b. of this subsection;[Pf] and

b. If shellstock, shucked shellfish or in-shell product are removed from its tagged or labeled container, the source identification must be preserved by using a record keeping system as specified under subparagraph a. of this paragraph.[Pf]

Sec. 9-17.1. Donation of food.

(a) *In general.* Food stored, prepared, packaged, displayed, and labeled in accordance to law and this Code may be offered for donation.

(b) *Previous service.* Except as specified in paragraphs (1) and (2) of this subsection, foods which have been previously served to a consumer may not be donated.[P]

(1) Packaged time and temperature control for safety foods, such as unopened milk, may be re-served or donated if immediately stored in a cooling bin maintained at 5°C (41°F) or below.[P]

(2) The following food products may be re-served or donated:

a. Packaged non-time and temperature control for safety foods.

b. Whole fruit, such as apples or bananas.

(c) *Unpackaged and unserved foods.* Unpackaged and unserved time and temperature control for safety food may be donated if:

(1) The temperature of the food is at or below 5°C (41°F), or an ambient

temperature of 7°C (45°F) for raw shell eggs, at the time of donation, and is protected from contamination;[P]

(2) The food has been at or above 57°C (135°F) during hot holding and service, and subsequently refrigerated to meet the time and temperature requirements in sections 9-29(d) and 9-29(e), or maintained at proper holding temperatures required in section 9-29(f);[P]

(3) The donor can substantiate that the food recipient has the facilities to meet the transportation, storage, and reheating requirements of this chapter;[P] and

(4) The food is to be transported by the food recipient directly to a consumer, the recipient only needs to meet the transportation requirements in this chapter, including holding temperatures.[P]

(d) *Labeling.* Donated foods transported offsite must be labeled with the name of the food, the source of the food, and the date of preparation.[P]

(e) *Shelf life.* Donated time and temperature control for safety foods may not exceed the shelf life for the leftover foods outlined in this chapter.[P]

(f) *Damaged foods.* Heavily rim or seam-dented canned foods, or packaged foods without the manufacturer's complete labeling must not be donated.[P]

(g) *Distressed foods.*

(1) Foods which are considered distressed, such as foods which have been subjected to fire, flooding, excessive heat, smoke, radiation, other environmental contamination, or prolonged storage must not be directly donated for consumption by the consumer.[P]

(2) Such foods in paragraph (1) of this subsection may be sold or donated to a licensed food salvage establishment if permitted under the provisions of V.T.C.A. Health and Safety Code, Ch. 432.

(Ord. No. 2025-4-2, § 1, 4-14-25)

DIVISION 2. PROTECTION FROM CONTAMINATION AFTER RECEIVING

Sec. 9-18. Preventing contamination by employees.

(a) *Preventing contamination from hands.*

(1) Food employees shall wash their hands as specified under section 9-10(a)(2).

(2) Except when washing fruits and vegetables as specified under section 9-19(e) or as specified in paragraphs (3) and (4) of this subsection, food employees shall not contact exposed, ready-to-eat food with their bare hands and shall use suitable utensils such as deli tissue, spatulas, tongs, single-use gloves, or dispensing equipment.[P]

(3) Food employees shall minimize bare hand and arm contact with exposed food that is not in a ready-to-eat form.[Pf]

(4) Paragraph (2) of this subsection does not apply to a food employee that contacts exposed, ready-to-eat food with bare hands at the time the ready-to-eat food is being added as an ingredient to a food that:

a. Contains a raw animal food and is to be cooked in the food establishment to heat all parts of the food to the minimum temperatures specified in section 9-25(a)(1), (2) or 9-25(b); or

b. Does not contain a raw animal food but is to be cooked in the food establishment to heat all parts of the food to a temperature of at least 63°C (145°F).

(5) Food employees not serving a highly susceptible population may contact exposed, ready-to-eat food with their bare hands if:

a. The permit holder obtains prior approval from the department;

b. Written procedures are maintained in the food establishment and made available to the department upon request that include:

(i) For each bare hand contact procedure, a listing of the specific ready-to-eat foods that are touched by bare hands,

(ii) Diagrams and other information showing that handwashing facilities, installed, located, equipped, and maintained as specified under sections 9-46(c)(1), 9-46(d)(1), 9-46(e)(1), 9-52(a)(2), 9-52(a)(3), and 9-52(a)(5), are in an easily accessible location and in close proximity to the work station where the bare hand contact procedure is conducted;

c. A written employee health policy that details how the food establishment complies with sections 9-7(a), 9-8, and 9-9, including:

(i) Documentation that food employees and conditional employees acknowledge that they are informed to report information about their health and activities as they relate to gastrointestinal symptoms and diseases that are transmittable through food as specified under section 9-7(a)(1),

(ii) Documentation that food employees and conditional employees acknowledge their responsibilities as specified under sections 9-7(a)(5) and (6), and

(iii) Documentation that the person in charge acknowledges the responsibilities as specified under sections 9-7(a)(2), (3), and (4), and sections 9-8 and 9-9;

d. Documentation that food employees acknowledge that they have received training in:

(i) The risks of contacting the specific ready-to-eat foods with bare hands;

(ii) Proper handwashing as specified under section 9-10(a)(2);

(iii) When to wash their hands as specified under section 9-10(a)(4);

(iv) Where to wash their hands as specified under section 9-10(a)(5);

(v) Proper fingernail maintenance as specified under section 9-10(b);

(vi) Prohibition of jewelry as specified under section 9-11(c); and

(vii) Good hygienic practices as specified under sections 9-11(a)(1) and 9-11(a)(2);

e. Documentation that hands are washed before food preparation and as necessary to prevent cross contamination by food employees as specified under sections 9-10(a)(1), 9-10(a)(2), 9-10(a)(4), and 9-10(a)(5) during all hours of operation when the specific ready-to-eat foods are prepared; and

f. Documentation that food employees contacting ready-to-eat food with bare hands use two (2) or more of the following control measures to provide additional safeguards to hazards associated with bare hand contact:

(i) Double handwashing;

(ii) Nail brushes;

(iii) A hand antiseptic after handwashing as specified under section 9-10(a)(6);

(iv) Incentive programs such as paid sick leave that assist or encourage food employees not to work when they are ill;

(v) Other control measures approved by the department; and

g. Documentation that corrective action is taken when paragraph (4) of this subsection are not followed.

(b) *Preventing contamination when tasting.* A food employee shall not use a utensil more than once to taste food that is to be sold or served.[P] (Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-19. Preventing food and ingredient contamination.

(a) *Packaged and unpackaged food: separation, packaging, and segregation.*

(1) Food must be protected from cross-contamination by:

a. Except as specified in this subparagraph or when combined as ingredients, separating raw animal foods during storage, preparation, holding, and display from raw ready-to-eat food including other raw animal food such as fish for sushi or molluscan shellfish, or other raw ready-to-eat food such as fruits and vegetables,[P] cooked ready-to-eat food,[P] and fruits and vegetables before they are washed.[P] Frozen, commercially processed and packaged raw animal food may be stored or displayed with or above frozen, commercially processed and packaged, ready-to-eat food;

b. Except when combined as ingredients, separating types of raw animal foods from each other such as beef, fish, lamb, pork, and poultry during storage, preparation, holding, and display by using separate equipment for each type,[P] or arranging each type of food in equipment so that cross contamination of one type with another is prevented[P] and preparing each type of food at different times or in separate areas;[P]

c. Cleaning equipment and utensils as specified under section 9-41(b)(1) and sanitizing as specified under section 9-42(c);

d. Except as specified under section 9-29(e)(2)b. and in paragraph (2) of this subsection, storing the food in packages, covered containers, or wrappings;

e. Cleaning hermetically sealed containers of food of visible soil before opening;

f. Protecting food containers that are received packaged together in a case or overwrap from cuts when the case or overwrap is opened;

g. Storing damaged, spoiled, or recalled food being held in the food establishment as specified under section 9-54(d); and

h. Separating fruits and vegetables, before they are washed as specified under section 9-19(e) from ready-to-eat food.

(2) Subparagraph (1)d. of this subsection does not apply to:

a. Whole, uncut, raw fruits and vegetables and nuts in the shell, that require peeling or hulling before consumption;

b. Primal cuts, quarters, or sides of raw meat or slab bacon that are hung on clean, sanitized hooks or placed on clean, sanitized racks;

c. Whole, uncut, processed meats such as country hams, and smoked or cured sausages that are placed on clean, sanitized racks;

d. Food being cooled as specified under section 9-29(e)(2)b.; or

e. Shellstock.

(b) *Food storage containers, identified with common name of food.* Except for containers holding food that can be readily and unmistakably recognized such as dry pasta, working containers holding food or food ingredients that

are removed from their original packages for use in the food establishment, such as cooking oils, flour, herbs, potato flakes, salt, spices, and sugar must be identified with the common name of the food.

(c) *Pasteurized eggs, substitute for raw eggs for certain recipes.* Pasteurized eggs or egg products must be substituted for raw eggs in the preparation of foods such as Caesar salad, hollandaise or bearnaise sauce, mayonnaise, meringue, eggnog, ice cream, and egg-fortified beverages that are not cooked as specified under section 9-25(a)(1)a. or (2) included in section 9-25(a)(4).[P]

(d) *Protection from unapproved additives.*

(1) Food must be protected from contamination that may result from the addition of, as specified in subsection (b) of this section:

a. Unsafe or unapproved food or color additives; and

b. Unsafe or unapproved levels of approved food and color additives.

(2) A food employee shall not:

a. Apply sulfiting agents to fresh fruits and vegetables intended for raw consumption or to a food considered to be a good source of vitamin B1;[P] or

b. Except for grapes, serve or sell food specified under subparagraph (2)a. of this subsection that is treated with sulfiting agents before receipt by the food establishment.[P]

(e) *Washing fruits and vegetables.*

(1) Except as specified in paragraph (2) of this subsection and except for whole, raw fruits and vegetables that are intended for washing by the consumer before consumption, raw fruits and vegetables must be thoroughly washed in water to remove soil and other contaminants before being cut, combined with other ingredients, cooked, served, or offered for human consumption in ready-to-eat form.

(2) Fruits and vegetables may be washed by using chemicals as specified under section 9-56(d)(4). When chemicals are used, a test kit or other device that accurately measures the active ingredient concentration of the fruit and vegetable wash solution must be provided.

(3) Devices used for on-site generation of chemicals meeting the requirements specified in 21 CFR 173.315, chemicals used in the washing or to assist in the peeling of fruits and vegetables, for the washing of raw, whole fruits and vegetables must be used in accordance with the manufacturer's instructions.[Pf]

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-20. Preventing the contamination of ice used as a coolant.

(a) *Ice used as exterior coolant, prohibited as ingredient.* After use as a medium for cooling the exterior surfaces of food such as melons or fish, packaged foods such as canned beverages, or cooling coils and tubes of equipment, ice must not be used as food.[P]

(b) *Storage or display of food in contact with water or ice.*

(1) Packaged food must not be stored in direct contact with ice or water if the food is subject to the entry of water because of the nature of its packaging, wrapping, or container or its positioning in the ice or water

(2) Except as specified in paragraphs (3) and (4) of this subsection, unpackaged food must not be stored in direct contact with undrained ice.

(3) Whole, raw fruits or vegetables; cut, raw vegetables such as celery or carrot sticks or cut potatoes; and tofu may be immersed in ice or water.

(4) Raw poultry and raw fish that are received immersed in ice in shipping containers may remain in that condition while in storage awaiting preparation, display, service, or sale.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-21. Preventing contamination from equipment, utensils, and linens.

(a) *Food contact with equipment and utensils.* Food must only contact surfaces of:

(1) Equipment and utensils that are cleaned as specified under section 9-41 and sanitized as specified under section 9-42;[P]

(2) Single-service and single-use articles;[P] or

(3) Linens, such as cloth napkins, as specified under section 9-21(d) that are laundered as specified under section 9-43.[P]

(b) *In-use utensils, between-use storage.* During pauses in food preparation or dispensing, food preparation and dispensing utensils must be stored:

(1) Except as specified under paragraph (2) of this subsection, in the food with their handles above the top of the food and the container;

(2) In food that is not time/temperature control for safety food with their handles above the top of the food within containers or equipment that can be closed, such as bins of sugar, flour, or cinnamon;

(3) On a clean portion of the food preparation table or cooking equipment only if the in-use utensil and the food-contact surface of the food preparation table or cooking equipment are cleaned and sanitized at a frequency specified under sections 9-41(b) and 9-42(b);

(4) In running water of sufficient velocity to flush particulates to the drain, if used with moist food such as ice cream or mashed potatoes;

(5) In a clean, protected location if the utensils, such as ice scoops, are used only with a food that is not time/temperature control for safety food; or

(6) In a container of water if the water is maintained at a temperature of at least 57°C (135°F) and the container is cleaned at a frequency specified under section 9-41(b)(1)d.(vii).

(c) *Linens and napkins, use limitation.* Linens, such as cloth napkins, may not be used in contact with food unless they are used to line a container for the service of foods and the linens and napkins are replaced each time the container is refilled for a new consumer.

(d) *Wiping cloths, use limitation.*

(1) Cloths in-use for wiping food spills from tableware and carry-out containers that occur as food is being served must be maintained dry and used for no other purpose.

(2) Cloths in-use for wiping counters and other equipment surfaces must be held between uses in a chemical sanitizer solution at a concentration specified under section 9-40(a)(14) and laundered daily as specified under section 9-43(b)(1).

(3) Cloths in-use for wiping surfaces in contact with raw animal foods must be kept separate from cloths used for other purposes.

(4) Dry wiping cloths and the chemical sanitizing solutions specified in paragraph (2) of this subsection in which wet wiping cloths are held between uses must be free of food debris and visible soil.

(5) Containers of chemical sanitizing solutions specified in paragraph (2) of this subsection in which wet wiping cloths are held between uses must be stored off the floor and used in a manner that prevents contamination of food, equipment, utensils, linens, single-service, or single-use articles.

(6) Single-use disposable sanitizer wipes must be used in accordance with EPA-approved manufacturer's label use instructions.

(7) When using quaternary ammonia as a sanitizing solution, a microfiber cloth or nonbinding material or approved equivalent must be used.

(e) *Gloves, use limitation.*

(1) If used, single-use gloves must be used for only one (1) task such as working

with ready-to-eat food or with raw animal food, used for no other purpose, and discarded when damaged or soiled, or when interruptions occur in the operation.[P]

(2) Except as specified in paragraph (3) of this subsection, slash resistant gloves that are used to protect the hands during operations requiring cutting must be used in direct contact only with food that is subsequently cooked as specified under division 4 of article III such as frozen food or a primal cut of meat.

(3) Slash-resistant gloves may be used with ready-to-eat food that will not be subsequently cooked if the slash-resistant gloves have a smooth, durable, and nonabsorbent outer surface; or if the slash-resistant gloves are covered with a smooth, durable, nonabsorbent glove, or a single-use glove.

(4) Cloth gloves may not be used in direct contact with food unless the food is subsequently cooked as required under division 3 of article III such as frozen food or a primal cut of meat.

(f) *Responsibility of permit for second portions and refills.*

(1) Except for refilling a consumer's drinking cup or container without contact between the pouring utensil and the lip-contact area of the drinking cup or container, food employees may not use tableware, including single-service articles, soiled by the consumer, to provide second portions or refills.

(2) Except as specified in paragraph (3) of this subsection, self-service consumers may not be allowed to use soiled tableware, including single-service articles, to obtain additional food from the display and serving equipment.

(3) Drinking cups and containers may be reused by self-service consumers if refilling is a contamination-free process as specified under section 9-37(d)(3)a., b., and d.

(g) *Refilling returnables.*

(1) Except as specified in paragraphs (2) through (5) of this subsection, empty containers returned to a food establishment for cleaning and refilling with food must be cleaned and refilled in a regulated food processing plant.[P]

(2) A take-home food container returned to a food establishment may be refilled at a food establishment with food if the food container is:

a. Designed and constructed for reuse and in accordance with the requirements specified under sections 9-36 and 9-37;[P]

b. One that was initially provided by the food establishment to the consumer, either empty or filled with food by the food establishment, for the purpose of being returned for reuse;

c. Returned to the food establishment by the consumer after use;

d. Subject to the following steps before being refilled with food:

(i) Cleaned as specified under section 9-41;

(ii) Sanitized as specified under section 9-42;[P] and

(iii) Visually inspected by a food employee to verify that the container, as returned, meets the requirements specified under sections 9-36 and 9-37.[P]

(3) A take-home food container returned to a food establishment may be refilled at a food establishment with beverage if:

a. The beverage is not a time/temperature control for safety food;

b. The design of the container and of the rinsing equipment and the nature of the beverage, when considered together, allow effective cleaning at home or in the food establishment;

c. Facilities for rinsing before refilling returned containers with fresh, hot water that is under pressure and not recirculated are provided as part of the dispensing system;

d. The consumer-owned container returned to the food establishment for refilling is refilled for sale or service only to the same consumer; and

e. The container is refilled by:

(i) An employee of the food establishment, or

(ii) The owner of the container if the beverage system includes a contamination-free transfer process as specified under section 9-37(d)(3)a., b., and d. that cannot be bypassed by the container owner.

(4) Consumer-owned, personal take-out beverage containers, such as thermally insulated bottles, non-spill coffee cups, and promotional beverage glasses, may be refilled by employees or the consumer if refilling is a contamination-free process as specified under section 9-37(d)(3)a., b., and d.

(5) Consumer-owned containers that are not food-specific may be filled at a water vending machine or system.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-22. Preventing contamination from the premises.

(a) *Food storage.*

(1) Except as specified in paragraphs (2) and (3) of this subsection, food must be protected from contamination by storing the food:

a. In a clean, dry location;

b. Where it is not exposed to splash, dust, or other contamination; and

c. At least fifteen (15) centimeters (six (6) inches) above the floor.

(2) Food in packages and working containers may be stored less than fifteen (15) centimeters (six (6) inches) above the floor on case lot handling equipment as specified under section 9-37(d)(22).

(3) Pressurized beverage containers, cased food in waterproof containers such as bottles or cans, and milk containers in plastic crates may be stored on a floor that is clean and not exposed to floor moisture.

(b) *Food storage, prohibited areas.* Food may not be stored in the following areas:

(1) Locker rooms.

(2) Toilet rooms.[Pf]

(3) Dressing rooms.

(4) Garbage rooms.

(5) Mechanical rooms.

(6) Under sewer lines that are not shielded to intercept potential drips.

(7) Under leaking water lines, including leaking automatic fire sprinkler heads, or under lines on which water has condensed.

(8) Under open stairwells.

(9) Under other sources of contamination.

(c) *Vended time/temperature control for safety food, original container.* Time/temperature control for safety food dispensed through a vending machine must be in the package in which it was placed at the food establishment or food processing plant at which it was prepared.

(d) *Food preparation.* During preparation, unpackaged food must be protected from environmental sources of contamination.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-23. Preventing contamination by consumers.

(a) *Food display.* Except for nuts in the shell and whole, raw fruits and vegetables that are intended for hulling, peeling, or washing by the consumer before consumption, food on display must be protected from contamination by the use of packaging, counter, service line or salad bar

food guards that comply with ANSI standards; completely enclosed display cases; or other means approved by the department. A letter may be required from the fabricator or installer for any food guard required by this subparagraph to confirm compliance with ANSI standards if compliance is not evident through the use of labels or listings posted directly on the food guard by the authority approved to affix such label or listing.[P]

(b) *Condiments, protection.*

(1) Condiments must be protected from contamination by keeping kept in dispensers that are designed to provide protection, protected food displays provided with the proper utensils, original containers designed for dispensing, or individual packages or portions.

(2) Condiments at a vending machine location must be in individual packages or provided in dispensers that are filled at an approved location, such as the food establishment that provides food to the vending machine location, a food processing plant that is regulated by the agency that has jurisdiction over the operation, or a properly equipped facility that is located on the site of the vending machine location.

(c) *Consumer self-service operations.*

(1) Raw, unpackaged animal food, such as beef, lamb, pork, poultry, and fish may not be offered for consumer self-service.[P] This paragraph does not apply to the following:

a. Consumer self-service of ready-to-eat foods at buffets or salad bars that serve foods such as sushi or raw shellfish.

b. Ready-to-cook individual portions for immediate cooking and consumption on the premises such as consumer-cooked meats or consumer-selected ingredients for Mongolian barbecue.

c. Raw, frozen, shell-on shrimp, or lobster.

(2) Consumer self-service operations for ready-to-eat foods must be provided with suitable utensils or effective dispensing methods that protect the food from contamination.[Pf]

(3) Consumer self-service operations such as buffets and salad bars must be monitored by food employees trained in safe operating procedures.[Pf]

(d) *Returned food and re-service of food.*

(1) Except as specified in paragraph (2) of this subsection, after being served or sold and in the possession of a consumer, food that is unused or returned by the consumer may not be offered as food for human consumption.[P]

(2) Except as specified under section 9-35(b), a container of food that is not time/temperature control for safety food may be reserved from one (1) consumer to another if:

a. The food is dispensed so that it is protected from contamination and the container is closed between uses, such as a narrow-neck bottle containing catsup, steak sauce, or wine; or

b. The food, such as crackers, salt, or pepper, is in an unopened original package and is maintained in sound condition.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-24. Buffet notification.

A card, sign, or other effective means of notification must be displayed to notify consumers that clean tableware is to be used upon return to self-service areas, such as salad bars and buffets as specified in subsection 9-21(f).[Pf]
(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-24.1. Preventing contamination from other sources.

Food must be protected from contamination that may result from a factor or source not specified under sections 9-18 through 9-24.1.
(Ord. No. 2025-4-2, § 1, 4-14-25)

DIVISION 3. DESTRUCTION OF ORGANISMS OF PUBLIC HEALTH CONCERN

Sec. 9-25. Cooking.

(a) *Raw animal foods.*

(1) Except as specified under paragraph (2) and in paragraphs (3) and (4) of this subsection, raw animal: foods such as eggs, fish, meat, poultry, and foods containing these raw animal foods, must be cooked to heat all parts of the food to a temperature and for a time that complies with one (1) of the following methods based on the food that is being cooked:

a. 63°C (145°F) or above for fifteen (15) seconds for:[P]

(i) Raw eggs that are broken and prepared in response to a consumer's order and for immediate service,[P] and

(ii) Except as specified under subparagraphs (1)b. and (1)c. and paragraphs (2) and (3) of this subsection, fish and intact meat including game animals commercially raised for food as specified under section 9-14(g)(1)a. and game animals under a voluntary inspection program as specified under section 9-14(g)(1)b.;[P]

b. 68°C (155°F) for seventeen (17) seconds or the temperature specified in the following chart that corresponds to the holding time for ratites, mechanically tenderized, and injected meats; the following if they are comminuted: fish, meat, game animals commercially raised for food as specified under section 9-14(g)(1)a., and game animals under a voluntary inspection program as specified under section 9-14(g)(1)b.; and raw eggs that are not prepared as specified under subparagraph (1)a.(i) of this subsection:[P]

Minimum Temperature °C (°F)	*Minimum Time*
63 (145)	3 minutes
66 (150)	1 minute
70 (158)	< 1 second (instantaneous)

; or

c. 74°C (165°F) or above for <1 second (instantaneous) for poultry, baluts, wild game animals as specified under sections 9-14(g)(1)c. and d., stuffed fish, stuffed meat, stuffed pasta, stuffed poultry, stuffed ratites, or stuffing containing fish, meat, poultry, or ratites.[P]

(2) Whole meat roasts including beef, corned beef, lamb, pork, and cured pork roasts such as ham must be cooked:

a. As specified in the following chart, to heat all parts of the food to a temperature and for the holding time that corresponds to that temperature:[P]

Temperature °C (°F)	*Time[1] in Minutes*
54.4(130)	112
55.0(131)	89
56.1 (133)	56
57.2 (135)	36
57.8(136)	28
58.9(138)	18
60.0(140)	12
61.1 (142)	8
62.2 (144)	5
62.8(145)	4

Temperature °C (°F)	*Time[1] in Seconds*
63.9(147)	134
65.0(149)	85
66.1 (151)	54
67.2 (153)	34
68.3(155)	22
69.4(157)	14
70.0(158)	0

[1] Holding time may include postoven heat rise.

b. If cooked in an oven, use an oven that is preheated to the temperature

specified for the roast's weight in the following chart and that is held at that temperature:[Pf]

Oven Temperature Based on Roast Weight

Oven Type	*Less than 4.5 kg (10 lbs)*	*4.5 kg (10 lbs) or More*
Still Dry	177°C (350°F) or more	121 °C (250°F) or more
Convection	163°C (325°F) or more	121 °C (250°F) or more
High Humidity[1]	121 °C (250°F) or less	121 °C (250°F) or less

[1] Relative humidity greater than 90% for at least 1 hour as measured in the cooking chamber or exit of the oven; or in a moisture-impermeable bag that provides 100% humidity.

(3) A raw or undercooked whole-muscle, intact beef steak may be served or offered for sale in a ready-to-eat form if:

a. The food establishment serves a population that is not a highly susceptible population;

b. The steak is labeled to indicate that it meets the definition of "whole-muscle, intact beef" as specified under section 9-14(a)(5); and

c. The steak is cooked on both the top and bottom to a surface temperature of 63°C (145°F) or above and a cooked color change is achieved on all external surfaces.

(4) A raw animal food such as raw egg, raw fish, raw-marinated fish, raw molluscan shellfish, or steak tartare; or a partially cooked food such as lightly cooked fish, soft cooked eggs, or rare meat other than whole-muscle, intact beef steaks as specified in paragraph (3) of this subsection, may be served or offered for sale upon consumer request or selection in a ready-to-eat form if:

a. As specified under sections 9-35(a)(3)a. and b., the food establishment serves a population that is not a highly susceptible population;

b. The food, if served or offered for service by consumer selection from a children's menu, does not contain comminuted meat;[Pf] and

c. The consumer is informed as specified under section 9-33(a) that to ensure its safety, the food must be cooked as specified under paragraphs (1) or (2) of this subsection; or

d. The department grants a variance from paragraphs (1) or (2) of this subsection as specified in section 9-64(c)(1) based on a HACCP plan that:

(i) Is submitted by the permit holder and approved as specified under section 9-64(c)(2);

(ii) Documents scientific data or other information showing that a lesser time and temperature regimen results in a safe food; and

(iii) Verifies that equipment and procedures for food preparation and training of food employees at the food establishment meet the conditions of the variance.

(b) *Microwave cooking.* Raw animal foods cooked in a microwave oven must be:

(1) Rotated or stirred throughout or midway during cooking to compensate for uneven distribution of heat;

(2) Covered to retain surface moisture;

(3) Heated to a temperature of at least 74°C (165°F) in all parts of the food;[P] and

(4) Allowed to stand covered for two (2) minutes after cooking to obtain temperature equilibrium.

(c) *Plant food cooking for hot holding.* Plant foods that are cooked for hot holding must be cooked to a temperature of 57°C (135°F).[Pf]

(d) *Non-continuous cooking of raw animal foods.* Raw animal foods that are cooked using a non-continuous cooking process must be:

(1) Subject to an initial heating process that is no longer than sixty (60) minutes in duration;[P]

(2) Immediately after initial heating, cooled according to the time and temperature parameters specified for cooked time/temperature control for safety food under section 9-29(d)(1);[P]

(3) After cooling, held frozen or cold, as specified for time/temperature control for safety food under section 9-29(f)(1)b.;[P]

(4) Prior to sale or service, cooked using a process that heats all parts of the food to a temperature and for a time as specified under sections 9-25(a)(1)—(3);[P]

(5) Cooled according to the time and temperature parameters specified for cooked time/temperature control for safety food under section 9-29(d)(1) if not either hot held as specified under section 9-29(f)(1), served immediately, or held using time as a public health control as specified under section 9-29(i) after complete cooking;[P] and

(6) Prepared and stored according to written procedures that:

a. Have obtained prior approval from the regulatory authority;[Pf]

b. Are maintained in the food establishment and are available to the Department upon request;[Pf]

c. Describe how the requirements specified under paragraphs (1) through (5) of this subsection are to be monitored and documented by the permit holder and the corrective actions to be taken if the requirements are not met;[Pf]

d. Describe how the foods, after initial heating, but prior to complete cooking, are to be marked or otherwise identified as foods that must be cooked as specified under paragraph (4) of this subsection prior to being offered for sale or service;[Pf] and

e. Describe how the foods, after initial heating but prior to cooking as specified under paragraph (4) of this subsection, are to be separated from ready-to-eat foods as specified under section 9-19(a)(1).[Pf]

(e) *Vertical broiler cooking.*

(1) Food cooked in a vertical broiler must be cooked according to the time temperature appropriate for the food.[P]

(2) Food cooked in a vertical broiler must be completely cooked according to a time temperature appropriate for the food within four (4) hours of the start of the cooking process.[P]

(3) A vertical broiler being used to cook food must be continuously on and rotating until four (4) hours have elapsed or the food is fully cooked, whichever is first.[P]

(4) Foods that are shaved and are not used for immediate service must be kept as specified in section 9-29(f)(1) until the meat is fully cooked.[P]

(5) Food cooked in a vertical broiler must receive a final cooking step according to the time temperature appropriate for the food type.[P]

(6) Food cooked or heated using a vertical broiler must be discarded at the end of the day on which it was cooked or heated.[P]

(f) *Manufacturer cooking instructions.*

(1) Commercially packaged food that bears a manufacturer's cooking instruction must be cooked according to those instructions before use in ready-to-eat foods or offered in unpackaged form for human consumption, unless the manufacturer's instructions specify that the food may be consumed without cooking.[P]

(2) When used in ready-to-eat foods or offered for human consumption, food for which

the manufacturer has provided information that it has not been processed to control pathogens must be cooked according to a time and temperature appropriate for the food.[P]

(g) *Outdoor grilling.*

(1) Outdoor grilling by all food establishments must comply with food establishment standards of the Food Code.[P]

(2) Outdoor grilling at temporary events must be approved by the department in accordance with the temporary food establishment guidelines in section 9-59.[P]

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-26. Freezing.

(a) *Parasite destruction.*

(1) Except as specified in paragraph (2) of this subsection, before service or sale in ready-to-eat form, raw, raw-marinated, partially cooked, or marinated- partially cooked fish must be kept as follows:

a. Frozen and stored at a temperature of -20°C (-4°F) or below for a minimum of one hundred sixty-eight (168) hours (seven (7) days) in a freezer;[P]

b. Frozen at -35°C (-31°F) or below until solid and stored at -35°C (-31°F) or below for a minimum of fifteen (15) hours;[P] or

c. Frozen at -35°C (-31°F) or below until solid and stored at -20°C (-4°F) or below for a minimum of twenty-four (24) hours.[P]

(2) Paragraph (1) of this subsection does not apply to:

a. Molluscan shellfish;

b. A scallop product consisting only of the shucked adductor muscle;

c. Tuna of the species Thunnus alalunga, Thunnus albacares (Yellowfin tuna), Thunnus atlanticus, Thunnus maccoyii (Bluefin tuna, Southern), Thunnus obesus (Bigeye tuna), or Thunnus thynnus (Bluefin tuna, Northern); or

d. Aquacultured fish, such as salmon, that:

(i) If raised in open water, are raised in net-pens, or

(ii) Are raised in land-based operations such as ponds or tanks, and

(iii) Are fed formulated feed, such as pellets, that contains no live parasites infective to the aquacultured fish.

e. Fish eggs that have been removed from the skein and rinsed.

(b) *Records, creation and retention.*

(1) Except as specified in subsection (a)(2) and paragraph (2) of this subsection, if raw, raw-marinated, partially cooked, or marinated-partially cooked fish are served or sold in ready-to-eat form, the person in charge shall record the freezing temperature and time to which the fish are subjected and shall retain the records of the food establishment for ninety (90) calendar days beyond the time of service or sale of the fish.[Pf]

(2) If the fish are frozen by a supplier, a written agreement or statement from the supplier stipulating that the fish supplied are frozen to a temperature and for a time specified under subsection (a) may substitute for the records specified under paragraph (1) of this subsection.

(3) If raw, raw-marinated, partially cooked, or marinated-partially cooked fish are served or sold in ready-to-eat form, and the fish are raised and fed as specified in subparagraph (a)(2)d., a written agreement or statement from the supplier or aquaculturist stipulating that the fish were raised and fed as specified in Subparagraph (a)(2)d. must be obtained by the person in charge and retained in

the records of the food establishment for ninety (90) calendar days beyond the time of service or sale of the fish.[Pf]

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-27. Reheating for hot holding.

(a) Except as specified under subsections (b), (c), and (e) of this section, time/temperature control for safety food that is cooked, cooled, and reheated for hot holding must be reheated so that all parts of the food reach a temperature of at least 74°C (165°F) for fifteen (15) seconds.[P]

(b) Except as specified under subsection (c) of this section, time/temperature control for safety food reheated in a microwave oven for hot holding must be reheated so that all parts of the food reach a temperature of at least 74°C (165°F) and the food is rotated or stirred, covered, and allowed to stand covered for two (2) minutes after reheating.[P]

(c) Ready-to-eat time/temperature control for safety food that has been commercially processed and packaged in a food processing plant that is inspected by the regulatory authority that has jurisdiction over the plant, must be heated to a temperature of at least 57°C (135°F) when being reheated for hot holding.[P]

(d) Reheating for hot holding as specified under subsections (a) through (c) of this section must be done rapidly and the time the food is between 5°C (41°F) and the temperatures specified under subsections (a) through (c) of this section may not exceed two (2) hours.[P]

(e) Remaining unsliced portions of meat roasts that are cooked as specified under section 9-25(a)(2) may be reheated for hot holding using the oven parameters and minimum time and temperature conditions specified under section 9-25(a)(2).

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-28. Treating juices.

Juices packaged in a food establishment must be:

(1) Treated under a HACCP plan as specified in section 9-65(a)(3) to attain a 5-log reduction, which is equal to a 99.999 percent reduction, of the most resistant microorganism of public health significance;[P] or

(2) Labeled, if not treated to yield a 5-log reduction of the most resistant microorganism of public health significance: [Pf]

a. As specified under section 9-32(a), and

b. As specified in 21 CFR 101.17(g) Food Labeling, Warning, Notice, and Safe Handling Statements, juices that have not been specifically processed to prevent, reduce, or eliminate the presence of pathogens with the following, "WARNING: This product has not been pasteurized and, therefore, may contain harmful bacteria that can cause serious illness in children, the elderly, and persons with weakened immune systems."[Pf]

(Ord. No. 2025-4-2, § 1, 4-14-25)

DIVISION 4. LIMITATION OF GROWTH OF ORGANISMS OF PUBLIC HEALTH CONCERN

Sec. 9-29. Temperature and time control.

(a) *Frozen food.* Stored frozen foods must be maintained frozen.

(b) *Time/temperature control for safety food, slacking.* Frozen time/temperature control for safety food that is slacked to moderate the temperature must be held:

(1) Under refrigeration that maintains the food temperature at 5°C (41°F) or less; or

(2) At any temperature if the food remains frozen.

(c) *Thawing.* Except as specified in paragraph (4) of this subsection, time/temperature control for safety food must be thawed:

(1) Under refrigeration that maintains the food temperature at 5°C (41°F) or less;[Pf] or

(2) Completely submerged under running water:

a. At a water temperature of 21°C (70°F) or below,[Pf]

b. With sufficient water velocity to agitate and float off loose particles in an overflow,[Pf] and

c. For a period of time that does not allow thawed portions of ready-to-eat food to rise above 5°C (41°F),[Pf] or

d. For a period of time that does not allow thawed portions of a raw animal food requiring cooking as specified under section 9-25(a)(1) or (2) to be above 5°C (41°F), for more than four (4) hours including:

(i) The time the food is exposed to the running water and the time needed for preparation for cooking,[Pf] or

(ii) The time it takes under refrigeration to lower the food temperature to 5°C (41°F);[Pf]

(3) As part of a cooking process if the food that is frozen is:

a. Cooked as specified under section 9-25(a)(1) or (2) or section 9-25(b) or (f),[Pf] or

b. Thawed in a microwave oven and immediately transferred to conventional cooking equipment, with no interruption in the process;[Pf] or

(4) Using any procedure if a portion of frozen ready-to-eat food is thawed and prepared for immediate service in response to an individual consumer's order.

(5) Reduced oxygen packaged fish that bears a label indicating that it is to be kept frozen until time of use must be removed from the reduced oxygen environment:

a. Prior to its thawing under refrigeration as specified in paragraph (1) of this subsection; or

b. Prior to, or immediately upon completion of, its thawing using procedures specified in paragraph (2) of this subsection.

(d) *Cooling.*

(1) Cooked time/temperature control for safety food must be cooled:

a. Within two (2) hours from 57°C (135°F) to 21°C (70°F);[P] and

b. Within a total of six (6) hours from 57°C (135°F) to 5°C (41 °F) or less.[P]

(2) Time/temperature control for safety food must be cooled within four (4) hours to 5°C (41°F) or less if prepared from ingredients at ambient temperature, such as reconstituted foods and canned tuna.[P]

(3) Except as specified under paragraph (4) of this subsection, a time/temperature control for safety food received in compliance with laws allowing a temperature above 5°C (41°F) during shipment from the supplier as specified in section 9-15(a)(2), must be cooled within four (4) hours to 5°C (41°F) or less.[P]

(4) Raw eggs must be received as specified under section 9-15(a)(3) and immediately placed in refrigerated equipment that maintains an ambient air temperature of 7°C (45°F) or less.[P]

(e) *Cooling methods.*

(1) Cooling must be accomplished in accordance with the time and temperature criteria specified under subsection (d) of this section by using one (1) or more of the following methods based on the type of food being cooled:

a. Placing the food in shallow pans.[Pf]

b. Separating the food into smaller or thinner portions.[Pf]

c. Using rapid cooling equipment.[Pf]

d. Stirring the food in a container placed in an ice water bath.[Pf]

e. Using containers that facilitate heat transfer.[Pf]

f. Adding ice as an ingredient.[Pf]

g. Other effective methods.[Pf]

(2) When placed in cooling or cold holding equipment, food containers in which food is being cooled must be:

a. Arranged in the equipment to provide maximum heat transfer through the container walls; and

b. Loosely covered, or uncovered if protected from overhead contamination as specified under section 9-22(a)(1)b., during the cooling period to facilitate heat transfer from the surface of the food.

(f) *Time/temperature control for safety food, hot and cold holding.*

(1) Except during preparation, cooking, or cooling, or when time is used as the public health control as specified under section 9-29(i), and except as specified under paragraphs (2) and (3) of this subsection, time/temperature control for safety food must be maintained:

a. At 57°C (135°F) or above, except that roasts cooked to a temperature and for a time specified in section 9-25(a)(2) or reheated as specified in section 9-27(e) may be held at a temperature of 54°C (130°F) or above;[P] or

b. At 5°C (41 °F) or less.[P]

(2) Eggs that have not been treated to destroy all viable Salmonellae must be stored in refrigerated equipment that maintains an ambient air temperature of 7°C (45°F) or less.[P]

(3) Time/temperature control for safety food in a homogenous liquid form may be maintained outside of the temperature control requirements, as specified under paragraph (1) of this subsection, while contained within specially designed equipment that complies with the design and construction requirements as specified under section 9-37(d)(3)e.

(g) *Ready-to-eat, time/temperature control for safety food, date marking.*

(1) *In general.* Except when packaging food using a reduced oxygen packaging method as specified under section 9-30(b), and except as specified in paragraphs (2)e. and (2)f. of this subsection, refrigerated, ready-to-eat, time/temperature control for safety food prepared and held in a food establishment for more than twenty-four (24) hours must be clearly marked to indicate the date or day food was prepared and by which date or day the food must be consumed on the premises, sold, or discarded when held at a temperature of 5°C (41°F) or less for a maximum of seven (7) days. The day of preparation must be counted as Day 1.[Pf]

(2) *Commercially processed food.*

a. Except as specified in subparagraphs d.—f. of this paragraph, refrigerated, ready-to-eat time/temperature control for safety food prepared and packaged by a food processing plant must be clearly marked, at the time the original container is opened in a food establishment and if the food is held for more than twenty-four (24) hours, to indicate the date or day on which the food was opened and the date or day by which the food must be consumed on the premises, sold, or discarded, based on the temperature and time combinations specified in paragraph (1) of this subsection.[Pf] The day the original container is opened in the food establishment must be counted as Day 1.[Pf] The day or date marked by the food establishment may not exceed a manufacturer's use-by date if the manufacturer determined the use-by date based on food safety.[Pf]

b. A refrigerated, ready-to-eat time/temperature control for safety food ingredient or a portion of a refrigerated, ready-to-eat, time/temperature control for safety food that is

subsequently combined with additional ingredients or portions of food must retain the date marking of the earliest-prepared or first-prepared ingredient.[Pf]

c. A date marking system that meets the criteria stated in paragraphs (1) and (2)a. and b. of this subsection may include:

(i) Using a method approved by the regulatory authority for refrigerated, ready-to-eat time/temperature control for safety food that is frequently rewrapped, such as lunchmeat or a roast, or for which date marking is impractical, such as soft serve mix or milk in a dispensing machine;

(ii) Marking the date or day of preparation, with a procedure to discard the food on or before the last date or day by which the food must be consumed on the premises, sold, or discarded as specified under paragraph (1) of this subsection;

(iii) Marking the date or day the original container is opened in a food establishment, with a procedure to discard the food on or before the last date or day by which the food must be consumed on the premises, sold, or discarded as specified under paragraph (2)a. of this subsection; or

(iv) Using calendar dates, days of the week, color-coded marks, or other effective marking methods, provided that the marking system is disclosed to the regulatory authority upon request.

d. Paragraphs (1) and (2)a. of this subsection do not apply to individual meal portions served or repackaged for sale from a bulk container upon a consumer's request.

e. Paragraphs (1) and (2)a. of this subsection do not apply to shellstock.

f. Paragraph (2)a. of this subsection does not apply to the following foods prepared and packaged by a food processing plant inspected by a regulatory authority:

(i) Deli salads, such as ham salad, seafood salad, chicken salad, egg salad, pasta salad, potato salad, and macaroni salad, manufactured in accordance with 21 CFR 117 Current Good Manufacturing Practice in Manufacturing, Packing, or Holding Human Food;

(ii) Hard cheeses containing not more than thirty-nine (39) percent moisture as defined in 21 CFR 133 Cheeses and Related Cheese Products, such as Cheddar, Gruyere, Parmesan and Reggiano, and Romano;

(iii) Semi-soft cheeses containing more than thirty-nine (39) percent moisture, but not more than fifty (50) percent moisture, as defined in 21 CFR 133 Cheeses and related Cheese Products, such as Blue, Edam, Gorgonzola, Gouda, and Monterey Jack;

(iv) Cultured dairy products as defined in 21 CFR 131 Milk and Cream, such as Yogurt, Sour Cream, and Buttermilk;

(v) Preserved fish products, such as pickled herring and dried or salted cod, and other acidified fish products defined in 21 CFR 114 Acidified Foods;

(vi) Shelf stable, dry fermented sausages, such as pepperoni and Genoa; and

(vii) Shelf stable salt-cured products such as prosciutto and Parma (ham).

(h) *Ready-to-eat, time/temperature control for safety food, disposition.*

(1) A food specified in subsections (g)(1) and (g)(2)a. of this section must be discarded if it exceeds the temperature and time combination specified in subsection (g)(1) except time that the product is frozen,[P] is in a container or package that does not bear a date or day,[P] or is inappropriately marked with a date or day that exceeds a temperature and time combination as specified in subsection (g)(1).[P]

(2) Refrigerated, ready-to-eat, time/temperature control for safety food prepared in a food establishment and dispensed through a vending machine with an automatic shutoff control must be discarded if it exceeds a temperature and time combination as specified in subsection (g)(1) of this section.[P]

(i) *Time as a public health control.*

(1) Except as specified under paragraph (4) of this subsection, if time without temperature control is used as the public health control for a working supply of time/temperature control for safety food before cooking, or for ready-to-eat time/temperature control for safety food that is displayed or held for sale or service:

a. Written procedures must be prepared in advance, maintained in the food establishment and made available to the department upon request that specify:[Pf]

(i) Methods of compliance with subparagraphs (2)a. through d. or (3)a. through e. of this subsection;[Pf] and

(ii) Methods of compliance with subsection (d) of this section for food that is prepared, cooked, and refrigerated before time is used as a public health control.[Pf]

(2) If time without temperature control is used as the public health control up to a maximum of four (4) hours:

a. Except as specified in paragraph (2)b., the food must have an initial temperature of 5°C (41°F) or less when removed from cold holding temperature control, or 57°C (135°F) or greater when removed from hot holding temperature control;[P]

b. The food may have an initial temperature of 21°C (70°F) or less if:

(i) It is a ready-to-eat fruit or vegetable that upon cutting is rendered a time/temperature control for safety food as defined in section 9-5; or

(ii) It is a ready-to-eat hermetically sealed food that upon opening is rendered a time/temperature control for safety food a defined in section 9-5;

(iii) The food temperature does not exceed 21°C (70°F) within a maximum time period of four (4) hours from the time it was rendered a time/temperature control for safety food; and

(iv) The food is marked or otherwise identified to indicate the time that is four (4) hours past the point in time when the food is rendered a time/temperature control for safety food as specified in subparagraphs (2)b.(i) and (ii) of this subsection;

c. The food must be marked or otherwise identified to indicate the initial temperature of the food item when removed from temperature control, the time removed from temperature control, and time that is four (4) hours past the point in time when the food is removed from temperature control;[Pf]

d. The food must be cooked and served, served at any temperature if ready-

to-eat, or discarded, within four (4) hours from the point in time when the food is removed from temperature control;[P] and

e. The food in unmarked containers or packages, or marked to exceed a four-hour limit must be discarded.[P]

(3) If time without temperature control is used as the public health control up to a maximum of six (6) hours:

a. The food must have an initial temperature of 5°C (41°F) or less when removed from temperature control, and the food temperature may not exceed 21°C (70°F) within a maximum time period of six (6) hours;[P]

b. The food must be monitored to ensure the warmest portion of the food does not exceed 21°C (70°F) during the six-hour period, unless an ambient air temperature is maintained that ensures the food does not exceed 21°C (70°F) during the six-hour holding period;[Pf]

c. The food must be marked or otherwise identified to indicate the time when the food is removed from 5°C (41°F) or less cold holding temperature control, [Pf] and the time that is six (6) hours past the point in time when the food is removed from cold holding temperature control;[Pf]

d. The food must be discarded if the temperature of the food exceeds 21°C (70°F), [P] or cooked and served, served at any temperature if ready-to-eat, or discarded within a maximum of six (6) hours from the point in time when the food is removed from 5°C (41°F) or less cold holding temperature control;[P] and

e. The food in unmarked containers or packages, or marked with a time that exceeds the six-hour limit must be discarded.[P]

(4) A food establishment that serves a highly susceptible population may not use time as specified under paragraphs (1), (2) or (3) of this subsection as the public health control for raw eggs.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-30. Specialized processing methods.

(a) *Variance requirement.* A food establishment must obtain a variance from the department as specified in section 9-64(c)(1) and under section 9-64(c)(2) before any of the following[Pf]:

(1) Smoking food as a method of food preservation rather than as a method of flavor enhancement.[Pf]

(2) Curing food.[Pf]

(3) Using food additives or adding components such as vinegar[Pf] as a method of food preservation rather than as a method of flavor enhancement,[Pf] or to render a food so that it is not time/temperature control of safety food.[Pf]

(4) Packaging time/temperature control for safety food using a reduced oxygen packaging method except where the growth of and toxin formation by *Clostridium botulinum* and the growth of *Listeria monocytogenes* are controlled as specified under subsection (b) of this section.[Pf]

(5) Operating a molluscan shellfish life-support system display tank used to store or display shellfish that are offered for human consumption.[Pf]

(6) Custom processing animals that are for personal use as food and not for sale or service in a food establishment.[Pf]

(7) Preparing food by another method that is determined by the department to require a variance.[Pf]

(8) Sprouting seeds or beans.[Pf]

(b) *Reduced oxygen packaging without a variance, criteria.*

(1) Except for a food establishment that obtains a variance as specified under Subsection (a) of this section, a food

establishment that packages time/temperature control for safety food using a reduced oxygen packaging method must control the growth and toxin formation of *Clostridium botulinum* and the growth of Listeria monocytogenes.[P]

(2) Except as specified under paragraph (6) of this subsection, a food establishment that packages time/temperature control for safety food using a reduced oxygen packaging method must implement a HACCP plan that contains the information specified under sections 9-65(a)(3)c. and d. and that:[Pf]

a. Identifies the food to be packaged;[Pf]

b. Except as specified under paragraphs (3) through (5) of this subsection, requires that the packaged food must be maintained at 5°C (41°F) or less and meet at least one of the following criteria:[Pf]

(i) Has an AW of 0.91 or less,[Pf]

(ii) Has a PH of 4.6 or less,[Pf]

(iii) Is a meat or poultry product cured at a food processing plant regulated by the USDA using substances specified in 9 CFR 424.21, Use of Food Ingredients and Sources of Radiation, and is received in an intact package,[Pf] or

(iv) Is a food with a high level of competing organisms such as raw meat, raw poultry, or raw vegetables;[Pf]

c. Describes how the package must be prominently and conspicuously labeled on the principal display panel in bold type on a contrasting background, with instructions to:[Pf]

(i) Maintain the food at 5°C (41°F) or below,[Pf] and

(ii) Discard the food if within thirty (30) calendar days of its packaging if it is not served for on-premises consumption, or consumed if served or sold for off-premises consumption;[Pf]

d. Limits the refrigerated shelf life to no more than thirty (30) calendar days from packaging to consumption, except the time the product is maintained frozen, or the original manufacturer's "sell by" or "use by" date, whichever occurs first;[P]

e. Includes operational procedures that:

(i) Prohibit contacting ready-to-eat food with bare hands as specified under section 9-18(a)(2),[Pf]

(ii) Identify a designated work area and the method by which:[Pf]

(aa) Physical barriers or methods of separation of raw foods and ready-to-eat foods minimize cross contamination,[Pf] and

(bb) Access to the processing equipment is limited to responsible trained personnel familiar with the potential hazards of the operation,[Pf] and

(iii) Delineate cleaning and sanitization procedures for food contact surfaces;[Pf] and

f. Describes the training program that ensures that the individual responsible for the reduced oxygen packaging operation understands the:[Pf]

(i) Concepts required for a safe operation,[Pf]

(ii) Equipment and facilities,[Pf] and

(iii) Procedures specified under paragraph (2)e. of this subsection and sections 9-65(a)(3)c. and d.[Pf]

g. Is provided to the Department prior to implementation as specified under section 9-65.

(3) Except for fish that is frozen before, during, and after packaging and bears a label indicating that it is to be kept frozen until time of use, a food establishment may not package fish using a reduced oxygen packaging method.[P]

(4) Except as specified under paragraphs (3) and (6) of this subsection, a food establishment that packages time/temperature control for safety food using a cookchill or sous vide process must:

a. Provide to the department prior to implementation, a HACCP plan that contains the information as specified under sections 9-65(a)(3)c. and d.;[Pf]

b. Ensure the food is:

(i) Prepared and consumed on the premises, or prepared and consumed off the premises but within the same business entity with no distribution or sale of the packaged product to another business entity or the consumer, [Pf]

(ii) Cooked to heat all parts of the food to a temperature and for a time as specified under section 9-25(a)(1), (2), and (3),[P]

(iii) Protected from contamination before and after cooking as specified under Divisions 2 and 3 of Article III,[P]

(iv) Placed in a package with an oxygen barrier and sealed before cooking, or placed in a package and sealed immediately after cooking and before reaching a temperature below 57°C (135°F),[P]

(v) Cooled to 5°C (41 °F) in the sealed package or bag as specified under section 9-22(d)[P] and:

(aa) Cooled to 1 °C (34°F) within forty-eight (48) hours of reaching 5°C (41 °F) and held at that temperature until consumed or discarded within thirty (30) days after the date of packaging;[P]

(bb) Held at 5°C (41 °F) or less for no more than seven (7) days, at which time the food must be consumed or discarded;[P]

(cc) Cooled to 1°C (34°F) within forty-eight (48) hours of reaching 5°C (41°F), removed from refrigeration equipment that maintains a 1°C (34°F) food temperature and then held at 5°C (41°F) or less for no more than 7 days, not to exceed thirty (30) days from its date of packaging, at which time the food must be consumed or discarded;[P] or

(dd) Held frozen with no shelf life restriction while frozen until consumed or used.[P]

(vi) Held in a refrigeration unit that is equipped with an electronic system that continuously monitors time and temperature and is visually examined for proper operation twice daily,[Pf]

(vii) If transported off-site to a satellite location of the same business entity, equipped with verifiable electronic monitoring devices to ensure that times and temperatures are monitored during transportation,[Pf] and

(viii) Labeled with the product name and the date packaged;[Pf] and

c. Maintain the records required to confirm that cooling and cold hold-

ing refrigeration time/temperature parameters are required as part of the HACCP plan and:

(i) Make such records available to the department upon request,[Pf] and

(ii) Hold such records for at least six (6) months;[Pf] and

d. Implement written operational procedures as specified under paragraph (2)e. of this subsection and a training program as specified under paragraph (2)e. of this subsection.[Pf]

(5) Except as specified under paragraph (6) of this subsection, a food establishment that packages cheese using a reduced oxygen packaging method must:

a. Limit the cheeses packaged to those that are commercially manufactured in a food processing plant with no ingredients added in the food establishment and that meet the Standards of Identity as specified in 21 CFR 133.150 Hard Cheeses, 21 CFR 133.169 Pasteurized Process Cheese, or 21 CFR 133.187 Semisoft Cheeses;[P]

b. Have a HACCP plan that contains the information specified under section 9-65(a)(3)c. and d. and as specified under paragraphs (2)a., (2)c.(i), (2)e. and (2)f. of this subsection;[Pf]

c. Labels the package on the principal display panel with a "use by" date that does not exceed thirty (30) days from its packaging or the original manufacturer's "sell by" or "use by" date, whichever occurs first;[Pf] and

d. Discards the reduced oxygen packaged cheese if it is not sold for off-premises consumption or consumed within thirty (30) calendar days of its packaging.[Pf]

(6) A HACCP plan is not required when a food establishment uses a reduced oxygen packaging method to package time/temperature control for safety food that is always:

a. Labeled with the production time and date,

b. Held at 5°C (41°F) or less during refrigerated storage, and

c. Removed from its package in the food establishment within forty-eight (48) hours after packaging.

(Ord. No. 2025-4-2, § 1, 4-14-25)

DIVISION 5. FOOD IDENTITY, PRESENTATION, AND ON-PREMISES LABELING

Sec. 9-31. Accurate representation.

(a) *Standards of identity.* Packaged food must comply with standard of identity requirements in 21 CFR 131-169 and 9 CFR 319 Definitions and standards of identity or composition, and the general requirements in 21 CFR 130 - Food Standards: General and 9 CFR 319 Subpart A - General.

(b) *Honestly presented.*

(1) Food must be offered for human consumption in a way that does not mislead or misinform the consumer.

(2) Food or color additives, colored overwraps, or lights may not be used to misrepresent the true appearance, color, or quality of a food.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-32. Labeling.

(a) *Food labels.*

(1) Food packaged in a food establishment, must be labeled as specified in law, including 21 CFR 101 - Food Labeling, and 9 CFR 317 Labeling, Marking Devices, and Containers.

(2) Label information must include:

a. The common name of the food, or absent a common name, an adequately descriptive identity statement;

b. If made from two or more ingredients, a list of ingredients and sub-ingredients in descending order of predominance by weight, including a declaration of artificial colors, artificial flavors and chemical preservatives, if contained in the food;

c. An accurate declaration of the net quantity of contents;

d. The name and place of business of the manufacturer, packer, or distributor;

e. The name of the food source for each major food allergen contained in the food unless the food source is already part of the common or usual name of the respective ingredient;[Pf]

f. Except as exempted in the Federal Food, Drug, and Cosmetic Act § 403(q)(3)—(5), nutrition labeling as specified in 21 CFR 101 - Food Labeling and 9 CFR 317 Subpart B Nutrition Labeling; and

g. For any salmonid fish containing canthaxanthin or astaxanthin as a color additive, the labeling of the bulk fish container, including a list of ingredients, displayed on the retail container or by other written means, such as a counter card, that discloses the use of canthaxanthin or astaxanthin.

(3) Bulk food that is available for consumer self-dispensing must be prominently labeled with the following information in plain view of the consumer:

a. The manufacturer's or processor's label that was provided with the food; or

b. A card, sign, or other method of notification that includes the information specified under Subparagraphs (2)a., b., e. and f. of this subsection.

(4) Bulk, unpackaged foods such as bakery products and unpackaged foods that are portioned to consumer specification need not be labeled if:

a. A health, nutrient content, or other claim is not made;

b. There are no state or local laws requiring labeling; and

c. The food is manufactured or prepared on the premises of the food establishment or at another food establishment or a food processing plant that is owned by the same person and is regulated by the food regulatory agency that has jurisdiction.

(b) *Other forms of information.*

(1) If required by law, consumer warnings must be provided.

(2) Food establishment or manufacturers' dating information on foods may not be concealed or altered.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-33. Consumer advisory.

(a) *Consumption of animal foods that are raw, undercooked, or not otherwise processed to eliminate pathogens.*

(1) Except as specified in section 9-25(a)(3) and section 9-25(a)(4)d. and under section 9-35(a)(3), if an animal food such as beef, eggs, fish, lamb, milk, pork, poultry, or shellfish is served or sold raw, undercooked, or without otherwise being processed to eliminate pathogens, either in ready-to-eat form or as an ingredient in another ready-to-eat food, the permit holder shall inform consumers of the significantly increased risk of consuming such foods by way of a disclosure and reminder, as specified in paragraphs (2) and (3) of this subsection using brochures,

deli case or menu advisories, label statements, table tents, placards, or other effective written means.[Pf]

(2) The disclosure must include:

a. A description of the animal-derived foods, such as "oysters on the half shell (raw oysters)," "raw-egg Caesar salad," and "hamburgers (can be cooked to order)";[Pf] or

b. Identification of the animal-derived foods by asterisking them to a footnote that states that the items are served raw or undercooked, or contain (or may contain) raw or undercooked ingredients.[Pf]

(3) A reminder must include asterisking the animal-derived foods requiring disclosure to a footnote that states:

a. Regarding the safety of these items, written information is available upon request;[Pf]

b. Consuming raw or undercooked meats, poultry, seafood, shellfish, or eggs may increase your risk of foodborne illness;[Pf] or

c. Consuming raw or undercooked meats, poultry, seafood, shellfish, or eggs may increase your risk of foodborne illness, especially if you have certain medical conditions.[Pf]

(Ord. No. 2025-4-2, § 1, 4-14-25)

DIVISION 6. CONTAMINATED FOOD

Sec. 9-34. Disposition.

(a) *Discarding or reconditioning unsafe, adulterated, or contaminated food.*

(1) A food that is unsafe, adulterated, or not honestly presented as specified under section 9-13 must be discarded or reconditioned according to an approved procedure.[P]

(2) Food that is not from an approved source as specified under subsections 9-14(a)—(g) must be discarded.[P]

(3) Ready-to-eat food that may have been contaminated by an employee who has been restricted or excluded as specified under section 9-8 must be discarded.[P]

(4) Food that is contaminated by food employees, consumers, or other persons through contact with their hands, bodily discharges, such as nasal or oral discharges, or other means must be discarded.[P]

(Ord. No. 2025-4-2, § 1, 4-14-25)

DIVISION 7. SPECIAL REQUIREMENTS FOR HIGHLY SUSCEPTIBLE POPULATIONS

Sec. 9-35. Additional safeguards.

(a) *Pasteurized foods, prohibited re-service, and prohibited food.* In a food establishment that serves a highly susceptible population:

(1) The following criteria apply to juice:

a. For the purposes of this paragraph only, children who are age nine (9) or less and receive food in a school, day care setting, or similar facility that provides custodial care are included as highly susceptible populations;

b. Prepackaged juice or a prepackaged beverage containing juice, that bears a warning label as specified in 21 CFR, 101.17(g) Food Labeling, Warning, Notice, and Safe Handling Statements, juices that have not been specifically processed to prevent, reduce, or eliminate the presence of pathogens, or a packaged juice or beverage containing juice, that bears a warning label as specified under section 9-28(2) may not be served or offered for sale;[P] and

c. Unpackaged juice that is prepared on the premises for service or sale in a ready-to-eat form must be processed under a HACCP plan that contains the information specified under sections 9-65(a)(3)c.—e. and as specified in 21 CFR Part 120 -

Hazard Analysis and Critical Control Point (HACCP) Systems, Subpart B Pathogen Reduction, 120.24 Process Controls.[P]

(2) Pasteurized eggs or egg products must be substituted for raw eggs in the preparation of:[P]

a. Foods such as Caesar salad, hollandaise or Bearnaise sauce, mayonnaise, meringue, eggnog, ice cream, and egg-fortified beverages,[P] and

b. Except as specified in paragraph (6) of this subsection, recipes in which more than one egg is broken and the eggs are combined.[P]

(3) The following foods may not be served or offered for sale in a ready-to-eat form:[P]

a. Raw animal foods such as raw fish, raw-marinated fish, raw molluscan shellfish, and steak tartare,[P]

b. A partially cooked animal food such as lightly cooked fish, rare meat, soft-cooked eggs that are made from raw eggs, and meringue,[P]

c. Raw seed sprouts,[P] and

d. Packaged food as specified under section 9-25(f).

(4) Food employees may not contact ready-to-eat food as specified under sections 9-18(a)(2) and (5).[P]

(5) Time only, as the public health control as specified under section 9-29(i)(4), may not be used for raw eggs.[P]

(6) Subparagraph (2)(b) of this subsection does not apply if:

a. The raw eggs are combined immediately before cooking for one consumer's serving at a single meal, cooked as specified under section 9-25(a)(1)a., and served immediately, such as an omelet, souffle, or scrambled eggs;

b. The raw eggs are combined as an ingredient immediately before baking and the eggs are thoroughly cooked to a ready-to-eat form, such as a cake, muffin, or bread; or

c. The preparation of the food is conducted under a HACCP plan that:

(i) Identifies the food to be prepared,

(ii) Prohibits contacting ready-to-eat food with bare hands,

(iii) Includes specifications and practices that ensure *Salmonella Enteritidis* growth is controlled before and after cooking, and *Salmonella Enteritidis* is destroyed by cooking the eggs according to the temperature and time specified in section 9-25(a)(1)b.,

(iv) Contains the information specified under section 9-65(a)(3)d., including procedures that control cross contamination of ready-to eat food with raw eggs, and delineate cleaning and sanitization procedures for food-contact surfaces, and

(v) Describes the training program that ensures that the food employee responsible for the preparation of the food understands the procedures to be used.

(b) *Re-service of food.* Except as specified in subsection (c) of this section, food may be re-served as specified under sections 9-23(d)(2)a. and b.

(c) *Prohibited re-service of food.* Food may not be re-served under the following conditions:

(1) Any food served to patients or clients who are under contact precautions in medical isolation or quarantine, or protective environment isolation may not be re-served to others outside.

(2) Packages of food from any patients, clients, or other consumers should not be reserved to persons in protective environment isolation.

(Ord. No. 2025-4-2, § 1, 4-14-25)

ARTICLE IV. EQUIPMENT, UTENSILS, AND LINENS

Sec. 9-36. Materials for construction and repair.

(a) *Multiuse.*

(1) *Characteristics.* Materials that are used in the construction of utensils and food-contact surfaces of equipment may not allow the migration of deleterious substances or impart colors, odors, or tastes to food and under normal use conditions must be:[P]

a. Safe;[P]

b. Durable, corrosion-resistant, and nonabsorbent;

c. Sufficient in weight and thickness to withstand repeated warewashing;

d. Finished to have a smooth, easily cleanable surface; and

e. Resistant to pitting, chipping, crazing, scratching, scoring, distortion, and decomposition.

(2) *Cast iron, use limitation.*

a. Except as specified in subparagraphs b. and c. of this paragraph, cast iron may not be used for utensils or food-contact surfaces of equipment.

b. Cast iron may be used as a surface for cooking.

c. Cast iron may be used in utensils for serving food if the utensils are used only as part of an uninterrupted process from cooking through service.

(3) *Lead, use limitation.*

a. Ceramic, china, and crystal utensils, and decorative utensils such as hand painted ceramic or china that are used in contact with food must be lead- free or contain levels of lead not exceeding the limits of the following utensil categories:[P]

Utensil Category	*Ceramic Article Description*	*Maximum Lead MG/L*
Beverage Mugs, Cups, Pitchers	Coffee Mugs	0.5
Large Hollowware (excluding pitchers)	Bowls > 1.1 Liter (1.16 Quart)	1
Small Hollowware (excluding cups & mugs)	Bowls < 1.1 Liter (1.16 Quart)	2.0
Flat Tableware	Plates, Saucers	3.0

b. Pewter alloys containing lead in excess of 0.05% may not be used as a food-contact surface.[P]

c. Solder and flux containing lead in excess of 0.2% may not be used as a food-contact surface.

(4) *Copper, use limitation.*

a. Except as specified in subparagraph (b) of this paragraph, copper and copper alloys such as brass may not be used in contact with a food that has a pH below six (6) such as vinegar, fruit juice, or wine or for a fitting or tubing installed between a backflow prevention device and a carbonator.[P]

b. Copper and copper alloys may be used in contact with beer brewing ingredients that have a pH below six (6) in the prefermentation and fermentation steps of a beer brewing operation such as a brewpub or microbrewery.

(5) *Galvanized metal, use limitation.* Galvanized metal may not be used for

utensils or food-contact surfaces of equipment that are used in contact with acidic food.[P]

(6) *Sponges, use limitation.* Sponges may not be used in contact with cleaned and sanitized or in-use food-contact surfaces.

(7) *Wood, use limitation.*

a. Except as specified in subparagraphs b., c., and d. of this paragraph, wood and wood wicker may not be used as a food-contact surface.

b. Hard maple or an equivalently hard, close-grained wood may be used for:

(i) Cutting boards; cutting blocks; bakers' tables; and utensils such as rolling pins, doughnut dowels, salad bowls, and chopsticks; and

(ii) Wooden paddles used in confectionery operations for pressure scraping kettles when manually preparing confections at a temperature of 110°C (230°F) or above.

c. Whole, uncut, raw fruits and vegetables, and nuts in the shell may be kept in the wood shipping containers in which they were received, until the fruits, vegetables, or nuts are used.

d. If the nature of the food requires removal of rinds, peels, husks, or shells before consumption, the whole, uncut, raw food may be kept in:

(i) Untreated wood containers; or

(ii) Treated wood containers if the containers are treated with a preservative that meets the requirements specified in 21 CFR 178.3800 Preservatives for Wood.

(8) *Nonstick coatings, use limitation.* Multiuse kitchenware such as frying pans, griddles, sauce pans, cookie sheets, and waffle bakers that have a perfluorocarbon resin coating must be used with nonscoring or nonscratching utensils and cleaning aids.

(9) *Nonfood-contact surfaces.* Nonfood-contact surfaces of equipment that are exposed to splash, spillage, or other food soiling or that require frequent cleaning must be constructed of a corrosion-resistant, nonabsorbent, and smooth material.

(b) *Single-service or single-use.*

(1) *Characteristics.* Materials that are used to make single-service and single-use articles:

a. May not allow the migration of deleterious substances,[P] or impart colors, odors, or tastes to food; and

b. Must be safe[P] and clean.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-37. Design and construction.

(a) *Durability and strength.*

(1) *Equipment and utensils.* Equipment and utensils must be designed and constructed to be durable and to retain their characteristic qualities under normal use conditions.

(2) *Food temperature measuring devices.* Food temperature measuring devices may not have sensors or stems constructed of glass, except that thermometers with glass sensors or stems that are encased in a shatterproof coating such as candy thermometers may be used.[P]

(b) *Cleanability.*

(1) *Food-contact surfaces.*

a. Multiuse food-contact surfaces must be:

(i) Smooth;[Pf]

(ii) Free of breaks, open seams, cracks, chips, inclusions, pits, and similar imperfections;[Pf]

(iii) Free of sharp internal angles, corners, and crevices;[Pf]

(iv) Finished to have smooth welds and joints;[Pf] and

(v) Except as specified in subparagraph (b) of this paragraph, accessible for cleaning and inspection by one of the following methods:

(aa) Without being disassembled,[Pf]

(bb) By disassembling without the use of tools,[Pf] or

(cc) By easy disassembling with the use of handheld tools commonly available to maintenance and cleaning personnel such as screwdrivers, pliers, open-end wrenches, and Allen wrenches.[Pf]

b. Subparagraph a.(v) of this subsection does not apply to cooking oil storage tanks, distribution lines for cooking oils, or beverage syrup lines or tubes.

(2) *CIP equipment.*

a. CIP equipment must meet the characteristics specified under section 9-37(b)(1) and must be designed and constructed so that:

(i) Cleaning and sanitizing solutions circulate throughout a fixed system and contact all interior food-contact surfaces,[Pf] and

(ii) The system is self-draining or capable of being completely drained of cleaning and sanitizing solutions; and

b. CIP equipment that is not designed to be disassembled for cleaning must be designed with inspection access points to ensure that all interior food contact surfaces throughout the fixed system are being effectively cleaned.

(3) *"V" threads, use limitation.* Except for hot oil cooking or filtering equipment, "V" type threads may not be used on food-contact surfaces.

(4) *Hot oil filtering equipment.* Hot oil filtering equipment must meet the characteristics specified under sections 9-37(b)(1) and (2) and must be readily accessible for filter replacement and cleaning of the filter.

(5) *Can openers.* Cutting or piercing parts of can openers must be readily removable for cleaning and for replacement.

(6) *Nonfood-contact surfaces.* Nonfood-contact surfaces must be free of unnecessary ledges, projections, and crevices, and designed and constructed to allow easy cleaning and to facilitate maintenance.

(7) *Kick plates, removable.* Kick plates must be designed so that the areas behind them are accessible for inspection and cleaning by being:

a. Removable by one of the methods specified under section 9-37(b)(1)a.(v) or capable of being rotated open; and

b. Removable or capable of being rotated open without unlocking equipment doors.

(8) *Ventilation hood systems, filters.* Filters or other grease extracting equipment must be designed to be readily removable for cleaning and replacement if not designed to be cleaned in place.

(c) *Accuracy.*

(1) *Temperature measuring devices, food.*

a. Food temperature measuring devices that are scaled only in Celsius or dually scaled in Celsius and Fahrenheit must be accurate to ±1°C in the intended range of use.[Pf]

b. Food temperature measuring devices that are scaled only in Fahrenheit must be accurate to ±2°F in the intended range of use.[Pf]

(2) *Temperature measuring devices, ambient air and water.*

a. Ambient air and water temperature measuring devices that are scaled

in Celsius or dually scaled in Celsius and Fahrenheit must be designed to be easily readable and accurate to ±1.5°C in the intended range of use.[Pf]

b. Ambient air and water temperature measuring devices that are scaled only in Fahrenheit must be accurate to ±3°F in the intended range of use.[Pf]

(3) *Pressure measuring devices, mechanical warewashing equipment.* Pressure measuring devices that display the pressures in the water supply line for the fresh hot water sanitizing rinse must have increments of 7 kilopascals (1 pound per square inch) or smaller and must be accurate to ±14 kilopascals (±2 pounds per square inch) in the range indicated on the manufacturer's data plate.

(d) *Functionality.*

(1) *Ventilation hood systems, drip prevention.* Exhaust ventilation hood systems in food preparation and warewashing areas including components such as hoods, fans, guards, and ducting must be designed to prevent grease or condensation from draining or dripping onto food, equipment, utensils, linens, and single-service and single-use articles.

(2) *Equipment openings, closures and deflectors.*

a. A cover or lid for equipment must overlap the opening and be sloped to drain.

b. An opening located within the top of a unit of equipment that is designed for use with a cover or lid must be flanged upward at least five (5) millimeters (two-tenths of an inch).

c. Except as specified under subparagraph d. of this paragraph, fixed piping, temperature measuring devices, rotary shafts, and other parts extending into equipment must be provided with a watertight joint at the point where the item enters the equipment.

d. If a watertight joint is not provided, the piping, temperature measuring devices, rotary shafts, and other parts extending through the openings must be equipped with an apron designed to deflect condensation, drips, and dust from openings into the food, and the opening must be flanged as specified under subparagraph b. of this paragraph.

(3) *Dispensing equipment, protection of equipment and food.* In equipment that dispenses or vends liquid food or ice in unpackaged form:

a. The delivery tube, chute, orifice, and splash surfaces directly above the container receiving the food must be designed in a manner, such as with barriers, baffles, or drip aprons, so that drips from condensation and splash are diverted from the opening of the container receiving the food;

b. The delivery tube, chute, and orifice must be protected from manual contact such as by being recessed;

c. The delivery tube or chute and orifice of equipment used to vend liquid food or ice in unpackaged form to self-service consumers must be designed so that the delivery tube or chute and orifice are protected from dust, insects, rodents, and other contamination by a self-closing door if the equipment is:

(i) Located in an outside area that does not otherwise afford the protection of an enclosure against the rain, windblown debris, insects, rodents, and other contaminants that are present in the environment, or

(ii) Available for self-service during hours when it is not under the full-time supervision of a food employee; and

d. The dispensing equipment actuating lever or mechanism and filling device of consumer self-service beverage dispensing equipment must be designed to prevent contact with the lip-contact surface of glasses or cups that are refilled.

e. Dispensing equipment in which time/temperature control for safety food in a homogenous liquid form is maintained outside of the temperature control requirements as specified under section 9-29(f)(1) must:

(i) Be specifically designed and equipped to maintain the commercial sterility of aseptically packaged food in a homogenous liquid form for a specified duration from the time of opening the packaging within the equipment;[P] and

(ii) Conform to the requirements for this equipment as specified in NSF/ANSI 18-2006-Manual Food and Beverage Dispensing Equipment.[P]

(4) *Vending machine, vending stage closure.* The dispensing compartment of a vending machine including a machine that is designed to vend prepackaged snack food that is not time/temperature control for safety food such as chips, party mixes, and pretzels must be equipped with a self-closing door or cover if the machine is:

a. Located in an outside area that does not otherwise afford the protection of an enclosure against the rain, windblown debris, insects, rodents, and other contaminants that are present in the environment; or

b. Available for self-service during hours when it is not under the full-time supervision of a food employee.

(5) *Bearings and gear boxes, leakproof.* Equipment containing bearings and gears that require lubricants must be designed and constructed so that the lubricant cannot leak, drip, or be forced into food or onto food-contact surfaces.

(6) *Beverage tubing, separation.* Except for cold plates that are constructed integrally with an ice storage bin, beverage tubing and cold-plate beverage cooling devices may not be installed in contact with stored ice.

(7) *Ice units, separation of drains.* Liquid waste drain lines may not pass through an ice machine or ice storage bin.

(8) *Condenser unit, separation.* If a condenser unit is an integral component of equipment, the condenser unit must be separated from the food and food storage space by a dustproof barrier.

(9) *Can openers on vending machines.* Cutting or piercing parts of can openers on vending machines must be protected from manual contact, dust, insects, rodents, and other contamination.

(10) *Molluscan shellfish tanks.*

a. Except as specified under subparagraph (b) of this subsection, molluscan shellfish life support system display tanks may not be used to store or display shellfish that are offered for human consumption and must be conspicuously marked so that it is obvious to the consumer that the shellfish are for display only.[P]

b. Molluscan shellfish life-support system display tanks that are used to store or display shellfish that are offered for human consumption must be operated and maintained in accordance with a variance granted

by the department as specified in section 9-64(c)(1) and a HACCP plan that:[Pf]

(i) Is submitted by the permit holder and approved as specified under section 9-64(c)(2);[Pf] and

(ii) Ensures that:

(aa) Water used with fish other than molluscan shellfish does not flow into the molluscan tank,[Pf]

(bb) The safety and quality of the shellfish as they were received are not compromised by the use of the tank,[Pf] and

(cc) The identity of the source of the shellstock is retained as specified under section 9-17(b).[Pf]

(11) *Vending machines, automatic shutoff.*

a. A machine vending time/temperature control for safety food must have an automatic control that prevents the machine from vending food:

(i) If there is a power failure, mechanical failure, or other condition that results in an internal machine temperature that cannot maintain food temperatures as specified under article III.[P]

(ii) If a condition specified under subparagraph a.(i) of this paragraph occurs, until the machine is serviced and restocked with food that has been maintained at temperatures specified under article III.[P]

b. When the automatic shutoff within a machine vending time/temperature control for safety food is activated:

(i) In a refrigerated vending machine, the ambient air temperature may not exceed 5°C (41°F) for more than thirty (30) minutes immediately after the machine is filled, serviced, or restocked;[P] or

(ii) In a hot holding vending machine, the ambient air temperature may not be less than 57°C (135°F) for more than one hundred twenty (120) minutes immediately after the machine is filled, serviced, or restocked.[P]

(12) *Temperature measuring devices.*

a. In a mechanically refrigerated or hot food storage unit, the sensor of a temperature measuring device must be located to measure the air temperature or a simulated product temperature in the warmest part of a mechanically refrigerated unit and in the coolest part of a hot food storage unit.

b. Except as specified in subparagraph c. of this paragraph, cold or hot holding equipment used for time/temperature control for safety food must be designed to include and must be equipped with at least one integral or permanently affixed temperature measuring device that is located to allow easy viewing of the device's temperature display.

c. Subparagraph b. of this paragraph does not apply to equipment for which the placement of a temperature measuring device is not a practical means for measuring the ambient air surrounding the food because of the design, type, and use of the equipment, such as calrod units, heat lamps, cold plates, bain-maries, steam tables, insulated food transport containers, and salad bars.

d. Temperature measuring devices must be designed to be easily readable.

e. Food temperature measuring devices and water temperature measuring

devices on warewashing machines must have a numerical scale, printed record, or digital readout in increments no greater than 1°C or 2°F in the intended range of use.[Pf]

(13) *Warewashing machine, data plate operating specifications.* A warewashing machine must be provided with an easily accessible and readable data plate affixed to the machine by the manufacturer that indicates the machine's design and operation specifications including the:

a. Temperatures required for washing, rinsing, and sanitizing;

b. Pressure required for the fresh water sanitizing rinse unless the machine is designed to use only a pumped sanitizing rinse; and

c. Conveyor speed for conveyor machines or cycle time for stationary rack machines.

(14) *Warewashing machines, internal baffles.* Warewashing machine wash and rinse tanks must be equipped with baffles, curtains, or other means to minimize internal cross contamination of the solutions in wash and rinse tanks.

(15) *Warewashing machines, temperature measuring devices.* A warewashing machine must be equipped with a temperature measuring device that indicates the temperature of the water:

a. In each wash and rinse tank;[Pf] and

b. As the water enters the hot water sanitizing final rinse manifold or in the chemical sanitizing solution tank.[Pf]

(16) *Manual warewashinq equipment, heaters and baskets.* If hot water is used for sanitization in manual warewashing operations, the sanitizing compartment of the sink must be:

a. Designed with an integral heating device that is capable of maintaining water at a temperature not less than 77°C (171°F);[Pf] and

b. Provided with a rack or basket to allow complete immersion of equipment and utensils into the hot water.[Pf]

(17) *Warewashinq machines, automatic dispensing of detergents and sanitizers.* A warewashing machine that is installed after adoption of this Code must be equipped to:

a. Automatically dispense detergents and sanitizers;[Pf] and

b. Incorporate a visual means to verify that detergents and sanitizers are delivered or a visual or audible alarm to signal if the detergents and sanitizers are not delivered to the respective washing and sanitizing cycles.[Pf]

(18) *Warewashing machines, flow pressure device.*

a. Warewashing machines that provide a fresh hot water sanitizing rinse must be equipped with a pressure gauge or similar device such as a transducer that measures and displays the water pressure in the supply line immediately before entering the warewashing machine, and if the flow pressure measuring device is upstream of the fresh hot water sanitizing rinse control valve, the device must be mounted in a 6.4 millimeter or one-fourth inch Iron Pipe Size (IPS) valve.

b. Subparagraph a. of this paragraph does not apply to a machine that uses only a pumped or recirculated sanitizing rinse.

(19) *Warewashing sinks and drainboards, self-draining.* Sinks and drainboards of warewashing sinks and machines must be self-draining.

(20) *Equipment compartments, drainage.* Equipment compartments that are subject to accumulation of moisture due to conditions such as condensation, food or bever-

age drip, or water from melting ice must be sloped to an outlet that allows complete draining.

(21) *Vending machines, liquid waste products.*

a. Vending machines designed to store beverages that are packaged in containers made from paper products must be equipped with diversion devices and retention pans or drains for container leakage.

b. Vending machines that dispense liquid food in bulk must be:

(i) Provided with an internally mounted waste receptacle for the collection of drip, spillage, overflow, or other internal wastes; and

(ii) Equipped with an automatic shutoff device that will place the machine out of operation before the waste receptacle overflows.

c. Shutoff devices specified under subparagraph b.(ii) of this paragraph must prevent water or liquid food from continuously running if there is a failure of a flow control device in the water or liquid food system or waste accumulation that could lead to overflow of the waste receptacle.

(22) *Case lot handling apparatuses, moveability.* Apparatuses, such as dollies, pallets, racks, and skids used to store and transport large quantities of packaged foods received from a supplier in a cased or overwrapped lot, must be designed to be moved by hand or by conveniently available apparatuses such as hand trucks and forklifts.

(23) *Vending machine doors and openings.*

a. Vending machine doors and access opening covers to food and container storage spaces must be tight-fitting so that the space along the entire interface between the doors or covers and the cabinet of the machine, if the doors or covers are in a closed position, is no greater than 1.5 millimeters or one-sixteenth inch by:

(i) Being covered with louvers, screens, or materials that provide an equivalent opening of not greater than 1.5 millimeters or one-sixteenth inch. Screening of 12 or more mesh to 2.5 centimeters (12 mesh to 1 inch) meets this requirement;

(ii) Being effectively gasketed;

(iii) Having interface surfaces that are at least 13 millimeters or one-half inch wide; or

(iv) Jambs or surfaces used to form an L-shaped entry path to the interface.

b. Vending machine service connection openings through an exterior wall of a machine must be closed by sealants, clamps, or grommets so that the openings are no larger than 1.5 millimeters or one-sixteenth inch.

(e) *Acceptability.*

(1) *Food equipment, certification and classification.* Food equipment that is certified or classified for sanitation conformance to a recognized American National Standards Institute (ANSI)-accredited certification program is deemed to comply with sections 9-36 and 9-37.

(2) *ANSI certified utensils and equipment.*

a. Food equipment must be certified or classified to comply with the American National Standard by an American National Standards Institute (ANSI) - accredited certification program for the intended use of the equipment.

b. Establishments may not use food equipment that is labeled or listed by the manufacturer as "household or residential use."

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-38. Numbers and capacities; equipment, utensils, cleaning agents.

(a) *Equipment.*

(1) *Cooling, heating, and holding capacities.*

a. Equipment for cooling and heating food, and holding cold and hot food, must be sufficient in number and capacity to provide food temperatures as specified under article III.[Pf]

b. Except when time as a public health control is used, mechanical refrigeration, capable of holding food items at an internal temperature of 5°C (41°F), must be provided for all cold holding of time/temperature control for safety foods.[Pf]

c. A food service establishment must have adequate refrigeration and hot holding and storage facilities for the proper storage, transportation, display, and service of potentially hazardous foods. Specific refrigeration and hot holding and storage needs must be based upon the menu, number of meals, frequency of delivery, and preparation in advance of service.[Pf]

d. Air circulation within refrigeration units may not be obstructed and must allow for an even and consistent flow of cold air throughout the units. Fans circulating air within refrigeration units must be kept clean, dust free, and in working condition. Gaskets must be kept clean and intact and must be replaced as needed so that refrigeration units may maintain food at required temperatures.

e. Refrigeration units, unless specified by the manufacturer and designed for such use, may not be located directly adjacent to cooking equipment or other high heat producing equipment which may cause the cooling system to not operate according to the manufacturer's specification.[Pf]

f. Refrigerators located outdoors, or in an area that is outside the permit holders designated food preparation area, including but not limited to, a customer self-service area of a store, or other such area that is accessible to persons that are not employed by the permit holder, must be kept clean, locked, secure, and in operating condition, and may not permit entry or harborage of pests.

(2) *Manual warewashing, sink compartment requirements.*

a. Except as provided in this paragraph, a sink with at least three (3) compartments must be provided for manually washing, rinsing, and sanitizing equipment and utensils.[Pf]

b. An additional sink with at least three (3) compartments must be provided where bar service or counter service is offered, including but not limited to where blender, coffee or tea service is performed.[Pf]

c. Sink compartments must be large enough to accommodate immersion of the largest equipment and utensils. If equipment or utensils are too large for the warewashing sink, a warewashing machine or alternative equipment as specified in subparagraph d. of this paragraph must be used.[Pf]

d. Alternative manual warewashing equipment may be used when there are special cleaning needs or constraints and its use is approved by the department. Alternative manual warewashing equipment may include:

(i) High-pressure detergent sprayers;

(ii) Low- or line-pressure spray detergent foamers;

(iii) Other task-specific cleaning equipment;

(iv) Brushes or other implements;

(v) Two-compartment sinks as specified under subparagraphs (E) and (F) of this paragraph; or

(vi) Receptacles that substitute for the compartments of a multicompartment sink.

e. Before a two-compartment sink is used:

(i) The permit holder shall have its use approved; and

(ii) The permit holder shall limit the number of kitchenware items cleaned and sanitized in the two-compartment sink, and shall limit warewashing to batch operations for cleaning kitchenware such as between cutting one type of raw meat and another or cleanup at the end of a shift, and shall:

(aa) Make up the cleaning and sanitizing solutions immediately before use and drain them immediately after use, and

(bb) Use a detergent-sanitizer to sanitize and apply the detergent-sanitizer in accordance with the manufacturer's label instructions and as specified under section 9-40(a)(15), or

(cc) Use a hot water sanitization immersion step as specified under section 9-41(c)(6)c.

f. A two-compartment sink may not be used for warewashing operations where cleaning and sanitizing solutions are used for a continuous or intermittent flow of kitchenware or tableware in an ongoing warewashing process.

(3) *Drainboards.* Drainboards, utensil racks, or tables large enough to accommodate all soiled and cleaned items that may accumulate during hours of operation must be provided for necessary utensil and warewashing rack holding before cleaning and after sanitizing. All items must be stored at least six (6) inches above the floor and protected from environmental contamination.

(4) *Ventilation hood systems, adequacy.* Ventilation hood systems and devices must be sufficient in number and capacity to prevent grease or condensation from collecting on walls and ceilings.

(5) *Clothes washers and dryers.*

a. Except as specified in subparagraph b. of this paragraph, if work clothes or linens are laundered on the premises, a mechanical clothes washer and dryer must be provided and used.

b. If on-premises laundering is limited to wiping cloths intended to be used moist, or wiping cloths are air-dried as specified under section 9-44(a)(2), a mechanical clothes washer and dryer need not be provided.

(b) *Utensils, temperature measuring devices, and testing devices.*

(1) *Utensils, consumer self-service.* A food dispensing utensil must be available for each container displayed at a consumer self-service unit such as a buffet or salad bar.[Pf]

(2) *Food temperature measuring devices.*

a. Food temperature measuring devices must be provided and readily accessible for use in ensuring attainment and maintenance of food temperatures as specified under article III.[Pf]

b. A temperature measuring device with a suitable small diameter probe that is designed to measure the temperature of thin masses must be

provided and readily accessible to accurately measure the temperature in thin foods such as meat patties and fish filets.[Pf]

(3) *Temperature measuring devices, manual and mechanical warewashing.*

a. In manual warewashing operations, a temperature measuring device must be provided and readily accessible for frequently measuring the washing and sanitizing temperatures.[Pf]

b. In hot water mechanical warewashing operations, an irreversible registering temperature indicator must be provided and readily accessible for measuring the utensil surface temperature.[Pf]

(4) *Sanitizing solutions, testing devices.* A test kit or other device that accurately measures the concentration in MG/L of sanitizing solutions must be provided for each type of sanitizer used and must be used and maintained in accordance with manufacturer instructions.[Pf]

(c) *Cleaning agents and sanitizers.*

(1) *Cleaning agents and sanitizers, availability.*

a. Cleaning agents that are used to clean equipment and utensils as specified under section 9-41 must be provided and available for use during all hours of operation.[Pf]

b. Except for those that are generated on-site at the time of use, chemical sanitizers that are used to sanitize equipment and utensils as specified under section 9-42 must be provided and available for use during all hours of operation.[Pf]

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-39. Location and installation.

(a) *Location.*

(1) *Equipment, clothes washers and dryers, and storage cabinets, contamination prevention.*

a. Except as specified in subparagraph b. of this paragraph, equipment, a cabinet used for the storage of food, or a cabinet that is used to store cleaned and sanitized equipment, utensils, laundered linens, and single-service and single-use articles may not be located in the following areas:

(i) In locker rooms.

(ii) In toilet rooms.[Pf]

(iii) In garbage rooms.

(iv) In mechanical rooms.

(v) Under sewer lines that are not shielded to intercept potential drips.

(vi) Under leaking water lines including leaking automatic fire sprinkler heads or under lines on which water has condensed.

(vii) Under open stairwells.

(viii) Under other sources of contamination.

b. A storage cabinet used for linens or single-service or single-use articles may be stored in a locker room.

c. If a mechanical clothes washer or dryer is provided, it must be located so that the washer or dryer is protected from contamination and only where there is no exposed food; clean equipment, utensils, and linens; and unwrapped single-service and single-use articles.

(b) *Installation.*

(1) *Fixed equipment, spacing or sealing.*

a. Equipment that is fixed because it is not easily movable must be installed so that it is:

(i) Spaced to allow access for cleaning along the sides, behind, and above the equipment;

(ii) Spaced from adjoining equipment, walls, and ceilings a distance of not more than one millimeter or one thirty-second inch; or

(iii) Sealed to adjoining equipment or walls, if the equipment is exposed to spillage or seepage.

b. Counter-mounted equipment that is not easily movable must be installed to allow cleaning of the equipment and areas underneath and around the equipment by being sealed, or elevated on legs as specified under subparagraph (2)(D) of this.

(2) *Fixed equipment, elevation or sealing.*

a. Except as specified in subparagraphs b. and c. of this paragraph, floor-mounted equipment that is not easily movable must be sealed to the floor or elevated on legs that provide at least a 15 centimeter (6-inch) clearance between the floor and the equipment.

b. If no part of the floor under the floor-mounted equipment is more than 15 centimeters (6 inches) from the point of cleaning access, the clearance space may be only 10 centimeters (4 inches).

c. This section does not apply to display shelving units, display refrigeration units, and display freezer units located in the consumer shopping areas of a retail food store, if the floor under the units is maintained clean.

d. Except as specified in subparagraph (e) of this paragraph, counter-mounted equipment that is not easily movable must be elevated on legs that provide at least a 10 centimeter (4 inch) clearance between the table and the equipment.

e. The clearance space between the table and counter-mounted equipment may be:

(i) 7.5 centimeters (3 inches) if the horizontal distance of the table top under the equipment is no more than 50 centimeters (20 inches) from the point of access for cleaning; or

(ii) 5 centimeters (2 inches) if the horizontal distance of the table top under the equipment is no more than 7.5 centimeters (3 inches) from the point of access for cleaning.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-40. Maintenance and operation; equipment, utensils and measuring devices.

(a) *Equipment.*

(1) *Good repair and proper adjustment.*

a. Equipment must be maintained in a state of repair and condition that meets the requirements specified under sections 9-36 and 9-37.

b. Equipment components such as doors, seals, hinges, fasteners, and kick plates must be kept intact, tight, and adjusted in accordance with manufacturer's specifications.

c. Cutting or piercing parts of can openers must be kept sharp to minimize the creation of metal fragments that can contaminate food when the container is opened.

(2) *Cutting surfaces.* Surfaces such as cutting blocks and boards that are subject to scratching and scoring must be resurfaced if they can no longer be effectively cleaned and sanitized, or discarded if they are not capable of being resurfaced.

(3) *Microwave ovens.* Microwave ovens must meet the safety standards specified in 21 CFR 1030.10 Microwave Ovens.

(4) *Warewashing equipment, cleaning frequency.* A warewashing machine; the compartments of sinks, basins, or other receptacles used for washing and rinsing equipment, utensils, or raw foods, or laundering wiping cloths; and drainboards or other equipment used to

substitute for drainboards as specified under section 9-38(a)(3) must be cleaned as follows:

(i) Before use.

(ii) Throughout the day at a frequency necessary to prevent recontamination of equipment and utensils and to ensure that the equipment performs its intended function.

(iii) If used, at least every twenty-four (24) hours.

(5) *Warewashing machines, manufacturers' operating instructions.*

a. A warewashing machine and its auxiliary components must be operated in accordance with the machine's data plate and other manufacturer's instructions.

b. A warewashing machine's conveyor speed or automatic cycle times must be maintained accurately timed in accordance with manufacturer's specifications.

(6) *Warewashing sinks, use limitation.*

a. A warewashing sink may not be used for handwashing as specified under section 9-10(a)(5).

b. If a warewashing sink is used to wash wiping cloths, wash produce, or thaw food, the sink must be cleaned as specified under subsection (a)(4) of this section before and after each time it is used to wash wiping cloths or wash produce or thaw food, sinks used to wash or thaw food must be sanitized as specified under section 9-42 before and after using the sink to wash produce or thaw food.

(7) *Warewashinq equipment, cleaning agents.* When used for warewashing, the wash compartment of a sink, mechanical warewasher, or wash receptacle of alternative manual warewashing equipment as specified in section 9-38(a)(2), must contain a wash solution of soap, detergent, acid cleaner, alkaline cleaner, degreaser, abrasive cleaner, or other cleaning agent according to the cleaning agent manufacturer's label instructions.[Pf]

(8) *Warewashing equipment, clean solutions.* The wash, rinse, and sanitize solutions must be maintained clean.

(9) *Manual warewashing equipment, wash solution temperature.* The temperature of the wash solution in manual warewashing equipment must be maintained at not less than 43°C (110°F) or the temperature specified on the cleaning agent manufacturer's label instructions.[Pf]

(10) *Mechanical warewashing equipment, wash solution temperature.*

a. The temperature of the wash solution in spray type warewashers that use hot water to sanitize may not be less than:

(i) For a stationary rack, single temperature machine, 74°C (165°F);[Pf]

(ii) For a stationary rack, dual temperature machine, 66°C (150°F);[Pf]

(iii) For a single tank, conveyor, dual temperature machine, 71 °C (160°F);[Pf]or

(iv) For a multitank, conveyor, multitemperature machine, 66°C (150°F).[Pf]

b. The temperature of the wash solution in spray-type warewashers that use chemicals to sanitize may not be less than 49°C (120°F).[Pf]

(11) *Manual warewashing equipment, hot water sanitization temperatures.* If immersion in hot water is used for sanitizing in a manual operation, the temperature of the water must be maintained at 77°C (171°F) or above.[P]

(12) *Mechanical warewashinq equipment, hot water sanitization temperatures.*

a. Except as specified in subparagraph b. of this paragraph, in a mechanical operation, the temperature of the fresh hot water sanitizing rinse as it enters the manifold may not be more than 90°C (194°F), or less than:[Pf]

(i) For a stationary rack, single temperature machine, 74°C (165°F);[Pf]or

(ii) For all other machines, 82°C (180°F).[Pf]

b. The maximum temperature specified under subparagraph a. of this paragraph, does not apply to the high pressure and temperature systems with wand-type, handheld, spraying devices used for the in-place cleaning and sanitizing of equipment such as meat saws.

(13) *Mechanical warewashinq equipment, sanitization pressure.* The flow pressure of the fresh hot water sanitizing rinse in a warewashing machine, as measured in the water line immediately downstream or upstream from the fresh hot water sanitizing rinse control value, must be within the range specified on the machine manufacturer's data plate and may not be less than 35 kilopascals (5 pounds per square inch) or more than 200 kilopascals (30 pounds per square inch).

(14) *Manual and mechanical warewashinq equipment, chemical sanitization - temperature, pH, concentration, and hardness.* A chemical sanitizer used in a sanitizing solution for a manual or mechanical operation at contact times specified under section 9-42(c) must meet the criteria specified under section 9-56(d)(1), and must be used in accordance with the EPA-registered label use instructions[P] as follows:

a. A chlorine solution must have a minimum temperature based on the concentration and pH of the solution as listed in the following chart;[P]

Concentration Range (mg/L)	*Minimum Temperature pH 10 or less °C (°F)*	*Minimum Temperature pH 8 or less °C (°F)*
25-49	49 (120)	49 (120)
50-99	38 (100)	24 (75)
100	13 (55)	13 (55)

b. An iodine solution must have a:

(i) Minimum temperature of 20°C (68°F),[P]

(ii) pH of 5.0 or less or a pH no higher than the level for which the manufacturer specifies the solution is effective,[P] and

(iii) Concentration between 12.5 mg/L and 25 mg/L;[P]

c. A quaternary ammonium compound solution must:

(i) Have a minimum temperature of 24°C (75°F),[P]

(ii) Have a concentration as specified under section 9-56(d)(1) and as indicated by the manufacturer's use directions included in the labeling,[P] and

(iii) Be used only in water with 500 mg/L hardness or less or in water having a hardness no greater than specified by the EPA-registered label use instructions;[P]

d. If another solution of a chemical specified under subparagraphs a. through c. of this paragraph is used, the permit holder shall demonstrate to the department that the solution achieves sanitization and the use of the solution must be approved;

e. If a chemical sanitizer other than chlorine, iodine, or a quaternary ammonium compound is used, it must be applied in accordance with the EPA-registered label use instructions; and

f. If a chemical sanitizer is generated by a device located on-site at the food establishment, it must be used as specified in subparagraphs a. through d. of this paragraph and must be produced by a device that:

(i) Complies with regulation as specified in §§ 2(q)(1) and 12 of the Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA),[P]

(ii) Complies with 40 CFR 152.500 Requirement for Devices and 40 CFR 156.10 Labeling Requirements,[P]

(iii) Displays the EPA device manufacturing facility registration number on the device,[Pf] and

(iv) Is operated and maintained in accordance with manufacturer's instructions.[Pf]

(15) *Manual warewashinq equipment, chemical sanitization using detergent-sanitizers.* If a detergent-sanitizer is used to sanitize in a cleaning and sanitizing procedure where there is no distinct water rinse between the washing and sanitizing steps, the agent applied in the sanitizing step must be the same detergent sanitizer that is used in the washing step.

(16) *Warewashinq equipment, determining chemical sanitizer concentration.* Concentration of the sanitizing solution must be accurately determined by using a test kit or other device.[Pf]

(b) *Utensils and temperature and pressure measuring devices.*

(1) *Good repair and calibration.*

a. Utensils must be maintained in a state of repair or condition that complies with the requirements specified under sections 9-36 and 9-37 or must be discarded.

b. Food temperature measuring devices must be calibrated in accordance with manufacturer's specifications as necessary to ensure their accuracy.[Pf]

c. Ambient air temperature, water pressure, and water temperature measuring devices must be maintained in good repair and be accurate within the intended range of use.

(2) *Single-service and single-use articles, required use.* A food establishment without facilities specified under sections 9-41 and 9-42 for cleaning and sanitizing kitchenware and tableware must provide only single-use kitchenware, single service articles, and single-use articles for use by food employees and single-service articles for use by consumers.[P]

(3) *Single-service and single-use articles, use limitation.*

a. Single-service and single-use articles may not be reused.

b. The bulk milk container dispensing tube must be cut on the diagonal leaving no more than one inch protruding from the chilled dispensing head.

(4) *Shells, use limitation.* Mollusk and Crustacea shells may not be used more than once as serving containers.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-41. Cleaning of equipment and utensils.

(a) *Objective.*

(1) *Equipment, food-contact surfaces, nonfood-contact surfaces, and utensils.*

a. Equipment food-contact surfaces and utensils must be clean to sight and touch.[Pf]

b. The food-contact surfaces of cooking equipment and pans must be kept free of encrusted grease deposits and other soil accumulations.

c. Nonfood-contact surfaces of equipment must be kept free of an accumulation of dust, dirt, food residue, and other debris.

(b) *Frequency.*

(1) *Equipment food-contact surfaces and utensils.*

a. Equipment food-contact surfaces and utensils must be cleaned:

(i) Except as specified in subparagraph b. of this paragraph, before each use with a different type of raw animal food such as beef, fish, lamb, pork, or poultry;[P]

(ii) Each time there is a change from working with raw foods to working with ready-to-eat foods;[P]

(iii) Between uses with raw fruits and vegetables and with time/temperature control for safety food;[P]

(iv) Before using or storing a food temperature measuring device;[P] and

(v) At any time during the operation when contamination may have occurred.[P]

b. Subparagraph a.(i) of this paragraph does not apply if the food-contact surface or utensil is in contact with a succession of different types of raw meat and poultry each requiring a higher cooking temperature as specified under section 9-25(a) than the previous type.

c. Except as specified in subparagraph d. of this paragraph, if used with time/temperature control for safety food, equipment food-contact surfaces and utensils must be cleaned throughout the day at least every four (4) hours.[P]

d. Surfaces of utensils and equipment contacting time/temperature control for safety food may be cleaned less frequently than every four (4) hours if:

(i) In storage, containers of time/temperature control for safety food and their contents are maintained at temperatures specified under article III and the containers are cleaned when they are empty;

(ii) Utensils and equipment are used to prepare food in a refrigerated room or area that is maintained at one of the temperatures in the following chart and:

(aa) The utensils and equipment are cleaned at the frequency in the following chart that corresponds to the temperature; and

Temperature	*Cleaning Frequency*
5.0°C (41 °F) or less	24 hours
>5.0°C - 7.2°C (>41°F - 45°F)	20 hours
>7.2°C - 10.0°C (>45°F - 50°F)	16 hours
10.0°C - 12.8°C (>50°F - 55°F)	10 hours

(bb) The cleaning frequency based on the ambient temperature of the refrigerated room or area is documented in the food establishment.

(iii) Containers in serving situations such as salad bars, delis, and cafeteria lines hold ready-to-eat time/temperature control for safety food that is maintained at the temperatures specified under article III, are intermittently combined with additional supplies of the same food that is at the required temperature, and the containers are cleaned at least every twenty-four (24) hours;

(iv) Temperature measuring devices are maintained in contact with food, such as when left in a container of deli food or in a roast, held at temperatures specified under article III;

(v) Equipment is used for storage of packaged or unpackaged food such as a reach-in refrigerator and the equipment is cleaned at a frequency necessary to preclude accumulation of soil residues;

(vi) The cleaning schedule is approved based on consideration of:

(aa) Characteristics of the equipment and its use,

(bb) The type of food involved,

(cc) The amount of food residue accumulation, and

(dd) The temperature at which the food is maintained during the operation and the potential for the rapid and progressive multiplication of pathogenic or toxigenic microorganisms that are capable of causing foodborne disease; or

(vii) In-use utensils are intermittently stored in a container of water in which the water is maintained at 57°C (135°F) or more and the utensils and container are cleaned at least every twenty-four (24) hours or at a frequency necessary to preclude accumulation of soil residues.

e. Except when dry cleaning methods are used as specified under section 9-41(c)(1), surfaces of utensils and equipment contacting food that is not time/temperature control for safety food must be cleaned:

(i) At any time when contamination may have occurred;

(ii) At least every twenty-four (24) hours for iced tea dispensers and consumer self-service utensils such as tongs, scoops, or ladles;

(iii) Before restocking consumer self-service equipment and utensils such as condiment dispensers and display containers; and

(iv) In equipment such as ice bins and beverage dispensing nozzles and enclosed components of equipment such as ice makers, cooking oil storage tanks and distribution lines, beverage and syrup dispensing lines or tubes, coffee bean grinders, and water vending equipment:

(aa) At a frequency specified by the manufacturer, or

(bb) Absent manufacturer specifications, at a frequency necessary to preclude accumulation of soil or mold.

(2) *Cooking and baking equipment.*

a. The food-contact surfaces of cooking and baking equipment must be cleaned at least every twenty-four (24) hours. This section does not apply to hot oil cooking and filtering equipment if it is cleaned as specified in paragraph (1)d.(vi).

b. The cavities and door seals of microwave ovens must be cleaned at least every twenty-four (24) hours by using the manufacturer's recommended cleaning procedure.

(3) *Nonfood-contact surfaces.* Nonfood-contact surfaces of equipment must be cleaned at a frequency necessary to preclude accumulation of soil residues.

(c) *Methods.*

(1) *Dry cleaning.*

a. If used, dry cleaning methods such as brushing, scraping, and vacuum-

ing must contact only surfaces that are soiled with dry food residues that are not time/temperature control for safety food.

b. Cleaning equipment used in dry cleaning food-contact surfaces may not be used for any other purpose.

(2) *Precleaning.*

a. Food debris on equipment and utensils must be scraped over a waste disposal unit or garbage receptacle or must be removed in a warewashing machine with a prewash cycle.

b. If necessary for effective cleaning, utensils and equipment must be preflushed, presoaked, or scrubbed with abrasives.

(3) *Loading of soiled items, warewashing machines.* Soiled items to be cleaned in a warewashing machine must be loaded into racks, trays, or baskets or onto conveyors in a position that:

a. Exposes the items to the unobstructed spray from all cycles; and

b. Allows the items to drain.

(4) *Wet cleaning.*

a. Equipment food-contact surfaces and utensils must be effectively washed to remove or completely loosen soils by using the manual or mechanical means necessary such as the application of detergents containing wetting agents and emulsifiers; acid, alkaline, or abrasive cleaners; hot water; brushes; scouring pads; high-pressure sprays; or ultrasonic devices.

b. The washing procedures selected must be based on the type and purpose of the equipment or utensil, and on the type of soil to be removed.

(5) *Washing, procedures for alternative manual warewashing equipment.* If washing in sink compartments or a warewashing machine is impractical such as when the equipment is fixed or the utensils are too large, washing must be done by using alternative manual warewashing equipment as specified in section 9-38(a)(2)d. in accordance with the following procedures:

a. Equipment must be disassembled as necessary to allow access of the detergent solution to all parts;

b. Equipment components and utensils must be scraped or rough cleaned to remove food particle accumulation; and

c. Equipment and utensils must be washed as specified under Subparagraph (c)(4)a. of this section.

(6) *Rinsing procedures.* Washed utensils and equipment must be rinsed so that abrasives are removed and cleaning chemicals are removed or diluted through the use of water or a detergent-sanitizer solution by using one of the following procedures:

a. Use of a distinct, separate water rinse after washing and before sanitizing if using:

(i) A three-compartment sink,

(ii) Alternative manual warewashing equipment equivalent to a three-compartment sink as specified in section 9-38(a)(2)d., or

(iii) A three-step washing, rinsing, and sanitizing procedure in a warewashing system for CIP equipment;

b. Use of a detergent-sanitizer as specified under section 9-40(a)(15) if using:

(i) Alternative warewashing equipment as specified in section 9-38(a)(2)d. that is approved for use with a detergent-sanitizer, or

(ii) A warewashing system for CIP equipment;

c. Use of a nondistinct water rinse that is integrated in the hot water sanitization immersion step of a two-compartment sink operation;

d. If using a warewashing machine that does not recycle the sanitizing solution as specified under subparagraph e. of this paragraph, or alternative manual warewashing equipment such as sprayers, use of a nondistinct water rinse that is:

(i) Integrated in the application of the sanitizing solution, and

(ii) Wasted immediately after each application; or

e. If using a warewashing machine that recycles the sanitizing solution for use in the next wash cycle, use of a nondistinct water rinse that is integrated in the application of the sanitizing solution.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-42. Sanitization of equipment and utensils.

(a) *Objective.* Equipment food-contact surfaces and utensils must be sanitized.

(b) *Frequency.* Utensils and food-contact surfaces of equipment must be sanitized before use after cleaning.[P]

(c) *Methods.* After being cleaned, equipment food-contact surfaces and utensils must be sanitized in:

(1) Hot water manual operations by immersion for at least thirty (30) seconds and as specified under section 9-40(a)(11);

(2) Hot water mechanical operations by being cycled through equipment that is set up as specified under sections 9-40(a)(5), (a)(12), and (a)(13) and achieving a utensil surface temperature of 71°C (160°F) as measured by an irreversible registering temperature indicator;[P] or

(3) Chemical manual or mechanical operations, including the application of sanitizing chemicals by immersion, manual swabbing, brushing, or pressure spraying methods, using a solution as specified under section 9-40(a)(14). Contact times must be consistent with those on EPA-registered label use instructions by providing:

a. Except as specified under subparagraph (2)b. of this subsection, a contact time of at least ten (10) seconds for a chlorine solution specified under section 9-40(a)(14)a.,[P]

b. A contact time of at least seven (7) seconds for a chlorine solution of 50 mg/L that has a pH of 10 or less and a temperature of at least 38°C (100°F) or a pH of 8 or less and a temperature of at least 24°C (75°F),[P]

c. A contact time of at least thirty (30) seconds for other chemical sanitizing solutions,[P] or

d. A contact time used in relationship with a combination of temperature, concentration, and pH that, when evaluated for efficacy, yields sanitization as defined in section 9-5.[P]

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-43. Laundering.

(a) *Objective.* Clean linens must be free from food residues and other soiling matter.

(b) *Frequency.*

(1) *Specifications.*

a. Linens that do not come in direct contact with food must be laundered between operations if they become wet, sticky, or visibly soiled.

b. Cloth gloves used as specified in section 9-21(e)(4) must be laundered before being used with a different type of raw animal food such as beef, fish, lamb, pork or poultry.

c. Linens that are used as specified under section 9-21(c) and cloth napkins must be laundered between each use.

d. Wet wiping cloths must be laundered daily.

e. Dry wiping cloths must be laundered as necessary to prevent contamination of food and clean serving utensils.

(c) *Methods.*

(1) *Storage of soiled linens.* Soiled linens must be kept in clean, nonabsorbent receptacles or clean, washable laundry bags and stored and transported to prevent contamination of food, clean equipment, clean utensils, and single-service and single-use articles.

(2) *Mechanical washing.*

a. Except as specified in subparagraph b. of this paragraph, linens must be mechanically washed.

b. In food establishments in which only wiping cloths are laundered as specified in section 9-38(a)(5), the wiping cloths may be laundered in a mechanical washer, sink designated only for laundering wiping cloths, or a warewashing or food preparation sink that is cleaned as specified under section 9-40(a)(4).

(3) *Use of laundry facilities.*

a. Except as specified in subparagraph b. of this paragraph, laundry facilities on the premises of a food establishment must be used only for the washing and drying of items used in the operation of the establishment.

b. Separate laundry facilities located on the premises for the purpose of general laundering such as for institutions providing boarding and lodging may also be used for laundering food establishment items.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-44. Protection of clean items.

(a) *Drying.*

(1) *Equipment and utensils, air-drying required.* After cleaning and sanitizing, equipment and utensils:

a. Must be air-dried or used after adequate draining as specified in the first paragraph of 40 CFR 180.940 Tolerance exemptions for active and inert ingredients for use in antimicrobial formulations (food-contact surface sanitizing solutions), before contact with food; and

b. May not be cloth dried except that utensils that have been airdried may be polished with cloths that are maintained clean and dry.

(2) *Wiping cloths, air-drying locations.* Wiping cloths laundered in a food establishment that does not have a mechanical clothes dryer as specified in section 9-38(a)(5) must be air-dried in a location and in a manner that prevents contamination of food, equipment, utensils, linens, and single-service and single-use articles and the wiping cloths. This section does not apply if wiping cloths are stored after laundering in a sanitizing solution as specified under section 9-40(a)(4).

(b) *Lubricating and reassembling.*

(1) *Food-contact surfaces.* Lubricants as specified under section 9-44(b)(1) must be applied to food-contact surfaces that require lubrication in a manner that does not contaminate food-contact surfaces.

(2) *Equipment.* Equipment must be reassembled so that food-contact surfaces are not contaminated.

(c) *Storing.*

(1) *Equipment, utensils, linens, and single-service and single-use articles.*

a. Except as specified in subparagraph d. of this paragraph, cleaned equip-

ment and utensils, laundered linens, and single-service and single-use articles must be stored:

(i) In a clean, dry location;

(ii) Where they are not exposed to splash, dust, or other contamination; and

(iii) At least 15 cm (6 inches) above the floor.

b. Clean equipment and utensils must be stored as specified under subparagraph a. of this paragraph and must be stored:

(i) In a self-draining position that allows air drying; and

(ii) Covered or inverted.

c. Single-service and single-use articles must be stored as specified under subparagraph (a) of this paragraph and must be kept in the original protective package or stored by using other means that afford protection from contamination until used.

d. Items that are kept in closed packages may be stored less than 15 cm (6 inches) above the floor on dollies, pallets, racks, and skids that are designed as specified under section 9-37(d)(22).

(2) *Prohibitions.*

a. Except as specified in paragraph b. of this paragraph, cleaned and sanitized equipment, utensils, laundered linens, and single-service and single-use articles may not be stored in the following area:

(i) In locker rooms.

(ii) In toilet rooms.[Pf]

(iii) In garbage rooms.

(iv) In mechanical rooms.

(v) Under sewer lines that are not shielded to intercept potential drips.

(vi) Under leaking water lines including leaking automatic fire sprinkler heads or under lines on which water has condensed.

(vii) Under open stairwells.

(viii) Under other sources of contamination.

b. Laundered linens and single-service and single-use articles that are packaged or in a facility such as a cabinet may be stored in a locker room.

(d) *Preventing contamination.*

(1) *Kitchenware and tableware.*

a. Single-service and single-use articles and cleaned and sanitized utensils must be handled, displayed, and dispensed so that contamination of food- and lip-contact surfaces is prevented.

b. Knives, forks, and spoons that are not prewrapped must be presented so that only the handles are touched by employees and by consumers if consumer self-service is provided.

c. Except as specified under subparagraph b. of this paragraph, single-service articles that are intended for food- or lip-contact must be furnished for consumer self-service with the original individual wrapper intact or from an approved dispenser.

(2) *Soiled and clean tableware.* Soiled tableware must be removed from consumer eating and drinking areas and handled so that clean tableware is not contaminated.

(3) *Preset tableware.*

a. Except as specified in subparagraph b. of this paragraph, tableware that is preset must be protected from contamination by being wrapped, covered, or inverted.

b. Preset tableware may be exposed if:

(i) Unused settings are removed when a consumer is seated; or

(ii) Settings not removed when a consumer is seated are cleaned and sanitized before further use.

(4) *Rinsing equipment and utensils after cleaning and sanitizing.* After being cleaned and sanitized, equipment and utensils may not be rinsed before air drying or use unless:

a. The rinse is applied directly from a potable water supply by a warewashing machine that is maintained and operated as specified under sections 9-37(d) and 9-40(a); and

b. The rinse is applied only after the equipment and utensils have been sanitized by the application of hot water or by the application of a chemical sanitizer solution whose EPA-registered label use instructions call for rinsing off the sanitizer after it is applied in a commercial warewashing machine.

(Ord. No. 2025-4-2, § 1, 4-14-25)

ARTICLE V. WATER, PLUMBING, AND WASTE

Sec. 9-45. Water.

(a) *Source.*

(1) *Approved system.* Drinking water must be obtained from an approved source that is:

a. A public water system;[P] or

b. A nonpublic water system that is constructed, maintained, and operated according to law.[P]

(2) *System flushing and disinfection.* A drinking water system must be flushed and disinfected before being placed in service after construction, repair, or modification and after an emergency situation, such as a flood, that may introduce contaminants to the system.[P]

(3) *Bottled drinking water.* Bottled drinking water used or sold in a food establishment must be obtained from approved sources in accordance with 21 CFR 129 - Processing and Bottling of Bottled drinking water.[P]

(b) *Water quality standards.*

(1) *Public and private water systems.*

a. Water from a public water system must meet 40 CFR 141 - National Primary Drinking Water Regulations, state drinking water quality standards in accordance that 30 TAC §§ 290.38 - 290.47 (relating to Rules and Regulations for Public Water Systems) and 30 TAC §§ 290.101 - 290.114, 290.117 290.119, 290.121, and 290.122 (relating to Drinking Water Standards Governing Drinking Water Quality and Reporting Requirements for Public Water Systems).[P]

b. Water from nonpublic water system must meet the requirements of 30 TAC Chapter 290, Subchapter F (relating to Drinking Water Standards Governing Drinking Water Quality and Reporting Requirements for Public Water Systems), pertaining to transient non-community water systems.[P]

(2) *Nondrinking water.*

a. A nondrinking water supply must be used only if its use is approved.[P]

b. Nondrinking water must be used only for non-culinary purposes such as air conditioning, nonfood equipment cooling, and fire protection.[P]

(3) *Sampling.* A water source obtained from other than a community public water system must be sampled and analyzed in accordance with the requirements found in 30 TAC Chapter 290, Subchapter F (relating to Drinking Water Standards Governing Drinking Water Quality and Reporting Requirements for Public Water Systems), concerning transient non-community water systems, except nondrinking water.[Pf]

(4) *Sample report.* The most recent sample report for the nonpublic water system must be retained on file in the food establishment, or the report must be maintained as specified in 30 TAC Chapter 290, Subchapter F, concerning transient noncommunity water systems.

(c) *Quantity and availability.*

(1) *Capacity.*

a. The water source and system must be of sufficient capacity to meet the peak water demands of the food establishment,[Pf]

b. Hot water generation and distribution systems must be sufficient to meet the peak hot water demands throughout the food establishment.[Pf]

(2) *Pressure.* Water under pressure must be provided to all fixtures, equipment, and nonfood equipment that are required to use water except that water supplied as specified under subsection (d)(2)a. and b. to a temporary food establishment or in response to a temporary interruption of a water supply need not be under pressure.[Pf]

(d) *Distribution, delivery, and retention.*

(1) *System.* Water must be received from the source through the use of:

a. An approved public water main;[Pf] or

b. One (1) or more of the following that must be constructed, maintained, and operated according to law:[Pf]

(i) Water transport vehicles;[Pf]

(ii) Water containers[Pf]; or

(iii) Nonpublic water system. The nonpublic water mains, water pumps, pipes, hoses, connections, and other appurtenances must meet the requirements of 30 TAC Chapter 290, Subchapter F (relating to Drinking Water Standards Governing Drinking Water Quality and Reporting Requirements for Public Water Systems), concerning transient non-community water systems.[Pf]

(2) *Alternative water supply.* Water meeting the requirements specified under subsections (a) through (c) of this section must be made available for a mobile facility, for a temporary food establishment without a permanent water supply, and for a food establishment with a temporary interruption of its water supply through:

a. A supply of containers of commercially bottled drinking water;[Pf]

b. One (1) or more closed portable water containers;[Pf]

c. An enclosed vehicular water tank;[Pf]

d. An on-premises water storage tank;[Pf] or

e. Piping, tubing, or hoses connected to an adjacent approved source.[Pf]

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-46. Plumbing system.

(a) *Materials.*

(1) *Approved.*

a. A plumbing system and hoses conveying water must be constructed and repaired with approved materials according to law.[P]

b. A water filter must be made of safe materials.[P]

(b) *Design, construction, and installation.*

(1) *Approved system and cleanable fixtures.*

a. A plumbing system must be designed, constructed, and installed according to law.[P]

b. A plumbing fixture such as a handwashing sink, toilet, or urinal must be easily cleanable.

(2) *Handwashing sink, installation.*

a. A handwashing sink must be equipped to provide water at a

temperature of at least 38°C (100°F) through a mixing valve or combination faucet.[Pf]

b. A steam mixing valve may not be used at a handwashing sink.

c. A self-closing, slow-closing, or metering faucet must provide a flow of water for at least fifteen (15) seconds without the need to reactivate the faucet.

d. An automatic handwashing facility must be installed in accordance with manufacturer's instructions.

(3) *Backflow prevention, air gap.* An air gap between the water supply inlet and the flood level rim of the plumbing fixture, equipment, or nonfood equipment must be at least twice the diameter of the water supply inlet and may not be less than 25 mm (1 inch).[P]

(4) *Backflow prevention device, design standard.* A backflow or backsiphonage prevention device installed on a water supply system must meet American Society of Sanitary Engineering (A.S.S.E.) standards for construction, installation, maintenance, inspection, and testing for that specific application and type of device.[P]

(5) *Conditioning device, design.* A water filter, screen, and other water conditioning device installed on water lines must be designed to facilitate disassembly for periodic servicing and cleaning. A water filter element must be of the replaceable type.

(6) *Water heaters.*

a. Water heaters must be installed and maintained in accordance with the Plumbing Code.[P]

b. Water heaters must be listed as a commercial unit by an ANSI accredited testing and certification organization and approved by the regulatory authority.

c. Residential water heaters are prohibited in retail establishments, except for those facilities providing only commercially pre-packaged food.[Pf]

(c) *Numbers and capacities.*

(1) *Handwashing sinks.*

a. Except as specified in subparagraph b. of this paragraph, at least one (1) handwashing sink, a number of handwashing sinks necessary for their convenient use by employees in areas specified under section 9-46(d)(1), and not fewer than the number of handwashing sinks required by law must be provided.[Pf]

b. If approved and capable of removing the types of soils encountered in the food operations involved, automatic handwashing facilities may be substituted for handwashing sinks in a food establishment that has at least one (1) handwashing sink.

(2) *Toilets and urinals.* At least one (1) toilet and not fewer than the toilets required by law must be provided. If authorized by law and urinals are substituted for toilets, the substitution must be done as specified in law.

(3) *Service sink.*

a. At least one (1) service sink or one (1) curbed cleaning facility equipped with a floor drain must be provided and conveniently located for the cleaning of mops or similar wet floor cleaning tools and for the disposal of mop water and similar liquid waste.

b. Lavatories, utensil-washing sinks, equipment-washing sinks, food preparation sinks, toilets, urinals, and showers may not be used as a service sink for the disposal of mop water and similar liquid waste.

(4) *Backflow prevention device, when required.* A plumbing system must be installed to preclude backflow of a solid, liquid, or gas contaminant into the water supply system at each point of use at the food establishment, including on a hose bibb if a hose is attached or on a hose bibb if a hose is not attached and backflow prevention is required by law, by:

a. Providing an air gap as specified under subsection (b)(3) of this section;[P] or

b. Installing an approved backflow prevention device as specified under subsection (b)(4) of this section.[P]

(5) *Backflow prevention device, carbonator.*

a. If not provided with an air gap as specified under subsection (b)(3) of this section, a dual check valve with an intermediate vent preceded by a screen of not less than 100 mesh to 25.4 mm (100 mesh to 1 inch) must be installed upstream from a carbonating device and downstream from any copper in the water supply line.[P]

b. A dual check valve attached to the carbonator need not be of the vented type if an air gap or vented backflow prevention device has been otherwise provided as specified under subparagraph a. of this paragraph.

(6) *Food preparation sink.* A food preparation sink is required for washing of food if the menu or method of preparation requires soaking, rinsing, culling, or cleaning of raw ingredients or produce.[Pf]

(7) *Dump sink.*

a. At least one (1) waste sink must be provided where bar service or counter service is offered, including but not limited to where blender, coffee, or tea service is performed.

b. When a facility is observed using a hand sink as a dump sink in a bar or counter service area at three (3) or more routine inspections in a two-year period, the department may require the facility to install a dump sink in the bar or counter service area.

(d) *Location and placement.*

(1) *Handwashing sinks.*

a. A handwashing sink must be located within twenty-five (25) linear feet of food preparation, food dispensing, and warewashing areas convenient for use by employees, and in, or immediately adjacent to, toilet rooms.[Pf]

b. Hand sinks located adjacent to food preparation, food preparation equipment, wares, or food storage areas must be protected with splash guards that are at least as high as the top of the faucet supplying water to the hand sink.[Pf]

c. Any area in which a hand wash sink is located must be unobstructed by doors or equipment, and access must be kept clear to enable its use as required by this Code.[Pf]

(2) *Backflow prevention device, location.* A backflow prevention device must be located so that it may be serviced and maintained.

(3) *Conditioning device, location.* A water filter, screen, and other water conditioning device installed on water lines must be located to facilitate disassembly for periodic servicing and cleaning.

(e) *Operation and maintenance.*

(1) *Using a handwashing sink.*

a. A handwashing sink must be maintained so that it is accessible at all times for employee use.[Pf]

b. A handwashing sink may not be used for purposes other than handwashing.[Pf]

c. An automatic handwashing facility must be used in accordance with manufacturer's instructions.[Pf]

(2) *Prohibiting a cross connection.*

a. A person may not create a cross connection by connecting a pipe or conduit between the drinking water system and a nondrinking water system or a water system of unknown quality.[P]

b. The piping of a nondrinking water system must be durably identified so that it is readily distinguishable from piping that carries drinking water.[Pf]

(3) *Scheduling inspection and service for a water system device.* A device such as a water treatment device or backflow preventer must be scheduled for inspection and service, in accordance with manufacturer's instructions and as necessary to prevent device failure based on local water conditions, and records demonstrating inspection and service must be maintained by the person in charge.[Pf]

(4) *Water reservoir of fogging devices, cleaning.*

a. A reservoir that is used to supply water to a device such as a produce fogger must be:

(1) Maintained in accordance with manufacturer's specifications;[P] and

(2) Cleaned in accordance with manufacturer's specifications or according to the procedures specified under subparagraph b. of this paragraph, whichever is more stringent.[P]

b. Cleaning procedures must include at least the following steps and must be conducted at least once a week:

(1) Draining and complete disassembly of the water and aerosol contact parts;[P]

(2) Brush-cleaning the reservoir, aerosol tubing, and discharge nozzles with a suitable detergent solution;[P]

(3) Flushing the complete system with water to remove the detergent solution and particulate accumulation;[P] and

(4) Rinsing by immersing, spraying, or swabbing the reservoir, aerosol tubing, and discharge nozzles with at least 50 MG/L hypochlorite solution.[P]

c. A cleaning log of the procedures identified in this paragraph must be maintained onsite and made available to the department upon request.

(5) *System maintained in good repair.* A plumbing system must be:

a. Repaired according to law;[P] and

b. Maintained in good repair.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-47. Mobile water tank and mobile food establishment water tank.

(a) Materials.

(1) *Approved.* Materials that are used in the construction of a mobile water tank, mobile food establishment water tank, and appurtenances must be:

a. Safe;[P]

b. Durable, corrosion-resistant, and nonabsorbent; and

c. Finished to have a smooth, easily cleanable surface.

(b) *Design and construction.*

(1) *Enclosed system, sloped to drain.* A mobile water tank must be:

a. Enclosed from the filling inlet to the discharge outlet; and

b. Sloped to an outlet that allows complete drainage of the tank.

(2) *Inspection and cleaning port, protected and secured.* If a water tank is designed

with an access port for inspection and cleaning, the opening must be in the top of the tank and:

a. Flanged upward at least 13 mm (one-half inch); and

b. Equipped with a port cover assembly that is:

(i) Provided with a gasket and a device for securing the cover in place, and

(ii) Flanged to overlap the opening and sloped to drain.

(3) *"V" type threads, use limitation.* A fitting with "V" type threads on a water tank inlet or outlet may be allowed only when a hose is permanently attached.

(4) *Tank vent, protected.* If provided, a water tank vent must terminate in a downward direction and must be covered with:

a. 16 mesh to 25.4 mm (16 mesh to 1 inch) screen or equivalent when the vent is in a protected area; or

b. A protective filter when the vent is in an area that is not protected from windblown dirt and debris.

(5) *Inlet and outlet, sloped to drain.*

a. A water tank and its inlet and outlet must be sloped to drain.

b. A water tank inlet must be positioned so that it is protected from contaminants such as waste discharge, road dust, oil, or grease.

(6) *Hose, construction and identification.* A hose used for conveying drinking water from a water tank must be:

a. Safe;[P]

b. Durable, corrosion-resistant, and nonabsorbent;

c. Resistant to pitting, chipping, crazing, scratching, scoring, distortion, and decomposition;

d. Finished with a smooth interior surface; and

e. Clearly and durably identified as to its use if not permanently attached.

(c) *Numbers and capacities.*

(1) *Filter, compressed air.* A filter that does not pass oil or oil vapors must be installed in the air supply line between the compressor and drinking water system when compressed air is used to pressurize the water tank system.[P]

(2) *Protective cover or device.* A cap and keeper chain, closed cabinet, closed storage tube, or other approved protective cover or device must be provided for a water inlet, outlet, and hose.

(3) *Mobile food establishment tank inlet.* A mobile food establishment's water tank inlet must be:

a. 19.1 mm (three-fourths inch) in inner diameter or less; and

b. Provided with a hose connection of a size or type that will prevent its use for any other service.

(d) *Operation and maintenance.*

(1) *System flushing and sanitization.* A water tank, pump, and hoses must be flushed and sanitized before being placed in service after construction, repair, modification, and periods of nonuse.[P]

(2) *Using a pump and hoses, backflow prevention.* A person must operate a water tank, pump, and hoses so that backflow and other contamination of the water supply are prevented.

(3) *Protecting inlet, outlet, and hose fitting.* If not in use, a water tank and hose inlet and outlet fitting must be protected using a cover or device as specified under subsection (c)(2).

(4) *Tank, pump, and hoses, dedication.*

a. Except as specified in subparagraph b. of this paragraph, a water tank, pump, and hoses used for conveying drinking water must be used for no other purpose.[P]

b. Water tanks, pumps, and hoses approved for liquid foods may be used for conveying drinking water if they are cleaned and sanitized before they are used to convey water.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-48. Sewage, other liquid waste, and rainwater.

(a) *Mobile holding tank.*

(1) *Capacity and drainage.* A sewage holding tank in a mobile food establishment must be:

a. Sized fifteen (15) percent larger in capacity than the water supply tank; and

b. Sloped to a drain that is 25 mm (1 inch) in inner diameter or greater, equipped with a shut-off valve.

(b) *Retention, drainage, and delivery.*

(1) *Establishment drainage system.* Food establishment drainage systems, including grease traps, that convey sewage must be designed and installed as specified under section 9-46(b)(1).

(2) *Backflow prevention.*

a. Except as specified in subparagraphs b., c., and d. of this paragraph, a direct connection may not exist between the sewage system and a drain originating from equipment in which food, portable equipment, or utensils are placed.[P]

b. Subparagraph a. of this paragraph does not apply to floor drains that originate in refrigerated spaces that are constructed as an integral part of the building.

c. If allowed by law, a warewashing machine may have a direct connection between its waste outlet and a floor drain when the machine is located within 1.5 m (5 feet) of a trapped floor drain and the machine outlet is connected to the inlet side of a properly vented floor drain trap.

d. If allowed by law, a warewashing or culinary sink may have a direct connection.

(3) *Grease trap.*

a. Unless a facility sells only prepackaged food, grease traps are required at new food establishments, existing food establishments, and food establishments that change ownership.[P]

b. Grease traps must be:

(i) Adequately sized by a professional engineer, master plumber, or architect;[P]

(ii) Installed and maintained in accordance with the Plumbing Code and the City of Plano Liquid Waste Management ordinance;[P]

(iii) Located outside of the food preparation, food storage, and warewashing areas of the establishment;[Pf] and

(iv) Easily accessible for cleaning.

(4) *Conveying sewage.* Sewage must be conveyed to the point of disposal through an approved sanitary sewage system or other system, including use of sewage transport vehicles, waste retention tanks, pumps, pipes, hoses, and connections that are constructed, maintained, and operated according to law.[P]

(5) *Removing mobile food establishment wastes.* Sewage and other liquid wastes must be removed from a mobile food establishment at an approved waste servicing area or by a sewage transport vehicle in such a way that a public health hazard or nuisance is not created.[Pf]

(6) *Flushing a waste retention tank.* A tank for liquid waste retention must be

thoroughly flushed and drained in a sanitary manner during the servicing operation.

(c) *Disposal facility.*

(1) *Approved sewage disposal system.* Sewage must be disposed through an approved facility that is:

a. A public sewage treatment plant;[P] or

b. An individual sewage disposal system that is sized, constructed, maintained, and operated according to law.[P]

(2) *Other liquid wastes and rainwater.* Condensate drainage and other non-sewage liquids and rainwater must be drained from point of discharge to disposal according to law.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-49. Refuse, recyclables, and returnables.

(a) *Facilities on the premises.*

(1) *Indoor storage area.* If located within the food establishment, a storage area for refuse, recyclables, and returnables must meet the requirements specified under sections 9-50(a)(1), 9-51(a)(1)—(7), 9-51(b)(5), and 9-51(b)(6).

(2) *Outdoor storage surface.* An outdoor storage surface for refuse, recyclables, and returnables must be constructed of nonabsorbent material such as concrete or asphalt and must be smooth, durable, and sloped to drain.

(3) *Outdoor enclosure.* If used, an outdoor enclosure for refuse, recyclables, and returnables must be constructed of durable and cleanable materials.

(4) *Receptacles.*

a. Except as specified in subparagraph b. of this paragraph, receptacles and waste handling units for refuse, recyclables, and returnables and for use with materials containing food residue must be durable, cleanable, insect-and rodent resistant, leakproof, and nonabsorbent.

(B) Plastic bags and wet strength paper bags may be used to line receptacles for storage inside the food establishment, or within closed outside receptacles.

(5) *Receptacles in vending machines.* Except for a receptacle for beverage bottle crown closures, a refuse receptacle may not be located within a vending machine.

(6) *Outside receptacles.*

a. Receptacles and waste handling units for refuse, recyclables, and returnables used with materials containing food residue and used outside the food establishment must be designed and constructed to have tight-fitting lids, doors, or covers.

b. Receptacles and waste handling units for refuse and recyclables such as an on-site compactor must be installed so that accumulation of debris and insect and rodent attraction and harborage are minimized and effective cleaning is facilitated around and, if the unit is not installed flush with the base pad, under the unit.

(7) *Storage areas, rooms, and receptacles, capacity and availability.*

a. An inside storage room and area and outside storage area and enclosure, and receptacles must be of sufficient capacity to hold refuse, recyclables, and returnables that accumulate.

b. A receptacle must be provided in each area of the food establishment or premises where refuse is generated or commonly discarded, or where recyclables or returnables are placed.

c. If disposable towels are used at handwashing lavatories, a waste

receptacle must be located at each lavatory or group of adjacent lavatories.

(8) *Toilet room receptacle, covered.* A toilet room used by females must be provided with a covered receptacle for sanitary napkins.

(9) *Cleaning implements and supplies.*

a. Except as specified in subparagraph b. of this paragraph, suitable cleaning implements and supplies such as high pressure pumps, hot water, steam, and detergent must be provided as necessary for effective cleaning of receptacles and waste handling units for refuse, recyclables, and returnables.

b. If approved, off-premises-based cleaning services may be used if on-premises cleaning implements and supplies are not provided.

(10) *Storage areas, redeeming machines, receptacles and waste handling units, location.*

a. An area designated for refuse, recyclables, returnables, and, except as specified in subparagraph b. of this paragraph, a redeeming machine for recyclables or returnables must be located so that it is separate from food, equipment, utensils, linens, and single-service and single-use articles and a public health hazard or nuisance is not created.

b. A redeeming machine may be located in the packaged food storage area or consumer area of a food establishment if food, equipment, utensils, linens, and single-service and single-use articles are not subject to contamination from the machines and a public health hazard or nuisance is not created.

c. The location of receptacles and waste handling units for refuse, recyclables, and returnables may not create a public health hazard or nuisance or interfere with the cleaning of adjacent space.

(11) *Storing refuse, recyclables, and returnables.* Refuse, recyclables, and returnables must be stored in receptacles or waste handling units so that they are inaccessible to insects and rodents.

(12) *Areas, enclosures, and receptacles, good repair.* Storage areas, enclosures, and receptacles for refuse, recyclables, and returnables must be maintained in good repair.

(13) *Outside storage prohibitions.*

a. Except as specified in subparagraph b. of this paragraph, refuse receptacles not meeting the requirements specified under subparagraph (14)a. such as receptacles that are not rodent-resistant, unprotected plastic bags and paper bags, or baled units that contain materials with food residue may not be stored outside.

b. Cardboard or other packaging material that does not contain food residues and that is awaiting regularly scheduled delivery to a recycling or disposal site may be stored outside without being in a covered receptacle if it is stored so that it does not create a rodent harborage problem.

(14) *Covering receptacles.* Receptacles and waste handling units for refuse, recyclables, and returnables must be kept covered:

a. Inside the food establishment if the receptacles and units:

(1) Contain food residue and are not in continuous use; or

(2) After they are filled; and

b. With tight-fitting lids or doors if kept outside the food establishment.

(15) *Using drain plugs.* Drains in receptacles and waste handling units for refuse, recyclables, and returnables must have drain plugs in place.

(16) *Maintaining refuse areas and enclosures.* A storage area and enclosure for refuse, recyclables, or returnables must be maintained free of unnecessary items, as specified under section 9-54(a)(4), and clean.

(17) *Cleaning receptacles.*

a. Receptacles and waste handling units for refuse, recyclables, and returnables must be thoroughly cleaned in a way that does not contaminate food, equipment, utensils, linens, or single-service and single-use articles, and waste water must be disposed of as specified under section 9-48(b)(4).

b. Soiled receptacles and waste handling units for refuse, recyclables, and returnables must be cleaned at a frequency necessary to prevent them from developing a buildup of soil or becoming attractants for insects and rodents.

(b) *Removal.*

(1) *Frequency.* Refuse, recyclables, and returnables must be removed from the premises at a frequency that will minimize the development of objectionable odors and other conditions that attract or harbor insects and rodents.

(2) *Receptacles or vehicles.* Refuse, recyclables, and returnables must be removed from the premises by way of:

a. Portable receptacles that are constructed and maintained according to law; or

b. A transport vehicle that is constructed, maintained, and operated according to law.

(c) *Facilities for disposal and recycling.*

(1) *Community or individual facility.* Solid waste not disposed of through the sewage system such as through grinders and pulpers must be recycled or disposed of in an approved public or private community recycling or refuse facility; or solid waste must be disposed of in an individual refuse facility such as a landfill or incinerator which is sized, constructed, maintained, and operated according to law.

(Ord. No. 2025-4-2, § 1, 4-14-25)

ARTICLE VI. PHYSICAL FACILITIES

Sec. 9-50. Materials for construction and repair.

(a) *Indoor areas.*

(1) *Surface characteristics.*

a. Except as specified in subparagraph b. of this paragraph, materials for indoor floor, wall, and ceiling surfaces under conditions of normal use must be:

(i) Smooth, durable, and easily cleanable for areas where food establishment operations are conducted;

(ii) Closely woven and easily cleanable carpet for carpeted areas; and

(iii) Nonabsorbent for areas subject to moisture such as food preparation areas, walk-in refrigerators, warewashing areas, toilet rooms, mobile food establishment servicing areas, and areas subject to flushing or spray cleaning methods.

b. Floors and floor coverings.

(i) Floors and floor coverings of all food preparation, food service, food storage, warewashing areas, walk-in refrigeration units, dressing rooms, locker rooms, and toilet rooms must be commercial grade, durable, smooth, nonabsorbent, and easy to clean.

(ii) Floors must be coved at the juncture of the floor and wall, and toe kick/floor junctures, with a ⅜-inch-minimum radius coving which must extend up the wall at least four (4) inches in all areas except for dry storage or areas not subject to splash.

(iii) Grout between tiles must be a sealed so it is water resistant.

(iv) Except as provided in subparagraph b.(v), prohibited floors and floor coverings in areas identified in subparagraph b.(i) include, but are not limited to cardboard, sawdust, wood shavings, peanut hulls, sheet vinyl, marble, and sealed or unsealed concrete.

(v) Commercial grade sheet vinyl:

(aa) May be used only in a dry storage area;

(bb) May not have felt backing;

(cc) Must be at least 0.080-inches thick, with heat-welded seams;

(dd) Must be properly installed in accordance with manufacturer's specifications;

(ee) Must include a cove backing (cove stick) at the wall/floor and toe kick/floor junctures; and

(ff) Must be approved by the regulatory authority.

c. Brick and/or rock, whether sealed or unsealed, may not be used as a floor or wall covering in any area specified in subparagraph b.(i) of this paragraph.

d. In a temporary food establishment:

(i) If graded to drain, a floor may be concrete, machine-laid asphalt, or dirt or gravel if it is covered with mats, removable platforms, duckboards, or other approved materials that are effectively treated to control dust and mud; and

(ii) Walls and ceilings may be constructed of a material that protects the interior from the weather and windblown dust and debris.

(b) *Outdoor areas.*

(1) *Surface characteristics.*

a. The outdoor walking and driving areas must be surfaced with concrete, asphalt, or gravel or other materials that have been effectively treated to minimize dust, facilitate maintenance, and prevent muddy conditions.

b. Exterior surfaces of buildings and mobile food establishments must be of weather-resistant materials and must comply with law.

c. Outdoor storage areas for refuse, recyclables, or returnables must be of materials specified under sections 9-49(a)(2) and 9-49(a)(3).

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-51. Design, construction, and installation.

(a) *Cleanability.*

(1) *Floors, walls, and ceilings.* Except as specified under section 6-201.14 and except for anti-slip floor coverings or applications that may be used for safety reasons, floors, floor coverings, walls, wall coverings, and ceilings must be designed, constructed, and installed so they are smooth and easily cleanable.

(2) *Floors, walls, and ceilings, utility lines.*

a. Utility service lines and pipes may not be unnecessarily exposed.

b. Exposed utility service lines and pipes must be installed so they do not obstruct or prevent cleaning of the floors, walls, or ceilings.

c. Exposed horizontal utility service lines and pipes may not be installed on the floor.

(3) *Floor and wall junctures, coved, and enclosed or sealed.*

a. In food establishments in which cleaning methods other than water flushing are used for cleaning floors, the floor and wall junctures must be coved and closed to no larger than 1 mm (one thirty-second inch).

b. The floors in food establishments using water flush cleaning methods, or that receive discharges of water or other fluid waste from equipment, must have trapped floor drains graded to drain, and the floor and wall junctures must be coved and sealed.

(4) *Floor carpeting, restrictions and installation.*

a. A floor covering such as carpeting or similar material may not be installed as a floor covering in food preparation areas, walk-in refrigerators, warewashing areas, toilet room areas where handwashing lavatories, toilets, and urinals are located, refuse storage rooms, or other areas where the floor is subject to moisture, flushing, or spray cleaning methods.

b. If carpeting is installed as a floor covering in areas other than those specified under paragraph (4)a., it must be:

(i) Securely attached to the floor with a durable mastic, by using a stretch and tack method, or by another method; and

(ii) Installed tightly against the wall under the coving or installed away from the wall with a space between the carpet and the wall and with the edges of the carpet secured by metal stripping or some other means.

(5) *Floor covering, mats and duckboards.*

a. Mats and duckboards must be designed to be removable and easily cleanable.

b. Duckboards may not be used as storage racks.

(6) *Wall and ceiling coverings and coatings.*

a. Wall and ceiling covering materials must be attached so that they are easily cleanable.

b. Concrete, porous blocks, or brick must not be used for indoor wall construction in food preparation, food service, food storage, warewashing areas, walk-in refrigeration units, dressing rooms, locker rooms, or toilet rooms.

c. All food preparation, food service, food storage, warewashing areas, walk-in refrigeration units, dressing rooms, locker rooms, and toilet rooms in a food establishment must:

(i) Be covered with durable waterproof materials;

(ii) Be light in color; and

(iii) Use waterproof materials extending from the top of the coved base (wall/floor or toe-kick/floor junctures) to at least three (3) feet above the backsplash.

d. Walls including non-supporting partitions, wall covering and ceilings of the walk-in refrigeration units, dry storage areas, food preparation areas, equipment and utensil washing areas, toilet rooms and vestibules must be light in color or meet the requirements and approval of the regulatory authority.

e. Darker-colored coverings for the items listed in subparagraph d. of

this paragraph may require additional lighting, as specified in section 9-52(c)(1), or meet the requirements set by the regulatory authority, to allow cleaning of the surface.

(7) *Walls and ceilings, attachments.*

a. Except as specified in subparagraph b. of this paragraph, attachments to walls and ceilings such as light fixtures, mechanical room ventilation system components, vent covers, wall mounted fans, decorative items, and other attachments must be easily cleanable.

b. In a consumer area, wall and ceiling surfaces and decorative items and attachments that are provided for ambiance need not meet this requirement if they are kept clean.

c. Except for temporary food establishments, studs, joists, and rafters may not be exposed in areas subject to moisture.

(b) *Functionality.*

(1) *Light bulbs, protective shielding.*

a. Except as specified in subparagraph b. of this paragraph, light bulbs must be shielded, coated, or otherwise shatter-resistant in areas where there is exposed food; clean equipment, utensils, and linens; or unwrapped single-service and single-use articles.

b. Shielded, coated, or otherwise shatter-resistant bulbs need not be used in areas used only for storing food in unopened packages, if:

(i) The integrity of the packages cannot be affected by broken glass falling onto them;

(ii) The packages are capable of being cleaned of debris from broken bulbs before the packages are opened; and

(iii) LED lighting is used.

c. An infrared or other heat lamp must be protected against breakage by a shield surrounding and extending beyond the bulb so that only the face of the bulb is exposed.

(2) *Heating, ventilating, air conditioning system vents.* Heating, ventilating, and air conditioning systems must be designed and installed so that make-up air intake and exhaust vents do not cause contamination of food, food-contact surfaces, equipment, or utensils.

(3) *Insect control devices, design and installation.*

a. Insect control devices that are used to electrocute or stun flying insects must be designed to retain the insect within the device.

b. Insect control devices must be installed so that:

(1) The devices are not located over a food preparation area; and

(2) Dead insects and insect fragments are prevented from being impelled onto or falling on exposed food; clean equipment, utensils, and linens; and unwrapped single-service and single-use articles.

(4) *Toilet rooms, enclosed.* Except where a toilet room is located outside a food establishment and does not open directly into the food establishment such as a toilet room that is provided by the management of a shopping mall, a toilet room located on the premises must be completely enclosed and provided with a tight-fitting and self-closing door.

(5) *Outer openings, protected.*

a. Except as specified in subparagraphs b., c., and e. and under subparagraph d. of this paragraph, outer openings of a food establishment must be protected against the entry of insects and rodents by:

(1) Filling or closing holes and other gaps along floors, walls, and ceilings;

(2) Closed, tight-fitting windows; and

(3) Solid, self-closing, tight-fitting doors.

b. Subparagraph a. of this paragraph does not apply if a food establishment opens into a larger structure, such as a mall, airport, or office building, or into an attached structure, such as a porch, and the outer openings from the larger or attached structure are protected against the entry of insects and rodents.

c. Exterior doors used as exits need not be self-closing if they are:

(1) Solid and tight-fitting;

(2) Designated for use only when an emergency exists, by the fire protection authority that has jurisdiction over the food establishment; and

(3) Limited-use so they are not used for entrance or exit from the building for purposes other than the designated emergency exit use.

d. Except as specified in subparagraphs b. and e. of this paragraph, if the windows or doors of a food establishment, or of a larger structure within which a food establishment is located, are kept open for ventilation or other purposes or a temporary food establishment is not provided with windows and doors as specified under subparagraph a. of this paragraph, the openings must be protected against the entry of insects and rodents by:

(1) 16 mesh to 25.4 mm (16 mesh to 1 inch) screens;

(2) Properly designed and installed air curtains to control flying insects; or

(3) Other effective means as approved by the department.

e. If approved by the department, subparagraph d. of this paragraph does not apply if flying insects and other pests are absent due to the location of the establishment, the weather, or other limiting condition.

(6) *Exterior walls and roofs, protective barrier.* Perimeter walls and roofs of a food establishment must effectively protect the establishment from the weather and the entry of insects, rodents, and other animals.

(7) *Outdoor food vending areas, overhead protection.* Except for machines that vend canned beverages, if located outside, a machine used to vend food must be provided with overhead protection.

(8) *Outdoor servicing areas, overhead protection.* Except for areas used only for the loading of water or the discharge of sewage and other liquid waste, through the use of a closed system of hoses, servicing areas must be provided with overhead protection.

(9) *Outdoor walking and driving surfaces, graded to drain.* Exterior walking and driving surfaces must be graded to drain.

(10) *Outdoor refuse areas, curbed and graded to drain.*

a. Outdoor refuse areas must be constructed in accordance with all local law, state, and federal laws and must be curbed and graded to drain to collect and dispose of liquid waste that results from the refuse and from cleaning the area and waste receptacles.

b. It shall be an offense for an outdoor refuse area to drain to a storm drain.[P]

(11) *Private homes and living or sleeping quarters, use prohibition.* A private home, a room used as living or sleeping quarters, or an area directly opening into a room

used as living or sleeping quarters may not be used for conducting food establishment operations.[P]

(12) *Living or sleeping quarters, separation.* Living or sleeping quarters located on the premises of a food establishment such as those provided for lodging registration clerks or resident managers must be separated from rooms and areas used for food establishment operations by complete partitioning and solid self-closing doors.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-52. Numbers and capacities.

(a) *Handwashing sinks.*

(1) *Minimum number.* Handwashing sinks must be provided as specified under section 9-52(a).

(2) *Handwashing cleanser, availability.* Each handwashing sink or group of two (2) adjacent handwashing sinks must be provided with a supply of hand cleaning liquid in a dispenser.[Pf]

(3) *Hand drying provision.*

a. Each handwashing sink or group of adjacent handwashing sinks must be provided with:

(i) Individual, disposable towels in a dispensing unit;[Pf] or

(ii) A hand drying device that is air-heated or employs an air-knife system that delivers high velocity, pressurized air at ambient temperatures as provided in this paragraph.[Pf]

b. Toilet rooms without paper towels from a dispensing unit must provide a kick plate or foot pull to avoid recontamination of hands when exiting the restroom facilities, except where the toilet room door swings outward or is exempted as provided in section 9-51(b)(4).[Pf]

(C) No forced air dryers are allowed in food preparation areas.[Pf]

(4) *Handwashing aids and devices, use restrictions.* A sink used for food preparation or utensil washing, or a service sink or curbed cleaning facility used for the disposal of mop water or similar wastes, may not be provided with the handwashing aids and devices required for a handwashing sink as specified under subsection(a)(2) and (a)(3) of this section and section 9-49(a)(7)(C).

(5) *Handwashing signage.* A sign or poster that notifies food employees to wash their hands must be provided at all handwashing sinks used by food employees and must be clearly visible to food employees.

(6) *Disposable towels, waste receptacle.* A handwashing sink or group of adjacent handwashing sinks that is provided with disposable towels must be provided with a waste receptacle as specified under section 9-49(a)(7)c. Waste receptacles shall be located within easy access of the restroom door.[Pf]

(b) *Toilets and urinals.*

(1) *Minimum number.* Toilets and urinals must be provided as specified under section 9-46(c)(2).

(2) *Toilet tissue, availability.* A supply of toilet tissue must be available in a dispenser at each toilet.[Pf]

(c) *Lighting.*

(1) *Intensity.* The light intensity must be:

a. At least 108 lux (10 foot candles) at a distance of 75 cm (30 inches) above the floor, in walk-in refrigeration units and dry food storage areas and in other areas and rooms during periods of cleaning;

b. At least 215 lux (20 foot candles):

(1) At a surface where food is provided for consumer selfservice such as buffets and salad bars or where fresh produce or packaged foods are sold or offered for consumption,

(2) Inside equipment such as reach-in and under-counter refrigerators, and

(3) At a distance of 75 cm (30 inches) above the floor in areas used for handwashing, warewashing, and equipment and utensil storage, and in toilet rooms; and

c. At least 540 lux (50 foot candles) at a surface where a food employee is working with food or working with utensils or equipment such as knives, slicers, grinders, or saws where employee safety is a factor.

(d) *Ventilation.*

(1) *Mechanical.*

a. If necessary to keep rooms free of excessive heat, steam, condensation, vapors, obnoxious odors, smoke, and fumes, mechanical ventilation of sufficient capacity must be provided.

b. All ventilation areas which involve cooking, grilling, baking, and frying must meet requirements as set forth by applicable codes, including, but not limited to, Fire Code, Mechanical Code, Electric Code, and Plumbing Code.

(e) *Dressing areas and lockers.*

(1) *Designation.*

a. Dressing rooms or dressing areas must be designated if employees routinely change their clothes in the establishment.

b. Lockers or other suitable facilities must be provided for the orderly storage of employees' clothing and other possessions.

(f) *Service sinks.*

(1) *Availability.* A service sink or curbed cleaning facility must be provided as specified under section 9-46(c)(3)a.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-53. Location and placement.

(a) *Handwashing sinks.*

(1) *Conveniently located.* Handwashing sinks must be conveniently located as specified under section 9-46(d)(1).

(b) *Toilet rooms.*

(1) *Convenience and accessibility.* Toilet rooms must be conveniently located and accessible to employees during all hours of operation.

(c) *Employee accommodations.*

(1) *Designated areas.*

a. Areas designated for employees to eat, drink, and use tobacco products must be located so that food, equipment, linens, and single-service and single-use articles are protected from contamination.

b. Lockers or other suitable facilities must be located in a designated room or area where contamination of food, equipment, utensils, linens, and single-service and single-use articles cannot occur.

(d) *Distressed merchandise.*

(1) *Segregation and location.* Products that are held by the permit holder for credit, redemption, or return to the distributor, such as damaged, spoiled, or recalled products, must be segregated and held in designated areas that are separated from food, equipment, utensils, linens, and single-service and single-use articles.[Pf]

(e) *Refuse, recyclables, and returnables.*

(1) *Receptacles, waste handling units, and designated storage areas.* Units, receptacles, and areas designated for storage of refuse and recyclable and returnable containers must be located as specified under section 9-49(a)(10).

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-54. Maintenance and operation; premises.

(a) *Premises, structures, attachments, and fixtures—Methods.*

(1) *Repairing.* Physical facilities must be maintained in good repair.

(2) *Cleaning, frequency, and restrictions.*

a. Physical facilities must be cleaned as often as necessary to keep them clean.

b. Except for cleaning that is necessary due to a spill or other accident, cleaning must be done during periods when the least amount of food is exposed such as after closing.

c. Physical facilities, equipment, and utensils must be cleaned before the facility is left unoccupied.

(3) *Cleaning floors, dustless methods.*

a. Except as specified in subparagraph b. of this paragraph, only dustless methods of cleaning must be used, such as wet cleaning, vacuum cleaning, mopping with treated dust mops, or sweeping using a broom and dust-arresting compounds.

b. Spills or drippage on floors that occur between normal floor cleaning times may be cleaned:

(i) Without the use of dust-arresting compounds; and

(ii) In the case of liquid spills or drippage, with the use of a small amount of absorbent compound such as sawdust or diatomaceous earth applied immediately before spot cleaning.

(4) *Cleaning ventilation systems, nuisance and discharge prohibition.*

a. Intake and exhaust air ducts must be cleaned and filters changed so they are not a source of contamination by dust, dirt, and other materials.

b. If vented to the outside, ventilation systems may not create a public health hazard or nuisance or unlawful discharge.

(5) *Cleaning maintenance tools, preventing contamination.* Food preparation sinks, handwashing sinks, and warewashing equipment may not be used for the cleaning of maintenance tools, the preparation or holding of maintenance materials, or the disposal of mop water and similar liquid wastes.[Pf]

(6) *Drying Mops.* After use, mops must be placed in a position that allows them to air-dry without soiling walls, equipment, or supplies.

(7) *Absorbent materials on floors, use limitation.* Except as specified in subparagraph (3)b., sawdust, wood shavings, granular salt, baked clay, diatomaceous earth, or similar materials may not be used on floors.

(8) *Cleaning of plumbing fixtures.* Plumbing fixtures such as handwashing sinks, toilets, and urinals must be cleaned as often as necessary to keep them clean.

(9) *Closing toilet room doors.* Except during cleaning and maintenance operations, toilet room doors as specified under section 9-51(b)(4) must be kept closed.

(10) *Using dressing rooms and lockers.*

a. Dressing rooms must be used by employees if the employees regularly change their clothes in the establishment.

b. Lockers or other suitable facilities must be used for the orderly storage of employee clothing and other possessions.

(11) *Controlling pests.* The premises must be maintained free of insects, rodents, and other pests, the presence of insects, rodents, and other pests must be controlled to eliminate their presence on the premises by:

a. Routinely inspecting incoming shipments of food and supplies;

b. Routinely inspecting the premises for evidence of pests;

c. Using methods, if pests are found, such as trapping devices or other means of pest control as specified under sections 9-56(b)(2) and 9-56(f)(2);[Pf] and

d. Eliminating harborage conditions.

(12) *Removing dead or trapped birds, insects, rodents, and other pests.* Dead or trapped birds, insects, rodents, and other pests must be removed from control devices and the premises at a frequency that prevents their accumulation, decomposition, or the attraction of pests.

(13) *Storing maintenance tools.* Maintenance tools such as brooms, mops, vacuum cleaners, and similar items must be:

a. Stored so they do not contaminate food, equipment, utensils, linens, and single-service and single-use articles; and

b. Stored in an orderly manner that facilitates cleaning the area used for storing the maintenance tools.

(14) *Maintaining premises, unnecessary items and litter.* The premises must be free of:

a. Items that are unnecessary to the operation or maintenance of the establishment such as equipment that is nonfunctional or no longer used; and

b. Litter.

(15) *Prohibiting animals.*

a. Except as specified in subparagraphs b., c., and d. of this paragraph, live animals may not be allowed on the premises of a food establishment.[Pf]

b. Live animals may be allowed in the following situations if the contamination of food; clean equipment, utensils, and linens; and unwrapped single service and single-use articles cannot result:

(i) Edible fish or decorative fish in aquariums, shellfish or Crustacea on ice or under refrigeration, and shellfish and Crustacea in display tank systems;

(ii) Patrol dogs accompanying police or security officers in offices and dining, sales, and storage areas, and sentry dogs running loose in outside fenced areas;

(iii) In areas that are not used for food preparation and that are usually open for customers, such as dining and sales areas, service animals that are controlled by the disabled employee or person, if a health or safety hazard will not result from the presence or activities of the service animal;

(iv) Pets in the common dining areas of institutional care facilities such as nursing homes, assisted living facilities, group homes, or residential care facilities at times other than during meals if:

(aa) Effective partitioning and self-closing doors separate the common dining areas from food storage or food preparation areas,

(bb) Condiments, equipment, and utensils are stored in enclosed cabinets or removed from the common dining areas when pets are present, and

(cc) Dining areas including tables, countertops, and similar surfaces are effectively cleaned before the next meal service; and

(v) In areas that are not used for food preparation, storage, sales, display, or dining, in which there are caged animals or animals that are similarly confined, such as in a variety store that sells pets or a tourist park that displays animals.

c. Live or dead fish bait may be stored if contamination of food; clean equipment, utensils, and linens; and unwrapped single-service and single-use articles cannot result.

d. Dogs may be allowed in outdoor dining areas of a food establishment if:

(i) The establishment posts a sign in a conspicuous location in the area stating that dogs are allowed;

(ii) The customer and dog access the area directly from the exterior of the establishment;

(iii) The dog does not enter the interior of the establishment;

(iv) The customer keeps the dog on a leash and controls the dog;

(v) The customer does not allow the dog on a seat, table, countertop, or similar surface; and

(vi) In the area, the establishment does not:

(aa) Prepare food; or

(bb) Permit open food other than food that is being served to a customer; and

(vii) The requirements specified in this subparagraph do not apply to service animals or service animals in training.

(Ord. No. 2025-4-2, § 1, 4-14-25)

ARTICLE VII. POISONOUS OR TOXIC MATERIALS

Sec. 9-55. Labeling and identification.

(a) *Original containers.*

(1) *Identifying information, prominence.* Containers of poisonous or toxic materials and personal care items must bear a legible manufacturer's label.[Pf]

(b) *Working containers.*

(1) *Common name.* Working containers used for storing poisonous or toxic materials such as cleaners and sanitizers taken from bulk supplies must be clearly and individually identified with the common name of the material.[Pf]

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-56. Operational supplies and applications.

(a) *Storage.*

(1) *Separation.* Poisonous or toxic materials must be stored so they cannot contaminate food, equipment, utensils, linens, and single-service and single-use articles by:

a. Separating the poisonous or toxic materials by spacing or partitioning;[P] and

b. Locating the poisonous or toxic materials in an area that is not above food, equipment, utensils, linens, and single-service or single-use articles, this paragraph does not apply to equipment and utensil cleaners and sanitizers that are stored in warewashing areas for availability and convenience if the materials are stored to prevent contamination of food, equipment, utensils, linens, and single-service and single-use articles.[P]

(b) *Presence and use.*

(1) *Restriction.*

a. Only those poisonous or toxic materials that are required for the operation and maintenance of a food establishment, such as for the cleaning and sanitizing of equipment and utensils and the control of insects and rodents, may be allowed in a food establishment.

b. Subparagraph a. of this paragraph does not apply to packaged poisonous or toxic materials that are for retail sale.

(2) *Conditions of use.* Poisonous or toxic materials must be:

a. Used according to:

(i) Law and this Code,

(ii) Manufacturer's use directions included in labeling, and, for a pesticide, manufacturer's label instructions that state that use is allowed in a food establishment,[P]

(iii) The conditions of certification, if certification is required, for use of the pest control materials,[P] and

(iv) Additional conditions that may be established by the department; and

b. Applied so that:

(i) A hazard to employees or other persons is not constituted,[P] and

(ii) Contamination including toxic residues due to drip, drain, fog, splash or spray on food, equipment, utensils, linens, and single-service and single-use articles is prevented, and this is achieved by[P]:

(aa) Removing the items,[P]

(bb) Covering the items with impermeable covers,[P] or

(cc) Taking other appropriate preventive actions,[P] and

(dd) Cleaning and sanitizing equipment and utensils after the application.[P]

c. A restricted use pesticide may be applied only by an applicator certified as defined in 7 USC 136 Definitions, (e) Certified Applicator, of the Federal Insecticide, Fungicide, and Rodenticide Act, or a person under the direct supervision of a certified applicator.[Pf]

(c) *Container prohibitions.*

(1) *Poisonous or toxic material containers.* A container previously used to store poisonous or toxic materials may not be used to store, transport, or dispense food, equipment, utensils, linens, single-service or single-use articles.[P]

(d) *Chemicals.*

(1) *Sanitizers, criteria.* Chemical sanitizers, including chemical sanitizing solutions generated on-site, and other chemical antimicrobials applied to food contact surfaces must:

a. Meet the requirements specified in 40 CFR 180.940 Tolerance exemptions for active and inert ingredients for use in antimicrobial formulations (Food-contact surface sanitizing solutions),[P] or

b. Meet the requirements as specified in 40 CFR 180.2020 Pesticide Chemicals Not Requiring a Tolerance or Exemption from Tolerance-Non-food determinations.[P]

(2) *Chemicals for washing, treatment, storage and processing fruits and vegetables, criteria.* Chemicals, including those generated on-site, used to wash or peel raw, whole fruits and vegetables or used in the treatment, storage, and processing of fruits and vegetables must:

a. Be an approved food additive listed for this intended use in 21 CFR 173,[P] or

b. Be generally recognized as safe (GRAS) for this intended use,[P] or

c. Be the subject of an effective food contact notification for this intended use (only effective for the manufacturer or supplier identified in the notification),[P] and

d. Meet the requirements in 40 CFR 156 Labeling Requirements for Pesticide and Devices.[P]

(3) *Boiler water additives, criteria.* Chemicals used as boiler water additives must meet the requirements specified in 21 CFR 173.310 Boiler water additives.[P]

(4) *Drying agents, criteria.* Drying agents used in conjunction with sanitization must:

a. Contain only components that are listed as one of the following:

(i) Generally recognized as safe for use in food as specified in 21 CFR 182 - Substances Generally Recognized as Safe, or 21 CFR 184 - Direct Food Substances Affirmed as Generally Recognized as Safe,[P]

(ii) Generally recognized as safe for the intended use as specified in 21 CFR 186 - Indirect Food Substances Affirmed as Generally Recognized as Safe,[P]

(iii) Generally recognized as safe for the intended use as determined by experts qualified in scientific training and experience to evaluate the safety of substances added, directly or indirectly, to food as described in 21 CFR 170.30 Eligibility for classification as generally recognized as safe (GRAS),[P]

(iv) Subject of an effective Food Contact Notification as described in the Federal Food Drug and Cosmetic Act (FFDCA) Section 409(h),[P]

(v) Approved for use as a drying agent under a prior sanction as described in the Federal Food Drug and Cosmetic Act (FFDCA) § 201(s)(4),[P]

(vi) Specifically regulated as an indirect food additive for use as a drying agent as specified in 21 CFR Parts 174—178,[P] or

(vii) Approved for use as a drying agent under the threshold of regulation process established by 21 CFR 170.39 Threshold of regulation for substances used in food-contact articles;[P] and

b. When sanitization is with chemicals, the approval required under subparagraph a.(v) or a.(vii) of this paragraph or the regulation as an indirect food additive required under subparagraph a.(vi) of this paragraph, must be specifically for use with chemical sanitizing solutions.[P]

(e) *Lubricants.*

(1) *Incidental food contact, criteria.* Lubricants must meet the requirements specified in 21 CFR 178.3570 Lubricants with incidental food contact, if they are used on food-contact surfaces, on bearings and gears located on or within food contact surfaces, or on bearings and gears that are located so that lubricants may leak, drip, or be forced into food or onto food-contact surfaces.[P]

(f) *Pesticides.*

(1) *Restricted use pesticides, criteria.* Restricted use pesticides specified under Subsection (b)(2)(C) of this section must meet the requirements specified in 40 CFR 152 Subpart I Classification of Pesticides.[P]

(2) *Rodent bait stations.* Rodent bait must be contained in a covered, tamper-resistant bait station.[P]

(3) *Tracking powders, pest control and monitoring.*

a. Except as specified in subparagraph b. of this paragraph, a tracking powder pesticide may not be used in a food establishment.[P]

b. If used, a nontoxic tracking powder such as talcum or flour may not

contaminate food, equipment, utensils, linens, and single-service and single-use articles.

(g) *Medicines.*

(1) *Restriction and storage.*

a. Except for medicines that are stored or displayed for retail sale, only those medicines that are necessary for the health of employees must be allowed in a food establishment.[Pf]

b. Medicines that are in a food establishment for the employees' use must be labeled as specified under section 9-55(a)(1) and located to prevent the contamination of food, equipment, utensils, linens, and single-service and single-use articles.[P]

(2) *Refrigerated medicines, storage.* Medicines belonging to employees or to children in a day care center that require refrigeration and are stored in a food refrigerator must be:

a. Stored in a package or container and kept inside a covered, leakproof container that is identified as a container for the storage of medicines;[P] and

b. Located so they are inaccessible to children.[P]

(h) *First aid supplies.*

(1) *Availability.* A first aid kit must be provided in all food establishments.

(2) *Storage.* First aid supplies that are in a food establishment for the employees' use must be:

a. Labeled as specified under section 9-55(a)(1);[Pf] and

b. Stored in a kit or a container that is located to prevent the contamination of food, equipment, utensils, and linens, and single-service and single-use articles.[P]

(i) *Other personal care items.*

(1) *Storage.* Except as specified under subsections (g)(2) and (h)(2) of this section, employees must store their personal care items in facilities as specified under section 9-52(e)(1).

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-57. Stock and retail sale.

(a) *Storage and display.*

(1) *Separation.* Poisonous or toxic materials must be stored and displayed for retail sale so they cannot contaminate food, equipment, utensils, linens, and single-service and single-use articles by:

a. Separating the poisonous or toxic materials by spacing or partitioning;[P] and

b. Locating the poisonous or toxic materials in an area that is not above food, equipment, utensils, linens, and single-service or single-use articles.[P]

(Ord. No. 2025-4-2, § 1, 4-14-25)

ARTICLE VIII. REQUIREMENTS APPLICABLE TO CERTAIN ESTABLISHMENTS

Sec. 9-58. Mobile food units.

(a) *Mobile food unit provisions.*

(1) *In general.* Except as otherwise provided in this paragraph and in subparagraph (2) of this subsection, the department:

a. May impose additional requirements to protect against health hazards related to the conduct of the food establishment as a mobile operation;

b. May prohibit the sale of some or all time and temperature control for safety foods (TCS foods); and

c. When no health hazard will result, may waive or modify requirements of this section relating to physical

facilities, except those requirements as specified in paragraphs (7)—(9) and (11)a. of this subsection, and sections 9-25—9-29.

(2) *Mobility.*

a. A mobile food establishment (MFE) must maintain mobility at all times. Examples of items needed to maintain mobility include, but are not limited to, a driver that is authorized and able to move the MFE at the request of the department, a tow vehicle in the event a MFE is a trailer, no additional food pep or service items to be stored outside (i.e. food prep tables, handwashing sinks, three (3) compartment sinks, refrigeration, ice coolers), and for drivable units, the engine must start on its own power at all times.[P]

b. Alterations, removal, attachments, additions, placement or change in, under, or upon a mobile food establishment that would prevent or reduce ready mobility is prohibited.[P]

c. If required by the department, a mobile food establishment must come, on an annual basis or as often as required, to a location designated by the department as proof that the mobile food establishment is readily moveable.

(3) *Restricted operations.* As approved by the department, an MFE that serves only food that is prepared, packaged in individual servings, transported and stored under conditions meeting the requirements of this article, or beverages that are non-time and temperature control for safety food and are dispensed from covered urns or other protected equipment, need not comply with the requirements of this article, relating to the necessity of water and sewage systems nor to those requirements, relating to the cleaning and sanitization of equipment and utensils if the required equipment for cleaning and sanitization exists at its central preparation facility.

(4) *Initial permit inspection process.*

a. A mobile food establishment must go to the location designated by the department for any permit inspection.[Pf]

b. If a mobile food establishment does not arrive for a scheduled inspection and does not provide a twenty-four-hour notification to the department, a cancellation fee will be assessed, and must be paid prior to any future issuance of permit.

c. A mobile food establishment must be totally operable at all times during inspection, including but not limited to, handwash/warewash facilities, refrigeration and wastewater disposal.[P]

d. A mobile food establishment must provide, upon request during an inspection, the following documentation:

i. Certified food manager certification.[P]

ii. A signed and notarized letter of authorization is required to verify facility use if the central preparation facility is not owned by the mobile unit operator. This authorization is required at the time of permit application and at each renewal of the permit.[Pf]

iii. A copy of the most current health inspection of the central preparation facility. The copy of the inspection must be maintained on the mobile unit at all times.

iv. If the servicing area is not owned by the mobile unit operator, a signed and properly filled

out Mobile Food Establishment Central Preparation Facility Log Sheet.

v. Menu of all food to be sold.

vi. If a mobile food establishment is operating in one location for more than two (2) consecutive hours, the mobile food establishment operator shall provide a signed and notarized letter from the property/business owner stating that there is a restroom available for mobile food establishment employees to use while they are selling food on their property. No port-a-potty or other portable toilet may be used to satisfy the requirements of the subparagraph.[Pf]

e. Mobile food establishments must identify the vehicle with characters at least four (4) inches high on both exterior sides of the unit stating the name of the mobile food establishment or business.

(6) *Single-service articles.* A MFE may only provide single service articles for use by the consumer.

(7) *Equipment, numbers, and capacities.*

a. Equipment for cooling and heating food, and holding cold and hot food, must be sufficient in number and capacity to provide food temperatures as specified under article III.[Pf]

b. Manual warewashing, sink compartment requirements:

i. A sink with at least three compartments shall be provided for manually washing, rinsing, and sanitizing equipment and utensils as specified in section 9-38(a)(2)a.

ii. Sink compartments must be large enough to accommodate immersion of the largest equipment and utensils as specified in section 9-38(a)(2)c.

c. At least one handwashing sink must be available for convenient use by employees and properly provisioned in accordance with sections 9-52(a)(2) and (3).

(8) *Compliance with Code.* In addition to the requirements found in this article, Mobile Food Establishment must comply with all applicable sections of the Code.[P]

(9) *Mobile food establishment water and wastewater systems.*

a. An MFE drinking water tank must meet the requirements of section 9-47(c)(3).

i. Fill hose and water holding tank must be labeled as "Potable Water."

ii. Drinking water in an MFE holding tank must be tested for contamination by sampling upon request by the department.[P]

b. Liquid waste generated from the operation of a MFE must be stored in a permanently installed retention tank.[Pf] A leak-proof sewage holding tank in an MFE must meet the requirements of section 9-48(a)(1) for capacity and drainage.[Pf]

c. All connections on the vehicle for servicing the MFE waste disposal facilities must be of a different size or type than those used for supplying potable water to the MFE.[Pf]

d. Liquid waste may not be discharged from the retention tank while the MFE is in motion.[P] Flushing a waste retention tank must meet the requirements of section 9-48(b)(6).

e. Liquid waste holding tank(s) must be labeled as "waste water." Removing MFE wastes must meet the requirements of section 9-48(b)(5).

f. No residential water heater may be used in a mobile food establishment.[Pf]

g. Toilet rooms must be located no more than one hundred (100) linear feet from the MFE. The toilet rooms must be accessible to employees during all hours of operation.[Pf]

(10) *MFE water and wastewater exemption.*

a. A roadside vendor that sells only prepackaged food is exempt from the requirements of this article relating to water and wastewater.

b. A MFE that sells food requiring no water for operations and no hand contact with food is exempt from the requirements of this chapter relating to water and wastewater if the required cleaning and sanitization equipment exists at its central preparation facility. Chemically treated towelettes for handwashing may be used as specified in section 9-46(c)(1).

(11) *Central preparation facility.*

a. An MFE must operate from a central preparation facility or other fixed food establishment and must report to such location daily for supplies, cleaning, and servicing operations.[Pf]

b. The central preparation facility or other fixed food establishment, used as a base of operation for an MFE, must be constructed and operated in compliance with the requirements of article IV.

c. A private residence may not be used as a central preparation facility.[P]

(12) *Outdoor servicing area and operations.*

a. An MFE servicing area must include at least overhead protection for any supplying, cleaning, or servicing operation. Those areas used only for the loading of water or the discharge of sewage and other liquid waste, through the use of a closed system of hoses, need not be provided with overhead protection.[Pf]

b. Within the servicing area, the location provided for the flushing and drainage of liquid wastes must be separate from the location provided for potable water servicing and for the loading and unloading of food and related supplies.

c. A servicing area will not be required where only packaged food is placed on the MFE or where a MFE does not contain waste retention tanks.

d. The surface of the servicing area must be constructed of a smooth nonabsorbent material, such as concrete or machine-laid asphalt and must be maintained in good repair, kept clean, and be graded to drain.

e. Potable water servicing equipment must be installed in the servicing area according to the Plumbing Code and must be stored and handled in a way that protects the water and equipment from contamination.[P]

f. The construction of the walls and ceilings of the servicing area is exempted from the provisions of section 9-51(a)(1).

(13) *Central preparation facility log sheet.*

a. Mobile food establishments must maintain a central preparation facility log sheet with them at all times.

b. A new central preparation log sheet must be filled out every month.

c. A mobile food establishment central preparation facility log sheet must include:

i. The name of the mobile food unit;

ii. The date of service of the mobile food unit;

iii. The time of arrival to the central preparation facility;

iv. The time of departure from the central preparation facility; and

v. A signature from the owner or owner's designee of the central preparation facility each day of service at the facility.

d. A mobile food establishment must email the previous month's properly completed and signed central preparation facility log sheet to the department's email address of envhealth@plano.gov no later than the 5th day of every month.

(14) *Interior and exterior surfaces.*

a. All interior and exterior surfaces of a mobile food establishment must be of a material that:

i. Is light in color (interior only);

ii. Is corrosion resistant;

iii. Is non-absorbent;

iv. Is smooth;

v. Is easily cleanable;

vi. Is free of breaks;

vii. Has no open seams;

viii. Is free from difficult to clean internal corners and crevices; and

ix. Is resistant to:

(aa) Denting;

(bb) Buckling;

(cc) Chipping; or

(dd) Crazing.

b. Interior and exterior surfaces must be maintained in good repair.

(15) *Generators.*

a. A mobile food establishment that is selling food or parked and not connected to an external power source must have a generator supplying power to the establishment.[P]

b. Generators must be of adequate size to meet all power needs of the mobile food establishment.[P]

c. Generators must have adequate ventilation to prevent exposure to exhaust fumes. MFEs that use a generator must have a carbon monoxide sensor installed and maintained in accordance with the manufacturer's instructions.[P]

(16) *Compliance with Fire Code.* All mobile food establishments must comply with the current Fire Code.[P]

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-59. Temporary food establishments.

(a) *Temporary food establishment requirements.*

(1) *In general.*

a. An applicant for a temporary food establishment permit shall submit their application and any required fees at least five (5) business days prior to the event. An administrative fee will apply to applications received after this deadline.

b. Food establishments with a valid City of Plano food establishment permit shall apply for a temporary permit when participating in an event.

c. Food manufacturers shall submit a copy of the state manufacturer's license with their application.

d. The department may impose additional requirements to protect against health hazards related to the conduct of the temporary food establishment, may prohibit the sale of some or all time and temperature control for safety foods (TCS foods), and when no health hazard will result, such as children's neighborhood beverage stands, may waive or modify requirements of this article.

(i) Food that is not prepared on site or that require extensive preparation or cooking must be prepared at a licensed food

establishment. All food must be obtained from an approved source.[P]

(ii) Each temporary establishment may be required by the department to have at least one person on-site who has a minimum of an accredited food handler certification.[Pf]

e. The temporary or seasonal food event permit holder shall be the person in charge or shall designate a person in charge and shall ensure that a person in charge is present at the event during hours of food service operations when the operation is involved in handling TCS food. The person in charge shall have proof of successfully passing a recognized certified food handler course and shall make it available to the department upon request.

(2) *Food temperatures.* All food temperature requirements must be met as contained in sections 9-15, 9-17.1, 9-25, 9-27, and 9-29.

(3) *Ice.* Ice that is consumed or that contacts food must have been made under conditions meeting the requirements of article III. The ice must be obtained only in blocked, chipped, crushed, or cubed form and in single-use safe plastic or wet-strength paper bags filled and sealed at the point of manufacture. Ice for consumption must be held in the bags until it is dispensed and be dispensed in a way that protects it from contamination.[P]

(4) *Equipment and utensils.*

a. Equipment and utensils must be designed and constructed to be durable and to retain their characteristic qualities under normal use conditions.[Pf]

b. Equipment must be located and installed and cleaned in a way that prevents food contamination and that also facilitates cleaning of the temporary food establishment.[Pf]

c. Equipment for cooling or heating food and holding cold or hot food must be adequate in number and capacity to provide food temperatures as specified in sections 9-25—9-27 and 9-29.

d. Food-contact surfaces of equipment must be protected from contamination by consumers and other sources. Where necessary to prevent contamination, effective shields for such equipment must be provided.[Pf]

e. Alternative manual warewashing equipment, such as receptacles that substitute for the compartments of a three-compartment sink, may be used when there are special cleaning needs or constraints and the department has approved the use of alternative equipment. Each compartment must be large enough to immerse the largest piece of equipment that will be used. A means to heat water must also be provided.[Pf]

(5) *Single-service articles.* A temporary food establishment must provide only single-service articles for use by the consumer.

(6) *Water.*

a. Water from an approved source must be made available in a temporary food establishment for food preparation, handwashing, and for cleaning and sanitizing utensils and equipment.[P]

b. Water does not need to be under pressure but must come from approved sources which include:

(i) Commercially bottled drinking water;[P]

(ii) Closed portable water containers;[P]

(iii) Enclosed vehicular water tanks;[P]

(iv) On-premise water storage tanks;[P] or

(v) Piping, tubing or hoses connected to an approved source.[P]

(7) *Wet storage.* No packaged food may be stored in direct contact with ice or water if the food is subject to the entry of water because of the nature of its packaging, wrapping, or container or its positioning in the ice or water.[P]

(8) *Sewage.*

a. All waste water and sewage generated from the temporary food establishment must be disposed of through an approved sanitary sewage system that is:

(i) A public sewage system;[P] or

(ii) An individual sewage disposal system that is sized, constructed, maintained, and operated according to 30 TAC Chapter 285 (relating to Onsite Sewage Facilities).[P]

(9) *Handwashing.* Handwashing facilities must include a container with a spigot that provides potable, clean, warm water; a wastewater container; soap; disposable towels; and a waste receptacle. Handwashing facilities are not required if the only food items offered are commercially pre-packaged foods that are dispensed in their original containers.[Pf]

(10) *Floors.* If graded to drain, a floor may be concrete, machine-laid asphalt, dirt, or gravel covered with mats, plywood, removable platforms, duckboards if covered with mats, or other suitable materials approved by the department, such as tarps, that effectively control dust and mud.

(11) *Ceilings and outer openings in food preparation areas.*

a. Walls and ceilings must be made of wood, canvas, or other materials that protect the interior of the establishment from the weather, windblown dust, birds, and debris.

b. The outer openings must be protected against entry of insects and rodents by:

(i) 16 mesh to 25.4 millimeters (16 mesh to 1 inch) screens;

(ii) Properly designed and installed air curtains; or

(iii) Other effective means.

c. If approved by the department, subparagraph b. of this paragraph does not apply if flying insects and other pests are absent due to the location of the temporary food establishment or other limiting conditions.

(12) *Verification and documentation of correction.* In the case of temporary food establishments, all priority and priority foundation items must be corrected immediately, and other violations must be corrected within twenty-four (24) hours or sooner if required by the department. If violations are not corrected, the establishment must immediately cease food operations upon execution of an emergency suspension or closing order until authorized to resume by the department.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-60. Bed and breakfast.

(a) *In general.*

(1) A bed and breakfast extended, in addition to licensing and compliance with applicable city and state regulations, must comply with the minimum requirements of this section if the establishment:

a. Has more than seven rooms for rent; or

b. Provides food service other than breakfast to overnight guests.

(2) A bed and breakfast food establishment that provides food service to customers in addition to its overnight guests must comply with the rules and regulations applicable to retail food establishments, including licensing with the department.

(3) A bed and breakfast limited:

a. Has seven (7) or fewer rooms for rent;

b. Serves only breakfast to overnight guests;

c. Is not a retail food establishment; and

d. Complies with subsection (b) of this section.

(b) *Certified food protection manager.* The owner or manager shall successfully complete a food manager's certification course accredited by the state.[Pf]

(c) *Food supplies.* Food must be obtained from approved sources in accordance with sections 9-14(a)—(h) and section 9-29 and must be in sound condition and be safe for human consumption.[P]

(d) *Food preparation and protection.*

(1) *Food preparation and protection.* Food must be prepared and protected in accordance with article III.

(2) *Temperature requirements.* All food temperature requirements must be met as contained sections 9-15, 9-17.1, 9-25—9-27, and 9-29.

(e) *Cleaning and sanitizing.*

(1) *Manual.* A three-compartment sink must be used if washing, rinsing, and sanitizing of utensils and equipment is done manually; or a two-compartment sink may be utilized if single service tableware is provided, and if an approved detergent sanitizer is used.[Pf]

(2) *Mechanical.* Cleaning and sanitizing may be done by spray-type or immersion dishwashing machines or by any other type of machine or device if it is demonstrated that it thoroughly cleans and sanitizes equipment and utensils either by chemical or mechanical sanitization.

(f) *Personal hygiene.* Employees shall conform to good hygienic practices as required in sections 9-10 and 9-11.

(g) *Employee restrooms.* A restroom must be available for use by employees.[Pf]

(h) *Equipment and utensil design and construction.* All equipment and utensils must be constructed of safe materials and maintained in good repair.[P]

(i) *Handwash sinks.*

(1) *Location.* An accessible and conveniently located handwash sink must be provided in or immediately adjacent to food preparation areas and restrooms.[Pf]

(2) *Intended use.* Handwash sinks must be used for no other purpose other than handwashing.[Pf]

(j) *Food-contact surfaces.* All food contact surfaces, counters, or work surfaces in the bed and breakfast establishment must be smooth, non-absorbent and easily cleanable.[Pf]

(k) *Insect proof/rodent proof.*

(1) *Construction.* Food service preparation and storage areas must be constructed and maintained to prevent the entry of pests and other vermin.

(2) *Chemical control.* Pesticides and rodenticides must be applied in accordance with section 9-56.

(l) *Equipment.* Equipment must be provided to maintain time and temperature control for safety foods (TCS foods) at the temperatures required in accordance with article III.

(m) *Garbage receptacles.* A sufficient number of impervious receptacles must be provided for storage of garbage and refuse. Receptacles must be maintained in clean and sanitary condition.

(n) *Sewage.* Sewage must be disposed through an approved facility that is:

(1) A public sewage system;[P] or

(2) An individual sewage disposal system that is sized, constructed, maintained, and operated according to law in 30 TAC Chapter 285 (relating to on-site sewage facilities).[P]

(o) *Water supply.* Hot and cold water under pressure must be provided[P] and must be from an approved source that meets the standards in accordance with:

(1) State drinking water quality standards in accordance with 30 TAC §§ 290.38 - 290.47 (relating to Rules and Regulations for Public Water Systems), and 30 TAC §§ 290.101 - 290.114, 290.117 - 290.119, 290.121, and 290.122 (relating to Drinking Water Standards Governing Drinking Water Quality and Reporting Requirements for Public Water Systems);[P] or

(2) Private water system standards as provided in 30 TAC Chapter 290, Subchapter F (relating to Drinking Water Standards Governing Drinking Water Quality and Reporting Requirements for Public Water Systems), concerning transient noncommunity water systems.[P]

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-61. Outfitter operations.

(a) *In general.* Requirements in this section are specific for outfitter operations. The department may impose additional requirements to protect against health hazards that may be specific to these operations.

(b) *Food supplies.* Food supplies, including ice, must be obtained from approved sources described in sections 9-14(a)—(h) and section 9-15. No home-prepared products may be offered.

(c) *Food temperatures.* All food temperature requirements must be met as contained in sections 9-15, 9-17.1, 9-25—9-27, and 9-29.

(d) *Food preparation and protection for excursions.*

(1) Except for paragraphs (2) though (4) of this subsection, all food must be prepared and protected in central preparation facility and meet requirements contained in chapter 3, food.

(2) Only commercially prepackaged ready-to-eat foods or ready-to-eat foods that have been prepared and packaged with no cooking at a central preparation facility may be served.[P]

(3) Raw time and temperature control for safety foods (TCS foods) may be cooked on-site if cooked and immediately served.

(4) All food must be stored to protect from contamination in accordance with article III.

(5) TCS foods that require complex preparation must be served within the first twenty-four (24) hours of the excursion departure time.[P]

(6) Leftover food may not be re-heated or re-served.[P]

(e) *Warewashing.*

(1) Alternative manual warewashing equipment, such as receptacles that substitute for the compartments of a multi-compartment sink, may be used for washing and sanitizing utensils when approved by the regulatory authority.[Pf]

(2) An outfitter operation without effective facilities for cleaning and sanitizing tableware may only provide single-service articles for use by food employees and consumers.

(f) *Ice usage.*

(1) Ice that is used for cooling food may not be used for human consumption.[P]

(2) Ice used for human consumption must be stored in a clean sanitized container that is properly constructed and maintained in good repair.[P]

(g) *Potable water.*

(1) Potable water must be used on excursions for human consumption, food

preparation, handwashing, and for cleaning and sanitizing utensils and equipment.[P]

(2) Potable water must be stored in a clean sanitized container that is easily cleanable and good condition.[P]

(h) *Handwashing.*

(1) Handwashing facilities must include:

a. A container with a spigot that can be turned on to allow potable, clean, water;[Pf]

b. A wastewater container;[Pf]

c. Soap;[Pf]

d. Disposable towels;[Pf] and

e. A waste receptacle.

(2) Handwashing facilities are not required if the only food items offered are commercially prepackaged foods that are dispensed in their original containers.

(i) *Equipment.* All equipment and utensils intended for food contact must be approved for food use.[P]

(j) *Thermometers.* Thermometers must be provided, accurate, and accessible during excursions.[P]

(k) *Garbage receptacles.* Impervious receptacles must be provided for storage of garbage and refuse.

(l) *Certified food protection manager.* If food other than pre-packaged ready-to-eat food is being served, at least one guide or instructor of the outfitter operation, who is on the excursion, must successfully complete a food manager's certification course accredited by this department.[P]

(m) *Central preparation facility.* An outfitter operation must have a central preparation facility as specified in the definition of outfitter operations in section 9-5.
(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-62. Self-service food markets.

(a) *Self-service food market requirements.*

(1) *In general.* Self-service food markets must comply with the minimum standards of this section.

(2) *Additional requirements.* In addition to the minimum standards of this section, self-service food markets must comply with all requirements of the Code the department deems applicable.

(3) *Surveillance & point of contact.*

a. Self-service food markets must:

(i) Be equipped with 24/7 video surveillance records of consumers viewing, selecting, handling, and purchasing products that identify these consumers. Video surveillance records must be maintained and available for the regulatory authority for a period of fourteen (14) calendar days from the date of the video; and

(ii) Provide information to the department as to the responsible party that will be available for routine inspections.[Pf]

(4) *Pre-packaged food.*

a. Pre-packaged food sold at a self-service food market must:

(i) Meet the labeling requirements as specified in Food Code, paragraph 3-201.11(C); and

(ii) Be tamper evident.[P]

(5) *Specified foods.*

a. A food specified in sections 9-29(g)(1) or (2) or 9-29(h) must be discarded if it:

(i) Exceeds the temperature or time specified in sections 9-29(g)(1) and (2), except time that the product is frozen;

(ii) Is in a container or package that does not bear an expiration date or day;[P] or

(iii) Is not appropriately marked with a date or day that exceeds the temperature and time combination as specified in sections 9-29(g)(1) and (2).

(6) *Display-units offering TCS foods.*

a. All self-service food market display-units offering refrigerated, time and temperature control for safety foods (TCS foods) must have an automatic shutoff control[Pf] or a plan approved by the regulatory authority that prevents the market or market equipment from dispensing food if:

(i) There is a power failure, mechanical failure, or other condition that results in failure of the equipment to maintain food temperatures as specified under article IV;[Pf] and

(ii) Where a condition specified in subparagraph a.(1) occurs, until the equipment is serviced and restocked with food that has been maintained at temperatures specified in sections 9-15, 9-25—9-27, and 9-29.[Pf]

b. When a condition specified in subparagraph a.(i) of this subsection occurs, the ambient temperature may not exceed five degrees Celsius (41 degrees Fahrenheit), or seven degrees Celsius (45 degrees Fahrenheit) for a unit holding raw shell eggs only, for more than thirty (30) minutes immediately after the display is filled, serviced, or restocked.[P]

(7) *Display-unit requirements.*

a. All self-service food market display-units offering TCS food, must be:

(i) Equipped with a self-closing door; or

(ii) Maintained at five degrees Celsius (41 degrees Fahrenheit), or seven degrees Celsius (45 degrees Fahrenheit) for raw shell eggs, if it is an open display unit.[P]

(8) *Signs at automated payment kiosk.*

a. Self-service food markets must have a sign readily visible from the automated payment kiosk stating:

(i) The name of the business to whom complaints or comments must be addressed;

(ii) The address of the business responsible for the market; and

(iii) The responsible business's telephone number and email or web information, when applicable.

(9) *Person in charge.* When a retail food establishment operating as a self-service food market incorporates the provision in this section, it will not be required to maintain a person in charge onsite as specified in section 9-6(a).

(10) *Food equipment certification and classification.* Food equipment that is certified or classified for sanitation by an American National Standards Institute (ANSI) accredited certification program is deemed to comply with sections 9-36(a) and 9-36(b), and 9-37(a)—(d).

(11) *Floors and floor coverings.*

a. The floor and floor coverings of all food storage, self-service areas, walk-in refrigeration units, and vestibules must:

(i) Be commercial grade;

(ii) Include a cove backing at the wall/floor and toe kick/floor junctures;

(iii) Be constructed of smooth, durable material, that is nonabsorbent and easy to clean, as approved by the regulatory authority; and

(iv) Be maintained in good repair.

b. Grout between tiles should be sealed so it is water resistant.

c. Commercial grade sheet vinyl may be used in dry storage areas. Commercial-grade sheet vinyl (no felt backing) which is at least 0.080-inches thick, with heat-welded seams, may be suitable for some applications if installed in conjunction with manufacturer's specifications and a cove backing (cove stick) must be used at the wall/floor and toe kick/floor junctures.

(12) *Garbage receptacles.*

a. Impervious receptacles must be provided for storage of garbage and refuse.

b. There must be a sufficient number of containers to hold all the garbage and refuse that accumulate. The department may require more frequent collection, dumpsters, or larger dumpsters to accommodate the garbage and refuse that accumulates at the food establishment.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-63. Farmer's markets.

The regulations of Title 25, Chapter 229.701-704 of the Texas Administrative Code (25 TAC 229.701-704) apply to farmer's markets located within the City of Plano, and each farmer's market must comply with those regulations as enforced by the department.
(Ord. No. 2025-4-2, § 1, 4-14-25)

ARTICLE IX. COMPLIANCE

Sec. 9-64. Code applicability.

(a) *Use for intended purpose.*

(1) *Public health protection.*

a. The department shall apply this Code to promote its underlying purpose, as specified in section 9-4(a), of safeguarding public health and ensuring that food is safe, unadulterated, and honestly presented when offered to the consumer or donated.

b. In enforcing the provisions of this Code, the department should assess existing facilities or equipment that were in use before the effective date of this Code based on the following considerations:

(i) Whether the facilities or equipment are in good repair and capable of being maintained in a sanitary condition;

(ii) Whether food-contact surfaces comply with section 9-36(a);

(iii) Whether the capacities of cooling, heating, and holding equipment are sufficient to comply with section 9-38(a)(1); and

(iv) The existence of a documented agreement with the permit holder that the facilities or equipment will be replaced as specified under section 9-68(d)(1).

(b) *Additional requirements.*

(1) *Preventing health hazards, provision for conditions not addressed.*

a. If necessary to protect against public health hazards or nuisances, the department may impose specific requirements in addition to the requirements contained in this Code that are authorized by law.

b. The department shall document the conditions that necessitate the imposition of additional requirements and the underlying public health rationale. The documentation must be provided to the permit applicant or permit holder and a copy must be maintained in the department's file for the food establishment.

(c) *Variances.*

(1) *Modifications and waivers.* The department may grant a variance by modifying or waiving the requirements of this Code if in the opinion of the department a health hazard or nuisance will not result from the variance. If a variance is granted, the department shall retain the information specified under subsection (c)(2) of this section in its records for the food establishment.

(2) *Documentation of proposed variance and justification.* Before a variance from a requirement of this Code is approved, the information that must be provided by the person requesting the variance and retained in the department's file on the food establishment includes:

a. A statement of the proposed variance of the code requirement citing relevant Code section numbers;[Pf]

b. An analysis of the rationale for how the potential public health hazards and nuisances addressed by the relevant code sections will be alternatively addressed by the proposal;[Pf] and

c. A HACCP plan if required as specified under section 9-65(a)(2)a. that includes the information specified under section 9-65(a)(3) as it is relevant to the variance requested.[Pf]

(3) *Conformance with approved procedures.* If the department grants a variance as specified in subsection (c)(1) of this section, or a HACCP plan is otherwise required as specified under section 9-65(a)(2), the permit holder shall:

a. Maintain the approved variance at the food establishment;[Pf]

b. Comply with the HACCP plans and procedures that are submitted as specified under section 9-65(a)(3) and approved as a basis for the modification or waiver;[P] and

c. Maintain and provide to the department, upon request, records specified under sections 9-65(a)(3)e. and 9-65(a)(3)f.(iii) that demonstrate that the following are routinely employed:

(i) Procedures for monitoring the critical control points,[Pf]

(ii) Monitoring of the critical control points,[Pf]

(iii) Verification of the effectiveness of the operation or process,[Pf] and

(iv) Necessary corrective actions if there is failure at a critical control point.[Pf]

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-65. Plan submission and approval.

(a) *Facility and operating plans.*

(1) *When plans are required.*

a. A permit applicant or permit holder shall submit to the department plans and specifications properly prepared by an engineer, architect, or as otherwise approved by the department. Plans and specifications must be submitted for review and approval before:

(i) The construction of a food establishment;[Pf]

(ii) The conversion of an existing structure for use as a food establishment;[Pf]

(iii) The remodeling of a food establishment or a change of type of food establishment or food operation, or under the conditions set by the department, if the department determines that plans and specifications are necessary to ensure compliance with this Code.[Pf]

b. Any changes to the plans and specifications must be submitted to the department for approval prior to making the planned changes.[Pf]

c. Prior to opening, the operator of the facility shall request a permitting inspection from the department. If deficiencies are found during this inspection, corrections shall be made prior to receiving approval to operate, or as determined by the department.[Pf]

(2) *Contents of the plans and specifications.* The plans and specifications for a food establishment, including a food establishment specified under paragraph (3) of this subsection must include, as required by the department based on the type of operation, type of food preparation, and foods prepared, the following information to demonstrate conformance with code provisions:

a. Intended menu;

b. Anticipated volume of food to be stored, prepared, and sold or served;

c. Proposed layout, mechanical schematics, and construction materials, and finish schedules;

d. Proposed equipment types, manufacturers, model numbers, locations, dimensions, performance capacities, and installation specifications;

e. Evidence that standard procedures that ensure compliance with the requirements of this Code are developed or are being developed; and

f. Other information that may be required by the department for the proper review of the proposed construction, conversion or modification, and procedures for operating a food establishment.

(3) *When a HACCP plan is required.*

a. Before engaging in an activity that requires a HACCP plan, a permit applicant or permit holder shall submit to the department for approval a properly prepared HACCP plan as specified under subsection (a)(4) of this section and the relevant provisions of this Code if:

(i) Submission of a HACCP plan is required according to law;

(ii) A variance is required as specified under sections 9-25(a)(4)d., 9-30(a), or 9-37(d)(10)b.; or

(iii) The department determines that a food preparation or processing method requires a variance based on a plan submittal specified under subsection (a)(1), an inspectional finding, or a variance request.

b. Before engaging in reduced oxygen packaging without a variance as specified under section 9-30(b), a permit applicant or permit holder shall submit a properly prepared HACCP plan to the department.

(4) *Contents of a HACCP plan.* For a food establishment that is required under subsection (a)(3) of this section to have a HACCP plan, the permit applicant or permit holder shall submit to the department a properly prepared HACCP plan that includes:

a. General information such as the name of the permit applicant or permit holder, the food establishment address, and contact information;

b. A categorization of the types of time/temperature control for safety foods that are to be controlled under the HACCP plan;[Pf]

c. A flow diagram or chart for each specific food or category type that identifies:

(i) Each step in the process,[Pf] and

(ii) The steps that are critical control points;[Pf]

d. The ingredients, recipes or formulations, materials and equipment used in the preparation of each specific

food or category type and methods and procedural control measures that address the food safety concerns involved;[Pf]

e. A critical control points summary for each specific food or category type that clearly identifies:

(i) Each critical control point,[Pf]

(ii) The significant hazards for each critical control point,[Pf]

(iii) The critical limits for each critical control point,[Pf]

(iv) The method and frequency for monitoring and controlling each critical control point by the designated food employee or the person in charge,[Pf]

(v) Action to be taken by the designated food employee or person in charge if the critical limits for each critical control point are not met,[Pf]

(vi) The method and frequency for the person in charge to routinely verify that the food employee is following standard operating procedures and monitoring critical control points,[Pf] and

(vii) Records to be maintained by the person in charge to demonstrate that the HACCP plan is properly operated and managed;[Pf]

f. Supporting documents such as:

(i) Food employee and supervisory training plan that addresses the food safety issues of concern;[Pf]

(ii) Copies of blank records forms that are necessary to implement the HACCP plan;[Pf]

(iii) Additional scientific data or other information, as required by the department, supporting the determination that food safety is not compromised by the proposal;[Pf] and

g. Any other information required by the department.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-66. Confidentiality, trade secrets.

In accordance with the requirements of the Public Information Act, V.T.C.A. Government Code, Ch. 552, the department shall treat as confidential the information that meets the criteria specified in law for a trade secret and is contained on inspection report forms, photos, recordings or videos and in the plans and specifications submitted as specified in sections 9-65(a)(2) and 9-65(a)(4).

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-67. Construction inspection and approval, preoperational inspections.

The department may conduct one or more preoperational inspections to verify that the food establishment is constructed and equipped in accordance with the approved plans and approved modifications of those plans, has established standard operating procedures as specified in section 9-65(a)(2)e., and is in compliance with the Code.

(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-68. Permit to operate.

(a) *Requirement.*

(1) *Prerequisite to operation.* No person may operate a food establishment without a valid permit to operate issued by the department.[Pf]

(2) *Property owner also responsible.* No person may allow the operation of a business or activity regulated by this Code on any property they own unless the person operating the business or conducting the activity has the required permit.[Pf]

(b) *Application procedure.*

(1) *Form of submission.* An application for a permit or for the renewal of a permit must be made and submitted on forms furnished by the department and containing all required information. The application must be signed by the permittee and constitutes an agreement that the permittee assumes responsibility for the conduct of the business, occupation, or other activity in accordance with the requirements of this Code or other applicable law. Applications may be submitted on paper or electronically.

(2) *Contents of application.* The application must be accompanied by such other information or documentation as the department may require or as may be provided for in this code or other applicable law enforced by the department. The application must, at a minimum, include the name, residence and business address, telephone numbers and email addresses of the permittee, and information the regulatory authority may need in order to contact the permittee in the event of an emergency.

(3) *Qualifications and responsibilities of applicants.* To qualify for a permit, an applicant shall:

(i) Be an owner of the food establishment or an officer of the entity who is legally authorized to enter into contracts for the entity;

(ii) Comply with the requirements of this Code;

(iii) As specified under section 9-69(d)(2), agree to allow access to the food establishment and to provide all information required by the department; and

(iv) Pay the applicable permit fees at the time the application is submitted.

(4) *Arm's length transaction.* No new permit may be issued by the department to any entity based on a sale or change of ownership of a permitted business or activity where the business has outstanding uncorrected violations or the prior owner has unpaid fines and penalties, unless the applicant submits satisfactory proof that the transfer of the business was the result of, and meets the definition of, an arm's length transaction and all outstanding violations have been corrected.

(c) *Conditions of retention.*

(1) *Responsibilities of the permit holder.* Upon issuance of the permit by the department, the permit holder in order to retain the permit shall:

a. Post the permit in a location in the food establishment that is conspicuous to consumers;

b. Comply with the provisions of this Code including the conditions of a granted variance as specified under section 9-64(c)(3), and approved plans as specified under section 9-65(a)(1);

c. If a food establishment is required under section 9-65(a)(2) to operate under a HACCP plan, comply with the plan as specified under section 9-64(c)(3);

d. Immediately contact the department to report an illness of a food employee or conditional employee as specified under section 9-7(a)(2);

e. Immediately discontinue operations and notify the department if an imminent health hazard may exist as specified under section 9-69(d)(1);

f. Allow representatives of the department access to the food establishment as specified under section 9-69(b)(2);

g. Replace existing facilities and equipment specified in section 9-64(a)(1) with facilities and equipment that comply with this Code if:

(i) The department directs the replacement because the facili-

ties and equipment constitute a public health hazard or nuisance or no longer comply with the criteria upon which the facilities and equipment were accepted,

(ii) The department directs the replacement of the facilities and equipment because of a change of ownership, or

(iii) The facilities and equipment are replaced in the normal course of operation;

h. Comply with directives of the department including time frames for corrective actions specified in inspection reports, notices, orders, warnings, and other directives issued by the department in regard to the permit holder's food establishment or in response to community emergencies;

i. Accept notices issued and served by the department according to law;

j. Be subject to the administrative, civil, injunctive, and criminal remedies authorized in law for failure to comply with this Code or a directive of the department, including time frames for corrective actions specified in inspection reports, notices, orders, warnings, and other directives; and

k. Notify customers that a copy of the most recent establishment inspection report is available upon request by posting a sign or placard in a location in the food establishment that is conspicuous to customers or by another method acceptable to the department.

(d) *Permits not transferable.* No permit may be transferred from one person to another, from one food establishment to another, or from one type of operation to another if the food operation changes from the type of operation specified in the application as specified under subsection (b)(2) of this section and the change in operation is not approved.
(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-69. Inspections and correction of violations.

(a) *Frequency.*

(1) *Establishing inspection interval and performance and risk-based inspection.* The department shall establish inspection intervals and prioritize inspection of each food establishment based upon an assessment of the food establishment's history of compliance with this Code and the potential for causing foodborne illness by evaluating:

a. Past performance, for nonconformance with the Code or Hazard HACCP plan requirements that are priority items or priority foundation items;

b. Past performance, for numerous or repeat violations of the Code or HACCP plan requirements that are core items;

c. Past performance, for complaints investigated and found to be valid;

d. The hazards associated with the particular foods that are prepared, stored, or served;

e. The type of operation including the methods and extent of food storage, preparation, and service;

f. The number of people served;

g. Whether the population served is a highly susceptible population; and

h. Any other risk factors deemed relevant to the operation by the department.

(b) *Competency of inspectors and access.*

(1) *Competency of inspectors.* An individual conducting inspections of retail food establishments must be a Registered Professional Sanitarian in Texas or a

Sanitarian-in-Training in Texas, as defined in 16 TAC Chapter 119, or must meet the U.S. Food and Drug Administration Voluntary National Retail Food Regulatory Program Standards' basic curriculum and field training elements in order to:

a. Assure application of basic scientific principles, including hazard analysis critical control point principles of food safety, during inspections;

b. Properly conduct foodborne illness investigations;

c. Assure uniformity in the interpretations of this Code; and

d. Assure fair and uniform enforcement of this Code.

(2) *Access allowed at reasonable times after due notice.* After the department presents official credentials and provides notice of the purpose of, and an intent to conduct, an inspection, the person in charge shall allow the department to determine if the food establishment is in compliance with this Code by allowing access to the establishment, allowing inspection, and providing information and records specified in this Code and to which the department is entitled according to law, during the food establishment's hours of operation and other reasonable times.

(c) *Report of findings.*

(1) *Documenting information and observations.* The department shall document on an inspection report form:

a. Administrative information about the food establishment's legal identity, street and mailing addresses, type of establishment and operation, inspection date, and other information such as type of water supply and sewage disposal, status of the permit, and personnel certificates that may be required; and

b. Specific factual observations of violative conditions or other deviations from this Code that require correction by the permit holder including:

(i) Failure of the person in charge to demonstrate the knowledge of foodborne illness prevention, application of HACCP principles, and the requirements of this Code as specified under section 9-6(b)(1),

(ii) Failure of food employees, conditional employees, and the person in charge to report a disease or medical condition as specified under sections 9-7(a)(2) and (4),

(iii) Nonconformance with priority items or priority foundation items of this Code,

(iv) Failure of the appropriate food employees to demonstrate their knowledge of, and ability to perform in accordance with, the procedural, monitoring, verification, and corrective action practices required by the department as specified under section 9-64(c)(3),

(v) Failure of the person in charge to provide records required by the department for determining conformance with a HACCP plan as specified under section 9-65(a)(3)e.(vii), and

(vi) Nonconformance with critical limits of a HACCP plan.

(2) *Specifying time frame for corrections.* The department shall specify on the inspection report form the time frame for correction of the violations as specified under sections 9-69(d)(1), 9-69(e)(1), and 9-69(f)(1).

(3) *Issuing report and obtaining acknowledgment of receipt.* At the conclusion of the inspection and according to law, the department shall provide a copy of the completed inspection report and the notice

to correct violations to the permit holder or to the person in charge and request a signed acknowledgment of receipt.

(4) *Public information.* The department shall treat the inspection report as a public document and shall make it available for disclosure to a person who requests it as provided in law.

(d) *Imminent health hazard.*

(1) *Ceasing operations and reporting.*

a. Except as specified in subparagraphs b. and c. of this paragraph, a permit holder shall immediately discontinue operations and notify the department if an imminent health hazard may exist because of an emergency such as a fire, flood, extended interruption of electrical or water service, sewage backup, misuse of poisonous or toxic materials, onset of an apparent foodborne illness outbreak, gross insanitary occurrence or condition, or other circumstance that may endanger public health.

b. A permit holder need not discontinue operations in an area of an establishment that is unaffected by the imminent health hazard.

c. Considering the nature of the potential hazard involved and the complexity of the corrective action needed, the department may agree to continuing operations in the event of an extended interruption of electrical or water service if:

(i) A written emergency operating plan has been approved;

(ii) Immediate corrective action is taken to eliminate, prevent, or control any food safety risk and imminent health hazard associated with the electrical or water service interruption; and

(iii) The department is informed upon implementation of the written emergency operating plan.

(2) *Resumption of operations.* If operations are discontinued as specified under subsection (c)(1) of this section or otherwise according to law, the permit holder shall obtain approval from the department before resuming operations. A fee shall be assessed for reinspections.

(e) *Violation of priority item or priority foundation item.*

(1) *Timely correction.*

a. Except as specified in subparagraph (B) of this paragraph, a permit holder shall at the time of inspection correct a violation of a priority item or priority foundation item of this Code and implement corrective actions fora HACCP plan provision that is not in compliance with its critical limit.

b. Considering the nature of the potential hazard involved and the complexity of the corrective action needed, the department may agree to or specify a longer time frame, not to exceed:

(i) Seventy-two (72) hours after the inspection for the permit holder to correct violations of a priority item; or

(ii) Ten (10) calendar days after the inspection for the permit holder to correct violations of a priority foundation item or HACCP plan deviations.

(2) *Verification and documentation of correction.*

a. After observing at the time of inspection a correction of a violation of a priority item or priority foundation item or a HACCP plan deviation, the department shall enter the viola-

tion and information about the corrective action on the inspection report.

b. As specified under subsection (d)(1)b. of this section, after receiving notification that the permit holder has corrected a violation of a priority item or priority foundation item or HACCP plan deviation, or at the end of the specified period of time, the department shall verify correction of the violation, document the information on an inspection report, and enter the report in the department's records.

c. A fee shall be assessed for all required reinspections.

(f) *Core item violation.*

(1) *Time frame for correction.*

a. Except as specified in subparagraph b. of this paragraph, the permit holder shall correct core items by a date and time agreed to or specified by the department but no later than ninety (90) calendar days after the inspection.

b. The department may approve a compliance schedule that extends beyond the time limits specified under subparagraph a. of this paragraph if a written schedule of compliance is submitted by the permit holder and no health hazard exists or will result from allowing an extended schedule for compliance.

(g) *Temporary food establishments.* In the case of temporary food establishments, all priority and priority foundation items must be corrected immediately, and other violations must be corrected within twenty-four (24) hours or sooner if required by the department. If violations are not corrected, the establishment shall immediately cease food operations upon execution of an emergency suspension or closing order until authorized to resume by the department.
(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-70. Investigation and control.

The department shall release a food employee or conditional employee from restriction or exclusion according to V.T.C.A. Health and Safety Code, § 438.033, and the conditions specified under section 9-9.
(Ord. No. 2025-4-2, § 1, 4-14-25)

ARTICLE X. ENFORCEMENT

Sec. 9-71. Authority for enforcement; offenses.

(a) *Authority.* The director of environmental health and sustainability and his/her designees shall have authority to enforce this Code.

(b) *Offenses.*

(1) It is an offense for a permit holder, person in charge, or person with ownership in or care, custody or control over a food establishment to fail to comply with any requirement in this Code.

(2) It is an offense for a person to provide false or misleading information to the director of environmental health and sustainability, or the director's designee in the lawful performance of duties under this Code, state, local, or federal law.
(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-72. Suspension, revocation of permit.

(a) *Suspension of permit.*

(1) *Emergency suspension.* If the department finds a condition constituting an imminent health hazard or that a public health nuisance, as that term is defined in V.T.C.A. Health and Safety Code, § 341.011, exists in an establishment operating under a valid permit issued by the department, the department may issue a summary suspension of said permit without prior warning, notice, or hearing. The notice shall:

a. State the reasons for the suspension;

b. State the evidence that the permit holder shall provide in order to demonstrate that the reasons for suspension have been eliminated;

c. State that the permit holder may request an appeal hearing by submitting a timely request to the department pursuant to section 9-73 of this Code; and

d. Provide the name and the address of the department representative to whom a request for appeal hearing may be made.

(2) *General suspension.* If the department finds a condition constituting a public health nuisance, as defined in V.T.C.A. Health and Safety Code, § 341.011, but not constituting an immediate health hazard to the public health exists in the operation of an establishment operating under a valid permit issued by the department, the department may issue a written notice ordering abatement of the nuisance to any person responsible for the nuisance. Whenever a permit holder or operator has failed to comply with any notice issued under the provisions of this article, the permit holder or operator shall be notified in writing that the permit is, upon receipt of the suspension notice, immediately suspended, and that an opportunity for a hearing will be provided if a written request for a hearing is filed with the department by the permit holder within five (5) business days.

(3) *Suspension; other remedies.* The issuance of a suspension shall be a remedy in addition to, and not in lieu of, any penalty authorized under paragraph (b) of this section, and shall not limit any other rights of the department to pursue other actions or remedies to address any violation of the provisions of this Code.

(4) *Reinstatement of suspended permit.* Any person whose permit has been suspended may, not more than sixty (60) days after the date of suspension, make application for a re-inspection for the purpose of reinstating the permit. Within ten (10) business days following receipt of a written request, including a statement signed by the applicant that in his opinion the condition causing the suspension of the permit has been corrected, the department shall make a re-inspection. If the applicant is complying with the requirements of this article, the permit shall be reinstated.

(b) *Revocation of permit.* If a permit holder has been issued more than three (3) general suspensions pertaining to any of the requirements of this Code during an eighteen-month-period, a permit may be permanently revoked after an opportunity for a hearing has been provided by the department. Prior to such action, the department must notify the permit holder in writing, stating the reasons that the permit should be permanently revoked. The permit will be revoked at the end of five (5) business days following service of this notice, unless a request for a hearing is filed with the department by the permit holder within such five-day period.
(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-73. Appeal of decision.

(a) An appeal may be made from the decision of the department under this article. An appeal must be made in writing to the city manager or his designee no later than five (5) business days after notice of the complained-of action or decision has been received by the appellant. The appeal must:

(1) Set forth the decision of the regulatory authority complained of;

(2) Contain any documents and argument on this issue for the city manager or his designee to consider; and

(3) If applicable, discuss any emergency or exigent circumstances that appellant believes are material to when the hearing should be set.

(b) A hearing must be scheduled at a time and place designated by the city manager or his designee no later than five (5) business days

after receiving an appeal that conforms with the requirements of this section, and the city manager or his designee's written decision must be furnished to the appellant no later than five (5) business days after the date of the hearing.
(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-74. Fees.

All fees for this Code shall be reviewed, set, and adopted by the city council.
(Ord. No. 2025-4-2, § 1, 4-14-25)

Sec. 9-75. Penalties.

(a) Any violation of the provisions or terms of this Code by any person, firm or corporation is a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues constitutes a separate offense.

(b) In addition to the penalties prescribed above, the city may pursue other remedies such as abatement of nuisances, injunctive relief, administrative adjudication and revocation of licenses or permits.
(Ord. No. 2025-4-2, § 1, 4-14-25)

Chapter 9.5

HUMAN RELATIONS

Art. I. In General, §§ 9.5-1—9.5-30
Art. II. Housing Discrimination, §§ 9.5-31—9.5-44
Art. III. Accommodations Review Board, §§ 9.5-45, 9.5-49
Art. IV. Reasonable Accommodations, §§ 9.5-50—9.5-55

ARTICLE I. IN GENERAL

Secs. 9.5-1—9.5-30. Reserved.

ARTICLE II. HOUSING DISCRIMINATION*.

Sec. 9.5-31. Definitions.

For the purpose of this article, the following terms, phrases, words and their derivations shall have the meanings given herein. When not inconsistent with the context, words so used in the present tense include the future, words in the masculine gender include the feminine, words in the plural number include the singular, and words in the singular include the plural.

Conciliation means the attempted resolution of issues raised by a complaint, or by the investigation of such complaint, through informal negotiations involving the aggrieved person, the respondent, and the fair housing officer.

Discriminatory housing practice means an act that is unlawful under sections 9.5-32, 9.5-33 or 9.5-34 of this article.

Dwelling means any building, structure, or portion thereof which is occupied as, or designed and intended for occupancy as a residence by one or more families, or any vacant land which is offered for sale or lease, for the construction or location thereon of any such building, structure or portion thereof.

Fair housing officer shall be the director of community development.

Familial status means one (1) or more individuals (who have not attained the age of eighteen (18) years) being domiciled with a parent or another person having legal custody of such individual or individuals; or the designee of such parent or other person having such custody, with the written permission of such parent or other person. The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of eighteen (18) years.

Family includes a single individual.

Handicap means, with respect to a person, a physical or mental impairment which substantially limits one or more of such person's major life activities; a record of having such an impairment; or being regarded as having such an impairment, but such term does not include current, illegal use of or addiction to a controlled substance (as defined in Section 102 of the Controlled Substances Act (21 U.S.C. 802)).

Person includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint stock companies, trusts, unincorporated organizations, trustees, fiduciaries, and any other organization or entity of whatever character.

To rent includes to lease, to sublease, to let, and to otherwise grant for a consideration, the right to occupy premises not owned by the occupant.
(Ord. No. 92-3-13, § 1, 3-12-92)

Sec. 9.5-32. Discrimination in the sale or rental of housing.

It shall be unlawful for any person to:

(1) Refuse to sell or rent, after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, gender, religion, national origin, familial status, or handicap;

(2) Discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provisions of services or facilities in connection therewith, because of race, color, gender, religion, national origin, familial status, or handicap;

(3) Make, print, publish, or cause to be made, printed or published any notice, statement or advertisement regarding the sale or rental of a dwelling that indicated any preference, limitation or discrimination based on race, color, gender, religion, national origin, familial status or handicap, or an in-

*Editor's note—Ord. No. 92-3-13, §§ 1—11, adopted March 12, 1992, did not specifically amend the Code; therefore, inclusion as §§ 9.5-31—9.5-41 was at the discretion of the editor.

tention to make any such preference, limitation or discrimination;

(4) Represent to any person, because of race, color, gender, religion, national origin, familial status or handicap, that any dwelling is not available for inspection, sale or rental, when such dwelling is in fact so available;

(5) For profit, or with the hope or expectation of profit, induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, gender, religion, national origin, familial status, or handicap; and

(6) For profit, or with the hope or expectation of profit, to influence or attempt to influence, by any words, acts, or failure to act, any seller, purchaser, landlord, or tenant of a dwelling so as to promote the maintenance of racially segregated housing, or so as to retard, obstruct, or discourage racially integrated housing.

(Ord. No. 92-3-13, § 2, 3-12-92)

Sec. 9.5-33. Discrimination in the financing of housing.

It shall be unlawful for any bank, building and loan association, credit union, insurance company or other corporation, association, firm or enterprise whose business consists in whole or in part of the making or insuring of commercial or residential real estate loans, to deny a loan or other financial assistance to a person applying therefor for the purpose of purchasing, constructing, improving, repairing or maintaining a dwelling; or to discriminate against any such person in the fixing of the amount, interest rate, brokerage points, duration, or other terms or conditions of such loan or other financial assistance, because of:

(1) The race, color, gender, religion, national origin, familial status, or handicap of such person or any person associated with him in connection with such loan or other financial assistance; or

(2) The race, color, gender, religion, national origin, familial status or handicap of the present or prospective owners, lessees, tenants, or occupants of the dwelling or dwellings for which such loan or other financial assistance if to be made or given.

(Ord. No. 92-3-13, § 3, 3-12-92)

Sec. 9.5-34. Discrimination in the provision of brokerage services.

It shall be unlawful for any person to deny access to or membership or participation in any multiple-listing service, real estate broker's organization or other service organization or facility relating to the business of selling or renting dwellings, or to discriminate in terms or conditions of such access, membership or participation on account of race, color, gender, religion, national origin, familial status, or handicap.

(Ord. No. 92-3-13, § 4, 3-12-92)

Secs. 9.5-35. Exemptions and exclusions.

(a) There shall be exempted from the application of section 9.5-32 hereof all transactions involving:

(1) The rental of units in dwellings containing living quarters occupied or intended to be occupied by no more than four (4) families living independently of each other if the owner actually maintains and occupies one of such units as his residence;

(2) The rental of a single room in a dwelling containing living quarters occupied or intended to be occupied by no more than one family if the person offering such room for rental actually maintains and occupies the remainder of such dwelling as his residence and not more than four (4) such rooms are offered;

(3) The sale or rental of any single house by a private individual who owns such house, provided that:

a. The sale or rental is made without the use in any manner of the sales or rental facilities or the sales or rental services of any real estate broker, agent or salesman, or of such facilities or services of any person in the business of selling or renting dwellings or of any

employee or agent of such broker, agent, salesman or person; and

b. The sale is made without the publication, posting or mailing of any advertisement or written notice in violation of section 9.5-32(3) of this article (this shall not prohibit the use of attorneys, escrow agents, abstract, title companies, and other such professional assistance necessary to perfect or transfer the title); and

c. The owner does not own more than three (3) single-family houses at the time of sale; and

d. The owner does not own any interest in, nor is there owned or reserved on his behalf, under any express or voluntary agreement, title to or any right to all or any portion of the proceeds from the sale or rental of more than three (3) such single-family homes at any time.

(4) The exemption granted by this subsection shall apply only with respect to one such sale within any twenty-four (24) month period.

(b) Nothing in this article shall prohibit a religious organization, association, or society of any nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious association or society, from limiting the sale, rental, or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such persons, unless membership in such religion is restricted on account of race, color, gender, national origin, familial status or handicap.

(c) Nothing in this article shall prohibit a bona fide private club, not in fact open to the public, which as an incident to its primary purpose, provides lodging which it owns or operates for other than a commercial purpose from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members.

(d) Nothing in this article shall bar any person from owning and operating a housing accommodation in which a room or rooms are leased, subleased or rented only to persons of the same gender, when such housing accommodation contains a common lavatory, kitchen or similar facilities available for the use of all persons occupying such housing accommodation.

(e) Nothing in this article is intended to prohibit the provision of housing exclusively for persons age fifty-five (55) or older. Nothing in this article is intended to limit the applicability of any other ordinance limiting the maximum number of persons permitted to occupy a dwelling.
(Ord. No. 92-3-13, § 5, 3-12-92)

Sec. 9.5-36. Complaints.

(a) The person who claims to have been injured by a discriminatory housing practice or who believes he will be irrevocably injured by a discriminatory housing practice that has occurred or is occurring, hereafter referred to as "person aggrieved," may file a complaint with the fair housing officer, or in the alternative his designated representative may prepare and file in complaint and such complaint shall thereafter be treated in the same manner as a complaint filed by a person aggrieved. A complaint shall be in writing, under oath and in the form prescribed by the fair housing officer.

(b) The fair housing officer, or his designated representative, shall also receive and accept notifications and referral complaints from the U.S. Attorney General and the Secretary of Housing and Urban Development pursuant to the provisions of Title VIII, Fair Housing Act of 1968, Public Law 90-284, and from the Texas Commission on Human Rights, and shall treat such complaints hereunder in the same manner as complaints filed pursuant to subsection (a) of this section.

(c) No complaints may be filed with the fair housing officer later than six (6) months following the occurrence of an alleged discriminatory housing practice. Upon the filing or referral of any complaint, the fair housing officer or his representative shall provide notice of the complaint by mailing a copy of such complaint by certified mail with a five day return requested or by personally serving said notice to the person or persons named therein who allegedly committed or were threatening to commit an alleged discriminatory housing practice. The accused may file an

answer to the complaint with the fair housing officer within fifteen (15) days of receipt of the written complaint.
(Ord. No. 92-3-13, § 6, 3-12-92)

Sec. 9.5-37. Investigation.

(a) Upon the filing or referral of a complaint as herein provided, the fair housing officer, or his designated representative, shall cause to be made a prompt and full investigation of the matter stated in the complaint.

(b) During or after the investigation, but subsequent to the mailing or service of the notice of complaint, the fair housing officer or his representative shall, if it appears that a discriminatory housing practice has occurred or is threatening to occur, attempt by informal endeavors to effect conciliation, including voluntary discontinuance of the discriminatory housing practice and adequate assurance of future voluntary compliance with the provisions of this article. Nothing said or done in the course of such informal endeavors may be made public by the fair housing officer or his designated representative, by the complainant or by any other party to the proceedings to the extent possible under the Texas Open Records Act, Article 6252-17A, V.T.C.S. and federal law without the written consent of all persons concerned. For these purposes, complaints and proceedings under this article shall be considered as litigation.

(c) If agreement is reached during the course of the efforts at conciliation, a conciliation agreement shall be prepared, signed by all parties and approved by the city attorney. The agreement may provide for binding arbitration or other method of dispute resolution. A conciliation agreement shall be made public unless the complainant and the respondent agree otherwise.

(d) Whenever the fair housing officer has reasonable cause to believe that a respondent has breached a conciliation agreement, the fair housing officer shall refer the matter to the city attorney with the recommendation that the alleged violation be prosecuted in the municipal court of the City of Plano.

(e) Upon completion of the investigation and informal endeavors at conciliation by the fair housing officer or his designated representative, but within sixty (60) days of the filing of the complaint, and if the efforts to secure voluntary compliance have been unsuccessful, and if the fair housing officer has reasonable cause to believe that a discriminatory housing practice has in fact occurred, the fair housing officer or his designated representative shall recommend to the city attorney that such violation be prosecuted in the municipal court of the City of Plano. The city attorney shall, within (30) days after such recommendation, make a determination as to whether to proceed with prosecution of such complaint in municipal court. Either the person aggrieved or his designated representative under section 9.5-36(a) herein shall sign the official complaint filed in municipal court.
(Ord. No. 92-3-13, § 7, 3-12-92)

Sec. 9.5-38. Cumulative legal effect.

This article is cumulative in its legal effect and is not in lieu of any and all other legal remedies which the person aggrieved may pursue.
(Ord. No. 92-3-13, § 8, 3-12-92)

Sec. 9.5-39. Unlawful intimidation.

It shall be unlawful for any person to harass, threaten, harm, damage or otherwise penalize any individual, group or business because he or they have exercised his or their right under this article or enjoyed the benefits of this article or because he or they have made a charge, testified or assisted in any manner in any investigation, or in any proceeding hereunder or have made any report to the fair housing officer, or his representative.
(Ord. No. 92-3-13, § 9, 3-12-92)

Sec. 9.5-40. Cooperation with secretary of housing and urban development.

The fair housing officer, or his designated representative, and the city attorney are authorized to cooperate with the secretary of housing and urban development and the U.S. Attorney General pursuant to the provisions of the Title VIII, Fair Housing Act of 1968, Public Law 90-284, and may render such service to the secretary as they

shall deem appropriate to further the policies of the article.
(Ord. No. 92-3-13, § 10, 3-12-92)

Sec. 9.5-41. Penalty.

Any person, firm, or corporation violating any of the provisions or terms of this article shall be subject to the penalty as provided for in section 1-4 in the Code of Ordinances of the City of Plano, Texas.
(Ord. No. 92-3-13, § 11, 3-12-92)

Secs. 9.5-42—9.5-44. Reserved.

ARTICLE III. ACCOMMODATIONS REVIEW BOARD

Sec. 9.5-45. Generally.

The accommodations review board shall consist of the members of the board of adjustment and alternate members of the board of adjustment and the chairperson shall be the chairperson of the board of adjustment. All members of the accommodations review board are subject to removal for cause by the appointing authority upon written charges and after public hearing.
(Ord. No. 2020-6-5, § I, 6-8-20)

Sec. 9.5-46. Duties, responsibilities and meetings.

The accommodations review board shall be responsible for reviewing requests for reasonable accommodation and granting or denying reasonable accommodations as described in article IV below. The chair, or, in his or her absence the acting chair, may administer oaths and compel the attendance of witnesses. The accommodations review board shall hold meetings as needed for the conduct of its business, and may establish rules and regulations for the performance of its duties. Such meetings will generally be held before or after regular meetings of the board of adjustment. A majority of the regular membership of the accommodations review board shall constitute a quorum. A quorum must be present to convene a meeting and to take action.
(Ord. No. 2020-6-5, § I, 6-8-20)

Secs. 9.5-47—9.5-49. Reserved.

ARTICLE IV. REASONABLE ACCOMMODATIONS

Sec. 9.5-50. Purpose.

The city, pursuant to the Fair Housing Amendments Act of 1988 ("FHAA") 42 U.S.C. § 3601, et seq., as amended, and the Americans with Disabilities Act of 1990 ("ADA"), 42 U.S.C. § 12101, et seq., as amended, intends to provide persons with a disability with reasonable accommodations in the city's zoning, subdivision, building code, fire code, and other regulations, policies, practices, and procedures when it is necessary to eliminate barriers to housing opportunities to ensure a person with a disability has an equal opportunity to use and enjoy a dwelling.
(Ord. No. 2020-6-5, § I, 6-8-20)

Sec. 9.5-51. Applicability.

(a) The provisions of this article apply to residential uses that will be used by persons with disabilities.

(b) The reasonable accommodation granted shall be considered personal to the individual(s) and shall not run with the land. If the structure or property impacted by the reasonable accommodation is sold, or otherwise changes ownership, a reasonable accommodation granted to the previous owner is not transferable to the new owner. Notwithstanding, the reasonable accommodation shall be in force and effect as long as the person(s) or group of persons with disabilities for whom the reasonable accommodation was sought resides in the structure or on the property that is the subject of the reasonable accommodation.

(c) Nothing in this article will require the city to expend any funds to achieve a reasonable accommodation except and to the extent required by state or federal law.

(d) Nothing in this article will alter a person with disabilities' obligation to comply with other applicable federal, state and city regulations.
(Ord. No. 2020-6-5, § I, 6-8-20)

Sec. 9.5-52. Definitions.

Person with disabilities, for the purposes of this article, has the meaning set forth in the federal Fair Housing Act and the Americans with Disabilities Act, as amended.

R*easonable accommodation* (inclusive of modification) means the act of making a dwelling unit or housing facility(ies) readily accessible to and usable by a person with disabilities, through the removal of constraints imposed by the city's requirements.

Requirement means a provision of city ordinance or resolution or an administrative policy, program or procedure.
(Ord. No. 2020-6-5, § I, 6-8-20)

Sec. 9.5-53. Method of submitting a request for a reasonable accommodation; fees; confidentiality.

(a) A request for a reasonable accommodation may be submitted by any person(s), his or her representative, a developer, or provider of housing for persons with disabilities.

(b) A request for a reasonable accommodation may be submitted at any time that the reasonable accommodation may be necessary to ensure equal access to housing.

(c) A request for a reasonable accommodation should be submitted in writing to the chief building official on a form provided by the building inspections department:

(1) There is no fee for an application requesting a reasonable accommodation.

(2) The city will retain any information identified by an applicant as confidential in compliance with applicable law and will not disclose the information unless required by law.

(3) If an individual needs assistance in making a request for a reasonable accommodation, the city will provide assistance to ensure that the application process is accessible to the individual.

(Ord. No. 2020-6-5, § I, 6-8-20)

Sec. 9.5-54. Application.

An applicant shall submit the following information before an application for a reasonable accommodation is considered to be complete:

(1) The applicant's name, mailing address, street address, telephone number, and e-mail address.

(2) The applicant's relation to the individual or individuals with a disability, if applicable.

(3) The address of the property to which the requested reasonable accommodation would apply.

(4) If the disability is not obvious, information substantiating that the individual who would obtain the benefit of the reasonable accommodation is disabled.

(5) The city requirement(s) from which a reasonable accommodation is being requested.

(6) If the need for the reasonable accommodation is not readily apparent, a brief explanation of why the requested reasonable accommodation is necessary for the individual or individuals with disabilities to have equal access to housing.

(Ord. No. 2020-6-5, § I, 6-8-20)

Sec. 9.5-55. Review of application for reasonable accommodation; required findings; appeals.

(a) Upon receipt of a complete application for a reasonable accommodation, the accommodation review board ("board"), shall review the application and issue a written ruling that grants, grants with conditions, or denies the application.

(b) The board shall hear and consider evidence offered by any interested person; the formal rules of evidence do not apply. The board's decision must be by a majority vote.

(c) The board may impose reasonable conditions on any reasonable accommodation granted consistent with the purpose of this chapter.

(d) The written decision must be consistent with the FHAA and the determination of whether a request for an accommodation is reasonable is based on a consideration of the following factors:

(1) Whether the housing that is the subject of the request will be used by one (1) or more individuals with a disability.

(2) Whether the requested accommodation is necessary to make specific housing available to one (1) or more individuals with a disability.

(3) Whether the requested accommodation would impose an undue financial or administrative burden to the city.

(4) Whether the requested reasonable accommodation would require a fundamental alteration in the nature of a city requirement.

(e) The board shall issue a decision on a request for reasonable accommodation within forty-five (45) calendar days of the date of a completed application, and may either grant, grant with alterations or conditions, or deny a request for a reasonable accommodation in accordance with the required findings set forth in subsection (d) above.

(f) The board's determination is final once it is signed by the chairperson and filed with the board's office.

(g) If the board denies an application for a reasonable accommodation, the action is final.

(h) Nothing herein shall prohibit the applicant, or persons on whose behalf a specific application was filed, from reapplying for a reasonable accommodation based on additional grounds or changed circumstances. Nor shall this provision be construed to affect in any way the rights of a person to challenge the denial of a request for reasonable accommodation as violating the Fair Housing Act, the ADA or any other applicable state, federal or local law.
(Ord. No. 2020-6-5, § I, 6-8-20)

[The next page is 675]

Chapter 10

LIBRARY*

Art. I. In General, §§ 10-1—10-15
Art. II. Advisory Board, §§ 10-16—10-21

*Cross reference—Administration, Ch. 2.

State law references—Municipal libraries, Vernon's Ann. Civ. St., art. 1175(15); Texas State Library and Archives Commission, Vernon's Ann. Civ. St., art. 5434 et seq.

ARTICLE I. IN GENERAL

Sec. 10-1. Definitions.

As used in this chapter, the term "library" shall mean the Plano Public Library System, and the term "board" or "board of trustees" shall mean the advisory board of the Plano Public Library System.
(Ord. No. 86-1-11, § II, 1-13-86)

Sec. 10-2. Library director.

All library department activities shall be administered under the direction of a library director. The director is responsible for carrying out approved policies under the direction of the city manager. The library director shall provide staff support to the library advisory board.
(Ord. No. 86-1-11, § III, 1-13-86)

Sec. 10-3. Identification of borrowers; overdue materials; fees and fines.

(a) Any person making applications to borrow materials from the library will be required to present proof of address and adequate identification of the applicant. Lost cards require a fee for replacement.

(b) Any person who has outstanding fees for overdue materials will be disallowed from further borrowing until the fees have been paid.

(c) If a complete set of items is not returned within thirty (30) days of the due date or if items are returned damaged beyond repair, the patron will be charged the cost of the entire replacement set.

(d) Materials may be available by interlibrary loan from libraries outside the Plano Public Library System. The patron requesting the materials shall be responsible for applicable postage/courier charges.

(e) An annual fee shall be assessed for non-resident library cards.

(f) It shall be unlawful for any person who has borrowed library materials to fail or refuse to return the same to the public library system within thirty (30) days after written notice has been provided.

Any violation of the provisions or terms of this section by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(b) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(g) Fees for library services, including but not limited to, program/meeting room rental, network printing, copy and fax services are set and adopted by the city council. The director of libraries or their designee shall have the authority to reduce, refund, or waive fees under this chapter.
(Ord. No. 86-1-11, § III, 1-13-86; Ord. No. 89-6-18, § I, 6-26-89; Ord. No. 2003-8-8, § II, 8-11-03; Ord. No. 2013-6-4, § I, 6-10-13; Ord. No. 2014-10-20, § I, 10-27-14; Ord. No. 2015-6-9, §§ I, II, 6-22-15; Ord. No. 2018-9-17, § I, 9-24-18)

Secs. 10-4—10-15. Reserved.

ARTICLE II. ADVISORY BOARD*

Sec. 10-16. Membership.

(a) The library advisory board shall consist of nine (9) members, including a chairperson whose qualifications shall comply with the provisions of section 4.07 of the City Charter. The city manager may appoint ex-officio members.

(b) Said board shall act in an advisory capacity to the city council on matters relating to the public library. Five (5) members are required to establish a quorum, and a simple majority vote of those present is required for official approval of all matters.

*__Charter reference—__Authority of council to create boards, § 3.07(f).

(c) The members of the library advisory board shall be appointed by the city council. Board members shall serve without compensation.
(Ord. No. 86-1-11, §§ IV, V, 1-13-86; Ord. No. 2010-3-19, § I, 3-22-10)

Sec. 10-17. Officers.

A chairperson shall be appointed by the city council from the membership for a one-year term. The board shall also have a vice chairperson elected by its members for a one-year term.
(Ord. No. 86-1-11, § VII, 1-13-86; Ord. No. 2012-6-4, § I, 6-11-12)

Sec. 10-18. Meetings.

The board shall hold at least three (3) meetings annually and may meet more frequently as needed for the conduct of its business, and shall establish rules and regulations for the performance of its duties.
(Ord. No. 86-1-11, § VIII, 1-13-86; Ord. No. 2008-9-10, § II, 9-8-08; Ord. No. 2022-9-6, § I, 9-12-22)

Sec. 10-19. Duties; responsibilities.

The library advisory board shall have the following duties and responsibilities:

(1) Advise and recommend to the city council on matters relating to the operation of the library department.

(2) Review and advise the library department on policies and procedures.

(3) Recommend to the city council on matters relating to the acquisition of library sites.

(4) Review annual service levels and budgetary impacts of the library department and recommend to the city council service level changes.

(5) Review plans and specifications for proposed library facilities and recommend to the city council the implementation of those plans.

(6) Review and approve special requests for the use of library facilities.

(Ord. No. 86-1-11, § IX, 1-13-86)

Sec. 10-20. Removal of members.

All members of the board are subject to removal in accordance to the city council's current policy with regard to required attendance at city board, commission, and committee meetings. In addition, the members of the board may be removed at any time by the city council with or without cause.
(Ord. No. 86-1-11, § VI, 1-13-86; Ord. No. 92-6-20, § III, 6-22-92)

Sec. 10-21. Term of office of members.

The term of office for the members of the library advisory board shall be two (2) years and shall expire on a staggered basis each year. Members currently serving on the board shall continue serving until their present terms expire. The city council will fill any and all vacancies on the board; and the city council, will appoint the chairperson for a one-year period.
(Ord. No. 86-1-11, § V, 1-13-86; Ord. No. 92-6-20, § III, 6-22-92; Ord. No. 2003-8-8, § III, 8-11-03)

[The next page is 739]

Chapter 11

LICENSES AND BUSINESS REGULATIONS*

Art. I. **In General, §§ 11-1—11-15**

Art. II. **Reserved, §§ 11-16—11-100.3**

Divs. 1—5. Reserved, §§ 11-16—11-100.3

Art. III. **Vehicles for Hire, §§ 11-101—11-140**

Div. 1. Generally, §§ 11-101—11-105

Div. 2. Permit, §§ 11-106—11-106.3

Div. 3. Taxicab and Limousine Driver's License, §§ 11-109—11-119

Div. 4. Fares, §§ 11-120—11-124

Div. 5. Shared Ride Shuttle Service, §§ 11-125—11-140

Art. IV. **Handbills, No Trespassing Signs, Itinerant Vendors, and Carnivals, §§ 11-141—11-200**

Div. 1. Generally, § 11-141

Div. 2. Handbill Distribution and No Trespassing Signs, §§ 11-142—11-144

Div. 3. Itinerant Vendors and Carnivals, § 11-145

Art. V. **Wreckers, §§ 11-201—11-220**

Art. VI. **Alarm Systems, §§ 11-221—11-245**

Art. VII. **Coin-Operated Machines, §§ 11-246—11-299**

Div. 1. Generally, §§ 11-246—11-265

Div. 2, 3. Reserved, §§ 11-266—11-299

Art. VIII. **Special Events, §§ 11-300—11-361**

Div. 1. Generally, §§ 11-300—11-306

Div. 2. Permit, §§ 11-307—11-318

Div. 3. Special Provisions, §§ 11-319—11-342

Div. 4. Insurance, Indemnification, Surety Bond and Costs, §§ 11-343—11-348

Div. 5. Offenses and Penalty, § 11-349—11-351

Div. 6. Private Non-Permitted Events, §§ 11-352—11-355

Div. 7. Filming, §§ 11-356—11-361

Art. IX. **Regulated Property, §§ 11-362—11-365**

Art. X. **Garage/Occasional Sales, §§ 11-366—11-368**

Art. XI. **Metal Recycling Business Regulations, §§ 11-369—11-384**

Div. 1. Generally, §§ 11-369, 11-370

Div. 2. Record Keeping, Regulations and Notice, §§ 11-371—11-376

Div. 3. Licensing of Metal Recycling Entity, §§ 11-377—11-383

Div. 4. Penalties and Enforcement Provisions, § 11-384

---

*__Charter references—__Franchises and public utilities, Art. 10; private franchises, Art. 10-A.

__Cross references—__Alcoholic beverages, Ch. 3; animals and fowl, Ch. 4; aviation, Ch. 5; building regulations, Ch. 6; cable television, Ch. 7; food and food establishments, Ch. 9; parks and recreation, Ch. 15; taxation, Ch. 20; zoning, App. A; cable television franchise, App. B; delinquent debtors not to be issued license, § 2-2; plumbing contractor's registration, § 6-221; registration of electricians, § 6-371 et seq.; fire alarm systems, § 8-30; smoking, § 14-66 et seq.; noise, § 14-85 et seq.; parades, § 19-111 et seq.

__State law references—__Occupation taxes, V.T.C.A. Tax Code, § 302.101 et seq.; occupational and business regulation, Vernon's Ann. Civ. St., art. 8402 et seq.; driver's, chauffeur's and commercial operator's license, accident reports, Vernon's Ann. Civ. St., art. 6687b; eligibility of persons with criminal backgrounds for certain occupations, professions and licenses, Vernon's Civ. St., art. 6252-13c et seq.; civil remedies, V.T.C.A. Local Gov't Code, Ch. 54, subch. B.

ARTICLE I. IN GENERAL

Secs. 11-1—11-15. Reserved.

ARTICLE II. RESERVED*

DIVISIONS 1—4. RESERVED

Secs. 11-16—11-94. Reserved.

DIVISION 5. RESERVED†

Sec. 11-95—11-100.3. Reserved.

ARTICLE III. VEHICLES FOR HIRE‡

DIVISION 1. GENERALLY

Sec. 11-101. Policy statement.

This article, which provides for the regulation of rates and services of vehicles for hire, promotes adequate and efficient taxicab and limousine service in the city, while protecting the public health and safety. The city intends this article to respect the concept of free enterprise, as well as provide for the public convenience and necessity. (Ord. No. 2001-7-16, § II, 7-23-01)

Sec. 11-101.1. Penalties.

Any person, firm, or corporation violating any provision of this article or failing to observe any provisions of this article is guilty of a misdemeanor punishable for each offense by a fine as provided in section 1-4(b) of this Code of Ordinances. (Ord. No. 2001-7-16, § II, 7-23-01)

Sec. 11-102. Exceptions.

This article does not apply to:

(1) The transportation of a person by vehicle for hire licensed by another governmental entity from a point outside the city to a destination inside the city, if the vehicle leaves the city without receiving a passenger inside the city;

(2) A taxicab service operated under state or federal authority, which services are not subject to the city's regulatory authority; and

(3) Any regional transportation agency or authority created under Texas Statutes, including its agents or assigns under contract, that enters into an interlocal agreement with the City of Plano to provide paratransit services to mobility-impaired residents of the city.

(Ord. No. 2001-7-16, § II, 7-23-01)

Sec. 11-103. Definitions.

The following definitions apply for the purposes of this article:

Alternative fuel means natural gas, liquefied petroleum gas, electricity, methanol or methanol/gasoline blends of eighty-five (85) percent or greater, or ethanol or ethanol/gasoline blends of eighty-five (85) percent or greater.

Annual permit means permission granted by the city to a person to operate a taxicab or

---

***Editor's note—**Section I of Ord. No. 2000-5-38, adopted 5-22-2000, repealed §§ 11-16—11-92 of Art. II, Ch. 11, which pertained to signs and derived from Ord. No. 91-4-12, § I, adopted April 8, 1991, as amended. Section II of Ord. No. 2000-5-38, amended Art. II of Ch. 11 by the addition of new §§ 11-16—11-40, which pertain to signs. Subsequently, Section VIII of Ord. No. 2000-11-22, adopted Nov. 13, 2000, repealed Divs. 1—4, §§ 11-16—11-40 in their entirety. The sign ordinance for the City of Plano is now located in the Comprehensive Zoning Ordinance. See the Code Comparative Table.

Cross references—Electrical signs, etc., §§ 6-279, 6-310; outdoor lighting, § 6-466 et seq.; signage used in conjunction with special events, § 11-344; handbills, § 14-26 et seq.; visibility obstructions, § 19-3.

†**Editor's note—**Ord. No. 2020-4-4, adopted April 27, 2020, repealed division 5, §§ 11-95—11-100.3, which pertained to graffiti and derived from Ord. No. 2009-10-19, adopted October 26, 2009.

‡**Editor's note—**Ord. No. 88-3-23, § I, adopted March 14, 1988, amended Art. III in its entirety, to read as herein set out. Former Art. III, §§ 11-101—11-107, 11-121—11-126, concerning similar subject matter, derived from Ord. No. 83-6-23, §§ 2, 3, 6-27-83; Ord. No. 86-10-7, §§ II, III, 10-14-86; and Ord. No. 87-8-22, § I, 8-24-87. Subsequently, Ord. No. 2001-7-16, § I, adopted July 23, 2001, repealed Art. III in its entirety and § II of said ordinance provided for the amendment of Art. III in its entirety to read as herein set out. See the Code Comparative Table.

Charter reference—Authority to regulate, license and fix the charges by persons operating vehicles for hire, § 3.07(k).

Cross reference—City ambulance service, § 8-3.

limousine service inside the city for a period of one (1) year, renewable under the provisions of this article.

Conviction means a judgment of guilt in a federal court or a court of any state, foreign nation, or political subdivision of a state or foreign nation that is not reversed, vacated, or pardoned.

Driver means an individual who drives or operates a taxicab or limousine.

Driver's permit means a permit issued to an individual by the police department authorizing that person to operate a taxicab or limousine in the city.

Holder means a person who the city has granted an annual permit under this article.

Legal residence means a citizen of the United States or a person residing in the United States in accordance with federal immigration laws.

Limousine means a chauffeured motor vehicle for hire not equipped with a taximeter, with a manufacturer's rating for seating capacity of not more than fifteen (15) passengers, used for transportation of persons on either a regular or irregular route and with either a schedule or on an on call and demand basis.

Limousine service means the business of offering or providing transportation of persons for hire by limousine when a driver is furnished as part of the service and the service is offered on a prearranged basis, where the prearrangement occurs at least one (1) hour in advance of the time of the transportation or in accordance with a preapproved route.

Operate means to drive or be in control of a taxicab or limousine.

Operator means the driver or owner of a taxicab or limousine, or the holder of a taxicab or limousine operating permit.

Owner means the person to whom state license plates for the vehicle were issued.

Person means an individual; corporation; government or governmental subdivision; or agency, trust, partnership, or two (2) or more persons having a joint or common economic interest.

Police chief means the chief of the department designated to enforce and administer this article and includes the chief or his designated agent.

Police department means the department designated by this article to enforce and administer the provisions of this article.

Taxicab means a chauffeured motor vehicle for hire equipped with a taximeter, with a rated passenger capacity of eight (8) or less, used to transport persons, and which typically operates on irregular routes, on irregular schedules, and on a call and demand basis, but does not include limousines as defined by this article.

Taxicab service means a passenger transportation service operated for hire that uses taxicabs in the operation of the service and includes but is not limited to a facility from which the service is operated.

Taximeter means a device that mechanically or electronically computes a fare based upon the distance traveled, the time the taxicab is engaged, and any other basis for charges specified in the operating authority or rate ordinance which pertains to the holder.
(Ord. No. 2001-7-16, § II, 7-23-01; Ord. No. 2001-8-5, § II, 8-13-01)

Sec. 11-104. Reserved.

Sec. 11-105. Cruising.

Any driver of any taxicab or limousine commits an offense by driving or cruising about the streets of the city in an effort to solicit passengers who have not previously ordered or called for a taxicab or limousine.
(Ord. No. 2001-7-16, § II, 7-23-01)

DIVISION 2. PERMIT

Sec. 11-106. Vehicle permit required, exception.

(a) A person may not operate a taxicab or limousine service within the City of Plano for the pickup of passengers inside the city without first

having obtained a permit from the city issued under the terms and provisions of this division, except as provided in subsection (b).

(b) A person displaying a current and valid decal issued either by the City of Dallas or the Dallas/Fort Worth Airport that indicates the vehicle's authority to operate in those locals is excepted from the permit and fees otherwise required by this division.
(Ord. No. 2001-7-16, § II, 7-23-01)

Sec. 11-106.1. Permit application.

An applicant for a permit required by this division shall file with the police department a

written application signed by the applicant. The application must contain the following information:

(1) The applicant's name, address, and telephone number; the grade name (assumed name certificate) under which applicant does business; the street address of the business; and, if incorporated, the name and address of the corporate officers registered with the secretary of state;

(2) The name, local address, and local telephone number of the business for which the applicant seeks a permit;

(3) Proof of insurance as required in section 11-108 of this division; and

(4) A description of the business services which the applicant intends to offer, including the number and identification number of all vehicles for which the applicant seeks a permit.

(Ord. No. 2001-7-16, § II, 7-23-01)

Sec. 11.106.2. Permit terms and conditions.

A permit issued under this division:

(1) Is an annual permit that expires twelve (12) months after the date of issuance;

(2) Is effective for a single place of business only;

(3) Vests no property right in the permittee except to operate a taxicab or limousine service within the city in accordance with the terms and conditions of this article; and

(4) Is nontransferable and nonassignable, except that in the event of a vehicle's discontinuation in service for any reason, the owner of said vehicle may, within thirty (30) days of the discontinuation, apply to the police department for a transfer of said permit to another vehicle.

(Ord. No. 2001-7-16, § II, 7-23-01)

Sec. 11-106.3. Permit fees.

A holder of an annual permit shall pay the city a permit fee as provided below:

(1) Two hundred fifty dollars ($250.00) a year for each taxicab authorized to operate under the permit; or

(2) Five hundred dollars ($500.00) a year for a limousine service, with an additional twenty dollars ($20.00) for each vehicle authorized to operate under the permit.

(Ord. No. 2001-7-16, § II, 7-23-01)

Sec. 11-107. Rear window decal, taxicabs.

(a) The owner of a taxicab permit shall be supplied with a decal, indicating his authority to operate within the city, which shall be valid for the same time period as is the permit. The decal must be attached to the rear window of each vehicle in a manner and location approved by the police department.

(b) A person commits an offense if he:

(1) Operates a taxicab with an expired decal or with no decal affixed to it;

(2) Attaches a decal to a vehicle not authorized to operate as a taxicab;

(3) Forges, alters, or counterfeits a decal required by this section; or

(4) Possesses a forged, altered, or counterfeited decal required by this section.

(c) A decal assigned to one (1) vehicle is not transferable to another without the consent of the police department as provided for in section 11-106(2).

(Ord. No. 88-3-23, § I, 3-14-88)

Sec. 11-108. Insurance.

It shall be unlawful for any permittee to operate a limousine or taxicab service unless said permittee shall maintain in force during the authorized period of its operating authority the amount and character of insurance coverage for all vehicles used in such service as follows:

(1) A five hundred thousand dollar ($500,000.00) per occurrence combined single limit liability policy with a deductible

not to exceed one thousand dollars ($1,000.00) which shall pay on behalf of the insured named therein and any other person, as insured, using any such taxicab motor vehicle or motor vehicles with the express or implied permission of such named insured, all sums which the insured shall become legally obligated to pay as damage arising out of the operation of the taxicab service or the ownership, maintenance or use of such taxicab motor vehicles or motor vehicles operated for or on behalf of the permittee;

(2) Be carried with an insurance company authorized to do business in the State of Texas;

(3) Include a cancellation rider under which the insurance company is required to notify the city in writing not fewer than fourteen (14) days before canceling or making a material change to the insurance policy.

(4) Provides that the city is an additional named insured;

(5) Provides coverage for all vehicles operating under the name of the permittee whether said vehicles are owned, leased, hired or contracted and liability coverage for the drivers operating said vehicles, whether on or off duty;

(6) Contains a provision for a continuing liability thereon up to the full amount thereof, notwithstanding any recovery thereon;

(7) The insurance policy required by this article shall be filed with the police chief five (5) working days prior to the time any of the vehicles operated by the permittee may be operated upon city streets; and

(8) Prior to the time the permittee may operate any vehicles upon the streets of the city, the permittee must secure written confirmation from the city that the policy meets the requirements of this section.

(Ord. No. 88-3-23, § I, 3-14-88)

DIVISION 3. TAXICAB AND LIMOUSINE DRIVER'S LICENSE

Sec. 11-109. Driver's permit required, exception.

(a) A person may not drive a taxicab or limousine inside the city unless he has a valid driver's permit issued to him by the City of Plano under this division, except as provided in subsection (c).

(b) A vehicle permit holder may not employ or contract with a driver or otherwise allow a person to drive or hire a vehicle owned, controlled or operated by the vehicle permit holder unless the person has a valid driver's permit issued to him by the city under this division, except as provided in subsection (c).

(c) A person carrying a current and valid driver's license indicating the person's authority to operate the taxicab or limousine he is driving, as issued by the City of Dallas, or by the Dallas/Fort Worth Airport, upon qualification of the City of Dallas, is excepted from the permit and fee otherwise required by this division.

(Ord. No. 88-3-23, § I, 3-14-88; Ord. No. 92-11-45, § III, 11-23-92)

Sec. 11-110. Qualifications.

To qualify for a taxicab or limousine driver's permit, an applicant must:

(1) Be at least nineteen (19) years of age;

(2) Be a legal resident of the United States;

(3) Hold a valid driver's license issued by the State of Texas;

(4) Be able to communicate in the English language;

(5) Not be afflicted with a physical or mental disease or disability that is likely to prevent him from exercising ordinary and reasonable control over a motor vehicle or that is likely to otherwise endanger the public health or safety;

(6) Not having been convicted of more than four (4) moving traffic violations arising out of separate incidents; or be involved in more than two (2) automobile accidents in

which it could be reasonably determined that he was at fault, within any twelve-month period during the preceding thirty-six (36) months;

(7) Not, within five (5) years preceding the date of the application for employment, have been finally convicted in a court of competent jurisdiction of any of the following offenses:

a. Prostitution or related offenses;

b. Driving while intoxicated;

c. Driving while under the influence of drugs; or

d. Any felony or other offense involving moral turpitude.

(Ord. No. 88-3-23, § I, 3-14-88; Ord. No. 92-11-45, § III, 11-23-92)

Sec. 11-111. Application and fee.

To obtain a taxicab or limousine driver's permit or renewal thereof, a person must file a completed written application with the police department on a form provided for that purpose. The department shall require each application to state such information as it considers necessary to determine whether an applicant is qualified. A processing fee of ten dollars ($10.00) will be charged each applicant.

(Ord. No. 88-3-23, § I, 3-14-88; Ord. No. 92-11-45, § III, 11-23-92)

Sec. 11-112. Investigation of applicant.

(a) The police department shall investigate each applicant and compile a report concerning the applicant's qualification under section 11-110. The department shall further obtain a copy of the applicant's motor vehicle driving record and a list of any warrants of arrest for the applicant which might be outstanding.

(b) The department may conduct such other investigations as it considers necessary to determine whether an applicant for a taxicab or limousine driver's permit is qualified.

(Ord. No. 88-3-23, § I, 3-14-88; Ord. No. 92-11-45, § III, 11-23-92)

Sec. 11-113. Issuance and denial.

If the police department determines an applicant is qualified, a permit shall be issued to the applicant.

(a) An application for a taxicab or limousine driver's license may be denied if the applicant:

1. Is not qualified under section 11-110; or;
2. Makes a false statement of a material fact in the application for a taxicab or limousine driver's permit.

(b) If it is determined that a permit should be denied the applicant, the police department shall notify the applicant in writing that his application is denied and include in the notice reason for denial and a statement informing the applicant of his right to appeal under section 11-117 herein.

(Ord. No. 88-3-23, § I, 3-14-88; Ord. No. 92-11-45, § III, 11-23-92)

Sec. 11-114. Term of license; voidance upon suspension or revocation of state driver's license.

(a) A permit issued under this article shall expire two (2) years from the date of issuance.

(b) If a permittee's state driver's license is suspended or revoked by the state, his City of Plano taxicab or limousine driver's permit automatically will become void. A permittee shall notify the police department and the holder for whom he drives within three (3) days of a suspension or revocation of his driver's license by the State of Texas and shall immediately surrender his taxicab driver's permit to the police department.

(Ord. No. 88-3-23, § I, 3-14-88; Ord. No. 92-11-45, § III, 11-23-92)

Sec. 11-115. Display of permit.

When operating a taxicab or limousine the driver shall at all times conspicuously display his permit in a manner where it may be readily observed by any passenger. A taxicab or limousine driver shall allow any peace officer to examine his driver's permit upon request.

(Ord. No. 88-3-23, § I, 3-14-88; Ord. No. 92-11-45, § III, 11-23-92)

Sec. 11-116. Suspension and revocation.

(a) If the police chief determines that a permittee has failed to comply with a regulation established by this article, the chief may suspend the taxicab or limousine driver's permit for a definite period of time not to exceed sixty (60) days.

(b) If at any time the police chief determines that a permittee is not qualified to possess a permit, the chief shall suspend the taxicab or limousine driver's license until such time as it is determined that the permittee is qualified.

(c) The permittee whose taxicab or limousine driver's permit is suspended or revoked shall not drive a taxicab or limousine for hire inside the city during that time.

(Ord. No. 88-3-23, § I, 3-14-88; Ord. No. 92-11-45, § III, 11-23-92)

Sec. 11-117. Appeal.

(a) A person may appeal a denial, suspension or revocation of a permit under this article if he requests an appeal in writing, delivered to the city manager within ten (10) days after notice of the appealed action is received.

(b) The city manager or his designated representative shall act as the appeal hearing officer in an appeal hearing under this section. The hearing officer shall give the appealing party an opportunity to present evidence and make argument in his behalf. The formal rules of evidence do not apply to an appeal hearing under this section, and the hearing officer shall make his ruling on a basis of a preponderance of the evidence presented at the hearing.

(c) The hearing officer may affirm, modify, or reverse all or part of the order being appealed. The decision of the hearing officer shall be final.

(Ord. No. 88-3-23, § I, 3-14-88; Ord. No. 92-11-45, § III, 11-23-92)

Sec. 11-118. Falsifying of a permit.

A person commits an offense if he:

(1) Forges, alters, or counterfeits a taxicab or limousine driver's permit, badge, sticker, or other emblem required by law; or

(2) Possesses a forged, altered, or counterfeited taxicab or limousine driver's permit, badge, sticker or other emblem required by law.

(Ord. No. 88-3-23, § I, 3-14-88; Ord. No. 92-11-45, § III, 11-23-92)

Sec. 11-119. Current mailing address of permittee.

An individual issued a driver's permit under this article shall maintain a current mailing address on file with the police department. The permittee shall notify the police department of any change in his mailing address within five (5) days of the change.

(Ord. No. 88-3-23, § I, 3-14-88; Ord. No. 92-11-45, § III, 11-23-92)

DIVISION 4. FARES

Sec. 11-120. Rates of fare.

No person operating a taxicab or limousine within the city shall charge any amount of money for transporting service plus waiting time in an amount greater than those established by resolution of the city council.

(Ord. No. 88-3-23, § I, 3-14-88; Ord. No. 97-8-10, § I, 8-11-97)

Sec. 11-121. Display of rates, taxicab.

(a) A taxicab permit holder shall provide the driver for each taxicab operating under its authority, a printed card or sticker containing the approved rates of fare of the holder. The form and content of the card or sticker shall be subject to regulation by the police department.

(b) While operating a taxicab for hire, a driver shall prominently display the rate card or sticker inside the taxicab in a manner approved by the police department so that it can be easily read by passengers sitting in the vehicle.

(Ord. No. 88-3-23, § I, 3-14-88)

Sec. 11-122. Meters.

(a) All taxicabs operating within the city limits shall be equipped with meters which shall register accurately the following:

(1) The mileage travel from the time a passenger enters the taxicab until the passenger reaches his destination or the service of the taxicab is otherwise terminated;

(2) The amount of money which is to be charged for the transporting service, plus any waiting time, such amount not to exceed the amounts displayed on the meter required by this division.

(b) It shall be unlawful for any person to operate a taxicab within the city limits without a meter in working order which performed the functions listed in this section.

All taximeters required in accordance with the provisions of this article shall be maintained in good operating condition and shall be tested and sealed at least once each year in accordance with state weights and measures law. The city may order a taximeter to be tested at any time and the holder of a permit issued in accordance with the provisions of this article shall make the taxicab meter available for testing when so ordered. The holder of such permit shall pay the cost of testing taximeters.

(Ord. No. 88-3-23, § I, 3-14-88)

Sec. 11-123. Parking on streets; driving through alleys.

Except while loading or unloading passengers into and from such taxicab or limousine or in an area designated and approved by the city council as a "Taxi/Limo Stand," it shall be unlawful for the holder of any permit issued under the terms of this article, or the agent, servant, or employee of such permittee to park or leave standing any taxicab or limousine on the streets of the city.
(Ord. No. 88-3-23, § I, 3-14-88)

Sec. 11-124. Reserved.

DIVISION 5. SHARED RIDE SHUTTLE SERVICE*

Sec. 11-125. Permit.

SuperShuttle DFW, Inc. (hereinafter referred to as "permittee") is hereby granted a revocable-nonexclusive temporary permit for the privilege of operating a shuttle service from pick up points within the corporate limits of the City of Plano, Texas, to the Dallas/Fort Worth Airport and Love Field on a shared ride, prearranged or chartered basis for a period not to exceed twelve (12) months on the conditions within this division.
(Ord. No. 88-3-24, § I, 3-14-88; Ord. No. 89-3-25, § I, 3-27-89)

Sec. 11-126. Length of permit; renewal; exception.

(a) This permit shall be in force and effect for a term of twelve (12) months from and after the effective date of the passage of this division, unless sooner terminated by reason of default of permittee under the requirements of this division.

(b) The permit granted hereunder may be renewed by resolution of the city council upon written application by the permittee not less than sixty (60) days prior to the expiration date of said permit and payment of the permit fee herein.

(c) A shared ride shuttle service displaying a current and valid decal indicating the vehicle's authority to operate, as issued by the City of Dallas, or by the Dallas/Fort Worth Airport, upon qualification of the City of Dallas, is excepted from the permit and fees otherwise required by this division.
(Ord. No. 88-3-24, § I, 3-14-88; Ord. No. 89-3-25, § I, 3-27-89; Ord. No. 92-11-45, § III, 11-23-92)

Sec. 11-127. Permit fee.

Permittee shall pay to the city temporary operating permit fees in an amount established annually by the city council to cover a portion of the administrative costs and as a street rental fee.
(Ord. No. 88-3-24, § I, 3-14-88; Ord. No. 89-3-25, § I, 3-27-89)

Sec. 11-128. Insurance.

It shall be unlawful for the permittee to operate the shuttle service unless said permittee shall maintain in force during the authorized period of its operating authority the amount and character of insurance coverage for all shuttle vehicles used in the shuttle service as follows:

(1) A five hundred thousand dollars ($500,000.00) per occurrence combined single limit liability policy with a deductible not to exceed one thousand dollars ($1,000.00) which shall pay on behalf of the insured named therein and any other person, as insured, using any such shuttle motor vehicle or motor vehicles with the express or implied permission of such named insured, all sums which the insured shall become legally obligated to pay as damage arising out of the operation of the shuttle service or the ownership, maintenance or use of such shuttle motor vehicles or motor vehicles operated for or on behalf of the permittee;

(2) Be carried with an insurance company authorized to do business in the State of Texas;

(3) Include a cancellation rider under which the insurance company is required to notify the city in writing not fewer than

*__Editor's note—__Ord. No. 88-3-24, § I, adopted March 14, 1988, added division 3, §§ 11-125—11-132, to this article III. In order to avoid duplication of division designations used herein, said provisions have been redesignated as division 5, §§ 11-125—11-132, at the editor's discretion.

fourteen (14) days before canceling or making a material change to the insurance policy;

(4) Provides that the city is an additional named insured;

(5) Provides coverage for all shuttle vehicles operating under the name of the permittee whether said shuttles are owned, leased, hired or contracted and liability coverage for the drivers operating said shuttles, whether on or off duty;

(6) Contains a provision for a continuing liability thereon up to the full amount thereof, notwithstanding any recovery thereon;

(7) The insurance policy required by this division shall be filed with the chief of police five (5) working days prior to the time any of the shuttles operated by the permittee may be operated upon city streets; and

(8) Prior to the time the permittee may operate any shuttles upon the streets of the city, the permittee must secure written confirmation from the city that the policy meets the requirements of this section.

(Ord. No. 88-3-24, § I, 3-14-88; Ord. No. 89-3-25, § I, 3-27-89)

Sec. 11-129. Ownership of shuttles.

Permittee shall own, lease, contract for or otherwise legally control every shuttle vehicle used in the service for which this permit is granted whether or not the shuttle is owned by the permittee.

(Ord. No. 88-3-24, § I, 3-14-88; Ord. No. 89-3-25, § I, 3-27-89)

Sec. 11-130. Transfer of permit.

No grant, right or privilege afforded to the permittee under the terms of this permit shall be transferred to any other person or entity without application to the City of Plano for such transfer and approval thereof by formal action of the city council.

(Ord. No. 88-3-24, § I, 3-14-88; Ord. No. 89-3-25, § I, 3-27-89)

Sec. 11-131. Forfeiture and/or cancellation of permit.

This permit shall be subject to forfeiture and/or cancellation upon the happening of any of the following events:

(a) Violation of this division, or

(b) Permittee becoming delinquent in the payment of ad valorem taxes upon any property of the permittee used or operated directly in connection with the permittee's shuttle service, or

(c) Permittee failing to make payment of any and all fees due pursuant to this permit, or

(d) Failure to continue daily operation, or

(e) Any reason the city council shall, after public hearing, deem reasonable cause.

(Ord. No. 88-3-24, § I, 3-14-88; Ord. No. 89-3-25, § I, 3-27-89)

Sec. 11-132. Acceptance of permit.

Permittee shall within ten (10) days after passage of this division unconditionally accept the terms of this division by written document signed by the president of SuperShuttle DFW, Inc., or the permit granted by this division shall be null and void.

(Ord. No. 88-3-24, § I, 3-14-88; Ord. No. 89-3-25, § I, 3-27-89)

Secs. 11-133—11-140. Reserved.

ARTICLE IV. HANDBILLS, NO TRESPASSING SIGNS, ITINERANT VENDORS, AND CARNIVALS*

DIVISION 1. GENERALLY

Sec. 11-141. Definitions.

The following words and phrases, when used in this article, shall have the meanings ascribed to them by this section:

Business day means any calendar day except Saturday, Sunday or any state or national holiday.

Carnival means a temporary commercial business located and/or operated on privately owned property, whether improved or unimproved, that is characterized by amusement rides, attractions, games of skill or chance, entertainment, shows, exhibitions, food vendors and/or a combination thereof including fairs or festivals. Carnival does not include non-commercial, non-profit or charitable amusement events.

Carnival operator means any person or entity who sets up and operates a temporary carnival on privately owned property, whether improved or unimproved, in the city.

Handbill means and includes any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, paper, booklet, or any other printed or otherwise reproduced original or copies of any matter or literature.

Handbill distributor means and includes any person engaging or engaged in the business for hire or gain of distributing handbills, other than newspapers distributed to subscribers thereof, and any person receiving compensation directly or indirectly for the distribution of such handbills.

Handbill sponsor means and includes any person, firm or corporation who utilizes handbills as a medium of advertising or spreading a message.

Individual shall mean only a natural person.

Itinerant vendor shall mean any person or entity who sets up and operates an occasional business on privately owned property, whether improved or unimproved, in the city, soliciting, selling, or taking orders for, or offering to sell or take orders for any goods or services. A temporary business is one that continues for forty-five (45) days or less; and, exists whether solicitation is from a stand, vehicle, or freestanding.

Any business that exists more than forty-five (45) days shall be deemed to be a permanent occupancy and is required to obtain a certificate of occupancy from the building inspection department.
(Ord. No. 2021-9-23, § II, 9-27-21)

DIVISION 2. HANDBILL DISTRIBUTION AND NO TRESPASSING SIGNS

Sec. 11-142. Handbill distribution on private property.

(a) It shall be unlawful for any individual, handbill distributor and/or handbill sponsor, to distribute or cause to be distributed, deposited, placed, thrown, scattered, or cast any handbill upon any residential property except by handing or transmitting such handbill directly to the owner, occupant, or any other person then present in or upon such private premises or by placing or depositing the same in a manner to secure to prevent such handbill from being blown or drifting about such premises, except that mailboxes may not be used when prohibited by federal postal laws or regulations.

*__Editor's note—__Ord. No. 2021-9-23, §§ I, II, adopted September 27, 2021, repealed the former Article IV, §§ 11-141—11-157, and enacted a new Article IV as set out herein. The former Article IV pertained to similar subject matter and derived from Ord. No. 2002-7-13, adopted July 22, 2002; Ord. No. 2003-6-7, adopted June 9, 2003; Ord. No. 2004-11-24, adopted Nov. 22, 2004; Ord. No. 2004-9-13, adopted Sept. 13, 2004; Ord. No. 2005-6-27, adopted June 27, 2005; Ord. No. 2006-3-6, adopted March 16, 2006; Ord. No. 2007-8-6, adopted Aug. 13, 2007; Ord. No. 2007-8-7, adopted Aug. 13, 2007; Ord. No. 2009-4-10, adopted April 14, 2009; Ord. No. 2014-5-7, adopted May 12, 2014; and Ord. No. 2018-2-6, adopted Feb. 26, 2018.

State law references—Home solicitation transactions, Vernon's Ann. Civ. St., art. 5069-13.01 et seq.; municipal powers as to hawkers and peddlers, Vernon's Ann. Civ. St., arts. 1014(37), 1031; agricultural regulations, V.T.C.A. Agriculture Code, Chs. 13, 102 et seq.

(b) It shall be unlawful for any person to distribute or cause to be distributed, deposited, placed, thrown, scattered or cast any handbill upon any residential property if requested by anyone thereon not to do so, or if there is a no trespass(ing) sign placed on such premises in a conspicuous place upon or near the main entrance to the residence. A no trespass(ing) sign shall be sufficient if it is weatherproof, not less than three (3) inches by four (4) inches in size, and bears the words "no trespassing" or "no trespass" with letters not less than two-thirds (⅔) of an inch in height.
(Ord. No. 2021-9-23, § II, 9-27-21)

Sec. 11-143. Failure to comply with no trespass sign.

It shall be unlawful for any person to go upon any residential premises uninvited and ring the doorbell, knock upon the door or create any sound for the purpose of attracting the attention of the occupants of the residence if there is a no trespass(ing) sign placed on such premises in a conspicuous place upon or near the main entrance to the residence. A no trespass(ing) sign shall be sufficient if it is weatherproof, not less than three (3) inches by four (4) inches in size, and bears the words "no trespassing" or "no trespass" with letters not less than two-thirds (⅔) of an inch in height.
(Ord. No. 2021-9-23, § II, 9-27-21)

Sec. 11-144. Penalty.

Any person violating this division or failing to observe any provision of this division shall be deemed guilty of a misdemeanor and upon conviction thereof, shall be punished as provided in subsection 1-4 (b) of this Code of Ordinances by a fine not exceeding five hundred dollars ($500.00). Every day the violation continues shall be deemed as a separate offense. Proof of mental culpability is not required for conviction of an offense under this division.
(Ord. No. 2021-9-23, § II, 9-27-21)

DIVISION 3. ITINERANT VENDORS AND CARNIVALS

Sec. 11-145. Itinerant vendors and carnivals on private property.

(a) *Requirements for itinerant vendors and carnivals.* The following requirements shall apply to both itinerant vendor and carnivals:

(1) A permit is required to operate a temporary business on privately owned property;

(2) A non-refundable permit fee in the amount of one hundred dollars ($100.00) is required to be paid to the city upon application;

(3) Compliance with all city ordinances is required;

(4) Tents, food, animals, stages, and any allowable temporary structure shall require appropriate city permits or inspections as directed by the building official or his designee;

(5) Proof of a valid state sales tax certificate or tax exemption is required;

(6) Proof of permission from the owner of the private property where the temporary business is located is required. Hours of set-up and operation of the temporary business shall be limited to between 7:00 a.m. and 10:00 p.m. daily;

(7) A dimensioned or scaled site plan indicating the location of the display area, curb cuts, and parking area is required;

(8) No living quarters of any kind shall be permitted to be located on the site of a temporary business.

(b) *Regulations applicable solely to itinerant vendors.* The following regulations shall apply solely to itinerant vendors:

(1) A permit application shall be filed with the building inspection department at least five (5) calendar days prior to the first day of operation of the temporary business. The permit must be displayed at the temporary business in such a

manner that it is clearly visible from the abutting street and must be available on request from any city official;

(2) An itinerant vendor permit shall be issued for a minimum of five (5) days and shall not exceed forty-five (45) days in each calendar year. No physical address shall have an itinerant vendor business more than forty-five (45) days in any calendar year;

(3) The itinerant vendor must provide at least one (1) unisex portable sanitary facility. In lieu of the portable sanitary facility, the vendor may provide a permission letter from the owner or manager of a property located within a two hundred-foot radius of the temporary business granting permission to use their sanitary facilities; however, the property where the itinerant vendor has permission to use the sanitary facilities cannot be located across a thoroughfare of four (4) lanes or larger.

(c) *Regulations applicable solely for carnivals.* The following regulations shall apply solely to carnivals:

(1) A permit application shall be filed with the building inspection department at least thirty (30) calendar days prior to the first day of operation of the temporary business. The permit must be displayed at the temporary business in such a manner that it is clearly visible from the abutting street and must be available on request from any city official;

(2) No more than three (3) carnivals shall be conducted at the same address in any calendar year. No carnival operator shall be issued more than three (3) permits in any one calendar year. A permit issued under this subsection shall not exceed two (2) weeks per permit period. The two-week period shall commence on the first day the carnival is in operation. All carnival equipment including, but not limited to trucks, trailers, rides, and booths, shall be removed from the property in its entirety upon permit expiration. More than one (1) permit shall not be issued in the same or consecutive months;

(3) A carnival shall be located a minimum of five hundred (500) feet from a residential zoning district. For purposes of this subsection, the measurement shall be in a direct line from the nearest portion of any property line of the lot on which the carnival is located to the nearest portion of any property line on which a residential structure is located;

(4) The carnival operator shall provide at least two (2) unisex portable sanitary facility and additional portable sanitary pursuant to the same requirements listed in subsection 6-712(a)(1)(ii) of the City Code of Ordinances, which addresses outdoor toilet facilities;

(5) The carnival operator shall provide the city with a copy of the written inspection and/or reinspection certificate and insurance policy required under the Texas Occupations Code for amusement rides.

(d) *Revocation of permit.* The building official or his designee shall have the sole discretion to revoke a permit issued pursuant to this division upon the following conditions:

(1) Upon a violation of law; or

(2) Upon determination of a false or misleading statement or omission of material fact on an application for a temporary business.

(e) *Appeals.* Revocation of any permit issued pursuant to this division may be appealed to the city manager or his designee. Such appeal shall be in writing and shall be filed with the city manager within five (5) business days after the building official or his designee has revoked the permit. The decision of the city manager or his designee shall be issued within five (5) business days and shall be final.

(f) *Penalty.* Any violation of the provisions or terms of this division by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with

subsection 1-4(b) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.
(Ord. No. 2021-9-23, § II, 9-27-21)

Secs. 11-146—11-200. Reserved.

ARTICLE V. WRECKERS*

Sec. 11-201. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Contract wrecker/contractor means a wrecker operator who has successfully bid upon the wrecker specifications set out by the city and has been awarded a contract by the city for police-directed tows.

Emergency call means any call and request for wrecker service arising out of, from, or as a result of a wreck, motor vehicle accident or collision on the public streets, highways and alleys lying within the corporate limits of the city, or any call for wrecker service initiated by the city at any other time, whether such call is transmitted by private individual in person or by telephone, or transmitted by radio or otherwise.

Police department means the chief of police, supervisors, police officers and dispatchers of the city police department only.

Wrecker or *tow truck* means a truck-mounted crane or A-frame, with either power or mechanical boom and joist, or winch and hoist, or any combination thereof, which vehicle is commonly used to move, tow and convey wrecked and disabled motor vehicles, vehicles, trailer or semitrailers, or both, from the scene or site of a wreck, motor vehicle accident or collision.

Wrecker operator or *tow truck operator* means any person who owns or operates a wrecker within the corporate limits of the city, who is regularly engaged in the business of repairing, rebuilding, storing, wrecking, selling or trading wrecked and disabled motor vehicles, vehicles, trailers or semitrailers, or both.
(Ord. No. 83-8-12, § 2, 8-8-83; Ord. No. 2003-3-2, § I, 3-3-03; Ord. No. 2003-8-12, § I, 8-11-03)

Sec. 11-202. Towing for the city.

No person shall provide wrecker service to the city without first executing a contract therefor with the city. Provided, however, nothing in this section shall prohibit the city from utilizing the services of noncontract wreckers for towing services originating outside the corporate limits of the city.
(Ord. No. 83-8-12, § 8, 8-8-83)

Sec. 11-203. Rates.

Maximum rates for wrecker services provided to the city shall be specified in the contract.
(Ord. No. 83-8-12, § 7, 8-8-83)

Sec. 11-204. Contract wrecker service.

The city shall have the power and authority to prepare specifications for bidding by wrecker operators. Upon award by the city council, the city manager or his designee shall execute a contract with the successful bidder. The contract wrecker shall respond upon request of the city to the scene or site of any wreck, motor vehicle accident or collision occurring within the corporate limits of the city, or to any other scene or site at which the services of a wrecker are required by the city.
(Ord. No. 83-8-12, § 3, 8-8-83)

Sec. 11-205. Inspection.

The police department shall have authority to inspect all wreckers belonging to contract operators to ensure the wrecker operator's continued compliance with section 11-207.
(Ord. No. 83-8-12, § 5, 8-8-83)

Sec. 11-206. Dispatch by police generally.

It shall be unlawful for any wrecker operator or driver to proceed to the scene or site of a wreck, motor vehicle accident or collision, or follow any ambulance or police car which is

*__Cross reference—__Motor vehicles and traffic, Ch. 12.

traveling in response to a report of a wreck, motor vehicle accident or collision, unless such wrecker has been duly and legally dispatched to

[The next page is 759]

the scene or site by the city or has been requested to come to the scene by a party involved in the wreck, motor vehicle accident or collision.
(Ord. No. 83-8-12, § 6, 8-8-83)

Sec. 11-207. Promulgation of additional requirements.

The chief of the police department shall have authority to promulgate other reasonable rules, regulations and requirements as may become necessary to ensure that the contract wrecker protects the vehicles and vehicle contents.
(Ord. No. 83-8-12, § 4, 8-8-83)

Sec. 11-208. Reserved.

Editor's note—Ord. No. 2003-8-12, § II, adopted Aug. 11, 2003, repealed § 11-208 in its entirety. Formerly, said section pertained to non-consent towing as enacted by Ord. No. 2003-3-2, § II, adopted March 3, 2003.

Secs. 11-209—11-220. Reserved.

ARTICLE VI. ALARM SYSTEMS*

Sec. 11-221. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alarm administrator means a person or persons designated by the police chief to administer, review, and enforce alarm permitting and false alarm notifications, billing, and permit revocations.

Alarm site means a location or premises served by an alarm system.

Alarm system means a device or system which transmits a signal intended to summon police and/or fire services of the city. The categories of alarm systems are robbery, burglary, fire, medical, and panic/distress alarm. "Alarm system" does not mean an alarm installed on a vehicle, unless used for a habitation at a permanent site, or an alarm designed to alert only the inhabitants within premises, but includes an alarm that emits an audible signal on the exterior of a structure.

Alarm system user means the property owner, the owner's agent, other person, or business entity legally responsible for the operation of a validly permitted alarm system.

Alarm systems company means a person who acts as an alarm systems company under V.T.C.A., Occupations Code § 1702.105.

Burglar alarm notification means a notification of an unauthorized intrusion or attempted unauthorized intrusion.

Emergency medical assistance alarm notification means an alarm system which summons emergency medical assistance.

False burglar alarm notification means a burglar alarm notification to the police when the responding police officer reasonably finds there is no evidence of unauthorized intrusion or attempted unauthorized intrusion.

False emergency medical assistance alarm notification means an emergency medical assistance alarm notification to the fire department, when the responding fire department personnel reasonably find there is no evidence of need for emergency medical assistance.

False fire alarm notification means a fire alarm notification to the fire department, when the responding fire department personnel reasonably find there is no evidence of a fire having occurred.

False robbery alarm notification means a robbery alarm notification to the police, when the responding police officer reasonably finds there is no evidence of a robbery.

Fire alarm notification means a notification which is initiated or triggered by an alarm system designed to react to any of the visual or physical characteristics of fire.

*__Editor's note—__Ord. No. 2016-3-13, §§ I, II, adopted March 14, 2016, repealed and reenacted article VI in its entirety to read as herein set out. Formerly, article VI, §§ 11-221—11-229, pertained to similar subject matter, and derived from Ord. No. 2006-2-23, § I, adopted February 27, 2006; Ord. No. 2007-12-4, § I, adopted December 10, 2007, and Ord. No. 2008-9-32, § I, adopted September 22, 2008.

Fire chief means the City of Plano fire chief or designee.

Monitoring System means a device or system that transmits a burglar alarm signal intended to notify only the responsible person of the system or the inhabitants of the structure without the intent of summoning an emergency service of the city.

Panic/Distress alarm means a notification generated by the activation of a device intended to signal a life threatening or emergency situation.

Permitted site means a location that has an active permit and for which the permit owner information on file is current.

Police chief means the City of Plano chief of police or designee.

Responsible party means an alarm system user who is required to comply with the terms of this article.

Robbery alarm notification means a notification of a robbery or an attempted robbery.
(Ord. No. 2016-3-13, § II, 3-14-16)

Sec. 11-222. Permit.

(a) *Required.* A person commits an offense if he operates, causes, or allows to be operated, an alarm system without a valid permit. A separate permit is required for each alarm system.

(b) *Contents of application.* Each permit application must contain the name, address, and telephone number of the person who is responsible for the proper maintenance and operation of the alarm system and payment of fees or charges levied under this article. For an alarm permit for a commercial premise, the permit application shall contain the names and phone numbers (home and business) of two (2) people that when notified by the police or fire department(s) will come to the alarm site within thirty (30) minutes, if requested, to terminate the alarm signal and secure the property. Application for a permit under the provisions of this article constitutes a grant of approval to the city to deactivate an alarm system that sounds an alarm signal for longer than thirty (30) minutes after being notified.

(c) *False statement.* Any false statement or misrepresentation of a material fact made by an applicant for the purpose of obtaining an alarm permit or renewal, or for the purpose of making a change thereto, shall be sufficient cause for refusal to grant a permit.

(d) *Fee.*

(1) A nonrefundable fee of fifty dollars ($50.00) is required annually for each residential alarm system.

(2) A nonrefundable fee of one hundred dollars ($100.00) is required annually for each commercial permit.

(3) It is the responsibility of the alarm system user to pay the permit fee no later than the expiration date stated on the notification. If payment is not received prior to the expiration date, the permit will be deactivated after a ten (10) business day grace period.

(e) *Issuance.* Upon receipt of the required fee and completed application form, the alarm administrator or designee shall issue a permit unless there is reasonable cause to believe the equipment responsible for initiating an alarm will not be maintained or operated in accordance with this article or the applicant will not comply with each provision of this article.

(f) *Transferability; change of individual designated to respond.* An alarm permit cannot be transferred to another person. However, the individual designated to respond to an alarm or relay an alarm may be changed. A permit holder must inform the alarm administrator or designee of any change that alters information listed on the permit applications. No fee will be assessed for such changes.

(g) *Penalty for operation without permit.* A two hundred dollar ($200.00) penalty will be imposed for a person or business entity operating, causing, or allowing to be operated any

alarm system as defined in this article without having a valid permit in accordance with the provisions of this article.

(h) *Enforcement.* The alarm administrator or designee shall have the authority to enforce the provisions of this article.
(Ord. No. 2016-3-13, § II, 3-14-16)

Sec. 11-223. Inspection of alarm site and system.

Upon reasonable notification, the police chief or designee or fire chief or designee may inspect an alarm site and alarm system of a permit holder during regular business hours.
(Ord. No. 2016-3-13, § II, 3-14-16)

Sec. 11-224. Responsibilities of alarm system users.

(a) *Generally.* An alarm system user:

(1) Is responsible for the adjustment or modification of the sensory mechanism for his alarm system to suppress false indications so that the alarm system will not be activated by impulses due to:

a. Transient pressure changes in water pipes;

b. Flashes of light;

c. Wind noise caused by the rattling or vibrating of doors or windows;

d. Vehicular noise adjacent to the installation; and

e. Other events unrelated to actual emergencies.

(2) Must maintain the premises containing an alarm system in a manner that ensures proper operation of the alarm system. It is the responsibility of the alarm permit holder to properly maintain the alarm system to prevent false activations. Should a permit holder have more than two (2) activations within thirty (30) calendar days, an inspection of the alarm system will be required by a licensed company. Notice must be made in writing to the alarm administrator or designee from the licensed monitoring company of findings of the inspection within thirty (30) calendar days.

(3) Must provide the City of Plano police department alarm unit written notification of the date the permit is to be cancelled.

(b) *Reporting alarm signals through an alarm systems company.* An alarm system user shall not report any alarm signals through a relaying intermediary person that does not meet the requirements of V.T.C.A., Occupations Code § 1702.105.
(Ord. No. 2016-3-13, § II, 3-14-16)

Sec. 11-225. Duties of an alarm systems company.

A person or company who is engaged in the business of relaying alarm notifications to the city shall:

(1) Attempt to contact the responsible party of the alarm system twice before contacting the city to respond to the alarm signal; and

(2) Follow § 26.2.3.1 of NFPA 72, National Fire Alarm and Signaling Code, 2013 edition, for alarm signal verification.
(Ord. No. 2016-3-13, § II, 3-14-16)

Sec. 11-226. Monitoring systems.

(a) *Requirements.* A person in control of a monitoring system must:

(1) Adjust the mechanism so that any audible signals emitted can be heard only inside the alarmed location.

(2) If applicable, notify the alarm systems company not to dispatch police for burglar alarms unless there is an indication of an emergency or criminal offense.

(b) *No permit required.* The operation of a monitoring system does not require a permit from the city.

(c) *Penalty if dispatched.* A two hundred dollar ($200.00) penalty will be imposed against the responsible party when an alarm systems

company reports to the city any burglary alarm that is intended only to notify the responsible party of the monitoring system.
(Ord. No. 2016-3-13, § II, 3-14-16)

Sec. 11-227. False alarms.

(a) *Determination.*

(1) The alarm administrator or designee shall not consider the alarm notification to be false if:

a. The emergency responders respond within thirty (30) minutes and

b. After inspection of the interior or exterior of the premises, the alarm is determined to be caused by:

1. A natural or man-made catastrophe;

2. Severe weather that causes physical damage to the premises;

3. A criminal offense;

4. Telephone line outage; or

5. Attempted entry of an intruder or attempted robbery.

(b) *Fees.* An alarm system user shall pay any service fees as assessed under the provisions of this section within thirty (30) calendar days of receiving the city's determination notice of the false alarm or be assessed a ten (10) percent late fee.

(1) *Burglar alarms.* An alarm system user will be assessed a fee for the signaling of a false alarm in excess of three (3) false alarms in the preceding 12-month period. Fees assessed will be:

a. Fifty dollars ($50.00), if the location has had more than three (3) but fewer than six (6) other false alarms in the preceding 12-month period.

b. Seventy-five dollars ($75.00), if the location has had more than five (5) but fewer than eight (8) other false alarms in the preceding 12-month period.

c. One hundred dollars ($100.00), if the location has had eight (8) or more other false alarms in the preceding 12-month period.

(2) *Fire alarms.* An alarm system user will be assessed a fee for the signaling of a false alarm by a fire alarm system in excess of two (2) alarms in the preceding twelve (12) months. This fee will be two hundred dollars ($200.00) for each such false alarm.

(3) *Robbery alarms.* An alarm system user will be assessed a fee for signaling of a false alarm by a robbery alarm system in excess of two (2) false alarms in the preceding 12-month period. This fee will be two hundred dollars ($200.00) for each such false alarm.

(4) *Emergency medical assistance alarms.* An alarm system user will be assessed a fee for the signaling of a false alarm by an emergency medical assistance alarm system in excess of two (2) false alarms in the preceding twelve (12) months. This fee will be seventy-five dollars ($75.00) for each such false alarm.

(5) *Panic/distress alarms.* An alarm system user will be assessed a fee for the signaling of a false alarm by an emergency assistance/personal distress alarm system in excess of two (2) false alarms in the preceding twelve (12) month period. This fee will be seventy-five dollars ($75.00) for each such false alarm.

(c) *Response required.*

(1) An alarm system user shall respond to the alarm site within thirty (30) minutes after receiving a request from a member of the police department or the fire department to grant access to the site and deactivate the alarm if necessary.

(2) Police and fire personnel may silence or disarm an alarm system by any means necessary if a key holder fails to respond within thirty (30) minutes.

(d) *Appeals.* Upon notice of a false alarm and the assessed fee invoice, if applicable, a responsible party may appeal the city's decision to consider the alarm notification to be false pursuant to this article, by filing a written appeal to the alarm administrator within five (5) business days of receipt of the city's written notification. An appeal filed pursuant to this section must specifically state the basis of the responsible party's challenge to the city's determination of the false alarm as defined in this article. The alarm administrator will make a determination in writing within five (5) business days of receipt of the appeal. The determination of the alarm administrator may be appealed to the police chief if an appeal is made in writing to the police chief within five (5) business days of receipt of the alarm administrator's findings. The decision of the police chief is final.
(Ord. No. 2016-3-13, § II, 3-14-16)

Secs. 11-228—11-245. Reserved.

ARTICLE VII. COIN-OPERATED MACHINES*

DIVISION 1. GENERALLY

Sec. 11-246. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Coin-operated machine means every machine or device of any kind or character which is operated by or with coins, or metal slugs, tokens or checks. "Music coin-operated machines" and "skill or pleasure coin-operated machines," as those terms are defined in this section, shall be included in such terms. This term does not include billiard tables.

Music coin-operated machine means every coin-operated machine of any kind or character, which dispenses or vends or which is used or operated for dispensing or vending music and which is operated by or with coins or metal slugs, tokens or checks. The following are expressly included within such term: phonographs, pianos, graphophones, and all other coin-operated machines which dispense or vend music.

Operator means any person, firm, company, association or corporation having possession of or who exhibits or displays in his or its place of business or upon premises under his or its control, any coin-operated machine in this city.

Service coin-operated machine means every pay toilet, pay telephone and all other machines or devices which dispense service only and not music, merchandise, skill or pleasure.

Skill or pleasure coin-operated machine means every coin-operated machine of any kind or character whatsoever, when such machine dispenses or is used or is capable of being used or operated for amusement or pleasure or when such machine is operated for the purpose of dispensing or affording skill or pleasure, or for any other purpose other than the dispensing or vending of merchandise or music or service exclusively. The following are expressly included within such term (skill or pleasure coin-operated machine): marble machines, marble table machines, marble shooting machines, miniature racetrack machines, miniature football machines, miniature golf machines, miniature bowling machines, and all other coin-operated machines which dispense or afford skill or pleasure. Provided that every machine or device of any kind or character which dispenses or vends merchandise, commodities or confections or plays music in connection with or in addition to such games or dispensing of skill or pleasure, shall be considered as skill or pleasure machines.
(Ord. No. 82-4-19, § 2, 4-12-82)

Sec. 11-247. Penalties.

Any person violating any of the provisions of this article shall, upon conviction of the violation, be deemed guilty of a misdemeanor and shall be punished as provided in section 1-4.
(Ord. No. 82-4-19, § 21, 4-12-82)

*__State law references__—Texas Amusement Machine Commission, Vernon's Ann. Civ. St., art. 4413(41); coin-operated services, Vernon's Ann. Civ. St., art. 8801 et seq.

Sec. 11-248. Existing laws; violations not authorized.

Nothing in this article shall be construed or have the effect to license, permit, authorize or legalize any machine, device, table, or coin-operated machine, the keeping, exhibition, operation, display or maintenance of which is now illegal or in violation of any ordinance of the city, article of the Penal Code of this state, or the constitution of this state.
(Ord. No. 82-4-19, § 22, 4-12-82)

Secs. 11-249, 11-250. Reserved.

Editor's note—Ord. No. 90-8-10, § I, adopted Aug. 13, 1990, in part repealed §§ 11-249 and 11-250, which pertained to requirement and fees for manufacturing, buying, selling, etc., machines and exemptions therefrom, respectively, and derived from Ord. No. 82-4-19, §§ 19, 20, adopted Apr. 12, 1982.

Sec. 11-251. Responsibility of operator.

An operator under this article shall not permit any of the following activities within the premises:

(1) The sale, purchase, possession or consumption of any alcoholic beverage, as the same is defined by the Texas Alcoholic Beverage Code, unless the premises is licensed under the provisions of such code and the ordinances of the city for the sale, purchase, possession or consumption of alcoholic beverages;

(2) The operation by any student of a public or private elementary or secondary school during school hours on days in which schools in the Plano Independent School District are in regular session.

(Ord. No. 82-4-19, § 14, 4-12-82; Ord. No. 90-8-10, § III, 8-13-90)

Sec. 11-252. Sign to be affixed to each machine.

An operator under this article shall affix and prominently display on each coin-operated machine under his control a sign which shall read: "Play by any elementary or secondary school student during school hours is prohibited. Violations are subject to a maximum fine of $500.00."
(Ord. No. 82-4-19, § 15, 4-12-82; Ord. No. 90-8-10, § III, 8-13-90)

Sec. 11-253. Machines prohibited near school building, etc.

No skill or pleasure coin-operated machines shall be permitted to be placed within three hundred (300) feet of any church, school or hospital in this city.
(Ord. No. 82-4-19, § 18, 4-12-82)

Secs. 11-254—11-265. Reserved.

DIVISIONS 2, 3. RESERVED*

Secs. 11-266—11-299. Reserved.

ARTICLE VIII. SPECIAL EVENTS†

DIVISION 1. GENERALLY

Sec. 11-300. Purpose and conflicting ordinances.

Gatherings or organized activities, due to their size and requirements, may place unique demands on public resources or pose a danger to public health, safety and/or welfare. In order to plan for these demands on public resources and to ensure that public health and safety is protected, it is necessary that the city receive advance notice of these events. The provisions of this division are intended to address those concerns and are not intended to place unnecessary burden on any individual's right to association or freedom of expression. In the case of conflict between requirements of this article and other provisions of the City Code of the City of Plano, this article controls.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-301. Definitions.

Amusement ride is as defined in V.T.C.A. Occupations Code, § 2151.002, as amended.

Applicant means a person who has filed an application for a special event permit.

Approval team means an inter-departmental team of city departments that regulate, permit and/or host special events in the City of Plano.

City means the City of Plano, Texas.

City street means any thoroughfare or public driveway, other than an alley and more than twenty-two (22) feet in width, which has been dedicated or deeded to the public for public use, but does not include a private street.

Event organizer means the person, persons, or agency responsible for a gathering that requires a special event permit per this article. Typically the point of contact for the event. The event organizer may also be the applicant, but the two (2) are not always synonymous.

Parade/distance event means any assembly, march, run, walk, demonstration, or procession upon city streets consisting of one hundred (100) or more persons, animals, or vehicles with an intent of attracting public attention and that is reasonably likely to interfere with the normal flow or regulation of traffic upon city streets.

Person means a natural person (an individual), corporation, company, association, partnership, firm, limited liability company, joint venture, joint stock company or association, and other such entity who owns or controls events.

Private, non-permitted event means any event within the official city boundary limits of Plano, Texas, that does not meet the requirements of a special event and:

(1) The event organizer requests the use of city-owned or provided resources, including personnel and equipment; and

*__Editor's note—__Ord. No. 90-8-10, §§ I, II, adopted Aug. 13, 1990, repealed §§ 11-266—11-274 and 11-286—11-289, the substantive provisions of former Divs. 2 and 3 of this article, respectively, which pertained to permits and occupation tax for owners, operators, etc., of coin-operated machines and derived from Ord. No. 82-4-19, §§ 3—13, 16 and 17, adopted Apr. 12, 1982.

†__Editor's note—__Ord. No. 2020-6-3, § I, adopted June 8, 2020, repealed the former article VIII, §§ 11-300—11-302, 11-311—11-318, 11-331—11-345, 11-347—11-351, 11-356—11-359, and 11-361, and enacted a new article VIII. Ord. No. 2020-6-3 set out provisions intended for use as §§ 11-300—11-368. To preserve the style of this Code, and at the editor's discretion, these provisions have been included as §§ 11-300—11-359. The former article VIII pertained to similar subject matter and derived from Ord. No. 2006-5-9, adopted May 8, 2006; Ord. No. 2007-2-16, adopted February 26, 2007; Ord. No. 2010-10-14, adopted October 11, 2010; and Ord. No. 2011-10-14, adopted October 24, 2011.

(2) City staff, in partnership with the event organizer, determines that five (5) or more city personnel from the police and/or fire-rescue department or that specifically trained personnel (e.g. SWAT, bomb technicians, tactical medics, etc.) in any number from the police and/or fire-rescue departments are necessary for the event.

Private sidewalk means a private paved area between the curb line or edge of pavement of the roadway and the adjacent property lines for the use of pedestrians. A private sidewalk may be encumbered with a public-access easement.

Private street means a private vehicular access way shared by and serving two (2) or more lots, which is not dedicated to the public and is not publicly maintained, but may be encumbered with a public-access easement. Private streets and alleys may be established only under the terms of the subdivision ordinance. The term "private street" shall be inclusive of alleys.

Public sidewalk means a paved area in a roadway right-of-way between the curb line or edge of pavement of the roadway and the adjacent property lines for the use of pedestrians.

Special event means an event that is not a private, non-permitted event and:

(1) Is reasonably expected to have one hundred (100) or more attendees per day at a city facility outside of the facility's normal, daily, and intended use; or

(2) Impacts city property, a city street, or other city public right-of-way in a manner that requires dedicated city resources to maintain public safety other than as permitted under chapter 19, article V, street and thoroughfare closures; or

(3) Is temporary, is reasonably expected to have one hundred (100) or more attendees per day; and

a. Is inconsistent with the permanent use to which the property (public or private) may legally be used or zoned, or the occupancy levels permitted on the property; and

b. Includes one (1) of the following: set up of temporary structures including, but not limited to, tents, stages, fence, amusement rides; use of sound amplification equipment such that the sound is plainly audible on private property or for fifty (50) feet or more onto public property; or provision of food and/or beverages, including alcohol.

Special event application means the document filled out completely by the applicant, submitted to the special event coordinator, and initially reviewed by the approval team.

Special event coordinator means a city staff person who will act as the applicant's point of contact for the approval team and will assist the applicant with the process for a private, non-permitted event or to obtain a special event permit.

Special event impact area means the geographic area surrounding a special event venue that is subject to the restrictions in section 11-313.

Special event permit means the document given to the applicant when all the requirements deemed necessary by the approval team have been met and the event is authorized to take place as outlined in the document.

Unified commander means in events involving multiple jurisdictions, a single jurisdiction with multiagency involvement, or multiple jurisdictions with multiagency involvement, unified commander allows agencies with different legal, geographic, and functional authorities and responsibilities to work together effectively without affecting individual agency authority, responsibility, or accountability. For most events this would be a representative of the police department or fire department.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-302. Application of article; exceptions.

(a) All special events, except for those set forth in subsection (b), must conform to all applicable provisions of this article.

(b) The following are exempt from the provisions of this article unless otherwise required per city ordinance; i.e., sign and/or health permit:

(1) Block parties as defined in chapter 19, article V, division 2.

(2) Motorcades which comply with all traffic laws.

(3) Parades held on Type F and Type G thoroughfares as defined in the Street Design Standards.

(4) Events which are authorized under a separate agreement or permit issued by the city.

(5) Spontaneous events for which an attendee or event organizer cannot provide the level of advance notice required by this article, such as an event occasioned by recent news or current affairs, that is conducted solely on city right-of-way or parkland. A spontaneous event is subject to other law. To help ensure public safety, an organizer of a spontaneous event is not required to, but is encouraged to notify the Plano Police Department of the date, time, place, and an estimate of the approximate number of persons who will be participating.

(c) *Special exceptions.* Portions of the public streets and public sidewalks within the city are located and managed by management associations comprised of property and business owners including but not limited to Legacy Association, Historic Downtown Plano Association (HDPA), Granite Properties, and Heritage Creekside Development. Events proposed in these locations must have written permission from the governance association for the proposed event before applying for a special event permit.
(Ord. No. 2020-6-3, § I, 6-8-20; Ord. No. 2023-9-16, § IV, 9-11-23)

Sec. 11-303. Approval team.

(a) The approval team shall review special event applications for special event permits; and shall approve or deny applications in compliance with this section.

(b) In carrying out its duties, the approval team may:

(1) Impose reasonable conditions on the event based on public health, safety and welfare;

(2) Coordinate the special event permit issuance or authorizations with other city departments;

(3) Require additional permits dependent on the nature and activities of the event;

(4) Adopt rules governing the administration and enforcement of this section, including the application process, the application requirements and provisions for inter-departmental review.

(c) The approval team may establish a special event impact area in the geographic area surrounding a special event.
(Ord. No. 2020-6-3, § I, 6-8-20)

Secs. 11-304—11-306. Reserved.

DIVISION 2. PERMIT

Sec. 11-307. Permit required.

(a) It shall be unlawful for any person to conduct a special event without first having obtained a special event permit.

(b) It shall be unlawful for any person in charge of, or responsible for the conduct of, a special event to knowingly fail to comply with any condition of the special event permit.

(c) A special event permit is non-transferrable and non-refundable.

(d) As a condition of a special event permit, the applicant or a person who represents the applicant shall:

(1) Provide access to a special event venue for city staff with inspection and enforcement duties related to the special event;

(2) Be present at all times during the operating hours for the special event;

(3) Provide the special events coordinator with the contact information for an individual who is responsible for set-up and take-down of the special event;

(4) Ensure compliance with all applicable ordinances, regulations, rules, and the special event permit;

(5) Accept all notices of violation, citations and closure orders.

(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-308. Application for permit.

(a) A person seeking a special event permit shall file a special event permit application with the city's arts, culture and heritage division.

(b) A special event application will be designated into one (1) of four (4) levels:

(1) A level 1 event has a reasonably estimated attendance of twenty-five thousand one (25,001) or greater per day.

(2) A level 2 event has a reasonably estimated attendance of ten thousand one (10,001)—twenty-five thousand (25,000) per day.

(3) A level 3 event has a reasonably estimated attendance of two thousand five hundred one (2,501)—ten thousand (10,000) per day.

(4) A level 4 event has a reasonably estimated attendance of one hundred (100)—two thousand five hundred (2,500) per day.

(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-309. Filing period and procedure for review and issuance of permit.

(a) *Special event application deadlines.*

(1) Level 1 event application must be submitted nine (9) months before the event.

(2) Level 2 event application must be submitted six (6) months before the event.

(3) Level 3 event application must be submitted ninety (90) days before the event.

(4) Level 4 event application must be submitted sixty (60) days before the event.

(5) Filming application deadline is stated in section 11-358.

(b) A special event application may not be filed more than thirteen (13) months in advance of the intended event date.

(c) *Procedure for review of special event application.*

(1) Upon receipt of the application, the approval team will review the application to determine if the applicant may proceed in planning the event as proposed in the special event application, based upon the requirements of this article.

(2) If the approval team determines that the applicant may proceed, a special event checklist will be provided to the applicant indicating the notice to proceed, additional event planning information needed, requirements needed for the proposed event, and applicable deadlines. While completing the special event checklist, the special event coordinator will engage in an interactive process with the applicant.

(3) The special event checklist must be completed at least ten (10) days before the event date. A special event permit cannot be issued until the checklist is complete. Once the special event checklist is complete, a special event permit will be issued and must be signed by the special event coordinator and the applicant or their designee.

(4) A special event permit may be revoked in whole or in part if the event set-up does not pass all required inspections.

(d) The city acknowledges certain events are unforeseeable and time-sensitive due to being in response to another happening and may not be able to wait sixty (60) days. The approval team will review these exceptions and determine if the city can accommodate the event.

(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-310. Submittal requirements.

The special event application for a special event permit shall include:

(1) The name and description of the event.

(2) Anticipated attendance for each day of the event, as well as throughout the duration of the event.

(3) The date(s) and time(s) the event will start and terminate.

a. The event start and termination times shall include all set-up and clean-up times.

b. If the event involves any road closure, provide the specific times that the roadways will be shutdown, along with a list of specifically effected roadways.

(4) The name, address and telephone number of the applicant and any other main event organizers.

(5) Proposed event map including, but not limited to, event site, map of streets and pedestrian ways, tents/tent area, food/vendor area, stage/structures, restroom area, amusement rides, fencing.

(6) Detailed information concerning activities, public safety planning, and emergency preparedness for the special event, including:

a. The number of bands or other musical units.

b. The number of theatrical performances.

c. The proposed size, location, and orientation of loudspeakers.

d. The ancillary activities that will be associated with the event.

e. Description of any activities that could have an environmental impact.

f. The types of non-emergency vehicles to be used for the event.

g. Food and/or beverages, including alcohol.

h. The proposed location of portable sanitation facilities (including handwashing facilities, if applicable).

i. The proposed location of all trash containers.

j. Provision for queuing event attendees on streets, sidewalks, or other city rights-of-way.

k. Other equipment or services necessary to conduct the event with due regard to public health, safety, and the environment.

(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-311. Standards for issuance of permit.

The approval team may deny or revoke a special event permit if:

(1) The event will unnecessarily interrupt the safe and orderly movement of traffic near its location, route or special event impact area.

(2) The event will require the diversion of so great a number of public safety officers to properly ensure safety of the event locale or line of movement and the adjacent areas as to diminish normal protection for the city and/or emergency response capabilities.

(3) The event will interfere with the movement of authorized emergency vehicles in route to an emergency or if the concentration of people, animals, and vehicles at assembly points will unduly interfere with proper fire and police protection to areas near such assembly points.

(4) In the case of a parade/distance event, the event cannot be scheduled to move from its point of origin to its point of termination without unreasonable delays in route.

(5) The event provides insufficient crowd control and safety measures.

(6) The event provides insufficient safety, health, or portable sanitation equip-

ment, services, or facilities that are reasonably necessary to ensure that the event will be conducted with due regard for health and safety.

(7) The event will conflict in time, location, and/or city resources with another event for which a permit has already been granted.

(8) The applicant fails to complete all required items on the special event checklist prior to the ten (10) day deadline.

(9) The applicant fails to comply with or the event will violate an ordinance of the city or any other applicable law.

(10) The applicant makes or permits the making of a false or misleading statement or omission of material fact on the special event application.

(11) The applicant has been convicted of violating this article or has had a permit revoked within the preceding twelve (12) months.

(12) The applicant fails to provide proof of a license or permit required by this or another city ordinance or by state law.

(13) The applicant fails to comply with a condition of the special event permit.

(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-312. Appeal of denial or revocation.

Denial of an application for a special event permit by the approval team or the imposition of costs, additional restrictions or conditions upon the granting of a special event permit may be appealed to the city manager, or his/her designee. Such appeal shall be in writing and shall be filed with the city manager's office within five (5) business days after the issuance of a decision by the approval team. When making a determination regarding the appeal, the city manager, or his/her designee, shall consider the appeal under the standards provided in this article and sustain or overrule the approval team's decision. The decision of the city manager, or his/her designee, shall be issued within five (5) business days and shall be final.

(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-313. Special event impact area.

(a) In the interests of public health, safety, and welfare, the approval team may designate a special event impact area that surrounds a special event. If a special event impact area is designated, the approval team may limit the number of permits, applications and/or approvals within the special event impact area.

(b) The approval team will set the duration and boundaries of a special event impact area:

(1) Consulting with the effected city departments and public agencies; and

(2) Balancing the needs of the special event with public health, safety and welfare.

(c) A business or property, including a licensed vendor, located within the area of the special event impact area will not be required to seek additional permits in order to conduct its business in a manner consistent with its existing permits and the zoning ordinance.

(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-314. Duration of permit.

The permit granted under the terms of this article shall not exceed a period of fourteen (14) days. The approval team may modify this time limitation above upon review of location of the event, time of the event, type of event, safety of the event, and proximity to residential properties.

(Ord. No. 2020-6-3, § I, 6-8-20)

Secs. 11-315—11-318. Reserved.

DIVISION 3. SPECIAL PROVISIONS

Sec. 11-319. Americans with disabilities.

Americans with Disabilities Act (ADA) compliance plan is required by federal law for any event being held on public property or which is

open to the public. Refer to the ADA Planning Guide for Making Temporary Events Accessible to People with Disabilities for guidelines.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-320. Applicant parking requirements.

Applicant shall submit evidence that sufficient parking has been provided to accommodate the projected number of users with a ten (10) percent surplus. If parking is to be on private property adjacent to the event, or when off-site private parking will be used, a written permission letter from the property owner allowing the parking shall be submitted. When the location is not an established parking area, a plan shall be submitted which shows how the needed parking will be achieved and arranged. The number of parking spaces and layout of parking area, including aisle widths and size of parking spaces, shall be included in the submittal. Plans shall be submitted which will show how off-site parking and transfer of attendees will be accomplished. Such parking shall otherwise comply with all city ordinances and regulations.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-321. City authority over parking.

The city shall have authority, when reasonably necessary as determined by the police department, to prohibit or restrict the parking of vehicles along a city street or highway or part thereof adjacent to the site of the special event. The city shall post signs or markings to such effect, and it shall be unlawful for any person to park or leave unattended any vehicle in violation thereof.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-322. Trailers.

Trailers or other vehicles may be temporarily occupied as living quarters at the site of permitted special events and may be parked on an unpaved surface, with approval of the temporary occupation and place of parking from the approval team. Such vehicles and trailers shall be parked a minimum of three hundred (300) feet from any residential district. Such vehicles shall otherwise comply with all city ordinances and regulations.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-323. Amusement.

Amusement rides shall conform to the statutory rules and regulations set forth in the V.T.C.A. Occupations Code, Ch. 2151, regulation of amusement rides, designated the Amusement Ride Safety Inspection and Insurance Act, as amended. Copies of inspection reports will be required, as well as copies of the approved state inspection form, issued inspection stickers, and proof of insurance of the vendor providing the amusement(s). Amusement rides in enclosed areas greater than one thousand (1,000) square feet are required to have fire sprinklers.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-324. Hours of operation.

A special event may be conducted only between the hours of 7:00 a.m. and 10:00 p.m. Sunday—Thursday and 7:00 a.m. and 11:00 p.m. Friday—Saturday. The approval team may alter the hours limitation upon review of location of the event, time of the event, type of the event, safety of the event and proximity to residential properties. Appeals of time limit restrictions may be according to section 11-312 hereof. Set-up of the event shall be allowed prior to 7:00 a.m., provided the noise generated by such activity will not disturb surrounding neighborhoods.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-325. Tents and temporary structures.

Any special event which includes the use of a tent, canopy, or temporary structure shall meet the requirements in the fire code except that a separate permit is not required when a special event permit has been obtained. Fire lanes for emergency equipment must be allotted for and the site prepared in a manner so as not to be a fire hazard as determined by the fire chief, or his/her designee.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-326. Food and alcohol service.

Where food or alcohol service is provided, said operation shall be in compliance with all applicable provisions of Chapter 9, Food Code and Texas Alcohol and Beverage Commission (TABC) regulations as well as all other applicable state and local laws.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-327. Sanitary facilities.

A sufficient number of portable type sanitary facilities must be provided on the premises as determined necessary by the director of environmental health and sustainability or their designee using standards as established by the Portable Sanitation Association International (PSAI). Americans with Disabilities Act Title II, Chapter 5 includes additional requirements for handicap facilities.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-328. Animals.

Waste from animals used in a special event shall be removed daily from the grounds. Should animals be kept within the city limits at night, they shall be kept not less than three hundred (300) feet from any occupied residential or commercial uses. The applicant shall provide cleanup for animals at the conclusion of the event.
(Ord. No. 2020-6-3, § I, 6-8-20)

Cross reference—Chapter 4, article VIII, section 4-122.

Sec. 11-329. Water usage and disposal of waste water.

(a) Any special event desiring use of water from the city water system must coordinate with the utility operations department to obtain a temporary meter. Deposit for the meter and payment for water used shall be in accordance with ordinances of the City of Plano.

(b) Applicant shall submit a plan for the disposal of waste water, including capture and containment, and shall be approved by the department of environmental health and sustainability. All water generated must be disposed of through an approved sanitary sewage system that is constructed, maintained, and operated according to law.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-330. Trash disposal.

Trash disposal containers must be provided on-site for all special events. Applicants utilizing commercial dumpsters should make arrangements for the provision of such dumpsters with a commercial solid waste disposal company.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-331. Loudspeakers and noise.

When loudspeakers, or any other amplifying device, are to be used in conjunction with the event, the location and orientation of these devices shall be indicated on the event site map along with the planned hours of use.

Speakers which are positioned so as not to adversely affect an adjacent residential district may be used per hours of operation above, when a special event permit has been obtained.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-332. Signage.

Signage used in accordance with the event shall comply with the sign regulations of the City of Plano under the provisions for special event and promotional signage, chapter 6, article XII, division 3, section 6-496. All special event signage promoting the event before the event date must also be approved by the approval team to ensure that the signage will not conflict with another activity at the location.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-333. Alcohol.

(a) It is the responsibility of the applicant to ensure that if alcoholic beverages will be possessed and consumed during a special event, that they have obtained all necessary property owners' approval for such possession and use.

(b) For special events requiring a permit from the Texas Alcoholic Beverage Commission (TABC), a copy of the state permit shall be required prior to the issuance of a special event permit.

(c) Host liquor liability insurance must be added to the event's certificate of insurance and submitted to the city before a special event permit will be issued.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-334. Inspections.

Inspections may be required to show compliance with city ordinances. Submitting an application for a special event permit indicates permission for the city to enter the property onto which the special event will occur at reasonable times to conduct inspections.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-335. Direction of traffic.

Traffic control and direction upon city rights-of-way shall be allowed only by a Plano police officer or other sworn law enforcement officer. Traffic control and direction by private citizens is prohibited.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-336. Police protection.

When the presence of law enforcement officers is necessary for special events as determined by the approval team, the applicant shall be responsible for reimbursing the city for the cost of providing police personnel. The cost for city provided police personnel shall be the actual cost for the services provided. Actual cost shall include salary, overtime, and any equipment usage costs. There is a minimum four (4) hour cost per officer. City estimated cost must be paid to the city before permit issuance.

(1) Event considerations used to determine the number of law enforcement officers include, but are not limited to:

a. General traffic conditions in the area requested, both vehicular and pedestrian, as well as the proximity of the event to mass transit and roadways.

b. Route to be taken, if the event is a parade or distance event.

c. Duration of the event.

d. Whether all or any portion of a roadway will be closed.

e. Reasonably expected amount of people who will attend.

f. Uses adjacent to the event such as residential or commercial areas.

g. Time and date of the event.

h. Alcoholic beverages available for consumption at the event.

i. Fireworks and/or other pyrotechnics at the event.

j. Physical security features of the location and the need for safety zones (firework launch area, balloon/helicopter launch or landing area, etc.).

k. Criminal intelligence regarding the risk and threat level associated with the event.

l. Potential presence of dignitaries and/or media personnel.

m. Ease with which public safety resources can access all portions of the venue during the event taking into consideration the layout and concentration of people within the venue.

n. Whether this event or similar events have resulted in a need for crowd control in other cities or in the past in the City of Plano.

(2) All reasonable alternative routes, times, and locations will be considered so as to offer the applicant the option that will provide the lowest costs consistent with the general public's health, safety and welfare.

(3) The supervising police officer at a special event may, at his or her discretion, reduce the number of peace officers posted at a special event.

(4) The applicant or event organizer shall not be required to provide or pay for the cost of city personnel who are present to

protect event attendees from counter-demonstrators or members of the public who are hostile to the event.

(5) If approved by the approval team, an applicant may hire private security for personal safety or property security during a special event to supplement the services provide by the City of Plano Police Department.

Private security employed must:

a. Be in uniform.

b. Be able to contact city police, fire or emergency medical services, if necessary.

c. Remain on-site during the special event.

d. Be licensed by the State of Texas.

e. Not consume an alcoholic beverage.

(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-337. Fire safety.

In addition to local law and fire code, any use of fireworks or pyrotechnic displays shall require proof of application for a state permit prior to issuance of a special event permit.

(1) An applicant shall comply with all applicable International Fire Code requirements as adopted and amended in title 25 (land development code) including, but not limited to:

a. Fire lanes and public safety access.

b. Tents and temporary membrane structures.

c. Fireworks, pyrotechnics, open flames.

d. Theatrical flame or laser performances.

e. Occupant loads, exiting and egress.

f. Use of decorative materials and finishes.

g. Use, location, storage of propane or other fuel type equipment.

h. Crowd management.

(2) When the presence of fire personnel is necessary for the event as determined by the approval team, the applicant is responsible for reimbursing the city for the cost of providing fire personnel. The cost for city fire personnel shall be the actual costs for the services provided. Actual costs shall include salary, overtime, and any equipment usage costs. There is a minimum four (4) hour cost per firefighter. City estimated cost must be paid to the city before permit issuance. The city will consider the following in determining the estimated cost:

a. Weather conditions, such as burn bans, thunderstorms, etc.

b. Number of food tents.

c. Occupant loads, exiting and egress.

d. Location of the event.

(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-338. Medical personnel.

When the presence of City of Plano fire personnel is necessary for special events as determined by the approval team, the applicant shall be responsible for reimbursing the city for the cost of providing fire personnel. The cost for city-provided medical personnel shall be the actual cost for the services provided. Actual cost shall include salary, overtime, and any equipment usage costs. There is a minimum four (4) hour cost per personnel. City estimated cost must be paid to the city before permit issuance.

(1) Event considerations used to determine the number of fire personnel include, but are not limited to:

a. Weather conditions, such as extreme hot or cold, etc.

b. Alcohol consumption.

c. Duration of the event.

d. Animal interactions.

e. Participant activity, such as a parade or distance event.

f. Time of day.

g. Whether this event or similar events have resulted in a need for enhanced medical personnel in other cities or in the past in the City of Plano.

(2) If approved by the approval team, an applicant may hire private medical providers, including licensed medical providers that are not employed by the city, for medical support for a special event to supplement the services provided by the City of Plano Fire Department.

(3) Unless otherwise directed by the City of Plano Fire Department, only medical service responders employed by the city may respond to 911 requests within a special event or provide medical transport from a special event.

(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-339. Emergency cancellations and delays.

The incident or unified commander will consult with the event organizer when circumstances such as weather or other threats may affect the event and suggest it should be canceled or delayed. The incident or unified commander will have the ultimate authority to cancel or delay any event in furtherance of public safety.
(Ord. No. 2020-6-3, § I, 6-8-20)

Secs. 11-340—11-342. Reserved.

DIVISION 4. INSURANCE, INDEMNIFICATION, SURETY BOND AND COSTS

Sec. 11-343. Insurance for special events.

(a) The applicant must possess or obtain insurance to protect the city against loss from liability imposed by law for damages on account of bodily injury and property damage arising from the special event that impacts or occurs on city property, including city facilities and city streets, city sidewalks and other right-of-way.

(b) The insurance shall name the city, the city council and its members, the city's agents, officers, directors and employees as additional insured under the commercial general liability policy, including coverage for city with respect to liability arising out of the completed operations.

(c) The applicant is responsible for any expense incurred by the city for clean-up or remediation of environmental pollution or hazards resulting from the special event.

(d) Failure to maintain insurance immediately preceding, during the special event, and until the conclusion of the permit period is grounds to revoke the special event permit.

(e) The city will determine the necessary amount of insurance.

(f) The insurance required by this section is not a substitute for insurance requirements that may be imposed by other city permits.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-344. Indemnification.

An applicant who applies for a special event permit must execute a written agreement to indemnify and defend the city and its officers and employees against all claims, including but not limited to injury or damage to persons or property, whether public or private, arising out of alleged willful or negligent acts or omissions of the applicant, its officers, agents, or employees in connection with the special event.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-345. Bond required.

(a) The applicant may be required to post a surety bond in the assurance that the city property is cleaned and returned to the original condition prior to the event. A bond shall be required when any of the following exists:

(1) The event is held over a period of two (2) or more days at any location.

(2) The event requires any type of excavation to assemble any type of equipment (tents, amusement rides, etc.).

(3) The event has an anticipated attendance of five thousand (5,000) persons or more.

(b) The risk manager or his/her designee shall determine whether a bond is required. Appeals shall be heard as set forth in section 11-312.

(c) The surety bond shall be returned to the applicant within ten (10) days after said permit expires upon certification by the risk manager that all conditions of this article have been complied with.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-346. Fees/costs.

(a) Issuance of a special event permit or the approval of a special event permit application does not obligate or require the city to provide services, equipment, or personnel in support of an event.

(b) If the city provides services, equipment, or personnel in support of a special event, the city will charge the applicant the actual cost of:

(1) The wages or salaries for personnel involved in traffic control, event security, fire safety, medical safety, waste management, and other facility or event support.

(2) The use of city equipment, city-contracted services, and other non-personnel expenses.

(3) Any clean-up activity directly related to the special event, not provided by the applicant, that is required to restore the area to the same condition that existed prior to the special event.

(c) The city may also charge any other fees set by separate ordinance to recover costs associated with special events.
(Ord. No. 2020-6-3, § I, 6-8-20)

Secs. 11-347, 11-348. Reserved.

DIVISION 5. OFFENSES AND PENALTY

Sec. 11-349. Offenses and penalty.

(a) A person who violates a provision of this article or a requirement or condition of a special event permit is guilty of a separate offense for each day or part of a day during which the violation is committed or continued.

(b) For offenses punishable by a fine not to exceed five hundred dollars ($500.00), a culpable mental state is not required for the commission of an offense under this article.

(c) Each offense is punishable by fine not to exceed:

(1) Two thousand dollars ($2,000.00) for a violation of a provision of this article or a requirement or condition of a special event permit governing fire safety, zoning, or public health and sanitation, including dumping of refuse.

(2) Five hundred dollars ($500.00) for all other violations of this article or requirement or condition of a special event permit.
(Ord. No. 2020-6-3, § I, 6-8-20)

Secs. 11-350, 11-351. Reserved.

DIVISION 6. PRIVATE NON-PERMITTED EVENTS

Sec. 11-352. Private non-permitted events.

(a) Private, non-permitted events must comply with requirements of all other applicable local regulations, including but not limited to, health and sanitation, animal services and noise regulations.

(b) Extra-duty requests are smaller scale, private events where event organizers request city personnel to assist with their event (e.g., a police officer for general security at a party or an emergency medical technician for potential medical assistance at a 5K) in a manner that does not meet the definition of a private, non-permitted event.

(c) The event organizer for private, non-permitted events and for extra-duty requests must agree to reimburse the city for all off-duty personnel costs necessary for the event at each employee's overtime rate of pay and for any chargeable city equipment used during the event.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-353. Standards for private, non-permitted events.

(a) When the city receives a request for personnel and/or equipment consistent with this policy from an event organizer, police and fire-rescue staff will develop a staffing and operational plan to ensure the safety of the event. Police and fire-rescue staff will arrange for personnel and/or equipment from any other needed city department.

(b) Police and/or fire-rescue staff will present the plan to the event organizer along with estimated costs. The event organizer shall pay the estimated costs before the event.

(c) After the event, police and/or fire-rescue staff will present a final invoice for the event with all billable personnel and equipment costs. Any difference from the estimate will be reconciled with the event organizer. Billable costs include:

(1) Personnel costs include the following:

a. Overtime rates of pay for all city personnel who work the event in addition to or outside of their regular duty hours.

b. Regular rates of pay for city personnel who work the event during their regular duty hours.

(2) Estimated equipment costs for all billable city equipment used during the event and requested by the event organizer and charged by individual departments.

(d) If a private, non-permitted event organizer should refuse to pay for billable personnel or equipment costs prior to the event occurring, the primary objective of the city is to ensure public safety. Police and fire-rescue staff will deploy regular, on-duty resources as available to ensure public safety. However, no resources may be deployed if police and fire-rescue staff determine there to be no public safety concern.

(e) If a private, non-permitted event organizer should refuse to pay for billable personnel or equipment costs after the event begins or concludes and the city has provided services, the city may pursue criminal and civil remedies as appropriate.
(Ord. No. 2020-6-3, § I, 6-8-20)

Secs. 11-354, 11-355. Reserved.

DIVISION 7. FILMING

Sec. 11-356. Filming.

The film ordinance is intended for promoting economic development activity within Plano and the vicinity of the city, and to protect the personal and property rights of Plano, Texas residents and businesses, and to promote public health, safety and welfare. The approval team reserves the right to impose additional regulations in the interest of public health, safety and welfare, or if otherwise deemed appropriate by the approval team.

This is intended to cover requests for commercial use of city-owned property (including but not limited to city streets, rights-of-way, parks, and/or public buildings), commercial use of private property which may affect adjacent public or private property, and the use of city equipment and personnel in all types of motion picture production, including, but not limited to, feature films, television programs, commercials, music videos, student filmmaking and corporate films.
(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-357. Permit.

A film permit is subject to a modified approval process. All affected city departments will be contacted for approval once a film permit application is received by the special event coordinator. A film permit applicant is required to follow the same certificate of insurance and indemnification regulations as the special event permit.

(1) If the production will include any of the following, a film permit must be obtained:

a. Impacts a city right-of-way (streets, sidewalks, etc.).

b. Occurs on city owned property.

c. Requires traffic control measures (barricades, lane closures, etc.).

d. Involves firearms or simulated firearms.

e. Involves pyrotechnics.

f. Involves dangerous stunts.

(2) It shall be unlawful for any person to conduct filming without first having obtained a permit from the approval team.

(3) A film permit is non-transferrable.

(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-358. Filing period.

A film permit application must be filed to be considered:

(1) *Commercials or episodic television.* A minimum of two (2) business days prior to the commencement of filming or any substantial activity related to the project.

(2) *Feature films.* A minimum of five (5) business days prior to the commencement of filming or any substantial activity related to the project.

(Ord. No. 2020-6-3, § I, 6-8-20)

Sec. 11-359. Submittal requirements.

(a) Title of the project and type of production.

(b) Proposed filming location(s).

(c) Date and times of being on location and filming period.

(d) Production company, address, phone number, and point of contact.

(e) Contact information of the location manager.

(f) Production schedule.

(g) Number of people involved and number and type of vehicles.

(h) Anticipated city resources needed.

(i) A site map.

(j) Public areas in which the public will be restricted.

(k) Describe any alterations to public property.

(l) Any other information that the city shall find necessary under the standards for issuance. (Ord. No. 2020-6-3, § I, 6-8-20)

Secs. 11-360, 11-361. Reserved.

ARTICLE IX. REGULATED PROPERTY

Sec. 11-362. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Authorized vendor means a commercial supplier who deals in the wholesale distribution of regulated property in the ordinary course of business.

Business day means any calendar day or portion thereof during which a dealer has the business open and is conducting business with the public.

Business machines means and includes a typewriter, adding machine, check-writing device, cash register, calculator, or addressing machine, or letter-sorting or folding device, or an item of recording, copying, or accounting equipment. The term does not include office furniture or fixtures.

Crafted precious metals means and includes, but is not limited to, jewelry, silverware, art objects, or any other thing or object made, in whole or in part, from gold, silver, platinum, palladium, iridium, rhodium, osmium, ruthenium, or their alloys, excluding coins and commemorative medallions. The term does not include crafted precious metals when used by licensed dental and/or medical professionals.

Dealer means a person who buys regulated property for the purpose of resale. "Dealer" shall include the owner or operator of a business.

Jewelry means ornaments made of precious or semi-precious metals and/or set with gems, including, but not limited to, gems removed from a mounting.

Manufacturer means the person, enterprise, or entity that produces the regulated property.

Peace officer means a sheriff or deputy, constable or deputy constable, sworn police officer commissioned by the city, or rangers and officers commissioned by the public safety commission and the director of the department of public safety.

Personal identification card means an identification card issued by the Texas Department of Public Safety under section 521.101 of the Texas Transportation Code, formerly known as Article 6687b, section 14A, V.T.C.A.

Power tools means any tool or piece of equipment that is powered by electricity, batteries, or fuel of any kind, including, but not limited to, pneumatic equipment.

Purchase means a transaction in which a person takes title to regulated property in exchange for valuable consideration.

Regulated property means any new or used:

(1) Electronic equipment;

(2) Business machines;

(3) Photographic equipment;

(4) Power tools;

(5) Musical instruments;

(6) Firearms;

(7) Jewelry;

(8) Crafted precious metals;

(9) Compact discs and cassette tapes; or

(10) Recreational sporting goods and equipment.

(Ord. No. 96-6-15, § I, 6-10-96; Ord. No. 97-5-6, § I, 5-12-97)

Sec. 11-363. Regulated property purchases; records.

A dealer who purchases regulated property for the purpose of resale shall [have the following duties]:

(1) Keep a sales record which indicates the manufacturer or authorized vendor from which the regulated property was purchased and a description of the property purchased, including the make, model, serial number, color, and size.

(2) If the regulated property was purchased from a person or entity other than a manufacturer or authorized vendor, the dealer shall:

a. At the time of purchase, record in a legible manner the time and date of purchase, the name, sex, race, date of birth, height, address, driver's license number or personal identification card number of the seller, a description of the regulated property purchased, including the make, model, manufacturer, serial number, color, and size, and the price paid or other consideration exchanged for the regulated property purchased;

b. At the time of purchase, determine that the photograph on the driver's license or personal identification card is a photograph of the seller, and make and retain a photocopy of the driver's license or personal identification card;

c. At the time of purchase, have the seller sign a written statement provided by the dealer that states that the person is the legal owner of, or is lawfully entitled to sell, the regulated property offered for sale;

d. Retain possession of the regulated property purchased and withhold the property from resale for ten (10) business days unless, at the time of sale, the dealer obtains the name, address, and description of the buyer of the regulated property and retains such information for inspection by a police officer;

e. Make the purchased regulated property available for inspection by any police officer during regular business hours while the regulated property is in the dealer's possession; and

f. Cause:

1. Each lot, sack, barrel, box or other container of regulated property purchased to be kept intact and have written or stamped in a conspicuous place either on the container thereof or, if no container, tagged to each individual article, the serial number of the report made as set out in subparagraph (2)a. of this section, which number shall at all times be kept plain and legible;

2. Each article purchased to be kept intact and have attached thereto on the container thereof or, if no container, on the individual article, the serial number of the report made as set out in subparagraph (2)a. of this section, which number shall at all times be kept plain and legible.

(3) Maintain on file the information required by subparagraphs (1) and (2) for two (2) years from the date of purchase or until the item is sold, whichever occurs later. This file shall be maintained at the dealer's place of business and shall be made available for inspection by any police officer during regular business hours.

(Ord. No. 96-6-15, § I, 6-10-96)

Sec. 11-364. Offenses.

A dealer commits an offense if he intentionally or knowingly;

(1) Violates any provision contained in section 11-363 of this article;

(2) Fails to retain possession of regulated property and/or withhold the regulated property from resale for ten (10) business days unless, at the time of sale, the dealer obtains the name, address, and description of the buyer of the regulated property and retains such information for inspection by a police officer;

(3) Offers for sale or sells regulated property purchased for resale for which he does not have:

a. A sales record indicating the manufacturer or authorized vendor from which it was purchased and a description of the regulated property purchased, including the make, model, serial number, color and size;

b. A record of the name, sex, race, date of birth, height, address, and driver's license or personal identification card number of the seller from whom he purchased the regulated property;

c. A written statement signed by the seller that the seller is the legal owner of, or is lawfully entitled to sell, the regulated property offered for sale;

d. A record of the person to whom he sells the regulated property, including subsections (3)a., (3)b., and (3)c. of this section, and the price paid or other consideration exchanged for the regulated property purchased and/or sold;

(4) Fails or refuses to produce for inspection by a police officer when requested at a reasonable time:

a. The original and/or copies of records required by section 11-363 of this article with respect to a particular item of regulated property; or

b. The regulated property to which the record required by section 11-363 of this article relates;

(5) Purchases for resale, offers for sale, or sells regulated property which has had the manufacturer's identification number or any other identifying mark removed, defaced, or altered.

(Ord. No. 96-6-15, § I, 6-10-96)

Sec. 11-365. Exemptions.

The following types of property are exempt from the provisions of the foregoing sections concerning recordkeeping requirements for regulated property purchases:

(1) Regulated property that is donated to a nonprofit/charitable organization;

(2) Regulated property that is sold and/or purchased at a judicially ordered sale or estate sale; or

(3) Regulated property that is sold by federal, state or local governments.

(Ord. No. 96-6-15, § I, 6-10-96)

ARTICLE X. GARAGE/OCCASIONAL SALES

Sec. 11-366. Definitions.

[For the purposes of this article, the following words, terms and phrases shall have the meanings herein set out.]

Garage/occasional sale: Offering for sale of personal and/or household property belonging to or in the possession of the person conducting the sale. Said sales shall include "yard sale", "patio sale", "plant sale", "sample sale", "rummage sale", "flea market", "estate sale", or any similar casual sale of tangible personal property, which is advertised by any means whereby the public at large is or can be made aware of such sale.

Permit: Written authorization from the building inspector for the City of Plano or his/her designee allowing a garage/occasional sale.

Resident: Person who has a residence within the city limits of Plano, Texas.

(Ord. No. 99-11-16, § I, 11-8-99)

Sec. 11-367. Regulations; permits.

(a) Garage/occasional sales are authorized only in compliance with this section. Sales may only occur after the building inspections department of the city has issued a permit to conduct the sale.

(b) Permits will only be issued to individuals who are residents of Plano.

(c) The permit to conduct the sale must be displayed on the premises the entire duration of the sale.

(d) The permit must contain the name and address of the person conducting the sale.

(e) No more than three (3) garage/occasional sales shall be conducted at the same address in any calendar year, and no resident shall conduct more than three (3) garage/occasional sales within a calendar year.

(f) No garage/occasional sale shall exceed seventy-two (72) consecutive hours in duration, and at least five (5) business days shall elapse between consecutive garage/occasional sales.
(Ord. No. 99-11-16, § I, 11-8-99)

Sec. 11-368. Signage.

(a) All signs used to advertise the garage/occasional sale must comply with the sign ordinance requirements of the city.

(b) All signs advertising the sale must be removed within twelve (12) hours of completion of the permitted sale.
(Ord. No. 99-11-16, § I, 11-8-99)

ARTICLE XI. METAL RECYCLING BUSINESS REGULATIONS

DIVISION 1. GENERALLY

Sec. 11-369. Definitions.

The following words and phrases, when used in this article, shall have the meanings ascribed to them by this section:

Aluminum material means a product made from aluminum, an aluminum alloy, or an aluminum by-product. The term includes aluminum wiring and an aluminum beer keg but does not include another type of aluminum can used to contain a food or beverage.

Applicant means an individual, corporation, partnership, sole proprietorship or other business entity in whose name a license has been issued under this article or on the application for a metal recycling license.

Chief means the Chief of police for the City of Plano or a designated representative.

Historical marker means a plaque installed recognizing districts, sites, individuals, events, structures, and objects significant in Texas or American history, architecture, archeology, or culture.

Hold notice means written notification by the Chief to a metal recycling entity stating that the metal recycling entity may not sell, redeem, or dispose of certain regulated material that the Chief has reasonable suspicion to believe has been stolen.

Licensee means a person in whose name a license has been issued under this article or a person listed as an applicant on the application for a license.

Metal recycling entity means any person who:

(A) Is engaged in the business or purchasing, collecting, or soliciting regulated materials as defined in section 11-369; or

(B) Operates or maintains a facility where regulated material is purchased or kept for shipment, sale, transfer, or salvage.

Passport means a passport issued by the United States government or issued by another country and recognized by the United States government.

Personal identification document means a valid driver's license issued by a state in the United States; a United States military identification card; or a personal identification card issued by the Texas Department of Public Safety under V.T.C.A., Texas Transportation Code ch. 521, subch. E, as amended, or a similar card or certificate issued by another state.

Purchase transaction means a transaction in which a metal recycling entity gives cash, goods, or services in exchange for regulated material.

Regulated material means:

(a) Aluminum material;

(b) Bronze material;

(c) Copper or brass material; and

(d) Regulated metal as defined in this section.

Regulated metal means:

(a) Manhole covers;

(b) Guardrails;

(c) Metal cylinders designed to contain compressed air, oxygen, gases, or liquids;

(d) Beer kegs made from metal other than aluminum;

(e) Historical markers or cemetery vases, receptacles, or memorials made from metal other than aluminum;

(f) Unused rebar;

(g) Street signs;

(h) Drain gates;

(i) Safes;

(j) Catalytic converters

(k) Communication, transmission, and service wire or cable;

(l) Condensing or evaporator coils for heating or air conditioning units;

(m) Utility structures, including the fixtures and hardware;

(n) Aluminum or stainless steel containers designed to hold propane for fueling forklifts; and

(o) Metal railroad equipment, including tie plates, signal houses, control boxes, signs, signals, traffic devices, traffic control devices, traffic control signals, switch plates, e-clips, and rail tie functions.

Seller means any person who, in a purchase transaction, receives cash, goods or services from a metal recycling entity in exchange for regulated materials.
(Ord. No. 2009-3-7, § I, 3-9-09)

Sec. 11-370. Exceptions.

This article does not apply to:

(1) A purchase of regulated material from a public utility or a manufacturing, industrial, commercial, retail, or other seller that sells regulated material in the ordinary course of the seller's business;

(2) A purchase of regulated material by a manufacturer whose primary business is the manufacture of iron and steel products made from melting scrap iron and scrap steel;

(3) The transport or hauling of recyclable materials to or from the metal recycling entity; or

(4) The transport, hauling or purchase of aluminum material used to contain food or beverages.
(Ord. No. 2009-3-7, § I, 3-9-09)

DIVISION 2. RECORD KEEPING, REGULATIONS AND NOTICE

Sec. 11-371. Records required.

(a) A metal recycling entity shall maintain an accurate and legible record of each purchase transaction. Each transaction must be recorded and filed separately.

(b) The record of each purchase transaction must be in English and contain the following information:

(1) The name and street address of the metal recycling entity;

(2) The name or initials of the individual recording the information required by this section for the metal recycling entity;

(3) The seller's name, street address, sex, and birth date and the identifying number from the seller's driver's license issued by

a state in the United States, United States military identification card, personal identification certificate, or a passport;

(4) The make, model, and license plate number of the motor vehicle and any trailer attached to the motor vehicle in which the regulated material is delivered in a purchase transaction;

(5) The place, date and time of the purchase transaction;

(6) The weight, quantity, or volume and a description, made in accordance with the custom of the trade, of the regulated material purchased;

(7) A general description of the predominant types of regulated material purchased in the purchase transaction;

(8) The amount of consideration given in a purchase transaction for the regulated material;

(9) Written documentation evidencing that the seller is the legal owner or is lawfully entitled to sell the regulated material, or a signed statement from the seller affirming a legal right of ownership and the right to sign over title to the regulated material offered for sale;

(10) A clear digital still photograph or a videotape of the seller, taken at the time of the purchase transaction, that clearly depicts the seller's facial features;

(c) A person selling or attempting to sell regulated materials to a metal recycling entity shall:

(1) Display to the metal recycling entity the person's driver's license issued by a state in the United States, United States military identification card, personal identification certificate, or a passport; and

(2) Sign a written statement provided by the metal recycling entity affirming that the person is the legal owner of or is lawfully entitled to sell the regulated material offered for sale.

(d) The metal recycling entity or the recycler's agent shall make a copy of the identification to be maintained by the metal recycling entity in the record of the purchase transaction.

(e) A metal recycling entity shall maintain on file the information required by this section for not less than one (1) year after the date of the purchase transaction. A metal recycling entity shall make these records available for inspection by any police officer, upon request, at the metal recycling entity's place of business during the usual and customary business hours of the metal recycling entity pursuant to this code and according to the provisions of V.T.C.A., Texas Transportation Code ch. 1956, as amended from time to time.

(f) The recordkeeping requirements of this section do not apply to purchase transactions involving copper or brass material in excess of fifty (50) pounds, bronze material, and aluminum material in excess of forty (40) pounds.
(Ord. No. 2009-3-7, § I, 3-9-09)

Sec. 11-372. Notice to sellers.

(a) A metal recycling entity shall at all times maintain in a prominent place in the metal recycling entity's place of business, in open view to a seller of regulated material, a notice in two-inch lettering that:

(1) Contains the following or similar language approved by the Chief: "A PERSON ATTEMPTING TO SELL REGULATED MATERIAL AS DESCRIBED IN ORDINANCE NO. _____ MUST PRESENT SUFFICIENT IDENTIFICATION REQUIRED BY CITY OF PLANO ORDINANCE"; and

(b) The notice required by this section may be contained on a sign that contains another notice required by law to be displayed by the metal recycling entity.
(Ord. No. 2009-3-7, § I, 3-9-09)

Sec. 11-373. Facsimile, telecopier, or similar equipment required.

A metal recycling entity shall maintain at its place of business, or otherwise have immediate

access to, a facsimile, telecopier or other equipment of similar function on which notifications of stolen material or other notifications relating to regulated material may be received from the police department within twenty-four (24) hours of transmittal. The metal recycling entity shall maintain the facsimile number or other access number of the equipment on file with the Chief and shall notify the Chief within twenty-four (24) hours after any change in the number.
(Ord. No. 2009-3-7, § I, 3-9-09)

Sec. 11-374. Restrictions on the purchase of regulated material.

(a) A metal recycling entity shall conduct all purchase transactions only between the hours of 7:00 a.m. and 9:00 p.m.

(b) A metal recycling entity shall not purchase any item of regulated material from an intoxicated person.

(c) A metal recycling entity shall not purchase any items of regulated material as defined in section 11-369 without obtaining proof that the seller owns the material (such as by a receipt or bill of sale) or proof that the seller is an employee, agent, or contractor of a governmental entity, utility company, cemetery, railroad, manufacturer, or other person, business, or entity owning the material and the seller is authorized to sell the item of regulated material on behalf of the person, business, or entity owning the material.

(d) A metal recycling entity shall maintain on file the information required by subsection (c) for not less that one (1) year after the date of the purchase of the item of regulated material. A metal recycling entity shall make these records available for inspection by any police officer, upon request, at the metal recycling entity's place of business during the usual and customary business hours of the metal recycling entity.
(Ord. No. 2009-3-7, § I, 3-9-09)

Sec. 11-375. Hold on regulated material; segregation, labeling, and inspection of regulated material; exceptions.

(a) A metal recycling entity shall retain possession of purchased regulated material at the metal recycling entity's local place of business and withhold the material from alteration, processing, resale, or salvage use for seventy-two (72) hours after purchase, unless the material is released sooner by written order of the Chief or by order of a court of competent jurisdiction.

(b) A metal recycling entity shall segregate all regulated material purchased from a seller from regulated material purchased from other sellers and attach to the material, or to the container in which the material is held, a label indicating the name of the seller, the date on which the material was purchased, and the number of the receipt on which the purchase information is recorded. If in any single purchase transaction there are multiple items of regulated material of the same general type, only one (1) representative item from each type of regulated material must be segregated and labeled in accordance with this subsection.

(c) While in possession of purchased regulated material, a metal recycling entity shall make the material available for inspection by any police officer at the metal recycling entity's place of business during the usual and customary business hours of the metal recycling entity.
(Ord. No. 2009-3-7, § I, 3-9-09)

Sec. 11-376. Hold on stolen regulated material; hold notice.

(a) Whenever a police officer has reasonable suspicion to believe that certain items of regulated material in the possession of a metal recycling entity are stolen, the Chief may issue a hold notice. The hold notice must:

(1) Identify those items of regulated material alleged to be stolen and subject to hold; and

(2) Inform the metal recycling entity of the restrictions imposed on the regulated material under subsection (b).

(b) A metal recycling entity may not, for sixty (60) days after the date of receiving a hold notice under this section, process or remove from the metal recycling entity's place of business any regulated material identified in the hold notice unless that material is released sooner by the Chief or by order of a court of competent jurisdic-

tion. At the expiration of the hold period, the hold is automatically released, and the metal recycling entity may dispose of the regulated material unless otherwise directed by a court of competent jurisdiction.

(c) This section does not apply to items of regulated metal property composed solely of the following: copper or brass material in excess of fifty (50) pounds, bronze material, and aluminum material in excess of forty (40) pounds.
(Ord. No. 2009-3-7, § I, 3-9-09)

DIVISION 3. LICENSING OF METAL RECYCLING ENTITY

Sec. 11-377. License required.

(a) An application for a license must be made on a form provided by the Chief. Each applicant must be qualified according to the provisions of this article.

(b) A person who wishes to purchase regulated material for resale or salvage use must sign the application as applicant. If the person is a legal entity, including but not limited to a corporation, partnership, association, or joint venture, each individual who has a twenty (20) percent or greater interest in the business must sign the application for a license as an applicant. Each applicant must meet the requirements of section 11-378 and each applicant will be considered a licensee if a license is granted.

(c) It is a defense to prosecution under this section that, at the time of the alleged offense, the person was purchasing regulated material for resale or salvage use under the specific authority of a valid license issued by the state (other than a certificate of registration issued under V.T.C.A., Occupations Code ch. 1956, as amended) or the United States government. A license must still be obtained under this section for those activities conducted by a metal recycling entity that are not specifically authorized by a state or federal license.
(Ord. No. 2009-3-7, § I, 3-9-09)

Sec. 11-378. Issuance of license.

(a) The annual fee for a license issued under this article is two hundred forty five and no/100 dollars ($245.00). Each license will expire one (1) year from the date of issuance and may be renewed only by making an application as provided in this section. An application for renewal shall be made at least thirty (30) days before the expiration date.

(b) The Chief shall issue a license to an applicant within thirty (30) days after receipt of an application unless it is determined that one (1) or more of the following is true:

(1) An applicant is under eighteen (18) years of age.

(2) An applicant failed to answer or falsely answered a question or request for information on the application form provided.

(3) An applicant has received a final conviction or deferred disposition of two (2) or more offenses under this article, other than the offense of conducting business as a metal recycling entity without a license, within two (2) years immediately preceding the application. An appeal of a conviction or being placed on deferred disposition does not stay or waive the 30-day timeframe.

(4) An applicant has not obtained a certificate of occupancy for the premises in which the applicant intends to do business, or the business or its location would otherwise be in violation of the Building Code adopted under the City of Plano Code of Ordinances or any other applicable City ordinance or state or federal law.

(5) The license fee required by this article has not been paid.

(6) An applicant has been convicted of a felony or a Class A misdemeanor involving theft or fraud, including but not limited to theft, robbery, burglary, forgery, criminal simulation, deceptive business practices, securing execution of document by deception, or any other similar state or federal criminal offense and three (3) years have

not elapsed since the termination of any sentence, parole, or probation; the fact that a conviction is being appealed has no effect. If three (3) years have elapsed, the Chief shall, in accordance with V.T.C.A., Occupations Code § 53.023, as amended, determine the present fitness of the applicant to be licensed from the information and evidence presented with the application.

(7) An applicant has been convicted of an offense under any federal or state law providing recordkeeping, or licensing requirements for persons purchasing or selling regulated material, and three (3) years have not elapsed since the termination of any sentence, parole, or probation. The fact that a conviction is being appealed has no effect.

(c) The license, if granted must state on its face the name of the person or persons to whom it is granted, the expiration date, and the address of the premises for which the license is granted. A license issued pursuant to this article is valid only for the location stated in the application. Should any licensee move a place of business from the place stated on the license to a new location, the licensee shall give the Chief prior written notice and present the license to the Chief to have the change of location noted on the license.

(d) A license must be posted in a conspicuous place at or near the entrance to the licensed premises so that it may be easily read at any time.

(e) If the Chief determines that issuance or renewal of a license should be denied, the Chief shall send to the applicant or licensee by certified mail, return receipt requested, a written statement of the reasons for the denial and of the applicant or licensee's right to appeal.
(Ord. No. 2009-3-7, § I, 3-9-09)

Sec. 11-379. Suspension.

(a) The Chief may suspend a license for a definite period of time, not exceeding thirty (30) days, if the Chief determines that a licensee:

(1) Was convicted, in the aggregate, of two (2) or more violations of this article within any six-month period after the issuance of a metal recycling license; or

(2) Intentionally or knowingly impeded or refused to allow an inspection by the Chief authorized under this article.

(b) The Chief shall send to the licensee by certified mail, return receipt requested, a written statement of the reasons for the suspension, the date the suspension is to begin, and the duration of the suspension.

(c) A licensee whose license is suspended may not operate as a metal recycling entity inside the City of Plano during the period of suspension.
(Ord. No. 2009-3-7, § I, 3-9-09)

Sec. 11-380. Revocation.

(a) The Chief shall revoke a license if it is determined that one (1) or more of the following is true:

(1) A licensee has given a false statement as to a material matter in the application process.

(2) A licensee has been convicted within a two-year period of three (3) or more offenses under this article.

(3) A licensee has been convicted of any felony or of a Class A misdemeanor involving theft or fraud, including but not limited to theft, robbery, burglary, forgery, criminal simulations, deceptive business practices, securing execution of document by deception, or any other similar state or federal criminal offense, and three (3) years have not elapsed since the termination of any sentence, parole, or probation. The fact that a conviction is being appealed has no effect.

(4) A licensee has been convicted of an offense under any federal or state law providing recordkeeping or licensing requirements for persons purchasing or selling regulated material, and three (3) years have not elapsed since the termination of any sentence, parole, or probation. The fact that a conviction is being appealed has no effect.

(5) The license has been suspended at least once within the preceding twelve (12) months.

(b) The Chief shall send to the licensee by certified mail, return receipt requested, a written statement of the reasons for the revocation and of the licensee's right to appeal.

(c) When the Chief revokes a license, the revocation will continue for one (1) year, and the licensee may not be issued a license for one (1) year from the date revocation became final. If the Chief finds that the basis for the revocation action has been corrected or abated, the applicant may be granted a license if at least ninety (90) days have elapsed since the date the revocation became final. An applicant whose license was revoked under subsection (a)(3) or (a)(4), may not be granted another license within three (3) years of the termination of any sentence, parole, or probation.
(Ord. No. 2009-3-7, § I, 3-9-09)

Sec. 11-381. Appeal.

A licensee may appeal a decision to suspend or revoke a license by filing a written notice of appeal with the City Secretary within five (5) business days of receipt of the Chief's decision. A hearing will be held, and upon review and consideration of the information submitted by the licensee and the Chief or his designee, the City Council may uphold, modify, or reverse the decision. The City Council's decision is final.
(Ord. No. 2009-3-7, § I, 3-9-09)

Sec. 11-382. Transfer of license.

A licensee shall not:

(1) Transfer a license issued under this article to another; or

(2) Operate a business engaged in the purchase of regulated material for resale or salvage use under the authority of a license at any location other than the address designated in the license application.
(Ord. No. 2009-3-7, § I, 3-9-09)

Sec. 11-383. Reserved.

DIVISION 4. PENALTIES AND ENFORCEMENT PROVISIONS

Sec. 11-384. Offenses; affirmative defenses; penalty.

(a) A person commits an offense if, without a license issued under this article, he:

(1) Purchases regulated material in the City for resale or salvage use;

(2) Operates a business establishment in the City that represents or advertises to purchase regulated material for resale or salvage use; or

(3) In any other manner conducts business in the City as a metal recycling entity.

(b) A person who violates any provision of this article, or who fails to perform a duty required of him under this article, commits an offense. Any person, firm or corporation found to be violating any term or provision of this article, shall be subject to a fine in accordance with subsection 1-4(b) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(c) It is an affirmative defense to prosecution under this article that the regulated material involved:

(1) Was purchased from a charitable, philanthropic, religious, fraternal, civic, patriotic, social, or school-sponsored organization or association or from any organization that is exempt from taxation under Section 501(c)(3) of the Internal Revenue Code, as amended:

(2) Was purchased from any public officer acting in an official capacity as a trustee in bankruptcy, executor, administrator, or receiver; from any public official acting under judicial process or authority; or from a sale on the execution, or by virtue, of any process issued by a court;

(3) Consists of aluminum food or beverage containers, used food or beverage contain-

ers, or similar food or beverage containers for the purpose of recycling, other than beer or beverage kegs; or

(4) Was purchased from a manufacturing, industrial, or other commercial vendor that generates or sells regulated material in the ordinary course of its business.

(d) It is an affirmative defense to prosecution if a photograph of the seller, taken within the preceding six (6) months, was currently on file with the metal recycler and at the time of the purchase transaction the metal recycler or an employee of the recycler visually verified that the seller was actually the person depicted in the file photo.

(e) A person commits an offense if they knowingly engage in conduct contrary to this article. (Ord. No. 2009-3-7, § I, 3-9-09)

Chapter 12

MOTOR VEHICLES AND TRAFFIC*

Art. I.	**In General, §§ 12-1—12-30**
Art. II.	**Pedestrian Safety, §§ 12-31—12-50**
Art. III.	**Traffic-control Devices, §§ 12-51—12-70**
Art. IV.	**Speed, §§ 12-71—12-95**
Art. V.	**Stopping, Standing and Parking, §§ 12-96—12-130**
Art. VI.	**Commercial Vehicles, §§ 12-131—12-155**
Art. VII.	**Bicycles, §§ 12-156—12-190**
Art. VIII.	**Abandoned and Junked Vehicles, §§ 12-191—12-255**
	Div. 1. Abandoned Vehicles, §§ 12-191—12-204
	Div. 2. Junked Vehicles, §§ 12-205—12-255
Art. IX.	**Railroads, §§ 12-256—12-259**
Art. X.	**Reserved, §§ 12-260—12-269**
Art. XI.	**Motor Vehicle Idling, § 12-270**

*__Cross references—__Animals and fowl, Ch. 4; aviation, Ch. 5; fire prevention and protection, Ch. 8; parks and recreation, Ch. 15; police, Ch. 17; streets and sidewalks, Ch. 19; transportation advisory committee, § 2-201 et seq.; parking of vehicles at airport, § 5-32; house moving, § 6-151 et seq.; signs interfering with traffic, § 11-79; wreckers, § 11-201 et seq.

__State law references—__Municipal traffic regulations, Vernon's Ann. Civ. St., arts. 1175(20), 6701d, § 26 et seq.; traffic generally, Vernon's Ann. Civ. St., art. 6701d et seq.

ARTICLE I. IN GENERAL

Sec. 12-1. Short title.

This chapter shall be known and may be cited as the "Plano Traffic Code."
(Ord. of 7-13-64, § 16-1-1)

Sec. 12-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Access road means a roadway, frontage roadway, or service roadway designed to provide controlled access to a freeway.

Alley means any street having no legal or official name other than "alley" of twenty (20) feet or less in width.

Boat trailer means a trailer or semi-trailer which is designed and constructed to carry a sailboat, motorboat or other vessel used upon any body of water.

Bus means every motor vehicle designed for carrying more than ten (10) passengers and used for the transportation of persons, and every motor vehicle other than a taxicab, designed and used for the transportation of persons for compensation.

Business district means the territory contiguous to and including a highway when within any six hundred (600) feet along such highway there are buildings in use for business or industrial purposes, including but not limited to hotels, banks, or office buildings, railroad stations and public buildings which occupy at least three hundred (300) feet of frontage on one (1) side or three hundred (300) feet collectively on both sides of the highway.

Commercial motor vehicle means any motor vehicle designed or used for the transportation of property, not including a passenger automobile, panel delivery truck or pickup truck.

Controlled-access highway means as the term is defined in V.T.C.A. Transportation Code, Ch. 541.

Crosswalk means that part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highway measured from the curbs or, in the absence of curbs, from the edges of the traversable roadway. The word "crosswalk" also includes any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surfaces.

Curb means the edge of a roadway, marked or understood.

Driver means every person who drives or is in actual physical control of a vehicle.

Farm tractor means every motor vehicle designed and used primarily as a farm implement for drawing plows, mowing machines and other implements of husbandry.

Freeway means as the term is defined in V.T.C.A. Transportation Code, Ch. 541.

House trailer means a trailer or semi-trailer which is designed, constructed and equipped as a dwelling place, living abode or sleeping place (either permanently or temporarily) and is equipped for use as a conveyance on streets and highways, and shall include those vehicles commonly known as recreational vehicles.

Implement of husbandry means every vehicle designed and adapted for use as a farm implement, machinery or tool as used in tilling the soil, but shall not include any passenger car or truck.

Intersection means:

(1) The area embraced within the prolongation or connection of the lateral curb lines, or, if none, then the lateral boundary lines of the roadways of two (2) highways which join one another at, or approximately at, right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict.

(2) Where a highway includes two (2) roadways thirty (30) feet or more apart, then every crossing of each roadway of such divided highway by an intersecting

highway shall be regarded as a separate intersection. If such intersecting highway also includes two (2) roadways thirty (30) feet or more apart, then every crossing of two (2) roadways of such highways shall be regarded as a separate intersection.

(3) The junction of an alley with a street or highway shall not constitute an intersection.

(4) Notwithstanding the provisions of subsection (2) of this section, the city may, in matters of highway and traffic engineering design, consider the separate intersections of divided highways with medians thirty (30) feet wide or wider, as defined in subsection (2) of this section, as components of a single intersection.

Loiter means to linger or remain on a median for any purpose other than actively crossing a street or other roadway to reach a destination on the opposite side of the street.

Major thoroughfare means a roadway, divided or undivided, consisting of six (6) or more marked lanes.

Median means the intervening space, physical barrier, or clearly indicated dividing section between the two (2) roadways of opposing traffic on a public divided roadway, highway, or street.

Mobile home means a detached residential dwelling unit designed for transportation after fabrication on streets or highways on its own wheels or a flatbed or other trailer, and arriving at the site where it is to be occupied as a dwelling complete and ready for occupancy except for minor and incidental unpacking and assembly operations, location on jacks or other temporary or permanent foundations, connections to utilities, and the like. A house trailer or motor home is not to be considered a mobile home.

Motor home means every vehicle designed, constructed and equipped as a dwelling place, living abode or sleeping place (either permanently or temporarily) and equipped for use as a conveyance on streets and highways.

Motor vehicle means every vehicle which is self-propelled and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails.

Official traffic-control devices means all signs, signals, markings and devices not inconsistent with this chapter placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning or guiding traffic.

Operate or *operated* means a motor vehicle that is in transit with the engine on, including, but not limited to, while a vehicle is stopped in compliance with an official traffic control device.

Owner means a person who holds the legal title to a vehicle, or if a vehicle is the subject of an agreement for the conditional sale or lease thereof with the right of purchase upon performance of the conditions stated in the agreement, and an immediate right of possession vested in the conditional vendee or lessee, or if a mortgagor of a vehicle is entitled to possession, then such conditional vendee or lessee or mortgagor shall be deemed the owner for the purposes of this chapter.

Park, parking means the standing of a vehicle, whether occupied or not, other than temporarily for the purpose of and while actually engaged in loading or unloading merchandise or passengers.

Pedestrian means any person afoot.

Pole trailer means every vehicle without motive power designed to be drawn by another vehicle and attached to the towing vehicle by means of a reach, a pole, or by being boomed, or otherwise secured to the towing vehicle, and ordinarily used for transporting long or irregularly shaped loads such as poles, pipes, or structural members capable, generally, of sustaining themselves as beams between the supporting connections.

Police department means the police department of the city and shall apply to any traffic division or department thereof, established by the city, and to which specific traffic duties may be assigned, either as to those included in this chapter or in addition thereto.

Police officer means every officer of the police department or any officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

Private driveway means every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.

Public place means a place where people are assembled, or to which people commonly resort for purposes of business, amusement, recreation or other lawful purposes.

Railroad means a carrier of persons or property upon cars, other than streetcars, operated upon stationary rails.

Railroad train means a steam engine, electric motor or other motor, with or without cars coupled thereto, operated upon rails, except streetcars.

Residential district means the territory contiguous to and including a street not comprising a business district, when the property on such street, for a distance of three hundred (300) feet or more, is in the main improved with residences or residences and buildings in use for business.

Right-of-way means as the term is defined in V.T.C.A. Transportation Code, Ch. 541.

Roadway means as the term is defined in V.T.C.A. Transportation Code, Ch. 541.

Semitrailer means every vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle.

Special mobile equipment means every vehicle not designed or used primarily for the transportation of persons or property and only incidentally operated or moved over a highway, included but not limited to ditch digging apparatus, well-boring apparatus and road construction and maintenance machinery such as asphalt spreaders, bituminous mixers, bucket loaders, tractors other than truck tractors, ditchers, leveling graders, finishing machines, motor graders, road rollers, scarifies, earth moving carryalls and scrapers, power shovels and draglines, and self-propelled cranes and earth moving equipment. The term does not include house trailers, dump trucks, truck mounted transit mixers, cranes or shovels or other vehicles designed for the transportation of persons or property to which machinery has been attached.

Stand or *standing* means as the term is defined in V.T.C.A. Transportation Code, Ch. 541.

Traffic means pedestrians, ridden or herded animals, vehicles, streetcars and other conveyances, either singly or together, while using any street for purposes of travel.

Traffic-control device means any device, whether manually, electrically or mechanically operated, by which traffic is alternately directed to stop and permitted to proceed.

Trailer means every vehicle with or without motive power, other than a pole trailer, designed for carrying persons or property and for being drawn by a motor vehicle.

Truck means every motor vehicle designed, used or maintained primarily for the transportation of property.

Truck tractor means every motor vehicle designed and used primarily for drawing other vehicles and not so constructed as to carry a load other than a part of the weight of the vehicle and load so drawn.

Vehicle means every device, in, upon or by which any person or property is or may be transported or drawn upon a street, except devices used exclusively upon stationary rails or tracks. (Ord. of 7-13-64, § 16-1-2; Ord. No. 67-8-2, § 1, 8-14-67; Ord. No. 2016-2-7, § II, 2-22-16; Ord. No. 2022-6-12, § I, 6-27-22)

State law reference—Similar provisions, Vernon's Ann. Civ. St., art. 6701d, § 1 et seq.

Sec. 12-2.1. Compliance with chapter.

Except as otherwise provided in this chapter, any person violating a provision of this chapter shall be punished as provided in section 1-4.

Sec. 12-3. General duties of police department.

It shall be the duty of the police department to enforce the street traffic regulations of this city and all the state vehicle laws applicable to street traffic in this city, to make arrests for traffic violations, to investigate accidents and to cooperate with the city council and other officers of the city in the administration of the traffic laws and in developing ways and means to improve traffic conditions, and to carry out the duties specially imposed upon the department by this chapter and other traffic ordinances of the city.
(Ord. of 7-13-64, § 16-2-1)

Sec. 12-4. Authority of chief of police to make regulations.

The chief of police, by and with the approval of the city manager, is hereby empowered to make regulations necessary to make effective the provisions of this chapter and other traffic ordinances of this city, and to make and enforce temporary or experimental regulations to cover emergency or special conditions. No such temporary or experimental regulation shall remain in effect for more than ninety (90) days.
(Ord. of 7-13-64, § 16-2-9)

Sec. 12-5. Authority of police officers to direct traffic.

Officers of the police department or such officers as are assigned by the chief of police are hereby authorized to direct all traffic by voice, hand, or signal in conformance with this chapter and other traffic laws. In the event of a fire or other emergency, or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions may require, notwithstanding the provisions of this chapter and other traffic laws.
(Ord. of 7-13-64, § 16-3-1)

State law reference—Authority of city to regulate traffic by means of police officers, Vernon's Ann. Civ. St., art. 6701d, § 27(a)(2).

Sec. 12-6. Authority of officers of fire department to direct traffic.

Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.
(Ord. of 7-13-64, § 16-3-1)

Cross reference—Fire prevention and protection, Ch. 8.

Sec. 12-7. Permit for funeral processions and parades.

No funeral procession or parade, excepting the military forces of the United States, the military forces of this state and the forces of the police and fire departments, shall occupy, march or proceed along any street except in accordance with a permit issued by the chief of police.
(Ord. of 7-13-64, § 16-10-2)

Cross reference—Parade permits, § 19-112 et seq.

State law reference—Authority of city to regulate processions, Vernon's Ann. Civ. St., art. 6701d, § 27(a)(3).

Sec. 12-8. Disposition of fines and forfeitures.

All fines or forfeitures collected upon conviction or upon the forfeiture of bail of any person charged with a violation of any of the provisions of this chapter shall be paid into the city treasury and deposited in the general fund.
(Ord. of 7-13-64, § 16-3-11)

Sec. 12-9. Use of motor vehicles near developed property.

(a) It shall be unlawful for any person to operate or drive a motor vehicle on any vacant or unimproved property within six hundred (600) feet of any developed property, except on dedicated public streets and/or alleys.

(b) The provisions of this section shall not apply to maintenance vehicles owned by the city or a school, or contractors of the city, or a school engaged in authorized construction, repair, or maintenance work in any such above-named vacant or unimproved property.

Sec. 12-10. Clinging to vehicles from bicycles, roller skates, etc.

No person riding upon any bicycle, coaster, roller skates, sled or toy vehicle shall attach the same or himself to any streetcar or vehicle upon a roadway.
(Ord. of 7-13-64, § 16-12-6)

Sec. 12-11. School crossing guards.

(a) The school crossing guard criteria (referred to as "criteria" in this section), dated March, 1984, and recommended for adoption by the city manager are hereby approved and adopted as the city's guide for determining school crossing guard locations. A copy of such criteria is attached to the resolution from which this section is derived and made a part of this section for all purposes.

(b) The city manager shall conduct an analysis of all approved school crossing guard locations every three (3) years beginning in 1986. The results of such analysis and recommendations on retaining or eliminating school crossing guard locations will be presented to the city council for action.

(c) The following procedure setting forth steps for establishing new school crossing guard locations shall be applied to all requests received:

(1) Requests for new school crossing guard locations will be accepted only from the parent-teacher organization (PTO) of the school affected.

(2) All requests will be submitted in writing to the city manager who will cause an analysis to be conducted for such location and prepare recommendations based on the results of such analysis. No more than two (2) analyses per school year will be conducted at any one location.

(3) The analysis and recommendations will be submitted to the city council for action.

(d) The criteria shall be only a guide in determining and retaining school crossing guard locations and the decision of the city council shall be final in this and all related matters.

(e) The PTO submitting the written request may, if the requested location fails to meet the criteria, agree either to staff the location with volunteers from their organization or provide to the city total and complete funding for a crossing guard position and all associated expenses connected thereto. Such crossing guard shall be supervised by the city in accordance with the established procedures governing school crossing guards.

(f) Crossing guards will be placed at every approved location, however, annual budget considerations will determine the maximum number of manned school crossing guard locations. Nothing in this section shall be construed to mean that crossing guards will be required to be placed at every approved location.
(Res. No. 84-4-10(R), §§ I—VI, 4-9-84)

Sec. 12-12. One-way streets at all times.

(a) Whenever an ordinance of the city designates a one-way street, alley or highway the city engineer shall place and maintain signs giving notice thereof, and no such regulation shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where the movement of vehicular traffic in the opposite direction is prohibited.

(b) Upon those streets, alleys and highways, and parts of streets, alleys and highways, described and enumerated in this section, vehicular traffic shall move only in the direction indicated below:

Street	*Extent*	*Direction of Traffic*
15th Place	From its intersection with J Avenue on the west to its intersection with J Place on the east.	Easterly
Commonsgate Boulevard	On the undivided portion starting at a point 210 feet west of Preston Road.	Counterclockwise
F Avenue	From its intersection with 13th Street on the south to its intersection with 14th Street on the north	Northerly

Street	*Extent*	*Direction of Traffic*
J Avenue	From its intersection with 15th Street on the south to its intersection with 15th Place on the north.	Northerly
K Avenue	From a point approximately 770' south of the south curb line of 18th Street to its intersection with 10th Street	Southerly
L Avenue	From its intersection with 10th Street to its intersection with 15th Street	Northerly
Municipal Avenue	From its intersection with K Avenue north of 10th Street to its intersection with K Avenue just south of 18th Street	Northerly
Ruthie Road	From its intersection with Infinity Avenue to its intersection with Bozeman Drive	Northerly
President George Bush Freeway	Within city limits	Westerly
Central Expressway	Within city limits	Northerly
Central Expressway	Within city limits	Southerly

(Ord. No. 69-2-1(P), § 4, 2-10-69; Ord. No. 70-6-4, §§ 2, 4, 6-23-70; Ord. No. 73-4-4, § I, 4-23-73; Ord. No. 75-12-7, § I, 12-18-75; Ord. No. 84-11-5, § I, 11-12-84; Ord. No. 85-10-13, § I, 10-14-85; Ord. No. 89-6-12, § I, 6-12-89; Ord. No. 90-5-38, § I, 5-29-90; Ord. No. 93-7-7, § I, 7-12-93; Ord. No. 93-12-17, § I, 12-13-93; Ord. No. 93-12-21, § II, 12-13-93; Ord. No. 2001-8-22, § I, 8-27-01; Ord. No. 2004-2-9, § I, 2-9-04; Ord. No. 2007-8-6, § X, 8-13-07; Ord. No. 2011-7-6, § I, 7-25-11; Ord. No. 2013-10-18, § I, 10-28-13)

Sec. 12-13. One-way streets on school days.

(a) Whenever an ordinance of the city designates a one-way street, alley or highway on school days the city engineer shall place and maintain signs giving notice thereof and no such regulation shall be effective unless such signs are in place. Signs indicating lawful traffic movement shall be placed at every intersection where the movement of vehicular traffic in the opposite direction is prohibited.

(b) For the purposes of this section, the term "school days" shall mean each Monday through Friday throughout the calendar year when the Plano independent schools are in session.

(c) The following named roadways are hereby designated as one-way streets on school days during the times and in the direction specified below:

Street	*Extent*	*Direction of Traffic*	*Times*
Mollimar Drive	From its intersection with the alley west of Independence Parkway to its intersection with Regal Road	Southerly	7:15 a.m.—7:45 a.m. and 2:30 p.m.—3:20 p.m.
Silverstone Drive	From its intersection with Fountain Head Drive to its intersection with Cross Bend Road	Southerly	7:15 a.m.—7:45 a.m. and 2:30 p.m.—3:20 p.m.

(Ord. No. 75-4-5, § 1, 4-14-75; Ord. No. 77-11-5, § I, 11-14-77; Ord. No. 78-9-25, § I, 9-25-78; Ord. No. 79-9-36, § I, 9-25-79; Ord. No. 89-6-13, § I, 6-12-89; Ord. No. 2023-7-5, § I, 7-24-23)

Sec. 12-14. Public safety officers.

Public safety officers are hereby authorized to enforce parking regulations as assigned by the chief of police and to issue notices for parking violations under this chapter.
(Ord. No. 2015-1-15, § I, 1-26-15)

Secs. 12-15—12-30. Reserved.

ARTICLE II. PEDESTRIAN SAFETY

Sec. 12-31. Pedestrians on medians less than six feet in width and approaching a motor vehicle in operation on a major thoroughfare, freeway or access road.

(a) *Offenses.* It shall be an offense for a person to:

(1) Stand, sit, or loiter on a roadway median that measures less than six (6) feet, or

(2) Approach a motor vehicle being operated on a major thoroughfare, freeway or access road.

(b) *Defenses.* It shall be a defense to prosecution if the conduct prohibited by this subsection was by a person:

(1) Lawfully and actively crossing a divided roadway in the most direct route possible;

(2) Immediately and reasonably necessary to prevent bodily injury or death of any person;

(3) Receiving and/or rendering aid in an emergency situation;

(4) Performing work in the right-of-way in accordance with a permit issued under chapter 19 of this Code; or

(5) Performing work under city, state, or federal authority to protect the health, safety, or welfare of the community, including but not limited to: activities by police and fire departments; maintenance of roadways, utilities, and other public areas; and activities by city employees or its contractors performing work in the course and scope of their employment and pursuant to authorization from the city manager or designee.

(Ord. No. 2022-6-12, § II, 6-27-22)

Secs. 12-32—12-50. Reserved.

ARTICLE III. TRAFFIC-CONTROL DEVICES*

Sec. 12-51. Conformity with state manual and specifications.

All traffic-control signs, signals, and devices shall conform to the manual and specifications approved by the state department of highways and public transportation. All signs and signals required by this chapter for a particular purpose shall, so far as practicable, be uniform as to type and location throughout the city. All traffic-control devices so erected and not inconsistent with the provisions of state law or this chapter shall be official traffic-control devices.

(Ord. of 7-13-64, § 16-4-2)

State law reference—Similar provisions, Vernon's Ann. Civ. St., art. 6701d, § 31.

Sec. 12-52. Authority to place, erect and maintain devices.

Traffic-control devices are authorized, placed or erected as provided below:

(1) The traffic engineer shall be authorized to place and erect such traffic-control devices which he deems to be warranted in accordance with provisions or requirements of the "Manual of Uniform Traffic Control Devices" or as may be required by ordinances of the city.

(2) Traffic-control devices which are determined by the traffic engineer or the city council to be no longer needed for the safety or welfare of the citizens of the city may be caused to be removed by the traffic engineer.

(3) All traffic-control devices authorized, placed, or erected by the state department of highways and public transportation on state highways are adopted by the city council.

(Ord. of 7-13-64, § 16-4-1; Ord. No. 74-4-7, § 1, 4-8-74)

Sec. 12-53. Authority to test.

The city manager may test traffic-control devices under actual conditions of traffic.

(Ord. of 7-13-64, § 16-2-9)

Sec. 12-54. Designation of crosswalks and safety zones, marking traffic lanes.

The police department is hereby authorized:

(1) To designate and maintain, by appropriate devices, marks, or lines upon the

*__Cross reference—__Payment for traffic and street signs by developers, § 16-22.

State law references—Authority of city to regulate traffic by means of traffic-control devices, Vernon's Ann. Civ. St., art. 6701d, §§ 27(a)(2), 31; traffic signs, signals and markings generally, Vernon's Ann. Civ. St., art. 6701d, § 29 et seq.

surface of the roadway, crosswalks at intersections where, in its opinion, there is particular danger to pedestrians crossing the roadway, and at such other places as it may deem necessary;

(2) To establish safety zones of such kind and character and at such places as may be necessary for the protection of pedestrians;

(3) To mark lanes for traffic on street pavements at such places as it may deem advisable, consistent with this chapter and other traffic ordinances of the city.

(Ord. of 7-13-64, § 16-4-8)

Sec. 12-55. Ratification of existing devices.

All traffic-control signs, signals, devices, and markings placed or erected prior to the adoption of this Code and in use for the purpose of regulating, warning or guiding traffic are hereby affirmed, ratified and declared to be official traffic-control devices, provided such traffic-control devices are not inconsistent with the provisions of this chapter or state law.

Sec. 12-56. Unauthorized signs, signals, etc.

(a) No person shall place, maintain or display upon or in view of any street any unauthorized sign, signal, marking, or device which purports to be or is an imitation of or resembles an official traffic-control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal.

(b) No person shall place or maintain nor shall any public authority permit upon any street any traffic sign or signal bearing thereon any commercial advertising.

(c) This section shall not be deemed to prohibit the erection, upon private property adjacent to roadways, of signs giving useful directional information and of a type that cannot be mistaken for official signs.

(d) Every such prohibited sign, signal, or marking is hereby declared to be a public nuisance and the city may remove the same or cause it to be removed without notice.

(Ord. of 7-13-64, § 16-4-6)

State law reference—Similar provisions, Vernon's Ann. Civ. St., art. 6701d, § 36.

Secs. 12-57—12-70. Reserved.

ARTICLE IV. SPEED*

Sec. 12-71. Maximum limits generally.

(a) No person shall operate or drive any vehicle on any street within the city at a greater speed than thirty (30) miles per hour, except as otherwise specifically provided in this article.

(b) Notwithstanding any other provisions of this article, no person shall drive a vehicle on a street at a speed greater than is reasonable and prudent under the conditions and having regard to the actual and potential hazards then existing. In every event, speed shall be so controlled as may be necessary to avoid colliding with any person, vehicle or other conveyance on or entering the street in compliance with legal requirements and the duty of all persons to use due care.

(c) The driver of every vehicle shall, consistent with the requirements of paragraph (b), drive at an appropriate reduced speed when approaching and crossing an intersection or railway grade crossing, when approaching and going around a curve, when approaching a hillcrest, when traveling upon any narrow or winding roadway, and when special hazard exists with respect to pedestrians or other traffic or by reason of weather or highway conditions.

(Ord. of 7-13-64, § 16-5-1)

State law reference—Similar provisions, Vernon's Ann. Civ. St., art. 6701d, § 166.

*__State law reference—__Maximum speed of vehicles, authority of cities to alter prima facie speed limits established by state law, Vernon's Ann. Civ. St., art. 6701d, §§ 166, 169.

Sec. 12-72. Maximum limits in school zones—Generally.

(a) The city council may establish school traffic zones on any street or highway or any portion of any street or highway within the corporate limits of the city.

(b) When any school traffic zone has been established, it shall be unlawful for any person to operate a motor vehicle or any other vehicle in such zone at a speed greater than twenty (20) miles per hour, and any speed in excess of twenty (20) miles per hour shall be prima facie evidence that the speed is neither reasonable nor prudent. (Ord. No. 67-10-3, §§ 1, 3, 10-9-67)

Sec. 12-72.1. Same—Procedure for addition or deletion.

(a) Requests to add or delete school zones shall be reviewed by the transportation engineering division. The City of Plano School Area Traffic Control Guidelines will be used as a basis for the review. This document, developed and maintained by the transportation engineering division, addresses various school related traffic control issues including school zones.

(b) If the transportation engineering division review indicates the addition or deletion of a school zone is appropriate, a recommendation will be forwarded for city council consideration. (Res. No. 86-3-18(R), §§ I—V, 3-24-86; Ord. No. 2006-6-29, § I, 6-26-06)

Sec. 12-73. Same—Specific zones.

(a) *Definition of school days. School days,* as that term is used in this section, shall be each Monday through Friday on which classes are scheduled during the regular school year on the official calendar of the applicable school district. Each school zone listed in this section shall have the applicable school district calendar noted as follows: "(P)" indicates the Plano Independent School District and "(F)" indicates the Frisco Independent School District. "School days" shall not include days on which classes are not held.

(b) *Passing another vehicle in school zone prohibited when speed limit in effect.* It shall be unlawful for any person to drive or operate a vehicle, except on a roadway with four (4) or more marked traffic lanes, through a school zone as designated and established in this section between the hours specified in this section on school days in such a manner as to overtake and pass another vehicle being driven in the same direction upon the same street within the school zone.

(c) *Exceeding speed limit on streets in school zones prohibited.* It shall be unlawful for any person to drive or operate a vehicle on a public street or highway through the school zones designated in this section during the time periods designated in this section at a rate of speed in excess of the prima facie maximum speed limits designated in this section for such school zones.

(d) *School zones designated.* The following designated locations and areas are declared to be school zones and the prima facie maximum speed limit for all motor vehicles operated within such areas and locations on school days shall be twenty (20) miles per hour during the designated time periods. Such school zones are designed to serve a public or private institution of elementary or secondary education.

15th Street:

(1) Between a point two hundred (200) feet east of Highedge Drive and a point three hundred (300) feet west of Mill Valley Drive on school days between 7:00 a.m. and 9:15 a.m. and between 2:30 p.m. and 4:55 p.m. (P)

(Ord. No. 2014-11-14, § I, 11-24-14; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2022-2-5, § I, 2-14-22; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

17th Street:

(1) Between a point one hundred seventy-five (175) feet west of R Avenue and a point one hundred seventy-five (175) feet west of P Avenue on school days between 8:15 a.m. and 9:15 a.m. and between 4:10 p.m. and 4:55 p.m. (P)

(2) Between Rigsbee Drive and a point two hundred (200) feet west of Rigsbee Drive

on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P) (See also Janet Way)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

18th Street:

(1) Between Bristol Cove and a point two hundred (200) feet east of Dale Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(2) Between a point two hundred (200) feet east of N Avenue and a point two hundred twenty-five (225) feet west of M Avenue on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(3) Between a point six hundred (600) feet east of Red Bud Lane and a point two hundred (200) feet west of P Avenue on school days between 8:15 a.m. and 9:15 a.m. and between 4:10 p.m. and 4:55 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

19th Street:

(1) Between a point six hundred fifty (650) feet east of K Avenue and a point one hundred fifty (150) feet east of N Avenue on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Abbey Road:

(1) Between P Avenue and Sherwood Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2019-10-4, § I, 10-14-19; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Accent Drive:

(1) Between a point two hundred ten (210) feet south of Plano Parkway and a point nine hundred ninety (990) feet south of Plano Parkway on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 4:00 p.m. (Private)

(Ord. No. 2020-2-11, § I, 2-24-20; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Alma Drive:

(1) Between a point three hundred fifty (350) feet south of Baxter Drive and a point three hundred (300) feet north of Baxter Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(2) Between a point fifty (50) feet south of 15th Street and a point one hundred fifty (150) feet north of Janwood Drive on school days between 7:15 a.m. and 8:15 a.m. and between 2:30 p.m. and 4:00 p.m. (Private)

(Ord. No. 2008-3-8, § I, 3-25-08; Ord. No. 2008-5-6, § I, 5-12-08; Ord. No. 2010-8-6, §§ I, II, 8-9-10; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2023-7-6, § II, 7-24-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Archgate Drive:

(1) Between a point one thousand two hundred fifty (1,250) feet south of Alcove Lane and a point two hundred seventy-five (275) feet north of Alcove Lane on school days between 7:00 a.m. and 9:15 a.m. and between 2:30 p.m. and 4:55 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Baffin Bay Drive:

(1) Between a point one hundred seventy-five (175) feet west of Country Place Drive and a point one thousand forty (1,040) feet east of Country Place Drive

on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2014-11-14, § II, 11-24-14; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Bass Drive:

(1) Between Staghorn Drive and a point two hundred twenty-five (225) feet east of Slater Trail on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Baxter Drive:

(1) Between a point two hundred seventy-five (275) feet east of Alma Drive and a point two hundred fifty (250) feet west of Alma Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Blue Ridge Trail:

(1) Between Cumberland Trail and a point four hundred (400) feet north of California Trail on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Caravan Drive:

(1) Between Marchman Way and a point one hundred seventy-five (175) feet west of Lepage Place on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Channel Isle Drive:

(1) Between a point two hundred (200) feet east of Winding Hollow Lane and fifty (50) feet east of Cove Hollow Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Clark Parkway:

(1) Between a point one hundred twenty (120) feet north of Yeary Road and a point one hundred twenty-five (125) feet south of New Haven Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2012-8-7, §§ I, II, 8-13-12; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Cloverhaven Way:

(1) Between a point one hundred twenty-five (125) feet south of Danbury Lane and a point two hundred (200) feet south of Acropolis Way on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2012-8-7, §§ I, II, 8-13-12; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Coit Road:

(1) Between a point three hundred twenty-five (325) feet south of Denham Way and a point three hundred twenty-five (325) feet north of Denham Way on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(2) Between a point three hundred (300) feet north of Stonehaven Drive and a point four hundred (400) feet south of Stonehaven Drive on school days between 7:30 a.m. and 8:30 a.m. and between 3:30 p.m. and 4:15 p.m. (P)

(3) Between a point two hundred ninety (290) feet south of McDermott Road and a point two hundred forty (240) feet north of McDermott Road on school days between 7:45 a.m. and 8:45 a.m. and between 3:30 p.m. and 4:30 p.m. (F)

(Ord. No. 2007-9-25, § II, 9-24-07; Ord. No. 2011-8-4, §§ I, II, 8-8-11; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2019-10-5, § I, 10-14-19; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25; Ord. No. 2025-9-3, § I, 9-8-25)

Coldwater Creek Lane:

(1) Between a point seventy-five (75) feet west of Wheatfield Drive and a point one hundred seventy-five (175) feet east of Ruthridge Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Country Place Drive:

(1) Between a point one hundred (100) feet north of Papeete Drive and a point one hundred fifty (150) feet north of Faringdon Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(2) Between Lake Shore Lane and a point two hundred (200) feet south of Tree House Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Cross Bend Road:

(1) Between a point three hundred fifty (350) feet west of Roundrock Trail and a point one hundred (100) feet east of Timberlake Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(2) Between a point two hundred fifty (250) feet east of Wilshire Drive and a point four hundred twenty-five (425) feet west of Wilshire Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(3) Between a point three hundred fifty (350) feet east of Mission Ridge Road and a point three hundred fifty (350) feet west of Mission Ridge Road on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(4) Between a point one hundred seventy-five (175) feet west of Country Place Drive and a point three hundred (300) feet east of Rainier Road on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Crystal Creek Drive:

(1) Between Robinson Road and a point seventy-five (75) feet east of Ambiance Way on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 3:45 p.m. (F)

(Ord. No. 2011-8-4, §§ I, II, 8-8-11; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2019-10-4, § I, 10-14-19; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Cumberland Trail:

(1) Between a point one hundred fifty (150) feet east of Wilderness Trail and a point two hundred fifty (250) feet west of Blue Ridge Trail on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Custer Road:

(1) Between a point one hundred seventy-five (175) feet south of Westridge Drive and a point one hundred twenty-five (125) feet north of Glencliff Drive on

school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Decator Drive:

(1) Between a point two hundred twenty-five (225) feet south of Longfellow Drive and a point two hundred (200) feet south of Tulane Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Denham Way:

(1) Between Preston Meadow Drive and a point one hundred (100) feet east of Pentridge Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Edgefield Drive:

(1) Between a point one hundred twenty-five (125) feet south of 15th Street and a point one hundred twenty-five (125) feet south of Janwood Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Elsinore Drive:

(1) Between Floyd Drive and a point eight hundred seventy-five (875) feet west of Floyd Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 3:45 p.m. (F)

(Ord. No. 2011-8-4, §§ I, II, 8-8-11; Ord. No. 2014-11-14, § III, 11-24-14; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2019-10-4, § I, 10-14-19; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Emerson Drive:

(1) Between Preston Meadow Drive and Virginia Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Enchanted Ridge Drive:

(1) Between McDermott Road and Mason Drive on school days between 7:45 a.m. and 8:45 a.m. and between 3:30 p.m. and 4:30 p.m. (F)

(Ord. No. 2022-6-14, § I, 6-27-22; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Floyd Drive:

(1) Between Oakland Hills Drive and a point fifty (50) feet north of Buck Hill Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 3:45 p.m. (F)

(Ord. No. 2011-8-4, §§ I, II, 8-8-11; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2019-10-4, § I, 10-14-19; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Fountain Head Drive:

(1) Between a point three hundred fifty (350) feet west of Roundrock Trail and a point two hundred fifty (250) feet east of Silverstone Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Georgetown Drive:

(1) Between Prescott Drive and a point one hundred (100) feet west of Gibsland Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Gifford Drive:

(1) Between a point two hundred fifty (250) feet south of McDermott Drive and a point two hundred (200) feet north of Stonehaven Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(2) Between Russell Creek Drive and Kalgan Circle on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Gillespie Drive:

(1) Between a point seventy-five (75) feet north of National Drive and a point eight hundred twenty-five (825) feet south of National Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 3:45 p.m. (F)

(Ord. No. 2011-8-4, §§ I, II, 8-8-11; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Glen Oaks Drive:

(1) Between Park Meadow Lane and a point one hundred seventy-five (175) feet north of Park Meadow Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Glencliff Drive:

(1) Between Custer Road and a point one hundred seventy-five (175) feet west of Wilson Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Grandview Drive:

(1) Between Custer Road and a point one hundred seventy-five (175) feet west of Wilson Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Greenfield Drive:

(1) Between Red River Drive and a point fifty (50) feet west of Randall Way on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Harrington Drive:

(1) Between a point one hundred seventy-five (175) feet east of Country Place Drive and a point one hundred (100) feet west of Ravenglass Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Hedgcoxe Road:

(1) Between Stonehill Drive and a point one hundred twenty-five (125) feet east of Lynchburg Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Highedge Drive:

(1) Between Bluffton Drive and 15th Street on school days between 7:00 a.m. and 9:15 a.m. and between 2:30 p.m. and 4:55 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Independence Parkway:

(1) Between a point one hundred seventy-five (175) feet north of Parkhaven Drive and a point one hundred fifty (150) feet south of Parkhaven Drive on school days between 7:00 a.m. and 8:35 a.m. and between 2:30 p.m. and 4:30 p.m. (P)

(2) Between Benchmark Drive and a point four hundred fifty (450) feet south of Benchmark Drive on school days between 7:35 a.m. and 8:35 a.m. and between 3:30 p.m. and 4:30 p.m. (P)

(3) Between a point one hundred (100) feet north of Maumelle Drive and a point one hundred fifty (150) feet south of San Simeon Way on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(4) Between a point five hundred fifty (550) feet north of Russell Creek Drive and a point three hundred (300) feet south of Russell Creek Drive on school days between 7:35 a.m. and 8:35 a.m. and between 3:30 p.m. and 4:30 p.m. (P)

(Ord. No. 2009-6-13, § II, 6-22-09; Ord. No. 2009-8-22, § I, 8-24-09; Ord. No. 2016-4-8, § I, 4-11-16; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Jackson Drive:

(1) Between Jomar Drive and Robin Road on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Janet Way:

(1) Between Rigsbee Drive and a point one hundred seventy-five (175) feet west of Janet Court on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P) (See also 17th Street)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Janwood Drive:

(1) Between Ridgefield Drive and a point one hundred twenty-five (125) feet west of Edgefield Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Jeremes Landing:

(1) Between Matterhorn Drive and a point one hundred fifty (150) feet south of Big Horn Trail on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Jomar Drive:

(1) Between a point two hundred seventy-five (275) feet west of Colchester Drive and a point one hundred (100) feet east of Jackson Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Jupiter Road:

(1) Between a point four hundred (400) feet south of Royal Oaks Drive and a point two hundred seventy-five (275) feet south of Park Boulevard on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Kelsey Drive:

(1) Between Wilson Drive and a point two hundred fifty (250) feet west of Wilson Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Laurel Lane:

(1) Between Jupiter Road and a point one hundred seventy-five (175) feet west of P Avenue on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Legacy Drive:

(1) Between a point three hundred fifty (350) feet east of Quarry Chase Trail and a point three hundred fifty (350) feet west of Quarry Chase Trail on school days between 7:35 a.m. and 8:35 a.m. and between 3:30 p.m. and 4:30 p.m. (P)

(2) Between a point two hundred fifty (250) feet east of Preston Meadow Drive and a point three hundred (300) feet west of Archgate Drive on school days between 7:35 a.m. and 9:15 a.m. and between 3:30 p.m. and 4:55 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25; Ord. No. 2025-9-3, § I, 9-8-25)

Linda Lane:

(1) Between Dartmouth Drive and a point three hundred fifty (350) feet south of Bonniebrook Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Linden Drive:

(1) Between Edgefield Drive and a point seventy-five (75) feet west of Kirnwood Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Longfellow Drive:

(1) Between a point one hundred seventy-five (175) feet east of Decator Drive and a point four hundred fifty (450) feet west of Decator Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Lorimar Drive:

(1) Between a point one hundred twenty-five (125) feet west of Bramley Way and a point two hundred (200) feet west of Preston Meadow Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Los Rios Boulevard:

(1) For northbound traffic, between a point three hundred seventy-five (375) feet south of Dottie Drive/Camino Drive and a point one hundred fifty (150) feet north of Dottie Drive/Camino Drive and for southbound traffic, between a point two hundred twenty-five (225) feet south of Merriman Drive and a point one hundred twenty-five (125) feet south of Dottie Drive/Camino Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2022-6-13, § I, 6-27-22; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Los Robles Drive:

(1) Between Park Boulevard and a point one hundred fifty (150) feet south of Park Boulevard on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P) (See also San Gabriel Drive)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2022-6-13, § I, 6-27-22; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Marcedonia Drive:

(1) Between a point one hundred (100) feet east of Marchman Way and a point seventy-five (75) feet west of Roaring Ridge Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Marchman Way:

(1) Between Marcedonia Drive and Lantz Circle on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Marsalis Lane:

(1) Between Cloverhaven Way and a point one hundred (100) feet east of Norwood Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Matterhorn Drive:

(1) Between Mission Ridge Road and Interlaken Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Maumelle Drive:

(1) Between Pheasant Run Road and a point four hundred fifty (450) feet west of Old Orchard Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(2) Between a point four hundred fifty (450) feet west of Old Orchard Drive and a point four hundred fifty (450) feet east of Independence Parkway on school days between 7:35 a.m. and 8:35 a.m. and between 3:30 p.m. and 4:30 p.m. (P)

(Ord. No. 2012-8-7, §§ I, II, 8-13-12; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

McDermott Road:

(1) Between a point five hundred fifty (550) feet east of Rockledge Lane and a point two hundred seventy-five (275) feet west of Rockledge Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 3:45 p.m. (F)

(2) Between a point two hundred (200) feet east of Enchanted Ridge Drive and a point two hundred twenty (220) feet west of Coit Road on school days between 7:45 a.m. and 8:45 a.m. and between 3:30 p.m. and 4:30 p.m. (F)

(Ord. No. 2007-8-5, § II, 8-13-07; Ord. No. 2007-9-25, § I, 9-24-07; Ord. No. 2011-8-4, §§ I, II, 8-8-11; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2019-10-4, § I, 10-14-19; Ord. No. 2020-11-10, § I, 11-23-20; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Micarta Drive:

(1) Between a point three hundred (300) feet east of Avalon Drive and a point four hundred fifty (450) feet west of Quarry Chase Trail on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Midway Road:

(1) Between a point three hundred (300) feet north of Plano Parkway and a point one hundred fifty (150) feet north of Timber Cove Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Mill Valley Drive:

(1) Between Clear Springs Drive and 15th Street on school days between 7:00 a.m. and 9:15 a.m. and between 2:30 p.m. and 4:55 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Mission Ridge Road:

(1) Between a point one hundred fifty (150) feet south of Bender Trail and a point one hundred fifty (150) feet south of Big Horn Trail on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(2) Between a point one hundred seventy-five (175) feet south of North Echo Trail and a point one hundred seventy-five (175) feet north of Cross Bend Road on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Mollimar Drive:

(1) Between a point two hundred seventy-five (275) feet west of Independence Parkway and a point two hundred eighty-five (285) feet south of Regal Road on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2023-7-6, § II, 7-24-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Montana Trail:

(1) Between a point one hundred fifty (150) feet east of Blue Ridge Trail and a point one hundred seventy-five (175) feet west of Santa Fe Trail on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Mosswood Drive:

(1) Between Cloverhaven Way and a point one hundred (100) feet east of Norwood Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Mullins Drive:

(1) Between Prescott Drive and a point two hundred fifty (250) feet east of Prescott Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P) (See Red River Drive)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

N Avenue:

(1) Between a point one hundred seventy-five (175) feet north of 19th Street and a point two hundred (200) feet south of 18th Street on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

National Drive:

(1) Between Gillespie Drive and a point seven hundred ten (710) feet west of Gillespie Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 3:45 p.m. (F)

(Ord. No. 2013-9-6, § II, 9-9-13; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

North Star Road:

(1) Between a point one thousand five hundred (1,500) feet south of Plano Parkway and the south City limit of the

City of Plano on school days when the flashing beacon on the school zone speed limit sign assembly is in operation. (P)

(Ord. No. 2011-4-3, § I, 4-11-11; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Oakland Hills Drive:

(1) Between a point two hundred fifty (250) feet east of Floyd Drive and a point fifty (50) feet east of Daly Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 3:45 p.m. (F)

(Ord. No. 2011-8-4, §§ I, II, 8-8-11; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Ohio Drive:

(1) Between a point two hundred twenty-five (225) feet north of Ringgold Lane and a point two hundred (200) feet south of Ringgold Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(2) Between a point two hundred seventy-five (275) feet north of Quincy Lane and a point two hundred fifty (250) feet south of Quincy Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(3) Between a point three hundred seventy-five (375) feet north of Wildbriar Drive and a point three hundred (300) feet south of Wildbriar Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 3:45 p.m. (F)

(Ord. No. 2011-8-4, §§ I, II, 8-8-11; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2023-7-6, § II, 7-24-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Old Orchard Drive:

(1) Between Old Orchard Court and a point two hundred (200) feet north of Maumelle Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Oxbow Creek Lane:

(1) Between Coldwater Creek Lane and a point one hundred seventy-five (175) feet south of Pondview Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

P Avenue:

(1) Between a point one hundred seventy-five (175) feet south of 17th Street and a point four hundred twenty-five (425) feet north of 18th Street on school days between 8:15 a.m. and 9:15 a.m. and between 4:10 p.m. and 4:55 p.m. (P)

(2) Between a point two hundred twenty-five (225) feet south of Parker Road and a point one hundred twenty-five (125) feet north of Abbey Road on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2019-10-4, § I, 10-14-19; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Park Boulevard:

(1) Between a point one hundred (100) feet west of Concho Drive and a point seventy-five (75) feet east of Stave Oak Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(2) Between a point one hundred seventy-five (175) feet east of Jupiter Road and a point one hundred seventy-five (175) feet west of R Avenue on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Park Meadow Lane:

(1) Between Glen Oaks Drive and a point two hundred seventy-five (275) feet east of Glen Oaks Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Parker Road:

(1) Between a point five hundred and forty (540) feet west of Clark Parkway to a point three hundred (300) feet east of Oak Arbor Drive on school days between 7:00 a.m. and 8:45 a.m. and between 3:15 p.m. and 4:15 p.m. (P)

(2) For eastbound traffic, between a point fifty (50) feet west of Tarkio Road and a point three hundred ten (310) feet west of Raton Lane and for westbound traffic, a point seven hundred sixty (760) feet east of P Avenue and a point fifty (50) feet west of Tarkio Road on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(3) Between a point two hundred twenty-five (225) feet west of Roundrock Trail and a point two hundred twenty-five (225) feet east of Roundrock Trail on school days between 7:35 a.m. and 8:35 a.m. and between 3:30 p.m. and 4:30 p.m. (P)

(Ord. No. 2007-8-5, § I, 8-13-07; Ord. No. 2009-6-13, § I, 6-22-09; Ord. No. 2011-1-26, §§ I, II, 1-24-11; Ord. No. 2011-12-4, §§ I, II, 12-12-11; Ord. No. 2018-8-3, § II, 8-13-18; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Parkhaven Drive:

(1) Between a point two hundred fifty (250) feet west of Independence Parkway and a point sixty (60) feet east of Winterplace Circle on school days between 7:35 a.m. and 8:35 a.m. and between 3:30 p.m. and 4:30 p.m. (P)

(2) Between Mission Ridge Road and a point one hundred twenty-five (125) feet east of Khyber Pass on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Plano Parkway:

(1) Between a point two hundred fifty (250) feet west of Campbell Road and a point four hundred twenty-five (425) feet west of Winding Hollow Lane on school days between 8:15 a.m. and 9:15 a.m. and between 4:10 p.m. and 4:55 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Pleasant Valley Drive:

(1) Between a point two hundred seventy-five (275) feet south of Fountain Head Drive and a point two hundred fifty (250) feet north of Fountain Head Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Prescott Drive:

(1) Between Mullins Drive/Red River Drive and a point one hundred (100) feet north of Cayman Circle on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Preston Meadow Drive:

(1) Between a point two hundred seventy-five (275) feet south of Legacy Drive and a point one thousand three hundred ten (1,310) feet south of Denham Way on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(2) Between a point two hundred twenty-five (225) feet north of Lorimar Drive and a point two hundred (200) feet south of Bentley Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2008-7-14, § II, 7-28-08; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Quarry Chase Trail:

(1) Between Micarta Drive and a point one hundred fifty (150) feet north of Trophy Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Quincy Lane:

(1) Between a point one hundred twenty-five (125) feet east of Reunion Drive and a point one hundred twenty-five (125) feet west of Family Farm on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

R Avenue:

(1) Between Park Boulevard and a point one hundred seventy-five (175) feet north of Laurel Lane on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Rainier Road:

(1) Between a point two hundred (200) feet north of Cross Bend Road and a point one hundred fifty (150) feet south of Pioneer Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Red River Drive:

(1) Between Prescott Drive and a point one hundred fifty (150) feet south of Arena Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P) (See Mullins Drive)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Regal Road:

(1) Between Mollimar Drive and Independence Parkway on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Ridgeview Drive:

(1) For eastbound traffic, between a point fifty (50) feet east of Ross Station Drive/Gillespie Drive and a point two hundred (200) feet west of Paradise Valley Drive and for westbound traffic, between a point fifty (50) feet east of Paradise Valley Drive and a point one hundred fifty (150) feet east of Ross Station Drive/Gillespie Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 3:45 p.m. (F)

(Ord. No. 2011-8-4, §§ I, II, 8-8-11; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Rigsbee Drive:

(1) Between a point one hundred twenty-five (125) feet north of Price Drive and a point one hundred twenty-five (125) feet south of Rockbrook Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2023-7-6, § II, 7-24-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Robin Road:

(1) Between a point one hundred (100) feet east of Jackson Drive and a point five hundred twenty-five (525) feet east of Woodburn Corners on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Robinson Road:

(1) Between a point one hundred seventy-five (175) feet north of Cape Charles Drive and a point one hundred twenty-five (125) feet south of Crystal Creek Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 3:45 p.m. (F)

(Ord. No. 2011-8-4, §§ I, II, 8-8-11; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Rockledge Lane:

(1) Between a point one hundred (100) feet north of Waskom Drive and a point one hundred fifty (150) feet south of Caledonia Creek Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 3:45 p.m. (F)

(Ord. No. 2011-8-4, §§ I, II, 8-8-11; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Roundrock Trail:

(1) Between a point one hundred fifty (150) feet south of Cross Bend Road and a point one hundred seventy-five (175) feet north of Fountain Head Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(2) Between a point three hundred (300) feet north of Mountview Place and a point three hundred twenty-five (325) feet south of Mountview Place on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Russell Creek Drive:

(1) Between Gifford Drive and a point one hundred fifty (150) feet east of Pipestone Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

San Gabriel Drive:

(1) Between Park Boulevard and a point fifty (50) feet south of Merriman Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P) (See also Los Robles Drive)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Santa Fe Trail:

(1) Between Montana Trail and a point two hundred (200) feet north of Apple Valley Road on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Scenic Drive:

(1) Between a point one hundred twenty-five (125) feet west of Cornerstone Drive and a point two hundred (200) feet west of High Meadows Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Shinnery Oak Drive:

(1) Between San Gabriel Drive and a point seventy-five (75) feet south of Pagoda

Oak Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Silverstone Drive:

(1) Between a point one hundred seventy-five (175) feet north of Fountain Head Drive and a point two hundred (200) feet south of Cross Bend Road on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Silverwood Lane:

(1) Between a point seventy-five (75) feet north of Regent Drive and a point three hundred twenty-five (325) feet south of Newkirk Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Slater Trail:

(1) Between Bass Drive and Hedgcoxe Road on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Spring Creek Parkway:

(1) For eastbound traffic, between a point four hundred (400) feet west of Eagle Pass and a point one hundred (100) feet east of Eagle Pass and for westbound traffic, between a point three hundred seventy-five (375) feet east of Eagle Pass and a point two hundred fifty (250) feet west of Eagle Pass on school days between 8:15 a.m. and 9:15 a.m. and between 4:10 p.m. and 4:55 p.m. (P)

(2) For eastbound traffic, between a point three hundred (300) feet west of Preston Meadow Drive and a point two hundred twenty-five (225) feet east of Preston Meadow Drive and for westbound traffic, between a point four hundred (400) feet east of Preston Meadow Drive and a point two hundred (200) feet west of Preston Meadow Drive on school days between 7:35 a.m. and 8:35 a.m. and between 3:30 p.m. and 4:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Tulane Drive:

(1) Between a point three hundred seventy-five (375) feet east of Decator Drive and a point four hundred (400) feet west of Decator Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

USA Drive:

(1) Between Red River Drive and Crested Butte Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Ventura Drive:

(1) Between a point three hundred fifty (350) feet north of Highland Drive and a point four hundred twenty-five (425) feet southwest of Coventry Lane on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2010-8-6, § I, 8-9-10; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Village Creek Drive:

(1) Between Plano Parkway and a point one thousand four hundred twenty-five (1,425) feet southwest of Plano Parkway on school

days between 7:00 a.m. and 8:00 a.m. and between 3:00 p.m. and 3:45 p.m. (Private)

(Ord. No. 2010-8-6, § II, 8-9-10; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Waskom Drive:

(1) Between Rockledge Lane and a point two hundred (200) feet east of Serenity Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:45 p.m. and 3:45 p.m. (F)

(Ord. No. 2011-8-4, §§ I, II, 8-8-11; Ord. No. 2016-7-6, § I, 7-25-16; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Westwood Drive:

(1) Between Aldridge Drive and a point two hundred twenty-five (225) feet south of Janwood Drive on school days between 7:35 a.m. and 8:35 a.m. and between 3:30 p.m. and 4:30 p.m. (P)

(Ord. No. 2009-8-22, § II, 8-24-09; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Whiffletree Drive:

(1) Between a point one hundred twenty-five (125) feet east of Canoncita Lane and a point one hundred fifty (150) feet east of Mission Ridge Road on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Wildcat Way:

(1) Between Parkhaven Drive and a point seven hundred and forty (740) feet south of Parkhaven Drive on school days between 7:35 a.m. and 8:35 a.m. and between 3:30 p.m. and 4:30 p.m. (P)

(Ord. No. 2024-12-1, § II, 12-9-24)

Willow Bend Drive:

(1) Between a point three hundred (300) feet south of Yeary Road and a point two hundred (200) feet north of Yeary Road on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Wilson Drive:

(1) Between Glencliff Drive and a point one hundred fifty (150) feet south of Grandview Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Winding Hollow Lane:

(1) Between a point two hundred (200) feet north of Channel Isle Drive and a point two hundred (200) feet south of Channel Isle Drive on school days between 7:00 a.m. and 8:00 a.m. and between 2:30 p.m. and 3:30 p.m. (P)

(Ord. No. 2013-9-6, §§ I, II, 9-9-13; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

Yeary Road:

(1) Between a point one hundred seventy-five (175) feet west of Clark Parkway and a point two hundred twenty-five (225) feet east of Oakmeadow Drive on school days between 7:00 a.m. and 8:45 a.m. and between 2:30 p.m. and 4:15 p.m. (P)

(Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2025-6-20, § I, 6-23-25)

(e) *Signs.* The traffic engineer is hereby authorized and directed to cause the placement of traffic-control signs at each approach to each school zone designated in this section. The traffic control signs may be supplemented with a speed limit sign beacon. The signs and, when used, speed limit sign beacons, shall be placed at

the most advantageous point to be conspicuous to approaching vehicular traffic. Although some school zones may have signs and speed limit sign beacons, the provisions of this section shall not be interpreted so as to require speed limit sign beacons in addition to signs so long as there is a traffic-control sign containing printed information thereon warning operators of vehicular traffic of the existence of the school zones.

(Ord. No. 87-4-36, §§ I—VIII, 4-27-87; Ord. No. 99-9-29, § VIII, 9-27-99; Ord. No. 2000-7-9, §§ I, II, 7-24-00; Ord. No. 2006-6-29, § II, 6-26-06; Ord. No. 2009-4-19, § I, 4-27-09; Ord. No. 2016-10-9, § I, 10-10-16; Ord. No. 2017-8-1, § I, 8-14-17; Ord. No. 2018-8-4, § I, 8-13-18; Ord. No. 2019-10-4, § I, 10-14-19; Ord. No. 2019-10-5, § I, 10-14-19; Ord. No. 2020-2-11, § I, 2-24-20; Ord. No. 2020-11-10, § I, 11-23-20; Ord. No. 2021-8-3, § I, 8-9-21; Ord. No. 2022-2-5, § I, 2-14-22; Ord. No. 2022-6-13, § I, 6-27-22; Ord. No. 2022-6-14, § I, 6-27-22; Ord. No. 2023-6-8, § I, 6-26-23; Ord. No. 2023-7-6, § II, 7-24-23; Ord. No. 2024-8-5, § I, 8-12-24; Ord. No. 2024-12-1, § II, 12-9-24; Ord. No. 2025-6-20, § I, 6-23-25; Ord. No. 2025-9-3, § I, 9-8-25)

Editor's note—Ord. No. 87-4-36, § I, adopted April 27, 1987, repealed § 12-73, concerning school speed zones, as derived from Ord. No. 81-3-15, 3-23-81, Ord. No. 82-3-8, §§ 1—4, 3-8-82; Ord. No. 82-5-11, § 1, 5-10-82; Ord. No. 82-6-15, § 1, 6-28-82; Ord. No. 82-7-9, § 1, 7-26-82; Ord. No. 83-5-7, § 2, 5-9-83; Ord. No. 83-11-4, § 1, 11-14-83; Ord. No. 84-3-4, § 1, 3-12-84; Ord. No. 84-3-6, § 1, 3-12-84; Ord. No. 84-7-11, § I, 7-9-84; Ord. No. 84-11-4, §§ I, II, 11-12-84; Ord. No. 84-11, 19, § I, 11-26-84; Ord. No. 84-12-5, § I, 12-10-84; Ord. No. 85-8-11, § I, 8-12-85; Ord. No. 85-10-34, § I, 10-28-85; Ord. No. 86-1-8, § I, 1-13-86; Ord. No. 86-8-27, § I, 8-25-86; Ord. No. 86-9-9, § I, 9-8-86; Ord. No. 86-10-23, § I, 10-27-86; Ord. No. 86-10-24, § I, 10-27-86; Ord. No. 87-1-26, § I, 1-26-87; and Ord. No. 87-4, 10, § I, 4-15-87; Ord. No. 2024-12-1, §§ I, II, 12-9-24.

Sections II—VIII have been included as a new § 12-73 at the editor's discretion.

Commencing with Ord. No. 87-7-7, adopted July 13, 1987, ordinances adding or amending school zones in § 12-73 are listed in a history note following the particular zone affected.

The following list shows ordinances amending § 12-73 and subsequently repealed:

Ord. No.	Date	Rpld by Ord. No.	Sec.	Date
87-7-7(§ II)	7-13-87	87-12-23	I	12-28-87
(§§ I, III)	7-13-87	99-9-29	I	9-27-99
87-9-35(§ I)	9-28-87	99-9-29	I	9-27-99
87-10-20(§ I)	10-26-87	99-9-29	I	9-27-99
88-6-10(§ I)	6-13-88	98-5-23	I	5-26-98
88-6-25(§ I)	6-27-88	99-9-29	I	9-27-99
88-7-22(§ I)	7-25-88	99-9-29	I	9-27-99
89-6-19(§ I)	6-26-89	92-7-10	I	7-13-92
90-1-11(§ I)	1- 8-90	99-9-29	I	9-27-99
90-7-16(§ I)	7-23-90	99-9-29	I	9-27-99
90-7-17(§ I)	7-23-90	99-9-29	I	9-27-99
90-8-24(§ I)	8-27-90	99-9-29	I	9-27-99
91-1-34(§ I)	1-28-91	99-9-29	I	9-27-99
91-8-31(§ II)	8-26-91	92-7-10	I	7-13-92
91-10-18(§ I)	10-28-91	98-9-6	I	9-14-98
91-10-20(§ I)	10-28-91	99-9-29	I	9-27-99
91-10-23(§ I)	10-28-91	99-9-29	I	9-27-99
91-11-11(§ I)	11-11-91	99-9-29	I	9-27-99
91-12-29(§ I)	12-23-91	99-9-29	I	9-27-99
92-1-9(§ I)	1-13-92	98-8-27	I	8-24-98
92-4-19(§ I)	4-13-92	99-9-29	I	9-27-99
92-7-10(§ I)	7-13-92	99-8-12	I	8- 9-99
92-7-11(§ I)	7-13-92	93-11-13	I	11- 8-93
		98-5-23	II	5-26-98
92-4-19(§ I)	4-13-92	99-9-29	I	9-27-99
92-7-10(§ I)	7-13-92	99-8-12	I	8- 9-99
		99-9-29	I	9-27-99
92-7-12(§§ I, II)	7-13-92	99-9-29	I	9-27-99
92-10-35(§ I)	10-26-92	99-9-29	I	9-27-99
93-6-32(§ I)	6-28-93	99-9-29	I	9-27-99
93-11-16(§ I)	11- 8-93	99-9-29	I	9-27-99
93-12-16(§ I)	12-13-93	99-9-29	I	9-27-99
94-1-15(§ I)	1-10-94	99-9-29	I	9-27-99
94-6-26(§ I)	6-27-94	99-9-29	I	9-27-99
95-3-22(§ I)	3-27-95	99-9-29	I	9-27-99
95-7-23(§ I)	7-24-95	99-9-29	I	9-27-99
95-12-27(§ I)	12-21-95	99-9-29	I	9-27-99
96-7-13(§ I)	7-22-96	99-9-29	I	9-27-99
96-7-14(§ I)	7-22-96	99-9-29	I	9-27-99
96-7-15(§ I)	7-22-96	99-9-29	I	9-27-99
96-7-16(§ II)	7-22-96	99-9-29	I	9-27-99
96-7-17(§ II)	7-22-96	99-9-29	I	9-27-99
96-7-18(§ I)	7-22-96	99-9-29	I	9-27-99
96-7-19(§ I)	7-22-96	98-5-26	I	5-26-98
96-7-20(§ II)	7-22-96	99-9-6	I	9-13-99
96-7-21(§ I)	7-22-96	99-9-29	I	9-27-99
97-7-5(§ I)	7-14-97	99-9-29	I	9-27-99
97-7-6(§ I)	7-14-97	99-9-29	I	9-27-99
97-7-7(§ 1)	7-14-97	99-9-29	I	9-27-99
97-7-8(§ I)	7-14-97	99-9-29	I	9-27-99
97-7-9(§ I)	7-14-97	99-9-29	I	9-27-99
97-8-9(§ I)	8-11-97	99-9-29	I	9-27-99
98-5-23(§ III)	5-26-98	98-10-4	I	10-12-98
98-5-24(§ I)	5-26-98	99-9-29	I	9-27-99
98-5-25(§ I)	5-26-98	99-9-29	I	9-27-99
98-5-26(§ II)	5-26-98	99-9-29	I	9-27-99
98-5-27(§ I)	5-26-98	99-9-29	I	9-27-99
98-8-12(§ I)	8-10-98	99-9-29	I	9-27-99
98-8-27(§ II)	8-24-98	99-9-29	I	9-27-99
98-9-6(§ II)	9-14-98	99-9-29	I	9-27-99

Ord. No.	Date	Rpld by Ord. No.	Sec.	Date
98-10-4(§ II)	10-12-98	99-9-29	I	9-27-99
99-5-10(§ I)	5-10-99	99-9-29	I	9-27-99
99-5-11(§ I)	5-10-99	99-9-29	I	9-27-99
99-5-12(§ I)	5-10-99	99-9-29	I	9-27-99
99-5-13(§ I)	5-10-99	99-9-29	I	9-27-99
99-5-15(§ I)	5-10-99	99-9-29	I	9-27-99
99-8-3(§ I)	8- 2-99	99-9-29	I	9-27-99
99-8-4(§ I)	8- 2-99	99-9-29	I	9-27-99
99-8-5(§ I)	8- 2-99	99-9-29	I	9-27-99
99-8-12(§§ II—V)	8- 9-99	99-9-29	I	9-27-99
99-9-6(§ II)	9-13-99	99-9-29	I	9-27-99
2021-8-3(§ I)	8- 9-21	2023-7-6	I	7-24-23
2023-6-8(§ I)	6-26-23	2024-12-1	II	12-9-24

Sec. 12-74. Maximum limits on specific streets.

(a) *Authority of city council.* The city council may alter the maximum speed limit of thirty (30) miles per hour, as established by section 12-71, on any street or portion thereof within the city in accordance with the provisions of Article 6701d, Section 169, Vernon's Annotated Civil Statutes, and it shall be unlawful for any person to drive or operate any vehicle at a rate of speed in excess of such altered limit.

(b) *Streets designated.* The following prima facie maximum speed limits indicated in this section for motor vehicles are hereby determined and declared to be reasonable and safe, and such maximum speed limits are hereby fixed at the rate of speed indicated for motor vehicles traveling upon the named street or highway, or parts thereof, and no motor vehicle shall be operated along or upon such portions of such named street or highway within the corporate limits of the City of Plano in excess of the speeds now set forth in the following limits:

14th Street:

(1) Forty-five (45) miles per hour along and upon 14th Street from the east city limits to its intersection with Los Rios Boulevard;

(2) Forty (40) miles per hour along and upon 14th Street from its intersection with Los Rios Boulevard to its intersection with Jupiter Road;

(3) Thirty-five (35) miles per hour along and upon 14th Street from its intersection with Jupiter Road to its intersection with Municipal Avenue/L Avenue;

(4) Thirty (30) miles per hour along and upon 14th Street from its intersection with Municipal Avenue/L Avenue to its intersection with the northbound frontage road of U.S. Highway 75, Central Expressway.

(Ord. No. 99-1-12, § III, 1-25-99; Ord. No. 2007-8-6, § XI, 8-13-07; Ord. No. 2012-4-6, §§ II, III, 4-9-12)

15th Street:

(1) Forty (40) miles per hour along and upon 15th Street (FM544, Norman Whitsitt Parkway) from its intersection with southbound Central Expressway westward to its intersection with Plano Parkway.

(Ord. No. 91-7-18, § II, 7-22-91; Ord. No. 2007-8-6, § XII, 8-13-07)

Alma Drive:

(1) Forty (40) miles per hour along and upon Alma Drive from its intersection with Plano Parkway to its intersection with Parker Road;

(2) Thirty-five (35) miles per hour along and upon Alma Drive from its intersection with Parker Road to its intersection with Spring Creek Parkway;

(3) Forty (40) miles per hour along and upon Alma Drive from its intersection with Spring Creek Parkway to its intersection with the north city limit line;

(4) Forty (40) miles per hour along and upon Alma Drive from its intersection with Plano Parkway to its intersection with the south city limit line.

(Ord. No. 2001-7-12, § II, 7-23-01)

Avenue K:

(1) Forty-five (45) miles per hour along and upon Avenue K from north city limits to Bowman Branch;

(2) Forty (40) miles per hour along and upon Avenue K from Bowman Branch to 18th Place;

(3) Thirty (30) miles per hour along and upon Avenue K from 18th Place to 14th Street;

(4) Thirty-five (35) miles per hour along and upon Avenue K from 14th Street to Plano Parkway;

(5) Forty (40) miles per hour along and upon Avenue K from Plano Parkway to south city limits.

(Ord. No. 87-7-6, § II, 7-13-87; Ord. No. 92-1-10, § I, 1-3-92; Ord. No. 93-6-12, § II, 6-14-93; Ord. No. 95-4-21, § II, 4-24-95; Ord. No. 96-4-19, § III, 4-22-96)

Baxter Drive:

(1) Thirty (30) miles per hour along and upon Baxter Drive from its intersection with Alma Drive to its intersection with Mullins Drive.

Bishop Road:

(1) Thirty (30) miles per hour along and upon Bishop Road from its intersection with Democracy Drive to its intersection with Baltic Boulevard.

(Ord. No. 90-2-8, § II, 2-12-90; Ord. No. 92-3-8, § I, 3-12-92; Ord. No. 2012-7-11, §§ II, III, 7-23-12)

Brand Road:

(1) Forty (40) miles per hour along and upon Brand Road from its intersection with the north city limit line to its intersection with the south city limit line.

(Ord. No. 2012-7-12, § II, 7-23-12)

Central Expressway (U.S. Highway 75):

(1) Seventy (70) miles per hour along and upon U.S. Highway 75 within city limits;

(2) Sixty (60) miles per hour along and upon U.S. Highway 75, from Park Boulevard to President George Bush Turnpike during construction for project number 0047-06-133 while signs indicating the sixty (60) miles per hour speed limit are posted, such speed limit to automatically terminate after such construction concludes and signs are removed.

(Ord. No. 2017-11-10, § I, 11-27-17; Ord. No. 2017-11-11, § I, 11-27-17)

Central Expressway (U.S. Highway 75 Service Roads):

(1) Forty-five (45) miles per hour along and upon Central Expressway on both the east and west sides of U.S. Highway 75 from the south city limit line to Spring Creek Parkway;

(2) Fifty (50) miles per hour along and upon Central Expressway on both the east and west sides of U.S. Highway 75 from Spring Creek Parkway to the north city limits line.

(Ord. No. 93-11-14, § III, 11-8-93; Ord. No. 2007-7-6, §§ II, III, 7-23-07; Ord. No. 2007-8-6, § XVI, 8-13-07; Ord. No. 2007-9-24, § II, 9-24-07)

Chapel Hill Boulevard:

(1) Forty (40) miles per hour along and upon Chapel Hill Boulevard from its intersection with Plano Parkway to its intersection with Dallas Parkway northbound frontage road.

(Ord. No. 2019-9-18, § I, 9-23-19)

Chase Oaks Boulevard:

(1) Forty (40) miles per hour along and upon Chase Oaks Boulevard from its intersec-

tion with Spring Creek Parkway northward to southbound Central Expressway.

(Ord. No. 90-10-10, § II, 10-8-90; Ord. No. 2005-4-23, § II, 4-25-05; Ord. No. 2007-8-6, § XIII, 8-13-07)

Coit Road (State Highway 3193):

(1) Forty-five (45) miles per hour along and upon Coit Road from its intersection with the southern city limits to its intersection with 15th Street (FM 544, Norman F. Whitsitt Parkway);

(Ord. No. 87-7-32, § II, 7-27-87)

(2) Forty (40) miles per hour along and upon Coit Road from its intersection with 15th Street (FM 544, Norman F. Whitsitt Parkway) to its intersection with Legacy Drive;

(Ord. No. 87-7-32, § II, 7-27-87)

(3) Forty-five (45) miles per hour along and upon Coit Road from its intersection with Legacy Drive to its intersection with State Highway 121.

(Ord. No. 87-7-32, § II, 7-27-87; Ord. No. 2000-5-29, § III, 5-22-2000)

Communications Parkway:

(1) Forty (40) miles per hour along and upon Communications Parkway from its intersection with Chapel Hill Road to its intersection with Headquarters Drive.

(Ord. No. 2000-5-30, § II, 5-22-00)

Corporate Drive:

(1) Thirty-five (35) miles per hour along and upon Corporate Drive from its intersection with Tennyson Parkway to its intersection with Legacy Drive.

(Ord. No. 2014-4-12, § III, 4-28-14)

Cross Bend Road:

(1) Thirty (30) miles per hour along and upon Cross Bend Road from its intersections with Martingale Drive to its intersection with Coit Road.

Custer Road:

(1) Forty (40) miles per hour along and upon Custer Road from its intersection with the south city limit line to its intersection with Nettle Drive;

(2) Forty-five (45) miles per hour along and upon Custer Road from its intersection with Nettle Drive to its intersection with the Sam Rayburn Tollway.

(Ord. No. 2010-8-20, §§ III, IV, 8-23-10)

Dallas Parkway:

(1) Forty-five (45) miles per hour upon and along Dallas Parkway from the south city limits to State Highway 121.

(Ord. No. 93-10-11, § III, 10-11-93)

Dominion Parkway:

(1) Forty (40) miles per hour along and upon Dominion Parkway between Parkwood Boulevard and Hedgcoxe Road.

(Ord. No. 2007-4-20, § II, 4-23-07; Ord. No. 2007-12-3, § II, 12-10-07)

Eldorado Drive:

(1) Thirty (30) miles per hour along and upon Eldorado Drive from its intersection with Coit Road to its intersection with Travis Drive.

Headquarters Drive:

(1) Forty (40) miles per hour along and upon Headquarters Drive from its intersection with Preston Road to its intersection with Spring Creek Parkway.

(Ord. No. 2010-8-20, §§ III, IV, 8-23-10)

Hedgcoxe Road:

(1) Forty (40) miles per hour along and upon Hedgcoxe Road from its intersection with Legacy Drive to its intersection with Robinson Road;

(2) Forty-five (45) miles per hour along and upon Hedgcoxe Road from its intersection with Robinson Road to its intersection with Custer Road.

(Ord. No. 2010-8-20, §§ III, IV, 8-23-10; Ord. No. 2024-8-11, § II, 8-26-24)

Honeysuckle Lane:

(1) Twenty (20) miles per hour along and upon Honeysuckle Lane from Peachtree Lane east to its intersection with Shiloh Road.

(Ord. No. 91-5-11, § II, 5-13-91)

Independence Parkway:

(1) Forty (40) miles per hour along and upon Independence Parkway from its intersection with Plano Parkway to its intersection with City of Plano south city limits;

(Ord. No. 95-9-10, § IV, 9-11-95)

(2) Thirty (30) miles per hour along and upon Independence Parkway from its intersection with Plano Parkway to its intersection with Park Boulevard;

(Ord. No. 95-9-10, § IV, 9-11-95)

(3) Forty (40) miles per hour along and upon Independence Parkway from its intersection with Park Boulevard to its intersection with McDermott Road;

(Ord. No. 95-9-10, § IV, 9-11-95)

(4) Forty (40) miles per hour along and upon Independence Parkway from its intersection with McDermott Road to its intersection with State Highway 121.

(Ord. No. 2000-6-10, § II, 6-12-2000)

International Parkway:

(1) Forty (40) miles per hour along and upon International Parkway from its intersection with West Plano Parkway to the west city limit line.

(Ord. No. 2014-4-12, § III, 4-28-14)

Jupiter Road:

(1) Forty (40) miles per hour along Jupiter Road from the north city limit to the south city limit.

(Ord. No. 96-3-20, § III, 3-25-96; Ord. No. 2005-2-23, §§ I—III, 2-22-05; Ord. No. 2016-6-29, § II, 6-28-16)

Kathryn Lane:

(1) Thirty-five (35) miles per hour along and upon Kathryn Lane between State Highway 121 and Custer Road.

(Ord. No. 2006-7-7, § II, 7-24-06)

*Legacy Drive:**

(1) Forty (40) miles per hour along and upon Legacy Drive from its intersection with K Avenue to its intersection with Preston Road;

(2) Forty-five (45) miles per hour along and upon Legacy Drive from its intersection with Preston Road to a point five hundred (500) feet east of its intersection with Parkwood Boulevard;

(3) Forty (40) miles per hour along and upon Legacy Drive from a point five hundred (500) feet east of its intersection with Parkwood Boulevard to a point one hundred fifty (150) feet west of its intersection with the southbound frontage road of Dallas Parkway;

(4) Forty-five (45) miles per hour along and upon Legacy Drive from a point one hundred fifty (150) feet west of its intersection with the southbound frontage road of Dallas Parkway to its intersection with State Highway 121.

(Ord. No. 2011-7-5, §§ II, III, 7-25-11)

Los Rios Boulevard:

(1) Forty (40) miles per hour along and upon Los Rios Boulevard from its intersection with Plano Parkway to its intersection with 14th Street;

(Ord. No. 97-8-28, § III, 8-25-97; Ord. No. 2011-12-3, §§ II, III, 12-12-11)

(2) Thirty-five (35) miles per hour along and upon Los Rios Boulevard from its intersection with 14th Street to its intersection with Jupiter Road.

(Ord. No. 97-8-28, § III, 8-25-97; Ord. No. 2011-12-3, §§ II, III, 12-12-11)

Los Robles Drive:

(1) Thirty (30) miles per hour along and upon Los Robles Drive from its intersection with Parker Road to its intersection with Merriman Drive.

*__Editor's note—__*Legacy Drive was formerly named Carpenter Road.

Mapleshade Lane:

(1) Thirty-five (35) miles per hour along and upon Mapleshade Lane from its intersection with the State Highway 190 westbound frontage road to the south city limit line west of Ohio Drive.

(Ord. No. 2014-4-12, §§ II, III, 4-28-14)

Marsh Lane:

(1) Forty (40) miles per hour along and upon southbound Marsh Lane from its intersection with Parker Road to the city limit line, one thousand one hundred eighty (1,180) feet south of its intersection with Parker Road;

(2) Forty (40) miles per hour along and upon southbound Marsh Lane from the city limit line, three hundred fifty (350) feet north of its intersection with Palm Aire Drive, to the city limit line, seven hundred ninety (790) feet south of its intersection with Plano Parkway;

(3) Forty (40) miles per hour along and upon southbound Marsh Lane from the city limit line, nine hundred fifty (950) feet south of its intersection with Plano Parkway, to the city limit line, thirty-five (35) feet north of its intersection with Hebron Parkway;

(4) Forty (40) miles per hour along and upon the northbound lanes of Marsh Lane from the city limit line, thirty-five (35) feet north of its intersection with Hebron Parkway to its intersection with Parker Road.

(Ord. No. 2015-6-5, § II, 6-22-15)

McDermott Road:

(1) Forty (40) miles per hour along and upon McDermott Road from its intersection with Coit Road to its intersection with Custer Road;

(Ord. No. 89-8-24, § II, 8-28-89)

(2) Forty (40) miles per hour along and upon McDermott Road from its intersection with Preston Road to its intersection with Coit Road.

(Ord. No. 2001-7-11, § II, 7-23-01)

McKamy Trail:

(1) Thirty-five (35) miles per hour along and upon McKamy Trail from Midway Road to Round Springs Lane.

(Ord. No. 2008-7-13, § II, 7-28-08)

Merriman Drive:

(1) Thirty (30) miles per hour along and upon Merriman Drive from its intersection with San Gabriel Drive to its intersection with the east city limits.

Midway Road:

(1) Forty (40) miles per hour along and upon the northbound lanes of Midway Road from its intersection with the north right-of-way line of the Kansas City Southern Railroad to its intersection with the north right-of-way line of International Parkway;

(2) Forty (40) miles per hour along and upon Midway Road from its intersection with Park Boulevard to its intersection with Spring Creek Parkway.

(Ord. No. 2014-4-12, §§ II, III, 4-28-14)

North Star Road:

(1) Forty (40) miles per hour along and upon North Star Road from its intersection with Plano Parkway to its intersection with the south city limit line.

(Ord. No. 2011-4-12, § II, 4-25-11)

Ohio Drive:

(1) Thirty-five (35) miles per hour along and upon Ohio Drive from its intersection with the southern city limits to its intersection with the northern city limits.

(Ord. No. 98-12-28, § III, 12-28-98)

Park Boulevard:

(1) Thirty-five (35) miles per hour along and upon Park Boulevard from the east city limit line to its intersection with Shiloh Road;

(2) Thirty (30) miles per hour along and upon Park Boulevard from its intersection with Shiloh Road to its intersection with K Avenue;

(3) Forty (40) miles per hour along and upon Park Boulevard from its intersection with K Avenue to the west city limit line.

(Ord. No. 97-10-10, § III, 10-27-97; Ord. No. 2012-8-14, §§ II, III, 8-27-12)

Parker Road:

(1) Forty-five (45) miles per hour along and upon Parker Road from east city limits to Morton Vale;

(2) Forty (40) miles per hour along and upon Parker Road from Morton Vale to Jupiter Road;

(3) Thirty-five (35) miles per hour along and upon Parker Road from Jupiter Road to Avenue K;

(4) Forty (40) miles per hour along and upon Parker Road from Avenue K to the west city limits.

(Ord. No. 88-7-21, § II, 7-25-88; Ord. No. 89-3-14, § II, 3-15-89; Ord. No. 89-8-23, § II, 8-28-89; Ord. No. 90-1-10, § II, 1-8-90; Ord. No. 97-5-5, § III, 5-12-97; Ord. No. 2000-8-12, § II, 8-14-00; Ord. No. 2011-1-27, §§ II, III, 1-24-11)

Parkwood Boulevard:

(1) Forty (40) miles per hour along and upon Parkwood Boulevard from its intersection with Plano Parkway to its intersection with Windhaven Parkway;

(Ord. No. 2000-6-12, § II, 6-12-00)

(2) Forty (40) miles per hour along and upon Parkwood Boulevard between Spring Creek Parkway and State Highway 121;

(Ord. No. 2005-11-11, § II, 11-14-05)

(3) Forty (40) miles per hour along and upon Parkwood Boulevard from Windhaven Parkway to Spring Creek Parkway.

(Ord. No. 2009-2-12, § III, 2-17-09)

Plano Parkway:

(1) Forty-five (45) miles per hour along and upon Plano Parkway between 14th Street and K Avenue;

(Ord. No. 99-7-5, § III, 7-26-99; Ord. No. 2006-8-8, § II, 8-14-06)

(2) Forty (40) miles per hour along and upon Plano Parkway from K Avenue to west city limits.

(Ord. No. 99-7-5, § III, 7-26-99)

Premier Drive:

(1) Forty (40) miles per hour along and upon Premier Drive between Parker Road and Spring Creek Parkway.

(Ord. No. 2005-4-22, § II, 4-25-05; Ord. No. 2009-10-21, §§ III, IV, 10-26-09)

President George Bush Freeway (State Highway 190 Service Roads, President George Bush Turnpike Service Roads):

(1) Fifty-five (55) miles per hour along and upon the westbound President George Bush Freeway from Renner Road to northbound Central Expressway;

(2) Fifty-five (55) miles per hour along and upon the westbound President George Bush Freeway from Alma Drive to Coit Road.

(Ord. No. 98-10-17, § III, 10-26-98; Ord. No. 2000-4-7, § I, 4-10-00; Ord. No. 2001-2-26, §§ I—III, 2-26-01; Ord. No. 2007-7-6, § III, 7-23-07; Ord. No. 2007-8-6, § XV, 8-13-07)

Preston Road (State Highway 289):

(1) Forty-five (45) miles per hour along and upon Preston Road from south city limit to its intersection with State Highway 121;

(Ord. No. 89-2-7, § II, 2-13-89; Ord. No. 2023-9-25, § II, 9-26-23)

(2) Fifty-five (55) miles per hour along and upon Preston Road from a point twelve hundred (1200) feet north of Legacy Drive to its intersection with State Highway 121.

(Ord. No. 89-2-7, § II, 2-13-89)

Preston Meadow Drive:

(1) Thirty-five (35) miles per hour along and upon Preston Meadow Drive from its intersection with Parker Road to its intersection with Quincy Lane;

(2) Thirty-five (35) miles per hour along and upon Preston Meadow Drive from its intersection with Quincy Lane to its intersection with McDermott Road.

(Ord. No. 2010-8-20, § IV, 8-23-10)

Rasor Boulevard:

(1) Forty (40) miles per hour along and upon Rasor Boulevard from its intersection with Preston Road to its intersection with the Sam Rayburn Tollway.

(Ord. No. 2010-8-20, § II, 8-23-10)

Ridgeview Drive:

(1) Forty (40) miles per hour along and upon Ridgeview Drive between Custer Road and Coit Road.

(Ord. No. 2006-9-4, § II, 9-11-06)

Rio Grande Drive: Thirty (30) miles per hour along and upon Rio Grande Drive from its intersection with 15th Street to its intersection with Park Boulevard.

San Gabriel Drive:

(1) Thirty (30) miles per hour along and upon San Gabriel Drive from its intersection with Park Boulevard to its intersection with Parker Road.

Shiloh Road:

(1) Forty (40) miles per hour along and upon Shiloh Road from its intersection with Plano Parkway to its intersection with FM 544;

(2) Forty-five (45) miles per hour along and upon Shiloh Road from its intersection with the City of Plano's southern city limits to its intersection with Plano Parkway;

(Ord. No. 87-9-11, § III, 9-14-87)

(3) Thirty-five (35) miles per hour along and upon Shiloh Road from its intersection with 14th Street (FM 544) to its intersection with Park Boulevard.

(Ord. No. 87-9-11, § III, 9-14-87)

Spring Creek Parkway:

(1) Forty (40) miles per hour along and upon Spring Creek Parkway from its intersection with Parker Road to its intersection with Custer Road;

(2) Forty-five (45) miles per hour along and upon Spring Creek Parkway from its intersection with Custer Road to its intersection with the Sam Rayburn Tollway;

(3) Twenty (20) miles per hour along and upon Spring Creek Parkway service roads from the intersection of Spring Creek Parkway and Alma Drive to the intersection of Spring Creek Parkway and Blue Ridge Trail.

(Ord. No. 91-7-19, § II, 7-22-91; Ord. No. 92-3-15, § I, 3-12-92; Ord. No. 94-7-22, § II, 7-25-94; Ord. No. 2000-6-11, § II, 6-12-00; Ord. No. 2007-8-6, § XIV, 8-13-07; Ord. No. 2010-8-20, §§ III, IV, 8-23-10)

State Highway 121:

(1) Fifty (50) miles per hour along and upon State Highway 121 from the west city limits to its intersection with Rasor Boulevard;

(2) Fifty-five (55) miles per hour along and upon State Highway 121 from its intersection with Rasor Boulevard to the east city limits.

(Ord. No. 96-9-29, § III, 9-23-96; Ord. No. 2009-8-6, §§ 1, II, 8-10-09; Ord. No. 2009-10-7, § II, 10-12-09; Ord. No. 2020-6-9, § II, 6-22-20)

Tennyson Parkway:

(1) Forty (40) miles per hour along and upon Tennyson Parkway from its intersection with Preston Road to its intersection with Spring Creek Parkway;

(Ord. No. 89-8-24, § II, 8-28-89; Ord. No. 2004-2-11, § II, 2-9-04)

(2) Thirty-five (35) miles per hour along and upon Tennyson Parkway from its intersection with Preston Road to its intersection with Legacy Drive.

(Ord. No. 89-8-24, § II, 8-28-89)

Willow Bend Drive:

(1) Thirty-five (35) miles per hour along and upon Willow Bend Drive between Park Boulevard and Windhaven Parkway.

(Ord. No. 99-6-29, § II, 6-28-99; Ord. No. 2011-1-28, §§ II, III, 1-24-11)

Windhaven Parkway:

(1) Forty (40) miles per hour along and upon Windhaven Parkway from Spring Creek Parkway to Dallas Parkway;

(2) Forty (40) miles per hour along and upon Windhaven Parkway from its intersection with the Dallas North Tollway northbound service road west to the west city limits.

(Ord. No. 2000-5-28, § II, 5-22-00; Ord. No. 2009-10-21, § II, 10-26-09)

Winding Hollow Lane:

(1) Thirty (30) miles per hour along and upon Winding Hollow Lane from its intersection with Corinthian Bay Drive to its intersection with Masters Circle. (Ord. No. 85-8-10, § II, 8-12-1985; Ord. No. 91-4-28, § II, 4-22-1991)

(Ord. No. 72-10-2, § 1, 10-9-72; Ord. No. 78-5-3, § 1, 5-8-78; Ord. No. 80-9-15, § 1, 9-22-80; Ord. No. 80-9-16, § 1, 9-22-80; Ord. No. 80-9-17, § 1, 9-22-80; Ord. No. 80-9-21, § 1, 9-22-80; Ord. No. 80-9-22, § 1, 9-22-80; Ord. No. 80-9-23, § 1, 9-22-80; Ord. No. 80-9-24, § 1, 9-22-80; Ord. No. 80-9-26, § 1, 9-22-80; Ord. No. 80-9-27, § 1, 9-22-80; Ord. No. 80-9-28, § 1, 9-22-80; Ord. No. 80-11-3, § 1, 11-10-80; Ord. No. 80-11-12, § 1, 11-24-80; Ord. No. 80-11-14, § 1, 11-24-80; Ord. No. 80-11-15, § 1, 11-24-80; Ord. No. 81-1-10, § 1, 1-26-81; Ord. No. 81-5-9, § 1, 5-25-81; Ord. No. 81-8-15, § 1, 8-24-81; Ord. No. 81-9-19, § 1, 9-28-81; Ord. No. 81-11-7, § 1, 11-9-81; Ord. No. 82-1-11, § 1, 1-11-82; Ord. No. 82-3-9, § 1, 3-8-82; Ord. No. 82-5-12, § 1, 5-10-82; Ord. No. 82-11-2, § 1, 11-8-82; Ord. No. 83-3-26, § 1, 3-28-83; Ord. No. 83-6-18, § 2, 6-27-83; Ord. No. 83-6-20, § 2, 6-27-83; Ord. No. 83-8-17, § 2, 8-22-83; Ord. No. 83-9-3, § 1, 9-12-83; Ord. No. 83-11-5, § 2, 11-14-83; Ord. No. 84-3-13, § 2, 3-12-84; Ord. No. 84-7-9, § I, 7-9-84; Ord. No. 84-7-10, § II, 7-9-84; Ord. No. 84-8-22, § 2, 8-27-84; Ord. No. 84-8-23, § 1, 8-27-84; Ord. No. 84-11-2, § II, 11-12-84; Ord. No. 84-11-3, § 1, 11-12-84; Ord. No. 84-12-4, § I, 12-10-84; Ord. No. 85-6-16, § III, 6-10-85; Ord. No. 85-8-10, § I, 8-12-85; Ord. No. 85-8-22, § II, 8-26-85; Ord. No. 85-10-33, § II, 10-28-85; Ord. No. 85-12-8, § II, 12-12-85; Ord. No. 85-12-9, § II, 12-12-85; Ord. No. 85-12-13, § I, 12-12-85; Ord. No. 86-3-10, § II, 3-13-86; Ord. No. 86-3-11, §§ I, II, 3-13-86; Ord. No. 86-4-9, § II, 4-14-86; Ord. No. 86-5-3(R), §§ I, II, 5-12-86; Ord. No. 86-8-21, §§ I, II, 8-11-86; Ord. No. 86-8-23, § II, 8-11-86; Ord. No. 86-8-24, § II, 8-11-86; Ord. No. 91-4-18, § II, 4-22-19; Ord. No. 2020-6-9, § II, 6-22-20; Ord. No. 2023-9-25, § II, 9-26-23; Ord. No. 2024-8-11, § II, 8-26-24)

Editor's note—Commencing with Ord. No. 86-9-10, adopted Sept. 8, 1986, ordinances adding or amending speed zones in § 12-74 are listed in the history note following the particular zone affected. The following list shows ordinances amending § 12-74 and subsequently repealed:

Ord. No.	Date	Rpld. by Ord. No.	Sec.	Date
80-9-22	9-22-80	95-9-10	I	9-11-95
80-9-27	9-22-80	96-3-20	II	3-25-96
80-11-12	11-24-90	96-1-24	I	1-22-96
80-11-14	11-24-80	87-7-32	II	7-27-87
83-8-17	8-22-83	96-1-24	I	1-22-96
83-11-5	11-14-83	97-8-28	II	8-25-97
84-7-10	7- 9-84	95-11-21	I	11-20-95
84-8-22	8-27-84	91-7-18	VI	7-22-91
84-12-4	12-10-84	86-9-10	I	9- 8-86
85-12-8	12-12-85	87-9-11	II	9-14-87
86-4-9	4-14-89	87-9-11	II	9-14-87
86-8-23	8-11-86	96-1-24	I	1-22-96
86-8-24	8-11-86	87-9-34	III	9-28-87
87-7-4	7-13-87	95-9-11	I	9-11-95
87-7-10	7-11-87	95-11-21	I	11-20-95
87-8-20	8-24-87	88-10-13	I	10-10-88
87-8-20(§ I)	8-24-87	99-1-12	I	1-25-99
87-9-11(§ II)	9-14-87	97-4-25	II	4-28-97
87-9-34	9-28-87	95-9-10	II	9-11-95
87-9-34(§ III)	9-28-97	97-8-28	II	8-25-97
88-7-6	7-11-88	96-3-20	II	3-25-96
88-10-13(§§ I, II)	10-10-88	99-1-12	I	1-25-99
88-10-14	10-10-88	89-8-23	I	8-28-89
88-11-13	11-14-88	95-9-10	III	9-11-95
89-1-5(§ II)	1- 9-89	97-8-28	II	8-25-97
89-1-8	1- 9-89	93-11-12	II	11- 8-93
92-3-8	3-12-92	93-10-11	I	10-11-93
93-7-17(§ II)	7-26-93	97-5-5	II	5-12-97
93-11-14(§ II)	11- 8-93	95-12-28	I	12-21-95
94-3-22	3-28-94	96-1-24	I	1-22-96
95-1-20(§ II)	1-23-95	96-9-29	II	9-23-96
95-8-34(§ II)	8-28-95	96-11-23	I	11-25-96
95-9-11(§ III)	9-11-95	98-12-28	I	12-28-98
95-11-21(§ III)	11-20-95	97-10-10	II	10-27-97

Ord. No.	Date	Rpld. by Ord. No.	Sec.	Date
96-1-24(§ II)	1-22-96	99-7-5	I	7-26-99
96-3-20	3-20-96	2005-2-23	I	2-22-05
97-1-13(§ I)	1-27-97	2001-8-17	I	8-27-01
97-6-16(§ II)	6-23-97	98-8-16	III	8-10-98
98-8-16(§ III)	8-10-98	98-10-17	I	10-26-98
87-7-32(§ II)	7-27-87	2000-5-29	III	5-22-00
98-10-17	10-26-98	2001-2-26	I	2-26-01

Sec. 12-75. Maximum limits for certain trucks.

The following prima facie maximum speed limits indicated for trucks having a total of three (3) or more axles and a power unit with manufacturers rated carrying capacity in excess of three-quarters ton are hereby determined and declared to be reasonable and safe and such maximum speed limits are hereby fixed at the rate of speed indicated for trucks with three (3) or more axles traveling upon the named street or highway or parts thereof and no truck with three (3) or more axles shall be operated along or upon such portions of the named street or highway within the corporate limits of the city in excess of the speeds now set forth in the following limits:

(1) Thirty-five (35) miles per hour along and upon Plano Parkway from its intersection with Mira Vista Boulevard to its intersection with Jupiter Road.

(2) Thirty-five (35) miles per hour along and upon Spring Creek Parkway between Custer Road and Alma Drive.

(Ord. No. 85-6-16, § II, 6-10-85; Ord. No. 96-4-17, § II, 4-22-96)

Sec. 12-76. Maximum limits in alleys.

It shall be unlawful and an offense for any person to operate or drive any vehicle in any alley at a greater speed than ten (10) miles per hour.

(Ord. No. 69-6-2(P), § 1, 6-13-69)

Sec. 12-77. Reserved.

Editor's note—Ord. No. 97-2-11, §§ I, II, adopted Feb. 10, 1997, repealed former § 12-77 of the Code, which pertained to maximum limits in city parks and derived from Ord. No. 70-2-3, § 1, adopted Feb. 9, 1970.

Sec. 12-78. Speed limit signs.

Whenever this article or any other ordinance of the city modifies and alters the basic speed limit established in section 12-71 the traffic engineer shall cause signs to be posted at the several locations giving notice thereof and no such modification and alteration shall be effective unless such signs are in place.

(Ord. No. 67-10-3, § 2, 10-9-67)

Secs. 12-79—12-95. Reserved.

ARTICLE V. STOPPING, STANDING AND PARKING*

Sec. 12-96. Presumption that owner of vehicle illegally parked same.

In any prosecution charging a violation of any ordinance or regulation governing the standing or parking of a vehicle, proof that the particular vehicle described in the complaint was parked in violation of any such ordinance or regulation, together with proof that the defendant named in the complaint was, at the time of such parking, the owner of such vehicle, shall constitute in evidence a prima facie presumption that the owner of such vehicle was the person who parked or placed such vehicle at the point where, and for the time during which, such violation occurred.

Sec. 12-97. Ten feet of roadway to be left available to traffic.

No person shall stop, stand or park a vehicle under such conditions as to leave available less than ten (10) feet of the width of the roadway for free movement of vehicular traffic, except in obedience to traffic regulations or signs or the signals of a police officer, and except that a driver may stop temporarily for the unloading and loading of passengers.

(Ord. of 7-13-64, § 16-8-2)

*__State law reference—__Authority of city to regulate the stopping, standing and parking of vehicles, Vernon's Ann. Civ. St., art. 6701d, § 27(a)(1).

Sec. 12-98. Parking in median areas of major thoroughfares.

(a) It shall be unlawful to park a motor vehicle in the median areas between the pavement on major thoroughfares.

(b) The provisions of this section shall not apply to city vehicles and utility company trucks when engaged in the installation or repair of utility lines situated within the median areas.
(Ord. No. 72-10-8, §§ 1, 3, 10-23-72)

Sec. 12-98.1. No parking on thoroughfares.

(a) Except when necessary to avoid conflict with other traffic or in compliance with law or directions of a police officer or official traffic control device, it shall be unlawful for any person to park a motor vehicle:

(1) Within any portion of the right lane of the main traveled portion of a roadway on a street within the incorporated city limits, which street consists of four (4) or more lanes for vehicular travel and is a two-way street; or

(2) Within any portion of the right lane or of the left lane of the main-traveled portion of a roadway on a street within the incorporated city limits, which street consists of two (2) or more lanes for vehicular travel and is a one-way street.

(b) There shall be exemptions to the restrictions placed in subsection (a) above, that parking shall be permitted on the following designated streets or portions thereof:

(1) Along the north side of Park Boulevard from its intersection with Avenue N to a point seventy-five (75) feet west of its intersection with Avenue P;

(2) Along the north side of Park Boulevard from its intersection with Primrose Lane to its intersection with R Avenue;

(3) Along the north side of Park Boulevard from its intersection with Trailridge Drive to its intersection with Ridgewood Drive;

(4) Along the south side of Park Boulevard from its intersection with N Avenue to a point one hundred fifty (150) feet west of its intersection with P Avenue;

(5) Along the south side of Park Boulevard from a point seventy-five (75) feet east of its intersection with P Avenue to its intersection with Richmond Drive;

(6) Along the south side of Park Boulevard from its intersection with Trailridge Drive to its intersection with Peachtree Lane;

(7) Along the west side of Alma Drive from the third driveway south of W. 15th Street to the alley just north of Janwood Drive;

(8) Along the east and west side of Westwood Drive from its intersection with Carmel Drive to its intersection with Janwood Drive;

(9) Along the north side of Quincy Lane from its intersection with Ohio Drive to its intersection with Family Farm Lane.

(Ord. No. 93-11-20, §§ I, II, 11-8-93; Ord. No. 2000-5-26, § I, 5-22-2000; Ord. No. 2005-2-19, § I, 2-22-05)

Editor's note—Section I of Ord. No. 93-11-20, adopted Nov. 8, 1993, amended this chapter by the addition of a new section. Such section has been included herein as § 12-98.1 at the editor's discretion. Section II of said ordinance has been codified herein as § 12-98.1(b) also at the editor's discretion.

Sec. 12-99. Parallel and angle parking.

(a) At any place where official signs do not prohibit stopping or parking, except as otherwise provided by the city council, and so indicated by signs or markings, every vehicle stopped or parked, shall be so stopped or parked upon a roadway where there are adjacent curbs so that the right-hand wheels of such vehicle are parallel and within eighteen (18) inches of the right-hand curb, except where head-in parking is allowed.

(b) The department of public works, with the approval of the city council, shall determine upon which streets angle parking shall be permitted and shall mark or sign such streets, but such angle parking shall not be indicated upon any federal-aid or state highway within this city

unless the state engineer-director for highways and public transportation has determined that the roadway is of sufficient width to permit angle parking without interfering with the free movement of traffic. Angle parking shall not be indicated or permitted at any place where passing traffic would thereby be caused or required to drive upon the left side of the street or upon any railway tracks.

(c) Upon those streets which have been signed or marked for angle parking, no person shall park or stand a vehicle other than at the angle to the curb or edge of the roadway indicated by such signs or markings.

(d) Whenever parking spaces are marked by lines on the pavement, whether for parallel or angle parking, a vehicle must be parked entirely within the lines of the parking space.
(Ord. No. 61-9-3, § I, 9-11-61)

State law reference—Similar provisions, Vernon's Ann. Civ. St., art. 6701d, § 96.

Sec. 12-100. Prohibited in specified places.

No person shall stop, stand, or park a vehicle except when necessary to avoid conflict with other traffic or in compliance with law or directions of a police officer or traffic-control devices in any of the following places:

(1) On a sidewalk;

(2) In front of a public or private drive-way;

(3) Within an intersection;

(4) Within twenty (20) feet of a crosswalk at an intersection;

(5) Within thirty (30) feet on the approach to a flashing signal, stop sign, yield sign, or traffic-control signal located at the side of a roadway;

(6) Where signs are erected or curbs are painted indicating that such is not allowed.

(Ord. No. 61-9-3, §§ I, II, 9-11-61; Ord. No. 2009-8-20, § I, 8-24-09)

Sec. 12-101. Prohibited on certain streets at all times.

It shall be unlawful for any person to stop, stand, or park a motor vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or directions of a police officer in any of the following places within the city:

10th Street, along the south from its intersection with Jupiter Road to its intersection with Industrial Boulevard.
(Ord. No. 2008-9-9, § II, 9-8-08)

11th Street, along the north and south sides from its intersection with Avenue F to a point fifty (50) feet back of its intersection with Avenue F.

12th Place, along the north side from its intersection with Avenue K to its intersection with Avenue L.

12th Street, along the north and south sides from the east curb line of Avenue J to its intersection with Avenue K.
(Ord. No. 92-4-48, §§ I, II, 4-27-92)

13^{th}/14^{th} Connector:

(1) Along the north side from a point four hundred (400) feet east of the northbound Central Expressway frontage road to its intersection with G Avenue;

(2) Along the south side from its intersection with the northbound Central Expressway frontage road to a point five hundred and thirty (530) feet east of the northbound Central Expressway frontage road.
(Ord. No. 2023-1-11, § II, 1-23-23)

14th Street:

(1) Along the north side from its intersection with G Avenue to its intersection with Municipal Avenue exclusive of three-hour parking spaces located along the north side between its intersection with J Avenue and its intersection with Municipal Avenue.

(2) Along the south side from its intersection with G Avenue to its intersection with Shiloh Road.

(3) Along the north side from its intersection with Municipal Avenue to its intersection with Shiloh Road exclusive of the one-hour parking spaces and a twenty-minute loading zone located along the north side between its intersection with M Avenue and its intersection with N Avenue.

(4) Along the north side from its intersection with Dublin Road to a point three hundred (300) feet west of its intersection with Dublin Road.

(Ord. No. 2024-10-12, § II, 10-28-24)

15th Street:

(1) Along the north side of 15th Street from its intersection with the Dallas Area Rapid Transit Authority light rail tracks to its intersection with the northbound U.S. Highway 75 frontage road;

(2) Along the south side of 15th Street from its intersection with I Avenue to its intersection with the northbound U.S. Highway 75 frontage road;

(3) Along both sides of 15th Street from its intersection with Municipal Avenue/L Avenue to its intersection with M Avenue;

(4) Along the north side of 15th Street from its intersection with Jupiter Road to a point six hundred five (605) feet west of its intersection with Jupiter Road;

(5) Along the south side of 15th Street from its intersection with Jupiter Road to a point seven hundred forty-five (745) feet west of its intersection with Jupiter Road.

(Ord. No. 91-10-24, § I, 10-28-91; Ord. No. 92-4-41, §§ I, II, 4-27-92; Ord. No. 2007-8-6, § XVII, 8-13-07; Ord. No. 2015-3-13, § II, 3-23-15)

16th Street:

(1) Along both sides from its intersection with Alma Drive to its intersection with southbound Central Expressway;

(2) Along the south side of 16th Street from northbound Central Expressway to Avenue E;

(3) Along the south side of 16th Street between a point thirty-five (35) feet west of I Avenue and its intersection with I Avenue.

(Ord. No. 2006-5-11, §§ I, II, 5-8-06; Ord. No. 2007-8-6, § XVIII, 8-13-07)

17th Street. Repealed.

(Ord. No. 2006-3-14, § I, 3-27-06)

18th Street:

(1) Along the north side of 18th Street between its intersection with Central Expressway and its intersection with G Avenue and along the south side between its intersection with Central Expressway and a point three hundred sixty (360) feet west of its intersection with G Avenue;

(2) Along both sides of 18th Street between its intersection with J Avenue and its intersection with K Avenue;

(3) Along the north side of 18th Street from its intersection with L Avenue to its intersection with N Avenue;

(4) Along the south side of 18th Street from its intersection with P Avenue to its intersection with the alley west of R Avenue.

(Ord. No. 93-5-1, § II, 5-3-93; Ord. No. 2006-11-13, §§ I, III, 11-13-06; Ord. No. 2011-8-13, §§ II, III, 8-22-11)

19th Street:

(1) Along the south side of 19th Street from a point five hundred ten (510) feet east of its intersection with K Avenue to its intersection with N Avenue;

(2) Along the south side of 19th Street from its intersection with N Place to its intersection with P Avenue.

(Ord. No. 2011-8-13, §§ II, III, 8-22-11)

20th Street:

(1) Along the south side of 20th Street from its intersection with K Avenue to a point one hundred seventy-five (175) feet west of its intersection with K Avenue.

(Ord. No. 2022-2-4, § II, 2-14-22)

22nd Street, along both sides from its intersection with Avenue K to its intersection with Avenue I.

Alliance Boulevard, along both sides of Alliance Boulevard between Preston Road and Allied Drive.
(Ord. No. 2006-10-22, § II, 10-23-06)

Allied Drive:

(1) Along the east side of Allied Drive from its intersection with Plano Parkway to its intersection with Alliance Boulevard.
(Ord. No. 2024-3-3, § II, 3-19-24)

Alma Drive:

(1) Along both sides from its intersection with Spring Creek Parkway;

(2) Along both sides from its intersection with Spring Creek Parkway to the northern end of the existing concrete roadway;

(3) Along both sides from its intersection with West 15th Street to its intersection with 16th Street;

(4) Along the west side from its intersection with 15th Street/Norman Whitsitt Parkway to its intersection with the third driveway south of 15th Street/Norman Whitsitt Parkway;

(5) Along the west side from its intersection with Longhorn Drive to its intersection with Seabrook Drive;

(6) Along and upon the west side from Janwood Drive to the first alley north of Janwood Drive;
(Ord. No. 91-7-7, § II, 7-8-91)

(7) Along and upon the eastside from the northern drive entrance to Collin Creek Mall located south of 15th Street to a point two hundred (200) feet south of the northern drive entrance to Collin Creek Mall located south of 15th Street;
(Ord. No. 91-7-7, § II, 7-8-91)

(8) Along the east side of Alma Drive from its intersection with 15th Street (FM 544), and continuing in a southerly direction to its intersection with second driveway south of 15th Street (FM 544).
(Ord. No. 92-6-5, § II, 6-8-92)

Antoine Drive, along and upon the south side of its entire length in Ruisseau Place Phase II.
(Ord. No. 88-3-32, § II, 3-28-88)

Apple Valley Road: along the south side of Apple Valley Road from its intersection with Old Orchard Drive to a point seventy-five (75) feet east of Old Orchard Drive.
(Ord. No. 2002-10-19, § II, 10-14-02)

Archerwood Drive, no stopping, standing, or parking anything along the east or west sides of Archerwood Drive from its intersection with Park Boulevard and continuing in a northerly direction to its intersection with Parker Road.
(Ord. No. 92-4-40, §§ I, II, 4-27-92)

Ashmill Drive, along both sides of Ashmill Drive from its intersection with Bishop Road to its intersection with Dallas Parkway.
(Ord. No. 2013-6-12, § II, 6-24-13)

Avenue F, along the east and west sides from its intersection with 11th Street to a point fifty (50) feet back of its intersection with 11th Street.
(Ord. No. 90-4-11, § II, 4-9-90)

Avenue G:

(1) Along both sides between 15th Street and 16th Street;

(2) Along both sides between 18th Street and 19th Street;

(3) Along the east side from the north property line of the Douglass Community Center to the south property line of the Douglass Community Center.
(Ord. No. 88-7-23, § II, 7-25-88; Ord. No. 2006-11-13, §§ II, IV, 11-13-06)

Avenue I:

(1) Along the west side of Avenue I between 14th Street and 15th Street;

(2) Along the east side of Avenue I from 14th Street to one hundred seventy (170) feet south of 15th Street;

(3) Along the east side of I Avenue between its intersection with 16th Street and a point seventy-five (75) feet north of its intersection with 16th Street;

(4) Along the west side of I Avenue between its intersection with 17th Street and a point seventy-five (75) feet north of its intersection with 16th Street.

(Ord. No. 98-4-5, § III, 4-13-98; Ord. No. 2003-4-13, §§ I, II, 4-14-03; Ord. No. 2006-5-11, §§ I, II, 5-8-06)

Avenue J:

(1) Along the west side and the east side from its intersection with 15th Street to its intersection with 15th Place;

(Ord. No. 86-12-6, § I, 12-8-86)

(2) Along the east and west sides from the north curb line of 12th Street to the south curb line of 12th Place.

(Ord. No. 92-4-48, §§ I, II, 4-27-92)

Avenue K:

(1) Along both sides from its intersection with 14th Street to its intersection with the St. Louis Southwestern Railroad;

(2) Along both sides from the north side of its intersection with 15th Street to the south side of its intersection with 19th Street;

(3) Along the west side from the south side of its intersection with 15th Street to its intersection with 14th Street;

(4) Along the east and west sides of Avenue K from the north curb line of Capital Avenue to the St. Louis and Southwestern Railroad.

(Ord. No. 92-4-48, §§ I, II, 4-27-92)

Avenue L:

(1) Along the east side from its intersection with 14th Street for a distance of twenty-five (25) feet north;

(2) Along the west side from 14th Street to 15th Street.

Avenue R:

(1) Along both sides from its intersection with Jasmine Lane northward to its northernmost extremity;

(2) Along the east side from Laurel Lane north to its intersection with Jasmine Lane;

(3) Along the east side from its intersection with Laurel Lane to its intersection with Jasmine Lane;

(4) Along the east side of Avenue R from the alley immediately south of 18th Street to the alley immediately north of 17th Street.

(Ord. No. 98-3-7, § II, 3-16-98)

Baffin Bay Drive:

(1) Along the north side from its intersection with Country Place Drive to a point sixty (60) feet west of its intersection with Country Place Drive;

(2) Along the north side from its intersection with Custer Road to its intersection with Las Palmas;

(3) Along the south side from its intersection with Custer Road to its most eastern extremity.

Banner Elk Circle, along the southeast side from its intersection with Quarry Chase Trail to a point four hundred eighty (480) feet northeast of its intersection with Quarry Chase Trail.

(Ord. No. 2008-11-26, § II, 11-24-08)

Bishop Road, along the east side of Bishop Road from its intersection with Tennyson Parkway to a point eighty-five (85) feet north of its intersection with Tennyson Parkway.

(Ord. No. 2012-2-16, § II, 2-27-12)

Blackwood Drive:

(1) Along both sides of Blackwood Drive from its intersection with Lorimar Drive to its intersection with Bear Run Drive.

(Ord. No. 2025-6-21, § II, 6-23-25)

Blue Ridge Trail, along the west side from the south property line of Blue Ridge Park six hundred twenty-eight (628) feet north to the school property line.

Bradshaw Drive:

(1) Along the east side of Bradshaw Drive from a point sixty (60) feet north of its intersection with Bridgewater Street and a point fifty (50) feet south of its intersection with Bridgewater Street.

(Ord. No. 2020-10-9, § II, 10-26-20)

Bravura Drive:

(1) Along the west side of Bravura Drive from its intersection with 14th Street and its intersection with Dolente Drive.

(Ord. No. 2024-11-6, § II, 11-25-24)

Bronze Leaf Drive, along both sides of Bronze Leaf Drive from a point fifty (50) feet south of its intersection with the Bluebonnet Trail to a point fifty (50) feet north of its intersection with the Bluebonnet Trail.

(Ord. No. 2013-10-20, § II, 10-28-13)

Buckboard Drive, along the west side from its intersection with East Parker Road northward to its intersection with Windmill Lane. This provision shall expire on February 1, 2010.

(Ord. No. 2009-7-12, § II, 7-27-09)

Capital Avenue:

(1) Along the north side from its intersection with K Avenue to a point one thousand one hundred (1,100) feet east of its intersection with K Avenue;

(2) Along the south side from its intersection with K Avenue to a point one thousand two hundred fifty (1,250) feet east of its intersection with K Avenue;

(3) Along the south side from its intersection with Stewart Avenue to a point seven hundred fifty-five (755) feet west of its intersection with Stewart Avenue.

(Ord. No. 2008-9-9, § II, 9-8-08; Ord. No. 2019-11-1, § II, 11-11-19)

Carriage Lane, along the east side of Carriage Lane from its intersection of Parker Road to its intersection with Scottsdale Drive.

(Ord. No. 96-9-4, § II, 9-9-96)

Central Parkway,

(1) Along both sides from its intersection with northbound Central Expressway to its intersection with Haggard Street.

(Ord. No. 2007-8-6, § XIX, 8-13-07)

Channel Isle Drive:

(1) Along the south side from its intersection with Winding Hollow Lane to its intersection with the West Property line of Old Shepard Place Park;

(2) Along the west side from the west property line of Huffman Elementary School to the north property line of White Rock Trail Park.

Chattham Court:

(1) Along the island formed by Chattham Court and Georgetown Drive; specifically, along the north side of Chattham Court between its southernmost intersection with Georgetown Drive and a point one hundred sixteen (116) feet in a northeasterly direction from its intersection with Georgetown Drive;

(2) Along the island formed by Chattham Court and Georgetown Drive; specifically, along the south side of Chattham Court between its northernmost intersection with Georgetown Drive and a point one hundred twenty (120) feet in a southeasterly direction from its intersection with Georgetown Drive.

(Ord. No. 2014-11-4, § II, 11-10-14)

Coit Road, along both sides from the north boundary of the Coit Road Athletic Complex north of Spring Creek Parkway southward to the southern boundary of the Coit Road Athletic Complex.

Cloverhaven Way:

(1) Along both sides between Bright Star Way and Los Rios Boulevard;

(2) Along the west side between Bright Star Way and a point eighty-five (85) feet north of Bright Star Way.

(Ord. No. 2005-5-5, § II, 5-9-05)

Commerce Drive:

(1) Along the west side of Commerce Drive from two hundred fifty (250) feet north of its intersection with Plano Parkway to its intersection with 15th Street;

(Ord. No. 95-8-36, § II, 8-28-95)

(2) Along the east side of Commerce Drive from the first driveway north of the fire lane extending from Coit Road southward to the first drive south of the fire lane;

(Ord. No. 95-8-36, § II, 8-28-95)

(3) Along the east side of Commerce Drive from its intersection with Eldorado Drive south for a distance of ninety (90) feet.

(Ord. No. 91-10-21, § I, 10-28-91; Ord. No. 95-7-27, § I, 7-24-95; Ord. No. 95-8-36, § II, 8-28-95)

Copper Creek Drive, along the east side and along the entire frontage of Chisholm Trail Greenbelt (four hundred ninety-seven (497) feet).

Country Place Drive:

(1) Along both sides between Custer Road and a point two hundred (200) feet east of Custer Road.

(Ord. No. 2005-9-7, § II, 9-12-05)

Creekcove Drive:

(1) Along the north side of Creekcove Drive from its intersection with Jupiter Road to a point fifty (55) feet east of its intersection with Jupiter Road;

(2) Along the south side of Creekcove Drive from its intersection with Jupiter Road to a point sixty (60) feet east of its intersection with Jupiter Road.

(Ord. No. 2021-5-15, § II, 5-24-21)

Cross Bend Road, along both sides of Cross Bend Road from its intersection with Wagonwheel Court to its intersection with the alley east of Wagonwheel Court.

(Ord. No. 2011-8-13, § III, 8-22-11)

Custer Road, along the west side from its intersection with Glencliff Drive to its intersection with Grandview Drive.

Dalston Lane, along and upon the south side from its intersection with Coit Road to its intersection with Biltmore Place.

(Ord. No. 88-6-8, § II, 6-13-88)

Del Sol Drive, along the west side of Del Sol Drive from its intersection with 14th Street to its intersection with Hillridge Drive.

(Ord. No. 2013-3-6, § II, 3-25-13)

Denham Way, along and upon the south side between Preston Meadow Drive and Coit Road.

(Ord. No. 93-10-9, § II, 10-11-93)

Devonshire Drive, along the north side from its intersection with Independence Parkway to its intersection with Huntington Drive.

Dewberry Court, along the south side of Dewberry Court from its intersection with Kimbrough Lane to a point one hundred sixty (160) feet east of its intersection with Kimbrough Lane.

(Ord. No. 2017-4-7, § II, 4-24-17)

Dickens Drive, along the west side of Dickens Drive from its intersection with Wedgegate Drive to a point two hundred thirty-five (235) feet north of its intersection with Kipling Drive.

(Ord. No. 2012-2-16, § II, 2-27-12)

Dolente Drive:

(1) Along the north side of Dolente Drive from its intersection with Bravura Drive and its intersection with Veloce Drive.

(2) Along the south side of Dolente Drive from its intersection with Bravura Drive and a point fifty (50) feet west of its intersection with Bravura Drive.

(3) Along the south side of Dolente Drive from its intersection with Veloce Drive and a point forty (40) feet east of its intersection with Veloce Drive.

(Ord. No. 2024-11-6, § II, 11-25-24)

Dorchester Drive:

(1) Along the west side of Dorchester Drive from its intersection with Regal Road southward to the end of the ninety (ninety) degree curve;

(2) Along the east/north side of Dorchester Drive from its intersection with Regal Road to its intersection with Mill Valley Drive.

(Ord. No. 2019-3-7, § II, 3-19-19)

Downtown parking lot, the north side adjacent to and east of the drive on 15th Street, and the south side adjacent to and east of the drive on 14th Street (FM 544).

(Ord. No. 86-12-4, § I, 12-8-86)

East Creek Place, along the north side and along or within any cul-de-sac area.

East Lane Place, along the north side and along or within any cul-de-sac area.

East Port Place, along the north side and along or within any cul-de-sac area.

Eastglen Place, along the north side and along or within any cul-de-sac area.

Eastside Connector:

(1) Along both sides of Eastside Connector from its intersection with Plano Parkway to its intersection with Preston Road.

(Ord. No. 2023-3-6, § II, 3-21-23)

Eastvale Place, along the north side and along or within any cul-de-sac area.

Eldorado Drive, both sides from its intersection with Coit Road to its intersection with the first alley west of Coit Road.

Emerson Drive:

(1) Along the north side from its intersection with Preston Meadow Drive to a point one hundred forty-five (145) feet west of its intersection with Virginia Drive until July 31, 2024.

(Ord. No. 2022-11-6, § II, 11-28-22)

Exchange Drive:

(1) Along both sides of Exchange Drive from its intersection with Archerwood Street west to its intersection with the northbound frontage road of U.S. Highway 75.

(Ord. No. 2009-9-10, § III, 9-14-09)

Franc Drive, along the west side of Franc Drive between Plano Parkway and Guilder Drive.

(Ord. No. 2005-10-36, § II, 10-24-05)

Fulgham Road, along both sides of Fulgham Road from its intersection with Plano Parkway to a point one hundred twenty (120) feet south of Plano Parkway:

(Ord. No. 2008-3-9, § II, 3-25-08)

Gifford Drive, along the east side of Gifford Drive from its intersection with McDermott Road to a point one hundred sixty-four (164) feet south of its intersection with McDermott Road.

(Ord. No. 2012-2-16, § II, 2-27-12)

Grafton Lane:

(1) Along the north side of Grafton Lane from its intersection with Ohio Drive to a point six hundred twenty (620) feet west of its intersection with Ohio Drive;

(2) Along the south side of Grafton Lane from its intersection with Ohio Drive to a point six hundred ten (610) feet west of its intersection with Ohio Drive.

(Ord. No. 2023-9-23, § II, 9-26-23)

Grandview Drive:

(1) Along the north side of Grandview Drive from a point five hundred sixty (560) feet west of its intersection with Custer Road to a point four hundred twenty (420) feet west of its intersection with Custer Road.

(Ord. No. 2024-3-3, § II, 3-19-24)

Guilder Drive, along the south side of Guilder Drive from Krona Drive west to Franc Drive.

(Ord. No. 2005-10-7, § II, 10-10-05)

H Avenue:

(1) Along the east side from 15th Street to a point two-hundred forty (240) feet north;

(2) Along the west side of H Avenue from its intersection with 14th Street to a point two hundred fifty (250) feet north of 14th Street.

(Ord. No. 95-2-40, § II, 2-27-95; Ord. No. 2017-2-4, § I, 2-13-17)

Hamptondale Road, no parking on the north or south sides of Hamptondale Road from its intersection with Willow Bend Drive to and including 5500 Hamptondale Road from 9:00 a.m. to 4:00 p.m. on school days.

(Ord. No. 2000-7-6, § II, 7-24-00)

Highedge Drive:

(1) Along the east side from its intersection with 15th Street to its intersection with Delmar Drive;

(2) Along the west side from its intersection with 15th Street to its intersection with Bluffton Drive.

(Ord. No. 87-7-33, § II, 7-27-87; Ord. No. 2022-2-6, § II, 2-14-22)

Hillridge Drive:

(1) Along the south side of Hillridge Drive from its intersection with Del Sol Drive to a point thirty (30) feet east of its intersection with Del Sol Drive;

(2) Along the south side of Hillridge Drive from a point ninety-six (96) feet east of its intersection with Del Sol Drive to a point three hundred six (306) feet east of its intersection with Del Sol Drive;

(3) Along the south side of Hillridge Drive from a point three hundred seventy-two (372) feet east of its intersection with Del Sol Drive to a point six hundred thirty-four (634) feet east of its intersection with Del Sol Drive;

(4) Along the south side of Hillridge Drive from a point seven hundred (700) feet east of its intersection with Del Sol Drive to a point nine hundred thirty-four (934) feet east of its intersection with Del Sol Drive;

(5) Along the south side of Hillridge Drive from a point one thousand (1,000) feet east of its intersection with Del Sol Drive to a point one hundred fourteen (114) feet west of its intersection with Shiloh Road;

(6) Along the south side of Hillridge Drive from a point forty-eight (48) feet west of its intersection with Shiloh Road to its intersection with Shiloh Road.

(Ord. No. 2015-9-15, § II, 9-28-15)

Huntington Drive:

(1) Along the west side of Huntington Drive from its intersection with Park Boulevard to a point one hundred thirty (130) feet north of its southernmost intersection with Newcastle Circle.

(Ord. No. 2024-10-11, § I, 10-28-24)

Independence Parkway:

(1) Along the east side from its intersection with Park Boulevard to its intersection with Parkhaven Drive;

(2) Along the west side of Independence Parkway from its intersection with Park Boulevard and continuing in a southerly direction to its intersection with the first driveway to Resurrection Lutheran Church.

(Ord. No. 92-6-6, § II, 6-8-92)

Infinity Avenue, along the north side of Infinity Avenue from its intersection with Ruthie Road to a point one hundred thirty-six (136) feet west of its intersection with Ruthie Road.

(Ord. No. 2012-2-16, § II, 2-27-12)

Interlaken Drive, along both sides from its intersection with Matterhorn Drive to its intersection south of the alley south of Tapestry Court.

J Place, along both sides from its intersection with Plano Parkway to its intersection with the Southern Pacific Railroad tracks.

Jomar Drive, along the south side from its intersection with Coit Road to its intersection with Medical Avenue.

(Ord. No. 90-9-24, § II, 9-24-90)

Jupiter Road:

(1) Along the west side from its intersection with Laurel Lane to the northern end of the existing roadway of Jupiter Road;

(2) Along the west side from its intersection with Moore Drive to its intersection with Laurel Lane;

(3) Along both sides from its intersection with Laurel Lane to its intersection with Park Boulevard;

(Ord. No. 86-12-5, § I, 12-8-86)

(4) Along the west side beginning at the south curb line of 17th Street and continuing south to the north curb line of 15th Street, a distance of five hundred eighty (580) feet more or less;

(5) Along both the east and west sides of Jupiter Road from its intersection with Parker Road to its intersection with Spring Creek Parkway.

(Ord. No. 93-9-52, § II, 9-27-93)

Karen Court, along the north side of Karen Court from a point one hundred sixty-five (165) feet west of Merriman Drive to a point two hundred twenty-five (225) feet west of Merriman Drive.

(Ord. No. 2004-3-28, § II, 3-22-04)

Kimbrough Lane:

(1) Along the north side of Kimbrough Lane from its intersection with Coit Road to its intersection with Berwick Drive.

(Ord. No. 2024-6-5, § II, 6-10-24)

Klein Road, along the east side of Klein Road from Plano Parkway to Technology Drive.

(Ord. No. 99-4-21, § II, 4-26-99)

Lakebrook Drive, along and upon the south side of Lakebrook Drive from its intersection with Silver Lake Drive to a point 380 feet southeast of its intersection with Silver Lake Drive.

(Ord. No. 2019-4-10, § II, 4-22-19)

Laurel Lane:

(1) Along both sides from its intersection with Jupiter Road to its intersection with the first driveway west of Jupiter Road;

(2) Along the north side from the first driveway west of Jupiter Road west to its intersection with Avenue R.

Lexington Drive, along the north side from its intersection with Alma Road to its intersection with Pebble Vale Drive, and on the south side from Pebble Vale Drive to the western drive entrance to Fellowship Bible Church.

(Ord. No. 89-11-12, § II, 11-13-89)

Lockhart Drive, along and upon the north side of Lockhart Drive from its intersection with Alma Drive to its intersection with Tyler Court.

(Ord. No. 88-12-6, § II, 12-12-88; Ord. No. 2016-6-11, § I, 6-13-16)

M Avenue:

(1) Along the east side of M Avenue between its intersection with 14th Street and its intersection with 15th Street exclusive of the one-hour parking spaces.

(Ord. No. 2011-8-13, § III, 8-22-11; Ord. No. 2024-10-12, § I, 10-28-24)

Marlborough Drive, along the east side from its intersection with Silverwood Lane to its intersection with Evans Park.

Matterhorn Drive, along the south side from the entrance of the Saigling Elementary School parking lot west to Interlaken Drive.

Maumelle Drive, along the south side from Independence Parkway twelve hundred twenty-one (1221) feet to the east to the school property line.

Merriman Drive:

(1) Along the north side of Merriman Drive from its intersection with Los Rios Boulevard to its intersection with Jeker Drive.

(2) Along the south side of Merriman Drive from its intersection with Los Rios Boulevard to its intersection with Wilma Lane.

(3) Along the south side of Merriman Drive from a point one hundred twenty-five (125) feet west of its intersection with Karen Court to its intersection with Jeker Drive.

(4) Along the north side of Merriman Drive from its intersection with Los Rios

Boulevard to a point one hundred forty (140) feet west of its intersection with Los Rios Boulevard.

(Ord. No. 88-10-15, § II, 10-10-88; Ord. No. 2003-7-14, §§ I—III, 7-28-03; Ord. No. 2004-2-10, § II, 2-9-04; Ord. No. 2020-2-12, § II, 2-24-20; Ord. No. 2023-8-2, § II, 8-14-23)

Mill Valley Drive:

(1) Along both sides from its intersection with West 15th Street to its intersection with Windsor Place;

(2) Along the west side from its intersection with FM 544 (15th Street, Norman F. Whitsitt Parkway) to its intersection with Clear Springs Drive.

Mission Ridge, along the west side from the center line of Parkhaven south seven hundred fifty (750) feet to the first residential lots siding on Mission Ridge.

Moore Drive, along the south side from Jupiter Road nine hundred (900) feet to the west.

Mosswood Drive, along the north side from its intersection with Cloverhaven Way to a point fifty (50) feet west of its intersection with Cloverhaven Way.

(Ord. No. 2009-5-9, §§ I, II, 5-11-09)

Municipal Drive, along the west side of Municipal Drive from its intersection with 15th Street to its intersection with Avenue K.

(Ord. No. 91-10-22, § I, 10-28-91)

N Avenue:

(1) Along both sides of N Avenue from its intersection with Plano Parkway to a point two hundred thirty (230) feet north of its intersection with Capital Avenue;

(2) Along the west side of N Avenue from its intersection with 18th Street to its intersection with 19th Street;

(3) Along the east side of N Avenue from its intersection with Williamsburg Drive to its intersection with East Park Boulevard.

(Ord. No. 2008-9-9, § II, 9-8-08; Ord. No. 2011-8-13, § III, 8-22-11)

Northbound Central Expressway:

(1) Along the east side from its intersection with 18th Street to its intersection with Central Parkway;

(2) Along the east side from its intersection with 14th Street to its intersection with 15th Street.

(Ord. No. 2007-8-6, § XXII, 8-13-07)

North Star Road:

(1) Along the east side from the south city limits to the north property line of Otto Middle School.

(Ord. No. 2022-10-11, § II, 10-24-22)

Notre Dame Drive, along the east side from its intersection with McFarland Drive to a point one hundred thirty-five (135) feet south of its intersection with Carnegie Lane.

(Ord. No. 2008-9-9, § II, 9-8-08)

Oakland Hills Drive, along the south side of Oakland Hills Drive from its intersection with Daly Drive to its intersection with Floyd Drive.

(Ord. No. 2011-8-13, § III, 8-22-11)

Oklahoma Avenue, along the north side of Oklahoma Avenue between its intersection with Des Moines Drive and its intersection with Texana Way.

(Ord. No. 2021-2-16, § II, 2-22-21)

Old Orchard Drive:

(1) Along the east side from its intersection with the alley south of Pheasant Run to its intersection with Maumelle Drive;

(2) Along the east side of Old Orchard Drive from its intersection with Turtle Point Drive to its intersection with W. Spring Creek Parkway;

(3) Along the west side of Old Orchard Drive from a point thirty (30) feet north of Apple Valley Road to a point two hundred fifty-five (255) feet south of Apple Valley Road.

(Ord. No. 2002-10-19, § II, 10-14-02; Ord. No. 2004-6-17, § I, 6-28-04)

Ozark Drive:

(1) Along both sides of Ozark Drive from its intersection with Archerwood Street west to point three hundred seventy-five (375) feet west of its intersection with Archerwood Street;

(2) Along both sides of Ozark Drive from a point five hundred seventy-five (575) feet west of its intersection with Archerwood Street west to its intersection with the northbound frontage road of U.S. Highway 75.

(Ord. No. 98-4-4, § II, 4-13-98; Ord. No. 2009-9-10, §§ II, III, 9-14-09)

Park Boulevard:

(1) Along both sides from its intersection with Jupiter Road to its intersection with Trailridge Drive;

(2) Along both sides from its intersection with Shiloh Road to its intersection with San Gabriel Drive;

(3) Along both sides from its intersection with southbound Central Expressway to its intersection with Chisholm Place;

(Ord. No. 2007-8-6, § XX, 8-13-07)

(4) Along the north side from a point one hundred fifty (150) feet east of its intersection with Avenue P to a point seventy-five (75) feet west of its intersection with Avenue P;

(5) Along the south side from a point one hundred fifty (150) feet west of its intersection with Avenue P to a point seventy-five (75) feet east of its intersection with Avenue P;

(6) Along both sides from its intersection with Alma Drive to its intersection with Shiloh Road;

(7) Along both sides from Avenue K to Avenue M;

(8) Along the north side from Avenue P to Primrose Lane;

(Ord. No. 86-9-32, § I, 9-22-86)

(9) Along the north side from Ridgewood Drive to Shiloh Road;

(Ord. No. 86-9-32, § I, 9-22-86)

(10) Along the south side from Richmond Drive to Jupiter Road;

(Ord. No. 86-9-32, § I, 9-22-86)

(11) Along the south side from Peachtree Lane to Shiloh Road.

(Ord. No. 86-9-32, § I, 9-22-86)

Park Meadow Lane, along the north side of Park Meadow Lane from its intersection with Communications Parkway to a point two hundred forty (240) feet west of its intersection with Communications Parkway.

(Ord. No. 2016-10-23, § II, 10-25-16)

Park Vista Road:

(1) Along both sides of Park Vista Road from a point five hundred twenty (520) feet south of its intersection with Glenscape Circle to the Kansas City Southern railroad tracks.

(Ord. No. 2021-6-14, § II, 6-28-21)

Parkhaven Drive, along south side of Parkhaven Drive between a point one hundred twenty (120) feet west of Winterplace Circle and a point one hundred sixty (160) feet east of Winterplace Circle.

(Ord. No. 2008-7-15, § II, 7-28-08)

Pebble Vale Drive:

(1) Along the west side of Pebble Vale Drive from its intersection with Enterprise Drive to a point three hundred (300) feet north of its intersection with Enterprise Drive.

(Ord. No. 2024-3-3, § II, 3-19-24)

Placid Avenue:

(1) Along the east side from a point two hundred sixty-five (265) feet north of its intersection with Precision Drive to a point four hundred ninety-six (496) feet north of its intersection with Precision Drive;

(2) Along the west side from a point three hundred fifty-four (354) feet north of its intersection with Precision Drive to a

point four hundred twenty-five (425) feet north of its intersection with Precision Drive.

(Ord. No. 2009-5-9, §§ I, II, 5-11-09)

Plano Parkway:

(1) Along both sides from its intersection with Jupiter Road to its intersection with Independence Parkway;

(2) Along the north side from its intersection with Winding Hollow Lane to its intersection with the first driveway west of Winding Hollow Lane.

Pleasant Valley Drive:

(1) Along the east side of Pleasant Valley Drive from a point one thousand three hundred eighty (1,380) feet east of Roundrock Trail to a point one thousand seven hundred thirty (1,730) feet east of Roundrock Trail;

(Ord. No. 2003-5-6, § I, 5-12-03)

(2) Along the west side of Pleasant Valley Drive from a point one thousand four hundred twenty (1,420) feet east of Roundrock Trail to a point one thousand seven hundred twenty (1,720) feet east of Roundrock Trail (from one hundred (100) feet south of the apartment complex driveway to one hundred seventy-five (175) feet north of the apartment complex driveway)."

(Ord. No. 2002-10-19, § II, 10-14-02)

Potomac Drive:

(1) Along both sides of Potomac Drive from its intersection with Ridgefield Drive/Quill Drive to the first alley west of the intersection.

(Ord. No. 2024-3-3, § II, 3-19-24)

Premier Drive:

(1) Along the west side of Premier Drive from the intersection of the eastern leg of Lexington Drive to a point eight hundred fifty (850) feet south of the eastern leg of Lexington Drive;

(2) Along the east side of Premier Drive from the intersection of the eastern leg of Lexington Drive to a point thirteen hundred (1,300) feet south of the eastern leg of Lexington Drive.

(Ord. No. 98-4-3, § III, 4-13-98; Ord. No. 2003-7-13, §§ I—III, 7-28-03)

Preston Park Boulevard, along both sides from its intersection with Park Boulevard on the north to its intersection with Preston Road (SH 289) on the west.

Preston Park Court, along both sides from its intersection with Old Shepard Place on the south to its intersection with Preston Park Boulevard on the north.

Prestwick Drive, along the east side of Prestwick Drive from its intersection with Park Boulevard to a point three hundred (300) feet north of Park Boulevard.

(Ord. No. 95-6-11, § II, 6-12-95)

Primrose Lane, along the east side from its intersection with Park Boulevard to its intersection with Hawthorne Road.

Promenade Drive, along and upon the east side of Promenade Drive from its intersection with Panorama Drive to its intersection with Antoine Drive.

(Ord. No. 88-3-32, § II, 3-28-88)

Promontory Point, along the east side from its intersection with Solarium Place to its intersection with Park Boulevard.

(Ord. No. 90-2-7, § II, 2-12-90)

Puma Road:

(1) Along both sides from its intersection with Avenue R to a point where Puma Road makes a ninety-degree turn;

(2) Along west side of Puma Road from a point where Puma Road makes a 90 degree turn to Felix Drive.

(Ord. No. 2023-9-24, § II, 9-26-23)

Quarry Chase Trail:

(1) Along the east side from its intersection with Legacy Drive to its intersection with Banner Elk Circle;

(Ord. No. 91-12-30, § I, 12-23-91)

(2) Between 7:00 a.m. and 4:00 p.m. on school days, along the east side, from its intersection with Trophy Drive to its intersection with Micarta Drive.

(Ord. No. 93-12-42, § II, 12-27-93)

Rainier Road, along the east side from the south property line of Wagon Wheel Park four hundred eighty-one (481) feet north to its intersection with San Antonio Court.

Red River Drive, along the west side from its intersection with Shiprock Drive and continuing in a northeasterly direction to its intersection with Prescott Drive.

(Ord. No. 90-7-18, § II, 7-23-90)

Ridgetop Lane, along the south side of Ridgetop Lane from its intersection with San Gabriel Drive to a point eight hundred twenty-five (825) feet east of its intersection with San Gabriel Drive.

(Ord. No. 2012-4-7, § II, 4-9-12)

Ridgewood Drive, along and upon the west side of Ridgewood Drive between Park Boulevard and Lemontree Lane.

(Ord. No. 92-3-9, § I, 3-12-92)

Rigsbee Drive:

(1) 7:30 a.m. to 3:30 p.m. along the west side of Rigsbee Drive from 17th Street/Janet Way and continuing to a point fifty (50) feet south of Kentfield Lane;

(2) Along the east side of Rigsbee Drive from its intersection with 14th Street to an alley one hundred twenty-five (125) feet south of 14th Street;

(3) Along the west/south sides of Rigsbee Drive from its intersection with 14th Street to a point seven hundred (700) feet east of its intersection with Sherrye Drive.

(Ord. No. 95-11-20, § II, 11-20-95; Ord. No. 2011-8-13, § III, 8-22-11; Ord. No. 2016-10-10, § II, 10-10-16; Ord. No. 2023-6-4, § II, 6-12-23; Ord. No. 2023-9-21, § II, 9-26-23)

Roundrock Trail:

(1) Along both sides from Spring Creek Parkway southward to the first alley south of Spring Creek Parkway;

(2) Along the east side from Pleasant Valley twenty-five hundred thirty-seven (2537) feet to the north to Independence Parkway;

(3) On the west side of Roundrock Trail from its intersection with Parkhaven Drive to a point nine hundred (900) feet north of Parkhaven Drive from 7:15 a.m. to 8:15 a.m. and 12:30 p.m. to 3:15 p.m. on school days.

(Ord. No. 2000-7-8, § II, 7-24-00)

Ruisseau Place Phase I Subdivision:

(1) Along and upon the north side of Gastonia Lane from its intersection with Montreal Drive to its intersection with Thunderbird Drive;

(2) Along and upon the northbound lane of Promenade Road;

(3) Along and upon the north/westbound lane of Renaissance Drive from its intersection with Premier Drive to its intersection with Carousel Lane.

(Ord. No. 87-12-10, § II, 12-10-87)

Runnin River Drive:

(1) Along the south side of Runnin River Drive from its intersection with Silver Creek Drive to a point one hundred (100) feet west of Silver Creek Drive.

(Ord. No. 2020-6-8, § II, 6-22-20)

Russell Creek Drive:

(1) Along the north side of Russell Creek Drive from its intersection with Gifford Drive to a point 130 feet west of Kings Canyon Drive.

(Ord. No. 2024-8-4, § II, 8-12-24)

Sabine Street, along the west side from the alley north of Hackberry Park four hundred five (405) feet to the south.

San Antonio Court, along the south side from Rainier Road five hundred twenty-two (522) feet east to the property line of Wagon Wheel Park.

San Gabriel Drive, along both sides of the median south of its intersection with Merriman Drive.

Santa Fe Trail, along the east side from the intersection of Apple Valley two hundred sixty (260) feet north to the school property line.

Seabrook Drive, along both sides of Seabrook Drive from its intersection with Alma Drive to its intersection with Stadium Drive.

(Ord. No. 91-10-19, § II, 10-28-91)

Sherwood Drive, along the east side from Abbey Road eleven hundred (1100) feet to the north to Avenue P.

Silverwood Drive, along the east side from the alley on the south property line of Evans Park eight hundred fifty (850) feet to the north property line.

Silverwood Lane:

(1) Along the east side from the north property line of Evans Park to its intersection with Marlborough Drive;

(2) Along the west side from its intersection with Newkirk Drive to its intersection with Marlborough Drive.

Sparrows Point Drive, along the west side of Sparrows Point Drive from its intersection with Country Place Drive to a point one hundred fifty (150) feet south of its intersection with Country Place Drive.

(Ord. No. 2017-9-5, § II, 9-11-17)

Spring Creek Parkway:

(1) Along both sides from its intersection with southbound Central Expressway to its intersection with Custer Road;

(2) Along both sides from its intersection with Custer Road to the east side of its intersection with Independence Parkway.

(Ord. No. 2007-8-6, § XXI, 8-13-07)

Springbrook Drive, along the east side from its intersection with Edgefield Drive to its intersection with Oak Hill Drive; also, along the west side from a point thirty (30) feet north of the centerline of the alley located in between Edgefield Drive and Meadowcrest Drive to a point thirty (30) feet south of the centerline of the alley located in between Edgefield Drive and Meadowcrest Drive.

(Ord. No. 91-6-5, § II, 6-10-91)

Stadium Drive, along both sides of Stadium Drive from its intersection with Legacy Drive to its intersection with Seabrook Drive.

(Ord. No. 92-1-28, § II, 1-27-92)

Stewart Avenue, along and upon both the east and west sides of Stewart Avenue from its intersection with Plano Parkway to the south property line of Mervyn's property.

(Ord. No. 87-12-24, § II, 12-28-87)

Stewart Avenue:

(1) Along the east side from its intersection with Summit Avenue (east) to a point five hundred eighty-five (585) feet south of its intersection with Summit Avenue (east);

(2) Along the west side from its intersection with Summit Avenue (west) to a point four hundred (400) feet south of its intersection with Summit Avenue (west);

(3) Along both sides from its intersection with East Plano Parkway south to the end of the concrete pavement.

(Ord. No. 2008-9-9, § II, 9-8-08)

Stratford drive, along both sides from its intersection with West 15th Street to its intersection with Mollimar Drive.

Streamwood Lane, along the north side of Streamwood Lane between Shetland Road and Winding Hollow Lane.

(Ord. No. 2007-1-5, § I, 1-8-07)

Summit Avenue:

(1) Along the north side from its intersection with Stewart Avenue to a point four hundred ten (410) feet east of its intersection with Stewart Avenue;

(2) Along the south side from its intersection with Stewart Avenue to a point five hundred (500) feet east of its intersection with Stewart Avenue.

(Ord. No. 2008-9-9, § II, 9-8-08)

Sunswept Terrace, along the east side from the south property line of Westwood Park four hundred thirty-seven (437) feet north to the property line.

Talbert Drive:

(1) Along the east side of Talbert Drive from the top of the cul-de-sac to a point two hundred fifty (250) feet north of Mapleshade Lane;

(2) Along the west side of Talbert Drive from the top of the cul-de-sac to a point three hundred (300) feet north of Mapleshade Lane.

(Ord. No. 2023-9-22, § II, 9-26-23)

Tradition Trail:

(1) Along the south side of Tradition Trail from a point six hundred sixty (660) feet east of its intersection with Ohio Drive to a point eight hundred ten (810) feet east of its intersection with Ohio Drive.

(Ord. No. 2025-9-4, § II, 9-8-25)

Thunderbird Lane, along the west side between Lexington Drive and Parker Road.

(Ord. No. 2008-4-8, § I, 4-14-08)

Travis Drive, along both sides from its intersection with Park Boulevard to its intersection with the first alleyway south of Park Boulevard.

Veloce Drive:

(1) Along the east side of Veloce Drive from its intersection with 14th Street and its intersection with Dolente Drive.

(Ord. No. 2024-11-6, § II, 11-25-24)

Wedgegate Drive, along the south side of Wedgegate Drive from its intersection with Dickens Drive to a point five hundred ten (510) feet east of its intersection with Lookout Trail.

(Ord. No. 2012-2-16, § II, 2-27-12)

West Creek Place, along the south side and along or within any cul-de-sac area.

West Lane Place, along the south side and along or within any cul-de-sac area.

West Port Place, along the south side and along or within any cul-de-sac area.

Westglen Place, along the south side and along or within any cul-de-sac area.

Westside Connector:

(1) Along the north side of Westside Connector from its intersection with Plano Parkway to its intersection with Preston Road;

(2) Along the south side of Westside Connector from its intersection with Plano Parkway to a point two hundred eighty (280) feet east of Plano Parkway;

(3) Along the south side of Westside Connector from its intersection with Preston Road to a point two hundred sixty (260) feet west of Preston Road.

(Ord. No. 2023-3-6, § II, 3-21-23)

Westvale Place, along the south side and along or within any cul-de-sac area.

Whiffletree Drive, along the south side from its intersection with Canoncita Lane to its intersection with Mission Ridge Road.

Wildcat Way:

(1) Along the west side from its intersection with Parkhaven Drive to its intersection with Park Boulevard;

(2) Along the east side from its intersection with Parkhaven Drive to a point seven hundred (700) feet south of its intersection with Parkhaven Drive;

(3) Along the east side from its intersection with Park Boulevard to a point two hundred and fifty (250) feet north of its intersection with Park Boulevard.

(Ord. No. 2024-12-1, § IV, 12-9-24)

Windcrest Drive:

(1) Along the east side of Windcrest Drive from its intersection with Tennyson Parkway to a point one hundred (100) feet north of Tennyson Parkway;

(2) Along the east side of Windcrest Drive from a point two hundred twenty (220) feet north of Tennyson Parkway to a point five hundred fifty (550) feet north of Tennyson Parkway;

(3) Along the west side of Windcrest Drive from a point four hundred fifty (450) feet

north of Tennyson Parkway to a point two hundred fifteen (215) feet north of Tennyson Parkway;

(4) Along the west side of Windcrest Drive from a point one hundred (100) feet north of Tennyson Parkway to its intersection with Tennyson Parkway.

(Ord. No. 2004-4-12, § II, 4-26-04)

Wilma Lane, along the east side of Wilma Lane from a point one hundred fifteen (115) feet south of Merriman Drive to a point one hundred seventy (170) feet south of Merriman Drive.

(Ord. No. 2004-3-28, § II, 3-22-04)

Winding Hollow Lane:

(1) Along and upon the east side of Winding Hollow Lane from its intersection with Plano Parkway to its intersection with Streamwood Drive;

(Ord. No. 87-12-8, § II, 12-10-87)

(2) Along and upon the east side of Winding Hollow Lane from its intersection with Streamwood Lane to its intersection with Channel Isle;

(Ord. No. 88-6-9, § II, 6-13-88)

(3) Along and upon the west side of the service road of Winding Hollow Lane between Streamwood Lane and Channel Isle Drive;

(Ord. No. 88-6-9, § II, 6-13-88)

(4) Along the west side and also along the west side of the median of Winding Hollow Lane from its intersection with Plano Parkway to its intersection with Channel Isle Drive.

Windmill Lane, along the north side from its intersection with Buckboard Drive westward to its intersection with Wood Rail Drive. This provision shall expire on February 1, 2010.

(Ord. No. 2009-7-12, § II, 7-27-09)

(Ord. No. 64-11-3, 11-23-64; Ord. No. 72-11-6, § 1, 11-13-72; Ord. No. 73-1-2, 1-8-73; Ord. No. 73-2-12, § 1, 2-26-73; Ord. No. 73-8-9, § 1, 8-27-72; Ord. No. 73-10-3, § 1, 10-8-73; Ord. No. 73-12-10, § 1, 12-19-73; Ord. No. 74-4-15, § 1, 4-22-74; Ord. No. 74-5-3, § 1, 5-13-74; Ord. No. 74-6-5, §§ I, II, 6-24-74; Ord. No. 76-10-11, § I, 10-25-76; Ord. No. 77-6-3, § 1, 6-13-77; Ord. No. 77-10-5, § I, 10-10-77; Ord. No. 77-10-6, § I, 10-10-77; Ord. No. 78-2-3, § I, 2-13-78; Ord. No. 78-2-4, § I, 2-13-78; Ord. No. 78-5-2, § I, 5-8-78; Ord. No. 79-1-15, § I, 1-22-79; Ord. No. 79-5-8, § I, 5-14-79; Ord. No. 79-9-23, § I, 9-10-79; Ord. No. 79-12-10, § I, 12-10-79; Ord. No. 80-4-9, § 1, 4-14-80; Ord. No. 80-9-34, § I, 9-22-80; Ord. No. 80-12-7, § I, 12-8-80; Ord. No. 81-2-14, § I, 2-23-81; Ord. No. 81-2-15, § I, 2-23-81; Ord. No. 81-2-18, § I, 2-23-81; Ord. No. 81-3-11, § I, 3-23-81; Ord. No. 81-5-10, § I, 5-25-81; Ord. No. 81-7-20, § I, 7-27-81; Ord. No. 82-5-10, § I, 5-10-82; Ord. No. 82-9-7, § I, 9-13-82; Ord. No. 82-9-9, § I, 9-13-82; Ord. No. 82-11-11, § I, 11-22-82; Ord. No. 82-11-12, § I, 11-22-82; Ord. No. 83-3-27, § I, 3-28-83; Ord. No. 83-5-6, § I, 5-9-83; Ord. No. 83-6-7, § I, 6-13-83; Ord. No. 83-6-19, § I, 6-27-83; Ord. No. 83-6-21, § I, 6-27-83; Ord. No. 83-12-3, § I, 12-12-83; Ord. No. 84-2-10, § I, 2-13-84; Ord. No. 84-2-21, § I, 2-27-84; Ord. No. 84-3-18, § I, 3-26-84; Ord. No. 84-4-6, § I, 4-9-84; Ord. No. 84-5-7, § I, 5-14-84; Ord. No. 84-5-8, § I, 5-14-84; Ord. No. 84-5-18, § I, 5-29-84; Ord. No. 84-8-19, § I, 8-27-84; Ord. No. 84-8-20, § I, 8-27-84; Ord. No. 84-8-21, § I, 8-27-84; Ord. No. 84-10-20, § I, 10-22-84; Ord. No. 84-12-19, § I, 12-18-84; Ord. No. 85-3-6, § I, 3-19-85; Ord. No. 85-4-11, § I, 4-8-85; Ord. No. 85-5-10, § I, 5-13-85; Ord. No. 85-7-10, § I, 7-22-85; Ord. No. 85-12-10, § I, 12-12-85; Ord. No. 86-1-20, § I, 1-27-86; Ord. No. 86-4-28, § I, 4-28-86; Ord. No. 86-4-31, § I, 4-28-86; Ord. No. 86-8-22, § I, 8-11-86; Ord. No. 2019-11-1, § II, 11-11-19; Ord. No. 2020-2-12, § II, 2-24-20; Ord. No. 2020-6-8, § II, 6-22-20; Ord. No. 2020-10-9, § II, 10-26-20; Ord. No. 2021-2-16, § II, 2-22-21; Ord. No. 2021-5-15, § II, 5-24-21; Ord. No. 2021-6-14, § II, 6-28-21; Ord. No. 2022-2-4, § II, 2-14-22; Ord. No. 2022-2-6, § II, 2-14-22; Ord. No. 2023-1-11, § II, 1-23-23; Ord. No. 2023-3-6, § II, 3-21-23; Ord. No. 2023-8-2, § II, 8-14-23; Ord. No. 2023-9-21, § II, 9-26-23; Ord. No. 2023-9-22, § II, 9-26-23; Ord. No. 2023-9-23, § II, 9-26-23; Ord. No. 2023-9-24, § II, 9-26-23; Ord. No. 2024-3-3, § II, 3-19-24; Ord. No. 2024-6-5, § II, 6-10-24; Ord. No. 2024-8-4, § II, 8-12-24; Ord. No. 2024-10-11, § I, 10-28-24; Ord. No. 2024-10-12, §§ I, II, 10-28-24; Ord. No. 2024-

11-6, § II, 11-25-24; Ord. No. 2024-12-1, § IV, 12-9-24; Ord. No. 2025-6-21, § II, 6-23-25; Ord. No. 2025-9-4, § II, 9-8-25)

Editor's note—Commencing with Ord. No. 86-9-24, adopted Sept. 22, 1986, ordinances adding or amending no parking zones in § 12-101 are listed in a history note following the particular zone affected. The following list shows ordinances amending § 12-101 and subsequently repealed:

Ord. No.	Date	Rpld by Ord. No.	Sec.	Date
77-11-6	11-13-72	88-1-29	VIII	1-25-88
84-5-8	5-14-84	86-9-32	V	9-22-86
85-3-6	3-19-85	86-9-32	V	9-22-86
85-5-10	5-13-85	87-12-24	VI	12-28-87
86-4-31	4-28-86	86-9-32	V	9-22-86
89-1-6	1- 9-89	91-1-40	I	9-23-91
90-5-37	5-29-90	13-10-19	I	10-28-13
91-7-8	7- 8-91	93-10-9	I	10-11-93
95-2-40	2-27-95	98-4-5	I	4-13-98
95-8-35	11-20-95	95-11-20	I	11-20-95
96-9-5	9- 9-96	98-4-3	I	4-13-98
		2024-12-1	III	12-9-24

Sec. 12-102. Prohibited on certain streets on school days during certain hours.

(a) It shall be unlawful for any person to stop, stand or park a motor vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or directions of a police officer, on school days between the hours of 7:00 a.m. and 9:00 a.m., 11:00 a.m. and 12:00 noon, and 2:00 p.m. and 4:00 p.m., along the following portions of the following streets:

Bettye Haun Drive:

(1) Along the east side of Bettye Haun Drive from its intersection with Quincy Lane south to the alley north of Mackey Court.

(Ord. No. 2002-7-8, § II, 7-22-02)

Blue Ridge Trail:

(1) Along the west side from its intersection with the alley south of Mesquite Trail to its intersection with Montana Trail.

(Ord. No. 2002-7-8, § II, 7-22-02)

Crossbend Road:

(1) Along both sides from its intersection with Rainier Road to its intersection to the alley one hundred (100) feet east of Wagonwheel Drive.

(Ord. No. 2002-7-8, § II, 7-22-02)

Devonshire Drive:

(1) Along and upon the south side of Devonshire Drive from its intersection with Independence Parkway to its intersection with Huntington Drive on school days.

(Ord. No. 2002-7-8, § II, 7-22-02)

Mission Ridge Road:

(1) Along the west side from the drainage structure to south of Bandolino Drive to the intersection with the alley south of Landershire Lane.

(Ord. No. 2002-7-8, § II, 7-22-02)

Mollimar Drive:

(1) Along the north side from its intersection with Independence Parkway to its intersection with Dorchester Drive.

(Ord. No. 2002-7-8, § II, 7-22-02)

Montana Trail:

(1) Along the south side from its intersection with Santa Fe Trail to its intersection with Blue Ridge Trail.

(Ord. No. 2002-7-8, § II, 7-22-02)

Mount Vernon Way:

(1) Along the north side of Mount Vernon Way from its intersection with Marchman Way westward for a distance of three hundred fifty (350) feet.

(2) Along the south side of Mount Vernon Way from its intersection with Marchman Way westward for a distance of two hundred (200) feet.

(Ord. No. 2002-7-8, § II, 7-22-02)

Parkhaven Drive:

(1) Along the north side from its intersection with Roundrock Trail to the first driveway west of Roundrock Trail.

(Ord. No. 2002-7-8, § II, 7-22-02)

Rainier Road:

(1) Along the west side from its intersection with Pioneer Lane to its intersection with Natches Drive.

(Ord. No. 2002-7-8, § II, 7-22-02)

Red River Drive:

(1) Along the west side of Red River Drive from the alley south of Snowmass Drive north to USA Drive.

(Ord. No. 2002-7-8, § II, 7-22-02)

Roundrock Trail:

(1) Along the west side from its intersection with Parkhaven Drive to the first driveway north of Parkhaven Drive.

(Ord. No. 2002-7-8, § II, 7-22-02)

Russell Creek Drive:

(1) Along the north and south sides of Russell Creek Drive from the easternmost drive into Skaggs Elementary School west to Kings Canyon Drive.

(Ord. No. 2002-7-8, § II, 7-22-02)

(b) It shall be unlawful for any person to park a motor vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or directions of a police officer, on school days between the hours of 7:30 a.m. and 8:30 a.m. 11:30 a.m. and 12:30 p.m., and 2:30 p.m. and 4:00 p.m., along certain portions of the following streets as described herein.

Cross Bend Road, along the north side of Cross Bend Road from its intersection with Silverstone Drive to a point twenty-five (25) feet west of the westerly driveway to the teacher's parking lot of Hughston Elementary School.

(Ord. No. 89-2-21, § I, 2-27-89; Ord. No. 91-9-40, § II, 9-23-91)

Marchman Way, along and upon Marchman Way from its intersection with Caravan Drive to its intersection with Wheatland Drive.

(Ord. No. 91-9-40, § II, 9-23-91)

Santa Fe Trail, no stopping, standing or parking along the east side of Santa Fe Trail from its intersection with Montana Trail to the south property line of Thomas Elementary School.

(Ord. No. 93-10-8, § II, 10-11-93)

(c) [It shall be unlawful for any person to stop, stand, or park a motor vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or directions of a police officer, on school days between the hours of 7:15 a.m. and 8:15 a.m., and 2:30 p.m. and 3:15 p.m., along certain portions of the following streets as described herein.]

Breckenridge Drive, along the east side, from its intersection with Shiprock Drive to the east property line of 1701 Vail Drive.

(Ord. No. 99-11-36, §§ I, II, 11-22-99)

Janwood Drive, along the south side of Janwood Drive from the intersection of Crestridge Drive west to the intersection of Drexel Drive.

(Ord. No. 2001-11-21, § II, 11-26-01)

Marcedonia Drive no parking on the south side of Marcedonia Drive from its intersection with Marchman Way east for a distance of 500 feet.

(Ord. No. 2000-9-12, § II, 9-25-00)

Marchman Way, along the east and west sides of Marchman Way from its intersection with Caravan Drive north to its intersection with Wheatland Lane.

(Ord. No. 2001-6-20, § II, 6-25-01)

Micarta Drive, along the south side of Micarta Drive two hundred (200) feet east and west of the student drop-off drive onto Micarta Drive.

(Ord. No. 2003-1-6, § II, 1-13-03)

Quincy Lane, from its intersection with Reunion Drive west to its intersection with Penny Place and Bettye Haun Drive.

(Ord. No. 2000-9-20, § II, 9-25-00)

Robinson Road, along the east and west sides of Robinson Road from Crystal Creek Drive north to Risinghill Drive.

(Ord. No. 2003-6-18, § II, 6-23-03)

Wilson Drive, along the east side of Wilson Drive from the intersection of Glencliff Drive south to the south to the intersection of Grandview Drive.

(Ord. No. 2002-7-9, § II, 7-22-02)

(d) "School days," as that term is used in this section, shall be each Monday through Friday throughout the calendar year when school nearest the areas defined in this section is in session.

(e) It shall be unlawful for any person to stop, stand, or park a motor vehicle, except when necessary to avoid conflict with other traffic or in

compliance with law or directions of a police officer, along the following portions of the following streets during the days and times specified below:

17th Street:

(1) Along and upon the north side of 17th Street, fronting Williams High School, from its intersection with P Avenue to its intersection with R Avenue, between the hours of 9:00 a.m. to 3:00 p.m. on school days.

(Ord. No. 2002-7-10, § II, 7-22-02)

Abbey Road along the south side of Abbey Road from its intersection with P Avenue east to the intersection of Sherwood Drive and on the north side of Abbey Road from the intersection of Nottingham Drive east to Sherwood Drive within the city limits of the City of Plano on school days between the hours of 7:15 a.m. to 4:00 p.m. on school days.

(Ord. No. 2004-3-6, § II, 3-2-04)

Blue Ridge Trail:

(1) On the west side of Blue Ridge Trail from its intersection with Mesquite Trail north to its intersection with Cumberland Trail on school days between 7:15 a.m. to 8:15 a.m. and 2:30 p.m. to 3:15 p.m.

(Ord. No. 2002-7-10, § II, 7-22-02)

Coldwater Creek Lane:

(1) Along the north side of Coldwater Creek Lane from its intersection with Rockwood Drive to its intersection with the alley located between Rockwood Drive and Yaupon Drive between the hours 7:00 a.m. to 8:00 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(2) Along the north side of Coldwater Creek Lane from its intersection with Yaupon Drive to its intersection with Ruthridge Drive between the hours 7:00 a.m. to 8:00 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(3) Along the south side of Coldwater Creek Lane from its intersection with Wheatfield Drive to its intersection with Oxbow Creek Lane between the hours 7:00 a.m. to 8:00 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(Ord. No. 2004-10-24, § II, 10-26-04; Ord. No. 2018-7-2, §§ II, III, 7-23-18)

Country Place Drive:

(1) Along the west side of Country Place Drive beginning at a point one hundred (100) feet south of its intersection with Baffin Bay Drive and continuing along Country Place Drive to a point two hundred (200) feet north of Harrington Drive, between 7:30 a.m. and 8:30 a.m. and 2:30 p.m. and 3:30 p.m. on school days.

(Ord. No. 2002-7-10, § II, 7-22-02)

Decator Drive along the west side of Decator Drive from its intersection with Brox Court south to the intersection of Bailey Court between the hours of 7:15 a.m. to 8:15 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(Ord. No. 2002-10-18, §§ I, II, 10-14-02; Ord. No. 2003-12-8, § II, 12-8-03)

Dorchester Drive:

(1) Along the south side of Dorchester Drive from its intersection with Mill Valley Drive westward to the beginning of ninety (90) degree curve between the hours of 7:00 a.m. to 5:00 p.m. on school days.

(Ord. No. 2019-3-7, § III, 3-19-19)

Dottie Drive, along both sides of Dottie Drive from Merriman Drive to Saddleridge Drive between the hours of 9:00 a.m. to 3:00 p.m. on school days.

(Ord. No. 2021-2-17, § II, 2-22-21)

Eagle Pass Drive along the east side of Eagle Pass Drive from its intersection with Harvest Glen Drive north to the intersection of Lookout Trail within the city limits of the City of Plano on school days between the hours of 7:45 a.m. to 8:30 a.m., 10:45 a.m. to 12:45 p.m. and 2:45 p.m. to 3:30 p.m.

(Ord. No. 2004-6-14, § II, 6-28-04)

Floyd Drive:

(1) Along the east side of Floyd Drive from Gull Lake Drive south to Elsinore Drive

between the hours 7:15 a.m. to 8:15 a.m. and 2:45 p.m. to 3:45 p.m. on school days.
(Ord. No. 2005-3-14, § II, 3-16-05)

(2) Along the east and west side of Floyd Drive from its intersection with Oakland Hills Drive south to its intersection with Gull Lake Drive within the city limits of the City of Plano on school days between the hours of 7:15 a.m. and 8:15 a.m. and 2:45 p.m. and 3:45 p.m.
(Ord. No. 2005-10-35, § II, 10-24-05)

Georgetown Drive, along the north side of Georgetown Drive from its intersection with Prescott Drive west to the intersection of Vienna Drive between the hours of 7:30 a.m. to 3:30 p.m. on school days.
(Ord. No. 2003-4-26, § I, 4-28-03; Ord. No. 2003-9-40, § I, 9-22-03)

Gifford Drive, along the west side of Gifford Drive from its intersection with Russell Creek Drive north to Kalgan Circle for Rice Middle School between the hours of 8:00 a.m. to 8:45 a.m. and 3:00 p.m. to 4:00 p.m. on school days.
(Ord. No. 2004-1-11, § II, 1-12-04; Ord. No. 2010-1-15, §§ III, IV, 1-25-10)

Gillespie Drive, along the west side of Gillespie Drive from National Drive south to one hundred (100) feet south of the southernmost driveway to Taylor Elementary School.
(Ord. No. 2006-10-11, § II, 10-9-06)

Hendrick Drive:

(1) Along the west side of Hendrick Drive from its intersection with Timberline Drive to its intersection with Shorecrest Drive between the hours of 7:00 a.m. to 8:00 a.m. and 2:30 p.m. to 3:15 p.m. on school days.
(Ord. No. 2019-5-13, § II, 5-28-19)

Jackson Drive, along the west side of Jackson Drive from Jomar Drive south to Stanford Drive between the hours of 7:15 a.m. to 8:15 a.m. and 2:30 p.m. to 3:15 p.m. on school days.
(Ord. No. 2003-8-9, §§ I, II, 8-11-03; Ord. No. 2003-12-9, § II, 12-8-03)

Janet Way:

(1) Along the north side of Janet Way from its intersection with Rigsbee Drive intersection with Meadows Drive between the hours of 7:00 a.m. to 8:00 a.m. and 2:30 p.m. to 3:15 p.m. on school days.
(Ord. No. 2019-2-4, § III, 2-11-19)

John Clark Parkway:

(1) Along the east side of John Clark Parkway from its intersection with Yeary Road south of a distance of five hundred (500) feet, on school days between the hours of 7:00 a.m. to 9:00 a.m. and 2:00 p.m. to 4:00 p.m.
(Ord. No. 2002-7-10, § II, 7-22-02)

Lookout Trail along the west side of Lookout Trail from its intersection with Eagle Pass Drive east to the intersection of Wedgegate Drive within the city limits of the City of Plano on school days between the hours of 7:45 a.m. to 8:30 a.m., 10:45 a.m. to 12:45 p.m., and 2:45 p.m. to 3:30 p.m.
(Ord. No. 2004-6-15, § II, 6-28-04)

Marsalis Lane:

(1) Along the south side of Marsalis Lane from its intersection with Cloverhaven Way to a point four hundred forty (440) feet west of its intersection with Cloverhaven Way between the hours of 7:00 a.m. to 8:00 a.m., and 2:30 p.m. to 3:30 p.m. on school days.
(Ord. No. 2025-3-8, § II, 3-24-25)

Maumelle Drive along the south side of Maumelle Drive from Ishnala Trail east to two hundred (200) feet east of Garfield Drive.
(Ord. No. 2003-7-11, § II, 7-28-03; Ord. No. 2006-3-13, § II, 3-27-06; Ord. No. 2006-9-5, § II, 9-11-06)

Merriman Drive:

(1) Along the south side of Merriman Drive from its intersection with Wilma Lane to a point one hundred twenty-five (125) feet west of its intersection with Karen Court on school days between the hours of 9:00 a.m. and 3:00 p.m.
(Ord. No. 2003-7-14, §§ IV, V, 7-28-03)

Mollimar Drive:

(1) Along the west side of Mollimar Drive from a point eight hundred fifty (850) feet west of its intersection with Independence Parkway to a point thirty (30) feet south of its intersection with Regal Road between the hours of 7:15 a.m. to 8:15 a.m. and 2:30 p.m. to 3:15 p.m. on school days;

(2) Along the east side of Mollimar Drive from its intersection with Regal Road to a point one hundred thirty five (135) feet south of Regal Road between the hours of 7:15 a.m. to 8:15 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(Ord. No. 2002-7-10, § II, 7-22-02; Ord. No. 2016-4-9, § I, 4-11-16)

Mosswood Drive:

(1) Along the north side of Mosswood Drive from a point fifty (50) feet west of its intersection with Cloverhaven Way to a point four hundred sixty (460) feet west of its intersection with Cloverhaven Way between the hours of 7:00 a.m. to 8:00 a.m., and 2:30 p.m. to 3:30 p.m. on school days.

(Ord. No. 2025-3-8, § II, 3-24-25)

National Drive:

(1) Along the north side of National Drive from its intersection with Gillespie Drive to a point three hundred twenty (320) feet west of Gillespie Drive between the hours 7:00 a.m. to 8:00 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(2) Along the south side of National Drive from its intersection with Gillespie Drive to a point one hundred seventy (170) feet west of Gillespie Drive between the hours 7:00 a.m. to 8:00 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(Ord. No. 2018-8-5, § II, 8-13-18)

Nevada Drive:

(1) Along the west side of Nevada Drive from the intersection of Eldorado Drive south to the south property line of Beaty Early Childhood School on school days, between the hours of 7:45 a.m. and 8:30 a.m., 10:45 a.m. and 12:45 p.m., and 2:45 p.m. and 3:30 p.m.

(Ord. No. 2002-7-10, § II, 7-22-02)

Old Orchard Drive:

(1) Along the west side of Old Orchard Drive from its intersection with Maumelle Drive to a point three hundred twenty (320) feet south of its intersection with Pheasant Run Road between the hours of 7:30 a.m. to 8:30 a.m. and 2:30 p.m. to 3:30 p.m. on school days.

(2) Along the east (north) side of Old Orchard Drive from its intersection with the alley south of Pheasant Run Road to a point two hundred forty-five (245) feet southeast of its intersection with the alley south of Pheasant Run Road between the hours of 7:30 a.m. to 8:30 a.m. and 2:30 p.m. to 3:30 p.m. on school days.

(Ord. No. 2002-7-10, § II, 7-22-02; Ord. No. 2016-4-9, § I, 4-11-16; Ord. No. 2019-5-6, § II, 5-13-19)

P Avenue:

(1) Along the east side of P Avenue from its intersection with 17th Street to its intersection with 18th Street between the hours of 8:00 a.m. and 4:30 p.m. on school days.

(Ord. No. 2002-7-10, § II, 7-22-02)

(2) Along the east side of P Avenue from its intersection with Abbey Road south to a point two hundred (200) feet north of its intersection with Parker Road within the city limits of the City of Plano on school days between the hours of 7:15 a.m. and 4:00 p.m.

(Ord. No. 2005-10-6, § II, 10-10-05)

Plumridge Drive, along both sides of Plumridge Drive from Redbridge Drive to Rosecliff Drive between the hours of 9:00 a.m. to 3:00 p.m. on school days.

(Ord. No. 2021-2-17, § II, 2-22-21)

Prescott Drive, along the east side of Prescott Drive from Mullins Drive north to Cayman Circle.

(Ord. No. 2006-9-3, § II, 9-11-06)

Preston Meadow Drive:

(1) Along the east side of Preston Meadow Drive from its intersection with Lorimar Drive extending southward to the north side of the second driveway intersection Preston Meadow Drive between the hours of 7:30 a.m. to 8:15 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(Ord. No. 2002-7-10, § II, 7-22-02)

R Avenue:

(1) Along and upon the east side of R Avenue from the drive entrance to Memorial Elementary School to the intersection of Laurel Lane, on school days between 7:30 a.m. to 8:30 a.m. and from 2:30 p.m. to 4:00 p.m.

(Ord. No. 2002-7-10, § II, 7-22-02)

Rainier Road: along the west side of Rainier Road from its intersection with Cross Bend Road south to the drive entrance for Christie Elementary between the hours of 7:15 a.m. to 8:15 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(Ord. No. 2002-9-37, § II, 9-23-02; Ord. No. 2003-12-10, § II, 12-8-03)

Redbridge Drive:

(1) Along the north side of Redbridge Drive from Saddleridge Drive to a point two hundred ninety (290) feet east of Saddleridge Drive between the hours of 9:00 a.m. to 3:00 p.m. on school days.

(2) Along the south side of Redbridge Drive from Saddleridge Drive to a point eighty (80) feet east of Plumridge Drive between the hours of 9:00 a.m. to 3:00 p.m. on school days.

(Ord. No. 2021-2-17, § II, 2-22-21)

Robinson Road, along the east and west sides of Robinson Road from Crystal Creek Drive north to Risinghill Drive between the hours of 7:15 a.m. to 8:15 a.m. and 2:45 p.m. to 3:30 p.m. on school days.

(Ord. No. 2003-9-41, §§ I, II, 9-22-03)

Rockledge Lane, along the east side of Rockledge Lane from White Rock Lane north to Waskom Drive between the hours 7:15 am to 8:15 am and 2:45 p.m. to 3:30 p.m. on school days.

(Ord. No. 2003-8-10, §§ I, II, 8-11-03; Ord. No. 2003-12-11, § II, 12-8-03)

Saddleridge Drive, along both sides of Saddleridge Drive from Springhurst Drive to Dottie Drive between the hours of 9:00 a.m. to 3:00 p.m. on school days.

(Ord. No. 2021-2-17, § II, 2-22-21)

San Gabriel Drive:

(1) Along the south side of San Gabriel Drive from a point two hundred fifty (250) feet west of the westernmost drive to Dooley Elementary and extending to the eastern most drive to Dooley Elementary between the hours of 7:15 a.m. to 8:15 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(Ord. No. 2002-7-10, § II, 7-22-02; Ord. No. 2004-9-11, § I, 9-13-04)

Scenic Drive:

(1) Along the south side of Scenic Drive from the intersection of Sutherland Lane east to the east property line of Andrews Elementary School, on school days, between the hours of 7:15 a.m. and 8:15 a.m., and 2:30 p.m. to 3:15 p.m.

(Ord. No. 2002-7-10, § II, 7-22-02)

Shorecrest Drive:

(1) Along the south side of Shorecrest Drive from its intersection with Shiloh Road to its intersection with Hendrick Drive between the hours of 7:00 a.m. to 8:00 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(Ord. No. 2019-5-13, § II, 5-28-19)

Springhurst Drive:

(1) Along both sides of Springhurst Drive from Merriman Drive to Tigua Drive between the hours of 9:00 a.m. to 3:00 p.m. on school days.

(Ord. No. 2018-10-11, § II, 10-22-18; Ord. No. 2019-3-8, § II, 3-19-19)

Timberline Drive:

(1) Along the south side of Timberline Drive from its intersection with Shiloh Road to its intersection with Hendrick Drive between the hours of 7:00 a.m. to 8:00 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(2) Along the north side of Timberline Drive from a point three hundred eighty-five (385) feet west of its intersection with Valencia Drive to a point two hundred five (205) feet west of its intersection with Valencia Drive between the hours of 7:30 a.m. to 4:00 p.m. on school days.

(Ord. No. 2019-5-13, § II, 5-28-19; Ord. No. 2020-1-5, § II, 1-13-20)

Waskom Drive:

(1) Along the south side of Waskom Drive from Rockledge Lane east to Serenity Drive between the hours 7:15 a.m. to 8:15 a.m. and 2:45 p.m. to 3:30 p.m. on school days.

(Ord. No. 2004-10-8, § II, 10-11-04)

Wilma Lane:

(1) Along the west side of Wilma Lane from its intersection with Merriman Drive to its intersection with Karen Court on school days between the hours of 9:00 a.m. and 3:00 p.m.

(Ord. No. 2003-1-13, § III, 1-27-03)

Wilson Drive:

(1) Along and upon the east and west sides of Wilson Drive from its intersection with Grandview Drive to a point one hundred ten (110) feet north of Kelsey Drive from 7:00 a.m. to 9:00 a.m., 11:00 a.m. to 12:00 noon and 2:00 p.m. to 4:00 p.m. on school days.

(Ord. No. 2002-7-10, § II, 7-22-02)

(f) When signs are erected or curbs marked giving notice to such effect, it shall be unlawful for any person to park a motor vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or directions of a police officer, along the following portions of the following streets on school days during the times specified below:

Decator Drive, along the west side of Decator Drive from its intersection with Brox Court south to its intersection with Longfellow Drive between the hours of 7:15 a.m. to 8:15 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(Ord. No. 2015-5-11, § I, 5-26-15)

Gifford Drive, along the east side of Gifford Drive from its intersection with Russell Creek Drive north to Kalgan Circle for Rice Middle School between the hours of 8:00 a.m. to 8:45 a.m. and 3:00 p.m. to 4:00 p.m. on school days.

(Ord. No. 2010-1-15, § V, 1-25-10)

Longfellow Drive, along the north side of Longfellow Drive from its intersection with Decator Drive west to a point one hundred seventy (170) feet west of its intersection with Decator Drive between the hours of 7:15 a.m. to 8:15 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(Ord. No. 2015-5-11, § I, 5-26-15)

Oxbow Creek Lane:

(1) Along the west side of Oxbow Creek Lane from its intersection with Coldwater Creek Lane to a point two hundred (200) feet south between the hours of 7:00 a.m. to 8:00 a.m. and 2:30 p.m. to 3:15 p.m. on school days.

(Ord. No. 2018-7-2, § IV, 7-23-18)

(g) When signs are erected giving notice to such effect, it shall be unlawful for any person to park a vehicle for a period longer than two (2) hours during the times specified below, except when necessary to avoid conflict with other traffic or in compliance with law or directions of a police officer, along the following portions of the following streets on school days:

Tigua Drive:

(1) Along both sides of Tigua Drive from its intersection with Springhurst Drive to

its intersection with Redbridge Drive between the hours 9:00 a.m. to 3:00 p.m. on school days.

(Ord. No. 2018-10-11, § III, 10-22-18)

(Ord. No. 76-8-7, § I, II, 8-9-76; Ord. No. 78-3-11, § I, 3-27-78; Ord. No. 78-7-4, § I, 7-10-78; Ord. No. 79-3-6, § I, 3-12-79; Ord. No. 79-3-7, § I, 3-12-79; Ord. No. 2002-7-8, § II, 7-22-02; Ord. No. 2019-2-4, § II, 2-11-19; Ord. No. 2019-5-13, § II, 5-28-19; Ord. No. 2020-1-5, § II, 1-13-20; Ord. No. 2021-2-17, § II, 2-22-21; Ord. No. 2022-2-6, § III, 2-14-22; Ord. No. 2025-3-8, § II, 3-24-25)

Editor's note—Commencing with Ord. No. 87-7-34, adopted July 27, 1987, ordinances adding or amending no parking zones in § 12-102 are listed in a history note following the particular zone affected.

Sec. 12-102.5. No parking.

It shall be unlawful for any person to stop, stand or park a motor vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or directions of a police officer along the following portions of the following streets:

The south side of 15th Place between K Avenue and J Avenue; and

Both sides of J Place from 15th Place to 16th Street; and

The north side of 16th Street between K Avenue and J Avenue; and

The east curb line of J Avenue starting one hundred fifty (150) feet northwest of the intersection of the projection of the north curb line of 16th Street, with the projection of the east curb line of J Avenue, and extending north to 18th Street.

The west curb line of J Avenue starting one hundred forty (140) feet northwest of the intersection of the projection of the south curb line of 16th Street, with the projection of the west curb line of J Avenue, and extending north to 18th Street.

Both sides of Vontress Drive, from Avenue K to 14th Street.

Both sides of 22nd Street from the DART rail lines extending east one hundred fifty (150) feet; and both sides of 22nd Street, from the DART Rail line and extending one hundred fifty (150) feet west.

(Ord. No. 2001-8-21, § I, 8-27-01; Ord. No. 2002-11-29, § I, 11-25-02)

Sec. 12-102.6. No parking during specified periods.

It shall be unlawful for any person to park a motor vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or directions of a police officer, along the following portions of the following streets at the times indicated below:

Ashmont Drive:

(1) Along both sides of Ashmont Drive from its intersection with Glenmont Drive to its intersection with Winslow Drive on Sundays between the hours of 8:00 a.m. and 1:00 p.m.

Briarcrest Drive:

(1) Along both sides of Briarcrest Drive from its intersection with Ashglen Place to its intersection with Glenmont Drive on Sundays between the hours of 8:00 a.m. and 1:00 p.m.

Carrington Drive:

(1) Along both sides of Carrington Drive from its intersection with Glenmont Drive to its intersection with Winslow Drive on Sundays between the hours of 8:00 a.m. and 1:00 p.m.

Fulgham Road:

(1) Along both sides of Fulgham Road from a point one hundred twenty (120) feet south of Plano Parkway to its intersection with Tradition Trail between the hours of 9:00 p.m. and 6:00 a.m.

Glenmont Drive:

(1) Along both sides of Glenmont Drive from its intersection with Carrington Drive to its intersection with Ashmont Drive/ Briarcrest Drive on Sundays between the hours of 8:00 a.m. and 1:00 p.m.

Tradition Trail:

(1) Along the north side of Tradition Trail from its intersection with Ohio Drive to its intersection with Fulgham Road between the hours of 9:00 p.m. and 6:00 a.m.

(2) Along the south side of Tradition Trail from its intersection with Ohio Drive to a point six hundred sixty (660) feet east of its intersection with Ohio Drive between the hours of 9:00 p.m. and 6:00 a.m.

(3) Along the south side of Tradition Trail from a point eight hundred ten (810) feet east of its intersection with Ohio Drive to its intersection with Fulgham Road between the hours of 9:00 p.m. and 6:00 a.m.

(Ord. No. 2001-11-20, § I, 11-26-01; Ord. No. 2016-9-9, § II, 9-12-16; Ord. No. 2025-9-4, § II, 9-8-25)

Sec. 12-102.7. No stopping, standing, or parking during specified periods.

It shall be unlawful for any person to stop, stand, or park a motor vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or directions of a police officer, along the following streets or portions of streets during the specified periods:

16th Street:

(1) Along the south side of 16th Street between its intersection with H Avenue and a point thirty-five (35) feet west of its intersection with I Avenue on weekdays between 10:00 a.m. and 2:00 p.m.

(Ord. No. 2006-5-11, § III, 5-8-06)

Sec. 12-103. Two-hour parking.

No person shall park a vehicle for a period longer than two (2) hours between the hours of 8:00 a.m. and 12:00 midnight in the following locations:

Bishop Road, parallel parking spaces along the east side of Bishop Road between Martin Road and Daniel Road.

Daniel Road, parallel parking spaces along the north side of Daniel Road between Bishop Road and Libby Road.

Kincaid Road, parallel parking spaces along both sides of Kincaid Road between Dallas Parkway and Bishop Road.

Libby Road, parallel parking spaces along the west side of Libby Road between Daniel Road and Martin Road.

Martin Road, parallel parking spaces along both sides of Martin Road between Libby Road and Bishop Road.

(Ord. No. 2002-3-3, § I, 3-4-02; Ord. No. 2011-2-4, §§ II, III, 2-14-11; Ord. No. 2017-3-2, § I, 3-21-17)

Sec. 12-103.1. Twenty-minute parking.

No person shall park a vehicle for a period longer than twenty (20) minutes between the hours of 8:00 a.m. and 12:00 midnight in the following locations:

Bishop Road, head-in parking spaces along the east side of Bishop Road between Lunsford Road and Martin Road.

(Ord. No. 2011-2-4, § IV, 2-14-11)

Sec. 12-103.2. One-hour parking.

(a) No person shall park a vehicle for a period longer than one (1) hour between the hours of 8:00 a.m. and 12:00 midnight in the following locations:

Bishop Road:

(1) Parallel and head-in parking spaces along the east side of Bishop Road between Legacy Drive and Lunsford Road;

(2) Parallel and head-in parking spaces along the west side of Bishop Road between Legacy Drive and Brockman Court (Martin Road).

Lunsford Road:

(1) Parallel and head-in parking spaces along the north side of Lunsford Road between Bishop Road and two hundred fifty (250) feet east of Bishop Road.

(b) No person shall, at any time, park a vehicle for a period longer than one (1) hour in the following locations:

14th Street:

(1) Parallel parking spaces along the north side of 14th Street between its intersection with M Avenue and its intersection with N Avenue exclusive of a loading zone and an accessible parking space.

K Avenue:

(1) Three (3) parallel parking spaces along the east side of K Avenue between a point forty-five (45) feet south of its intersection with 15th Street and a point one hundred and twenty-five (125) feet south of its intersection with 15th Street.

M Avenue:

(1) Parallel parking spaces along the east side of M Avenue between its intersection with 14th Street and its intersection with 15th Street.

Inside Parking garage bounded by 15th Street, K Avenue, 14th Street, and the DART rail line:

(1) Nine (9) public parking spaces located in the parking garage.

(Ord. No. 2017-3-2, § II, 3-21-17; Ord. No. 2019-11-11, § I, 11-25-19; Ord. No. 2024-10-12, § III, 10-28-24)

Sec. 12-103.3. Fifteen-minute parking.

No person shall park a vehicle for a period longer than fifteen (15) minutes between the hours of 8:00 a.m. and 12:00 midnight in the following locations:

Lunsford Road, head-in parking spaces along the north side of Lunsford Road between Olivia Lane and one hundred twenty (120) feet west of Olivia Lane.

(Ord. No. 2017-3-2, § II, 3-21-17)

Sec. 12-104. Three-hour parking.

(a) No person shall, at any time, park a vehicle for a period longer than three (3) hours in the following locations:

14th Street:

(1) Parallel and head-in parking spaces along the north side of 14th Street between J Avenue and Municipal Avenue.

15th Place:

(1) Parallel and head-in parking spaces along the north side of 15th Place between Alex Schell Place and K Avenue.

15th Street:

(1) Head-in parking spaces along both sides of 15th Street between H Avenue and Municipal Avenue.

K Avenue:

(1) Parallel parking spaces along both sides of K Avenue between 15th Place and one hundred fifteen (115) feet north of 16th Street;

(2) Parallel parking spaces along both sides of K Avenue between 14th Street and Vontress Drive.

Municipal Avenue:

(1) Head-in parking spaces along the west side of Municipal Avenue between 14th Street and 15th Street.

(b) No person shall park a vehicle for a period longer than three (3) hours between the hours of 5:00 a.m. and 5:00 p.m. in the following locations:

(1) The public parking lot bounded by 15th Street, H Avenue, 16th Street, and the DART rail line;

(2) The public parking lot bounded by 15th Street, J Place, 14th Street, and the DART rail line;

(3) The public parking lot bounded by K Avenue, an east-west line located one hundred seventy-five (175) feet south of 14th Street, J Place, and 14th Street;

(4) The public parking lot bounded by J Avenue, an east-west line located three hundred ninety-two (392) feet south of the intersection of J Avenue and 14th Street, the DART rail line, and 14th Street;

(5) The public parking spaces in the parking garage bounded by J Place, 16th Street, K Avenue, and 15th Place;

(6) The public parking spaces in the parking garage bounded by Municipal Avenue, 14th Street, K Avenue, and 15th Street;

(7) The public parking spaces, exclusive of nine (9) one-hour parking spaces established in subsection 12-103.2(b), in the garage bounded by 15th Street, K Avenue, 14th Street, and J Place;

(8) The public parking lot bounded by Municipal Avenue, the south property line of 1200 14th Street, the west property lines of 1212 14th Street and 1303 M Avenue, the north property lines of 1203 and 1201 13th Street, and the north property line of 1302 Municipal Avenue;

(9) The public parking lot bounded by 14th Street, the west and the south property lines of 1106 and 1114 14th Street, Municipal Avenue, the north property line of 1225 Municipal Avenue, and the east property lines of 1302, 1304 and 1308 K Avenue, and the east property line of 1104 14th Street.

(c) The provisions of this section shall not apply to:

(1) Any motor vehicle parked in any three-hour public parking lot as described in subsection (b) of this article with a valid City of Plano issued parking permit prominently displayed in said vehicle, or a valid City of Plano issued electronic parking permit;

(2) A motor vehicle stopped, standing, or parked in a designated privileged parking space when the vehicle displays a valid disabled parking placard or license plate and meets all requirements of V.T.C.A. Transportation Code, Ch. 681.

(d) A motor vehicle with a valid City of Plano issued special event parking permit prominently displayed in said vehicle is permitted to park in excess of three (3) hours in the following locations:

(1) The public parking lot bounded by 15th Street, H Avenue, 16th Street, and the DART rail line;

(2) The public parking lot bounded by J Avenue, an east-west line located three hundred ninety-two (392) feet south of the intersection of J Avenue and 14th Street, the DART rail line, and 14th Street.

(Ord. No. 2017-1-14, § II, 1-23-17; Ord. No. 2017-10-3, §§ I, II, 10-23-17; Ord. No. 2019-11-11, § II, 11-25-19; Ord. No. 2021-9-22, § I,

9-27-21; Ord. No. 2022-5-4, § I, 5-9-22; Ord. No. 2023-4-8, § I, 4-24-23; Ord. No. 2024-4-4, § I, 4-8-24)

Sec. 12-104.1. Reserved.

Editor's note—Ord. No. 2019-11-11, § II, adopted November 25, 2019, repealed § 12-104.1, which pertained to three-hour parking during specific periods and derived from Ord. No. 2017-1-14, adopted January 23, 2017.

Sec. 12-104.2. Reserved.

Editor's note—Ord. No. 2022-5-3, § I, adopted May 9, 2022, repealed § 12-104.2, which pertained to parking regulations in public parking lots adjacent to library buildings and derived from Ord. No. 2008-4-12, adopted April 14, 2008.

Sec. 12-104.5. Reserved.

Editor's note—Ord. No. 2019-11-11, § II, adopted November 25, 2019, repealed § 12-104.5, which pertained to parking in public lots in the downtown area and derived from Ord. No. 2017-1-14, adopted January 23, 2017; and Ord. No. 2017-10-3, adopted October 23, 2017.

Sec. 12-104.6. No parking in public lots in the downtown area at any time adjacent to a curb that is painted yellow and designated "No Parking."

It shall be unlawful for any person to park a motor vehicle in the following public parking lots at any time adjacent to a curb that is painted yellow and designated "No Parking":

The public parking lots bounded by 15th Street, K Avenue and Municipal Avenue;

Haggard Park parking lot bounded by 15th Street, H Avenue, 16th Street and the DART light-rail line;

The two (2) public parking lots bounded by 15th Street, K Avenue, 14th Street and the DART light-rail line;

The public parking lots north of Municipal Avenue, west of L Avenue and south of 18th Street.
(Ord. No. 2009-4-11, § I, 4-14-09)

Sec. 12-105. Limitations on parking between 1:00 a.m. and 6:00 a.m. in business districts.

No person, except physicians and hospital personnel, shall park, except in areas otherwise designated, any vehicle on any street in a business district for a period of time longer than thirty (30) minutes between the hours of 1:00 a.m. and 6:00 a.m.
(Ord. of 7-13-64, § 16-8-4)

Sec. 12-106. Designation and marking of parking stalls and areas where parking is prohibited or limited.

(a) The department of public works shall cause parking stalls to be maintained and marked off in and on such streets and parts thereof as may be designated by the city council from time to time and such department shall cause spaces in which parking is prohibited to be maintained and marked off in and on such streets and parts thereof as may be designated by the city council from time to time. The department of public works shall also cause time limit parking areas to be maintained and marked off in and on such parts of streets as may be designated by the city council from time to time. All such spaces or areas shall be clearly indicated by appropriate signs or by markings on the pavement or curb.

(b) In areas designated as time limit parking areas, parking may be limited to any period prescribed by the council, the same to be designated with clearly distinguished markings or signs at both ends of the time limit area and at reasonable intervals between the beginning and ending of such time limit area, indicating the time allowed for parking in such area.

(c) Any prohibition of or time limit on parking established under this section shall apply on such days and between such hours as prescribed by the council.

Sec. 12-107. Parking in prohibited areas; overtime parking.

It shall be unlawful for any person to cause, allow, permit or suffer any vehicle registered in

his name or owned or operated by him or in his possession or under his control to be or remain in any space or area in which parking is prohibited as provided in section 12-106, or in a time limit parking area for a longer period of time than that designated by the markings on the street or by signs clearly visible.

Sec. 12-108. Parking in alleys.

No person shall park a vehicle within an alley in such manner or under such conditions as to leave available less than ten (10) feet of the width of the alleyway for free movement of vehicular travel.
(Ord. of 7-13-64, § 16-8-3)

Sec. 12-109. Designation and marking of bus stops.

The city council may designate bus stops on streets within the city and have the same appropriately marked or otherwise identified.
(Ord. of 7-13-64, § 16-11-3)

Sec. 12-110. Stopping of buses generally.

It shall be unlawful for the driver of any motor bus operating within the city to stop such vehicle for the purpose of taking on or discharging passengers at any other place than at the right-hand near corner or first line of intersecting streets along which the bus is proceeding, or at a bus stop marked and designated in accord with section 12-109. Such bus shall be stopped parallel with the curb of the street along which it is proceeding, and not more than two (2) feet therefrom, where possible, and for no longer than is reasonably necessary to take on and discharge passengers therefrom, except at a bus stop; provided, that a bus may stop at other corners not exceeding thirty (30) minutes to wait for connecting buses.
(Ord. of 7-13-64, § 16-11-3)

Sec. 12-111. Unlawful use of bus stop.

It shall be unlawful for the driver of any vehicle other than a motor bus to park such vehicle within the limits of any bus stop which has been designated and appropriately marked in accord with section 12-109.
(Ord. of 7-13-64, § 16-11-4)

Sec. 12-112. Loading and unloading generally.

All freight trucks shall be loaded and unloaded from the alley entrance if practicable. Where conditions are such as to make the loading or unloading thereof from an alley impracticable, such trucks shall be parked on the street in accord with all applicable provisions of this article.

Sec. 12-112.5. Loading and unloading in the downtown area.

(a) It shall be unlawful for any person to load or stop, stand, load or unload a vehicle for longer than twenty (20) minutes along the following portions of streets within the downtown area:

14th Street:

(1) The north side of 14th Street starting one hundred twenty (120) feet east of its intersection with M Avenue and extending sixty (60) feet east.

15th Place:

(1) The south side of 15th Place starting seventy-five (75) feet west of its intersection with K Avenue and extending seventy-five (75) feet west.

J Place:

(1) The east side of J Place starting one hundred twenty-five (125) feet north of its intersection with 15th Place and extending fifty (50) feet north.

Vontress Drive:

(1) The north side of Vontress Drive (running east-west), starting fifty (50) feet east of its intersection with K Avenue and extending seventy-five (75) feet east.

(b) It shall be unlawful for any person to park, stop, stand, load or unload a vehicle other than a bus, shuttle, van or other vehicle being

used by a public agency in the process of transporting passengers in the following street segment within the downtown area at all times:

The east curb line of J Avenue (running northwest) starting thirty (30) feet northwest of the intersection of the projection of the outermost north curb line of 16th Street, with the projection of the outermost east curb line of J Avenue, and extending one hundred twenty (120) feet northwest.

The west curb line of J Avenue (running northwest) starting twenty (20) feet northwest of the intersection of the projection of the outermost south curb line of 16th Street, with the projection of the outermost west curb line of J Avenue, and extending one hundred twenty (120) feet northwest.

(Ord. No. 2001-8-20, § I, 8-27-01; Ord. No. 2002-5-19, § I, 5-13-02; Ord. No. 2002-11-30, § I, 11-25-02; Ord. No. 2012-6-15, § I, II, 6-25-12; Ord. No. 2017-5-11, § II, 5-22-17; Ord. No. 2019-11-11, § III, 11-25-19; Ord. No. 2024-10-12, § IV, 10-28-24)

Sec. 12-113. Permit to back to curb for loading or unloading.

The chief of police is authorized to issue special permits to permit the backing of a vehicle to the curb for the purpose of loading or unloading merchandise or materials subject to the terms and conditions of such permit. Such permits may be issued either to the owner or lessee of real property or to the owner of the vehicle and shall grant to such person the privilege as therein stated and authorized in this section, and it shall be unlawful for any permittee or other person to violate any of the special terms or conditions of any such permit.

Sec. 12-114. Parking of trucks, tractors, etc., in residential districts.

(a) *Purpose.* The city council hereby declares its purpose in enacting this section to be:

(1) To reduce hazardous traffic conditions in any area classified as a residential district by the comprehensive zoning ordinance of the city by prohibiting the parking or standing on any public street, alley, or right-of-way between alleys and streets within any such area of commercial, motor and recreational vehicles and trailers as defined in this section; to preserve the character of such residential districts; and to protect and further the peace, safety, welfare and good order of the city; and

(2) To reduce hazardous nighttime driving conditions in any area classified as other than a residential district by the comprehensive zoning ordinance of the city by prohibiting the parking or standing on any public highway, street or alley within any such area of vehicles, trailers and motor homes as defined in this section, during nighttime hours.

(b) *Restricted areas and times.*

(1) *Single-family, two-family, multi-family dwelling districts.* It shall be an offense for any person to park or stand or to allow any motor home, bus, trailer, boat trailer, semi-trailer, pole trailer, truck tractor, house trailer, special mobile equipment, farm tractor or implement of husbandry to park or stand upon any public street, highway, alley or public right-of-way between any street and alley, within any part of the city classified by the comprehensive zoning ordinance of the city as a single-family dwelling district, two-family dwelling district, or multi-family dwelling district. It shall be an offense for any person to park or stand or allow any vehicle to park or stand upon any public street, highway, alley or public right-of-way between any street and alley within a residentially-classified district where a portion of the vehicle or any accessory attached to the vehicle extends more than ninety-five (95) inches into the roadway as measured from the face of the curb adjacent to said vehicle. This subsection shall not prevent the parking or standing of the above-described vehicles and/or trailers upon any public street, highway or alley in any such zoned area, for the purpose of expeditiously loading and unloading passengers, freight or

merchandise, but not otherwise. City service or emergency trailers, semi-trailers, pole trailers and special mobile equipment are exempt from this section.

(2) *Other districts.*

a. It shall be an offense for any person to park or stand or to allow any truck with a rated capacity in excess of three-quarters (¾) of a ton according to the manufacturer's rated classification or any motor home, bus, trailer, semi-trailer, pole trailer, truck tractor, house trailer, special mobile

equipment, farm tractor or implement of husbandry to park or stand upon any public street, highway, alley or any public right-of-way between any street and alley, within any part of the city classified as any district other than one set out in subsection (b)(1) of this section, at any time from 8:00 p.m. until 7:00 a.m. In addition, such vehicles shall not be allowed to park or stand upon any public street, highway, alley, or any public right-of-way between any street or alley within five hundred (500) feet of a lot containing a single-family, two-family or multi-family residence at any time unless in the process of loading or unloading passengers, freight or merchandise.

b. It shall be an offense for any person to park or stand or to allow any vehicle described in paragraph a. above to park or stand for any time frame of more than four (4) continuous hours on parking lots or other private property in any zoning district except Light Industrial-1 and Light Industrial-2. Vehicles in the process of loading or unloading passengers, freight or merchandise in a designated loading area, and delivery and other vehicles used by tenants or occupants of the property are exempt from these regulations, as are vehicles operated by registered guests on a property providing commercial overnight lodging. Parked vehicles shall not have engines running unless they are in the process of loading or unloading, or are parked in Light-Industrial-1 and Light-Industrial-2 zoning districts and not within five hundred (500) feet of a lot containing a single-family, two-family or multi-family residence.

(Ord. No. 64-6-2, § 3, 6-29-64; Ord. No. 79-7-10, §§ 1—3, 7-23-79; Ord. No. 79-8-29, § 1, 8-27-79; Ord. No. 99-9-36, § I, 9-27-99; Ord. No. 99-11-9, § I, 11-8-99; Ord. No. 2004-7-9, § I, 7-26-04; Ord. No. 2006-6-11, § I, 6-12-06; Ord. No. 2015-5-13, § I, 5-26-15; Ord. No. 2016-2-7, § III, 2-22-16)

Cross reference—Zoning, App. A.

Sec. 12-114.1. Stopping, standing, or parking of vehicles exceeding ten thousand (10,000) pounds GVW prohibited on certain streets at all times.

It shall be unlawful for any person to stop, stand, or park any vehicle with a gross vehicle weight rating of ten thousand (10,000) pounds or more when signs are posted stating: "VEHICLES EXCEEDING 10,000 GVW NO STOPPING, STANDING, OR PARKING AT ANY TIME" except when necessary to avoid conflict with other traffic, or in compliance with law or directions of a police officer, or when in the process of loading or unloading freight or merchandise, on any of the following streets within the city:

Split Trail Road, along both sides from its intersection with East Spring Creek Parkway south to its intersection with K Avenue.

Wedgewood Drive:

(1) Along the north side from its intersection with Dallas Parkway to a point three hundred ten (310) feet west of its intersection with Dallas Parkway;

(2) Along the north side from a point three hundred sixty (360) feet west of its intersection with Dallas Parkway west to its intersection with Communications Parkway.

(3) Along the south side from its intersection with Dallas Parkway west to its intersection with Communications Parkway.

(Ord. No. 2008-12-14, § I, 12-22-08; Ord. No. 2009-5-10, §§ I—III, 5-11-09)

Sec. 12-115. Parking of certain equipment in certain zoning districts.

(a) The city manager or his designee(s) is hereby authorized to enforce the provisions of this section.

(b) *Offense.*

(1) It shall be an offense for an owner, operator, occupant or person with care, custody or control of property within any zoning district to park, store or permit the parking or storage of a motor vehicle upon the property without the motor vehicle being located on:

a. A solid and continuously paved concrete or asphalt surface specifically designed for parking; and

b. A paved parking surface that is the full dimensions of the vehicle.

(2) The provisions of subsection 12-115(b) shall not apply where:

a. Exempted by the City of Plano Zoning Ordinance, as amended;

b. Allowed by a certificate of appropriateness for a property with heritage designation;

c. The city right-of-way consists of bricks, pavers or similar materials and parking is otherwise allowed; or

d. Alternative parking surfaces have been approved in writing by the city engineer.

(3) It shall be an offense to park, store or permit the parking or storage of any of the following vehicles upon property located within a residential zoning district:

a. A commercial motor vehicle, semitrailer, special mobile equipment, pole trailer or truck tractor, as defined in section 12-2 of this chapter, exceeding one and one-half (1½) tons capacity intended for commercial purposes;

b. A commercial motor vehicle, as defined in section 12-2 of this article, that measures more than twenty (20) feet long, seven (7) feet high or seven (7) feet wide; or

c. A race car, dune buggy, farm equipment or other similar vehicle not designated for public street operation.

(c) *Criminal penalty.*

(1) It shall be an offense to intentionally or knowingly fail to comply with any provision of this section. Any person, firm, association or corporation violating any provision of section 12-115 of this chapter shall be punished by a fine not to exceed two thousand dollars ($2,000.00). Each day that such violation under this section occurs shall constitute a separate offense.

(2) *Repeat and habitual offenders.*

a. If it is shown on the trial of an offense under section 12-115 that the defendant has previously been finally convicted of an offense under section 12-115, on conviction the person shall be punished by a fine of not less than five hundred dollars ($500.00) and not to exceed two thousand dollars ($2,000.00).

b. If it is shown on the trial of an offense under section 12-115 that the defendant has previously been finally convicted of two or more offenses under section 12-115, on conviction the person shall be punished by a fine of not less than one thousand dollars ($1,000.00) and not to exceed two thousand dollars ($2,000.00).

c. This subsection for Repeat and Habitual Offenders applies only to a person finally convicted of a second or subsequent offense within three years of the date on which the most recent preceding offense was committed.

(d) *Affirmative defense.*

(1) It shall be an affirmative defense to criminal prosecution if the defendant proves by a preponderance of the evidence that at the time of the conduct prohibited

by subsection 12-115(b)(1), the prohibited conduct occurred on a gravel parking surface installed prior to November 1979 that is located within a General Residential (GR) or Single Family Residence-7 (SF7) zoned district and has been maintained in its original size and condition.

(Ord. No. 79-11-9, §§ 1, 2, 11-12-79; Ord. No. 83-11-20, § 1, 11-22-83; Ord. No. 98-5-20, § II, 5-26-98; Ord. No. 2006-6-11, § II, 6-12-06; Ord. No. 2016-2-7, § IV, 2-22-16; Ord. No. 2018-9-7, § II, 9-10-18)

Sec. 12-116. Handicapped parking.

(a) *Definitions.* The definitions relating to disability in Article 6675a-5e.1 Vernon's Texas Civil Statutes shall apply to this section. The definition of "disabled veteran" in Article 6675a-5e Vernon's Texas Civil Statutes shall apply to this section.

(b) *Designation of spaces on public property; signs.* The traffic engineer may designate specific parking spaces on public property for use by disabled veterans, disabled persons and temporarily disabled persons. Such parking spaces shall be designated by posting appropriate signs conforming to the provisions of Article 6675a-5e.1, Section 6A, Vernon's Texas Civil Statutes, as amended.

(c) *Designation of spaces on off-street parking facility; signs.* The person who owns or controls any off-street parking facility may designate specific parking spaces for use by disabled veterans, disabled persons and temporarily disabled persons. Such parking spaces shall be designated by posting, at the owner's expense, appropriate signs conforming to the provisions of Article 6675a-5e.1, Section 6A, Vernon's Texas Civil Statutes, as amended.

(Ord. No. 81-9-10, §§ 2—8, 9-28-81; Ord. No. 94-3-21, § I, 3-28-94)

Sec. 12-117. Procedure when meeting or overtaking stopped school bus.

(a) The driver of a vehicle upon a highway inside or outside of a business or residence district upon meeting or overtaking from either direction any school bus which has stopped on the highway for the purpose of receiving or discharging any school children shall stop the vehicle before reaching such school bus when there is in operation on said school bus a visual signal, and said driver shall not proceed until such school bus resumes motion or is signaled by the school bus driver to proceed or the visual signals are no longer activated.

(b) The driver of a vehicle upon a highway with separate roadways need not stop upon meeting or passing a school bus which is on a different roadway or when upon a controlled-access highway and the school bus is stopped in a loading zone which is a part of or adjacent to such highway and where pedestrians are not permitted to cross the roadway.

(Ord. No. 86-3-23, § II, 3-24-86)

Sec. 12-118. Prohibited for certain purposes.

Any person who shall stop, stand or park any vehicle on any street in the city for the purpose of exhibiting such vehicle for sale, or for the purpose of washing such vehicle, or for the purpose of making repairs to such vehicle, except such repairs as may be necessary as emergency repairs, shall be deemed guilty of a misdemeanor.

Sec. 12-119. Vehicle for sale are prohibited near major thoroughfares.

(a) No person shall park on public or private property a motor vehicle, boat, trailer, recreational vehicle or camper (collectively called "vehicle" or "vehicles") having displayed thereon any writing indicating such vehicle is for sale which is visible from a major thoroughfare. The term "major thoroughfare" is defined as any thoroughfare having four (4) or more lanes, any service road for an expressway or tollway, or the one-way portions of K Avenue and Municipal Drive. A violation of this section shall constitute a class C misdemeanor. The provisions of this section shall not apply to a vehicle parked in an area having both a certificate of occupancy issued by the city for the sale of vehicles and a license from the Texas Department of Transportation for the

sale of vehicles at that location. The provisions of this section shall not apply to a vehicle parked on or immediately adjacent to a single-family residence if the vehicle is owned, registered to, or operated by the owner or occupant of the single-family residence.

(b) In addition, the city manager or his designee may, after receiving authorization from the police department, without the consent of the owner or operator of a vehicle parked in violation of this section, cause the vehicle and any property on or in the vehicle to be removed and stored at a vehicle storage facility at the owner's or operator's expense if:

(1) The owner or operator of the vehicle has received actual notice that the vehicle is in violation of this section and that it will be towed and stored at the vehicle owner's or operator's expense if it is not removed; or

(2) A conspicuous notice has been attached to the vehicle's front windshield or, if the vehicle has no front windshield, to a conspicuous part of the vehicle stating:

a. That the vehicle is parked in violation of this section;

b. That the vehicle will be towed and stored at the expense of the owner or operator of the vehicle if it is not removed from the area by a specified time and date, such time and date not being sooner than twelve (12) hours after the notice is attached to the vehicle; and

c. A telephone number that is answered twenty-four (24) hours a day to enable the owner or operator of the vehicle to locate the vehicle.

(c) In addition to the requirements of subparagraphs (b)(1) or (b)(2) of this section, a notice must be mailed on the next business day after the vehicle is towed for a vehicle registered in the State of Texas and no later than the fourteenth calendar day after the vehicle is towed for a vehicle registered outside the State of Texas to the owner of the vehicle by certified mail, return receipt requested to the last address shown for the owner according to the vehicle registration records of the Texas Department of Transportation, or if the vehicle is registered in another state, the appropriate agency of that state, stating:

(1) A description of the vehicle;

(2) That the vehicle was parked in violation of this section with a description of the location where it was parked;

(3) That the vehicle was towed and stored at the expense of the owner or operator of the vehicle; and

(4) A telephone number that is answered twenty-four (24) hours a day to enable the owner or operator to locate the vehicle.

(d) "Business day" is defined as a Monday, Tuesday, Wednesday, Thursday or Friday excluding any holiday observed by the city where city administrative offices are closed.
(Ord. No. 97-1-17, § I, 1-27-97; Ord. No. 97-2-21, § I, 2-24-97)

Sec. 12-120. Procedures for towing and storing vehicles.

(a) Prior to towing a vehicle parked in violation of section 12-119, the city manager or his designee shall receive authorization from the police department which will take into custody the vehicle through a towing company under contract with the city.

(b) A towing company under contract with the city and that is insured against liability for property damages incurred in towing a vehicle and after receiving authorization from the police department may, without the consent of an owner or operator of a vehicle, remove and store the vehicle, and any property on or in the vehicle, at a vehicle storage facility at the expense of the owner or operator if the towing company has received a written statement from the city manager or his designee that:

(1) The vehicle is parked in violation of section 12-119; and

(2) The owner or operator of the vehicle has received actual notice that the vehicle is in violation of this section, or a conspicu-

ous notice has been attached to the vehicle for the required period of time in compliance with subsection 12-119(c).

(c) No later than the fifth calendar day after taking the vehicle into custody for a vehicle registered in the State of Texas and no later than the fourteenth calendar day after the vehicle is taken into custody for a vehicle registered outside the State of Texas the towing company shall mail a written notice by certified mail, return receipt requested, to the last address shown for owner and lienholder, if any, according to the vehicle registration records of the Texas Department of Transportation, or if the vehicle is registered in another state, the appropriate agency of that state, stating:

(1) A description of the vehicle;

(2) That the towing company is in possession of the vehicle as a result of it being towed;

(3) A description of where the vehicle was towed from and when it was towed to the towing company's storage facility;

(4) The city authorized the tow;

(5) The name and telephone number of the towing company and the address where the vehicle is stored where it may be reclaimed;

(6) A statement that the vehicle may be reclaimed upon presentation of proof of ownership and payment of towing, storage and notification fees;

(7) The amount of the towing, storage and notification fees; and

(8) A statement if the vehicle remains at the storage facility for twenty (20) days or more after the date of the notice, unclaimed, the towing company will declare it to be abandoned. Such failure to reclaim the vehicle shall be deemed a waiver of the owner's and lienholder's right, title and interest in the vehicle and their consent to the sale of the vehicle at public auction to be held on or after a specified date.

(d) Notice by publication in a newspaper of general circulation in the city is sufficient notice under subsection 12-120(c) if:

(1) The identity of the last registered owner cannot be determined;

(2) The registration has no address for the owner; or

(3) The determination with reasonable certainty of the identity and address of all lienholders is impossible.

The notice of publication must be published in the same time period and contain the same information required by subsection 12-120(c). The publication may contain a list of more than one (1) vehicle.

(e) An owner or operator of the vehicle shall be entitled to the rights of owners of stored vehicles as set forth in Chapter 685 of the Texas Transportation Code, as amended, which chapter is incorporated herein by reference.

(f) A towing company which tows a vehicle under this section shall be entitled to receive from the owner, operator or lienholder the expense of towing and storage of the vehicle, including the cost of notification. Such expenses shall be a priority lien against the vehicle and may be deducted from the sale of the vehicle at a public auction.

(g) If the vehicle is not reclaimed by the owner or lienholder, by paying the full expense of towing, storage, preservation and notification within twenty (20) days after the date of notification provided in subsections 12-120(c) or 12-120(d) then the owner and lienholder waive all rights and interests in the vehicle and consent to the sale of the vehicle by public auction. In such event, the towing company under contract with the city may sell the vehicle at a public auction.

(h) The purchaser of a vehicle at a public auction:

(1) Takes title free and clear of all liens and claims of ownership;

(2) Shall receive a sales receipt from the police department; and

(3) Is entitled to register the vehicle and receive a certificate of title.

(i) The towing company under contract with the city from and after it is authorized to tow the vehicle by the police department as provided in section 12-120(a) shall be acting on behalf of the police department. Such towing company is entitled to reimbursement from the proceeds of the sale of a vehicle:

(1) The cost of the auction;

(2) The towing, preservation and storage fees resulting from taking the vehicle into custody; and

(3) The cost of notice or publication.

(j) After deducting the reimbursement allowed under subsection 12-120(i), the proceeds of the sale shall be held for ninety (90) days for the owner or lienholder of the vehicle. After such time period, proceeds unclaimed by the owner or lienholder shall be deposited in a city account that may be used for the payment of auction, towing, preservation, storage, notice and publication fees resulting from taking other vehicles into custody under this section if the proceeds from the sale of the other vehicles are insufficient to meet those fees. The city may transfer funds in excess of one thousand dollars ($1,000.00) from the account of the city's general revenue account to be used by the police department.
(Ord. No. 97-1-17, § I, 1-27-97)

Sec. 12-121. Long-term parking on city streets and alleys.

It shall be unlawful for any person to stop, stand, park or allow a motor vehicle under his or her ownership, care, custody or control to remain on a city street or alley in excess of fifteen (15) consecutive, calendar days without being operated and moved at least one hundred (100) feet during such period.
(Ord. No. 2021-9-5, § I, 9-13-21)

Secs. 12-122—12-130. Reserved.

ARTICLE VI. COMMERCIAL VEHICLES

Sec. 12-131. Penalty for violation.

Any person or any agent or employee thereof who violates any of the provisions of this article shall be guilty of a misdemeanor and upon conviction in the municipal court shall be subject to a fine not to exceed two hundred dollars ($200.00) for each offense, and each day any such violation shall continue shall be deemed to constitute a separate offense.
(Ord. No. 82-11-17, § 10, 11-22-82; Ord. No. 2016-2-7, § V, 2-22-16)

Editor's note—Ord. No. 2016-2-7, § V, adopted February 22, 2016, repealed the former section 12-131 in its entirety, which pertained to definitions and derived from Ord. No. 82-11-17, § I, adopted November 22, 1982. Subsequently, Ord. No. 2016-2-7 redesignated the former section 12-131.1 as section 12-131. The historical notation of the former section 12-131.1 has been preserved for reference purposes.

Cross reference—Certain violations punishable by a fine not exceeding five hundred dollars, § 1-4.

Sec. 12-131.1. Reserved.

Note—See editor's note at section 12-131.

Sec. 12-132. Reserved.

Editor's note—Section 12-132, exceptions to this article, deriving from Ord. No. 82-11-17, § 4, adopted Nov. 22, 1982, and Ord. No. 84-9-20, § 25, adopted Sept. 10, 1984, has been deleted, at the editor's discretion, pursuant to § 29 of Ord. No. 87-12-19, adopted Dec. 28, 1987, which repealed Ord. No. 84-9-20.

Sec. 12-133. Reserved.

Editor's note—Section 12-133, prohibiting operation upon other than truck routes, as derived from Ord. No. 82-11-17, §§ 2, 3, adopted Nov. 22, 1982, and Ord. No. 84-9-20, § 25, adopted Sept. 10, 1984, has been deleted, at the editor's discretion, pursuant to § 29 of Ord. No. 87-12-19, adopted Dec. 28, 1987, which repealed Ord. No. 84-9-20.

Sec. 12-134. Truck routes designated.

The following roadways and parts of roadways are designated as truck routes under this article:

Name of roadway	*Limits*
Plano Parkway	East city limits to west city limits

Name of roadway	*Limits*
U.S. Highway 75	South city limits to north city limits
State Highway 289	South city limits to north city limits

(Ord. No. 82-11-17, § 5, 11-22-82)

Sec. 12-135. Signs and markings for truck routes.

The traffic engineer or such other person designated by the city manager shall erect appropriate signs and markings to designate the truck routes.
(Ord. No. 82-11-17, § 6, 11-22-82)

Sec. 12-136. Designation of alternate routes during repair of truck routes.

Whenever any street designated as a truck route is being repaired or is otherwise temporarily out of use, the traffic engineer or such other person designated by the city manager is hereby authorized to designate alternate truck routes for such periods as might be necessary.
(Ord. No. 82-11-17, § 7, 11-22-82)

Sec. 12-137. Streets prohibited to certain vehicles.

(a) It shall be unlawful for any person to operate, park, unload, or otherwise maneuver a truck, truck tractortrailer, trailer, semi-trailer, house trailer, or other large vehicle with a manufacturer's rated carrying capacity (payload) in excess of two (2) tons and with a total of three (3) or more axles, the number of axles being the sum of the motorized vehicle axles plus any trailer or other attached vehicle unit axles, along the streets specified below (excluding the intersection of the boundary street):

(1) 15th Street between G Avenue and K Avenue.

(2) 13th Street between G Avenue and I Avenue.

(3) Avenue G between 13th - 14th Connector and 13th Street.

(4) Avenue F between 13th Street and Southwestern Avenue.

(5) Avenue H between 14th Street and 11th Street.

(6) H Place, its entire length south of 13th Place.

(7) 11th Street between Avenue F and Avenue H.

(8) 15th Street between P Avenue and R Avenue.

(9) The east-west alley approximately 110 feet south of Cambridge Drive, its entire length

(b) The traffic engineer is hereby authorized and directed to cause placement of traffic-control signs at each approach to the portions of roadways mentioned in subsection (a) above, and such signs shall give notice to all persons of the prohibition against trucks and other vehicles described in this section operating over or upon the roadways set out in subsection (a).

(c) It shall be unlawful for any commercial vehicle as described in subsection (a) above to operate along and upon any public street with right-of-way of sixty (60) feet or less, or along and upon any alley, within any area classified as residential by the Plano Comprehensive Zoning Ordinance within the corporate limits of the city unless such vehicle is making a delivery to a specific location in the residential area. The traffic engineer may erect traffic-control signs at appropriate places within such areas, which signs shall give notice of the prohibition of commercial vehicles in such areas.

(d) The provisions under this section do not apply to city service and emergency vehicles. This section shall not prohibit the use of the roadways or portions of roadways listed in subsections (a) and (c) by a commercial vehicle—i.e., truck, truck-tractor, trailer, or semi-trailer, or combination of such vehicles, having a total of three (3) or more axles and a power unit with a manufacturer's rated carrying capacity in excess of two (2) tons—that is performing work on a prohibited street or adjacent property through a contract with the city. Also, provisions under

this section do not apply to non-commercial (private) motorized trucks or other vehicles with two (2) axles or pulling a single axle trailer carrying two (2) tons or less.
(Ord. No. 83-6-8, §§ 1—4, 6-13-83; Ord. No. 84-3-19, § 1, 3-26-84; Ord. No. 84-8-12, § II, 8-13-84; Ord. No. 86-4-29, § II, 4-28-86; Ord. No. 89-10-7, § I, 10-11-89; Ord. No. 90-2-6, § II, 2-12-90; Ord. No. 93-11-15, § I, 11-8-93; Ord. No. 2001-11-19, § I, 11-26-01; Ord. No. 2002-2-9, § I, 2-11-02; Ord. No. 2002-5-26, § I, 5-28-02; Ord. No. 2008-11-27, §§ I, II, 11-24-08; Ord. No. 2015-8-10, § I, 8-24-15)

Secs. 12-138. Reserved.

Editor's note—Section 12-138, concerning operation within public parks, as derived from Ord. No. 82-11-17, § 9, adopted Nov. 22, 1982, and Ord. No. 84-9-20, § 25, adopted Sept. 10, 1984, has been deleted, at the editor's discretion, pursuant to § 29 of Ord. No. 87-12-19, adopted Dec. 28, 1987, which repealed Ord. No. 84-9-20.

Secs. 12-139—12-155. Reserved.

ARTICLE VII. BICYCLES*

Sec. 12-156. Parents and guardians not to authorize or permit violations of article.

The parent of any minor child and the guardian of any ward shall not authorize or knowingly permit such child or ward to violate any of the provisions of this article.
(Ord. of 7-13-64, § 16-12-2)

State law reference—Similar provisions, Vernon's Ann. Civ. St., art. 6701d, § 178.

Sec. 12-157. Impoundment of bicycles used in violation of article.

The chief is hereby authorized and empowered to impound for a period not to exceed thirty (30) days any bicycle used in violation of any of the provisions of this article or in violation of any of the ordinances of the city regulating traffic, so far as they are applicable. The impounding of a bicycle shall not preclude the imposition of any other penalty provided for such violation.
(Ord. of 7-13-64, § 16-12-16)

Sec. 12-158. Application of article.

The regulations contained in this article shall apply whenever any bicycle is operated upon any street or highway or in any park or public place.
(Ord. of 7-13-64, § 16-12-1)

State law reference—Effect of state regulations, Vernon's Ann. Civ. St., art. 6701d, § 178.

Sec. 12-159. Application of traffic regulations to riders.

Every person operating a bicycle shall be subject to the provisions of the traffic ordinances of the city and of the statutes of the state applicable to the drivers of motor vehicles except as to special regulations in the statutes and this article and except as to those provisions of such ordinances and statutes which by their nature can have no application.
(Ord. of 7-13-64, § 16-12-14)

Sec. 12-160. Drivers to obey traffic-control devices.

Any person operating a bicycle shall obey the directions of official traffic signals, signs and other control devices applicable to other vehicles, unless otherwise directed by a police officer, and shall obey direction signs relative to turns permitted, unless such person dismounts from the bicycle, in which event he shall then obey the regulations applicable to pedestrians.
(Ord. of 7-13-64, § 16-12-15)

Sec. 12-161. Brake.

Every bicycle shall be equipped with a brake which will enable the operator to make the braked wheels skid on dry, level, clean pavement.
(Ord. of 7-13-64, § 16-12-3)

State law reference—Bicycle brake, Vernon's Ann. Civ. St., art. 6701d, § 184.

*__State law references—__Authority of city to regulate operation of bicycles, Vernon's Ann. Civ. St., art. 6701d, § 27(a)(7); bicycles generally, Vernon's Ann. Civ. St., art. 6701d, § 178 et seq.

Sec. 12-162. Lamp and reflector.

Every bicycle, when in use from one-half (½) hour after sunset to one-half (½) hour before sunrise, shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least five hundred (500) feet to the front and with a red reflector on the rear of a type approved by the state department of public safety which shall be visible from all distances from fifty (50) feet to three hundred (300) feet to the rear when directly in front of lawful upper beams of head lamps on a motor vehicle. A lamp emitting a red light visible from a distance of five hundred (500) feet to the rear may be used in addition to the red reflector.
(Ord. of 7-13-64, § 16-12-4)

State law reference—Bicycle lamps, Vernon's Ann. Civ. St., art. 6701d, § 184.

Sec. 12-163. Excess riders prohibited.

No bicycle shall be used to carry more persons at one time than the number for which it is designed or equipped.
(Ord. of 7-13-64, § 16-12-5)

Sec. 12-164. Speed.

No person shall ride a bicycle at a speed greater than is reasonable and proper, having regard to the safety of the rider and others.
(Ord. of 7-13-64, § 16-12-7)

Sec. 12-165. Riding beside other bicycles.

Persons riding bicycles upon a roadway shall not ride more than two (2) abreast except on paths or part of roadways set aside for the exclusive use of bicycles. Persons riding two (2) abreast shall not impede the normal and reasonable flow of traffic on the roadway. If persons are riding two (2) abreast on a laned roadway, they must ride in a single lane.
(Ord. of 7-13-64, § 16-12-8)

Sec. 12-166. Riding on roadways and bicycle paths.

(a) Except as provided by subsection (c) of this section, a person operating a bicycle upon a roadway at less than the speed of the other traffic on the roadway at that time shall ride as near as practicable to the right curb or edge of the roadway, except when:

(1) The person is overtaking and passing another vehicle proceeding in the same direction;

(2) The person is preparing for a left turn at an intersection or onto a private road or driveway; or

(3) Conditions on the roadway, including fixed or moving objects, parked or moving vehicles, pedestrians, animals, surface hazards, or substandard width lanes, make it unsafe to ride next to the right curb or edge of the roadway.

(b) For the purpose of subsection (a) of this section, a substandard width lane is a lane that is too narrow for a bicycle and a motor vehicle to travel in the lane safely side by side.

(c) A person operating a bicycle on a one-way roadway with two (2) or more marked traffic lanes may ride as near as practicable to the left curb or edge of the roadway.
(Ord. of 7-13-64, § 16-12-9)

Sec. 12-167. Carrying articles.

No person operating a bicycle shall carry any package, bundle or article which prevents the operator from keeping at least one (1) hand upon the handlebars.
(Ord. of 7-13-64, § 16-12-10)

Sec. 12-168. Parking.

No person shall park any bicycle in any street, highway or park, or upon any sidewalk, in such manner as to interfere with the safety or movement of pedestrians or vehicular traffic.
(Ord. of 7-13-64, § 16-12-11)

Sec. 12-169. Riding on sidewalks and other specified areas.

(a) Except as may be authorized by a special event permit, it shall be an offense for any person to use, ride, propel, or operate a bicycle on any public sidewalk, walkway, architectural

feature, wall, plaza, steps, or railing within the following identified places as defined in section 14-7:

(1) Downtown District.

(2) Memorial Park that serves as a veteran's memorial.

(3) Legacy Town Center District, specifically public sidewalks adjacent to commercial businesses.

This subsection shall not apply to any authorized city employee while performing official duties or any person who walks a bicycle in the above-referenced areas.

The conduct prohibited in the above-referenced areas shall not apply to shared use paths as defined in section 14-7.
(Ord. of 7-13-64, § 16-12-12; Ord. No. 98-5-19, § I, 5-26-98; Ord. No. 2002-6-10, § I, 6-10-02; Ord. No. 2016-8-16, §§ I, II, 8-22-16)

Sec. 12-170. Trick riding.

No rider of a bicycle shall remove both hands from the handlebars or his feet from the pedals while riding or practice any trick, fancy or acrobatic riding in any public roadway.
(Ord. of 7-13-64, § 16-12-13)

Sec. 12-171. Comprehensive bikeway plan approved.

(a) The comprehensive bikeway plan and the recommendations having been reviewed by the city council and found to be acceptable and in the best interest of the city are hereby in all things approved.

(b) The city staff, parks and recreation board and city council will proceed with implementing the comprehensive bikeway plan.
(Res. No. 85-3-11(R), §§ I, II, 3-19-85)

Sec. 12-172. Bike-share permits.

(a) It shall be an offense for a company or person that provides bicycles or scooters on a short-term basis in exchange for compensation to place bicycles or scooters in the city's right-of-way without a bike-share permit.

(b) Permits may be issued and amended by the director of engineering, or his designee, of the City of Plano and shall regulate the use of the city's right-of-way to allow sufficient access for pedestrians, comply with the American's with Disabilities Act, ensure no significant adverse effect on the property rights of third parties, and avoid creating conditions that are a threat to public health and safety.
(Ord. No. 2018-2-6, § I, 2-26-18; Ord. No. 2018-11-1, § I, 11-12-18)

Secs. 12-173—12-190. Reserved.

ARTICLE VIII. ABANDONED AND JUNKED VEHICLES*

DIVISION 1. ABANDONED VEHICLES

Sec. 12-191. Certain motor vehicles declared abandoned and nuisances.

Any motor vehicle considered abandoned pursuant to V.T.C.A. Transportation Code, Ch. 683, as amended, is hereby declared abandoned and a public nuisance, and the police department may take any and all actions related to the vehicle, its contents, and proceeds from sale, in accordance with V.T.C.A. Transportation Code, Ch. 683, as amended, including but not limited to: seizure, notice, storage, auction, use, transfer, demolition, disposition, waiver of rights by owners and lienholders, assessment of fees and expenses, reimbursement, and transfer of funds and title to the vehicle.
(Ord. No. 2021-9-5, § II, 9-13-21)

---

*__Editor's note—__Ord. No. 2021-9-5, § II, adopted September 13, 2021, repealed the former article VIII, §§ 12-206—12-211, 12-226—12-333, and enacted a new article VIII as set out herein. The former article VIII pertained to similar subject matter and derived from Ord. No. 77-8-2, adopted August 8, 1977; Ord. No. 2001-5-23, adopted May 29, 2001; Ord. No. 2001-10-17, adopted October 22, 2001; Ord. No. 2001-11-23, adopted November 26, 2001; Ord. No. 2007-11-11, adopted November 12, 2007; Ord. No. 2011-9-28, adopted September 26, 2011; and Ord. No. 2016-4-5, adopted April 11, 2016.

__State law reference—__Abandoned and junked vehicles, Vernon's Ann. Civ. St., art. 4477-9a, § 5.01 et seq.

Sec. 12-192. Auction of unclaimed abandoned motor vehicles.

(a) If an abandoned motor vehicle has not been reclaimed as provided in this division, the chief of police or designee shall have the right to direct the purchasing director of the city to sell such vehicle at public auction. Thirty (30) days' notice of the time and place of sale of the motor vehicle shall be posted at the city hall, and a copy thereof sent by certified mail to the last known address of the owner. In the case of a garagekeeper's lien, the garagekeeper shall be notified of the time and place of the auction. If the name of the owner is not known to the purchasing director, a copy of the notice of the sale shall be published in the official newspaper published in the city once a week for two (2) consecutive weeks, the date of the first publication to be at least fourteen (14) days prior to the date of the auction sale.

(b) The notice of sale shall describe the motor vehicle, state the same is unredeemed, state that the same will be sold at public auction, designate the place of sale and the time and date of sale, which shall not be less than fourteen (14) days from the date of posting such notice. Thereafter, such property shall be offered for sale by public auction to the highest bidder. The purchasing director has the discretion to assemble lots of motor vehicles and offer such lots for sale to the highest bidder at public auction.

(c) The purchaser of the motor vehicle shall take title to the motor vehicle free and clear of all liens and claims of ownership, shall receive a sales receipt from the police department, shall be entitled to register the purchased vehicle and shall receive a certificate of title.
(Ord. No. 2021-9-5, § II, 9-13-21)

Sec. 12-193. City officers and employees not to purchase at sales.

It shall be against city policy for any police officer or any other officer or employee of the city, either directly or indirectly, to purchase at any sale or acquire in any manner the ownership at such sale of any vehicle impounded or offered for sale under the provisions of this division, and should any officer or employee do so, it shall be the duty of the city manager to request the dismissal of such officer or employee from the service of the city.
(Ord. No. 2021-9-5, § II, 9-13-21)

Secs. 12-194—12-204. Reserved.

DIVISION 2. JUNKED VEHICLES

Sec. 12-205. Junked vehicle declared a public nuisance.

Any vehicle considered a junked vehicle pursuant to V.T.C.A. Transportation Code, Ch. 683, as amended, is hereby declared junked and a public nuisance, and the city manager or designee(s) may take any and all actions related to the vehicle, parts of the vehicle, its contents, and proceeds from sale, in accordance with V.T.C.A. Transportation Code, Ch. 683, as amended, including but not limited to: enforcement for a criminal offense under V.T.C.A. Transportation Code, Ch. 683; entry on private property, inspection, abatement, removal, seizure, relocation, storage, auction, use, transfer, demolition, disposition, waiver of rights by owners and lienholders, assessment of fees and expenses, reimbursement, and transfer of funds and title for junked vehicles and parts of junked vehicles; and notice, presumptions, and hearings. Definitions, procedures and inapplicability related to junked vehicles, as described in V.T.C.A. Transportation Code, Ch. 683, as amended, whether described as mandatory or optional in that chapter, are hereby adopted, and the city manager or designee(s) are authorized to take any and all actions and conduct hearings in accordance with V.T.C.A. Transportation Code, Ch. 683, as amended. The Plano Municipal Court is authorized to conduct hearings and enforce orders in accordance with V.T.C.A. Transportation Code, Ch. 683.
(Ord. No. 2021-9-5, § II, 9-13-21)

Sec. 12-206. Offense.

(a) A person commits an offense if the person allows or maintains a junked vehicle in any place, whether on private or public property, in view of the public or on a public right-of-way.

(b) An offense under this section is punishable by a fine not to exceed two hundred dollars ($200.00). A separate offense occurs each day the violation described in subsection (a) continues.

(c) The court shall order abatement and removal of the public nuisance on conviction of this offense.
(Ord. No. 2021-9-5, § II, 9-13-21)

Sec. 12-207. Hearing and abatement procedures.

In addition to the regulations found in V.T.C.A. Transportation Code, Ch. 683, as amended, the following procedures are required:

(1) *Notice.* Written notice from the city shall be provided in accordance with V.T.C.A. Transportation Code, ch. 683, as amended.

(2) *Hearing.*

a. A designee of the city manager shall conduct hearings under the procedures adopted under this section. This hearing officer does not have to adhere to strict rules of evidence, and can adopt informal procedures for the hearing.

b. Any request for a public hearing by a person who receives notice must be made not later than the date by which the nuisance must be abated and removed.

c. If a hearing is requested by a person for whom notice is required, the hearing shall be held not earlier than the 11th day after the date of the service of notice.

d. At the hearing, the junked vehicle is presumed, unless demonstrated otherwise by the owner, to be inoperable.

(3) *Abatement and removal of nuisance.*

a. *Request for abatement and removal of junked vehicle.*

1. After receiving written notice from the city in accordance with V.T.C.A. Transportation Code, Ch. 683, as amended, regarding the public nuisance created by a junked vehicle:

A. The owner of the junked vehicle may request and authorize the city to remove the junked vehicle; or

B. The owner or occupant of the private property upon which the junked vehicle is located may request and authorize the city to remove the junked vehicle if the city cannot locate the vehicle's owner.

2. Before the city removes a junked vehicle, the person requesting removal under this section must execute an authorization and indemnification agreement, thereby allowing the city to enter the private property and holding the city harmless from any claim of injury or damage sustained as a result of the removal and disposal of the junked vehicle in accordance with section 12-208.

3. Any person authorized by the city manager, or his designee, may enter private property to remove the junked vehicle, or part thereof.

b. *Abatement and removal of junked vehicle.*

1. If the information is available at the location of the nuisance, a resolution or order requiring removal of the nuisance must include the vehicle's description, vehicle identification number, and license plate number.

2. The municipal court may issue orders necessary to enforce the procedures and removal of the public nuisance.

3. Any person authorized by the city manager, or his designee, may enter private property to remove the junked vehicle, or part thereof.

(Ord. No. 2021-9-5, § II, 9-13-21)

Sec. 12-208. Junked vehicle disposal.

(a) A junked vehicle removed under this article may not be reconstructed or made operable.

(b) A junked vehicle may be removed to a scrapyard, a motor vehicle demolisher, or any other suitable site for processing scrap or salvage.

(c) After a proceeding for abatement and removal of a public nuisance commences, removal of the junked vehicle to another location within the city limits where said vehicle continues to constitute a public nuisance has no effect on the proceedings already underway.

(Ord. No. 2021-9-5, § II, 9-13-21)

Secs. 12-209—12-255. Reserved.

ARTICLE IX. RAILROADS

Sec. 12-256. Speed limit.

It shall be unlawful for any person to run or operate any railroad train, locomotive or passenger or freight cars at any place within the corporate limits of the city at a greater rate of speed than twenty-five (25) miles per hour.

(Ord. No. 61-11-4, § 1, 11-9-61)

Sec. 12-257. Blocking streets; complaints; presumption.

(a) It shall be unlawful for any person or his agent, employee, or servant to stop and leave standing or cause to be left standing any railroad train, locomotive, or passenger or freight car, upon and across any public crossing of any street, alley, or public way at any intersection thereof with a railroad line and tracks so as to obstruct such crossing for a longer period than three (3) consecutive minutes during the hours of 7:30 a.m. through 8:30 a.m. and 4:30 p.m. through 6:00 p.m. of the local time then in effect. At other times the maximum period of time shall be five (5) minutes.

(b) The time limits stated in subsection (a) shall not apply to any train in constant and continuous unidirectional (not back and forth) motion passing through an intersection and operating at a reasonable speed in order to clear the intersection or when such obstruction is due to accident or other emergency condition beyond the control of the person or his agent, employee, or servant. Provided further that the time limit stated in subsection (a) shall not apply to any train stopping or standing across public crossings between, but not including, the intersections of railroad tracks or lines with Avenue K and Shiloh Road and the intersection of railroad tracks or lines with Los Rios Boulevard, between the hours of 12:00 midnight and 5:30 a.m., and provided further that the obstruction of such crossing shall not continue for a longer period than thirty (30) consecutive minutes.

(c) Any person affected by a violation of this section shall have the right to file a formal complaint with the municipal court of the city.

(d) In any prosecution of a violation of this section, proof of the violation shall constitute in evidence a prima facie presumption that the owner or lessee of the train was cognizant of and authorized such violation.

(e) Any person violating any of the provisions of this section shall be deemed guilty of a misdemeanor, and upon conviction thereof, shall be punished as provided in section 1-4. Each and every blockage of the railroad intersection with a street, alley, or public way shall constitute a separate offense and shall be punishable as such under this section.

(Ord. No. 63; Ord. No. 74-2-11, §§ 1—5, 2-25-74; Ord. No. 84-11-17, § I, 11-26-84; Ord. No. 85-10-32, § I, 10-28-85)

Sec. 12-258. Quiet zones.

(a) *Definitions.* For purposes of this section, the following words and phrases shall have the meanings respectively ascribed to them by this section:

City engineer means the City Engineer for the City of Plano or his/her duly authorized representative.

DART means the light rail system that Dallas Area Rapid Transit operates.

Highway-rail or *grade crossing* means any street or highway crossing over a line of railroad at grade.

Locomotive horn means a train-borne audio warning device including a horn, bell, whistle or siren meeting standards specified by the United States Secretary of Transportation.

Quiet zone means a segment of rail line, within which is situated one (1) or a number of consecutive public highway-rail crossings at which locomotive horns are not routinely sounded.

Spur track means a short side track that connects with the main track of a railroad system.

Supplemental safety measure (SSM) means a safety system or procedure at a highway rail or grade crossing that is determined by the Federal Railroad Administration and/or the United States Secretary of Transportation to be an effective substitute for the locomotive horn in prevention of highway-rail casualties that fully compensates for the absence of the warning provided by the locomotive horn. A traffic control arrangement that prevents careless movement over the crossing (e.g., as where adequate median barriers prevent movement around crossing gates extending over the full width of the lanes in the particular direction of travel), and that conforms to the standards prescribed by the United States Secretary of Transportation under the Swift Rail Development Act of 1994, Public Law 103-440, as amended, shall be deemed to constitute supplemental safety measures. The following do not, individually or in combination; constitute supplemental safety measures within the meaning of this definition: standard traffic control devices or arrangements such as reflectorized crossbucks, stop signs, flashing lights with gates that do not completely block travel with the line of railroad or traffic signals.

(b) *Quiet zone establishment process.*

(i) The City Council of the City of Plano, in accordance with applicable federal and state law, may designate certain highway-rail or grade crossings located within the corporate city limits of the City of Plano as quiet zones. Except as required in an emergency situation, or as otherwise allowed by federal law, the engineer or person in charge of a railroad locomotive shall not sound the railroad locomotive horn within one thousand three hundred twenty (1,320) feet of any grade crossing located within a designated quiet zone in the City Limits of the City of Plano.

(ii) The city engineer shall be responsible for all procedures and notifications required to create a quiet zone under applicable state and federal law, including, but not limited to: filing the notice of intent with the appropriate state authorities and affected railroad companies; designing, implementing and obtaining approval of the supplementary safety measures for the designated quiet zone; obtaining city council approval of all quiet zone locations; and preparing and filing the notice of enactment with the Federal Railroad Administration, state authorities and designated railroad companies.

(c) *Quiet zones; whistle ban at selected locations.*

(i) The following highway-rail or grade crossings, excluding spur tracks and DART crossings located within the corporate city limits of the City of Plano, Texas, are designated as quiet zones:

- Ohio Drive
- Coit Road
- Parker Road
- US 75 Southbound Service Road
- US 75 Northbound Service Road
- Plano Parkway
- F Avenue
- 10th Street

- K Avenue
- Municipal Avenue
- N Avenue
- Jupiter Road
- Shiloh Road
- Los Rios Boulevard
- Plano Parkway
- Park Vista Road

(ii) It shall be unlawful for the engineer or person operating in charge of a railroad locomotive to sound the horn or cause the same to be done within one thousand three hundred twenty (1,320) feet of any highway-rail or grade crossings located within a designated quiet zone by the City of Plano.

(iii) It shall be an affirmative defense to prosecution under this section when in the sole judgment of the engineer, there is imminent danger of an accident; there is a need to announce the approach of the train to roadway workers; or when active warning devices have malfunctioned.

(iv) Any person violating any of the provisions of this section shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be punished as provided in subsection 1-4(b) of the City Code of Ordinances.

(Ord. No. 2006-6-12, § I, 6-12-06; Ord. No. 2007-6-21, §§ I, II, 6-25-07; Ord. No. 2010-9-6, §§ I, II, 9-13-10; Ord. No. 2011-1-5, § I, 1-10-11)

Editor's note—Section IV of Ord. No. 2007-6-21 provided for an effective date of July 30, 2007.

Sec. 12-259. Reserved.

ARTICLE X. RESERVED*

Secs. 12-260—12-269. Reserved.

ARTICLE XI. MOTOR VEHICLE IDLING

Sec. 12-270. Motor vehicle idling.

(a) *Definitions.* In this section:

Commercial passenger transportation means a mode of transportation provided by a bus or motor coach designed to accommodate more than ten (10) passengers (including the operator) for compensation and that is powered by a primary propulsion engine, but specifically excluding the modes of railroad, light rail, or taxicabs.

Idle means the operation of an engine in the operating mode where:

(1) The engine is not engaged in gear;

(2) The engine operates at a speed at the revolutions per minute specified by the engine or vehicle manufacturer for when the accelerator is fully released; and

(3) There is no load on the engine.

Mechanical operations means the use of electrical tools or equipment in construction, maintenance, or repair of facilities.

Passenger transit operations means a regional mode of public transportation that is funded through a portion of sales tax for the region being served.

Primary propulsion engine means a gasoline or diesel-fueled internal combustion engine that:

(1) Is attached to a motor vehicle; and

(2) Provides the power to propel the motor vehicle into motion and maintain motion.

*__Editor's note—__**Ord. No. 2019-7-4, § I, adopted July 22, 2019, repealed article X, §§ 12-260—12-269, which pertained to automated traffic signal enforcement and derived from Ord. No. 2007-8-25, adopted August 27, 2007.

(b) *Idling prohibited.* A person commits an offense if he causes, suffers, allows, or permits the primary propulsion engine of a motor vehicle to idle for more than five (5) consecutive minutes when the motor vehicle is not in motion.

(c) *Defenses.* It is a defense to prosecution under this section that:

(1) The motor vehicle has a gross vehicle weight rating of fourteen thousand (14,000) pounds or less;

(2) The motor vehicle was forced to remain motionless because of traffic conditions over which the operator had no control;

(3) The motor vehicle was being used:

a. By the United States military, National Guard, or reserve forces; or

b. As an emergency or law enforcement motor vehicle;

(4) The primary propulsion engine of the motor vehicle was providing a power source necessary for a mechanical operation of the vehicle, other than:

a. Propulsion; or

b. Passenger compartment heating or air conditioning;

(5) The primary propulsion engine of the motor vehicle was being operated for maintenance or diagnostic purposes;

(6) The primary propulsion engine of the motor vehicle was being operated solely to defrost a windshield;

(7) The primary propulsion engine of the motor vehicle was being used to supply heat or air conditioning necessary for passenger comfort or safety, if the vehicle:

a. Was a school bus or was intended for commercial passenger transportation or passenger transit operations; and

b. Did not idle more than thirty (30) consecutive minutes;

(8) The primary propulsion engine of the motor vehicle was being used to provide air conditioning or heating necessary for employee health or safety while the employee was using the vehicle to perform an essential job function related to roadway construction or maintenance;

(9) The primary propulsion engine of the motor vehicle was being used as airport ground support equipment;

(10) The person charged with the offense was the owner of a motor vehicle that had been rented or leased to the person operating the vehicle at the time of the offense, if the vehicle operator was not employed by the vehicle owner;

(11) The idling of the motor vehicle was necessary to power a heater or air conditioner while a driver was using the vehicle's sleeper berth for a government-mandated rest period and was not within two (2) miles of a facility offering external heating and air conditioning connections at a time when those connections were available;

(12) The primary propulsion engine of the motor vehicle was being used to provide air conditioning or heating necessary for employee health or safety in an armored vehicle while the employee remained inside the vehicle to guard the contents or while the vehicle was being loaded or unloaded; or

(13) The motor vehicle has a gross vehicle weight rating greater than fouteen thousand (14,000) pounds and is equipped with a 2008 or subsequent model year heavy-duty diesel engine or liquefied or compressed natural gas engine that has been certified by the United States Environmental Protection Agency or another state environmental agency to emit no more than thirty (30) grams of nitrogen oxides emissions per hour when idling.

(d) *Penalties.*

(1) Any person who fails to comply with any provision of this article shall be guilty of a class C misdemeanor and upon convic-

tion thereof, shall be punished by a fine in an amount not to exceed five hundred dollars ($500.00). Each act of violation and each day upon which any such violation shall occur shall constitute a separate offense.

(2) In addition to the penalty prescribed above, the city may pursue other remedies such as abatement of nuisances, injunctive relief, administrative adjudication and revocation of licenses or permits.

(Ord. No. 2017-6-10, § I, 6-28-17)

Chapter 13

MUNICIPAL COURT*

Art. I.	**Establishment of the Court, §§ 13-1, 13-2**
Art. II.	**Municipal Judges, §§ 13-3—13-5**
Art. III.	**Court Personnel, §§ 13-6, 13-7**
Art. IV.	**Proceedings of the Municipal Court, §§ 13-8, 13-9**
Art. V.	**Appeals, § 13-10**
Art. VI.	**Court Costs and Fees, §§ 13-11—13-16**

*__Editor's note—__Ord. No. 2012-3-18, § I, adopted March 26, 2012, repealed and reenacted chapter 13 in its entirety to read as herein set out. Formerly, chapter 13, §§ 13-1—13-9 pertained to similar subject matter and derived from Ord. No. 61-12-2, §§ 4, 6, 7, 9, 10, adopted December 18, 1961; Res. No. 85-9-18(R), §§ I—III, adopted September 23, 1985; Ord. No. 87-9-14, § I, adopted September 14, 1987; Ord. No. 97-8-31, §§ I—III, adopted August 25, 1997; Ord. No. 99-12-4, §§ I—III, VII, adopted December 6, 1999; Ord. No. 2001-7-9, §§ I, II, adopted July 23, 2001; Ord. No. 2003-6-5, § I, adopted June 9, 2003; Ord. No. 2005-10-8, § I, adopted October 10, 2005, and Ord. No. 2009-2-23, § I, adopted February 23, 2009.

This chapter shall become effective July 1, 2012.

Charter reference—Municipal court, § 4.04.

Cross references—Administration, Ch. 2; police, Ch. 17.

State law reference—Municipal court, Vernon's Ann. Civ. St., art. 1194 et seq.

ARTICLE I. ESTABLISHMENT OF THE COURT

Sec. 13-1. Creation.

(a) There is hereby created a municipal court of record to be known as the Municipal Court of Record of the City of Plano. Any reference hereinafter to the "court" or "municipal court" shall be understood to mean the Municipal Court of Record of the City of Plano. The court shall possess all such powers and duties as now or hereafter may be prescribed by the laws of the State of Texas or City of Plano Code of Ordinances relative to municipal courts.

(b) The municipal court of record is divided into two (2) divisions designated as Municipal Court of Record Division No. 1 and Municipal Court of Record Division No. 2.

(c) The court shall commence operating as a court of record on July 1, 2012. Cases disposed of before that date shall be governed by the existing court rules and procedures. A case shall be deemed "disposed of" if a judge has entered a finding of guilty or the defendant has entered a plea of guilty or nolo contendere.

(d) All cases filed in the court prior to July 1, 2012, but not disposed of by July 1, 2012, shall be tried in the court of record.
(Ord. No. 2012-3-18, § I, 3-26-12)

Sec. 13-2. Jurisdiction.

(a) Jurisdiction of the court shall be to the fullest extent provided by law for municipal courts including those provided for in Chapters 29 and 30, Government Code, as the same may be amended from time to time, City Charter and ordinances of the City of Plano, and the laws of this state.

(b) The court shall have jurisdiction for all appeals as provided by state law or by ordinance.

(c) The court has concurrent jurisdiction with any justice court in criminal cases that arise within the territorial limits of the City of Plano and are punishable by fine only.

(d) The court has civil jurisdiction for the purpose of enforcing municipal ordinances enacted under Subchapter A, Chapter 214, Local Government Code, or Subchapter E, Chapter 683, Transportation Code, as the same may be amended.

(e) The court has concurrent jurisdiction with a district court or a county court at law for the purpose of enforcing health and safety and nuisance abatement ordinances within the City of Plano territorial limits and property owned by the city located in the city's extraterritorial jurisdiction under Subchapter B, Chapter 54, Local Government Code.

(f) The court has authority to issue (1) search warrants for the purpose of investigating a health and safety or nuisance abatement ordinance violation; and (2) seizure warrants for the purpose of securing, removing, or demolishing the offending property and removing the debris from the premises.
(Ord. No. 2012-3-18, § I, 3-26-12)

ARTICLE II. MUNICIPAL JUDGES

Sec. 13-3. Method of selection.

(a) All municipal court judges shall be appointed by city council. The city council shall appoint the chief municipal judge as the presiding judge. The other judges appointed by the city council shall be designated senior associate judges and associate judges. If a vacancy occurs, the city council shall provide for the appointment of a qualified person to fill the office for the remainder of the unexpired term. Such appointee shall have all the powers and duties of the office and shall receive compensation as determined by city council.

(b) Associate judges whose duties only include magistrate functions shall be independent contractors and not employees. Magistrate functions include, but are not limited to, conducting detention hearings, advising persons in custody of their rights and setting bail amounts and conditions, issuing orders for emergency protection, issuing search and arrest warrants, and ordering persons to be taken into protective custody for commit-

ment to health facilities for mental evaluation. Magistrate duties shall not include presiding over trials or pre-trial municipal court dockets.

The presiding judge, or in his/her absence, a senior associate judge, shall assign duties to substitute associate judges, as needed.

(c) The city council shall determine the compensation and benefits of the senior and associate judges in the approved annual budget for the department. The compensation of associate judges who only perform magistrate functions, as defined in subsection (b) above, shall be determined upon their appointment.
(Ord. No. 2012-3-18, § I, 3-26-12)

Sec. 13-4. Term of office.

The municipal court judges shall serve a term of four (4) years.
(Ord. No. 2012-3-18, § I, 3-26-12)

Sec. 13-5. Qualifications.

Each municipal court judge shall be a resident of this state, a citizen of the United States, licensed attorney in good standing in this state and must have three (3) or more years of experience as a judge, prosecutor and/or defense counsel in municipal court operations in this state. In addition, the presiding judge must meet any other qualifications set by the city council.
(Ord. No. 2012-3-18, § I, 3-26-12)

ARTICLE III. COURT PERSONNEL

Sec. 13-6. Municipal clerk.

(a) The office of municipal clerk is hereby established.

(b) The municipal clerk shall be appointed by the city manager. The municipal clerk also holds the position of court administrator.

(c) The municipal clerk shall employ one or more deputy clerks, and said deputies shall be under the direction and supervision of the municipal clerk and act in and for the municipal clerk in the performance of their duties. The municipal clerk and deputy clerks are subject to removal by the city manager pursuant to the city's policies on discipline and termination.
(Ord. No. 2012-3-18, § I, 3-26-12)

Sec. 13-7. Court reporter.

Municipal court proceedings may be recorded by electronic device as authorized by law.
(Ord. No. 2012-3-18, § I, 3-26-12)

ARTICLE IV. PROCEEDINGS OF THE MUNICIPAL COURT

Sec. 13-8. Jury.

The presiding judge shall supervise the selection of persons for jury service.
(Ord. No. 2012-3-18, § I, 3-26-12)

Sec. 13-9. Rules governing proceedings.

All proceedings in the court shall be governed by the laws of the State of Texas. In those areas not specifically covered by state law or by ordinance, the presiding judge may establish such court rules as are necessary to establish reasonable and consistent procedures for the operation of the court.
(Ord. No. 2012-3-18, § I, 3-26-12)

ARTICLE V. APPEALS

Sec. 13-10. Clerk's record.

The fee for preparation of the clerk's record is set at twenty-five dollars ($25.00) and the defendant shall pay the twenty-five dollar ($25.00) fee for the preparation of the clerk's record. If the case is reversed upon appeal, the fee shall be refunded to the defendant. The preparation fee does not include the fee for an actual transcription of the proceedings. Except where indigence of appellant is established pursuant to the laws of this state, the appellant shall pay the fees for an actual transcription of the proceeding and for the appellate record.
(Ord. No. 2012-3-18, § I, 3-26-12)

ARTICLE VI. COURT COSTS AND FEES

Sec. 13-11. Court fees authorized.

Court costs or fees are hereby authorized to be imposed and collected in accordance with the provisions of applicable law.
(Ord. No. 2012-3-18, § I, 3-26-12)

Sec. 13-12. Municipal court building security fund.

(a) A municipal court building security fund is authorized and shall be administered by the treasurer for the city. The municipal court building security fund shall be utilized in accordance with the provisions of Article 102.017, Code of Criminal Procedure, as the same may be amended.

(b) Any defendant convicted in the municipal court of the city of a misdemeanor offense shall pay a security fee as a cost of court in the maximum amount authorized by law.
(Ord. No. 2012-3-18, § I, 3-26-12)

Sec. 13-13. Municipal court technology fund.

(a) A municipal court technology fund is authorized and shall be administered by the treasurer of the city. The municipal court technology fund shall be used only to finance the purchase of technological enhancements for the municipal court of the city in accordance with the provisions of Article 102.0172, Code of Criminal Procedure, as the same may be amended.

(b) Any defendant convicted in the City of Plano municipal court of a misdemeanor offense shall pay a technology fee in the maximum amount authorized by law as a cost of court.
(Ord. No. 2012-3-18, § I, 3-26-12)

Sec. 13-14. Local youth diversion fund.

(a) A local youth diversion fund is hereby authorized and shall be administered by the treasurer of the City of Plano. The local youth diversion fund shall be used in accordance with the laws of this state, as the same may be amended.

(b) Any defendant convicted in the municipal court of the City of Plano of a misdemeanor offense shall pay a juvenile case manager fee in the maximum amount authorized by law as a cost of court.

(c) The judges of the municipal court are authorized to waive the juvenile case manager fee in a case of financial hardship.

(d) Municipal court shall implement rules as adopted by the city council for juvenile case managers pursuant to Art. 45.056, Code of Criminal Procedure, as the same may be amended.
(Ord. No. 2012-3-18, § I, 3-26-12; Ord. No. 2024-11-4, § I, 11-25-24)

Sec. 13-15. Convictions.

For purposes of this article, a person is considered convicted if a sentence is imposed on the person, the person receives deferred disposition under Chapter 45, Texas Code of Criminal Procedure, or the court defers final disposition of the person's case.
(Ord. No. 2012-3-18, § I, 3-26-12)

Sec. 13-16. Credit card use authorized.

(a) The municipal court clerk and any other municipal officer collecting fees, fines, court costs and other charges for the municipal court for the city are hereby authorized to accept payment by credit card of any fee, fine, court cost, or other charge and to collect a fee for processing the payment by credit card.

(b) The processing fee will be in an amount equal to five (5) percent of the amount of the fee, fine, court cost and other charges being paid. The municipal officer collecting the processing fee shall deposit the fee in the general fund of the city.

(c) If payment by credit card is not honored for any reason by the credit card company by which the funds are drawn, a service charge from the person owing the fee, fine, court cost or other charge will be imposed. The service charge is in addition to the original fee, fine, court cost or other charge and is for the collection of the original amount. The amount of the service charge shall be in the same amount as the fee

charged by the city for the collection of a check drawn on an account with insufficient funds. The municipal officer collecting a service charge shall deposit a service charge in the general fund of the city.
(Ord. No. 2012-3-18, § I, 3-26-12)

[The next page is 979]

Chapter 14

OFFENSES—MISCELLANEOUS*

Art. I.	**In General, §§ 14-1—14-25**
Art. II.	**Regulations for Motor Assisted Scooters, §§ 14-26—14-45**
Art. III.	**Reserved, §§ 14-46—14-65**
Art. IV.	**Smoking, §§ 14-66—14-84**
Art. V.	**Noise, §§ 14-85—14-91.8**
	Div. 1. Generally, §§ 14-85—14-90
	Div. 2. Entertainment Venue Permits, §§ 14-91—14-91.6
	Div. 3. Enforcement, §§ 14-91.7, 14-91.8
Art. VI.	**Erosion Control, §§ 14-92—14-105**
Art. VII.	**Hazardous Material, §§ 14-106—14-112**
Art. VIII.	**Reserved, §§ 14-113—14-122**
Art. IX.	**Residency Restrictions for Child Predator Offenders, § 14-123**
Art. X.	**Illegal Smoking Products and Ingestion Devices, §§ 14-124—14-126**
Art. XI.	**Vulnerable Road Users, §§ 14-127—14-129**
Art. XII.	**Reserved**

*__Charter reference—__Police regulations, § 2.01.

Cross references—Alcoholic beverages, Ch. 3, animals and fowl, Ch. 4; fire prevention and protection, Ch. 8; traffic regulations, Ch. 12; property code, § 6-486 et seq.; sanitation standards for property, § 6-520; substandard properties, § 6-526; graffiti, § 11-95 et seq.; impounded property, § 17-51 et seq.

State law reference—Preemption of criminal offenses by Penal Code, V.T.C.A. Penal Code, § 1.08.

ARTICLE I. IN GENERAL

Sec. 14-1. Penalty.

Except as otherwise provided in this chapter, any person violating a provision of this chapter shall be punished as provided in section 1-4.

Sec. 14-1.1. Reserved.

Editor's note—Ord. No. 90-8-11, § I, adopted Aug. 13, 1990, repealed § 14-1.1, which pertained to billiard tables and derived from Ord. No. 63-11-1, §§ 1, 2, adopted Nov. 11, 1963, and Ord. No. 71-2-3, § 1, adopted Feb. 22, 1971.

Sec. 14-2. Reserved.

Editor's note—Ord. No. 87-4-26, § 1, adopted April 27, 1987, repealed § 14-2, pertaining to loudspeakers, etc., as derived from §§ 16-17-1—16-7-3 of an ordinance adopted July 13, 1964; Ord. No. 76-3-3, § 1, adopted March 8, 1976; Ord. No. 77-11-12, § 1, adopted November 28, 1977; Ord. No. 81-6-1, § 1, adopted June 8, 1981; and Ord. No. 86-11-10, § 1, adopted November 10, 1986. Provisions relative to loudspeakers and noise pollution are contained in Article V of this chapter.

Sec. 14-3. Weeds, refuse, unsanitary conditions and stagnant water.

(a) *Definitions.* For purposes of section 14-3, any word not defined herein shall be construed in the context used, by ordinary interpretation and not as a term of art. The terms used in section 14-3 shall have the following meanings:

Carrion shall mean the dead flesh of an animal, fowl or fish.

Crop shall mean a plant capable of producing food, fiber, medicine, nursery stock, floral products, or aesthetic beauty, including but not limited to a shrub, vine, tree, seedling, shoot, or slip.

Cultivated land shall mean land that has been cleared of its natural vegetation and is presently planted with a crop.

Owner shall mean a person having ownership in or care, custody or control over real property.

Person shall mean an individual, firm, partnership, association, business, corporation or other entity.

Premises shall mean real property, easement areas on real property, areas between the property line of real property and the beginning of the paved surface of a street or highway, and areas between the property line of real property and a stream, creek, river, open channel, drainage course, or drainage of a floodway easement protecting a drainage course. The terms include, but is not limited to: the area between a sidewalk adjacent to real property and a curb adjacent to a street or highway; the area between a fence, wall or barrier on real property and a curb, street or highway; and the area between a fence, wall or barrier on real property and a stream, creek, river, open channel, drainage course or drainage of a floodway easement.

Refuse shall mean an object, matter or material that is worn out, used up, broken, discarded, decaying, rotting or of little value or use, including, but not limited to, clothing, plastic, rubber, paper, wood, cardboard, iron, metal, glass, stone, cord, rope, fragments of building materials, furniture, food, vegetation and other waste.

Stagnant water shall mean water that is not moving or flowing, contains mosquito larva or is reasonably likely to become a breeding place for mosquitoes.

Unsanitary condition shall mean a condition that results in or is reasonably likely to result in injury, death, illness or disease to human beings.

Water buffer shall mean a vegetated area next to a water resource that protects the water resource from nonpoint source pollution or provides bank stabilization or wildlife habitat.

Weeds shall mean vegetation, including but not limited to grass, but excluding:

(1) Shrubs, bushes and trees;

(2) Cultivated flowers;

(3) Crops on cultivated land;

(4) Linear parks, as defined in chapter 16 of the City of Plano Code of Ordinances;

(5) Unimproved land owned by the City of Plano for future use as a park;

(6) Water buffers;

(7) Re-forestation grow zones and conservation buffer zones in parkland as designated by City of Plano signage;

(8) Pollinator areas designated by City of Plano signage;

(9) Wildflower areas designated by City of Plano signage;

(10) Oak Point Park and Nature Preserve;

(11) Arbor Hills Nature Preserve; and

(12) Pecan Hollow Golf Course.

(b) *Offenses.* It shall be an offense for an owner of premises to do any of the following:

(1) Cause or allow carrion, refuse or an unsanitary condition to accumulate or remain on premises;

(2) Allow weeds to grow to a height greater than twelve (12) inches:

(i) On premises; or

(ii) On premises used by an agricultural operation as defined by V.T.C.A. Agriculture Code, § 251.002, as amended:

a. Within ten (10) feet from property line of adjacent property owned by a person other than the owner of the agricultural operation and has a structure that is inhabited; or

b. Within ten (10) feet from the property line of adjacent public right of way that contains a sidewalk, street, or highway.

(3) Allow stagnant water that has not been effectively treated to prevent the breeding of mosquitoes to accumulate or remain on premises.

(c) *Criminal penalty.*

(1) It shall be an offense to intentionally or knowingly fail to comply with any provision of this section. Any person intentionally or knowingly violating a provision of section 14-3 of this chapter shall be punished by a fine not to exceed two thousand dollars ($2,000.00). Each day a violation occurs shall constitute a separate offense.

(2) Repeat and habitual offenders.

(i) If it is shown on the trial of an offense under section 14-3 that the defendant has previously been finally convicted of an offense under section 14-3, on conviction the person shall be punished by a fine of not less than five hundred dollars ($500.00) and not to exceed two thousand dollars ($2,000.00).

(ii) If it is shown on the trial of an offense under section 14-3 that the defendant has previously been finally convicted of two or more offenses under section 14-3, on conviction the person shall be punished by a fine of not less than one thousand dollars ($1,000.00) and not to exceed two thousand dollars ($2,000.00).

(iii) This subsection for repeat and habitual offenders applies only to a person finally convicted of a second or subsequent offense within four years of the date on which the most recent preceding offense was committed.

(d) *Public nuisance.*

(1) Conditions and places described in section 14-3(b) of this Code of Ordinances constitute public health nuisances.

(2) Conditions and places described in V.T.C.A. Health and Safety Code, § 341.011, as amended, constitute public health nuisances.

(3) *Abatement of public nuisance with notice.*

(i) The city may abate a public nuisance under section 14-3 of this Code of Ordinances or the Texas Health and Safety Code, as amended, with notice to the owner of the property, in accordance with V.T.C.A. Health and Safety Code, § 342.006, as amended.

(ii) The city may assess expenses incurred in abatement under V.T.C.A. Health and Safety Code, § 342.006, as amended, and obtain a lien against the real estate on which the

work is done or improvement is made, in accordance with V.T.C.A. Health and Safety Code, § 342.007, as amended.

(iii) The expenses to be collected by the city under this section shall include, in addition to the costs and expenses of mowing or correcting a condition upon a tract of land, the sum of two hundred fifty dollars ($250.00) per lot or tract of land, which sum is hereby found to be the cost to the city of administering the terms of this section.

(4) *Abatement of public nuisance without notice.*

(i) *Abatement of dangerous weeds.* Notwithstanding section 14-3(d)(3), the city may abate without notice, weeds, in accordance with V.T.C.A. Health and Safety Code, § 342.008, as amended.

(ii) *Mosquito control on uninhabited residential property.* Notwithstanding section 14-3(d)(3) and any other law, the city may abate, without notice, a public health nuisance under V.T.C.A. Health and Safety Code, § 341.011(7), as amended, in accordance with V.T.C.A. Health and Safety Code, § 341.019, as amended.

(iii) The expenses to be collected by the city under this section shall include, in addition to the costs and expenses of mowing or correcting a condition upon a tract of land, the sum of two hundred fifty dollars ($250.00) per lot or tract of land, which sum is hereby found to be the cost to the city of administering the terms of this section

(5) All expenses assessed under section 14-3(d)(3) or 14-3(d)(4) shall bear interest at the rate of ten (10) percent per annum from the date the city incurs the expense. The city may bring suit to collect the charges, institute foreclosure proceedings, or both. The statement, as provided herein, or certified copy thereof, shall be prima facie evidence of the city's claim for charges or right to foreclose the lien. The owner or any other person responsible as provided herein, shall be jointly and severally liable for the charges.

(e) In addition to the criminal offenses and penalties prescribed in section 14-3(b) and (c), the city may pursue other remedies such as abatement of nuisances, injunctive relief, administrative adjudication and revocation of licenses or permits.

(f) *Authority for criminal enforcement and abatement.* The city manager or his designee shall have authority for enforcement of criminal offenses and for abatement, assessment of expenses, and obtaining liens pursuant to section 14-3.

(Ord. No. 65-9-1, §§ 1—4, 9-13-65; Ord. No. 71-3-9, §§ 1, 3, 3-22-71; Ord. No. 74-4-5, §§ 1—3, 4-8-74; Ord. No. 87-2-6, § II, 2-9-87; Ord. No. 92-9-34, § I, 9-28-92; Ord. No. 99-11-11, §§ I—V, 11-8-99; Ord. No. 2010-2-16, §§ II, III, 2-22-10; Ord. No. 2016-6-10, § VI, 6-13-16; Ord. No. 2018-8-15, § I, 8-27-18; Ord. No. 2022-7-6, § I, 7-25-22; Ord. No. 2025-6-3, § I, 6-9-25)

Cross references—Sanitation standards for property, § 6-520; fire prevention and protection, Ch. 8.

State law reference—Similar provisions, Vernon's Ann. Civ. St., art. 4436.

Sec. 14-4. Obstructing ditches and drains.

It shall be unlawful for any person to obstruct or to assist in obstructing any ditch or drain within the limits of the city with boxes, barrels, wood, rocks or anything whatever.

(Ord. No. 31)

Sec. 14-5. Firearms.

(a) It shall be unlawful for any person to discharge any BB gun, pellet gun, gun, pistol, rifle, or firearm of any kind within the city limits, except within a properly secured indoor firearms range, constructed and maintained in accord with National Rifle Association specifications and standards or upon a range owned and operated by a governmental entity.

(b) The terms *gun*, *pistol*, *rifle*, and *firearm* as used in this section shall not only be defined as to include all percussion weapons, but shall also include all air guns, air pistols, air rifles, and all other firearms using air pressure to propel a projectile.

(c) This section shall not be construed to prohibit any officer of the law from discharging a firearm in the performance of his duty, nor to prohibit any citizen from discharging a firearm when lawfully defending person or property.

(d) Any person violating the provisions of this section shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be punished as provided in section 1-4(b).
(Ord. No. 76-1-1, §§ 2—5, 1-12-76; Ord. No. 83-6-22, § 1, 6-27-83; Ord. No. 95-8-41, § I, 8-28-95; Ord. No. 95-12-14, § I, 12-11-95; Ord. No. 2001-4-11, § II, 4-9-01; Ord. No. 2003-8-13, § I, 8-11-03)

State law reference—Disorderly conduct, V.T.C.A. Penal Code, § 42.01.

Sec. 14-6. Reserved.

Editor's note—Ord. No. 2010-7-17, § I, adopted July 26, 2010, repealed the former section 14-6 in its entirety, which pertained to drug paraphernalia, and derived from Ord. No. 81-4-7, §§ 1—3, adopted April 13, 1981. Ord. No. 2010-7-17 also states that the repeal of this ordinance shall not affect the prosecution of any violation which was committed prior to the effective date of repeal.

For current provisions pertaining to similar subject matter, the user's attention is directed to article X.

Sec. 14-7. Roller skates and similar devices prohibited within certain areas.

(a) *Definitions.* The following definitions apply for the purposes of this section:

(1) *Downtown District* means from I Avenue to K Avenue and from the north side of 14th Street to the north side of 15th Street.

(2) *Legacy Town Center District* means from Headquarters Road to Tennyson Parkway and from Parkwood Boulevard to Dallas Parkway.

(3) *Shared use path* means a paved surface equal to or greater than 8 feet in width which is physically separated from motor vehicle traffic by an open space or barrier, is either within the roadway right-of-way or within an independent right-of-way, and is identified in the City's Bicycle Transportation Plan. Shared use paths may be used by pedestrians, skaters, wheelchair users, joggers and other non-motorized users.

(b) *Offenses.*

(1) Except as may be authorized by a special event permit, it shall be an offense for any person to use, ride, propel, or operate a motorized device (as defined by section 15-1), a non-motorized wheeled device, roller skates, rollerblades, or a skateboard on any public sidewalk, walkway, architectural feature, parking area, wall, plaza, steps, or railing within the following identified places:

a. Downtown District.

b. Haggard Park.

c. Memorial Park that serves as a veteran's memorial.

d. Legacy Town Center District, specifically public sidewalks adjacent to commercial businesses.

(c) The conduct prohibited in subsection 14-7(b) shall not apply to the use of a wheelchair, scooter, or other such device being used to assist a person who has a physical disability with mobility.

(d) The conduct prohibited in subsection 14-7(b) shall not apply to the use of a device in the performance of law enforcement activities.

(e) The conduct prohibited in subsection 14-7(b) shall not apply to shared use paths.

(f) Any person, firm, or corporation violating any term or provision of this section is subject to a fine not to exceed two hundred dollars ($200.00) for each offense. Every day a violation continues shall constitute a separate offense.
(Ord. No. 93-4-19, § I, 4-12-93; Ord. No. 97-10-17, § II, 10-13-97; Ord. No. 2002-1-24, §§ I, II,

1-28-02; Ord. No. 2002-6-9, § I, 6-10-02; Ord. No. 2003-9-39, § I, 9-22-03; Ord. No. 2009-4-21, § I, 4-27-09; Ord. No. 2016-8-15, §§ I, II, 8-22-16)

Sec. 14-8. Reserved.

Editor's note—Ord. No. 2000-11-14, adopted Nov. 13, 2000, repealed § 14-8 in its entirety. Former § 14-8 pertained to fortunetelling as enacted by Ord. No. 76-11-5, §§ 1—3, adopted Nov. 8, 1976. See the Code Comparative Table.

Sec. 14-9. Erection and maintenance of walls, screens, hedges, etc.

(a) *Obstructions to drainage.* No wall, screen, hedge, tree, shrub, bush, sign, fence, building, swimming pool, dam, fill material or any other plant or structure shall be erected, planted or maintained within any stream, creek, river, open channel, drainage course, or the drainage of floodway easements protecting same, in such a position or place so as to obstruct or interfere with the flow of storm water through said course or easement.

(b) *Abatement.*

(1) The city engineer or that person authorized to act in such capacity shall have the authority to determine whether any such wall, screen, hedge, tree, shrub, bush, sign, fence, building, swimming pool, dam, fill materials, or any other plant or structure as erected, planted or maintained or proposed for erection or planting, constitutes a public hazard or nuisance in violation of the provisions of this section. If a public hazard or nuisance is determined, he shall cause to be issued written notice to the owner or lessee of the property demanding that such owner or lessee abate such hazard or nuisance within fifteen (15) days of date such notice is mailed.

(2) The city may abate the hazard or nuisance upon the written request of the owner or lessee of the property and upon payment of reasonable charges for labor.

(3) If the obstruction is deemed to create a hazard or nuisance requiring immediate abatement, the owner or lessee of the property containing such obstruction shall be issued verbal notice to remove the hazard or nuisance immediately. Should the owner not take immediate action, city forces may take steps necessary to remove the obstruction at the expense of the owner or lessee.

(c) *Exceptions.* The provisions of this section shall not apply to, or otherwise interfere with, the following:

(1) Placement or maintenance of devices, such as concrete lining, bridges or dams, under governmental authority and control;

(2) Existing and future city, state and federal regulations.

(Ord. No. 74-8-3, §§ 1—3, 8-12-74)

Sec. 14-10. Display of sexually explicit materials to minors.

(a) A person commits an offense if, in a business establishment open to persons under the age of seventeen (17) years, he displays a book, pamphlet, newspaper, magazine, film, or video cassette, the cover of which depicts, in a manner calculated to arouse sexual lust or passion for commercial gain or to exploit sexual lust or perversion for commercial gain, any of the following:

(1) Human sexual intercourse, masturbation, or sodomy;

(2) Fondling or other erotic touching of human genitals, pubic region, buttocks, or female breasts;

(3) Less than completely and opaquely covered human genitals, buttocks, or that portion of the female breast below the top of the areola; or

(4) Human male genitals in a discernibly turgid state, whether covered or uncovered.

(b) In this section "display" means to locate an item in such a manner that, without obtaining assistance from an employee of the business establishment:

(1) It is available to the general public for handling and inspection; or

(2) The cover or outside packaging on the item is visible to members of the general public.

(Ord. No. 92-2-13, § I, 2-10-92)

Editor's note—Ord. No. 92-2-13, § I, adopted February 10, 1992, did not specifically amend the Code; therefore, inclusion as § 14-10 was at the discretion of the editor.

Sec. 14-11. Urinating or defecating in public.

(a) A person commits an offense if the person urinates or defecates:

(1) On public property or in a public place; or

(2) In public view.

(b) It is a defense to prosecution under this section if the person was in a restroom.

(Ord. No. 99-9-28, § I, 9-27-99)

Sec. 14-12. Facsimile firearms.

(a) *Definitions.* In this section:

Facsimile firearm means any device that in size, shape, color, or design appears to be a firearm, and can only be differentiated from a firearm through close inspection.

Firearm means any device designed, made, or adapted to expel a projectile through a barrel by using the energy generated by an explosion or burning substance or any device readily convertible to that use.

Peace officer means any peace officer listed in Article 2.12 of the Texas Code of Criminal Procedure who is currently licensed and holds a valid commission.

Public safety agency refers to any agency that responds to any emergency, including police agencies, sheriff's departments, emergency medical personnel, fire department personnel, and public safety communications personnel.

(b) *Offenses:*

(1) Any person who knowingly or recklessly displays or brandishes a facsimile firearm in a public place within the corporate city limits commits an offense, punishable as a misdemeanor as provided by subsection 1-4(b) of the Plano Code of Ordinances.

(2) Any person who knowingly or recklessly displays or brandishes a facsimile firearm in any manner in any location that causes a reasonably prudent peace officer or member of a public safety agency to become alarmed for their safety or the safety of others commits an offense, punishable as a misdemeanor as provided by subsection 1-4(b) of the Plano Code of Ordinances.

(c) *Defenses.* It is a defense to prosecution under this section that the actor was engaged in any of the following:

(1) The protection of persons or property as authorized by Chapter 9 of the Texas Penal Code;

(2) The enforcement of any federal, state, or local law by a duly authorized peace officer; or

(3) The display or brandishing of a facsimile firearm during an event, ceremony, demonstration, or performance in which the display of the firearm is part of the activity, and meets one of the following criteria:

a. Authorized by a City of Plano permit;

b. Sponsored and conducted by a subdivision of a federal, state, or local government or school district;

c. Sponsored and conducted by a civic, charitable, or political organization; or

d. Sponsored and conducted indoors by a for profit group.

Any event, ceremony, demonstration, or performance that involves a youth-oriented organization requires the presence of at least two (2) adult members of the organization at all times during the event in which the facsimile firearm is used.

(Ord. No. 2003-4-19, § I, 4-14-03)

Sec. 14-13. Shopping carts.

(a) *Definitions.* In this article:

Abandoned shopping cart means any unattended shopping cart removed from a business establishment's premises, which is located on public property for a period greater than twelve (12) hours.

Owner means any person or entity within a business establishment who owns or provides shopping carts for customer use. Owner includes, but is not limited to, the store owner, manager, on-site manager, on-duty manager, or other designated agent of a business establishment.

Premises means the entire area owned or otherwise utilized by the business establishment that provides shopping carts for use by its customers, including any parking area and pedestrian access-way between a street right-of-way and the establishment. For a business establishment that is part of a shopping center or shopping complex, "premises" shall include all business establishments in the shopping area center or complex and all areas used by the customers of those businesses in common, including all parking areas designated for use by the customers of the shopping center or complex.

Shopping cart means a basket, which is mounted on wheels or a similar device, generally used in a retail establishment by a customer to transport goods of any kind.

(b) *Offense.* It shall be unlawful to leave or abandon a shopping cart at a location other than the premises or parking area of the retail establishment that owns the shopping cart.

(c) *Requirements.* Every owner of a business establishment providing shopping carts to its customers must post signs at all entrances to the parking areas, in both English and Spanish, and in a conspicuous place near the business establishment's exit doors, informing customers that cart removal from the premises is prohibited and constitutes a violation of state and local law.

(d) *Retrieval and impoundment by the city.* The City of Plano may retrieve and impound any abandoned shopping cart located on public property.

A shopping cart recovered by the City of Plano will be released to the owner, or his designee, upon payment to the city of a recovery fee of seventy-five dollars ($75.00) per shopping cart.

(e) *Disposal of abandoned shopping carts.* Shopping carts impounded shall be held for a period not more than thirty (30) days to allow for retrieval by the owner or his designee.

Shopping carts not reclaimed by the owner within thirty (30) days of impoundment shall be sold or disposed of by the City of Plano.

(f) *Enforcement authority.* The city manager or his designee(s) shall have the authority and powers necessary to determine whether a violation of this chapter exists and to take appropriate action to gain compliance with the provisions of this chapter and applicable state codes.

(g) *Penalty.* Any person violating any provision of this article shall be deemed guilty of a misdemeanor and upon conviction shall be punished as provided in subsection 1-4(b). Every day a violation continues shall constitute a separate offense.
(Ord. No. 2005-6-7, § I, 6-13-05)

Sec. 14-14. Intent to commit prostitution in a public place.

(a) A person commits an offense if the person engages in conduct in a public place with the intent to commit prostitution. This intent is evidenced by acting in a manner and under circumstances that openly demonstrate the purpose of inducing, enticing, soliciting, or procuring another to commit an act of prostitution. In addition to showing intent, the conduct must also occur at a location known to be frequented by persons who engage in prostitution or solicitation of prostitution and the person must stop, attempts to stop, or engages another person(s) in conversation, or stops or attempts to stop another person(s) or vehicle by hailing, waving of arms, or use of any other bodily gesture.

(b) For the purpose of this section, "public place" means any street, sidewalk, bridge, alley, alleyway, plaza, park, driveway, parking lot, transportation facility, or the doorways and entrance ways to any building which fronts on any of the aforesaid places, or a motor vehicle in or on any such place.

(c) Any person, firm, or corporation found to be violating this section shall be subject to a fine in accordance with subsection 1-4(b) of this Code. (Ord. No. 2010-8-18, § I, 8-23-10)

Sec. 14-15. Graffiti.

(a) *Definitions.* For purposes of this section, any word not defined herein shall be construed in the context used by ordinary interpretation and not as a term of art. The terms used in this section shall have the following meanings:

Etching or engraving device means a device that makes a delineation or impression on tangible property, regardless of the manufacturer's intended use for that device.

Graffiti means one (1) or more markings, including inscriptions, slogans, drawings, or paintings, on the tangible premises of the owner with paint, an indelible marker or an etching or engraving device without the effective consent of the owner.

Indelible marker means a device that makes a mark with a paint or ink product that is specifically formulated to be more difficult to erase, wash out, or remove than ordinary paint or ink products.

Notice means notice provided by the city in accordance with V.T.C.A. Local Government Code, § 250.006, as amended.

Owner means a person having ownership in or care, custody or control over real property.

Person means an individual, firm, partnership, association, business, corporation or other entity.

Premises means real property, easement areas on real property, areas between the property line of real property and the beginning of the paved surface of a street or highway, and areas between the property line of real property and a stream, creek, river, open channel, drainage course, or drainage of a floodway easement protecting a drainage course. The term includes, but is not limited to: the area between a sidewalk adjacent to real property and a curb adjacent to a street or highway; the area between a fence, wall or barrier on real property and a curb, street or highway; and the area between a fence, wall or barrier on real property and a stream, creek, river, open channel, drainage course or drainage of a floodway easement.

(b) *Offense.* It shall be an offense for an owner of property, after receipt of notice from the city, to intentionally or knowingly fail to paint over or remove all graffiti from the owner's premises that is visible from any public premises or right-of-way or from any private premises other than the premises on which the graffiti exists, except where the graffiti is located on transportation infrastructure and the removal of the graffiti would create a hazard for the person performing the removal.

(c) *Criminal penalty.*

(1) It shall be an offense to intentionally or knowingly fail to comply with any provision of this section. Any person intentionally or knowingly violating a provision of section 14-15 of this chapter shall be punished by a fine not to exceed five hundred dollars ($500.00). Each day a violation occurs shall constitute a separate offense.

(2) *Repeat and habitual offenders.*

a. If it is shown on the trial of an offense under this section that the defendant has previously been finally convicted of an offense under this section, on conviction the person shall be punished by a fine of not less than five hundred dollars ($500.00).

b. This subsection for repeat and habitual offenders applies only to a person finally convicted of a second or subsequent offense within three

(3) years of the date on which the most recent preceding offense was committed.

(d) *Abatement.*

(1) *Public nuisance.*

a. Graffiti is declared to be a public nuisance. In addition to the criminal offense and penalty provided in subsections (b) and (c) of this section, the city shall have all remedies available at law and equity to abate such nuisance.

b. An owner maintains a public nuisance if the owner fails to remove graffiti or refuses to allow graffiti to be removed from the premises after receipt of notice, unless the graffiti is located on transportation infrastructure and removal of the graffiti would create a hazard for the person performing the removal.

(2) *Authority to abate.*

a. The city is authorized to abate graffiti, in accordance with V.T.C.A. Local Government Code, § 250.006, as amended.

b. Whenever public funds are used for graffiti removal, such removal shall include only the painting or repair of the area where the graffiti is located to the extent required to avoid aesthetic disfigurement to the neighborhood.

(3) *Abatement procedures.*

a. The code official shall offer free removal of graffiti by the city. The code official may remove the graffiti, at no cost to the owner, upon receiving written consent and a waiver of liability from the owner.

b. If the owner refuses the city's offer for removal, the code official may issue written notice to the owner in accordance with V.T.C.A. Local Government Code, § 250.006, identifying the graffiti and directing its removal on or before the fifteenth calendar day after the owner's receipt of the written notice.

c. The owner shall remove the graffiti within fifteen (15) calendar days after receipt of the notice from the city.

d. If the owner fails to remove the graffiti within fifteen (15) calendar days after receipt of the notice, the city may, without further notice, enter upon the property by it or its contractors and remove the graffiti.

e. The city may assess expenses incurred in removal of the graffiti and obtain a lien against the property where the removal of graffiti was performed, in accordance with V.T.C.A. Local Government Code, § 250.006, as amended.

f. The expenses to be collected by the city under this section shall include, in addition to the costs of removing the graffiti, the sum of two hundred fifty dollars ($250.00) per lot or tract of land, which sum is hereby found to be the cost to the city of administering the terms of this section.

g. Prior to the filing of a lien, the code official shall mail to the owner a notification of expenses incurred by the municipality for the costs of removal. In the event the incurred expenses are not paid within twenty (20) days, a lien shall be filed against the property.

h. All expenses assessed under section 14-15(d) shall bear interest at the rate of ten (10) percent per annum from the date the city incurs the expense. The city may bring suit to collect the charges, institute foreclosure proceedings, or both. The statement, as provided herein, or certified copy thereof, shall be prima facie evidence of the city's claim for charges or right to foreclose the

lien. The owner or any other person responsible as provided herein, shall be jointly and severally liable for the charges.

(4) *Appeal.* The owner of property subject to abatement under this article may appeal the decision of the code official by requesting a hearing, in writing, to the code official within ten (10) days following the receipt of the notice. The hearing shall be conducted by the code official for the purpose of determining whether the conditions constitute a public nuisance under the provisions of this article. The owner shall be provided written notice of the time and place of the hearing at least ten (10) days prior thereto. At the hearing, the owner and the code official may present any evidence relevant to the proceeding. The code official's decision shall be final.

(e) *Authority for criminal enforcement and abatement.* The city manager or his designee shall have authority for enforcement of criminal offenses and for abatement, assessment of expenses, and obtaining liens pursuant to this section.
(Ord. No. 2020-4-4, § I, 4-27-20; Ord. No. 2025-6-6, § I, 6-9-25)

Sec. 14-16. Unauthorized entry on city premises; abandoned property.

(a) *Definitions.*

Authorized consent means express consent from a representative of the city with apparent authority to grant permission to enter or remain on city premises, including, but not limited to: a valid, city-issued permit; a written rental or reservation agreement; or posted operating hours. Authorized consent is presumed on a city right-of-way or public access easement unless revocation or limitation of consent is indicated by a representative of the city with apparent authority to grant, revoke, or limit consent; a traffic control device; a physical barrier; posted signage; or police, fire, or authorized emergency vehicle.

City premises means any land, area, lot, and structures thereon, that is open to the public and is owned, leased, or under the control of the city, including, but not limited to: public areas in and around city office buildings, facilities, and libraries; entrances and exits to parks, pavilions, parking areas, and recreational buildings and areas; and landscape and hardscape surrounding city buildings.

(b) *Offense.* It shall be an offense for any person to enter or remain on city premises at any time without authorized consent. Conduct that is also a violation under Texas Penal Code or other state law shall be enforced under state law.

(c) *Criminal penalty.* A violation of this section shall be punished pursuant to subsection 1-4(b) of this Code.

(d) *Abandoned property.* Any unattended personal property on city premises shall be deemed abandoned and may be removed and disposed of by a peace officer, public safety officer, or city manager's designee.
(Ord. No. 2022-5-3, § II, 5-9-22)

Secs. 14-17—14-25. Reserved.

ARTICLE II. REGULATIONS FOR MOTOR ASSISTED SCOOTERS

Sec. 14-26. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Custodian means the natural or adoptive parent or court-appointed guardian or conservator of a child.

Helmet means properly fitted protective headgear that is not structurally damaged and that conforms to the standards of the American National Standards Institute, the American Society for Testing and Materials, the Snell Memorial Foundation or any federal agency having regulatory jurisdiction over bicycle helmets, as applicable, at the time of the manufacture of the helmet.

Motorized scooter means a self-propelled device with at least two (2) wheels in contact with the

ground during operation, a braking system capable of stopping the device under typical operating conditions, a gas or electric motor forty (40) cubic centimeters or less, a deck designed to allow a person to stand or sit while operating the device, and the ability to be propelled by human power alone. This does not include a neighborhood electric vehicle which is defined as a vehicle subject to Federal Motor Vehicle Safety Standards 500 (49 C.F.R. Sec. 571.500) (Tex. Trans. Code Section 551.301[1][2]).

Public way or *public property* means real property owned, leased or controlled by a political subdivision of the State of Texas, a governmental entity or agency, or similar entity, or any property that is publicly owned or maintained or dedicated to public use, including, but not limited to, an alley, street or highway. This term does not include a sidewalk.

Wearing a helmet means that the person has a helmet fastened securely to his/her head with the straps of the helmet securely tightened in the manner intended by the manufacturer to provide maximum protection.
(Ord. No. 2004-2-12, § II, 2-9-04)

Sec. 14-27. Restrictions and prohibitions for motor assisted scooters.

The following restrictions apply to persons using motor assisted scooters and their custodians:

(a) It shall be unlawful for any person to operate or ride a motorized scooter on any sidewalk located within the geographi-

cal areas set out in Chapter 14 Offenses-Miscellaneous, Article 1, in general section 14-7. Roller skates and similar devices prohibited within certain areas; exceptions of the City of Plano Code of Ordinances.

(b) It shall be unlawful for any person to ride or operate a motorized scooter on a street, road, or highway that has an improved surface that is greater than twenty-seven (27) feet in width.

(Ord. No. 2004-2-12, § II, 2-9-04)

Sec. 14-28. Additional restrictions.

In addition to the restrictions in subsections 14-27(a) and (b) above, it is unlawful:

(a) For a custodian to allow or permit a child under the age of ten (10) to operate or ride a motorized scooter on any alley, street or highway within the city, except a custodian may allow a child under the age of ten (10) to ride a motor assisted scooter on paths and trails set aside for the exclusive operation of bicycles or on a sidewalk.

(b) For any person who is ten (10) years of age but under eighteen (18) years of age to operate or ride a motorized scooter on any alley, street or highway within the city, except a person may ride a motor assisted scooter on paths and trails set aside for the exclusive operation of bicycles or on a sidewalk. This restriction is not applicable to persons under the age of eighteen (18) who had been issued, at the time of the operation of the motorized scooter, a license issued by the State of Texas pursuant to Texas Transportation Code sections: 521.222 (Instruction Permit), 521.223 (Hardship License), 552.224 (Restricted Class M License), 521.225 (Moped License), 521.181 (Issuance of Driver's License) or persons under the age of eighteen (18) who had been issued, at the time of the operation of the motorized scooter, a license issued by another state or the federal government that is the equivalent of a license issued by the State of Texas pursuant to the sections of the Texas Transportation Code cited herein.

(Ord. No. 2004-2-12, § II, 2-9-04)

Sec. 14-29. Helmets required.

It shall be unlawful:

(a) For any person under the age of eighteen (18) to operate or ride a motorized scooter on a public way or public property unless the person is wearing a helmet.

(b) For a custodian to allow or permit a child under the age of ten (10) to operate or ride a motorized scooter on a public way or public property unless the child is wearing a helmet.

(Ord. No. 2004-2-12, § II, 2-9-04)

Sec. 14-30. Penalty.

A person who violates any provisions of this article shall be guilty of a Class C misdemeanor and upon conviction shall be fined as provided in section 1-4(b) of chapter 1 of the city code of ordinances.

(Ord. No. 2004-2-12, § II, 2-9-04)

Secs. 14-31—14-45. Reserved.

ARTICLE III. RESERVED*

Secs. 14-46—14-65. Reserved.

ARTICLE IV. SMOKING†

Sec. 14-66. Definitions.

In this article:

Bar means an area which is devoted to the serving of alcoholic beverages for consumption

*__Editor's note—__Ord. No. 2023-8-10, § I, adopted August 28, 2023, repealed §§ 14-46—14-50, which pertained to juvenile curfew and derived from Ord. No. 94-11-11, § II, 11-14-94.

†__Editor's note—__Ord. No. 2007-4-6, § I, adopted April 9, 2007, effective June 1, 2007, repealed ch. 14, art. IV, in its entirety. Section II of said ord. provided for a new art. IV to read as herein set out. Formerly, said article pertained to similar subject matter as enacted by Ord. No. 94-11-22; as amended. See the Code Comparative Table for a detailed analysis of inclusion.

by guests on the premises and in which the serving of food is only incidental to the consumption of such beverages. A "bar" includes those facilities located within a hotel, motel or other similar transient occupancy establishment.

Business means any sole proprietorship, partnership, joint venture, corporation or other business entity formed for profit-making or not-for-profit purposes, including retail establishments where goods or services are sold as well as professional corporations and other entities where legal, medical, dental, engineering, architectural or other professional services are delivered.

Electronic vaping device means any electronic device composed of a mouthpiece, heating element, battery and electronic circuits that provides, or is manufactured or intended to provide, a vapor of liquid nicotine and/or other substances mixed with propylene glycol and/or other substances delivered or deliverable to the user that he/she can inhale in simulation of smoking. This term shall include every version and type of such devices whether they are manufactured or marketed as electronic cigarettes, e-cigarettes, electronic cigars, e-cigars, electronic pipes, e-pipes, electronic hookahs, e-hookahs or under any other product name or design.

Electronic vaping liquid also known as "e-juice" and "e-liquid" shall mean any liquid product composed of propylene glycol or other carrier solvent and may contain nicotine and/or any other substance and manufactured for the use with electronic vaping devices.

Employee means any person who is employed by any employer in consideration for direct or indirect monetary wages or profit.

Employer means any person, partnership, corporation, including a municipal corporation, or nonprofit entity, which employs the services of one (1) or more individual persons.

Enclosed area means all space between a floor and ceiling which is enclosed on all sides by walls, windows, or other barrier (exclusive of door or passage ways) which extend from the floor to the ceiling.

Food establishment means food product or food service establishments.

Minor means a person younger than twenty-one (21) years of age.

Open display unit means any device, furniture or furnishing within or upon which electronic vaping devices are displayed to customers, and includes, but is not limited to, any case, rack, shelf, counter, table, desk, kiosk, booth, stand, vending machine and other surface.

Place of employment means any enclosed area under the control of a public or private employer which employees normally frequent during the course of employment, including, but not limited to, work areas, employee lounges and restrooms, conference rooms and classrooms, employee cafeterias and hallways. A private residence is not a "place of employment" unless it is used as a child care, adult day care or health care facility.

Possession means actual care, custody, control or management.

Private place means any enclosed area to which the public is not invited or in which the public is not permitted, including but not limited to, personal or private residences; private social clubs or personal automobiles.

Public place means any enclosed area to which the public is invited or in which the public is permitted, including but not limited to, banks; educational facilities; health facilities; laundromats; public transportation facilities; reception areas; production and marketing establishments; retail service establishments; retail stores; theaters and waiting rooms.

Retail electronic vaping store means a retail store utilized primarily for the sale of electronic vaping devices, accessories, and/or electronic vaping liquid or any other article or product that is for use in an electronic vaping device and in which the sale of other products is merely incidental.

Retail store means an establishment whose purpose is to offer for sale and sell to consumers, not for resale, goods, wares, merchandise and food, which items are purchased for use and/or consumption off premises, including but not limited to, supermarkets, convenience stores, drug stores, and warehouse stores.

Retail tobacco store means a retail store utilized primarily for the sale of tobacco products and accessories and in which the sale of other products is merely incidental.

Retailer means a person who engages in the practice of selling electronic vaping devices to consumers in a retail store, retail electronic vaping store, or retail tobacco store.

Service line means any indoor line at which one (1) or more persons are waiting for or receiving service of any kind, whether or not such service involves the exchange of money.

Smoking or *smoke* means inhaling, exhaling, burning, possessing or carrying any lighted cigar, cigarette, pipe, weed, plant or combustible substance in any manner or in any form and/or vaping or the use of any electronic vaping device.

Sports arena means sports pavilions, gymnasiums, health spas, boxing arenas, swimming pools, roller and ice rinks, bowling alleys and other similar places where members of the general public assemble either to engage in physical exercise, participate in athletic competition, or witness sports events.

Tobacco product means a cigarette; a cigar; an electronic vaping device; smoking tobacco, including granulated, plug-cut, crimp-cut, ready rubbed and any form of tobacco suitable for smoking in a pipe or as a cigarette; chewing tobacco, including plug, scrap, and any kind of tobacco suitable for chewing, snuff or other preparations of pulverized tobacco; nicotine product; dissolvable nicotine; electronic vaping liquid; or any other article or product that is for use in an electronic vaping device.

Vaping means inhaling or exhaling vapors of electronic vaping liquid from an electronic vaping device.

(Ord. No. 2007-4-6, § II, 4-9-07; Ord. No. 2014-7-4, § I, 7-28-14; Ord. No. 2022-7-4, § I, 7-25-22)

Sec. 14-67. Places where smoking is prohibited.

(a) Smoking shall be prohibited in all enclosed public places and enclosed places of employment within the city, including, but not limited to, the following places:

(1) Elevators;

(2) Restrooms, lobbies, reception areas, hallways and any other common-use areas;

(3) Buses, bus terminals, taxicabs, train stations, airports and other facilities and means of public transit, as well as ticket, boarding, and waiting areas of public transit depots;

(4) Service lines;

(5) Retail stores;

(6) All areas available to and customarily used by the general public in all businesses, including but not limited to, attorneys' offices and other offices, banks, laundromats and country clubs;

(7) Enclosed facilities within a place of employment;

(8) Food establishments, nightclubs and bars;

(9) Galleries, libraries, museums, zoo facilities and their grounds;

(10) Any facility which is primarily used for exhibiting any motion picture, stage, drama, lecture, musical recital or other similar performance except when smoking is a part of a theatrical performance upon a stage or in the course of a film or television production and smoking is part of the performance or production;

(11) Sports arenas and convention halls, including bowling and billiard facilities;

(12) Every room, chamber, place of meeting or public assembly, including school buildings under the control of any board, council, commission, committee, including joint committees, or agencies of the city or any political subdivision of the state during such time as a public meet-

ing is in progress, to the extent such place is subject to the jurisdiction of the city;

(13) Waiting rooms, hallways, wards, private and semiprivate rooms of physical and mental health facilities, including, but not limited to, hospitals, clinics, physical therapy facilities, doctors' offices, and dentists' offices;

(14) Lobbies, hallways, and other common areas in apartment buildings, condominiums, trailer parks, retirement facilities, nursing homes, and other multiple-unit residential facilities;

(15) Polling places;

(16) Bingo games/parlors; and

(17) Hotels and motels, including at least ninety (90) percent of rooms rented to guests.

(b) Smoking shall be prohibited in all parks, excluding the off-street parking lots within those parks and park trails.

(c) Smoking shall be prohibited within twenty-five (25) feet of any door, operable window, vent or other opening to an enclosed public place or an enclosed place of employment.
(Ord. No. 2007-4-6, § II, 4-9-07; Ord. No. 2022-7-4, § II, 7-25-22)

Sec. 14-68. Places where smoking is not prohibited.

(a) Notwithstanding any other provision of this article to the contrary, the following areas shall not be subject to the smoking restrictions of this article:

(1) Private residences, except when used as a child day care, adult day care or household care facility;

(2) Personal automobiles;

(3) Retail tobacco stores and electronic vaping stores in stand-alone physical facilities;

(4) Not more than ten (10) percent of hotel and motel rooms rented to guests and designated as smoking rooms. All smoking rooms on the same floor must be contiguous and smoke from these rooms must not infiltrate into areas where smoking is prohibited under provisions of this article;

(5) Outdoor places of employment except within twenty-five (25) feet of any door, operable window/vent or other opening to an enclosed area;

(6) Retail electronic vaping stores in existence as of July 28, 2014.

(Ord. No. 2007-4-6, § II, 4-9-07; Ord. No. 2014-7-4, § II, 7-28-14)

Sec. 14-69. Posting of signs.

(a) The owner, manager or other person having control of such building or premise where smoking is prohibited by this chapter shall have a conspicuously posted sign clearly stating "no smoking" at each entrance, whether for the public, employees or deliveries, and at restroom entrances.

(b) Such "No Smoking" signs shall have bold lettering of not less than one (1) inch in height. The international "No Smoking" symbol may also be used (consisting of a pictorial representation of a burning cigarette enclosed in a red circle with red bar across it).

(c) Any owner, manager, or other person having control of any establishment regulated by this chapter shall be responsible for posting appropriate signage.
(Ord. No. 2007-4-6, § II, 4-9-07)

Sec. 14-70. Enforcement.

(a) The city manager or their designee shall have the authority to enforce this article.

(b) Reserved.

(c) It is the duty of the owner, manager, operator or person-in-charge of any establishment regulated by this chapter:

(1) To post signs in accordance with section 14-69 of this article; and

(2) To not provide ashtrays, matches, lighters or other smoking related paraphernalia in a regulated premise; and

(3) To advise a person who violates this article that smoking is not allowed; and

(4) To request a person remove themselves from this location after that person has been advised that smoking is not allowed and that person willfully continues to smoke.

(Ord. No. 2007-4-6, § II, 4-9-07; Ord. No. 2022-7-4, § III, 7-25-22)

Sec. 14-71. Offenses and penalties.

(a) It shall be unlawful for any person to smoke in any area where smoking is prohibited by the provisions of this chapter.

(b) It shall be unlawful for any person who owns, manages, operates or otherwise controls the use of any premises subject to regulation under this chapter to fail to comply with the following sections and subsections of this article:

(1) Subsection 14-69(a), (b) and (c), and;

(2) Subsection 14-70(c).

(c) Any person who violates any provision of this chapter shall be guilty of a misdemeanor infraction, punishable by a fine not to exceed two thousand dollars ($2,000.00).

(d) Each day on which a violation of this article occurs shall be a separate and distinct violation.

(Ord. No. 2007-4-6, § II, 4-9-07; Ord. No. 2022-7-4, § IV, 7-25-22)

Sec. 14-72. Sale or distribution of tobacco products to a minor prohibited; proof of age required.

(a) A person commits an offense if the person:

(1) Sells, gives or causes to be sold or given a tobacco product to a minor; or

(2) Sells, gives or causes to be sold or given a tobacco product to another person who delivers it to a minor.

(b) If an offense under this section occurs in connection with a sale by an employee of the owner of a store in which tobacco products are sold at retail, the employee is responsible for the offense and is subject to prosecution.

(c) It is a defense to prosecution under subsection (a)(1) that the person to whom the tobacco product was sold or given presented to the defendant valid proof of identification.

(d) Proof of identification is valid for purposes of subsection (c) if it contains a physical description and photograph consistent with the person's appearance, purports to establish that the person is twenty-one (21) years of age or older and was issued by a governmental agency. The proof of identification may include a driver's license issued by this state or another state, a passport or an identification card issued by a state or the federal government.

(Ord. No. 2014-7-4, § III, 7-28-14; Ord. No. 2022-7-4, § V, 7-25-22)

Sec. 14-73. Reserved.

Editor's note—Ord. No. 2024-12-4, § 1, adopted December 17, 2024, repealed § 14-73, which pertained to possession, purchase, consumption, or receipt of tobacco products by a minor prohibited and derived from Ord. No. 97-5-14, § I, 5-19-97; Ord. No. 2014-7-4, § IV, 7-28-14; Ord. No. 2022-7-4, § VI, 7-25-22.

Sec. 14-74. Vendor assisted sales required; self-service merchandising prohibited.

(a) Except as provided by subsection (b), a retailer or other person may not:

(1) Offer tobacco products for sale in a manner that permits a customer direct access to the tobacco products;

(2) Offer for sale or display for sale tobacco products by means of self-service merchandising; or

(3) Install or maintain an open display unit containing tobacco products.

(b) It is a defense to prosecution under subsection (a) if:

(1) A facility or business is not open to persons younger than twenty-one (21) years of age at any time;

(2) A facility or business is a premises for which a person holds a package store permit issued under the Alcoholic Beverage Code; or

(3) An open display unit is located in an area that is inaccessible to customers.

(Ord. No. 97-5-14, § I, 5-19-97; Ord. No. 2014-7-4, § V, 7-28-14; Ord. No. 2022-7-4, § VII, 7-25-22)

Editor's note—Ord. No. 2014-7-4, § V, adopted July 28, 2014, changed the title of section 14-74 from "Tobacco product vending machines" to "Vendor assisted sales required; self-service merchandising prohibited." The historical notation has been preserved for reference purposes.

Secs. 14-75—14-84. Reserved.

ARTICLE V. NOISE*

DIVISION 1. GENERALLY

Sec. 14-85. Definitions.

Unless otherwise expressly stated, the following words, terms, and phrases shall have the following meanings when used in this article:

Background noise shall mean the all-encompassing sound associated with a given environment without contributions from a specific noise source.

Commercial/Mixed-use shall mean, for the purposes of this article, all non-residential and mixed-use zoning districts as outlined in the city's zoning ordinance, as amended, except for Light Industrial - 1 and Light Industrial - 2 districts.

Construction shall mean any phase of the on-site erection or removal, including, but not limited to, excavation, demolition, alteration, repair, or maintenance, of any building or structure, or associated landscaping or paving activities conducted on that site.

Day or *daytime* shall mean from 7:00 a.m. to 10:00 p.m.

Department shall mean the City of Plano department(s) designated by the city manager to enforce the requirements of this article.

Entertainment venue shall mean an indoor or outdoor location where persons take part in entertainment, including, but not limited to, a concert hall, amphitheater, dance hall, auditorium, convention center, movie theater, bar, or facility for performance of a play, film exhibition, poetry reading, live music, recorded music, or dance. Entertainment venue does not include a food service establishment as defined in Chapter 9, Food Code, of the City of Plano Code of Ordinances.

Impulsive noise shall mean any specific noise that contains successions of pulses or transients and if the sound level changes at a rate greater than 10 dB per second.

Industrial shall mean, for the purposes of this article, Light Industrial-1 and Light Industrial-2 districts as outlined in the city's zoning ordinance.

Landscaping and lawn care shall mean activities to establish, promote, control, and/or maintain a lawn or landscape for ornamentation or nonagricultural purpose, including, but not limited to, blowing planting seeding, sodding, removing, mowing, cutting, trimming, pruning, mulching, aerating, applying chemicals, or fertilizing trees, shrubs, flowers, grass, ground cover, leaves, and other flora.

Night or *nighttime* shall mean from 10:01 p.m. to 6:59 a.m.

Noise level shall mean the A-weighted sound pressure level in decibels (dBA).

Noise nuisance shall mean any specific noise that is likely to cause unreasonable discomfort or

*__Editor's note—__**Ord. No. 2025-8-3, § I, adopted August 11, 2025, repealed the former Art. V, §§ 14-85—14-91.8, and enacted a new Art. V as set out herein. The former Art. V pertained to similar subject matter and derived from Ord. No. 2023-6-3, § I, 6-12-23; Ord. No. 2023-9-18, § I, 9-26-23.

distress to a reasonable person or to unreasonably interfere with the use or enjoyment of property.

Owner shall mean any person with ownership, care, custody, or control over property.

Person shall mean any individual, corporation, association, firm, partnership or other entity with ownership, care, custody, or control over property.

Residential shall mean, for the purposes of this article, residential zoning districts as outlined in the city's zoning ordinance except for mixed-use districts.

Residential use shall mean the use of a building or portion of a building which is arranged, occupied or intended to be occupied as a living quarter of a household and includes facilities for food preparation, sleeping, and sanitation.

Specific noise shall mean any noise that is clearly distinguishable from the background noise, whether audibly or with a measuring device or instrument.

Sound impact plan means a plan required in connection with application for an entertainment venue permit.

Sport shooting range shall have the meaning in Section 250.001, Local Government Code.
(Ord. No. 2025-8-3, § I, 8-11-25)

Sec. 14-86. Offenses.

(a) It shall be an offense for any person to intentionally, knowingly, or recklessly make or cause to be made an unreasonable noise:

(1) In a public place, other than a sport shooting range; or

(2) On private property that the person has no right to occupy.

(b) It shall be an offense for a person to intentionally, knowingly, or recklessly make, cause to be made, or allow a noise nuisance on property owned by him or subject to his care, custody or control.

(c) It shall be an offense for a person to intentionally, knowingly, or recklessly conduct construction on private property within five hundred (500) feet of a residential area or a residential use during nighttime hours (10:01 p.m. to 6:59 a.m.).

(d) The issuance of a certificate of occupancy, land occupancy permit, multiple pet permit, or other permit issued by City of Plano shall not be a defense to prosecution under this article, unless otherwise expressly provided in this article.
(Ord. No. 2025-8-3, § I, 8-11-25)

Sec. 14-87. Presumptions.

(a) A noise is presumed to be unreasonable and declared to be a noise nuisance if it meets any of the following criteria:

(1) The noise directly or indirectly results in a specific noise level exceeding the maximum applicable noise level in the following table:

Table 1: Maximum Specific Noise Levels

	Timeframe	
	Day	*Night*
Noise-receiving district	*7:00 a.m. to 10:00 p.m.*	*10:01 p.m. to 6:59 a.m.*
Residential	65 dB or 10 dB above the background noise level, whichever is lower	55 dB or 5 dB above the background noise level, whichever is lower
Commercial/Mixed Use	70 dB or 10 dB above the background noise level, whichever is lower	60 dB or 5 dB above the background noise level, whichever is lower
Industrial	75 dB or 10 dB above the background noise level, whichever is lower	65 dB or 5 dB above the background noise level, whichever is lower

Table 1: Maximum Specific Noise Levels		
	Timeframe	
	Day	*Night*
Noise-receiving district	*7:00 a.m. to 10:00 p.m.*	*10:01 p.m. to 6:59 a.m.*
• If the background noise level exceeds the maximum permitted noise level indicated above, the background noise level shall be the maximum noise level.		
• 5 dB shall be subtracted from the maximum Noise Level where the Noise Level includes impulsive noise.		
• The most restrictive maximum Noise Level shall apply at the property where the noise is audible.		
• Noise may be measured where the noise is audible or where the alleged nuisance is received. Measurement location may be adjusted where line-of-site or elevation may pose a challenge in determining whether a nuisance exists.		

(2) *Amplification of sound for commercial advertising.* The noise is from the production or amplified reproduction of sound that is broadcast into a public place or upon a public street or highway for the purpose of commercial advertising or attracting the attention of the public to a building, structure, person, or event.

(3) *General amplification of sound.* The noise is from the production or amplified reproduction of the human voice, and the sound is plainly audible on private property or for fifty (50) feet or more onto public property.

(4) *Schools, courts, religious facilities, and hospitals.* The noise is:

a. Created in a public place or on a public street or highway adjacent to a school, institution of learning, religious facility, a court while in use, or adjacent to a hospital, and

b. Reasonably likely to interfere with the workings of such institution or disturb or annoy a patient in the hospital, and

c. A sign indicating that a school, institution of learning, religious facility, court, or hospital is in the vicinity is posted so as to be visible to motorists, passengers, and pedestrians.

(5) *Motor vehicles.* The noise is created by the operation of a motor vehicle that is not equipped with a muffler in good working condition that continuously operates to prevent excessive or unusual noise.

(6) *Animals.* The noise is from an animal that:

a. Is frequent or habitual in creating the noise so that it is disturbing to a reasonable person, whether the animal is contained at any public or private facility, a residence, or in a public place, and

b. Is under the care, custody or control of a person.

(b) An act is deemed to occur in a public place or on private property if it produces the prohibited noise or vibration in the public place or on private property, respectively.
(Ord. No. 2025-8-3, § I, 8-11-25)

Sec. 14-88. Vibration.

It shall be an offense for any person to intentionally, knowingly, or recklessly make, cause to be made, or allow any unreasonable vibration. A vibration is presumed to be unreasonable if it is perceptible without use of an instrument on any affected property.
(Ord. No. 2025-8-3, § I, 8-11-25)

Sec. 14-89. Defenses.

(a) It shall be an affirmative defense to prosecution under this article that:

(1) The noise is immediately and reasonably necessary to prevent imminent threat of bodily injury, death, or loss of property.

(2) The noise is a reasonable result from a lawfully scheduled event in full compliance with all permits issued by the city and all other local, state, and federal laws, including, but not limited to:

a. A stadium or sporting event that takes place on public property;

b. School-sponsored event;

c. A parade;

d. An event using a real or simulated cannon, firearm, gunfire, explosive, or pyrotechnic item;

e. An event, fun run, race, festival, fiesta, or concert that was sponsored or co-sponsored by the city; or

f. A special event as defined in the City of Plano Code of Ordinances.

(3) The noise or vibration is produced by reasonably necessary construction or landscaping and lawn care-related activities on real or personal property, conducted at any point from 7:00 a.m. through 10:00 p.m., and the activity is in compliance with all other State and Federal laws and the City of Plano Code of Ordinances, and the noise does not directly or indirectly result in a specific noise level exceeding 85 dBA.

(4) The noise is produced by the operation of any heating, refrigeration, ventilation, air conditioning equipment or system, generator, or pool equipment, and the noise does not directly or indirectly result in a specific noise level exceeding 65 dBA on residential property or 75 dBA on commercial/mixed-use or industrial property.

(5) The noise is produced as part of a religious observance or service, provided the sound does not cumulatively exceed five minutes' duration in any one-hour period.

(6) The noise is produced by reasonable activities conducted in public parks, public playgrounds, or public or private school grounds, at any point from 7:00 a.m. through 10:00 p.m.

(7) The noise is produced by the lawful operation of a motor vehicle under the Texas Transportation Code.

(8) The noise or vibration is produced by the transportation, placement, filling, collection, or removal of a waste or recycling receptacle or container at any point from 7:00 a.m. through 10:00 p.m. in an area zoned for residential use or within three hundred (300) feet outside of an area zoned for residential use.

(9) The noise or vibration is produced by construction-related activity outside of the designated hours set forth in this article, and said activity has received written approval from the city, has been approved by a state or federal authority, or is reasonably necessary due to an emergency.

(10) The noise is produced by a property that has received a variance from the noise standards in the zoning ordinance from the board of adjustment during the development process and complies with all variance requirements and other local, state, and federal laws.

(11) The noise is produced in compliance with a valid, city-issued entertainment venue permit and in compliance with all other local, state, and federal laws.

(12) The construction activity on private property during nighttime hours (10:01 p.m. to 6:59 a.m.) within five hundred (500) feet of a residential area or residential use was permitted by the building official pursuant to written approval due to urgent necessity in the interest of public safety or for other reasons determined by the building official to be necessary for the public health, safety, or welfare of the public.

(13) The noise is produced by a food service establishment accepting delivery of supplies or other items, except that if the delivery is occurring between the hours of 10:00 p.m. and 5:00 a.m., then:

a. The delivery lasts for a maximum of one hour;

b. The delivery is only for food, non-alcoholic beverages, food service supplies, and ice; and

c. The delivery sound level when measured from the residential property closest in proximity to the food service establishment does not exceed 65 dBA, excluding traffic and other background noise that can be reasonably excluded. For purposes of this paragraph, a food service establishment has the meaning provided in Chapter 9 of this Code.

(14) The noise is generated by a restaurant, as defined in Section 1.04 of the Texas Alcoholic Beverage Code, that limits the use of amplified sound for the playing of music and amplifying human speech within the restaurant's indoor and outdoor property boundaries to ensure:

a. The amplified sound is not produced after 10:00 p.m., Sunday through Thursday, and 11:00 p.m., Friday and Saturday; and

b. The amplified sound level does not exceed 70 dBA or 75 dBC when measured at the restaurant's property perimeter, excluding traffic and other background noise that can be reasonably excluded. This defense to prosecution does not apply to a restaurant on property located within 300 feet of a residence that was occupied prior to the establishment on any restaurant located on the property.

(Ord. No. 2025-8-3, § I, 8-11-25)

Sec. 14-90. Applicability.

This article shall not apply to noise created by emergency vehicles or equipment of the state, a political subdivision of the state, or a federal agency.
(Ord. No. 2025-8-3, § I, 8-11-25)

DIVISION 2. ENTERTAINMENT VENUE PERMITS

Sec. 14-91. General.

(a) A permit is required under this subpart in order to exceed specific noise levels found in subsection 14-87(a)(1) at entertainment venues and for application of a defense to prosecution pursuant to subsection 14-89(a)(11).

(b) No entertainment venue permit will be granted for use within residential districts as defined by this article or within one hundred (100) feet of property zoned as a residential district as defined by this article at the time of permit approval.

(c) The department may issue a three-year permit authorizing the exceedance of specific noise levels, subject to the requirements of this subpart.

(d) The city council shall have the power and the duty to review and approve, approve with conditions or deny applications for entertainment venue permits.
(Ord. No. 2025-8-3, § I, 8-11-25)

Sec. 14-91.1. Decibel limits for entertainment venues.

(a) Unless a more restrictive decibel limit is required by a condition in an entertainment venue permit, or by another provision of this article, venues for which a permit has been issued may operate at the following decibel levels:

(1) In a commercial/mixed-use or industrial district, as defined by this article, daytime thresholds as prescribed in section 14-87 between 10:00 p.m. and 11:59 p.m. on Friday, Saturday, or the night before New Year's Day.

(b) A permit holder shall maintain records of noise measurement for each event for a minimum of three years after the event and must allow inspection of the records by the department upon request.
(Ord. No. 2025-8-3, § I, 8-11-25)

Sec. 14-91.2. Permit application.

(a) A person seeking an entertainment venue permit or seeking to renew an entertainment venue permit must complete and submit to the department a complete permit application on a form provided by the department and the associated application fee.

(1) A permit must include the following for the applicant and all persons designated by the applicant as authorized representatives:

a. Legal name;

b. Phone number, address, and email address; and

c. Copy of government-issued identification with photo.

(2) A permit that has been approved shall be valid for a term of three (3) years.

(3) The department shall extend the permit term to five (5) years for persons who have not been issued a notice of violation relating to the conditions of the permit or requirements of this article during the permit term and have been in compliance for the duration of the permit with all other local, state, and federal laws related to noise.

(b) A permit may not be transferred from one person to another person or from one entertainment venue to another.

(c) Permit fees are non-refundable.

(d) The department shall review and process fully completed permit applications for consideration by the planning and zoning commission and city council.
(Ord. No. 2025-8-3, § I, 8-11-25)

Sec. 14-91.3. Sound impact plan.

(a) A sound impact plan must be submitted to the department with the application for an entertainment venue permit.

(1) The sound impact plan must include the results of a sound study, including:

a. Noise impact to surrounding properties, as measured from the receiving property;

b. Prescribed decibel levels and hours of operation;

c. Sound-mitigating design features;

d. Availability and use of decibel meters on site; and

e. Contact information and hours of availability for an individual responsible for sound.

(2) Any other elements reasonably required by the department related to mitigation of noise impacts and provided to the applicant before the sound impact plan is prepared.

(3) A sound impact plan must be prepared by a professional acoustical consultant or acoustical engineer.

(b) After a permit has been issued, the department may require modification of a sound impact plan if exceedances of decibel thresholds are documented and mitigation measures are needed as documented by a notice of violation.
(Ord. No. 2025-8-3, § I, 8-11-25)

Sec. 14-91.4. Notice of application.

(a) Not later than the 14th day before the planning and zoning commission meeting under section 14-96, the department shall provide notice of application under this section. At the applicant's expense, notices shall be mailed to:

(1) The applicant; and

(2) Property owners within five hundred (500) feet and all known homeowner's associations within one thousand five hundred (1,500) feet of the entertainment venue property boundaries included in the application.

(b) Notice required under this section must:

(1) Describe the general nature of the application;

(2) Identify the applicant and the location of the site or property included in the application;

(3) Describe:

a. The venue and events anticipated; and

b. The size of the venue and its capacity;

(4) Provide contact information for the department; and

(5) Describe how a person may submit comments on the application.

(Ord. No. 2025-8-3, § I, 8-11-25)

Sec. 14-91.5. Decision on application and renewal.

(a) The department, following review of a fully completed permit application, sound impact plan, and notification process, will provide a recommendation for approval, approval with conditions, or denial.

(b) The planning and zoning commission shall review the application and give recommendation for approval, approval with conditions, or denial.

(c) A public hearing on an application decision shall be held at the earliest city council meeting following planning and zoning commission review, and for which notice of the hearing can be timely provided.

(d) The city council shall approve, approve with conditions or deny issuance of a permit for an entertainment venue. Application for permit renewal shall follow the process outlined in this section, except that a new sound impact plan may not be required by the department if the venue has not violated permit conditions or any other laws related to noise during the permit term.

(e) In reviewing the application, the decision-making bodies shall consider:

(1) Whether the permit will unreasonably interfere with the right of neighbors to peaceable enjoyment of their property;

(2) Whether the permitted activity is suitable for the area where it will be located;

(3) If the mitigation measures appropriately consider the effect of the permit on surrounding properties; and

(4) Any other considerations related to health, safety and welfare.

(Ord. No. 2025-8-3, § I, 8-11-25)

Sec. 14-91.6. Revocation of a permit.

(a) The department may revoke a permit if the permit holder or authorized representative has committed two or more noise-related violations or violated conditions of the permit within the previous twenty-four (24) months at the property where the permit would apply.

(b) The department shall provide notice of revocation. Notice shall be hand-delivered or delivered by certified and regular mail to the permit holder.

(c) A permit holder may appeal a revocation by delivering a notice of appeal to the city's address, designated on the notice of revocation.

(d) A notice of appeal is effective only if compliant with this article and delivered to the department not later than ten (10) business days after the date on the notice of revocation.

(e) A notice of appeal must be on a form prescribed by the department.

(f) The city council shall hear the appeal at the next available scheduled meeting following seven days after the receipt of the notice of appeal, unless an extension is agreed to in writing by the permit holder and the department.

(g) A revocation order is suspended during the pendency of an appeal under this section.

(h) No permit will be issued to a person who owned, or who has had or had an ownership interest in, an entity that had its entertainment venue permit revoked under this chapter in the preceding twelve months.

(Ord. No. 2025-8-3, § I, 8-11-25)

DIVISION 3. ENFORCEMENT

Sec. 14-91.7. Enforcement.

The city manager or their designee shall have authority to enforce this article.

(Ord. No. 2025-8-3, § I, 8-11-25)

Sec. 14-91.8. Penalties.

(a) It shall be an offense to fail to comply with any provision of this article, and, upon conviction thereof, a person shall be punished by a fine in an amount not to exceed five hundred dollars ($500.00). Each day a violation occurs shall constitute a separate offense.

(b) Repeat and habitual offenders.

(1) If it is shown on the trial of an offense under this article that the defendant has previously been finally convicted of an offense under this article, on conviction the person shall be punished by a fine of not less than three hundred dollars ($300.00) and not to exceed five hundred dollars ($500.00).

(2) If it is shown on the trial of an offense under this article that the defendant has previously been finally convicted of two offenses under this article, on conviction the person shall be punished by a fine of not less than four hundred dollars ($400.00) and not to exceed five hundred dollars ($500.00).

(3) This subsection applies only to a person finally convicted of a second or subsequent offense within three years of the date on which the most recent preceding offense was committed.

(c) In addition to the penalties prescribed above, the city may pursue other remedies such as abatement of nuisances, injunctive relief, administrative adjudication and revocation of licenses or permits.
(Ord. No. 2025-8-3, § I, 8-11-25)

ARTICLE VI. EROSION CONTROL*

Sec. 14-92. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Below ground installations means activity that causes excess sediment laden water, concrete sawing wash water, wash water or drilling mud pumped from an excavation or structure and shall be treated as sediment laden runoff for erosion control purposes.

Building official means the building official for the City of Plano or his designee.

Construction activities means construction activities that require a building permit.

Director of development services means the director of development services for the City of Plano or his designee.

Erosion control plan means a site plan with necessary details, showing the property where land disturbing activity will take place and showing the locations and types of devices, procedures and practices to be used to control erosion and sedimentation.

Final approval means completion of a project, site or building in accordance with City of Plano requirements and ordinances. In the case of a building, a certificate of occupancy is issued.

Land disturbing activity means any activity, including but not limited to excavation, planting, tilling, and grading, which disturbs five thousand (5,000) or more square feet of the natural or improved vegetative ground cover so as to expose soil to the erosive forces of rain, storm water runoff or wind. All installations and maintenance of franchise utilities such as telephone, gas, electric, etc., shall be considered land disturbing activities.

Manual means the City of Plano Erosion and Sediment Control Manual, as amended from time to time. A current copy of the manual shall be kept on file in the office of development services.

Off-site borrow area means a source of earth fill material used in the construction of embank-

*__Editor's note__—Ord. No. 98-3-9, § I, adopted March 16, 1998, repealed provisions formerly set out as Art. VI of Ch. 14. Former Art. VI, §§ 14-92—14-95, pertained to erosion control and derived from Ord. No. 89-1-9, § I, adopted Nov. 20, 1995. Section II of Ord. No. 98-3-9 adopted new provisions as Art. VI to read as herein set out.

Cross references—Buildings and building regulations, Ch. 6; planning and development, Ch. 16; streets and sidewalks, Ch. 19; landscaping streets, § 15-101 et seq.; flood damage prevention, § 16-161 et seq.; storm drainage, § 19-41 et seq.

ments or other earth fill structures, that is located on another parcel of property other than where the principal construction is occurring.

Off-site sedimentation means deposit of soil material beyond the limits of the property undergoing land disturbing activity or in city streets, alleys or drainage facilities in an amount sufficient to constitute a threat to public safety and comfort.

Off-site spoil area means an area on another parcel of property, other than where the principal construction is occurring, where excess earth, rock or construction material is disposed of.

Permanent erosion control devices means devices or practices installed prior to final approval and maintained after final approval to prevent or minimize the erosion and deposit of soil materials. Such devices may include, but shall not be limited to, permanent seeding, sod, storm drain channels, channel linings, storm drain pipes, outlet velocity control structures and storm-water detention structures.

Permanent ground cover means permanent vegetative cover on all bare soil areas of a property not covered by a permanent structure or landscaping improvements, including but not limited to, live sod, perennial grasses or other materials which lessen runoff and soil erosion on the property.

Phased occupancy means use or inhabitation of a single structure or other portion of a project as such structure or portion thereof is completed, but before the project as a whole is fully completed and finally approved by the city.

Related land area includes the property where the principal land disturbing activity is taking place, all adjacent property, off-site borrow areas, off-site spoil areas, off-site properties necessary for required utility extensions, and off-site areas for required street improvements.

Responsible party means a business entity, franchised utility company, developer, property owner, contractor or holder of a building permit who is required to comply with the terms of this article.

Staging area means an on-site or off-site location used by a contractor to store materials for a project, to assemble portions of equipment or structures, to store equipment or machinery, to park vehicles, or for other construction related uses.

Stop work order means the suspension of all city permits with no approvals or inspections of work for the site or project being performed.

Temporary erosion control devices means devices installed or practices implemented and maintained during land disturbing activities to prevent, minimize or control the erosion and deposit of soil materials.
(Ord. No. 98-3-9, § II, 3-16-98)

Sec. 14-93. Erosion control required.

(a) *Application of article.* A responsible party engaging in any land disturbing activity or any construction activities shall prepare an erosion control plan and submit that plan to the city for approval. This article shall apply regardless of whether a responsible party is required to obtain a permit from the city in order to conduct such land disturbing or construction activity. The responsible party shall also be held liable for violations of this article committed by third parties engaging in activities related to the responsible party's project;

(b) *Erosion control plan implementation and compliance.* Each responsible party shall implement and maintain the erosion control measures shown on its approved erosion control plan in order to minimize the erosion and the transport of silt, earth, topsoil, etc., by water runoff or construction activities, beyond the limits of the responsible party's site onto city streets, drainage easements, drainage facilities, storm drains or other city property prior to beginning any land disturbing activity.

(c) *Off-site borrow, spoil and staging areas.* Where applicable, offsite borrow areas, spoil areas and construction staging areas shall be considered as part of the project site and shall be governed by this article.

(d) *Related land areas.* The erosion control requirements of this article shall apply to all related land areas. Additionally, when land disturbing activity occurs on a project, all disturbed land areas related to the project shall have permanent erosion control established before final occupancy of structures located thereon or final acceptance of the subdivision may be obtained. This section applies whether or not a building permit is required.

(e) *Below ground installations.* All discharges resulting from below ground installations shall be passed through city approved erosion control device(s) or removed from the site and properly disposed of.
(Ord. No. 98-3-9, § II, 3-16-98)

Sec. 14-94. Erosion control plans.

(a) *Plan requirements generally.* Each erosion control plan required by this article shall clearly identify all erosion and sediment control measures to be installed and maintained throughout the duration of the project for which that plan is submitted. The responsible party shall install and maintain erosion control devices in accordance with his city approved erosion control plan as required by this article.
(Ord. No. 98-3-9, § II, 3-16-98)

Sec. 14-95. Nonresidential and multifamily construction.

When construction or land disturbing activities are conducted as part of a nonresidential or multifamily construction project, permanent erosion control shall be established prior to the occupancy of any nonresidential or multifamily structure. Phased occupancy will be allowed only when there are no outstanding erosion control violations for the project for which the request is made.
(Ord. No. 98-3-9, § II, 3-16-98)

Sec. 14-96. Residential subdivisions; compliance.

In addition to the other requirements of this article, when construction or land disturbing activities are conducted as part of a residential subdivision project, the following shall apply:

(a) *Erosion control deposit account.* Prior to approval of the final plat by the planning and zoning commission, the developer shall submit an erosion control plan for approval by the city and shall pay an erosion control deposit to the city in the amount of one hundred dollars ($100.00) per lot. The deposit shall be posted to ensure implementation and continued maintenance of the city approved erosion control plan for

the development as required by this article. No inspection of any type may be performed on a project or portion thereof until a city approved erosion control plan is implemented by the responsible party.

(b) *Final acceptance.* Permanent erosion control devices and when applicable, temporary erosion control devices, as specified in the approved erosion control plan shall be installed and maintained prior to final acceptance of a subdivision. The developer for such subdivision shall continue to maintain all temporary erosion control devices until permanent erosion control has been established on all those lots within the subdivision for which a building permit has not been issued.

(c) *Transfer of property by developer.* If the developer sells all of the lots in a subdivision to one purchaser, that purchaser becomes the responsible party for the subdivision, is liable for violation of this article and shall post an erosion control deposit as required by this article. The balance remaining in the original developer's account shall be released as provided herein upon the submission of written proof of transfer of lots or a new erosion control deposit by the purchaser. As required by this article, such purchaser shall post an erosion control deposit with the city.

(d) *Deductions from erosion control deposit account/stop work orders/citation.* The city shall inspect the erosion control devices located at a site for compliance with the approved erosion control plan submitted by a developer. If a developer fails to implement or maintain erosion control devices as specified in his approved erosion control plan, the city shall provide such party with written notice of noncompliance identifying the nature of the noncompliance. Such notice shall also inform the developer of the circumstances under which a deduction from his deposit account will be made and the time frame for the filing of an appeal of such action by city. The developer shall have twenty-four (24) hours to bring his erosion control devices into compliance with the approved erosion control plan for the site to which notice of noncompliance was issued. Correction shall include sediment clean-up, erosion control device repair, erosion control device maintenance and/or installation of additional erosion control devices to prevent re-occurrence of the violation. The twenty-four-hour cure period may be extended for inclement weather or other factors at the discretion of the director of development services.

At the end of the twenty-four-hour cure period, the city shall reinspect the site and shall deduct a reinspection fee of one hundred fifty dollars ($150.00) from the developer's erosion control deposit account. If at the time of such reinspection, the erosion control devices at the site have not been brought into compliance with the approved erosion control plan, city may issue a stop work order and issue a citation for each violation of this article. All deductions from a developer's erosion control deposit account may be appealed as provided in section 14-101 of this article.

(e) *Erosion control deposit account balance deposit refund.* After building permits have been issued for seventy-five (75) percent of the lots within the development, the developer may request the return of the remainder of his deposit by submitting a written request to the development services department. However, the developer shall continue to maintain temporary erosion control devices on those remaining lots for which building permits have not been issued and for any other areas upon which permanent erosion control has not been established. The balance of the deposit remaining in an account after deductions for all violations have been made shall be refunded within thirty (30) days of receipt of the written request for refund along with a list of all deductions made from his deposit account. The responsible party shall have the right of appeal as set forth in section 14-101 of this chapter.

(f) *Erosion control deposits.* Erosion control deposits posted pursuant to the requirements of this article shall not accrue interest.

(Ord. No. 98-3-9, § II, 3-16-98)

Sec. 14-97. Franchised utility companies.

Subject to the terms of its franchise agreement with city, including but not limited to terms regarding permits, a franchised utility company engaging in land disturbing activities within the City of Plano shall comply with the following:

(a) *Erosion control plan.* Prior to beginning any land disturbing activity or upon the effective date of this article, an erosion control plan shall be submitted for approval by the city.

(b) *Stop work order/citation.* The city shall inspect the erosion control devices located at a site for compliance with the approved erosion control plan submitted for such site. If a responsible party fails to implement or maintain erosion control devices as specified in his approved erosion control plan, the city shall provide such party with written notice of noncompliance identifying the nature of such noncompliance. The responsible party shall have twenty-four (24) hours to bring his erosion control devices into compliance with the approved erosion control plan for the site where the violation occurred. Correction shall include sediment clean-up, erosion control device repair, and erosion control device maintenance. The twenty-four-hour cure period may be extended for inclement weather or other factors at the discretion of the director of development services.

At the end of the twenty-four-hour cure period, the city shall reinspect the site. If at the time of such reinspection, the erosion control devices at the site have not been brought into compliance with the approved erosion control plan, the city may issue a stop work order and issue a citation for each violation of the city's erosion control requirements. To obtain a reinspection for removal of the stop work order, a request for reinspection must be submitted.

(Ord. No. 98-3-9, § II, 3-16-98)

Sec. 14-98. Farming and ranching activities.

Prior to beginning any land disturbing activity or upon the effective date of this article, a responsible party engaging in land disturbing activities for farming and ranching purposes shall submit an erosion control plan for approval by the city. The approved erosion control plan shall be implemented and erosion control devices shall be maintained as specified in the plan. A responsible party engaging in farming or ranching activities shall comply with all other general requirements of this article.

(Ord. No. 98-3-9, § II, 3-16-98)

Sec. 14-99. Residential lots with a building permit.

When land disturbing activities are conducted on a residential lot for which a building permit must be issued, the responsible party shall comply with the following:

(a) *Erosion control plan.* Prior to approval of a building permit for a residential lot by the city, the contractor or other responsible party obtaining the building permit shall submit an erosion control plan for approval by the city. No inspection may be performed on a project until a city-approved erosion control plan is implemented.

(b) *Stop work order/citation.* The city shall inspect the erosion control devices located at a site for compliance with the approved erosion control plan submitted for such site. If a responsible party fails to implement or maintain erosion control devices as specified in his approved erosion control plan, the city shall provide such party with written notice of noncompliance identifying the nature of such noncompliance. The responsible party shall have twenty-four (24) hours to bring his erosion control devices into compliance with the ap-

proved erosion control plan for the site where the violation occurred. Correction shall include sediment clean-up, erosion control device repair, erosion control device maintenance, and/or installation of additional erosion control devices to prevent re-occurrence of the violation. The twenty-four-hour cure period may be extended for inclement weather or other factors at the discretion of the building official.

At the end of the twenty-four-hour cure period, the city shall reinspect the site and may assess a reinspection fee. If at the time of such reinspection, the erosion control devices at the site have not been brought into compliance with the approved erosion control plan, the city may issue a stop work order and issue a citation for each violation of the city's erosion control requirements. When a stop work order has been issued, a reinspection fee shall be assessed. To obtain a reinspection for removal of the stop work order, a request must be submitted therefor and a reinspection fee, as set by the building inspection department of the City of Plano, shall be paid.

(c) *Removal of erosion control devices.* Upon final occupancy or upon establishing permanent ground cover on a lot, all temporary erosion control devices shall be removed.

(Ord. No. 98-3-9, § II, 3-16-98)

Sec. 14-100. Enforcement.

(a) *Violations.* It shall be an offense for a responsible party or a third party performing work on a project to violate any of the requirements of this article, including, but not limited to, the following:

(1) Conducting any land disturbing or construction activity without an approved erosion control plan for the location where the violation occurred.

(2) Failing to install erosion control devices or to maintain erosion control devices throughout the duration of land disturbing activities, in compliance with the approved erosion control plan for the location where the violation occurred.

(3) Failing to remove off-site sedimentation that is a direct result of land disturbing activities where such off-site sedimentation results from the failure to implement or maintain erosion control devices as specified in an approved erosion control plan for the location where the violation occurred.

(4) Allowing sediment laden water resulting from below ground installations to flow from a site without being treated through an erosion control device.

(5) Failing to repair damage to existing erosion control devices, including replacement of existing grass or sod.

(b) *Notice of violation.* Written notice of violation shall be given to the responsible party or his job site representative as identified in the erosion control plan for a site. Such notice shall identify the nature of the alleged violation and the action required to obtain compliance with the approved erosion control plan.

(c) *Class C misdemeanor.* Any person, firm, or corporation violating any of the provisions or terms of this article shall be deemed guilty of a Class C misdemeanor and, upon conviction thereof, be subject to a fine not exceeding five hundred dollars ($500.00) for each offense, and each and every day such violation shall continue shall be deemed to constitute a separate offense.

(Ord. No. 98-3-9, § II, 3-16-98)

Sec. 14-101. Appeals.

(a) *Appeal to director of development services.* Upon notice of noncompliance, a responsible party may appeal the city's decision to take deductions from his erosion control deposit pursuant to section 14-96 of this article, by filing a written appeal to the director of development services within seven (7) days of the city's written notice of its intent to make such deduction for costs as allowed herein. An appeal filed pursuant to this section

shall specifically state the basis for the aggrieved party's challenge to the city's authority to take deductions under this article.

(b) *Standard for appeals.* When reviewing an appeal filed pursuant to this section, the director of development services shall evaluate all evidence submitted. The burden of proving that a violation of this article occurred shall be on the city. The city shall provide evidence sufficient to reasonably support a determination that the responsible party failed to comply with the requirements of this article as alleged by the city.

(c) *Issuance of opinion by director.* Decisions of the director of development services shall be issued within twenty (20) days of city's receipt of the written appeal. Decisions of the director of development services shall be final.
(Ord. No. 98-3-9, § II, 3-16-98)

Secs. 14-102—14-105. Reserved.

ARTICLE VII. HAZARDOUS MATERIALS*

Sec. 14-106. Scope.

Any party(ies) who own(s) or possess(es) hazardous material involved in a hazardous material(s) incident within the city or any party(ies) who accidentally, negligently, or intentionally cause or is responsible for a hazardous material(s) incident within the city shall be liable for the payment of costs incurred by the fire department, police department, health department, public works department, and other departments or agencies which assist, to abate such an event. The remedy provided by this section shall be in addition to any other remedies provided by law.
(Ord. No. 92-9-20, § I, 9-14-92; Ord. No. 94-8-7, § I, 8-8-94; Ord. No. 2000-10-5, § I, 10-16-2000)

*__Cross references—__Fire prevention and protection, Ch. 8; storage of flammable liquids, liquified petroleum gas and liquified natural gas, and explosives prohibited, §§ 8-19—8-21; flammable and combustible materials, § 8-37; hazardous materials routing, § 8-39.

Sec. 14-107. Definition of hazardous materials.

For the purposes of this article "hazardous materials" shall be defined as any substances or materials in a quantity or form which, in the determination of the fire chief or his authorized representative, poses a risk to persons, property or the environment, and shall include, but not be limited to, such substances as explosives, radioactive materials, petroleum products, poisons, compressed or liquefied gases, etiologic (biologic) agents, oxidizers, corrosives, carcinogens, cryogens and organic peroxides. For the purpose of this article, "hazardous materials incidents" shall be defined as the release, or potential release, of a hazardous material from its container into the environment.
(Ord. No. 92-9-20, § II, 9-14-92; Ord. No. 94-8-7, § II, 8-8-94)

Sec. 14-108. Authority to assess hazardous materials mitigation services fee.

The city is authorized to assess non-refundable fees for hazardous materials mitigation services in accordance with the fee schedule approved by the city council.

For purposes of this article, costs incurred by the fire department, police department, health department, public works department, and other departments of the city shall include, but not be limited to, expenses attributable to the abatement or cleanup of any hazardous materials incident, including costs of personnel, costs of equipment operations, cost of mitigation equipment, costs of identification and detection technology, costs of disposal materials and decon supplies, PPE protection, cost of onsite meals, costs of room and board, costs of specialists, experts or other contract labor not in the full-time employment of the city, disposal costs, overhead costs, overtime costs and any other incidental costs incurred by the city.
(Ord. No. 92-9-20, § III, 9-14-92; Ord. No. 94-8-7, § III, 8-8-94; Ord. No. 2000-10-5, § II, 10-16-2000; Ord. No. 2021-4-10, § I, 4-26-21)

Sec. 14-109. Reserved.

Editor's note—Ord. No. 2013-10-21, § I, adopted October 28, 2013, repealed the former section 14-109 in its entirety,

which pertained to environmental assessments, and derived from Ord. No. 92-9-20, § IV, adopted September 14, 1992; Ord. No. 94-8-7, § IV, adopted August 8, 1994; Ord. No. 2000-10-5, § III, adopted October 16, 2000.

Sec. 14-110. Open burning permits.

With the exception of ceremonial campfires, all open burning in the city is prohibited. Permits for ceremonial campfires will be issued subject to the restrictions of the fire department, health department, and Texas Air Quality Control Board.
(Ord. No. 92-9-20, § V, 9-14-92; Ord. No. 94-8-7, § V, 8-8-94; Ord. No. 2000-10-5, § IV, 10-16-2000)

Sec. 14-111. Hazardous material permits.

Permits shall be required for the storage, handling, or use of hazardous materials in excess of the amounts outlined on the most current list of chemicals with an immediate danger to life and health (IDLH) issued by the Environmental Protection Agency (EPA). Copies of such list are maintained in the office of the fire chief. The fee for hazardous materials permits will be one hundred dollars ($100.00) per site per year. Application for hazardous materials permits will be made to the Plano fire department.
(Ord. No. 92-9-20, § VI, 9-14-92; Ord. No. 94-8-7, § VI, 8-8-94)

Sec. 14-112. Authorizing suits for injunctive relief.

The city attorney is authorized to file suit on behalf of the city, the fire chief or his authorized representative both for injunctive relief as may be necessary to enforce the provisions of this article and for the collection of damages as provided herein.
(Ord. No. 92-9-20, § VII, 9-14-92; Ord. No. 94-8-7, § VII, 8-8-94; Ord. No. 2000-10-5, § V, 10-16-2000)

ARTICLE VIII. RESERVED*

Secs. 14-113—14-122. Reserved.

ARTICLE IX. RESIDENCY RESTRICTIONS FOR CHILD PREDATOR OFFENDERS

Sec. 14-123. Regulation of sex offender residency.

(a) *Definitions.* For the purposes of this section, the following terms, words, and derivations thereof shall have the following meanings:

Child care center. Premises for operation of a child day care, as defined in 26 Texas Administrative Code Section 745.33, but excluding a child day care operation located at the residence of a child day care permit-holder.

Child safety zone. Premises where unrelated children commonly gather, including, but not limited to: a playground, school, video arcade facility, or youth center as those terms are defined in Section 481.134 of the Texas Health and Safety Code; child care center; neighborhood or linear park, library, youth athletic facility or field; skate park or rink; amusement center; movie theater; bowling alley; public swimming pool; swimming pool for neighborhood, apartment complex, motel, or hotel; facility and offices for Texas Department of Family and Protective Services and Children's Advocacy Center of Collin County; instructional training facility or studio for athletics, martial arts, theater, dance, cheerleading, music, art, or academics; and any facility that regularly holds events primarily for children.

Linear park. Public land and associated improvements to be used primarily for passive recreation and connecting residential neighborhoods to one another and to public facilities and services.

---

*__Editor's note—__Ord. No. 2021-5-5, § I, adopted May 10, 2021, repealed article VIII, §§ 14-113—14-122, which pertained to regulations for tattoo and body piercing studios, and derived from Ord. No. 2001-4-4, adopted April 2, 2001; Ord. No. 2010-3-15, adopted March 22, 2010; and Ord. No. 2018-9-6, adopted September 10, 2018.

Minor. A person younger than seventeen (17) years of age.

Neighborhood park. Public land, with associated improvements, typically from seven and one-half (7.5) to ten (10) acres in size, and providing both active and passive recreational opportunities for neighborhood residents, as defined in section 16-263 of the City of Plano Code of Ordinances.

Premises. Real property and all buildings and appurtenances pertaining to the real property.

Register or registry. Texas Public Sex Offender Registry maintained by the Texas Department of Public Safety, pursuant to V.T.C.A. Criminal Procedure, Ch. 62.

Reportable conviction or adjudication has the meaning assigned in V.T.C.A. Criminal Procedure, Ch. 62.

Residence. Premises where a person resides or intends to reside for more than seven (7) consecutive days, including but not limited to a house, townhouse, condominium, apartment, duplex, hotel, motel, or extended-stay facility. Residence is established at the beginning of ownership of a residence or the beginning of tenancy, rental period or use of a residence by written or verbal agreement.

(b) *Offense.*

(1) It is unlawful for a person to establish residence within one thousand (1,000) feet of any part of a child safety zone if the person is required to register on the Texas Public Sex Offender Registry because of a reportable conviction or adjudication.

(2) For purposes of this offense section, if any part of the premises containing the residence is within one thousand (1,000) feet of a child safety zone, then the entire premises is in a child safety zone.

(c) *Measurements.* The distance between a residence and child safety zone shall be measured by following a straight line from the nearest property line of the premises of the child safety zone to the outer property line of the premises of the residence, or where there are multiple residences on one (1) property, from the nearest property line of the premises of the child safety zone to the nearest property line of the premises of the residence.

(d) *Culpable mental state not required.* Neither allegation nor evidence of a culpable mental state is required for the proof of an offense under this article.

(e) *Affirmative defenses.* It is an affirmative defense to prosecution that any of the following conditions apply:

(1) The person required to register established the residence prior to the date of arrest for a reportable conviction or adjudication. For purposes of this affirmative defense, where premises contain multiple units, the defendant must prove by preponderance of the evidence that residence was established prior to the date of arrest in the same individual dwelling unit as the unit resided in at the time of commission of the offense.

(2) The person required to register was a minor at the time of offense requiring such registration and was not certified as an adult for criminal prosecution.

(3) The premises of the child safety zone was opened after the person required to register established the residence, and the person has maintained compliance with all sex offender registration laws of the State of Texas.

(4) The information in the database for the registry is incorrect, and, if corrected, this section would not apply to the person who was erroneously listed on the registry.

(Ord. No. 2006-7-10, § II, 7-24-06; Ord. No. 2020-4-3, § II, 4-27-20; Ord. No. 2025-1-10, § I, 1-27-25)

ARTICLE X. ILLEGAL SMOKING PRODUCTS AND INGESTION DEVICES

Purpose. The purpose of this article is to prohibit the use, possession, sale, ingestion or

smoking of illegal smoking products and ingestion devices hereinafter defined within the city limits of the City of Plano.

Sec. 14-124. Definitions.

The following words and phrases as used in this section shall have the meanings as set forth in this subsection:

Illegal smoking product shall mean any plant or other substance, whether described as tobacco, herbs, incense, spice or any blend thereof, regardless of whether the substance is marketed for the purpose of being smoked that contains Salvinorin A contained within the Salvia Divinorum plant, whether growing or not; or possessed as an extract, compound, manufacture, derivative, mixture, or preparation of such plant.

Ingestion device shall mean equipment, a product or material that is used or intended for use in ingesting, inhaling, or otherwise introducing an illegal smoking product into the human body, including:

(1) A metal, wooden, acrylic, glass, stone, plastic, or ceramic pipe with or without a screen, permanent screen, hashish head, or punctured metal bowl;

(2) A water pipe;

(3) A carburetion tube or device;

(4) A smoking or carburetion mask;

(5) A chamber pipe;

(6) A carburetor pipe;

(7) An electric pipe;

(8) An air-driven pipe;

(9) A chillum;

(10) A bong; or

(11) An ice pipe or chiller.

Person shall mean an individual, corporation, partnership, wholesaler, retailer or any licensed or unlicensed business.
(Ord. No. 2010-7-17, § II, 7-26-10; Ord. No. 2011-9-6, § I, 9-12-11)

Sec. 14-125. Violation.

(a) It shall be unlawful for any person to use, possess, purchase, barter, give, publicly display, sell or offer for sale any illegal smoking product.

(b) It shall be unlawful for any person to use or possess an ingestion device with the intent to inject, ingest, inhale or otherwise introduce into the human body an illegal smoking product.

(c) The culpable mental state required by Chapter 6.02 of the Texas Penal Code is specifically negated and dispensed with and a violation is a strict liability offense.

(d) Any person, firm or corporation found to be violating any term or provision of this article, shall be subject to a fine in accordance with subsection 1-4(b) of this Code for each offense. Every day a violation continues shall constitute a separate offense.
(Ord. No. 2010-7-17, § II, 7-26-10)

Sec. 14-126. Affirmative defense.

(a) It shall be an affirmative defense for a person charged with an offense for possession or use of an illegal smoking product that the use or possession was pursuant to the direction or prescription of a licensed physician or dentist authorized to direct or prescribe such act.

(b) It shall be an affirmative defense that the sale or possession of Salvinorin A was in conjunction with ornamental landscaping and used solely for that purpose.
(Ord. No. 2010-7-17, § II, 7-26-10)

ARTICLE XI. VULNERABLE ROAD USERS

Sec. 14-127. Definitions.

The following words and phrases as used in this section shall have the meanings as set forth in this subsection:

Safe distance shall mean three (3) feet if the operator's vehicle is a passenger car, or six (6) feet if the operator's vehicle is a truck or a commercial motor vehicle.

Vulnerable road user shall mean a person operating a bicycle, hand cycle, unicycle, motor-driven cycle, or other human powered wheeled vehicle on a street or highway.
(Ord. No. 2012-2-6, § I, 2-13-12)

Sec. 14-128. Passing a vulnerable road user.

(a) An operator of a motor vehicle passing a vulnerable road user on a highway or street shall:

(1) Vacate the lane in which the vulnerable road user is located if the highway or street has two (2) or more marked lanes running in the same direction; or

(2) Pass the vulnerable road user at a safe distance.

(b) An operator of a motor vehicle may not overtake and execute a right-hand turn in front of a vulnerable road user unless the operator is safely clear of the vulnerable road user, taking into account the speed at which the vulnerable road user is traveling and the braking requirements of the motor vehicle.

(c) An operator or passenger of a motor vehicle may not knowingly throw or project any object or substance at or against a vulnerable road user.
(Ord. No. 2012-2-6, § I, 2-13-12)

Sec. 14-129. Penalty.

Any person, firm or corporation found to be violating any term or provision of this article shall be subject to a fine in accordance with subsection 1-4(b) of the City Code for each offense.
(Ord. No. 2012-2-6, § I, 2-13-12)

ARTICLE XII. RESERVED*

*__Editor's note—__Ord. No. 2014-2-11, § III, adopted February 24, 2014, repealed the former article XII, §§ 14-130—14-132 in its entirety, which pertained to electioneering at polling places, and derived from Ord. No. 2013-10-5, § III, adopted October 14, 2013.

[The next page is 1039]

Chapter 15

PARKS AND RECREATION*

Art. I. In General, §§ 15-1—15-20
Art. II. Parks and Recreation Planning Board, §§ 15-21—15-50
Art. III. Athletic Activities, §§ 15-51—15-80
Art. IV. User Fees, §§ 15-81—15-100
Art. V. Landscaping Streets, §§ 15-101—15-115
Art. VI. Planting, Maintaining Trees, Shrubs on Public Property, §§ 15-116—15-122

*Cross references—Administration, Ch. 2; animals and fowl, Ch. 4; enclosures for swimming pools, § 6-187; fire prevention and protection, Ch. 8; food and food establishments, Ch. 9; licenses and business regulations, Ch. 11; motor vehicles and traffic, Ch. 12; landscape development commission, § 16-81 et seq.; park and recreation fee, § 16-261 et seq.; solid waste, Ch. 18.

State law references—Parks and recreation, Vernon's Ann. Civ. St., art. 1015a et seq.; power of city to take private property for parks and playgrounds, Vernon's Ann. Civ. St., art. 1175(15); public improvements, bonds, Vernon's Ann. Civ. St., art. 1269j-4.1; city parks, Vernon's Ann. Civ. St., art. 6080 et seq.; lease of land from state parks and wildlife department, V.T.C.A. Parks and Wildlife Code, § 13.006; recreational boating fees, V.T.C.A. Parks and Wildlife Code, § 31.092.

ARTICLE I. IN GENERAL

Sec. 15-1. Definitions.

Archery facility means a park facility specifically designed or designated to be used for the discharge of bows and arrows. An archery facility may be temporary or permanent.

Authorized vehicles means any vehicle approved by the director or his or her designee.

Boat propelled by a paddle means a watercraft constructed for the primary purpose of being used as a means of transportation on the water and which is propelled by a person engaged in paddling including, but not limited to, kayaks, canoes and stand-up paddle boards without sails or motors, which are more than seven (7) feet in length and are constructed of durable materials.

Burn ban means a ban on the making or kindling of fires at any park facility based upon the director's determination, in his or her sole discretion, that extreme dry weather, high winds or other conditions endanger public health and safety.

Department means the City of Plano Parks and Recreation Department.

Director means the director of the parks and recreation department for the City of Plano or his or her designee.

Motor vehicle means any self-propelled vehicle subject to the registration requirements of the V.T.C.A., Transportation Code, Ch. 502.

Motorized device means any device with a battery, electric or gas motor that does not fall under the definition of "motor vehicle" under this Code, including motorized scooters and electric bicycles. This definition, however, does not include any device designed to assist a person who has a physical disability with mobility.

Park or *park facility* means any and all land, areas, buildings, and facilities that are owned, leased, or otherwise controlled by the department, including, but not limited to, parks, athletic fields, tennis courts, golf courses, swimming pools, recreation centers, playgrounds, pavilions, medians, park parking lots and recreational trails.

Permit means written permission from the director or his or her designee issued pursuant to the provisions of this chapter and authorizing a person or organization to carry out the activity specified in the permit at a park or park facility. Permits may include, but are not limited to, site use permits, facility use agreements and concession agreements. Other city permits, which may be required in addition to the parks and recreation director-issued permit, may be required to carry out certain activities.

Prohibited inflatable floating device means an inflatable floating device which is not constructed or sold for the primary purpose of being used as a means of transportation on the water including, but not limited to, inflatable pool toys.

Prohibited inflatable watercraft means any inflatable watercraft which is less than seven (7) feet in length, is not constructed of durable, reinforced fabric, and does not have at least two separate buoyancy chambers exclusive of any inflatable floor and bottom.

Prohibited watercraft means a watercraft which is not permitted to be utilized in a park facility under the terms of this Code, including, but not limited to, watercraft with attached sails or motors, row boats, pontoon boats, fishing floats and inner tubes.

Reserved facility or *area means* a park location which may be reserved for the exclusive use of the reserving party and includes, but is not limited to, indoor and outdoor facilities, pavilions, meeting rooms, gathering areas, camps, classes, athletic fields, and their adjacent or support areas and facilities.

Scheduled activity means an activity at a park location which has been scheduled through the department for the particular and exclusive use of a person or persons.

Special event means an event conducted in accordance with chapter 11, article VIII of this Code.

(Ord. No. 2000-8-32, § I, 8-28-00; Ord. No. 2002-9-35, § I, 9-23-02; Ord. No. 2003-9-48, §§ I,

II, 9-22-03; Ord. No. 2006-1-22, § I, 1-23-06; Ord. No. 2013-8-6, § I, 8-12-13; Ord. No. 2017-1-6, § II, 1-9-17)

Sec. 15-2. Director responsibilities.

All parks and recreation activities shall be administered under the direction of the parks and recreation director. The director is responsible for carrying out approved policies under the direction of the city manager. The parks and recreation director shall provide staff support to the parks and recreation planning board.
(Ord. No. 2000-8-32, § I, 8-28-00)

Sec. 15-2.1. Park hours.

Park or park facilities shall be open to the public between the hours of 5:00 a.m. to 11:00 p.m., except as follows:

(1) For specific park facilities, different hours have been posted on-site or on the department's website.

(2) Parking in the Haggard Park parking lot bounded by 15th Street, H Avenue, 16th Street, and the DART light-rail line is permitted except between the hours of 2:00 a.m. and 5:00 a.m.

(3) A permit, issued by the department, authorizes attendance at the specific park facility between different hours.

(Ord. No. 2022-5-3, § III, 5-9-22)

Sec. 15-3. Prohibited activities.

(a) It shall be an offense for any person to knowingly do any of the acts specified in this section in or upon any park facility, except as otherwise specifically provided:

(1) *Weapons.*

a. *Offense.* Possess in or upon a park or park facility or premises a handgun, air gun, paintball gun, slingshot or any other device that could project any object that is hazardous or dangerous to the public, unless authorized by state law.

b. *Applicability.* Nothing in subsection 15-3(a) shall be construed to prohibit or restrict the lawful carrying or possession of a firearm pursuant to state law.

(2) *Unauthorized entry of reserved facilities / scheduled activities.*

a. Enter a reserved facility or area during the period that the facility or area is reserved; or

b. Remain in or return to a location where scheduled activities are occurring after being given notice to leave.

(3) *Restroom use.*

a. Enter, remain in, or loiter near or about a public restroom, locker room or washroom located at or in a park facility to:

1. Engage in criminal activity; or

2. Use the toilet facilities, locker room facilities, or washroom facilities for something other than their intended health purposes; or

b. Enter a restroom, locker room or washroom designated for the opposite sex. It is an affirmative defense to prosecution under this subpart that a person, regardless of age, entered an otherwise unoccupied restroom, locker room or wash room of the opposite sex:

1. For the purpose of assisting a disabled person of the opposite sex; or

2. To render reasonably necessary assistance or supervision to a child under the age of eighteen (18) years.

(4) *Tobacco use.* In addition to the prohibitions on smoking in parks contained in chapter 14, use or consume any tobacco products (as defined in section 14-66 of this Code) in the following areas:

a. While seated in or within twenty (20) feet of a bleacher provided for spectators at outdoor athletic events or activities;

b. In baseball/softball field plaza areas;

c. In a park restroom, locker room, or washroom;

d. Inside the border of a playground or other play feature; or

e. In an outdoor area of a park facility where it is posted as prohibited or is otherwise prohibited.

(5) *Controlled access.* Enter without authorization any controlled access portion of a park facility or where prohibited by posting or signage.

(6) *Environmental disturbance.* Destroy, damage, deface or remove shrubbery, trees, soil, grass, turf or other vegetation, rock, minerals or any other personal or real property, or dump any type of trash or debris.

(7) *Fires.*

a. Make or kindle a fire in an area which is not a public stove, grill, fire pit, or other designated area provided for that purpose; or

b. Leave a fire unattended; or

c. Make or kindle a fire during those periods that the director determines that a burn ban is appropriate and notice to the public of any such burn ban had previously been published on the city's web page.

(8) *Golfing.* Hit golf balls of any type in a park facility not designated as a golf course.

(9) *Signs.* Erect any permanent sign on or in any park facility or area.

(10) *Watercraft, inflatable floating devices and watersports.*

a. Operate any prohibited watercraft, prohibited inflatable watercraft or prohibited inflatable floating device; or

b. Engage in any watersports in any park architectural feature, pond, creek, lake or stream which is not specifically designated for this purpose pursuant to section 15-4 herein.

(11) *Hunting.*

a. *Offense.* Hunt, trap, kill, remove or release any animal.

b. *Applicability.* Nothing in subsection 15-3(11) shall be construed to prohibit or restrict lawful fishing, as may be allowed pursuant to subsection 15-4(4).

(12) *Feeding animals.* Feed or leave food for a non-domestic animal.

(13) *Use of bicycles.* Operate a bicycle where posted signage states bicycle use is prohibited.

(14) *Block or obstruct a trail.* Maintain, permit, or cause to be placed or maintained any person or object on a recreational or soft surface trail or walkway in such a way as to block or obstruct the free passage on and use of that recreational or soft surface trail or walkway.

(15) *Skateboarding in designated areas.* Operate a skateboard or other similar device (not including roller skates or in-line skates) at any time within the areas listed below:

a. *Arbor Hills Nature Preserve.*

(16) *Improper use.* Use a city-owned or operated facility, structure, equipment, furniture, architectural feature, or natural feature for any purpose or in any manner other than that for which a reasonable person would believe it was designed or intended to be used.

(17) *Fishing devices and cleaning.*

a. Use trotlines, throw lines, fish traps or nets, while fishing; or

b. Clean fish.

(18) Reserved.

(19) *Alcohol.*

a. *Offense.* Sell, possess, or consume alcoholic beverages in a park or park facility.

b. *Applicability.* This prohibition shall not apply to the following parks or park facilities:

1. City operated municipal golf courses;

2. The Oak Point Park and Nature Preserve Alcohol Permit Area at Oak Point Park and Nature Preserve, if the sale, possession, and/or consumption of alcoholic beverages occurs pursuant to:

A. A special event permit issued pursuant to the terms of this Code; or

B. A city concessions contract; or

C. A facility use agreement;

3. The Saigling House park facility located in Haggard Park, if the sale, possession and/or consumption of alcoholic beverages occurs pursuant to a city concessions contract or a facility use agreement for that park facility;

4. The Heritage Yards softball complex, if the sale, possession and/or consumption of alcoholic beverages occurs pursuant to a city concessions contract or a facility use agreement;

5. Haggard Park, if the sale, possession, and/or consumption of alcoholic beverages occurs pursuant to a special event permit issued pursuant to the terms of this Code; and

6. High Point Park Tennis Center, if the sale, possession, and/or consumption of alcoholic beverages occurs pursuant to:

A. A special event permit issued pursuant to the terms of this Code; or

B. A facility use agreement.

(b) None of the above provisions apply to city employees, agents or contractors in the performance of maintenance, construction or repair duties for any park or park facility except subsections 15-3(a)(4), (a)(8), (a)(15) and (a)(19). (Ord. No. 2000-8-32, § I, 8-28-00; Ord. No. 2006-1-22, § II, 1-23-06; Ord. No. 2007-9-13, § II, 9-14-07; Ord. No. 2009-4-22, § I, 4-27-09; Ord. No. 2011-2-7, § I, 2-28-11; Ord. No. 2013-8-6, § I, 8-12-13; Ord. No. 2017-1-6, § III, 1-9-17; Ord. No. 2021-7-3, § II, 7-26-21; Ord. No. 2022-5-3, § IV, 5-9-22; Ord. No. 2022-7-4, § VIII, 7-25-22)

Sec. 15-4. Activities allowed with a permit or as posted by the director or his or her designee.

(a) It shall be an offense for any person to do any of the acts specified in this section in or upon any park or park facility except with a permit or as posted by the director or his or her designee. ;

(1) Reserved.

(2) *Sale of goods and services.* Sell or offer for sale any food, drinks, confections, merchandise, or services, unless provided through a city concessions contract or facility use agreement.

(3) *Commercial or business activities.* Conduct commercial or business activities without a permit for which:

a. Any participation or admission fee is charged or revenue is otherwise derived; or

b. Commercial promotional materials or advertising is distributed.

(4) *Fishing.* Fish where it is prohibited by posting.

(5) *Camping.* Camp overnight in any park facility without a permit.

(6) *Boats propelled by a paddle.* Utilize a boat propelled by a paddle in an area where it is not permitted by posting.

(7) *Swimming.* Swim, wade, or bathe in any park architectural feature, pond, creek, lake or stream, where it is not permitted

by posting. It is an affirmative defense to prosecution that the swimming or wading was for the express purpose of launching or removing a boat propelled by a paddle as authorized by this Code or returning to such a boat as a result of an unintended or emergency reason.

(8) *Aircraft.* Launch or land any aircraft, including, but not limited to, hot air balloons, airplanes, paraplanes, ultralights, helicopters, and gliders, on the grounds of a park or park facility without a permit.

(9) *Models.* Launch or operate model rockets, model airplanes, model gliders, model boats or model vehicles, without a permit.

(10) *Sound amplification.* Use any type of sound amplification devices including, but not limited to, loudspeakers, amplifiers or microphones, without a permit.

(11) *Temporary markings.* Apply or cause to be created any markings, sidewalk chalk or temporary graffiti to any walkway, road, parking lot, trail, wall, field, or any other park facility, without a permit.

(12) *Park improvements.* Install permanent improvements on park property, including installing any plant material, without a permit.

(13) *Site and facility capacity.* Exceed the capacity of a park, site, or facility, without a permit.

(14) *Fireworks.* Discharge fireworks or explosives of any type without a permit and authorization as a special event.

(15) *Archery.* Carry or discharge bows and arrows outside of a designated archery facility without a permit.

(b) *Establishment of other rules and regulations.* The department may adopt additional rules, regulations and policies governing the management and operation of park facilities, including the issuance of permits. A current copy of those rules and regulations shall be maintained on file in the administrative offices of the department. A violation of those rules is not subject to the enforcement provisions of subsection 1-4(b) of this Code.

(c) *Enforcement.* Any violation of the provisions or terms of this ordinance, except as described in subsection (b) immediately above, shall be a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(b) of this Code, in addition, the following non-exclusive remedies are available to the department:

(1) The director or his or her designee shall have the authority to exclude from park facilities any person acting in violation of this article or the rules, regulations and policies adopted by the department. Any failure of such person or persons to then abandon the park facilities may be reported to the Plano Police Department; or

(2) Where the violator has obtained a permit:

a. Violations of permit provisions may result in the director or his or her designee immediately cancelling or discontinuing the permitted activity; or

b. Violations of permit provisions may result in future permit requests being denied; or

c. Other restrictions or provisions may be added to the permit or future permits.

(Ord. No. 2000-8-32, § I, 8-28-00; Ord. No. 2002-9-35, §§ II, III, 9-23-02; Ord. No. 2003-5-4, § I, 5-6-03; Ord. No. 2003-9-48, § III, 9-22-03; Ord. No. 2006-1-22, § III, 1-23-06; Ord. No. 2007-9-13, § II, 9-14-07; Ord. No. 2009-4-22, § I, 4-27-09; Ord. No. 2012-11-19, § VI, 11-26-12; Ord. No. 2013-8-6, § I, 8-12-13; Ord. No. 2017-1-6, § IV, 1-9-17; Ord. No. 2017-10-4, § II, 10-23-17; Ord. No. 2018-6-4, § II, 6-12-18; Ord. No. 2022-5-3, § V, 5-9-22)

Sec. 15-5. Permit application procedure.

(a) A person wishing to conduct an activity in a park facility which requires a permit under sections 15-3 and 15-4 of this Code shall file an

application with the director. The application shall at a minimum provide the following information:

(1) The name, address, and telephone number of the applicant. If the use or activity is to be conducted for, on behalf of, or by any person or organization other than the applicant, then the name, address and telephone number of that person or organization must be provided;

(2) The date(s) and hours for which the permit is requested;

(3) Type of proposed use or activity;

(4) The park facility and the portion of the park facility desired to be used to conduct the proposed use or activity;

(5) An estimate of the anticipated attendance;

(6) Any requested site support for the permitted activity, including the need for additional sanitary and refuse facilities; and

(7) Any additional information required by the director for organizational, health, safety and welfare purposes of the city related to the size and nature of the event.

(b) Permit applications shall be filed with the director for consideration not less than thirty (30) business days nor more than three hundred sixty-five (365) days before the date of the proposed use or activity, except as otherwise provided in the rules and regulations of the City of Plano Parks and Recreation Department or if waived in writing by the director. The director shall evaluate the application and render a decision in accordance with section 15-6 within five (5) business days of receipt of such request.
(Ord. No. 2000-8-32, § I, 8-28-00; Ord. No. 2013-8-6, § I, 8-12-13)

Sec. 15-6. Reasons for permit denial.

(a) Upon receiving such written application, the director must grant a written permit to use the designated park facility unless:

(1) The proposed activity or use of the park facility will unreasonably interfere with or detract from the general public use and enjoyment of the park facility; or

(2) The proposed activity or use of the park facility will unreasonably interfere with or detract from the public health, safety or welfare; or

(3) The park facility requested by the applicant has been reserved for another activity or for use at the day and hour requested in the application; or

(4) False or misleading information is contained in the application or required information is omitted; or

(5) The proposed activity or use would violate any federal, state, or municipal law, or

(6) The nature of the proposed activity or use, equipment needed for the event, and/or level of attendance would likely cause unreasonable or undue environmental damage to the park facility.

(b) The director may impose reasonable conditions or restrictions on the granting of a permit including but not limited to any of the following:

(1) A requirement that the applicant post a security deposit as determined reasonable by the director for the repair of any damage to the park facility or the cost of clean up or both. The amount of the security deposit shall be based upon the nature, attendance, and duration of the permitted activity;

(2) A requirement that the applicant pay a fee as set by the director to defray the cost of furnishing adequate city personnel at the proposed use of activity;

(3) A requirement that the applicant furnish additional sanitary and refuse facilities that may be reasonably necessary, based upon the use or activity for which the permit is being sought;

(4) A requirement that the applicant pay a fee as set by the director to cover the administrative costs of the permit application and site support by the city at the proposed use or activity.
(Ord. No. 2000-8-32, § I, 8-28-00)

Sec. 15-7. Functions where security precautions necessary.

If the director determines that the conduct of the permitted activity may reasonably cause injury to persons or property, or be detrimental to the health, safety and welfare of the public, the director may require that additional security precautions be taken to permit the use of the designated area. In such event, the director may

impose a fee defray the cost of furnishing adequate security forces by the city at the proposed function.
(Ord. No. 2000-8-32, § I, 8-28-00)

Sec. 15-8. Appeal of permit denial or conditional approval.

Decisions of the director regarding the issuance of a permit or the imposition of additional restrictions or conditions upon the granting of a permit may be appealed to the city manager, or in his absence, an executive director. Such appeal shall be in writing and shall be filed within five (5) business days after the issuance of a decision by the director. When making a determination regarding the appeal, the city manager, or in his absence, an executive director, shall consider the application under the standards provided in this article and sustain or overrule the director's decision. The decision of the city manager or executive director shall be issued within five (5) business days and shall be final.
(Ord. No. 2000-8-32, § I, 8-28-00)

Sec. 15-9. Adoption of park master plan; purpose.

(a) The park master plan, having been reviewed by the city council and found to be acceptable and in the best interests of the City of Plano and its citizens is hereby approved and adopted.

(b) The park master plan shall be utilized for the purpose of guiding future acquisition and development of parks within the city.
(Ord. No. 2000-8-32, § I, 8-28-00)

Sec. 15-10. Animals.

(a) It shall be an offense for any person to knowingly do any of the acts specified in this section with an animal in the person's possession, custody or control in or upon any park or park facility, except as otherwise specifically provided:

(1) Ride, drive, lead, or let loose any animal, reptile or bird of any kind, except as posted.

(2) Abandon any animal.

(3) Fail to immediately remove and dispose of any excreta an animal produces.

(4) Permit an animal which is not a service animal used to assist the person with a disability to enter or remain inside park facility buildings, swimming facilities, playground areas, sand volleyball courts or other marked boundaries of fields or structures which are demarked separately from the remainder of the park.

(5) Restraints.

a. Permit an animal to run at large; or

b. Fail to keep an animal restrained by a leash not more than six (6) feet long, which leash shall at all times serve as a connection between the animal and the person that accompanies the animal; or

c. Permit an animal to remain unattended; or

d. Tether an animal to any object.

(b) The prohibition in subsection 15-10(A)(5) shall not apply if:

(1) The animal is a police service animal under the supervision of a peace officer in the performance of his official duties; or

(2) The animal is a dog lawfully allowed off-leash at a park facility designated as a "dog park"; or

(3) The animal is training in designated areas for search and rescue purposes that benefit the public good and is in accordance with chapter 4 article XII of this Code"; or

(4) The animal is engaging in activity for which a special event permit has been issued pursuant to the terms of this Code.

(c) The prohibitions in subsections 15-10(a)(1) and 15-10(a)(4) shall not apply if:

(1) The animal is engaging in activity for which a special event permit has been issued pursuant to the terms of this Code.
(Ord. No. 2017-1-6, § V, 1-9-17)

Sec. 15-11. Motor vehicles.

Motor vehicle and motorized device use. All applicable state and local vehicle and traffic laws and ordinances shall continue in full force and effect in all park facilities.

(1) *Motor vehicles.* A person commits an offense by operating, driving, or riding any motor vehicle within a park facility on a surface other than a road, street, or parking lot. This provision is not applicable to city motor vehicles, emergency vehicles, or motor vehicles that have received a permit authorizing its operation.

(2) *Motorized devices.* A person commits an offense by operating, driving, or riding any motorized device in a park facility on a surface other than improved roads, streets, park trails or parking lots. This provision is not applicable to city motorized devices, to motorized devices that have received a permit authorizing their operation, to golf carts operated on a city owned or operated golf course, or to motorized devices used to assist a person who has a physical disability with mobility.

(3) *Speed limit.* A person commits an offense by operating a motor vehicle, motorized device, or bicycle within a park facility at a speed greater than fifteen (15) miles per hour, unless otherwise posted.

(4) *Parking.* A person commits an offense by parking a motor vehicle, other than a city-owned vehicle, within a park facility at any place not designated as a parking area or otherwise authorized by permit. For a motor vehicle in violation of this subsection a citation may be issued and the motor vehicle may be towed and stored at the owner or operator's expense in accordance with state law.

(5) *Overnight parking.* A person commits an offense by parking a motor vehicle within a park facility overnight without a permit. For a motor vehicle in violation of this subsection a citation may be issued and the motor vehicle may be towed and stored at the owner or operator's expense in accordance with state law.

(6) *Freight vehicles.* A person commits an offense by operating or parking a motor vehicle or trailer designated for transporting freight, merchandise, brick, stone, or gravel within a park facility, including parking lots. This provision does not apply to motor vehicles or trailers used in the performance of city construction, repair or maintenance. For freight vehicles in violation of this subsection a citation may be issued and the motor vehicle may be towed and stored at the owner or operator's expense in accordance with state law.

(7) *Double parking.* A person commits an offense by parking a motor vehicle in a manner whereby it occupies multiple parking spaces without a permit. Motor vehicles in violation of this subsection may be issued a citation or towed and stored at the owner or operator's expense in accordance with state law.

(Ord. No. 2017-1-6, § VI, 1-9-17)

Secs. 15-12—15-20. Reserved.

ARTICLE II. PARKS AND RECREATION PLANNING BOARD*

Sec. 15-21. Generally.

(a) The parks and recreation planning board shall consist of nine (9) members, including a chairperson, each of whom shall have one (1) vote. The qualifications of said board members shall comply with the provisions of section 4.07 of the City Charter. A majority of board members shall constitute a quorum. A vote of the simple majority of the quorum shall be required for any action taken by the board.

***Charter reference—**Creation of boards and commissions, § 3.07(f).

State law references—Park board of trustees, Vernon's Ann. Civ. St., art. 6081g-1, § 1 et seq.; creation of offices, Vernon's Ann. Civ. St., art. 1175(1).

(b) The members of the parks and recreation planning board shall be appointed by the city council. Board members shall serve without compensation.

(c) The director of parks and recreation shall provide staff support to the board.
(Ord. No. 86-1-10, § II, 1-13-86; Ord. No. 92-4-51, § II, 4-27-92; Ord. No. 96-10-25, § I, 10-28-96; Ord. No. 98-5-21, § I, 5-26-98; Ord. No. 2019-10-1, § II, 10-14-19)

Sec. 15-22. Officers.

A chairperson shall be appointed by the city council from the membership for a one-year term. The board shall also have a vice chairperson elected by its members for a one-year term.
(Ord. No. 86-1-10, § VI, 1-13-86; Ord. No. 92-4-51, § II, 4-27-92; Ord. No. 2012-6-4, § II, 6-11-12)

Sec. 15-23. Meetings.

The board shall hold quarterly meetings and may meet more frequently as needed for the conduct of its business, and shall establish rules and regulations for the performance of its duties.
(Ord. No. 86-1-10, § VI, 1-13-86; Ord. No. 92-4-51, § II, 4-27-92; Ord. No. 2008-9-10, § I, 9-8-08)

Sec. 15-24. Duties and responsibilities.

The parks and recreation planning board shall have the following duties and responsibilities:

(1) Review and make recommendations regarding the acquisition of park land.

(2) Periodically review and make recommendations regarding the park master plan.

(3) Annually review and make recommendations regarding the parks and recreation capital improvement program.

(4) Review and make recommendations regarding master plans for the development or improvement of parks and recreation facilities.

(5) Analyze the long range parks and recreation facility needs of the community.

(6) Make recommendations regarding parks and recreation board referenda to meet community needs for parks and recreation facilities.

(7) Review and make recommendations regarding the establishment of or revisions to park facility user fees.

(8) Periodically review the effectiveness of Article III—Athletic activities, and recommend changes to athletic policies to the city council at such times as deemed necessary.

(9) Provide opportunities for citizen input regarding appropriate parks and recreation issues of major community importance.

(10) Reserved.

(11) Conduct special studies necessary to effectively plan for the future development of parks and recreation facilities.

(12) Review and make recommendations regarding other appropriate long range planning issues of major community importance.

(Ord. No. 86-1-10, § VII, 1-13-86; Ord. No. 92-4-51, § II, 4-27-92; Ord. No. 2003-5-4, § II, 5-6-03; Ord. No. 2007-2-9, § I, 2-12-07; Ord. No. 2013-8-6, § I, 8-12-13)

Sec. 15-25. Removal of members.

All members of the board are subject to removal in accordance with the city's current policy with regard to required attendance at city board, commission, and committee meetings. In addition, the members of the committee may be removed at any time by the city council with or without cause.
(Ord. No. 86-1-10, § IV, 1-13-86; Ord. No. 92-4-51, § II, 4-27-92)

[The next page is 1049]

Sec. 15-26. Term of office of members.

The term of office for members of the parks and recreation planning board appointed on or after August 2003 shall be two (2) year terms. Terms will expire on October 31 of each year.
(Ord. No. 86-1-10, § III, 1-13-86; Ord. No. 92-4-51, § II, 4-27-92; Ord. No. 2005-4-28, § I, 4-25-05)

Secs. 15-27—15-50. Reserved.

ARTICLE III. ATHLETIC ACTIVITIES

Sec. 15-51. Penalty.

(a) Any sponsoring organization, group or person violating any provision of the rules and regulations contained in this article may be penalized in the following manner:

(1) Any sponsoring organization, group or person may be notified of the violation in a written notice by the parks and recreation department.

(2) Any sponsoring organization, group or person, upon written notification, may be provided an opportunity to resolve the violation determined by the director of parks and recreation or the director's designee.

(3) Any sponsoring organization, group or person violating any of the rules and regulations contained in this article may be refused the scheduled usage of athletic facilities if such action is deemed necessary by the director of the parks and recreation department upon the review and disposition of the violation.

(4) Any violation of the provisions or terms of this ordinance by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(b) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(b) Reserved.

(Ord. No. 84-12-18, § XVII, 12-18-84; Ord. No. 92-2-9, § I, 2-10-92; Ord. No. 94-5-26, § I, 5-23-94; Ord. No. 96-6-29, § I, 6-24-96; Ord. No. 99-1-2, § I, 1-11-99; Ord. No. 2013-8-6, § I, 8-12-13)

Sec. 15-52. Purpose.

This article is hereby adopted to serve as a guide for the comprehensive and effective usage of indoor and outdoor athletic facilities owned, leased, scheduled, or otherwise controlled by the city.

(1) *Outdoor athletic facilities* are defined as lighted and unlighted playing fields or swimming pools programmed for the purpose of conducting practices, league play, tournaments, meets, camps and clinics for competitive and recreational sports that include but are not limited to soccer, football, baseball, softball, swimming, lacrosse, cricket and rugby or any such use as deemed appropriate by the parks and recreation department.

(2) *Indoor athletic facilities* are defined as swimming pools programmed for the purpose of conducting practices, meets and clinics for aquatic activities at the competitive and recreational level or any such, use as deemed appropriate by the parks and recreation department.

(Ord. No. 84-12-18, § II, 12-18-84; Ord. No. 99-1-2, § II, 1-11-99)

Sec. 15-53. Intent.

It is the intent of this article to provide a basis for establishing the following objectives:

(1) A method of communicating the available inventory of allocatable athletic facilities to qualified requesters for usage of such facilities;

(2) Disciplined method of communicating the forecasted and immediate facility needs from users of facilities to the appropriate department within the city administration;

(3) The implementation of a system of facilities allocation producing results most beneficial to the total city;

(4) A program for continuously improving the utilization of existing facilities to the betterment of the total city.

(Ord. No. 84-12-18, § III, 12-18-84)

Sec. 15-54. Policy administration.

The administration of this article shall be the responsibility of the parks and recreation department. The department shall prepare, implement, and enforce such specific rules and regulations for the use of facilities for each sport or type of facility as it deems necessary. The parks and recreation department may report periodically to the parks and recreation planning board on the effectiveness and difficulties of administering this policy. (Ord. No. 84-12-18, § XIV, 12-18-84; Ord. No. 2008-3-10, § I, 3-25-08)

Sec. 15-55. Reserved.

Editor's note—Ord. No. 2003-5-4, § III, adopted May 6, 2003, repealed § 15-55 in its entirety. Formerly, said section pertained to responsibility of parks and recreation board as enacted by Ord. No. 84-12-18, § XV, adopted Dec. 18, 1984; as amended.

Sec. 15-56. Sports seasons.

(a) The following specific sports seasons and primary sports are established for the equitable use and allocation of athletic facilities:

Season	*Primary Sport*	*Secondary Sport*
Spring	*Adult softball*—Fourth Monday in February through third Sunday in May *Youth soccer*—Second Tuesday in February through last Sunday in April; fields unencumbered by Summer sports season to third Sunday in May *Adult soccer*—Second Tuesday in February through third Sunday in May	*Competitive youth baseball/softball*—Third Monday in March through last Sunday in June *Adult baseball*—Third Monday in March through third Sunday in August *Youth and adult lacrosse, rugby, cricket, flag football, field hockey*—Second Tuesday in February through last Sunday in April; fields unencumbered by Summer sports season to third Sunday in May
Summer	*Recreational youth baseball/softball*—First Monday in May through last Sunday in June *Adult baseball and adult softball*—Third Monday in May through third Sunday in August	*Youth and adult cricket, flag football*—Third Tuesday in May through third Sunday in August
Fall	*Youth and adult football*—Third Tuesday in August through second Sunday in November	*Youth and adult soccer*—Third Tuesday in August through second Sunday in November *Youth and adult softball*—Third Monday in August through second Sunday in November *Youth and adult baseball*—Third Monday in August through second Sunday in November *Youth and adult lacrosse, rugby, cricket, field hockey*—Third Tuesday in August through second Sunday in November

(b) The primary sport within each season shall be given first priority with regard to field or facility allocation and scheduling. Secondary sports facilities will be allocated on a space available basis. The director of parks and recreation or the director's designee shall determine the eligibility for classification within primary and secondary sports designations.

(c) Time made available in public swimming pools for competitive or recreational aquatics programs will be allocated on a bi-annual basis with an annual review. The need for more frequent aquatic allocations may be conducted at the discretion of the director of parks and recreation as changes occur in the availability of time within facilities or as new facilities are added.

(d) Sports other than primary or secondary will be addressed as the need arises, subject to:

(1) Facility availability.

(2) Allocated maintenance resources.

(3) Determination by the parks and recreation department of capacity of fields or facilities to withstand additional use.

(e) The youth sports associations may enter into a written agreement with the parks and recreation department that allows use of desig-

nated fields or facilities outside of the official sports season under special circumstances deemed appropriate by the director of the parks and recreation department.
(Ord. No. 84-12-18, § IV, 12-18-84; Ord. No. 90-4-24, § I, 4-23-90; Ord. No. 92-2-9, § I, 2-10-92; Ord. No. 94-5-26, § I, 5-23-94; Ord. No. 99-1-2, § III, 1-11-99; Ord. No. 2003-5-4, § IV, 5-6-03; Ord. No. 2008-3-10, § I, 3-25-08; Ord. No. 2009-4-22, § I, 4-27-09; Ord. No. 2011-2-7, § I, 2-28-11)

Sec. 15-57. Allocations.

(a) Organizations requiring facilities for league games shall submit, in writing, their registration figures at the designated time determined by the parks and recreation department.

(b) The parks and recreation department shall consider all requests and will allocate facilities in the best interest of the city. Guidelines which will be considered may include, but are not limited to,

items listed under subsections (1) through (3) of this section. The director of parks and recreation or the director's designee may also consider any other alternatives in implementing the field or facility allocation for the various users, or make such variations or exceptions as the director deems in the best interest of the city, giving due consideration to the number of participants, facility requirements, nature of the activity, innovation of the program and other relevant factors.

Guidelines

(1) Programs conducted the previous year. Groups who must reduce the number of their allocated fields or facility time from the previous season may be allowed to protect up to fifty (50) percent of fields or facility time of their choice. This alternative is available at the discretion of the parks and recreation department when reduced participation of the user group warrants this type of allocation.

(2) Priority will be given to those individuals who reside within the city limits of the City of Plano. Participation by other individuals, teams and groups may be permitted by the parks and recreation department if facility availability permits.

(3) Teams or sports requesting regular season play or meets with out-of-town teams on facilities owned by, leased or otherwise controlled by the city will be given consideration after fields or facility time has been allocated for all other teams of organizations made up of residents. Participation by such out-of-town teams is subject to approval by the parks and recreation department. If approved, such teams shall pay fees and charges as established by the city council through the city's annual budget process.

(c) The parks and recreation department may place more than one (1) organization on a given facility for the same sport. Primary sports will be accommodated prior to secondary sports.

(d) Any existing organization wishing to initiate a new athletic program must meet with the parks and recreation department at least ninety (90) days prior to the proposed season starting date to discuss the availability of facilities. A new program is defined as any activity that is not currently offered by the requesting organization as determined by the parks and recreation department.

The parks and recreation department will attempt to accommodate new programs according to facility availability and considering participant registration.
(Ord. No. 84-12-18, § V, 12-18-84; Ord. No. 88-1-7, § I, 1-11-88; Ord. No. 92-2-9, § I, 2-10-92; Ord. No. 94-5-26, § I, 5-23-94; Ord. No. 99-1-2, § IV, 1-11-99; Ord. No. 2003-5-4, § V, 5-6-03; Ord. No. 2009-4-22, § I, 4-27-09; Ord. No. 2011-2-7, § I, 2-28-11)

Sec. 15-58. Requirements for organizations using facilities.

All groups or organizations desirous of establishing leagues and utilizing recreational facilities owned, leased, or controlled by the city for competitive or recreational league play must comply with the following requirements:

(1) Be a nonprofit organization serving and operating exclusively for amateur sports competition.

(2) If requested, file a yearly financial report with the parks and recreation department by January 31 each year, such report to include a breakdown of expenses and income;

(3) Have a board of directors with a president or chairman, vice-president, or co-chairman, secretary, and treasurer.

(4) Have on file with the parks and recreation department a copy of the organization's constitution, bylaws which must be in harmony with parks and recreation department policies, a certificate of liability insurance, and maintain a current listing of the organization's board of directors and mutually agreed to points of contact.

(5) Have a policy that permits individuals to file for exemption from registration fees.

(6) Have a non-discrimination policy in which programs operated by the organization are open to all residents of Plano regardless of race, age, socio-economic level, color, sex, national origin, religion, handicap status and geographic residency within the borders of the city.

(7) Have policies that support the safety of its officials, referees and umpires in the performance of their assigned duties.

(Ord. No. 84-12-18, § V, 12-18-84; Ord. No. 90-4-24, § I, 4-23-90; Ord. No. 94-5-26, § I, 5-23-94; Ord. No. 96-6-29, § I, 6-24-96; Ord. No. 99-1-2, § V, 1-11-99; Ord. No. 2003-5-4, § VI, 5-6-03)

Sec. 15-59. Tournaments/meets/camps/clinics/tryouts.

(a) Youth and adult sports tournament, meet, camp, clinic or tryout requests will be considered on a space available basis subject to the following conditions:

(1) The parks and recreation department may restrict the number, size, dates, and locations of tournaments or meets in order to protect field or facility conditions or to prevent overuse of fields or facilities. Defined criteria shall be utilized and communicated by the parks and recreation department in the process to approve or deny tournament, meet, camp, clinic and tryout requests.

(2) Requests for tournament play, meets, camps, clinics or tryouts will be restricted to Plano youth and adult athletic organizations meeting specified requirements of section 15-58, the Plano Convention and Visitor's Bureau, and Plano Parks and Recreation Department. Upon approval, fees shall be charged to the sponsoring organization for the city's standardized services involving lighting, personnel, materials, equipment and contractual resources utilized in support of the tournament, meet, camp, clinic or tryout. The parks and recreation department shall estimate such expenses prior to approval based on the number of teams or participants, scheduled use of fields and facilities, and number of games played or hours of use.

(3) Any request for tournament play or meets, camps, clinics or tryouts must be made in writing by the sponsoring organization no less than thirty (30) days prior to the scheduled tournament or meet. Existing tournaments, meets, camps, clinics or tryouts will receive first consideration. Approval of the requested activity does not guarantee field or pool condition or availability of parks and recreation personnel or equipment. Tournaments, meets, camps, clinics or tryouts with housing needs for teams, officials and administration must submit a plan for accommodating visitors to Plano subject to review by the Plano Convention and Visitor's Bureau that will be factored in the process for the event's approval or denial. Plano Convention and Visitor's Bureau may sponsor events with community economic impact once per sports season at each athletic-oriented facility and pre-empt league scheduling only if notice can be provided to the parks and recreation department prior to the allocation meeting for the respective season.

(4) Prior to fields or facilities being utilized for tournaments, meets, camps, clinics or tryouts, a usage agreement must be signed and on file with the parks and recreation department. Insurance meeting specifications of the city's risk manager is required for events prior to access to athletic fields or facilities.

(b) Inclement weather provisions for outdoor events are as follows:

(1) The parks and recreation department may cancel a tournament, meet, camp, clinic or tryout at any time in the interest of insuring the quality of the fields or pool and safety of the participants.

(2) The decision to cancel a tournament, meet, camp, clinic or tryout shall be made by authorized members from the parks and recreation department. Authorized repre-

sentatives from the event sponsor may be contacted for their input in making the decision.

(3) When the decision to cancel a tournament, meet, camp, clinic or tryout due to inclement weather has been made, the parks and recreation department will notify the event director who will then cancel the activity at selected or all sites.

(4) Whenever possible, activity will first be delayed or postponed. The decision to resume activity will rest with the parks and recreation department.

(5) Failure to comply with this policy may result in the denial of future use of the facilities for tournaments, meets, camps, clinics or tryouts.

(c) Churches, civic organizations, teams based in Plano, businesses located in Plano and individuals residing in Plano may request the use of athletic fields for the purpose of conducting professionally officiated tournaments subject to the following conditions. These conditions also apply to tournaments sponsored by local adult and youth sports organizations, Plano Convention and Visitors Bureau and the Parks and Recreation Department. A designated reservation fee per field will be assessed which will be applied toward the tournament fees and charges. The reservation fee is refundable only in the event of inclement weather as determined by the parks and recreation department.

Tournament Regulations

(1) Tournament use of facilities is subject to availability as determined by the director of parks and recreation or authorized designee.

(2) Designated tournament fees and charges shall be assessed the sponsor and must be paid within three (3) working days prior to the tournament. A tournament bracket must accompany this fee. After the bracket is submitted, no additional teams may be accepted into the tournament.

(3) All adult and youth softball tournaments must be sanctioned by the Amateur Softball Association (ASA) and youth tournaments must be sponsored by locally recognized youth sports organizations meeting the requirements of section 15-58, or be sponsored by the City of Plano's Convention and Visitor's Bureau or Parks and Recreation Department.

(4) If field space allows, more than one (1) tournament may be scheduled on any given date by the parks and recreation department.

(5) The parks and recreation department may designate the maximum amount to be charged for entry fees.

(6) Saturday games may not be scheduled to begin prior to 8:00 a.m. The final game or games may not be scheduled to start after 9:00 p.m. Sunday games may not be scheduled to begin prior to 8:00 a.m. Sunday games shall be complete and lighting extinguished by 9:00 p.m.

(7) No rain dates will be allowed.

(8) No refunds will be allowed after the reservation has been accepted by the parks and recreation department unless weather or city-related maintenance problems result in cancellation.

(9) In the event that it rains within twenty-four (24) hours of the scheduled start of the tournament, permission to play must be gained from the athletic superintendent or designated representative. Only approved drying agents may be used on the fields in the event of rain. At no time may any type of dirt be placed on or removed from the fields.

(10) In the sport of softball, umpires must be members of the Plano Softball Umpires Chapter of Dallas Metro ASA or affiliates. Two (2) umpires must be assigned to each game. In other sports, professional referees or umpires are required meeting certification standards of the sport's sanctioning body.

(11) The sponsoring organization may not provide any type of concession services.

(12) No special maintenance will be done to the fields during the tournament (dragging, marking, etc.) unless agreed to by the parks and recreation department. Tournament sponsors may employ approved independent contractors to drag and mark the fields or prepare the fields with hand tools following guidelines established by the parks and recreation department.

(13) The City of Plano or the Plano Parks and Recreation Department's name shall not appear on any advertisement or promotion of the tournament.

(14) Any individual or team involved in conducting the tournament shall not participate in the tournament as a manager, coach, player, referee or umpire.

(15) The Plano Parks and Recreation Department reserves the right to cancel any tournament reservation at any time should any of the above conditions not be followed.

(Ord. No. 84-12-18, § VI, 12-18-84; Ord. No. 88-1-7, § I, 1-11-88; Ord. No. 92-2-9, § I, 2-10-92; Ord. No. 92-9-19, § V, 9-14-92; Ord. No. 94-5-26, § I, 5-23-94; Ord. No. 96-6-29, § I, 6-24-96; Ord. No. 99-1-2, § VI, 1-11-99; Ord. No. 2008-3-10, § I, 3-25-08; Ord. No. 2011-2-7, § I, 2-28-11)

Editor's note—Ord. No. 2011-2-7, § I, adopted February 28, 2011, changed the title of section 15-59 from "Tournaments/meets" to "Tournaments/meets/camps/clinics/tryouts." The historical notation has been preserved for reference purposes.

Sec. 15-60. Practice sessions.

(a) *Youth practices.* Baseball and softball game fields, unless they have been prepared that day or designated for scheduled use only, may be reserved for practice by sponsoring leagues during identified sports seasons. Game fields for intensive turf sports such as soccer and football, unless they have been designated for scheduled use only, may be reserved for practice on Tuesday, Wednesday and Thursday afternoons or evenings for practice by sponsoring leagues during identified sports seasons. Teams scheduled for practices by sponsoring leagues must be documented with the parks and recreation department for purposes of assessing fees and charges. There shall be no practices upon (1) Plano Independent School District designated game or practice fields, or (2) areas where games and practices have been cancelled due to rain.

(1) Each organization shall require in its bylaws that any team under its jurisdiction, after receiving one (1) warning for violating any part of section 15-60, shall forfeit one (1) league game. Penalties may also be assessed as authorized by section 15-51.

(2) Organizations desiring lighted practice areas shall comply with the following conditions:

a. Practices must be scheduled through the parks and recreation department no later than the Tuesday preceding the Monday through Sunday period in which the practices are to occur.

b. The applicable light usage fee and field reservation fee must be paid.

c. Each organization will schedule their teams during their allotted time frames at each field and not otherwise.

d. Organizations may not schedule more than four (4) teams per field per practice session.

(3) The scheduled turn-on and turn-off of lights shall be the responsibility of the parks and recreation department.

(b) *Adult and general public practices.* All reservations for practices by the general public and adult practices are subject to the following conditions:

(1) Reservation requests must be made through the athletic operations office.

(2) The applicable reservation and light usage fee must be paid at the time the reservation is made.

(3) An approved facility reservation form must be obtained from the parks and recreation department when the fee is paid.

(4) No refunds will be made unless the reservation is cancelled by the parks and recreation department or in case of inclement weather.

(Ord. No. 84-12-18, § VII, 12-18-84; Ord. No. 88-1-7, § I, 1-11-88; Ord. No. 99-1-2, § VII, 1-11-99; Ord. No. 2001-2-14, § I, 2-12-01; Ord. No. 2008-3-10, § I, 3-25-08; Ord. No. 2011-2-7, § I, 2-28-11)

Sec. 15-61. User fees.

(a) The city council has determined that it is necessary and proper to establish and levy user fees to be charged for the use of the city's public parks and recreation facilities.

(b) All individuals or teams who are participants of any city adult or youth athletic activity will pay prescribed user fees as established by the city council. User fees will be deposited by the parks and recreation department into the city's general fund.

(1) It shall be the responsibility of each sponsoring organization to collect all user fees and to submit these fees with corresponding documentation to the parks and recreation department no later than two (2) weeks after the start of season. A delinquent notice shall be mailed to any organization that fails to pay user fees and supply corresponding documentation within two (2) weeks after the start of the season. Delinquent notices shall specify a deadline upon which user groups must submit all user fees and corresponding documentation or pay a late fee of two hundred dollars ($200.00) per day that city offices are open and available to accept payment after the delinquent notice's stated due date. Payments of user fees and any delinquent penalty must be submitted with corresponding documentation or scheduled use of athletic fields may be refused as provided in section 15-51.

(2) Rosters must be available for inspection by the parks and recreation department.

(3) Nonresidents may use Plano facilities as a participant in camps, clinics and classes or on a team in locally sponsored leagues if field availability permits. These individuals or teams will be assessed the nonresident user fee.

(4) Nonresident adults and teams may participate in Plano leagues and athletic activities if they work within the city or worship in Plano when participating, respectively, on a church-sponsored or business-sponsored team and shall pay resident user fees. All other non-resident adults and teams may play in locally sponsored leagues and participate in Plano athletic activities if field availability permits. These individuals and teams will be assessed the appropriate user fee.

(c) Field use reservation fees established by city council shall be assessed per game or per practice for the scheduled use of athletic fields by leagues or athletic activities in which individual or team registration is not documented or cannot be verified.

(Ord. No. 84-12-18, § VIII, 12-18-84; Ord. No. 88-1-7, § I, 1-11-88; Ord. No. 90-4-24, § I, 4-23-90; Ord. No. 92-2-9, § I, 2-10-92; Ord. No. 94-5-26, § I, 5-23-94; Ord. No. 96-6-29, § I, 6-24-96; Ord. No. 2001-2-14, § II, 2-12-01; Ord. No. 2009-4-22, § I, 4-27-09; Ord. No. 2011-2-7, § I, 2-28-11)

Cross reference—User fees, § 15-81 et seq.

Sec. 15-62. Facility maintenance.

Subject to the conditions and provisions set out in this article, maintenance of various athletic facilities owned by the city shall be subject to the following:

(1) Maintenance of all facilities owned by the city will be performed only by the parks and recreation department unless user groups enter into a written maintenance agreement with the parks and recreation department. No modifications, alterations, additions, or deletions, temporary or otherwise, may be made to any facility scheduled by the city unless written approval is obtained from the parks and recreation department in accordance with the policy for construction/maintenance approval process for user groups.

(2) Certain athletic sites or fields as determined by the director of parks and recreation department may receive enhanced maintenance in cooperation with specific user groups. These fields shall be used only on a scheduled basis and shall be identifiable by special signage. These fields or sites may be gated or fenced with controlled access to protect the benefits of enhanced maintenance from unauthorized practices and vandalism.

(Ord. No. 84-12-18, § IX, 12-18-84; Ord. No. 92-2-9, § I, 2-10-92; Ord. No. 94-5-26, § I, 5-23-94; Ord. No. 96-6-29, § I, 6-24-96; Ord. No. 99-1-2, § VIII, 1-11-99)

Sec. 15-63. Casual scheduling.

Casual scheduling is the use of athletic areas by residents, clubs or groups on an organized basis who are not participants in locally sponsored leagues. Any group or resident may request use of an athletic facility through the parks and recreation department when available, provided those who request and are to use the facility reside in the city or work, or worship in the city. Such requests will be considered on a space available basis. The nature of such use shall be purely recreational and not for profit. The applicable light usage fee and an administrative reservation charge will apply. Unscheduled casual access of athletic ball fields or athletic turf areas by teams or drop-in groups is not allowed.

(Ord. No. 84-12-18, § X, 12-18-84; Ord. No. 2003-5-4, § VII, 5-6-03; Ord. No. 2008-3-10, § I, 3-25-08; Ord. No. 2009-4-22, § I, 4-27-09)

Sec. 15-64. Concessions.

The parks and recreation department shall control all concession rights for all parks and facilities. No concession may be sold in any park or facility by any group or individual except with the approval of the parks and recreation director or his designee.

(Ord. No. 84-12-18, § IX, 12-18-84; Ord. No. 88-1-7, § I, 1-11-88; Ord. No. 92-2-9, § I, 2-10-92; Ord. No. 94-5-26, § I, 5-23-94)

Sec. 15-65. Insurance.

Organizations or associations conducting organized leagues, tournaments, practices or other activities must provide and keep in force for the duration of the season or event with an insurance company duly licensed in the State of Texas and rated A- or better by A.M. Best, general liability insurance in an amount specified by the city's risk manager. Insurance limits will be reviewed on an annual basis for leagues and on an activity basis otherwise. In addition, the policy shall include the City of Plano as an additional named insured. No games may be played or activity conducted until an acceptable proof of insurance has been received by the parks and recreation department and reviewed for adequacy by the city's risk manager.

(Ord. No. 84-12-18, § XII, 12-18-84; Ord. No. 88-1-7, § I, 1-11-88; Ord. No. 92-2-9, § I, 2-10-92; Ord. No. 94-5-26, § I, 5-23-94; Ord. No. 2008-3-10, § I, 3-25-08; Ord. No. 2011-2-7, § I, 2-28-11)

Sec. 15-66. Hours and days of use of lights.

Subject to the conditions and provisions set out in this article, the use of lights at various athletic facilities used in activities covered by this article shall be subject to the following:

(1) All use of lights Mondays through Saturdays, whether for practice, tournaments or league games, shall cease and lights shall be turned off at 11:00 p.m. on any and all fields in use by adults and at 10:30 p.m. on any and all fields in use by youth. Use of lights Sundays shall be limited to league games until 7:30 p.m. and tournaments until 9:00 p.m. unless otherwise restricted to protect the quality of turf conditions. Lighting shall be turned on thirty (30) minutes prior to dusk but not earlier than 5:30 p.m. weekdays and 5:00 p.m. weekends.

(2) There shall be no use of athletic field lights for practice sessions on Sundays.

(3) Only with the approval of the parks and recreation director or designee under certain conditions and/or for certain special uses will light usage time be allowed or extended.

(4) All use of lights is contingent upon leagues and tournaments utilizing daylight to schedule practices and games whenever practical.

(Ord. No. 84-12-18, § XIII, 12-18-84; Ord. No. 88-1-7, § I, 1-11-88; Ord. No. 90-4-24, § I, 4-23-90; Ord. No. 92-2-9, § I, 2-10-92; Ord. No. 94-5-26, § I, 5-23-94; Ord. No. 99-1-2, § IX, 1-11-99; Ord. No. 2001-2-14, § III, 2-26-01; Ord. No. 2003-5-4, § VIII, 5-6-03; Ord. No. 2008-3-10, § I, 3-25-08)

Secs. 15-67—15-80. Reserved.

ARTICLE IV. USER FEES*

Sec. 15-81. Establishment of fees.

Fees for the use of parks and recreation facilities as specified in this article shall be established by city council resolution.

(Ord. No. 92-4-51, § III, 4-27-92)

Sec. 15-82. Collection, disposition.

The fees established in this article shall be collected by the parks and recreation department and upon receipt thereof shall be credited to the appropriate funds of the city.

(Ord. No. 92-4-51, § III, 4-22-92)

Sec. 15-83. Fees for residents and nonresidents.

Different fees may be established for residents and nonresidents. In such cases, resident shall be defined as any person residing within the city limits of the City of Plano. Non-resident shall be defined as any person residing outside of the city limits of the City of Plano. Any person residing in the Plano Independent School District but outside of the city limits of the City of Plano is a non-resident.

(Ord. No. 92-4-51, § III, 4-27-92; Ord. No. 2009-4-22, § I, 4-27-09)

Sec. 15-84. Compliance with article required to use facilities.

Any individual or organization not in compliance with this article shall be denied use of the city's parks and recreation facilities or shall be denied participation in a class or activity sponsored by the parks and recreation department.

(Ord. No. 92-4-51, § III, 4-27-92; Ord. No. 92-9-19, § V, 9-14-92)

Sec. 15-85. General facility user fee.

A user fee shall be charged to and paid by program participants. Program participant shall be defined as any person registering for city parks and recreation department sponsored classes, camps, and athletic teams that use facilities owned, leased, or otherwise controlled by the parks and recreation department of the city, as well as any person registering for non-city sponsored athletic teams that use facilities owned, leased, or otherwise controlled by the parks and recreation department of the city.

(Ord. No. 92-4-51, § III, 4-27-92; Ord. No. 2009-4-22, § I, 4-27-09; Ord. No. 2013-8-6, § I, 8-12-13)

Sec. 15-86. Ballfield light fee.

A ballfield light fee shall be charged for the use of the city's ballfield lights and shall be paid by those individuals making use of said lights. Athletic league play for which user fees are paid shall be excluded from the ballfield light fee. Said fee may also be waived by the director of parks and recreation for parks and recreation department sponsored tournaments or special events.

(Ord. No. 92-4-51, § III, 4-27-92)

Sec. 15-87. Swimming pool fees.

Swimming pool fees shall be charged for the use of the city's public swimming pools and shall be paid by those individuals making use of said pools. Said fees may be reduced or waived by the

*__Editor's note—__Ord. No. 92-4-51, § III, adopted April 27, 1992, has been treated as superseding the provisions of former Art. IV, §§ 15-81—15-88. Former Art. IV was concerned with similar provisions and derived from the following legislation:

Ord. No.	Date	Ord. No.	Date
82-9-34	9-27-82	89-4-10	4-10-89
85-3-9	3-19-85	90-3-14	3-12-90
86-1-26	1-27-86	91-1-35	1-28-91
86-12-7	12- 8-86	91-1-36	1-28-91
88-1-30	1-25-88		

director of parks and recreation for parks and recreation department sponsored promotions or special events.
(Ord. No. 92-4-51, § III, 4-27-92)

Note—See editor's note to § 15-88.

Sec. 15-88. Golf course fees.

Golf course greens fees and equipment rental fees shall be charged for the use of the city's municipal golf course and shall be paid by those individuals making use of said golf course and equipment. Said fees may be reduced or waived by the director of parks and recreation for parks and recreation department sponsored promotions or special events.
(Ord. No. 92-4-51, § III, 4-27-92; Ord. No. 92-9-19, § V, 9-14-92)

Editor's note—Ord. No. 92-5-9, § I, adopted May 11, 1992, revised the golf course fees which were formerly set out in § 15-87, but are now maintained on file in the office of the city secretary.

Sec. 15-89. Recreation center fees.

Recreation center fees shall be charged for the rental of recreation center rooms and swimming pools and for the reservation of racquetball/squash courts.
(Ord. No. 92-4-51, § III, 4-27-92; Ord. No. 2009-4-22, § I, 4-27-09)

Sec. 15-90. Tennis facility fees.

Tennis facility fees shall be charged for the use of the city's municipal tennis center and shall be paid by those individuals making use of said tennis center. Said fees may be reduced or waived by the director of parks and recreation for parks and recreation department sponsored promotions or special events.
(Ord. No. 92-12-42, § I, 12-28-92)

Sec. 15-91. Facility fee reductions.

Facility use fees may be reduced for residents of the City of Plano who have limited incomes or who are sixty (60) years of age or older. Procedures for said reductions, including amount of the reduction and eligibility criteria, will be established and administered by the director of parks and recreation.
(Ord. No. 92-12-42, § I, 12-28-92; Ord. No. 2013-8-6, § I, 8-12-13)

Secs. 15-92—15-100. Reserved.

ARTICLE V. LANDSCAPING STREETS*

Sec. 15-101. Exemption.

This article shall not apply to the installation by the city, its officers, agents or employees of landscape materials and/or irrigation facilities within any publicly-owned area or any area dedicated to public use within the city or its extraterritorial jurisdiction.
(Ord. No. 79-6-20, § 6, 6-25-79)

Sec. 15-102. Compliance with article required.

No person shall install landscape materials or irrigation facilities within any portion of a dedicated street, median or other public rights-of-way except in accordance with the provisions of this article.
(Ord. No. 79-6-20, § 1, 6-25-79)

Sec. 15-103. Parks and recreation department to administer article.

The parks and recreation department is hereby authorized and directed to administer and supervise the policies enacted by this article.
(Ord. No. 79-6-20, § 3, 6-25-79)

Sec. 15-104. Irrigation facilities required.

Any person desiring to provide, install and maintain landscape materials within a dedicated median, street or other public right-of-way must also provide and install irrigation facilities for such landscaped areas. Such irrigation facilities shall consist of an adequate number of heads and controllers to properly irrigate all areas landscaped, as determined by the parks and recreation department.
(Ord. No. 79-6-20, § 2, 6-25-79)

*__Cross reference—__Streets and sidewalks, Ch. 19.

Sec. 15-105. Agreement incorporated; terms and conditions adopted as policies.

(a) The terms and conditions of the "Median and Right-of-Way Landscape and Irrigation Agreement," having been reviewed and considered by the city council, are hereby approved in all things. Such agreement is hereby incorporated into the body of this article for all purposes.

(b) The terms and conditions set forth in such agreement are hereby adopted by the city council as policies under which developers shall be permitted to install, provide and maintain landscaping materials and irrigation facilities in dedicated streets, medians or other public rights-of-way.

(Ord. No. 79-6-20, § 4, 6-25-79)

Editor's note—The agreement incorporated in the above section is on file in the office of the city secretary.

Sec. 15-106. Agreement required.

Any person desiring to provide, install and maintain landscaping materials and irrigation facilities within a dedicated street, median or other public right-of-way, must first enter into and execute a "Median and Right-of-Way Landscape and Irrigation Agreement" with the city, substantially according to the terms of the agreement incorporated by section 15-105.

(Ord. No. 79-6-20, § 5, 6-25-79)

Sec. 15-107. Director of parks and recreation to execute agreement.

The director of parks and recreation is hereby authorized to execute, on behalf of the city, a "Median and Right-of-Way Landscape and Irrigation Agreement" with any developer of a residential or commercial subdivision within the city or its extraterritorial jurisdiction desiring to execute such agreement. Such agreement shall be substantially according to the terms of the agreement incorporated by section 15-105.

(Ord. No. 79-6-20, § 5, 6-25-79)

Secs. 15-108—15-115. Reserved.

ARTICLE VI. PLANTING, MAINTAINING TREES, SHRUBS ON PUBLIC PROPERTY*

Sec. 15-116. Grant of authority; coordination with public works department.

The department of the city parks and recreation department and/or his designees, hereafter referred to as the "director," is granted authority, control and supervision over all trees, plants and shrubs planted or growing in or upon the public highways and public places in the City of Plano. This authority includes, but is not limited to, the planting, removal, care, maintenance and protection thereof. The public works department will coordinate with the director and will provide services as required to assure compliance with this article as it relates to streets, alleys, rights-of-way, drainage, easements and other public properties not under direct jurisdiction of the director.

(Ord. No. 89-11-15, § I, 11-13-89)

Sec. 15-117. Planting, preserving, removing, etc.—On public property.

(a) The director shall have the authority to plant, preserve, spray, trim, cable or remove any tree, shrub or plant on any street, alley, public ground or easement belonging to or being under the jurisdiction of the city. If any tree, shrub or plant or any part thereof is in an unsafe condition, is injurious to the common good or to sewer pipes, public utility lines, drainage facilities, pavements, improvements, or is infested and dangerous to other trees, shrubs or plant, authority is hereby given to the director to remove or

*__Editor's note—__Ord. No. 89-11-15, §§ I—VI, VIII, adopted Nov. 13, 1989, not specifically amendatory of this Code, has been codified as Art. VI, §§ 15-116—15-122, of this chapter at the discretion of the editor.

Cross references—Administration, Ch. 2; handbills, § 14-26 et seq.; hazardous material spills, § 14-106 et seq.; landscape development commission, § 16-81 et seq.; streets and sidewalks, Ch. 19; visibility obstructions, § 19-3; utilities, Ch. 21.

order removed said tree, shrub or plant or parts thereof or order to be sprayed said tree, shrub or plant.

(b) It is unlawful to plant or remove, or permit or cause to be planted or removed any tree, shrub or plant on any public street, parkway area, park or other municipal property without the written approval of the director. This prohibition shall not apply to trees, shrubs or other landscaping planted in the parkway area adjacent to residential streets. In any event, no tree, shrub or other landscaping shall interfere with the free passage of vehicles on the street or of pedestrians on the sidewalk or obscure the view of motor vehicle operators of any traffic-control device or street sign, visibility triangle, or otherwise create a traffic hazard and shall at all times comply with city rules, regulations and ordinances. The parkway area is that area lying between the street right-of-way line of any public street and/or alley, and the curb line of the street and/or alley; or if there is no curb line, the paved portion of the street and/or alley. Generally, the parkway area is the area between the edge of the road/curb and the farthest edge of the sidewalk.

(c) It is unlawful for each person owning property adjacent to the parkway area to fail to prune, trim and maintain the trees, shrubs and landscaping in the parkway area adjacent to their property. The city, without incurring liability, reserves the right to prune, trim or remove any tree, shrub or landscaping located in the parkway area. City costs incurred for pruning, trimming, or removing trees, shrubs and landscaping in the parkway area shall remain the responsibility of the adjacent property owner.

(d) Firms contracted with any city department to construct new or additional roadways, utilities or facilities may be exempt from these regulations as may be allowed by said department's approval of construction plans and specifications identifying such construction.
(Ord. No. 89-11-15, § II, 11-13-89; Ord. No. 2002-4-14, § I, 4-22-02)

Sec. 15-118. Reserved.

Editor's note—Ord. No. 2021-9-21, § I, adopted September 27, 2021, repealed § 15-118, which pertained to planting, preserving, and removing plants on private property, and derived from Ord. No. 89-11-15, adopted November 13, 1989; and Ord. No. 2009-4-22, adopted April 27, 2009.

Sec. 15-119. Breaking, injuring, etc., trees, shrubs on public property.

Except to remove, prune, trim or maintain trees, shrubs or landscaping as required by the City of Plano Property Maintenance Code, as amended, or as authorized by the director in writing, it shall be unlawful for any person, firm or corporation to cut or break any branch of any tree or shrub or injure in any way the bark of any tree or shrub growing on any public street, parkway area, park or other municipal property. No person, firm or corporation shall allow any injurious substance such as gas, salt, oil or other harmful substance to come in contact with any public tree, plant or shrub. Franchise utility companies are exempt providing there is an easement or right-of-way legally allowing the best practice pruning or removal of trees to protect the utility from damage caused by overgrown trees or landscaping. Utility companies shall provide advance notice to the city of their intended non-emergency tree pruning schedule and location of impacted area.
(Ord. No. 89-11-15, § IV, 11-13-89; Ord. No. 2002-4-14, § II, 4-22-02; Ord. No. 2009-4-22, § I, 4-27-09; Ord. No. 2021-9-21, § II, 9-27-21)

Sec. 15-120. Attaching objects to public trees.

It shall be unlawful for any person, firm or corporation to attach any cable, wire, rope, sign or any other object to any public tree, plant or shrub without written permission from the director.
(Ord. No. 89-11-15, § V, 11-13-89)

Sec. 15-121. Reserved.

Editor's note—Ord. No. 2002-4-14, § III, adopted April 22, 2002, repealed § 15-121 in its entirety. Formerly, said section pertained to the permit required to plant, prune, etc., trees, shrubs on public property, as adopted by Ord. No. 89-11-15, § VI, adopted Nov. 13, 1989.

Sec. 15-122. Penalty for violation.

Any violation of the provisions or terms of this article by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(b) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(Ord. No. 89-11-15, § VIII, 11-13-89; Ord. No. 2013-8-6, § I, 8-12-13)

Chapter 16

PLANNING AND DEVELOPMENT*

Art. I.	**In General, §§ 16-1—16-15**
Art. II.	**Fees Generally, §§ 16-16—16-40**
Art. III.	**Planning and Zoning Commission, §§ 16-41—16-60**
Art. IV.	**Health Facilities Development Corporation, §§ 16-61—16-80**
Art. V.	**Board of Adjustment, §§ 16-81—16-100**
Art. VI.	**Heritage Resource Preservation, §§ 16-101—16-130**
Art. VII.	**Platting, Developing and Subdividing of Land, §§ 16-131—16-159**
Art. VIII.	**Flood Damage Prevention, §§ 16-160—16-205**
	Div. 1. Generally, §§ 16-160—16-170
	Div. 2. Administration, §§ 16-171—16-174
	Div. 3. Flood Hazard Reduction, §§ 16-175—16-205
Art. IX.	**Reserved, §§ 16-206—16-230**
Art. X.	**Reserved, §§ 16-231—16-250**
Art. XI.	**Housing Infill Program, §§ 16-251—16-260**
Art. XII.	**Park and Recreation Fee, §§ 16-261—16-274**

*__Charter references__—Adoption of plans for slum clearance and rehabilitation of blighted areas, § 3.07(i); plans for areas destroyed by disaster, § 3.07(j); planning and zoning, § 8.01 et seq.

__Cross references__—Administration, Ch. 2; buildings and building regulations, Ch. 6; streets and sidewalks, Ch. 19; utilities, Ch. 21; zoning, App. A; metroplex mayor's committee, § 2-7; sister city program, § 2-8.

__State law references__—Planning and zoning, Vernon's Ann. Civ. St., art. 1011a et seq.; development corporations, Vernon's Ann. Civ. St., art. 5190.6; contracts for flood control and drainage, V.T.C.A. Agriculture Code, § 201.152; Flood Control and Insurance Act V.T.C.A. Water Code, § 16.311 et seq.

ARTICLE I. IN GENERAL

Sec. 16-1. Payments to developers.

In order to save time and ease the crowded city council agenda, the city manager or his designee may authorize payment to any developer in an amount not to exceed five thousand dollars ($5,000.00) for his pro rata share of oversize water and sewer line extensions and paving and drainage improvements required by the city.
(Res. No. 84-8-5(R), § I, 8-13-84)

Sec. 16-2. Retail corner guidelines.

(a) The retail corner guidelines attached to Resolution No. 85-10-7(R), having been reviewed by the city council and found to be acceptable and in the best interests of the city and its citizens, are hereby in all things approved and incorporated in this section by reference.

(b) The retail corner guidelines shall be utilized by the planning and zoning commission, city council, staff and developers, and such other appropriate city personnel and departments, as recommendations and not as rigid standards, as the planning and zoning commission, city council, staff and developers will retain the right and opportunity to propose alternatives to address specific site conditions.
(Res. No. 85-10-7(R), §§ I, II, 10-14-85)

Sec. 16-3. Development amenities policies.

(a) The development amenities policies, having been reviewed by the city council and found to be acceptable and in the best interest of the City of Plano and its citizens, are hereby in all things approved.

(b) The policies shall be utilized by the planning and zoning commission, city council, staff, developers, and such other appropriate city personnel and departments as guidelines, and not as rigid standards, to evaluate development amenities requests on a case-by-case basis, as the planning and zoning commission, city council, staff, and developers will retain the right and opportunity to propose alternatives to address specific site conditions.

(c) Where a policy or recommendation of the policies requires the adoption or amendment of a code or ordinance for implementation, said item will not take effect until the passage of the necessary legislation.
(Res. No. 88-8-3(R), §§ I—III, 8-8-88)

Editor's note—Resolution No. 88-8-3(R), adopted Aug. 8, 1988, was nonamendatory of the Code; inclusion of §§ I—III as § 16-3 was, therefore, at the discretion of the editor. The development amenities policies are set out as an attachment to Res. No. 88-8-3(R) and are kept on file and available for inspection at the office of the city secretary.

Sec. 16-4. Findings policy.

(a) When recommending approval of a zoning petition that does not conform to the mix of uses, density, or building heights as described in the future land use dashboards of the comprehensive plan, the planning and zoning commission must propose specific findings to the city council that will explain why they recommend approval under these circumstances; and

(b) When approving a zoning petition that does not conform to the mix of uses, density, or building heights as described in the future land use dashboards of the comprehensive plan, the city council must make specific findings that will explain why they approve under these circumstances; and

(c) Such findings will be based on adopted city policy, such as the comprehensive plan, or other land-use-related considerations connected to the zoning petition.
(Ord. No. 2021-9-30, § I, 9-27-21)

Secs. 16-5—16-15. Reserved.

ARTICLE II. FEES GENERALLY

Secs. 16-16, 16-17. Reserved.

Editor's note—Ord. No. 89-11-22, § II, adopted Nov. 30, 1989, repealed former §§ 16-16 and 16-17, which pertained respectively to applications for zoning, rezoning, specific use permits, historic landmark designations; refunds, and appeal of denial of zoning request. Such provisions derived from Ord. No. 82-9-36, §§ I—III, adopted Sept. 27, 1982.

Sec. 16-18. Board of adjustment filing fee.

All persons requesting to appear before the board of adjustment must pay a filing fee to the city. A fee of fifty dollars ($50.00) shall be charged for every case filed. The fee shall be collected and administered by the code enforcement department.
(Ord. No. 83-2-5, § IV, 2-14-83)

Sec. 16-19. Fees for zoning, rezoning and other miscellaneous fees.

Any person, firm or corporation desiring to submit for approval or inspection of a zoning case, concept plan, preliminary site plan, site plan, substantially conforming site plan, preliminary or final plat, vacation of plat, replat, amended plat, conveyance plat, minor plat, landscape plan, general tree survey, tree preservation plan, tree mitigation, engineering inspection fee, or traffic impact analysis, shall, at the time said zoning case, study, plan or plat is filed with the planning department or at the time deemed appropriate by said department, pay to the City of Plano a fee in accordance with the following fee schedule. Fees are non-refundable except as noted:

(1)	Amended plat	$250.00 plus $5.00 per lot
(2)	Annexation/disannexation	No charge
(3)	Concept plan	$350.00
(4)	Conveyance plat	$190.00
(5)	Engineering inspection fee	$100.00 per hour with a minimum fee of $200.00. Inspections occurring outside of normal business hours will incur a $160 fee per hour with a minimum fee of $320.00. Grading improvements - One hour per 250 square feet calculated at $0.40 per square foot. Paving improvements - One hour per 250 square feet, or nine hours per 250 square yards, calculated at $0.40 per square foot, or $3.60 per square yard. Sidewalk improvements - One hour per 250 square feet calculated at $0.40 per square foot. Drainage improvements - One hour per 100 linear feet calculated at $1.00 per linear foot. Water and/or wastewater improvements - One hour per 100 linear feet calculated at $1.00 per linear foot.
(6)	Façade plan	$100.00
(7)	Final plat	$250.00 plus $5.00 per lot
(8)	Flood study analysis	$3,000.00
(9)	General tree survey	No charge
(10)	Heritage resource designation	$30.00

(11)	Landscape plan	$100.00 per acre with a minimum fee of $250.00
(12)	Minor plat	$250.00 plus $5.00 per lot
(13)	Municipal setting designation application	$7,500.00
(14)	Preliminary plat	$280.00 per acre for all types of development
(15)	Preliminary site plan	$50.00 per acre with a minimum fee of $250.00
(16)	Priority processing	$2,500.00 in addition to other applicable fees
(17)	Replat	$250.00 plus $5.00 per lot
(18)	Site plan	$100.00 per acre with a minimum fee of $250.00
(19)	Site Plan or Landscape Plan—Substantially conforming	$100.00
(20)	Specific use permit	$250.00
(21)	Street name change (after preliminary plat approval)	$250.00
(22)	Subdivision mapping fees	No charge
(23)	Subdivision name change (after preliminary plat approval)	$100.00
(24)	Traffic impact analysis	$1,000.00
(25)	Tree mitigation	$175.00 per caliper inch, based on the total number of caliper inches to be mitigated
(26)	Tree preservation plan	No charge
(27)	Vacation of plat	$30.00
(28)	Zoning appeal	$110.00 plus $5.00 for each property owner listed on the public hearing notice
(29)	Zoning case withdrawal	Refund 50% of filing fee prior to mailing or publication of a notice of public hearing. After public notice has been given, no refund will be made.
(30)	Zoning requests	
	Residential zoning:	$600.00
	Commercial and multifamily zoning:	$1,500.00 for 0-50 acres, plus $10.00 per acre over 50 acres
	Planned development zoning:	$1,500.00 for 0-50 acres, plus $10.00 per acre over 50 acres
(31)	Zoning verification letter	$50.00

The fees for all concept plans, preliminary and final plats, conveyance plats, and replats apply as well to areas outside the corporate city limits but within the extra-territorial jurisdiction of the City of Plano.

Fees calculated on a per acre basis shall be rounded up to the next whole acre.

(Ord. No. 67-5-1, 5-8-67; Ord. No. 82-9-35, § II, 9-27-82; Ord. No. 86-2-29, § II, 2-24-86; Ord. No. 86-12-27, § I, 12-22-86; Ord. No. 87-1-25, §§ II, III, 1-26-87; Ord. No. 89-3-11, § II, 3-15-89; Ord. No. 89-9-4, § II, 9-11-89; Ord. No. 89-11-22, § III, 11-30-89; Ord. No. 90-9-6, § II, 9-10-90; Ord. No. 91-9-13, § I, 9-11-91; Ord. No. 93-9-64, § II, 9-27-93; Ord. No. 97-9-20, § II, 9-22-97; Ord. No. 98-4-7, § II, 4-13-98; Ord. No. 2008-8-12, § I, 8-25-08; Ord. No. 2010-2-15, §§ I, II, 2-22-10; Ord. No. 2018-11-3, § I, 11-12-18; Ord. No. 2023-8-18, § I, 8-28-23; Ord. No. 2024-3-2, § I, 3-19-24)

Sec. 16-20. Developer's liability.

All developers requesting that the city process liability payments shall be charged a processing fee of one hundred dollars ($100.00) per request

and two (2) percent of the total amount. The department of engineering shall be responsible for the administration and collection of the fee.
(Ord. No. 82-9-37, § I, 9-27-82)

Sec. 16-21. Highway permits.

All persons requesting permission to access highways within the city limits shall be required to obtain a highway permit. Each access request for a highway permit will cost fifty dollars ($50.00). The department of engineering shall be responsible for the administration and collection of the fee.
(Ord. No. 82-9-37, § II, 9-27-82)

Sec. 16-22. Traffic and street signs.

All developers shall pay the city for material and installation costs incurred in placing traffic and street signs in private developments. Developers shall pay the total cost for each sign prior to acceptance of the subdivision. The department of engineering shall be responsible for the administration and collection of the fee.
(Ord. No. 67-5-1, 5-8-67; Ord. No. 82-9-37, § III, 9-27-82)

Secs. 16-23—16-40. Reserved.

ARTICLE III. PLANNING AND ZONING COMMISSION*

Sec. 16-41. Members—Number, appointment.

The planning and zoning commission shall consist of eight (8) regular members. Each member shall be appointed by majority vote of the city council.
(Ord. No. 78-10-14, § 1, 10-9-78)

Sec. 16-42. Same—Qualifications, removal, ex officio members.

Members of the planning and zoning commission shall be resident citizens of the city and qualified voters of the city. Members of the commission may be removed by the mayor with the consent of the city council. The city council may appoint city officials or employees, to be ex officio members.
(Ord. No. 78-10-14, § 3, 10-9-78)

Sec. 16-43. Same—Terms of office.

The terms of office of each member of the planning and zoning commission shall expire on October thirty-first of the appropriate year. Terms shall be two (2) years and/or until a successor is appointed and qualified.
(Ord. No. 78-10-14, § 2, 10-9-78; Ord. No. 79-8-27, § 1, 8-27-79; Ord. No. 89-5-18, § I, 5-22-89; Ord. No. 92-12-43, § I, 12-28-92)

Sec. 16-44. Same—Filling of vacancies.

All vacancies on the planning and zoning commission shall be filled for the unexpired term in the same manner as provided for the original appointments.
(Ord. No. 78-10-14, § 2, 10-9-78; Ord. No. 79-8-27, § 1, 8-27-79)

Sec. 16-45. Duties and powers.

In addition to the duties to be performed by the planning and zoning commission pursuant to Art. 1011f, Vernon's Texas Civ. St., the following are hereby set forth and restated as duties and powers of such commission, among others:

(1) The city council may appoint the chairperson of the planning and zoning commission. The planning and zoning commission shall elect a vice-chairman and secretary from its membership.

(2) The planning and zoning commission shall have powers to make rules, regulations and by-laws for its own government, which shall conform as nearly as possible to those governing the city council. Such bylaws shall include, among other items, provisions for the following:

   a. Regular and special meetings open to the public;
   b. Records of its proceedings to be open to inspection by the public;

*Cross references—Planning and zoning commission designated as impact fee advisory committee, § 2-216; site plans for apartment and commercial developments, § 6-20.

State law reference—Zoning commission, Vernon's Ann. Civ. St., art. 1011f.

c. Reporting to the city council and the public from time to time and annually;
d. Holding of public hearings on its recommendations.

(3) The planning and zoning commission shall have the power and it shall be its duty to make and recommend for adoption a master plan, as a whole or in parts, for the future development and redevelopment of the city and its environment, including rules and regulations governing the development of new land additions and subdivisions in and to the city, and shall have the power and it shall be its duty to prepare a comprehensive plan and ordinance for zoning, unless it shall determine that no zoning is advisable and its report to such effect is accepted by the city council. Such zoning procedures shall be in accordance with Chapter IV, Title 28 of Vernon's Annotated Revised Civil Statutes of the State of Texas.

(4) The planning and zoning commission shall perform such other duties as may be prescribed by ordinance and by the state law.

(Ord. No. 78-10-14, § 4, 10-9-78; Ord. No. 83-10-10, §§ 1, 2, 10-24-83)

Sec. 16-46. Notification of adjacent property owners in case of zoning appeals; payment of fee.

(a) In all cases of appeal of a recommendation for denial of a zoning request by the planning and zoning commission, in accordance with the provisions of the Comprehensive Zoning Ordinance of the city, notice of the appeal before the city council shall be given to all owners of property who were previously notified of the public hearing from which the appeal is taken.

(b) An applicant who wishes to file an appeal, shall file the appeal in writing with the city secretary, in accordance with the provisions of the Comprehensive Zoning Ordinance of the city.

(c) The planning director shall notify the city secretary of the payment of the required fee, and upon receipt of such notification, the city secretary shall schedule a public hearing for the appeal before the city council, in accordance with the provisions of the Comprehensive Zoning Ordinance of the city.

(d) Notice of the public hearing shall be given to each property owner listed on the affidavit to mailing notices not less than ten (10) days prior to the date of the public hearing. The notice shall be deemed to have been given upon deposit of notices at the U.S. Post Office.

(e) Failure to notify each property owner listed on the affidavit shall not constitute grounds for challenge of any decision reached in consideration of an appeal.

(Ord. No. 82-8-13, §§ 1–6, 8-9-82; Ord. No. 82-9-36, § IV, 9-27-82)

Cross reference–Zoning, App. A.

Secs. 16-47–16-60. Reserved.

ARTICLE IV. HEALTH FACILITIES DEVELOPMENT CORPORATION*

Sec. 16-61. Findings.

This city council hereby finds and determines that it is in the public interest and to the benefit of the residents of the city, and the citizens of the state that a health facilities development corporation, to be named the "Plano Health Facilities Development Corporation" (referred to in this article as "the corporation"), be authorized and created under and with the powers granted in the Health Facilities Development Act (referred to in this article as "the act," to act on behalf of the city as its duly constituted authority and instrumentality for the limited public purposes of promoting and developing new, expanded or improved health facilities, being any real, personal or mixed property, or any interest therein, the financing, refinancing, acquiring, providing, constructing, enlarging, remodeling, renovating, improving, furnishing or equipping of which is found by the board of directors of the corporation to be required, necessary or convenient for health care, research and education, any one (1) or more, within this state,

*Editor's note–"Exhibit A," referred to in this article, is on file in the office of the city secretary.

State law reference–Health Facilities Development Act, Vernon's Ann. Civ. St., art. 1528j.

all in order to assist the maintenance of the public health and the public welfare.
(Res. No. 82-8-1(R), § 1, 8-9-82)

State law reference—Creation of corporation, Vernon's Ann. Civ. St., art. 1528j, § 2.02.

Sec. 16-62. Article of incorporation.

The articles of incorporation for the corporation, in substantially the form attached to Resolution No. 82-8-1(R) as Exhibit A, are hereby approved, and the incorporators of the corporation may file the same with the secretary of state in accordance with the requirements and provisions of the act. If the name chosen for the corporation is not available, the incorporators are authorized to change the name without the further approval of the city council.
(Res. No. 82-8-1(R), § 2, 8-9-82)

State law references—Articles of incorporation, Vernon's Ann. Civ. St., art. 1528j, § 2.02; certificate of incorporation, Vernon's Ann. Civ. St., art. 1528j, § 2.03.

Sec. 16-63. Board of directors.

The city council hereby appoints those persons named in Article Seven of the articles of incorporation, attached to Resolution No. 82-8-1(R) as Exhibit A, each of whom is at least eighteen (18) years of age and is a duly qualified elector of the city on the date of his appointment, to serve as the initial members of the board of directors of the corporation, such service to be at all times subject to the powers of the city under the act and the articles of incorporation approved in this article.
(Res. No. 82-8-1(R), § 3, 8-9-82)

State law reference—Board of directors, Vernon's Ann. Civ. St., art. 1528j, § 3.04.

Sec. 16-64. Bonds, notes, other obligations.

Any and all bonds, notes or other similar obligations issued by the corporation shall contain a provision, condition or recital substantially to the effect that they shall never be deemed to be or create an indebtedness or liability or a special, general or moral obligation payable out of any funds of the city, the same to be payable solely out of funds and properties of the corporation.
(Res. No. 82-8-1(R), § 4, 8-9-82)

State law reference—Vernon's Ann. Civ. St., art. 1528j, § 4.06.

Sec. 16-65. Authority and instrumentality of city.

It is intended that the corporation be a duly constituted authority and instrumentality of the city within the meaning of regulations and revenue rulings of the Treasury Department or the Internal Revenue Service of the United States promulgated under Sections 103 and 115 of the Internal Revenue Code of 1954, as amended.
(Res. No. 82-8-1(R), § 5, 8-9-82)

Secs. 16-66—16-80. Reserved.

ARTICLE V. BOARD OF ADJUSTMENT*

Sec. 16-81. Regular members.

There is hereby created a board of adjustment consisting of eight (8) members, each to be appointed by the city council for a term of two (2) years and removable for cause by the appointing authority upon written charges and after public hearing.
(Ord. No. 2008-12-6, § I, 12-8-08; Ord. No. 2009-9-25, § I, 9-28-09; Ord. No. 2013-8-7, § II, 8-12-13)

Sec. 16-82. Alternate members.

City council may appoint three (3) alternate members of the board of adjustment who shall serve in the absence of one (1) or more of the regular members. The alternate members, when appointed, shall serve for the same period as the regular members, which is for a term of two (2) years expiring on October 31 of the appropriate year, and any vacancy shall be filled in the same manner as for regular members, and alternate members shall be subject to removal under the same provisions as regular members.
(Ord. No. 2014-3-7, § II, 3-18-14; Ord. No. 2022-8-1, § I, 8-8-22)

*__Editor's note—__Prior to the reenactment of article V by Ord. No. 2008-12-6, Ord. No. 92-9-33, adopted Sept. 28, 1992, amended this Code by repealing article V, §§ 16-81—16-86, pertaining to the landscape development commission, as derived from Ord. No. 88-8-7, § I, Aug. 8, 1988.

Sec. 16-83. Meetings.

The board of adjustment will have the authority to adopt rules consistent with state law. Meetings of the board of adjustment shall be held at the call of the chairman and at such other times as the board may determine. The chairman, or in his absence, the acting chairman, may administer oaths and compel the attendance of witnesses. All meetings of the board of adjustment shall be open to the public. The board of adjustment shall keep minutes of its proceedings showing the vote of each member upon each question, or if absent or failing to vote, indicate such fact, and shall keep records of its examinations and other official actions, all of which shall be immediately filed in the office of the board of adjustment as a public record.
(Ord. No. 2008-12-6, § I, 12-8-08; Ord. No. 2013-8-7, § IV, 8-12-13; Ord. No. 2014-3-7, § I, 3-18-14)

Editor's note—Ord. No. 2014-3-7, § I, adopted March 18, 2014, redesignated the former section 16-82 as section 16-83. The historical notation has been preserved for reference purposes.

Secs. 16-84—16-100. Reserved.

ARTICLE VI. HERITAGE RESOURCE PRESERVATION*

Sec. 16-101. General and purpose.

(a) *Purpose.* The city council of the City of Plano hereby finds and declares as a matter of public policy that the preservation of the city's heritage, including the recognition and protection of historic landmarks and icons, promotion of the historic culture, enhancement of the public's knowledge of the city's historical past, and development of civic pride in the beauty and noble accomplishments in the past, is a public necessity and is required in the interest of the culture, prosperity, education, and welfare of the people. The aspirations of this article are to:

(1) Safeguard the city's history and culture by promoting the value and importance reflected in recognizing founders of the city, establishing historic landmarks, teaching the evolution of the area, and fostering general heritage preservation;

(2) Protect, enhance, and perpetuate historic resources and districts which represent or reflect distinctive and important elements of the city's cultural, social, economic, political, archaeological, and architectural history;

(3) Promote the city's heritage by educating and attracting tourists and visitors while providing incidental support and stimulus to business and industry;

(4) Enhance and protect property values, recognize the owner's property rights, promote economic development, and foster sustainability;

(5) Promote the city's heritage by encouraging the use of historic resources;

(6) Promote economic prosperity and welfare of the community by encouraging the most appropriate use of historic properties within the city;

(7) Increase historical awareness, including educating the youth of the city, in order to strengthen the culture, prosperity, and welfare of local citizens and visitors to the city;

(8) Encourage stabilization, restoration, maintenance, and improvements of such properties; and

(9) Provide input and advice to the city council regarding matters of heritage preservation.

(b) *Fees, forms, and procedures.* City council may establish a schedule of fees as required to recoup costs related to the administration of this article. The director of planning may establish procedures, forms, and standards with regard to

*__Editor's note—__**Editor's note—**Ord. No. 2019-8-5, §§ I, III, adopted August 26, 2019 repealed the former article VI, §§ 16-101—16-122, and enacted a new article VI as set out herein. The former article VI pertained to similar subject matter and derived from Ord. No. 2018-1-3, adopted January 8, 2018.

Cross reference—Partial exception from ad valorem taxes authorized for certain historic structures, § 20-51 et seq.

State law references—Zoning to preserve historical places, Vernon's Ann. Civ. St., Art. 1011a; acquisition of historic landmarks, Vernon's Ann. Civ. St., Art. 6081g-1.

the content, format, and number of copies of information constituting an application under this article.
(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-102. Enabling authority.

(a) This article is enabled by V.T.C.A. Local Government Code, §§ 211.001 and 211.003:

211.001 Purpose. The powers granted under this subchapter are for the purpose of promoting the public health, safety, morals, or general welfare and protecting and preserving places and areas of historical, cultural, or architectural importance and significance.

211.003 Zoning Regulations Generally. The governing body of a municipality may regulate:

(b) In the case of designated places and areas of historical, cultural or architectural importance and significance, the governing body of a municipality may regulate the construction, reconstruction, alteration or razing of buildings and other structures.
(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-103. Definitions.

Accessory building means a structure or use that is clearly subordinate to and functionally related to the primary building or use, which contributes to the comfort, convenience, or necessity of occupants of the primary building or use on the same platted lot. An accessory building does not include a landscape feature.

Archaeology means the science or study of the material remains of past life or activities and physical site, location, or context in which they are found, as delineated in the Department of the Interior's Archaeological Resources Protection Act of 1979.

Building means a resource created principally to shelter any form of human activity.

Certificate of appropriateness (CA) means a signed and dated document evidencing the approval of the heritage commission or heritage preservation officer when he or she is authorized to approve such certification, for work proposed by an owner or applicant that is subject to this article.

Certified local government (CLG) means a local government certified or recognized by the state historic preservation office (SHPO) and the National Park Service (NPS), as an active partner in the Federal Historic Preservation Program with a demonstrated commitment to preserve, protect, and increase awareness of cultural heritage found in the built environment.

Compatible structure means a structure within a heritage district that was substantially constructed after the district's period of significance, but fits within the existing character of the heritage district to reflect existing buildings in massing, height, scale, material, roof, color, architectural details, and general appearance, or is built in accordance with an approved certificate of appropriateness (CA).

Contributing structure means a structure within a heritage district that was substantially constructed within the district's period of significance and retains a significant amount of its physical integrity and character-defining features including location, setting, design, construction, workmanship, or association with historical persons or events.

Delegation of duties means the list of duties that are delegated to the heritage preservation officer by the heritage commission, as amended from time to time.

Demolition means an act or process (not withstanding acts of God, criminal activity, etc.) which destroys a site or structure in its entirety, or which destroys a part of a site or structure and permanently impairs its structural, historic, or architectural integrity.

Demolition by neglect means allowing a structure, whether intentional or unintentional, to fall into such a state of disrepair that it becomes necessary or desirable to demolish it.

Demolition delay means suspension by the City of Plano of an application for removal or demolition of a structure.

Design standards means guidelines adopted by the city council to provide direction in making determinations that proposed actions are in compliance with this article and consistent in maintaining the historic character of the structure, district, and city.

Designation or *heritage designation* means approval of an "H" or "HD" zoning overlay district on a property or group of properties in combination with the underlying (base) zoning district.

Heritage commission or commission means the heritage commission of the City of Plano.

Heritage district or *heritage resource district (HD)* means an area which includes two (2) or more structures or sites, together with their accessory buildings, fences, and other appurtenances that are of historical, cultural, archaeological, or architectural importance, and that has received designation from the Plano City Council as a unified district. A heritage district may have within its boundaries contributing, compatible, and non-contributing structures. A heritage district or heritage resource district is a local historic district under V.T.C.A. Local Government Code, § 211.0165, as amended.

Heritage landmark or *individually designated heritage resource (H)* means a structure, site, or landmark, together with its accessory buildings, fences, and other appurtenances, of historical, cultural, archaeological, or architectural importance that has received designation from the Plano City Council on its own and not as part of a heritage district. It may or may not also be located within a heritage district as part of a separate designation. A heritage landmark or individually designated heritage resource is a local historic landmark under V.T.C.A. Local Government Code, § 211.0165, as amended.

Heritage preservation or historic preservation means the identification, evaluation, recordation, documentation, acquisition consistent with the Fifth Amendment of the United States Constitution, protection, management, repairs, rehabilitation, restoration, stabilization, maintenance, and reconstruction of historic structures or property, or any one (1) or more of the foregoing activities.

Heritage preservation officer (HPO) means a staff person for the City of Plano whose duties encompass all heritage preservation activities for the city as established in accordance with section 16-106 of the Code of the City of Plano.

Heritage preservation plan or preservation plan means a document created by the heritage commission to provide a current inventory of heritage resources, a list of potential heritage resources, and to make policy recommendations to guide heritage preservation activities for the City of Plano.

Heritage resource means a property or properties designated by the city council as a heritage landmark (H) or heritage district (HD).

Heritage resource survey means a comprehensive survey involving the identification, research, and documentation of buildings, sites, and structures of any historic, cultural, archaeological, or architectural importance.

Landscape feature means an outdoor enhancement for recreational or aesthetic use.

Maintenance means any work for which the purpose and effect of which is to correct or protect with least degree of intervention any deterioration or decay of or damage to a structure or property, or any part thereof, and to repair or replace the same, as nearly as may be practicable, to avoid any further deterioration, decay, or damage, using the same materials or those materials available which are as close as practicable to the original and all of which must comply with applicable codes and ordinances. Maintenance does not include a change in design, material, or outward appearance, but does include in-kind repairs or replacements.

Minor in-kind repairs or replacements means small-scale repairs or replacements to correct minor problems or damage to the exterior of a structure or building, not including a change in design, material, or outward appearance. Examples that satisfy this definition include, but

are not limited to touch up painting, spot replacement of shingles, replacement of a windowpane, caulking, and securing loose boards.

National historic landmark means a nationally significant historic place designated by the Secretary of the Interior for its exceptional value or quality in illustrating or interpreting the heritage of the United States.

National Register of Historic Places means the nation's official list of buildings, districts, and sites, including structures and objects, significant in American history and culture, architecture, archeology, and engineering maintained by the National Park Service and administered on a state-wide basis by the Texas Historical Commission.

Non-contributing structure means a structure within a heritage district that was substantially constructed after the district's period of significance and is not an integral part of the historic, archaeological and architectural fabric of the district or the city, or was substantially constructed within the district's period of significance and does not retain a significant portion of its architectural or design integrity.

Potential heritage resource means a property listed in the preservation plan that, according to preliminary research, may have historical, cultural, archaeological or architectural importance, either as an individual property or as part of a larger district. A potential heritage resource has not received designation, but has the potential to become designated with further historic research, restoration, or property owner interest.

Preservation means the act or process of applying measures necessary to sustain the existing form, integrity, and materials of an historic property. Work, including preliminary measures to protect and stabilize the property, generally focuses upon the ongoing maintenance and repair of historic materials and features rather than extensive replacement and new construction. New exterior additions are not within the scope of this treatment; however, the limited and sensitive upgrading of mechanical, electrical, and plumbing systems and other code-required work to make properties functional is appropriate within a preservation project.

Reasonable rate of return means a reasonable profit or capital appreciation, which may accrue from the use or ownership of a structure or property as the result of an investment or labor.

Reconstruction means the act or process of depicting, by means of new construction, the form, features, and detailing of a non-surviving site, landscape, building, structure, or object for the purpose of replicating its appearance at a specific period of time and in its historic location.

Recorded Texas historical landmark means a state designation for buildings important for their historical associations and which have retained a high degree of their original historic fabric, at least fifty (50) years of age, and retained their original exterior appearance.

Rehabilitation means the act or process of making possible a compatible use for a property through repair, alterations, and additions while preserving those portions or features that convey its historical, cultural, or architectural values.

Relocation means any change of the location of a structure, object, or material thing in its present setting to another setting.

Restoration means the act or process of accurately depicting the form, features, and character of a property as it appeared at a particular period of time by means of the removal of features from other periods in its history and reconstruction of missing features from the restoration period. The limited and sensitive upgrading of mechanical, electrical, and plumbing systems and other code-required work to make properties functional is appropriate within a restoration project.

Secretary of the Interior's standards for rehabilitation means the standards established by the Secretary of the Interior for advising federal agencies on the preservation and rehabilitation of historic properties listed or eligible for listing on the National Register of Historic Places.

State antiquities landmark means a designation made by the Texas Historical Commission and, in the case of privately owned property, with the landowner's permission. This designation can include buildings as well as archeological sites. For a building to be designated as a state archeological landmark, it must first be listed on the National Register of Historic Places. (Ord. No. 2019-8-5, § III, 8-26-19; Ord. No. 2021-8-2, § I, 8-9-21)

Sec. 16-104. Heritage commission—Established.

(a) *Creation.* There is hereby created a commission to be known as the heritage commission of the city, referred to as the "commission" in this article.

(b) *Members, appointments, and qualifications.* The commission shall be composed of seven (7) members appointed by the city council. The seven (7) members shall be appointed from the citizens of the City of Plano, and, if possible, consideration should be given to a property owner from each heritage district and owners of heritage landmarks. All members should have a demonstrated interest, competence, or knowledge in historic preservation, history, planning, architecture, real estate, legal, archaeology, or other related field.

(c) *Terms.* The members serve for staggered terms of two (2) years ending on October 31; however, a member may serve until his or her successor is appointed. Vacancies shall be filled by appointment for the unexpired term only.

(d) *Compensation.* The commission members shall serve without compensation for their service.

(e) *Officers.* The city council shall appoint the chairperson of the commission. The commission shall designate a vice-chairperson from the appointed members.

(f) *Removal from office.* The city council may remove any member from the commission at will, for any or no reason.

(g) *Meetings.* The minutes of each meeting shall be filed in the planning department. All meetings of the commission are open to the public (with the exception of executive sessions as allowed by the Texas Open Meetings Act). Both applicants and remonstrators may give testimony as determined by law, or in accordance with adopted by-laws, or in the discretion of the chairperson if no law or by-law applies. Notice of meetings is published by the commission in accordance with the Texas Open Meetings Act.

(h) *By-laws.* The commission shall adopt the heritage commission rules and procedures to detail the duties of its officers and ensure the efficiency of its meetings.

(i) *Abstentions.* No commissioner who is on the board of a nonprofit organization shall discuss, deliberate or vote on the nonprofit organization's application request for funding and shall abstain on all matters relating hereto.
(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-105. Heritage commission—Powers and duties.

The commission shall have the power to perform the following acts:

(1) Adopt or amend heritage commission rules and procedures, as needed;

(2) Review and take action on all certificates of appropriateness applications for compliance with adopted design standards pursuant to this article;

(3) Periodically review and recommend to the city council the update of criteria to be used in determining whether certain buildings, structures, land, areas, and districts should be designated as heritage resources;

(4) Evaluate applications requesting the designation of a heritage resource;

(5) Recommend to the city council that an application be submitted to begin a city-initiated designation of a heritage resource;

(6) Recommend conferral of recognition upon the owners of heritage resources by means of certificates, plaques, or markers;

(7) Review and make comments to the Texas Historical Commission concerning the

nomination of properties within its jurisdiction to the National Register of Historic Places;

(8) Periodically review and recommend to the city council the update of guidelines or standards to be used in determination of whether to grant or deny certificates of appropriateness for proposed alterations to the exterior of a heritage resource;

(9) Make recommendations to the city council concerning the utilization of state, federal, or private funds to promote the preservation of heritage resources within the city;

(10) Receive, review, and recommend grant applications from area historic preservation agencies, groups, or organizations and make a recommendation to the city council on the recipient's grant and amount to be awarded, if any;

(11) Recommend to city council the acceptance of donations, grants, funds, or gifts of historic property, and recommend to city council the acquisition of heritage resources that cannot otherwise be preserved. The commission shall not obligate the City of Plano without prior consent by city council;

(12) Participate in private, state, and federal historic preservation programs with the consent of the city council;

(13) Encourage public understanding of and involvement in the unique historical, architectural, and cultural heritage of the City of Plano through educational and interpretive programs;

(14) Recommend incentive programs for preservation, such as tax exemptions, and administer the programs at the will of city council;

(15) Update the heritage preservation plan subject to provisions in section 16-108 and recommend to the city council approval of the plan;

(16) Present an annual report to the city council summarizing the work completed during the previous year;

(17) Adopt and amend the delegation of duties, as needed;

(18) Conduct, review, and approve heritage resource surveys; and

(19) Recommend approval of the designation of properties as local historic landmarks and the inclusion of properties in a local historic district without property owner consent pursuant to V.T.C.A. Local Government Code, § 211.0165(a-1);

(20) Make a recommendation to the planning and zoning commission and city council on the designation of a neighborhood conservation district pursuant to article 11.1000 of the zoning ordinance; and

(21) Perform any task otherwise authorized by this article or the City of Plano Zoning Ordinance.

(Ord. No. 2019-8-5, § III, 8-26-19; Ord. No. 2021-8-2, § II, 8-9-21)

Sec. 16-106. Heritage preservation officer—Established.

(a) *Creation.* There is hereby created a staff person to be known as the heritage preservation officer.

(b) *Appointment.* The city manager, or his or her designee, shall appoint a qualified staff person, as outlined in the Secretary of the Interior's professional qualification standards, to serve as the heritage preservation officer.

(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-107. Heritage preservation officer—Powers and duties.

The heritage preservation officer shall have the power and duty to perform the following acts:

(1) Administer this article and advise the commission on matters submitted to the commission;

(2) Set deadlines for submittals to the commission in order to assure adequate staff review time and proper notification of the commission and general public;

(3) Review certificates of appropriateness, and grant or deny same in accordance with the provisions of this article for routine maintenance and for any other action which the commission has specifically delegated review under the delegation of duties or otherwise;

(4) Coordinate the city's heritage preservation activities with those of local, state, and federal agencies as well as other municipal departments and the general public;

(5) Submit to the Texas Historical Commission a list or inventory of designated heritage resources;

(6) File with the appropriate county a list of designated heritage resources;

(7) Assist in developing community outreach programs to support the heritage preservation program;

(8) Manage reporting requirements to monitor and maintain certified local government (CLG) status;

(9) Monitor and report to the Texas Historical Commission all actions affecting any recorded Texas historic landmark, state antiquities landmark, and National Register property, as deemed necessary;

(10) Help maintain and update heritage resource surveys, as needed; and

(11) Perform any task otherwise authorized by this article.

(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-108. Heritage preservation plan.

(a) *Purpose.* The preservation plan is the guiding policy document for the city's heritage preservation program and related activities. The plan elaborates upon and works toward the goals and objectives identified in this article and heritage preservation policy of the comprehensive plan. The plan:

(1) Maintains an inventory of heritage resources;

(2) Develops a list of potential heritage resources that have the potential to become designated with further historic research, restoration, or property owner interest;

(3) Develops a strategic framework which includes goals and objectives of the heritage preservation program; and

(4) Seeks and integrates community feedback.

(b) *Review and recommendation by the heritage commission.* The commission will review the preservation plan and make a recommendation to city council.

(c) *Decision by the city council for plan adoption.* The city council will adopt by resolution the preservation plan.

(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-109. Heritage resource surveys.

(a) *Purpose.* The purpose of completing a heritage resource survey is to identify and gather historic information on buildings, structures, and sites in the city that are at least fifty (50) years or older that may qualify for designation as a heritage resource. The heritage commission, heritage preservation officer, or its designees, may conduct surveys for existing and potential heritage resources, as needed.

(b) *Survey data.* Heritage resource surveys may vary in scope and detail, however all surveys should include, at a minimum, the following information for all properties within the survey:

(1) Location of the property;

(2) Photographs of the property;

(3) Date of construction or approximate date of construction;

(4) Architectural style of the structure;

(5) Defining architectural details, including their materials, color, and condition; and

(6) Accessory structures and landscape features.

(c) *Building category and integrity evaluation.* After information for the heritage resource survey is compiled, the heritage commission shall review the properties surveyed to determine:

(1) If based upon the age of the structure and its historical, architectural, or cultural significance, the buildings are historic or non-historic;

(2) Whether the properties would be classified as contributing, compatible, or non-contributing to the surveyed area or the overall history and character of the city or other jurisdiction should the area be designated as a heritage district; and

(3) To what extent each structure retains its key, character-defining features.

A heritage resource survey map showing the location of all potential contributing, compatible, and non-contributing structures should be included with the survey.

(d) *Approval.* The heritage commission shall approve the results of a heritage resource survey. Approval of a survey shall not establish any additional restrictions upon the properties within the survey, nor shall the structure categorization make any property within the survey eligible for any potential heritage tax exemptions, unless or until a property or group of properties are designated as a heritage resource through the procedure in section 16-110 of this article.
(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-110. Designation of heritage resources—Criteria.

(a) *Purpose.* The purpose of designating a heritage resource is to bring it to the attention of the general public and protect it from inappropriate changes or demolition.

(b) *Criteria for designating heritage landmarks.* Any building, structure, site, or object, must be at least fifty (50) years old and must substantially comply with two (2) or more of the following:

(1) Possesses significance in history, architecture, archeology, or culture.

(2) Is associated with events that have made a significant contribution to the broad patterns of local, regional, state, or national history.

(3) Is associated with events that have made a significant impact in the city's past.

(4) Represents the work of a master designer, builder, or craftsman.

(5) Embodies the distinctive characteristics of a type, period, or method of construction.

(6) Represents an established and familiar visual feature of the city.

(7) Is identified with a person who significantly contributed to the culture and development of the city.

(8) Is a unique location of singular physical characteristics representing an established and familiar visual feature of a neighborhood, community, or the city.

(c) *Criteria for designating heritage districts.* A district may be designated if it includes two (2) or more structures or sites at least fifty (50) years old, together with their accessory buildings, fences, and other appurtenances that are of historical, cultural, archaeological, or architectural importance and substantially complies with all of the following:

(1) Contains properties and an environmental setting which meet two (2) or more of the criteria for designation of a heritage landmark;

(2) Constitutes a unique area of the city, such as a neighborhood or business center; and

(3) Contains two (2) or more properties that have been classified as contributing as part of a heritage resource survey.

(d) *Heritage resource survey map.* All proposed heritage districts shall contain a map illustrating the location of all contributing, compatible, and non-contributing properties and structures within the district as informed by the completion of a heritage resource survey.

(e) *Original construction site.* Listed structures should typically remain on the original construction site. In the event that a potential heritage resource structure has been moved, the commission shall determine if the structure can be designated. A priority listing of potential relocation sites is referenced in subsection 16-116(c)(9).

(f) *Criteria for removing a heritage resource designation.* The designation of a heritage landmark or heritage district, whether in whole or in part, may be removed if the heritage resource no longer complies with the criteria for designation in subsections 16-110(b) and (c) of this article, and:

(1) A heritage landmark located outside of a heritage district has been relocated or involuntarily destroyed and on-site new construction would not fit within the historic character of the site or the surrounding area.

(2) A heritage resource located within a heritage district has been involuntarily destroyed, relocated outside of the heritage district, or has lost its historic integrity, and where removal of the designation would not create a gap, hole, or other irregular shape in the boundaries of a heritage district that would be detrimental to the existing character of the district as a whole.

(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-111. Designation of heritage resources—Procedure.

(a) *Property owner-initiated designation.* Any person or corporation having a proprietary interest in a property may submit an application to designate the property as a heritage resource or heritage district. Applications shall be made in writing on a form suitable to the planning department and accompanied by payment of the appropriate fee to be charged by the City of Plano, Texas, for administering the application.

(1) *Signature requirements:* Heritage landmarks. Application for designation of a heritage landmark shall require the signatures of all owners of the property, or their authorized agents.

(2) *Signature requirements:* Heritage district. Applications for designation of heritage districts must contain the signatures of property owners, or authorized agents, of at least sixty (60) percent of the total number of lots or parcels of land in the proposed district boundaries, as determined by the most recently approved municipal tax roll in which the district is located.

(b) *City-initiated designation.* The heritage commission or planning and zoning commission may recommend to the city council an application be submitted to designate any property, structure, site, or district within the incorporated limits of the City of Plano as a heritage landmark or heritage district. The city council may, on its own motion, direct city staff to initiate designation proceedings. Upon approval of such motion, the heritage preservation officer shall prepare a heritage resource designation application and zoning petition on behalf of the City of Plano.

(c) *Property owner consent requirements.* Pursuant to V.T.C.A. Local Government Code, § 211.0165, designation of heritage landmarks and heritage districts shall require:

(1) Written consent of all property owners within the boundaries of the proposed landmark or district designation, as appropriate, which may be withdrawn at any time in the process; or

(2) A three-fourths (¾) vote of approval by the heritage commission, a review by the planning and zoning commission, and a three-fourths vote of approval by the city council.

(d) *Heritage resource designation impact statement.* At least fifteen (15) calendar days prior to the public hearing at the heritage commission for designation of a heritage resource, staff shall provide the property owner(s) with a heritage resource designation impact statement that includes:

(1) Regulations that are authorized to be applied to the heritage resource after the designation;

(2) Procedures for the designation;

(3) Tax benefits that are authorized to be applied to the heritage resource after the designation, if any; and

(4) Rehabilitation or repair programs offered by the City of Plano for a heritage resource, if any.

(e) *Review and recommendation by the heritage commission.* Upon staff's acceptance or completion of an application, the heritage preservation officer shall schedule a public hearing at the next practicable heritage commission meeting. At least ten (10) calendar days prior to the Heritage Commission meeting, a written courtesy notice of the public hearing shall be sent to all owners of real property within five hundred (500) feet of the property or properties on which the designation is proposed. The heritage commission shall make a recommendation to the planning and zoning commission as to whether or not the property, district, or site is eligible for heritage resource designation according to the criteria in section 16-110 of this article and the merits of the application.

(f) *Review and recommendation by the planning and zoning commission.* Upon receiving a recommendation by the heritage commission, the matter shall be scheduled by staff for a public hearing before the planning and zoning commission. The matter shall proceed in the same manner as a petition for the amendment of the zoning ordinance. The planning and zoning commission will consider the criteria for designation specified in the zoning ordinance.

(g) *Decision by the city council.* The matter shall proceed to the city council in the same manner and in the same instances as a petition for the amendment of the zoning ordinance, except for the procedural requirements in subsection 16-111(c). In the event that the city council approves the amendment to the zoning ordinance, the property shall be designated "H" for a heritage landmark or "HD" for a heritage district. If the city council does not approve the designation, the procedure for successive applications for petitions for the amendment of the zoning ordinance for a particular tract of property shall apply.

(h) *Decision recordation.* Upon passage by the city council of an ordinance designating property as "H" or "HD," the city secretary shall file a copy of the ordinance with the appropriate county clerk, in accordance with state law, and the appropriate county tax assessor, together with a written notice briefly stating the fact of the designation and shall send a copy of such notice by certified mail to the owner of the affected property. Designated properties, districts, or sites shall be governed by the comprehensive zoning ordinance of the city and the ordinance establishing the heritage resource.

(i) *Amendment or removal.* The same application and procedure that is followed for the designation of heritage resources shall apply for amendment or removal of the designation, except:

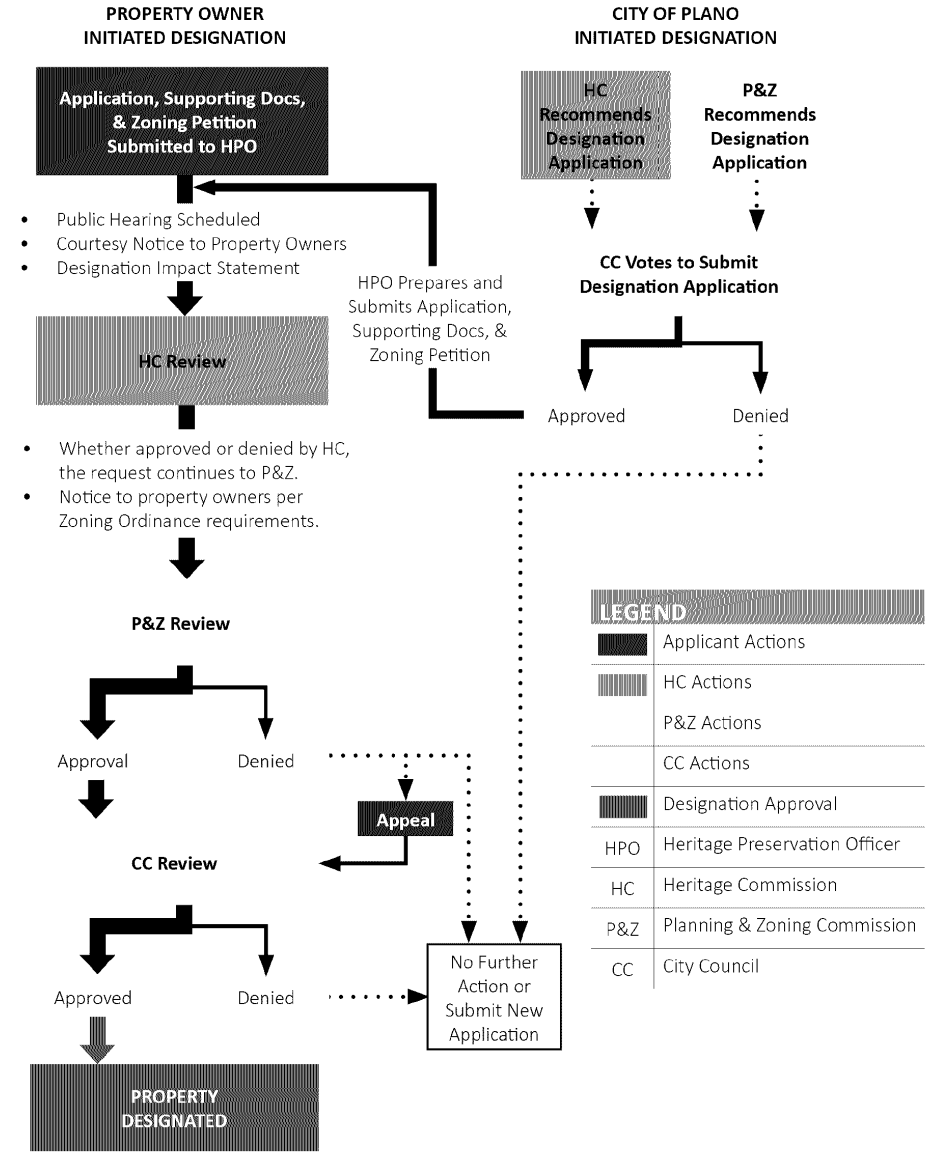
(1) An owner of any individual property within a heritage district may submit an application to remove only their property from the district without requiring the signatures of at least sixty (60) percent of the total number of lots of parcels of land within the district boundaries.

(2) An owner of any individual property within a heritage district may submit an application to amend the categorization of their property as contributing, compatible, or non-contributing without requiring the signatures of at least sixty (60) percent of the total number of lots or parcels of land within the district boundaries.

(3) The commission or the heritage preservation officer may initiate amendments to a heritage landmark or heritage district ordinance without a motion from city council as described in subsection (b) above.

Exhibit 1 – Summary of the Heritage Resource Designation Procedure

Date specific requirements are located in Section 16-111. In the case of conflict between Exhibit 1 and the ordinance language, the ordinance language shall prevail.



"

(Ord. No. 2019-8-5, § III, 8-26-19; Ord. No. 2021-8-2, § III, 8-9-21)

Sec. 16-112. Certificate of appropriateness—Review required.

(a) *Purpose.* The intent of the certificate of appropriateness is to ensure that the integrity and character of Plano's heritage resources are maintained.

(b) *Review required.* No person or entity shall carry out any construction, reconstruction, alteration, restoration, rehabilitation, stabilization, repair, site improvements, demolition, or relocation of any heritage resource which affects the exterior appearance of any structure without obtaining a certificate of appropriateness issued by the commission or heritage preservation officer, as appropriate, for the following types of work:

(1) Repair (other than maintenance), reconstruction, alteration, addition, stabilization, restoration, or rehabilitation;

(2) New construction on real property excluding public rights-of-way;

(3) Material changes in any doors, roofs, windows, masonry work, woodwork, light fixtures, signs, sidewalks, fences, steps, paving, and/or other exterior elements visible from a public right-of-way which affect the appearance and compatibility of the structure or property; or

(4) Demolition, removal, or relocation of a heritage resource, including any accessory buildings or landscape features.

(c) *Maintenance and minor in-kind repair and replacements.* Nothing in this article should be construed to prevent maintenance or minor in-kind repair of any exterior architectural feature of a heritage landmark or structure located in a heritage district. Repairs shall be made in accordance with the design standards established by the city council.

(d) *Emergency repair.* If a heritage resource is unexpectedly damaged and the heritage preservation officer determines that additional deterioration is likely to occur without immediate repair, the heritage preservation officer may authorize the property owner, or agent on behalf of the property owner, to take temporary measures to stabilize and protect the structure. In such cases, the property owner, or agent on behalf of the property owner, shall apply for a certificate of appropriateness within ten (10) calendar days of completion of the emergency corrective measures. The corrective measures authorized under this subsection shall not permanently alter the architectural features of the heritage resource.

(e) *Building permit and site plan approval.* Unless where otherwise excepted by this article, a certificate of appropriateness must be approved prior to issuance of any building permit or site plan approval. The certificate of appropriateness application shall be in addition to, and not in lieu of, any required building permit. Issuance of any necessary permits and approval of any plans from the building inspections, planning, public works, or environmental health departments are required with an approved certificate of appropriateness before work can commence.
(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-113. Certificate of appropriateness—Criteria.

In considering an application for a certificate of appropriateness, the commission shall be guided by design standards/guidelines, where established for a heritage district, and the Secretary of Interior's standards for rehabilitation of historic buildings:

(1) Every reasonable effort shall be made to adapt the property in a manner that requires minimal alteration of the building, structure, object, or site and its environment.

(2) The distinguishing original qualities or character of a building, structure, object, or site and its environment shall not be destroyed. The removal or alteration of any historic material or distinctive architectural feature should be avoided when possible.

(3) All buildings, structures, objects, and sites shall be recognized as products of their own time. Alterations that have no

historical basis and which seek to create an earlier appearance shall be discouraged.

(4) Changes, which may have taken place in the course of time, are evidence of the history and development of a building, structure, object, or site and its environment. These changes may have acquired significance in their own right, and this significance shall be recognized and respected.

(5) Distinctive stylistic features of examples of skilled craftsmanship, which characterize a building, structure, object, or site, shall be kept where possible.

(6) Deteriorated architectural features shall be repaired rather than replaced, wherever practicable. In the event replacement is necessary, the new material should reflect the material being replaced in composition, design, color, texture, and other visual qualities, where practicable. Repair or replacement of missing architectural features should be based on accurate duplications of features, substantiated by historical, physical, or pictorial evidence rather than on conjectural designs or the availability of different architectural elements from other buildings or structures.

(7) The surface cleaning of structures shall be undertaken in the gentlest means possible. Sandblasting and other cleaning methods that will damage the historic building materials shall not be undertaken.

(8) Contemporary design for alterations and additions to existing properties shall not be discouraged when such alterations and additions do not destroy significant historical, architectural, or cultural material, and such design is compatible with the size, scale, color, material, and character of the property, neighborhood, or environment.

(9) Whenever possible, new additions or alterations to buildings, structures, objects, or sites shall be done in such a manner that, if additions or alterations were to be removed in the future, the essential form and integrity of the building, structure, object, or site would be unimpaired.

(10) Proposals for demolition, removal, or relocation of a heritage resource shall be evaluated under the provisions listed in section 16-116 of this article.

(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-114. Certificate of appropriateness—Procedure.

(a) *Application required.* The owner or his/her agent (architect, contractor, lessee, etc.) shall apply for a review of proposed changes and request a certificate of appropriateness.

(b) *Heritage preservation officer review.* The heritage preservation officer may meet with the applicant as needed and review the proposed work according to the decision criteria as described in section 16-113.

(c) *Heritage commission/heritage preservation officer decision.* The commission or the heritage preservation officer, if delegated review authority, shall deny, with or without prejudice, delay as permitted in subsection 16-118(e), approve, or approve with modifications a certificate of appropriateness. The heritage preservation officer shall provide a written notice of the decision to deny, delay, or accept the certificate of appropriateness with any approved conditions to the building inspections department and applicant within ten (10) calendar days after the commission meeting during which the application was considered. If the commission/heritage preservation officer has taken no action within sixty (60) calendar days of original receipt by the planning department, the building permit shall be issued by the building inspection department.

(d) *Changes in building or site plans following a decision.* The applicant shall be allowed to work with the heritage preservation officer to resolve any issues that may arise during the permit review process. No change shall be made

in the application for any building permit after issuance of a certificate of appropriateness without resubmittal to the heritage preservation officer.

(e) *Appeal.*

(1) *Appeal of heritage preservation officer decision.* The applicant may appeal the decision of the heritage preservation officer to the commission by filing a written request with the director of planning within thirty (30) calendar days of the receipt of a written notice of the action taken by the officer. The heritage preservation officer shall schedule the appeal for the next practicable commission meeting.

(2) *Appeal of heritage commission decision.* If the commission has denied the certificate of appropriateness, the applicant, the director of planning, or two (2) members of the city council may file in writing a notice of appeal to the city council with the director of planning within thirty (30) calendar days after the date upon which the commission notified the applicant of its decision. Such notification may take place by means of an oral ruling by the commission at the public meeting. Written notice of any appeal shall be sent to the property owner. The notice of appeal shall set forth in clear and concise fashion the basis for the appeal. The city secretary shall place the appeal on the next practicable city council agenda, and the applicant shall be notified of the date of the hearing. The city council, utilizing the criteria described in section 16-113, shall deny, with or without prejudice, or approve, with or without conditions, or remand the item to the commission for further proceedings consistent with city council's decision.

(f) *Resubmittal following a decision.* If the commission is silent as to whether the denial is with or without prejudice, then the denial will be deemed to be without prejudice. All denials made by heritage preservation officer shall be deemed as without prejudice. After a decision is reached by the commission denying, with prejudice, an application for certificate of appropriateness, where no appeal is made to the city council, a resubmittal of application will not be accepted for additional hearing within a twelve (12) month period from the date of final decision except upon written request by the applicant indicating the incorporation of changes in plans and specifications to the original application as recommended by the commission. Denial of a certificate of appropriateness without prejudice permits reapplication immediately.

(g) *Expiration.* Every certificate of appropriateness issued pursuant to this section shall expire and be void if the authorized work has not commenced within one (1) year from the date of approval or is suspended or abandoned at any time after the work commenced for a period of one hundred eighty (180) calendar days. Failure to complete the work within the required time, including any extension(s), may result in the revocation of the certificate of appropriateness. Following expiration or revocation, approval of a new certificate of appropriateness application is required to commence construction.

(h) *Extensions.* If work has not commenced, or has commenced but a delay greater than one hundred eighty (180) calendar days is anticipated, extensions may be granted by the heritage preservation officer for any period up to one (1) year. No combination of extensions shall exceed one (1) year from the original expiration date. Requests for extensions shall be submitted in the form as required by the heritage preservation officer prior to the date of expiration and should include the following:

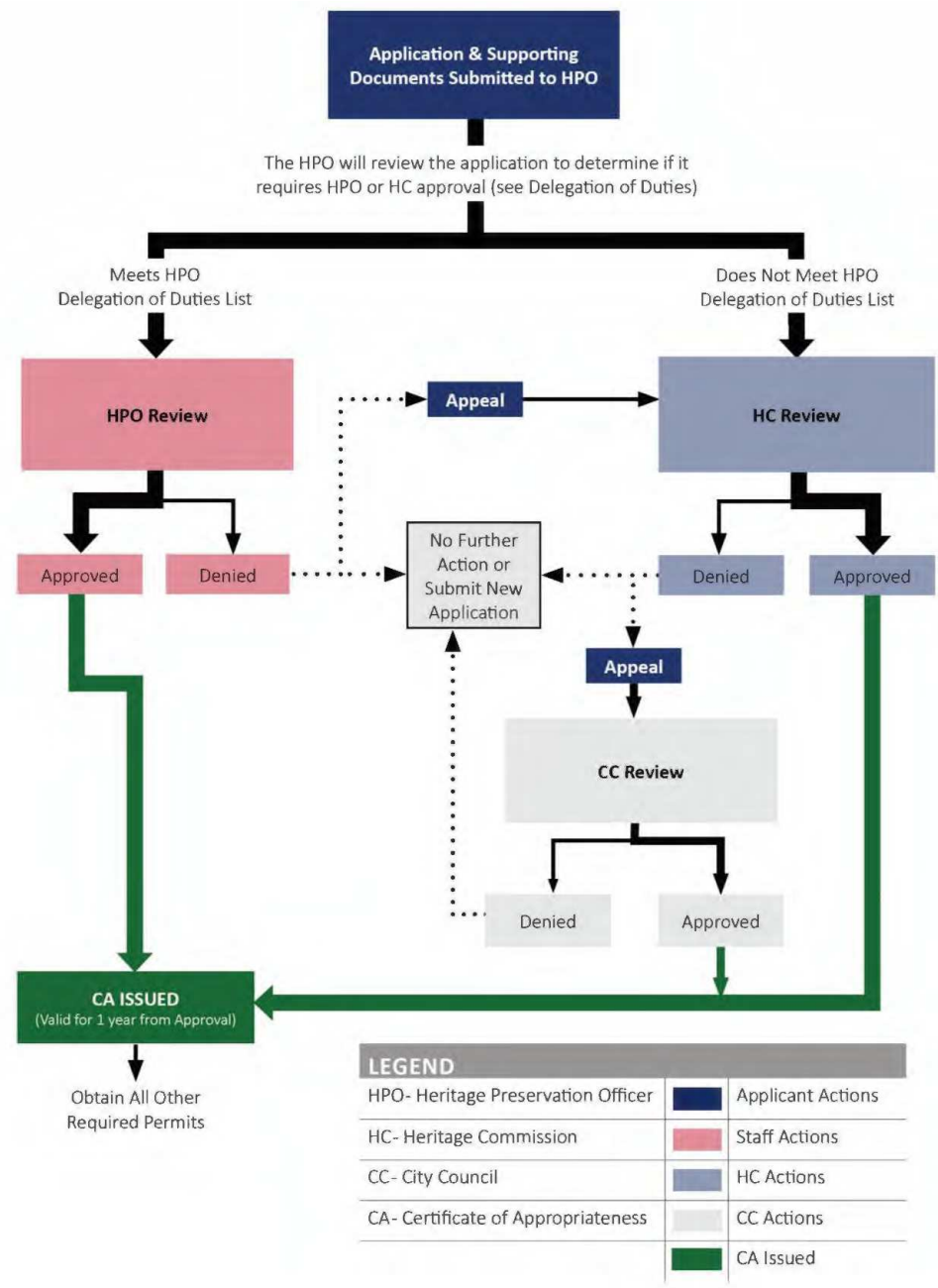
(1) Reason for requesting the extension; and

(2) A timetable for starting/restarting and completing work.

Denial of an extension request may be appealed to the heritage commission. The requested extension shall be scheduled for consideration at the next practicable commission meeting.

Exhibit 2—Summary of the Certificate of Appropriateness Procedure

Date specific requirements are located in section 16-114. In the case of conflict between exhibit 2 and the article language, the article language shall prevail.



(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-115. Demolition, removal, or relocation—Review required.

(a) *Purpose.* It is the intent of this and succeeding sections to preserve historic and architectural resources of the city through limitations on demolition and removal of heritage resources to the extent it is economically feasible, practical, and necessary. The demolition or removal of heritage landmarks and contributing structures within a heritage district diminishes the city's historic character, significance, and authenticity and is discouraged.

(b) *Review required.* No building permit shall be issued to demolish, remove, or relocate a heritage resource, accessory building, or landscape feature without a certificate of appropriateness. The following resources require demolition review by the heritage preservation officer or heritage commission:

(1) *Heritage landmarks.* The commission shall render a decision to delay, deny, or grant a certificate of appropriateness for demolition, removal, or relocation.

(2) *Contributing structure located within a heritage district.* The commission shall render a decision to delay, deny, or grant a certificate of appropriateness for demolition, removal, or relocation.

(3) *Compatible structure located within a heritage district.* The commission shall render a decision to grant or delay a certificate of appropriateness for demolition, removal, or relocation, and shall not render a decision to deny.

(4) *Non-contributing structure located within a heritage district.* The heritage preservation officer shall render a decision to grant a certificate of appropriateness for demolition, removal, or relocation, and shall not render a decision to deny.

(5) *Accessory buildings and landscape features identified as integral to the historic interpretation or integrity of the heritage resource in an area where a historic resource survey has been conducted.* The commission shall render a decision to delay, deny, or grant a certificate of appropriateness for demolition, removal, or relocation.

(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-116. Demolition, removal, or relocation—Criteria.

(a) *Valid reasons for demolition or removal.*

(1) The heritage resource is a non-contributing or compatible structure within a heritage district;

(2) The subject accessory structure and/or landscape feature is not integral to the historic interpretation or integrity of the heritage resource;

(3) The heritage resource has lost its architectural significance and/or historic integrity;

(4) Preserving the heritage resource creates an extreme economic hardship because there is no economically viable use of the current building;

(5) The structure poses an imminent threat to public health or safety upon determination by the chief building official and agreement by the heritage preservation officer and director of planning; or

(6) The structure poses a threat to public health or safety.

(b) *Valid reasons for relocation.*

(1) The heritage resource is subject to future roadway, capital improvement project, or economic development plans and there are no reasonable alternatives except relocation; or

(2) All other preservation options have been exhausted.

(c) *Criteria for decision.* A decision by the commission to approve or deny a certificate of appropriateness for demolition, removal, or relocation for one (1) of the above reasons shall be guided by:

(1) The historic, cultural, or architectural significance of the building, structure, site, or object;

(2) The historic, cultural, or architectural significance of the building, structure, site, or object to the character of a district;

(3) The difficulty or impossibility of reproducing such a building, structure, site, or object because of its unique design, features, material, detail, or unique location;

(4) Whether the building, structure, site, or object is one (1) of the last remaining examples of its kind in the neighborhood, district, or the city;

(5) Whether there are definite plans for development of the property if the proposed demolition is carried out, and the potential effect of those plans on the character of the district or surrounding area;

(6) Whether the demolition would result in a vacant lot or void in the continuous, historic building facade along the street;

(7) Whether reasonable measures can be taken to save the building, structure, site, or object;

(8) Whether the building, structure, site, or object is capable of earning a reasonable economic return on its value; and

(9) For relocation, whether the property owner has, in good faith, made efforts to relocate the structure in its entirety with a sense of place and time in the following order:

a. On the same site;

b. Within a heritage district, if applicable;

c. Within the City of Plano's municipal boundaries;

d. Within the same county boundaries;

e. Within adjoining county boundaries; or

f. Within the State of Texas.

(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-117. Demolition, removal, or relocation—Required documentation.

An applicant seeking to demolish, remove, or relocate a structure described in section 16-115 must provide necessary documentation as proof to establish the necessity of a certificate of appropriateness. If the applicant is seeking approval for more than one (1) reason, he/she shall provide all documentation required for each reason. The applicant, private persons, organizations, and city departments may submit relevant evidence in addition to the required documentation. The commission may also request additional information beyond the required documentation. Documentation requirements are as follows:

(1) *Required documentation for a compatible or non-contributing structure in a heritage district.* Applicants seeking to demolish, remove, or relocate any compatible or non-contributing structure in a heritage district shall provide the following with their application:

a. Available records depicting the original construction of the existing structure, including drawings, pictures, or written descriptions.

b. Photographic documentation demonstrating the existing condition of the structure.

(2) *Required documentation for a heritage landmark or contributing structure in a heritage district.* Applicants for demolition, removal, or relocation of heritage landmarks or contributing structures in a heritage district shall state one (1) or more of the following reasons for removal, demolition, or relocation, and shall provide the corresponding documentation to substantiate the request.

a. *The heritage resource has lost its architectural significance and/or historic integrity.* An application for demolition, removal, or relocation of a heritage resource that has lost its

architectural significance and/or historic integrity shall include the documentation listed below:

1. Available records depicting the original construction of the existing structure, including drawings, historic photographs, or written descriptions.
2. Documentation of the current condition of the exterior of the existing structure, including drawings, photographs, or written descriptions. Documentation of the current condition of the interior is not required, but may be provided to support the request.
3. Definitive plans for the future development of the property. A certificate of appropriateness application for the future development of the property is strongly encouraged in concurrence with the demolition request.

b. *No economically viable use of the property exists.* An application for demolition, removal, or relocation of a heritage resource based on lack of economic viability shall include the documentation listed below. The city may retain an economic expert knowledgeable in the area of valuation, renovation, redevelopment, and rehabilitation of real estate to review the documentation submitted by each applicant and provide a written report to the commission regarding the economic viability of each property. The application must include:

1. The amount paid for the property and date of purchase;
2. Remaining balance on any mortgage or other financing secured by the property and annual debt service;
3. Real estate taxes for the previous three (3) years and assessed value according to the most recent valuation;
4. All appraisals obtained within the previous two (2) years by the owner or applicant in connection with the purchase, financing, or ownership of the property;
5. The fair market value of the property at the time the application is filed as determined by a licensed appraiser;
6. Any listing of the property for sale or rent, name of the broker/agent, price asked for and offers received, if any, for the previous two (2) years, including relevant documents or affidavits;
7. The price or rent sought by the applicant;
8. Any advertisements placed for the sale or rent of the property;
9. A report from any one (1) or more of the following: an architect, engineer, developer, real estate consultant, appraiser or other real estate profession experienced in rehabilitation of historic property as to the economic feasibility of rehabilitation or adaptive reuse of the existing structure on the property;
10. Any other evidence that shows that the affirmative obligation to maintain the structure or property makes it impossible to realize a reasonable rate of return;
11. Form of ownership or operation of the property (i.e., sole proprietorship, trust, partnership, corporation, joint venture, for profit, not for profit, etc.);

12. A documented report attested to by a certified public accountant that includes the annual gross and net income, if any, from the property for the previous three (3) years; itemized operating and maintenance expenses, depreciation deduction, and annual cash flow before and after debt service, if any, during the same period (commercial properties only); and
13. A statement as to why the structure cannot be moved or relocated to another similar site or within a heritage district.

c. *The structure poses an immediate threat to public health or safety.* If a heritage resource exhibits unsafe and dangerous conditions, poses a fire hazard or other public health or safety risk, and such danger or hazard is so great and so immediate that time normally taken for evaluation of the structure or consideration by the commission should be circumvented to prevent immediate and substantial harm to persons or property, the heritage preservation officer is authorized to approve emergency demolition, or removal of specific structural features that are the source of danger or hazard, upon finding both of the following by the chief building official in consultation with the director of planning:

1. The structure to be demolished, or the structural features to be removed, endanger public health or safety due to the risk of immediate:
   A. Physical damage to adjacent properties or structures from potential structural collapse or from pieces of the structure becoming detached and falling or blowing from the structure due to advanced deterioration or a serious state of disrepair;
   B. Encroachment into or physical damage within abutting public rights-of-way due to the conditions described in item A. above; or
   C. Physical damage to public infrastructure, utilities, or other public facilities.
2. There is no reasonable way, other than demolition or removal of specific structural features, to eliminate the immediate threat.

d. *The structure poses a threat to public health or safety.* An application for demolition or removal that poses a threat to public health or safety that is not an immediate threat as described immediately above shall include the documentation listed below. The owner must establish the necessary facts to prove demolition is necessary to alleviate a threat to public health and safety. The application must include:

1. Documentation depicting the current condition of the structure, including drawings, photographs, or written descriptions;
2. A study regarding the nature, imminence, and severity of the threat, as performed by a licensed engineer or architect;
3. A study regarding both the cost of restoration of the structure and the feasibility (including architectural and engineering analyses) of restoration of the structure, as performed by a licensed architect or engineer; and

4. An assessment of the property by the property standards division, if requested by the commission or applicant.

A recommendation by the building standards commission may be requested by the heritage commission or applicant.

(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-118. Demolition, removal, or relocation—Procedure.

(a) *Application required.* An owner or his or her designee seeking demolition, removal, or relocation of a structure described in section 16-115 shall submit a certificate of appropriateness—demolition application to the heritage preservation officer. The application must be signed and sworn to by all the owners of the property or their duly authorized representatives.

(b) *Heritage preservation officer review—Non-contributing structures.* If the structure proposed for demolition, removal, or relocation is classified as a non-contributing structure in a heritage district, the heritage preservation officer shall have ten (10) calendar days to approve the application.

(c) *Demolition review hearing—All other structures.* If the structure proposed for demolition, removal, or relocation is a heritage landmark or is classified as a contributing or compatible structure in a heritage district, the heritage preservation officer shall schedule a public hearing for the next practicable commission meeting. At least ten (10) calendar days prior to the public hearing, the applicant(s) shall be given written notice of the hearing to the address provided in the application and a written courtesy notice of the public hearing shall be sent to all owners of real property within five hundred (500) feet of the property or properties on which the demolition, removal, or relocation is proposed. At the hearing, the commission shall review and consider all submitted documents and testimony of any interested parties.

(d) *Demolition review decision.* The commission must render a decision to approve, delay, or deny the application within sixty (60) calendar days of the receipt of the certificate of appropriateness application by the planning department. The heritage preservation officer shall notify the applicant within five (5) calendar days of the final decision. Failure of the commission to decide or suspend said application within the sixty (60) calendar day time limit described immediately above shall be deemed to be approval of the application and the building official shall issue the necessary permits to allow the requested demolition, removal, or relocation.

(e) *Demolition delay.*

(1) In the interest of identifying alternatives to save a structure, the commission may suspend an application for removal, relocation, or demolition of a heritage landmark or contributing or compatible resources within a heritage district. The demolition, removal, or relocation of the structure may be delayed, and, in that event, the application shall be suspended for a period not exceeding ninety (90) calendar days from the date of the demolition review hearing. Within the suspension period, the commission may request an extension of the suspension period by the city council.

(2) If the city council, after notice to the applicant and a public hearing, determines that there are likely to be reasonable grounds for preservation, the city council may extend the suspension period for an additional period not exceeding one hundred twenty (120) calendar days, for a total of not more than two hundred forty (240) calendar days from the date of the certificate of appropriateness application. During the period of suspension of the application, no permit shall be issued for such demolition, relocation, or removal, nor shall any person demolish, remove, or relocate the structure.

(3) During the suspension time of the delay period, the commission may prepare and submit to the applicant a salvage plan,

which may suggest proposals to preserve the site for purposes consistent with this article. The plan may include recommendations for complete or partial tax abatements, tax credits, or authority for alteration or construction not inconsistent with the purposes of this article, and other actions allowable by law. The plan may also include an architectural salvage plan if the structure cannot be saved. The owner shall conduct in good faith with the local and state preservation organizations and interested parties a diligent effort to seek an alternative to removal or demolition. If a reasonable agreement for salvage cannot be obtained with the applicant, then the permits shall be issued for demolition, removal, or relocation at the end of the delay period.

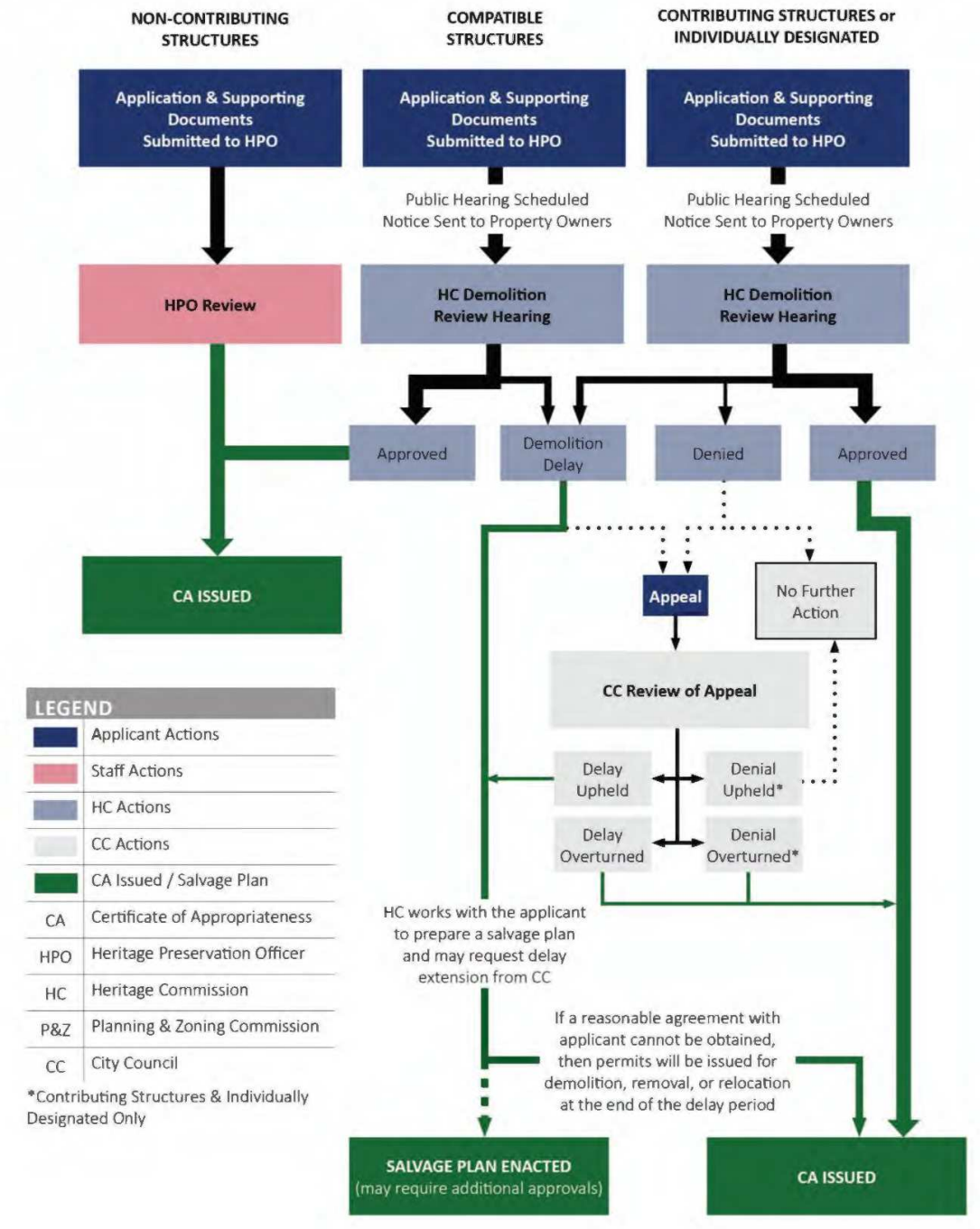
(4) Demolition delay shall not be ordered for properties that request relief based on the fact that they are not economically viable or for properties that are a threat to public health or safety.

(f) *Appeal.* If the commission has denied or delayed the certificate of appropriateness for demolition, removal, or relocation, the applicant may follow the same procedure for appeal set forth in subsection 16-114(e).

(g) *Emergency demolition, removal, or relocation.* If any heritage resource, regardless of classification, is deemed by the chief building official to pose an immediate threat to public health or safety pursuant to subsection 16-117(2)c., a certificate of appropriateness for total or partial demolition, removal, or relocation may be approved by the heritage preservation officer at any time.

Exhibit 3—Summary of Demolition, Removal, or Relocation Procedure

Date specific requirements are located in section 16-118. In the case of conflict between exhibit 3 and the article language, the article language shall prevail.



(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-119. Minimum maintenance requirement and prevention of deterioration.

Heritage resources shall be maintained in accordance with the minimum property, structural, health, and safety standards as adopted by the City of Plano. No owner, which is defined in this section as a person, entity, association, or corporation with ownership, care, custody, or control over a heritage landmark or contributing structure within a heritage district shall permit the property to fall into a serious state of disrepair so as to result in the deterioration of any architectural feature which would produce a detrimental effect upon the character of the heritage district or the life and character of the property itself. Owners shall be required to fulfill a minimum level of maintenance on their property in order to keep it from deteriorating. Any of the following are prima facie evidence of a serious state of disrepair:

(1) Deterioration of exterior stairs, porches, handrails, window and door frames, cornices, entablatures, wall claddings, and architectural details that causes delamination, instability, loss of shape and form, or crumbling.

(2) Deterioration that causes a detrimental effect upon the special character of the district as a whole or the unique attributes and character of the structure.

(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-120. Demolition by neglect.

Failure to provide the minimum maintenance required by section 16-119 of this article may result in a finding of demolition by neglect. If conditions of neglect are present or suspected, the heritage preservation officer, in coordination with the code official, is authorized to lawfully investigate in an effort to prevent further deterioration.

(1) *Procedure to address demolition by neglect.*

a. *Documentation of neglect.* The heritage preservation officer and code official shall document evidence of disrepair or neglect.

b. *Notification of owner.* The owner shall be notified in writing, providing specific information about the alleged deterioration, and requesting that the owner appear before the commission at the next practicable regular meeting of the commission. The notification shall be sent to the owner by registered mail.

c. *Hearing.* The commission shall conduct a hearing. The purpose of the hearing is to enable the commission to make a fuller and more accurate determination of the existence and degree of deterioration and, the urgency for corrective action. The owner may appear before the commission in person or by agent.

d. *Appeal.* An owner may follow the same procedure for appeal set forth in subsection 16-114(e) for applicants to appeal the decision of the commission.

e. *Required action upon finding of demolition by neglect.* If the commission determines that the deterioration has produced a detrimental effect on the architectural significance and/or historic integrity of the property or district, the heritage preservation officer, in coordination with the code official, shall take the following actions:

1. Send notice to the owner, by certified mail, describing the required repairs or stabilization and specifying:

A. The repairs must be started within sixty (60) calendar days; and

B. A date by which the repairs must be completed; as determined by the commission.

2. Meet with the owner within ninety (90) calendar days after the notice is sent, if the heritage

preservation officer determines that it would be useful to discuss progress in making repairs and consider any issues that may delay completion of repairs.

3. Administratively approve a certificate of appropriateness, if necessary, to expedite work.

(2) The heritage preservation officer or code official may refer a demolition by neglect case to the city attorney for enforcement of this section.

(3) The requirements of this section do not prohibit enforcement and prosecution under any other applicable law.

(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-121. Authority to preserve substandard building as historic property.

The city may preserve a substandard building as permitted under V.T.C.A., Local Government Code § 214.00111.

(Ord. No. 2019-8-5, § III, 8-26-19)

Sec. 16-122. Prohibited acts, penalty for violation, and enforcement.

(a) It shall be unlawful to construct, reconstruct, remove, structurally alter, remodel, renovate, restore, demolish, raze, maintain, or failure to maintain any heritage resource in violation of the provisions of this article. In addition to other remedies, the city may institute any appropriate action or proceedings to prevent such unlawful construction, restoration, demolition, razing, maintenance, or failure to maintain, to restrain, correct, or abate such violation.

(b) Any violation of the provisions or terms of this article by any person, firm, or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(c) All work performed pursuant to a certificate of appropriateness issued under this article shall conform to all of its requirements. It shall be the duty of the heritage preservation officer to inspect periodically to assure such compliance. In the event work is not being performed in accordance with a certificate of appropriateness, or no certificate of appropriateness has been approved, or upon notification of such fact by the commission and verification by the heritage preservation officer, the building official shall issue a stop-work order and all work shall immediately cease. The property owner shall then be required to apply for a certificate of appropriateness and receive approval. No further work shall be undertaken on the project as long as a stop-work order is in effect until a decision is rendered by the heritage preservation officer or commission on the application.

(d) All required permits must be issued and plans approved by the building inspections, planning, public works, and environmental health departments before work can commence under an approved certificate of appropriateness.

(Ord. No. 2019-8-5, § III, 8-26-19)

Secs. 16-123—16-130. Reserved.

ARTICLE VII. PLATTING, DEVELOPING AND SUBDIVIDING OF LAND*

Sec. 16-131. Subdivision ordinance.

(a) The subdivision ordinance of the city adopted on September 14, 1998, and any amendments thereto, is made a part of this Code of

*__Editor's note—__Ord. No. 98-9-5, § I, adopted Sept. 14, 1998, repealed provisions formerly set out as Art. VII of this chapter. Former Art. VII, §§ 16-131—16-160.21, pertained to platting, developing and subdividing of land and derived from Ord. No. 95-4-25, § II, adopted April 25, 1995. Section III of Ord. No. 98-9-5 enacted new provisions as Art. VII, § 16-131, to read as herein set out.

__Charter reference—__Platting of property, § 8.01.

__Cross references—__Streets and sidewalks, Ch. 19; pro rata fees and extension of utilities, § 21-166 et seq.

__State law references—__Platting and recording subdivisions or additions, Vernon's Ann. Civ. St., art. 974a; recording maps or plats of subdivisions or real estate, Vernon's Ann. Civ. St., art. 6626c; subdivisions in extraterritorial jurisdiction, V.T.C.S. art. 6626a.2.

Ordinances the same as if copied verbatim herein. A copy of the subdivision ordinance shall be on file and available to the public in the development services department and in the city secretary's office. Amendments to the subdivision ordinance may be recommended by the director of planning, or her designee, and approved by the planning and zoning commission and the city council.

(b) All land within the limits and/or legal jurisdiction of the city shall be developed in accordance with the subdivision ordinance. It shall be unlawful for any owner or agent of any owner to subdivide or plat any land into lots, blocks, and streets or to sell property therein and thereby which has not been platted or subdivided in accordance with the subdivision ordinance.
(Ord. No. 98-9-5, § III, 9-14-98)

Secs. 16-132—16-159. Reserved.

ARTICLE VIII. FLOOD DAMAGE PREVENTION*

DIVISION 1 . GENERALLY

Sec. 16-160. Purpose.

It is the purpose of this article to promote the public health, safety and general welfare and to minimize public and private losses due to flood conditions in specific areas by provisions designed to:

(1) Protect human life and health;

(2) Minimize expenditure of public money for costly flood control projects;

(3) Minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public;

(4) Minimize prolonged business interruptions;

(5) Minimize damage to public facilities and utilities such as water and gas mains, electric, telephone and sewer lines, streets and bridges located in floodplains;

(6) Help maintain a stable tax base by providing for the sound use and development of flood-prone areas in such a manner as to minimize future flood blight areas; and

(7) Ensure that potential buyers are notified that property is in a flood area.

(Ord. No. 2021-3-1, § I, 3-16-21)

Sec. 16-161. Definitions.

Unless specifically defined below, words or phrases used in this article shall be interpreted

*__Editor's note—__Ord. No. 2009-4-20, §§ I, II, repealed and reenacted article VIII in its entirety to read as herein set out. Formerly, article VIII, divisions 1 and 2, pertained to similar subject matter, and derived from Ord. No. 91-3-12, § I, adopted March 14, 1991; Ord. No. 95-12-29, §§ I, II, adopted December 21, 1995, and Ord. No. 96-2-6, § I, adopted February 12, 1996.

__Cross references—__Erosion control, § 14-92 et seq.; storm drainage, § 19-41 et seq.

__State law references—__Cooperation of counties in flood control, Vernon's Ann. Civ. St., arts. 1581e, 2353c; contracts for flood control and drainage, V.T.C.A. Agriculture Code, § 201.152; Flood Control and Insurance Act, V.T.C.A. Water Code, § 16.311 et seq.

to give them the meaning they have in common usage and to give this article its most reasonable application.

Alluvial fan flooding means flooding occurring on the surface of an alluvial fan or similar landform which originates at the apex and is characterized by high-velocity flows; active processes of erosion, sediment transport, and deposition; and unpredictable flow paths.

Apex means a point on an alluvial fan or similar landform below which the flow path of the major stream that formed the fan becomes unpredictable and alluvial fan flooding can occur.

Appurtenant structure means a structure which is on the same parcel of property as the principal structure to be insured and the use of which is incidental to the use of the principal structure.

Area of future conditions flood hazard means the land area that would be inundated by the one-percent-annual chance (one-hundred-year) flood based on future conditions hydrology.

Area of shallow flooding means a designated AO, AH, AR/AO, AR/AH, or VO zone on a community's flood insurance rate map (FIRM) with a one (1) percent or greater annual chance of flooding to an average depth of one (1) to three (3) feet where a clearly defined channel does not exist, where the path of flooding is unpredictable and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

Area of special flood hazard is the land in the floodplain within a community subject to a one (1) percent or greater chance of flooding in any given year. The area may be designated as zone A on the flood hazard boundary map (FHBM). After detailed rate making has been completed in preparation for publication of the FIRM, zone A usually is refined into zones A, AO, AH, A1-30, AE, A99, AR, AR/A1-30, AR/AE, AR/AO, AR/AH, AR/A, VO, V1-30, VE or V.

Base flood means the flood having a one (1) percent chance of being equaled or exceeded in any given year based on fully developed conditions.

Base flood elevation (BFE) means the elevation shown on the flood insurance rate map (FIRM) and found in the accompanying flood insurance study (FIS) for zones A, AE, AH, A1-A30, AR, V1-V30, or VE that indicates the water surface elevation resulting from the flood that has a one (1) percent chance of equaling or exceeding that level in any given year—also called the base flood.

Basement means any area of the building having its floor subgrade (below ground level) on all sides.

Breakaway wall means a wall that is not part of the structural support of the building and is intended through its design and construction to collapse under specific lateral loading forces, without causing damage to the elevated portion of the building or supporting foundation system.

Critical feature means an integral and readily identifiable part of a flood protection system, without which the flood protection provided by the entire system would be compromised.

Development means any man-made change to improved and unimproved real estate, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations or storage of equipment or materials.

Elevated building means, for insurance purposes, a non-basement building, which has its lowest elevated floor, raised above ground level by foundation walls, shear walls, posts, piers, pilings, or columns.

Existing construction means for the purposes of determining rates, structures for which the "start of construction" commenced before the effective date of the FIRM or before January 1, 1975, for FIRMs effective before that date. "Existing construction" may also be referred to as "existing structures".

Existing manufactured home park or subdivision means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of

streets, and either final site grading or the pouring of concrete pads) is completed before the effective date of the floodplain management regulations adopted by a community.

Expansion to an existing manufactured home park or subdivision means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

Flood or *flooding* means a general and temporary condition of partial or complete inundation of normally dry land areas from:

(1) The overflow of inland or tidal waters.

(2) The unusual and rapid accumulation or runoff of surface waters from any source.

Flood elevation study means an examination, evaluation and determination of flood hazards and, if appropriate, corresponding water surface elevations, or an examination, evaluation and determination of mudslide (i.e., mudflow) and/or flood-related erosion hazards.

Flood insurance rate map (FIRM) means an official map of a community, on which the Federal Emergency Management Agency has delineated both the special flood hazard areas and the risk premium zones applicable to the community.

Flood insurance study (FIS), see *flood elevation study*.

Flood proofing means any combination of structural and non-structural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents.

Flood protection system means those physical structural works for which funds have been authorized, appropriated, and expended and which have been constructed specifically to modify flooding in order to reduce the extent of the area within a community subject to a "special flood hazard" and the extent of the depths of associated flooding. Such a system typically includes hurricane tidal barriers, dams, reservoirs, levees or dikes. These specialized flood modifying works are those constructed in conformance with sound engineering standards.

Floodplain or *flood-prone area* means any land area susceptible to being inundated by water from any source (see definition of flooding).

Floodplain management means the operation of an overall program of corrective and preventive measures for reducing flood damage, including but not limited to emergency preparedness plans, flood control works and floodplain management regulations.

Floodplain management regulations means zoning ordinances, subdivision regulations, building codes, health regulations, special purpose ordinances (such as a floodplain ordinance, grading ordinance and erosion control ordinance) and other applications of police power. The term describes such state or local regulations, in any combination thereof, which provide standards for the purpose of flood damage prevention and reduction.

Floodway, see *regulatory floodway.*

Functionally dependent use means a use, which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and shipbuilding and ship repair facilities, but does not include long-term storage or related manufacturing facilities.

Highest adjacent grade means the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

Historic structure means any structure that is:

(1) Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;

(2) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;

(3) Individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of the Interior; or

(4) Individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either:

a. By an approved state program as determined by the Secretary of the Interior; or

b. Directly by the Secretary of the Interior in states without approved programs.

Levee means a man-made structure, usually an earthen embankment, designed and constructed in accordance with sound engineering practices to contain, control, or divert the flow of water so as to provide protection from temporary flooding.

Levee system means a flood protection system which consists of a levee, or levees, and associated structures, such as closure and drainage devices, which are constructed and operated in accordance with sound engineering practices.

Lowest floor means the lowest floor of the lowest enclosed area (including basement). An unfinished or flood resistant enclosure, usable solely for parking of vehicles, building access or storage in an area other than a basement area is not considered a building's lowest floor; provided that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirement of Section 60.3 of the National Flood Insurance Program regulations.

Manufactured home means a structure transportable in one (1) or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required utilities. The term "manufactured home" does not include a "recreational vehicle".

Manufactured home park or subdivision means a parcel (or contiguous parcels) of land divided into two (2) or more manufactured home lots for rent or sale.

Mean sea level means, for purposes of the National Flood Insurance Program, the North American Vertical Datum (NAVD) of 1988 or other datum, to which base flood elevations shown on a community's flood insurance rate map are referenced.

New construction means, for the purpose of determining insurance rates, structures for which the "start of construction" commenced on or after the effective date of an initial FIRM or after December 31, 1974, whichever is later, and includes any subsequent improvements to such structures. For floodplain management purposes, "new construction" means structures for which the "start of construction" commenced on or after the effective date of a floodplain management regulation adopted by a community and includes any subsequent improvements to such structures.

New manufactured home park or subdivision means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain management regulations adopted by a community.

Recreational vehicle means a vehicle which is:

(1) Built on a single chassis;

(2) Four hundred (400) square feet or less when measured at the largest horizontal projections;

(3) Designed to be self-propelled or permanently towable by a light duty truck; and

(4) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

Regulatory floodway means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height.

Riverine means relating to, formed by, or resembling a river (including tributaries), stream, brook, etc.

Special flood hazard area, see *area of special flood hazard.*

Start of construction (for other than new construction or substantial improvements under the Coastal Barrier Resources Act (Pub. L. 97-348)), includes substantial improvement and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition placement, or other improvement was within one hundred eighty (180) days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for basement, footings, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

Structure means, for floodplain management purposes, a walled and roofed building, including a gas or liquid storage tank, that is principally above ground, as well as a manufactured home.

Substantial damage means damage of any origin sustained by a structure whereby the cost of restoring the structure to its before damaged condition would equal or exceed fifty (50) percent of the market value of the structure before the damage occurred.

Substantial improvement means any reconstruction, rehabilitation, addition, or other improvement of a structure, the cost of which equals or exceeds fifty (50) percent of the market value of the structure before "start of construction" of the improvement. This term includes structures which have incurred "substantial damage", regardless of the actual repair work performed. The term does not, however, include either:

(1) Any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary to assure safe living conditions; or

(2) Any alteration of a "historic structure", provided that the alteration will not preclude the structure's continued designation as a "historic structure".

Variance means a grant of relief by a community from the terms of a floodplain management regulation. (For full requirements see Section 60.6 of the National Flood Insurance Program Regulations.)

Violation means the failure of a structure or other development to be fully compliant with the community's floodplain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required in Section 60.3(b)(5), (c)(4), (c)(10), (d)(3), (e)(2), (e)(4), or (e)(5) of the National Flood Insurance Program Regulations is presumed to be in violation until such time as that documentation is provided.

Water surface elevation means the height, in relation to the North American Vertical Datum (NAVD) of 1988 (or other datum, where speci-

fied), of floods of various magnitudes and frequencies in the floodplains of coastal or riverine areas.
(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Sec. 16-162. Penalty.

Any violation of the provisions or terms of this article by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(b) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.
(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Sec. 16-163. Culpable mental state.

The requirement of proof of a culpable mental state for violations of this article is expressly waived.
(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Sec. 16-164. Lands to which this article applies.

The article shall apply to all areas of special flood hazard with the jurisdiction of the City of Plano, Texas.
(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Sec. 16-165. Basis for establishing the areas of special flood hazard.

The areas of special flood hazard identified by the Federal Emergency Management Agency in the current scientific and engineering report entitled, "The Flood Insurance Study (FIS) for Collin County, Texas And Incorporated Areas", dated November 21, 2024, with accompanying flood insurance rate maps (FIRMs) dated November 21, 2024, and the flood insurance study (FIS) for "Denton County, Texas and Incorporated Areas" dated April 18, 2011 with accompanying flood insurance rate maps (FIRMs) dated April 18, 2011, and any revisions thereto, are hereby adopted by reference and declared to be a part of this article.
(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17; Ord. No. 2024-10-13, § I, 10-28-24)

Sec. 16-166. Establishment of development permit.

A floodplain development permit shall be required to ensure conformance with the provisions of this article.
(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Sec. 16-167. Compliance.

No structure or land shall hereafter be located, altered, or have its use changed without full compliance with the terms of this article and other applicable regulations.
(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Sec. 16-168. Abrogation and greater restrictions.

This article is not intended to repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. However, where this article and another ordinance, easement, covenant, or deed restriction conflict or overlap, whichever imposes the more stringent restrictions shall prevail.
(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Sec. 16-169. Interpretation.

In the interpretation and application of this article, all provisions shall be:

(1) Considered as minimum requirements;

(2) Liberally construed in favor of the governing body; and

(3) Deemed to neither limit nor repeal any other powers granted under state statutes.

(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Sec. 16-170. Warning and disclaimer of liability.

The degree of flood protection required by this article is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. On rare occasions greater floods can and will occur and flood heights may be increased by man-made or natural causes. This article does not imply that land outside the areas of special flood hazards or uses permitted within such areas will be free from flooding or flood damages. This article shall not create liability on the part of the community or any official or employee thereof for any flood damages that result from reliance on this article or any administrative decision lawfully made hereunder.
(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

DIVISION 2. ADMINISTRATION

Sec. 16-171. Designation of the floodplain administrator.

The director of engineering or his designee is hereby appointed the floodplain administrator to administer and implement the provisions of this article and other appropriate sections of 44 CFR (Emergency Management and Assistance—National Flood Insurance Program Regulations) pertaining to floodplain management.
(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Sec. 16-172. Duties and responsibilities of the floodplain administrator.

Duties and responsibilities of the floodplain administrator shall include, but not be limited to, the following:

(1) Maintain and hold open for public inspection all records pertaining to the provisions of this article.

(2) Review permit application to determine whether to ensure that the proposed building site project, including the placement of manufactured homes, will be reasonably safe from flooding.

(3) Review, approve or deny all applications for development permits required by adoption of this article.

(4) Review permits for proposed development to assure that all necessary permits have been obtained from those federal, state or local governmental agencies (including Section 404 of the Federal Water Pollution Control Act Amendments of 1972, 33 U.S.C. 1334) from which prior approval is required.

(5) Where interpretation is needed as to the exact location of the boundaries of the areas of special flood hazards (for example, where there appears to be a conflict between a mapped boundary and actual field conditions) the floodplain administrator shall make the necessary interpretation.

(6) Notify, in riverine situations, adjacent communities and the state coordinating agency, which is the Texas Water Development Board (TWDB) and also the Texas Commission on Environmental Quality (TCEQ), prior to any alteration or relocation of a watercourse, and submit evidence of such notification to the Federal Emergency Management Agency.

(7) Assure that the flood carrying capacity within the altered or relocated portion of any watercourse is maintained.

(8) When base flood elevation data has not been provided in accordance with section 16-165, the floodplain administrator shall obtain, review and reasonably utilize any base flood elevation data and floodway data available from a federal, state or other source, in order to administer the provisions of division 3.

(9) When a regulatory floodway has not been designated, the floodplain administrator must require that no new construction, substantial improvements, or other development (including fill) shall be permitted within zones A1-30 and AE on the community's FIRM, unless it is demonstrated that the cumulative effect

of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood at any point within the community.

(10) Under the provisions of 44 CFR Chapter 1, Section 65.12, of the National Flood Insurance Program regulations, a community may approve certain development in zones A1-30, AE, AH, on the community's FIRM which increases the water surface elevation of the base flood by more than one (1) foot, provided that the community first completes all of the provisions required by 44 CFR Section 65.12.

(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Sec. 16-173. Permit procedures.

(a) Application for a floodplain development permit shall be presented to the floodplain administrator on forms furnished by him/her and may include, but not be limited to, plans in duplicate drawn to scale showing the location, dimensions, and elevation of proposed landscape alterations, existing and proposed structures, including the placement of manufactured homes, and the location of the foregoing in relation to areas of special flood hazard. Additionally, the following information is required:

(1) Elevation (in relation to mean sea level), of the lowest floor (including basement) of all new and substantially improved structures;

(2) Elevation in relation to mean sea level to which any nonresidential structure shall be flood proofed;

(3) A certificate from a registered professional engineer or architect that the nonresidential flood proofed structure shall meet the flood proofing criteria of subsection 16-176(2);

(4) Description of the extent to which any watercourse or natural drainage will be altered or relocated as a result of proposed development;

(5) Maintain a record of all such information in accordance with subsection 16-172(1).

(b) Approval or denial of a floodplain development permit by the floodplain administrator shall be based on all of the provisions of this article and the following relevant factors:

(1) The danger to life and property due to flooding or erosion damage;

(2) The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

(3) The danger that materials may be swept onto other lands to the injury of others;

(4) The compatibility of the proposed use with existing and anticipated development;

(5) The safety of access to the property in times of flood for ordinary and emergency vehicles;

(6) The costs of providing governmental services during and after flood conditions including maintenance and repair of streets and bridges, and public utilities and facilities such as sewer, gas, electrical and water systems;

(7) The expected heights, velocity, duration, rate of rise and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site;

(8) The necessity to the facility of a waterfront location, where applicable;

(9) The availability of alternative locations, not subject to flooding or erosion damage, for the proposed use.

(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Sec. 16-174. Variance procedures.

(a) The city council shall hear and render judgment on requests for variances from the requirements of this article.

(b) The city council shall hear and render judgment on an appeal only when it is alleged there is an error in any requirement, decision, or

determination made by the floodplain administrator in the enforcement or administration of this article.

(c) The floodplain administrator shall maintain a record of all actions involving an appeal and shall report variances to the Federal Emergency Management Agency upon request.

(d) Variances may be issued for the reconstruction, rehabilitation or restoration of structures listed on the National Register of Historic Places or the state inventory of historic places, without regard to the procedures set forth in the remainder of this article.

(e) Variances may be issued for new construction and substantial improvements to be erected on a lot of one-half (½) acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base flood level, providing the relevant factors in subsection 16-173(b) have been fully considered. As the lot size increases beyond the one-half (½) acre, the technical justification required for issuing the variance increases.

(f) Upon consideration of the factors noted above and the intent of this article, the city council may attach such conditions to the granting of variances as it deems necessary to further the purpose and objectives of this article.

(g) Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.

(h) Variances may be issued for the repair or rehabilitation of historic structures upon a determination that the proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure and the variance is the minimum necessary to preserve the historic character and design of the structure.

(i) Variances may be issued for new construction and substantial improvements and for other development necessary for the conduct of a functionally dependent use provided that:

(1) The criteria outlined in subsections 16-174(a)—(i) are met; and

(2) The structure or other development is protected by methods that minimize flood damages during the base flood and create no additional threats to public safety.

(j) Prerequisites for granting variances:

(1) Variances shall only be issued upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief.

(2) Variances shall only be issued upon:

a. Showing a good and sufficient cause;

b. A determination that failure to grant the variance would result in exceptional hardship to the applicant; and

c. A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisances, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

(3) Any application to which a variance is granted shall be given written notice that the structure will be permitted to be built with the lowest floor elevation below the base flood elevation, and that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced lowest floor elevation.

(k) Variances may be issued for new construction and substantial improvements and for other development necessary for the conduct of a functionally dependent use provided that:

(1) The criteria outlined in subsections 16-174(a)—(i) are met; and

(2) The structure or other development is protected by methods that minimize flood damages during the base flood and create no additional threats to public safety.

(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

DIVISION 3. FLOOD HAZARD REDUCTION

Sec. 16-175. General standards.

In all areas of special flood hazards the following provisions are required for all new construction and substantial improvements:

(1) All new construction or substantial improvements shall be designed (or modified) and adequately anchored to prevent flotation, collapse or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy;

(2) All new construction or substantial improvements shall be constructed by methods and practices that minimize flood damage;

(3) All new construction or substantial improvements shall be constructed with materials resistant to flood damage;

(4) All new construction or substantial improvements shall be constructed, designed or located at a minimum elevation of two (2) feet above the base flood elevation, including electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities;

(5) All new and replacement water supply systems shall be designed to minimize or eliminate infiltration of flood waters into the system;

(6) New and replacement sanitary sewage systems shall be designed to minimize or eliminate infiltration of flood waters into the system and discharge from the systems into flood waters; and

(7) On-site waste disposal systems shall be located to avoid impairment to them or contamination from them during flooding.

(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17; Ord. No. 2021-3-1, § I, 3-16-21)

Sec. 16-176. Specific standards.

In all areas of special flood hazards where base flood elevation data has been provided as set forth in (i) section 16-165, (ii) subsection 16-172(8), or (iii) subsection 16-177(c), the following provisions are required:

(1) *Residential construction.* New construction and substantial improvement of any residential structure shall have the lowest floor (including basement), elevated to two (2) feet above the base flood elevation. A registered professional engineer, architect, or land surveyor shall submit a certification to the floodplain administrator that the standard of this subsection as proposed in subsection 16-173(a)(1), is satisfied.

(2) *Nonresidential construction.* New construction and substantial improvements of any commercial, industrial or other nonresidential structure shall either have the lowest floor (including basement) elevated to two (2) feet above the base flood level or together with attendant utility and sanitary facilities, be designed so that below the base flood level the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer or architect shall develop and/or review structural design, specifications, and plans for the construction, and shall certify that the design and methods of construction are in accordance with accepted standards of practice as outlined in this subsection. A record of such certification which includes the specific elevation (in relation to mean sea level) to which such structures are flood proofed shall be maintained by the chief building official.

(3) *Enclosures.* New construction and substantial improvements, with fully enclosed areas below the lowest floor that are usable solely for parking of

vehicles, building access or storage in an area other than a basement and which are subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement must either be certified by a registered professional engineer or architect or meet or exceed the following minimum criteria:

a. A minimum of two (2) openings on separate walls having a total net area of not less than one (1) square inch for every square foot of enclosed area subject to flooding shall be provided.

b. The bottom of all openings shall be no higher than one (1) foot above grade.

c. Openings may be equipped with screens, louvers, valves, or other coverings or devices provided that they permit the automatic entry and exit of floodwaters.

(4) *Manufactured homes.*

a. Require that all manufactured homes to be placed within zone A on a community's FHBM or FIRM shall be installed using methods and practices which minimize flood damage. For the purposes of this requirement, manufactured homes must be elevated and anchored to resist flotation, collapse, or lateral movement. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors. This requirement is in addition to applicable state and local anchoring requirements for resisting wind forces.

b. Require that manufactured homes that are placed or substantially improved within zones A1-30, AH, and AE on the community's FIRM be elevated on a permanent foundation such that the lowest floor of the manufactured home is elevated to two (2) feet above the base flood elevation, including electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities.

(5) *Recreational vehicles.* Require that recreational vehicles placed on sites within zones A1-30, AH, and AE on the community's FIRM either:

a. Be on the site for fewer than one hundred eighty (180) consecutive days, or

b. Be fully licensed and ready for highway use, or

c. Meet the permit requirements of subsection 16-173(a), and the elevation and anchoring requirements for "manufactured homes" in paragraph (4) of this section.

A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick disconnect type utilities and security devices, and has no permanently attached additions.

(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17; Ord. No. 2021-3-1, § I, 3-16-21)

Sec. 16-177. Standards for subdivision proposals.

(a) All subdivision proposals including the placement of manufactured home parks and subdivisions shall be consistent with this article.

(b) All proposals for the development of subdivisions including the placement of manufactured home parks and subdivisions shall meet floodplain development permit requirements of section 16-166; section 16-173; and the provisions of division 3 of this article.

(c) Base flood elevation data shall be generated for subdivision proposals and other proposed development including the placement of manufactured home parks and subdivisions which are greater than fifty (50) lots or five (5) acres,

whichever is lesser, if not otherwise provided pursuant to section 16-165 or subsection 16-172(8) of this article.

(d) Base flood elevation data shall be generated by a detailed engineering study for all zone A areas, within one hundred (100) feet of the contour lines of zone A areas, and other streams not mapped by FEMA, as indicated on the community's FIRM.

(e) All subdivision proposals including the placement of manufactured home parks and subdivisions shall have adequate drainage provided to reduce exposure to flood hazards.

(f) All subdivision proposals and other proposed new development including the placement of manufactured home parks and subdivisions shall have public utilities and facilities such as sewer, gas, electrical and water systems located and constructed to minimize or eliminate flood damage. (Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17; Ord. No. 2024-10-13, § II, 10-28-24)

Sec. 16-178. Standards for areas of shallow flooding (AO/AH zones).

Located within the areas of special flood hazard established in section 16-165, are areas designated as shallow flooding. These areas have special flood hazards associated with flood depths of one (1) to three (3) feet where a clearly defined channel does not exist, where the path of flooding is unpredictable, and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow; therefore, the following provisions apply:

(1) All new construction and substantial improvements of residential structures have the lowest floor (including basement) elevated to two (2) feet above the base flood elevation or the highest adjacent grade at least as high as the depth number specified in feet on the community's FIRM (at least two (2) feet if no depth number is specified).

(2) All new construction and substantial improvements of non-residential structures:

a. Have the lowest floor (including basement) elevated to two (2) feet above the base flood elevation or the highest adjacent grade at least as high as the depth number specified in feet on the community's FIRM (at least two (2) feet if no depth number is specified), or

b. Together with attendant utility and sanitary facilities be designed so that below the base specified flood depth in an AO zone, or below the base flood elevation in an AH zone, level the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads of effects of buoyancy.

(3) A registered professional engineer or architect shall submit a certification to the floodplain administrator that the standards of this section, as proposed in section 16-173 are satisfied.

(4) Require within zones AH or AO adequate drainage paths around structures on slopes, to guide floodwaters around and away from proposed structures.

(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Sec. 16-179. Floodways.

Floodways. Located within areas of special flood hazard established in section 16-165, are areas designated as floodways. Since the floodway is an extremely hazardous area due to the velocity of flood waters which carry debris, potential projectiles and erosion potential, the following provisions shall apply:

(1) Encroachments are prohibited, including fill, new construction, substantial improvements and other development within the adopted regulatory floodway unless it has been demonstrated through hydrologic

and hydraulic analyses performed in accordance with standard engineering practice that the proposed encroachment would not result in any increase in flood levels within the community during the occurrence of the base flood discharge.

(2) If subsection 16-179(1) above is satisfied, all new construction and substantial improvements shall comply with all applicable flood hazard reduction provisions of division 3.

(3) Under the provisions of 44 CFR Chapter 1, Section 65.12, of the National Flood Insurance Program Regulations, a community may permit encroachments within the adopted regulatory floodway that would result in an increase in base flood elevations, provided that the community first completes all of the provisions required by Section 65.12.

(Ord. No. 2009-4-20, § II, 4-27-09; Ord. No. 2017-5-3, § II, 5-8-17)

Secs. 16-180—16-205. Reserved.

ARTICLE IX. RESERVED*

Secs. 16-206—16-230. Reserved.

ARTICLE X. RESERVED†

Secs. 16-231—16-250. Reserved.

*__Editor's note—__Ord. No. 2008-9-14, § I, adopted September 8, 2008, repealed Article IX, §§ 16-206—16-213 in its entirety, which pertained to the Keep Plano Beautiful Commission. See the Code Comparative Table for a complete derivation.

†__Editor's note—__Ord. No. 92-9-33, adopted Sept. 28, 1992, amended this Code by repealing Article X, §§ 16-231—16-237, pertaining to the Spring Creekwalk development board, as derived from Res. No. 87-11-1(R), adopted Nov. 9, 1987 and Ord. No. 89-5-18, § I, adopted May 22, 1989.

ARTICLE XI. HOUSING INFILL PROGRAM‡

Sec. 16-251. Established; powers and authority.

The city council hereby establishes the housing infill program for the purposes set forth within this article and as further provided in chapter 393 of the Local Government Code, as well as other state law. The city council hereby authorizes the city to exercise all powers and authority as set forth in chapter 393 of the Local Government Code and other applicable law. In addition, without limiting the foregoing, the city is authorized to exercise the following powers and authority:

(1) To expend funds for the implementation of the program.

‡__Editor's note—__Ord. No. 89-10-12, §§ I—IV, adopted Oct. 11, 1989, not specifically amendatory of this Code, has been codified as Art. XI, §§ 16-251—16-254, of this chapter at the discretion of the editor.

(2) To expend funds to acquire and develop real property to provide for low and moderate income housing.

(3) To acquire and relocate residential structures and rehabilitate structures to provide low and moderate income housing and to expend funds in connection therewith.

(4) To sell real property directly to qualified low and moderate income households or, under contract, to the Plano Housing Authority or to an independent foundation as provided in section 272.001(b)(5) of the Local Government Code, to provide low and moderate income housing.

(5) To expend funds for incidental expenses in implementing the program.

(Ord. No. 89-10-12, § I, 10-11-89)

Sec. 16-252. Implementation.

The city manager or, in his absence, the assistant city manager is hereby authorized to take all actions and execute all documents necessary and convenient to implement the program. However, should the city enter into a cooperation agreement with the Plano Housing Authority, such action and such agreement may not be consummated until the prerequisites set forth in section 393.010 of the Local Government Code have been fulfilled. The city manager or his designee is authorized to take such steps as are necessary to give the required notice and to consummate such cooperation agreement with the Plano Housing Authority.
(Ord. No. 89-10-12, § II, 10-11-89)

Sec. 16-253. Construction of article.

The findings, powers and authorities set forth in this article shall be broadly construed to effectuate the purpose of providing low and moderate income housing and to implement other matters in furtherance of the program. Those powers and authorities of the city set forth in this article that are not specifically set forth by statute are plenary powers of the city council of the city to effectuate the public purpose of providing affordable housing for low and moderate income families.
(Ord. No. 89-10-12, § III, 10-11-89)

Sec. 16-254. Definition.

For purposes of this article and for the implementation of the program, low and moderate income housing is defined as; a household for [a family of] low and moderate income, having an income equal to or less than the section 8 household income limits established by the Department of Housing and Urban Development.
(Ord. No. 89-10-12, § IV, 10-11-89)

Secs. 16-255—16-260. Reserved.

ARTICLE XII. PARK AND RECREATION FEE*

Sec. 16-261. Title.

This article shall be known and cited as the "Plano Park and Recreation Fee Article."
(Ord. No. 93-10-35, § I(Art. I, § 1.01), 12-13-93)

Sec. 16-262. Purpose and imposition of park fee.

A parks and recreation fee ("park fee") is hereby imposed on residential development for the purpose of assuring that linear and neighborhood park facilities are available and adequate to meet the needs created by such development while maintaining current and proposed park and recreation standards pursuant to the parks, recreation, trails and open space master plan. The park fee is imposed in conjunction with and in addition to subdivision regulations requiring the dedication of neighborhood and linear park land and the construction of neighborhood and

*__Editor's note—__Section I of Ord. No. 93-10-35, adopted Oct. 25, 1993, amended this Code by the addition of an article to Ch. 16. Such article and sections have been included herein as Art. XII, Park and Recreation Fee, §§ 16-261—16-274, at the editor's discretion. Exhibit "A" referenced in this article is not included herein but is on file and available for inspection in the office of the city secretary.

Cross reference—Parks and recreation, Ch. 15.

linear park improvements for which contributions the property owner shall be reimbursed from proceeds of park fees imposed. The park fee shall be imposed by the city on all residential development, and all fees collected shall be used solely and exclusively for the purpose of acquisition and development of park facilities reasonably attributable to residential dwelling units charged the park fee.
(Ord. No. 93-10-35, § I(Art. I, § 1.02), 12-13-93; Ord. No. 2019-6-7, § I, 6-24-19)

Sec. 16-263. Definitions.

For purposes of this article only, the terms that follow shall have the meanings set forth herein. Terms not herein defined shall have those meanings given them by other provisions of the Code of the City of Plano.

Applicant. The property owner or duly designated agent of the property owner of land for which approval of a building permit has been requested for residential development.

Building. Any enclosed residential structure designed or intended for the support, enclosure, shelter or protection of persons.

Building permit. The permit required for new residential construction and/or additions to buildings pursuant to the Code of City of Plano.

City. The City of Plano, Texas.

City Council. The city council of Plano, Texas.

Development. Any activity that requires the securing of building permit for residential uses.

Dwelling. Any building, or portion thereof, designed exclusively for residential occupancy and containing one (1) or more dwelling units.

Dwelling unit. One (1) or more rooms arranged, designed or used as separate living quarters for an individual family, which contains kitchen facilities (only one (1) per dwelling unit permitted), including at least a stove or cooking device and permanently installed sink, plus bathroom facilities.

Linear park. Public land and associated improvements to be used primarily for passive recreation and connecting residential neighborhoods to one (1) another and to public facilities and services, as specified in the park master plan.

Neighborhood park. Public land, with associated improvements, typically from seven and one-half (7.5) to ten (10) acres in size, and providing both active and passive recreational opportunities for neighborhood residents, as specified in the park master plan.

Park board. The park and recreation planning board or its successor.

Park facilities. Land and/or facilities used or to be used as a neighborhood or linear park, regardless of location, including both the acquisition of such land, the construction of improvements thereon and the expenditure of funds incidental thereto, including but not necessarily limited to planning, engineering and design of the park and improvements, utility relocation, provision of improvements, provision of pedestrian and vehicular access thereto and purchase of equipment, the need for which are attributable to new residential development.

Park improvements program. The adopted community investment program, as may be amended from time to time, which identifies those park facilities and their costs, for a period of at least five (5) years, which are to be financed in whole or in part through the imposition of park fees pursuant to this article. The program shall contain only those facilities which are anticipated to be acquired or developed within the period covered by the program.

Park master plan. The official adopted parks, recreation, trails and open space master plan for the City of Plano and amendments thereto.

Property. A legally described parcel of land capable of development pursuant to applicable city ordinances and regulations.

Property owners. Any person, group of persons, firm or firms, corporation or corporations, or any other entity have a proprietary interest in the land on which a building permit has been requested.

Residential development. The development of any property for a dwelling or dwellings, other

than motels, hotels, shelter used temporarily for transients and other similar uses, as indicated by an application for a building permit.

Zoning ordinance. The zoning ordinance of the City of Plano and including all duly adopted amendments thereto.
(Ord. No. 93-10-35, § I(Art. I, § 1.03), 12-13-93; Ord. No. 2019-6-7, § I, 6-24-19)

Sec. 16-264. Applicability of park fee.

(a) This article shall be uniformly applicable to residential development of property in the city which is or will be served by park facilities as herein defined. This article does not apply to activities involving the replacement, reconstruction, remodeling, rehabilitation or other improvements to an existing residential structure, or to the rebuilding of a damaged structure or to permits required for backyard cottages or accessory uses.

(b) For the purposes of this article, property is "served by" park facilities when such facilities have been constructed in accordance with the park master plan and park improvements program within ten (10) years from the date of collection within the service area in which the property is located.
(Ord. No. 93-10-35, § I(Art. I, § 1.04), 12-13-93; Ord. No. 2019-6-7, § I, 6-24-19; Ord. No. 2019-11-14, § I, 11-25-19)

Sec. 16-265. Authority and imposition of park fee.

(a) This article is enacted pursuant to the city's police powers existing under the city's Charter and consistent with the Texas Constitution, article XI, section 5, and applies to all property within the city's corporate boundaries.

(b) A park fee shall be imposed on all residential development in the city at the time of application for a building permit pursuant to section 16-267, except as provided in subsection 16-265(c).

(c) The park fee shall not be imposed on any residential development for which a completed application for a building permit had been received and accepted by the city on or before the effective date of this article.

(d) Imposition of the park fee does not alter, negate, supersede or otherwise affect any other requirements of city, county, state or federal legislation or regulations that may be applicable to a development, including city zoning and/or subdivision regulations that may impose open space and park requirements and standards.

(e) The provisions of this article shall not be construed to limit the power of the city to utilize other methods authorized under state law or pursuant to other city powers to accomplish the purposes set forth herein, either in substitution or in conjunction with this article. Guidelines may be developed by resolution, ordinance or otherwise to implement and administer this article.
(Ord. No. 93-10-35, § I(Art. I, § 1.05), 12-13-93)

Sec. 16-266. Service areas, park improvements plan and park fees.

(a) There are hereby established fourteen (14) services areas for park facilities, each of which is designated on the map attached hereto as Exhibit "A"*

and incorporated herein by reference. Service area boundaries may be amended from time to time by ordinance or resolution.

(b) The city shall adopt a park improvements program, which identifies the park facilities and their costs, which are to be financed in whole or in part through the imposition of park fees. Park fees may only be spent for park facilities identified in such program. The park improvement program shall be reviewed and updated as part of the city's annual budget.

(c) The park fee for each service area shall be uniform and shall be determined by dividing the total anticipated costs, including land value and all development costs, of all neighborhood and

*__Editor's note—__Exhibit "A" is not attached hereto, but can be inspected upon request at the city clerk's office.

linear park facilities set forth in the master plan by the total population to be served by such facilities. Park fees shall be separately calculated for single-family dwelling units and for multi-family dwelling units, by multiplying the per capita costs of neighborhood and linear park facilities by the number of persons expected to reside within each type of dwelling unit.

(d) There is hereby established a park fee for single-family dwelling units in the amount of five thousand six hundred ninety-one dollars ($5,691.00), and a park fee for multi-family dwelling units in the amount of four thousand three hundred fifty-nine dollars ($4,359.00). The park fees herein established may be amended by ordinance or resolution of the City Council from time to time.
(Ord. No. 93-10-35, § I(Art. I, § 1.06), 12-13-93; Ord. No. 2018-6-8, § I, 6-25-18; Ord. No. 2019-6-7, § I, 6-24-19; Ord. No. 2019-11-4, § II, 11-25-19; Ord. No. 2025-7-11, § I, 7-28-25)

Sec. 16-267. Processing and collection of park fee.

(a) Applicants for a building permit for residential development subject to this article must submit, on a form provided by the city, the proposed number of dwelling units in the development.

(b) Upon receipt of an application for a building permit, the city shall calculate the amount of the applicable park fee due, pursuant to section 16-266 of this article. The park fee rate in effect at the time of application for the permit shall be used to calculate the park fee, except as provided in subsection 16-267(d).

(c) The applicable park fee shall be collected prior to the issuance of a building permit. In the event that the number of dwelling units proposed at such time has changed since the application for the building permit was filed, the city shall recompute the park fee using the method set forth in subsection 16-267(b), except that the fee for any additional units shall be based on the park fee rate then in effect.

(d) If a building permit for which a park fee has been paid has expired and a new application is filed, the park fee due shall be computed on the basis of the park fee rate in effect at the time of the new application, with credit for payment of the old fee being applied against the new rate.

(e) In the event that fewer dwelling units are constructed than authorized by a building permit, the property owner may apply for a refund for the difference in the number of dwelling units pursuant to section 16-270.
(Ord. No. 93-10-35, § I(Art. I, § 1.07), 12-13-93)

Sec. 16-268. Use of park fee funds.

(a) Park fees collected for each service area pursuant to this article must be used for at least one (1) of the following purposes:

(1) To repay developers for contributions of land or park improvements pursuant to section 16-271 hereof;

(2) To acquire and develop neighborhood and linear park facilities for the service area;

(3) To reimburse the city for prior acquisition and development of such park facilities; or

(4) To make refunds pursuant to section 16-270.

(b) Park fees collected shall not be used to maintain, repair or operate the existing park system, nor to finance park and recreation activities other than park facilities as herein defined.

(c) Nothing in this article shall prevent the city from issuing and utilizing general obligation bonds, revenue bonds, revenue certificates or other certificates of indebtedness as are within the authority of the city in such manner and subject to such limitations as may be provided by law in furtherance of the financing and provision of park facilities as set forth in the park master plan. Park fees paid pursuant to this article, however shall be used for park facilities acquisition and development as defined herein.
(Ord. No. 93-10-35, § I(Art. I, § 1.08), 12-13-93; Ord. No. 94-9-18, § I, 9-12-94; Ord. No. 2019-6-7, § I, 6-24-19)

Sec. 16-269. Accounting procedures.

(a) The city shall establish a separate, interest bearing account into which all park fees collected shall be deposited. Funds collected within each service area designated in exhibit "A"*

shall be earmarked for expenditure solely for the purposes set forth in subsection 16-268(a).

*Exhibit "A" is not codified herein but can be inspected upon request at the city clerk's office.

(b) The city shall establish a separate account know as a "park fee program" into which fees used to reimburse the city for prior expenditures for acquisition and development of park facilities are to be deposited upon transfer from service area park fee accounts. Disbursements from the program shall be utilized solely and exclusively either to reimburse developers who have made contributions to neighborhood and linear park facilities pursuant to section 16-271 of this article, or for the purpose of acquiring and developing such facilities.

(c) Interest earned on park fees shall be used solely for acquisition and development of neighborhood and linear park facilities or pursuant to subsection 16-268(a)(4).

(d) The city shall establish adequate financial and accounting controls to ensure that park fees disbursed are utilized solely for the purposes and intent of this article; provided, however, that funds shall be expended within a reasonable period of time, not to exceed ten (10) years from the date park fees are collected.

(e) The city shall maintain and keep financial records for park fees, which shall show the source and disbursement of all fees collected in or expended from each service area.

(f) The city may supplement the park service area accounts from any available funds. In the event the city discounts park fees due it shall cause to be deposited a sum in the amount of the discount in the account for the park service area in which the fee was collected.
(Ord. No. 93-10-35, § I(Art. I, § 1.09), 12-13-93; Ord. No. 94-9-18, § II, 9-12-94; Ord. No. 2019-6-7, § I, 6-24-19)

Sec. 16-270. Refunds.

(a) The current owner of property on which a park fee has been paid may apply for a refund of such fee if:

(1) The property on which a park fee has been paid has not been served by park facilities, as provided in subsection 16-204(b);

(2) The building permit for a residential development, pursuant to which a park fee has expired without substantial completion;

(3) Fewer dwelling units are constructed than authorized by a building permit.

(b) Only the current owner of property may petition for a refund. A petition for refund may be filed within one (1) year of the event giving rise to the right to claim a refund.

(c) The petition for refund must be submitted to the city manager on a form provided by the city for such purpose. The petition must contain: a certified copy of the latest recorded deed for the subject property; current legal description; the date of payment of the park fee; and a statement of the reasons for which a refund is sought.

(d) A refund shall be due under subsection 16-270(a)(1) only if the city manager determines that the total park fee collected for the service area for a period of ten (10) years from the date of collection of the park fee for the development for which a refund is being sought exceeds the total expenditures from the park fee account for the service area for the same period ("excess amount"). The refund amount shall be the development's pro rata share of the excess of fees collected over expenditures, together with interest earned on such amount for the period. The city may periodically compute the difference between expenditures and fees collected for purposes of reviewing refund requests under this subsection. After the expiration of at least one (1) year after refunds are due under this subsection, the city council may, after notice by publication in the section of a local newspaper reserved for legal notices, and after a public hearing, vote to apply any unclaimed excess amounts to the acquisition or construction of capital facilities which will benefit the area in which the excess amount was collected. When the city council votes to apply the excess amounts, the right to refund of the applied excess amounts shall be extinguished.

(e) Within one (1) month of the date of receipt of a petition for refund, the city manager must provide the petitioner, in writing, with a decision on the refund request. The decision must include

the reasons for the decision. If a refund is due the petitioner, the city manager shall notify the city's accounting department and request that a refund payment be made to petitioner.

(f) Petitioner may appeal the determination of the city manager to the city council, pursuant to the process in section 16-273 with the city council replacing the city manager as the decision-maker.
(Ord. No. 93-10-35, § I(Art. I, § 1.10), 12-13-93; Ord. No. 2019-6-7, § I, 6-24-19)

Sec. 16-271. Reimbursement of developer contributions.

(a) The city shall reimburse a developer for the reasonable costs of any neighborhood or linear park land which has been dedicated to and accepted by the city for park facilities, or the reasonable costs of park improvements constructed and accepted by the city, pursuant to a reimbursement contract, subject to guidelines established by the city. For multifamily development projects and for complete phases of a single-family subdivision plat, the developer may elect to apply the entire amount to be reimbursed under this section as a credit against park fees due for the development; provided that the application of the credit does not result in a partial fee for any dwelling unit, in accordance with guidelines established by the city.

(b) The amount of the reimbursement shall be based upon standards promulgated by the city, which may be adopted as administrative guidelines. The city shall retain sole discretion to determine whether to accept proposed contributions of park land or park improvements, and the timing and extent of park improvements to be accepted by the city.

(c) An applicant shall propose dedication of park land or the construction of park improvements in conjunction with the subdivision platting process or in conjunction with a development agreement. Development agreements implemented pursuant to this subsection shall require city council approval. The city shall determine the amount of reimbursement due in accordance with the standards referenced in subsection (b). In the event that the applicant is dissatisfied with the city's determination of the amount of reimbursement, he may at his own expense seek an appraisal to be performed by a qualified appraiser acceptable to the city. The city council shall compare the appraisal with the standards established by the city and shall determine the amount to be the subject of the reimbursement contract.

(d) The city may promulgate additional rules for execution of reimbursement contracts pursuant to this section by administrative guidelines.

(e) In determining the disbursements to be made from the park fee service area and recoupment funds established in section 16-269, the city shall give priority, wherever practicable, to outstanding reimbursement contracts. In any event, reimbursement contracts involving contribution to park land together with the costs of minimum park improvements required to be made as a condition of subdivision approval, shall be fully repaid within five (5) years, and reimbursement contracts for all other park improvements shall be fully repaid within ten (10) years, of the date of execution.
(Ord. No. 93-10-35, § I(Art. I, § 1.11), 12-13-93; Ord. No. 97-8-29, § I, 8-25-97; Ord. No. 2019-6-7, § I, 6-24-19)

Sec. 16-272. Procedures for updating park fees.

(a) At least every five (5) years, the director shall prepare a report to the city council on park fees. In preparation of such report, the following information shall be reviewed:

(1) A statement summarizing park fees collected and disbursed during the year;

(2) A statement summarizing park facilities acquisition and development and the status thereof for the preceding year;

(3) A statement summarizing the administration and enforcement of park fees; and

(4) A statement and recommendation from the park board on any and all aspects of the park and recreation fee and city park needs.

(b) The report shall make recommendations, if appropriate, on amendments to the article, changes in the administration or enforcement of the article, changes in the park fee rates, changes in the park improvements plan and changes to the park master plan.

(c) Based upon the report, and such other factors as the city council deems relevant and applicable, the city council may amend the park and recreation fee article, including but not limited to exhibits and fee schedules. If the city council fails to take such action, the park fee rates then in effect shall remain in effect. Nothing herein precludes the city council or limits its discretion to amend the park and recreation fee articles at such other times as may be deemed necessary.

(d) In the review process, the city council may take into consideration, among others, the following factors: inflation as measured by changes in an appropriate land and construction cost index used by the city; improvement cost increases as measured by actual experience during the year; changes in the design, engineering, location or other elements of proposed park facilities; revisions to the park master plan; changes to the park improvements plan; and changes in the projected mix and/or intensity of residential developments in the city.
(Ord. No. 93-10-35, § I(Art. I, § 1.12), 12-13-93; Ord. No. 2019-6-7, § I, 6-24-19)

Sec. 16-273. Appeals, variances and exceptions.

(a) The property owner or applicant may appeal the following to the city manager:

(1) The applicability of the park fee;

(2) The amount of the fee due;

(3) The amount of a reimbursement contract pursuant to section 16-271.

(b) The burden of proof is on the appellant to demonstrate that the park fee is not applicable; or the amount of the fee, credit, or reimbursement was either:

(1) Not calculated according to the applicable schedule of fees; or

(2) Not established pursuant to the guidelines established for determining such amounts; or

(3) The fair market value of land or improvements is such that the basis for the fee is not valid.

The appellant must file a notice of appeal with the city manager within thirty (30) days following the original written determination. If the notice of appeal is accompanied by a bond or other sufficient surety satisfactory to the city attorney in an amount equal to the park fee due as calculated by the city, the development application shall be processed. The filing of an appeal shall not stay the collection of the fee due, unless a bond or other sufficient surety has been filed.

(c) The city council may grant a variance from any requirements of this article, upon written request by a property owner subject to the article, following a public hearing, and only upon a finding that a strict application of such requirement would result in a substantial hardship which is not common to similarly situated property owners.
(Ord. No. 93-10-35, § I(Art. I, § 1.13), 12-13-93; Ord. No. 2019-6-7, § I, 6-24-19)

Sec. 16-274. Park fee as additional and supplemental requirement.

The park fee is additional and supplemental to and not in substitution of any other requirements imposed by the city on the development of the land. It is intended to be consistent with and to further the objectives and policies of the park master plan and the comprehensive plan and to be coordinated with other city policies, ordinances and resolutions by which the city seeks to ensure the provision of adequate park facilities in conjunction with the development of land. In no event shall a property owner be obligated to pay for park facilities in an amount in excess of the amount calculated pursuant to this article; but provided that a property owner may be required, pursuant to city zoning and subdivision regulations, to provide open lands, setbacks, buffers and other nonbuildable area on-site in addition to meeting the park fee requirement.
(Ord. No. 93-10-35, § I(Art. I, § 1.14), 12-13-93)

[The next page is 1189]

Chapter 17

POLICE*

Art. I. In General, §§ 17-1—17-15
Art. II. Reserve Police, §§ 17-16—17-50
Art. III. Impounded Property, §§ 17-51—17-61

*Charter reference—City departments, § 4.02.

Cross references—Administration, Ch. 2; motor vehicles and traffic, Ch. 12; municipal court, Ch. 13; alarm system inspections, § 11-223.

State constitution reference—Payment of assistance to survivors of law enforcement officers, Art. III, § 51-d.

State law references—Authority of city as to appointment, compensation, powers and duties of police, Vernon's Ann. Civ. St., arts. 998 et seq., 1015(18); cemetery sexton has powers of police officer, Vernon's Ann. Civ. St., art. 912a-26; arrests without warrant, Vernon's Ann. C.C.P., arts. 14.01—14.06; interference with emergency communication, V.T.C.A. Penal Code, § 42.13; Private Investigators and Private Security Agencies Act, Vernon's Ann. Civ. St., art. 4413(28bb).

ARTICLE I. IN GENERAL

Sec. 17-1. Utilization of federal, state, etc., law enforcement equipment by police department; responsibility for safekeeping.

The police department is hereby authorized to utilize law enforcement equipment owned or possessed by federal, state, county and municipal law enforcement agencies for the purpose of carrying out its law enforcement responsibilities and to assume responsibility for the safekeeping and utilization of such equipment while it is in the custody of the police department.
(Res. No. 87-12-18(R), § I, 12-28-87)

Editor's note—Inclusion of nonamendatory Resolution No. 87-12-18(R), § I, adopted Dec. 28, 1987, as § 17-1 has been at the editor's discretion.

Sec. 17-2. Authority of police officers.

All peace officers who are members of the City of Plano Police Department are invested with all the power and authority given to them as peace officers under the laws of the State of Texas and they have the power and authority to enforce all City of Plano ordinances and regulations within the corporate limits of the city. This section does not exclude enforcement of city ordinances or regulations by other city departments as directed by the city manager or by ordinance.
(Ord. No. 2007-3-7, § I, 3-20-07)

Secs. 17-3—17-15. Reserved.

ARTICLE II. RESERVE POLICE*

Sec. 17-16. Definitions.

For the purpose of this article, the terms "reservist" and "reserve police officer" shall mean a member of the reserve police unit created by this article.

*__State law reference—__Police reserve force, Vernon's Ann. Civ. St., art. 998a.

Sec. 17-17. Unit created to augment police department.

There is hereby created a police reserve unit, which shall augment the regular police department as provided for in this article.
(Ord. No. 58-4-1, § 1, 4-29-58)

Sec. 17-18. Composition.

The police reserve unit shall be composed of duly qualified and appointed volunteers.
(Ord. No. 58-4-1, § 1, 4-29-58)

Sec. 17-19. Appointments generally.

The city council shall authorize such number of reserve police officers as it shall from time to time deem expedient. Their appointment shall be at the discretion of the chief of police, after competent investigation and training of volunteer applicants. Every reservist appointed shall have complied with section 17-20.
(Ord. No. 58-4-1, §§ 2, 4, 4-29-58)

Sec. 17-20. Training of applicants.

After the council approves the results of a background investigation of applicants for appointment to the police reserve unit by the chief of police, each applicant shall successfully complete the Police Reserve Training School at Dallas, Texas. The city shall reimburse each applicant for his actual cost of enrollment in such school when and if he presents a certificate of completion.
(Ord. No. 58-4-1, § 3, 4-29-58)

Sec. 17-21. Oath and bond.

Each reserve police officer shall, before entering upon the duties of his office, take the oath of office prescribed by the state constitution, and execute and deliver to the city a good and sufficient bond in the sum of one thousand dollars ($1,000.00), payable to the city, and conditioned that he will faithfully perform all the duties required of him by the constitution and laws of the state, the ordinances of the city, and such further duties as may be prescribed by the city council.
(Ord. No. 58-4-1, § 4, 4-29-58)

State constitution reference—Official oath, Art. XVI, § 1.

Sec. 17-22. Certificate of appointment.

Upon the appointment of any reservist pursuant to this article, and after taking the oath and bond prescribed, it shall be the duty of the mayor to issue to him a certificate of such appointment, empowering him with all the rights, powers, and duties prescribed by this article.
(Ord. No. 58-4-1, § 5, 4-29-58)

Sec. 17-23. Term of office.

Appointments to the reserve police unit shall run for a term concurrent with that of regular police officers.
(Ord. No. 58-4-1, § 2, 4-29-58)

Sec. 17-24. Compensation.

Reservists when acting in the same capacity and under like duties as regular police officers, shall be entitled to compensation on the same scale as that of regular patrolmen. For reservists acting in a lesser capacity the council shall from time to time set the pay scale.
(Ord. No. 58-4-1, § 10, 4-29-58)

Sec. 17-25. Supervision.

Reserve police officers shall be directly responsible to the chief of police and to such regular and reserve officers as the chief of police may designate.
(Ord. No. 58-4-1, § 8, 4-29-58)

Sec. 17-26. Appointment and duties of chief.

The chief of police is empowered to appoint a member of the police reserve unit as chief of the unit. His duties shall be determined by the chief of police and he shall be directly responsible to the chief of police. Among other duties, the reserve chief will submit a monthly activity report, which shall include the number of hours worked by the reservists, the hours for which each reservist is entitled to pay and the hours for which he is not entitled to pay, and such other information as may be prescribed by the chief of police.
(Ord. No. 58-4-1, § 11, 4-29-58)

Sec. 17-27. City to furnish uniform.

The city shall furnish each reservist one (1) uniform of the same type worn by members of the regular police department, including badge, cap piece, belt, and the like.
(Ord. No. 58-4-1, § 6, 4-29-58)

Sec. 17-28. Activation.

The city council shall by resolution designate when the reserve police unit is to be activated. The mayor shall act upon the resolution and issue the necessary orders to the chief of police. The chief of police shall then commit the reserve unit into active duty. In case of emergency, such as riot or disaster, when the mayor reasonably believes that there is insufficient time to call a meeting of the council, he may issue the order upon his own initiative.
(Ord. No. 58-4-1, § 9, 4-29-58)

Sec. 17-29. Police powers and duties generally.

When duly committed to active duty upon order of the chief of police, reservists shall exercise like powers, duties, and responsibilities as regular police officers, so far as the same are consistent with their orders from the chief of police, and in obedience to the laws of the state and ordinances of the city.
(Ord. No. 58-4-1, § 9, 4-29-58)

Sec. 17-30. Authority to carry nightstick.

Each reservist is authorized to carry a nightstick when on active duty.
(Ord. No. 58-4-1, § 7, 4-29-58)

Sec. 17-31. Carrying and using firearms.

No reservist shall carry or use a firearm in his duties until the expiration of at least six (6) months of observation and on-job training by the chief of police and his regular officers. After such period of observation and evaluation of the reservist's ability and conduct, the reservist may carry and use a firearm only when on official duty, and then only when expressly authorized by the chief of police.
(Ord. No. 58-4-1, § 7, 4-29-58)

Sec. 17-32. Dismissal.

Any member of the reserve police unit shall be subject to dismissal for neglect of duty or misconduct in office, or for the violation of the lawful orders of the city council, the mayor, the chief of police, or the chief of the police reserve unit.
(Ord. No. 58-4-1, § 12, 4-29-58)

Secs. 17-33—17-50. Reserved.

ARTICLE III. IMPOUNDED PROPERTY

Sec. 17-51. Penalty for violation.

Any person violating the provisions of this article shall be deemed guilty of a misdemeanor, and upon conviction shall be punished as provided in section 1-4(b).
(Ord. No. 69-2-3, § 11, 2-10-69; Ord. No. 2002-2-27, § II, 2-25-02)

Sec. 17-52. Authority to impound; maximum retentive period.

Any property or obstruction, except motor vehicles, placed, left standing, erected or lying in violation of any ordinance of the city or left unattended for more than forty-eight (48) continuous hours in or on any public street, alley, sidewalk, park or other public place of the city is hereby declared to be a nuisance. Any such property when so found shall be removed summarily by any police officer of the city and taken to the police pound and shall be kept there until redeemed or sold, but shall in no event be kept for a period of more than sixty (60) days.
(Ord. No. 69-2-3, § 1, 2-10-69; Ord. No. 77-8-2, § 7, 8-8-77)

Sec. 17-53. Redemption.

The owner or any person legally entitled to possession of any impounded property may redeem the same by paying to the purchasing director of the city the impounding fee and any other actual expenses or charges incurred by the city in impounding and storing the impounded property.
(Ord. No. 69-2-3, § 4, 2-10-69; Ord. No. 77-8-2, § 7, 8-8-77)

Sec. 17-54. Lien in favor of city; authority to sell.

The city shall have a lien on all impounded personal property for all cost incurred in impounding, storing and advertising such property and such lien shall be prior and superior to all other liens of every kind, save and except liens for ad valorem taxes, and the city may retain possession thereof until all costs are paid and may sell the same.
(Ord. No. 69-2-3, § 3, 2-10-69; Ord. No. 77-8-2, § 7, 8-8-77)

Sec. 17-55. Unclaimed property to be sold.

All abandoned, stolen or recovered property of every kind, except that described in section 17-52 of this article, which shall remain unclaimed with the police department of the city for a period of sixty (60) days, without being claimed or reclaimed by the true owners, whether known or not, may be sold and disposed of as provided for in this article.
(Ord. No. 69-2-3, § 5, 2-10-69)

Sec. 17-56. Delivery of property for sale to purchasing director.

The chief of police shall give to the purchasing director of the city, or such other person as may be designated by the city manager, a list of all property subject to sale and shall thereafter deliver such property to the purchasing director showing in detail all property so delivered.
(Ord. No. 69-2-3, § 8, 2-10-69)

Sec. 17-57. Notice and method of sale.

Thirty (30) days' notice of the time and place of sale of all property under this article shall be posted at the city hall, and a copy thereof sent by registered mail to the last known address of the owner if the name of the owner is not known to the purchasing director and a copy of the notice of the sale shall be published in the official newspaper published in the city once a week for two (2) consecutive weeks, the date of the first publication to be at least fourteen (14) days prior to the date of the auction sale. The notice of sale shall describe the property, state that the same is unredeemed, state that the same will be sold at

public auction or under sealed bid, designate the place of sale and state a time and date of sale which shall not be less than fourteen (14) days from the date of posting such notices. Thereafter such property shall be offered for sale by sealed bid or public auction to the highest bidder for each piece of property or assembled lots whichever, in the discretion of the purchasing agent of the city, shall offer the best price obtainable for such property.
(Ord. No. 69-2-3, § 6, 2-10-69; Ord. No. 77-8-7, § 7, 8-8-77)

Sec. 17-58. Police department employees not to purchase.

It shall be unlawful for any employees of the City of Plano Police Department, either directly or indirectly, to purchase at any sale or acquire in any manner the ownership at such sale of any article or property impounded or offered for sale under the provisions of this article.
(Ord. No. 69-2-3, § 10, 2-10-69; Ord. No. 2002-2-27, § III, 2-25-02)

Sec. 17-59. Removal, suspension or demotion of city officers and employees for violation of article.

Any officer or employee of the city violating any of the provisions of this article may be removed, suspended or reduced in grade by the city manager.
(Ord. No. 69-2-3, § 10, 2-10-69)

Sec. 17-60. Disposition of proceeds of sale.

The proceeds of the sale provided for in section 17-57 shall be deposited in the general fund, and all the proceeds of such sale shall be a part of the funds and revenues of the city.
(Ord. No. 69-2-3, § 7, 2-10-69)

Sec. 17-61. Disposition of worthless property.

Impounded property offered for sale at public auction or under sealed bid in accordance with the procedure prescribed in this article, and upon which no person bids, shall thereafter be sold or otherwise disposed of as junk. Money received for junk property shall be disposed of in the same manner as proceeds from an auction sale or sale under sealed bids.
(Ord. No. 69-2-3, § 9, 2-10-69)

[The next page is 1221]

Chapter 17.5

SEXUALLY ORIENTED BUSINESSES*

*Editor's note—Ord. No. 2013-10-13, § I, adopted October 14, 2013, repealed and reenacted chapter 17.5 in its entirety to read as herein set out. Formerly, chapter 17.5, sections 17.5-1—17.5-24, pertained to similar subject matter, and derived from Ord. No. 93-2-18, § I, adopted February 8, 1993; Ord. No. 93-3-27, § II, adopted March 22, 1993; Ord. No. 95-10-14, §§ I—III, adopted October 9, 1995, and Ord. No. 2004-6-8, §§ II, III, V, VI, adopted June 14, 2004.

Sec. 17.5-1. Purpose and intent.

It is the purpose of this chapter to regulate sexually oriented businesses to promote the health, safety, morals and general welfare of the citizens of the city, and to establish reasonable and uniform regulations to prevent the concentration of sexually oriented businesses within the city. The provisions of this chapter have neither the purpose nor effect of imposing a limitation or restriction on the content of any communicative materials, including sexually oriented materials. Similarly, it is not the intent or effect of this chapter to restrict or deny access by adults to sexually oriented materials protected by the First Amendment or to deny access by the distributors and exhibitors of sexually oriented entertainment to their intended markets.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-2. Definitions.

As used in this chapter, the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Achromatic means colorless or lacking in saturation or hue. The term includes, but is not limited to, grays, tans, and light earth tones. The term does not include white, black, or any bold coloration that attracts attention.

Adult arcade means any place to which the public is permitted or invited wherein coin-operated or slug-operated or electronically, or mechanically controlled still or motion picture machines, projectors, or other image-producing devices are maintained to show images to five (5) or fewer persons per machine at any one (1) time, and where the images so displayed are distinguished or characterized by regularly depicting or describing specified sexual activities or specified anatomical areas.

Adult bookstore, adult novelty store or *adult video store* means a commercial establishment that sells, displays, or rents items that are intended to provide sexual stimulation or sexual gratification and such items constitute twenty-five (25) percent or more of all the items for sale, display or rental in the area of the commercial establishment that is open to the public, including:

(1) Books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, DVD's, video cassettes or video reproductions, slides, or other visual representations, that depict or describe specified sexual activities or specified anatomical areas; or

(2) Instruments, devices, or paraphernalia that are designed for use in connection with specified sexual activities, but not including items used for birth control or for the prevention of sexually transmitted diseases.

Adult cabaret means a commercial establishment that regularly features:

(1) Persons who appear live in a state of nudity; or

(2) Live performances which are characterized by exposure of specified anatomical areas or specified sexual activities.

Adult motel means a motel, hotel or similar commercial establishment which offers accommodations for any form of consideration and:

(1) Rents a room for a period of time less than ten (10) hours; or

(2) Allows a tenant or occupant to sub-rent a room for a time period of less than ten (10) hours.

Adult movie theater means a commercial establishment where, for any form of consideration, films, motion pictures, video cassettes, slides, or similar photographic reproductions are regularly shown that are characterized by the depiction or description of specified sexual activities or specified anatomical areas.

Adult theater means a theater, concert hall, auditorium, or similar commercial establishment which regularly features persons who appear in a state of nudity or live performances which are characterized by the exposure of specified anatomical areas or by specified sexual activities.

Adult dance hall means any place:

(1) Where dancing is permitted one (1) day a week or more by a person in a state of nudity; or

(2) That is advertised either on or off the premises:

a. As topless;

b. As a gentlemen's club, bar, or saloon;

c. As adult entertainment;

d. As X-rated; or

e. By any other term calculated to attract patrons by offering entertainment that includes nudity or simulated nudity.

Adult tanning salon means a commercial establishment which provides facilities for tanning the human skin, such as tanning beds, suntan lights, or other similar facilities, and regularly features for the entertainment of its clientele:

(1) Persons who appear in a state of nudity; or

(2) Live performances or style shows of lingerie performed by persons who appear in a state of nudity or which are characterized by the exposure of specified anatomical areas or by specified sexual activities.

Applicant means:

(1) A person or entity in whose name a license to operate a sexually oriented business will be issued;

(2) Each individual who signs an application for a sexually oriented business license as required by section 17.5-4; or

(3) Each individual who is an officer of a sexually oriented business for which a license application is made under section 17.5-5 regardless of whether the individual's name or signature appears on the application.

Board of adjustment means the board of adjustment of the City of Plano.

Chief of police means the chief of police of the City of Plano or the chief's designee.

Child care facility means a facility licensed by the State of Texas, that provides care, training, education, custody treatment or supervision for more than six (6) children under fourteen (14) years of age, where such children are not related by blood, marriage or adoption to the owner or operator of the facility, for less than twenty-four (24) hours a day, regardless of whether or not the facility is operated for a profit or charges for the services it offers. This definition shall not include a child care facility that is an accessory use on the property.

Employee means any individual who:

(1) Is listed as part-time, full-time, temporary, or permanent employee on the payroll of an applicant, licensee, or sexually oriented business; or

(2) Performs or provides entertainment on the sexually oriented business premises for any form of compensation or consideration.

Establishment means and includes any of the following:

(1) The opening or commencement of any sexually oriented business as a new business;

(2) The conversion of an existing business, whether or not a sexually oriented business, to any sexually oriented business;

(3) The addition of any sexually oriented business to any other existing sexually oriented business; or

(4) The relocation of any sexually oriented business.

Heritage resource designation means a property that has been designated as a heritage resource as provided for in article 4.400, Heritage Resource Designation in the zoning ordinance and article VI of chapter 16 of the Code of Ordinances of the City of Plano, as amended.

Heritage resource district means that term as defined as "heritage resource district" in section 16-103, Definitions, of article VI, Heritage Resource Preservation of chapter 16 of the City of Plano Code of Ordinances, as amended.

Hospital means an institution that falls within the definition of "hospital" contained in article I, General Regulations of the City of Plano zoning ordinance, as amended.

Licensee means:

(1) A person in whose name a license to operate a sexually oriented business has been issued;

(2) Each individual listed as an applicant on the application for a license;

(3) Each individual who is an officer of a sexually oriented business for which a license has been issued under this chapter, regardless of whether the individual's name or signature appears on the license application; or

(4) Each individual who has a twenty (20) percent or greater ownership interest in a sexually oriented business for which a license has been issued under this chapter, regardless of whether the individual's name or signature appears on the license application.

Nude modeling studio means any place where a person appears in a state of nudity or displays specified anatomical areas to be observed, sketched, drawn, painted, sculptured, photographed, or similarly depicted by other person(s) who pays money or any form of consideration except as authorized under subsection (4)(d) of the sexually oriented business definition of this chapter.

Nudity or *state of nudity* means:

(1) The appearance of a human bare buttock, anus, male genitals, female genitals or female breast; or

(2) A state of dress which fails to completely and opaquely cover a human buttock, anus, male genitals, female genitals or female breast or below a point immediately above the top of the areola of the female breast, or the use of any device, costume or covering that gives the realistic appearance of or simulates the post puberty female nipple or areola, female or male genitals, buttock or anus. For purposes of this definition, body paint, dyes, tattoos, liquid latex, (whether wet or dried) and other similar substances shall not be considered an opaque covering.

(3) The definition shall not apply to an individual exposing a post puberty female nipple or areola in the process of breastfeeding a child under that person's care.

Operates or *causes to be operated* means to cause to function or to put or keep in operation. A person may be found to be operating or causing to be operated a sexually oriented business whether or not that person is an owner, part owner, or licensee of the business.

Park or *park facility* means any and all land, area, building, and facilities that are owned, leased, or otherwise operated and controlled by the City of Plano for park and recreation purposes including, but not limited to: parks, recreation facilities, athletic fields, tennis courts, golf courses, swimming pools, playgrounds, pavilions, and recreation trails.

Person means an individual, proprietorship, partnership, corporation, association, or other legal entity.

Religious facility means a building used primarily for religious assembly in which persons regularly assemble for religious worship and the building is intended primarily for purposes connected with such worship or for propagating a particular form of religious belief.

Residential district means each and all of the residential zoning districts set forth under [section] 2.100, Establishment of Zoning Districts, article 2, Zoning Districts and Uses in the zoning ordinance of the City of Plano.

Residential use means a single family, duplex, multiple family, mobile home, and mobile home/trailer park use as defined in the zoning ordinance of the City of Plano.

Sexually oriented business means:

(1) Those businesses classified in section 17.5-3 of this chapter; or

(2) Any establishment of which the principal business is the offering of a service or the selling, renting or exhibiting of devices or

any other items intended to provide sexual stimulation or sexual gratification to its customers, and which are distinguished by or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas; or

(3) A business whose employees or customers appear in a state of nudity.

(4) The term "sexually oriented business" shall not be construed to include:

(a) Any business operated by or employing a licensed psychologist, licensed physical therapist, licensed masseuse, licensed vocational nurse, registered nurse, licensed athletic trainer, licensed cosmetologist, or licensed barber engaged in performing functions authorized under the license held;

(b) Any business operated by or employing a licensed physician or licensed chiropractor engaged in practicing the healing arts;

(c) Any retail establishment whose principal business is the offering of wearing apparel for sale to customers and does not exhibit merchandise on live models; or

(d) In a structure that has no sign or other advertising visible from the exterior of the structure indicating a nude person is available for viewing and that activity is conducted or sponsored by:

(i) A proprietary school licensed by the state or a college, junior college or university supported entirely or partly by taxation; or

(ii) A private college or university that maintains or operates educational programs in which credits are transferable to a college, junior college, or university supported entirely or partly by taxation;

And

(iii) A student must enroll at least three (3) days in advance of the class in order to participate; and

(iv) No more than one (1) nude model is on the premises at any one (1) time.

Sign means any display, design, pictorial, or other representation that is constructed, placed, attached, painted, erected, fastened, or manufactured in any manner whatsoever so that it is visible from the outside of a sexually oriented business and used to seek the attraction of the public to any goods, services, or merchandise available at the sexually oriented business.

Specified anatomical areas means:

(1) Any of the following, or any combination of the following, when less than completely and opaquely covered:

(a) Any human genitals, pubic region, or pubic hair;

(b) Any buttock; or

(c) Any portion of the post puberty female breast that is situated below a point immediately above the top of the areola.

(2) Human male genitals in a discernibly erect state, even if completely and opaquely covered.

Specified sexual activities means and includes any of the following:

(1) The fondling or other erotic touching of human genitals, pubic region, buttocks, anus, or female breasts;

(2) Sex acts, normal or perverted, actual or simulated, including intercourse, oral copulation, or sodomy;

(3) Masturbation, actual or simulated; or

(4) Excretory functions as part of or in connection with any of the activities set forth in paragraphs (1) through (3) of this definition.

Transfer of ownership or control of a sexually oriented business means and includes any of the following:

(1) The sale, lease, or sublease of the business;

(2) The transfer of securities that constitute a controlling interest in the business, whether by sale, exchange, or similar means; or

(3) The establishment of a trust, gift, or other similar legal device that transfers the ownership or control of the business, except for transfer by bequest or other operation of law upon the death of the person possessing the ownership or control.

(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-3. Classification.

Sexually oriented businesses are classified as follows:

(1) Adult arcade;

(2) Adult bookstore, adult novelty store or adult video store;

(3) Adult cabaret;

(4) Adult dance hall;

(5) Adult motel;

(6) Adult movie theater;

(7) Adult tanning salon;

(8) Adult theatre;

(9) Nude modeling studio; or

(10) A business meeting the definition of a sexually oriented business as defined in section 17.5-2.

(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-4. License required.

(1) *License requirement.* A person commits an offense if he operates or causes to be operated a sexually oriented business without a valid license as required by this chapter.

(2) *Other permits or licenses.* The fact that a person possesses other types of state or city permits or licenses does not exempt the person from the requirement of obtaining a license for a sexually oriented business.

(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-5. License application.

(1) *Form of application.* Any person desiring to obtain a sexually oriented business license shall make application on a form provided by the chief of police. The application must be accompanied by a sketch or diagram showing the configuration of the premises, including a statement of total floor space occupied by the business. The sketch or diagram need not be professionally prepared but must be drawn to a designated scale or drawn with marked dimensions of the interior of the premises to an accuracy of plus or minus six (6) inches.

(2) *Individual applicants.* If a person who wishes to operate a sexually oriented business is an individual, he must sign the application for a license as applicant. If a person who wishes to operate a sexually oriented business is other than an individual, each individual who has a twenty (20) percent or greater interest in the business must sign the application for a license as applicant. The application must be sworn to be true and correct by each applicant. Each applicant must be qualified under section 17.5-6 and each applicant shall be considered a licensee if a license is granted.

(3) *Corporate applicants.* In addition to identifying those persons required to sign an application under subsection (2), the application must identify all parent and related corporations or entities of any person who will own or operate the sexually oriented business and include the names of the officers of each parent or related corporation or entity.

(4) *Application.* The application must include a current official Texas criminal history report with a fingerprint card (issued within the preceding twelve (12) months) for the applicant and the applicant's spouse showing they are not disqualified to operate a sexually oriented business under this chapter.

(5) *Application fee.* All applications for a license under this article shall be accompanied by a nonrefundable application fee. An application shall not be considered to have been filed until the fee is paid and all information required by the application form has been submitted.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-6. License issuance/grounds for denial.

(1) *Issuance generally.* The chief of police shall approve the issuance of a license to an applicant within thirty (30) days after filing of an application unless the chief of police finds one or more of the following to be true:

(a) The location of the sexually oriented business is or would be in violation of section 17.5-13.

(b) The applicant failed to supply all of the information requested on the application.

(c) The applicant gave false, fraudulent, or untruthful information on the application.

(d) An applicant is under eighteen (18) years of age.

(e) An applicant or an applicant's spouse is overdue in payment to the city of taxes, fees, fines, or penalties assessed against or imposed upon the applicant or the applicant's spouse in relation to a sexually oriented business.

(f) An applicant or an applicant's spouse has been convicted or placed on deferred adjudication for a violation of a provision of this article, other than the offense of operating a sexually oriented business without a license, within two (2) years immediately preceding the application.

(g) The application or renewal fee required by this article has not been paid.

(h) The applicant has not demonstrated that the owner of the sexually oriented business owns or holds a lease for the property or the applicable portion thereof within which the sexually oriented business will be situated or has a legally enforceable right to acquire the same.

(i) An applicant or the proposed establishment is in violation of or is not in compliance with this chapter.

(j) An applicant or an applicant's spouse has been convicted or placed on deferred adjudication for a crime involving:

(i) Any of the following offenses as described in Chapter 43 of the Penal Code: Prostitution, promotion of prostitution, aggravated promotion of prostitution, compelling prostitution, obscenity, sale, distribution, or display of harmful material to a minor, sexual performance by a child, or possession of child pornography;

(ii) Any of the following offenses as described in Chapter 21 of the Penal Code: Continuous sexual abuse of young child or children, public lewdness, indecent exposure, indecency with a child, improper relationship between educator and student, or improper photography or visual recording;

(iii) Sexual assault or aggravated sexual assault as described in Chapter 22 of the Penal Code;

(iv) Incest, solicitation of a child or harboring a runaway child as described in Chapter 25 of the Penal Code;

(v) Trafficking of persons or continuous trafficking of persons as described in Chapter 20A of the Penal Code;

(vi) Possession or distribution of a controlled substance; or

(vii) Criminal attempt, conspiracy, or solicitation to commit any of the foregoing offenses.

(k) An applicant or an applicant's spouse has been convicted or placed on deferred adjudication for a crime listed in subsection (j) above and for which:

(i) Less than two (2) years have elapsed since the date of conviction, or the

date of release from the terms of probation, parole, or deferred adjudication, or the date of release from confinement imposed for the conviction, whichever is the later date, if the conviction is of a misdemeanor offense;

(ii) Less than five (5) years have elapsed since the date of conviction, or the date of release from the terms of probation, parole, or deferred adjudication, or the date of release from confinement for the conviction, whichever is the later date, if the conviction is of a felony offense; or

(iii) Less than five (5) years have elapsed since the date of the last conviction or the date of release from confinement for the last conviction, whichever is the later date, if the convictions are of two (2) or more misdemeanor offenses or combination of misdemeanor offenses occurring within any two-year period.

(l) The applicant or the applicant's spouse is required to register as a sex offender under the provisions of Chapter 62 of the Texas Code of Criminal Procedure.

(2) *Appeal of conviction or deferred adjudication to have no effect on disqualification.* The fact that a conviction or a deferred adjudication of the applicant or applicant's spouse is being appealed shall have no effect on the disqualification.

(3) *Qualification by person convicted or placed on deferred adjudication for certain offenses.* An applicant who has been convicted or placed on deferred adjudication or whose spouse has been convicted or placed on deferred adjudication for an offense listed in subsection (1)(j) of this section may qualify for a sexually oriented business license only when the time period required by subsection (1)(j) of this section has elapsed.

(4) *License information.* The license, if granted, shall state on its face the name of the person or persons to whom it is granted, the expiration date, and the address of the sexually oriented business.

(5) *Posting of license.* The license shall be posted in a conspicuous place at or near the entrance to the sexually oriented business so that it may be easily read at any time.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-7. Inspection and maintenance of records.

(1) *Inspection generally.* An applicant or licensee shall permit representatives of the police department or a department otherwise designated by the city manager to inspect the premises of a sexually oriented business for the purpose of insuring compliance with the law, at any time during the 30-day application period or after it is occupied or open for business and at any other reasonable times upon request. The provisions of this section do not apply to areas of an adult motel which are currently being rented by a customer for use as a permanent or temporary habitation.

(2) *Refusal to permit inspection.* A person who operates a sexually oriented business or his agent or employee commits an offense if he refuses to permit a lawful inspection of the premises by a representative of the police department, or a department otherwise designated by the city manager at any time during the 30-day application period or after it is occupied or open for business.

(3) *List of employees; application.* A person who operates a sexually oriented business or his agent or employee commits an offense if he operates the establishment without maintaining a current list of all employees employed by the business, along with a complete updated employment application. Each employment application shall include a copy of a valid driver's license, state identification card, or passport, all with a photo.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-8. Expiration of license.

(1) *Generally.* Each license shall expire one (1) year from the date of issuance.

(2) *Renewal; fee.* A license may be renewed by submission to the chief of police of an application on the form prescribed by the chief of police and payment of a nonrefundable renewal processing fee.

(3) *Application for renewal.* Application for renewal shall be made at least thirty (30) days before the expiration date of the license.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-9. Suspension.

(1) *Factors for suspension.* The chief of police shall suspend a license for a period not to exceed thirty (30) days if he determines that a licensee or an employee of a licensee:

(a) Has violated or is not in compliance with sections 17.5-7 or 17.5-12;

(b) Is in a state of public intoxication while on the sexually oriented business premises;

(c) Refuses to allow an inspection of the sexually oriented business premises as authorized by this article;

(d) Knowingly permits gambling by any person on the sexually oriented business premises; or

(e) Is delinquent in payment to the city for hotel occupancy taxes, ad valorem taxes, or sales taxes related to the sexually oriented business.

(2) *Reinstatement fee.* When the chief of police or a person otherwise designated by the city manager is authorized to suspend a license under this section, he shall give the licensee the opportunity to pay a reinstatement fee rather than have the license suspended.

(a) Payment of this reinstatement fee shall be considered an administrative admission of the violation. However, this shall not be used as an admission of guilt in a criminal prosecution under this article.

(b) If the licensee does not pay the reinstatement fee before the expiration of the third working day after notification, the chief of police shall impose the suspension.

(c) Each day in which a violation is permitted to continue shall constitute a separate cause for suspension.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-10. Revocation.

(1) *Revocation generally.* The chief of police shall revoke a license if a cause of suspension in subsection 17.5-9(1) occurs and the license has been suspended or a reinstatement fee paid within the preceding twelve (12) months.

(2) *Factors for revocation.* The chief of police shall revoke a license if he determines that:

(a) A licensee gave false or misleading information in the material submitted to the chief of police during the application process;

(b) A licensee or an employee has knowingly allowed possession, use, or sale of controlled substances on the sexually oriented business premises;

(c) A licensee or an employee has knowingly allowed prostitution on the sexually oriented business premises;

(d) A licensee or an employee knowingly operated the sexually oriented business during a period of time when the licensee's license was suspended;

(e) A licensee has been convicted or placed on deferred adjudication for an offense listed in subsection 17.5-6(1)(j) for which the time period required has not elapsed;

(f) On two (2) or more occasions within a 12-month period, an employee of the establishment committed in or on the licensed premises an offense listed in subsection 17.5-6(1)(j) for which a conviction has been obtained or deferred adjudication has been granted; or

(g) A licensee or an employee has knowingly allowed any act of sexual intercourse, sodomy, oral copulation, masturbation, or sexual contact to occur in or on the sexually oriented business premises. The term "sexual contact" shall have the same meaning as it is defined in § 21.01 of the Penal Code.

(3) *Appeal of conviction or deferred adjudication to have no effect on disqualification.* The fact that a conviction or deferred adjudication is being appealed shall have no effect on the revocation of the license.

(4) *Application to adult motels.* Section 17.5-10 does not apply to adult motels as a ground for revoking the license unless the licensee or employee knowingly allowed the act of sexual intercourse, sodomy, oral copulation, masturbation, or sexual contact to occur in a public place or within public view.

(5) *Term of revocation.* When the chief of police revokes a license, the revocation shall continue for one (1) year and the licensee shall not be issued a sexually oriented business license for one (1) year from the date revocation became effective. If, subsequent to revocation, the chief of police finds that the basis for the revocation has been corrected or abated, the applicant may be granted a license if at least ninety (90) days have elapsed since the date the revocation became effective.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-11. Appeal.

(1) *Notice of intention to suspend or revoke license.* If the chief of police is authorized to deny the issuance of a license, or suspend or revoke a license as provided in this article, the chief of police shall give written notice to the applicant or licensee of such intention.

(a) The notice shall provide that the denial of issuance, suspension, or revocation shall take effect at the expiration of the third working day after notification unless the licensee provides a written response to the chief of police before the expiration of the third working day.

(b) If a written response from the applicant or licensee is received by the chief of police before the expiration of the third working day, the suspension, denial of issuance or revocation will be stayed pending a decision by the chief of police. The chief of police shall review the response before the rendering of a decision.

(c) The chief of police shall give written notice of this decision to the applicant or licensee.

(d) The decision by the chief of police is effective immediately and final pending any appeal.

(e) Notice shall be deemed delivered by hand delivery to a licensee, owner, or employee of the establishment or by a posting of the notice at the usual business entrance of the establishment. Notice may also be sent by certified mail, return receipt requested. Such notice shall be mailed to the address listed in the license application for receipt of notice.

(2) *Appeal from denial or revocation of permit.* Should an applicant be denied a license or have a license suspended or revoked, the applicant may appeal that action to the city manager or his designee by submitting a letter requesting a hearing to the city secretary within ten (10) days after receiving notice. A hearing on the denial will then be scheduled before the city manager, or his designee. The city manager, or his designee, shall schedule a hearing and render a decision on the appeal within forty-five (45) days of the date of the request. The decision of the city manager, or his designee, shall be final.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-12. Transfer of license.

A person commits an offense if he transfers his license to another person or operates a sexually oriented business under the authority of a license at any place other than the address designated in the application.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-13. Location regulations.

(1) A person commits an offense if he establishes, operates or causes to operated, or expands a sexually oriented business within three thousand (3,000) feet of:

(a) A religious facility;

(b) A public or private elementary or secondary school;

(c) A boundary of a residential or a heritage resource district;

(d) Property devoted to residential use;

(e) Property that has received a historic resource designation;

(f) A public park or park facility;

(g) A public library;

(h) A hospital; or

(i) A child care facility.

(2) A person commits an offense if he causes or permits the operation, establishment, substantial enlargement, or transfer of ownership or control of a sexually oriented business within three thousand (3,000) feet of another sexually oriented business.

(3) A person commits an offense if he causes or permits the operation, establishment, or maintenance of more than one (1) sexually oriented business in the same building, structure, or portion of a building or structure, or increases the floor area of any sexually oriented business in any building, structure, or portion of a building or structure containing another sexually oriented business.

(4) For the purposes of subsection (1), measurement must be made in a straight line, without regard to intervening structures or objects, from the nearest portion of the building or structure used as a part of the premises where a sexually oriented business is conducted, to the nearest property line of the premises of a religious facility, public or private elementary or secondary school, hospital, property devoted to residential use, historic resource designated property, a child-care facility, or to the nearest boundary of a park, public library, or residential or heritage resource district.

(5) For purposes of subsection (2) of this section, the distance between any two (2) sexually oriented businesses must be measured in a straight line, without regard to intervening structures or objects, from the closest exterior wall of the structure in which each business is located.

(6) A sexually oriented business lawfully operating as a conforming use is not rendered a nonconforming use by the location, subsequent to the grant or renewal of the sexually oriented business license, of a religious facility, public or private elementary or secondary school, public park, public library, historic resource designated property, residential district, property devoted to residential use, hospital, or child care facility within three thousand (3,000) feet of the sexually oriented business. This provision applies only to the renewal of a valid license, and does not apply when an application for a license is submitted after a license has been expired or has been revoked.

(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-14. Exemption from location restrictions.

(1) If the chief of police denies the issuance of a license to an applicant because the location of sexually oriented business establishment is in violation of section 17.5-13 of this chapter, then the applicant may, not later than ten (10) calendar days after notice of the denial, file with the chief building official a written request for an exemption from the locational restrictions of section 17.5-13.

(2) If the written request is filed with the chief building official within the ten-day limit, the board of adjustment shall consider the request. A date for the hearing shall be set within sixty (60) days from the date the written request is received.

(3) The board of adjustment may, in its discretion, grant an exemption from the locational restrictions of section 17.5-13 if it makes the following findings:

(a) That the location of the proposed sexually oriented business will not have a detrimental effect on nearby properties or be contrary to the public safety or welfare;

(b) That the granting of the exemption will not violate the spirit and intent of this chapter of the City Code;

(c) That the location of the proposed sexually oriented business will not downgrade the

property values or quality of life in the adjacent areas or encourage the development of urban blight;

(d) That the location of an additional sexually oriented business in the area will not be contrary to any program of neighborhood conservation nor will it interfere with any efforts of urban renewal or restoration; and

(e) That all other applicable provisions of this chapter will be observed.

(4) The concurring vote of seventy-five (75) percent of the qualified membership of the board must vote in favor of the applicant.

(5) If the board of adjustment grants the exemption, the exemption is valid for one (1) year from the date of the board's action. Upon the expiration of an exemption, the sexually oriented business is in violation of the locational restrictions of section 17.5-13 until the applicant applies for and receives another exemption.

(6) If the board of adjustment denies the exemption, the applicant may not reapply for an exemption until at least twelve (12) months have elapsed since the date of the board's action.

(7) The grant of an exemption does not exempt the applicant from any other provisions of this chapter other than the locational restrictions of section 17.5-13.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-15. Nonconforming sexually oriented business; amortization schedule.

(1) Any sexually oriented business lawfully operating on the effective date of the ordinance from which this article derives must file an application with the chief of police for a sexually oriented business license within thirty (30) days of the effective date of the ordinance.

(2) Any sexually oriented business lawfully operating on the effective date of the ordinance that is in violation of section 17.5-13 is a nonconforming use. The nonconforming use will be permitted to continue for a period not to exceed twelve (12) months, unless sooner terminated for any reason or voluntarily discontinued for a period of sixty (60) days or more.

(3) The nonconforming use may not be increased, enlarged, extended, or altered, except that the use may be changed to a conforming use. If two (2) or more sexually oriented businesses are within three thousand (3,000) feet of one another and are, otherwise, in a permissible location, the sexually oriented business that was first established and continually operating at a particular location is the conforming use and the later-established business is nonconforming.

(4) Notwithstanding anything contained herein to the contrary, the board of adjustment may extend the amortization period hereinabove provided to a reasonable period of time for any nonconforming sexually oriented business upon a showing by a particular business that without an extension it will be unable to recoup its investment in the nonconforming structure. The concurring vote of four (4) members of the board of adjustment is necessary before the amortization period can be extended.

(5) Any nonconforming sexually oriented business which desires an extension of the amortization period must file an application with the building inspections department no later than ninety (90) days prior to the expiration of the license. Requests for an extension of the amortization period shall be limited to one (1) application with the board of adjustment.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-16. Exterior portions of sexually oriented businesses.

(1) It is an offense if a licensee, or its agents or employees, of a sexually oriented business allows merchandise that is intended for sexual stimulation or gratification and is distinguished by or characterized by an emphasis on depicting, describing or relating to specified sexual activities or specified anatomical areas to be viewed from the exterior of the premises.

(2) It is an offense if a licensee, or its agents or employees, of a sexually oriented business allows the exterior portions of the sexually oriented

business to have flashing lights, or any words, lettering, photographs, silhouettes, drawings, or pictorial representations of any manner except to the extent permitted by the provisions of this article.

(3) It is an offense if a licensee, or its agents or employees, of a sexually oriented business allows exterior portions of the enterprise to be painted any color other than a single achromatic color. This provision shall not apply to a sexually oriented business if the following conditions are met:

(a) The sexually oriented business is a part of a commercial multiunit center; and

(b) The exterior portions of each individual unit in the commercial multi-unit center, including the exterior portions of the sexually oriented business, are painted the same color as one another or are painted in such a way so as to be a component of the overall architectural style or pattern of the commercial multi-unit center.

This section shall not apply to a sexually oriented business that meets section 17.5-15 of this article.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-17. Signage.

(1) Notwithstanding any sign regulations in chapter 6, article XII of the City Code of Ordinances or article 3, section 3.1600 of the city zoning ordinance, or any other regulations to the contrary, on-premise exterior signs for any sexually oriented business shall comply with the following requirements:

(a) Flashing lights, reader boards, electronic or digital messages, or changeable copy are prohibited;

(b) Photographs, silhouettes, drawings or pictorial representations of any specified anatomical areas and/or specified sexual activities are prohibited; and

(c) Signs shall be a flat plane excluding the lettering.

(2) It is an offense for a licensee, including agents and employees, of any sexually oriented business to erect, construct or maintain any on-premise exterior sign for the sexually oriented business in violation of this article.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-18. Minors prohibited.

(1) It is an offense for a person who is younger than eighteen (18) years of age to enter or be on the premises of a sexually oriented business at any time.

(2) It is an offense for a licensee or its employee to allow a person under the age of eighteen (18) years to enter the sexually oriented business. It shall be an affirmative defense issued pursuant to this section if an employee of the licensee asked the minor to provide and the minor furnished:

(a) A valid driver's license showing the person was at least eighteen (18) years of age; or

(b) A valid personal identification certificate issued by the Texas Department of Public Safety reflecting that such person is eighteen (18) years of age or older.

(3) Notwithstanding any other city sign regulation to the contrary, the licensee of the sexually oriented business shall maintain at least one (1) visible and legible permanently mounted sign, printed in both English and Spanish, at each public entrance which contains a statement to the effect:

"THIS IS A SEXUALLY ORIENTED BUSINESS ESTABLISHMENT. NO PERSON UNDER 18 YEARS OF AGE ALLOWED ENTRY."; and

[If alcoholic beverages are sold on the premises] —

"NO PERSON UNDER 21 YEARS OF AGE ALLOWED ENTRY."

It is an offense if the licensee fails to post the sign and maintain the sign.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-19. Additional violations—Conduct of employees and patrons.

(1) It is an offense for a person to appear in a state of nudity in a sexually oriented business and the person or any part thereof can be viewed from the exterior of the premises.

(2) It is an offense for an employee or contractor of a sexually oriented business who appears in a state of nudity to fondle, caress, or engage in specified sexual activities with any patron or clientele of the sexually oriented business.

(3) It is an offense for any patron or clientele of any sexually oriented business to fondle, caress, or engage in specified sexual activities with any employee of a sexually oriented business who appears in a state of nudity.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-20. Additional regulations.

It is an offense for a person to:

(1) Allow a bed, sofa, or mattress in any room on the sexually oriented business; except that a sofa may be placed in a reception room open to the public. This prohibition shall not apply to adult motels.

(2) Dance, perform, exhibit or show an employee in a state of nudity unless the dance, performance or exhibition is on a platform raised at least two (2) feet from the level of the floor.

(3) Dance, perform, exhibit or show an employee in a state of nudity within ten (10) feet to any patron or clientele.

(4) Directly pay or give any gratuity to any person, employee or otherwise, who shall dance or participate in any show, exhibition or performance while in a state of nudity.

(5) Solicit or accept any gratuity from any patron or clientele in return for dancing or participating in any show, exhibition or performance while in a state of nudity.

(6) Fail to post a minimum of two (2) signs at least eighteen (18) inches square bearing red letters a minimum of two (2) inches high on a white background shall be prominently displayed in locations readily observed by patrons or clientele providing the following notice:

"GRATUITIES FOR PERFORMERS ARE PROHIBITED BY LAW. (Cite Code of Ordinances Chap. 17.5 Sexually Oriented Businesses Sec. 17.5.20.)"
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-21. Hours of operation.

(1) It is an offense for an employee of a sexually oriented business to allow it to be open to the public or allow customers or patrons to enter or remain within the premises of a sexually oriented business on any day between the hours of 2:00 a.m. and 10:00 a.m.

(2) Notwithstanding subsection 17.5-21(1) above, hours of operation of a sexually oriented business may not conflict with any other federal, state, or city laws, rules or regulations.

(3) This regulation shall not apply to adult motels.
(Ord. No. 2013-10-13, § I, 10-14-13)

Sec. 17.5-22. Penalty.

(1) Any violation of the provisions or terms of this article by any person, firm or corporation shall be a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(2) A person, firm, or corporation who operates or causes to be operated a sexually oriented business in violation of this article is subject to a civil lawsuit, including injunctive relief, in addition to and exclusive of any other available legal remedies.
(Ord. No. 2013-10-13, § I, 10-14-13)

[The next page is 1245]

Chapter 18

SOLID WASTE*

Art. I. In General, §§ 18-1—18-30
Art. II. Collection Charges, §§ 18-31—18-50
Art. III. Reserved

***Charter references**—Sanitary regulations, § 2.01; garbage disposal, § 3.07(o).

Cross references—Administration, Ch. 2; fees for pickup of dead animals, § 4-26; sanitation standards for property, § 6-520; solid waste removal from construction sites, § 6-621 et seq.; fire prevention and protection, Ch. 8; licenses and business regulations, Ch. 11; removal of animal waste at special events, § 11-340; motor vehicles and traffic, Ch. 12; abandoned and junked vehicles, § 12-206 et seq.; parks and recreation, Ch. 15; utilities, Ch. 21.

State law references—Minimum standards of sanitation and health protection measures, Vernon's Ann. Civ. St., art. 4477-1; Solid Waste Disposal Act, Vernon's Ann. Civ. St., art. 4477-7; litter, Vernon's Ann. Civ. St., art. 4477-9a; health control in cities, Vernon's Ann. Civ. St., art. 4436.

ARTICLE I. IN GENERAL*

Sec. 18-1. Rules and regulations governing containers and receptacles.

With the approval of the city manager, the director of sustainability and environmental services or his designee is authorized to promulgate and enforce rules and regulations administratively, not contrary to the provisions of this chapter, which govern the receptacles and containers to be used, the contents to be placed therein and the method of preparing them for collection, and every owner, occupant, tenant or lessee using or occupying any building, house or structure within the corporate limits of the city for any purpose shall abide by such rules and regulations.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Authorized commercial contractor means a person, firm, partnership, corporation, or other entity authorized under and by virtue of a permit, contract or franchise agreement with the city to collect recyclable and/or solid waste materials within the corporate city limits of the city.

Biodegradable container means any container made of a substance that will break down in content over a specified period of time and will have no harmful effect on the surrounding environment. The biodegradable container must be approved by the city.

Bulky waste means solid waste items of such size or quantity that it cannot feasibly be collected in a normal solid waste collection. Bulky waste includes, but is not limited to: furniture, carpet, concrete, automobile tires, mattresses, dirt, bricks, and appliances.

Commercial account means solid waste and recycling disposal and collection service provided in reusable containers at any location other than a single-family residence or duplex.

Commercial customer means all those persons, corporations, businesses and institutions receiving solid waste and recycling collection services from an authorized commercial contractor at any location other than a single-family residence or duplex.

Commercial recycling services shall include collecting, transporting and processing of recyclable materials, C&D recyclable materials and organic recyclable materials from commercial customers.

Commercial solid waste container shall include all on premise reusable receptacles designed to hold solid waste and shall specifically include all roll-off open top containers, roll-off closed top containers, roll-off compaction containers and all those receptacles with a volume of between two (2) cubic yards and ten (10) cubic yards, inclusive, provided however, that container shall not include:

(a) Any receptacle used for accumulating and/or holding materials to be recycled;

(b) Any receptacle provided by or through the city for accumulating and/or holding solid waste.

Construction and demolition debris means solid waste generated from construction, remodeling, repair and demolition of structures; road building and land clearing. Construction and demolition debris includes but is not limited to bricks, concrete, rebar and other masonry material, gypsum based sheetrock, soil, rock, lumber, metal, paving material, and tree and brush stumps.

Construction and demolition recycling means those materials that have been separated from the normal construction debris for the purpose of recycling. Acceptable items include segregated wood, concrete or asphalt, brick, and metal.

Director shall mean the director of sustainability and environmental services of the city or their designee.

*__Editor's note__—Ord. No. 2008-9-35, §§ I, II, adopted September 22, 2008, amended article I in its entirety to read as herein set out. Formerly, article I pertained to similar subject matter, and derived from Ord. No. 2003-9-43, § II, adopted September 22, 2003.

Downtown merchants means any business operating in the block bounded on the north by 15th Place, south by 14th Street, east by K Avenue and west by DART right-of-way.

Environmental waste services division means the division of the city sustainability and environmental services department responsible for environmental waste management, including but not limited to: collection, transportation and disposal of solid waste, landscape waste, bulky waste and recyclable materials. The EWSD is also responsible for enforcing the provisions of this chapter and other related ordinances of the city.

Household hazardous waste means any solid waste identified or listed as a household hazardous waste by the administrator of the United States Environmental Protection Agency (EPA) pursuant to Federal law. Household hazardous waste includes, but is not limited to: ammonia-based cleaners, drain and oven cleaners, fire extinguishers, floor care products, furniture and metal polishes, insect sprays, aerosol spray paint, antifreeze, automatic transmission and brake fluids, diesel fuel, gasoline, car batteries, automotive cleaning products, kerosene, latex paint, oil-based paint, motor oil, oil filters, paint stripper and thinner, propane tanks, turpentine, varnish, wood preservatives, fertilizer, fungicide, herbicide, pesticide, alkaline additives, pool chlorine and cleaners, muriatic acid, and pool shock treatment.

Landscape waste includes such items as yard trimmings, brush, clean wood material, tree trimmings, vegetative material, leaves, grass clippings (no sod), mixed yard waste, leaf mulch, shrubbery, sawdust, Christmas trees, wood chips, wood demolition debris (non-painted), wood fence material (non-painted), wood pallets, old corrugated containers, and tree trunks no greater than eight (8) feet long, and any other landscape waste material conducive to the composting process.

Manageable pile means that debris/materials are staged for collection and stacked in an organized manner in piles no larger than four (4) feet wide, four (4) feet high and six (6) feet long, which is safe for a two-person crew to move by hand from the staging point into the rear of a collection vehicle.

Non-franchisee commercial customer means any church, business, medical office, or other non-residential customer generating volumes of solid waste that can be contained in a 95-gallon container and that can be serviced by the city's residential collection crews, as determined by the environmental waste services division.

Office means any use categorized in the "office and professional uses" category in the schedule of permitted uses in the city zoning ordinance, including but not limited to medical office, professional/general administrative office, and clinic.

Organics recycling means the separation of food waste, paper serving items, napkins, wax-coated paper beverage containers, cooking oil, and landscape waste from other solid waste for the purpose of composting.

Person means any individual or any association, firm, partnership, joint venture, corporation or other legally recognized entity, whether for profit or not for profit.

Recyclable materials mean those materials that have been separated from other solid waste materials and placed at a designated collection location for the purpose of collection and recycling. These materials include, but are not limited to: newspapers, magazines, all paper, junk mail, telephone books, boxboard or chipboard boxes, corrugated cardboard, aluminum and bi-metal cans, including aerosol cans, glass, all plastic bottles or containers bearing the "1", "2", "3", "4", "5", "6" (excluding Styrofoam) or "7" symbol, and such other items as may be designated by the environmental waste services division.

Recycling container refers to the container furnished and designated by the city to hold recyclable materials.

Residential customer means persons, including but not limited to, owners, occupants, tenants or lessees receiving solid waste and recycling collection services from the environmental waste services division at a single-family residence or duplex.

Residential solid waste container refers to any reusable plastic container designed to hold solid waste and furnished by the city or its authorized designee.

Restaurant means an establishment where food and drink are prepared and consumed primarily on the premises.

Retail means an establishment engaged in the selling of goods and merchandise to the general public for personal or household consumption and rendering services incidental to the sale of such goods.

Solid waste means any and all garbage, trash, refuse and other discarded material held or accumulated in containers, including, without limitation, animal and vegetable waste materials resulting from the preparation, processing or consumption of food; combustible waste material such as paper, rags, cartons, boxes, rubber tires, plastics; noncombustible waste materials such as glass, crockery and metal cans; however, solid waste shall not include hazardous waste or biomedical waste.

Special paid collection means the removal of bulky waste items outside of the regularly scheduled bulky waste collection as requested by the residential or commercial customer or as required by the city.
(Ord. No. 2008-9-35, § II, 9-22-08; Ord. No. 2009-7-11, § I, 7-27-09; Ord. No. 2016-11-8, § I, 11-28-16)

Sec. 18-3. Penalty.

Any person found to be violating any term or provision of this chapter, shall be subject to a fine in accordance with subsection 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-4. Obstructions in alleyways.

The director shall be responsible for the safe passage of collection vehicles through city alleyways to include tree trimming and brush removal as necessary.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-5. Frequency and schedule of collection by the city.

(a) The environmental waste services division of the city shall be the exclusive provider of solid waste, recycling and landscape waste collection for residential and non-franchisee commercial customers in the city.

(b) The frequency and schedule of residential and non-franchisee commercial collection of solid waste and landscape waste shall be weekly and the collection of recyclable material shall be bi-weekly. The director has the authority to revise the collection schedules as deemed necessary for holidays or other compelling reasons.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-6. Residential solid waste container.

(a) Residential customers and non-franchisee commercial customers shall utilize a specified collection container for the collection and removal of solid waste, one (1) such container will be distributed by the city or a representative of the city at no cost to the residential or non-franchisee commercial customer. The container shall remain the property of the city and shall not be removed from the property when changing residences

(b) The city will replace the container, at no cost to the customer, if the assigned container is stolen or damaged beyond repair by any reason other than the customer's own neglect or misuse. If the container is lost or damaged beyond repair as a result of the customer's neglect or misuse, a fee to cover the costs for the replacement of the container will be charged to the customer by the city.

(c) The occupant shall promptly notify the environmental waste services division in the event the container is stolen or damaged.

(d) When storing the container or when the container has been set out for collection, the lid must be kept closed at all times to prevent any accumulation of water. No bags, boxes or other items shall be placed on the top of the closed container lid so as to hinder servicing of the container.

(e) Solid waste placed in the residential solid waste container must be contained in either plastic or paper bags to help prevent odors and to prevent the contents from blowing out of the container when the container is being emptied.

(f) Residential customers are prohibited from putting construction debris, hot ashes, oil, corrosive solvents, pool chemicals, car batteries or other hazardous substances in the residential solid waste container.

(g) Any container containing more than two hundred (200) pounds of solid waste will not be serviced.

(h) Except for city-designated holiday weeks, the city will not pick up any trash stored outside the residential solid waste container.

(i) If a residential or non-franchisee commercial account serviced by the city regularly generates more solid waste than can be placed in the residential solid waste container for the once-a-week collection, the city will require the residential customer to obtain an additional residential solid waste container and that customer will be charged a one-time delivery fee, as well as, an additional monthly fee for the second container on the customer's utility bill.

(j) The residential or non-franchisee commercial customer shall be responsible for maintaining the residential solid waste container in a clean condition.

(k) The residential solid waste container shall not be marked or defaced in any way without prior authorization by the environmental waste services division manager.

(l) No person other than the residential customer, non-franchisee commercial customer, environmental waste services division employee, city, state or federal employee, agent or official performing duties within the scope of their employment, or an authorized solid waste contactor may remove, collect or transfer solid waste materials that have been placed in or adjacent to a residential solid waste container in the city of Plano. Each violation of this provision shall constitute a separate and distinct offense punishable as provided in section 18-3 of this chapter.
(Ord. No. 2008-9-35, § II, 9-22-08; Ord. No. 2008-10-20, § I, 10-27-08)

Sec. 18-7. Solid waste to be drained; animal matter to be wrapped in paper.

All solid waste that is mixed with water or any other liquid shall be drained before being placed in a container or receptacle. All animal matter that is subject to decomposition shall be well wrapped in paper or other combustible material before being deposited in such container or receptacle.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-8. Recycling container.

(a) Residential customers and non-franchisee commercial customers shall utilize a specified collection container for the collection and removal of recyclable materials, as defined herein. The city or the city's designated representative will distribute one (1) recycling container to the residential customer or non-franchisee commercial customer at no cost to the customer. The container shall remain the property of the city and shall not be removed from the property when changing residences.

(b) Customer use of the residential recycling container shall be subject to the same regulations for placement, storage, repair, replacement, and care as specified herein for residential solid waste containers.

(c) If a residential or non-franchisee commercial account serviced by the city regularly generates more recyclables than can be placed in the residential recycling container for the bi-weekly collection, the city will provide the residential or non-franchisee customer with a second recycling container at no additional fee.

(d) No person other than the residential customer, non-franchisee commercial customer, environmental waste services division employee, or an authorized recycling contractor may remove, collect or transfer recyclable materials that have been placed in a recycling container in the city.

Each violation of this provision shall constitute a separate and distinct offense punishable as provided in section 18-3 of this chapter.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-9. Placement of containers for collection.

(a) *Placement of containers in alley.* Residential solid waste and recycling containers set out for alley collection should be aligned with the handles facing the house and located within two (2) feet of the paved alley. The containers must also be located at least six (6) inches from any fence and at least eighteen (18) inches from any gas or electric meter, other containers or other large objects so that the container is accessible to the automated collection vehicle. Residential solid waste and recycling containers located behind fences, inside garages or outside the collection area described above will not be serviced. Under no circumstances will city employees or contractors leave the public rights-of-way to enter garages, breezeways, carports or other structures to make collections. If it is not practicable to place the containers for collection as specified above, the environmental waste services manager shall determine where the containers will be placed for collection. If it is not practicable to collect and remove the solid waste and recyclables from an alley or if there is no alley adjacent to the resi-

dential or commercial premises, the residential or non-franchisee commercial customer shall place the containers on the parkway.

(b) *Placement of containers on parkway.* Residential solid waste and recycling containers set out for street collection should be aligned with the handles facing the house and located within two (2) feet of the paved curb and at least eighteen (18) inches from any mailbox, other container or other large object. The residential or non-franchisee commercial customer with street collection is prohibited from placing the container at the collection point prior to twelve (12) hours before collection.

(c) *Removal of solid waste and recycling containers following collection.*

(1) The residential and non-franchisee commercial customer with street collection is required to remove the solid waste and recycling containers from the collection area and to relocate them to a place within six (6) feet of the residential or non-franchisee commercial structure within twelve (12) hours after the containers are serviced by the environmental waste services division.

(2) The residential and non-franchisee commercial customer with alley collection is encouraged to remove the solid waste and recycling containers from the collection point and to move them to a secure location within twelve (12) hours after the containers are serviced by the environmental waste services division.

(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-10. Blocking access to containers.

It shall be unlawful to stop, stand, or park a vehicle or trailer on public or private property in a manner that prevents access to a solid waste or recycling collection container by a collection truck that is attempting to service the container. For the purposes of this section, it shall be presumed that the owner of record of any violating vehicle or trailer is the person who stopped or parked the vehicle or trailer in the offending location.

(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-11. Household hazardous waste collection and reuse.

(a) The environmental waste services division operates a household chemical collection and reuse program as a means to divert certain household hazardous waste ("HHW") from the landfill and make them available for reuse by other citizens. The environmental waste services division will determine the collection fees for a HHW collection, and when feasible, the charges will be posted to the customer's monthly utility bill. The city will operate the household chemical collection program in accordance with the procedures set forth below.

(b) The residential or non-franchisee commercial customer shall place the HHW out for collection next to the residential solid waste container on the morning of scheduled pickup by the city. HHW shall not be placed inside the residential solid waste or recycling containers or concealed by any other means. The HHW should be placed in a box clearly marked "Chemicals" or "HHW" and placed out for collection in full view of the collection crews by 7:00 a.m. on the day of collection.

(c) To schedule a pickup, residential customers should contact the environmental waste services division at least twenty-four (24) hours prior to the scheduled HHW collection day. No more than fifteen (15) gallons of HHW will be picked up from a residential customer in one (1) day. Additionally, no single container may exceed five (5) gallons in size. All containers must be clearly labeled, properly sealed, and not leaking. Containers that do not meet these criteria will not be picked up.

(d) The HHW program is restricted to chemicals used in household quantities and is not intended for commercial grade, quantities, and materials. Certain chemicals and products are not eligible for the HHW collection and reuse program because of safety concerns and require special handling for safe disposal. The following items will not be accepted for HHW collection: expired medication, ammunition, arsenic, chemicals not in there original containers with the exception of used motor oil, explosives, medical waste with the exception of used syringes contained within a puncture proof container, mercury, nuclear/radioactive waste, thermometers,

chemical containers larger than five (5) gallons, and all unidentified chemicals. The customer service of the environmental waste services division can assist residents with appropriate disposal of non-acceptable items.

(e) Reusable items collected through the HHW program including paint, household cleaners, pool chemicals, automotive products, repair products, and pet supplies are available to residents of Plano, at no charge, at the city's HHW reuse center. Hours of operation and location of the HHW reuse center are posted on the city's web site.

(f) An environmental fee of one hundred twenty-five dollars ($125.00) will be charged for each liquid fire extinguishers and thirty-five dollars ($35.00) will be charged for each propane tank or cylinder scheduled for collection and disposal to cover the city's operational and administrative costs associated with verifying these items are disposed of in accordance with state established guidelines.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-12. Regulated industrial and hazardous waste.

It shall be unlawful for any individual, persons, or organization to discard or otherwise dispose of any regulated hazardous waste, as that term is defined and listed by the United States Environmental Protection Agency (EPA) under the Federal Solid Waste Act, Resource Conservation and Recovery Act (RCRA) and Code of Federal Regulations (CFR) within the city, except through an approved method as defined and regulated by Title 30 of the Texas Administrative Code (TAC) Chapter 335.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-13. Landscape waste collection/biodegradable bags.

The city diverts one hundred (100) percent of its residential landscape waste from the landfill and processes it to produce compost, mulch, and compost-related products under the "Texas Pure" label.

(a) The city will promote and encourage its citizens to use lawnmowers with mulching blades rather than bagging cut grass. By using mulching lawnmowers and leaving grass clippings on the lawn, the city and its citizens will divert significant quantities of bagged landscape waste from the landfill. The city will also encourage the citizens, when feasible, to prepare and maintain their own composting areas.

(b) In the instances where the citizens cannot feasibly allow the clippings to remain on their lawns, the clippings may be accumulated and put out for collection using only biodegradable bags that have been approved as specified by the city.

(c) All biodegradable bags placed out for collection must be tightly folded and must not be filled above the dotted line indicated on the bag. A filled bag must weigh no more than fifty (50) pounds. There shall be no contents, other than grass, leaves, limbs and other such items designated as landscape waste, placed in the biodegradable bags. Failure to utilize the specified biodegradable bags where appropriate will result in non-collection of bagged landscape waste.

(d) Bagged landscape waste shall be placed at the appropriate collection point, as specified herein, on the same day as solid waste collections. Due to the large and bulky size of certain types of landscape waste, some items may have to be stacked just outside the normal collection area. Environmental waste services collection crews will collect stacked landscape waste materials outside the normal collection area as long as one (1) end of the stacked pile is no further than six (6) feet from the normal collection area.

(e) Tree trimmings, brush, shrubs, and other landscape waste shall be placed in manageable piles of no more than six (6) feet in length, four (4) feet in height and width, and no more than fifty (50) pounds in weight, at the appropriate collection point, as specified herein.

(f) Large corrugated cardboard boxes are collected with landscape waste and shall be

placed at the appropriate collection point, as specified herein. Boxes must be empty and flattened.

(g) Wooden fence material is acceptable if sections are no longer than four (4) feet x six (6) feet and hinges, latches and bolts have been removed. No painted or stained wood can be accepted in the weekly collection but can be accepted with the monthly bulky waste collection program.

(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-14. Bulky waste and special paid collections.

(a) *Bulky waste collection.*

(1) The city deems it beneficial to provide bulky waste collection to its residential and non-franchisee commercial customers one (1) day per month. Bulky waste includes items not classified as landscape waste which are too large to be placed in the residential solid waste or recycling containers. Landscape waste, including unpainted fence material, that is not placed out for weekly landscape waste collection as provided in section 18-13 herein does not qualify as bulky waste and will require a special paid collection.

(2) Bulky waste may not be placed out for collection more than five (5) days before the designated bulky waste collection day. If the bulky waste remains uncollected for more than five (5) days and the manager of the environmental waste services division determines that the bulky waste is creating a health and/or safety hazard, the city retains the right to call for a special paid collection and to charge the associated costs for collecting the bulky waste to the responsible resident or non-franchisee commercial customer's utility bill.

(3) Dirt, rocks, concrete, bricks, and similar materials will not be collected for disposal unless they are placed in appropriate containers. No such container may exceed fifty (50) pounds in weight. Customers may contact the environmental waste services division for information on appropriate containers.

(4) Large amounts of construction debris generated by a private contractor in connection with a construction project or major renovation project will not be eligible for bulky waste collection and must be scheduled for a special paid collection.

(5) An environmental fee of twenty-five dollars ($25.00) will be charged for each appliance scheduled for collection and disposal to cover the city's operational and administrative costs associated with verifying that all refrigerants, including, but not limited to: freon, chlorinated fluorocarbons (CFC) or polychlorinated biphenyls (PCB) have been removed from the appliance in accordance with state established guidelines. This fee will be added to the customer's monthly utility bill.

(6) Due to the size and nature of bulky waste items, these items may be placed just outside the normal collection area, as defined herein, as long as those items do not create an immediate health and/or safety hazard. The collection crews for the environmental waste services division will collect bulky waste items outside of the normal collection area, as long as one (1) end of the stacked pile is no further than six (6) feet from the normal collection point.

(b) *Special paid collections.*

(1) The city deems it necessary to offer a special paid collection service to its citizens for off-schedule collection of bulky waste items, landscape waste, and other large or cumbersome quantities of solid waste that have not been collected through normal collection services.

(2) Special paid collections must be scheduled in advance and shall be coordinated through the environmental waste services division. The environmental waste services division will determine the fees

for a special paid collection, and when feasible, the charges will be posted to the customer's monthly utility bill.

(3) Items for special paid collection, with the exception of large brush piles, shall not be placed out for collection, as specified herein, more than five (5) days prior to the designated collection day.

(4) Dirt, rocks, concrete, bricks, and similar materials will not be collected for disposal unless they are placed in appropriate containers. No such container may exceed fifty (50) pounds in weight. Customers may contact the environmental waste services division for information on appropriate containers.

(5) An environmental fee of twenty-five dollars ($25.00) will be charged for each appliance scheduled for collection and disposal to cover the city's operational and administrative costs associated with verifying that all refrigerants, including, but not limited to: freon, chlorinated fluorocarbons (CFC) or polychlorinated biphenyls (PCB) have been removed from the appliance in accordance with state guidelines. This fee will be added to the customer monthly utility bill.

(6) Due to the size and nature of bulky waste items, these items may be placed just outside the normal collection area, as defined herein, as long as those items do not create an immediate health and/or safety hazard. The collection crews for the environmental waste services division will collect bulky waste items outside of the normal collection area, as long as one (1) end of the stacked pile is no further than six (6) feet from the normal collection point.

(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-15. All collections to be placed for collection by 7:00 a.m.

Failure to place solid waste containers, recyclable containers, landscape waste material, HHW materials, bulky waste, and special paid collection waste at its proper collection point, by 7:00 a.m. on the specified collection day may result in the items not being collected.

(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-16. Disposal at transfer stations.

Residential customers are allowed two (2) trips per month to any of the North Texas Municipal Water District ("NTMWD") transfer stations to dispose of excessive residential solid waste. A valid driver's license and current city utility bill will be required for service. All loads must be tarped during transport in accordance with state law.

(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-17. Sale of compost.

(a) The City deems it beneficial to produce and market organic compost to offset expenses associated with providing a separate landscape waste collection service, and to divert landscape waste from the landfill and convert it into a useful product.

(b) Collected landscape waste and commercial organics are transported to the city's Custer Road and FM 545 Composting Facilities to produce organic compost, topdressing, soil blend, mulch, and an erosion control mix. These products, marketed under the "Texas Pure" label, are made available for sale to retail and wholesale markets. Special rates are offered to city residential customers and city employees.

(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-18. Collection, transportation and disposal of commercial solid waste and recyclable materials.

(a) *Commercial solid waste.* No person shall engage in the business of collecting, transporting and disposing of solid waste materials for commercial customers located within the city, and no person shall use the public streets, alleys or thoroughfares within the corporate city limits of the city for the purpose of engaging in such business, other than a person who has executed a contract with the city.

(b) *Commercial recyclable materials.* No person other than the owner, his authorized agent, the environmental waste services division, or a permitted recycling services provider, as described in section 18-21, may collect or transport recyclable materials from the property of a commercial customer located in the city. Each violation of this provision shall constitute a separate and distinct offense punishable as provided in section 18-3 of this chapter.

(c) *Auditing and enforcement.* The environmental waste services division of the city may periodically perform recycling audits of commercial accounts in the city to verify that the materials being collected in recycling containers are source-separated recyclables, as listed on the permit, and are free from solid waste or other non-recyclable materials, except for the incidental amounts of non-recyclable waste allowed in the C&D recycling materials. Each commercial customer in the city that contracts with a recycling provider is responsible for ensuring that their recycling provider(s) is authorized and registered with the city to collect and transport recyclable materials in the city. Each and every violation of this section shall constitute a separate and distinct offense punishable as provided in section 18-3 of this chapter.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-19. Commercial organics recycling.

(a) The city deems it beneficial to expand present recycling programs to include recycling of organic wastes, such as food wastes generated from restaurants. The environmental waste services division will operate the organic recycling program in accordance with the procedures set forth below.

(b) The environmental waste services division will provide participants in the organics recycling program with the necessary educational materials, staff training, collection containers, and collection service to support source-separation of the organic materials.

(c) Acceptable organic waste materials collected through the organics recycling program will be diverted to the city's composting facilities for use in the composting process.

(d) A condition of participation in the organics recycling program is that participants must ensure that their organic recycling materials are free from non-compostable material.

(e) Participants in the organics recycling program must also maintain their organic waste recycling container in a clean condition in compliance with this article and chapter 9 of the Plano Code of Ordinances.

(f) Participants further agree that they will not exceed the holding capacity of their organics recycling containers.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-20. Construction and demolition debris recycling deposit program.

(a) The city deems it beneficial to the city and its citizens to initiate a program for recycling construction and demolition debris. The construction and demolition ("C&D") recycling deposit program will be operated in accordance with the procedures set forth below.

(b) All C&D recycling service providers desiring to collect, remove, and transport C&D recyclable materials in the city must be registered with the environmental waste services division, as provided for in section 18-21.

(c) C&D recycling service providers must provide the requisite number of containers on each construction site to separate the C&D recyclable materials from the non-recyclable solid waste materials.

(d) Until a commingled C&D material recycling facility has been approved by the city, C&D recyclable materials must be source-separated in commercial containers, transported and processed at an authorized C&D recycling facility. Only incidental amount(s) of non-recyclable waste, as defined by Section 328.2 of the Texas Administrative Code, will be allowed in these containers.

(e) The acceptable source-separated C&D recyclable materials collected within each container will be governed by the processing capability of the specific C&D recycling facility being used. Every registered C&D recycling service provider

operating in the city will be required to provide the name, address and telephone number of each C&D recycling facility they use for each construction site.

(f) Except as otherwise specified in this section, on or after January 1, 2009, each person who applies for a building permit pursuant to chapter 6 of this Code shall complete a construction and demolition debris deposit form to be issued by the chief building official. On or after January 1, 2009, no building permit shall be issued unless the applicant submits the deposit form issued by the chief building official and associated C&D deposit. The C&D recycling deposit will be determined by the environmental waste services division.

(g) Neither a construction and demolition debris deposit form nor a C&D deposit will be required for any of the following:

(1) Work for which a building permit is not required under chapter 6.

(2) Projects less than three thousand (3,000) square feet in size.

(3) Installation of pre-fabricated enclosures or structures in which no foundation or structural modifications are required.

(4) New and replacement roofing projects.

(5) Installation of swimming pools, hot tubs, patios, sunrooms, or other one-room residential projects.

(6) Projects for which only mechanical, electrical, plumbing, or HVAC permits are required.

(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-21. Registration of commercial recycling service providers and transporters.

(a) *Prohibited without permit.* No person shall provide commercial recycling services in the city or operate a motor vehicle for the purpose of transporting commercial recycling containers on a public street or alley within the corporate city limits of the city without first registering and obtaining a permit from the environmental waste services division of the city.

(b) *Permit within each vehicle.* Each motor vehicle utilizing the public streets or alleys in the city to collect or transport, recyclable materials from commercial customers shall at all times carry a valid permit issued by the environmental waste services division.

(c) *Exceptions.* The provisions of this section do not apply to:

(1) Any commercial contractor who has a contract with the city for collecting and transporting solid waste materials from commercial accounts and has a separate reporting requirement for recyclable materials;

(2) Any person, firm, or business transporting recyclable materials from city residential or non-franchisee commercial accounts and has a separate reporting requirement for recyclable materials.

(d) *Report.* As a condition of annual registration with the city, all commercial recycling service providers and transporters shall submit a written report, utilizing the city's form, providing the following information:

(1) The weight, in the appropriate unit of measure, for each type of material recycled; and

(2) The origin of recyclable material.

(e) *Submittal date.* The report shall be submitted to the environmental waste services division no later than the 15th day of each month following the reported month. With written approval from the environmental waste services division manager, or their designee, the report may be submitted quarterly on the 15th day of the first month following the reported quarter.

(f) *Default.* In the event a commercial recycling services provider or transporter defaults under any of the terms of their registration or permit with the environmental waste services division ("EWSD"), the EWSD will provide written notice of the areas of default to the recycling services provider or transporter. The recycling services provider or transporter shall then have

ten (10) business days to correct the default and provide city with evidence that the default has been cured.

(g) *Revocation of permit.* If the commercial recycling services provider or transporter fails to correct the noticed default within the time provided herein, the EWSD may revoke the registration and permit of said recycling services provider or transporter.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-22. Ownership of recyclable materials.

Recyclable materials placed in or adjacent to a residential recycling container or commercial recycling container for collection become the property of the entity that issued the recycling container.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-23. Right of individual to dispose of recyclable materials.

Nothing in this chapter shall limit the right of an individual person, organization, or other entity to donate, sell, or otherwise dispose of recyclable materials, provided that any such disposal is in accordance with the provisions of this chapter.
(Ord. No. 2008-9-35, § II, 9-22-08)

Sec. 18-24. Civil action by authorized recycling contractor.

Nothing in this chapter shall be deemed to limit the right of the authorized recycling contractor to bring a civil action against any person who violates the above-described sections of this chapter, nor shall a conviction for such violation exempt any person from a civil action brought by an authorized recycling contractor.
(Ord. No. 2008-9-35, § II, 9-22-08)

Secs. 18-25—18-30. Reserved.

Editor's note—Ord. No. 2011-11-8, § I, adopted November 14, 2011, repealed the former section 18-25 in its entirety, which pertained to downtown collection accommodation and rates and derived from Ord. No. 2009-7-11, § II, adopted July 27, 2009 and Ord. No. 2010-7-9, § I, adopted July 26, 2010.

ARTICLE II. COLLECTION CHARGES

Sec. 18-31. Rates applicable to residential and non-franchisee commercial customers.

Except for section 18-34, the rates established in this article apply only to residential and non-franchisee commercial rates for collection and disposal of solid waste, landscape waste, bulky waste, and household hazardous waste and the collection and processing of recyclable materials. Such provisions shall in no way affect the rates charged by the city's exclusive franchisee for commercial solid waste collection and recycling services. All rates for solid waste services are subject to the appropriate state sales tax.
(Ord. No. 82-5-28, § II, 5-24-82; Ord. No. 86-2-34, § V, 2-24-86; Ord. No. 91-11-13, § II, 11-11-91; Ord. No. 2003-9-44, § I, 9-22-03; Ord. No. 2006-10-3, § I, 10-23-06; Ord. No. 2008-9-34, § I, 9-22-08)

Sec. 18-32. Collection within city limits.

(a) *Rates for collection and disposal.* The following schedule of rates for the collection and disposal of solid waste, landscape waste, bulky waste, household hazardous waste collection and the collection and processing of recyclable materials for residential and non-franchisee commercial customers is hereby adopted:

(1) *Residential rates.* To provide an economic incentive for recycling, the City of Plano has implemented a variable rate system that charges residential and non-franchisee commercial customers based on the size of their residential solid waste container, as follows:

   a. Single-family residence utilizing a 95-gallon residential solid waste container: $25.60 per month.

   b. Single-family residence utilizing a 68-gallon residential solid waste container: $18.32 per month.

   c. Duplex, per unit: $25.60 per month.

(2) Non-franchisee commercial rate per month: $32.45.

(3) Non-franchisee commercial customers generating no more solid waste than can be contained in one city provided ninety-five-gallon residential solid waste container per week may receive collection from the environmental waste services division. This service may also be available to those non-franchisee commercial customers whose physical location prohibits the use of two-cubic-yard or larger containers.

(4) Downtown non-franchisee commercial customers. Special collection services are provided to downtown non-franchisee commercial customers in the following categories: small generator, medium generator, and large generator. The rates and charges associated with these services are determined by the Environmental Waste Services Division.

(5) All other commercial customers, regardless of the amount generated, shall be serviced only by the city's authorized commercial contractor. Mobile homes and trailer parks shall also be serviced by the city's authorized commercial contractor, either by container or through the collection of disposable containers.

(6) Residential and non-franchisee commercial customers requesting additional bulky waste collections, over and above the one bulky waste collection per month, shall be charged a minimum of twenty dollars ($20.00) per collection or ten dollars ($10.00) per cubic yard, whichever is greater. Volume of the bulky waste collection will be based on the dimensions of the pile as estimated by the director or their designee.

(7) If a residential or non-franchisee commercial account serviced by the city shall continually generate more solid waste than can be placed in one ninety-five-gallon residential container on a weekly basis, an additional container shall be obtained from the city. That residential or non-franchisee commercial account will be charged an additional twenty-one dollars and thirty-three cents ($21.33) per month for each additional container plus a fifteen-dollar ($15.00) delivery fee for each additional ninety-five-gallon containers.

(8) If any residential container is lost or damaged beyond repair as a result of the occupant's neglect or misuse, the director of public works or his/her designee will determine the replacement fee based on the current cost of a replacement container from the vendor. A fifteen-dollar ($15.00) delivery fee will also be charged.

(9) The type of solid waste collection service for new customers shall be determined by the director of public works or his/her designee, in accordance with the requirements of this section.

(10) Upon approval from the director of public works or his/her designee and in accordance with the guidelines for providing service to undeveloped areas, the city shall provide solid waste collection service to property within the city that has not previously received such services. Once a previously un-served area within the city is approved for service, all residential customers in such area shall receive collection services by the environmental waste services division and shall pay solid waste collection and disposal rates in accordance with this section.

(11) Reserved.

(12) Reserved.

(13) Reserved.

(b) *Continuous service.* In accordance with this Section, all property located within the corporate city limits of the City of Plano with an active utility account shall be required to pay the monthly solid waste collection and disposal rate as set out herein.

(c) *Pro rata billing.* Customers who request to commence, transfer, or terminate any residential or commercial account for utility service within a billing cycle shall be charged based on the number of days service was provided.

(Ord. No. 76-1-8, § 4, 1-26-76; Ord. No. 76-9-7, § I, 9-13-76; Ord. No. 82-5-28, § I, 5-24-82; Ord.

No. 86-2-34, § III, 2-24-86; Ord. No. 86-9-11, § III, 9-8-86; Ord. No. 87-9-12, § III, 9-14-87; Ord. No. 89-11-10, § I, 11-13-89; Ord. No. 91-9-34, § I, 9-23-91; Ord. No. 91-11-13, § II, 11-11-91; Ord. No. 92-9-19, § VI, 9-14-92; Ord. No. 94-10-33, § I, 10-24-94; Ord. No. 95-10-16, § I, 10-9-95; Ord. No. 96-11-6, § I, 11-11-96; Ord. No. 97-11-21, § I, 11-24-97; Ord. No. 98-10-3, §§ I, II, 10-12-98; Ord. No. 99-10-23, § 1, 10-25-99; Ord. No. 2003-9-44, § I, 9-22-03; Ord. No. 2006-10-23, § I, 10-23-06; Ord. No. 2008-9-34, § I, 9-22-08; Ord. No. 2012-10-13, § I, 10-22-12; Ord. No. 2016-10-21, § I, 10-25-16; Ord. No. 2020-10-5, § I, 10-12-20; Ord. No. 2022-10-5, § I, 10-10-22; Ord. No. 2023-9-20, § I, 9-26-23; Ord. No. 2024-9-13, § I, 9-23-24; Ord. No. 2025-9-16, § I, 9-16-25)

Editor's note—Section II of Ord. No. 2024-9-13 states, "The rates in Section 18-32 established pursuant to this Ordinance shall be effective for all billings incurred on and after October 1, 2024."

Sec. 18-33. Collection outside city limits.

(a) Upon approval by director of sustainability and environmental services or his/her designee, the city may provide solid waste collection service to property outside and contiguous to the corporate city limits of the city in accordance with the following:

(b) Residential rates.

(1) Single-family residence, per month $25.20

(2) Duplex, per unit, per month 25.20

(c) The above-mentioned rates are established as minimum charges. Customers requesting additional collections shall be charged a minimum of twenty dollars ($20.00) per collection or eight dollars ($8.00) per cubic yard, whichever is greater. Volume will be based on the quantity actually collected, as estimated by the director of sustainability and environmental services or his/her designee.

(Ord. No. 82-5-28, § I, 5-24-82; Ord. No. 86-2-34, § IV, 2-24-86; Ord. No. 86-9-11, § IV, 9-8-86; Ord. No. 87-9-12, § IV, 9-14-87; Ord. No. 89-11-10, § II, 11-13-89; Ord. No. 91-9-34, § II, 9-23-91; Ord. No. 91-11-13, § II, 11-11-91; Ord. No. 92-9-19, § VI, 9-14-92; Ord. No. 94-10-33, § I, 10-24-94; Ord. No. 95-10-16, § I, 10-9-95; Ord. No. 96-11-6, § I, 11-11-96; Ord. No. 97-11-21, § I, 11-24-97; Ord. No. 99-10-23, § 1, 10-25-99; Ord. No. 2003-9-44, § I, 9-22-03; Ord. No. 2006-10-23, § I, 10-23-06)

Editor's note—Section II of Ord. No. 2006-10-23 states that the rates established in this section shall be effective for all bills rendered on and after Nov. 1, 2006.

Sec. 18-34. Commercial container rates.

(a) The collection and disposal of solid waste from commercial accounts in the City of Plano shall only be performed by those commercial contractors authorized by the City Council to conduct such business within the City of Plano.

(b) The following rates and charges as set forth in the schedule below are hereby established as the maximum rates that may be charged by an authorized commercial contractor for collection, transportation and disposal of solid waste pursuant to that commercial contractor's contract with the City:

(1) Rates for commercial container service for containers with a volume between two (2) cubic yards and eight (8) cubic yards shall be as follows plus a one-time delivery charge of one hundred fifty-three dollars and sixty-four cents ($153.64):

Size of Container	*Service*	*Monthly Charges*
2 Cu. Yd.	1 x Week	$76.22
	2 x Week	$117.95
	3 x Week	$176.89
	4 x Week	$219.24
	5 x Week	$264.70
	6 x Week	$327.27
	Extras	$60.21
3 Cu. Yd.	1 x Week	$100.68
	2 x Week	$183.75
	3 x Week	$255.48
	4 x Week	$302.84
	5 x Week	$386.49
	6 x Week	$461.18
	Extras	$64.46

Size of Container	*Service*	*Monthly Charges*
4 Cu. Yd.	1 x Week	$122.09
	2 x Week	$214.00
	3 x Week	$305.75
	4 x Week	$398.79
	5 x Week	$510.53
	6 x Week	$609.37
	Extras	$70.86
6 Cu. Yd.	1 x Week	$168.37
	2 x Week	$302.84
	3 x Week	$436.59
	4 x Week	$588.91
	5 x Week	$742.39
	6 x Week	$921.10
	Extras	$79.81
8 Cu. Yd.	1 x Week	$219.24
	2 x Week	$384.26
	3 x Week	$571.60
	4 x Week	$771.68
	5 x Week	$921.78
	6 x Week	$1,090.87
	Extras	$90.22

(2) Rates for commercial compactors with a volume between two (2) cubic yards and eight (8) cubic yards shall be as follows plus a one-time delivery charge of one hundred fifty-three dollars and sixty-four cents ($153.64):

Compactors		
Size of Container	Service	Monthly Charges
2 Cu. Yd. Compactor	1 x Week	$195.75
	2 x Week	$384.82
	3 x Week	$575.56
	4 x Week	$769.63
	5 x Week	$960.37
	6 x Week	$1,151.09
	Extras	$60.96
3 Cu. Yd. Compactor	1 x Week	$245.55
	2 x Week	$486.75
	3 x Week	$726.72
	4 x Week	$973.50
	5 x Week	$1,213.47
	6 x Week	$1,453.43
	Extras	$69.85

Compactors		
4 Cu. Yd. Compactor	1 x Week	$295.36
	2 x Week	$588.68
	3 x Week	$877.90
	4 x Week	$1,177.35
	5 x Week	$1,466.57
	6 x Week	$1,764.79
	Extras	$78.73
6 Cu. Yd. Compactor	1 x Week	$499.89
	2 x Week	$999.73
	3 x Week	$1,499.62
	4 x Week	$1,999.49
	5 x Week	$2,499.33
	6 x Week	$2,999.19
	Extras	$89.98
8 Cu. Yd. Compactor	1 x Week	$666.46
	2 x Week	$1,332.86
	3 x Week	$1,999.32
	4 x Week	$2,665.68
	5 x Week	$3,332.15
	6 x Week	$3,998.58
	Extras	$119.97

(3) Rates for container service for open top containers and compactors with a volume in excess of eight (8) cubic yards will be determined and paid based on haul charges plus a per ton disposal charge that is established annually by the North Texas Municipal Water District (NTMWD). Haul charges are determined based on established zip codes that reflect the contractor's transportation costs using time/distance from the service location to the disposal site. A minimum haul charge of two hundred twenty-seven dollars and forty cents ($227.40) will be assessed for disposal at one of NTMWD's three transfer stations or the appropriate zip code charge associated for disposal at the NTMWD RDF 121 Landfill site. Customers renting containers will be charged a delivery fee and per day rental fee. Haul rates and associated fees shall be as follows:

Haul Fees by Zip Code

75074	75024	75093	Delivery	Daily Rental	Monthly Rental
75023	75075				
75025					

75094					
$333.47	$400.17	$466.86	$153.64	$6.48	$196.12
DISPOSAL FEE: $43.35 per ton					

(4) Reserved.

(5) In addition to the rates specified in subsections (b)(1) and (b)(3) above, there will be a delivery charge of one hundred fifty-three dollars and sixty-four cents ($153.64) for each temporary or on-call container delivered. "Temporary service" shall be defined as service of duration of less than one year.

(6) All rates for solid waste services are subject to the appropriate state taxes.

(7) Charges for damages to commercial solid waste containers not caused by the authorized commercial contractor, and charges for replacement of such containers at more frequent intervals than approved by the City Council shall be set forth in the performance standards for the authorized commercial contractor as referenced in the commercial franchise agreement.

(8) In addition to the charges hereinabove specified, the following additional fees and charges are authorized:

FRONT LOADER FEES:

Casters	$ 6.15 per lift
Locks	$ 3.08 per lift
Gates	$ 3.08 per lift
Exchange	$153.64
Extra Yardage	$ 50.40
Relocation	$ 92.20
Removals	$153.64

ROLL-OFF FEES:

Dry Run	$208.96
Liner	$ 43.01
Relocate	$153.64
Removal	$153.64
Wash	$307.29

(Ord. No. 91-1-42, § I, 1-28-91; Ord. No. 91-10-25, § I, 10-28-91; Ord. No. 92-12-17, § II, 12-14-92; Ord. No. 94-2-50, § II, 2-28-94; Ord. No. 94-10-33, § I, 10-24-94; Ord. No. 95-10-16, § I, 10-9-95; Ord. No. 96-11-6, § I, 11-11-96; Ord. No. 97-11-21, § I, 11-24-97; Ord. No. 99-10-23, § 1, 10-25-99; Ord. No. 2003-9-44, § I, 9-22-03; Ord. No. 2005-12-17, § I, 12-20-05; Ord. No. 2006-10-23, § I, 10-23-06; Ord. No. 2007-10-33, § II, 10-22-07; Ord. No. 2008-11-28, § I, II, 11-24-08; Ord. No. 2010-11-14, § II, 11-22-10; Ord. No. 2011-9-27, § I, 9-26-11; Ord. No. 2012-9-27, § II, 9-24-12; Ord. No. 2013-9-28, § II, 9-23-13; Ord. No. 2014-9-19, § II, 9-22-14; Ord. No. 2016-10-7, §§ I, II, 10-10-16; Ord. No. 2020-11-9, § II, 11-23-20; Ord. No. 2021-11-7, §§ I, II, 11-22-21; Ord. No. 2022-11-5, § II, 11-28-22; Ord. No. 2023-11-5, §§ I, II, 11-27-23; Ord. No. 2024-11-5, §§ I, II, 11-25-24)

Editor's note—Section III of Ord. No. 2024-11-5 states, "The rates established in Section 18-34 shall be effective for all billings rendered on and after December 1, 2024."

Sec. 18-35. Construction and demolition (C&D) debris recycling deposit and refund.

(a) The following rates and charges as set forth in the schedule below are hereby established as the maximum deposit rates that may be charged pursuant to the C&D deposit program as adopted in section 18-20:

Project Types	*Deposit per Sq. Ft.*	*Maximum Deposit*
Non-Residential/ Commercial: New construction	$0.25	$11,250.00
Non-Residential/ Commercial: Additions, alterations or remodeling	0.15	11,250.00
Residential and Commercial: Demolition	$0.20	$11,250.00
Flat Rate Projects:	Flat Rate	
Residential: Additions, alterations, or remodeling over 3,000 sq. ft.	$250.00	
Residential: New construction of single family units over 3,000 sq. ft.	$750.00	

(b) The following refund table is hereby established in the schedule table pursuant to the C&D deposit program as adopted in section 18-20:

Diversion Rate	*Refund*
≥60%	100%
50%—59%	80%

Diversion Rate	*Refund*
40%—49%	60%
30%—39%	40%
20%—29%	20%

(c) Authorization for refund of C&D deposit.

(1) The director may authorize the refund of any C&D deposit which was erroneously paid or collected.

(2) The director may authorize the refund of any C&D deposit when the building permit application is withdrawn or cancelled before any work has begun.

(3) The director may authorize the full refund of a C&D deposit when at least sixty (60) percent of the waste generated by the project was diverted from landfill disposal.

(4) The director may authorize a partial refund of a C&D deposit when less than sixty (60) percent and more than twenty (20) percent by weight of the waste generated by the project was diverted from landfill disposal. The partial refund shall not exceed that portion of the C&D deposit that is determined in the refund table.

(5) The director shall not authorize the refund of any C&D deposit, or any portion thereof, unless the original building permit applicant files a written request for refund no later than twelve (12) months after the building permit is no longer active for any reason (including because the project has been completed, the permit has been withdrawn, or the permit has been revoked), and the applicant provides documentation satisfactory to the director in support of the request.

(d) Funds received by the city as C&D deposits shall be used only for:

(1) Payment of C&D deposit refunds;

(2) Costs of administration of the program;

(3) Cost of programs developed to divert from landfill disposal the waste from construction, demolition and alteration projects;

(4) Costs of programs for the purpose of developing or improving the infrastructure needed to divert from landfill disposal the waste from construction, demolition and alteration projects, fund future green building incentive programs; and

(5) Costs of developing future sustainability based programs for the benefit of the citizens of Plano.

(Ord. No. 2008-9-34, § I, 9-22-08)

Sec. 18-36. Downtown collection accommodation and rates.

(a) *Monthly rates.* Downtown merchants south of 15th Street are required to utilize shared solid waste service containers as designated by the City of Plano. The city will provide designated containers for shared use including both recycling and solid waste in a centralized location. Merchants will be charged monthly by the City of Plano based on the use and floor area of the building occupied. Service rates are established as follows:

(1) Restaurants with less than one thousand (1,000) square feet of floor area will be charged $0.066 per square foot per month.

(2) Restaurants with one thousand (1,000) square feet or more of floor area will be charged $0.103 per square foot per month.

(3) Businesses designated as retail or office with less than one thousand (1,000) square feet of floor area will be charged fifteen dollars and sixty-eight cents ($15.68) per month.

(4) Businesses designated as retail or office with one thousand (1,000) square feet or more of floor area, will be charged forty-five dollars and seventy-six cents ($45.76) per month.

(5) Businesses designated as retail or office with more than eleven thousand (11,000) square feet of floor space will be charged two hundred fifty-five dollars ($255.00) per month.

(b) *Sanitary maintenance.* Merchants that fail to place discarded items completely in solid waste containers may be charged a clean up fee of fifty dollars ($50.00) per incident. All clean up fees will be included in the utility bill of the responsible merchant.

(c) *Power washing.* Downtown solid waste enclosures will be power washed once per month, as needed in order to maintain a sanitary enclosure. In the event additional power washing of the solid waste enclosure becomes necessary due to excessive spillage or leakage caused by downtown merchants, the city will include the power washing fee in the utility bill of the responsible merchant.

(d) *Appeal to director of public works.* Any merchant assessed a fee on their utility bill for sanitary maintenance or power washing may appeal in writing to the director of public works ("director") of the City of Plano within sixty (60) calendar days of receiving their utility bill. An appeal of the charges filed pursuant to this section shall clearly state the reason and factual basis for the appeal. The director or designee will hear the appeal within ten (10) calendar days of the receipt of the written notice of appeal. Appeals not filed within the sixty-day time period are waived.

(e) *Issuance of decision by director.* A decision from the director or designee shall be issued within ten (10) calendar days of hearing the appeal. The director or designee's decision is final and cannot be appealed.

(f) *Failure to pay charges.* Failure to pay power washing charges assessed pursuant to this section shall not be grounds for termination of utility services; however, the city will pursue all available collection remedies allowed by law. (Ord. No. 2011-11-8, § II, 11-14-11; Ord. No. 2025-9-16, § II, 9-16-25)

Secs. 18-37—18-50. Reserved.

ARTICLE III. RESERVED*

*__Editor's note—__Section II of Ord. No. 95-4-7, adopted April 10, 1995, repealed this article in its entirety. Formerly, Art. III consisted of §§ 18-51—18-60, which pertained to license and derived from §§ 14—22 of Ord. No. 76-1-8, adopted Jan. 26, 1976; § 2 of Ord. No. 78-8-5, adopted Aug. 14, 1978; and §§ 2 and 7 of Ord. No. 80-2-23, adopted Feb. 25, 1980.

[The next page is 1305]

Chapter 19

STREETS AND SIDEWALKS*

Art. I.	**In General, §§ 19-1—19-20**
Art. II.	**Design and Construction, §§ 19-21—19-40**
Art. III.	**Storm Drainage, §§ 19-41—19-55**
Art. IV.	**Right-of-Way Management Regulations, §§ 19-56—19-85**
Art. V.	**Street and Thoroughfare Closures, §§ 19-86—19-110**
	Div. 1. Generally, §§ 19-86—19-90
	Div. 2. Street Closure for Neighborhood Event, §§ 19-91—19-110
Art. VI.	**Reserved**

***Charter references—**Authority of city to regulate and control the use of streets, § 2.01; general authority of council relative to streets and sidewalks, § 3.07(q).

Cross references—Administration, Ch. 2; buildings and building regulations, Ch. 6; cable television, Ch. 7; motor vehicles and traffic, Ch. 12; parks and recreation, Ch. 15; planning and development, Ch. 16; utilities, Ch. 21; cable television franchise, App. B; public works specifications, § 2-6; metroplex mayor's committee, § 2-7; impact fee advisory committee, § 2-216; consumption of alcoholic beverages on or adjacent to streets or alleys, § 3-6; sanitary facilities on construction sites; required, § 6-5; building lines on specific streets, § 6-131 et seq.; signs, § 11-16 et seq.; vehicles for hire, § 11-101 et seq.; special events, § 11-301 et seq.; permit for funeral processions and parades, § 12-7; handbills, § 14-26 et seq.; noise, § 14-85 et seq.; landscaping of streets in parks, § 15-101 et seq.; planting, etc. trees, etc. on public property, § 15-116 et seq.; payment for traffic and street signs by developers, § 16-22; beautification committee, § 16-81 et seq.; platting and subdividing of land, § 16-131 et seq.; use of streets for cable television franchise, App. B, § 12.

State law references—Street improvements and assessments, Vernon's Ann. Civ. St., art. 1086 et seq.; streets generally, Vernon's Ann. Civ. St., art. 1175(8), (12)—(18), (33); improvement districts, Vernon's Ann. Civ. St., art. 1179; private improvements, Vernon's Ann. Civ. St., art. 1180; street lighting system, Vernon's Ann. Civ. St., art. 1221 et seq.

ARTICLE I. IN GENERAL*

Sec. 19-1. Encroachment of public property.

(a) *Offense.* It shall be unlawful for any person to place or allow the placement of any item that encroaches on any portion of public property.

(1) For purposes of this section, public property includes, but is not limited to, public facilities, streets, roads, alleys, sidewalks, parkway areas, rights-of-way, and easements.

(2) Items prohibited from encroaching on any portion of public property under this section include, but are not limited to, lumber, boxes, firewood, posts, fences, shipping containers, and storage containers.

(b) *Affirmative defenses.* It shall be an affirmative defense to prosecution under this section if a defendant proves by a preponderance of the evidence that:

(1) The item was placed in a manner and location that complied with a valid, city-issued permit, including, but not limited to a bike-share permit; or

(2) The placement of the item is expressly authorized by and in compliance with a city ordinance, including but not limited to, city-approved valet parking.

(c) *Application.* The prohibition under this section shall not apply to:

(1) An item placed by or required by the City of Plano and in compliance with all other local, state, and federal laws, including, but not limited to, trees, shrubs, landscaping, solid waste and recycling containers issued by the City of Plano, bike racks placed in the right-of-way by the City of Plano, bike racks placed in the right-of-way by a developer as required by the City of Plano, and mailboxes; or

(2) A lawfully parked motor vehicle in compliance with all local, state, and federal laws.

(d) The parkway area is that area lying between the outer boundary of the right-of-way of any public street and/or alley and the curb line of the street and/or alley; or if there is no curb line, the paved portion of the street and/or alley.

(e) *Enforcement.*

(1) The city manager or designee shall be authorized to enforce this section.

(2) If conduct prohibited under this section is also an offense under the Texas Penal Code, Texas Transportation Code, Texas Health and Safety Code, or any other state law, the violation shall be enforced under the applicable state law.

(3) If conduct is prohibited under this section and another city ordinance, it may be enforced and prosecuted under either this section or another applicable city ordinance.

(f) *Penalty.* Any violation of the provisions or terms of this article by any person, firm, corporation or association shall be a class C misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(b) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(g) In addition to criminal penalties and all other available remedies in law or equity, the City of Plano police chief or designee has authority for removal, impoundment, storage, advertisement, assessment of liens, sale, and disposition of property, pursuant to state law or chapter 17, City of Plano Code of Ordinances, as amended.
(Ord. No. 97-9-15, § I, 9-22-97; Ord. No. 2002-4-14, § IV, 4-22-02; Ord. No. 2008-11-17, § I, 11-10-08; Ord. No. 2018-2-6, § II, 2-26-18; Ord. No. 2018-11-1, § II, 11-12-18; Ord. No. 2022-3-5, § I, 3-28-22)

*__Editor's note—__Ord. No. 97-2-12, §§ I—VI, adopted Feb. 10, 1997, repealed former §§ 19-1—19-3 of the Code, which pertained to waste from air-conditioning units not to blow into streets, irrigation systems installed within public right-of-way, and visibility obstructions, respectively, and derived from Ord. No. 65-10-1, §§ 1, 2, adopted Oct. 11, 1965; Ord. No. 82-11-21, §§ 1—4, adopted Nov. 22, 1982; and Ord. No. 74-4-3, §§ 1—7, adopted April 8, 1974; respectively. Ord. No. 97-9-15, § I, adopted Sept. 22, 1997, enacted a new § 19-1 to read as herein set out.

Sec. 19-2. Valet parking.

(1) *Definitions.* The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this article, except where the context clearly indicates a different meaning:

(a) *Director* means the director of the department designated by the city manager to enforce and administer this division, or the director's designated representative.

(b) *Host business* means a real property owner or lessee of real property at which a business is operated that intends to provide valet parking service adjacent to its real property. A host business does not include a business whose primary purpose is providing valet service operations. A host business must be an owner or lessee of real property immediately adjacent to the valet parking service area designated on the site map provided with the license application.

(c) *Valet parking service* means accepting possession of a vehicle on the right-of-way for the purpose of parking the vehicle for the valet operator or retrieving a parked vehicle and returning it to the valet operator on the right-of-way, regardless of whether a fee is charged.

(2) *Licenses.*

(a) *License application.* An application for a valet parking license shall be made by a host business in writing on a form prescribed by the Director. A nonrefundable application fee of twenty-five dollars ($25.00) must accompany each application for a valet parking service license. All information requested from the valet operator in the application must be provided for an application to be considered complete. Only completed applications shall be processed by the Director.

(b) *Property owner permission required.* An applicant that is a lessee of the host business property shall obtain written permission of the property owner to apply for a valet parking operation license.

(c) *Written notice to surrounding property owners required.* A host business shall give written notice to all property owners and businesses within one hundred (100) feet of the host business property as a requirement for obtaining a license agreement from the city.

(d) *Notice by sign.* An applicant for a license issued under this code for a location not previously licensed for valet parking service shall, not later than the 15th day before the date the application is filed, prominently post an outdoor sign at the host business location stating that valet parking service is intended to be operated on the premises, and the name and business address of the applicant. The sign must be at least twenty-four (24) by thirty-six (36) inches in size and must be written in lettering at least two (2) inches in size.

(e) *License agreement required.* A written license agreement between the city and the host business is required to operate a valet parking service and the host business and its employees, contractors and agents operating the valet service shall comply at all times with the terms contained in the agreement.

(f) *Approval.* No written license agreement shall be valid unless approved by the Director. The Director shall take into consideration the following factors: the valet site map provided by applicant and the extent to which the valet parking service might unreasonably disrupt the flow of pedestrian and vehicular traffic, including the location of the proposed valet parking service in relationship to traffic control devices, crosswalks, intersections and stop signs; the extent to which the valet parking service might unreasonably interfere with or impinge upon on-street parking; the proximity of traditional on-street and off-street park-

ing to the business to be served by the valet parking service; the proximity and relationship to any other previously permitted valet parking service; and any other relevant evidence or information submitted by the applicant.

(g) *Fee.* A permit shall not be valid until the host business has paid a right-of-way use fee of two hundred fifty dollars ($250.00). The fee shall be paid annually and failure to pay the fee shall result in revocation of the license agreement.

(h) *Modification and revocation.* The Director may, at any time and for any reason, modify the terms of or revoke a valet parking service license issued pursuant to this division.

(i) *Temporary suspension.* The Director may temporarily suspend the operations of a valet parking service if the public right-of-way reserved by the valet parking service is needed for an emergency or temporary use, including, but not limited to city-sponsored special events and the construction, maintenance, or repair of a street or utility.

(j) *Expiration of license.* A valet parking service license expires one (1) year from the date of issuance, unless sooner terminated by the Director. A valet parking service license may be renewed by making application pursuant to this chapter at least thirty (30) days before expiration of the license.

(k) *Temporary licenses for valet parking operations.* Temporary licenses for valet parking service that are no longer than three (3) consecutive days in duration and which will occur no more than five (5) times in a consecutive 365-day time frame on the same property, may be approved or denied by the Director. A temporary valet parking license shall comply with all the standard requirements for licenses in this section with the exception that notice to surrounding property owners and by sign shall not be required, the right-of-way use fee for a temporary valet parking license fee shall be fifty dollars ($50.00), and the license shall expire as established by the director in the license agreement based on the short term duration of the valet parking service.

(l) *Appeals.* Any person aggrieved by a decision of the Director under this provision may appeal the decision to City Council by filing a notice of written appeal to the Director within ten (10) days of the Director's decision.

(m) *No rights established.* Nothing in this article is intended to establish any legal real property interest in operating a valet parking service or any legal property interest in a valet parking license agreement.

(3) *Violations.*

(a) It shall be unlawful for any person, firm or corporation to provide or engage in valet parking service without a valid valet parking license agreement issued pursuant to this article. A valet parking license agreement that has expired or that has been suspended or revoked is not a valid license agreement.

(b) It shall be unlawful for a valet parking operator to stop or direct traffic.

(c) Existing valet parking operations which would be regulated by this ordinance shall have ninety (90) days in which to apply for and obtain a valet parking license agreement or they shall be in violation of this section.

(4) *Enforcement.*

(a) Any person, firm or corporation violating any of the provisions or terms of this section shall be deemed guilty of an offense and upon conviction thereof shall be fined in accordance with the provisions of Section 1-4(b) of the city code of ordinances. Each and every day a violation continues shall constitute a separate offense.

(Ord. No. 2008-11-18, § I, 11-10-08)

Secs. 19-3—19-20. Reserved.

ARTICLE II. DESIGN AND CONSTRUCTION*

Sec. 19-21. Reserved.

Editor's note—Ord. No. 2023-9-16, § II, adopted September 11, 2023, repealed § 19-21, which pertained to rules and regulations adopted and derived from Ord. No. 91-5-21, § I, 5-13-91; Ord. No. 93-5-27, § 1, 5-10-93; Ord. No. 96-4-28, § I, 4-22-96; Ord. No. 97-8-7, § II, 8-11-97; Ord. No. 2009-6-10, §§ I, II, 6-8-09; Ord. No. 2009-9-12, §§ I, II, 9-14-09.

Secs. 19-22—19-26. Reserved.

Sec. 19-26.1. Driveway approaches.

A driveway approach shall be defined as the paved portion of a driveway intended for vehicular traffic and running from the street curb line or edge of paving to the property line.

(1) A driveway approach connecting to a street shall conform to the following standards:

a. *General requirements.* Driveway approaches shall be constructed of reinforced concrete and shall be a minimum of six (6) inches thick. No part of the driveway approach shall cross over the projection, to the street, of the adjacent property line.

b. *Concrete specifications.* Concrete for driveway approaches shall have a minimum compressive strength of three thousand (3,000) psi in twenty-eight (28) days. The quantity of mixing water shall not exceed six and one-half (6½) gallons per sack (ninety-four (94) lbs.) of Portland cement. The slump of the concrete shall not exceed four (4) inches. A minimum content of five (5.0) sacks of cement per cubic yard of concrete is required.

c. *Reinforcing steel.* Reinforcing steel shall be No. 3 (⅜-inch nominal diameter) deformed bars, shall be placed on twenty-four-inch centers each way in the approach, and shall be lapped/spliced a minimum of twelve (12) inches. Reinforcing shall be properly supported to assure it will remain at mid-depth of the slab after placing of the concrete.

d. *Removing existing pavement.* All existing concrete pavement shall be removed by first sawing a groove at least one (1) inch in depth along the proposed break line. Said break line shall lie eighteen (18) inches into the street from the existing back of curb and shall run between the points of curb return for the approach. After the initial saw cut has been made, the pavement and curb may be removed by use of pneumatic equipment. Care shall be exercised to expose the existing reinforcing steel for lap splicing to driveway reinforcing.

e. *Optional method of removing existing pavement.* An optional method of removing is to saw the full depth of the concrete and construct a longitudinal butt joint in accordance with Exhibit "B."

Editor's note—Exhibit "B" is set out at the end of this article.

f. *Construction methods.* The subgrade shall be excavated and shaped to line grade in cross section and, if considered necessary by the city's inspector, tamped and sprinkled. The subgrade shall be moist at the time the concrete is placed. Forms shall be of wood or metal, straight, free from warp and of a depth equal to the thickness of the finished work. They shall be securely staked to line and grade and maintained in a

*__Editor's note—__**Editor's note—**Section V of Ord. No. 91-5-21, adopted May 13, 1991, repealed Ord. No. 86-11-17, adopted Nov. 10, 1986, § I of which was codified as §§ 19-21—19-26 and §§ 19-28 and 19-29, which pertained to design and construction standards generally. Section I of Ord. No. 91-5-21 has been codified herein as § 19-21, at the editor's discretion. Sections 19-26.1—19-27.1 did not derive from Ord. No. 86-11-17.

true position during the depositing of concrete. The reinforcing steel shall be placed in position, and care shall be exercised to keep all steel in its proper location.

g. *Connection to asphalt pavement.* When connecting a driveway approach to asphalt street paving, the concrete shall be separated from the edge of the existing pavement by an eighteen-inch strip of hot mixed asphaltic concrete at least six (6) inches in depth. All other applicable requirements listed above concerning concrete and reinforcing steel shall remain in effect.

h. *Texas Highway Department permit.* All driveway approaches connecting to existing roads which are a part of the state highway system will require a permit from that organization in addition to those required by this article. Such permit shall be applied for through the city engineering department.

(2) A driveway approach connecting to an alley shall conform to the following standards:

a. General requirements. Driveway approaches shall be constructed of reinforced concrete and shall be a minimum of six (6) inches thick. No part of the driveway approach shall cross over the projection, to the alley, of the adjacent property line (see Exhibit "C").

Editor's note—Exhibit "C" is set out at the end of this article.

b. *Concrete specifications.* Concrete for driveway approaches shall have a minimum compressive strength of three thousand (3,000) psi in twenty-eight (28) days. The quantity of mixing water shall not exceed six and one-half (6½) gallons per sack (ninety-four (94) lbs.) of Portland cement. The slump of the concrete shall not exceed four (4) inches. A minimum content of five (5.0) sacks of cement per cubic yard of concrete is required.

c. *Reinforcing steel.* Reinforcing steel shall be No. 3 (⅜-inch nominal diameter) deformed bars, shall be placed on twenty-four-inch centers each way in the approach, and shall be lapped/spliced a minimum of twelve (12) inches. Reinforcing shall be properly supported to assure it will remain at mid-depth of the slab after placing of the concrete.

d. *Construction methods.* The subgrade shall be excavated and shaped to line grade in cross section and, if considered necessary by the city's inspector, tamped and sprinkled. The subgrade shall be moist at the time the concrete is placed. Forms shall be of wood or metal, straight, free from warp and of a depth equal to the thickness of the finished work. They shall be securely staked to line and grade and maintained in a true position during the depositing of concrete. The reinforcing steel shall be placed in position, and care shall be exercised to keep all steel in its proper location.

(Ord. No. 90-8-6, § III, 8-13-90)

Editor's note—Ord. No. 90-8-6, § I, adopted Aug. 13, 1990, repealed Ord. No. 89-7-21, adopted July 24, 1989, § III of which was codified as § 19-26.1. Section III of Ord. No. 90-8-6 enacted similar new provisions which have been included as a new § 19-26.1 at the discretion of the editor.

Sec. 19-27. Sidewalk and location design standards.

(a) *Definition of sidewalk.* A sidewalk is defined as that paved area in a roadway right-of-way between the curb lines or the edge of pavement of the roadway and the adjacent property lines for the use of pedestrians. The maximum grade of the sidewalk above the adjacent curb shall be one-quarter (¼) inch per foot, as measured on a perpendicular line from the curb to the closest edge of the sidewalk. These sidewalks shall conform to the standards set out in subsection (b) hereof.

(b) *Standards.*

(1) *Concrete specifications.* Concrete for walks shall have a minimum compressive strength of three thousand (3,000) psi at twenty-eight (28) days. The quantity of mixing water shall not exceed six and one-half (6½) U.S. gallons per sack (ninety-four (94) lbs.) of Portland cement. The slump of the concrete shall not exceed four (4) inches. A minimum content of five (5.0) sacks of cement per cubic yard of concrete is required.

(2) *Reinforcing steel.* Reinforcing steel shall be No. 3 deformed bars (⅜-inch nominal diameter) and shall be placed a maximum of twenty-four (24) inches on center, both ways, and shall be spliced/lapped a minimum of twelve (12) inches. Reinforcing shall be properly supported to assure it will remain at mid-depth of the slab after placing of the concrete. Details of the sidewalk reinforcing and dowels at expansion joints are shown in Exhibit A-1 [attached to Ordinance Number 96-4-16]. Details of the ties into driveways and alleys with dowels are shown in Exhibit A-2 [attached to Ordinance Number 96-4-16].

(3) *Placement.* The chief building official or his designee or the city engineer or his designee shall inspect the forms before concrete is poured. Concrete shall be free from honeycombing, rock pockets and segregation of ingredients. The addition of neat cement to concrete in order to absorb excess water to accelerate hardening is prohibited.

(4) *Forms.* Forms shall be set to provide for drainage of sidewalk from the property line to the curb line; then slope in general will be one-fourth (¼) inch per foot of width of sidewalk. Elevation of the side of the walk adjacent to the street shall be one-fourth (¼) vertical inch per one (1) horizontal foot above the curb, measured perpendicular to the curb.

(5) *Joints.* One-half-inch premolded bituminous expansion joints with No. 4 (½-inch nominal diameter) smooth dowels shall be spaced at twenty-foot intervals in accordance with Exhibit "A." Where new work abuts driveways, pavement, curbs or any other work, expansion joints shall be filled with premolded bituminous expansion joint filler or redwood at least one-inch nominal thickness and shall extend six (6) inches deep and the entire width of the concrete section. Sidewalk control joints shall be grooved three-eighths (⅜) inch deep on four-foot centers.

Editor's note—Exhibit "A" is set out at the end of this article

(6) *Finish.* The surface may have a monolithic finish by floating with a wooden float until a slight excess of sand appears on the surface or may be brushed after troweling in lieu of floating. In no case shall the surface be left slick or with a glossy finish. The edges of the sidewalk control joints and expansion joints shall be tooled to a smooth finish not less than two (2) inches in width. Exposed edges of the sidewalk shall be rounded with an edger to a radius of one-half (½) inch.

(Ord. No. 90-8-6, § II, 8-13-90; Ord. No. 96-4-16, § I, 4-22-96)

Editor's note—Ord. No. 90-8-6, § 1, adopted Aug. 13, 1990, repealed Ord. No. 89-7-21, adopted July 24, 1989, § II of which was codified as § 19-27. Section II of Ord. No. 90-8-6 enacted similar new provisions to read as set out in § 19-27.

Sec. 19-27.1. Permit required.

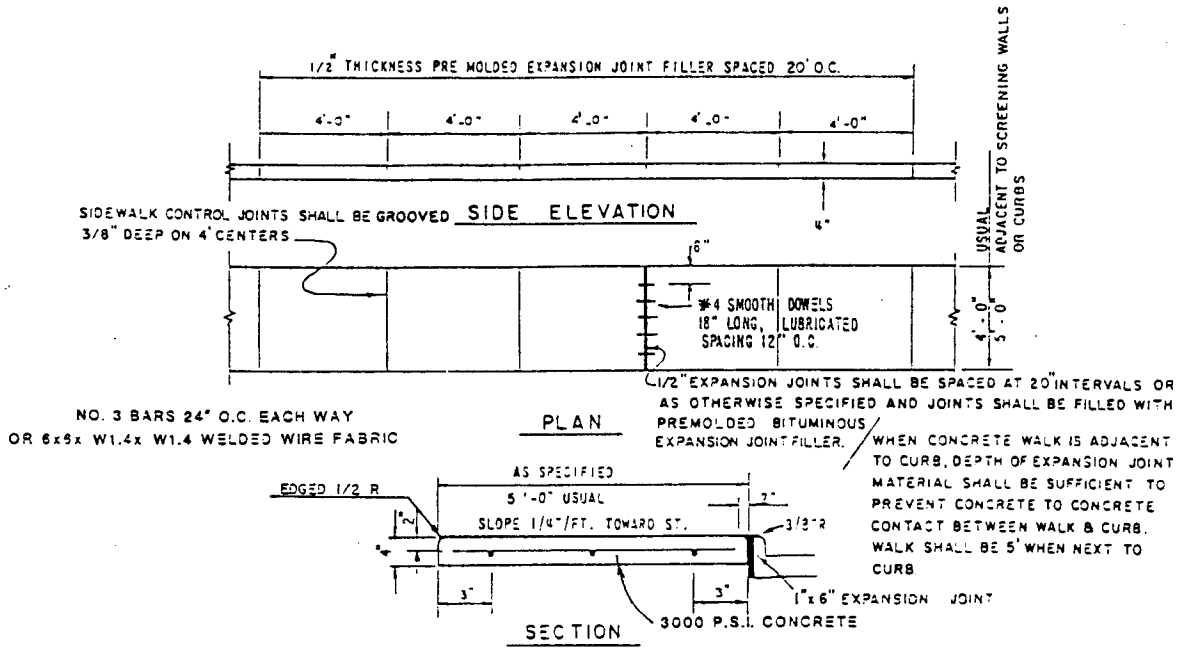
(a) A permit issued by the city shall be required before the start of any construction hereunder. In order to obtain a permit as required by this article, the contractor or his authorized representative shall file with the chief building official an

application in writing therefor on a form to be furnished for that purpose. Such contractor shall be registered with the chief building official. Each applicant for a permit shall describe the abutting property adjacent to which the proposed work on public property is to be done, either by lot, block or tract and house number, location on the street or similar description which will readily identify and definitely locate the site of proposed work. Each applicant shall give such other pertinent information as required by the chief building official.

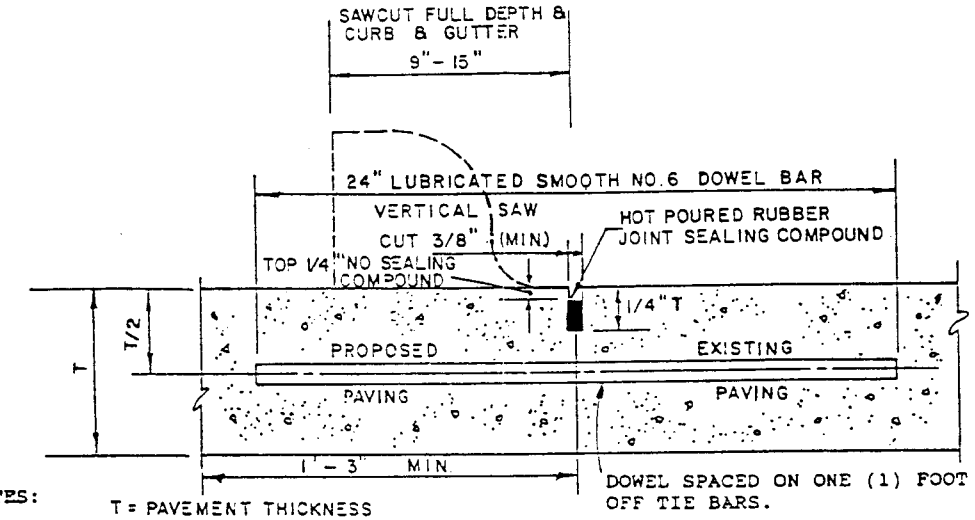
(b) Any person desiring a permit required by this article shall, at the time of filing an application therefor, pay the current fee established by the chief building official.

(Ord. No. 90-8-6, §§ IV, V, 8-13-90)

Editor's note—Ord. No. 90-8-6, § I, adopted Aug. 13, 1990, repealed Ord. No. 89-7-21, adopted July 24, 1989, §§ IV and V of Ord. No. 90-8-6 enacted similar new provisions which have been included as a new § 19-27.1 at the discretion of the editor.



CONCRETE SIDEWALK **EXHIBIT "A"**



NOTES:

T = PAVEMENT THICKNESS

DOWEL SPACED ON ONE (1) FOOT CENTER TO CENTER, 6 INCHES OFF TIE BARS.

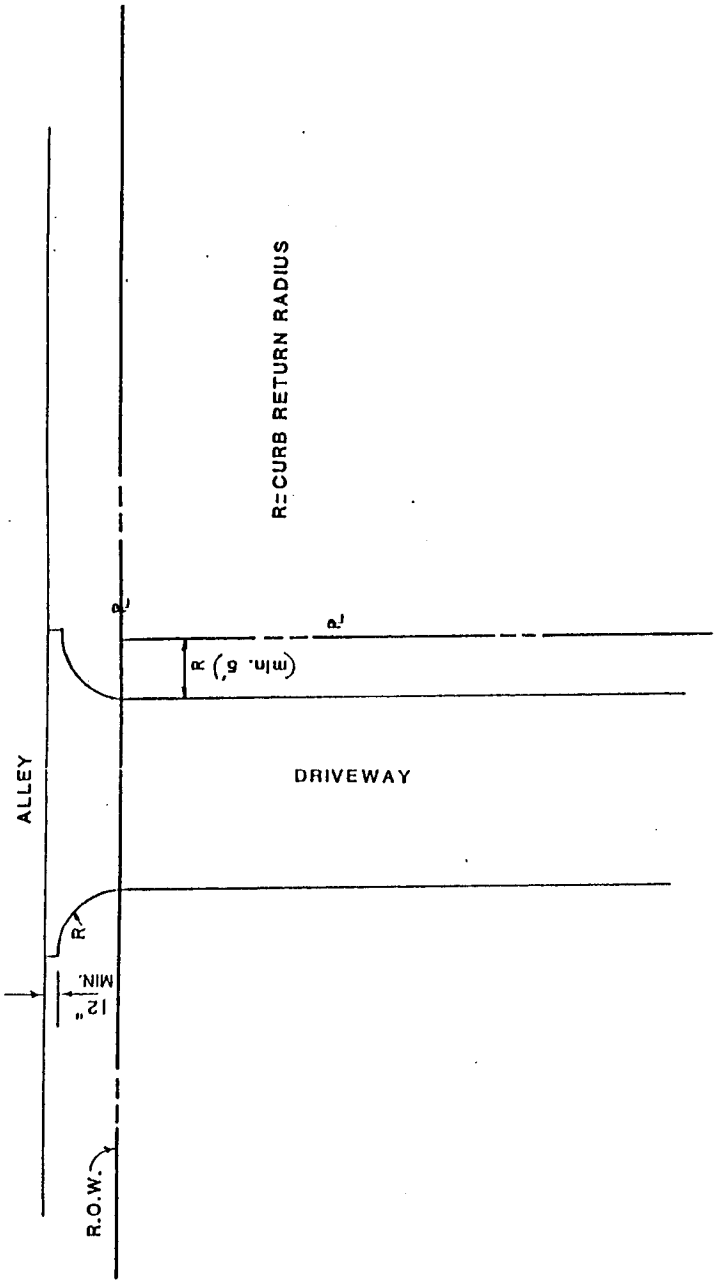
1. NO. 5 SMOOTH DOWEL BAR MAY BE USED IN 5 INCH AND 6 INCH PAVEMENT THICKNESS.
2. LONGITUDINAL BUTT CONSTRUCTION MAY BE UTILIZED IN PLACE OF LONGITUDINAL HINGED (KEYWAY) JOINT AT CONTRACTORS OPTION.
3. DOWEL BARS SHALL BE DRILLED INTO PAVEMENT HORIZONTALLY BY USE OF A MECHANICAL RIG.

   DRILLING BY HAND IS NOT ACCEPTABLE, PUSHING DOWEL BARS INTO GREEN CONCRETE NOT ACCEPTABLE.

LONGITUDINAL BUTT JOINT

EXHIBIT "B"

EXHIBIT "C"



DRIVEWAY APPROACH

Secs. 19-28—19-40. Reserved.

ARTICLE III. STORM DRAINAGE*

Sec. 19-41. Design manual adopted.

The city council, having reviewed the provisions of the *Storm Drainage Design Manual* presented to it, and further finding the provisions of such manual to be proper and necessary in order to promote and protect the health, safety and general welfare of the City of Plano and its citizens, hereby approves and hereby authorizes its use by the city.
(Ord. No. 79-4-10, § 1, 4-23-79; Ord. No. 93-6-11, § I, 6-14-93)

Sec. 19-42. Manual to be subordinate to subdivision ordinance.

The *City of Plano Storm Drainage Design Manual* shall be consistent with and subordinate to the subdivision ordinance of the city now in force and as amended hereafter.
(Ord. No. 79-4-10, § 2, 4-23-79; Ord. No. 93-6-11, § II, 6-14-93)

Cross reference—Platting and subdividing of land, § 16-131 et seq.

Sec. 19-43. Jurisdiction of manual.

The *City of Plano Storm Drainage Design Manual* shall apply to all construction and/or development and all subdivision of land within the city or its extraterritorial jurisdiction.
(Ord. No. 79-4-10, § 3, 4-23-79; Ord. No. 93-6-11, § III, 6-14-93)

Sec. 19-44. Reserved.

Editor's note—Section IV of Ord. No. 93-6-11, amended this Code by repealing § 19-44, pertaining to amendments to the Storm Drainage Design Manual and derived from Ord. No. 81-8-7, §§ 1—8, adopted Aug. 10, 1981.

Secs. 19-45—19-55. Reserved.

*__Cross references—__**Cross references—**Erosion control, § 14-92 et seq.; flood damage prevention, § 16-161 et seq.

ARTICLE IV. RIGHT-OF-WAY MANAGEMENT REGULATIONS†

Sec. 19-56. Title.

This article shall be known and cited as the right-of-way management ordinance for the City of Plano, Texas.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-57. Construction; governing law; venue.

This article shall be construed under and in accordance with the laws of the State of Texas and the City Charter and City Code to the extent that such Charter and City Code are not in conflict with or in violation of the Constitution and laws of the United States or the State of Texas. All obligations of the parties hereunder are performable in Collin County and/or Denton County, Texas.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-58. Scope.

This article shall be effective within the geographical limits of the city, including any areas subsequently annexed by the city.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-59. Purpose; objectives; applicability.

(a) *Purpose.* This article provides principles and procedures for the placement of structures and facilities, construction, excavation, encroachments, and work activities within or upon any public right-of-way and to protect the integrity of

†**Editor's note—**Ord. No. 2017-8-8, §§ I, II, adopted August 28, 2017, repealed the former article IV, §§ 19-56—19-82, and enacted a new article IV as set out herein. The former article IV pertained to similar subject matter and derived from Ord. No. 2001-3-20, § II, adopted March 26, 2001; Ord. No. 2001-5-4, § I, adopted May 8, 2001; Ord. No. 2002-12-2, § I, adopted December 9, 2002; Ord. No. 2006-10-14, § I, October 9, 2006; Ord. No. 2017-6-11, § I, adopted June 28, 2017.

Cross reference—Adoption of public works specifications, § 2-6.

the road and city utility system. To achieve these purposes, it is necessary to require permits of private users of the public rights-of-way, except as prohibited by law, and to establish permit procedures, rules, and regulations for work done within or upon the public rights-of-way.

(b) *Objectives.* Public and private uses of public rights-of-way for location of facilities employed in the provision of public services should, in the interests of the general welfare, be accommodated; however, the City of Plano must ensure that the primary purpose of the rights-of-way, safe passage of pedestrian and vehicular traffic, is maintained to the greatest extent possible. In addition, the value of other public and private installations, roadways, the city utility system, facilities and properties should be protected, competing uses must be reconciled, and the public safety preserved. The use of the public rights-of-way by persons, agencies, network providers, and public infrastructure contractors is secondary to these public objectives and the movement of traffic. This article is intended to strike a balance between the public need for efficient, safe transportation routes and the use of public rights-of-way for location of facilities by public and private entities. The article thus has several objectives:

(1) To ensure that the public safety is maintained and that public inconvenience is minimized.

(2) To protect the city's infrastructure investment by establishing repair standards for the pavement, facilities, and property in the public rights-of-way when work is accomplished.

(3) To facilitate work within the public rights-of-way through the standardization of regulations.

(4) To maintain an efficient permit process.

(5) To conserve and fairly apportion the limited physical capacity of the public rights-of-way held in public trust by the city.

(6) To establish a public policy for enabling the city to discharge its public trust consistent with the rapidly evolving federal and state regulatory policies, industry competition, and technological development.

(7) To promote cooperation among the agencies, network providers, and public infrastructure contractors (as defined herein) and the city in the occupation of the public rights-of-way, and work therein, in order to:

a. Eliminate duplication that is wasteful, unnecessary or unsightly;

b. Lower the agencies', network providers', public infrastructure contractors' and the city's costs of providing services to the public; and

c. Preserve the physical integrity of the streets and highways by minimizing street cuts.

(8) To assure that the city can continue to fairly and responsibly protect the public health, safety, and welfare.

(9) To further the public health, safety, and welfare of the citizens of the city by establishing aesthetic standards for installation of facilities in the public right-of-way that are reasonable, are technically feasible, and are reasonably directed to avoiding or remedying the intangible public harm of unsightly or out-of-character deployments.

(c) *Applicability.*

(1) The requirements of this article apply to all persons, agencies, network providers, and public infrastructure contractors that place structures and facilities or that conduct construction, excavation, encroachments, and work activities within or upon any public rights-of-way except:

a. Persons, agencies, or public infrastructure contractors providing service drops for single-family and two-family residence-zoned properties on private property. All permits for these properties will be issued through the city's building inspection department.

b. New residential service connections which are permitted through the building inspection department of the City of Plano as provided in subsection 19-65(a)(5) below.

c. Right-of-way use for valet-parking.

d. Right-of-way use for sidewalk cafes.

e. Revocable use of the right-of-way pursuant to an encroachment agreement.

(2) Any permit issued prior to December 18, 2018 will remain subject to the terms and conditions of city ordinances and requirements in effect at the time of issuance of the permit and is not affected by this article, except that, upon expiration or conclusion of the permit, a new or renewal permit must be obtained in accordance with this article.

(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-60. Definitions.

Abandoned facilities means facilities no longer in service or physically disconnected from the operating facilities, or from any other facilities, or from any other facilities that are in use or that still carry service. Facilities are deemed to be abandoned facilities if they are not properly registered with the city.

Agency means any franchised person operating in the right-of-way. "Agency" includes all contractors and sub-contractors hired or retained to do construction for an agency.

Applicant means an owner or authorized agent of an owner, who submits an application for a permit under the provisions of this article.

Backfill means the placement or return of dirt, fill, or other material for the purpose of restoring an excavated area.

Concealment means any wireless facility or pole that is covered, blended, painted, disguised, or otherwise concealed such that the wireless facility blends into the surrounding environment and is visually unobtrusive. A concealed wireless facility or pole also includes any wireless facility or pole conforming to the surrounding area in which the wireless facility or pole is located and may include, but is not limited to hidden beneath a façade, blended with surrounding area design, painted to match the supporting area, or disguised with artificial tree branches.

Certificated telecommunications provider (CTP) means a person who has been issued a certificate of convenience and necessity, certificate of operating authority, or service provider certificate of operating authority by the public utility commission to offer local exchange telephone service. A CTP does not include a network provider, as defined herein.

City means the City of Plano, Texas. As used throughout, the term city also includes the designated agent of the city.

City engineer means the director of engineering of the City of Plano or any other person designated by the city manager to administer this article.

City manager means the city manager of the City of Plano.

Closure means a complete or partial closing of one (1) or more lanes of traffic of a major thoroughfare and the complete closure of any other type street or sidewalk.

Collocate means the installation, mounting, maintenance, modification, operation, or replacement of network nodes in a public right-of-way on an existing pole or structure.

Compaction means ninety-five (95) percent of maximum density with a moisture content of negative two (-2) percent to four (4) percent of optimum under paved surfaces and ninety (90) percent of maximum density with a moisture content of negative two (-2) percent to four (4) percent of optimum outside of paved surfaces.

Construction means breaking of pavement, excavation, installation of facilities, boring or jacking of utilities, restoration of pavement cuts, or other work by an agency, network provider, or public infrastructure contractor in a public right-of-way. The definition includes, but is not limited

to, providing primary service, restoration, or maintenance of existing facilities within the right-of-way.

Consumer price index means the annual revised Consumer Price Index for All Urban Consumers for Texas, as published by the federal Bureau of Labor Statistics or other publication as authorized by state law.

Decorative pole means a streetlight pole specifically designed and placed for aesthetic purposes and on which no appurtenances or attachments, other than specially designed informational or directional signage or temporary holiday or special event attachments, have been placed or are permitted to be placed according to the City of Plano Zoning Ordinance regulation of light pole banners, as may be further amended.

Design district means an area that is zoned or otherwise designated by city ordinance for which the city maintains and enforces unique design and aesthetic standards.

Duct or *conduit* means a single enclosed raceway for cables, fiber optics, or other wires. "Duct" or "conduit" shall not include the maintenance duct associated with a conduit that is reserved for use in replacing damaged cable or for rerouting purposes.

Emergency means any event that may threaten public health or safety, including, but not limited to, damaged or leaking water or gas conduit systems, damaged, plugged, or leaking sewer or storm drain conduit systems, damaged facilities, downed aerial facilities, downed poles or service outages whether to one customer or an area of the city.

Erosion control means compliance with the City of Plano Erosion and Sediment Control Manual, as amended.

Excavate or *excavation* means to dig into or in any way remove or penetrate any part of a public right-of-way and does not include landscaping activity unless the activity removes or disturbs the paved portion of the right-of-way.

Facilities means the plant, equipment, and property, including, but not limited to, lines, transport service, poles, mains, pipes, conduits, ducts, cables and wires located under, on or above the surface of the ground within the public right-of-way and valves, and related facilities and equipment used or useful for the provision of utility services, wireless or network services, or communications services to the public.

Historic district means an area that is zoned or otherwise designated as a historic or heritage district under municipal, state or federal law.

Local exchange telephone service means telecommunications service provided within an exchange to establish connections between customer premises within the exchange, including connections between a customer premises and a long distance provider serving the exchange. The term includes tone dialing service, service connection charges, and directory assistance services offered in connection with basic local telecommunications service and interconnection with other service providers. The terms does not include the following services, whether offered on an intra-exchange or inter-exchange basis:

(1) Central office based PBX-type services for system of seventy-five (75) stations or more;

(2) Billing and collection services;

(3) High-speed private line services of 1.544 megabits or greater;

(4) Customized services;

(5) Private line or virtual private line services;

(6) Resold or shared local exchange telephone services if permitted by tariff;

(7) Dark fiber services;

(8) Non-voice data transmission service offered as a separate service and not as a component of basic local telecommunications service;

(9) Dedicated or virtually dedicated access services; or

(10) Any other service the public utility commission determines is not a local exchange telephone service.

Major thoroughfare means any thoroughfare type D or higher as shown on the City of Plano Thoroughfare Plan, as amended.

Mid-span pole means a new pole, other than a service pole, installed between two current utility poles for the sole purpose of supporting a network node, in a developed area, or, in the case of a newly developed area, a pole that is located closer than one hundred fifty (150) feet from the next utility pole.

Micro network node means a network node that is not larger in dimension than twenty-four (24) inches in length, fifteen (15) inches in width, and twelve (12) inches in height, and that has an exterior antenna, if any, not longer than eleven (11) inches.

Network node means equipment at a fixed location that enables wireless communications between user equipment and a communications network. The term includes:

(1) Equipment associated with wireless communications;

(2) A radio transceiver, an antenna, a battery-only backup power supply, and comparable equipment, regardless of technological configuration; and

(3) Coaxial or fiber-optic cable that is immediately adjacent to and directly associated with a particular collation; and

does not include:

(1) An electric generator;

(2) A pole; or

(3) A macro tower.

Unless specifically provided for herein, a network node includes small cells and small wireless facilities, as defined herein.

Network provider means:

(1) A wireless service provider; or

(2) A person that does not provide wireless services and that is not an electric utility but builds or installs on behalf of a wireless service provider:

a. Network nodes; or

b. Node support poles or any other structure that supports or is capable of supporting a network node.

Node support pole means a pole installed by a network provider for the primary purpose of supporting a network node.

Order means the Federal Communications Commission Declaratory Ruling, Third Report and Order, FCC WT Docket No. 17-79, adopted September 26, 2018.

Park means an outdoor area or recreation facility owned or operated by the city or other public agency; or a privately owned area that is designated as "open and social space" on the city's growth and change map that is currently open for public use under the same or similar terms as traditional public park, such as a public golf course, picnic area, or a nature preserve; or an area owned by the city that was purchased for park purposes and is planned for park development.

Pavement cut means a cut made into the paved surface of a public street, alley, curb, sidewalk, or public easement.

Pole means a service pole, city-owned utility pole, node support pole, or utility pole.

Person means a natural person (an individual), corporation, company, association, partnership, firm, limited liability company, joint venture, joint stock company or association, and other such entity who owns or controls facilities.

Public infrastructure contractor means a person hired or retained to do construction of facilities that will be maintained by the city. "Public infrastructure contractor" includes all subcontractors.

Public right(s)-of-way means the area on, below, or above a roadway, highway, street, sidewalk, alley, waterway, or other way and that is open for

public use, and that is owned by the city in full or in part, and that is managed and controlled by the city. The term does not include:

(1) A private easement; or

(2) The airwaves above a public right-of-way with regard to wireless telecommunications

Residential service connections means a connection to private property from the right-of-way for individual residential service.

Service pole means a pole, other than a city-owned utility pole, that is owned or operated by the city and located in a public right-of-way, including:

(1) A pole that supports traffic control functions;

(2) A structure for signage;

(3) A pole that supports lighting, other than a decorative pole; and

(4) A pole or similar structure owned or operated by the city and supporting only network nodes.

Small cell or *small wireless facility* means a facility meeting all of the following criteria:

(1) Facilities mounted on structures fifty (50) feet or less in height including their antennas, or on structures no more than ten (10) percent taller than other adjacent structures, or that do not extend existing structures where they are located to a height of more than fifty (50) feet or by more than ten (10) percent, whichever is greater;

(2) Each antenna is no more than three (3) cubic feet in volume;

(3) All other wireless equipment associated with the structure, including wireless equipment associated with the antenna and any pre-existing associate equipment on the structure is no more than twenty-eight (28) cubic feet in volume; and

(4) Facilities do not result in human exposure to radio frequency radiation in excess of applicable safety standards specified in 47 CFR Rule 1.1307(b).

Unless specifically provided for herein, provisions addressed to network nodes herein shall also apply to small cells and small wireless facilities.

Stealth shall mean a method that hides or conceals an antenna, supporting electrical or mechanical equipment or any other support structure, including network nodes.

Thoroughfare means any public traffic artery, major street, secondary street or alley.

Utility means any privately or publicly owned entity that uses right-of-way to furnish the public any general public service, including, without limitation, sanitary sewer, gas, electricity, water, telephone, petroleum products, telegraph, heat, steam or chilled water, together with the equipment, structures, and appurtenances belonging to such entity and located within and near the right-of-way.

Utility pole means a pole installed primarily for the purpose of providing electric distribution or telecommunications as defined by Section 51.002, Utilities Code and that provides:

(1) Electric distribution with a voltage rating of not more than 34.5 kilovolts; or

(2) Services of a telecommunications provider, as defined by V.T.C.A. Utilities Code, § 51.002. A utility pole does not include a pole installed primarily for the purpose of providing other services or for third parties.

Utility service pole means a pole installed by a utility for the purpose of connecting a utility pole to a customer's building or other premises to provide electric distribution or telecommunications as defined by V.T.C.A. Utilities Code, § 51.002.

Wireless service means any service, using licensed or unlicensed wireless spectrum, including the use of Wi-Fi, whether at fixed location or mobile, provided to the public using a network node.

Wireless service provider means a person that provides wireless service to the public.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-61. Police powers.

An agency's, network provider's, or public infrastructure contractor's rights hereunder are subject to the police power of the City of Plano which includes the power to adopt and enforce ordinances, including amendments to this article, necessary for the safety, health, and welfare of the public. Agencies, network providers, and public infrastructure contractors shall comply with all applicable laws and ordinances enacted, or hereafter enacted, by the City of Plano or any other legally constituted governmental unit having lawful jurisdiction over the subject matter hereof. The City of Plano reserves the right to exercise its police powers, notwithstanding anything in this article or a permit to the contrary. Any conflict between the provisions of this article or a permit and any other present or future lawful exercise of the city's police powers shall be resolved in favor of the latter.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-62. City engineer's authority; enforcement; violations.

(a) *City engineer's authority.*

(1) The city engineer is authorized to administer, interpret, and enforce the provisions of this article and to promulgate regulations, including but not limited to, engineering, technical, and other special criteria and standards, including design standards, to aid in the administration and enforcement of this article that are not in conflict with this article, the Code of Ordinances of the city, or state or federal law.

(2) *Enforcement.* The city engineer is authorized to enter upon a construction site for which a permit is granted under this article or, where necessary, upon private property adjacent to the construction site for purposes of inspection to determine compliance with the permit or this article without notice. If the inspection requires physical contact with the equipment, the city engineer must provide written notice to the agency, network provider, or infrastructure contractor within five (5) business days of the planned inspection. Agency, network provider or infrastructure contractor may have a representative present during such inspection.

(b) *Violations.* A person, agency, or public infrastructure contractor commits an offense if he:

(1) Performs, authorizes, directs, or supervises construction without a valid permit issued under this article;

(2) Violates any provision of this article;

(3) Fails to comply with restrictions or requirements of a permit issued pursuant to this article; or

(4) Fails to comply with an order or regulation of the city engineer issued pursuant to this article.

(c) This article may be enforced by civil court action in accordance with state or federal law, in addition to any other remedies, civil or criminal, the city has for violation of this article.

(d) Prior to initiation of civil enforcement litigation, a person, agency, network provider, or public infrastructure contractor who has violated a provision of this article must be given the opportunity to correct the violation within the timeframe specified by the city engineer. This section does not prohibit the city engineer or the city from taking enforcement action as to past or present violations of this article, notwithstanding their correction.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-63. Penalties.

(a) Any violation of the following provisions or terms of this article by any person, firm, corporation, agency, network provider, or public infrastructure contractor: subsection 19-74(f),

excavation safety, section 19-75, no directional boring zones, and subsection 19-77(c), deposit of dirt and material on roadways, of this article shall be a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(a) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense.

(b) Any violation of the other provisions or terms of this article by any person, firm, corporation, agency, network provider, or public infrastructure contractor shall be a misdemeanor offense and shall be subject to a fine in accordance with subsection 1-4(b) of the City Code of Ordinances for each offense. Every day a violation continues shall constitute a separate offense. (Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-64. Right-of-way permit required.

(a) *Permit required.* Any agency, network provider, or public infrastructure contractor seeking to place facilities on, in or over a public right-of-way or to engage in construction, excavation, encroachments, and work activities within or upon any public right-of-way shall first file an application for a right-of-way permit with the city and shall abide by the terms and provisions of the right-of-way permit and this article pertaining to the use of the public rights-of-way.

(b) *Exceptions.*

(1) City construction, reconstruction, and maintenance activities are excepted from the permitting requirements outlined herein.

(2) No application, permit or fee is required of network providers for:

a. Routine maintenance that does not require excavation or closing of sidewalks or vehicular lanes in a public right-of-way;

b. Replacing or upgrading facilities that are substantially similar in size or smaller; and that do not require excavation or closing of sidewalks or vehicular lanes in a public right-of-way; or

c. The installation, placement, maintenance, operation, or replacement of micro network nodes or similar structures that are strung on cables between existing poles or node support poles, in compliance with the National Electric Safety Code. If, however, traffic will be effected by the installation, placement, maintenance or replacement of a micro network node or similar structure, a traffic control plan is required per section 19-78.

(3) Substantially similar shall mean:

a. The new or upgraded facility, including the antenna or other equipment element, will not be more than ten (10) percent larger than the existing facility or ten (10) feet, whichever is greater; or the extension of facilities less than six (6) feet from a tower; or the new or upgraded pole will not be more than ten (10) percent higher than the existing pole, provided that the increase may not result in the pole exceeding the applicable height limitations prescribed by V.T.C.A. Local Government Code, chapter 284, as may be further amended; or increasing the size of ground equipment cabinets by ten (10) percent in height or volume; and

b. The replacement or upgrade does not include replacement of an existing pole; and

c. The replacement or upgrade does not defeat existing concealment elements of a pole; and

d. The determination of whether a replacement or upgrade is substantially similar is made by measuring from the dimensions of the facilities as approved by the city.

(4) Although no application, permit or fee is required, the city requires advance notice of the work described above and approval

of the pole's owner for that specific address. Work under this section must still meet all other requirements in this article.

(c) *Permits generally.*

(1) Permits will be issued in the name of the agency or network provider that will own the facilities. Permits for public infrastructure will be issued in the name of the public infrastructure contractor.

(2) Any agency with a current, unexpired consent, franchise, agreement or other authorization from the city (grant) to use the public rights-of-way that is in effect at the time this article takes effect shall continue to operate under and comply with that grant, unless prohibited by law, until the grant expires or until it is terminated by mutual agreement of the city and the agency or as otherwise provided for by law.

(3) *Construction, excavation, or work area.* No agency, network provider, or public infrastructure contractor shall perform construction, excavation, or work in an area larger or at a location different, or for a longer period of time than that specified in the permit or permit application. If, after construction, excavation, or work is commenced under an approved permit, it becomes necessary to perform construction, excavation, or work in a larger or different area than originally requested under the application or for a longer period of time, the agency or public infrastructure contractor shall notify the city engineer immediately and, within twenty-four (24) hours, shall file a supplementary application for the additional construction, excavation, or work.

(4) *Permit transferability or assignability.* The agency, network provider, or public infrastructure contractor may subcontract the work to be performed under a permit if the agency, network provider, or public infrastructure contractor is responsible for the performance of the work under the permit and all insurance and financial security as required. Permits are transferable and assignable upon written notice to the city engineer that the transferee or assignee has posted all required security pursuant to this article. Any transferee or assignee shall be bound by all requirements of the permit and this article.

(5) The physical construction of public infrastructure, excluding agency infrastructure and facilities installed by network providers, in new developments is the responsibility of the developer of the land. Ownership of that infrastructure remains with the developer of the land until accepted by the city. Any agency or public infrastructure contractor performing work on infrastructure that is within a public right-of-way, but prior to infrastructure acceptance by the city, shall obtain a permit from the city and permission from the owner of all of the infrastructure in the public right-of-way. The agency or public infrastructure contractor shall be financially responsible to the owner of the infrastructure to carry out all remedial work necessary to receive acceptance by the city of that infrastructure. This financial obligation shall apply only to the work in the public right-of-way done by the agency or public infrastructure contractor. The city will not accept for dedication public infrastructure if the work performed on that infrastructure is not in accordance with applicable city specifications.

(6) Any agency, network provider, or public infrastructure contractor found to be conducting any excavation activity within the public right-of-way without having first obtained the required permit(s) shall immediately cease all activity (exclusive of actions required to stabilize the area) and be required to obtain a permit before work may be restarted.

(7) The city may institute all appropriate legal action to prohibit any agency, network provider, or public infrastructure contractor from knowingly using the public

rights-of-way unless the agency or public infrastructure contractor has complied with the terms of this article.

(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-65. Right-of-way permit application; permit contents.

(a) *General to all right-of-way permits.*

(1) *Application submissions.* Each application for a permit shall be submitted using the required form, which may be obtained from the engineering department. The applicant must determine what type of permit is sought and complete the correct application. The city is not responsible for determining that the correct application was completed by the applicant and approval of a permit contrary to the provisions of this article does not create a vested right.

a. *Required disclosures on application.* The applicant shall disclose if the applicant proposes that the facilities will be located in: a design district; historic district; within three-hundred (300) feet of public art; near a historic site, or a structure or landmark recognized as historic by the city, state or federal government; within a park; within a residential district; or in an area that has undergrounding requirements.

b. *Drawings.* The applicant shall provide detailed drawings in electronic form, with calculations and dimensions to show strict conformity to the size, distance and spacing limitations in this article.

c. *Format.* The applicant requesting a permit shall provide the city with documentation in the format specified by the city.

d. *Interference.* The applicant shall provide analysis indicating that the proposed facilities will not cause any interference with city public safety radio system, traffic signal light system, or other city safety communications components.

e. *Address and location.* The applicant must provide the specific address for all facilities that will be located on a pole. Addresses are determined by the City of Plano GIS Department. The applicant shall provide a dated aerial photograph of the overall site depicting the site's relation to major streets and highways and poles. For any application requesting a new pole, photos are required showing the before and after conditions.

f. *Other required permits.* The applicant must ascertain, in consultation with the city, whether any other authorizations from the city will be required in order for the proposed installation to be made and completed. For all applications for the installation or construction of wireless facilities, including network nodes and node support poles, if any such additional authorizations are required, the applicant is responsible for providing all the information necessary for the city to review and act on the additional authorizations. Such additional authorizations that must be included with the application shall include, but not be limited to, executed agreement(s) with the city for attachment to service poles, as provided in subsection 19-65(b)(4)(e).

g. *Completeness.* The application is not complete unless it contains all information required by this article, requested on the application form, and required by any supplemental list of required documentation provided by the city with the application form.

(2) No person, agency, network provider, or public infrastructure contractor shall install facilities or otherwise encroach

upon the right-of-way or make a pavement cut or excavate in a public right-of-way without first obtaining a permit from the engineering department, except in an emergency.

(3) If the project lies within a TxDOT, NTTA or any other agency's right-of-way, the applicant must provide evidence of a permit from the state, federal government or other appropriate agency at the time of application.

(4) Franchised agencies and agencies that are certificated telecommunications providers have prior authorization to do work in public rights-of-way. However, an agency's use of the public rights-of-way is subject to and must occur in accordance with State of Texas laws, federal laws, and city ordinances, policies, standards and procedures. Said use is non-exclusive and does not establish priority for use over other franchise holders, permit holders, or the city. A permit issued by the City of Plano is required for all work done in the public rights-of-way, except as indicated in subsection 19-64(b).

(5) New residential service connections do not require a permit under this article. However, a building permit may be required from the building inspections department. An agency or public infrastructure contractor must inquire with the building inspections department as to whether a permit is required for such service connections. Maintenance or replacement of existing service connections that requires excavation will require a permit under this article.

(6) The city shall state on the permit the activity for which the permit is issued and any additional restrictions or requirements that have been placed upon the permit besides those incorporated into the permit by this article, the zoning ordinance, or other law or regulation, as applicable.

(7) All construction and installation in the public rights-of-way shall be in accordance with the permit issued for the facilities. The city engineer shall be provided access to the work and to such further information as he or she may reasonably require to ensure compliance with the permit.

(8) A copy of the right-of-way construction permit and approved engineering plans shall be maintained at the construction site and made available for inspection by the city engineer at all times when construction or installation work is occurring.

(9) The agency, network provider, or public infrastructure contractor shall update any new information on permit applications within ten (10) business days after any change occurs.

(10) Agencies, network providers, or public infrastructure contractors may apply jointly for permits to work in public rights-of-way at the same time and place.

(11) All permit holders must contact the public works department by telephone at least forty-eight (48) hours before work begins under the permit.

(12) If no work has begun on a network node permit within six (6) months of final approval of the permit, or within thirty (30) calendar days of final approval for a standard right-of-way permit, the permit shall be void, and a new permit shall be required.

(13) A sixty (60) day extension to a permit may be granted if requested by the agency, network provider, or public infrastructure contractor in writing to the engineering department. Such a request must be made before the permit expires. If no call for the cancellation of a permit, or for an inspection after completion of the work, is received within the sixty (60) day extension period, the permit shall be void, and a new permit shall be required.

(b) *Types of permits.*

(1) *Standard right-of-way permits.*

a. A standard right-of-way permit is required whenever a cut or excava-

tion is made in a public right-of-way by an agency or public infrastructure contractor.

b. Application for a standard right-of-way permit shall be made no less than two (2) City of Plano business days prior to the date of the proposed activity. If the proposed cut or excavation is to be made in the public rights-of-way dedicated to the State of Texas, a city permit is required in addition to any and all permits required by the state or other agencies. A city permit is required although specific authority has been granted by the engineering department to cut a paved street, curb or alley as a part of a new construction project.

c. There is no fee for a standard right-of-way permit. There is, however, an annual fee for use of the right-of-way and a contract with the city is required. Where such fees are not otherwise determined by franchise or prohibited by state or federal law:

1. Fee per linear foot: $1.50
2. Fee per street crossing $1,000.00

d. Late fees may be assessed as allowed by law.

e. The contract shall determine any inflator for the annual fee, and if the contract expires, the rate in effect on the date of expiry shall be the initial rate for any additional contract terms.

(2) *Permits issued under emergency conditions.* Any agency, network provider, or public infrastructure contractor maintaining facilities in the public rights-of-way may proceed with repairs upon existing facilities without a permit when emergency circumstances demand that the work be done immediately. The agency, network provider, or public infrastructure contractor doing the work shall notify the engineering department no later than the next business day by telephone or e-mail when an emergency permit is required. A permit application for the proper permit under this section must be submitted and the fee, if any, paid no later than the next business day after the work is commenced.

(3) *Standard right-of-way maintenance permits.*

a. A maintenance permit is required whenever work is being done by an agency or infrastructure contractor in or on a major thoroughfare and no cut or excavation is required.

b. Application for a maintenance permit must be submitted no later than the business day prior to the date of the proposed maintenance work. Applications may be submitted in person or e-mail to the engineering department.

c. The requirements outlined for permits issued under emergency conditions in subsection (2) of this section apply to maintenance permits, as do the remaining requirements of this article.

(4) *Small cell right-of-way permits.*

a. A small cell right-of-way permit is required for network providers. The permit may be for transport facilities, network nodes, or network node support poles.

b. Fees per application for network nodes, transportation facilities, and poles are the maximum allowed by V.T.C.A. Local Government Code, chapter 284 or the Order, whichever is lower, as further amended.

c. A small cell maintenance permit is required for any activity in the right-of-way unless an exception in subsection 19-64(b)(2) applies. A small cell maintenance permit is subject to

the same fees, requirements and timeframes as a small cell right-of-way permit.

d. *Transport services.* Network providers may obtain transport service from a person or entity that is paying city fees to occupy the public right-of-way that are equivalent to transport fees stated in subsection 19-71(b). If third-party transport services are used, the network provider must identify the third-party provider, and provide documentation, at the time of filing the application, that the third-party transport service provider is paying city fees and that the network provider has received written permission to use such transport services for the specific address.

e. *Collocation on a service pole.* An applicant proposing collocation on a city-owned service pole must submit a copy of the signed agreement with the city allowing the collocation on the city-owned service pole located at a specific address at the time of filing the permit application.

f. *Installation of network node.* For purposes of determining annual and monthly fees for wireless facilities under subsection 19-71(a), the city will assume installation of the facilities six (6) months from the date the permit is approved.

g. *Application completeness, timeframe.* Not later than the tenth day after the date of receipt of an application for a permit for a transport facility, network node or node support pole, the city shall determine whether the application is materially complete and notify the applicant of that determination. If the city determines that the application is incomplete, the city shall specifically identify the missing information in the notification to the applicant, with reference to the specific rule or regulation requiring the information.

h. *Approval or denial of application, timeframe.* Unless the time periods herein are tolled or extended by written agreement between the city and the applicant, the city will approve or deny applications according to the following:

1. For applications for one (1) or more new node support poles, no later than the ninetieth day after the date of receipt of a materially complete application;
2. For applications for one (1) or more network nodes on existing poles or structures, no later than the sixtieth day after the date of receipt of a materially complete application;
3. For applications to install network nodes on a mixture of existing and new poles, no later than the ninetieth day after the date of receipt of a materially complete application;
4. For a transport facility, no later than the twenty-first day after the date of receipt of a materially complete application.

i. *Tolling of timeframe.* If the city has notified the applicant that the application is materially incomplete, the time frame for the city's review is tolled until the applicant provides the required information or documents, as provided in the order.

j. *Documentation for denial.* If the city denies a complete application, it must document the basis for the denial, including the specific applicable code provision or other municipal rule, regulation, or other law on which the denial is based. The city shall send the documentation of the reason for denial by

electronic mail to the applicant on or before the date the city denies the application.

k. *Cure after denial.* Not later than the thirtieth day after the date the city denies the application, the applicant may cure the deficiencies identified in the denial documentation and resubmit the application without paying an additional application fee, other than a fee for actual costs incurred by the city. Notwithstanding subsection (h), the city shall approve or deny the revised completed application after a denial not later than the ninetieth day after the date the city receives the completed revised application. The city's review of the revised application is limited to the deficiencies cited in the denial application.

(c) *Denial, suspension, or revocation of a permit.*

(1) *Denial of a permit.* A permit may be denied for any one (1) of the following reasons:

a. The proposed activity will substantially interfere with vehicular or pedestrian traffic and no procedures, or procedures which are inconsistent with this article, have been implemented to minimize the interference.

b. The proposed construction will substantially interfere with another activity for which a permit has been issued, or will conflict or interfere with existing facilities already in the public right-of-way.

c. The proposed barricading, channelizing, signing, warning or other traffic control procedures or equipment do not comply with the requirements of the Texas Manual on Uniform Traffic Control Devices.

d. The activity or the manner in which it is to be performed will violate a city ordinance or regulation or a state or federal statute or regulation.

e. The agency, network provider, or public infrastructure contractor requests to cut a city-maintained street that can be crossed by jacking, boring or tunneling.

f. There is a lack of available space.

g. The agency, network provider, or public infrastructure contractor:

1. Does not have liability insurance as required by section 19-68;

2. Has consistently failed to perform in accordance with the requirements of this article;

3. Has failed to furnish all of the information required by this article or, except for good cause shown, to file the applications within the time prescribed by this article;

4. Has misrepresented or falsified any information in the applications;

5. Has failed to comply with the performance warranty/ guarantee as provided in this article;

6. Is not in compliance with applicable requirements of an existing permit issued under this article;

7. Does not have a contractor's license or other required license; or

8. Has not compensated the city, unless the agency, network provider or public infrastructure contractor is not legally obligated to compensate the city by contract, by agreement, or by law for using public property.

(2) *Suspension or revocation of a permit.* The city engineer may suspend by stop work

order or revoke any or all permits granted to allow work in the public rights-of-way on the same grounds on which a permit may be denied under subsection (c)(1) or for the following reasons and subject to the procedural guidelines noted in this article and any agreement that applies to the agency, network provider, or public infrastructure contractor using the public rights-of-way, as well as any limitations imposed by federal or state law:

a. Failing to comply with an order of the city engineer;

b. The recognition that a permit was issued in error;

c. Failing to comply with restrictions or requirements placed on the permit by the city engineer;

d. The city manager reasonably determines that the disconnection, removal, or relocation of equipment (a) is necessary to protect the public health, safety, welfare, or city property, (b) equipment, or portion thereof, is adversely affecting proper operation of streetlights or city property, or (c) there is imminent danger to the public; or

e. Violating any provision of this article.

(3) The city engineer shall provide written notice of a denial, suspension or revocation to the agency, network provider, or public infrastructure contractor. Construction that is suspended may not resume until the city engineer determines that the agency, network provider, or public infrastructure contractor has corrected the violation, noncompliance, or hazard that caused the suspension.

(4) A permit that was revoked due to failure to comply with an order of the city engineer, failure to comply with the restrictions or requirements placed upon the permit by the city engineer, a violation of this article, or for public health, safety or welfare reasons may be reinstated by the city engineer if the city engineer determines that:

a. The agency, network provider, or public infrastructure contractor has corrected the violation, noncompliance, or hazard that caused the revocation or denial; and

b. The health, safety and welfare of the public is not jeopardized by reinstating or issuing the permit.

(5) An agency or public infrastructure contractor may appeal a permit denial, suspension, or revocation in accordance with the provisions of section 19-67 of this article.

(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-66. Facility size and locations.

These provisions apply to all facilities, including those of franchise utilities, unless specifically contradicted in the franchise agreement.

(1) *Location in right-of-way, generally.* Facilities and related ground equipment shall be placed within two (2) feet from the outer edge of the right-of-way line and three (3) feet from back of curb to minimize any obstruction, impediment, or hindrance to the usual travel or public safety on a public right-of-way, unless on an existing pole.

(2) *Location in right-of-way, new development.* All facilities in new developments shall be located in accordance with exhibits 1, 2, 3 and 4, unless an alternative location has been approved by the city engineer. Such utility locations are hereby adopted as standard locations for facilities in new developments. The intent of these items is that they serve as a standard, not only to agencies, network providers, and public infrastructure contractors working under city permit, but also to all city agencies whose routine business requires the installation, repair or relocation of utilities.

(3) *Location in right-of-way, existing development.* New facilities to be installed in previously developed streets should be located as in exhibits 1, 2, 3 and 4. If that location is already being used by another facility, the new facility shall be located such that it does not interfere with other facilities, both existing and future. No new facilities shall be located longitudinally in a median or under existing or proposed pavement, unless permitted by the city engineer.

(4) *New poles.*

a. *Materials.* Poles located in medians must be constructed of steel or concrete, or other material approved by the city engineer. Wood poles are prohibited.

b. *Pole height.* New poles or modified utility poles may not exceed the lesser of:

1. Ten (10) feet in height above the tallest existing utility pole located within five-hundred (500) linear feet of the new pole in the same public right-of-way; or

2. Fifty-five (55) feet above grade level.

c. *Pole spacing.* In order to avoid congestion of right-of-way caused by multiple pole installations, minimize the hazard of poles adjacent to roadways, minimize the effect on property values, and to maintain the aesthetics of the area by avoiding the negative impact on the public of unsightly proliferation of poles in the right-of-way, poles shall be spaced as provided herein. New poles, including new utility service poles, shall be shall be spaced apart from existing utility poles or node support poles at the same distance as the spacing between utility poles in the immediate proximity, but no less than at a minimum one hundred and fifty (150) feet from a utility pole or another node support pole. New poles must be ten (10) feet from a driveway, twelve (12) feet from the dripline of existing trees, fifteen (15) feet from a pedestrian ramp, twenty (20) feet from a traffic signal pole, and eighteen (18) inches from the paved area of a sidewalk. In non-residential zoning districts, facilities shall be located between tenant spaces, storefront bays or adjoining properties where their shared property lines intersect the right-of-way. In residential zoning districts, facilities shall be located where the shared property line between two (2) residential parcels intersects the right-of-way. Access by vehicles or pedestrians may not be blocked by poles.

(5) *Attachments to city-owned service poles.*

a. *In accordance with agreement.* Installations on all service poles are restricted to network providers and shall be in accordance with an agreement. The director of public works may enter into these agreements on behalf of the city.

b. No electrical meters are allowed on service poles or screening walls.

c. *Required industry standard pole load analysis.* For proposed installations on service poles network provider shall complete and submit to the city an industry standard pole load analysis indicating that the service pole to which the network node is to be attached will safely support the load.

d. *Height of attachments.* All attachments on all service poles shall be at least eight (8) feet above grade. If a network node attachment projects toward the street, for the safety and protection of the public and vehicular

traffic, the attachment shall be installed no less than sixteen (16) feet above grade.

e. *Installations on traffic signals.* Installations on all traffic signal structures must not interfere with the integrity of the facility in any way that may compromise the safety of the public. Location on signal arms is prohibited. Installation of network node facilities on any traffic signal structures shall:

1. Be encased in a conduit separate from the traffic light electronics;
2. Have an electric power connection separate from the traffic signal structure; and
3. Have an access point separate from the traffic signal structure.

f. *Installations on street signage.* Installations on all street signage structures must not interfere with the integrity of the facility in any way that may compromise the safety of the public. Installation of network node facilities on any street signage structure that has electronic equipment shall:

1. Be encased in a conduit separate from any city signage electronics;
2. Have an electric power connection separate from the signage structure;
3. Have an access point separate from the signage structure.

(6) *Height of equipment mounted on poles.* Pole mounted facilities shall be installed at least eight (8) feet above grade, and if a facility is projecting toward the street, for the safety and protection of the public and vehicular traffic, the attachment shall be installed no less than sixteen (16) feet above grade.

(7) *Protrusion of equipment.* Pole-mounted or structure-mounted facilities shall not protrude from the outer circumference of the existing structure or pole by more than two (2) feet.

(8) *Size of pole mounted equipment.* Pole mounted enclosures may not be taller than five (5) feet. The following types of associated ancillary equipment are not included in the calculation of equipment volume: electric meters, concealment elements, telecommunications demarcation boxes, grounding equipment, power transfer switches, cut-off switches and vertical cable runs for the connection of power and other services.

(9) *Antenna size.* Each antenna that does not have exposed elements and is attached to an existing structure or pole: must be located inside an enclosure of not more than six (6) cubic feet in volume; may not exceed a height of three (3) feet above the existing structure or poles or extend the height of the structure on which it is mounted by more than ten (10) percent above the preexisting height; and may not protrude from the outer circumference of the existing structure or pole by more than two (2) feet. If an antenna has exposed elements and is attached to an existing structure or pole, the antenna and all of the antenna's exposed elements: must fit within an imaginary enclosure of not more than six (6) cubic feet; may not exceed a height of three (3) feet above the existing structure or pole or extend the height of the structure on which it is mounted by more than ten (10) percent above the preexisting height; and may not protrude from the outer circumference of the existing structure or pole by more than two (2) feet. Antennas with exposed elements must be mounted flush with the pole near the top. The cumulative size of other equipment associated with the equipment attached to an existing structure or pole may not: be more than twenty-eight (28) cubic feet in volume.

(10) *Limitation on equipment on poles.* There shall be no more than one (1) network node on any one (1) pole.

(11) *Private pole owner permission.* Network providers must have written approval of the utility pole owner for each specific pole address and location on such pole. Written permission must be submitted with the application for a right-of-way permit.

(12) *Electric code.* All poles must meet National Electric Code clearance standards. Equipment attached to a utility pole must be installed in accordance with the National Electrical Safety Code, subject to applicable codes, and the utility pole owner's construction standards.

(13) *Existing telephone or electrical lines between existing utility poles.* Micro network nodes lashed on existing telephone or electrical lines between existing utility poles and not placed on utility poles, node support poles or service poles, are exempted from the requirements for submitting a right-of-way application, obtaining a right-of-way permit, and payment of a right-of-way access fee.

(14) *Prohibition on overhead facilities and overhead transport facilities.* In order to protect, maintain, and promote the appearance and natural surroundings in public parks and certain residential areas by avoiding the negative impact on the public of unsightly proliferation of poles in the right-of-way, facilities may not be installed overhead in a public right-of-way if the public right-of-way is in a park or is adjacent to a street or thoroughfare that is both class E+ or smaller and is in an area zoned residential or restricted to residential use by deed restrictions. All transport facilities must be underground in the above-mentioned areas. Underground facilities are required for standard permit holders along type D or smaller thoroughfares.

(15) *Underground construction and use of poles.* As required by the subdivision ordinance of the city, and the comprehensive zoning ordinance as it relates to overlay districts, and when required by general ordinances, deed restrictions, regulations or rules of the city or applicable state or federal law, and in order to protect, maintain, and promote the appearance of areas within the city that have been designated as underground areas, to promote and protect the public health by avoiding the intangible public harm or unsightly or out-of-character deployments, the, agency's, network provider's, or public infrastructure contractor's new facilities shall be placed underground at agency's, network provider's, or public infrastructure contractor's expense. Underground facilities must be buried at least two (2) feet below surface level. Placing facilities underground does not preclude the use of otherwise acceptable ground-mounted equipment appurtenant to underground facilities, unless such ground-mounted equipment is otherwise prohibited. Related equipment, such as pedestals, must be placed in accordance with the city's applicable code requirements and rules, including all visibility easement requirements. In areas where existing facilities are aerial, the agency, network provider, or public infrastructure contractor may install aerial facilities. If a location is designated by the city to be an underground requirement area, then an agency's or network provider's permit for the location of the facilities, at such location will be revoked ninety (90) calendar days after the designation, with removal of said facilities at such location within ninety (90) calendar days of such designation, or as otherwise reasonably allowed by the city for the transition of other overhead facilities. Placement of street-related poles and facilities above grade in the right-of-way, including but not limited to stop signs and street lights, does not preclude an area from designation as an area requiring underground-

ing and placement of facilities on street-related poles in an area requiring undergrounding is prohibited.

(16) *Ground equipment, parks and public art.* For the safety of park patrons, particularly small children, to preserve the investment made by the community in parks and public art, to protect, maintain, and promote the appearance and natural surroundings in public parks by avoiding the negative impact on the public of out-of-character deployments,, and to allow full lines-of-sight near park property and public art, no ground equipment may be installed in a right-of-way that is within a park, within two-hundred and fifty (250) feet of the boundary line of a park, or within two-hundred and fifty (250) feet of public art.

(17) *Ground equipment, generally.* Ground equipment shall be minimal and the least intrusive. In order to minimize negative visual impact to the surrounding area, and to enhance the safety requirements of line of sight of pedestrians, particularly small children, the city engineer may deny a request for a permit for a proposed location of ground equipment where existing ground equipment within three-hundred (300) feet already occupies a footprint of twenty-eight (28) cubic feet or more to minimize effect on property values and aesthetics on the area. Ground equipment shall be of a neutral color, and use exterior building materials that are compatible with surrounding structures, as determined by the planning director.

(18) *Ground enclosure size.* Ground based enclosures for network nodes and standard right-of-way permits, separate from the pole, may not be more than twenty-eight (28) cubic feet. For standard permit holders, ground based enclosures shall be no larger than six (6) feet wide four (4) feet two (2) inches high by two (2) feet deep. Any larger facilities must be placed on private property and comply with all requirements of the city's building code and comprehensive zoning ordinance, including receipt of a building permit prior to installation.

(19) *Concealment and enclosure, generally.* Facilities shall be concealed or enclosed as much as reasonably possible in an equipment box, cabinet, or other unit that may include ventilation openings. External cables and wires hanging off a pole shall be sheathed or enclosed in a conduit, so that wires are protected and not visible or visually minimized. Guy wires, anchors, pedestals, boxes, and other above grade facilities shall not fully or partially encroach within a sidewalk area, including a clear vertical clearance of seven and one-half (7.5) feet above the sidewalk.

(20) *Preserve sight visibility and access.* No above-ground facilities shall be located closer than three (3) feet from the back of street curbs or edge of alley or within the sight visibility area. Accessibility to property may not be compromised by above-ground facilities except during construction.

(21) *Design and historic district criteria.* Stealth or concealment of facilities and poles shall be required by the city in design districts with decorative poles, in historic districts, and within three-hundred (300) feet of a historic site or structure or historic landmark recognized by the city, state or federal government. Applications for placement of facilities in a design district with decorative poles or historic district must include proposed stealth or concealment measures. Total enclosure of antennas and other facilities within a pole may be required. The planning director will review and determine the suitability of the proposed stealth or concealment measures as part of the right-of-way permit review process. The planning director will also determine conformance with the downtown heritage resource district design standards for all properties within a heritage district, and determine conformance with all other

applicable zoning requirements for all facilities in a design district with decorative poles or historic district.

Micro network nodes may not be lashed on lines in a design district with decorative poles, a historic district, a residential district with class E+ street or smaller, or an area adjacent to a park.

Design districts within the city are: The central business 1 (CB-1), downtown business/government (BG), and urban mixed-use (UMU) zoning districts, planned development (PD) districts that overlay any of the above-listed standard zoning districts, and freestanding planned development (PD) districts that contain decorative poles, as those districts may be amended.

Historic districts within the city are all structures zoned as (HD), as such zoning may be amended. Historic landmarks are those properties individually zoned as (H), as such zoning may be amended.

Any structures or areas within both a design district and a historic district must meet the requirements for both designations.

(22) *Utility easements.* Above-ground facilities and poles are prohibited in a utility easement if such utility easement is not adjacent to and parallel with a public way, except with the written permission of the underlying fee owner. The city may rely upon county appraisal records to determine the ownership of the fee interest in the property. Poles must be spaced 300 feet or more from any existing pole. Applications for permit under subsection 19-65(b) must be accompanied by a site plan. All other requirements of this article apply.

(23) *Colors.* In order to avoid or remedy the intangible public harm of unsightly or out-of-character deployments, all equipment mounted on a pole, including antennas, must match the color of the pole. Colors for all facilities in historic districts must be in accordance with the city heritage resource district design guidelines. Colors in design districts with decorative poles must be approved by the planning director.

(24) *Temporary utilities.* Temporary utilities may be located in non-standard locations.

(25) *General construction and maintenance requirements.* Facilities and poles shall be constructed and maintained in a manner that does not:

a. Obstruct, impede, or hinder the usual travel or public safety on a public right-of-way;

b. Obstruct the legal use of a public right-of-way by other utility providers;

c. Violate applicable codes, statutes, historic preservation laws, or other law;

d. Interfere with the city's public safety infrastructure;

e. Violate or conflict with this article; or

f. Violate the federal Americans with Disabilities Act of 1990 (42 U.S.C. Section 12101 et seq.) and the Texas Accessibly Standards.

(26) *Compliance with AASHTO.* All facilities in the right-of-way must meet the requirements and guidelines outlined in the AASHTO Roadside Design Guide in effect at the time of application.

(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-67. Appeals.

(a) *Applicability.* Appeals may be filed pursuant to this section related to interpretations of this article, decisions of the city engineer related to the final denial, suspension, or revocation of a permit, or if the applicant believes that the final denial of a permit materially inhibits the provision of service in violation of Sections 253 or 332 of the Telecommunications Act of 1996. However, the appeal process provided by this section shall

not be available for criminal violations of this article. An appeal filed pursuant to this section does not postpone the effectiveness of the final decision of the city engineering regarding denial, suspension or revocation of a permit. The city engineer's decision is the final decision under V.T.C.A. Local Government Code, § 284.154(d). The city engineer may adopt rules regulating the process and requirements for appeals.

(b) *Appeal to city manager.* A permittee or applicant may appeal interpretations or decisions referred to in subsection (a) above by filing a written appeal with the city manager within seven (7) business days of receipt of denial, suspension, or revocation of the permit. An appeal filed pursuant to this section shall specifically state the basis for the aggrieved party's challenge to the city engineer's interpretation or decision under this article. The city manager may adopt rules regulating the process and requirements for appeals.

(c) *Issuance of decision by city manager.* Decisions of the city manager shall be issued within ten (10) business days of receipt of the written appeal. Decisions of the city manager shall be final. Failure to render a decision shall constitute a denial.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-68. Insurance requirements.

(a) *Agencies and network providers.* Each agency or network provider applying for a permit shall obtain, maintain, and provide proof of the each of the following types of insurance and coverage limits. These insurance policies shall be underwritten by insurance companies with an A.M. Best Rating of A VI or better.

(1) Commercial general liability on an occurrence form with minimum limits of five million dollars ($5,000,000.00) per occurrence and ten million dollars ($10,000,000.00) aggregate. This coverage shall include the following:

a. Products/completed operations to be maintained for one (1) year.

b. Personal and advertising injury.

c. Owners and contractors protective liability.

d. Explosion, collapse, or underground (XCU) hazards.

(2) Automobile liability coverage with a minimum policy limits of one million dollars ($1,000,000.00) combined single limit. This coverage shall include all owned, hired and non-owned automobiles.

(3) Workers compensation and employers liability coverage. Statutory coverage limits for coverage A and five hundred thousand dollars ($500,000.00) coverage B employers liability is required.

(b) *Public infrastructure contractors.* Each public infrastructure contractor applying for a permit shall obtain, maintain, and provide proof of insurance for the same types of insurance coverages outlined in subsection (a) above; however, the policy limits under the general liability insurance shall be one million dollars ($1,000,000.00) per occurrence and two million dollars ($2,000,000.00) aggregate. All other coverage provisions outlined in subsection (a) above shall apply.

(c) The method for proof of insurance is a certified copy of the insurance policy. The city reserves the right to review the insurance requirements and to reasonably adjust insurance coverage and limits when the city manager determines that changes in statutory law, court decisions, or the claims history of the industry, the agency, network provider, or public infrastructure contractor require adjustment of the coverage.

(d) The city will accept certificates of self-insurance issued by the State of Texas or letters written by the agency in those instances where the state does not issue such letters, which provide the same coverage as required herein. However, certificates of self-insurance must be approved in advance by the risk manager for the city.

(e) The agency, network provider or public infrastructure contractor shall furnish, at no cost to the city, copies of certificates of insurance evidencing the coverage required by this section to the city. If the city requests a deletion,

revision or modification, the agency, network provider, or public infrastructure contractor shall exercise reasonable efforts to pay for and accomplish the change.

(f) The agency, network provider, or public infrastructure contractor shall file and maintain proof of insurance with the engineering department. An insurance certificate obtained in compliance with this section is subject to city approval, through the city's risk manager. The city may require the certificate to be changed to reflect changing liability limits. An agency, network provider, or public infrastructure contractor shall immediately advise the city attorney of actual or potential litigation that may develop which may affect an existing carrier's obligation to defend and indemnify the city.

(g) Such insurance shall be kept in full force and effect during the period of time for which a permit shall be issued or the space occupied. Insurance coverage must be available on a "per project" basis.

(h) An insurer has no right of recovery against the city. The required insurance policies shall protect the agency or public infrastructure contractor and include the city as an additional insured. The insurance shall be primary coverage for losses covered by the policies.

(i) The policy clause "other insurance" shall not apply to the city.

(j) The agency, network provider, or public infrastructure contractor shall pay premiums and assessments. A company that issues an insurance policy has no recourse against the city for payment of a premium or assessment. Insurance policies obtained by an agency, network provider, or public infrastructure contractor must provide that the issuing company waives all right of recovery by way of subrogation against the city in connection with damage covered by the policy.

(k) Each policy must include a provision that requires the insurance company to notify the city in writing at least thirty (30) calendar days before canceling or failing to renew the policy or before reducing policy limits or coverages.

(l) Each agency must comply with the insurance requirements in this section, unless the agency's current franchise or license agreement with the city specifically addresses insurance requirements, in which case the franchise or license agreement shall control.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-69. Indemnification.

(a) To the extent authorized by law, each certificated telecommunications provider, agency, network provider, or public infrastructure contractor placing facilities in the public rights-of-way shall indemnify, and hold the city and its officers and employees harmless from and against all claims, lawsuits, judgments, costs, liens, losses, expenses, fees (including reasonable attorney's fees and costs of defense), proceedings, actions, demands, causes of action, liability, and suits of any kind and nature, including personal or bodily injury (including death), property damage, or other harm for which recovery of damages is sought that is found by a court of competent jurisdiction to be caused solely by the negligent act, error, or omission of the agency, network provider, or public infrastructure contractor any agent, officer, director, representative, employee, affiliate, or subcontractor of the certificated telecommunications provider, agency, network provider or public infrastructure contractor, while installing, repairing, or maintaining facilities in a public right-of-way.

(b) The indemnity provided by this subsection does not apply to any liability resulting from the negligence of the city, its officers, employees, contractors, or subcontractors. If a certificated telecommunications provider, agency, network provider, or public infrastructure contractor and the city are found jointly liable by a court of competent jurisdiction, liability shall be apportioned comparatively in accordance with the laws of state without, however, waiving any governmental immunity available to the city under state law and without waiving any defenses of the parties under state law.

(c) This section is solely for the benefit of the city and the certificated telecommunication provider, agency, network provider or public

infrastructure contractor and does not create or grant any rights, contractual or otherwise, to any other person or entity.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-70. Performance warranty/ guarantee.

(a) Any warranty made hereunder shall serve as security for the performance of work necessary to repair the public rights-of-way if the agency, network provider, or public infrastructure contractor fails to make the necessary repairs or to complete the work under the permit.

(b) The agency, network provider, or public infrastructure contractor, by acceptance of the permit, expressly warrants and guarantees complete performance of the work affecting the city's right-of-way in a good and workmanlike manner acceptable to the city and warrants and guarantees all such work done for a period of one (1) year after the date of acceptance and agrees to maintain upon demand and to make all necessary repairs during the one-year period. This warranty shall include all repairs and actions needed as a result of:

(1) Defects in workmanship;

(2) Settling of fills or excavations;

(3) Any unauthorized deviations from the approved plans and specifications;

(4) Failure to barricade;

(5) Failure to clean up during and after performance of the work;

(6) Restoration of improvements including, but not limited to, landscaping and irrigation; or

(7) Any other violation of this article or the ordinances of the city.

(c) The one-year warranty period shall run from the date of the city's acceptance of the work which shall be the date of the letter of acceptance issued by the city to the agency, network provider, or public infrastructure contractor. If repairs are required during the one-year warranty period, those repairs need only be warranted until the end of the initial one-year period starting with the date of acceptance. It is not necessary that a new one-year warranty be provided for subsequent repairs after probationary acceptance.

(d) At any time prior to completion of the one-year warranty period, the city may notify the agency, network provider, or public infrastructure contractor of any needed repairs. Such repairs shall be completed within twenty-four (24) hours if the defects are determined by the city to be an imminent danger to the public health, safety, and welfare. Non-emergency repairs shall be completed within fifteen (15) calendar days after notice.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Secs. 19-71. Annual and monthly rates for use.

(a) An annual public right-of-way rate for use of the public right-of-way is assessed to all owners of network nodes in an amount equal to the lower of the greatest amount allowed by V.T.C.A. Local Government Code, chapter 284 and the greatest amount allowed by federal law, as further amended, multiplied by the number of network nodes installed in the public right-of-way within the city's boundaries. For purposes of calculating the rate, the date of installation shall be six (6) months from the date of permit approval. Fees will continue until the owner of the network node notices the city of abandonment of the facility pursuant to section 19-83.

(b) A network provider must pay a monthly public right-of-way rate for transport facilities in an amount equal to the lower of the greatest amount allowed by V.T.C.A. Local Government Code, chapter 284 and the greatest amount allowed by federal law, as further amended, multiplied by the number of the network provider's network nodes located in the public right-of-way for which the installed transport facilities provide backhaul unless or until the time the network provider's payment of city fees to the city exceeds its monthly aggregate per-node compensation. The monthly fee shall begin six (6) months from the date of permit approval. Fees will continue

until the network provider notices the city of abandonment of the transport facilities pursuant to section 19-83.

(c) A network provider must pay the an amount equal to the lower of the greatest amount allowed by V.T.C.A. Local Government Code, chapter 284 and the greatest amount allowed by federal law, as further amended, per year per service pole for colocation of a network node on a city-owned service pole. The monthly fee shall begin six (6) months from the date of permit approval. Fees will continue until the owner of the network node notices the city of the abandonment of the facility pursuant to section 19-83.

(d) Late fees may be assessed as allowed by law.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-72. Registration.

(a) In order to protect the public health, safety and welfare, all agencies, network providers, and public infrastructure contractors placing facilities or engaging in construction, excavation, encroachments, and work activities within or upon any public right-of-way must register with the City of Plano. Registration must be renewed annually on or before January 31. Annual renewal is required to allow the city to contact the current owners of facilities when emergencies arise and to coordinate infrastructure in the right-of-way. The registration form to be used may be obtained from the engineering department. If a registration is not renewed, and subject to sixty (60) calendar days notification to the agency, all facilities owned by agency within the city will be deemed to have been abandoned and shall become the property of the city. When any information provided for the registration changes, the agency or public infrastructure contractor shall notify the City of Plano of the change no more than thirty (30) calendar days after the date the change is made. Registration shall include:

(1) The name, address, and telephone number(s) of the owner of the facilities to be located in the public rights-of-way, including the business name, assumed name, or trade name under which the agency operates or under which it has operated within the past five (5) years. In the case of a public infrastructure contractor, the name, address, and telephone number(s) of the public infrastructure contractor and the name, address, and telephone number(s) of the developer for whom the public infrastructure contractor is working.

(2) The name(s), address(es) and telephone number(s) of the person(s) who will be contact person(s) for the owner.

(3) The name(s), address(es) and telephone number(s) of any contractor(s) or subcontractor(s) who will be working in the public rights-of-way on behalf of the owner.

(4) The name and telephone number(s) of an emergency contact for the owner who shall be available twenty-four (24) hours a day.

(5) The name(s), address(es) and telephone number(s) of the person(s) who will be attending the utility coordination meetings for the owner.

(6) The name(s), address(es) and telephone number(s) of the person(s) who will be receiving plans of city construction projects on behalf of the owner.

(7) The name, address, and telephone number(s) of the person who will be responsible for receiving notification of abandonment issues on behalf of the owner.

(8) Proof of insurance as required by section 19-68.

(9) For agencies that are certificated telecommunications providers, a copy of the notice of approval issued by the Public Utility Commission of Texas that grants the certificated telecommunications provider a service provider certificate of operating authority (SPCOA) or certificate of convenience and necessity (CCN).

(10) The ordinance number of any franchise or license, if any, issued by the City of Plano that authorizes the owner to use the public rights-of-way.

(b) Registration shall be a prerequisite to issuance of a permit. Each agency, network provider, and public infrastructure contractor shall update and keep current its registration with the city at all times.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-73. Plans of record.

(a) Any agency or network provider with facilities in the public rights-of-way shall submit plans of record in accordance with the following requirements:

(1) A city street map marked in such a manner as to evidence which type F and above thoroughfares along which the agency or network provider has placed facilities (not including boxes and other appurtenances) shall serve as the plans of record for the agency or network provider. The address and GPS coordinates must be included for any pole or equipment collocated on a pole. The city street map will be made available in a digital format upon request to the city engineer.

(2) On or before January 31 of each calendar year following the initial submittal of its plans of record, an agency or network provider shall provide to the city engineer plans of record that show all installations of new facilities, and all changes, additions, abandonments, and relocations relating to existing facilities completed in the previous calendar year, including the address and GPS coordinates for such facilities.

(b) Plans of record shall not include information that is a trade secret or other confidential information protected from disclosure by state law. Information marked "proprietary" or "confidential" will not be accepted by the city. Location information is not a trade secret or proprietary/confidential information, and this subsection may not be construed to authorize an agency or network provider to fail to provide location information.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-74. General rights-of-way use and construction.

(a) *Responsibility for employees, courtesy and drug policy.* Agencies, network providers and infrastructure contractors shall be responsible and liable for the acts and omissions of their employees, temporary employees, officers, directors, consultants, agents, affiliates, subsidiaries, and subcontractors in connection with the installations of facilities in the right-of-way, as if such acts or omissions were agency's, network provider's, or public infrastructure contractor's acts or omissions. Work in the public rights-of-way shall be done in a manner that causes the least interference with the rights and reasonable convenience of property owners and residents. Citizen satisfaction must be a priority in using the right-of-way. Agencies, network providers, and infrastructure contractors shall train their employees to be customer service-oriented and to positively and politely interact with citizens when dealing with issues pertaining to its facilities in the right-of-way. Employees shall be clean, courteous, efficient, and neat in appearance and committed to offering the highest quality of interaction with the public. If, in the opinion of the city manager, the employee is not interacting in a positive and polite manner with citizens, he or she shall request that the agency, network provider or infrastructure contractor take all remedial steps to conform to these standards. It is the policy of the city to achieve a drug-free workforce and workplace. The manufacture, distribution, dispensation, possession, sale, or use of illegal drugs or alcohol by agency's, network provider's or infrastructure contractor's employees, contractors, subcontractors, or vendors while on city rights-of-way is prohibited.

(b) *Minimal interference.* Agency's, network provider's, or public infrastructure contractor's facilities shall be constructed or maintained in such a manner as not to interfere with sewers,

water pipes, or any other property of the city, or with any other pipes, wires, conduits, pedestals, structures, or other facilities that may have been laid in the rights-of-way by, or under, the city's authority. The agency's, network provider's or public infrastructure contractor's facilities shall be located, erected, and maintained so as not to endanger or interfere with the lives of persons, or to interfere with improvements the city may deem proper to make or to unnecessarily hinder or obstruct the free use of the rights-of-way or other public property, and shall not interfere with the travel and use of public places by the public during the construction, repair, operation, or removal thereof, and shall not obstruct or impede traffic. The agency, network provider, or infrastructure contractor shall not cause any interference with city public safety radio system, traffic signal light system, or other city safety communications components.

(c) *Responsibilities under permit; location of facilities.*

(1) A permit does not relieve an agency, network provider, or public infrastructure contractor of the responsibility to coordinate with other utilities and to protect existing facilities. An agency, network provider, or public infrastructure contractor working in the right-of-way is responsible for obtaining line locates from all affected utilities or others with facilities in the right-of-way prior to any excavation. Use of the geographic information system or the plans of record does not satisfy this requirement.

(2) In performing location of facilities in the public rights-of-way in preparation for construction under a permit, agency, network provider, or public infrastructure contractor shall compile all information obtained regarding its or any other facilities in the public rights-of-way related to a particular permit and shall make that information available to the city in a written and verified format acceptable to the city engineer.

(3) *Protection of utilities.* Before beginning excavation in any public right-of-way, an agency, network provider, or public infrastructure contractor shall contact the Texas One-Call System or any other company operating under the One-Call Statute and, to the extent required by V.T.C.A. Utilities Code, chapter 251 make inquiries of all ditch companies, utility companies, districts, local government departments, and all other agencies that might have facilities in the area of work to determine possible conflicts.

a. Field locations shall be marked prior to commencing work. The agency, network provider, or public infrastructure contractor shall support and protect all pipes, conduits, poles, wires, or other apparatus that may be affected by the work from damage during construction or settlement of trenches subsequent to construction.

b. A person shall only use a water-based paint in the public right-of-way to mark the location of existing underground utilities. A person commits an offense, if a marking he makes in the public right-of-way to mark the location of existing underground utilities remains visible longer than sixty (60) calendar days after being applied.

(d) *Underground construction and use of poles.*

(1) Facilities shall be maintained in an appropriate manner.

(2) Should the city desire to place its own facilities in trenches or bores opened by the agency, network provider, or public infrastructure contractor, the agency, network provider, or public infrastructure contractor shall cooperate with the city in any construction by the agency, network provider, or public infrastructure contractor that involves trenching or boring, provided that the city has first notified the agency, network provider, or public infrastructure contractor in some manner that it is interested in sharing the trenches or bores in the area in which the agency's,

network provider's or public infrastructure contractor's construction is occurring. The agency, network provider, or public infrastructure contractor shall allow the city to place its facilities in the agency's, network provider's or public infrastructure contractor's trenches and bores, provided the city incurs any incremental increase in cost of the trenching and boring. The city shall be responsible for maintaining its respective facilities buried in the agency's, network provider's or public infrastructure contractor's trenches and bores under this paragraph.

(e) *Joint trenching.* The public rights-of-way have a finite capacity for containing facilities. The city engineer may require an agency, network provider, or public infrastructure contractor to share trench space to minimize the disruption of vehicular or pedestrian traffic.

(1) All facilities shall meet any applicable local, state, and federal clearance and other safety requirements, be adequately grounded and anchored, and meet the provisions of any contracts executed between agency, network provider, or public infrastructure contractor and the other joint user. Agency, network provider, or public infrastructure contractor may, at its option, correct any attachment deficiencies and charge the joint user for its costs.

(f) *Excavation safety.* On construction projects in which excavation will exceed a depth of five (5) feet, the agency, network provider, or public infrastructure contractor must have detailed plans and specifications for excavation safety systems. The term "excavation" includes trenches, structural or any construction that has earthen excavation subject to collapse. The excavation safety plan shall be designed in conformance with state law and Occupational Safety and Health Administration (OSHA) standards and regulations.

(g) *Erosion control.* The agency, network provider, or public infrastructure contractor shall be responsible for storm water management erosion control that complies with city, state and federal guidelines. All installations shall comply with City of Plano Erosion and Sediment Control Manual, as amended, and in accordance with exhibit 5 to this article.

(h) *On-site requirements.* Agencies, network providers and public infrastructure contractors subject to this article must have a minimum of one (1) English-speaking representative at the site where work is being performed at all times. Additionally, each of agency's, or network provider's or public infrastructure contractor's vehicles shall bear a sign identifying the agency, network provider, or public infrastructure contractor that owns the vehicles.

(i) *Electrical supply.* Agencies, network providers and public infrastructure contracts are responsible for obtaining any required electrical power services to their facilities. The city shall not be liable for any stoppages or shortages of electrical power furnished to the facilities, including without limitation, stoppages or shortages caused by any act, omission, or requirement of the public utility serving the facilities or the act or omission of any other tenant of the structure or user of the right-of-way, or for any other cause beyond the control of the city. Generators and back-up generators are prohibited in the right-of-way.

(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-75. No directional boring zones.

In the city, the public infrastructure must be maintained and protected by all agencies, network providers, and public infrastructure contractors. The public health, safety and welfare is at risk when damages to water and sewer mains occur. To protect the water and sewer system, no person, agency, network provider, or public infrastructure contractor will be allowed to directionally bore longitudinally with water and sewer mains that are twelve (12) inches or larger. The installation of facilities in the public rights-of-way will be installed by open excavation to assure the protection of the city's water and sewer system. The city has available mapping that identifies such mains. The agency, network provider, or public infrastructure contractor is

responsible for obtaining and using this information in the design of new facilities. When boring is acceptable, pothole process is required for twelve (12) inches or larger water and sewer mains or any main that is deemed critical by the city. Bore time is restricted to the following schedule: 7:00 a.m. to 4:00 p.m. Monday through Thursday, 7:00 a.m. to noon on Friday and no bore on Saturday and Sunday. Missiles are not considered directional boring and are not allowed unless otherwise approved by the city.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-76. Joint planning and construction; coordination of excavations.

(a) Excavations in city rights-of-way disrupt and interfere with the public use of the city streets and damage the pavement and landscaping. The purpose of this section is to reduce this disruption, interference and damage by promoting better coordination among agencies, network providers, or public infrastructure contractors making excavations in public rights-of-way and between these agencies, network providers and public infrastructure contractors and the city. Better coordination will assist in minimizing the number of excavations being made wherever feasible and will ensure the excavations in city rights-of-way are, to the maximum extent possible, performed before, rather than after, the reconstruction of the streets by the city.

(b) *Utility coordination meeting.*

(1) The city will hold a utility coordination meeting a minimum of two (2) times per year. The purpose of the meeting is for the city to inform agencies, network providers, and public infrastructure contractors of proposed and current community investment projects in the City of Plano and also for the agencies, network providers, and public infrastructure contractors to inform each other and the city of current and future projects. Each agency, network provider and public infrastructure contractor is encouraged to attend and participate in the meetings of the city, of which the agency, network provider, or public infrastructure contractor will be made aware.

(2) The city will notify the affected agencies, network providers, and public infrastructure contractors at least six (6) months before construction will start on a city project. Preliminary plans will be provided to the affected agencies, network providers, and public infrastructure contractors at least four (4) months before the project is to start construction. Final plans will be provided to the affected agencies, network providers, and public infrastructure contractors at least two (2) months before the project is to start construction.

(3) Whenever it is possible and reasonably practicable to joint trench or share bores or cutes, the agency, network provider, or public infrastructure contractor shall work with other agencies, network providers, and public infrastructure contractors so as to reduce as much as possible the number of right-of-way cuts within the city.

(c) *Excavation master plan.* In addition to participating in the utility coordination meetings, any agency, network provider, or public infrastructure contractor owning, operating or installing facilities in public rights-of-way, providing water, sewer, gas, electric, communication, video, or other utility services, shall meet annually with the city engineer, at the city engineer's request, to discuss agency's, network provider's, or public infrastructure contractor's excavation master plan. At such meeting, to the extent not already in possession of the city, agency, network provider, or public infrastructure contractor shall submit documentation, in a form required by the city engineer, showing the location of the agency's, network provider's, or public infrastructure contractor's existing facilities in the public rights-of-way.

(1) Agency, network provider, or public infrastructure contractor shall discuss with the city engineer its excavation master plan and identify planned major

excavation work in the city. The city engineer may make his own record on a map, drawing, or other documentation of each agency's or network provider's or public infrastructure contractor's planned major excavation work in the city; provided, however, that no such document prepared by the city engineer shall identify a particular entity, or the planned major excavation work of that particular entity.

(2) Each agency or public infrastructure contractor shall submit annually, on or before March 31, a revised and updated excavation master plan. As used in this subsection, the term "planned major excavation work" refers to any future excavations planned by the agency, network provider, or public infrastructure contractor when the excavation master plan or update is submitted that will affect any public rights-of-way for more than five (5) business days, provided that the agency, network provider, or public infrastructure contractor shall not be required to identify future major excavations planned to occur more than three (3) years after the date that the agency's, network provider's, or public infrastructure contractor's master plan or update is discussed.

(3) Between the annual meetings to discuss planned major excavation work, agency, network provider, or public infrastructure contractor shall inform the city engineer of any substantial changes in the planned major excavation work discussed at the annual meeting. The city will not preclude an agency, network provider, or public infrastructure contractor from obtaining a permit for a project that was inadvertently excluded from the agency's, network provider's or infrastructure contractor's excavation master plan or was unknown at the time the plan was created.

(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-77. Minimizing the impacts of work in the rights-of-way.

(a) *Noise, dust, debris, hours of work.* Each agency, network provider, and public infrastructure contractor shall conduct work in such a manner as to avoid unnecessary inconvenience and annoyance to the general public and occupants of neighboring property. In the performance of the work, the agency, network provider, or public infrastructure contractor shall take appropriate measures to reduce noise, dust, and unsightly debris. No work shall be done between the hours of 10:00 p.m. and 7:00 a.m., except with the written permission of the city engineer, or in case of an emergency. Bore time is restricted to the following schedule: 7:00 a.m. to 4:00 p.m. Monday through Thursday, 7:00 a.m. to Noon on Friday and no bore on Saturday and Sunday. Missiles are not considered directional boring and are not allowed unless otherwise approved by the city.

(b) *Trash and construction materials.*

(1) Each agency, network provider, and public infrastructure contractor shall maintain the work site so that:

a. Trash and construction materials are contained so that they are not blown off of the construction site.

b. Trash is removed from a construction site often enough so that it does not become a health, fire, or safety hazard.

c. Trash dumpsters and storage or construction trailers are not placed in the street without written approval of the city engineer.

(2) Agency, network provider, or public infrastructure contractor may only use approved trash haulers when working in the public rights-of-way.

(c) *Deposit of dirt and material on roadways.* Each agency, network provider, and public infrastructure contractor shall eliminate the tracking of mud or debris upon any street or sidewalk. Equipment and trucks used during construction, excavation, or work activity shall be cleaned of mud and debris prior to leaving any work site.

(d) *Protection of trees and landscaping.* Each agency, network provider, and public infrastructure contractor shall protect trees, landscape, and landscape features as required by the city and shall be responsible for supplemental maintenance and watering during construction and until restoration is complete and in accordance with the performance warranty made the agency, network provider, or public infrastructure contractor under this article. All protective measures shall be provided at the expense of the agency, network provider, or public infrastructure contractor. Agency, network provider, or infrastructure contractor and its contractors, and agents shall obtain written permission from the city manager before trimming trees hanging over its facilities in the right-of-way. When directed by the city manager, agency, network provider or infrastructure contractor shall trim under the supervision and direction of the parks director. The city shall not be liable for any damages, injuries, or claims arising from agency's, network provider's, or infrastructure contractor's actions under this section.

(e) *Protection of paved surfaces from equipment damage.* Backhoe equipment outriggers shall be fitted with rubber pads whenever outriggers are placed on any paved surface. Tracked vehicles with grousers are not permitted on paved surface unless specific precautions are taken to protect the surface. Agency, network provider, or public infrastructure contractor shall be responsible for any damage caused to the pavement by the operation of such equipment and shall repair such surfaces. Failure to do so will result in the use of the agency's, network provider's, or public infrastructure contractor's performance warranty/guarantee by the city to repair any damage, and, possibly, the requirement of additional warrantee(s).

(f) *Protection of property.* Each agency, network provider, and public infrastructure contractor shall protect from injury any public rights-of-way and adjoining property by providing adequate support and taking other necessary measures. Agency, network provider, or public infrastructure contractor shall, at its own expense, shore up and protect all buildings, walls, fences, or other property likely to be damaged during the work and shall be responsible for all damage to public or private property resulting from failure to properly protect and carry out work in the public rights-of-way.

(g) *Clean-up.* As the work progresses, all public rights-of-way and private property shall be thoroughly cleaned of all rubbish, excess dirt, rock, and other debris. All clean-up operations shall be done at the expense of the agency, network provider, or public infrastructure contractor. Agency, network provider, or public infrastructure contractor shall restore any disturbed area to its original condition. All restoration work must be completed within ten (10) business days following the date of substantial completion of the work in the right-of-way. Such clean-up and restoration shall be subject to the sole, reasonable approval of the city engineer.

(h) *Vehicle parking.* Each agency, network provider, and public infrastructure contractor shall make provisions for employee and construction vehicle parking so that neighborhood parking adjacent to a work site is not impacted.

(i) *Walkways.* Each agency, network provider, and public infrastructure contractor shall maintain an adequate and safe unobstructed walkway around a construction site or blocked sidewalk in conformance with City Code.

(j) *Graffiti abatement.* As soon as practical, but not later than fourteen (14) calendar days from the date agency, network provider, or infrastructure contractor receives notice thereof, the agency, network provider or infrastructure contractor, shall remove all graffiti on any of its facilities located in the right-of-way. The foregoing shall not relieve the agency, network provider, or infrastructure contractor from complying with any city graffiti or visual blight ordinance or regulation.

(k) *Signage.* Agency, network provider, or infrastructure contractor shall post its name, location identifying information, and emergency telephone number in an area on the cabinet of the facility that is visible to the public. Signage required under this section shall not exceed four (4) inches by six (6) inches, unless otherwise

required by law (e.g. RF ground notification signs) or the city manager. Except as required by laws or by the utility pole owner, agency, network provider, or infrastructure contractor shall not post any other signage or advertising on the facilities or poles.

(l) *Ownership.* No part of any facilities placed on the right-of-way pursuant to this article will become, or be considered by the city as being affixed to or a part of, the right-of-way, except for facilities accepted as city facilities by the city engineer in writing. All other facilities placed in the right-of-way pursuant to this article will be and remain the property of the agency or network provider and may be removed by the agency or network provider at any time, provided the agency or network provider shall obtain permits or give notice as required by this article.

(m) *Notification.* Each agency, network provider, and public infrastructure contractor shall notify the public works department forty-eight (48) hours before undertaking any work in the right-of-way.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-78. Traffic control.

(a) No person, agency, network provider, or public infrastructure contractor may close a public street without first obtaining a permit from the city engineer. An application for a maintenance permit and a traffic control plan shall be submitted to the city engineer no less than seven (7) business days prior to the date of the proposed closure unless an emergency exists, in which case immediate notice must be given to the city engineer. If a proposed construction project is to be made in the public right-of-way dedicated to the State of Texas, a city permit shall be required in addition to any and all permits required by the state.

(b) When it is necessary to obstruct traffic, an application for a maintenance permit and a traffic control plan shall be submitted to the city engineer prior to starting construction. No permit will be issued until the traffic control plan is approved by the city engineer. No agency, network provider, or public infrastructure contractor shall block access to and from private property, block emergency vehicles, block access to fire hydrants, fire stations, fire escapes, water valves, underground vaults, valve housing structures, or any other vital equipment unless the agency, network provider, or public infrastructure contractor provides the city with written verification of written notice delivered to the owner or occupant of the facility, equipment, or property at least forty-eight (48) hours in advance.

(c) When necessary for public safety, the agency, network provider, or public infrastructure contractor shall employ flag persons whose duties shall be to control traffic around or through the construction site. The use of flag persons may be required by the city engineer.

(d) Unless approved by the city engineer, the agency, network provider, or public infrastructure contractor shall not impede rush hour traffic on major thoroughfares during the morning or evening rush hours. No construction shall be performed nor shall any traffic lane be closed to traffic during the hours of 6:00 a.m. to 9:00 a.m. or 4:00 p.m. to 6:00 p.m., Monday through Friday, without the written approval of the city engineer.

(e) Lane closures on major thoroughfares will be limited to no more than two (2) hours at any time outside of the morning and evening rush hours unless approved by the city engineer.

(f) Traffic control devices and barricades, as defined in Part VI of the Manual on Uniform Traffic Control Devices, or any successor publication thereto, must be used whenever it is necessary to close a traffic lane or sidewalk. Traffic control devices and barricades are to be supplied by the agency, network provider, or public infrastructure contractor. If used at night, they must be reflectorized and must be illuminated or have barricade warning lights.

(g) Part VI of the Manual on Uniform Traffic Control Devices, or any successor publication thereto, shall be used as a guide for all maintenance and construction signing. The agency, network provider, or public infrastructure contractor shall illustrate on the permit the

warning and control devices proposed for use. At the direction of the city engineer, such warning and control devices shall be modified.

(h) The city engineer may refuse to issue a permit if proposed construction activity will substantially interfere with vehicular traffic flow on major thoroughfares or is inconsistent with procedures of this article.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-79. Requirements for street cuts and repairs.

(a) The agency, network provider, or public infrastructure contractor shall be responsible for maintaining all street cuts in such a manner as to avoid a hazard to vehicular and pedestrian traffic until permanently repaired.

(1) When emergency repairs are deemed necessary by the city engineer to correct a situation that is hazardous to the public, the agency, network provider, or public infrastructure contractor that is responsible for the cut shall be notified immediately. If the agency, network provider, or public infrastructure contractor does not provide an acceptable schedule for making the emergency repair within eight (8) hours of being notified, the repairs will be performed by the city, and the agency, network provider, or public infrastructure contractor will be billed for the repairs necessary to complete the project, including clean up.

(2) Agency, network provider, or public infrastructure contractor will be required to maintain the interim cut repair until they have completed final repairs.

(3) Traffic bearing steel plates shall be utilized on all concrete paving cuts until required curing is accomplished. Asphalt shall be used to provide smooth ramps at the edges. Plates or asphalt may be used for temporary repairs.

(b) All damage caused directly or indirectly to the street surface or subsurface outside the pavement cut area shall be regarded as a part of the street cut. These areas, as established by the city inspector, will be included in the total area repaired.

(c) The agency, network provider, or public infrastructure contractor shall notify the public works department immediately of any damage to other utilities, either city or privately-owned.

(d) Construction methods:

(1) The City of Plano Special Provisions to Standard Specifications for public works construction and the City of Plano's Standard Construction Details shall govern the cutting and restoration of street and alley pavements in the city. These requirements shall apply equally to any person, public infrastructure contractor, network provider, agency or city department who makes cuts and repairs to streets and alleys in the City of Plano. Any above or in-ground equipment shall not be partially or completely within the sidewalk area, or within eighteen (18) inches of the paved sidewalk, unless otherwise approved by the city.

(2) Permanent repairs of utility cuts in existing streets, alleys or easements will be completed by the agency, network provider, or public infrastructure contractor within fourteen (14) calendar days of beginning the work. If an agency, network provider, or public infrastructure contractor does not believe that it will be able to meet this schedule, the agency, network provider, or public infrastructure contractor must contact the city engineer concerning an alternative schedule for the repairs. Any alternative schedule must be approved by the city engineer prior to the beginning of the work. The agency, network provider, or public infrastructure contractor will be responsible for any maintenance of the repair for a period of one (1) year after the repair is complete. Failure to do so will result in the use of the agency's, network provider's or public infrastructure contractor's performance warranty/guarantee by the city to repair

any damage, and, possibly, the requirement of additional warrantee(s) and/or the denial of future permits.

(3) Steel plates left in the right-of-way after repairs are completed will be removed by the city and become the city's property.

(4) Excavation in street or alley pavements should begin with an air-hammer shovel, a pavement breaker or other equipment that will not damage the pavement outside an approximate width of the ditch prior to beginning trenching operations. All street excavations will be saw cut before the street is repaired. Full depth saw cuts are required.

(5) If the excavation is to pass under where the curb is installed without dummy/expansion joint, the agency, network provider, or public infrastructure contractor may saw cut a smooth line one (1) foot beyond each side of the disturbed base. If no damage to curb is evident to the city inspector, the agency, network provider, or public infrastructure contractor may pump concrete under curb and gutter on cuts less than one (1) foot wide. The city inspector will make this determination prior to concrete being placed under existing curb and gutter.

(e) *Notification of homeowners' and homeowner associations.* When an agency, network provider, or public infrastructure contractor is installing more than five hundred (500) linear feet of underground facilities, the agency, network provider, or public infrastructure contractor shall notify in writing all homeowner associations, from information maintained by the city, and individual homeowners along the route. Door hangers are an acceptable form of written notification. This notification shall give information about the project, not limited to the proposed location of the facilities, the time length for construction and a contact person to report any problems. The agency, network provider, or public infrastructure contractor must also contact all homeowner associations concerning the location of any underground improvements.

(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-80. Standards for repair and restoration.

(a) *Agency, network provider, public infrastructure contractor responsibility.* The agency, network provider, or public infrastructure contractor shall be fully responsible for the cost and actual performance of all work in the public rights-of-way. The agency, network provider, or public infrastructure contractor shall do all work in conformance with any and all engineering regulations, construction specifications, and design standards adopted by the city. These standards shall apply to all work in the public rights-of-way unless otherwise indicated in the permit.

(b) All restoration shall result in a work site condition equal to or better than the condition in which the site existed prior to construction. Restoration must be approved by the city engineer. In addition to the regulations, specifications, and standards referred to in subsection (a), the following provisions shall apply to work in the public rights-of-way of the city:

(1) Restoration must be to the reasonable satisfaction of the city engineer and the property owner. The restoration shall include, but not be limited to:

a. Replacing all ground cover with the type of ground cover damaged during work or better by sodding, as directed by the city;

b. Installation of all manholes and handholes, as required;

c. Backfilling of all bore pits, potholes, trenches or any other holes which must be done within seven (7) business days after excavation of the bore pits, potholes, trenches or other holes, unless other safety requirements are approved by the city engineer;

d. Leveling of all trenches and backhoe lines;

e. Restoration of excavation site to city specifications;

f. Restoration of all landscaping, trees, shrubs, ground cover, and sprinkler systems; and

g. Repairing and replacing existing erosion control devices that have been damaged or destroyed as a part of the work.

(2) All locate flags shall be removed during the clean-up process by the agency, network provider, or public infrastructure contractor at the completion of the work.

(3) Restoration must be made in a timely manner as agreed upon by the city engineer and the agency, network provider, or public infrastructure contractor. If restoration is not satisfactory and/or is not performed within the agreed upon timeframe, all work in progress, except that related to the problem, including all work previously permitted but not complete, may be halted and a hold may be placed on any permits not approved until all restoration is complete, or the city may complete the work and bill the agency, network provider, or public infrastructure contractor for the repairs performed by the city.

(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-81. Construction and restoration standards for newly constructed or overlayed streets.

(a) No agency, network provider, or public infrastructure contractor shall cause an open trench excavation or potholing of facilities in the pavement of any public right-of-way for a period of three (3) years from the completion of construction or resurfacing except in compliance with the provisions of this section.

(b) *Criteria for approval.* No permit for excavation in the right-of-way of new streets shall be approved unless the city engineer finds that all of the following criteria have been met:

(1) Boring or jacking without disturbing the pavement is not practical due to physical characteristics of the street or alley or other utility conflicts.

(2) Alternative utility alignments that do not involve excavating the street or alley are found to be impracticable.

(3) The proposed excavation cannot reasonably be delayed after the three-year deferment period has lapsed.

(c) *Exemptions for emergency operations.* Emergency maintenance operations shall be limited to circumstances involving the preservation of life, property, or the restoration of customer service. Agencies, network providers, or public infrastructure contractors with prior authorization from the city engineer to perform emergency maintenance operations within the public rights-of-way shall be exempted from this section. Any agency, network provider, or public infrastructure contractor commencing operations under this section shall submit detailed engineering plans, construction methods, and remediation plans no later than the next business day after initiating the emergency maintenance operation.

(d) *Construction and restoration standards for newly constructed or overlayed streets and alleys.* The streets shall be restored and repaired in accordance with design and construction standards adopted by the city and guaranteed in accordance with section 19-70.

(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-82. Relocation of facilities for public improvements.

(a) In the exercise of governmental functions, the city has first priority over all other uses of the public rights-of-way. The city reserves the right to lay sewer, water, and other pipelines or cables and conduits, and to do underground and overhead work, and attachments, restructuring, or changes in aerial facilities in, across, along, over, or under a public street, alley, or public rights-of-way occupied by an agency, network provider, or public infrastructure contractor, and to change the curb, sidewalks, or the grade of streets.

(b) The agency, network provider, or public infrastructure contractor must relocate its facilities at its own expense in a timely manner and prior to the start of construction of a city project.

Failure to comply with this provision shall subject the agency, network provider, or public infrastructure contractor to the enforcement provisions contained herein.

(c) A permit will be required when making facility adjustments in preparation for city projects, unless the adjustments are exempt under 19-64(b).

(d) If the agency, network provider or public infrastructure contractor fails to remove or relocate its facilities as requested within ninety (90) calendar days of receipt of the request, then the city shall be entitled to remove the facilities at the sole cost and expense of the agency, network provider, or infrastructure contractor without further notice. Agency or network provider shall, within thirty (30) calendar days following issuance of invoice for the same, reimburse the city for its reasonable expenses incurred in the removal (including, without limitation, overhead and storage expenses) of the facilities. A hold may be placed on any permits not approved until payment is received.

(e) The duty to remove and relocate at the agency, network provider, or public infrastructure contractor's expense is not contingent on the availability of an alternative location acceptable for relocation.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Sec. 19-83. Abandonment and removal of facilities.

(a) If a registration is not renewed, and subject to sixty (60) calendar days notification to the agency all facilities owned by the agency within the city will be deemed to have been abandoned and shall become the property of the city. The city has appropriated zero dollars ($0.00) to pay for the cost of any removal or storage of facilities placed in the right-of-way, as authorized under this article, and no other funds are allocated.

(b) Any agency or network provider that intends to discontinue use of any facilities within the public rights-of-way shall notify the city engineer in writing of the intent to discontinue use. Such notice shall describe the facilities for which the use is to be discontinued, including the address and GPS coordinates of any pole, a date of discontinuance of use, which date shall not be less than thirty (30) calendar days from the date such notice is submitted to the city engineer. Upon receipt of notice of discontinuance of use, the city shall have a right of first refusal to acquire agency's or network provider's facilities with the cost for such facilities to be negotiated by the city and the agency or network provider.

(c) Agency or network provider shall, at its sole cost and expense, promptly disconnect, remove or relocate its facilities if ordered to do so by the city pursuant to this article. Agency or network provider shall reimburse city for the city's actual costs of removal of facilities if agency or network provider fails to promptly disconnect, remove and relocate its facilities. Payment must be made within thirty (30) calendar days from receipt of an invoice for the actual costs from the city.

(d) The city shall not issue any refunds for any amounts paid by agency, network provider or infrastructure contractor for facilities or related ground equipment that have been removed.
(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

Secs. 19-84, 19-85. Reserved.

Exhibit "1" to Ordinance No. 2018-12-5

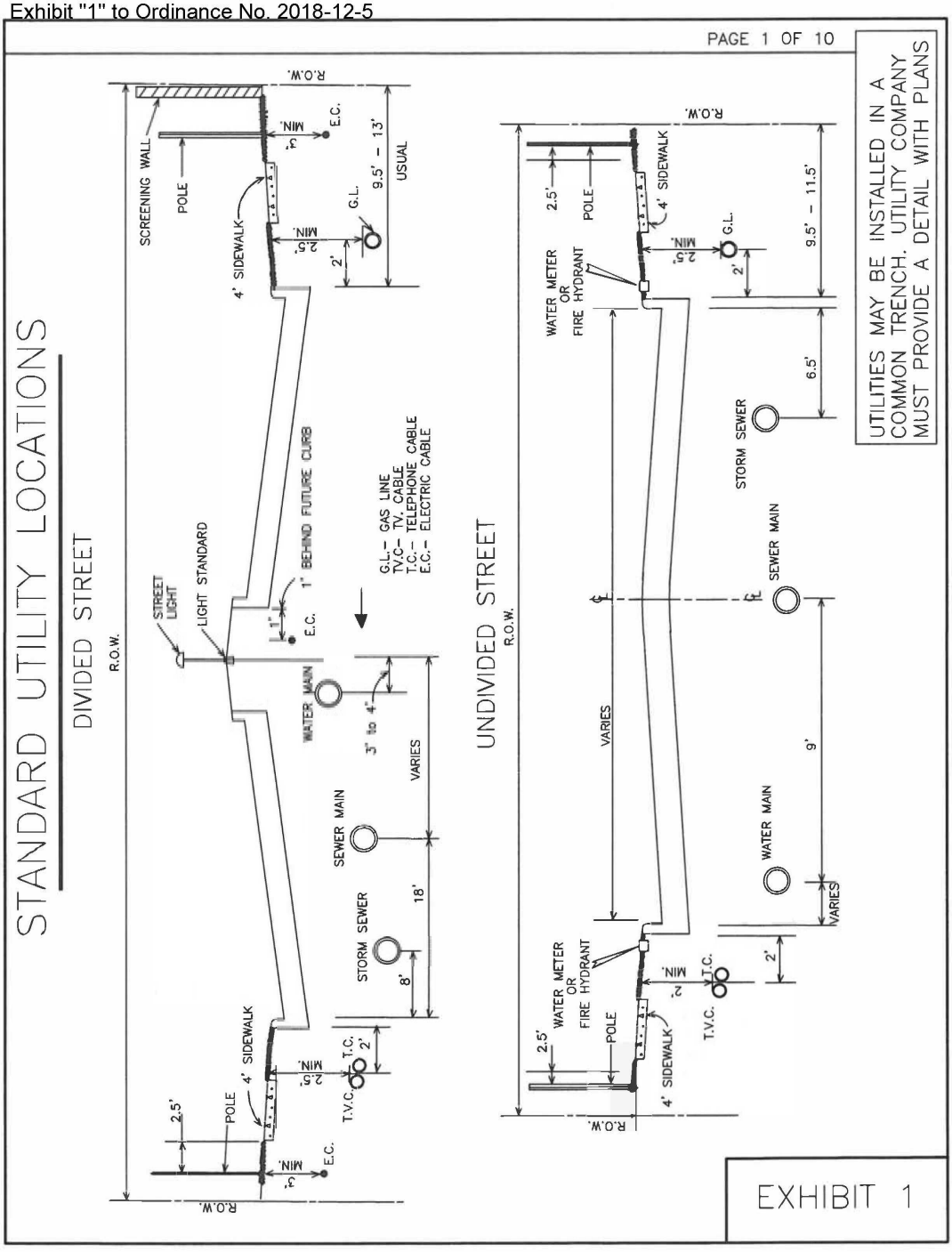
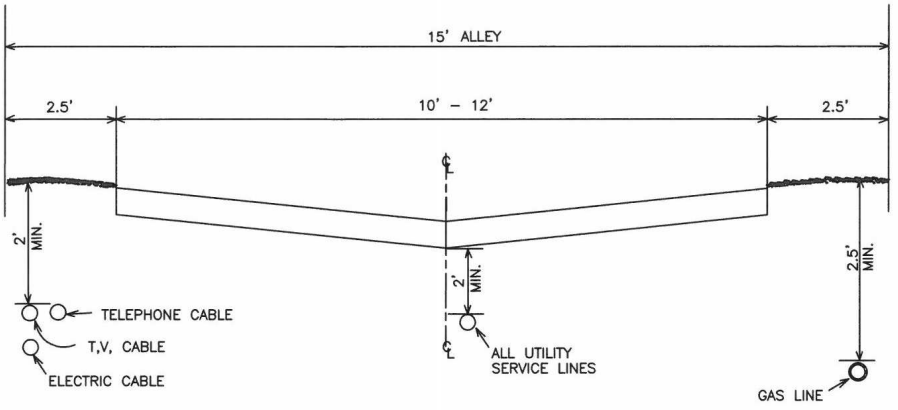
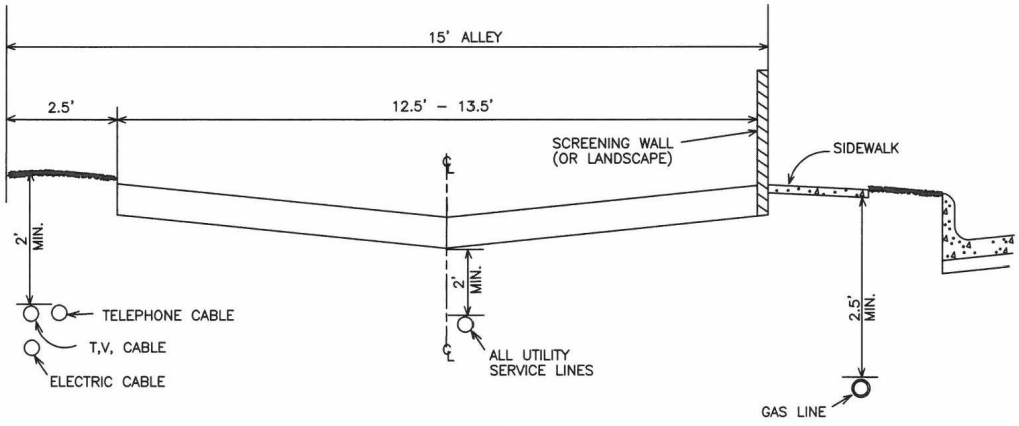


Exhibit "2" to Ordinance No. 2018-12-5

STANDARD UTILITY LOCATIONS



ALLEY



ALLEY WITH SCREENING WALL

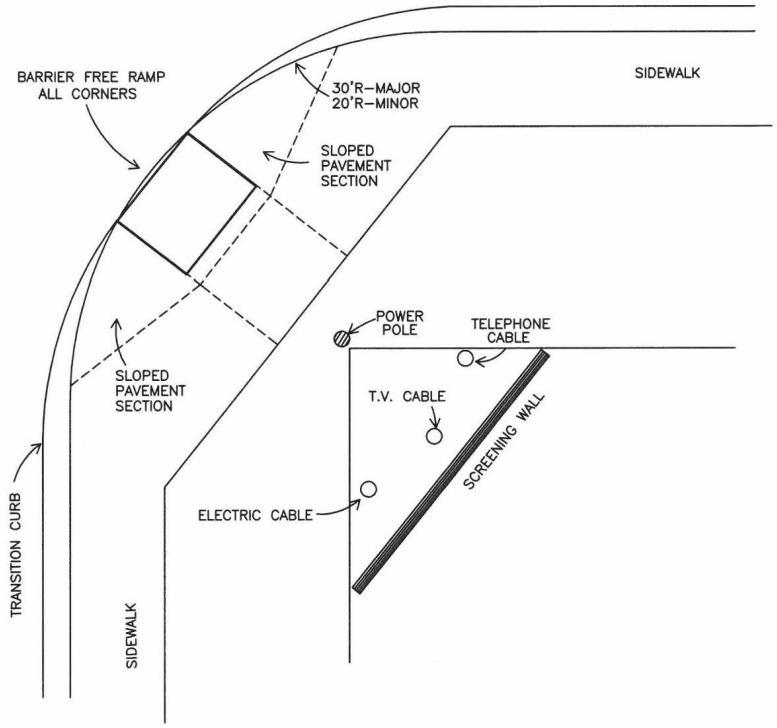
UTILITIES MAY BE INSTALLED IN A COMMON TRENCH. UTILITY COMPANY MUST PROVIDE A DETAIL WITH PLANS

EXHIBIT 2

Exhibit "3" to Ordinance No. 2018-12-5

PAGE 3 OF 10

STANDARD UTILITY LOCATIONS
—AT STREET INTERSECTION—



NOTE:
FACILITIES AT CORNERS MUST
NOT ENCROACH INTO SIGHT
DISTANCE REQUIREMENTS

EXHIBIT 3

Exhibit "4" to Ordinance No. 2018-12-5

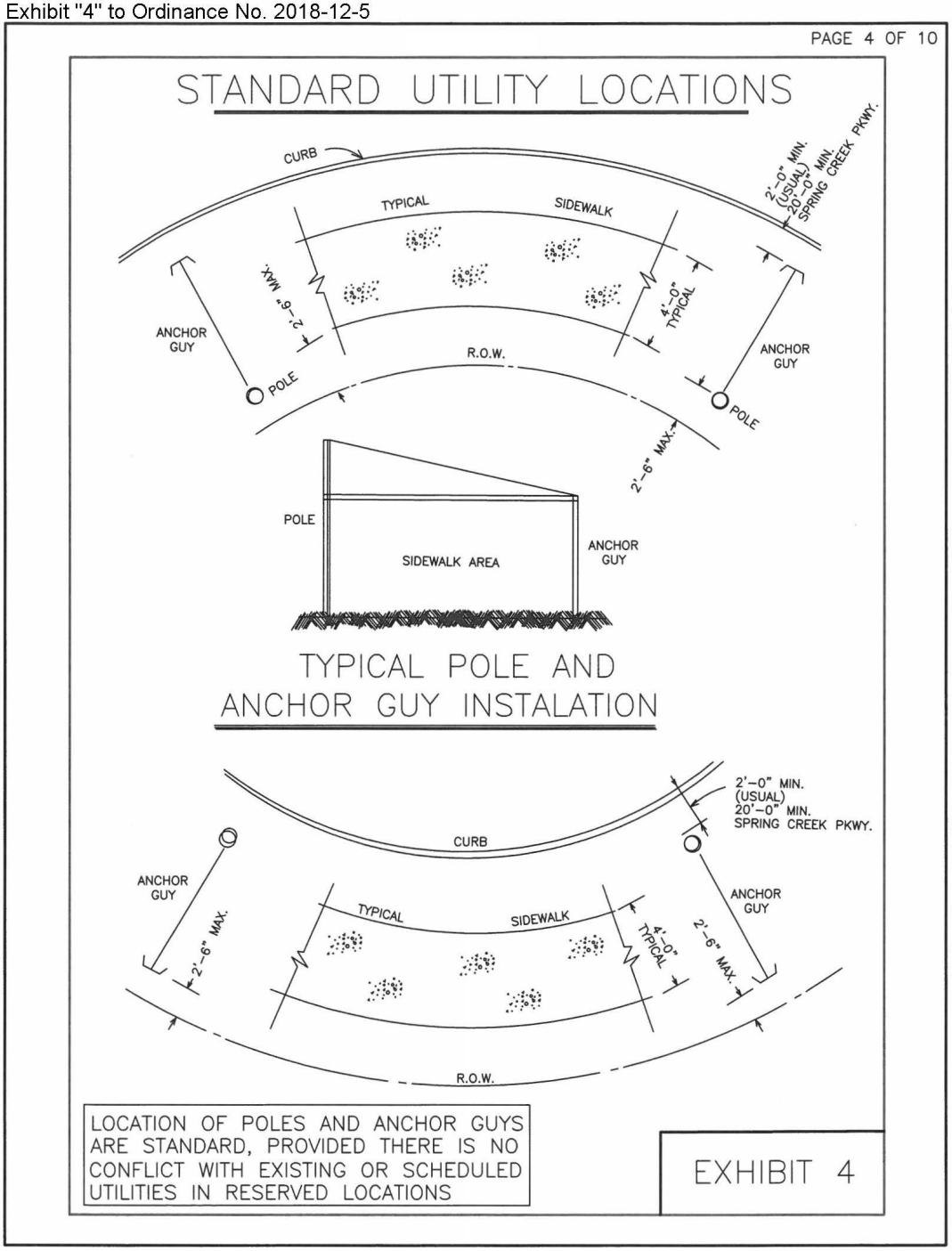


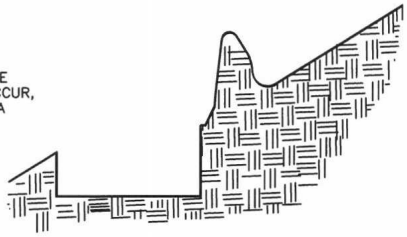
Exhibit "5" to Ordinance No. 2018-12-5

FRANCHISE UTILITIES

EROSION CONTROL PLAN

TEMPORARY EROSION CONTROL PLAN FOR PIT

PLACE SOIL\SPOIL PILE UPGRADIENT TO EXCAVATION TO ENSURE THAT SHOULD ANY STORM INSIDENT OCCUR, THE EXCAVATED AREA WILL SERVE AS A CATCH BASIN TO CONTAIN THE SOIL.

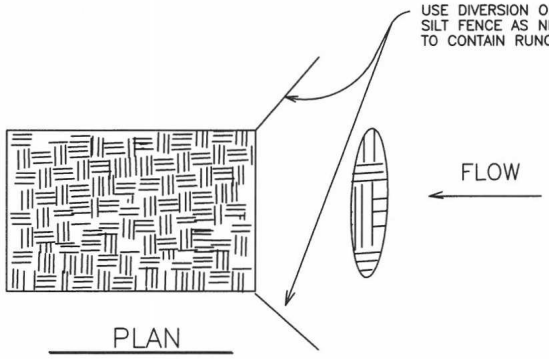


PROFILE

USE DIVERSION OR SILT FENCE AS NEEDED TO CONTAIN RUNOFF.

AS NEEDED, PROVIDE AN EROSION CONTROL DEVICE TO TREAT ANY WATER PUMPED FROM THE EXCAVATION AFTER A STORM EVENT.

ANY EROSION DEVICES TO BE IN COMPLIANCE WITH THE CITY OF PLANO EROSION CONTROL DETAIL.



PLAN

INCOMPLETE PROJECT WITH TEMPORARY EROSION CONTROL MEASURES IN PLACE BEFORE LEAVING SITE

IN NO CASE SHALL SOIL/SPOIL BE PLACED IN THE STREET GUTTER

EXHIBIT 5
PAGE 1 of 6

Exhibit "5" to Ordinance No. 2018-12-5

PAGE 6 OF 10

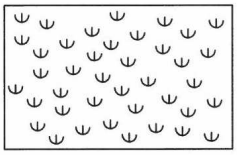
FRANCHISE UTILITIES

EROSION CONTROL PLAN

PERMANENT EROSION CONTROL PLAN FOR PIT

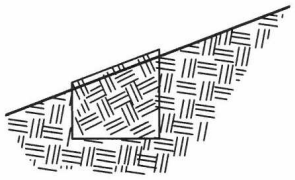
PERMANENT EROSION CONTROL MEASURES TO INCLUDE REPLACEMENT OF EXISTING/INDIGENOUS VEGETATIVE COVER.

ANY EROSION DEVICES TO BE IN COMPLIANCE WITH THE CITY OF PLANO EROSION CONTROL DETAIL.



FLOW

PLAN



PROFILE

INCOMPLETE PROJECT WITH TEMPORARY EROSION CONTROL MEASURES IN PLACE BEFORE LEAVING SITE

IN NO CASE SHALL SOIL/SPOIL BE PLACED IN THE STREET GUTTER

EXHIBIT 5
PAGE 2 of 6

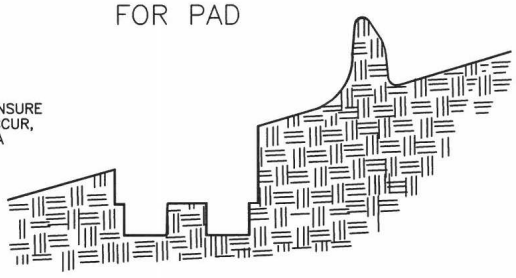
Exhibit "5" to Ordinance No. 2018-12-5

FRANCHISE UTILITIES

EROSION CONTROL PLAN

TEMPORARY EROSION CONTROL PLAN FOR PAD

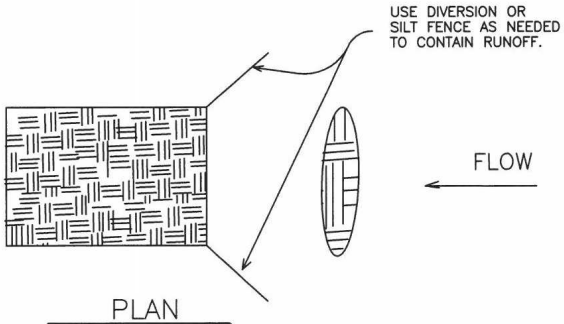
PLACE SOIL/SPOIL PILE UPGRADIENT TO PAD EXCAVATION TO ENSURE THAT SHOULD ANY STORM INCIDENT OCCUR, THE EXCAVATED AREA WILL SERVE AS A CATCH BASIN TO CONTAIN THE SOIL.



PROFILE

AS NEEDED, PROVIDE AN EROSION CONTROL DEVICE TO TREAT ANY WATER PUMPED FROM THE EXCAVATION AFTER A STORM EVENT.

ANY EROSION DEVICES TO BE IN COMPLIANCE WITH THE CITY OF PLANO EROSION CONTROL DETAIL.



PLAN

INCOMPLETE PROJECT WITH TEMPORARY EROSION CONTROL MEASURES IN PLACE BEFORE LEAVING SITE

IN NO CASE SHALL SOIL/SPOIL BE PLACED IN THE STREET GUTTER

EXHIBIT 5
PAGE 3 of 6

Exhibit "5" to Ordinance No. 2018-12-5

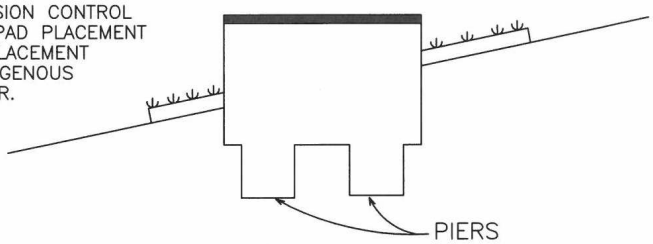
PAGE 8 OF 10

FRANCHISE UTILITIES

EROSION CONTROL PLAN

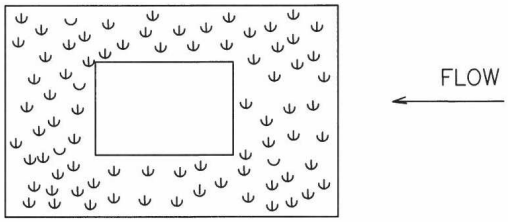
PERMANENT EROSION CONTROL PLAN FOR PAD

PERMANENT EROSION CONTROL MEASURES FOR PAD PLACEMENT TO INCLUDE REPLACEMENT OF EXISTING/INDIGENOUS VEGETATIVE COVER.



PROFILE

ANY EROSION DEVICES TO BE IN COMPLIANCE WITH THE CITY OF PLANO EROSION CONTROL DETAIL.



PLAN

INCOMPLETE PROJECT WITH TEMPORARY EROSION CONTROL MEASURES IN PLACE BEFORE LEAVING SITE

IN NO CASE SHALL SOIL/SPOIL BE PLACED IN THE STREET GUTTER

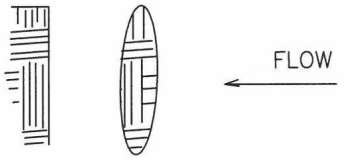
EXHIBIT 5
PAGE 4 of 6

Exhibit "5" to Ordinance No. 2018-12-5

FRANCHISE UTILITIES

EROSION CONTROL PLAN

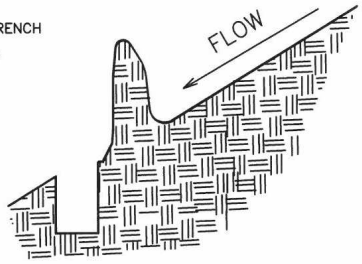
TEMPORARY EROSION CONTROL PLAN FOR TRENCHING ACTIVITIES



PLAN

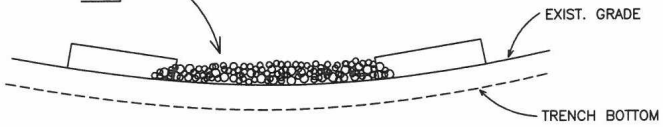
PLACE SOIL/SPOIL ON THE SIDE OF THE TRENCH AWAY FROM THE CURB. THE TRENCH WILL SERVE AS A CATCH BASIN TO CONTAIN ANY EROSION.

ANY EROSION DEVICES TO BE IN COMPLIANCE WITH THE CITY OF PLANO EROSION CONTROL DETAIL.



PROFILE

AS NEEDED, PROVIDE AN EROSION CONTROL DEVICE (IE. SILT FENCE, STONE OVERFLOW, OR OTHER APPROPRIATE MEASURE) AT LOW POINTS ALONG TRENCH TO CONTROL OVERFLOWS.



LONGITUDINAL PROFILE

INCOMPLETE PROJECT WITH TEMPORARY EROSION CONTROL MEASURES IN PLACE BEFORE LEAVING SITE

IN NO CASE SHALL SOIL/SPOIL BE PLACED IN THE STREET GUTTER

EXHIBIT 5
PAGE 5 of 6

Exhibit "5" to Ordinance No. 2018-12-5

PAGE 10 OF 10

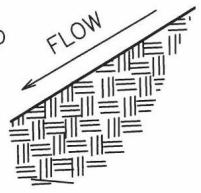
FRANCHISE UTILITIES

EROSION CONTROL PLAN

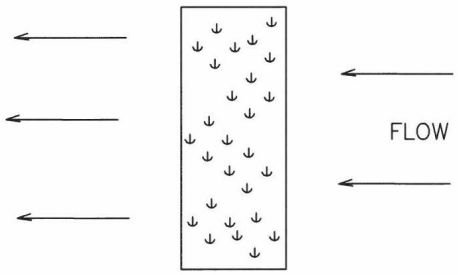
PERMANENT EROSION CONTROL PLAN FOR TRENCHING ACTIVITIES

PERMANENT EROSION CONTROL MEASURES FOR TRENCH ACTIVITIES TO INCLUDE REPLACEMENT OF EXISTING/ INDIGENOUS VEGETATIVE COVER.

ANY EROSION DEVICES TO BE IN COMPLIANCE WITH THE CITY OF PLANO EROSION CONTROL DETAIL.



PROFILE



PLAN

INCOMPLETE PROJECT WITH TEMPORARY EROSION CONTROL MEASURES IN PLACE BEFORE LEAVING SITE

IN NO CASE SHALL SOIL/SPOIL BE PLACED IN THE STREET GUTTER

EXHIBIT 5
PAGE 6 of 6

(Ord. No. 2017-8-8, § II, 8-28-17; Ord. No. 2018-12-5, § II, 12-18-18)

ARTICLE V. STREET AND THOROUGHFARE CLOSURES

DIVISION 1. GENERALLY*

Secs. 19-86—19-90. Reserved.

DIVISION 2. STREET CLOSURE FOR NEIGHBORHOOD EVENT†

Sec. 19-91. Definitions.

Director means the director of the neighborhood services department.

Neighborhood event means a gathering (which may include but is not limited to, a block party, bike-a-thon, festival, holiday celebration, or potluck) and meets all of the following criteria:

(1) Requires temporary closure of any part of a type G street;

(2) Is not advertised to the public;

(3) Is located within a defined geographic area;

(4) Is reasonably expected to have less than one hundred (100) attendees;

(5) Does not begin prior to 9:00 a.m. or end after 10:00 p.m.;

(6) Does not require a permit pursuant to City of Plano Code of Ordinances, division 4, itinerant vendors and carnivals, as amended;

(7) Does not require city resources, other than barricades for street closure, to maintain public safety; and

(8) Is not a spontaneous event as described in City of Plano Code of Ordinances, article VIII, special events, chapter 11, licenses and business regulations, as amended.

Street closure permit for neighborhood event means a permit issued by the City of Plano Neighborhood Services Director or designee to use barricades for temporary closure of all or part of a type G street for a Neighborhood Event.

Type G street means a residential street designated as type "G" in the City of Plano Street Design Standards, as amended.
(Ord. No. 2022-6-5, § I, 6-13-22; Ord. No. 2023-9-16, § III, 9-11-23)

Sec. 19-92. Permit required, application; petition.

Any person seeking to temporarily close a type G street for the purpose of holding a neighborhood event shall file the following with the director not less than fourteen (14) days prior to the neighborhood event:

(1) An application for a street closure permit for neighborhood event; and

(2) A petition, in a form provided by the city, containing but not limited to, the time, date, and location of the street closure and the signatures of seventy-five (75) percent of adult residents of the street to be closed indicating their consent to the proposed street closure. For purposes of computing the percentage, each lot shall have only one (1) vote. Consent from any one (1) owner of any portion of the lot is binding on all owners of the lot.

(Ord. No. 2022-6-5, § I, 6-13-22)

Sec. 19-93. Denial of permit, appeal.

The director may deny a street closure permit for neighborhood event in the interest of public safety, health or welfare of the community as a whole. If request for a street closure permit for neighborhood event is denied, the applicant(s) may appeal in writing to the city manager or designee within five (5) days of such denial.
(Ord. No. 2022-6-5, § I, 6-13-22)

***Editor's note—**Ord. No. 87-12-21, adopted Dec. 28, 1987, repealed Ord. No. 83-9-10, adopted Sept. 26, 1983, which comprised §§ 19-76—19-80 of this division, concerning street and thoroughfare closures generally. Street closure procedures are now covered by the Manual for Utility Location and Coordination adopted by Ord. No. 87-12-21 and on file in the office of the city secretary.

†**Editor's note—**Ord. No. 2022-6-5, § I, adopted June 13, 2022, repealed the former division 2, §§ 19-91—19-97, and enacted a new division 2 as set out herein. The former division 2 pertained to similar subject matter and derived from Ord. No. 85-5-25, adopted May 13, 1985; Ord. No. 2003-4-16, adopted April 14, 2003; Ord. No. 2015-7-7, adopted July 27, 2015.

Sec. 19-94. Revocation of permit.

Nothing in this division shall prevent the director, the chief of police, or their designees from revoking a street closure permit for neighborhood event at any time before or during the neighborhood event in the interest of public safety, health or welfare of the community as a whole.
(Ord. No. 2022-6-5, § I, 6-13-22)

Sec. 19-95. Barricades.

The applicant for a street closure permit for neighborhood event shall place barricades provided by the city at locations and times approved in the street closure permit for neighborhood event.
(Ord. No. 2022-6-5, § I, 6-13-22)

Sec. 19-96. Offenses.

(a) A person commits an offense if they:

(1) Create or maintain a closure of any part of a type G street for a neighborhood event without a valid street closure permit for neighborhood event; or

(2) Fail to comply with any requirement of a street closure permit for neighborhood event.

(b) Conduct prohibited under section 19-96 that also is an offense under state law shall be enforced under applicable state law.
(Ord. No. 2022-6-5, § I, 6-13-22)

Sec. 19-97. Penalty.

Any person, firm or corporation found to be violating any term or provision of this article, shall be subject to a fine in accordance with subsection 1-4(b) of the City Code of Ordinances for each offense. Each day a violation continues shall constitute a separate offense. If conduct constitutes an offense under state law, it shall be enforced under such law.
(Ord. No. 2022-6-5, § I, 6-13-22)

Secs. 19-98—19-110. Reserved.

ARTICLE VI. RESERVED*

*__Editor's note—__Ord. No. 2009-4-9, § I, adopted April 14, 2009, repealed the former article VI, §§ 19-111—19-123 in its entirety, which pertained to parades, and derived from Ord. No. 96-9-7, § I, adopted September 9, 1996. For similar provisions, the user's attention is directed to chapter 11, article VIII.

[The next page is 1385]

Chapter 20

TAXATION*

Art. I.	**In General, §§ 20-1—20-15**
Art. II.	**Ad Valorem Taxes, §§ 20-16—20-70**
	Div. 1. Generally, §§ 20-16—20-29
	Div. 2. Delinquent Taxes, §§ 20-30—20-50
	Div. 3. Historic Structures, §§ 20-51—20-70
Art. III.	**Hotel Occupancy Tax, §§ 20-71—20-80**

*__Editor's note—__A one (1) percent local sales and use tax was adopted by the people at an election held December 5, 1967, pursuant to article 1066c of Vernon's Annotated Civil Statutes. The results of such election were declared by a resolution adopted December 11, 1967, and on file in the city secretary's office.

__Charter references—__Taxation generally, § 9.17 et seq.; authority of city to assess, levy and collect taxes, § 2.01.

__Cross references—__Administration, Ch. 2; licenses and business regulations, Ch. 11.

__State law reference—__Property taxes, V.T.C.A. Tax Code, § 1.01 et seq.

ARTICLE I. IN GENERAL

Sec. 20-1. Bingo games.

A gross receipts tax of two (2) percent, as authorized and governed by the state bingo enabling act, shall be imposed on all bingo games conducted within the city.

(Ord. No. 83-2-7, § 1, 2-14-83)

State law reference—Bingo Enabling Act, Vernon's Ann. Civ. St., art. 179d.

Sec. 20-2. Taxation of telecommunications service.

(a) A tax is hereby authorized on all telecommunications services sold within the City of Plano, Texas. For purposes of this section, the sale of telecommunications services is consummated at the location of the telephone or other telecommunications device from which the call or other communication originates. If the point of origin cannot be determined, the sale is consummated at the address to which the call or other communication is billed.

(b) The application of the exemption provided for in article 1066c, section 4B(a), V.A.T.C.S., is hereby repealed by the City of Plano, Texas, as authorized by section 4B(b) thereof.

(c) The rate of tax imposed by this section shall be the same as the rate imposed by the City of Plano, Texas, for all other local sales and use taxes as authorized by the Legislature of the State of Texas.

(d) The city secretary shall forward to the state comptroller, by United States registered or certified mail, a certified copy of Ordinance No. 87-6-26. A copy of the minutes of the city council's vote and discussion on said ordinance will be forwarded upon their approval.

(e) The repeal of the application of the exemption can not become effective until the elapse of one whole calendar quarter after receipt of notification by the comptroller. The imposition of the tax will take effect on the first day of the calendar quarter next succeeding the elapsed quarter.

(Ord. No. 87-6-26, § I, 6-22-87)

Editor's note—Ord. No. 87-6-26, § I, adopted June 22, 1987, effective October 1, 1987, amended the Code by adding provisions which have been designated by the editor as § 20-2.

Sec. 20-3. Taxation of certain property otherwise exempt by state law.

All of that property described in the Texas Constitution, article VIII, section 1-j, shall be exempt from ad valorem taxation in the City of Plano, Texas, beginning January 1, 1994, and all subsequent years.

(Ord. No. 89-12-10, § I, 12-11-89; Ord. No. 90-3-16, § I, 3-12-90; Ord. No. 93-9-32, § I, 9-13-93)

Editor's note—Ord. No. 89-12-10, § I, adopted Dec. 11, 1989, and Ord. No. 90-3-16, § I, adopted Mar. 12, 1990, not specifically amendatory of this Code, have been codified as § 20-3 of this chapter at the discretion of the editor.

Secs. 20-4—20-15. Reserved.

ARTICLE II. AD VALOREM TAXES

DIVISION 1. GENERALLY

Sec. 20-16. Homestead exemption generally.

(a) A homestead exemption of twenty (20) percent is granted to all qualified homeowners subject to the city's property tax pursuant to the laws of the state regulating the assessing of ad valorem taxes.

(b) This section shall apply to the 1982 tax roll and all subsequent tax rolls unless repealed or amended by ordinance.

(Ord. No. 82-5-27, §§ 1, 3, 5-24-82)

State constitution reference—Residence homestead, Art. VIII, § 1-b.

State law reference—Residence homestead, V.T.C.A. Tax Code, § 11.13.

Sec. 20-17. Homestead exemption for senior citizens, disabled persons.

(a) "Disabled" for purposes of this exemption means either that, because of physical or mental disability, a person is unable to engage in any substantial gainful work, or that a person is fifty-five (55) years of age or older and blind and by reason of the blindness is unable to engage in his previous line of work.

(b) Pursuant to the state constitution, Article VIII, Section 1-b, forty thousand dollars ($40,000.00) of the appraised value of resident homesteads of persons sixty-five (65) years of age

or older and of disabled persons shall be exempt from city ad valorem taxes beginning with the 1982 tax roll and all subsequent tax rolls, upon the owner's compliance with the following requirements:

(1) The head of the household of the resident homestead shall be sixty-five (65) years of age or older as of January 1 of each tax year.

(2) The head of the household of the resident homestead exemption shall submit to the Chief Appraiser of the Collin County Appraisal District an affidavit that he is sixty-five (65) years of age or older or disabled. The initial exemption claim shall be accompanied by adequate proof of age, but subsequent renewal of the exemption may be made by affidavit only.

(3) No part of the property receiving exemption may be used for commercial purposes, and no more than five (5) acres of rural land will be deemed eligible for exemption.

(c) Any person who makes a false affidavit in claiming their homestead exemption shall be subject to all penalties which exist for lack of payment of taxes, and all other appropriate criminal penalties.

(d) Property purchased after January first in any given year will not qualify in whole or in part for exemption for that year.
(Ord. No. 82-5-29, §§ 1—3, 5-24-82)

Sec. 20-18. Residence homestead tax limitation for elderly or disabled people.

(a) Effective with tax year 2004, the total amount of ad valorem taxes imposed by the City of Plano on the residence homestead of a person who is disabled or is sixty-five (65) years of age or older shall not be increased while it remains the residence homestead of that person or that person's spouse who is disabled or sixty-five (65) years of age or older and receives a residence homestead exemption on the homestead.

(b) If the person who is disabled or is sixty-five (65) years of age or older dies in a year in which the person received a residence homestead exemption, the total amount of ad valorem taxes imposed on the residence homestead shall not be increased while it remains the residence homestead of that person's surviving spouse if the spouse is fifty-five (55) years of age or older at the time of the person's death.

(c) The tax limitation approved by this ordinance is transferable as permitted by Texas Tax Code § 11.261 as the same may be amended from time to time.

(d) Notwithstanding subsections (a) and (b), taxes on the residence homestead may be increased to the extent the value of the homestead is increased by improvements other than repairs and other improvements made to comply with governmental requirements.
(Ord. No. 2004-5-22, § I, 5-24-04)

Sec. 20-19. Charitable organization exemptions.

(a) *Definitions.*

(1) *Local charitable organization* means an organization that:

(A) Is a chapter, subsidiary or branch of a statewide charitable organization; and

(B) With respect to its activities in this state, is engaged primarily in performing religious, charitable, scientific, literary or educational functions as defined in V.T.C.A., Tax Code § 11.18(d), as amended.

(2) *Qualified charitable organization* means a statewide charitable organization or a local charitable organization.

(3) *Statewide charitable organization* means that a statewide organization that, with respect to its activities in this state, is engaged primarily in performing religious, charitable, scientific, literary or educational functions as defined in V.T.C.A., Tax Code § 11.18(d), as amended.

(b) *Exemption.* A qualified charitable organization is entitled to an exemption from taxation of:

(1) The buildings and other real property and the tangible personal property that:

(A) Are owned by the organization; and

(B) Except as permitted by subsection (c) of this section, are used exclusively by the organization and other organizations eligible for an exemption from taxation under V.T.C.A., Tax Code § 11.18 or 11.184, as amended; and

(2) The real property owned by the organization consisting of:

(A) An incomplete improvement, as defined by V.T.C.A., Tax Code § 11.184(j), that:

(i) Is under active construction or other physical preparation; and

(ii) Is designed and intended to be used exclusively by the organization and other organizations eligible for an exemption from taxation under V.T.C.A., Tax Code § 11.18 or 11.184, as amended; and

(B) The land on which the incomplete improvement is located that will be reasonably necessary for the use of the improvement by the organization and other organizations eligible for an exemption from the taxation under V.T.C.A., Tax Code § 11.18 or 11.184, as amended.

(c) *Incidental use of the property.* Use of the exempt property by persons who are not charitable organizations eligible for an exemption from taxation under V.T.C.A., Tax Code § 11.18 or 11.184 does not result in the loss of an exemption authorized by this section if the use is incidental to use by those charitable organizations and limited to activities that benefit the charitable organization that owns of uses the property.

(d) *State comptroller's determination letter.* An organization applying for an exemption under this section must receive from the State Comptroller's office, and submit to the City a copy of the State Comptroller's office determination letter finding the organization is engaged primarily in performing functions listed in V.T.C.A., Tax Code § 11.18(d).

(e) *Terms of exemption.* An exemption under this section expires at the end of the fifth tax year after the year in which the exemption is granted except an exemption granted under subsection (b)(2) shall expire after three (3) years. To continue to receive an exemption under this section after that year, the organization must obtain a new determination letter and reapply for the exemption.
(Ord. No. 2009-1-11, § I, 1-26-09)

Secs. 20-20—20-29. Reserved.

DIVISION 2. DELINQUENT TAXES*

Sec. 20-30. When taxes delinquent; penalty.

(a) The delinquency date for taxes due the City of Plano and Plano Independent School District shall be as established by section 31.02, Property Tax Code, which date is February 1 of the year following the year in which imposed.

(b) Taxes due the City of Plano and which become delinquent shall incur the penalty and accrue the interest as provided by section 33.01 of the Property Tax Code, as amended by the 67th Legislature, First Called Session.
(Ord. No. 82-1-5, §§ II, III, 1-11-82)

Editor's note—Sections II and III of Ord. No. 82-1-5, adopted Jan. 11, 1982, have been included as § 20-30 hereof at the discretion of the editor.

Sec. 20-31. Additional penalty to defray costs of collection—Incurred on July first.

Property taxes that remain delinquent on July first of the year in which they become delinquent shall incur an additional penalty to defray costs of collection so long as the city has contracted with an attorney, pursuant to section 6.30 of the

*__State law reference—__Authority for this division, V.T.C.A. Tax Code, Ch. 33.

Property Tax Code, Vernon's Texas Codes Annotated, for collection of the taxes against which the additional penalty is imposed.
(Ord. No. 82-1-21, § 1, 1-25-82)

Sec. 20-32. Same—Amount.

The amount of the additional penalty imposed by section 20-31 of this division shall be an amount of money equal to fifteen (15) percent of the amount of taxes, penalty and interest due.
(Ord. No. 82-1-21, § II, 1-25-82)

Sec. 20-33. Same—Tax lien.

A tax lien shall attach to the property on which the tax is imposed to secure payment of the penalty.
(Ord. No. 82-1-21, § III, 1-25-82)

Sec. 20-34. Notice of delinquency and penalty.

The tax collector shall deliver, as required by the State Property Tax Code, Vernon's Annotated Texas Statutes, a notice of the delinquency and of the penalty to the property owner at least thirty (30) and not more than sixty (60) days before July first of the year in which the taxes become delinquent.
(Ord. No. 82-1-21, § V, 1-25-82)

Sec. 20-35. Attorney's fees in addition to penalty prohibited.

If a penalty is imposed pursuant to sections 20-31—20-36 of this division, the city may not recover in addition thereto attorney's fees in a suit to collect delinquent taxes subject to the penalty.
(Ord. No. 82-1-21, § IV, 1-25-82)

Sec. 20-36. Effect of provisions should city contract for collection.

Should the city contract with another taxing unit for the collection of taxes, then the provisions of sections 20-31—20-36 of this division shall survive and be applicable to the delinquent taxes collected by the taxing unit collecting taxes for the city; and, in such event, the notice required by section 20-34 shall be delivered by the tax collector for the contracting taxing unit.
(Ord. No. 82-1-21, § VI, 1-25-82)

Secs. 20-37—20-50. Reserved.

DIVISION 3. HISTORIC STRUCTURES*

Sec. 20-51. Granting of exemptions.

The city council shall by ordinance, concurrent with the levy of taxes for each current year, approve for partial exemption from ad valorem taxes certain historically significant sites that qualify for exemption pursuant to provisions of this division.
(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-52. Historically significant sites.

For the purpose of this division, historically significant sites are defined as structures with (H) zoning and structures located within (HD) zoning overlay districts, except for structures categorized as non-contributing structures within a (HD) zoning overlay district.
(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-53. Classes of historically significant sites.

Historically significant sites shall be divided into the following classes:

(1) *Class A.* Structures that are:

a. Occupied exclusively for residential purposes; and

b. Individually designated as a heritage landmark (H).

***Editor's note—**Ord. No. 2022-8-14, § I, adopted August 22, 2022, repealed the former Div. 3, §§ 20-51—20-65, and § II enacted a new Div. 3 as set out herein. The former Div. 3 pertained to similar subject matter and derived from Ord. No. 2019-8-6, § II, 8-26-19.

Cross reference—Historic landmark preservation, § 16-101 et seq.

State constitution reference—Ad valorem tax relief, Art. VIII, § 1-f.

State law reference—Historic sites, V.T.C.A. Tax Code, § 11.24.

(2) *Class B.* Structures that are:

a. Occupied in whole or in part for purposes other than residential; and

b. Individually designated as a heritage landmark (H).

(3) *Class C.* Structures that are:

a. Occupied exclusively for residential purposes;

b. Located in a designated heritage district (HD); and

c. Categorized as contributing or compatible to the (HD) district.

(4) *Class D.* Structures that are:

a. Occupied in whole or in part for purposes other than residential;

b. Located in a designated heritage district (HD); and

c. Categorized as contributing or compatible to the (HD) district.

(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-54. Percentage of value exempted.

The following classes of historically significant sites, which are approved for exemption by ordinance pursuant to the provisions of this division, shall, at a maximum, have the following percentage of assessed improvement value exempt from ad valorem taxes levied by the city:

(1) Class A structures shall have a maximum exemption of one hundred (100) percent of the assessed improvement value of the structure during the applicable collection period.

(2) Class B structures shall have a maximum exemption of fifty (50) percent of the assessed improvement value of the structure during the applicable collection period.

(3) Class C structures shall have a maximum exemption of seventy-five (75) percent of the assessed improvement value of the structure during the applicable collection period.

(4) Class D structures shall have a maximum exemption of thirty-eight (38) percent of the assessed improvement value of the structure during the applicable collection period.

A historically significant site may qualify for fifty (50) percent of the maximum heritage tax exemption if granted a waiver as described in section 20-59.
(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-55. Eligibility requirements.

To qualify for the maximum heritage tax exemption, a historically significant site must comply with the following eligibility requirements as of January 1 of the year in which the tax exemption is to be granted (current year):

(1) The structure's owner has not been convicted of a violation of a city regulation related to preservation and maintenance of the property or structure or a violation of a health or safety regulation in the past year;

(2) There are no delinquent property taxes owed to the City of Plano;

(3) No permits or applications for demolition or relocation of the structure have been submitted, suspended, approved, issued, or are in any other stage that may allow demolition or relocation of the structure during the current year;

(4) No exterior work was completed, installed, or is under construction without a certificate of appropriateness (CA) or in deviation of a previously approved CA; and

(5) All required maintenance items listed in a previous tax exemption inspection report have been completed by the established deadlines, if applicable.

(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-56. Application.

Applications for heritage tax exemption shall be submitted as follows:

(1) For the assessment year for which the owner of the structure desires such

structure to be tax exempt to the extent provided by this division, the owner shall file with the heritage preservation officer an application, no later than January 1, attesting that the eligibility requirements of this article and V.T.C.A. Tax Code, § 11.42 are fully satisfied.

a. Once the owner has filed and been approved for tax exemption of a property, a new application shall not be required to be filed by the property owner annually as long as he/she retains ownership of the property.

b. If the property ownership changes on an exempt property, the property shall retain tax exempt status for the remainder of the current year and the new property owner is responsible for any outstanding repairs and other eligibility requirements to maintain eligibility for the following year. A new application will be required to be filed as set out herein for the following assessment year.

c. If a property owner was previously denied tax exempt status for a property, a new application will be required to be filed as set out herein. Any outstanding eligibility requirements, including maintenance items identified in previous tax exemption inspections, must be met to regain eligibility.

(2) Application forms are to be available online and from the city planning department.

(3) The application shall affirmatively set forth the owner's authorization for city staff members to visit and inspect the property and books and records as necessary to certify whether or not the structure is being preserved and maintained as required by section 20-57 of this division.

(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-57. Inspection.

Upon receipt of sworn application, the heritage preservation officer, or his/her designees, shall inspect the property and review the books and records as necessary to certify the following:

(1) The property meets the eligibility requirements as outlined in subsections 20-55(1)—(4); and

(2) All required maintenance items have been adequately addressed so that the structure, accessory structures, grounds, property elements, and building elements with their materials and finishes have been maintained in good repair and in operable condition to avoid decay, damage, structural failure and hazardous or unsafe conditions to life, health, or other property. Generally:

a. Exterior surfaces of all structures (main structure and accessory structures) shall be clean, maintained, protected, and weathertight. Surfaces that have been previously painted/stuccoed shall be protected with paint and/or other appropriate finishes/coatings.

b. Repainting/paint touch-ups shall closely match the existing paint colors and applied at reasonable intervals.

c. Damaged, loose, or rotted materials/details shall be reestablished, repaired or replaced. All joints or cracks shall be weatherproofed appropriately by proper maintenance.

d. Exterior facades shall be clean from any graffiti, overgrown vegetation, and left over residues from previous work/installations.

e. Damaged or worn property elements such as those listed in the immediate section below shall be repaired, restored or replaced and secured properly to remain operable.

f. Vacant structures shall be securely closed and weathertight. Any unoccupied structure shall be maintained and secured to avoid becoming a structure that may be considered demolished by neglect as defined in chapter 16, planning and development, article IV, heritage resource preservation.

g. Exterior materials shall be maintained to historic standards as outlined in the heritage district design guidelines/standards and the Secretary of the Interior's Standards for the Treatment of Historic Properties.

h. Exterior plumbing, electrical and mechanical fixtures shall be secured properly.

i. Grounds shall be maintained free of excessive rubbish, garbage, junk, refuse or debris.

(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-58. Eligibility determination and certification.

Following completion of the inspection, the heritage preservation officer, or his/her designee, shall make a determination as to whether or not the application meets all eligibility requirements. Upon such determination:

(1) A list of all properties which have been certified in compliance with the eligibility requirements shall be forwarded to the city council for approval.

(2) Notification shall be sent to applicants of properties that do not meet the eligibility requirements for tax-exempt status by certified mail.

(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-59. Appeals/extensions and waivers to eligibility determination.

Applicants who receive a notification that their property does not meet the eligibility requirements may request an extension or appeal to the Heritage Commission as follows:

(1) *Appeals/Extensions.*

a. Requests for appeals/extensions shall be submitted in the form of a signed letter from the owner of the property, or his or her authorized agent, to the heritage preservation officer by the deadline established in the notification. The request should include:

i. The reason(s) for the appeal/extension; and

ii. Documentation to support the reason(s) for appeal/extension.

b. The heritage preservation officer shall submit the letter to the heritage commission for its review.

c. The heritage commission may approve or deny the appeal/extension request. In considering appeals/extensions, the heritage commission may grant an appeal/extension and determine the property eligible for exemption if it finds that:

i. There was an error in determining the property did not meet the eligibility requirements in subsections 20-55(1)—(5) for tax-exempt status as of January 1 of the current year; or

ii. Cost estimates or other information indicating the repair required is more substantial than initially expected; or

iii. The required maintenance items identified in the inspection report are being addressed as part of a larger series of repairs or improvements that may require additional time to

complete than allowed by the deadline established in the inspection report; or

iv. Granting an appeal/extension is in the best interests of the long-term preservation and maintenance of the historically significant site.

(2) *Waivers.*

a. In lieu of granting an appeal/extension, the heritage commission may grant a one-year waiver from eligibility requirements as allowed in subsection c. below.

b. Approval of a waiver shall qualify a property to receive a fifty (50) percent reduction as follows:

i. Class A structures shall have an exemption of fifty (50) percent of the assessed improvement value of the structure during the applicable collection period.

ii. Class B structures shall have an exemption of twenty-five (25) percent of the assessed improvement value of the structure during the applicable collection period.

iii. Class C structures shall have an exemption of thirty-eight (38) percent of the assessed improvement value of the structure during the applicable collection period.

iv. Class D structures shall have an exemption of nineteen (19) percent of the assessed improvement value of the structure during the applicable collection period.

c. The heritage commission may approve the waiver request unless:

i. A waiver from eligibility requirements was granted for the previous year; or

ii. There are delinquent taxes owed to the City of Plano; or

iii. Permits or applications for demolition or relocation of the structure have been submitted, suspended, approved, issued, or are in any other stage that may allow demolition or relocation of the structure during the current year.

The heritage commission shall act on the request in a timely manner, as practicable, so as to allow all properties granted an appeal, extension, or waiver to be included in the list of eligible properties forwarded to the city council as described in subsection 20-58(1) of this division. If denied an appeal, extension, or waiver, a new application may be submitted for the following year.
(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-60. City council adoption ordinance.

The city council shall consider and adopt an ordinance granting partial tax exemption under this division. The ordinance shall specify the class of exempt structures and shall provide that all land shall be assessed for taxation in the same equal and uniform manner as all other taxable properties in the city. The city shall forward a copy of the ordinance to the appraisal district no later than March 1 of the subject year.
(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-61. Inspection report and required maintenance items.

By no later than March 31 of the current year, the heritage preservation officer, or his/her designee, shall send to the applicant:

(1) Written notification of the city council's approval; and

(2) A copy of the inspection report that details, at a minimum:

a. *Required maintenance items.* Any maintenance deficiencies, as generally described in subsection 20-57(2),

that require repair by the end of the current year in order to maintain eligibility for the following year.

b. *Other maintenance items.* Any other maintenance deficiencies that do not require repair by the end of the current year to maintain eligibility for the following year, but that may continue to deteriorate to if left unresolved and result in listing as a required maintenance item in future inspection reports.

(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-62. Appeal of inspection report.

(1) Any applicant may appeal the results of the inspection report by April 30 of the current year in the form prescribed in the written notification of city council's approval. Appeals shall be limited to required maintenance items.

(2) The heritage commission shall consider any appeals of the inspection report by May 31 of the current year. The heritage commission may grant an appeal if it finds that extenuating circumstances exist. Such circumstances should generally be justified by supportive documentation showing that the required repair was misidentified or did not exist in the manner described in the inspection report.

(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-63. Rendition and assessment of historically significant sites for ad valorem taxation.

The provisions of this division pertaining to partial exemption of historically significant sites do not change the provisions of any other ordinance provision of the city pertaining to taxation, and the applicant's structures shall be rendered and assessed in the same manner as any other property if the city council elects to disapprove the application for exemption.

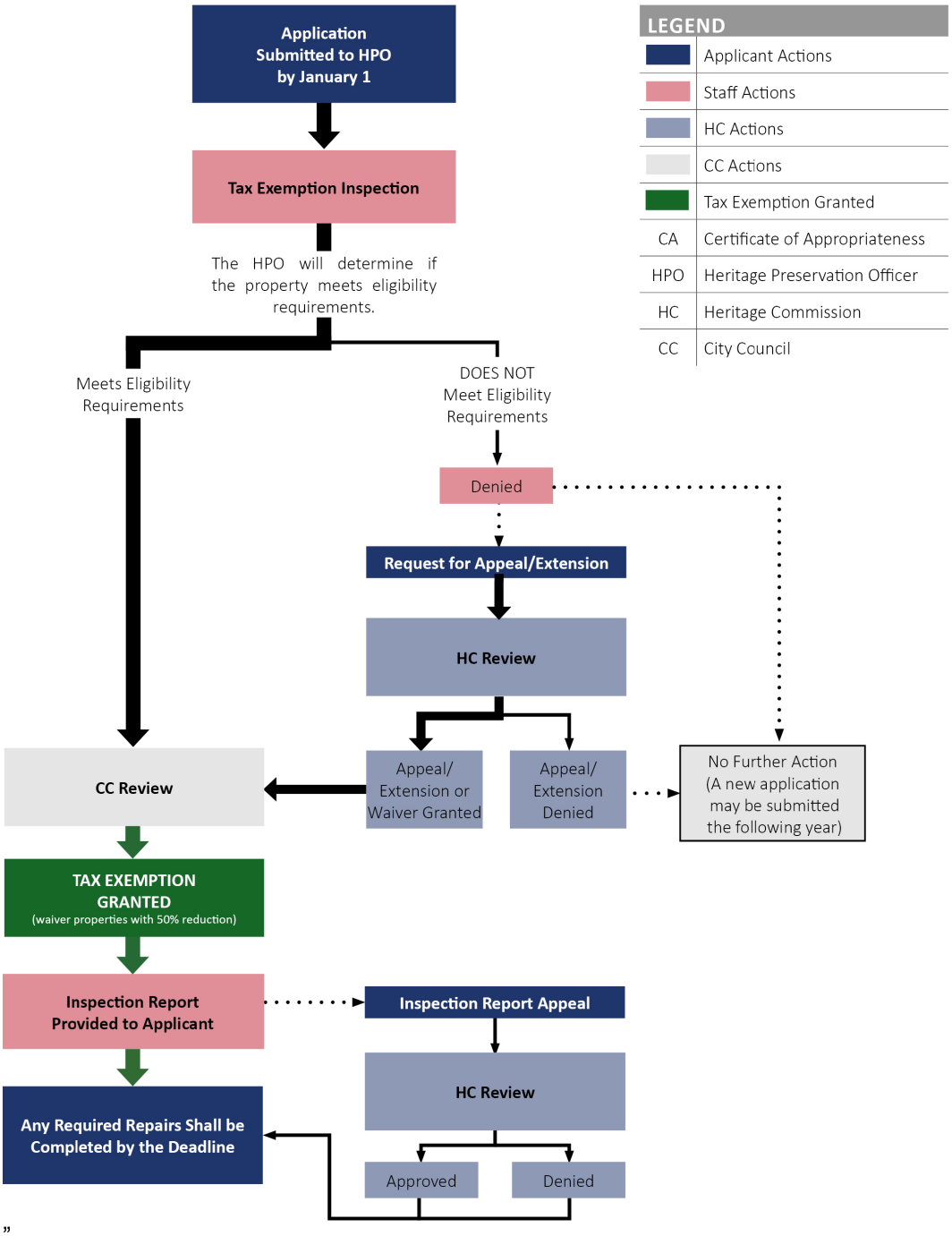
(Ord. No. 2022-8-14, § II, 8-22-22)

Sec. 20-64. Definitions.

The definitions codified in article VI, heritage resource preservation, of chapter 16, planning and development, of the Code of Ordinances of the City of Plano, as amended, shall apply to this division.

(Ord. No. 2022-8-14, § II, 8-22-22)

Exhibit A—Summary of Heritage Tax Exemption Process



"

(Ord. No. 2022-8-14, § II, 8-22-22)

Secs. 20-65—20-70. Reserved.

ARTICLE III. HOTEL OCCUPANCY TAX*

Sec. 20-71. Levied; amount.

There is hereby established and levied a tax upon the cost of occupancy of any sleeping room furnished by any hotel in the City, where the cost of occupancy is at the rate of two dollars ($2.00) or more per day. Such tax is hereby levied at the rate of seven (7) percent of the consideration paid by the occupant of the sleeping room to the hotel.
(Ord. No. 2009-1-10, § I, 1-26-09)

Sec. 20-72. Definitions.

As used in this article, the following words, terms and phrases are defined as follows:

Consideration shall mean the price of, or value received for, the right to use a sleeping room, bed, or dormitory space or other sleeping facility in a hotel, and includes the price of conveniences customarily provided in connection with sleeping accommodations, including mattress, sheets, bedspreads, pillows, pillow cases, bed frames, air conditioning, electricity, lighting, water, soap, towels, wash cloths, toilet tissue, shower or bath facilities, lavatory, chairs, trash receptacles, plus any other goods or services which are not ordinarily subject to sales tax. The consideration paid for a sleeping room or facility shall not include the price of food served, nor the price of personal services rendered to the occupant which are unrelated to cleaning and readying a room for occupancy, nor any sales tax, nor occupancy tax assessed by other governmental agencies, provided that these charges are stated separately on the folio or invoice of the occupant. Charges not stated separately shall be presumed to be part of the consideration paid for occupancy of a sleeping room or sleeping facility, and shall be taxed under this article.

Hotel shall mean any building in which the public may, for a consideration, obtain sleeping accommodations. The term shall include hotels, motels, tourist homes, houses or courts, lodging houses, inns, rooming houses, or other buildings where rooms are furnished for a consideration, but "hotel" shall not be defined so as to include hospitals, sanitariums, or nursing homes.

Occupant shall mean anyone, who, for a consideration uses, possesses, or has a right to use, or possess any room in a hotel if the room is one ordinarily used for sleeping.

Occupancy shall mean the use or possession, or the right to the use or possession, of any room in a hotel if the room is one ordinarily used for sleeping.
(Ord. No. 2009-1-10, § I, 1-26-09)

Sec. 20-73. Revenue distribution.

The revenues derived from the hotel occupancy tax levied pursuant to this article shall be expended in the following manner as provided for by V.T.C.A., Tax Code ch. 351:

Percent of levy:

(1) For operating, maintaining, improving, and otherwise supporting a civic center facility: Four (4) percent.

(2) For all other purposes allowed, subject to annual appropriation by the City Council: Three (3) percent.

Total levy: Seven (7) percent.
(Ord. No. 2009-1-10, § I, 1-26-09)

Sec. 20-74. Collection and reporting.

(a) Every person owning, operating, managing or controlling any hotel shall collect the tax imposed under this article and pay same to the City of Plano through its Finance Department.

(b) Such taxes shall be paid by the hotel to the City of Plano on a monthly basis, and shall be received for each month within thirty (30) days following the last day of each month.

*__Editor's note__—Ord. No. 2009-1-10, § I, adopted January 26, 2009, amended article III in its entirety to read as herein set out. Formerly, article III pertained to similar subject matter, and derived from Ord. No. 92-8-17, §§ II—X, adopted August 10, 1992; Ord. No. 93-8-27, § I, adopted August 23, 1993; Ord. No. 93-12-19, § I, adopted December 13, 1993, and Ord. No. 2003-7-10, §§ I, II, adopted July 28, 2003.

State law reference—Occupancy tax, Vernon's Ann. Civ. St., art. 1269j-4.1, § 3a et seq.

(c) A hotel may retain one (1) percent of the taxes collected on a monthly basis, pursuant to this section, provided that:

(1) The gross amount collected is reported and the retainage calculated accordingly; and

(2) No retainage will be permitted on any amount paid after thirty (30) days following the last day of each month; and

(3) Reports are filed in a form(s) prescribed by the City of Plano and all information required by that report is complete and accurately provided.

(d) A hotel not filing a report in a complete and accurate manner in a form(s) prescribed by the City of Plano shall forfeit the right for retainage as provided by this section, and shall not deduct said retainage from the amount due the City of Plano for any given month for which a complete and accurate reporting is not made. Complete and accurate shall mean provision of each and every element contained or required, in a form(s) prescribed by the City of Plano. Forms are available on the City of Plano Finance Department web page or may be obtained by contacting the City's Finance Department. A substitute form may be used if it is approved in advance by the Director of Finance for the City of Plano.

(e) If the City finds that the underreporting of hotel revenue is greater than two (2) percent of the hotel's reported receipts for the audit period, the hotel shall pay a fee for the cost of the audit. This audit fee can only be assessed on taxes that have been delinquent for at least two (2) complete municipal fiscal quarters at the time the audit is conducted. If the City finds any underreporting of hotel revenue or late reporting of hotel revenue, the hotel will pay the City any previously withheld retainage for any month that hotel revenue was not properly and timely reported.
(Ord. No. 2009-1-10, § I, 1-26-09)

Sec. 20-75. Occupants—Not exempted.

Under the provisions of the Texas Tax Code, hotel occupancy tax is levied on all occupants not exempted in section 20-76. Those not exempted include the following:

(1) Educational institutions (including State of Texas colleges and universities).

(2) Religious and charitable organizations.

(3) Local government entities.

(4) Contract employees of exempt organizations.

(Ord. No. 2009-1-10, § I, 1-26-09)

Sec. 20-76. Same—Exempt.

Under the provisions of the Texas Tax Code, hotel occupancy tax is not levied on the following:

(1) The United States Government agencies and their officers or employees when traveling or otherwise engaged in the course of official duties.

(2) Military personnel traveling on official military business.

(3) The State of Texas, or an agency, institution (excluding state educational institutions), board, or commission of the State of Texas and their officers or employees when traveling or otherwise engaged in the course of official duties.

(4) Diplomatic personnel who present a tax exemption card issued by the United States Department of State.

(5) Occupants whose use, possession, or whose right to use or possession of a hotel sleeping room extends for at least thirty (30) consecutive days.

Any exemptions claimed shall be supported by a signed hotel occupancy tax exemption certificate and reported to the City of Plano on a form or report similar to the Hotel Occupancy Tax Exemption Report listed on the City's Finance Department web site.
(Ord. No. 2009-1-10, § I, 1-26-09)

Sec. 20-77. Records.

Every hotel within the City shall keep and maintain accurate records of the consideration and hotel occupancy tax paid by the occupant of each sleeping room in the hotel. Such records shall include, but not be limited to, at a minimum, guest folios, tax exemption certificates, and any original documents such as posting ledgers and rate and stay adjustment reports. These records may be retained in any retrievable format, including but not limited to micro form; shall be maintained for a period of not less than four (4) years; and shall be available for inspection upon request by any employee, agent, officer or representative of the City of Plano at all reasonable times. Any adjustments or allowances made or granted shall be reported in a letter to the City of Plano's Director of Finance.
(Ord. No. 2009-1-10, § I, 1-26-09)

Sec. 20-78. Withholding amount due in event of sale.

Under the provisions of V.T.C.A., Tax Code § 351.0041, if a hotel is sold, the purchaser shall withhold an amount sufficient to pay any amount due under this article until the seller produces a receipt showing that any amount due has been paid. If the purchaser fails to withhold an amount, the purchaser is liable to the City of Plano for the amount required to be withheld.
(Ord. No. 2009-1-10, § I, 1-26-09)

Sec. 20-79. Penalty.

(a) A penalty of fifteen (15) percent of the tax due shall be imposed on a hotel which fails to pay a tax imposed by this article when due. The tax imposed by this article that is not paid to City of Plano when it is due shall draw interest at a monthly rate of one (1) percent from the due date.

(b) The municipal attorney or other attorney acting for the City may bring suit against a person who is required to collect the tax imposed by this article and who fails to either file a tax report or pay the tax when due. The City's attorney may collect the tax not paid or enjoin the person from operating a hotel in the City until the tax is paid. In addition to the amount of any tax owed under this article, the person is liable to the City for the City's reasonable attorney's fees and a penalty equal to fifteen (15) percent of the total amount of the tax owed.

(c) If the operator of any hotel shall fail to file a report for any period as required by this article, or shall fail to pay the tax for any period as required by this article, then the tax assessor/collector is hereby authorized to make an assessment of the tax for such period. The tax assessed, together with any penalties provided by statute, shall be a prior and superior line on all property of the hotel.

(d) Any person, firm or corporation violating any of the provisions of this article shall be subject to the penalty as provided for in section 1-4(b) of the Code of Ordinances of the City of Plano, Texas.

(e) The penalties provided for herein, are in addition to other remedies and/or actions for collection available to the City by law.
(Ord. No. 2009-1-10, § I, 1-26-09)

Sec. 20-80. Time limitation for refunds.

A state agency may apply for a refund of hotel occupancy tax paid under this article no later than two (2) years after the end of the fiscal year in which the payment occurred. A hotel may apply for a refund of hotel occupancy tax erroneously paid under this article no later than twelve (12) months after the end of the month in which the payment was incurred.
(Ord. No. 2009-1-10, § I, 1-26-09)

[The next page is 1419]

Chapter 21

UTILITIES*

Art. I. **In General, §§ 21-1—21-15**

Art. II. **Water, §§ 21-16—21-60.2**

Div. 1. Generally, §§ 21-16—21-21

Div. 1.5. Cross Connection Control Program, §§ 21-22—21-35.1

Div. 2. Private Wells, §§ 21-36—21-46.1

Div. 3. Water Waste; Excess Flow, §§ 21-47—21-52

Div. 4. Drought and Emergency Response Plan, §§ 21-53—21-60.3

Art. III. **Sewers, §§ 21-61—21-130**

Art. IV. **Service Charges Generally, §§ 21-131—21-165**

Div. 1. Generally, §§ 21-131—21-145

Div. 2. Water, §§ 21-146—21-165

Art. V. **Pro Rata Fees and Extension of Facilities, §§ 21-166—21-200**

Div. 1. Generally, §§ 21-166—21-177

Div. 2. Water and Wastewater Main Extensions, §§ 21-178—21-182

Div. 3. Pro Rata Fees, §§ 21-183—21-200

Art. VI. **Reserved, §§ 21-201—21-300**

Art. VII. **Industrial Wastewater Pretreatment, §§ 21-301—21-350**

Art. VIII. **Liquid Waste Management, §§ 21-351—21-393**

Div. 1. Generally, §§ 21-351—21-360

Div. 2. Liquid Waste Generation, §§ 21-361—21-380

Div. 3. Liquid Waste Transport, Disposal Facility, §§ 21-381—21-390

Div. 4. Enforcement, §§ 21-391—21-393

***Charter references—**Municipal utilities, § 2.01; authority to provide for a sewer and water system and to require connections to sewer, § 3.07(n); franchises and public utilities, § 10.01 et seq.

Cross references—Administration, Ch. 2; buildings and building regulations, Ch. 6; cable television, Ch. 7; fire prevention and protection, Ch. 8; planning and development, Ch. 16; solid waste, Ch. 18; streets and sidewalks, Ch. 19; cable television franchise, App. B; public utility communications rules, § 2-5; metroplex mayor's committee, § 2-7; impact fee advisory committee, § 2-216 et seq.; sanitary facilities on construction sites; required, § 6-5; sanitation standards for property, § 6-520.

State law references—Public utilities in cities, Vernon's Ann. Civ. St., art. 1106 et seq.; utilities in home rule cities, Vernon's Ann. Civ. St., art. 1175(11)—(15), (29)—(31); water, V.T.C.A. Water Code, § 1.001 et seq.

ARTICLE I. IN GENERAL

Sec. 21-1. Municipal drainage utility system—Established.

(a) The city council hereby finds it in the public interest to protect the health, safety and welfare of the City of Plano, and the public at large, from loss of life and property caused by surface water overflows, surface water stagnation, and pollution arising from nonsource runoff within the service area.

(b) The city council further finds:

(1) The city will establish a schedule of drainage charges against all real property in the service area.

(2) The city will provide drainage for all real property in the service area on payment of drainage charges, except real property exempted under state law.

(3) The city will offer drainage service on nondiscriminatory, reasonable and equitable terms.

(c) A municipal drainage utility system is hereby established and declared to be a public utility. The city shall have full authority to operate said municipal drainage utility system.

(d) The city council may, by ordinance, adopt rules for the operation and conduct of this system consistent with its authority and state law.

(e) Prior to the levy of any drainage charges, the city council shall hold a public hearing on the charges pursuant to state law.
(Ord. No. 92-7-41, §§ I—IV, 7-27-92; Ord. No. 2013-3-9, § I, 3-25-13; Ord. No. 2020-5-14, § I, 5-26-20)

Sec. 21-2. Same—Charges.

(a) There shall be a charge on each monthly utility statement for the municipal drainage utility system. The city manager or his designee is authorized to collect such charges.

(b) Except as otherwise provided herein, billing, charges and collection procedures, including any delinquencies, shall be consistent with that of the water and sewer services and state and local law.

(c) The drainage fee will be a separate line item on the utility statement and shall be clearly identified as a separate charge.

(d) The following properties shall be exempt from the drainage charges set forth herein:

(1) Property with proper construction and maintenance of a wholly sufficient and privately owned drainage system;

(2) Property held and maintained in its natural state, until such time that the property is developed and all of the public infrastructure constructed has been accepted by the city for maintenance; and

(3) A subdivided lot, until a structure has been built on the lot and a certificate of occupancy has been issued by the city.

(e) The city manager or his designee(s) may, from time to time, adopt rules for the administration of the drainage charge.

(f) The following rates are hereby established and shall be collected through the city's public utility billing department:

Residential Customer Class	Size of Impervious Area (in square feet)*	Monthly Fee
R-1	Less than 2,500	$3.92
R-2	2,500 to less than 4,000	$5.27
R-3	4,000 to less than 5,500	$5.52
R-4	Greater than 5,500	$7.08

*Includes footprint of any roofed area (ex: home, detached garage, shed, building), driveways (concrete, asphalt, brick or stone), patios (concrete, brick, wood, or stone), decks, sidewalks (concrete, brick or stone), basketball/tennis court, compacted

gravel surfaces, artificial turf covered areas, and parking lots (concrete, asphalt, or compacted gravel).

Duplex properties shall have the same monthly fee as R-1, R-2, R-3, and R-4 (depending on the size of the impervious area) if the duplex has only one meter. If each side of the duplex is individually metered, the fee for each half shall be one-half (½) the total fee as calculated for the duplex.

For all other properties including but not limited to apartment, commercial, industrial, office, religious institution, public or private school, and governmental and quasi-governmental entities, the monthly fee shall be based upon eleven and one fifth cents ($0.115) per one hundred (100) square feet of total impervious area of the improved property. The minimum fee shall be three dollars and ninety-two cents ($3.92) per property.

The new rates described in this section shall be effective for all bills rendered on or after January 1, 2021.

(g) In setting the rates for drainage service, the city has based its calculations on an inventory of impervious areas of all improved properties within the service area. The inventory is the city's property management system which is maintained in the office of the director of engineering of the City of Plano.

(h) The property owner may appeal the assessed drainage fee including the size of the impervious area which was determined by the city. For new customer accounts, there will be a ninety (90) day period to request an appeal from the date of the initial billing of the account. For all other customers, or for new customers whose request for appeal is received later than ninety (90) days after the date of the initial billing, approved credits will only be effective forward from the next billing cycle for the property after the date of the appeal request, and will not be allowed for any previous period. A stormwater utility fee appeal form with supporting documentation must be provided by the owner to verify that the city's impervious calculation is incorrect. Such documentation, in the form of a survey, site plan, or other documents must be presented to the director of engineering within sixty (60) days of the owner's request for an appeal. The director of engineering shall have thirty (30) days following receipt of the documentation to approve or deny such appeal. During all appeal periods, the property owner shall be responsible for payment of fees. If the appeal warrants a reduction in the impervious area, a credit will be applied to the next practicable month's billing which will be based on the revised impervious area. The director of engineering may adopt procedures for such appeals as an administrative policy established by written report maintained in the engineering department of the city.

(i) Those improved non-residential properties (including apartments) which practice stormwater management are eligible to receive a credit on their monthly billings. The application for such credit shall follow the procedures for appeal as set forth in subsection (h) above. The credit will be only for the impervious area within the area which receives the stormwater management technique.

(1) That area which receives approved street sweeping on a weekly basis will be eligible for up to a five (5) percent credit.

(2) That area which drains into an approved best management practice (BMP) will be eligible for a credit equal to the average pollutant removal efficiency of the BMP used. BMPs shall be designed and constructed in accordance with the NCTCOG iSWM Design Manual for Site Development and approved by the city. The average pollutant removal efficiency of the BMPs for use in calculating fee reductions shall be as follows:

Best Management Practice (BMP)	*Average Pollutant Removal Efficiency*
Oil-grit separator	10%
Grass channel	25%
Filter strip	26%
Enhanced wet swale	33%
Porous concrete with infiltration	35%

Best Management Practice (BMP)	*Average Pollutant Removal Efficiency*
Green roof	41%
Dry detention pond	43%
Enhanced dry swale	44%
Storm water wetland	47%
Sand filter	49%
Storm water pond	49%
Underground sand filter	49%
Modular porous pavement with infiltration	50%
Submerged gravel wetland	54%
Bioretention area	54%
Planter box	58%
Organic filter	61%
Downspout dry-well	76%
Infiltration trench	76%
Soakage trench	76%
Alum treatment	77%
Rain harvesting	*
Proprietary systems	**

* Insufficient data to provide design removal efficiency.

** The performance of specific proprietary commercial devices and systems must be provided by the manufacturer and should be verified by independent third-party sources and data.

(3) In addition to the credit allowed for installation of BMPs, those improved non-residential properties (including apartments) that reduce the amount of impervious surface area on their site are eligible to receive a proportionate reduction on their monthly drainage fee billings. The reduction shall be calculated by taking the original impervious surface area minus the revised impervious surface area and using this amount to reduce the revised impervious surface area before calculating the monthly drainage fee.

(4) The credit methodology shall be an administrative policy as established by written report maintained in the engineering department of the city.

(Ord. No. 92-7-42, §§ I—IV, 7-27-92; Ord. No. 93-9-31, § I, 9-13-93; Ord. No. 93-9-65, § II, 9-27-93; Ord. No. 94-9-24, § I, 9-12-94; Ord. No. 2000-10-4, § II, 10-16-00; Ord. No. 2001-12-20, §§ I—III, 12-17-01; Ord. No. 2002-9-12, § II, 9-9-02; Ord. No. 2006-4-26, § I, 4-24-06; Ord. No. 2013-3-9, § II, 3-25-13; Ord. No. 2013-9-7, § I, 9-9-13; Ord. No. 2014-9-4, § I, 9-8-14; Ord. No. 2014-9-20, § II, 9-22-14; Ord. No. 2020-5-14, § I, 5-26-20; Ord. No. 2020-11-7, § I, 11-9-20)

Note—Section II of Ord. No. 2013-9-7, adopted September 9, 2013, states the following: "The fees for Residential Customer Class are not changed by the passage of this Ordinance. Except for Residential Customer Class, the fees for all other properties described in Section I of this Ordinance shall be effective for all bills rendered on and after October 1, 2013. For bills rendered prior to October 1, the current fee of sixty-eight hundredths cents ($0.068) shall remain in effect."

Secs. 21-3—21-15. Reserved.

ARTICLE II. WATER*

DIVISION 1. GENERALLY

Sec. 21-16. Appointment; general powers, duties of water department superintendent.

There shall be appointed by the city manager, a superintendent of the water department, who shall be the administrative officer of the waterworks system, including all engine houses, engines, pumps, reservoirs, standpipes, elevated tanks, pipelines, hydrants, meters, wrenches, stopcocks, gate valves, fireplugs, testing equipment, and all other property and machinery used in or connected with the waterworks system. He shall have general supervision over all employees of the waterworks system and shall make frequent trips of inspection over all pipelines and all other property used in or connected with the waterworks system, and shall make all repairs deemed neces-

*Cross reference—Flood damage prevention, § 16-161 et seq.

sary and consistent with his duties. He shall also attend to and control the water supply and at all times see to the sufficiency thereof.
(Ord. No. 62-3-3, § 12-12-1, 3-12-62)

Sec. 21-17. Miscellaneous offenses relating to waterworks system.

It shall be unlawful for any person to do, commit or assist in committing any of the following things or acts in the city:

(1) Opening or closing any fire hydrant, or lifting or removing any covers of any gate valves or shut-offs connected with the waterworks system of the city, without the permission of the superintendent of the water department, except in case of fire, and then under the direction of officers of the fire department. It shall be an exception however, that a property owner or occupant may access the property's water meter box for the sole purpose of turning water on or off at the city valve;

(2) Interfering with, destroying, defacing, impairing, injuring, or wantonly forcing open any gate or door, or in any way whatsoever destroying, injuring, or defacing any part of any engine house, reservoir, standpipe, elevated tank, building, or appurtenances, fences, trees, shrubs, or fixtures or property appertaining to the waterworks system;

(3) Going upon or ascending the stairway or steps of any elevated water tank or standpipe of the waterworks system, except by permission of the waterworks superintendent;

(4) Placing any telegraph, telephone, electric light pole, or any obstruction whatsoever within ten (10) feet of any fire hydrant;

(5) Resorting to any fraudulent device or arrangement for the purpose of procuring water for himself or others from private connections or premises contrary to city regulation or ordinances;

(6) Interfering with or injuring any reservoir, tank, fountain, hydrant, pipe, cock, valve, or other apparatus pertaining to the waterworks system, or turning on or shutting off without authority the water in any street hydrant or other water fixture, or hitching or tying any animal thereto;

(7) Making or permitting to be made any connection with the main or service pipe of the waterworks system or turning on or using the water of such system without first obtaining a permit therefor;

(8) Covering over or concealing from view any water valve box, service or meter box;

(9) Removing any water meter that has been placed by the city, or changing, interfering with or tampering with any water meter in any manner; this paragraph shall not apply to employees of the city, when acting in their official capacity;

(10) Turning on the water supply to any building or to any supply pipe where the supply has been turned off for the nonpayment of the monthly water charges or for the violation of any rule or ordinance governing the waterworks system.

(Ord. No. 62-3-3, § 12-12-2, 3-12-62; 92-11-22, § I, 11-9-92)

Sec. 21-18. Connection—Permit.

It shall be unlawful for any person to make any connection to the mains or pipes of the waterworks system of the city unless a permit authorizing such connection has been issued by the city secretary. Application for such permit shall be filed with the city secretary. Such application shall state fully the several and various uses for which water is wanted, giving the name of the owner of the property, the number of the lot and block, the name of the street and the house number. If the application is approved, the city secretary shall issue the permit.
(Ord. No. 62-3-3, § 12-12-3, 3-12-62)

Sec. 21-19. Same—Procedures.

(a) Upon issuance of the permit required by section 21-18 and payment of the tapping fee, the superintendent of the water department shall make, or have made, the necessary connections and furnish a curb stop box and curb cock, the cost of which is included in the tapping fee, and every premises connected with any water main, or being supplied with any water from the city waterworks system, shall have a separate service connection, curb box and curb cock, except as provided in subsection (b).

(b) Each consumer of water living in a separate house must have a separate connection and meter for each house; provided, where a residence is not in reach of a city water main arrangements may be made, at the option of the city, to secure water from another user of city water.
(Ord. No. 62-3-3, §§ 12-12-3, 12-12-7, 3-12-62)

Sec. 21-20. Report of leaks, waste of water.

It shall be the duty of all employees of the city, including officers and members of the police force, to report to the superintendent of the water department upon blanks furnished for that purpose, any leaks or unnecessary waste of water that may come to their attention.
(Ord. No. 62-3-3, § 12-12-5, 3-12-62)

Sec. 21-21. Notice to public when water supply to be shut off.

The superintendent of the water department shall notify the public, unless an emergency requires otherwise, of the necessity of shutting off any water pipeline for the purpose of making repairs, extensions, connections, or for any other purpose, should he know beforehand the necessity to so shut off the water from any line of the system.
(Ord. No. 62-3-3, § 12-12-1, 3-12-62)

DIVISION 1.5. CROSS CONNECTION CONTROL PROGRAM*

Sec. 21-22. Purpose; scope.

There is hereby established a cross-connection control program the purpose of which is to promote the public health, safety, and welfare by regulations designed to:

(a) Protect the public potable water supply of the City of Plano from the possibility of contamination or pollution by isolating within a customer's internal distribution systems or a customer's private water systems contaminants or pollutants that could backflow into the public water system;

(b) Promote the elimination or control of existing cross-connections, whether actual or potential, between a customer's in-plant potable water systems and non-potable water system(s), plumbing fixtures, and industrial piping system(s);

(c) Provide for the maintenance of a continuing program of cross-connection control which will systematically and effectively prevent the contamination or pollution of the city's potable water system;

(d) Establish requirements for Plano Backflow Prevention Assembly Testers; and

(e) Comply with 30 TAC Chapter 290 (Public Drinking Water) and Chapter 344 (Landscape Irrigation) of the Texas Commission on Environmental Quality Rules and Regulations.

(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-23. Definitions.

For the purpose of this division, the following definitions shall apply unless the context clearly indicates or requires a different meaning. Other technical terms used shall have the meanings or definitions listed in the most current edition of the Manual of Cross-Connection Control published by the Foundation for Cross-Connection Control and Hydraulic Research, University of Southern California, a copy of which is on file in the office

*__Editor's note—__Ord. No. 2011-12-2, §§ I, II, adopted December 12, 2011, repealed and reenacted division 1.5 in its entirety to read as herein set out. Formerly, division 1.5, §§ 21-22—21-35.3 pertained to similar subject matter and derived from Ord. No. 2009-10-8, § II, adopted October 12, 2009.

of the city secretary, or in the most current edition of the Recommended Practice for Backflow Prevention and Cross-Connection Control Manual M14 published by the American Water Works Association. In any case where provisions of these manuals are in conflict, the most current edition of the Manual of Cross-Connection Control shall prevail.

Air gap separation (AG) as defined by the Texas Commission on Environmental Quality, means the unobstructed vertical distance through the free atmosphere between the lowest opening from any pipe or faucet conveying water to a tank, fixture, receptor, sink, or other assembly and the flood level rim of the receptacle. The vertical, physical separation must be at least twice the diameter of the water supply outlet, but never less than one (1) inch.

Atmospheric vacuum breaker (AVB) means an assembly containing a float check, a check seat, and an air inlet port.

Auxiliary water supply means any water supply other than the City of Plano's approved public water supply, including water from another public water supply or from a natural source including, but not limited to, wells, cisterns, springs, rivers, streams, used waters, or industrial fluids.

Backflow means the reversal of flow of water or mixtures of water and other liquids, gases or other substances into the distribution pipes of a potable water supply from any sources other than the City of Plano water system.

Backflow prevention assembly means an assembly which, when properly installed between the city water supply system and the terminus or point of ultimate use, will prevent backflow. Examples of such assemblies include, but are not limited to, reduced pressure backflow assemblies, double check valve assemblies, pressure vacuum breakers, and spill resistant vacuum breakers.

Backflow prevention assembly tester (BPAT) means an individual licensed in accordance with Texas Commission on Environmental Quality rules to test backflow prevention assemblies.

Backflow program administrator means a third-party who assists the City of Plano with managing the backflow assemblies and associated records.

Backpressure means any elevation of pressure in the downstream piping system (including by pump, elevation of piping, or steam and/or air pressure) above the supply pressure at the point of consideration which would cause, or tend to cause, a reversal of the normal direction of flow.

Back siphonage means a form of backflow caused by a reduction in system pressure resulting in the existence of a negative or sub-atmospheric pressure at a site in the water system.

Building official means the building official of the City of Plano or the building official's designee.

City means the City of Plano, Texas, and its duly authorized representatives.

Closed system means a piping system that has no space for water to expand.

Commission means the Texas Commission on Environmental Quality ("TCEQ").

Contamination means an impairment of the quality of the public potable water supply or a private potable water supply by the introduction or admission of any foreign substance that degrades the quality and which creates an actual hazard to the public health through poisoning or through the spread of disease by sewage, industrial fluids, waste, or other hazardous product or material.

Cross-connection means any actual or potential connection or structural arrangement between a public or consumer's potable water system and any other source or system through which it is possible to introduce into any part of the potable system any used water, industrial fluid, gas, or substance other than the intended potable water with which the system is supplied. Bypass arrangements, jumper connections, removable sections, swivel or change-over devices and other temporary or permanent devices through which or because of which backflow can occur are considered to be cross-connections.

Customer means a person, company, or entity contracting with the city to receive potable water service.

Customer's potable water system means that portion of the privately owned potable water system lying between the service connection and the point of use by customer. This system includes, but is not limited to, all pipes, conduits, tanks, receptacles, fixtures, equipment and appurtenances used to produce, convey, store, or utilize the potable water.

Degree of hazard means either a non-health or health hazard and is determined by the evaluation of the conditions within a system by the superintendent, director, the city's environmental health and sustainability department, or the building official.

Director means the director of the city's public works department.

Double check valve assembly (DC) means an assembly composed of two (2) independently acting approved check valves, including tightly closing resilient-seated shutoff valves, attached at each end of the assembly and fitted with four (4) properly located resilient-seated test cocks.

Health hazard means a cross-connection, potential cross-connection, or other situation involving any substance that could cause death, illness, spread of disease, or has a high probability of causing such effects if introduced into the potable drinking water supply.

Industrial fluids means any fluid or solution which may be chemically, biologically, or otherwise contaminated or polluted in a form or concentration which would constitute a health, system, pollutional, or plumbing hazard if introduced into an approved water supply. Examples of industrial fluids include, but are not limited to: polluted or contaminated used water; all types of process waters and used waters originating from the public potable water system which may deteriorate in sanitary quality; chemicals in fluid form; plating acids and alkalis; circulated cooling waters connected to an open cooling tower and/or cooling waters that are chemically or biologically treated or stabilized with toxic substances; contaminated natural waters such as form wells, springs, streams, rivers, bays, harbors, seas, irrigation canals or systems, etc.; and oils, gases, glycerin, paraffins, caustic and acid solutions and other liquid and gaseous fluids used industrially, for other processes, or for firefighting purposes.

Material reporting deficiencies shall mean inaccurate or incomplete reporting as required in the approved city backflow prevention assembly test report.

Nonhealth hazard means a cross-connection or potential cross-connection involving any substance that generally would not be a health hazard but would constitute a nuisance, or be aesthetically objectionable, if introduced into the potable water supply.

Non-potable water means a water supply which has not been approved for human consumption by the commission.

Person means any individual or any association, firm, partnership, joint venture, corporation or other legally recognized entity, whether for profit or not for profit.

Plano backflow prevention assembly tester (Plano BPAT) means an individual licensed in accordance with TCEQ rules and registered with the city for the purpose of testing backflow prevention assemblies.

Plumbing hazard means an internal or plumbing type cross-connection in a customer's potable water system that may be either a pollutional or a contamination type hazard, including, but not limited to, cross-connections to toilets, sinks, lavatories, wash trays, water filtration systems and lawn sprinkling systems.

Pollution means an impairment of the quality of the public potable water supply to a degree which does not create a hazard to the public health but does adversely and unreasonably affect the aesthetic qualities of such water for domestic use.

Potable water means any public water supply which has been investigated and approved by the commission as satisfactory for drinking, culinary and domestic purposes.

Premises or *property* means any property real, improved or personal that is connected to the city water system.

Pressure vacuum breaker (PVB) means an assembly which contains an independently operating internally loaded check valve and an independently operating loaded air inlet valve located on the discharge side of the check valve with properly located resilient-seated test cocks and tightly closing resilient-seated shutoff valves attached at each end of the assembly.

Process waters means water used to cool any operation or manufacturing process.

Public potable water supply means any publicly or privately owned water system operated as a public utility under a health permit to supply water for domestic purposes. Such a system includes all sources, facilities and appurtenances between the source and the point of delivery such as valves, pumps, pipes, conduits, tanks, receptacles, fixtures, equipment and appurtenances used to produce, convey, treat, or store potable water for public consumption or use.

Pressure loss means any reduction in the water pressure supplied by the city.

Reduced pressure backflow prevention assembly (RP) means an assembly containing two (2) independently acting approved check valves together with a hydraulically operating, mechanically independent pressure differential relief valve located between the check valves and at the same time below the first check valve. The assembly includes four (4) properly located resilient-seated test cocks and two (2) tightly-closing resilient-seated shutoff valves at each end of the assembly.

Service connection means the terminal end of a service connection from the public potable water system (i.e., where the utility loses jurisdiction and sanitary control over the water at its point of delivery to the customer's water system). If a meter is installed at the end of the service connection, then the service connection shall mean the downstream end of the meter.

Spill-resistant pressure vacuum breaker (SVB) means an assembly which contains an independently operating internally loaded check valve and an independently operating loaded air inlet valve located on the discharge side of the check valve, with properly located resilient seated test cock, a properly located bleed/vent valve and tightly closing resilient seated shutoff valves attached at each end of the assembly.

Superintendent means the superintendent for the city designated by the director to oversee the cross-connection control program or the superintendent's designee.

Supply pressure means the existing pressure in the city water system.

Thermal expansion means heated water that does not have any space to expand.

Used water means any water supplied by the utility from a public water system to a customer's water system after passing through the service connection and which is no longer controlled by the utility.

Utility means the division in city's public works department overseeing the cross-connection control program.
(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-24. Interpretation.

The provisions in this article are cumulative of all city ordinances. In cases where the requirements of this division differ from any other ordinances or codes, the more stringent requirements shall apply.
(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-25. Backflow prevention assemblies required.

(a) Each service connection from the public water system to premises having an auxiliary water supply shall be protected against backflow of water from the premises into the public water system with a reduced pressure backflow prevention assembly (RP).

(b) For all newly constructed premises on which a substance is handled so that it may enter the public water system, each service connection from the public water system to such premises shall be protected against the backflow of water from the premises into the public water system. This requirement shall apply to each premise on which persons handle process water and water originating from the public water system which has been subjected to deterioration in sanitary quality.

(c) For all existing premises on which a substance is handled so that it may enter the public water system, each service connection from the public water system to such premises may be required to be protected against the backflow of water from the premises into the public water system upon the determination of the superintendent or the building official. This requirement shall apply to each premise on which persons handle process waters and waters originating from the public water system which have been subjected to deterioration in sanitary quality.

(d) Backflow prevention assemblies shall be installed on a service connection to a premises:

(1) Having internal cross-connections that cannot be permanently corrected and controlled in compliance with this division;

(2) Upon the superintendent or building official's determination that an intricate plumbing and piping arrangement exists which makes it impractical to ascertain whether cross-connections exist therein; or

(3) Where a portion of the premises cannot be readily accessed for inspection purposes making it impractical or impossible to ascertain whether cross-connections exist.

The owner or person responsible for a property or the maintenance of a property connected to or required to be connected to the public potable water system shall make all necessary arrangements, at its sole expense, to remove without delay security barriers or other obstacles to allow access by the superintendent or the building official.

(e) If an interstreet main flow may result from two (2) or more services supplying water to the same building, structure, or premises, then a standard check valve shall be installed adjacent to the respective meters and on the owner's property. If a check valve is not adequate to protect the public water system's mains from pollution or contamination, the installation of an approved backflow prevention assembly may be required by the superintendent. Approval will be given if a backflow prevention assembly is functioning.

(f) If a health hazard exists, a testable backflow prevention assembly or an air gap shall be required. The backflow prevention assemblies shall include a reduced pressure backflow prevention assembly (RP), pressure vacuum breaker (PVB) or a spill-resistant vacuum breaker (SVB). The PVB and SVB shall not be subjected to backpressure.
(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-26. Type of backflow prevention assembly required.

(a) The type of backflow prevention assembly required shall be commensurate with the type of hazard that exists on the customer's premises. The minimum types of backflow prevention assemblies required to protect the city's potable water supply are set forth in table 1, below. However, the water user may choose a higher level of protection than required by the city. All backflow prevention assemblies shall be from an approved list from the University of Southern California Foundation for Cross-Connection Control and Hydraulic Research.

Situations which are not covered in table 1 shall be evaluated on a case by case basis, and the required backflow prevention assembly shall be determined by the superintendent.

(b) Containment and/or secondary protection may be required on certain health hazard installations in accordance with the following table 2,

in addition to any other protection, identified herein, which is required to isolate equipment within a facility. The superintendent or building official may require backflow prevention assembly to be installed on other facilities with a similar degree of hazard in accordance with the plumbing code of the City of Plano, as amended, or other applicable law. These backflow prevention assemblies shall be installed in the main service line on the building side of the meter or the principle branch serving a single tenant space. The location of the backflow prevention assembly shall be approved by the superintendent or building official in accordance with the provisions contained in section 21-28.

(c) The building official, the city's fire chief and the director may approve a variance to these requirements for backflow on fire sprinkler systems.

Table 1

Type of Hazard	*Minimum Type of Backflow Prevention Assembly*
Commercial fire protection systems utilizing chemicals or additives (new installations or remodels of existing systems)	RP—UL or FM and USC approved assemblies only
Commercial fire sprinkler systems without chemicals or additives (all new installations or remodeling of existing systems, after March 1, 2014, with a cumulative total of fifty (50) or more head changes (additions and/or relocates) or cumulative remodeling of ten thousand (10,000) or more square feet of floor space in a building during the life of the sprinkler system)	DC—UL or FM and USC approved assemblies only
Residential, single-family fire sprinkler systems (new installations or remodels of existing systems)	DC-USC approved assemblies only (two (2) inches or smaller) DC—UL or FM and USC approved assemblies only (larger than two (2) inches)
Commercial and residential landscape irrigation systems utilizing chemical additives or quick coupler hose connections	RP or AG only
Stationary construction fire hydrant meters	RP or AG immediately adjacent to meter and one-way check valve on discharge lines on trucks
Temporary construction fire hydrant meters	RP or AG in fill line on the water hauling equipment and one-way check valve on discharge lines on trucks
Premises where any customer purchasing water for the purpose of resale or distribution	RP or AG at each service connection
Premises owned by any state, federal, or foreign government or agency	RP or AG at each service connection
Premises where there is a history of cross-connections being established or re-established	RP or AG
Animal watering sites	AG or RP or PVB or SVB. PVB or SVB not approved where backpressure situations exist
Non-health hazard	DC, PVB, SVB or RP at point of connection to hazard or at service connection prior to first branch line off customer's service line. PVB or SVB not approved where backpressure situations exist
Health hazard	AG, PVB, SVB or RP at point of connection to hazard and/or at service connection prior to first branch line off customer's service line. PVB or SVB not approved where backpressure situations exist
Carbonated drink machines	RP—Assembly and all downstream piping shall be non-corrosive when in contact with CO2 gas

Table 2
Health Hazard Installations

	TYPE OF BACKFLOW PREVENTION ASSEMBLY REQUIRED
Breweries	RP
Carwash	RP
Dairies	RP
Multi-story building three (3) floors or more	RP
Animal hospital	RP
Auxiliary water supply	RP
Building containing a reclaimed water system	RP
Chillers	RP
Commercial laundry	RP
Cooling towers	RP
Dental office	RP
Doctor's office	RP
Food and beverage processing plants	RP
Funeral home and mortuary	RP
Green house or nursery (with toxic chemicals)	RP
Hospitals (parallel system required)	RP
Laboratories (including medical, dental and research labs, and labs at educational facilities)	RP
Manufacturing plant	RP
Meat processing plant	RP
Metal manufacturing, cleaning, processing and fabrication plants	RP
Micro chip fabrication facilities	RP
Petroleum processing or storage facilities	RP
Photo and film processing	RP
Plants using radioactive materials	RP
Plating or chemical plants	RP
Premises where inspection is restricted or exempted	RP
Private/individual unmonitored wells	RP
Rainwater harvesting systems	RP
Rendering plant	RP
Sewage lift stations	RP
Sewage treatment plants	RP
Steam plants	RP
Space heating boilers	RP

(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2014-2-10, § I, 2-24-14; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-27. Backflow prevention assembly installation requirements.

(a) *Installation requirements.* All new, replacement, or reconditioned backflow prevention assemblies shall be installed in accordance with the International Plumbing Code, as adopted and amended by the City of Plano and with the following standards, unless otherwise directed or approved by the superintendent.

(1) *Plumbing permit required.* Prior to the installation, relocation or replacement of a backflow assembly, a plumbing permit must be obtained from the building inspection department of the city.

(2) *Installation.* The assembly shall not be located in the same vault or meter box with the city's water meter. Backflow assemblies and components shall not be installed within three (3) feet of a water meter box or vault. All backflow assembly installation shall be done in accordance to the approval set forth in the list of approved backflow prevention assemblies issued by the University of Southern California Foundation for Cross-Connection Control and Hydraulic Research, a copy of which is on file in the city public works department. If installed in a structure all backflow assemblies must be easily accessible for testing, repair or replacement.

(3) *Location.* The owner or occupant must prove to the city that no connections or tees are located between the meter and the backflow prevention assembly. The relief valve discharge on a reduced pressure backflow assembly (RP) shall not be solidly piped into a sump, sewer, drainage ditch, etc. Test cocks shall not be used as supply connections.

(4) *Air gap separation (AG).* All piping from the service connection to the receiving tank shall be above grade and be entirely visible. No water use shall be provided from any point between the service connection and the air gap separation. The water inlet piping shall terminate at a distance of at least two (2) pipe diameters of the supply inlet, but in no case less than one (1) inch above the overflow rim of the receiving tank.

(5) *Reduced pressure backflow assemblies (RP).* Reduced pressure backflow assemblies shall be installed above ground level and shall be placed a minimum of twelve (12) inches above the finished grade, no higher than five (5) feet, and accessible for testing and repair. A freeze-proof enclosure with a concrete slab at finished grade is recommended. Where it is impractical to install the assembly outside, the installation may be made inside the building in an area not susceptible to flooding. Proper free flowing/gravity drainage must be provided for the relief valve. If the drain line is to drain outside, then the termination point must be a minimum of twelve (12) inches above finished grade.

(6) *Double check valve assemblies (DC).* Double check valve assemblies can be installed above finished grade in a freeze-proof enclosure or below grade in a vault. If assembly is installed below grade the test cocks must be plugged with corrosion resistant watertight plugs. Assembly may not be installed more than five (5) feet above the finished grade.

(7) *Bypass.* If a bypass is installed around any approved backflow prevention assembly, the bypass must be protected from backflow/backpressure with the same type of backflow prevention assembly that it has bypassed. The backflow prevention assembly on the bypass must be installed according to the same requirements as the service line assembly.

(8) *Thermal expansion.* The installation of a backflow assembly may create a closed system which may result in thermal expansion. It is the responsibility of the owner, occupant, manager, other person in control of any premises or the person responsible for the maintenance of a property to address the possibility of

thermal expansion due to the required installation of backflow assemblies creating a closed system.

(b) *Lost pressure.* The city is not responsible for any pressure loss created by the installation of a backflow assembly.
(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-28. Inspection, testing and registration of backflow prevention assemblies.

(a) *Testing of backflow prevention assemblies.* The owner, occupant, manager, other person in control of any premises or the person responsible for the maintenance of the property on which, or on account of which, backflow prevention assemblies are installed, shall have the assemblies tested by a Plano BPAT. Backflow prevention assemblies shall be tested annually and shall also be tested immediately after installation, relocation, repair or work performed upstream of the assembly. However, more frequent testing may be required if notice is provided by the city to the owner, occupant, manager, other person in control of the premises or the person responsible for the maintenance of the property. Should the city provide written notice that more frequent testing is required, the owner, occupant, manager, other person in control of the premises or the person responsible for the maintenance of the property shall provide the testing as required by the written notice.

(b) *Report of backflow prevention assembly test.* An approved city backflow prevention assembly test report shall be completed by a Plano BPAT on each backflow prevention assembly tested. Each completed test report with records of tests, repairs, or replacement, shall be submitted to the backflow program administrator within ten (10) calendar days after the testing, repair, replacement or work performed upstream of the assembly. A copy of the completed test report shall be left on-site with the property owner, occupant, manager or other person in control of any premises or the person responsible for the maintenance of the property.

(c) *Test results.* Test results for a reduced pressure backflow prevention assembly shall provide a reading for both checks. Once it has been determined that the second check has closed tight above the relief valve opening point, record the reading of the gauge as the second check reading. Only backflow prevention assembly field test procedures approved by the University of Southern California Foundation for Cross-Connection Control and Hydraulic Research will be accepted. If an assembly fails, the Plano BPAT shall immediately notify the superintendent in person or by phone during regular business hours of the public works department. If an assembly failure occurs at any time other than regular business hours, the Plano BPAT shall notify the superintendent on the next regular business day.

Upon notification to the superintendent of assembly failure, the superintendent will notify the owner, occupant, manager or other person in control of any premises or the person responsible for the maintenance of the property of the time period that they have to repair or replace the assembly. The assembly shall be replaced or repaired within the time period set by the superintendent or within five (5) calendar days from the date of assembly failure whichever date is sooner. In the event of assembly failure, water service shall not be connected or restored until the assembly has been repaired or replaced and passes a retest unless written authorization is given by the superintendent that water service is authorized to be connected or restored at an earlier date.

(d) *Registration and maintenance of backflow prevention assemblies.*

(1) Each backflow prevention assembly located on property subject to this division shall be registered with the utility through the submittal of a completed form approved by TCEQ to the backflow program administrator.

(2) The owner, occupant, manager, other person in control of the property or the person responsible for the maintenance of the property is responsible for general

maintenance and upkeep of all approved backflow prevention assemblies located thereon.

(3) Backflow prevention assemblies shall be tested, repaired, and/or replaced at the expense of the owner, occupant, manager, other person in control of the property or the person responsible for the maintenance of the property whenever such assemblies are determined to be defective by the superintendent or building official. An assembly is defective if it cannot be identified through the manufacturer's serial number and/or is not a properly installed backflow prevention assembly as required by this division.

(e) *New plumbing or plumbing modifications.* The building official or superintendent shall inspect all new backflow prevention assembly installations, which are subject to this division and are required by application for a plumbing permit. A service inspection certification form shall be completed by the building official or superintendent on each new plumbing installation or on plumbing modifications. Each completed form shall be received by the utility within ten (10) days after the inspection.

(f) *Existing properties.* The superintendent shall inspect all existing properties connected to the potable water system for the purpose of determining whether a cross-connection exists and what type of backflow prevention assembly should be installed pursuant to this division.

(g) *Existing backflow prevention assemblies.* Properties with existing backflow prevention assemblies installed in their system, which have not been registered with the superintendent, as of the effective date of this division shall come into compliance with the provisions of this division within sixty (60) days of notification unless the superintendent finds a health hazard exists in which case the superintendent shall determine the appropriate time of compliance.

(h) *Existing assemblies in compliance.* The owner, occupant, manager or other person in control of any premises or the person responsible for the maintenance of a property with existing assemblies, which comply with the provisions of this division, shall provide written proof that each such assembly has been properly maintained and serviced by a Plano BPAT. If maintenance and service records are not available, the assembly shall be tested in accordance with the requirements of this division.

(i) *Replacement.* If the assembly is not capable of being tested, identified or cannot be repaired, it must be replaced with an approved assembly in accordance with the requirements of this division.

(j) *Testing fee.* A thirty-five dollar ($35.00) fee shall be submitted to the backflow program administrator for each backflow prevention assembly tested and shall be paid at the time that the Plano BPAT files the backflow prevention assembly test report with the city.

(k) *Retesting fee.* A twenty-five dollar ($25.00) fee shall be submitted to the city for each backflow prevention assembly that is required to be retested due to a deficiency or a violation of this division including, an invalid test report, or one (1) of the following:

(1) Falsification of backflow prevention assembly test report.

(2) Incorrect serial number.

(3) Blank or incomplete information fields on backflow prevention assembly test report.

(4) Plano BPAT's test gauges are not registered with the city.

(5) Duplicate serial number on multiple backflow prevention assembly test report.

(6) Performing a backflow prevention assembly test using unapproved testing procedures.

(7) Inappropriate registration with the city.

(8) BPAT is not registered with the utility at the time the test(s) was performed.

(l) *Retest procedure.* The retest(s) shall be performed in the presence of the superintendent. The fee shall be paid to the city prior to the retest(s) being performed and the retest(s) shall be completed within five (5) business days from

first notification. Any retest(s) required shall be performed by the Plano BPAT or BPAT who is responsible for the deficiency or violation unless the Plano BPAT or BPAT has resigned or lost their testing privileges. All retest(s) should be performed during normal city business hours.

(m) *Exemption.* Atmospheric vacuum breakers are exempt from this section.
(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-29. Quality assurance program.

To assure the quality of the backflow prevention tests being performed, each month five (5) Plano BPATs will be randomly selected to be observed by the superintendent. The tester will be notified by certified mail to the address on file with the city. When a tester has been chosen for random observation he/she shall have thirty (30) calendar days from the date of the letter to schedule and complete an approved observation with the utility. Failure to do so shall result in the Plano BPAT's testing privileges being suspended. Testing privileges shall not be reinstated until the observation has been completed and approved.
(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-30. Removal of backflow prevention assembly.

(a) *Removal.* Prior written approval must be obtained from the superintendent before a backflow prevention assembly may be removed or relocated.

(b) *Discontinued use.* The use of a backflow prevention assembly may be discontinued, and the assembly removed from service, upon written approval from the superintendent after presentation to the superintendent of sufficient written evidence to verify that a hazard no longer exists and is not likely to be created in the future.

(c) *Relocation.* A backflow prevention assembly may be relocated following written approval from the superintendent after presentation to the superintendent of sufficient written evidence to verify that the relocation will continue to provide the required protection and satisfy installation requirements. An assembly may not be removed for relocation unless water use is discontinued, until the relocation is complete, or until the service connection is equipped with other backflow protection approved by the superintendent and sufficient to prevent backflow during relocation. A retest will be required following the relocation of the assembly.

(d) *Repair.* A backflow prevention assembly may be removed for repair and a retest will be required following the repair of the assembly. Before an assembly is removed, the Plano BPAT shall notify the superintendent. The superintendent shall determine the time period allowed for repair of the assembly and determine whether water service will be discontinued during that time period.

(e) *Replacement.* An assembly may be removed and replaced. All replacement assemblies must be approved by the superintendent and must be commensurate with the degree of hazard involved. A retest will be required following the replacement of the assembly. Before an assembly is replaced, the Plano BPAT shall notify the superintendent. The superintendent shall determine the time period allowed for replacement of the assembly and determine whether water service will be discontinued during that time period.
(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-31. Requirements for backflow prevention assembly testers.

(a) *Registration.* Prior to performing any testing of backflow prevention assemblies within the City of Plano, a backflow prevention assembly tester must be registered with the utility.

(1) Eligibility for registration shall be conditioned upon applicant providing proof that they are currently licensed as a backflow prevention assembly tester by the commission and have not been found to be in violation of section 21-32 of this division.

(2) Each applicant licensed as a backflow prevention assembly tester with the state shall furnish evidence to the superintendent to show that he/she has available the necessary tools and equipment to properly test and certify such assemblies. Serial numbers of all test gauges shall be registered with the superintendent. Registered serial numbers of test gauges shall be listed on tests and maintenance reports prior to being submitted to the superintendent. Each recorded test kit shall be tested annually for accuracy and calibrated to maintain a +/- 0.2 psid (pounds per square inch differential). Failure to register the serial number or calibrate gauges annually shall be grounds for temporary suspension of a tester's registration until compliance with this requirement is attained.

(3) Registration shall remain in force provided that the tester maintains his/her eligibility for registration by complying with all requirements of this division and applicable state law. Evidence of renewal of the tester's TCEQ backflow prevention assembly testing license shall be furnished to the superintendent upon request. A tester shall advise the superintendent if the tester's state license is ever suspended or terminated within five (5) business days of notice to the tester of such suspension or termination.

(b) *Registration fee.* An annual registration fee in the amount of one hundred dollars ($100.00) shall be paid at the time an application for annual registration is submitted to the superintendent. This annual registration fee includes the city's testing of the tester's equipment and tools.

(c) *Responsibilities of testers.* Plano BPAT's shall be responsible for performing competent tests, issuing accurate reports of backflow prevention assemblies tested, filing timely backflow prevention assembly test reports and test fees to the backflow program administrator. Plano BPAT's shall not change the design or operational characteristics of a backflow prevention assembly during repair or maintenance without prior written approval of the superintendent.
(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-32. Suspension and revocation of assembly tester registration.

(a) Failure to make immediate notification of a backflow prevention assembly field test failure as required by this division shall result in revocation of the Plano BPAT's registration.

(b) Refusal to perform retest(s) or pay appropriate fee as required by this division shall result in revocation of Plano BPAT's registration.

(c) Submitting a falsified test report shall result in revocation of a Plano BPAT's registration.

(d) Upon notification or discovery of testing deficiencies, material reporting deficiencies, or violations of this division by a Plano BPAT, the superintendent may, in addition to any other actions taken by the city, take one (1) or more of the following actions:

(1) Require a re-test on any backflow prevention assembly reported as operational.

(2) Suspend the tester's registration with the city for a period not to exceed six (6) months if the tester accrues five (5) or more testing deficiencies, material reporting deficiencies, or violations of this division within a one (1) calendar year period; the five (5) errors may be any combination of testing deficiencies, material reporting deficiencies, or violations of this division.

(3) Revoke the tester's registration with the city upon the establishment of grounds for a second suspension of the tester's registration which occurs within five (5) years from the conclusion of the first suspension.

(4) Refuse to allow registration/renewal of a BPAT who refused to perform a retest or

pay appropriate retest fees for assemblies tested by the BPAT while registration with the utility was not current.

(e) The superintendent shall send written notice to the Plano BPAT at the last known address on file for the Plano BPAT informing the Plano BPAT of a suspension or revocation. The date specified on the notice shall be the effective date of the revocation or suspension.
(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-33. Appeal of determinations under this division.

(a) *Appeal to director.* Any person aggrieved by a decision of the superintendent or the building official made pursuant to sections 21-24 through 21-33 of this division, may appeal that decision by filing their appeal in writing to the director within seven (7) calendar days of the notice of that decision. An appeal filed pursuant to this section shall clearly state the decision being appealed and the factual or legal basis for the appeal and shall clearly state whether a hearing is being requested on the matter. If a hearing is requested, the director or the director's designee shall hold a hearing within ten (10) business days of the receipt of the written notice of appeal.

(b) *Failure to appeal.* Failure to request a hearing shall be deemed a waiver of a hearing and the decision of the superintendent or building official is final and binding.

(c) *Issuance of decision by director.* A decision from the director or the director's designee shall be issued within ten (10) calendar days of the conclusion of the hearing or of the city's receipt of the written appeal if no hearing is requested. Decisions of the director or the director's designee shall be final and binding.
(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-34. Prohibited conduct.

(a) The following actions or omissions are prohibited:

(1) Installing, allowing to remain installed, or maintaining a potable water supply, piping, or part thereof in such a manner that allows used, unclean, polluted, or contaminated water, mixtures, gases, or other substances to enter any portion of the public potable water supply by reason of back siphonage, backpressure or any other cause.

(2) Maintaining any water-operated equipment or mechanism or use of any water-treating chemical or substance if it is determined that such equipment, mechanism, chemical or substance may cause pollution or contamination of the public potable water supply. Provided, however, that such equipment or mechanism may be permitted when equipped with a backflow prevention assembly approved by the city.

(3) Connecting, allowing to be connected, or allowing to remain connected to the public potable water system any mechanisms or systems designed to return used water to the public potable water system.

(4) Connecting, allowing to be connected, or allowing to remain connected to the public potable water system an auxiliary water system without the prior written approval of the superintendent.

(5) Incorrectly installing a backflow prevention assembly or allowing an incorrectly installed backflow prevention assembly to remain installed.

(6) Restoring the water supply to a backflow prevention assembly that failed a test under this division.

(7) Falsifying any information in a backflow prevention assembly test report submitted to the city.

(8) Conducting a backflow assembly test without being registered with the city.

(9) Conducting a backflow assembly test while without a valid registration.

(10) Submitting an incomplete backflow prevention assembly test report to the backflow program administrator.

(11) Disconnecting, removing, or discontinuing the use of a backflow prevention assembly without the written permission of the superintendent.

(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-35. Offenses and penalties.

(a) *Persons responsible.* A person is responsible for a violation of this division if the person is the owner, occupant, manager, other person in control of the property or premises or the person responsible for the maintenance of the property determined to be the source of a violation of this division or the tester who performed the test or procedure.

(b) *Criminal penalties.* Any person knowingly violating any provision of this article or failing to observe any provisions of this article shall be deemed guilty of a misdemeanor and upon conviction thereof, shall be punished as provided in subsection 1-4(a) of the City Code of Ordinances. Every day the violation continues shall be deemed as a separate offense.

(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Sec. 21-35.1. Enforcement.

(a) *Authority.* The director, the superintendent, and the building official, or their respective designees are hereby authorized to enforce the provisions of this division by any one (1) or more of the enforcement mechanisms set forth in this division, or as allowed by local, state, or federal law.

(b) *Civil penalties.* The city may file a civil lawsuit to enforce this division and may seek civil penalties as authorized by law.

(c) *Discontinuance of water service.* Water service to the property or premises where the alleged violation exists may be discontinued or refused by the utility if violations are not corrected within the time period indicated in the notice of violation provided by the city.

(d) *Remedies cumulative.* All remedies authorized under this division are cumulative of all others unless otherwise expressly provided. Accordingly, the filing of a criminal action shall not preclude the pursuit of a civil or administrative action for violation of this division nor shall the filing of a civil action preclude the pursuit of any other action or remedy, administrative, or criminal.

(Ord. No. 2011-12-2, § II, 12-12-11; Ord. No. 2022-1-4, § II, 1-10-22)

Editor's note—Ord. No. 2022-1-4, § II, adopted January 10, 2022, enacted provisions intended for use as section 21-36. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as section 21-35.1.

DIVISION 2. PRIVATE WELLS*

Sec. 21-36. Definitions.

(a) *Approved water supply source* means Plano's Water System.

(b) *Backflow* means the reversal of flow of water or mixtures of water and other liquids, gases or other substances into the

*__Editor's note—__**Editor's note—**Section I of Ord. No. 2007-10-14, adopted Oct. 8, 2007, repealed art. II, div. 2, §§ 21-36—21-46, in its entirety. Section II of said Ord. provided for a new art. II, div. 2, to read as herein set out. Formerly, said division pertained to similar subject matter as enacted by Ord. No. 65-5-2, §§ 1—9, adopted May 10, 1965. See the Code Comparative Table for a detailed analysis of inclusion.

distribution pipes of a potable water supply from any sources other than an approved water supply source.

(c) *Backflow prevention assembly tester* means an individual licensed in accordance with Texas Commission on Environmental Quality [TCEQ] Rules, as amended, for the purpose of testing backflow prevention assemblies and registered with the City of Plano as a backflow prevention assembly tester.

(d) *Building official* means the officer or other designated authority charged with the administration and enforcement of this article or his or her designee, which may include members of other city departments as determined by the building official.

(e) *City engineer* means the person designated as the city engineer and registered as a professional engineer in the State of Texas.

(f) *Construction permit* means a permit issued by the city to a well driller licensed by the state to construct, install, repair or overhaul a water well.

(g) *Cross-connection* means a point in the plumbing system where the public water supply is connected directly, or has the potential of being connected, to a source of non-potable substance that is not part of the potable water supply, including water wells. Any actual or potential physical connection between a potable water line and any pipe, vessel or machine containing a non-potable fluid, such that is it possible for the non potable fluid to enter into the potable water system by backflow. This connection may be temporary or permanent, potential or actual, indirect or direct.

(h) *Director of public works* means the Director of Public Works for Plano or his or her designee.

(i) *Existing well* means a water well or water system which had been installed prior to the effective date of this article.

(j) *Non-potable water* means a water supply, which has not been approved, for human consumption by TCEQ and the city.

(k) *Person* means any individual, firm, partnership, association, corporation, company or organization of any kind.

(l) *Potable water* means any public water supply, which has been investigated and approved by TCEQ and the city as satisfactory for drinking, culinary and domestic purposes.

(m) *Premises* or *Property* means any property real, improved or personal that is connected to a City of Plano approved water supply source.

(n) *Public sewer* means a common sewer directly controlled by public authority.

(o) *Reduced pressure principal backflow prevention assembly [RPZ]* means a backflow prevention assembly consisting of two (2) independently acting check valves, internally force-loaded to a normally closed position and separated by an intermediate chamber (or zone) in which there is an automatic relief means of venting to the atmosphere, internally loaded to a normally open position between two (2) tightly closing shutoff valves and with a means for testing for tightness of the checks and opening of the relief means.

(p) *Sanitary sewer* means a pipe which carried wastewater and excludes storm, surface water and groundwater.

(q) *Septic tank* means a watertight receptacle which receives the discharge of a drainage system or part thereof, which is designated and constructed so as to separate solids from the liquid, digest organic matter through a period of detention, and allow the liquids to discharge into the soil outside of the tank through a drain field, disposal or perforated piping.

(r) *Testing* or *reporting deficiencies* means incomplete, or inaccurate backflow prevention assembly test results or reports filed with the city pursuant to this article,

use of inaccurate gauges; or the use of improper operational certification methods.

(s) *Water main* means a water-distribution pipe for public or community use.

(t) *Water well* means bored wells, dug wells and driven wells developed into the underground soils, which are to produce water for private use. Water wells are prohibited unless approved under the provisions of this article.

(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-37. Permits and licenses.

(a) *State license required.* Construction of water wells shall be performed only by those holding a valid water well driller's license issued by the State of Texas. The state license number shall be displayed during construction at the site of the work. The number shall be clearly readable from the nearest traveled public roadway. Water well drillers must hold a current contractor registration with the city and be in good standing. In addition, the approved permit issued by the city shall be displayed during construction at the site of the work and remain on site until a final inspection is obtained.

(b) *Construction permit and registration required.* Persons who wish to construct, repair or overhaul water wells in the city must obtain the necessary contractor registration and construction permits as provided for in this article and other applicable ordinances. "Overhaul" and "repair" means work that is not considered routine maintenance. All workmanship and materials shall meet the requirements of this article in regard to the drilling, construction, location and operations of such wells and systems. The forms, plans and other information and documentation required to be provided under this article may be approved by the building official or his or her designees only if all provisions of this article are complied with.

(c) *Construction permit not required.* Construction permits are not required for routine maintenance of water wells. It is the well driller's and well owner's responsibility to notify the building official of routine maintenance prior to the maintenance being performed, and that official, or his designee, will determine if the work to be done may be classified as routine maintenance.

(d) *Construction permits not transferable.* Each construction permit issued under this article shall be specific to the property and shall be obtained by the well driller. No such construction permit shall be assigned or transferred to another person, and no person shall permit another person to obtain a construction permit in his/her name or permit any new well construction, repair or overhaul work to be performed under his/her construction permit other than a person authorized to do the same.

(e) *Issuance of construction permit.* The building official, or his or her designee, shall issue all construction permits in accordance with the provisions and requirements of this article and other applicable ordinances. Incomplete applications or applications that do not meet the requirements of this article shall be denied. The decision of the building official shall be final. All applications for permits shall be submitted using a standard form issued by the building inspection department. The application shall provide the following information:

1. Company name, address and telephone number of the well driller;
2. Well driller's State of Texas license number;
3. Name, address, legal description and telephone number of property owner;
4. Company name and State of Texas license number of the assigned electrical contractor who must be registered to work in the City of Plano.
5. Company name and State of Texas license number of the assigned plumbing contractor who must be registered to work in the City of Plano.
6. Company name and State of Texas license number of the assigned irrigation contractor (if applicable) who must be registered to work in the City of Plano.
7. A plan of the property that shows the location of the proposed water well, all

buildings, functioning septic tanks, drain fields and other significant structures. The plan shall also show the location of structures and adjacent property if within ten (10) feet of the property line. All setbacks and dimensions shall be shown to be in conformance with section 21-46 of this article.

8. Any other information deemed necessary by the city.

(f) *Duration of construction permits.* Every construction permit issued under the provisions of this article shall expire one hundred eighty (180) days after the date issued. In every case where a permit is expired, a new permit shall be obtained before any work is resumed. Any work performed pursuant to an expired permit shall be considered work performed without a permit.

(g) *False statement or bad faith.* Any person who shall willfully make any false statement in order to obtain a construction permit shall be guilty of a misdemeanor and subject to the penalty provided herein.
(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-37.1. Offenses and penalties related to permits and licenses.

(a) A person commits and offense if he recklessly or negligently violates or fails to comply with the following subsections of this article:

(1) Section 21-37, subsections(a), (b), (c), (d), (f), and (g).

(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-38. Fees.

(a) *Permit and inspection fees.* The permit and inspection fees provided in this article shall be paid to the city before the issuance of a permit and before any work is started. Fees shall not be collected prior to permit approval. Inspection and re-inspection fees shall be in accordance with the city's approved fee schedule, as amended.

(b) Whenever any work for which a permit is required by this article has been commenced or completed without first obtaining a permit, a special investigation shall be made before a permit may be issued for such work. An investigative fee, in addition to the permit fee, shall be collected whether or not a permit is then subsequently issued. The investigation fee shall be double the amount of the permit fee set by the city's approved fee schedule, as amended. The payment of such investigative fee shall not exempt any person from compliance with all provisions of this article nor from any penalty prescribed by law.
(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-39. Well completion, inspection and testing.

(a) The building official or his or her designee(s) shall have the right, at any time, to enter the property for the purpose of inspections to insure compliance with this article.

(b) Upon completion of the well, the well driller shall immediately furnish the building official with a copy of the driller's report. Any well that is not completed shall be sealed and considered a plugged or an abandoned well in accordance with rules, regulations and statutes of the State of Texas.

(c) The owner of a well shall have a backflow assembly test completed, immediately upon installation, annually and after any repair to the assembly. Only a state licensed backflow prevention assembly tester registered with the city shall perform the test. A report, on a city approved form, shall be submitted immediately to the department of public works upon the completion of each test.

(d) Each completed backflow assembly test form, together with the records of such tests, repairs, or replacements, shall be received by the public works department within ten (10) calendar days after the testing, repair, or replacement by the licensed tester. If an assembly fails, the water supply shall not be restored until the assembly is repaired or replaced and retested and passes the test. A well shall not be operated without having passed the backflow assembly test.
(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-39.1 Offenses and penalties related to testing, completion and inspections.

A person commits an offense if he recklessly or negligently:

(1) Fails to permit an inspection of the well pursuant to subsection 21-39(a).

(2) Fails to provide the building official with a copy of the driller's report pursuant to subsection 21-39(b).

(3) Fails to seal and plug an incomplete or abandoned well as required by subsection 21-39(b).

(4) Fails to provide a copy of the backflow assembly test report within ten (10) calendar days as required by subsection 21-39(d).

(5) Performs a backflow assembly test without being licensed and registered as required in subsection 21-39(c).

(6) Operates a well without a current successful backflow test report on file with city.

(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-40. Construction requirements.

(a) *Electrical.* 120v Ground Fault Circuit Interrupting ("GFCI") receptacle shall be installed immediately adjacent to the well equipment to allow for maintenance work on the equipment or the use of a freeze protection device.

(b) *Freeze protection.* Adequate provisions must be made to protect piping from freezing by insulation or heat or both on all water wells. The RPZ relief valve must not be enclosed.

(c) *Backflow protection.* An RPZ is the only approved backflow prevention assembly allowed on properties located within Plano, its ETJ or other premises. The RPZ is to be installed on all properties which contain a well.

(d) *Casing.* A casing of steel or other approved material shall be provided to prevent caving of the formations penetrated and also to ensure protection of water supply from contamination by water from shallow strata. The wall shall be cased from the bottom of the drilled hole to twenty-four (24) inches above the finish grade or more if required to keep surface water from entering casing. The well casing shall be cemented in place and sealed to protect the underground water formation from potential contamination resulting from surface water or individual waste disposal systems (i.e. septic tanks).

(e) *Well seal.* The annular space between the drilled hole and the well casing shall be sealed with concrete or grout for a depth of at least ten (10) feet above the water producing formation. The casing shall be covered at the ground with a concrete slab no less than twenty-four (24) inches by twenty-four (24) inches by twelve (12) inches. The top of the slab shall protrude six (6) inches above finished grade and shall be sloped away from the casing. The top of the casing shall be provided with a suitable well seal to prevent contamination of the well. If a vent is provided on the casing, it shall be equipped with an elbow turned downward and screened with a 16 gauge mesh screen.

(f) *Abandonment of wells.* Permanently abandoned wells shall be filled with cement grout or Redi-mix concrete. Abandoned wells shall not be used for the disposal of wastewater, septic tank effluent or other wastes.

(g) *Screening.* The water bearing formation shall be screened to control, among other similar conditions, the flow or production of sands and formation materials.

(h) *Compliance with Texas Department of Licensing and Regulation (TDLR) Rules and Regulations.* Permittee shall comply with any and all TDLR rules and regulations and other governing state statutes.

(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-40.1. Offenses and penalties related to construction requirements.

(a) A person commits an offense if he recklessly or negligently fails to: comply with the any of the requirements in section 21-40, subsections (a) through (h).

(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-41. Applicability of state regulations.

The regulations of the TDLR and the Texas Water Well Drillers Act, as existing or as may be amended as they pertain to the construction of water wells, shall be and are hereby incorporated into this article and must be strictly complied with.
(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-42. Commercial use.

It shall be unlawful for a commercial water well to be used for domestic (household) use or for consumption by the public.
(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-43. Irrigation use only.

Any water well must be constructed in accordance with the provisions of this article and may be used only for irrigation purposes. It shall be unlawful for a water well to be used for domestic (potable water) use.
(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-44. Location.

(a) Water wells shall be constructed no closer to property lines or buildings than the following distances:

1. Not allowed within the front yard setback;
2. Not allowed within the side yard setback;
3. Rear property lines: ten (10) feet;
4. Buildings: ten (10) feet;
5. Power lines: thirty (30) feet;
6. Functioning septic tanks and drain fields: One hundred fifty (150) feet;
7. Functioning septic tanks and drain fields: Fifty (50) feet; if well is concrete cased;
8. Functioning septic spray heads/soil absorption area: Eighty (80) feet;
9. Barns and animal pens: One hundred, fifty (150) feet; and
10. Permanent derricks and towers: No closer than forty (40) feet to side property lines.

(b) Existing wells currently in use as of the effective date of this article do not have to comply with the location restrictions in subsection 21-44(a). Any existing well that is not in use as of the effective date of this article may not be reactivated unless it is in compliance with the location restrictions in subsection 21-44(a).

(c) The operation of water wells shall be subject to any and all ordinances or statutes regulating noise.
(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-44.1 Offenses and penalties related to location.

(a) A person commits an offense if he recklessly or negligently fails to comply with any of the location restrictions in subsection 21-44(a). Each distinct violation of a distance restriction shall be considered a separate offense.

(b) A person commits an offense if he recklessly or negligently reactivates an existing well in violation of subsection 21-44(b).
(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-45. Debris, etc. on public rights-of-way.

It shall be unlawful for any debris, dirty water, mud or any other refuse to be dumped or discharged onto public rights-of-way. The drilling operation of any well shall control and dispose of, among other things, all drilling, cuttings, mud and water so as not to create a mud pit or disposal operation at the well site.
(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-46. No cross connections allowed.

It shall be unlawful for any person to connect a water well to the approved water supply system for the city. This shall include both sewage and potable water sources of the city's water supply.
(Ord. No. 2007-10-14, § II, 10-8-07)

Sec. 21-46.1. Enforcement.

The building official and the public works department are responsible for the enforcement of this article.
(Ord. No. 2007-10-14, § II, 10-8-07)

DIVISION 3. WATER WASTE; EXCESS FLOW

Sec. 21-47. Definitions.

For the purposes of this division, the following definitions shall apply:

Fugitive water shall mean the pumping, flow, release, escape, or leakage of any water from any pipe, valve, faucet, connection, diversion, well, from any water supply, transport, storage disposal or delivery system of a facility onto adjacent property or the public right-of-way. "Fugitive Water" shall not include:

(1) Storm run-off allowed under the provisions of Article III of Chapter 19 of this Code.

(2) Flow resulting from temporary water supply system failures or malfunctions.

(3) Flow resulting from other emergencies.

Nonbeneficial uses shall include but shall not be restricted to the following:

(1) Landscape water applied in such a manner, rate and/or quantity that it regularly overflows the landscaped area being watered and runs onto adjacent property or public right-of-way.

(2) Landscape water which leaves a sprinkler system or other application device in such a manner or direction as to spray onto adjacent property or public right-of-way.

(3) Washing down of hard surfaces such as parking lots, aprons, pads, driveways or other surfaced areas when water is applied in sufficient quantity to flow from that surface onto adjacent property or the public right-of-way.

Public right-of-way shall mean paved or unpaved streets, alleys, drainage, or other public easements and lined or unlined drainage channels, which comprise the municipal storm drainage system.

Responsible party shall mean the owner, manager, supervisor, or person in charge of the property, facility or operation during the period of time the violations are observed.

Waste shall mean the nonbeneficial use of water supplied by the municipal water supply system. "Waste" shall not include:

(1) Flow resulting from fire fighting or routine inspection of fire hydrants or from training activities.

(2) Water applied to abate spills of flammable or otherwise hazardous materials.

(3) Water applied to prevent or abate health, safety, or accident hazards when alternate methods are not available.

(4) Water which reaches or flows onto adjacent property or public right-of-way when caused by vandalism, wind, or other uncontrollable circumstances or condition.

(5) Flow resulting from a routine inspection or maintenance of the municipal water supply system.

(6) Occasional flow resulting from commercial or individual residential applications such as washing of vehicles, boats, or municipal flushing of streets.

(7) Water used by the traffic engineering division of the city in the course of installation or maintenance of traffic flow control devices.

(8) Water by contractors or utilities in sawcutting of pavement, compaction, or other uses required under terms of their contract.

(Ord. No. 86-6-15, §§ II, V, 6-9-86)

Sec. 21-48. Penalty.

Any person who violates any of the provisions of this division shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not to exceed one thousand dollars ($1,000.00) for each offense, and each day any such violation shall continue shall be deemed to constitute a separate offense.

(Ord. No. 86-6-15, § VII, 6-9-86)

Sec. 21-49. Administration.

(a) *Generally.* The city manager, or in his absence the assistant city manager, shall be responsible for the enforcement of this division. He shall prescribe policies, rules, or regulations to carry out the intent and purpose of this division.

(b) *Suspension of service.* On determination by city staff that a health or safety hazard exists, and failure by the responsible party to abate the nuisance, municipal water service may be suspended at the discretion of the city manager.

(c) *Variances.* A variance may be issued by the city manager, provided that all options for abatement through modified water management have been exhausted. The variance may be issued for a period not to exceed one (1) year and shall stipulate both corrective measures and a schedule for completion.
(Ord. No. 86-6-15, § VI, 6-9-86)

Sec. 21-50. Declaring a nuisance condition to exist.

The flow of excess landscape water, fugitive water, and water wastage from any water supply, transport, or delivery system installation or facility onto adjacent property or public right-of-way of the city is hereby declared a nuisance.
(Ord. No. 86-6-15, § I, 6-9-86)

Sec. 21-51. Waste water prohibited.

No person or municipal facility or operation shall waste, cause or permit to be wasted any water furnished by the municipal water supply system of the city. Watering during the hours of 10:00 a.m. to 6:00 p.m. during the months of April through October is prohibited.
(Ord. No. 86-6-15, § III, 6-9-86; Ord. No. 2019-4-8, § I, 4-22-19)

Sec. 21-52. Fugitive water flow prohibited.

No person or municipal or other government facility or operation shall cause or permit the flow of excess or fugitive water onto any adjacent property or public right-of-way, or the creation of ice onto any adjacent property or public right-of-way.
(Ord. No. 86-6-15, § IV, 6-9-86; Ord. No. 2019-4-8, § I, 4-22-19)

DIVISION 4. DROUGHT AND EMERGENCY RESPONSE PLAN

Sec. 21-53. Purpose and scope.

(a) The North Texas Municipal Water District (NTMWD) supplies treated water to the City of Plano, as well as other member cities and customers. A model water resource and emergency management plan was developed by the NTMWD in accordance with the regulations and requirements of the Texas Administration Code ("TAC") and the Texas Commission on Environmental Quality ("TCEQ") and consultation with its member cities. The NTMWD Model Plan calls for member cities and customers to adopt similar criteria and procedures for declaring a water emergency and implementing drought and emergency response stages as used by NTMWD. Member cities and customers may also adopt more stringent drought and emergency stages than NTMWD if conditions warrant. There is hereby established a City of Plano Drought and Emergency Response Plan (in this division called "the plan") to provide procedures for:

(1) Conserving the available water supply in times of drought, water supply shortage and emergency;

(2) Maintaining supplies for domestic water use, sanitation, and fire protection;

(3) Protecting and preserving public health, safety, and welfare;

(4) Minimizing the adverse impacts of water supply shortages; and

(5) Minimizing the adverse impacts of emergency water supply conditions.

(b) The plan applies to:

(1) All persons and premises using water from the city's water delivery system;

(2) All wholesale contract customers.

(c) TCEQ's minimum requirements (30 Tex. Admin. Code § 288.20) for drought contingency plans are addressed in the following subsections of this plan.
(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-54. Exemption.

The governmental use of water for essential services such as police, fire, and emergency services which is necessary to preserve or protect the health, safety and welfare of the citizens of Plano is exempt from any and all restrictions or mandates set forth in the plan.
(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-55. Definitions.

The following words, terms, and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Athletic field means a public sports competition field, the essential feature of which is turf grass, used primarily for organized sports practice, competition or exhibition events for schools, professional sports, or sanctioned league play.

City refers to the City of Plano.

City manager refers to the City Manager of the City of Plano or any other City of Plano public official designated by the city manager to act on behalf of the city manager.

Customer means a person, company or other entity connected to the city's water system and contracting with the City of Plano to receive potable water service.

Drip irrigation means micro-irrigation with low volume (measured in gallons per hour) and low pressure release of water to a specific root zone through point source emitters or pressure compensating in-line drippers. This does not include micro-sprayers or misters.

Drought means an extended period of time when an area receives insufficient amounts of rainfall to replenish the water supply, causing water supply sources to be depleted.

Emergency means a condition in which the existing or projected water supply available to the city is not anticipated to meet the normal water requirements of metered water users. This condition may be the result of factors including, but not limited to, natural emergency conditions (i.e., drought, etc.) and/or a failure of the city's or its supplier's water distribution systems.

Even numbered address refers to street addresses (e.g. 124 Plano Street) or box numbers ending in 0, 2, 4, 6, or 8.

Foundation means area that includes first twenty-four (24) inches of soil from foundation slab.

Fugitive water refers to pumping, flow, release, escape, or leakage of any water from any pipe, valve, faucet, connection, diversion, well, from any water supply, transport, storage disposal or delivery system of a facility onto adjacent property or the public right-of-way.

Greens means the ground that is specially prepared for putting. The putting green is typically defined by a fine bladed grass that requires an extremely high level of maintenance to provide a smooth surface for rolling the ball when putting.

Irrigation system means a site-specific system of delivering water, generally for landscape irrigation, via a system of pipes or other conduits installed below ground.

Landscape means natural plant materials around buildings or on grounds (i.e., trees, shrubbery, grasses and flowers) but excludes athletic fields and high use areas.

New landscape mean: (a) vegetation installed at the time of the construction of a residential or commercial facility; (b) installed as part of a governmental entity's capital improvement project; or (c) installed to stabilize an area disturbed by construction.

North Texas Municipal Water District or *NTMWD* refers to the North Texas Municipal Water District.

Odd numbered address refers to street addresses (e.g. 123 Plano Street) or box numbers ending in 1, 3, 5, 7 or 9.

Ornamental fountains means water features greater than five (5) feet in diameter used for aesthetic or cosmetic purposes only that must use, or be refilled with, potable water. This shall not include pond aerifiers and other water recycling devices used to mitigate stagnant conditions in lakes, ponds, or other natural bodies of water.

Person means owner, occupant, or person in control of the premises or a person authorized by the owner, occupant, or person in control of the premises.

Plan refers to the City of Plano's Drought and Emergency Response Plan, individually and/or collectively.

Plano refers to the City of Plano or the city.

Plano's water supply system or *water delivery system* means the City of Plano water works system and shall include, but not be limited to, storage tanks, elevated tanks, pipelines, pumps, hydrants, meters, valves, connections, engines, and all other property and machinery used in connection with the city's water works system.

Potable water means any public water supply which has been investigated and approved by the TCEQ as satisfactory for drinking, culinary and domestic purposes.

Public health, safety and welfare means such amount of water as necessary to sustain human life, reasonable standards of hygiene and sanitation, and fire suppression.

Soaker hose means a perforated or permeable garden-type hose that is laid above ground and provides irrigation at a slow and constant rate.

Sprinkler means an above ground irrigation device that may be attached to a garden hose or in-ground irrigation system. This includes spray heads, rotor heads, and oscillating devices.

Swimming pool or *pool* means any structure, basin, chamber, or tank, containing an artificial body of water for swimming, diving, or recreational bathing, and having a depth of two (2) feet or more at any point. Hot tubs, greater than five (5) feet in width at any point are included in this definition.

Tee box means the rectangular area considered the starting place for the hole to be played in the game of golf. The tee box is typically defined by a grass that requires a very high level of maintenance and mowed at a low height to provide a consistent surface to begin play on the hole.

TCEQ means the Texas Commission on Environmental Quality.

Wholesale customer means entities to whom the City of Plano provides wholesale water at a discounted rate. The Colony is a wholesale customer of the City of Plano.
(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-56. Presumption.

For purposes of enforcement of administrative remedies and criminal penalties under this division, it shall be presumed that the person in actual control of the watering or irrigation devices for a premise is responsible for any violations of this division. The requirement of a culpable mental state is expressly waived for any administrative or criminal penalty or remedy.
(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-57. Authority to declare water emergency.

(a) The city manager may order the implementation of a drought and emergency response stage when one (1) or more of the trigger conditions for that stage are met. The following actions will be taken when a drought and emergency response stage is initiated:

(1) The public will be notified in accordance with section 21-58.

(2) NTMWD will be notified by e-mail with a follow-up letter that provides details of the reasons for initiation of the drought and emergency response stage.

(3) If any mandatory provisions of the drought and emergency response plan are activated, the city will notify the executive director of the TCEQ and the executive director of the NTMWD within five (5) business days.

(b) Drought and emergency response stages imposed by NTMWD action may be initiated by the city. The city manager may decide not to order the implementation of a drought and emergency response stage even though one (1) or more of the trigger criteria for the stage are met. Factors which could influence such a decision include, but are not limited to, the time of the year, weather conditions, the anticipation of replenished water supplies, or the anticipation that additional facilities will become available to meet needs. The reason for the decision should be documented.

(c) In the event of a city-wide emergency, the order shall be made by public announcement in the city within twenty-four (24) hours of implementation. In the event of an emergency of limited geographical extent, door-to-door notification shall be made by door hangers and/or in person.
(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-58. Notification and termination of water emergency.

(a) Notification of water emergency. The city will inform and educate the public about the drought and emergency response plan by the following means:

(1) Preparing a press release describing the plan and sharing it through media outlets;

(2) Making the plan available to the public through the city's website;

(3) Notifying local organizations, schools, and civic groups that staff are available to make presentations on the plan (usually in conjunction with presentations on water conservation programs);

(4) At any time that the plan is activated or the drought and emergency response stage changes, the city will notify local media of the issues, the drought and emergency response stage (if applicable), and the specific actions required of the public including all imposed mandatory requirements that have been implemented. The information will also be publicized on the city's website and through social media outlets. Utility bill inserts and direct mail to each utility customer will also be used as appropriate.
(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-59. Initiation and termination of drought and emergency response stages.

A drought is defined as an extended period of time when an area receives insufficient amounts of rainfall to replenish the water supply, causing water supply sources, in this case reservoirs, to be depleted. In the absence of drought response measures, water demands tend to increase during a drought due to the need for additional outdoor irrigation. The severity of a drought depends on the degree of depletion of supplies and on the relationship of demand to available supplies. The NTMWD considers a drought to end when all of its supply reservoirs refill to the conservation storage pool.

(a) *Initiation of a drought and emergency response stage.* The city manager is authorized to initiate a drought and emergency response stage when one or more of the criteria applicable to that stage is triggered.

(b) *Notification to public.* The following actions will be taken to notify the public when a drought and emergency response stage is initiated or raised:

(1) The public will be notified of the implementation or amendment of a drought and emergency response stage in the manner set forth in section 21-58 above;

(2) Wholesale customers and the NTMWD will be notified by telephone with a follow-up letter, e-mail or facsimile transmission;

(3) If any mandatory provisions of the plan are activated, notification will be sent to the executive director of the TCEQ within five (5) business days.

(c) *Drought and emergency response stages imposed by NTMWD.* The city manager may elect not to implement a drought and emergency response stage imposed by NTMWD depending on all relevant factors. Factors which could influence such a decision include, but are not limited to, the time of the year, weather conditions, the anticipation of replenished water supplies, or the anticipation that additional facilities will become available to meet needs. The reason for the decision should be documented.

(d) *Termination of a drought and emergency response stage.* The drought and emergency response stage shall remain in effect until the city manager determines that the conditions that triggered the drought and emergency response stage have been alleviated or no longer exist or lake levels established by NTMWD for termination are met.

(e) *Notification of public.* The following actions will be taken to notify the public when a drought and emergency response stage is terminated or lowered:

(1) The public will be notified of the termination or lowering of a drought and emergency response stage in the manner provided in section 21-58 herein;

(2) Wholesale customers, including The Colony, and the NTMWD will be notified by telephone with a follow-up letter, e-mail, or facsimile transmission;

(3) If any mandatory provisions of the plan are terminated, the executive director of the TCEQ will be notified within five (5) business days.

(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-59.1. Initiation and termination conditions for stage 1.

(a) The city manager has initiated stage 1, which may be initiated due to one (1) or more of the following:

(1) The NTMWD executive director, with the concurrence of the NTMWD board of directors, finds that conditions warrant the declaration of stage 1;

(2) Plano's water demand exceeds ninety-five (95) percent of the amount that can be delivered to customers for three (3) consecutive days;

(3) Plano's water demand for all or part of the water delivery system equals delivery capacity because delivery capacity is inadequate;

(4) Plano's supply source becomes contaminated;

(5) Plano's water supply system is unable to deliver water due to the failure or damage of major water system components;

(6) Other criteria as determined by the city.

(b) Stage 1 may terminate when NTMWD terminates stage 1 or when the city manager determines circumstances that caused the initiation of stage 1 no longer exist. Factors which could influence such a decision include, but are not limited to, the time of the year, the weather conditions, or the anticipation of potential changed conditions that warrant the continuation of the drought and emergency stage. The reason for the decision should be documented.

(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-59.2. Goals for use reduction and actions available under stage 1.

(a) The goal for water use reduction under stage 1 is a five (5) percent reduction in the amount of water delivered to Plano by NTMWD from the previous corresponding annual payment period (October 1 through September 30) prior to institution of drought restrictions. If

circumstances warrant, or if required by NTMWD, the city manager can set a goal for greater water use reduction.

(b) The city manager may order the implementation of any of the actions listed below:

(1) Continue or initiate any actions available under the water management plan;

(2) Notify wholesale customers, including The Colony, of actions being taken and encourage them to implement similar procedures;

(3) Initiate engineering studies to evaluate alternatives should conditions worsen;

(4) Accelerate public education efforts on ways to reduce water use;

(5) Halt non-essential city government water use. Examples may include street cleaning, vehicle washing and operation of ornamental fountains.

(c) The city manager may also implement the following mandatory requirements on customers. If any of the following requirements are implemented, the city must notify the public as set forth in section 21-58, and TCEQ and NTMWD within five (5) business days:

(1) Landscape watering with sprinklers or irrigation systems is limited to no more than two (2) days per week between April 1 and October 31; and no more than one (1) day per week between November 1 and March 31. Designated days are determined by the even or odd numbered service address for the property. All Homeowners Associates must follow the even address schedule.

Street Address	*Days permitted for watering (April 1—October 31)*	*Days permitted for watering (November 1—March 31)*
Even numbered Addresses	Mondays and Thursdays	Thursdays
Odd numbered Addresses	Tuesdays and Fridays	Tuesdays

Exceptions are as follows:

(i) Hand watering with a shutoff nozzle or soaker hose, or a dedicated zone using drip irrigation is allowed up to two (2) hours per day provided no runoff occurs;

(ii) New construction landscaped areas may be watered for no more than thirty (30) consecutive days from the date a variance is granted;

(iii) Newly seeded, hydro seeded, hydro mulched, sprigged areas in open space, common areas, rights-of-way and turf renovation at athletic fields may be watered for no more than thirty (30) consecutive days from the date a variance is granted;

(iv) Locations using on-site well water or properly permitted creek withdrawals;

(v) Government agencies watering athletic fields or any other public grounds that are heavily used by the public during evening or morning hours. Public irrigation systems must be programmed to meet overall water use reduction goals of the stage;

(vi) Maintenance, testing, and calibration of an irrigation system, provided there is a person on-site and visible while each zone of the system is running.

(2) Watering between 6:00 p.m. and 10:00 a.m. from November 1 through March 31 is prohibited.

(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-59.3. Initiation and termination conditions for stage 2.

(a) The city manager has initiated stage 2, which may be initiated due to one (1) or more of the following:

(1) The NTMWD executive director, with the concurrence of the NTMWD board of directors, finds that conditions warrant the declaration of stage 2;

(2) Plano's water demand exceeds ninety-eight (98) percent of the amount that can be delivered to customers for three (3) consecutive days;

(3) Plano's water demand for all or part of the water delivery system exceeds delivery capacity because delivery capacity is inadequate;

(4) Plano's supply source becomes contaminated;

(5) Plano's water supply system is unable to deliver water due to the failure or damage of major water system components;

(6) Other criteria as determined by the city manager.

(b) Stage 2 may terminate when NTMWD terminates stage 2 or when the city manager determines circumstances that caused the initiation of stage 2 no longer prevail.
(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-59.4. Goals for use reduction and actions available under stage 2.

(a) The goal for water use reduction under stage 2 is a ten (10) percent reduction in the amount of water delivered to Plano from NTMWD from the previous corresponding annual payment period (October 1 through September 30) prior to the institution of drought restrictions. If circumstances warrant or if required by NTMWD, the city manager can set a goal for a greater water use reduction.

(b) The city manager may order the implementation of any of the actions listed below:

(1) Continue or initiate any actions available under the water management plan and stage 1;

(2) Notify wholesale customers of actions being taken and encourage them to implement similar procedures;

(3) Implement viable alternative water supply strategies.

(c) The city manager may also implement the following mandatory requirements on customers. If any of the following are implemented, the city must notify the public as set forth in section 21-58, and TCEQ and NTMWD within five (5) business days.

(1) Initiate water use restrictions as follows:

(i) Prohibit hosing of paved areas, buildings, or windows (pressure washing of impervious surfaces is allowed) except for outdoor public restrooms, pavilions and shelters, where public health, safety, and welfare may be compromised by unsanitary conditions if the facilities cannot be cleaned;

(ii) Prohibit operation of all ornamental fountains or other amenity impoundments to the extent they use treated water. Ornamental fountains or other amenity impoundments supporting aquatic life may apply for a variance to operate during stage 2;

(iii) Prohibit washing or rinsing of vehicles by hose except with a hose end cutoff nozzle.

(2) Landscape watering with sprinklers or irrigation systems is limited to no more than once per week between April 1 and October 31; and no more than once every other week between November 1 and March 31. Designated days are determined by the even or odd numbered service address for the property. All Homeowners Associations must follow the even address schedule.

Street Address	*Days permitted for watering (April 1—October 31)*	*Days permitted for watering (November 1—March 31)*
Even numbered addresses	Thursdays	Every other Thursday
Odd numbered addresses	Tuesdays	Every other Tuesday

Exceptions are as follows:

(i) Hand watering with a shutoff nozzle or soaker hose, or a dedicated zone using drip irrigation is allowed up to two (2) hours per day provided no runoff occurs;

(ii) Public athletic fields may be watered as needed to maintain safe playing conditions;

(iii) Where feasible, irrigation systems on public property must comply with watering schedules and comply with the water reduction goals of the stage;

(iv) Maintenance, testing, and calibration of an irrigation system, provided there is a maintenance technician on-site and visible while each zone of the system is running;

(v) Locations using other sources of water supply for irrigation. Other sources of water supply may not include imported water.

(3) Watering between 6:00 p.m. and 10:00 a.m. from November 1 through March 31 is prohibited;

(4) Golf courses are expected to meet the same reduction goals and measures as outlined in this stage. Greens and tee boxes may be watered by hand as needed to keep turf alive;

(5) Hydro seeding, hydro mulching, and springing is prohibited;

(6) Existing pools may add water to maintain pool levels but may not be drained and refilled. A variance may be requested to repair a leak or for health or safety issues;

(7) Initiate a rate surcharge for all water use over a certain level, if necessary to meet goal reduction;

(8) If NTMWD has imposed a reduction in water available to member cities and customers, impose the same percent reduction on wholesale customers.

(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-59.5. Initiation and termination conditions for stage 3.

(a) The city manager has initiated stage 3, which may be initiated due to one (1) or more of the following:

(1) The NTMWD executive director, with the concurrence of the NTMWD board of directors, finds that conditions warrant the declaration of stage 3;

(2) Plano's water demand exceeds the amount that can be delivered to customers;

(3) Plano's water demand for all or part of the water delivery system seriously exceeds delivery capacity because the delivery capacity is inadequate;

(4) Plano's supply source becomes contaminated;

(5) Plano's water supply system is unable to deliver water due to the failure or damage of major water system components;

(6) Plano is unable to recover water storage of one hundred (100) percent in all storage facilities within a twenty-four (24) hour period;

(7) Plano's individual plan may be implemented if other criteria dictate.

(b) Stage 3 may terminate when NTMWD terminates stage 3 or when the city manager determines circumstances that caused the initiation of stage 3 no longer exist.

(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-59.6. Goals for use reduction and actions available under stage 3.

(a) The goal for water use reduction under stage 3 is a reduction of whatever amount is designated by NTMWD in the amount of water provided to Plano by NTMWD from the corresponding previous annual payment period prior to institution of drought restrictions. If circumstances warrant or if required by NTMWD, the city manager can set a goal for a greater water use reduction.

(b) The city manager may order the implementation of any of the actions listed below, as deemed necessary:

(1) Continue or initiate any actions available under the water management plan and stages 1 and 2;

(2) Notify wholesale customers, including The Colony, of actions being taken and require them to implement similar procedures;

(3) Implement viable alternative water supply strategies;

(4) Water meter data for an account may be accessed to verify the property is following water restrictions and provide feedback on water consumption.

(c) The city manager may also implement the following mandatory requirements on customers. If any actions are implemented, the city must notify the public as set forth in section 21-58, and TCEQ and NTMWD within five (5) business days.

(1) Prohibit the irrigation of landscaping using treated water;

(2) Prohibit washing of vehicles except as necessary for health, sanitation, or safety reasons;

(3) Foundations and trees may be watered for up to two (2) hours a day with a shutoff nozzle or a soaker hose, or a dedicated zone using drip irrigation. Drip irrigation systems are not exempt from this requirement. Water may not be trucked or otherwise transported into the city for irrigation purposes;

(4) Prohibit the permitting of pools. Filling of pools will be evaluated based upon the reduction requirement. Existing pools may add water to maintain pool levels but may not be drained and refilled. A variance should be submitted for pool repairs that require refilling.

(5) If NTMWD has imposed a reduction in water available to member cities and customers, impose the same percent reduction on wholesale customers.

(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-59.7. Pro rata curtailment.

In the event that the triggering criteria specified in Section 21-59.5 for initiation of Stage 3 have been met, the city manager is authorized to initiate allocation of water supplies on a pro rata basis in accordance with V.T.C.A. Water Code, § 11.039.

(Ord. No. 2024-7-3, § I, 7-22-24)

Sec. 21-60. Procedures for granting variances to the plan.

(a) The public works director or his/her designee may grant temporary variances for water uses otherwise prohibited under this drought and emergency response plan.

(b) Variances shall be granted or denied at the discretion of the public works director or his/her designee. All petitions for variances should be in writing (through letter or e-mail) and include the following information or placed online at plano.gov/water:

(1) Name and address of the petitioners;

(2) Contact email address and/or telephone number;

(3) Purpose of water use;

(4) Specific provisions from which relief is requested;

(5) Detailed statement of the adverse effect of the provision from which relief is requested;

(6) Description of the relief requested;

(7) Period of time for which the variance is sought;

(8) Other pertinent information.

(c) Variances will be processed within five (5) business days once received.

(d) Variances are considered temporary and must be re-submitted for reconsideration should the drought and emergency response stage elevate from the stage in which the temporary variance was approved to any higher stage of response.

(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-60.1. Criminal penalty.

Any person, firm or corporation who violates any term or provision of this ordinance shall be deemed guilty of a misdemeanor and upon conviction thereof shall be subject to a fine in accordance with section 1-4(b) of the City Code of Ordinances for each offense. These criminal penalties may be imposed in addition to any administrative or civil remedy listed herein. Each day a violation continues shall constitute a separate offense. The requirement of a culpable mental state is expressly waived for criminal prosecution purposes.
(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-60.2. Administrative remedies for violations.

The following administrative remedies are available to the city in cases of noncompliance with the provisions of this ordinance. These administrative remedies may be assessed in addition to any criminal penalty assessed for a violation of this division. Each day a violation continues shall constitute a separate violation for purposes of assessing administrative remedies. The requirement of a culpable mental state is expressly waived for administrative remedies.

In the event that any person violates the provisions of this ordinance, the director of public works or his/her designee shall give notice to such person setting forth the evidence of noncompliance with the restrictions outlined in stages 1, 2 and 3.

(a) *In-ground irrigation systems violations.*

(1) *Notification of violation.*

(i) The city may shut off the person's double check valve to the irrigation system;

(ii) Notice shall be sent by letter delivered by United States Postal Service addressed to the person recorded in the city's customer and utility billing records advising that the irrigation system has been turned off. The letter shall also advise the person of the assessment of administrative remedies and fees. The letter shall also advise the person of procedures for payment of the administrative fees and the procedure for requesting a hearing to contest the assessment of the administrative remedies.

(2) *Remedy.*

(i) The administrative penalty is one hundred fifty dollars ($150.00) per occurrence when paid at customer and utility services. The administrative penalty increases by fifty dollars ($50.00) for each additional violation received within a rolling twelve-month period, except that in no event shall the penalty exceed five hundred dollars ($500.00) for a violation;

(ii) In lieu of the administrative penalty, the person recorded in the city's customer and utility billing records for the property can have a licensed irrigator install a properly functioning rain and freeze sensor. The person must provide a copy of the receipt that includes the purchase of the rain and freeze sensor, the installation of the device, and the licensed irrigator's name and landscape irrigator license number as issued by the TCEQ. This alternative remedy can only be applied once every three (3) years and is not eligible for a water conservation rebate from the city.

(b) *Violations for systems without double-check valves or in-ground irrigation systems.*

(1) *Violation notification.*

(i) Notice shall be sent by letter delivered by United States

Postal Service addressed to the person recorded in the city's customer and utility billing records advising the person of the violation. The letter shall also advise the person of the assessment of administrative fees. The letter shall also advise the person of procedures for payment of the administrative fees and the procedure for requesting a hearing to contest the assessment of the administrative remedies.

(2) *Remedy.*

(i) The administrative penalty is one hundred fifty dollars ($150.00) per occurrence when paid at customer and utility services. The administrative penalty increases by fifty dollars ($50.00) for each additional violation received within a rolling twelve-month period, except that in no event shall the penalty exceed five hundred dollars ($500.00) for a violation.

(c) *Procedures for paying administrative penalties or requesting a hearing on the fees.*

(1) Personal appearance by the person listed on the city's customer and utility services billing records is required to reestablish service to the irrigation system. Government issued photo identification must be provided by the person at time of payment or upon request for a hearing;

(2) A person may request a hearing to protest the assessment of any administrative penalty. To request a hearing, the person must make the request in person to the city public works department within fifteen (15) business days from the date on the written notice of violation;

(3) The public works operations manager or his/her designee shall conduct the hearing. The manager shall evaluate all information offered by the petitioner at the hearing. The person making the request for a hearing shall bear the burden of proof to show why, by a preponderance of the evidence, the administrative remedy should not be assessed. The manager will provide a decision at the time of the hearing or within three (3) business days following the conclusion of the hearing;

(4) Payment of any penalty assessed at the hearing must be made within seven (7) business days of the decision from the hearing. Any penalty not paid within this time limit shall be added to the person's next water billing cycle;

(5) A person may appeal the decision from the hearing to the office of the director of public works or his/her designee. The director or his/her designee shall hear the appeal;

(6) The request for an appeal must be filed in writing with the office of the director of public works within three (3) business days of the date that notice of the denial was given by the manager;

(7) The director or his/her designee shall render a decision at the time of the appeal or within three (3) business days from the conclusion of the appeal;

(8) A person may elect to pay the administrative penalty without requesting a hearing. Any penalty not paid within fifteen (15) business days from the date on the written notice shall be added to the person's next water billing cycle;

(9) Unpaid penalties related to the drought and emergency response plan can result in the termination of the domestic water services in accordance with City Code chapter 21, article IV, service charges generally, section 21-131(d) and the established policies and procedures of the customer and utility services department.

(d) *Administrative remedy for customers outside city.* The director of public works shall advise wholesale water customers outside the city limits receiving water service from the city of actions taken under the plan by telephone and/or by letter. Noncompliance with any requirement in any stage may result in termination of service and removal of meter. Prior to such termination, the wholesale water customer shall be given notice of the city's intent to terminate service and shall have five (5) business days from the mailing of such notice to appeal the decision to the director. Notice shall be sufficient if sent by certified mail to the last known address of the customer. If service is terminated, customer shall be liable for all costs of reinstallation. Termination of service to a wholesale water customer under this provision is subject also to the terms of any written contract between the city and the customer.

(Ord. No. 2019-4-7, § I, 4-22-19; Ord. No 2024-4-9, § I, 4-22-24)

Sec. 21-60.3. Water curtailment in wholesale water contracts.

Every wholesale water contract (treated and untreated water) entered into or renewed after the adoption of this plan, including any contract extensions, will contain language notifying parties to the contract, that in a case of shortage of water resulting from a drought, the water to be distributed shall be divided in accordance with V.T.C.A. Water Code § 11.039.

(Ord. No. 2024-7-3, § I, 7-22-24)

ARTICLE III. SEWERS*

Sec. 21-61. Definitions.

Unless the context specifically indicates otherwise, the meaning of the terms and phrases used in this article shall be as follows:

Act. The Federal Water Pollution Control Act, Public Law 92-500, known as the Clean Water Act (CWA), as amended, 33 U.S.C. 1251 et seq.

BTEX. Benzene, toluene, ethyl benzene and xylenes.

Building sewer. The extension from the building drain to the sewer lateral at the property line or other lawful place of disposal (also called lateral or house connection).

City. For the purposes of this Article, the City of Plano, Texas, and/or the city manager or their duly authorized representative.

Director. The Director of Health of the City of Plano or his duly authorized representative.

Disposal. The discharge, deposit, injection, dumping, spilling, leaking, or placing of any solid or semisolid waste (i.e., grease trap waste, grit trap wastes, and/or septage) into or on any land or water so that such waste or any constituent thereof may enter the environment or be emitted into the air or discharged into any water, including, but not limited to, ground waters.

Domestic sewage. The water-borne wastes normally discharging into the sanitary conveniences of dwellings (including apartment houses and hotels), office buildings, factories and institutions, free of storm water and industrial wastes.

---

*__Editor's note—__Section I of Ord. No. 92-7-14, adopted July 13, 1992, amended Art. III of Ch. 21 to read as herein set out. Former Art. III, §§ 21-61—21-91, was concerned with similar provisions and derived from Ord. No. 239, adopted Jan. 3, 1950; Ord. No. 62-3-3, adopted March 12, 1962; Ord. No. 66-4-1, adopted April 21, 1966; Ord. No. 73-3-1, adopted March 12, 1973; Ord. No. 73-9-4, adopted Sept. 10, 1973; Ord. No. 84-8-26, adopted Aug. 27, 1984; and Ord. No. 91-1-10, adopted Jan. 14, 1991. Section I of Ord. No. 92-7-15, adopted July 13, 1992, repealed Ord. No. 91-1-10.

EPA (Environmental Protection Agency). The U.S. Environmental Protection Agency, or where appropriate, the term may also be used as a designation for the administrator or other duly authorized officials of said agency.

Floatables. Anything lighter than water that can float on top of water.

Garbage. Animal and vegetable wastes and residue from preparation, cooking, and dispensing of food; and from handling, processing, storage, and sale of food products and produce.

Grease trap. A water-tight receptacle designed and constructed to intercept and prevent the passage of greasy, fatty liquid, semiliquid, and/or solid wastes into the sanitary sewer system to which the receptacle is directly or indirectly connected.

Grease trap waste. Any greasy, fatty liquid, semiliquid, and/or solid wastes removed by a grease trap.

Grit/sand trap. A water-tight receptacle designed and constructed to intercept and prevent the passage of petroleum-based oil, grease wastes and solids into the sanitary sewer system to which the receptacle is directly or indirectly connected.

Grit trap waste. Any petroleum-based oil, grease wastes and solids removed from a grit trap.

Hazardous waste. Any liquid, semiliquid or solid waste (or combination of wastes), which because of its quantity, concentration, physical, chemical or infectious characteristics may:

(1) Have any of the following characteristics: Toxic, corrosive, an irritant, a strong sensitizer, flammable or combustible, explosive, or otherwise capable of causing substantial personal injury or illness.

(2) Pose a substantial hazard to human health or the environment when improperly treated, stored, transported, or disposed of, or otherwise improperly managed, and is identified or listed as a hazardous waste as defined by the Texas Solid Waste Disposal Act or defined under 40 CFR Part 261.3.

Holding tank waste. Any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks, and vacuum pump tank trucks.

Industrial waste. The water-borne solids, liquids, or gaseous wastes resulting from and discharged, permitted to flow or escaping from any industrial, manufacturing or food-processing operation or process, or from the development of any natural resources, or any mixture of these with water or domestic sewage as distinct from normal domestic sewage.

Liquid waste. Water-borne solids, liquids, and gaseous substances derived from a grease trap, grit trap, chemical/portable toilet and/or septic tank and described as grease-trap waste, grit-trap waste or septage.

Milligrams per liter (mg/L). A weight-to-volume ratio; the milligrams per liter value multiplied by the factor 8.345 is equivalent to pounds per million gallons of water.

Owner. Any person who owns a facility or any portion of a facility.

POTW (Publicly Owned Treatment Works). A treatment works as defined by Section 212 of the Act, (33 U.S.C. 1292). This definition includes any devices and systems used in the storage, treatment, recycling and reclamation of municipal sewage or industrial wastes of a liquid nature. It also includes lift stations, sewers, pipes and other conveyances only if they convey wastewater to a POTW treatment plant. For the purposes of this article, POTW shall refer to the North Texas Municipal Water District.

PPM (Parts Per Million). A weight-to-weight ratio; the parts per million value multiplied by the factor 8.345 shall be equivalent to pounds per million gallons of water.

Person. Any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity, or their legal representatives, agents or assigns.

pH. The logarithm (base 10) of the reciprocal of the hydrogen ion concentration.

Pollutant. Any dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt and industrial, municipal and agricultural waste discharged into water.

Polluted water. Any water, liquid or gaseous wastes containing any of the following:

(1) Soluble or insoluble substances of organic or inorganic nature; or

(2) Settleable solids that may form sludge deposits; or

(3) Grease and oils; or

(4) Floating solids that may cause unsightly appearance or color; or

(5) Substances that would impart any taste or odor to the receiving stream; or

(6) Toxic or poisonous substances.

Sanitary sewer. A public sewer that conveys domestic wastewater or industrial wastes or a combination of both, and into which storm, surface, groundwaters and other unpolluted waters are not intentionally passed.

Sewage works/system. All facilities for collection, pumping, treating and disposing of sewage and industrial wastes and would include sewage, as well as the sewage treatment facilities.

Sewer. A pipe or conduit for carrying sanitary sewage.

Spill. The accidental or intentional loss or unauthorized discharge of any waste or raw material.

Storm sewer or storm drain. A sewer which carries storm water and surface waters and drainage but excludes sewage and polluted industrial

wastes and is not part of a publicly owned treatment works (POTW) as defined by 40 CFR 122.2.

Storm water system. All facilities for collection, pumping, treating, disposal and discharge of storm water including but not limited to any storm sewer, street, gutter, drainage ditch or water course.

TNRCC. Texas Natural Resource Conservation Commission.

To discharge. To deposit, conduct, drain, emit, throw, run, allow to seep, or otherwise release or dispose of, or to allow, permit or suffer any of these acts or omissions.

Toxic pollutant or toxic substance. Any substance whether gaseous, liquid or solid which, when discharged to the storm water system in sufficient concentrations, as determined by the director, may be hazardous to storm sewer maintenance and personnel, or to constitute a hazard to human beings or animals, or to inhibit aquatic life, or to create a hazard to recreation in the receiving waters; or any pollutant or combination of pollutants listed as toxic in regulations promulgated by the EPA under the provision of the Clean Water Act 307(a) or other acts.

TPH. Total petroleum hydrocarbon.

Trap. A device designed to skim, settle, or otherwise remove oil, grease, sand, flammable wastes or other harmful substances.

Waste. Rejected, unutilized, or superfluous substances in liquid, gaseous or solid form resulting from domestic, agricultural or industrial activities.

Wastewater. The liquid and water-carried industrial or domestic wastes from dwellings, commercial buildings, industrial facilities, and institutions, whether treated or untreated, which is contributed into or permitted to enter the POTW.

Watercourse. A channel in which a flow of water occurs, either continuously or intermittently.
(Ord. No. 92-7-14, § I(1), 7-13-92; Ord. No. 96-2-5, § I, 2-12-96)

Sec. 21-62. Mandatory connections.

The owner of each and every building situated upon any lot, tract or parcel of land within the limits of the city shall cause such building to be connected with the public sewer in accordance with the city's adequate public facilities policies, subdivision ordinance and pro-rata ordinance. An accessory building shall not be considered as a separate building when not used for human occupancy. Tourist cottages and group houses, under single ownership, as permitted by the zoning ordinance, may be connected to a common building (house) sewer provided that the size of the building (house) sewer conforms to Chapter 6 of this Code.
(Ord. No. 92-7-14, § I(2), 7-13-92)

Sec. 21-63. Private disposal facilities.

Upon adoption of this article, it shall be unlawful for any person to construct or maintain any privy, privy vault, septic tank, cesspool, or other private facility intended or used for the disposal of sewage or industrial wastes, unless approval in writing by the director has been given to the person constructing or maintaining the facility. All facilities shall be permitted by the Collin County Health Department and shall be constructed according to Collin County standards. Any private facility installed prior to the adoption of this article is exempted.
(Ord. No. 92-7-14, § I(3), 7-13-92; Ord. No. 96-2-5, § III, 2-12-96)

Sec. 21-64. Discharge to natural outlets generally.

No person shall individually discharge or cause to be discharged to any natural outlet within the city, or in any area under the jurisdiction of the city, any sanitary sewage, industrial wastes, or other polluted waters, except where such discharge is made in accordance with a valid permit from the Texas Natural Resource Conservation Commission or EPA.
(Ord. No. 92-7-14, § I(4), 7-13-92; Ord. No. 96-2-5, § II, 2-12-96)

Sec. 21-65. Prohibited discharges.

(a) No person may introduce into the storm water system any pollutants or materials other

than storm water that have an adverse effect on the environment, or may endanger life, health or property, or constitute a public nuisance.

(b) Substances specifically prohibited from being discharged into the storm water system are as follows:

(1) Polluted wastewater or other liquid wastes containing concrete, building materials, oil, chemicals or other liquid industrial wastes.

(2) Any liquids, solids or gases, including but not limited to, gasoline, kerosene, naphtha, benzene, toluene, xylene, ethers, alcohols, ketones, aldehydes, peroxides, chlorates, perchlorates, bromates, carbides, hydrides, sulfides or any other substances which are a fire or other hazard to the system, which by reason of their nature or quantity are, or may be, sufficient either alone or by interaction with other substances to cause fires, explosions, or be injurious in any other way to the facilities or operation of the storm water system.

(3) Any non-storm water, groundwater, process water that is mixed or contaminated with gasoline or oil in concentrations exceeding a total BTEX limit of 0.5 ppm with a maximum allowable benzene concentration of 0.05 ppm or TPH limit of 15 ppm, tested on a weekly basis.

(4) Any non-storm water having a ph less than six point five (6.5), greater than nine point zero (9.0), or any non-storm water capable of having any other corrosive property capable of causing damage or hazard to the storm water system.

(5) Any free or emulsified fats, waxes, greases or oils.

(6) Petroleum oil, nonbiodegradable cutting oil, products of mineral oil origin, transmission fluid, hydraulic fluid, brake fluid, power steering fluid, antifreeze or other household hazardous wastes.

(7) Solid or liquid substances which may cause obstruction to the flow in storm sewers or other interference with the proper operation of the storm water system such as, but not limited to: Ashes, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, tar, plastics, wood, whole blood, paunch manure, hair and fleshings, entrails, lime slurry, lime residues, slops, chemical residues, paint residues, bulk solids, waste paper or floatables.

(8) Wastewater or industrial wastes generated or produced outside the city unless approval in writing from the director has been given to the person discharging the wastes.

(9) Any noxious or malodorous liquids, gases or solids which either singly or by interaction with other substances are sufficient to prevent entry into the storm water system for maintenance and repair.

(10) Any trucked or hauled pollutants, except at discharge points discharged by the city.

(11) Trash, junk, refuse, garbage, grass clippings, tree limbs, tree branches, leaves, brush or firewood.

(12) Any non-storm water containing, but not limited to detergents, surfactants, phosphates or cleaning residues generated from commercial car washing or cleaning services.

(Ord. No. 92-7-14, § I(5), 7-13-92)

Sec. 21-66. Physical connections to the storm sewer.

In no case shall a sanitary sewer be physically connected to the storm sewer or shall wastewater from a sanitary sewer be discharged to the storm water system.

(Ord. No. 92-7-14, § I(6), 7-13-92)

Sec. 21-67. Reserved.

Editor's note—Section I of Ord. No. 93-10-22, adopted Oct. 25, 1993, repealed § 21-67 in its entirety. Formerly, § 21-67 pertained to waste hauling and derived from § I(7) of Ord. No. 92-7-14, adopted July 13, 1992. See § 21-351 et seq. of this Code for current provisions regarding waste hauling.

Sec. 21-68. Miscellaneous offenses relating to sewer system.

No person other than a regular employee or officer of the city charged with such duties shall do or aid in doing any of the following acts:

(1) Opening, closing, lifting or removing the cover of any sanitary sewer manhole or clean-out plug of the city sewer system;

(2) Interfering with, destroying, impairing, injuring or defacing any property which is a part of or essential to the proper functioning of the city sewer system;

(3) Covering or concealing from view any sanitary sewer manhole;

(4) Tapping and/or otherwise connecting into an existing sanitary sewer main which is a part of the city sewer system;

(5) Discharging, or causing or permitting to be discharged into a sanitary sewer any inflows or infiltration, as illustrated by, but not limited to, storm water, ground water, roof run-off, subsurface drainage, a downspout, a yard drain, a yard fountain or pond, or lawn spray.

(Ord. No. 92-7-14, § I(8), 7-13-92)

Sec. 21-69. Industrial wastewater surcharge.

(a) A surcharge may be applied in addition to the monthly sewer service charge for the discharge of above normal strength wastewater to cover the additional costs of treating such wastewater. Such a charge is collected by the city.

(b) The surcharge shall be calculated as follows:

$$C = [B(Bu-250) + S(Su-250)] \times F \times V$$

Where:

C = Surcharge to the user in dollars

B = Unit cost factor for treating one unit of BOD (per 1,000 gallons)

Bu = The tested BOD of the discharge

S = Unit cost factor for treating one unit of total suspended solids (per 1,000 gallons)

Su = The tested total suspended solids of the discharge

F = A factor of 8.34 to convert mg/L to pounds/gallon

V = Monthly billing volume (discharge) in thousand gallons

250 = Average domestic BOD and total suspended solids (250 mg/L).

(Ord. No. 92-7-14, § I(9), 7-13-92)

Sec. 21-70. Disposition of funds.

All funds collected under the provision of this article shall be credited and applied to the water and sewer fund initially and shall subsequently on a monthly basis as provided by law be transferred to the interest and sinking fund as a part of the required monthly transfer or transferred into a water and sewer capital improvement fund for the purpose of making permanent improvements to the systems.

(Ord. No. 92-7-14, § I(10), 7-13-92)

Secs. 21-71—21-130. Reserved.

ARTICLE IV. SERVICE CHARGES GENERALLY

DIVISION 1. GENERALLY

Sec. 21-131. Billing and payment.

(a) *Utility bill:* The utility bill is defined as the charge for utility services of water, sewer, refuse collection and storm drainage and any unpaid balance due, service charges, late charges, sales tax on refuse collection and voluntary contribution (where applicable). Utility bills are normally issued on monthly intervals. However, bills may be rendered more or less frequently at the city's option. If a customer does not receive bill(s) the obligation to make payment for services rendered is not released or diminished.

(b) *Payment:* Payment for service is due when the bill is rendered. If payment in full is not received in the customer and utility services office by the due date printed on the bill it is considered past due. Payments received shall be applied to

the customer account as follows: the previous balance, the current charges, and finally, the voluntary contribution. Any payment received before the due date printed on the bill but not honored by the banking institution is subject to all charges, fees and collection procedures as if it was not received. In addition, the returned check charge applicable at the time will also apply.

(c) *Late charges:* Utility bills that remain unpaid on the 25th day after the billing date are subject to a late charge in the amount of ten (10) percent of the unpaid current charges. No late charge is assessed on the sales tax, and no late charge is assessed against voluntary contributions pledged, but not paid. Failure to pay late charges shall cause the assessment of additional late charges and shall constitute sufficient cause for termination of service. Failure to pay the voluntary contribution does not result in a late charge or service termination. An outstanding balance of less than one dollar ($1.00) will not cause the assessment of a late charge.

(d) *Termination of service for non-payment:* Failure to pay the total amount due including all previous outstanding balances (excluding voluntary contributions) by the 50th day after the billing date shall be cause for water service to be terminated. Service will be resumed in a reasonable time after the customer has paid the total due, including late charges and utility service fees as set forth in section 21-154. Fees are applicable from the 50th day after the billing date.

(e) *Additional deposit required.* In the event service is terminated pursuant to subsection (d), an additional deposit is required before service is restored to ensure the city is protected from loss. The additional deposit will be ten dollars ($10.00); however, if the customer's service has been terminated two (2) or more times within the last twelve (12) months the deposit is increased to an amount equal to the customer's average three (3) month bill.

(f) *Pro rata billing.* Customers who request to commence, transfer, or terminate any residential or commercial account for utility service within a billing cycle shall be billed based on a pro rata basis. The calculation method consists of taking the applicable service charge, dividing by a standard 30-day service period and then multiplying by the number of days service was provided for the billing cycle.

(Ord. No. 82-8-22, §§ 3, 4, 8-23-82; Ord. No. 85-9-21, § III, 9-23-85; Ord. No. 87-9-13, § I, 9-14-87; Ord. No. 92-10-37, § I, 10-26-92; Ord. No. 93-9-51, § I, 9-27-93; Ord. No. 2002-9-13, §§ I, II, 9-9-02; Ord. No. 2004-9-28, § I, 9-27-04; Ord. No. 2012-10-13, § II, 10-22-12; Ord. No. 2012-10-14, § I, 10-22-12)

Sec. 21-132. No free service.

No free service shall be rendered by the waterworks system or the sanitary sewer system to any customer. To the extent the city and its various departments use the services afforded by the waterworks and the sanitary sewer system, they shall pay therefor the same rates charged other consumers.

(Ord. No. 59-5-1, § 5, 5-11-59)

Sec. 21-133. Tap, meter set, sewer connection fees generally, payment, disposition of tapping fees, cost of material and miscellaneous service charges, fire hydrant construction meters, detector check valves, water meter vaults and water meter accuracy test.

(a) *Water and sewer tap estimates generally.*

(1) Fees for installation of water and sewer taps, service lines, and laterals shall be based on the estimated costs of making such installation, as determined by the utility operations superintendent. Upon request of such installation, the utility operations superintendent shall issue or cause to be issued an estimate for making the installation, including all labor, materials and equipment necessary to complete the construction. Prior to an estimate being issued, a fee of forty dollars ($40.00), along with an approved set of plans, must be submitted to the city by any person in whose name the permit is to be issued. Upon payment of the estimated amount, the superintendent will schedule the construction. There will be no refunds

or additional charges after installation, provided the actual cost is within five (5) percent of the estimate.

(2) For the purposes of this section, "installation of water and sewer taps, service lines, and laterals" shall be considered all work necessary to provide service lines to the point where a water meter can be set or the property owner can connect to the sewer system.

(b) *Water taps and meters generally.*

(1) Fees for installation of water meters shall apply where the tap, corporation stop, service line, angle stop and meter box or vault are existing. Should any of these components be missing or damaged, the cost of missing or damaged components, plus labor and equipment to install, shall be borne by the customer. Meter boxes or vaults for the above meter shall be placed or constructed by the customer at his own cost and in accordance with city "Standard Construction Detail Specifications," latest revision.

(2) Fees for individual meters shall be based on the current contract cost per meter at the time of installation, plus warehouse charges, labor, equipment and materials necessary for city employees to make each installation. Fees may be adjusted as necessary to ensure that the city recovers all cost expended in the performance of each water meter installation. All fees shall be paid in advance of installation of the meter. Total fee shall be established by the city manager.

(3) All meters shall remain the property of the city, but the property owner shall be responsible for its protection. The utility operations manager or his designee shall determine the availability of size, type and number of meters and services to be installed or used on any water service to any building or division of space in a building, or property subdivision and the location of same.

(4) All meters three (3) inches and above in size shall be installed with the appropriate and necessary required fittings to facilitate field testing and shall be constructed in accordance with city "Standard Construction Detail Specifications," latest revision.

(5) Should it be necessary to increase the size of a meter due to a change in the customer's demand for water, the customer will be credited with the current value of the present meter (less the cost necessary to recondition the meter to new meter standards and accuracy), toward the purchase of a new meter. All work necessary for a new tap or service line shall be charged in accordance with subsections (a) and (b) of this section.

(c) *Sanitary sewer connections generally.*

(1) The fee for connection to sanitary sewer lines where the sewer lateral outlet has been installed to the property line shall be:

4-inch service.	$ 50.00
6-inch service.	75.00
8-inch service.	125.00

All work necessary for a new tap or service line shall be charged in accordance with subsection (a) of this section.

(2) All taps into a city sewer trunk line or tap to connect to any sewer shall be made by employees of the utility operations department of the city; provided however, a sewer tap permit has been issued to said property by the city's code enforcement division. All taps shall be made in accordance with city "Standard Construction Detail Specifications," latest revision.

(d) *Miscellaneous water and sewer service charge:*

(1) The following miscellaneous service charges shall be assessed and collected by the city for such as hereinbelow described:

a. Flow and/or pressure test on city fire hydrant(s) when performed at the

request of any person, minimum charge, seventy-five dollars ($75.00) each hydrant.

b. Location of meter boxes, vaults and/or meters; also service lines on private property, minimum charge, twenty-five dollars ($25.00).

(e) *Fire hydrant meters—Rates effective February 1, 2008:*

(1) Any person requesting the use of a temporary meter with backflow device on a fire hydrant in the city shall execute an agreement with the city in substantially the same form as that set forth in Exhibit "A", a copy of which is on file in the office of the city secretary, and shall deposit with the city one thousand fifty dollars ($1,050.00) for a stationary meter and backflow device and one thousand fifty dollars ($1,050.00) for a mobile meter and backflow device. Such deposit shall be returned upon payment of all charges for water used, upon return of the meter, fittings, and wrench in their original condition.

(2) Stationary meters shall be locked to fire hydrants at all times. An initial installation and set-up fee of fifty dollars ($50.00) will be charged, and a service fee of fifty dollars ($50.00) will be charged each time the meter is moved to a different location at the request of the customer.

(3) All stationary fire hydrant meters shall be read monthly at their location in the field by utility operations. All mobile fire hydrant meters are to be brought to Utility Operations, 4120 W. Plano Parkway, Plano, Texas between the first and tenth day of each month to be read. Failure to bring the meter in to be read by the tenth day of the month shall result in an additional charge of one hundred thousand (100,000) gallons plus the minimum charge for service at the rate then in effect. The water charges for fire hydrant services is set forth in subsection 21-147(4). Such charges shall be nonrefundable.

(4) All customers using such meters shall comply with the written procedures implemented by the utility operations superintendent with regard to making the meters available to be read by representatives of utility operations. It shall be unlawful for any person to fail to make such meter available to be read by representatives of utility operations, as required by written procedures issued by the utility operations superintendent.

(5) Fire hydrants are provided primarily to extinguish fires and are to be used and opened only by the utility operations, the fire department or such person(s) or company as may be given written authority by utility operations as outlined in subsection (e)(1) of this section. To ensure the safety and protection of fire hydrants for fire protection, any person authorized to open fire hydrants shall use only an approved fire hydrant wrench and shall replace the caps on the outlets when the same are not in use; failure to do so shall be sufficient cause to prohibit further use of the hydrants and to refuse to grant subsequent permits for the use of fire hydrants and meters.

(f) *Fire line detector check valves.*

(1) The installation of a detector check valve shall be required on all fire line services to buildings which are designed with standpipes (open sprinkler system).

(2) At such time as a detector check valve is installed within the city, it shall be placed in a concrete vault within a water or utility easement dedicated to the city, allowing ready access by city personnel.

(3) All materials, piping and fittings, including the concrete vault, shall be placed or constructed by the customer at his own cost.

(4) All detector check valves installed within the city shall be constructed and installed in accordance with approved plans and

specifications as set forth in the city "Standard Construction Detail Specifications," latest revision.

(g) *Water meter vaults.*

(1) There is hereby required the installation of a concrete vault on all water meters three (3) inches and larger.

(2) At such time as vault is required, it shall be constructed and installed in accordance with approved plans and specifications as set forth in the city "Standard Construction Detail Specifications," latest revision.

(h) *Water meters generally.*

(1) All water meters shall be furnished by the utility operations department, shall be set by the employees of the city and shall remain at all times the property of the city.

(2) If the meter gets out of order and fails to register, the consumer will be charged at the average daily consumption, as shown by the meter when in order.

(3) All meters shall be maintained, repaired, and replaced when necessary by the utility operations department. When replacements, repairs or adjustments of any meter are necessary by any act, neglect or carelessness, any expense caused to the city thereby shall be charged against and collected from the owner or occupant of the premises, and if not paid, service shall be discontinued.

(4) When any consumer of water is of the opinion that the meter through which the water is supplied is incorrect for any reason, he may make application to the utility operations department to have the meter examined and tested.

(5) The procedure shall be as follows: When the application for test is made, a special deposit of thirty-five dollars ($35.00) shall be made with the application, a test will be arranged for and the complainant shall be notified by the city of the time and place of the test. Whether the complainant appears or not, the test shall be made and witnessed. If the test shows the meter to be more than two (2) percent fast, based on a series of tests over the range of flow recommended by its manufacturer, the meter shall be replaced with an accurate one and the thirty-five-dollar deposit returned, together with a written statement of the test findings. If the test shows the meter to be any less than two (2) percent fast, the thirty-five-dollar deposit shall ipso facto be forfeited to the city, a brief written statement of the test findings will be mailed to the complainant and the incident recorded closed. Provided, however, that field testing of meters one and one-half (1½) inches and two (2) inches, when requested by the user and made by the city, shall cost seventy-five dollars ($75.00). Field testing of meters three (3) inches and larger shall cost a minimum of two hundred fifty dollars ($250.00), or the actual cost, whichever is greater.

(i) *Electronically read meters.*

(1) All water meters issued by the city shall be fitted with an electronic transmitter enabling the meter to be read remotely. Fees for the water meters and electronic transmitters shall be set by the city council and published by resolution. Fees may be adjusted as necessary to ensure that the city recovers all cost expended in the implementation of the electronic meter reading program. All fees shall be paid in advance of installation of the water meter.

(2) All water meters and electronic transmitters shall remain the property of the city and shall be installed by, or at the direction of the city. The property owner shall be responsible for the protection of this equipment. When replacement, repair or adjustment of any meter or electronic device is required due to the negligence or intentional wrongful acts or omissions of the property owner, the cost for replac-

ing, repairing or adjusting the device shall be charged to and collected from the owner or occupant of the premises.

(3) The city reserves the right, without exception, to install any device on any water meter to facilitate the collection of water usage data for any purpose including monitoring and billing for actual usage. The director of the customer utility services department for the city shall determine the type of water meter and electronic transmitter to be installed and the appropriate time to install this equipment.

(4) The city reserves the right, without exception, to obtain access to any water meter in the city, without regard to the presence or absence of an electronic transmitter, to ensure accurate billing and collection for any service provided to residents and other customers within the community.

(Ord. No. 82-8-23, § 1, 8-23-82; Ord. No. 82-8-24, § 1, 8-23-82; Ord. No. 82-11-10, § 1, 11-22-82; Ord. No. 83-2-24, § 1, 2-28-83; Ord. No. 85-9-20, § I, 9-23-85; Ord. No. 96-11-5, § I, 11-11-96; Ord. No. 2001-6-22, § I, 6-25-2001; Ord. No. 2003-4-17, §§ I, II, 4-14-03; Ord. No. 2004-1-22, § I, 1-26-04; Ord. No. 2004-9-28, § II, 9-27-04; Ord. No. 2008-1-9, § I, 1-14-08)

Sec. 21-134. Reserved.

Editor's note—Ord. No. 90-5-36, § I, adopted May 29, 1990, repealed former § 21-134, which pertained to assessment of availability fees to pay for expanded water and sewer systems and derived from Ord. No. 82-10-7, §§ 2—8, adopted Oct. 12, 1982, and Ord. No. 85-9-20, § II, adopted Sept. 23, 1985. See Art. VI of this chapter for similar new provisions.

Sec. 21-135. Sewer charges—Residential.

Rates effective October 1, 2025. Monthly sewer charges for the residential connections to the sanitary sewer collection system shall be based upon the minimum charge and the metered water amounts and shall be as follows:

(1) Monthly sewer charges for residential connections to the sanitary sewer collection system shall be based upon the minimum charge and the winter quarter average calculations.

a. Winter quarter average is a method for determining residential sewer use based on water consumption during a minimum of three (3) billed winter months (December, January, and February).

b. Residential customers, whose water account has not been established for at least three (3) billed months of the current winter period, will be charged based upon the residential winter quarter average citywide until an accurate winter average is available.

(2) All residential. (Includes but is not limited to single family homes, individually metered multi-family units, patio homes, town homes and all other separately metered residential dwellings).

a. Minimum charge.

1. All meter sizes: . . $21.50.

b. Consumption charges.

1. First 1,000 gallons included in meter charge (minimum bill).

2. All over 1,000 gallons (per 1,000 gallons): $8.50

c. There will be no sewer charges for water consumed through separately metered landscape irrigation systems.

(Ord. No. 2001-12-3, § VII, 12-3-01; Ord. No. 2003-9-42, § I, II, 9-22-03; Ord. No. 2004-9-27, §§ I, II, 9-27-04; Ord. No. 2005-3-22, § I, 3-28-05; Ord. No. 2006-4-15, § I, 4-24-06; Ord. No. 2006-9-27, § I, 9-25-06; Ord. No. 2007-4-21, § I, 4-23-07; Ord. No. 2008-1-9, § II, 1-14-08; Ord. No. 2009-2-15, § I, 2-17-09; Ord. No. 2014-10-7, § I, 10-13-14; Ord. No. 2014-10-19, § II, 10-27-14; Ord. No. 2015-10-6, § II, 10-12-15; Ord. No. 2016-10-22, § I, 10-25-16; Ord. No. 2017-10-5, § I, 10-23-17; Ord. No. 2018-10-4, § I, 10-8-18; Ord. No. 2020-10-4, § I, 10-12-20; Ord. No. 2021-10-2, § I, 10-11-21; Ord. No. 2022-10-4, § I,

10-10-22; Ord. No. 2023-9-19, § I, 9-26-23; Ord. No. 2024-9-12, § I, 9-23-24; Ord. No. 2025-9-15, § I, 9-16-25)

Sec. 21-136. Sewer charges—Non-residential.

Rates effective October 1, 2025. Monthly sewer charges for non-residential connections to the sewer collection system shall be based upon the size of the water meter and the metered water amounts and shall be as follows:

(1) *All non-residential.* (Includes but is not limited to commercial, schools, churches, homeowners associations, mobile home park, industrial, apartment complexes, cooling towers and any other non-residential use).

a. Minimum charge:

1.	Up to ¾-inch	$21.50
2.	1-inch	41.80
3.	1½-inch	75.80
4.	2-inch	116.50
5.	3-inch	225.00
6.	4-inch	347.00
7.	6-inch	686.20
8.	8-inch	1,021.10
9.	10-inch	1,568.00

b. Consumption charges

1. First 1,000 gallons included in meter charge (minimum bill).
2. All over 1,000 gallons (per 1,000 gallons) $8.50

c. There will be no sewer charges for water consumed through separately metered landscape irrigation systems.

(Ord. No. 2001-12-3, § VIII, 12-3-01; Ord. No. 2003-9-42, §§ I, III, 9-22-03; Ord. No. 2004-9-27, §§ I, III, 9-27-04; Ord. No. 2005-3-22, § II, 3-28-05; Ord. No. 2006-9-27, § II, 9-25-06; Ord. No. 2007-4-21, § II, 4-23-07; Ord. No. 2008-1-9, § III, 1-14-08; Ord. No. 2009-2-15, § II, 2-17-09; Ord. No. 2014-10-7, § II, 10-13-14; Ord. No. 2014-10-19, § III, 10-27-14; Ord. No. 2015-10-6, § III, 10-12-15; Ord. No. 2016-10-22, § II, 10-25-16; Ord. No. 2017-10-5, § II, 10-23-17; Ord. No. 2018-10-4, § II, 10-8-18; Ord. No. 2020-10-4, § II, 10-12-20; Ord. No. 2021-10-2, § II, 10-11-21; Ord. No. 2022-10-4, § II, 10-10-22; Ord. No. 2023-9-19, § II, 9-26-23; Ord. No. 2024-9-12, § II, 9-23-24; Ord. No. 2025-9-15, § II, 9-16-25)

Sec. 21-137. Standard and nonstandard cooling tower meters.

(a) A standard evaporative cooling tower shall be defined as an installation which receives supply water from a meter installed in accordance with the city specifications applicable to the installation of water meters. A nonstandard evaporative cooling tower shall be defined as an installation which does not receive supply water from a meter installed in accordance with normal and customary methods, but which does receive metered supply water through a source which has been previously metered according to normal and customary methods.

(b) Sewer charges for standard and nonstandard evaporative cooling towers shall be calculated on the following basis:

(1) *Installation requirements.*

a. A meter will be installed in the water supply line (make-up meter) and a meter will be installed on the discharge portion of the supply line (blowdown meter) for the evaporative cooling tower in a location approved, in advance, by the city. These meters must be purchased from the city. The customer will be responsible for the installation of the make-up meter, blowdown meter and all piping. The piping must be installed in accordance with the standard city specifications applicable to the installation of water meters.

b. The customer shall pay the minimum plumbing permit fee based upon the current fee structure in place at the time of installation. No impact fee

shall be levied for an evaporative cooling tower meter installed in accordance with this section.

c. The city reserves the right to inspect, remove and/or replace the meter for cause, with proper notice.

d. No additional deposit will be required for either the evaporative cooling tower make-up meter or blowdown meter.

(2) *Reading of meters, remote.* Cooling tower customers shall, at their sole expense, purchase from the city a remote reading device capable of transmitting a reading of consumption for each meter. The city shall read the make-up and blowdown meters electronically once per month.

(3) *Billing.*

a. A standard cooling tower will receive a minimum charge based on meter size for both the make-up meter and blowdown meter. A nonstandard cooling tower will receive no minimum charges for either the make-up or blowdown meter.

b. Both the make-up and blowdown meters will be read remotely each month and the consumption from each meter will be billed in accordance with sections 21-136 and 21-147. Water charges for cooling tower consumption will be billed based on the meter readings taken from the make-up meter. Sewer charges for cooling tower consumption will be billed based on the meter readings taken from the blowdown meter. In order for customers using water for cooling purposes to remain eligible for sewer charges based on their blowdown meter, they must operate their cooling tower system within an acceptable range of cycles of concentration indicated by the ratio of make-up water to blowdown water from submeter readings. The acceptable range for system cycles of concentration will be set by the customer and utility services division based on known industry standards. Should the city water quality change, which change affects the acceptable range, the city will notify the customer of the change.

c. A customer may file a request for a variance with the customer and utility services division requesting higher cycles of concentration. A variance request form will be supplied by the city to be completed by the customer. Upon submission of the variance request form, the customer and utility services division will review in order to determine the validity of the variance request based on known industry standards in water treatment technology. The city review of the variance request may require a site visit to the facility.

d. The system will be evaluated each billing period for compliance. The customer will be notified if the system is not within cycle of concentration range of compliance. The customer shall be billed sewer based on the meter readings taken from the make-up meter for any billing period the system is out of compliance.

e. The customer shall be billed sewer based on the meter readings taken from the make-up meter for a period of one (1) year if any of the following occurs:

1. A customer knowingly represents that the facility for which a meter is installed does not discharge waste into the city's sanitary sewer when, in fact, it does;

2. A facility is subsequently connected to the city's sanitary sewer system without notifying the customer and utility services division;

3. Evidence of tampering or otherwise inhibiting the proper functioning of any meter is discovered; or
4. The customer fails to comply with the terms and conditions under which the evaporative cooling tower make-up meter or blowdown meter is installed in accordance with this section.

(4) *Annual testing of meters.* Make-up meters will follow the city's normal change-out schedule for testing. Blowdown meters may be pulled and tested or replaced, at no charge to the customer, no less frequently than once every twelve (12) months by city staff to determine the following:

a. Accuracy of the meters; and
b. That no water is being discharged into the sanitary sewers of the city except that water which is measured by the blowdown meter.

(Ord. No. 90-9-4, § I, 9-10-90; Ord. No. 2004-9-28, § III, 9-27-04; Ord. No. 2016-6-28, § I, 6-28-16)

Secs. 21-138—21-145. Reserved.

DIVISION 2. WATER

Sec. 21-146. Connection of new service.

(a) A utility service fee is required of any person receiving any water services upon application for initial commencement of service, or upon application for any transfer of service from one (1) name or address to another. Such fee is a nonrefundable fee to cover the cost of establishing service at the request of such customer. If more than one (1) account is involved in an initial establishment or subsequent transfer, the fee shall be paid for each account involved.

(b) The amount of the utility service fee for service connection is set forth in section 21-154, utility service fees. Such fee(s) shall be paid by each applicant for service from or transfer of service by the water department at the time of submission of such application, and prior to connection or transfer of service by the water department; or shall be added to the customer's account. Payment shall be made to the water department.

(Ord. No. 79-9-20, §§ 1, 2, 9-10-79; Ord. No. 2002-9-13, §§ I, II, 9-9-02)

Sec. 21-147. Water charges.

Rates effective October 1, 2025.

(1) *All residential.* (Includes but is not limited to single family homes, and separately metered multi-family units, patio homes, town homes, condominiums and all other residential dwellings.)

a. Minimum charge.

1.	Up to ¾-inch	$30.90
2.	1-inch	30.90
3.	1½-inch	147.10
4.	2-inch	232.20

b. Consumption charges.

1.	First 1,000 gallons included in meter charge (minimum bill).	
2.	1,001—5,000 gallons (per 1,000 gallons)	$3.45
3.	5,001—20,000 gallons (per 1,000 gallons)	5.05
4.	20,001—40,000 gallons (per 1,000 gallons)	10.10
5.	All over 40,000 gallons (per 1,000 gallons)	12.10

(2) *All non-residential.* (Includes, but is not limited to commercial, schools, churches, homeowners associations, mobile home

parks, industrial, apartment complexes, cooling towers and any other non-residential use.)

a. Minimum charge.

1.	Up to ¾-inch	$33.30
2.	1 inch	75.10
3.	1½-inch	147.10
4.	2-inch	232.20
5.	3-inch	458.90
6.	4-inch	714.20
7.	6-inch	1,423.20
8.	8-inch	2,274.00
9.	10-inch	3,266.70

b. Consumption charges.

1.	First 1,000 gallons included in meter charge (minimum bill).	
2.	All over 1,001 gallons (per 1,000 gallons)	$5.05

(3) Separately metered irrigation use.

a. Minimum charge.

1.	Up to ¾ inch	$33.30
2a.	1-inch (Residential).....	33.30
2b.	1-inch (Commercial)	75.10
3.	1½-inch	147.10
4.	2-inch	232.20
5.	3-inch	458.90
6.	4-inch	714.20
7.	6-inch	1,423.20
8.	8-inch	2,274.00
9.	10-inch	3,266.70

b. Consumption charges.

1.	First 1,000 gallons included in meter charge (minimum bill).	
2.	1,001—20,000 gallons (per 1,000 gallons)	$5.05
3.	All over 20,000 gallons (per 1,000 gallons)	$10.10

(4) Fire Hydrant use:

a. Minimum charge (2-inch meter) $232.20

b. Consumption charges

1.	First 1,000 gallons included in meter charge (minimum bill)	
2.	All over 1,000 gallons (per 1,000 gallons)	$5.05
3.	Delinquent charge will be billed in accordance with section 21-133(e)(3).	

(Ord. No. 2001-12-3, § IX, 12-3-01; Ord. No. 2003-9-42, §§ I, IV, 9-22-03; Ord. No. 2004-9-27, §§ I, IV, 9-27-04; Ord. No. 2005-3-22, § III, 3-28-05; Ord. No. 2006-9-27, § III, 9-25-06; Ord. No. 2007-4-21, § I, 4-23-07; Ord. No. 2008-1-9, § IV, 1-14-08; Ord. No. 2009-2-15, § III, 2-17-09; Ord. No. 2009-9-9, § I, 9-14-09; Ord. No. 2010-9-5, § I, 9-13-10; Ord. No. 2010-10-18, §§ I, II, 10-25-10; Ord. No. 2012-10-15, § I, 10-22-12; Ord. No. 2013-1-4, § I, 1-14-13; Ord. No. 2013-10-32, § I, 10-28-13; Ord. No. 2014-10-7, § III, 10-13-14; Ord. No. 2014-10-19, § IV, 10-27-14; Ord. No. 2015-10-6, § IV, 10-12-15; Ord. No. 2017-10-5, § III, 10-23-17; Ord. No. 2018-10-4, § III, 10-8-18; Ord. No. 2019-10-3, § I, 10-14-19; Ord. No. 2022-10-4, § III, 10-10-22; Ord. No. 2023-9-19, § III, 9-26-23; Ord. No. 2024-9-12, § III, 9-23-24; Ord. No. 2025-9-15, § III, 9-16-25)

Sec. 21-148. Reserved.

Editor's note—Section II of Ordinance No. 96-11-5, adopted Nov. 11, 1996, repealed § 21-148 in its entirety. Formerly, said section pertained to metering and derived from § 3 of Ord. No. 82-8-21, adopted Aug. 23, 1982.

Sec. 21-149. Water to be charged for, whether used or not.

All water that passes through the meter shall be charged for, whether used or not.
(Ord. No. 62-3-3, § 12-12-6, 3-12-62)

Sec. 21-150. Meters to be set by city employees; water charges if meter out of order.

All water meters, whether private or belonging to the waterworks system, shall be set by the employees of the city. If the meter gets out of order and fails to register, the consumer will be charged at the average daily consumption, as shown by the meter when in order.
(Ord. No. 62-3-3, § 12-12-6, 3-12-62)

Sec. 21-151. Charges continue until notice given to discontinue service.

Any person wishing to discontinue the use of water from the waterworks system must give notice thereof to the city, and the charges for such water will be entered until such notice has been given.
(Ord. No. 62-3-3, § 12-12-4, 3-12-62)

Sec. 21-152. Deposits generally.

(a) *Established.* A cash deposit is required of each customer account receiving water, sewer, storm drainage, or solid waste service. The cash deposit will be retained until termination of service by the city, or satisfactory completion of deposit rebate provisions of this code. Customer deposit shall not be returned unless all outstanding charges and fees have been paid.

(b) *Amount of deposit.*

(1) *Residential customer.* The deposit required for a residential customer, including single-family dwellings and multi-family dwellings when metered separately, shall be one hundred dollars ($100.00) per unit pursuant to section 21-131 above.

The above deposit requirement is waived for new residential customers who sign up for bank draft services for a minimum of twelve (12) consecutive months with the city. In the event a customer cancels bank draft services at any time during the 12-month period, or if a bank draft is returned because of insufficient funds or related reasons, the deposit is reinstated on the customer's account.

(2) *Commercial customer.* The deposit required of commercial and industrial customers, which includes multifamily dwellings with a single meter, shall be equal to one (1) month's average bill or one hundred dollars ($100.00), whichever is greater, for water and sewer service. Where there is no history of consumption to determine a one (1) month's average bill, the customer and utility services director or designee shall consult the department's policies and procedures manual to determine the amount of deposit required for a commercial or industrial account.

If more than one (1) account is involved, a separate deposit shall be paid for each

account. Additional deposits to ensure that the city is protected from loss may be required by the customer and utility services director or designee from those commercial and industrial accounts that are habitually delinquent in the payment of their utility bill. A deposit equal to a three-month average bill may be required in these cases. The city may review the deposits of commercial and industrial accounts periodically to ensure that a deposit has been collected sufficient to meet the criteria set forth in this section.

(c) *Exception to the requirement to maintain a residential water deposit.* Any customer who has maintained a deposit with the city for utility services at their primary residence or for a special purpose meter at their primary residence for at least twelve (12) months and is in good standing will have the residential deposit automatically credited to their account unless the customer requests in writing to the customer and utility services department that a check be issued for the refund amount. The customer may be required to file an application for such refund. For the purpose of this paragraph, a customer is in good standing when they have met the criteria for good standing as defined in the policies and procedures manual of the customer and utility services department. All deposits existing prior to implementation of the new customer information system shall be refunded in accordance with the provisions of Ordinance No. 92-11-21.

(d) *Exception to the residential water deposit for persons sixty-five (65) years of age or older.* No person sixty-five (65) years of age or older will be required to make a deposit for their primary residence or for a special purpose meter at their primary residence if the customer submits to the customer and utility services department satisfactory proof of age. Any person sixty-five (65) years of age or older who now has a deposit with the city will have their deposit refunded if the customer has maintained their account in good standing and they file an application for such refund, with satisfactory proof of his age, to the customer and utility services department. For the purpose of this paragraph, a customer is in good standing when they have met the criteria for good standing as set out in the policies and procedures manual of the customer and utility services department.

(e) *Exception for a former residential customer with a closed account in good standing for which no deposit was required.* A former customer who closed their account in good standing may establish a new account at a primary residence with no deposit requirement if the account remains in good standing. For the purpose of this paragraph, a customer is in good standing when they have met the criteria for good standing as set out in the policies and procedures manual of the customer and utility services department.

(f) *How a customer may lose an exemption from the residential water deposit.* Failure to maintain an account in good standing shall constitute grounds to require a customer to establish or reinstate the deposit in the proper amount as determined by the customer and utility services director. Water and sewer service may be discontinued until the deposit requirements are met. The deposit requirements shall continue until the customer has reestablished good standing status.

(g) *Exception for blanket deposits for landlords of residential property.* Landlords shall be permitted the option of maintaining a blanket deposit for rental property they own. The deposit charged shall be the normal residential deposit on the first residence for which water service is required. Subsequent residences shall require a deposit of one-fifth (1/5) the normal deposit. Landlords desiring to exercise this option shall maintain the total deposit with the city, which will enable the landlord to maintain water service at each property, between tenants, without making an additional deposit.

Landlords who want to exercise this option must provide to the customer and utility services department satisfactory proof of ownership of the property (properties) to be included under the blanket deposit. The blanket deposit will cover only these properties. Landlords must notify the city in writing of any changes to this list of properties.

The blanket deposit is refundable in partial increments when a landlord notifies the customer

and utility services department that water service is to be discontinued at a property covered under the blanket deposit. The blanket deposit does not automatically apply to the final bill when water service is discontinued. For the purpose of this paragraph, a landlord desiring to maintain a blanket deposit must meet the following criteria:

(1) Has not incurred a late charge on a city utility bill more than three (3) times in the preceding 12-month period;

(2) Has not attempted payment of a city utility bill more than one (1) time in the preceding 12-month period, with a check that was not honored by the bank;

(3) Has not appeared on the list of customers whose service is scheduled for termination for nonpayment within a 12-month period; and

(4) Does not owe any delinquent debt to the city as provided in section 2-2 of the Code of Ordinances of the City of Plano, Texas.

(h) *Exception to the requirement to maintain a commercial water deposit.* Any commercial customer who has maintained a deposit with the city for utility service on a commercial account for at least thirty-six (36) months and is in good standing will have the commercial deposit automatically credited to their account. For the purpose of this paragraph, a customer is in good standing when they have met the criteria for good standing as defined in the policies and procedures manual of the customer and utility services department, as it may be amended from time to time. All deposits existing prior to implementation of the new utility billing system shall be refunded in accordance with the provisions of Ordinance No. 92-11-21. A customer shall lose their exemption from the deposit requirements if they fail to maintain their account in good standing as set out above, and upon demand they shall immediately deposit the appropriate sum with the customer and utility services department. Water and sewer service will be discontinued until the deposit requirements are met. The deposit requirements shall continue until the customer has re-established their good standing.

(Ord. No. 82-8-22, § 2, 8-23-82; Ord. No. 85-9-21, § II, 9-23-85; Ord. No. 87-9-13, § II, 9-14-87; Ord. No. 90-11-31, § I, 11-26-90; Ord. No. 91-1-22, § 1, 1-14-91; Ord. No. 92-11-21, § I, 11-9-92; Ord. No. 93-1-18, § I, 1-25-93; Ord. No. 96-11-5, § III, 11-11-96; Ord. No. 98-3-14, §§ I, II, 3-16-98; Ord. No. 2004-9-28, § IV, 9-27-04; Ord. No. 2010-6-20, § I, 6-28-10; Ord. No. 2012-10-16, § I, 10-22-12)

Sec. 21-153. Temporary water service.

(a) *Established.* There is hereby established a provision for temporary water service.

(b) *Length of service.* Temporary water service will be provided for a maximum of twenty (20) days. Requests for service for longer than twenty (20) days will be established as full service accounts with water, sewer and refuse collection fees being charged at regular rates. Temporary water service shall be provided only to premises which are vacant and unoccupied.

(c) *Termination.* At the end of the twentieth day, the temporary water service will be terminated without further notice. If, during a period of temporary water service, a residence or structure becomes occupied, such temporary water service shall immediately cease, and full service implemented.

(d) *Fees.* An initial one-time, nonrefundable charge is required to be paid in advance for each period of temporary service. This charge will consist of two (2) utility service fees (one (1) service call to turn on the water and one (1) to turn off the water) plus at least the minimum water consumption charge, and a sewer charge for up to one thousand (1,000) gallons of water. Water consumption which exceeds one thousand (1,000) gallons will be billed to the customer at then-current rates, for water and sewer, immediately after the service is terminated. If, at the end of twenty (20) days following termination of service, the bill remains unpaid, no further service will be extended the customer until the bill is paid. No refunds are available for temporary water service terminated before twenty (20) days due to occupancy of the premises, or if terminated for any other reason. The extra charge for same-day service or service after normal work hours, as described in section 21-154, applies to requests for temporary water service.

(e) *Penalty for violation.* Any person, firm, company, partnership, corporation or association violating any provision of this section shall be subject to the same penalty as provided for the comprehensive zoning ordinance of the city, as amended, and upon conviction, shall be punished as provided in section 1-4, and each and every day such violation shall continue shall be deemed to constitute a separate offense.
(Ord. No. 79-5-31, §§ 1—6, 5-29-79; Ord. No. 82-8-22, §§ 6, 7, 8-23-82; Ord. No. 85-9-21, § IV, 9-23-85; Ord. No. 87-9-13, § III, 9-14-87)

Sec. 21-154. Utility services fee.

(a) There is hereby established a utility service fee of twenty dollars ($20.00) which shall be assessed for the following services:

(1) Initial commencement of service;

(2) Any request for transfer of service from one (1) name or address to another;

(3) Costs associated with collection of delinquent accounts;

(4) Reconnection of water service resulting from non-payment of bill;

(5) Lock-up or removal of meters for unauthorized use of water;

(6) Any other non-emergency service call made at the customer's request;

(7) Failure to make payment by the stated deadline after receiving an extension to pay.

(b) Any customer requested modification to the initial request for service on the day of that service will result in an administrative fee of twenty dollars ($20.00) being applied in addition to the utility service fees as described in subsection (c).

(c) Utility service fees are nonrefundable fees to cover the cost of providing these services. The fees are "per account" for residential services and "per meter" for commercial services. The utility service fee shall be:

Service scheduled during normal city working hours	$20.00
Service scheduled outside normal city working hours*—Weekdays from 5:00 p.m. to 9:00 p.m. and Saturdays and holidays from 8:00 a.m. to 5:00 p.m.	$50.00
Service will not be scheduled weekdays from 9:00 p.m. to 8:00 a.m. or Saturdays and holidays after 5:00 p.m.; and will not be scheduled at all on Sundays.	
Emergency disconnect of water services	No charge

* Monday—Friday 8:00 a.m. to 5:00 p.m., excluding city holidays.

(d) The utility services fee shall be paid by each applicant for service from the city water utilities at the time of submission of each request, shall be paid to the service representative at the time service is performed, or shall be added to the customer's account. Payment shall be made to "City of Plano Utilities."

(e) Whenever a customer fails to keep an appointment for a utility service call and requests the service representative to make a return call to the same address(es), the customer shall be charged the applicable fee for the missed service call as well as the fee for the service call during which work was actually performed.

(f) A twenty-five dollar ($25.00) fee will be assessed for any returned checks and bank drafts.
(Ord. No. 82-8-22, § 5, 8-23-82; Ord. No. 85-9-21, § V, 9-23-85; Ord. No. 87-9-13, § IV, 9-14-87; Ord. No. 2002-9-13, §§ I, IV, 9-9-02; Ord. No. 2004-9-28, § V, 9-27-04; Ord. No. 2004-10-25, § I, 10-26-04; Ord. No. 2010-6-20, § II, 6-28-10; Ord. No. 2012-10-14, §§ II, III, 10-22-12; Ord. No. 2019-1-3, § I, 1-14-19)

Sec. 21-155. Construction water accounts.

(a) *Service established.* At the time water service is initiated to a structure under construction, the account is billed for water use only.

(b) *Sewer charges added.* One hundred twenty (120) days after service is initiated at a structure under construction, or at the time of final inspection, whichever comes first, normal sewer charges are added.

(c) *Refuse collection charges.* Normal refuse collection charges will not be added to the account until such service is provided at the request of the customer.
(Ord. No. 87-9-13, § V, 9-14-87; Ord. No. 98-11-35, § I, 11-23-98)

Sec. 21-156. City released from liability if customer cannot be present when water service is initiated.

(a) *Release of liability.* Normally, the customer should be present when the water service is turned on in order to avoid inadvertent water damage due to faucets being open, broken pipes, etc. Appointments will be made for this purpose. If a customer or authorized agent cannot be present, the customer may sign a form provided in the utility billing office which releases the city from liability for any damages at the customer's service address as a result of turning on the water.

The release of liability must be signed by the customer in whose name an account is being established. By signing the release the customer assumes any and all responsibility for damages that may result when the water is turned on. Before the city will accept the release of liability, the customer must present photo identification along with a properly signed and notarized release form. Faxed copies of this signed and notarized release form are acceptable.

Under no circumstances will water be turned on unless the customer is present at the service address or has provided the city with the release of liability.

(b) *Exception.* If at the time water is turned on a leak is suspected, the water will be turned back off. The customer or authorized agent must be present when the water is turned on again and a utility service fee as set forth in section 21-154 utility service fees will be required for the additional service call.
(Ord. No. 87-9-13, § VI, 9-14-87; Ord. No. 2004-9-28, § V, 9-27-04)

Secs. 21-157—21-165. Reserved.

ARTICLE V. PRO RATA FEES AND EXTENSION OF FACILITIES*

DIVISION 1. GENERALLY

Sec. 21-166. Definitions.

City means the City of Plano, Texas.

Developer means the person, business, corporation or association responsible for the development of the subdivision or lot and includes the property owner or subdivider.

Development means any manmade change to improved or unimproved real estate including, but not limited to, construction of buildings or other structures which results in demand for water or wastewater facilities and which requires connection to the city's water or wastewater system.

Lot means a tract, plot or portion of a subdivision, addition or other parcel of land intended as a unit for the purpose, whether immediate or future, of transfer of ownership or possession or for development.

Oversize main means a water or wastewater main required to interconnect property being developed with the existing water or wastewater system which exceeds the size of a standard water or wastewater main.

Pro rata means a charge made against an existing lot abutting a water or wastewater main that is the average per foot cost of the line

*__Editor's note—__Ord. No. 90-8-9, § I, adopted Aug. 13, 1990, repealed former Art. V of this chapter, §§ 21-166—21-177, 21-191—21-194, which pertained to extension of mains and derived from Ord. No. 61-2-3, §§ 1—15, adopted Feb. 3, 1961. Section I of Ord. No. 90-8-9 enacted similar new provisions as Art. V, Divs. 1—3, §§ 21-166—21-169, 21-178—21-182, 21-183—21-188.

Cross references—Administration, Ch. 2; impact fee advisory committee, § 2-216 et seq.; buildings and building regulations, Ch. 6; plumbing and mechanical equipment, § 6-221 et seq.; plumbing code, § 6-236 et seq.; planning and zoning commission, § 16-41 et seq.; platting and subdividing of land, § 16-131 et seq.; construction of water facilities, etc., in subdivisions, § 16-160.3 et seq.; streets and sidewalks, Ch. 19; irrigation systems installed within public right-of-way, § 19-2; storm drainage, § 19-41 et seq.

State law reference—Water and sewer impact fees V.T.C.A. Local Gov't. Code Ch. 395.

multiplied by the front footage of the land and that is imposed to reimburse the original developer his cost of installing or paying for the main.

Property owner means the record title holder of the premises served with water or wastewater from a connection to the city's water or wastewater system.

Subdivider has the meaning given that term in the city's subdivision regulations.

Subdivision has the meaning given that term in the city's subdivision regulations.
(Ord. No. 90-8-9, § I, 8-13-90)

Sec. 21-167. Article not exclusive as to enforcing payment of costs.

Nothing in this article shall be deemed in any way to be an exclusive method of enforcing the payment of the pro rata cost against the consumers and property owners, and this article shall not be deemed in any manner to be a waiver of the city's right to validly assess the property owners and/or consumers concerned for cost of the installation of standard size water and wastewater mains and to fix and enforce liens against such property, all of which may be done as provided by ordinance in the manner prescribed by law.
(Ord. No. 90-8-9, § I, 8-13-90)

Sec. 21-168. Application to fees predating article.

Pro rata fees imposed on property abutting a water or wastewater main installed by a developer prior to August 13, 1990, pursuant to former section 21-171 of the City Code, which fees are for the sole purpose of reimbursing such developer for the costs of installing a standard size main, shall be collected based upon the actual costs of the mains and appurtenances abutting the property, as previously determined by the city engineer. Following August 13, 1990, the city shall neither impose nor collect fees for city-installed facilities pursuant to former section 21-171 of the City Code.
(Ord. No. 90-8-9, § I, 8-13-90)

Sec. 21-169. Authority.

The water department may extend water and wastewater mains in the streets, alleys or easements within the city limits in order to permit connections by persons desiring and seeking water service and wastewater service.
(Ord. No. 90-8-9, § I, 8-13-90)

Secs. 21-170—21-177. Reserved.

DIVISION 2. WATER AND WASTEWATER MAIN EXTENSIONS

Sec. 21-178. Basic policy.

(a) *Connection to water and wastewater systems.* All subdivisions and each lot to be developed within the city and its extraterritorial jurisdiction shall be served by an approved water supply and distribution system and by an approved sewage collection and disposal system. No development shall be approved unless adequate assurances are provided that such development will be connected with the city's water supply and distribution system and with the city's wastewater system.

[The next page is 1477]

system. No building permits shall be issued until satisfactory evidence of such connection has been provided.

(b) *Responsibility for installation and extensions.* The developer shall install all water and wastewater facilities needed to serve the development and shall extend all water and wastewater mains and appurtenances necessary to connect the development with the city's water supply and distribution system and with the city's wastewater system. All initial costs of installation shall be borne by the developer, subject to city participation in oversize costs pursuant to section 21-180 and subject to reimbursement from proceeds of pro rata fees pursuant to section 21-187. Requests for city extension of water and wastewater mains shall be as provided for in section 21-180.

(c) *Condition of main extensions.* Authority to extend water and wastewater mains to serve newly subdivided or platted land shall be granted by the city only upon a determination by the city engineer that all facilities necessary to adequately serve the development are in place or will be in place prior to the issuance of building permits for structures developed on such land.

(d) *Location of facilities.* The location of all water and wastewater mains necessary to serve newly subdivided or platted land shall be in accordance with the city's master plan(s) for water and wastewater facilities and in accordance with the city's subdivision regulations.

(e) *Construction standards.* All water and wastewater facilities required by these regulations shall be constructed in accordance with the requirements and specifications contained in the Water and Sewer Design Manual, Standard Construction Details, Standard Specifications for Public Works Construction and the City of Plano Special Provisions, that are incorporated herein by reference and made a part hereof.

(f) *Lift stations.* Should a lift station, either temporary or permanent, be necessary to provide wastewater service to a subdivision, the developer shall construct the station and all appurtenances thereto at his own expense, subject to reimbursement of pro rata fees pursuant to Division 3. If and when the lift station is no longer needed, the installation will remain the property of the city, unless other provisions are made in an improvements agreement. The lift station shall be designed and constructed for the entire drainage area as approved by the city engineer.

(g) *Pro rata fees for adjacent mains.* When an existing water or wastewater main lies in a street, alley or easement in or adjacent to an area or tract of land to be subdivided, the developer shall pay all applicable pro rata fees pursuant to Division 3 for the water main or wastewater main prior to release of the engineering plans for the subdivision. When the proposed development is to be served by a lift station required under subsection (f), the developer shall pay all applicable pro rata fees for the station pursuant to Division 3 prior to release of the engineering plans.
(Ord. No. 90-8-9, § I, 8-13-90)

Sec. 21-179. Extension of water and wastewater mains for development.

Developers shall extend water and wastewater mains to and through the property that is to be subdivided or developed in accordance with the following procedures and minimum standards:

(1) *Size of mains.* Water and wastewater mains shall be sized and designed in accordance with the city's water distribution plans and sanitary sewer master plans.

(2) *Extensions within property to be developed.* All water and wastewater mains shall be extended through and/or across the frontage of the property to be developed in streets, alleys or in easements to the tract or addition in order to provide service to adjacent property where applicable.

(3) *Acquisition of easements.* The developer must obtain all offsite easements which are necessary for extending water and wastewater mains to the property being developed. A metes and bounds description of the easements and a drawing of the easement must be submitted to the engineering department in order for the proper legal document to be prepared. The document will be sent to the developer for acquisition of

the required signatures. The executed document and filing fees will be returned to the engineering department for filing with the county clerk.

(4) *Agreement required.* Prior to extension of any water main or wastewater main for which there is a city oversize reimbursement, or any construction of such facility or appurtenances thereto, the developer shall execute an improvement agreement with the city pursuant to section 16-157 et seq. of the subdivision regulations that clearly defines the scope and details of the proposed extension and which contains the developer's agreement to abide by all regulations of the city and to deliver to the city clear and unencumbered title to all proposed improvements prior to the time of acceptance by the city. The agreement shall provide for security in a form approved by the city attorney.

(Ord. No. 90-8-9, § I, 8-13-90)

Sec. 21-180. Participation and reimbursement by city in the cost of oversize water and wastewater mains.

(a) *City participation policy.* The city may participate in the reasonable construction costs of oversizing water or wastewater mains and appurtenances thereto that exceed the size of a standard water or wastewater main (twelve (12) inches in diameter). The developer initially shall be responsible for the entire cost of the oversize main. City oversize participation shall be in accordance with the subdivision regulations.

(b) *No funds available.* In no event may the city be required to participate in the costs of oversize mains pursuant to this section if there are no funds available for such purposes.

(c) *Participation and reimbursement requests.* A request for city participation authorized by subsections (a) and (b) hereof shall be initiated through the submission of an application for participation by the developer in accordance with section 16-160.12 of the subdivision regulations. The application shall be accompanied by as-built drawings showing the reimbursable items, a copy of the contractor's bid for construction, final payments with quantities, oversize calculations for all reimbursable items and a project location map.

(d) *City reimbursement.* If the request for city participation is approved by the city, following dedication and acceptance of a facility or appurtenances in which it has agreed to participate, the city shall refund the costs of oversizing such facility in accordance with the following procedures and standards:

(1) *Oversizing standards.* The following standards apply to the determination of the costs of oversizing water and/or wastewater mains:

a. The size of a standard water main shall be twelve (12) inches.
b. The size of a standard wastewater main shall be twelve (12) inches.
c. Where the size of the water or wastewater main needed exceeds that of a standard facility, the size of the main to be installed shall be determined by the city engineer, whose decision shall be final.
d. The city shall pay only the difference in cost between the standard sized main with appurtenances and the oversize main with appurtenances as required by the city engineer.

(2) *Oversize cost determination.* The extent of the city's participation in the costs of oversize mains shall be determined by comparing costs computed by the following two (2) methods:

a. *Method 1.* The developer shall take bids on installation of a system using the standard size main and the larger size that will actually be installed. Copies of the bids, tabulations and figures shall be submitted to the city engineer. Calculations shall delineate the total cost for installation of the oversize mains with appurtenances, along with the cost for installing standard size mains with appurtenances, with the dif-

ferences noted as participation by the city.

b. *Method 2.* The city engineer shall establish a table of water and wastewater facility costs ("table"), which shall be updated on a regular basis by the city engineer, and in no case shall more than twelve (12) months lapse between updates. The table shall establish base unit costs used to determine the maximum difference in cost between the standard size main and the cost of oversize mains likely to be installed, using average costs of all water and wastewater mains installed in the city during the previous twelve (12) months. The then-current table shall be incorporated into this section as if fully set forth herein and shall be used to determine the city's participation.

c. *City engineer's option.* The city engineer shall have the option to use the method in subsection b. whenever he considers the results of the method in subsection a. to be unreasonable or whenever the developer fails to submit the proper information as required.

d. *Engineering costs.* The city shall pay a maximum of six (6) percent of the city's cost for engineering fees, which includes surveying, construction staking and supervision.

e. *Street rights-of-way.* A development shall be responsible for the full cost of utilities which cross street rights-of-way up to a maximum width of one hundred sixty (160) feet. A development on one (1) side of the street shall be responsible for the cost of utilities up to eighty (80) feet in length. If the required street right-of-way exceeds one hundred sixty (160) feet, the city will assume the cost of the excess length of the utility line as oversize participation.

(Ord. No. 90-8-9, § I, 8-13-90)

Sec. 21-181. Extension of mains by city.

The city may extend a water or wastewater main to serve a development, in lieu of installation by the developer, subject to the following standards and procedures:

(1) *Request by developer.* The developer may petition the city to extend a water or wastewater main to serve the development in lieu of constructing the facilities.

(2) *Criteria.* The city may agree to extend the water or wastewater main only upon determination that the city's oversize participation is in excess of thirty (30) percent of the cost of the main. The city's procedures for competitive bidding and award of contract must be followed. The developer shall execute an improvement agreement with the city pursuant to Divisions 4 and 5 of Chapter 16, Article VII.

(3) *Condition of extension.* As a condition of granting the developer's request to extend a water or wastewater main, the developer shall deposit cash in an amount equal to one hundred (100) percent of the projected costs of the extension, together with easements required by section 21-179(3). Such deposit shall not constitute a waiver of or otherwise affect the obligation of the developer to pay impact fees for water or wastewater facilities; provided, however, that the city may credit deposits by the developer under this section, which exceed the cost of a standard size main, against impact fees due for water or wastewater facilities in the manner prescribed in Article VI of this chapter.

(4) *Participation by city.* The city may participate in the costs of oversize mains according to the standards and procedures established in section 21-180. Upon determination of the amount and timing of the city's participation thereunder, a portion of the cash deposit equal thereto shall be refunded to the developer.

(5) *Reimbursement from proceeds of pro rata fees.* The developer shall be entitled to reimbursement from the proceeds of pro rata fees established for the main or mains serving the development pursuant to Division 3. Upon establishment of such fees, the maximum amount for which the developer is eligible for reimbursement thereunder shall be paid over to the city from the cash deposit provided by the developer.

(Ord. No. 90-8-9, § I, 8-13-90)

Sec. 21-182. Health and safety extensions to serve individual lots.

For paramount purposes of health and safety, the city may extend a water or wastewater main to individual residential lots. In such cases, each individual lot owner shall be responsible for a pro rata share of the cost of such main abutting the lot, as determined by the city council.

(Ord. No. 90-8-9, § I, 8-13-90)

DIVISION 3. PRO RATA FEES

Sec. 21-183. Pro rata fees to be established.

(a) *Nature of fee.* A charge known as a "pro rata fee" shall be imposed against all undeveloped property abutting an existing water or wastewater main or for undeveloped property within the drainage area of a lift station, for which such fee has been established pursuant to this division, as a condition of connection to such main or lift station, for the purpose of reimbursing the developer who previously installed or paid for the main or lift station.

(b) *Amount of fee.* The pro rata fee shall be established for each side of the main to which connections are to be made. The fee for each side shall be equivalent to one-half (1/2) the average cost of a standard size main, together with all appurtenances, based upon the verified costs pursuant to section 21-184, for that length of the main abutting the property being charged. For mains that can be connected to from one (1) side only, the fee shall be equivalent to the average cost of a standard size main, together with all appurtenances, for that length of the main abutting the property being charged.

(Ord. No. 90-8-9, § I, 8-13-90)

Sec. 21-184. Procedure for establishing pro rata fees.

(a) *Request for pro rata fees.* Prior to final acceptance of the improvements, the developer shall submit a written request to the city engineer stating whether a pro rata fee will or will not be established for the main that the developer installed.

(b) *Submittal requirements.* The request to establish a pro rata fee shall be on a form provided by the city. The request shall include a copy of the actual contract with unit prices. The request must identify the cost of the main, including fire hydrants, valves, fittings, manholes and other appurtenances which were determined necessary for the construction of the line.

(c) *Verification of costs by engineer.* The city engineer shall verify the developer's calculations for the reimbursement. In the event of a discrepancy, the city engineer shall establish the cost per foot for the pro rata fee.

(d) *Reimbursement amount.* The maximum amount for which a developer may be reimbursed from the proceeds of pro rata fees for the main installed shall not exceed the costs determined by the city engineer under subsection (c), plus engineering fees, calculated at the rate of six (6) percent of the verified construction cost.

(e) *Pro rata for lift station.* In the event that a lift station which exceeds the area necessary to serve a development is required pursuant to section 21-178, the developer must submit a written request for establishment of a pro rata fee for the lift station, which shall be on a cost-per-acre basis. The costs eligible for reimbursement shall include the lift station, force main and other appurtenances and other items included in subsection (b). The city engineer shall be responsible for approving the cost per acre submitted by the developer for the drainage area served by the facility, as provided in subsection (c).

(Ord. No. 90-8-9, § I, 8-13-90)

Sec. 21-185. Payment of pro rata fees.

(a) *Obligation to pay fee.* As undeveloped property begins the development process, the pro rata

fee shall become payable with either the preliminary plat or the final plat approval. The fee must be paid prior to the approval of the engineering plans for the development by the city engineer. Property that is in the conveyance plat process will not be required to pay pro rata fees until the property begins the development process.

(b) *Calculation of fee.* The amount of the pro rata fee shall be calculated by multiplying the unit cost determined in section 21-184 by the number of linear feet of that portion of the property boundary of a lot which abuts a street, alley or easement containing a water or wastewater main for which pro rata fees have been established, or the per acre rata fees have been established, or the per acre fee multiplied by the number of acres in the development.
(Ord. No. 90-8-9, § I, 8-13-90)

Sec. 21-186. Pro rata fee account.

A pro rata fee account is hereby established. The city shall deposit all pro rata fees collected pursuant to section 21-185 into such account. Expenditures from such account shall be earmarked solely for reimbursement of developers for the reasonable costs of installing water mains or wastewater mains for which pro rata fees have been established pursuant to section 21-184.
(Ord. No. 90-8-9, § I, 8-13-90)

Sec. 21-187. Reimbursement for water and wastewater main extensions.

(a) *Reimbursement time limit.* For a period of ten (10) years after dedication to and acceptance by the city of the completed facility, the developer shall be entitled to reimbursement from the proceeds of the pro rata fees established pursuant to section 21-184 up to the total cost of the extensions. Payment shall be from the pro rata fee account. The city shall make reimbursements within twenty-one (21) days after receipt of the pro rata fee.

(b) *Unclaimed funds.* If the city is unable to reimburse the developer who installed the main, following reasonable attempts to locate such developer, the city shall refund all fees which remain unclaimed ten (10) years following the date of acceptance of the water or wastewater main, together with interest accrued, to the depositor of the fee. If such depositor cannot be located, the pro rata fees shall be transferred to the water and sewer fund for expenditure in accordance with general provisions.
(Ord. No. 90-8-9, § I, 8-13-90)

Sec. 21-188. City collection fee.

On all pro rata fees returned to the developer, the city shall deduct two (2) percent of the amount collected plus one hundred dollars ($100.00) as a collection fee. The city shall establish a collection fee account into which all such monies shall be deposited, which funds shall be used to administer the pro rata provisions of this division.
(Ord. No. 90-8-9, § I, 8-13-90)

Secs. 21-189—21-200. Reserved.

ARTICLE VI. RESERVED*

Secs. 21-201—21-300. Reserved.

ARTICLE VII. INDUSTRIAL WASTEWATER PRETREATMENT†

Sec. 21-301. Definitions.

Unless the context specifically indicates otherwise, the meaning of the terms and phrases used in this article shall be as follows:

Act. The Federal Water Pollution Control Act, Public Law 92-500, known as the Clean Water Act (CWA), as amended, 33 U.S.C. 1251, et seq.

***Editor's note—**Ord. No. 2009-8-23, § II, adopted August 24, 2009, repealed the former article VI, division 1—4, in its entirety, which pertained to impact fees, and derived from Ord. No. 90-5-36, § I, adopted May 29, 1990; Ord. No. 93-5-45, §§ II—V, adopted May 24, 1993; Ord. No. 96-5-8, § II, adopted May 13, 1996; Ord. No. 96-8-17, § I, adopted August 26, 1996; Ord. No. 2001-8-16, §§ I—VI, adopted August 27, 2001; Ord. No. 2002-1-10, § I, adopted January 14, 2002; Ord. No. 2008-2-11, § I, adopted February 11, 2008, and Ord. No. 2009-1-9, § I, adopted January 26, 2009.

†**Editor's note—**Section II(1—36) of Ord. No. 92-7-15, adopted July 13, 1992, did not specifically amend the Code; therefore, inclusion as Art. VII, §§ 21-301—21-336, was at the discretion of the editor.

Administrator. The EPA Region VI Regional Administrator.

Approval authority. The director in a National Pollutant Discharge Elimination System (NPDES) state with an approved state pretreatment program and the appropriate regional administrator in a non-NPDES state or NPDES state without an approved state pretreatment program.

BMP (Best Management Practices). Means a pollution prevention program for facility specific plans implemented by an industry sector for the purpose of controlling and reducing certain pollutants including those discharged to the sanitary sewer system.

B.O.D. (Biochemical Oxygen Demand). The quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory conditions for five (5) days at twenty (20) degrees Celsius, expressed in mg/L. The laboratory determination shall be made in accordance with the procedures set forth in 40 CFR 136.

Building drain. That part of the lowest horizontal piping of a drainage system which receives the discharge from soil, waste, and other drainage pipes inside the walls of the building and conveys to the building sewer, which begins three (3) feet outside the inner face of the building wall.

Building sewer. The extension from the building drain to the sewer lateral at the property line or other lawful place of disposal (also called house lateral or house connection).

Bypass. The intentional diversion of wastestreams from any portion of an industrial user's treatment facility.

Categorical standards. The National Categorical Pretreatment Standards found in Chapter 40 of the Code of Federal Regulations (CFR), Parts 405—471 and amendments thereof, or pretreatment standards developed under 33 U.S.C. 1317 of the Act.

City. (For the purposes of this article), the City of Plano, Texas, and/or the city manager or their duly authorized representative.

C.O.D. (Chemical Oxygen Demand). The, measure of oxygen consuming capacity of inorganic and organic matter present in water or wastewater. It is expressed in mg/L as the amount of oxygen consumed from a chemical oxidant in a specific test. It does not differentiate between stable and unstable organic matter and thus does not necessarily correlate with B.O.D.

Control authority. Shall mean:

(1) The owner/operator of the POTW; or

(2) The person designated by the city to be responsible for the industrial pretreatment program or its duly authorized representative.

Control manhole. A manhole giving access to a building sewer point before the building sewer discharges into the public sewer.

Daily discharge. The discharge of a pollutant measured during a calendar day or any twenty-four-hour period that reasonably represents a calendar day for purposes of sampling.

Daily maximum. The highest allowable "daily discharge" during a calendar month.

Director. The chief administrative officer of a state or interstate water pollution control agency with an NPDES permit program approved pursuant to section 402(b) of the Act and an approved state pretreatment program.

Disposal. The discharge, deposit, injection, dumping, spilling, leaking, or placing of any solid or semi-solid waste (i.e., grease trap waste, grit trap wastes, and/or septage) into or on any land or water so that such waste or any constituent thereof may enter the environment or be emitted into the air or discharged into any water, including, but not limited to, ground waters.

Domestic sewage. The water-borne wastes normally discharging into the sanitary conveniences of dwellings (including apartment houses and hotels), office buildings, factories and institutions, free of storm water and industrial wastes.

Environmental officer. The city manager of the city or his duly authorized representative.

EPA (Environmental Protection Agency]. The U.S. Environmental Protection Agency, or where

appropriate, the term may also be used as a designation for the administrator or other duly authorized officials of said agency.

Flow-proportioned composite sample. Shall mean a sample collected either as a constant sample volume at time intervals proportional to stream flow, or collected by increasing the volume of each aliquot as the flow increases while maintaining a constant time interval between the aliquots.

Garbage. Animal and vegetable wastes and residue from preparation, cooking, and dispensing of food; and from handling, processing, storage, and sale of food products and produce.

Grab sample. An individual sample collected over a period of time not exceeding fifteen (15) minutes.

Grease trap. A water-tight receptacle designed and constructed to intercept and prevent the passage of greasy, fatty liquid, semiliquid, and/or solid wastes into the sanitary sewer system to which the receptacle is directly or indirectly connected.

Grease trap waste. Any greasy, fatty liquid, semi-liquid, and/or solid wastes removed by a grease trap.

Grit/sand trap. A water-tight receptacle designed and constructed to intercept and prevent the passage of sand, grit and other heavy solids into the sanitary sewer system to which the receptacle is directly or indirectly connected.

Grit trap waste. Any sand, grit and/or other heavy solids removed from a grit trap.

Hazardous waste. Any liquid, semi-liquid or solid waste (or combination of wastes), which because of its quantity, concentration, physical, chemical or infectious characteristics may:

(1) Have any of the following characteristics: toxic, corrosive, an irritant, a strong sensitizer, flammable or combustible, explosive, or otherwise capable of causing substantial personal injury or illness;

(2) Pose a substantial hazard to human health or the environment when improperly treated, stored, transported, or disposed of, or otherwise improperly managed, and is identified or listed as a hazardous waste as defined by the Texas Solid Waste Disposal Act or defined under 40 CFR Part 261.3.

[The next page is 1493]

Holding tank waste. Any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks, and vacuum pump tank trucks.

Indirect discharge or discharge. The introduction of pollutants into a POTW from any nondomestic source regulated under Section 307(b), (c) or (d) of the Act.

Industrial user or user. Source of indirect discharge.

Industrial user wastewater discharge permit. A Permit required of an industrial user to discharge waste into any sewer system under the jurisdiction of the city.

Industrial user wastewater surcharge. The additional charge made on those persons or industries who discharge industrial wastes into the sewer system which are amenable to treatment by the POTW treatment processes, but which exceed "normal" strength sewage.

Industrial waste. The water-borne solids, liquids, or gaseous wastes resulting from and discharged, permitted to flow or escape from any industrial, manufacturing or food processing operation or process, or from the development of any natural resources, or any mixture of these with water or domestic sewage as distinct from normal domestic sewage.

Interference. A discharge which, either alone or in conjunction with a discharge or discharges from other sources, both:

(1) Inhibits or disrupts the POTW, its treatment processes or operations, or its sludge processes, use or disposal; and

(2) Is the cause of a violation of any requirement of the POTW's NPDES Permit (including an increase in the magnitude or duration of a violation) or of the prevention of sewage sludge use or disposal by the POTW in compliance with the following statutory provisions and regulations or permits issued thereunder (or more stringent State or Local regulations): Section 405 of the Clean Water Act, the Solid Waste Disposal Act (SWDA) (including Title II, more commonly referred to as the Resource Conservation and Recovery Act (RCRA), and including state regulations contained in any state sludge management plan prepared pursuant to Subtitle D of the SWDA), the Clean Air Act, the Toxic Substances Control Act, and the Marine Protection, Research, and Sanctuaries Act.

Liquid waste. Water-borne solids, liquids, and gaseous substances derived from a grease trap, grit trap, chemical/portable toilet and/or septic tank and described as grease trap waste, grit trap waste or septage.

Milligrams per liter (mg/L). A weight to volume ratio; the milligrams per liter value multiplied by the factor 8.34 is equivalent to pounds per million gallons of water.

Monthly average. The highest allowable average of "daily discharge(s)" over a calendar month, calculated as the sum of all "daily discharge(s)" measured during a calendar month divided by the number of "daily discharge(s)" measured during that month.

National categorical pretreatment standard. Standard specifying the quantities or concentrations of pollutants or pollutant properties which may be discharged to a POTW by existing or new industrial users in specific industrial subcategories established as separate regulations under the appropriate subpart of 40 CFR chapter I, subchapter N. These standards, unless specifically noted otherwise, shall be in addition to the general prohibitions established in 40 CFR 403.5.

National pretreatment standard, pretreatment standard or standard. Any regulation containing pollutant discharge limits promulgated by the EPA in accordance with Section 307(b) and (c) of the Act which applies to Industrial Users. This term includes prohibitive discharge limits established pursuant to 40 CFR 403.5.

New source. Any building, structure, facility or installation from which there is or may be a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under Section 307(c) of

the Act which will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:

(1) The building, structure, facility or installation is constructed at a site at which no other source is located; or

(2) The building, structure, facility or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

(3) The production or wastewater generating processes of the building, structure, facility or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same type of activity as the existing source will be considered.

Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility or installation meeting the criteria of (b) and (c) above but otherwise alters, replaces, or adds to the existing process or production equipment. Construction of a new source as defined has commenced if the owner or operator has:

(1) Begun, or caused to begin as part of a continuous on-site construction program:

a. Any placement, assembly, or installation of facilities or equipment; or

b. Significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment.

(2) Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this definition.

Normal domestic sewage. The "normal" sewage for the city, for which the average concentration of total suspended solids is not more than 250 mg/L and B.O.D. is no more than 250 mg/L. Industrial wastes and storm water are excluded from this term.

Overload. The imposition of organic or hydraulic loading on a treatment facility in excess of its engineered or design capacity.

Owner. Any person who owns a facility or any portion of a facility.

Pass through. A discharge which exits the POTW into waters of the United States in quantities or concentration which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the POTW's NPDES permit (including an increase in the magnitude or duration of a violation).

POTW (publicly owned treatment works). A treatment works as defined by Section 212 of the Act, (33 U.S.C. 1292). This definition includes any devices and systems used in the storage, treatment, recycling and reclamation of municipal sewage or industrial wastes of a liquid nature. It also includes lift stations, sewers, pipes and other conveyances only if they convey wastewater to a POTW treatment plant. For the purposes of this article, POTW shall refer to the North Texas Municipal Water District.

PPM (parts per million). A weight to weight ratio; the parts per million value multiplied by the factor 8.345 shall be equivalent to pounds per million gallons of water.

Person. Any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity, or their legal representatives, agents or assigns.

pH. The logarithm (base 10) of the reciprocal of the hydrogen ion concentration.

Pollutant. Any dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt and industrial, municipal and agricultural waste discharged into water.

Polluted water. Any water, liquid or gaseous wastes containing any of the following:

(1) Soluble or insoluble substances of organic or inorganic nature; or

(2) Settleable solids that may form sludge deposits; or

(3) Grease and oils; or

(4) Floating solids that may cause unsightly appearance or color; or

(5) Substances that would impart any taste or odor to the receiving stream; or

(6) Toxic or poisonous substances.

Pretreatment requirements. Any substantive or procedural requirement related to pretreatment, other than a national pretreatment standard imposed on an industrial user.

Pretreatment or treatment. The reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to or in lieu of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration can be obtained by physical, chemical or biological processes, or process changes or by other means, except as prohibited by 40 Code of Federal Regulations 403.6(d).

Priority pollutant. A pollutant found in Table II or Table III of 40 CFR 122, Appendix D.

Properly shredded garbage. The wastes from the preparation, cooking and dispensing of foods that have been shredded to such a degree that all particles shill be carried freely under the flow conditions normally prevailing in public sewers, with no particle greater than one-half (0.5) inch in any dimension.

Responsible corporate officer. Shall mean:

(1) A president, secretary, treasurer, or vice president of the corporation in charge of a principal business function, or any other person who performs similar policy- or decision-making functions for the corporation; or

(2) The manager of one or more manufacturing, production, or operation facilities employing more than two hundred fifty (250) persons or having gross annual sales or expenditures exceeding twenty-five million dollars ($25,000,000.00) (in second quarter 1980 dollars), if authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

Sanitary sewer. A public sewer that conveys domestic wastewater or industrial wastes or a combination of both, and into which storm, surface, groundwaters and other unpolluted waters are not intentionally passed.

Septage. Wastes removed from a portable toilet, chemical toilet or septic tank.

Severe property damage. Means substantial physical damage to property; damage to the treatment facilities which causes them to become inoperable; or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

Sewage service charge. The charge made on all users of the public sewer system whose wastes do not exceed in strength the concentration values established as representative of normal sewage.

Sewage works/system. All facilities for collection, pumping, treating and disposing of sewage and industrial wastes and would include sewage, as well as the sewage treatment facilities.

Sewer. A pipe or conduit for carrying sanitary sewage.

SIC (Standard Industrial Classification). A classification pursuant to the Standard Industrial

Classification Manual issued by the Executive Office of the President, Office of Management and Budget, 1972, or the latest edition.

Significant industrial user (SIU).

(1) Except as provided in part (2), the term shall mean:

a. All industrial users subject to Categorical Standards under 40 CFR 403.6 and 40 CFR Chapter I, Subchapter N; and

b. Any other industrial user that: Discharges twenty-five thousand (25,000) gallons per day or more of process wastewater to the POTW (excluding sanitary, noncontact cooling and boiler blowdown wastewater); contributes a process wastestream which makes up five (5) percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or is designated as such by the Control Authority as defined in 40 CFR 403.12(a) on the basis that the industrial user has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement (in accordance with 40 CFR 403.8(f)(6)).

(2) Upon finding that an industrial user meeting the criteria in part (1)b. has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement, the control authority (as defined in 40 CFR 403.12 (a) may at any time, on its own initiative or in response to a petition received from an industrial user or POTW, and in accordance with 40 CFR 403.8(f)(6), determine that such industrial user is not a significant industrial user.

Slug discharge. Any discharge of a nonroutine, episodic nature, including but not limited to an accidental spill or a noncustomary batch discharge, and/or a discharge which violates any specific prohibitions listed in 40 CFR 403.5(b), and/or could significantly disrupt a POTW's system, and/or threaten human health and safety, and/or could potentially result in violations of the POTW's NPDES permit or sludge requirements.

Spill. The accidental or intentional loss or unauthorized discharge, any waste or raw material.

Storm sewer or storm drain. A sewer which carries storm and surface waters and drainage but excludes sewage and polluted industrial wastes.

Surcharge. The charge in addition to the sewage service charge which is made on those persons whose wastes are greater in strength than the concentration values established as representative of normal domestic sewage.

Suspended solids. Solids that either float on the surface of, or are in suspension of water, sewage, or other liquids, and which are removable by laboratory filtration device. Quantitative determination of suspended solids shall be made in accordance with procedures set forth in 40 CFR 136.

TCEQ. Texas Commission on Environmental Quality.

Time composite sample. Shall mean a sample composed of discrete sample aliquots collected in a single reservoir at constant time intervals irrespective of flow.

To discharge. To deposit, conduct, drain, emit, throw, run, allow to seep, or otherwise release or dispose of, or to allow, permit or suffer any of these acts or omissions.

Toxic pollutant or toxic substance. Any substance whether gaseous, liquid or solid which, when discharged to the sewer system in sufficient concentrations, as determined by the Environmental Officer, may be hazardous to sewer maintenance and personnel, tend to interfere with any wastewater treatment process, or to constitute a hazard to human beings or animals, or to inhibit aquatic life, or to create a hazard to recreation in the receiving waters of the effluent from a wastewater treatment plant; or any pollutant or combination of pollutants listed as toxic in regulations promulgated by the EPA under the provision of the Clean Water Act 307 (a) or other Acts.

Trap. A device designed to skim, settle, or otherwise remove oil, grease, sand, flammable wastes or other harmful substances.

TTOs (Total Toxic Organics). Means the sum of the concentration (greater than one-one-hundredth [0.01] milligram per liter) of specific toxic organic pollutants (as identified by the EPA as priority pollutants) present in any wastewater.

Upset. Means an exceptional incident in which there is unintentional and temporary noncompliance with categorical Pretreatment Standards because of factors beyond the control of the industrial user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventative maintenance, or careless or improper operation.

User. Any person who contributes, causes or permits the contribution of wastewater into the city's sewer system.

Waste. Rejected, unutilized, or superfluous substances in liquid, gaseous or solid form resulting from domestic, agricultural or industrial activities.

Wastewater. The liquid and water-carried industrial or domestic wastes from dwellings, commercial buildings, industrial facilities, and institutions, together with stormwater which may be present, whether treated or untreated, which is contributed into or permitted to enter the POTW.

Watercourse. A channel in which a flow of water occurs, either continuously or intermittently.
(Ord. No. 92-7-15, § II(1), 7-13-92; Ord. No. 2008-11-14, § I, 11-10-08)

Sec. 21-302. Prohibited discharges.

(a) No person may introduce into a POTW any pollutant(s) which may pass through or interfere. Also prohibited are any substances that have an adverse effect on the environment, or may endanger life, health or property, or constitute a public nuisance.

(b) Substances specifically prohibited from being discharged into the sewage system are as follows:

(1) Any liquids, solids or gases, including but not limited to, gasoline, kerosene, naphtha, benzene, toluene, xylene, ethers, alcohols, ketones, aldehydes, peroxides, chlorates, perchlorates, bromates, carbides, hydrides, sulfides or any other substances which are a fire or other hazard to the system, which by reason of their nature or quantity are, or may be, sufficient either alone or by interaction with other substances to cause fires, explosions, or be injurious in any other way to the facilities or operation of the sewage system.

(2) Any substance which creates a fire or explosion hazard in the sewage system, including, but not limited to, wastestreams with a closed cup flashpoint of less than one hundred forty (140) degrees Fahrenheit or sixty (60) degrees Centigrade using the test methods specified in 40 CFR 261.21.

(3) Any wastewater having a pH less than five point zero (5.0), greater than ten point five (10.5), or any wastewater having any other corrosive property capable of causing damage or hazard to the sewage system or any person.

(4) Any wastewater containing pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and/or safety problems.

(5) Any liquid or vapor having a temperature higher than one hundred fifty (150) degrees Fahrenheit (sixty-five (65) degrees Centigrade); or exhibiting heat in amounts which will inhibit biological activity in the POTW causing an interference; or, in any case, exhibiting heat in such quantities that the temperature at the POTW treatment plant exceeds forty (40) degrees Centigrade (one hundred and four (104) degrees Fahrenheit).

(6) Any pollutant(s), including oxygen demanding pollutants (COD, etc.) and total dissolved solids, released in a discharge at a flow rate and/or pollutant concentration which will cause pass through or interference at the POTW or which will cause the POTW to be in noncompliance with any federal or state sludge use or disposal criteria, guidelines or regulations.

(7) Any free or emulsified fats, waxes, greases or oils containing substances which may solidify or become viscous at temperatures between thirty-two (32) and one hundred fifty (150) degrees Fahrenheit (0 and 65 degrees Celsius); or any combination of free or emulsified fats, waxes, greases or oils, if, in the opinion of the control authority, it appears probable that such wastes:

a. Can deposit grease or oil in the sewer system in such a manner as to clog the sewers;

b. Can overload skimming and grease handling equipment;

c. Are not amenable to bacterial action and will therefore pass to the receiving water without being affected by normal sewage treatment processes;

d. Can have deleterious effects on the treatment process due to excessive quantities.

(8) Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that will cause interference or pass through.

(9) Solid or liquid substances which may cause obstruction to the flow in sewers or other interference with the proper operation of the wastewater treatment facilities such as, but not limited to: ashes, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, tar, plastics, wood, whole blood, paunch manure, hair and fleshings, entrails, lime slurry, lime residues, slops, chemical residues, paint residues, bulk solids or waste paper.

(10) Any noxious or malodorous liquids, gases or solids which either singly or by interaction with other substances are sufficient to prevent entry into the sewer system for maintenance and repair.

(11) Wastewater containing COD in concentrations which are not amenable to treatment, or any other substance which is determined by the environmental officer and/or POTW to be not amenable to treatment.

(12) Any trucked or hauled pollutants, except at discharge points designated by the City.

(13) Pollutant(s) which causes:

a. Excessive discoloration;

b. High hydrogen sulfide content;

c. Unusual taste or odor-producing substances.

(c) In cases where, and in the opinion of the environmental officer and/or POTW, the character of the sewage from any manufacturer of industrial plant building or other premises is such that it will damage the system, or cannot be treated satisfactorily in the system, the environmental officer shall have the right to require such user to dispose of such waste otherwise and prevent it from entering the sewage system.

(d) Unusual flow and concentration of any of the above shall be pretreated to a concentration acceptable to the city, if such wastes can:

(1) Cause damage to sewer system;

(2) Impair processes;

(3) Incur treatment cost exceeding those of normal sewage;

(4) Render the water unfit for stream disposal or industrial use;

(5) Create a public nuisance.

(Ord. No. 92-7-15, § II(2), 7-13-92)

Sec. 21-303. Hazardous metals and chemical or toxic substances.

(a) It shall be unlawful to discharge into the sewer system, any metals, chemicals or toxic substances in excess of the following concentration limits:

(1) The following heavy metals and toxic materials in the form of compounds or elements in solution or suspension in concentrations exceeding these limits:

Parameter	*Monthly Average Limit in mg/L*
Arsenic (Total)	3.46
Cadmium (Total)	3.82
Chromium (Total)	12.02
Copper (Total)	4.56
Cyanide (Total)	2.81
Lead (Total)	7.78
Mercury (Total)	0.010
Nickel (Total)	10.08
Silver (Total)	0.43
Zinc (Total)	2.11

(2) All other priority pollutants found in the POTW influent at a concentration at or above 0.1 mg/L and all Numerical Aquatic Life Criteria as defined by the TCEQ including, but not limited to the following, shall be excluded from the wastewater system unless a permit specifying the condition of pretreatment, concentration, volumes, etc., is obtained from the city:

Aldrin	Malathion
Aluminum	Methoxychlor
Carbaryl	Mirex
Chlordane	PCB (total)
Chlorpyrifos	Parathion
DDT	Phenanthrene
Demeton	Pentachlorophenol
Dieldron	Selenium
Endosulfan	Silver (free ion)
Guthion	Toxaphene
Heptachlor	Tributyltin
Hexachloro-cyclohexane	2-4-5-Trichlorophenol

(3) Any radioactive wastes or isotopes without prior written permission from the environmental officer.

(b) Except where expressly authorized to do so by an applicable pretreatment standard or requirement, no industrial user shall ever increase the use of process water, or in any other way attempt to dilute a discharge as partial or complete substitute for adequate treatment to achieve compliance with a pretreatment standard or requirement. The control authority may impose mass limitations on industrial users which are using dilution to meet applicable pretreatment standards or requirements, or in other cases where the imposition of mass limitations is appropriate.

(c) Upon the promulgation of Federal Categorical Pretreatment Standards for a particular industrial subcategory, the Federal Pretreatment Standard, if more stringent than specific limitations imposed under this article for industrial users subject to the Federal Standard, shall supersede the limitations imposed under this article.

(d) Where industrial users combine waste streams prior to treatment, compliance with an applicable categorical standard will be determined either prior to combining the wastestreams or following treatment of the combined wastestream (by applying the combined wastestream formula found in 40 CFR 403.6(e)).

(e) If any person discharges a substance into the city's sewer system in violation of this section, the environmental officer may terminate the service of sewer and/or water to the premises from which the substance was discharged.
(Ord. No. 92-7-15, § II(3), 7-13-92; Ord. No. 2008-11-14, § II, 11-10-08)

Sec. 21-304. Garbage.

(a) No person shall discharge garbage into the sewer system unless it is shredded to a degree that all particles can be carried freely under the flow conditions normally prevailing in the sewer system. Particles greater than one-half (1/2) inch in any dimension are prohibited.

(b) The city is entitled to review and approve the installation and operation of any garbage grinder equipped with a motor of three-fourths (3/4) horsepower (0.76 hp metric) or greater.

Sec. 21-305. Discharges requiring traps.

(a) Discharges requiring a trap include any nonresidential establishment discharging:

(1) Grease or water containing grease;

(2) Oil;

(3) Sand;

(4) Flammable wastes, or;

(5) Other harmful substances.

(b) Any person responsible for discharges requiring a trap shall at their own expense and as required by the environmental officer:

(1) Provide equipment and facilities of a type and capacity approved by the city.

(2) Locate the trap in a manner that provides ready and easy accessibility for cleaning and inspection.

(3) Maintain the trap in effective and operating condition.

(Ord. No. 92-7-15, § II(5), 7-13-92)

Sec. 21-306. Compliance with other authorities.

(a) *Compliance with federal authority.* Industrial users within the jurisdiction of this article shall comply with all Federal General Pretreatment Regulations and with those Federal Categorical Pretreatment Standards applicable to each as specified in 40 CFR Subchapter N, Parts 401—471.

(b) *Compliance with state authority.* Industrial users within the jurisdiction of this article shall comply with applicable sections of Chapter 26 of the Texas Water Code.

(Ord. No. 92-7-15, § II(6), 7-13-92)

Sec. 21-307. Industrial user wastewater discharge permit requirements.

(a) All nondomestic users must notify the environmental officer of the nature and characteristics of their wastewater prior to commencing their discharge. The environmental officer is authorized to prepare a form for this purpose.

(b) It shall be unlawful for significant industrial users to discharge wastewater, whether directly or indirectly, into the city's sanitary sewer system without first obtaining an industrial user pretreatment permit from the city. Any violation of the terms and conditions of an industrial user wastewater permit shall be deemed a violation of this article. Obtaining an industrial user wastewater discharge permit does not relieve a permittee of its obligation to obtain other permits required by federal, state, or local law.

(c) The environmental officer may require that other industrial users obtain industrial user wastewater discharge permits as necessary to carry out the purposes of this article.

(d) All existing significant users connected to or contributing to the POTW shall obtain a wastewater discharge permit within one hundred eighty (180) days after the effective date of this chapter. The application must be submitted to the control authority within ninety (90) days after the effective date of this article.

(e) New connections: Any significant industrial user proposing to begin or recommence discharging nondomestic wastes into the sanitary sewer system must obtain a wastewater discharge permit prior to beginning or recommencing such discharge. For categorical industrial users, a Baseline Monitoring Report (see section 21-308) will be used as an application for this permit and must be filed at least ninety (90) days prior to commencement of discharge. For noncategorical industrial users, a permit application must be filed in accordance with section 21-313.

(f) Reapplication: Once permitted, the industrial user has the duty to reapply if the permittee wishes to continue an activity regulated by the permit after the expiration date of the permit. The industrial user must submit an application for a new permit at least ninety (90) days before the expiration of the permit in accordance with section 21-313. The application form may be obtained from the control authority.

(Ord. No. 92-7-15, § II(7), 7-13-92; Ord. No. 2008-11-14, § III, 11-10-08)

Sec. 21-307.1. Alternative industrial wastewater discharge permit requirements.

(a) Industrial users, other than significant industrial users, may elect to be permitted under a BMP program which has been approved by the City. All BMP programs approved by the City shall be on file in the Environmental Health Department and are incorporated into this chapter by reference. Users making this election shall complete and file with the City an application and appropriate permit fee.

(b) Industrial users under a City approved BMP program shall be subject to all conditions established by the city, the BMP program and other applicable state or federal regulations. BMP program requirements shall include, but not be limited to, the following:

(1) Installation and maintenance of equipment to prevent the following:

(a) Pass through of the pollutants specified in the BMP into the sanitary sewer system;

(b) Interference with the POTW;

(c) Violation of specific numerical pollutant concentration limits.

(2) Self-monitoring and recordkeeping requirements, including an identification of the pollutant(s) to be monitored and the sampling frequency.

(c) Industrial users failing to submit an annual permit application and fee associated with a city approved BMP program shall be subject to regulation under section 21-307.

(d) Any person, operator or owner failing to comply with this section shall be subject to the penalty as provided for in Section 1-4(b) of the Code of Ordinances of the City of Plano. Each day the violation continues shall be deemed a separate offense.

(e) The requirement of a culpable mental state is expressly waived for purposes of this section. (Ord. No. 2008-11-14, § IV, 11-10-08)

Sec. 21-308. Baseline monitoring report.

Within one hundred eighty (180) days after the effective date of a categorical pretreatment standard, or one hundred eighty (180) days after the final administrative decision made upon a category determination submission under 40 CFR 403.6(a)(4), whichever is later, existing industrial users subject to such categorical pretreatment standards and currently discharging to or scheduled to discharge to a POTW shall be required to submit to the control authority a report which contains the information listed in paragraphs (a) through (g) below. Where reports containing this information have already been submitted to the director or the regional administrator in compliance with the requirement of 40 CFR 128.140(b) (1977), the industrial user will not be required to submit this information again. At least ninety (90) days prior to commencement of discharge, new sources, and sources that become industrial users subsequent to the promulgation of an applicable categorical standard, shall be required to submit to the control authority a report which contains the information listed in paragraphs (a) through (e) below. New sources shall also be required to include this report information on the method of pretreatment the source intends to use to meet applicable pretreatment standards. New sources shall give estimates of the information requested in paragraphs (d) and (e).

(a) Identifying information: The user shall submit the name and address of the facility including the name of the operators and owners.

(b) Permits: The user shall submit a list of any environmental control permits held by or for the facility.

(c) Description of operations: The user shall submit a brief description of the nature, average rate of production, and the standard industrial classification of the operation(s) carried out by such industrial user. This description should include a schematic process diagram which indicates points of discharge to the POTW from the regulated processes.

(d) Flow measurement: The user shall submit information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from each of the following:

(1) Regulated process streams; and

(2) Other streams as necessary to allow use of the combined wastestream formula of 40 CFR 403.6(e).

The control authority may allow for verifiable estimates of these flows where justified by cost or feasibility considerations.

(e) Measurement of pollutants:

(1) The user shall identify the pretreatment standards applicable to each regulated process;

(2) In addition, the user shall submit the results of sampling and analysis identifying the nature and concentration (or mass, where required by the standard or control authority) of regulated pollutants in the discharge from each regulated process. Both daily maximum and average concentration (or mass, where required) shall be reported. The sample shall be representative of daily operations;

(3) A minimum of four (4) grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organics. For all other pollutants, 24-hour composite samples must be obtained through flow-proportional composite sampling techniques where feasible. The control authority may waive flow-proportional composite sampling for any industrial user that demonstrates that flow-proportional sampling is infeasible. In such cases, samples may be obtained through time-proportional composite sampling techniques or through a minimum of four (4) grab samples where the user demonstrates that this will provide a representative sample of the effluent being discharged.

(4) The user shall take a minimum of one representative sample to compile that data necessary to comply with the requirements of this section.

(5) Samples should be taken immediately downstream from pretreatment facilities if such exist or immediately downstream from the regulated process if no pretreatment exists. If other wastewaters are mixed with the regulated wastewater prior to pretreatment the user should measure the flows and concentrations necessary to allow use of the combined wastestream formula of 40 CFR 403.6(e) in order to evaluate compliance with the pretreatment standards. Where an alternate concentration or mass limit has been calculated in accordance with 40 CFR 403.6(e) this adjusted limit along with supporting data shall be submitted to the control authority.

(6) Sampling and analysis shall be performed in accordance with the techniques prescribed in 40 CFR Part 136 and amendments thereto. Where 40 CFR Part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the administrator determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analysis shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures suggested by the POTW or other parties, approved by the administrator.

(7) The control authority may allow the submission of a baseline monitoring report which utilizes only historical data so long as the data provides information sufficient

to determine the need for industrial pretreatment measures.

(8) The baseline report shall indicate the time, date and place, of sampling, and methods of analysis, and shall certify that such sampling and analysis is representative of normal work cycles and expected pollutant discharges to the POTW.

(f) Certification: A statement, reviewed by an authorized representative of the industrial user (as defined in section 21-315), and certified to by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required for the industrial user to meet the pretreatment standards and requirements.

(g) Compliance schedule. If additional pretreatment and/or O&M will be required to meet the pretreatment standards; the shortest schedule by which the industrial user will provide such additional pretreatment and/or O&M. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard.

(1) Where the industrial user's categorical pretreatment standard has been modified by a removal allowance (40 CFR 403.7), the combined wastestream formula (40 CFR 403.6(e)), and/or a fundamentally different factors variance (40 CFR 403.13) at the time the user submits the report required by this section, the information required by subsections (f) and (g) shall pertain to the modified limits.

(2) If the categorical pretreatment standard is modified by a removal allowance (40 CFR 403.7), the combined wastestream formula (40 CFR 403.6(e)), and/or a fundamentally different factors variance (40 CFR 403.13) after the user submits the report required by this section, any necessary amendments to the information requested by subsections (f) and (g) of this section shall be submitted by the user to the control authority within sixty (60) days after the modified limit is approved.

(Ord. No. 92-7-15, § II(8), 7-13-92)

Sec. 21-309. Compliance schedule for meeting categorical pretreatment standards.

The following conditions shall apply to the schedule required by section 21-308(g).

(a) The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable categorical pretreatment standards (e.g., hiring an engineer, completing plans, executing contract for major components, commencing construction, completing construction, etc.).

(b) No increment referred to in subsection (a) of this section shall exceed nine (9) months.

(c) Not later than fourteen (14) days following each date in the schedule and the final date for compliance, the industrial user shall submit a progress report to the control authority including, at a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for delay, and the steps being taken by the industrial user to return the construction to the schedule established. In no event shall more than nine (9) months elapse between such progress reports to the control authority.

(Ord. No. 92-7-15, § II(9), 7-13-92)

Sec. 21-310. Ninety-day compliance report.

Within ninety (90) days following the date for final compliance with applicable categorical pretreatment standards or in the case of a new source following the commencement of the introduction of wastewater into the POTW, any industrial user subject to pretreatment standards and requirements shall submit to the control authority a report containing the information described in section 21-308 subsections (d), (e), and (f). For industrial users subject to equivalent mass or concentration limits established by the control au-

thority in accordance with the procedures in 40 CFR 403.6(c), this report shall contain a reasonable measure of the user's long term production rate. For all other industrial users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the user's actual production during the appropriate sampling period.
(Ord. No. 92-7-15, § II(10), 7-13-92)

Sec. 21-311. Periodic reports on continued compliance.

(a) Any industrial user subject to a categorical pretreatment standard, after the compliance date of such pretreatment standard, or, in the case of a new source, after commencement of the discharge into the POTW, shall submit to the control authority during the months of June and December, unless required more frequently in the pretreatment standard or by the control authority or the approval authority, a report indicating the nature and concentration of pollutants in the effluent which are limited by such categorical pretreatment standards. In addition, this report shall include a record of measured or estimated average and maximum daily flows for the reporting period for the discharge reported in section 21-308(d) except that the control authority may require more detailed reporting of flows. At the discretion of the control authority and in consideration of such factors as local high or low flow rate's, holidays, budget cycles, etc., the control authority may agree to alter the months during which the above reports are submitted.

(b) Where the control authority has imposed mass limitations on industrial users as provided for by 40 CFR 403.6(d), the report required by subsection (a) above shall indicate the mass of pollutants regulated by pretreatment standards in the discharge from the industrial user.

(c) For industrial users subject to equivalent mass or concentration limits established by the control authority in accordance with the procedures in 40 CFR 403.6(c), the report required by subsection (a) above shall contain a reasonable measure of the user's long term production rate. For all other industrial users subject to categorical pretreatment standards expresses only in terms of allowable pollutant discharge per unit of production (or other measure of operation), the report required by subsection (a) above shall include the User's actual average production rate for the reporting period.
(Ord. No. 92-7-15, § II(11), 7-13-92)

Sec. 21-312. Reporting requirements for significant noncategorical industrial users.

Significant noncategorical industrial users shall submit to the control authority at least once every six months (on dates specified by the control authority) a description of the nature, concentration, and flow of the pollutants required to be reported by the control authority. These reports shall be based on sampling and analysis performed in the period covered by the report, and performed in accordance with the techniques described in 40 CFR Part 136 and amendments thereto. Where 40 CFR Part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the administrator determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analysis shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the POTW or other persons, approved by the administrator. This sampling and analysis may be performed by the control authority in lieu of the significant noncategorical industrial user. Where the control authority collects all the information required for the report, the noncategorical significant industrial users will not be required to submit the report.
(Ord. No. 92-7-15, § II(12), 7-13-92)

Sec. 21-313. Permit application.

(a) Significant industrial users required to obtain an industrial wastewater discharge permit shall complete and file with the environmental officer, an application upon a form provided by the city. A permit fee shall accompany the application. In support of the application, the signifi-

cant industrial user shall submit the following information:

(1) Identifying information: The user shall submit the name and address of the facility including the name of the operators and owners;

(2) Permits: The user shall submit a list of any environmental control permits held by or for the facility;

(3) Description of operations: The user shall submit a brief description of the nature, average rate of production, and the Standard Industrial Classification of the operation(s) carried out by such Industrial User. This description should include a schematic process diagram which indicates points of Discharge to the POTW from the regulated processes.

(4) Flow measurement: The user shall submit information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from each of the following:

a. Regulated process streams; and
b. Other streams as necessary to allow use of the combined wastestream formula of 40 CFR 403.6(e).

The control authority may allow for verifiable estimates of these flows where justified by cost or feasibility considerations.

(5) Wastewater constituents and characteristics including but not limited to those mentioned in this article, and any federal, state or local standards. Sampling and analysis shall be performed in accordance with procedures established by the EPA pursuant to Section 304 (g) of the Act; in 40 CFR, Part 136, as amended; and 40 CFR, Part 403.12 (b)(5), as amended.

(6) Certification: A statement, reviewed by an authorized representative of the industrial user (as defined in section 21-315), and certified to by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required for the industrial user to meet the pretreatment standards and requirements; and

(7) Compliance schedule. If additional pretreatment and/or O&M will be required to meet the pretreatment standards; the shortest schedule by which the industrial user will provide such additional pretreatment and/or O&M. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard.

The following conditions shall apply to the schedule required by this subsection:

a. The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable pretreatment standards (e.g., hiring an engineer, completing plans, executing contract for major components, commencing construction, completing construction, etc.).
b. No increment referred to in Section 21-313(a)(7)(a) shall exceed nine (9) months.

Not later than fourteen (14) days following each date in the schedule and the final date for compliance, the industrial user shall submit a progress report to the control authority including, at a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for delay, and the steps being taken by the industrial user to return the construction to the schedule established. In no event shall more than nine (9) months elapse between such progress reports to the control authority.

(8) Any other information as deemed necessary by the City to evaluate the permit application.

(b) The environmental officer shall issue a permit if he determines that pretreatment facilities are adequate for efficient treatment and that discharged wastes will comply with the requirements of sections 21-302 and 21-303 and state or federal pretreatment standards, if applicable.
(Ord. No. 92-7-15, § II(13), 7-13-92)

Sec. 21-314. Permit conditions.

(a) Industrial wastewater discharge permits shall be expressly subject to all provisions of this article and all other applicable regulations, user charges and fees established by the city. Permits shall contain but not be limited to, the following:

(1) Statement of duration (in no case more than five (5) years);

(2) Statement of nontransferability without, at a minimum, prior notification to the POTW and provision of a copy of the existing control mechanism to the new owner or operator;

(3) Effluent limits based on applicable general pretreatment standards in 40 CFR Part 403, categorical pretreatment standards, local limits, and state and local law;

(4) Self-monitoring, sampling, reporting, notification and recordkeeping requirements, including an identification of the pollutants to be monitored, sampling location, sampling frequency, and sample type, based on the applicable general pretreatment standards, local limits, and state and local law;

(5) Statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements, and any applicable compliance schedule. Such schedules may not extend the compliance date beyond applicable federal deadlines.

(Ord. No. 92-7-15, § II(14), 7-13-92)

Sec. 21-315. Signatory requirements for industrial user reports.

The reports required under sections 21-308 and 21-310 through 21-312 shall include the certification below:

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to ensure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering information, the information submitted is, to the best of my knowledge true, accurate and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

and shall be signed as follows:

(1) By a responsible corporate officer, if the industrial user submitting the reports is a corporation.

(2) By a general partner or proprietor if the industrial user submitting the reports is a partnership or sole proprietorship, respectively.

(3) The principal executive officer or environmental officer having responsibility for the overall operation of the discharging facility if the industrial user submitting the reports is a federal, state, or local governmental entity, or their agents.

(4) By a duly authorized representative of the individual designated in paragraphs (1), (2), or (3) of this section if:

a. The authorization is made in writing by the individual described in paragraphs (1), (2), or (3),
b. The authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the industrial discharge originates, such as the position of plant manager, operator of a well, or well field superintendent, or a position of equivalent responsibility for environmental matters for the company; and
c. The written authorization is submitted to the city.

(5) If an authorization under paragraph (4) is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or

overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of paragraph (4) of this section must be submitted to the city prior to or together with any reports to be signed by an authorized representative.

(Ord. No. 92-7-15, § II(15), 7-13-92)

Sec. 21-316. Permit issuance process.

(a) Permit duration: Permits shall be issued for a specified period, not to exceed five (5) years. A permit may be issued for a period less than five (5) years, at the discretion of the environmental officer.

(b) Permit appeals: The environmental officer will provide all interested persons with notice of final permit decisions. Upon notice by the environmental officer, any person, including the industrial user, may petition to appeal the terms of the permit within thirty (30) days of the notice to the environmental appeals committee.

(1) Failure to submit a timely petition for review shall be deemed to be a waiver of the appeal.

(2) In its petition, the appealing party must indicate the permit provisions objected to, the reasons for this objection, and the alternative condition, if any, it seeks to be placed in the permit.

(3) The effectiveness of the permit shall not be stayed pending a reconsideration by the committee. If, after considering the petition and any arguments put forth by the environmental officer, the committee determines that reconsideration is proper, it shall remand the permit back to the environmental officer for reissuance. Those permit provisions being reconsidered by the environmental Officer shall be stayed pending reissuance.

(4) An environmental appeals committee decision not to reconsider a final permit shall be considered final administrative action for purposes of judicial review.

(c) Permit action: The city with approval of the POTW has the power to deny or condition new or increased contributions of pollutants, or changes in the nature of pollutants, to the POTW by an industrial user where such contributions do not meet applicable pretreatment standards and requirements or where such contributions would cause the POTW to violate its NPDES permit. The environmental officer may modify the permit for good cause including but not limited to, the following:

(1) To incorporate any new or revised federal, state, of local pretreatment standards or requirements.

(2) Material or substantial alterations or additions to the discharger's operation processes, or discharge volume or character which were not considered in drafting the effective permit.

(3) A change in any condition in whether the industrial user or the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge.

(4) Information indicating that the permitted discharge poses a threat to the control authority's collection and treatment systems, POTW personnel or the receiving waters.

(5) Violation of any terms or conditions of the permit.

(6) Misrepresentation or failure to disclose fully all relevant facts in the permit application or in any required reporting.

(7) Revision of or a grant of variance from such categorical standards pursuant to 40 CFR 403.13.

(8) To correct typographical or other errors in the permit.

(9) To reflect transfer of the facility ownership and/or operation to a new owner/operator.

(10) Upon request of the permittee, provided such request does not create a violation of any applicable requirements, standards, laws, or rules and regulations.

The filing of a request by the permittee for a permit modification, revocation and reissuance, or termination, or a notification of planned

changes or anticipated noncompliance, does not stay any permit condition.

(d) Permit transfer: Permits may be reassigned or transferred to a new owner and/or operator with prior approval of the environmental officer:

(1) The permittee must give at least thirty (30) days advanced notice to the environmental officer.

(2) The notice must include a written certification by the new owner which:

a. States that the new owner has no immediate intent to change the facility's operations and processes.

b. Identifies the specific date on which the transfer is to occur.

c. Acknowledges full responsibility for complying with the existing permit.

(e) Permit termination: Pretreatment permits may be terminated for reasons including but not limited to, the following:

(1) Falsifying self-monitoring reports.

(2) Tampering with monitoring equipment.

(3) Refusing to allow timely access to the facility premises and records.

(4) Failure to meet effluent limitations.

(5) Failure to pay fines.

(6) Failure to pay sewer charges.

(7) Failure to meet compliance schedules.

(f) Permit reissuance: The user shall apply for permit reissuance by submitting a complete permit application a minimum of ninety (90) days prior to the expiration of the user's existing permit.

(g) Continuation of expired permits: An expired permit will continue to be effective and enforceable until the permit is reissued if:

(1) The industrial user has submitted a complete permit application at least ninety (90) days prior to the expiration date of the user's permit.

(2) The failure to reissue the permit, prior to expiration of the previous permit, is not due to any act or failure to act on the part of the industrial user.

(Ord. No. 92-7-15, § II(16), 7-13-92)

Sec. 21-317. General reporting and record-keeping requirements.

(a) If sampling performed by an industrial user indicates a violation, the user shall notify the control authority within twenty-four (24) hours of becoming aware of the violation. The user shall also repeat the sampling and analysis and submit the results of the repeat analysis within thirty (30) days after becoming aware of the violation.

(b) If an industrial user subject to the reporting requirements of section 21-311 or section 21-312 monitors any pollutant more frequently than required by the control authority, using the procedures as prescribed 40 CFR 403.12(g)(4), the results of this monitoring shall be included in the report.

(c) Any industrial user subject to the reporting requirements established in this article or the permit shall retain for a minimum of three (3) years any records of monitoring activities and results (whether or not such monitoring activities are required by this article or the permit) and shall make such records available for inspection and copying by the EPA, TCEQ or the control authority. This period of retention shall be extended during the course of any unresolved litigation regarding the industrial user or the POTW or when requested by the state or the federal government. For all samples, such records shall include but not be limited to:

(1) The date, exact place, method, and time of sampling and the name or names of the person or persons taking the samples;

(2) The date analyses were performed;

(3) Who performed the analyses;

(4) The analytical techniques/methods used; and

(5) The results of such analyses.

(Ord. No. 92-7-15, § II(17), 7-13-92; Ord. No. 2008-11-14, § II, 11-10-08)

Sec. 21-318. Procedures for abatement of violations.

(a) Whenever the environmental officer has determined that any person has violated any provision of this article or permit, or that such violation is continuing or reoccurring, he will investigate and respond to such instances of industrial user noncompliance in accordance with the enforcement response plan developed by the city in accordance with 40 CFR 403.8(f)(5). In addition to any other remedy provided for in this article, the environmental officer may issue a notice and order directing that such violation be corrected. Such notice and order shall state:

(1) The nature of the violation and the provisions of this article which have been violated.

(2) The corrective action that must be taken and the amount of time allowed to correct the violation.

(3) That the person receiving the notice or order may appeal to the environmental appeals committee by filing an appeal, in writing, with the environmental officer within five (5) days of the service of the notice or order.

(4) That failure to comply with the notice or order and failure to file a timely appeal may result in termination of sewer and/or water service.

(b) Any notice and order issued under this article shall be in writing and served in person or by registered or certified mail on the user of the sewage system or other persons determined to be responsible for such violation.

(c) Any person may appeal the notice and order of the environmental officer by filing a written notice of appeal with the environmental officer on forms provided by the environmental officer. Such notice of appeal shall be filed within five (5) days of service of the order.

(d) If no timely appeal is filed, the environmental officer may, if violation is continuing or reoccurring, terminate sewer and/or water service to the person ordered to correct or abate such violation if the violation has not been corrected within the time specified in the order.

(e) The city, after informal notice to the discharger, can immediately and effectively halt or prevent any discharge of pollutants and/or terminate water service when such action is necessary, in the opinion of the environmental officer, in order to stop an actual or threatened discharge which presents, or may present, an imminent or substantial endangerment to the health or welfare of persons, to the environment, causes interference with the treatment processes or causes the POTW to violate its NPDES permit.
(Ord. No. 92-7-15, § II(18), 7-13-92)

Sec. 21-319. Environmental appeals committee.

(a) An environmental appeals committee is hereby established and authorized to hear and decide appeals from any order issued by the environmental officer pursuant to this article. The committee shall be composed of the city manager, or assistant city manager, the public works director and the city attorney or their designated representative.

(b) The committee may call and hold hearings, administer oaths, receive evidence at the hearing, issue subpoenas to compel the attendance of witnesses and the production of papers and documents related to the hearing, and make findings of fact and decisions with respect to administering its powers herein.

(c) Upon the hearing, the committee shall determine if there is a preponderance of evidence to support the environmental officer's determination and order. The decision of the committee shall be in writing and contain findings of fact. If the committee determines that there is a preponderance of evidence to support the determination and order of the environmental officer, the committee shall, in addition to its decision, issue an order:

(1) Requiring discontinuance of such violation or condition;

(2) Requiring compliance with any requirement to correct or prevent any condition or violation, or

(3) Suspending or revoking any permit issued under this article.

(d) In any decision issued by the committee, the order shall specify the time in which the compliance with the order must be taken. A copy of the order shall be delivered to the appellant or person to whom the order is directed in person or sent to him by registered or certified mail.
(Ord. No. 92-7-15, § II(19), 7-13-92)

Sec. 21-320. Determining the character and concentration of wastewater.

(a) The wastewater discharged or deposited into the sewage system shall be subject to periodic inspection and sampling as often as may be deemed necessary by the environmental officer. Industrial users will be inspected and monitored a minimum of once per year. Sampling shall be conducted according to customarily accepted methods, reflecting the effect of constituents upon the sewage system and determining the existence of hazards to health, life, limb, and property.

(b) The examination and analysis of the characteristics of waters and wastes shall be:

(1) Performed in accordance with procedures established by the administrator pursuant to Section 304(h) of the Act and contained in 40 CFR 136 and amendments thereto or with any other test procedures approved by the administrator. Sampling shall be performed in accordance with the techniques approved by the Administrator. Where 40 CFR Part 136 does not include sampling or analytical techniques for the pollutants in question, or where the Administrator determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analyses shall be performed using validated analytical methods or any other sampling and analytical procedures, including procedures suggested by the POTW or other parties, approved by the administrator.

(2) Determined from suitable samples taken at the control manhole provided or other control points authorized by the City provided at the expense of the industry.

(3) The city may select an independent firm or laboratory to perform sampling and laboratory analyses.

(4) The determination of the character and concentration of industrial wastewater shall be made by the environmental officer at such times and on such schedules as he may establish.

(5) The city may require any person determined to be discharging wastewater in violation of this article to compensate the city for the costs of sampling, analyses of the discharges and additional administrative fees until the discharged wastewater is in compliance with this article.

(Ord. No. 92-7-15, § II(20), 7-13-92)

Sec. 21-321. Sampling and analyses fees.

(a) Each significant industrial user for which the control authority has reporting requirements under its National Pollutant Discharge Elimination System permit shall compensate the city for the cost of sampling, laboratory analyses and administration required to monitor wastewater discharges. As often as required to conform to EPA mandates, the environmental officer shall determine the number of samples and frequency of sampling necessary to maintain surveillance of discharges.

(b) Each contributing industry or commercial firm for which the city is required to take samples and run laboratory analyses to monitor wastewater discharges shall compensate the city for the cost of sampling and laboratory analyses.

(c) All fees required under this article shall be invoiced to the contributing industry or commercial firm by the city and shall be payable as indicated on the invoice.
(Ord. No. 92-7-15, § II(21), 7-13-92)

Sec. 21-322. Industrial wastewater surcharge.

(a) A surcharge may be applied in addition to the monthly sewer service charge for the discharge of above normal strength wastewater to cover the additional costs of treating such wastewater. Such a charge is collected by the city.

(b) The surcharge shall be calculated as follows:

C = [B(Bu-250) + S (Su-250)] × F × V

Where:

C = Surcharge to the user in dollars

B = Unit cost factor for treating one unit of BOD (per 1,000 gallons)

Bu = The tested BOD of the discharge

S = Unit cost factor for treating one unit of total suspended solids (per 1,000 gallons)

Su = The tested total suspended solids of the discharge

F = A factor of 8.34 to convert mg/L to pounds/gallon

V = Monthly billing volume (discharge) in thousand gallons

250 = Average domestic BOD and total suspended solids (250 mg/L).

(Ord. No. 92-7-15, § II(22), 7-13-92)

Sec. 21-323. Inspection and sampling.

(a) Representatives of the city, the U.S. Environmental Protection Agency, the TCEQ, and the Texas Department of Health, or any successor agency bearing proper credentials and identification, shall be permitted to enter any properties at any reasonable time for the purpose of inspection, observation, measurement, sampling, examination and copying of records, and testing of the sewage system or any wastewater discharged into the sewage system.

The environmental officer shall carry out all inspection and monitoring procedures necessary to determine compliance with applicable pretreatment standards and requirements.

(c) Anyone acting under this authority shall observe the establishment's rules and regulations concerning safety, internal security and fire protection.

(Ord. No. 92-7-15, § II(23), 7-13-92; Ord. No. 2008-11-14, § II, 11-10-08)

Sec. 21-324. Control manhole.

(a) When necessary to monitor wastewater discharged into the sewage system, the environmental officer may require an industrial user to install a suitable control manhole in order to adequately sample and measure such wastewater. Installation of meters, equipment and accessories as deemed necessary by the environmental officer may also be required.

(b) Required control manholes shall be located to provide ample room in or near the facility to allow accurate sampling and preparation of samples for analyses. The manhole and any required installed equipment shall be maintained by the user at all times in safe and proper operating condition.

(c) Before beginning construction of a control manhole, the user shall submit plans to the environmental officer for review and approval to insure compliance with this section. Plans must include any meters or other equipment required to be installed.

Sec. 21-325. Pretreatment required.

(a) Industrial users shall provide necessary wastewater treatment as required to comply with this article, Federal Categorical Pretreatment Standards, and any state or federal pretreatment regulation. Any facilities required to pretreat wastewater to a level acceptable to the city shall be provided, operated and maintained at the user's expense. The city can require the development of a compliance schedule by each industrial user for the installation of technology required to meet applicable pretreatment standards and requirements.

(b) Before beginning construction of pretreatment facilities, the user shall submit detailed plans and operating procedures for the facility to the environmental officer for review and approval. The review and approval of such plans and procedures will in no way relieve the user from the responsibility of modifying the facility as necessary to produce an effluent acceptable to the city under the provisions of this article.

(c) All industrial users shall promptly notify the POTW in advance of any substantial change in the volume or character of pollutants in their discharge.

(d) All records relating to compliance with the pretreatment standards shall be made available to officials of the city, state, or Environmental Protection Agency upon request.

(e) The determination of the character and concentration of industrial wastewater shall be made by the environmental officer at such times and on such schedules as he may establish.
(Ord. No. 92-7-15, § II(25), 7-13-92)

Sec. 21-326. Notice of significant noncompliance.

(a) The city shall publish annually a list of industrial users in significant noncompliance of applicable pretreatment standards or other pretreatment requirements during the previous twelve (12) months. The notification shall also summarize any enforcement actions taken against the users during the same period. Said list shall be published in the largest daily newspaper published in the municipality in which the control authority is located.

(b) For purposes of this section; an industrial user is in significant noncompliance if its violation(s) meets one or more of the criteria defined under 40 CFR 403.8(f)(2)(vii).
(Ord. No. 92-7-15, § II(26), 7-13-92)

Sec. 21-327. Falsifying information.

Any person who knowingly makes any false statements, representation or certification in any application, record, report, plan or other document filed or required to be maintained pursuant to this article, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this article, shall, upon conviction, be punished by a fine of not more than two thousand dollars ($2000.00) for each conviction.
(Ord. No. 92-7-15, § II(27), 7-13-92)

Sec. 21-328. Bypass.

(a) *Bypass not violating applicable pretreatment standards or requirements.* An industrial user may allow any bypass to occur which does not cause pretreatment standards or requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provisions of subsections (b) and (c), below.

(b) *Notice.*

(1) If an industrial user knows in advance of the need for a bypass, it shall submit prior notice to the control authority, if possible at least ten (10) days before the date of the bypass.

(2) An industrial user shall submit oral notice of an unanticipated bypass that exceeds applicable pretreatment standards to the control authority within twenty-four (24) hours from the time the industrial user becomes aware of the bypass. A written submission shall also be provided within five (5) days of the time the industrial user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The control authority may waive the written report on a case-by-case basis if the oral report has been received within twenty-four (24) hours.

(c) *Prohibition of Bypass.*

(1) Bypass is prohibited, and the control authority may take enforcement action against an industrial user for a bypass, unless:

a. Bypass was unavoidable to prevent loss of life, personal injury or severe property damage;
b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment down time. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventative maintenance; and

c. The industrial user submitted notices as required under subsection (b) of this section.

(2) The control authority may approve an anticipated bypass, after considering its adverse effects, if the control authority determines that it will meet the three (3) conditions in subsection (c)(1) of this section.

Sec. 21-329. Slug control plan.

(a) Each industrial user shall provide protection from slug discharges, as defined in section 21-301 of this article. The control authority may require the industrial user to develop and implement a slug control plan. The plan shall contain, at a minimum, the following elements:

(1) Description of discharge practices, including nonroutine batch discharges;

(2) Description of stored chemicals;

(3) Procedures for immediately notifying the POTW of slug discharges, including any discharge that would violate a prohibition under 40 CFR 403.5, with procedures for follow-up written notification within five (5) days;

(4) If necessary, procedures to prevent adverse impact from accidental spills, including inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operation, control of plant site run-off, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants (including solvents), and/or measures and equipment for emergency response.

(Ord. No. 92-7-15, § II(29), 7-13-92)

Sec. 21-330. Notice of potential problems, including slug loading.

All categorical and noncategorical industrial users shall notify the POTW and the city immediately of all discharges that could cause problems to the POTW, including any slug loadings, by the industrial user.

(Ord. No. 92-7-15, § II(30), 7-13-92)

Sec. 21-331. Upsets.

(a) Effect of an upset. An upset shall constitute an affirmative defense to an action brought for noncompliance with categorical pretreatment standards if the requirements of subsection (b) are met.

(b) Conditions necessary for a demonstration of upset. An industrial user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operation logs, or other relevant evidence that:

(1) An upset occurred and the industrial user can identify the cause(s) of the upset;

(2) The facility was at the time being operated in a prudent and workmanlike manner and in compliance with applicable operation and maintenance procedures;

(3) The industrial user has submitted the following information to the POTW and control authority within twenty-four (24) hours of becoming aware of the upset (if this information is provided orally, a written submission must be provided within five (5) days);

a. A description of the indirect discharge and the cause of noncompliance;
b. The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue;
c. Steps being taken and/or plans to reduce, eliminate and prevent recurrence of the noncompliance.

(c) Burden of proof. In any enforcement proceeding the industrial user seeking to establish the occurrence of an upset shall have the burden of proof.

(d) Reviewability of agency consideration of claims of upset. In the usual exercise of prosecutorial discretion, agency enforcement personnel should review any claims that noncompliance was caused by an upset. No determinations made in the course of the review constitute final agency action subject to judicial review. Industrial users will have the opportunity of a judicial determination on any claim of upset only in an enforcement

action brought for noncompliance with categorical pretreatment standards.

(e) User responsibility in case of upset. The industrial user shall control production or all discharges to the extent necessary to maintain compliance with categorical pretreatment standards upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost or fails. (Ord. No. 92-7-15, § II(31), 7-13-92)

Sec. 21-332. Notification of discharge of hazardous wastes.

(a) Industrial users shall notify the city, POTW, the EPA Regional Waste Management Division Director, and state hazardous waste authorities in writing of any discharge into the POTW of a substance which, if otherwise disposed of, would be a hazardous waste under 40 CFR Part 261. Such notification must include the name of the hazardous waste as set forth in 40 CFR Part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). If the industrial user discharges more than one hundred (100) kilograms of such waste per calendar month to the POTW, the notification shall also contain the following information to the extent such information is known and readily available to the industrial user: An identification of the hazardous constituents contained in the wastes, an estimation of the mass and concentration of such constituents in the wastestream discharged during that calendar month, and an estimation of the mass of constituents in the wastestream expected to be discharged during the following twelve (12) months. Industrial users shall provide the notification no later than one hundred eighty (180) days after the discharge of the listed or characteristic hazardous waste. Any notification under this subsection need be submitted only once for each hazardous waste discharged. However, notifications of changed discharges must be submitted under 40 CFR 403.12(j). The notification requirement in this section does not apply to pollutants already reported under the self-monitoring requirements of 40 CFR 403.12(b), (d) and (e).

(b) Dischargers are exempt from the requirements of section 21-330(a) during a calendar month in which the discharge is no more than fifteen kilograms of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e). Discharge of more than fifteen kilograms of non-acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e), requires a one-time notification.

Subsequent months during which the industrial user discharges more than such quantities of any hazardous waste do not require additional information.

(c) In the case of any new regulations under Section 3001 of the Resource Recovery and Conservation Act ("RCRA") identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the Industrial User must notify the POTW, the EPA Regional Waste Management Division Director and the state hazardous waste authorities of the discharge of such substance within ninety (90) days of the effective date of such regulations.

(d) In the case of any notification made under section 21-330 of this article, the industrial user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.
(Ord. No. 92-7-15, § II(32), 7-13-92)

Sec. 21-333. Confidential information.

(a) Information and data on a user obtained from reports, questionnaires, permit applications, permits and monitoring programs and from inspections shall be available to the public or other governmental agency without restriction unless the user specifically requests and is able to demonstrate to the satisfaction of the city that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets of the user.

(b) When requested by the person furnishing a report, the portions of a report which might disclose trade secrets or secret processes shall not be made available for inspection by the public, but shall be made available upon written request to governmental agencies for uses related to this article, the National Pollutant Discharge Elimination System (NPDES) Permit, state disposal system permit and/or the pretreatment programs; provided, however, that such portions of a report shall be available for use by the state or any state agency in judicial review or enforcement proceedings involving the person furnishing the report. Effluent data as defined in 40 CFR 2.302 will not be considered confidential.
(Ord. No. 92-7-15, § II(33), 7-13-92)

Sec. 21-334. Miscellaneous offenses relating to sewer system.

No person other than a regular employee or officer of the city charged with such duties, shall do or aid in doing any of the following acts:

(a) Opening, closing, lifting or removing the cover of any sanitary sewer manhole or clean-out plug of the city sewer system;

(b) Interfering with, destroying, impairing, injuring or defacing any property which is a part of or essential to the proper functioning of the city sewer system;

(c) Covering or concealing from view any sanitary sewer manhole;

(d) Tapping and/or otherwise connecting into an existing sanitary sewer main which is a part of the city sewer system.
(Ord. No. 92-7-15, § II(34), 7-13-92)

Sec. 21-335. Dangerous discharges.

The control authority, after informal notice to the discharger, can immediately and effectively halt or prevent any Discharge of pollutants which reasonably appears to present an imminent endangerment to the health or welfare of persons. The control authority, after notice to the affected industrial users and an opportunity to respond, can halt or prevent any discharge to the POTW which presents or may present an endangerment to the environment or which threatens to interfere with the operation of the POTW.
(Ord. No. 92-7-15, § II(35), 7-13-92)

Sec. 21-336. Penalties.

(a) In addition to prohibiting certain conduct by natural persons, it is the intent of this article to hold a corporation or association legally responsible for prohibited conduct performed by an agent acting in behalf of a corporation or association and within the scope of his office or employment.

(b) Any person found to be guilty of violating provisions of this article shall become liable to the city for any expense, loss, or damage occasioned by the city for reason of appropriate clean-up and proper disposal of said waste materials.

(c) Additionally, the city is entitled to pursue all other criminal and civil remedies, including injunctive (judicial) relief to which it is entitled under the authority of statutes and/or other ordinances and/or under applicable state and federal laws against a person continuing prohibited discharges or violating any other provision of this article.
(Ord. No. 92-7-15, § II(36), 7-13-92)

Secs. 21-337—21-350. Reserved.

ARTICLE VIII. LIQUID WASTE MANAGEMENT*

DIVISION 1. GENERALLY

Sec. 21-351. Applicability.

This article shall not apply to residential uses.
(Ord. No. 2018-10-2, § I, 10-8-18, eff. 1-1-19)

*__Editor's note—__Ord. No. 2018-10-2, § I, adopted October 8, 2018, effective January 1, 2019, repealed the former article VIII, §§ 21-351, 21-361—21-366, 21-381—21-384, and 21-391—21-393, and enacted a new article VIII as set out herein. The former article VIII pertained to waste hauling and derived from Ord. No. 2008-7-10, adopted July 28, 2008.

Sec. 21-352. Definitions.

For the purpose of this article, the terms and phrases used in this article shall have the following meanings:

Approved. Accepted as satisfactory under terms of this article and is given written approval by the approving authority.

Approving authority. City of Plano or its duly authorized deputy, agent or representative.

Director. Director of the City of Plano Environmental Health and Sustainability Department or his or her duly authorized representative.

Disposal. The discharge, deposit, injection, dumping, spilling, leaking, or placing of grease trap waste, grit trap waste, septage, or waste oil into or onto any premises or into the air.

Disposal facility. A premises, with a permit to operate from the state, at which liquid waste is processed, treated, and/or intentionally placed into or on any land and at which the waste will remain for final disposal.

Fat, oil, and grease (FOG). A substance derived from an animal and/or plant source that is used in, or is a by-product of, the cooking or food preparation process. All are sometimes referred to herein as "grease" or "greases."

Food processing plant. As defined in chapter 9 of the City of Plano's Code of Ordinances.

Food service facility. A food preparation or food service establishment where food is prepared, served or offered for sale, including, but not limited to, bakeries, bars, butcher shops, cafes, clubhouses, delicatessens, ice cream parlors, hospitals, hotels, restaurants, or schools. This shall not include a single-family residence or dwelling not used for the commercial preparation or sale of food.

Grease trap. A device that separates or retains FOG generated from food preparation prior to wastewater entering the sanitary sewer collection system, including, but not limited to, grease, light density liquids, fatty liquids, semi-liquid substances, waterborne fats, oils, and solids.

Grease trap waste. Substance removed from a grease trap, including, but not limited to, grease, light density liquids, fatty liquids, semi-liquid substances, waterborne fats, oils, and solids.

Grit/sand trap. A receptacle designed or constructed to intercept or prevent the passage of petroleum based oil, grease wastes, and solids into the sanitary sewer system.

Grit/sand trap waste. The liquids or solids removed from a grit/sand trap.

Hazardous waste. Liquid, semi-liquid or solid waste or combination waste, which has one or more of the following characteristics:

(1) Toxic, corrosive, reactive, flammable, combustible, explosive, or otherwise capable of causing personal injury or illness; or

(2) Hazardous to human health or the environment when improperly treated, stored, transported, disposed of, or managed; or

(3) Is identified as a hazardous waste in the Texas Solid Waste Disposal Act, as amended, or 40 CFR Part 261.3, as amended.

Liquid waste. Solid, liquid or gaseous substance or any combination thereof that is derived from a grease trap, grit/sand trap, waste oil recovery trap, chemical toilet, septic tank, or washwater operations.

Liquid waste transport vehicle. An approved mobile device in which liquid waste may be transported upon a public street or highway.

Local limits. The discharge limits found in section 21-302, Prohibited discharges and section 21-303, Hazardous metals and chemical or toxic substances of the City of Plano Code of Ordinances, as amended.

Manifest system. A system of documents, commonly known as "trip tickets," issued by the director that are used to track generation, transportation, or disposal of waste products.

Municipal separate storm sewer system or MS4. The system of conveyances (including roads with drainage systems, municipal streets, catch

basins, curbs, gutters, ditches, man-made channels, or storm drains) owned and operated by the City of Plano and designed or used for collecting or conveying stormwater, and which is not used for collecting or conveying sewage.

Operator. A person who causes, creates, generates, stores, or otherwise produces liquid waste.

Owner. Any person who owns, operates, or has care, custody, or control over any portion of a premises or a facility regulated under this article.

Permit. The document issued by the director that authorizes a person to operate, own, manage, or service a grease trap or grit/sand trap.

Person. An association, corporation, individual, partnership, other legal entity, government, or governmental subdivision or agency.

Premises. A lot, plot or parcel of land, body of water, water course, stream, easement or public right-of-way, including any structures thereon.

Publicly owned treatment works or POTW means a treatment works as defined by Section 212 of the Clean Water Act, (33 U.S.C. 1292), as amended. This definition includes, but is not limited to, any devices or systems used in the storage, treatment, recycling, or reclamation of municipal sewage or industrial wastes of a liquid nature. For the purposes of this article, POTW shall refer to the North Texas Municipal Water District.

Sanitary sewer. A public sewer that conveys domestic wastewater or industrial wastewater.

Sample port. An area which is designed for the removal of effluent water from the discharge line of a grease trap, grit/sand trap, septage tank, or the effluent sewer line of a building that does not have a trap and is being tested to determine compliance of effluent water discharge standards.

Septage. Waste removed from a portable toilet, chemical toilet, or septic tank.

Spill. The accidental or intentional loss or unauthorized loss or discharge of grease trap waste, grit/sand trap waste, septage, waste oil, or raw material.

Storm sewer or *storm drain.* A sewer which carries storm water, surface water, and drainage, but excludes sewage and polluted industrial wastes and is not part of a POTW.

TCEQ. Texas Commission on Environmental Quality and its predecessor and successor agencies.

Transporter. A person who operates a vehicle for the purpose of transporting liquid waste.

Trap. A grit/sand trap or grease trap.

Trip ticket. A system of documents, commonly known as "manifest system," issued by the director that are used to track generation, transportation, or disposal of waste products.

Washwater. Water-borne solids, liquids, gaseous substances, or other residue and debris resulting from a washing or cleaning process.

Washwater operation. A commercial cleaning process that generates washwater as a result of washing vehicles, equipment, structures, or paved surfaces.
(Ord. No. 2018-10-2, § I, 10-8-18, eff. 1-1-19)

Sec. 21-353. Offenses.

(a) A person shall not generate fat, oil, or grease from a food processing plant and/or food service facility without installing, using, and maintaining appropriate grease traps as required by this article.

(b) A person shall not discharge or allow the discharge of any suspended solids, petroleum oil, non-biodegradable cutting oil, mineral oil, or any fat, oil or grease into the POTW in concentrations that cause a visible sheen, detrimental effect, or blockage in the POTW.

(c) A person shall not wash, clean, service, or perform a cleaning or maintenance activity on a motorized or electric vehicle or equipment without installing, using, and maintaining a grit/sand trap(s) as required by section 21-363 of this article, as amended.

(d) A person shall not discharge or allow the discharge of liquid waste to an unapproved disposal facility, offer liquid waste for sale, or exchange liquid waste for barter. This prohibi-

tion does not apply to recycled cooking oils that are being sold or exchanged for recycling purposes.

(e) A person shall not intentionally or unintentionally allow pollutants that exceed local limits to enter the POTW.

(f) A person shall not allow liquid waste to accumulate upon a premises.

(g) A person shall not discharge or allow the discharge of liquid waste onto another premises or into the MS4, a street or highway, a parking lot, a water course or a stream.
(Ord. No. 2018-10-2, § I, 10-8-18, eff. 1-1-19)

Secs. 21-354—21-360. Reserved.

DIVISION 2. LIQUID WASTE GENERATION

Sec. 21-361. Generally.

(a) *Permit required.*

(1) A person must have an approved permit on file with the approving authority before installing or operating a grease trap or grit/sand trap.

(2) A permit is non-transferable.

(3) At such time any information submitted on the approved permit has changed a person shall immediately notify the approving authority by completion and submittal of a new application.

(b) *Inspection.*

(1) *Routine inspection.* After the approving authority presents official credentials and provides verbal notice of the purpose of the inspection of trap(s), the owner shall grant access to traps, allow the approving authority to inspect traps, and provide information and records related to the operation and maintenance of traps, during the facility's hours of operation and other reasonable times.

(2) In the event of a discharge, the owner shall grant access and allow the approving authority to inspect all portions of the premises that are reasonably related to the discharge.

(c) *Installation and maintenance.*

(1) A person shall install and maintain a trap in compliance with this article.

(2) A person shall install and maintain a trap so that it is readily and easily accessible for cleaning or inspection.

(3) A person shall install and maintain a trap pursuant to a single certificate of occupancy unless a variance has been approved by the director.
(Ord. No. 2018-10-2, § I, 10-8-18, eff. 1-1-19)

Sec. 21-362. Grease traps.

(a) *New grease traps.*

(1) A grease trap shall be installed, operated, and maintained in accordance with the manufacturer's recommendations, this article, chapter 9 of this Code of Ordinances, or the City of Plano Plumbing Code, whichever is most restrictive, unless a variance has been approved by the director.

(2) A person that performs food preparation activity at a food processing plant and/or food service facility shall install and maintain a grease trap in accordance with this article.

(3) An operator of a grease trap shall install and maintain a sample port in compliance with written specifications for installation of the sample port obtained by the operator from the approving authority.

(b) *Existing grease traps.*

(1) Existing grease traps shall be operated and maintained in accordance with manufacturer's recommendations, this article, chapter 9 of this Code of Ordinances, or City of Plano Plumbing Code, whichever is most restrictive, unless a variance has been approved by the director.

(2) If notified by the approving authority that a grease trap is not functioning properly in violation of federal, state,

and/or local standards or regulations, said person shall install and maintain an approved grease trap and sample port.

(3) A person that performs food preparation activity at an existing food processing plant and/or food service facility shall be required to install and maintain a grease trap in accordance with this article.

(c) *Responsibility.*

(1) A person generating liquid waste shall:

a. Install a grease trap as required by this article;

b. Maintain the grease trap in good repair and sanitary condition;

c. Not install or use any system, process, or pretreatment or alter the design or function of a grease trap, unless approved by the director, including, but not limited to, the use of enzymes, bacteria, or other additives;

d. Supervise the proper cleaning and complete removal of the contents of the trap;

e. Immediately report spills and accidents involving liquid waste to the approving authority by phone or email;

f. Clean up spills immediately;

g. Abate unsanitary conditions immediately;

h. Dispose of material used for abatement in a timely manner and by means approved by the director;

i. Protect the MS4 and the environment from discharges of liquid waste, washwater, and other contaminants caused by spill, overflow, or the remediation of spill or overflow; and

j. Not discharge waste of any kind into the MS4.

(d) *Trap evacuation.*

(1) Grease traps shall be evacuated and cleaned as required by the following sections to prevent accumulation of sediment or floating material that would impair the efficiency of the grease trap, to ensure the discharge is in compliance with local discharge limits, and to ensure no visible grease is observed in discharge.

(2) Grease traps shall be completely evacuated at a minimum of every ninety (90) days, or more frequently if one (1) of the following conditions apply and written notice has been given to the operator by the approving authority:

a. Twenty-five (25) percent or more of the wetted height of the grease trap, as measured from the bottom of the device to the invert of the outlet pipe, contains floating materials, sediment, oils, or greases; or

b. The discharge exceeds local limits; or

c. There is a history of noncompliance; or

d. The director determines more frequent service, a single event service, or scheduled service is necessary for the proper operation of the grease trap.

(3) Each grease trap shall be fully evacuated unless the trap volume is greater than the tank capacity on the vacuum truck in which case the transporter shall arrange for additional transportation capacity so the trap is fully evacuated within a twenty-four (24) hour period, in accordance with 30 Texas Administrative Code, chapter 312, section 312.143, as amended.

(4) If a person ceases operation of a grease trap, the person is required to pump the trap before abandoning the operation.

(5) A person that generates liquid waste shall not allow hazardous waste or liquid waste in combination with hazardous waste to be removed from a premises by a liquid waste transporter operating under a city permit. Removal of hazardous

waste shall only be performed by an industrial hazardous waste hauler registered with the state.

(6) When liquid waste is picked up, a person representing the operator or owner shall verify the accuracy of the trip ticket provided by the transporter.

(7) A person that generates liquid waste shall maintain a copy of all trip tickets for a period of no less than three (3) years at the premises of generation.

(8) All trip tickets shall be available for review upon request of the director.

(e) *Variances.*

(1) Any person may submit to the director a written request for a variance from this article.

(Ord. No. 2018-10-2, § I, 10-8-18, eff. 1-1-19)

Sec. 21-363. Grit/sand traps.

(a) *New grit/sand traps.*

(1) A grit/sand trap shall be installed, operated, and maintained in accordance with the manufacturer's recommendations, this article, or in accordance with the City of Plano Plumbing Code, whichever is most restrictive, unless a variance has been approved by the director.

(2) A person washing, cleaning, servicing, or performing a cleaning or maintenance activity on a motorized or electric vehicle or equipment shall install and maintain a grit/sand trap if a newly proposed or existing floor drain is located in the areas of operation.

(3) An operator of a grit/sand trap shall install and maintain a sample port in accordance with the written specifications of the approving authority.

(b) *Existing grit/sand traps.*

(1) Existing facilities that wash, clean, service, or perform a cleaning or maintenance activity on a motorized or electric vehicle or equipment with floor drains in the areas of operation that undergo a change of ownership or are expanded or renovated to add floor drains in areas of operation must install and maintain a grit/sand trap.

(2) Existing grit/sand traps shall be operated and maintained in accordance with the manufacturer's recommendations, this article, or the City of Plano Plumbing Code, whichever is most restrictive, unless a variance has been approved by the director.

(3) If notified by the approving authority that a grit/sand trap is not functioning properly in violation of federal, state, and/or local standards or regulations, said person shall install and maintain an approved grit/sand trap and sample port.

(c) *Responsibility.*

(1) The owner or operator of a premises generating liquid waste shall:

a. Install a grit/sand trap as required by this article.

b. Maintain the grit/sand trap in good repair and sanitary condition.

c. Not install or use any system, process, or pretreatment or alter the design or function of the grit/sand trap unless approved in writing by the director, including, but not limited to, the use of enzymes, bacteria, or other additives.

d. Supervise the proper cleaning and complete removal of the contents of the trap.

e. Immediately report spills and accidents involving liquid waste to the approving authority by phone or email.

f. Clean up spills and abate unsanitary conditions immediately.

g. Dispose of material used for abatement in a timely manner and by means approved by the director.

h. Protect the MS4 and the environment from discharges of liquid waste,

washwater, and other contaminants caused by spill or overflow or the remediation of spill or overflow.

i. Not discharge waste of any kind into the MS4.

(d) *Trap evacuation.*

(1) Grit/sand traps shall be evacuated and cleaned as required by the following sections to ensure the efficiency of the grit/sand trap is not impaired.

(2) A person shall have the grit/sand trap completely evacuated, including the cleaning of the trap sides and bottom, by a transporter permitted by the city when the discharge exceeds local limits and at one of the following frequencies:

a. At a frequency specified by a variance granted by the director;

b. Every one hundred eighty (180) days or more frequently if the director determines more frequent service, a single event service, or scheduled service is necessary for the proper operation of the grit/sand trap. Written notice will be given to the operator by the approval authority specifying the required frequency.

(3) Each grit/sand trap shall be fully evacuated unless the trap volume is greater than the tank capacity on the vacuum truck in which case the transporter shall arrange for additional transportation capacity so the trap is fully evacuated within a twenty-four (24) hour period, in accordance with 30 Texas Administrative Code, chapter 312, section 312.143, as amended.

(4) If a person ceases operation of a grit/sand trap, the person is required to pump the trap before abandoning the operation. If the operator fails to empty a trap, the owner shall be held responsible for evacuation of the grit/sand trap.

(5) A person that generates liquid waste shall not allow hazardous waste or liquid waste in combination with hazardous waste to be removed from the premises by a liquid waste transporter operating under a city permit. Removal of hazardous waste shall only be performed by an industrial hazardous waste hauler registered with the state.

(6) When liquid waste is picked up, a person representing the operator or owner shall verify the accuracy of the trip ticket provided by the transporter.

(7) A person that generates liquid waste shall maintain a copy of all trip tickets for a period of no less than three (3) years at the premises of generation.

(8) All trip tickets shall be available for review upon request of the director.

(e) *Variance.*

(1) Any person may submit to the director a written request for a variance from this article.

(Ord. No. 2018-10-2, § I, 10-8-18, eff. 1-1-19)

Secs. 21-364—21-380. Reserved.

DIVISION 3. LIQUID WASTE TRANSPORT, DISPOSAL FACILITY

Sec. 21-381. Liquid waste transport vehicle.

(a) *Permit and inspection.*

(1) A person shall obtain a permit for each liquid waste transport vehicle that operates within the City of Plano.

(2) Each permit holder shall display the permit sticker on the back of the tank of the liquid waste transport vehicle.

(3) A person operating a liquid waste transport vehicle shall comply with the following and provide documentation or otherwise demonstrate to the approving authority that the following conditions have been met:

a. Vehicle must be registered and authorized by TCEQ;

b. Vehicle shall contain a single tank as an integral part of the vehicle used for transportation of liquid waste;

c. Piping, valves, and all connections shall be permanently attached to tank and/or vehicle;

d. Tank shall be liquid tight;

e. Tank shall be constructed and mounted to allow proper cleaning of the exterior and interior;

f. Piping, valves, and connections shall be accessible and easily cleaned;

g. Inlets (openings) of tank shall be constructed so waste will not spill or leak during transfer, filling, or during transport;

h. Outlet connections shall be constructed and maintained so no liquid waste will seep, leak, or spill from the openings during loading, transport, or discharge;

i. Outlets including pumps, valves, cylinders, diaphragms, and other appurtenances shall be designed and maintained to control spillage, spray, leakage, or seeps while in use or during transport;

j. Vehicle must be equipped with the necessary tools to clean a trap in accordance with this article; and

k. Vehicle must be equipped with a functional volume measuring or indicating device.

(b) *Maintenance, operation.*

(1) Persons operating a liquid waste transport vehicle shall perform the following maintenance:

a. Maintain vehicle in a clean condition so as not to create spray or emit obnoxious odors during operations;

b. Maintain hoses, tanks, valves, pumps, cylinders, seals, diaphragms, pipes, and other attached equipment in good repair;

c. Provide plugs or caps for each valve to be used during transport; and

d. Cause a vehicle exterior to be clean and odor free at the beginning of each work day.

(c) *Responsibility.*

(1) A person operating a liquid waste transport vehicle shall:

a. Determine if the content of the trap is acceptable waste for the permitted vehicle;

b. Ensure the vehicle is equipped and of sufficient size to handle the load; and

c. Ensure the materials to be transported are not hazardous as defined in this article.

(2) A liquid waste transporter shall use a disposal facility permitted and approved by the city, state, or federal government.

(3) A liquid waste transporter shall use a liquid waste tracking manifest system approved by the director such as, but not limited to, City of Plano trip ticket books or an approved computer or internet based reporting system.

a. A person transporting liquid waste shall be required to complete the trip ticket as written in the instructions on the book.

b. A person transporting liquid waste must maintain a completed copy of the trip ticket book for a period of three (3) years. Copies of the manifests must be made available to the director upon immediate request.

c. A complete copy of the trip ticket shall be provided to the director within fifteen (15) days of the date of receipt of the liquid waste from the operator.

(Ord. No. 2018-10-2, § I, 10-8-18, eff. 1-1-19)

Sec. 21-382. Disposal facility.

(a) A person operating a disposal facility shall not allow liquid waste on their premises to enter another premises or the MS4.

(b) A person operating a disposal facility shall not store liquid waste in a manner that creates a noxious odor or in a manner that creates or may create a health hazard.

(c) A person operating a disposal facility shall comply with the following:

(1) Obtain and maintain compliance with all licenses and/or permits required by local, state and/or federal law;

(2) Accept waste only from a transporter with a permit to haul waste;

(3) Maintain trip ticket copies for a period of three (3) years;

(4) Accept only those classes of wastes authorized by license or permit; and

(5) Make available all records requested by the director.

(Ord. No. 2018-10-2, § I, 10-8-18, eff. 1-1-19)

Secs. 21-383—21-390. Reserved.

DIVISION 4. ENFORCEMENT

Sec. 21-391. Authority.

Authority for criminal enforcement and abatement. The city manager or his designee shall have authority for enforcement of criminal offenses and for abatement, assessment of expenses, and obtaining liens pursuant to this article.
(Ord. No. 2018-10-2, § I, 10-8-18, eff. 1-1-19)

Sec. 21-392. Permit denial, suspension, revocation.

(a) The director may suspend or revoke a permit if it is determined that a person has violated this article. The notice shall be issued to the owner or operator in writing and delivered by certified mail and/or in person and include the following:

(1) State the reasons for the suspension or revocation;

(2) State the evidence that the person shall provide in order to demonstrate that the reasons for suspension or revocation have been eliminated;

(3) State that the permit holder may request an appeal hearing by submitting a timely request to the director pursuant to the section of this Code; and

(4) Provide the name and address of the person to whom a request for appeal hearing may be made.

(b) *Emergency suspension.* If the director finds a condition constituting an imminent health or environmental hazard as defined by local, state, or federal law, the director may issue an emergency suspension of said permit without prior warning, notice, or hearing.
(Ord. No. 2018-10-2, § I, 10-8-18, eff. 1-1-19)

Sec. 21-393. Appeal.

(a) If the director issues an order, denies the issuance of a permit, or suspends or revokes a permit, the person may file for an appeal made in writing to the city manager or their designee within ten (10) business days from the date of certified mail or conspicuous posting on property. The appeal shall:

(1) Set forth the decision of the director complained of;

(2) Contain any documents and argument on this issue for the city manager or their designee to consider; and

(3) If applicable, discuss any emergency or exigent circumstances that appellant believes are material to when the hearing should be set.

(b) A hearing shall be scheduled at a time and place designated by the city manager or their designee no later than five (5) business days after receiving an appeal that conforms with the requirements of this article, and the city manager

or their designee's written decision shall be furnished to the appellant no later than five (5) business days after the date of the hearing.
(Ord. No. 2018-10-2, § I, 10-8-18, eff. 1-1-19)

Sec. 21-394. Penalty.

(a) In addition to prohibiting certain conduct by persons, it is the intent of this article to hold a corporation or association legally responsible for prohibited conduct performed by an agent acting on behalf of a corporation or association and within the scope of his office or employment.

(b) Any person, operator, or owner who violates any provision of this article, or fails to comply with any provision hereof, shall be subject to the penalty as provided for in subsection 1-4(a) of the Code of Ordinances of the City of Plano. Each offense, and each and every day such violation shall continue shall be deemed to constitute a separate offense.

(c) It shall be an offense to intentionally or knowingly fail to comply with any provision of this article. Any person intentionally or knowingly violating a provision of this article shall be punished by a fine not to exceed two thousand dollars ($2,000.00). Each day a violation occurs shall constitute a separate offense.

(1) *Repeat and habitual offenders.*

a. If it is shown on the trial of an offense under this article that the defendant has previously been finally convicted of an offense under this article, on conviction the person shall be punished by a fine of not less than five hundred dollars ($500.00) and not to exceed two thousand dollars ($2,000.00).

b. If it is shown on the trial of an offense under this article that the defendant has previously been finally convicted of two (2) or more offenses under this article, on conviction the person shall be punished by a fine of not less than one thousand dollars ($1,000.00) and not to exceed two thousand dollars ($2,000.00).

c. This subsection for repeat and habitual offenders applies only to a person finally convicted of a second or subsequent offense within three (3) years of the date on which the most recent preceding offense was committed.

(d) In addition to the criminal offenses and penalties prescribed in this article, the city may pursue other remedies such as abatement of nuisances, injunctive relief, administrative adjudication, and revocation of licenses or permits. Any person found guilty of violating provisions of this article shall become liable to the city for any expense, loss, or damage incurred by the city for reason of appropriate clean-up and disposal of said waste materials.
(Ord. No. 2018-10-2, § I, 10-8-18, eff. 1-1-19)

[The next page is 1977]

APPENDIX A

ZONING*

(RESERVED)

*__Editor's note__—This appendix is reserved for future inclusion of the zoning ordinance.

__Charter references__—Planning and zoning, § 8.01 et seq.; power of council to adopt and modify zoning plan, § 3.07(g).

__Cross references__—Administration, Ch. 2; alcoholic beverages, Ch. 3; building and building regulations, Ch. 6; cable television, Ch. 7; food and food establishments, Ch. 9; licenses and business regulations, Ch. 11; planning and development, Ch. 16; cable television franchise, App. B; fences in industrial districts, § 6-204; planning and zoning commission, § 16-41 et seq.; visibility obstructions, § 19-3; taxation of historic structures, § 20-51 et seq.; connections to public sewer, § 21-68.

__State law reference__—Zoning, Vernon's Ann. Civ. St., arts. 1011a et seq., 1175(26).

__Annotation__—The Plano zoning ordinance is constitutional, *Fountain Gate Ministries, Inc. v. City of Plano*, 654 S.W.2d 841 (1983).

[The next page is 2077]

APPENDIX B

RESERVED*

*__Editor's note—__Ord. No. 2011-4-4, § I, adopted April 11, 2011, repealed the former appendix B, §§ 1—35 in its entirety, which pertained to the cable television franchise and derived from Ord. No. 83-7-8, adopted July 11, 1983.

[The next page is 3099]

ORDINANCE DISPOSITION TABLE

This table shows the disposition of all ordinances of the city commencing with Ordinance No. 84-2-10. Ordinances containing no disposition were omitted from this codification. This table also shows ordinances of the city preceding Ordinance No. 84-2-10 which were included in the 1969 Code which are also included in the recodification.

Ordinance Number	Adoption Date	Section	Section this Code
31	1- 3-50	1	21-64
58-4-1	4-29-58	1	17-17, 17-18
		2	17-23
		2, 4	17-19
		3—5	17-20—17-22
		6	17-27
		7	17-30, 17-31
		8	17-25
		9	17-28, 17-29
		10	17-24
		11	17-26
		12	17-32
59-5-1	5-11-59	5	21-132
59-5-1	5-23-60	5	2-21—2-26
61-2-3	2- 3-61	1	21-166
		2	21-169, 21-171
		3, 4	21-172
		5—7	21-191—21-193
		8	21-177
		10	21-176
		11	21-170
		12	21-194
		13	21-168, 21-173
		14	21-175
		15	21-174
61-9-3	9-11-61	I	12-99, 12-100
		II	12-100
61-11-4	11- 9-61	1	12-256
61-12-2	12-18-61	4	13-1
		6, 7	13-2
		9	13-4
		10	13-3
62-3-3	3-12-62	12-8-2	21-68
		12-12-1	21-16, 21-21
		12-12-2	21-17
		12-12-3	21-18, 21-19
		12-12-4	21-151
		12-12-5	21-20
		12-12-6	21-149, 21-150
		12-12-7	21-19, 21-147
62-7-3	7- 9-62	3-1-1	6-271
		3-1-2	6-273
		3-1-3—3-1-6	6-306—6-309
		3-1-7, 3-1-8	6-311, 6-310
		3-1-9	6-293
		3-2-1—3-2-18	6-272, 6-346
		3-3-1	6-326
		3-3-2	6-378
		3-3-3	6-230
		3-3-4, 3-3-5	6-327, 6-328

Ordinance Number	Adoption Date	Section	Section this Code
		3-3-6	6-275, 6-294
		3-3-7	6-329
		3-3-8	6-292
		3-4-1, 3-4-2	6-346, 6-347
		3-4-3	6-348, 6-349
		3-4-4	6-351
		3-4-5	6-350, 6-352—6-354, 6-374, 6-376
		3-4-6	6-355, 6-387
		3-4-8	6-374
		3-4-9	6-350
		3-4-10	6-389
		3-5-1	6-371, 6-385, 6-386
		3-5-2	6-372
		3-5-3	6-371, 6-373 6-374
		3-5-4	6-282
		3-5-5	6-375, 6-377
		3-5-7	6-350, 6-377 6-380
		3-5-8	6-379
		3-5-9	6-381
		3-5-10	6-390
		3-5-12	6-380
		3-5-13	6-382
		3-5-14	6-383, 6-384
		3-5-15	6-371
		3-6-1, 3-6-2	6-411
		3-6-3	6-412, 6-413 6-283, 6-284
		3-6-4	6-412
		3-6-5—3-6-7	6-414—6-416
		3-6-8	6-329 6-417—6-420
		3-7-1	6-286
		3-7-2—3-7-4	6-283—6-285
		3-7-5	6-287
		3-7-6	6-289
		3-7-7	6-288
		3-7-8	6-282
		3-7-9	6-286, 6-290, 6-291
		3-7-10	6-290, 6-291
		3-8-1	6-274, 6-275
		3-8-2	6-277
		3-8-3	6-278
		3-8-5, 3-8-6	6-278, 6-279
		3-9-1	6-274
		3-10-1	6-281
		3-10-2, 3-10-3	6-280 12-257
63-1-2	1-14-63	1, 2	6-274, 6-275

Ordinance Number	Adoption Date	Section	Section this Code
63-9-7	9-23-63	1, 2	6-132, 6-133
		3	6-136
		4	6-131
		5	6-135
		6	6-134
		7	6-137
63-11-1	11-11-63	1, 2	14-1.1
64-6-2	6-29-64	3	12-114
	7-13-64	16-1-1, 16-1-2	12-1, 12-2
		16-2-1	12-3
		16-2-9	12-4
			12-53
		16-3-1	12-5, 12-6
		16-3-11	12-8
		16-4-1	12-52
		16-4-2	12-51
		16-4-6	12-56
		16-4-8	12-54
		16-5-1	12-71
		16-8-2	12-97
		16-8-3	12-108
		16-8-4	12-105
		16-10-2	12-7
		16-11-3	12-109, 12-110
		16-11-4	12-111
		16-12-1	12-158
		16-12-2	12-156
		16-12-3—16-12-5	12-161—12-163
		16-12-6	12-10
		16-12-7—16-12-13	12-164—12-170
		16-12-14, 16-12-15	12-159, 12-160
		16-12-16	12-157
		16-17-1—16-17-3	14-2
64-11-3	11-23-64		12-101
65-5-2	5-10-65	1, 2	21-36, 21-37
		3	21-40
		4	21-39
		5, 6	21-43, 21-44
		7	21-42
		8	21-41
		9	21-45, 21-46
65-9-1	9-13-65	1—4	14-3
65-10-1	10-11-65	1, 2	19-1
65-11-1	11-22-65	1, 2	6-19
66-4-1	4-21-66	2	21-68, 21-69, 21-116
67-2-2	2-13-67		2-2
67-3-3	3-27-67	1	2-56
		3	2-58, 2-59
		5	2-61
67-3-4	3-27-67		2-64
67-5-1	5- 8-67		6-413, 16-19, 16-22, 21-147

Ordinance Number	Adoption Date	Section	Section this Code
67-8-2	6-14-67	1	12-2
67-9-5	9-25-67	1—3	2-62
		5	2-62
67-9-7	9-25-67	1, 2	6-277
67-10-3	10- 9-67	1	12-72
		2	12-78
		3	12-72
68-3-3	3-25-68	1	16-132
68-8-1	8-12-68	1—4	3-6
69-1-1	1-23-69	3	1-7
69-2-1(P)	2-10-69	4	12-12
	11-13-72		
69-2-3	2-10-69	1	17-52
		3	17-54
		4	17-53
		5	17-55
		6	17-57
		7	17-60
		8	17-56
		9	17-61
		10	17-58, 17-59
		11	17-51
69-6-2(P)	6-13-69	1	12-76
69-12-1	12- 8-69		2-65
70-2-3	2- 9-70	1	12-77
70-4-4(R)	4-27-70		6-20
70-6-4	6-23-70	2	12-12
		4	12-12
70-9-6	9-14-70	1—5	2-156—2-160
		6, 7	2-161
		8	2-162
		9	2-161, 2-163
		10	2-164
71-2-3	2-22-71	1, 2	14-1.1
71-3-9	3-22-71	1—3	14-3
71-5-3	5-24-71	1	6-17, 6-18, 6-36, 6-37, 6-40
		3	6-16
71-8-5	8-23-71	3, 4	14-48, 14-49
		5	14-47
		6	14-46
72-4-5	4-28-72	1	21-135
		3—5	21-147
72-5-7	5-22-72	1—5	6-3
72-5-8	5-22-72	3	6-351
		4	6-354
		5	6-1
72-7-3	7-10-72		2-57
72-10-2	10- 9-72	1	12-74
72-10-6	10-23-73		2-63
72-10-8	10-23-72	1, 3	12-98
72-11-6	11-13-72	1	12-101
73-1-2	1- 8-73		12-101
73-2-12	2-26-73	1	12-101
73-3-1	3-12-73	1B	21-116

Ordinance Number	Adoption Date	Section	Section this Code
73-3-2	3-12-73	I, II	12-31, 12-32
		III	12-34
		IV	12-33
		V	12-35
		VI	12-36
73-4-4	4-23-73	I	12-12
73-8-9	8-27-73	1	12-101
73-9-3	9-10-73	1, 2	15-3
73-9-4	9-10-73	1	12-64
73-10-3	10- 8-73	1	12-101
73-12-10	12-19-73	1	12-101
73-12-11	12-19-73	1	6-152, 6-153
		2	6-154, 6-155, 6-157, 6-158, 6-162
		3	6-159, 6-160
		4	6-161
		6	6-151
74-2-11	2-25-74	1—5	12-257
74-2-12	2-25-74	1—6	2-2
74-3-4	3-11-74	I	12-32, 12-36
74-4-3	4- 8-74	1—7	19-3
74-4-5	4- 8-74	1—3	14-3
74-4-7	4- 8-74	1	12-52
74-4-15	4-22-74	1	12-101
74-5-3	5-13-74	1	12-101
74-6-4	4-19-76	2	21-147
74-6-5	6-24-74	I, II	12-101
74-8-3	8-12-74	1—3	14-9
74-10-8A	10-30-74	1, 2	6-275, 6-276
74-10-9A	10-30-74		6-413
		1	6-278, 6-279, 6-282, 6-327, 6-388,
74-11-3	11-11-74		2-64
75-4-5	4-14-75	1	12-13
75-4-6	4-14-75	1	6-17
		2	6-36, 6-37, 6-40,
		3	6-44, 6-49
75-4-7	4-14-75	1—3	6-374
75-6-7	6-23-75	1	6-283
		3	6-39
75-11-15	11-24-75		2-64
75-12-7	12-18-75	I	12-12
76-1-1	1-12-76	2—5	14-5
76-1-3	1-12-76	1, 2	2-5
76-1-8	1-26-76	2	18-1
		3	18-3
		4	18-32
		5, 6	18-4, 18-5
		7, 8	18-6
		9—13	18-7—18-11
		14	18-2, 18-51, 18-52

Ordinance Number	Adoption Date	Section	Section this Code
		15, 16	18-59, 18-60
		17—22	18-53—18-58
76-1-10	1-26--76	1	2-156
76-3-3	3- 8-76	1	14-2
76-4-14	4-19-76	3	21-135
76-4-23	4-26-76	1	6-43
76-6-4	6-24-74	2—4	21-135
76-6-13	6-28-76	1, 2	6-275, 6-276
76-6-14	6-28-76	1	6-413
76-6-15	6-28-76	1	6-277
		2	6-283
76-7-3	7-12-76	1	21-135
76-8-7	8- 9-76	I, II	12-102
76-9-3	9-13-76	I	6-40
76-9-7	9-13-76	I	18-32
76-10-11	10-25-76	I	12-101
76-11-5	11- 8-76	1—3	14-8
77-1-11	1-24-77	2	6-177
		3—6	6-179—6-182
		7—11	6-201—6-205
		12, 13	6-183, 6-184
		15, 16	6-185, 6-186
		17	6-178
		18, 19	6-187, 6-188
		20	6-176
77-2-2	2-14-77	1, 2	21-135
77-6-3	6-13-77	I	12-101
77-6-5	6-13-77	1	21-135
77-8-1	8- 8-77	I	14-28
		II	14-26
		III	14-30
		IV	14-32
		V	14-31
		VI	14-33
		VII	14-27
		VIII	14-34
		IX, X	14-29
77-8-2	8- 8-77	1—6	12-206—12-211
		7	17-52—17-54
77-8-7	8- 8-77	7	17-57
77-10-4	10-10-77	1(1)—(4)	19-23—19-26
		1(3), (4)	19-25, 19-26
		3	19-21
77-10-5, 77-10-6	10-10-77	I	12-101
77-11-5	11-14-77	I	12-13
77-11-12	11-28-77	1	14-2
77-12-1	12- 9-77	1—4	3-2—3-5
		5	3-1
78-2-3, 78-2-4	2-13-78	I	12-101
78-3-1	3-13-78	1	6-17
		2	6-36, 6-37, 6-40
		3	6-44, 6-49
		5	6-39
		7	6-43

Ordinance Number	Adoption Date	Section	Section this Code
		8	6-42
		9	6-41
78-3-11	3-27-78	I	12-102
78-5-2	5- 8-78	I	12-101
78-5-3	5- 8-78	1	12-74
78-7-4	7-10-78	I	12-102
78-7-20	7-24-78	1—4	20-73—20-76
		5	20-71
		7	20-72
78-8-5	8-14-78	2	18-2, 18-51, 18-52
		3	18-12
		4	18-2
		6	18-1
78-9-14	9-25-78		6-179
78-9-16	9-25-78	1	6-40
78-9-17	9-25-78	1	18-6
78-9-24	9-25-78	1	6-111, 6-112
		2, 3	6-113, 6-114
78-9-25	9-25-78	I	12-13
78-9-27	9-25-78	1	12-32
78-10-14	10- 9-78	1	16-41
		2	16-43, 16-44
		3	16-42
		4	16-45
78-10-20	10-23-78	1	2-64.1
		2	2-66
78-10-21	10-23-78	1	2-67
79-1-15	1-22-79	I	12-101
79-1-21	1-22-79	1	6-111, 6-112
79-2-28	2-26-79	1	19-24
79-3-6, 79-3-7	3-12-79	I	12-102
79-3-11	3-12-79	1—6	2-156—2-161
		7	2-164
79-4	4- 9-79	4	6-274, 6-275
79-4-2		1	6-275
		2	6-276
		3	6-283
		7	6-413
79-4-10	4-23-79	1—3	19-41—19-43
79-5-8	5-14-79	I	12-101
79-5-26	5-29-79	2	21-147
		3	21-135
79-5-31	5-29-79	1—6	21-153
79-6-20	6-25-79	1	15-102
		2	15-104
		3	15-103
		4	15-105
		5	15-106, 15-107
		6	15-101
79-7-10	7-23-79	1—3	12-114
79-8-26	8-27-79	1	12-35
79-8-27	8-27-79	1	16-43, 16-44
79-8-28	8-27-79	1	2-157
79-8-29	8-27-79	1	12-114
79-9-18	9-10-79	1	6-40
79-9-20	9-10-79	1, 2	21-146

Ordinance Number	Adoption Date	Section	Section this Code
79-9-23	9-10-79	I	12-101
79-9-36	9-25-79	I	12-13
79-10-15	10-22-79	1	2-156
79-10-19	10-22-79	1	6-282
79-11-6	11-12-79	I	12-103, 12-104
79-11-9	11-12-79	1, 2	12-115
79-12-5	12-10-79	1	6-3
79-12-10	12-10-79	I	12-101
79-12-13	12-10-79	2	16-101—16-111
80-2-23	2-25-80	2	18-2, 18-51, 18-52
		7	18-2, 18-12, 18-51, 18-52
80-3-9	3-10-80	1	6-39
80-4-9	4-14-80	I	12-101
80-4-14	4-14-80	1	6-55
80-4-23	4-28-80	1	6-3
80-7-5	7-14-80	2	19-23, 19-25, 19-26
80-8-17	8-25-80	1—3	2-1
80-9-9	9- 8-80	2	6-40
80-9-10	9-27-82	1	6-39
80-9-15—80-9-17	9-22-80	1	12-74
80-9-21—80-9-24	9-22-80	1	12-74
80-9-26—80-9-28	9-22-80	1	12-74
80-9-34	9-22-80	I	12-101
80-9-38	9-22-80	1	6-40
80-9-40	9-22-80	1	6-413
80-11-3	11-10-80	1	12-74
80-11-12	11-24-80	1	12-74
80-11-14, 80-11-15	11-24-80	1	12-74
80-12-7	12- 8-80	I	12-101
80-12-9	12- 8-80	1	6-276
81-1-10	1-26-81	1	12-74
81-1-18	1-26-81	1	6-17
		3A	6-44, 6-49
		4	6-53
81-1-19	1-26-81	1—6	12-116
81-2-6		VIII B 1	15-84
81-2-14, 81-2-15	2-23-81	I	12-101
81-2-18	2-23-81	I	12-101
81-2-19	2-23-81	1, 2	12-116
81-3-11	3-23-81	I	12-101
81-3-15	3-23-81		12-73
81-4-7	4-13-81	1—3	14-6
81-5-9	5-25-81	1	12-74
81-5-10	5-25-81	I	12-101
81-6-1	6- 8-81	1	14-2
81-7-7	7-13-81	2, 3	6-275, 6-276
		4	6-283
		5	6-278
		8	6-413
81-7-20	7-27-81	I	12-101
81-8-7	8-10-81	1—8	19-44
81-8-11	8-10-81	3	8-16
		4	8-22

Ordinance Number	Adoption Date	Section	Section this Code
		7	8-19
		18	8-1
81-8-15	8-24-81	1	12-74
81-9-10	9-28-81	2—8	12-116
81-9-19	9-28-81	1	12-74
81-9-22	9-28-81	1	4-1
		2	4-10
		3	4-7, 4-8
		4	4-14, 4-17
		5	4-9
		6	4-16, 4-19, 4-20, 4-23
		7	4-13
		8	4-12
		9	4-11
		10	4-18
		11	4-15
		12, 13	4-21, 4-22
		14	4-3
		16	4-2
81-11-3	11- 9-81	1, 2	8-22
81-11-7	11- 9-81	1	12-74
81-11-18	11-23-81	1—4	2-67
81-12-6	12-14-81	2	6-52
81-12-10	12-14-81	1	16-103
82-1-5	1-11-82	II, III	20-30
82-1-11	1-11-82	1	12-74
82-1-21	1-25-82	I	20-31
		II, III	20-32, 20-33
		IV	20-35
		V	20-34
		VI	20-36
82-3-9	3- 8-82	1	12-74
		1—4	12-73
82-3-18	3-22-82		19-61
		1	19-56—~~1960~~
82-4-13	4-12-82	1	8-22
82-4-19	4-12-82	2	11-246
		3—6	11-286—11-289
		7, 8	11-266, 11-267
		9	11-269
		10	11-268
		11	11-272
		12	11-271
		13	11-270
		14	11-251
			11-252
		16, 17	11-273, 11-274
		18	11-253
		19	11-249
		20	11-250
		21	11-247
		22	11-248
82-5-9	5-10-82	1	6-346
	5-10-82	1	6-272
82-5-10	5-10-82	I	12-101

Ordinance Number	Adoption Date	Section	Section this Code
82-5-11, 82-5-12	5-10-82	1	12-73, 12-74
82-5-27	5-24-82	1, 3	20-16
82-5-28	5-24-82	I	18-32, 18-33
		II	18-31
82-5-29	5-24-82	1—3	20-17
82-6-15	6-28-82	1	12-73
82-7-8	7-26-82	1—6	6-436—6-441
		7	6-442, 6-443
		8, 9	6-444, 6-445
		10	6-446
		11	6-450
		12	6-448, 6-449
		13	6-447
		14	6-451
82-7-9	7-26-82	1	12-73
82-8-1(R)	8- 9-82	1—5	16-61—16-65
82-8-12	8- 9-82	1	11-221
		2	11-222, 11-226
		3	11-222
		4	11-230
		5	11-229
		6	11-224
		7	11-224, 11-227
		8	11-227
		9	11-223
		10	11-231
		11	11-222
		12	11-225
		13	11-224
		14	11-228
		15	11-222
82-8-13	8- 9-82	1—6	16-46
82-8-21	8-23-82	2, 3	21-147, 21-148
		4	21-135
82-8-22	8-23-82	3, 4	21-131
		5	21-154
		6, 7	21-153
	8-23-83	2	21-152
82-8-23, 82-8-24	8-23-82	1	21-133
82-9-7	9-13-82	I	12-101
82-9-9	9-13-82	I	12-101
82-9-13	9-13-82	1	7-16
		2	7-18
		3	7-20
		4	7-19
		5	7-23
		6	7-21
		7	7-22
		8	7-17
82-9-14	9-13-82	2—5	2-4
82-9-27	9-27-82	2	4-3, 4-6
		3	4-13
		4, 5	4-24
		6	4-4
		7	4-5
		9	4-4

Ordinance Number	Adoption Date	Section	Section this Code
82-9-29	9-27-82	1	6-179
82-9-30	9-27-82	1	6-40
82-9-31	9-27-82	1	6-39
82-9-32	9-27-82	1	6-375
82-9-34	9-27-82	II	15-81
		III	15-84
		IV—VI	15-85
		VII, VIII	15-86
		IX	15-83
		X	15-82
82-9-35	9-27-82	II	16-19
82-9-36	9-27-82	I, II	16-2
		III	16-17
		IV	16-46
82-9-37	9-27-82	I—III	16-20—16-22
82-10-7	10-12-82	2—8	21-134
82-11-2	11- 8-82	1	12-74
82-11-6(R)	11- 8-82	1—4	8-3
82-11-10	11-22-82	1	21-133
82-11-11, 82-11-12	11-22-82	I	12-101
82-11-17	11-22-82	1	12-131
		2, 3	12-133
		4	12-132
		5—7	12-134—12-136
82-11-21	11-22-82	1—4	19-2
82-12-11	12-26-83	1	19-22
82-12-14	12-13-82	1, 2	6-222, 6-223
82-12-19	12-27-82	1, 2	2-81, 2-82
		3	2-81
		4	2-83
83-2-5	2-14-83	II	16-221
		III	6-21
		IV	16-18
	11-22-82	9	12-138
		10	12-131.1
83-2-6	2-14-83	2	6-237
		3	6-239
		4, 5	6-237
		6	6-238
		8	6-236
83-2-7	2-14-83	1	20-1
83-2-8	7-11-83		App. B(note)
83-2-15	2-14-83	1	12-35
83-2-24	2-28-83	1	21-133
83-2-25	2-27-83	2	6-252
		3	6-254
		4, 5	6-252, 6-253
		7	6-251
83-3-26	3-28-83	1	12-74
83-3-27	3-28-83	I	12-101
83-4-8	4-11-83	1	2-140, 2-141
		2	2-142
		3	2-138
		4	2-136
		5	2-139
		6	2-137
83-5-6	5- 9-83	I	12-101

Ordinance Number	Adoption Date	Section	Section this Code
83-5-7	5- 9-83	2	12-73
83-5-12(R)	5-23-83	1, 2	16-84
		3	16-85
83-6-7	6-13-83	I	12-101
83-6-8	6-13-83	1—4	12-137
83-6-18	6-27-83	2	12-74
83-6-19	6-27-83	I	12-101
83-6-20	6-27-83	2	12-74
83-6-21	6-27-83	I	12-101
83-6-22	6-27-83	1	14-5
83-6-23	6-27-83	2	11-101
			11-103—11-106
			11-121—11-126
		3	11-102
83-6-24	6-27-83	1	6-111, 6-112
83-8-12	8- 8-83	2	11-201
		3	11-204
		4	11-207
		5, 6	11-205, 11-206
		7	11-203
		8	11-202
83-8-17	8-22-83	2	12-74
83-8-18	8-22-83	1	2-116, 2-117
		2	2-117
		3	2-118
		4(A)—4(B)	2-119, 2-120
		5, 6	2-121, 2-122
83-9-3	9-12-83	1	12-74
83-9-10	9-26-83	1	19-76—19-80
83-9-12	9-26-83	1	6-40
83-10-10	10-24-83	1, 2	6-3
		1, 2	6-350
		1, 2	12-36
			16-45
			16-84
			16-105
83-11-4, 83-11-5	11-14-83	1, 2	12-73, 12-74
83-11-6	11-14-83	1	6-2
83-11-20	11-22-83	1	12-115
83-12-3	12-12-83	I	12-101
83-12-4	12-12-83	II, II	8-3
83-12-11	12-26-83	1	19-22
83-12-12	12-26-83	1—5	19-22
84-1-7	1- 9-84	2(Art. I, §§ 1, 2)	11-141, 11-142
		2(Art. II, § 1)	11-182
		2(Art. II, §§ 2—4)	11-184—11-186
		2(Art. II, § 5)	11-183
		2(Art. II, § 6)	11-187
		2(Art. II, § 7)	11-181
		2(Art. III, §§ 1—4)	11-162—11-165
		2(Art. III, §§ 5—7)	11-166—11-168
		2(Art. III, § 8)	11-161
		2(Art. IV, § 1)	11-146
		2(Art. IV, § 2)	11-147
		2(Art. V)	11-143
		2(Art. VI, § 1)	11-144
		2(Art. VI, § 2)	11-145

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
84-2-10	2-13-84	14 St. from Ridgewood Dr. to Jupiter Rd.	I	12-101
84-2-11(R)	2-27-84	Concession request approval		
84-2-12	2-27-84	Annexation (AC 84-01)		
84-2-13	2-27-84	Rezoning (ZC 81-12)		
84-2-14	2-27-84	Rezoning (ZC 83-75)		
84-2-15	2-27-84	Rezoning (ZC 83-76)		
84-2-16	2-27-84	Rezoning (ZC 83-77)		
84-2-17	2-27-84	Rezoning (ZC 83-86)		
84-2-18	2-27-84	Rezoning (ZC 83-102)		
84-2-19	2-27-84	Rezoning (ZC 83-87)		
84-2-20	2-27-84	Regulates heliports, etc.	1, 2	5-16
			3	5-21
			4	5-19
			5	5-22
			6	5-26
			7	5-25
			8	5-23, 5-24
			9	5-27
			10	5-20
			11—15	5-28—5-32
			16	5-18
			18	5-17
84-2-21	2-27-84	Ave. K, West side—14th to 15th St.	I	12-101
84-3-1(R)	3-12-84	Contract authorized		
84-3-2(R)	3-12-84	Contract authorized		
84-3-3(R)	3-12-84	Agreement authorized	I	8-4
84-3-4	3-12-84	Amds Ch. 24	1	12-73
84-3-5	3-12-84	Speed limit—specific street		
84-3-6	3-12-84	Amds Ch. 24	1	12-73
84-3-7	3-12-84	Rezoning (ZC 84-01)		
84-3-8	3-12-84	Amds Zoning (ZC 83-103)		
84-3-9	3-12-84	Annexation (AC 84-02)		
84-3-10(R)	3-12-84	Agreement authorized		
84-3-11(R)	3-12-84	Recreation program in high school authorized		
84-3-12(R)	3-12-84	Agreement authorized		
84-3-13	3-12-84	Amds Ch. 24	2	12-74
84-3-14(R)	3-26-84	Agreement authorized		
84-3-15(R)	3-26-84	Agreement of exchange		
84-3-16(R)	3-26-84	Suspends proposed effective date of proposed schedule of changed rate		
84-3-17	3-26-84	Authorizes agreement		
84-3-18	3-26-84	Stopping, standing, parking specific street	I	12-101
84-3-19	3-26-84	Prohibits certain trucks on certain alley	I	12-137
84-3-20	3-26-84	Rezoning (ZC 83-81)		
84-3-21	3-26-84	Annexation (AC 84-03)		
84-3-22	3-26-84	Extends temporary certificate of occupancy		
84-3-23(R)	3-26-84	Honors employee		
84-3-24	3-26-84	Bonds authorized		
84-3-25	3-26-84	Bonds authorized		
84-3-26(R)	3-26-84	Approves agreement		
84-3-27(R)	3-26-84	Approves agreement		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
84-4-1(R)	4- 9-84	Canvassing election returns		
84-4-2(R)	4- 9-84	Authorizes city be designated plaintiff		
84-4-3(R)	4- 9-84	Supports construction of Highway 190		
84-4-4(R)	4- 9-84	Approves agreement		
84-4-5(R)	4- 9-84	Approves agreement		
84-4-6	4- 9-84	Prohibits stopping, standing and stopping in certain areas		
84-4-7	4- 9-84	Rezoning (ZC 83-98)		
84-4-8	4- 9-84	Requests extension for temporary certificate		
84-4-9(R)	4- 9-84	Authorizes reinbursement for consulting		
84-4-10(R)	4- 9-84	Adopts school crossing guard criteria	I—VI	12-11
84-4-11(R)	4- 9-84	Approves request for municipal golf course fees		
84-4-12(R)	4-23-84	Approves contract		
84-4-13(R)	4-23-84	Urges legislature to enact bill		
84-4-14(R)	4-23-84	Approves trade of land		
84-4-15	4-23-84	Rezoning (ZC 83-51)		
84-4-16	4-23-84	Amds § 8-301 of zoning ord. (ZC 84-10)		
84-4-17	4-23-84	Extends temporary certificate of occupancy		
84-4-18	4-23-84	Extends temporary certificate of occupancy		
84-4-19(R)	4-23-84	Suspends for 90 days zoning hearings		
R-84-5-1(R)	5-14-84	Authorizes agreement		
R-84-5-2(R)	5-14-84	Authorizes contract		
R-84-5-3(R)	5-14-84	Authorizes conditions of real estate contract		
84-5-4(R)	5-14-84	Release of interest in easement		
84-5-5(R)	5-14-84	Approves conditions of real estate contract		
84-5-6(R)	5-14-84	Supports development of transportation plan		
84-5-7	5-14-84	Amds Ord. 82-11-12, motor vehicles regulated	I	12-101
84-5-8	5-14-84	Parking motor vehicles on specific street declared unlawful	I	12-101
84-5-9	5-14-84	Annexation (AC 84-04)		
84-5-10	5-14-84	Rezoning (ZC 84-19)		
84-5-11	5-14-84	Rezoning (ZC 84-05)		
84-5-12	5-29-84	Grants permission for loudspeakers		
84-5-13(R)	5-29-84	Approves request for concession rights		
84-5-14(R)	5-29-84	Approves request for concession rights		
84-5-15(R)	5-29-84	Authorizes execution of quitclaim		
84-5-16	5-29-84	Temporarily closes certain street		
84-5-17	5-29-84	Annexation (AC 84-05)		
84-5-18	5-29-84	Prohibits stopping, standing and parking of motor vehicles on specific street	I	12-101
84-5-19(R)	5-29-84	Authorizes execution of construction assessment		
84-6-1(R)	6-11-84	Approves request for expenditure of funds		
84-6-2	6-11-84	Extends temporary certificates of occupancy		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
84-6-3	6-11-84	Rezoning (ZC 83-63)		
84-6-4	6-11-84	Rezoning (ZC 84-27)		
84-6-5	6-11-84	Rezoning (ZC 84-16)		
84-6-6	6-11-84	Rezoning (ZC 84-04)		
84-6-7	6-11-84	Rezoning (ZC 84-12)		
84-6-8	6-11-84	Rezoning (ZC 84-13)		
84-6-9	6-11-84	Establishes main line extension rate applicable to main line extension		
84-6-10(R)	6-25-84	Approves lease agreement with Texas Power & Light Co.		
84-6-11	6-25-84	Repeals Ord. No. 71-8-4, amends Ch. 2, Art. VI, §§ 2-102—2-107—Code of Conduct	11(2-102) 11(2-103) 11(2-104), 11(2-105) 11(2-106) 11(2-107)	2-99 2-96 2-100, 2-101 2-98 2-97
84-6-12	6-25-84	Amends Ord. No. 71-4-2 re:zoning (ZC 83-91)		
84-6-13	6-25-84	Amends Ord. No. 83-9-11 re:classification and pay plan of fire and police department members		
84-6-14	6-25-84	Abandons public right-of-way		
84-7-1(R)	7- 9-84	Authorizes execution of the Upper East Fork Wastewater Interceptor System Contract		
84-7-2(R)	7- 9-84	Authorizes mayor to approve plan		
84-7-3(R)	7- 9-84	Authorizes city manager to enter into contract		
84-7-4(R)	7- 9-84	Approves the release of the state's interest in a drainage easement		
84-7-5(R)	7- 9-84	Approves the release of the state's interest in a drainage easement		
84-7-6	7- 9-84	Amends comprehensive zoning ordinance (ZC 84-33)		
84-7-7	7- 9-84	Annexes land to city (AC 84-06)		
84-7-8	7- 9-84	Amends Ord. No. 72-5-7 re: building coordinating board	I	6-3
84-7-9	7- 9-84	Repeals Ord. No. 81-8-15 and 84-3-5	I	12-74
84-7-10	7- 9-84	Amends Ch. 24 (Traffic Code)	II	12-74
84-7-11	7- 9-84	Amends Ch. 24 (Traffic Code)	I	12-73
84-7-12(R)	7- 9-84	Recognizes duty of specific employee		
84-7-13	7- 9-84	Approves rate charges		
84-7-14(R)	7-23-84	Approves agreement to have water lines installed		
84-7-15(R)	7-23-84	Approves 1983-84 fiscal audit		
84-7-16(R)	7-23-84	Authorizes contract for real estate		
84-7-17	7-23-84	Abandons drainage easement		
84-7-18	7-23-84	Repeals Ord. No. 84-1-23—subdivision of land	II(1), (2) II(3) II(4)—(17)	16-133, 16-134 16-131 16-135—16-148
84-7-19	7-23-84	Amends Ord. No. 83-9-11 re: classification and pay plan		
84-7-20	7-23-84	Annexes property (AC 84-07)		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
84-7-21	7-23-84	Repeals Ord. No. 79-12-12 and 81-8-6—New ordinances adopted re: flood hazard	Art. I, § A Art. I, §§ B—D Art. II Art. III, §§ A, B Art. III, § C Art. III, §§ D—G Art. IV, §§ A, B Art. IV, §§ C, D Art. V, §§ A—D Art. VI Art. IX	16-163 16-165—16-167 16-161 16-168, 16-169 16-176 16-170—16-173 16-174, 16-175 16-177, 16-178 16-191—16-194 16-164 16-162
84-7-22(R)	7-23-84	Tables all public hearing in reference to zoning temporarily		
84-7-23(R)	7-23-84	Approves widening of roads		
84-8-1(R)	8-13-84	Elects municipal clerk of municipal court		
84-8-2(R)	8-13-84	Approves agreement		
84-8-3(R)	8-13-84	Executes deed for dedication of land		
84-8-4(R)	8-13-84	Approves selection of engineers for design services in Hazzard Park		
84-8-5(R)	8-13-84	Approves payment to developers	I	16-1
84-8-6(R)	8-13-84	Temporary certificate of occupancy approved		
84-8-7	8-13-84	Amends §§ 2-105 and 2-107 of comprehensive zoning ordinance (ZC 84-29)		
84-8-8	8-13-84	Annexes property (AC 84-09)		
84-8-9	8-13-84	Annexes property (AC 84-08)		
84-8-10	8-13-84	Annexes property (AC 84-10)		
84-8-11	8-13-84	Repeals Ord. No. 79-8-15		
84-8-12	8-13-84	Prohibits certain vehicles on certain streets	II	12-137
84-8-13(R)	8-13-84	Approves engineering firm to provide design services		
84-8-14(R)	8-13-84	Authorizes acceptance of donation		
84-8-15(R)	8-13-84	Waives jurisdiction of land		
84-8-16(R)	8-13-84	Designates specific board member		
84-8-17(R)		Suspends Res. No. 84-7-22(R)		
84-8-18(R)	8-27-84	Authorizes city manager to enter contract		
84-8-19	8-27-84	Motor vehicles re: stopping, standing and parking	I	12-101
84-8-20	8-27-84	Stopping, standing and parking	I	12-101
84-8-21	8-27-84	Stopping, standing and parking	I	12-101
84-8-22	8-27-84	Amends Ch. 24 (traffic) and Ord. No. 82-3-9	2	12-74
84-8-23	8-27-84	Speed limits upon certain streets	1	12-74
84-8-24	8-27-84	Amends Ch. 22 (taxation)	1	20-51—20-57
84-8-25	8-27-84	Adopts tax saver plan	1, 2	2-68

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
84-8-26	8-27-84	Regulates disposal of sewage and the use of public sewers	1	21-61
			2—8	21-81—21-87
			9—13	21-111—21-115
			14	21-65
			15	21-67
			16	21-62
			17—19	21-91—21-93
			20	21-91
			21	21-90
			22	21-89
			23	21-66
			24	21-63
			25, 26	21-94, 21-95
			27	21-88
			28	21-96
			32	21-62
84-8-27(R)	8-27-84	Recognizes specific citizen for contributions		
84-9-1(R)	9-10-84	Amplifiers		
84-9-2(R)	9-10-84	Concession		
84-9-3(R)	9-10-84	Concession		
84-9-4(R)	9-10-84	Literacy minigrant		
84-9-5	9-10-84	Rezoning (ZC 84-09)		
84-9-6	9-10-84	Rezoning (ZC 84-39)		
84-9-7	9-10-84	Certificate of occupancy		
84-9-8	9-10-84	Specific use permit (ZC 84-30)		
84-9-9	9-10-84	Zoning amendments (ZC 84-47)		
84-9-10	9-10-84	Closing street		
84-9-11(R)	9-10-84	Horizon Committee		
84-9-12(R)	9-10-84	Commendation		
84-9-13(R)	9-10-84	Commendation		
84-9-14(R)	9-10-84	Commendation		
84-9-15(R)	9-10-84	Commendation		
84-9-16(R)	9-10-84	Commendation		
84-9-17(R)	9-10-84	Commendation		
84-9-18(R)	9-10-84	Commendation		
84-9-19	9-10-84	Building Code	I(5.14)	6-17
			III(5.21), (5.22)	6-36
			III(5.23)	6-37
			III(5.24)	6-40
			III(5.25)	6-39
			III(5.26)—(5.28)	6-41—6-43
			III(5.29)	6-44, 6-45
			III(5.30), (5.31)	6-46, 6-47
			III(5.32)	6-48, 6-49
			III(5.34), (5.35)	6-50
			III(5.36)	6-51
			III(5.37), (5.38)	6-53
			III(5.39)	6-52
			III(5.40)—(5.42)	6-54—6-56

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
			III(5.43), (5.44)	6-57
			III(5.45)	6-58
			III(5.46)	6-60
			III(5.47)	6-59
			III(5.48), (5.49)	6-61, 6-62
			IV(5.49)	6-16
84-9-20	9-10-84	Fire	1	8-16
			2	8-18
			3	8-17
			4—6	8-42—8-44
			7—17	8-19—8-29
			18	8-30
			19	8-31
			20	8-41
			21	8-32
			22	8-33—8-36
			23	8-37, 8-38
			24	8-39
			25	8-40, 12-132, 12-133, 12-138
			26	8-2
			30	8-1
84-9-21	9-10-84	Budget		
84-9-22	9-10-84	Tax rate		
84-9-23(R)	9-24-84	State purchasing		
84-9-24(R)	9-24-84	Construction contract		
84-9-25	9-24-84	Aviation (Zoning)		
84-9-26	9-24-84	Aviation	I	5-16—5-32
84-9-27	9-24-84	Rezoning (ZC 84-52)		
84-9-28	9-24-84	Policemen and firemen		
84-9-29	9-24-84	Appropriation		
84-9-30	9-24-84	Street closed		
84-9-31(R)	9-24-84	Boundary with Allen		
84-10-1(R)	10- 8-84	Watershed management		
84-10-2(R)	10- 8-84	Telecommunication purchase		
84-10-3	10- 8-84	Street closed		
84-10-4	10- 8-84	Annexation (AC 84-11)		
84-10-5	10- 8-84	Disannexation (DC 84-13)		
84-10-6	10- 8-84	Rezoning (ZC 84-22)		
84-10-7	10- 8-84	Electrical code	I	6-275, 6-276
84-10-8(R)	10- 8-84	School crossings		
84-10-9	10- 8-84	Rezoning (ZC 84-02)		
84-10-10	10- 8-84	Calling election		
84-10-11	10- 8-84	Rezoning (ZC 84-15)		
84-10-12	10-22-84	Rezoning (ZC 84-44)		
84-10-13	10-22-84	Rezoning (ZC 84-41)		
84-10-14	10-22-84	Certificate of occupancy		
84-10-15	10-22-84	Fences	I	6-203
84-10-16	10-22-84	Street improvement		
84-10-17	10-22-84	Closing street		
84-10-18	10-22-84	Closing street		
84-10-19	10-22-84	Building Code	I	6-38, 6-76—6-97
84-10-20	10-22-84	Traffic	I	12-101
84-11-1(R)	11-12-84	Highway improvements		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
84-11-2	11-12-84	Traffic	II	12-74
84-11-3	11-12-84	Speed limit	I	12-74
84-11-4	11-12-84	Speed limit	I, II	12-73
84-11-5	11-12-84	One-way street		12-12
84-11-6	11-12-84	Rezoning (ZC 84-25)		
84-11-7	11-12-84	Rezoning (ZC 84-21)		
84-11-8	11-12-84	Rezoning (ZC 84-50)		
84-11-9(R)	11-12-84	Appropriation		
84-11-10(R)	11-12-84	Guidelines for zoning amendments		
84-11-11(R)	11-26-84	Equipment purchase		
84-11-12(R)	11-26-84	Road construction		
84-11-13(R)	11-26-84	Road construction		
84-11-14(R)	11-26-84	Sewer construction		
84-11-15(R)	11-26-84	Appropriation		
84-11-16	11-26-84	Annexation (AC 84-14)		
84-11-17	11-26-84	Railroads	I	12-257
84-11-18	11-26-84	Closing road		
84-11-19	11-26-84	School zones	I	12-73
84-11-20	11-26-84	Bond election		
84-11-21	11-26-84	Rockwall telephones		
84-12-1(R)	12-10-84	Appropriation		
84-12-2(R)	12-10-84	Lease		
84-12-3(R)	12-10-84	Road improvements		
84-12-4	12-10-84	Speed limit	I	12-74
84-12-5	12-10-84	School zones	I	12-73
84-12-6	12-10-84	Street paving		
84-12-7	12-10-84	Rezoning (ZC 84-35)		
84-12-8	12-10-84	Certificate of occupancy		
84-12-9	12-10-84	Certificate of occupancy		
84-12-10	12-10-84	Rezoning (ZC 84-28)		
84-12-11	12-10-84	Rezoning (ZC 84-48)		
84-12-12	12-10-84	Rezoning (ZC 84-58)		
84-12-13	12-10-84	Rezoning (ZC 84-57)		
84-12-14	12-10-84	Policemen and firemen		
84-12-15(R)	12-10-84	Telephone easement		
84-12-16(R)	12-18-84	Road improvements		
84-12-17(R)	12-18-84	Land purchase		
84-12-18	12-18-84	Parks and recreation	II	15-52
			III	15-53
			IV	15-56
			V	15-57, 15-58
			VI—XIII	15-59—15-66
			XIV, XV	15-54, 15-55
			XVII	15-51
84-12-19	12-18-84	Parking	I	12-101
84-12-20	12-18-84	Retirement	I	2-64
			II	2-65
84-12-21(R)	12-18-84	Appropriation		
84-12-22	12-18-84	Highway improvements		
84-12-23	12-18-84	Highway improvements		
84-12-24(R)	12-18-84	Land purchase		
85-1-1(R)	1-14-85	Honoring city manager		
85-1-2(R)	1-14-85	Highway improvements		
85-1-3(R)	1-14-85	Real estate contract		
85-1-4(R)	1-14-85	Design services		
85-1-5	1-14-85	Annexation (AC 84-12)		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
85-1-6	1-14-85	Annexation (AC 84-15)		
85-1-7	1-14-85	Rezoning (ZC 83-94)		
85-1-8	1-14-85	Rezoning (ZC 84-07)		
85-1-9	1-14-85	Certificate of occupancy		
85-1-10	1-14-85	Rezoning (ZC 84-31)		
85-1-11	1-14-85	Fire lane		
85-1-12(R)	1-24-85	Recognition of service		
85-1-13(R)	1-24-85	Grant application		
85-1-14(R)	1-24-85	Grant application		
85-1-15(R)	1-24-85	Grant application		
85-1-16(R)	1-24-85	Grant application		
85-1-17	1-24-85	Rezoning (ZC 84-77)		
85-1-18	1-24-85	Rezoning (ZC 84-76)		
85-1-19	1-24-85	Rezoning (ZC 84-74)		
85-1-20	1-24-85	Rezoning (ZC 84-72)		
85-1-21	1-24-85	Rezoning (ZC 84-68)		
85-1-22	1-24-85	Rezoning (ZC 84-65)		
85-1-23	1-24-85	Rezoning (ZC 84-64)		
85-1-24	1-24-85	Rezoning (ZC 84-53)		
85-1-25	1-24-85	Service contracts		
85-2-1(R)	2-11-85	Mayor's committee	1—4	2-7
85-2-2(R)	2-11-85	Air patrol agreement		
85-2-3	2-11-85	Rezoning (ZC 84-87)		
85-2-4	2-11-85	Rezoning (ZC 84-75)		
85-2-5	2-11-85	Rezoning (ZC 84-83)		
85-2-6	2-11-85	Rezoning (ZC 84-85)		
85-2-7	2-11-85	Election		
85-2-8	2-11-85	Personnel		
85-2-9	2-11-85	Certificate of occupancy		
85-2-10	2-11-85	Appropriation		
85-2-11(R)	2-11-85	Lease		
85-2-12(R)	2-25-85	Park concessions		
85-2-13	2-25-85	Alley closed		
85-2-14	2-25-85	Improvements		
85-2-15	2-25-85	Improvements		
85-2-16	2-25-85	Rezoning (ZC 84-66)		
85-2-17	2-25-85	Zoning amendment (ZC 84-78)		
85-2-18	2-25-85	Specific use permit (ZC 84-81)		
85-2-19	2-25-85	Rezoning (ZC 84-73)		
85-2-20	2-25-85	Budget		
85-2-21(R)	2-25-85	Affirmative action plan	I, II	2-41
85-3-1(R)	3-19-85	DFW Metroplex		
85-3-2(R)	3-19-85	R-O-W agreement		
85-3-3	3-19-85	Civic center advisory board	I	2-176
			II	2-177
			III	2-179
			IV	2-178
			V	2-180
			VI, VII	2-181
			VIII	2-182
85-3-4	3-19-85	Amds § 19-4		
85-3-5	3-19-85	Parks and recreation	I	15-2
			II—IV	15-87
85-3-6	3-19-85	Parking	I	12-101
85-3-7	3-19-85	Specific use permit (ZC 84-60)		
85-3-8	3-19-85	Rezoning (ZC 84-80)		
85-3-9	3-19-85	Rezoning (ZC 83-95)		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
85-3-10	3-19-85	Rezoning (ZC 84-26)		
85-3-11(R)	3-19-85	Bikeway plan	I, II	12-171
85-3-12(R)	3-28-85	Amplified sound		
85-3-13(R)	3-28-85	Purchase of equipment		
85-3-14(R)	3-28-85	Design services		
85-3-15(R)	3-28-85	Design services		
85-3-16(R)	3-28-85	Road paving		
85-3-17	3-28-85	Rezoning (ZC 84-61)		
85-4-1				
85-4-2				
85-4-3	4- 8-85	Capital improvement program		
85-4-4	4- 8-85	Fire and police positions		
85-4-5	4- 8-85	Rezoning (ZC 83-96)		
85-4-6	4- 8-85	Specific use permit (ZC 85-01)		
85-4-7	4- 8-85	Rezoning (ZC 84-89)		
85-4-8	4- 8-85	Specific use permit (ZC 85-02)		
85-4-9	4- 8-85	Rezoning (ZC 84-54)		
85-4-10	4- 8-85	Specific use permit (ZC 85-05)		
85-4-11	4- 8-85	Parking	I	12-101
85-4-12(R)	4-22-85	Library services		
85-4-13(R)	4-22-85	Property traded		
85-4-14(R)	4-22-85	North Texas Commission		
85-4-15(R)	4-22-85	City depository		
85-4-16(R)	4-22-85	Street right-of-way		
85-4-17(R)	4-22-85	Street right-of-way		
85-4-18(R)	4-22-85	Street right-of-way		
85-4-19(R)	4-22-85	Street right-of-way		
85-4-20	4-22-85	Rezoning (ZC 85-10)		
85-4-21	4-22-85	Rezoning (ZC 85-82)		
85-4-22	4-22-85	Rezoning (ZC 84-45)		
85-4-23	4-22-85	Specific use permit (ZC 85-08)		
85-4-24	4-22-85	Temporary street closing		
85-4-25	4-22-85	Historic landmarks		
85-4-26	4-22-85	Street names		
85-4-27(R)	4-22-85	Application for federal funds		
85-5-1(R)	5-13-85	Real estate contract		
85-5-2(R)	5-13-85	Sewer easement		
85-5-3(R)	5-13-85	Lease and maintenance agreement		
85-5-4(R)	5-13-85	Easement for telephone cable		
85-5-5(R)	5-13-85	Landscape and irrigation agreement		
85-5-6(R)	5-13-85	Highway projects		
85-5-7(R)	5-13-85	Sesquicentennial committee		
85-5-8(R)	5-13-85	Art association concessions		
85-5-9(R)	5-13-85	Real estate contract		
85-5-10	5-13-85	Parking	I	12-101
85-5-11	5-13-85	Street name		
85-5-12	5-13-85	Retirement		
85-5-13	5-13-85	Specific use permit (ZC 85-12)		
85-5-14	5-13-85	Zoning amendments (ZC 84-04)		
85-5-15	5-13-85	Zoning amendments (ZC 85-03)		
85-5-16	5-13-85	Specific use permit (ZC 85-16)		
85-5-17	5-13-85	Rezoning (ZC 85-13)		
85-5-18	5-13-85	Specific use permit (ZC 85-14)		
85-5-19	5-13-85	Specific use permit (ZC 85-15)		
85-5-20	5-13-85	Annexation (AC 85-01)		
85-5-21	5-13-85	Rezoning (ZC 84-46)		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
85-5-22	5-13-85	Rezoning (ZC 84-37)		
85-5-23	5-13-85	Temporary street closing		
85-5-24	5-13-85	Specific use permit (ZC 85-17)		
85-5-25	5-13-85	Amds Code Ch. 21	I	19-91—19-97
85-5-26(R)	5-13-85	Beautification committee	I—III	16-84
			III	16-81—16-83
				16-86
			IV	16-85
85-5-27	5-13-85	Outside lighting	I	6-466
			II, III	6-470, 6-471
			IV	6-469
			V	6-468
			VI	6-472
			VII	6-467
85-5-28	5-13-85	Budget		
85-5-29	5-28-85	Certificates of occupancy		
85-5-30	5-28-85	Certificates of occupancy		
85-5-31	5-28-85	Certificates of occupancy		
85-5-32	5-28-85	Zoning amendments (ZC 85-11)		
85-5-33	5-28-85	Specific use permit (ZC 85-06)		
85-5-34	5-28-85	Amds Code Ch. 17	I	6-239
			II	6-236
85-5-35	5-28-85	Rezoning (ZC 84-24)		
85-5-36	5-28-85	Rezoning (ZC 85-27)		
85-5-37	5-28-85	Certificate of occupancy		
85-6-1(R)	6-10-85	Hike and bike trail		
85-6-2(R)	6-10-85	Easement for transmission line		
85-6-3(R)	6-10-85	Street paving		
85-6-4(R)	6-10-85	Road abandonment		
85-6-5(R)	6-10-85	Option to renew lease		
85-6-6(R)	6-10-85	Highway improvement		
85-6-7	6-10-85	Public works construction	I, II	2-6
85-6-8	6-10-85	Certificate of occupancy		
85-6-9	6-10-85	City limits (ultimate)		
85-6-10	6-10-85	Zoning amendments (ZC 85-28)		
85-6-11	6-10-85	Zoning amendments (ZC 85-26)		
85-6-12	6-10-85	Zoning amendments (ZC 85-25)		
85-6-13	6-10-85	Rezoning (ZC 85-22)		
85-6-14	6-10-85	Peddlers	II	11-163
			III	11-166
85-6-15	6-10-85	Bonds		
85-6-16	6-10-85	Speed limits	II	12-75
			III	12-74
85-6-17	6-10-85	Certificate of occupancy		
85-6-18(R)	6-24-85	Purchase of land		
85-6-19(R)	6-24-85	Purchase of land		
85-6-20(R)	6-24-85	Hold harmless agreement		
85-6-21	6-24-85	Certificate of occupancy		
85-6-22	6-24-85	Easement		
85-6-23	6-24-85	Specific use permit		
85-6-24(R)	6-24-85	Obligations owed to city		
85-6-25	6-24-85	Zoning amendments (ZC 85-24)		
85-7-1(R)	7- 8-85	Amplified sound		
85-7-2(R)	7- 8-85	Street paving		
85-7-3(R)	7- 8-85	Street paving		
85-7-4(R)	7- 8-85	Amends agreement of 12-22-80		
85-7-4(R)	7- 8-85	Amends No. 80-12-21(R)		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
85-7-5	7- 8-85	Zoning amendments (ZC 85-32)		
85-7-6	7- 8-85	Rezoning (ZC 85-35)		
85-7-7	7- 8-85	Abandoning road		
85-7-8(R)	7-22-85	Railway crossing		
85-7-9	7-22-85	Disannexation (DC 85-02)		
85-7-10	7-22-85	Parking	I	12-101
85-7-11(R)	7-22-85	Payment to painters		
85-7-12	7-22-85	Land study	I	16-138
85-8-1(R)	8-12-85	Tennis center contractor		
85-8-2(R)	8-12-85	Maintenance bldg. contractor		
85-8-3(R)	8-12-85	Drainage improvements		
85-8-4(R)	8-12-85	Carpenter Road		
85-8-5(R)	8-12-85	Russell Creek sewer main		
85-8-6(R)	8-12-85	Carpenter Road		
85-8-7(R)	8-12-85	City audit		
85-8-8(R)	8-12-85	Community programming (cable)	I	7-36 7-38—7-43
			II	7-37
85-8-9(R)	8-12-85	Street construction		
85-8-10	8-12-85	Traffic; speed limits	I	12-74
85-8-11	8-12-85	School zones	I	12-73
85-8-12	8-12-85	Extraterritorial jurisdiction		
85-8-13(R)	8-12-85	Dallas Area Rapid Transit		
85-8-14(R)	8-12-85	Purchase of land		
85-8-15(R)	8-12-85	Purchase of land		
85-8-16(R)	8-26-85	Use of loudspeakers		
85-8-17(R)	8-26-85	Street projects		
85-8-18(R)	8-26-85	Carpenter Road		
85-8-19(R)	8-26-85	Street project		
85-8-20(R)	8-26-85	Indemnification agreement		
85-8-21(R)	8-26-85	Purchase of land		
85-8-22	8-26-85	Speed limits	II	12-74
85-8-23	8-26-85	One-way street		
85-8-24	8-26-85	Rezoning (ZC 85-36)		
85-8-25	8-26-85	Rezoning (ZC 85-41)		
85-8-26	8-26-85	Specific use permit (ZC 85-37)		
85-8-27	8-26-85	Specific use permit (ZC 85-19)		
85-8-28	8-26-85	Rezoning (ZC 84-79)		
85-9-1(R)	9- 9-85	Concession rights		
85-9-2(R)	9- 9-85	Use of loudspeakers		
85-9-3(R)	9- 9-85	Connection to water supply		
85-9-4	9- 9-85	Temporary street closing		
85-9-5	9- 9-85	Annexation (AC 85-03)		
85-9-6	9- 9-85	Temporary street closing		
85-9-7(R)	9- 9-85	Emergency telephone system		
85-9-8	9- 9-85	Budget		
85-9-9	9- 9-85	Tax rate		
85-9-10	9- 9-85	Easement abandoned		
85-9-11(R)	9-23-85	Hike and Bike Trail Agreement		
85-9-12(R)	9-23-85	Trade of property		
85-9-13(R)	9-23-85	Parkwood Boulevard		
85-9-14(R)	9-23-85	Ventura Drive Old Shepard Place		
85-9-15(R)	9-23-85	Winding Hollow Lane		
85-9-16(R)	9-23-85	North Plano Pipeline		
85-9-17(R)	9-23-85	Pittman Creek		
85-9-18(R)	9-23-85	Municipal court charges	I—III	13-5

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
85-9-20	9-23-85	Water charges	I	21-133
			II	21-134
85-9-21	9-23-85	Water charges	II	21-152
			III	21-131
			IV	21-153
			V	21-154
85-10-1(R)	10-14-85	Community grant guidelines		
85-10-2(R)	10-14-85	Purchasing with state		
85-10-3(R)	10-14-85	Crisis center		
85-10-4(R)	10-14-85	Plano Heritage Association		
85-10-5(R)	10-14-85	School crossing guards		
85-10-6(R)	10-14-85	Purchase of land		
85-10-7(R)	10-14-85	Retail corner guidelines	I, II	16-2
85-10-8(R)	10-14-85	Water for persons on Hedgcoxe Rd.		
85-10-9(R)	10-14-85	Willow Bend Country		
85-10-10(R)	10-14-85	DART bus stop signs		
85-10-11(R)	10-14-85	St. Louis Southwestern Railroad		
85-10-12	10-14-85	Classification and salary plan		
85-10-13	10-14-85	One-way street	I	12-12
85-10-14	10-14-85	Capital improvements		
85-10-15	10-14-85	Specific use permit (ZC 85-63)		
85-10-16	10-14-85	Annexation (AC 85-04)		
85-10-17	10-14-85	Disannexation (DC 85-07)		
85-10-18	10-14-85	Rezoning (ZC 83-100)		
85-10-19	10-14-85	Rezoning (ZC 85-23)		
85-10-20	10-14-85	Specific use permit (ZC 85-29)		
85-10-21	10-14-85	Specific use permit (ZC 85-55)		
85-10-22	10-14-85	Zoning amendments (ZC 85-56)		
85-10-23	10-14-85	Rezoning (ZC 85-60)		
85-10-24	10-14-85	Certificate of occupancy		
85-10-25(R)	10-14-85	Texas water program		
85-10-26	10-14-85	Zoning amendments (ZC 85-43)		
85-10-27(R)	10-14-85	Tax exemption of bonds		
85-10-28(R)	10-28-85	Cultural arts council		
85-10-29(R)	10-28-85	Indian Creek Phase I		
85-10-30(R)	10-28-85	Storm drainage		
85-10-31(R)	10-28-85	Willowbend Polo & Hunt Club		
85-10-32	10-28-85	Stopping trains	I	12-257
85-10-33	10-28-85	Speed limits	II	12-74
85-10-34	10-28-85	School zones	I	12-73
85-10-35	10-28-85	Budget		
85-10-36	10-28-85	Annexation (AC 85-05)		
85-10-37	10-28-85	Bond election		
85-11-1(R)	11-11-85	Grant application		
85-11-2(R)	11-11-85	County appraisal district		
85-11-3	11-11-85	Specific use permit (ZC 84-62)		
85-11-4	11-11-85	Rezoning (ZC 85-52)		
85-11-5	11-11-85	Rezoning (ZC 85-67)		
85-11-6	11-11-85	Specific use permit (ZC 85-69)		
85-11-7	11-11-85	Rezoning (ZC 85-70)		
85-11-8	11-11-85	Annexation (AC 85-06)		
85-11-9	11-11-85	Annexation (AC 85-08)		
85-11-10	11-11-85	Annexation (AC 85-10)		
85-11-11	11-11-85	Annexation (AC 85-11)		
85-11-12(R)	11-25-85	Independence Parkway		
85-11-13(R)	11-25-85	McDermott Road		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
85-11-14(R)	11-25-85	Sewer line in railroad right-of-way		
85-11-15(R)	11-25-85	Christmas tree lighting		
85-11-16(R)	11-25-85	Christmas tree lighting		
85-11-17(R)	11-25-85	Acquisition of land		
85-11-18(R)	11-25-85	Sidewalk construction		
85-11-19(R)	11-25-85	Technology Drive		
85-11-20(R)	11-25-85	EMS medical director		
85-11-21(R)	11-25-85	County-school district elections		
85-11-22	11-25-85	Carpenter Road		
85-11-23	11-25-85	Christmas tree lighting		
85-11-24	11-25-85	Rezoning (ZC 85-21)		
85-11-25	11-25-85	Specific use permit (ZC 85-72)		
85-11-26	11-25-85	Specific use permit (ZC 85-84)		
85-11-27	11-25-85	Specific use permit (ZC 85-83)		
85-11-28	11-25-85	Rezoning (ZC 85-79)		
85-11-29	11-25-85	Rezoning (ZC 84-49)		
85-11-30	11-25-85	Rezoning (ZC 85-74)		
85-11-31	11-25-85	Certificates of occupancy		
85-11-32	11-25-85	Zoning amendments (ZC 85-57)		
85-11-33	11-25-85	Issuance of bonds		
85-12-1	12- 2-85	Annexation (AC 85-13)		
85-12-2(R)	12-12-85	Sale of property		
85-12-3(R)	12-12-85	Acquisition of property		
85-12-4(R)	12-12-85	General Homes Corporation		
85-12-5(R)	12-12-85	Goodman Homes		
85-12-6	12-12-85	Street paving		
85-12-7	12-12-85	Supplemental appropriation		
85-12-8	12-12-85	Speed limits	II	12-74
85-12-9	12-12-85	Speed limits	II	12-74
85-12-10	12-12-85	Parking vehicles	I	12-101
85-12-11	12-12-85	Rezoning (ZC 84-84)		
85-12-12	12-12-85	Results of election		
85-12-13	12-12-85	Speed limits	I	12-74
85-12-14(R)	12-12-85	Chamber of Commerce		
85-12-15(R)	12-12-85	Economic Development Board		
85-12-16(R)	12-23-85	Acquisition of property		
85-12-17(R)	12-23-85	Improvements to F.M. 544		
85-12-18(R)	12-23-85	Golf course renovation		
85-12-19(R)	12-23-85	Acquisition of property		
85-12-20(R)	12-23-85	Rowlett Creek Watershed		
85-12-21	12-23-85	Retirement system	I	2-64
			II	2-65
85-12-22	12-23-85	Zoning amendments (ZC 85-78)		
85-12-23	12-23-85	Rezoning (ZC 85-82)		
85-12-24	12-23-85	Rezoning (ZC 85-61)		
85-12-25	12-23-85	Food services	I	9-1, 9-4
			II—V	9-6—9-9
			VI—IX	9-10—9-13
			X	9-5
			XI	9-2
			XIII	9-3
85-12-26	12-23-85	Rezoning (ZC 85-09)		
85-12-27	12-23-85	Rezoning (ZC 85-51)		
85-12-28(R)	12-23-85	Dangerous drugs		
85-12-29	12-23-85	Specific use permit (ZC 85-90)		
85-12-30(R)	12-23-85	Street archways		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
86-1-1(R)	1-13-86	Federal park funds		
86-1-2(R)	1-13-86	Reimbursement for utilities		
86-1-3(R)	1-13-86	Acquisition of property		
86-1-4(R)	1-13-86	Police grant application		
86-1-5(R)	1-13-86	Police grant application		
86-1-6	1-13-86	Police grant application		
86-1-7	1-13-86	Classification and salary plan		
86-1-8	1-13-86	School zones	I	12-73
86-1-9	1-13-86	Parking vehicles		
86-1-10	1-13-86	Parks and recreation board	II	15-21
			III	15-26
			IV	15-25
			V—VII	15-22—15-24
			VIII	15-1
86-1-11	1-13-86	Library	II	10-1
			III	10-2, 10-3
			IV	10-16
			V	10-16, 10-21
			VI	10-20
			VII—IX	10-17—10-19
86-1-12	1-13-86	Specific use permit (ZC 85-80)		
86-1-13(R)	1-27-86	Tape logging equipment		
86-1-14(R)	1-27-86	Dart Service Plan		
86-1-15(R)	1-27-86	Campbell Road underpass		
86-1-16(R)	1-27-86	Flood management		
86-1-17(R)	1-27-86	Independence Parkway		
86-1-18(R)	1-27-86	Highway maintenance		
86-1-19(R)	1-27-86	Lease for parking of vehicles		
86-1-20	1-27-86	Parking vehicles	I	12-101
86-1-21	1-27-86	Zoning amendments (ZC 85-86)		
86-1-22	1-27-86	Massage establishments		
86-1-23	1-27-86	Rezoning (ZC 85-77)		
86-1-24	1-27-86	Specific use permit (ZC 85-85)		
86-1-25	1-27-86	Specific use permit (ZC 85-96)		
86-1-26	1-27-86	Parks and recreation	II	15-2
			III, IV	15-87
86-1-27	1-27-86	Certificate of occupancy		
86-2-1(R)	2-10-86	Coit Road		
86-2-2(R)	2-10-86	Reimbursement for paving, etc.		
86-2-3(R)	2-10-86	Park concessions		
86-2-4(R)	2-10-86	Trade of property		
86-2-5	2-10-86	Retirement security plan		
86-2-6	2-10-86	Election		
86-2-7	2-10-86	Roadway abandoned		
86-2-8	2-10-86	Roadway abandoned		
86-2-9	2-10-86	Zoning amendments (ZC 84-63)		
86-2-10	2-10-86	Rezoning (ZC 85-88)		
86-2-11	2-10-86	Rezoning (ZC 85-87)		
86-2-12	2-10-86	Rezoning (ZC 85-66)		
86-2-13	2-10-86	Rezoning (ZC 85-50)		
86-2-14	2-10-86	Rezoning (ZC 85-49)		
86-2-15	2-10-86	Rezoning (ZC 85-42)		
86-2-16	2-10-86	Rezoning (ZC 84-20)		
86-2-17	2-10-86	Signs	Art. I, § 1	11-16
			Art. II, §§ 1—4	11-36—11-39
			Art. II, § 5	11-19

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
			Art. II, §§ 6—10	11-40—11-44
			Art. II, §§ 11—13	11-20—11-22
			Art. II, § 14	11-18
			Art. III, §§ 1—9	11-56—11-64
			Art. IV, §§ 1—12	11-76—11-87
			Art. V, §§ 1, 2	11-17
86-2-18(R)	2-24-86	Campbell Road		
86-2-19(R)	2-24-86	Loudspeakers permitted		
86-2-20(R)	2-24-86	Loudspeakers permitted		
86-2-21(R)	2-24-86	Junior League		
86-2-22(R)	2-24-86	Settlement of civil action		
86-2-23(R)	2-24-86	Power company indemnified		
86-2-24(R)	2-24-86	State Highway 190		
86-2-25(R)	2-24-86	State Highway 289		
86-2-26	2-24-86	Parks and recreation	II—VII	15-3
86-2-27	2-24-86	Personnel		
86-2-28	2-24-86	Peddlers and solicitors	II	11-163
			III	11-166
			V	11-141.1
86-2-29	2-24-86	Filing of land studies	II	16-19
86-2-30(R)	2-24-86	Commercial building heights	I, II	6-4
86-2-31(R)	2-24-86	Sister city program	I	2-8
86-2-32	2-24-86	Commercial solid waste		
86-2-33	2-24-86	Solid waste charges	III	18-1
			IV	18-34
86-2-34	2-24-86	Solid waste collection	II	18-1
			III	18-32
			IV	18-33, 18-34
			V	18-31
86-2-35	2-24-86	Supplemental appropriation		
86-3-1(R)	3-13-86	Storm sewer line		
86-3-2(R)	3-13-86	American Building Center		
86-3-3(R)	3-13-86	Joint runoff election		
86-3-4	3-13-86	Street name changed		
86-3-5	3-13-86	Specific use permit		
86-3-6	3-13-86	Specific use permit (ZC 85-94)		
86-3-7	3-13-86	Specific use permit (ZC 85-95)		
86-3-8	3-13-86	Rezoning (ZC 86-04)		
86-3-9	3-13-86	Sewer extension		
86-3-10	3-13-86	Speed limits	II	12-74
86-3-11	3-13-86	Repeals Ord. No. 84-11-3	I, II	12-74
86-3-12(R)	3-13-86	Anti-crime legislation		
86-3-13	3-13-86	Capital improvement program		
86-3-14	3-13-86	Comprehensive Zoning Regulations		
86-3-15(R)	3-24-86	Preston Road		
86-3-16(R)	3-24-86	State Highway 190		
86-3-17(R)	3-24-86	City of Allen telephones		
86-3-18(R)	3-24-86	School zone evaluation	I—V	12-72.1
86-3-19(R)	3-24-86	Loudspeakers permitted		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
86-3-20(R)	3-24-86	911 emergency service		
86-3-21	3-24-86	Annexation (AC 86-01)		
86-3-22	3-24-86	Appropriation		
86-3-23	3-24-86	School buses	II	12-117
86-3-24	3-24-86	Junked vehicles	I	12-117—12-232
86-3-25	3-24-86	Preston Road		
86-3-26	3-24-86	Sewer easement abandoned		
86-3-27	3-24-86	Drainage easement abandoned		
86-3-28	3-24-86	Access easement abandoned		
86-3-29(R)	3-24-86	Tollway extension		
86-3-30	3-24-86	Civic Center		
86-4-1(R)	4- 7-86	Election results		
86-4-2(R)	4-14-86	North Texas Commission		
86-4-3(R)	4-14-86	Loudspeakers permitted		
86-4-4(R)	4-14-86	Decorative street lights		
86-4-5(R)	4-14-86	Outdoor Learning Center		
86-4-6(R)	4-14-86	CATV report		
86-4-7(R)	4-14-86	Douglass Center		
86-4-8	4-14-86	Fire department		
86-4-9	4-14-86	Speed limits	II	12-74
86-4-10	4-14-86	Historic landmarks		
86-4-11	4-14-86	Rezoning (ZC 85-64)		
86-4-12	4-14-86	Specific use permit (ZC 86-10)		
86-4-13	4-14-86	Specific use permit (ZC 85-91)		
86-4-14	4-14-86	Zoning amendments (ZC 86-06)		
86-4-15	4-14-86	Rezoning (ZC 86-07)		
86-4-16	4-14-86	Specific use permit (ZC 86-12)		
86-4-17	4-14-86	Specific use permit (ZC 86-13)		
86-4-18(R)	4-28-86	Citations for littering		
86-4-19(R)	4-28-86	Ohio Drive		
86-4-20(R)	4-28-86	Agreement with regional airport		
86-4-21(R)	4-28-86	Railroad underpass		
86-4-22(R)	4-28-86	Interurban Building		
86-4-23(R)	4-28-86	Preston Road		
86-4-24(R)	4-28-86	Hike and bike trail		
86-4-25(R)	4-28-86	Computerized traffic control		
86-4-26(R)	4-28-86	Loudspeakers permitted		
86-4-27(R)	4-28-86	Acquisition of property		
86-4-28	4-28-86	Parking vehicles	I	12-101
86-4-29	4-28-86	Truck routes	II	26-137
86-4-30	4-28-86	Alley abandoned		
86-4-31	4-28-86	Parking vehicles	I	12-101
86-4-32	4-28-86	Issuance of bonds		
86-4-33	4-28-86	Specific use permit (ZC 86-22)		
86-4-34	4-28-86	Rezoning (ZC 85-68)		
86-4-35	4-28-86	Rezoning (ZC 85-92)		
86-4-36	4-28-86	Building permit fees	I	6-40
86-5-1(R)	5-12-86	New library		
86-5-2(R)	5-12-86	Connection to water supply		
86-5-3(R)	5-12-86	Repeals Ord. No. 85-12-13	I, II	12-74
86-5-4	5-12-86	Annexation (AC 86-02)		
86-5-5	5-12-86	Annexation (AC 86-03)		
86-5-6	5-12-86	Rezoning (ZC 86-18)		
86-5-7	5-12-86	Specific use permit (ZC 86-19)		
86-5-8	5-12-86	Fire department—100 years		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
86-5-9(R)	5-27-86	Utility cable easement		
86-5-10(R)	5-27-86	Acquisition of property		
86-5-11(R)	5-27-86	Loudspeakers permitted		
86-5-12(R)	5-27-86	Acquisition of property		
86-5-13(R)	5-27-86	Pavement improvements		
86-5-14(R)	5-27-86	Metroplex Mobility Plan		
86-5-15(R)	5-27-86	Agreement with county		
86-5-16(R)	5-27-86	Carpenter and McDermott Roads		
86-5-17	5-27-86	Rezoning (ZC 86-29)		
86-5-18	5-27-86	Specific use permit (ZC 86-28)		
86-5-19	5-27-86	Specific use permit (ZC 86-27)		
86-5-20	5-27-86	Specific use permit (ZC 86-26)		
86-5-21	5-27-86	Rezoning (ZC 86-25)		
86-5-22	5-27-86	Specific use permit (ZC 86-24)		
86-5-23	5-27-86	Specific use permit (ZC 86-23)		
86-5-24	5-27-86	Rezoning (ZC 86-21)		
86-5-25	5-27-86	Specific use permit (ZC 86-16)		
86-5-26	5-27-86	Loudspeakers permitted		
86-6-1(R)	6- 9-86	Acquisition of property		
86-6-2(R)	6- 9-86	Engineering services		
86-6-3(R)	6- 9-86	Railroad crossing construction		
86-6-4(R)	6- 9-86	Loudspeakers permitted		
86-6-5(R)	6- 9-86	Coit Road overpass		
86-6-6(R)	6- 9-86	Acquisition of property		
86-6-7(R)	6- 9-86	Acquisition of property		
86-6-8(R)	6- 9-86	Acquisition of property		
86-6-9(R)	6- 9-86	Change orders to contracts	I	2-27
			II	2-28
86-6-10	6- 9-86	Rezoning (ZC 86-17)		
86-6-11	6- 9-86	Specific use permits (ZC 86-35, 86-36)		
86-6-12	6- 9-86	Rezoning (ZC 86-08)		
86-6-13	6- 9-86	Specific use permit (ZC 86-30)		
86-6-14	6- 9-86	Water conservation	I—V	21-54—21-58
			VI	21-53
			VII	21-59
86-6-15	6- 9-86	Water waste	I	21-50
			II	21-47
			III	21-51
			IV	21-52
			V	21-47
			VI	21-49
			VII	21-48
86-6-16(R)	6-23-86	Recreation center		
86-6-17(R)	6-23-86	Loudspeakers permitted		
86-6-18(R)	6-23-86	Federal transportation funding		
86-6-19(R)	6-23-86	Highway funding		
86-6-20(R)	6-23-86	Plano Parkway; Ohio Drive		
86-6-21(R)	6-23-86	Woodburn Estates		
86-6-22(R)	6-23-86	Orleans Park		
86-6-23(R)	6-23-86	Spring Creek Parkway		
86-6-24(R)	6-23-86	Road construction		
86-6-25(R)	6-23-86	Acquisition of property		
86-6-26(R)	6-23-86	Design of municipal building		
86-6-27	6-23-86	Road improvements		
86-6-28	6-23-86	Road improvements		
86-6-29	6-23-86	Rezoning (ZC 86-02)		
86-6-30	6-23-86	Historic structures		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
86-6-31(R)	6-23-86	Application for funds		
86-7-1(R)	7-14-86	Loudspeakers permitted		
86-7-2(R)	7-14-86	Real estate contract		
86-7-3(R)	7-14-86	Shiloh Road		
86-7-4(R)	7-14-86	Plano Parkway		
86-7-5(R)	7-14-86	Chase Oaks Boulevard		
86-7-6(R)	7-14-86	Carpenter and Coit Roads		
86-7-7(R)	7-14-86	Public safety radio bands		
86-7-8(R)	7-14-86	Appraisal district assessments		
86-7-9	7-14-86	Zoning amendments (ZC 86-41)		
86-7-10	7-14-86	Zoning amendments (ZC 86-43)		
86-7-11	7-14-86	Zoning amendments (ZC 86-45)		
86-7-12	7-14-86	Change of street name		
86-7-13(R)	7-14-86	Telephone agreement		
86-7-14(R)	7-28-86	Financial assistance under P.L. 88-578		
86-7-15(R)	7-28-86	Park site named		
86-7-16(R)	7-28-86	National Center for Municipal Development		
86-7-17(R)	7-28-86	Reimbursement for paving and drainage cost		
86-7-18(R)	7-28-86	Reimbursement for paving cost		
86-7-19(R)	7-28-86	Highway Commission Minute Order 84555		
86-7-20(R)	7-28-86	Agreement with E.D.S. Land Corp., etc.		
86-7-21	7-28-86	Keep Plano Beautiful Commission	1—3	16-206—16-208
			4	16-213
			5—8	16-209—16-212
86-7-22	7-28-86	Smoking in public places	I	14-66—14-70
86-7-23	7-28-86	Water and sewer fees	I	21-147
			II	21-135
86-8-1(R)	8-11-86	Water district easements		
86-8-2(R)	8-11-86	TeleCable construction bond, etc.		
86-8-3(R)	8-11-86	Deerfield Addition		
86-8-4(R)	8-11-86	Acquisition of property		
86-8-5(R)	8-11-86	Acquisition of property		
86-8-6(R)	8-11-86	Denial of claim		
86-8-7(R)	8-11-86	Federal transportation funds		
86-8-8(R)	8-11-86	State highway funds		
86-8-9(R)	8-11-86	Loudspeakers permitted		
86-8-10	8-11-86	Rezoning (ZC 85-89, 86-01)		
86-8-11	8-11-86	Specific use permit (ZC 86-14)		
86-8-12	8-11-86	Zoning amendments (ZC 86-46)		
86-8-13	8-11-86	Rezoning (ZC 86-48)		
86-8-14	8-11-86	Specific use permit (ZC 86-49)		
86-8-15	8-11-86	Zoning amendments (ZC 86-52)		
86-8-16	8-11-86	Zoning amendments (ZC 86-53)		
86-8-17	8-11-86	Specific use permit (ZC 86-55)		
86-8-18	8-11-86	Rezoning (ZC 86-57)		
86-8-19	8-11-86	Zoning amendments (ZC 86-61)		
86-8-20	8-11-86	Street improvement		
86-8-21	8-11-86	Speed limit	I, II	12-74
86-8-22	8-11-86	Parking on Dover Drive	I	12-101
86-8-23	8-11-86	Speed limits on Plano Parkway	II	12-74
86-8-24	8-11-86	Speed limits on Los Rios Boulevard	II	12-74

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
86-8-25(R)	8-25-86	Road improvements		
86-8-26	8-25-86	Screening requirements	I	16-148(e)(5)
86-8-27	8-25-86	School zones	I	12-73(a)(5)j
86-8-28	8-25-86	Sewer easement abandoned		
86-8-29	8-25-86	Specific use permit (ZC 86-37)		
86-8-30	8-25-86	Specific use permit (ZC 86-62)		
86-8-31	8-25-86	Rezoning (ZC 86-51)		
86-8-32(R)	8-25-86	DART board of directors		
86-9-1(R)	9- 8-86	Real estate contract		
86-9-2(R)	9- 8-86	Road improvements		
86-9-3(R)	9- 8-86	Road improvements		
86-9-4(R)	9- 8-86	Public works project		
86-9-5(R)	9- 8-86	Loudspeakers permitted		
86-9-6(R)	9- 8-86	Mapping contract		
86-9-7(R)	9- 8-86	Engineering services contract		
86-9-8	9- 8-86	Certificate of occupancy		
86-9-9	9- 8-86	School zones	I	12-73(b)(8)
86-9-10	9- 8-86	Speed limits; repealed (Ord. No. 84-12-4)	II	12-74(b)
86-9-11	9- 8-86	Solid waste collection	II	18-1
			III	18-32(a)
			IV	18-33
86-9-12	9- 8-86	Annexation (AC A86-07)		
86-9-13	9- 8-86	Code of conduct	2(2-102)	2-99
			2(2-103)	2-96
			2(2-104)	2-100
			2(2-105)	2-101
			2(2-106)	2-98
			2(2-107)	2-97
86-9-14	9- 8-86	Budget		
86-9-15	9- 8-86	Tax rate		
86-9-16	9- 8-86	Telephone contract		
86-9-17(R)	9-22-86	Capital projects policy		
86-9-18(R)	9-22-86	Supporting National Energy Security and Conservation Policy		
86-9-19(R)	9-22-86	Lease agreement		
86-9-20(R)	9-22-86	Authorizing expenditure		
86-9-21(R)	9-22-86	Fire department ambulance service	II—IV	8-3
86-9-22	9-22-86	Personnel regulations		
86-9-23	9-22-86	Speed limit	II, IV	12-74
86-9-24	9-22-86	Parking on Westside Drive	I	12-101
86-9-25	9-22-86	Rezoning (ZC 86-31)		
86-9-26	9-22-86	Rezoning (ZC 86-75)		
86-9-27	9-22-86	Specific use permit (ZC 86-56)		
86-9-28(R)	9-22-86	Professional services contract		
86-9-29	9-22-86	Hotel occupancy tax	I—IV	20-73—20-76
			V	20-71
			VIII	20-72
86-9-30(R)	9-22-86	Fire prevention week		
86-9-31(R)	9-22-86	Adopting Juvenile Firesetters Education/Counseling Program's Manual of Procedures		
86-9-32	9-22-86	Parking on Park Boulevard; repealed Ord. Nos. 84-5-8, 85-3-6, 86-4-31	I	12-101
86-9-33	9-22-86	Specific use permit (ZC 86-80)		
86-9-34	9-22-86	Specific use permit (ZC 86-54)		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
86-10-1(R)	10-14-86	Loudspeakers permitted		
86-10-2(R)	10-14-86	Cooperative purchasing program		
86-10-3(R)	10-14-86	School crossing guard location		
86-10-4(R)	10-14-86	Consulting services contract		
86-10-5	10-14-86	Appropriation		
86-10-6	10-14-86	Classification and salary plan		
86-10-7	10-14-86	Vehicles for hire	II	11-101, 11-103—11-106, 11-121—11-126
			III	11-102
86-10-8	10-14-86	Specific use permit (ZC 86-78)		
86-10-9	10-14-86	Specific use permit (ZC 86-77)		
86-10-10	10-14-86	Rezoning (ZC 86-65)		
86-10-11	10-14-86	Rezoning (ZC 86-64)		
86-10-12	10-14-86	Specific use permit (ZC 83-92)		
86-10-13	10-14-86	Annexation (AC A86-08)		
86-10-14	10-14-86	Certificates of occupancy		
86-10-15(R)	10-14-86	"Eyes of Plano" program		
86-10-16(R)	10-14-86	Commendation		
86-10-17(R)	10-14-86	1986 Greater Dallas Mobility Plan		
86-10-18(R)	10-14-86	Real estate contract		
86-10-19(R)	10-27-86	Construction of alleys		
86-10-20(R)	10-27-86	Collin County Open Space Board		
86-10-21(R)	10-27-86	Authorizes expenditure		
86-10-22(R)	10-27-86	Loudspeakers permitted		
86-10-23	10-27-86	School zones	I	12-73(a)(4)e
86-10-24	10-27-86	School zones	I	12-73(a)
86-10-25(R)	10-27-86	Engineering services contract		
86-10-26(R)	10-27-86	Sublease agreement		
86-11-1(R)	11-10-86	Authorizing expenditure		
86-11-2(R)	11-10-86	Loudspeakers permitted		
86-11-3(R)	11-10-86	Road improvements		
86-11-4(R)	11-10-86	Road improvements		
86-11-5	11-10-86	Abandoning sewer easement		
86-11-6	11-10-86	Abandoning sewer easement		
86-11-7	11-10-86	Abandoning right-of-way		
86-11-8	11-10-86	Abandoning sewer easement		
86-11-9	11-10-86	Food services	1	9-5(a)(2.5)
86-11-10	11-10-86	Use of sound amplification equipment	I	14-2
86-11-11	11-10-86	Zoning amendments (ZC 86-81)		
86-11-12	11-10-86	Road improvements		
86-11-13	11-10-86	Engineering report		
86-11-14	11-10-86	Ordering election re. land sale		
86-11-15	11-10-86	Specific use permit (ZC 86-95)		
86-11-16	11-10-86	Agreement with Texas Power and Light Company		
86-11-17	11-10-86	Street design standards	I	19-21
			I(I—VII)	19-23—19-29
			III	19-22
86-11-18(R)	11-24-86	Road improvements		
86-11-19(R)	11-24-86	Road improvements		
86-11-20(R)	11-24-86	Road improvements		
86-11-21(R)	11-24-86	Road improvements		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
86-11-22(R)	11-24-86	Adopting "land use" and "transportation" chapters of Horizon Committee's comprehensive plan		
86-11-23(R)	11-24-86	Agreement with economic development board		
86-11-24(R)	11-24-86	Real estate contract		
86-11-25(R)	11-24-86	Approves guidelines for rear building facades		
86-11-26	11-24-86	Rezoning (ZC 83-101)		
86-11-27	11-24-86	Specific use permit (ZC 86-96)		
86-11-28	11-24-86	Zoning amendments (ZC 86-70)		
86-11-29	11-24-86	Zoning amendments (ZC 86-84)		
86-11-30	11-24-86	Zoning amendments (ZC 86-89)		
86-11-31	11-24-86	Annexation (AC A86-06)		
86-11-32	11-24-86	Zoning amendments (ZC 86-78)		
86-11-33(R)	11-24-86	Risk management procedures	I—VI	2-9
86-11-34	11-24-86	Defense and indemnification of city officers and employees	I—VIII	2-10
86-11-35	11-24-86	Specific use permits (ZC 86-98)		
86-11-36	11-24-86	Agreement with Southwestern Bell Telephone Company		
86-12-1(R)	12- 8-86	Tax refunds		
86-12-2(R)	12- 8-86	Real estate contract		
86-12-3	12- 8-86	Capital improvement program		
86-12-4	12- 8-86	Parking in downtown parking area	I	12-101
86-12-5	12- 8-86	Parking on Jupiter Road	I	12-101
86-12-6	12- 8-86	Parking on Avenue J	I	12-101
86-12-7	12- 8-86	Parks and recreation facility user fees	II	15-81
			III, IV	15-84
			V	15-85
			VI	15-86
			VII	15-83
			VIII	15-82
86-12-8	12- 8-86	Rezoning (ZC 86-74)		
86-12-9	12- 8-86	Specific use permit (ZC 86-72)		
86-12-10	12- 8-86	Rezoning (ZC 86-71)		
86-12-11	12- 8-86	Specific use permit (ZC 86-85)		
86-12-12	12- 8-86	Rezoning (ZC 86-93)		
86-12-13	12- 8-86	Annexation (AC A86-09)		
86-12-14	12- 8-86	Rezoning (ZC 86-102)		
86-12-15	12- 8-86	Rezoning (ZC 86-33)		
86-12-16(R)	12- 8-86	Real estate contract		
86-12-17(R)	12-22-86	Election judge appointments		
86-12-18(R)	12-22-86	Contract with Plano independent school district		
86-12-19(R)	12-22-86	Petitions legislature		
86-12-20(R)	12-22-86	Contract with Plano independent school district		
86-12-21(R)	12-22-86	Approves service station guidelines		
86-12-22(R)	12-22-86	Agreement with Spring Creek Centre		
86-12-23(R)	12-22-86	Sewer improvements		
86-12-24(R)	12-22-86	Real estate contract		
86-12-25	12-22-86	Certification pay plan for fire and police departments	I, II	2-42

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
86-12-26	12-22-86	Retirement system	I	2-64
			II	2-65
86-12-27	12-22-86	Filing fee schedule	I	16-19
86-12-28	12-22-86	Zoning amendment (ZC 86-39)		
86-12-29(R)	12-22-86	Acceptance of deed		
86-12-30(R)	12-22-86	Acquisition of property		
87-1-1(R)	1-12-87	Authorizing purchases		
87-1-2(R)	1-12-87	Authorizes city manager to continue contract		
87-1-3(R)	1-12-87	Grant application		
87-1-4(R)	1-12-87	Grant application		
87-1-5(R)	1-12-87	Grant application		
87-1-6(R)	1-12-87	Grant application		
87-1-7(R)	1-12-87	Financial assistance under P.L. 88-578		
87-1-8(R)	1-12-87	Engineering services contract		
87-1-9(R)	1-12-87	Reimbursement for paving and sewer costs		
87-1-10(R)	1-12-87	Engineering services contract		
87-1-11(R)	1-12-87	Preserve right-of-way		
87-1-12	1-12-87	Specific use permits (ZC 86-86)		
87-1-13	1-12-87	Rezoning (ZC 86-109)		
87-1-14	1-12-87	Annexation (AC A86-10)		
87-1-15	1-12-87	Abandoning sewer easement		
87-1-16	1-12-87	Closing property hearing		
87-1-17	1-12-87	Classification and salary plan		
87-1-18	1-12-87	Keep Plano Beautiful Commission	II—IV	16-206—16-208
			V	16-213
			VI—IX	16-209—16-212
87-1-19	1-12-87	Authorizing city manager to execute letter of reservation		
87-1-20	1-12-87	Fire Safety Education Advisory Committee	I—VII	8-5
87-1-21	1-12-87	Alarm systems	I Rpld	11-221—11-223
			II	11-221
			III(1), (2)	11-222(a)
			III(3)	11-222(e)
			III(4)	11-222(b)
			III(5)	11-222(f)
			III(6)	11-222(c)
			III(7)	11-226
			IV	11-222(d)
			V	11-230
			VI	11-229
			VII	11-224(c)
			VIII(1)	11-224(a)
			VIII(2)a—c	11-227(a)
			VIII(2)d	11-227(b)
			IX	11-227(c)
			X	11-223
			XI	11-231
			XII	11-222(g)
			XIII	11-225
			XIV	11-224(b)
87-1-22	1-12-87	Acquisition of property		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
87-1-23	1-21-87	Canvassing election returns		
87-1-24(R)	1-26-87	Authorizing city manager to enter into agreement		
87-1-25	1-26-87	Filing fee schedule	II, III	16-19
87-1-26	1-26-87	School zones	I	12-73(a)(1)b
87-1-27	1-26-87	Ordering election		
87-1-28	1-26-87	Abandoning sewer easement		
87-1-29	1-26-87	Specific use permits (ZC 86-63)		
87-1-30	1-26-87	Zoning amendments (ZC 86-83)		
87-1-31	1-26-87	Zoning amendment (ZC 86-101)		
87-1-32	1-26-87	Zoning amendments (ZC 86-104)		
87-1-33	1-26-87	Zoning amendment (ZC 86-111)		
87-1-34(R)	1-26-87	Tax refunds		
87-1-35(R)	1-26-87	Expressing council's intent in regard to certain zoning		
87-1-36—87-1-56	1-26-87	Zoning amendments (ZC 85-59)		
87-1-57	1-26-87	Rezoning (ZC 86-108)		
87-1-58	1-26-87	Supplemental appropriation		
87-2-1(R)	2- 9-87	Tax refunds		
87-2-2(R)	2- 9-87	Road improvements		
87-2-3(R)	2- 9-87	Authorizing city manager to execute agreement		
87-2-4(R)	2- 9-87	Engineering services contract		
87-2-5	2- 9-87	Records management program	IA	2-118
			IB	2-116
			IC	2-117
			ID	2-119
			II	2-120
			III(A—C)	2-126
			IIID	2-127
			III(E, F)	2-128
			III(G—I)	2-129—2-131
			IV	2-132
			V	2-133
			VI Rpld	2-116—2-122
87-2-6	2- 9-87	Unsanitary nuisances	II	14-3
87-2-7	2- 9-87	Rezoning (ZC 86-110)		
87-2-8	2- 9-87	Rezoning (ZC 86-117)		
87-2-9	2- 9-87	Rezoning (ZC 86-115)		
87-2-10	2- 9-87	Rezoning (ZC 86-116)		
87-2-11	2- 9-87	Rezoning (ZC 86-118)		
87-2-12	2- 9-87	Extending temporary certificate of occupancy		
87-2-13	2- 9-87	Extending temporary certificate of occupancy		
87-2-14	2- 9-87	Defense and indemnification of city officers and employees	II—IX	2-10
87-2-15	2- 9-87	Abandoning street right-of-way		
87-2-16(R)	2- 9-87	Approving partial settlement of a lawsuit		
87-2-17(R)	2-23-87	School crossing guard location		
87-2-18(R)	2-23-87	Approving easement with Texas Power and Light		
87-2-19(R)	2-23-87	Authorizing city manager to execute agreement		
87-2-20(R)	2-23-87	Authorizing city manager to execute agreement		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
87-2-21(R)	2-23-87	Adopting certain chapters of comprehensive plan proposed by horizon committee		
87-2-22(R)	2-23-87	Tax refunds		
87-2-23	2-23-87	Zoning amendment (ZC 86-120)		
87-2-24	2-23-87	Specific use permit (ZC 86-44)		
87-2-25	2-23-87	Abandoning utility easement		
87-2-26	2-23-87	Abandoning sewer easement		
—	—	—		
87-2-28	2-23-87	Specific use permit (ZC 86-50)		
87-2-29(R)	2-23-87	Authorizing city manager to execute agreement		
87-2-30(R)	2-23-87	Restating agreement and option to purchase		
87-3-14	3- 9-87	Adopting ordinance		p. vii
87-3-1(R)	3- 9-87	Reimbursement of funds		
87-3-2(R)	3- 9-87	Agreement with Collin County		
87-3-3(R)	3- 9-87	Agreement with Collin County		
87-3-4(R)	3- 9-87	Road improvements		
87-3-5(R)	3- 9-87	Engineering services contract		
87-3-6(R)	3- 9-87	City of Allen telephone service		
87-3-7(R)	3- 9-87	Annual audit		
87-3-8(R)	3- 9-87	Purchase of land		
87-3-9	3- 9-87	Rezoning (ZC 86-125)		
87-3-10	3- 9-87	Rezoning (ZC 86-123)		
87-3-11	3- 9-87	Parking on Westside Drive	I	12-101
87-3-12	3- 9-87	Appropriation		
87-3-13	3- 9-87	Litter control	I	18-11
87-3-14	3- 9-87	Adopting City Code		p. vii
87-3-15(R)	3-30-87	Approving easement		
87-3-16(R)	3-30-87	Reimbursement of funds		
87-3-17(R)	3-30-87	Tax refunds		
87-3-18(R)	3-30-87	Adopting the Preston Road Corridor Design Study		
87-3-19(R)	3-30-87	Engineering services contract		
87-3-20(R)	3-30-87	Grant application		
87-3-21	3-30-87	Rezoning (ZC 86-11)		
87-3-22	3-30-87	Specific use permit (ZC 86-119)		
87-3-23	3-30-87	Annexation (AC A87-03)		
87-3-24	3-30-87	Zoning map amendment (AC 86-88)		
87-3-25	3-30-87	Issuance of bonds		
87-4-1(R)	4- 6-87	Canvassing election returns		
87-4-2(R)	4-15-87	Construction on SH 190		
87-4-3(R)	4-15-87	Adopting the State Highway 190/ Plano Parkway Corridor Design Study		
87-4-4(R)	4-15-87	Approving easement		
87-4-5(R)	4-15-87	Reimbursement of funds		
87-4-6(R)	4-15-87	Supporting Dallas Area Rapid Transit Board		
87-4-7(R)	4-15-87	Supporting Dallas Area Rapid Transit Board		
87-4-8(R)	4-15-87	Architectural/engineering service agreement		
87-4-9	4-15-87	Adopting city engineer's report		
87-4-10	4-15-87	School speed zones	I	12-73(a)(8)
87-4-11	4-15-87	Tax exemption for certain historic landmark structures		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
87-4-12	4-15-87	Specific use permit (ZC 87-09)		
87-4-13	4-15-87	Zoning amendments (ZC 84-63)		
87-4-14	4-15-87	Zoning amendment (ZC 87-14)		
87-4-15(R)	4-27-87	Engineering services contract		
87-4-16(R)	4-27-87	Reimbursement of funds		
87-4-17(R)	4-27-87	Statement of intent re annexation		
87-4-18(R)	4-27-87	Assessment contract		
87-4-19(R)	4-27-87	Assessment contract		
87-4-20(R)	4-27-87	Agreement with Junior League of Plano		
87-4-21(R)	4-27-87	Changes in the city limit lines		
87-4-22(R)	4-27-87	Interlocal agreement		
87-4-23(R)	4-27-87	Assistance agreement with City of Dallas		
87-4-24(R)	4-27-87	Grant application		
87-4-25(R)	4-27-87	Tax refunds		
87-4-26	4-27-87	Noise regulations	I	14-85—14-90
			Rpld	14-2
			II	14-91
87-4-27	4-27-87	Specific use permit (ZC 87-02)		
87-4-28	4-27-87	Specific use permit (ZC 83-78)		
87-4-29	4-27-87	Zoning amendment (ZC 86-68)		
87-4-30	4-27-87	Annexation (AC A87-05)		
87-4-31	4-27-87	Annexation (AC A87-04)		
87-4-32	4-27-87	Zoning amendment (AC 87-05)		
87-4-33	4-27-87	Abandoning sewer easement		
87-4-34	4-27-87	Road improvements		
87-4-35	4-27-87	Abandoning drainage easements		
87-4-36	4-27-87	School speed zones	I—VIII	12-73
87-4-37(R)	4-27-87	Settlement of lawsuit		
87-4-38(R)	4-27-87	Agreement with Orline Computer Library Center, Inc.		
87-4-39	4-27-87	Zoning amendments (ZC 87-04)		
87-4-40(R)	4-27-87	Adopting an investment procedure		
87-5-1(R)	5-11-87	Reimbursement of funds		
87-5-2(R)	5-11-87	Adopting the Dallas North Tollway Corridor Design Study		
87-5-3(R)	5-11-87	Adopting the State Highway 121 Corridor Design Study		
87-5-4(R)	5-11-87	Community development block grant funding		
87-5-5	5-11-87	Mechanical Code	I	6-252
			II	6-254
87-5-6	5-11-87	Plumbing code	I	6-237
			II	6-239
87-5-7	5-11-87	Fire prevention	I	6-49.5, 6-55.5
87-5-8	5-11-87	Water conservation plan	1	21-56
			2	21-58
			3	21-59
87-5-9(R)	5-26-87	Historic landmark preservation plan	I—III	16-112
87-5-10(R)	5-26-87	Tax refunds		
87-5-11	5-26-87	Road improvements		
87-5-12	5-26-87	Engineering report		
87-5-13	5-26-87	Engineering report		
87-5-14	5-26-87	Specific use permit (ZC 87-21)		
87-5-15	5-26-87	Specific use permit (ZC 87-12, 87-22)		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
87-5-16	5-26-87	Self-insurance financing funds		
87-5-17	5-26-87	Retirement security plan		
87-5-18	5-26-87	Application for federal funds		
87-6-1(R)	6- 8-87	Use of sound amplification equipment		
87-6-2(R)	6- 8-87	Agreement with N. Texas Commission		
87-6-3(R)	6- 8-87	Endorsing Collin County Open Space Plan		
87-6-4(R)	6- 8-87	Maintenance agreement		
87-6-5	6- 8-87	Speed limits on Preston Road	I, II, IV	12-74
87-6-6	6- 8-87	Abandoning easement		
87-6-7	6- 8-87	Specific use permit (ZC 87-13)		
87-6-8	6- 8-87	Zoning amendment (ZC 87-23)		
87-6-9	6- 8-87	Zoning amendment (ZC 87-24)		
87-6-10	6- 8-87	Rezoning (ZC 87-20)		
87-6-11	6- 8-87	Regulating telecommunications system		
87-6-12	6- 8-87	Adopting Supplement Nos. 1 and 1-Rev.		p. viii.i
87-6-13	6- 8-87	Engineering report		
87-6-14(R)	6- 8-87	Agreement with Dallas Area Rapid Transit		
87-6-15(R)	6-22-87	Tax refunds		
87-6-16(R)	6-22-87	Permitting location of temporary plant		
87-6-17(R)	6-22-87	Permitting location of temporary plant		
87-6-18(R)	6-22-87	Settlement of lawsuit		
87-6-19	6-22-87	Annexation (AC A87-06)		
87-6-20	6-22-87	Annexation (AC A87-07)		
87-6-21	6-22-87	Annexation (AC A87-08)		
87-6-22	6-22-87	Certificates of occupancy		
87-6-23	6-22-87	Road improvement		
87-6-24	6-22-87	Electrical code	I, II	6-275, 6-276
		Rpld	III	6-277, 6-278
87-6-25	6-22-87	Abandoning strip of land		
87-6-26	6-22-87	Taxation of telecommunications services	I	20-2
87-6-27	6-22-87	Construction requirements	I	6-55
87-7-1(R)	7-13-87	Approving easement		
87-7-2(R)	7-13-87	Real estate contract		
87-7-3(R)	7-13-87	Agreement with State of Texas		
87-7-4	7-13-87	Speed limits on Ohio Drive	II	12-74
87-7-5	7-13-87	Temporary street closing		
87-7-6	7-13-87	Speed limits on Avenue K	II	12-74
87-7-7	7-13-87	School zones	I, II	12-73(a)
			III	12-73(a), (b)
87-7-8	7-13-87	Abandoning road		
87-7-9	7-13-87	Abandoning portion of road		
87-7-10	7-13-87	Abandoning sewer easement		
87-7-11	7-13-87	Road improvements		
87-7-12	7-13-87	Rezoning (ZC 86-105)		
87-7-13	7-13-87	Rezoning (ZC 87-16)		
87-7-14	7-13-87	Zoning amendment (ZC 87-28)		
87-7-15	7-13-87	Zoning amendment (ZC 87-29)		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
87-7-16	7-13-87	Zoning amendment (ZC 87-31)		
87-7-17	7-13-87	Rezoning (ZC 87-33)		
87-7-18	7-13-87	Specific use permit (ZC 87-35)		
87-7-19	7-13-87	Specific use permit (ZC 87-34)		
87-7-20(R)	7-13-87	Termination of declaration of covenants		
87-7-21	7-13-87	Zoning amendments (ZC 87-39)		
87-7-22(R)	7-13-87	Recognition of service		
87-7-22(R)(A)	7-27-87	Tax refunds		
87-7-23(R)	7-27-87	School cross guard locations		
87-7-24(R)	7-27-87	Agreement with First United Methodist Church		
87-7-25(R)	7-27-87	Agreement with Republic Bank Dallas		
87-7-26(R)	7-27-87	Destruction of city records		
87-7-27(R)	7-27-87	Establishing the population of the city		
87-7-28	7-27-87	Rezoning (ZC 85-65)		
87-7-29	7-27-87	Rezoning (ZC 85-20)		
87-7-30	7-27-87	Specific use permit (ZC 86-58)		
87-7-31	7-27-87	Appropriation		
87-7-32	7-27-87	Speed limits on Coit Road, Custer Road and Spring Creek Parkway	II—IV	12-74
87-7-33	7-27-87	Parking on Highedge Drive	II	12-101
87-7-34	7-27-87	Parking on Highedge Drive during school hours	II	12-102
87-8-1(R)	8-10-87	Land deed		
87-8-2(R)	8-10-87	Transfer of funds		
87-8-3	8-10-87	Reestablishing a citizen committee called the Community Relations Commission	I II—VIII	Rpld 2-156—2-164 Added 2-156—2-162
87-8-4	8-10-87	Adopting Supplement No. 2		p. viii.iii
87-8-5	8-10-87	Rezoning (ZC 87-43)		
87-8-6	8-10-87	Specific use permit (ZC 87-45)		
87-8-7	8-10-87	Specific use permit (ZC 87-41)		
87-8-8	8-10-87	Abandoning drainage easement		
87-8-9(R)	8-10-87	Lease agreement		
87-8-10	8-10-87	Rezoning (ZC 85-38)		
87-8-11	8-10-87	Rezoning (ZC 87-40)		
87-8-12	8-10-87	Specific use permit (ZC 87-54)		
87-8-13(R)	8-24-87	Use of sound amplification equipment		
87-8-14(R)	8-24-87	Appointments		
87-8-15(R)	8-24-87	Tax refunds		
87-8-16(R)	8-24-87	Air quality planning endorsement		
87-8-17	8-24-87	Extending certificates of occupancy		
87-8-18	—	—		
87-8-19	8-24-87	Flood damage prevention	I	16-161—16-178, 16-191—16-194
87-8-20	8-24-87	Speed limit on 14th Street	I	12-74
87-8-21	8-24-87	Road improvements		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
87-8-22	8-24-87	Vehicles for hire	I	11-107
87-8-23	8-24-87	Interlocal agreement		
87-8-24	8-24-87	Rezoning (ZC 87-44)		
87-8-25(R)	8-24-87	Agreement with Gleneagles National Bank		
87-9-1(R)	9-14-87	Contract with Browning-Ferris, Inc.		
87-9-2(R)	9-14-87	Filing of lawsuit		
87-9-3(R)	9-14-87	Supporting U.S. Soccer Federation		
87-9-4(R)	9-14-87	Adopting economic development and housing chapters of comprehensive plan		
87-9-5(R)	9-14-87	Agreement with state department of highways and transportation		
87-9-6(R)	9-14-87	Approving easement		
87-9-7(R)	9-14-87	Community development block grant funding		
87-9-8(R)	9-14-87	Community development block grant funding		
87-9-9	9-14-87	Classification and salary plan of police and fire departments for FY 1987-88		
87-9-10	9-14-87	Designating stop intersection at Lookout Trail and Middle Cove Drive		
87-9-11	9-14-87	Speed limits on Legacy Drive and Shiloh Road	II, III	12-74
87-9-12	9-14-87	Solid waste collection	II	18-1
			III	18-32(a)
			IV	18-33
87-9-13	9-14-87	Utility service charges	I	21-131
			II--VI	21-152--21-156
87-9-14	9-14-87	Special expense fee for municipal court	I	13-6
87-9-15	9-14-87	Specific use permit (ZC 87-36)		
87-9-16	9-14-87	Rezoning (ZC 86-82)		
87-9-17	9-14-87	Rezoning (ZC 87-42)		
87-9-18	9-14-87	Specific use permit (ZC 87-46)		
87-9-19	9-14-87	Rezoning (ZC 87-51)		
87-9-20	9-14-87	Specific use permit (ZC 87-55)		
87-9-21	9-14-87	Abandoning drainage easement		
87-9-22	9-14-87	Abandoning drainage easement		
87-9-23	9-14-87	Abandoning drainage easement		
87-9-24(R)	9-14-87	Participation in tax abatement		
87-9-25(R)	9-14-87	Policy statement on economic development incentives		
87-9-26	9-14-87	Temporary parking prohibition on San Gabriel Boulevard		
87-9-27	9-14-87	Zoning amendment (ZC 87-17)		
87-9-28	9-14-87	Building permit fees	I	6-40(6)
87-9-29	9-14-87	Adopting budget for FY 1987-88		
87-9-30	9-14-87	Adopting tax rate for FY 1987-88		
87-9-31(R)	9-28-87	Crime prevention program		
87-9-32(R)	9-28-87	Tax refunds		
87-9-33(R)	9-28-87	Public hearing re tax abatement		
87-9-34	9-28-87	Speed limits on Los Rios Boulevard and Independence Parkway	II, III	12-74

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
87-9-35	9-28-87	School speed zones	I	12-73(a)
87-9-36	9-28-87	Adding member to Civic Center Advisory Board	I	2-176
			II	2-178
87-9-37	9-28-87	Solid waste collection	II	18-34
87-9-38	9-28-87	Electrical franchise		
87-9-39	9-28-87	Appropriations		
87-9-40(R)	9-28-87	Participation in county area 911 emergency communications district		
87-9-41(R)	9-28-87	Contract with Lewis Wrecker Service, Inc.		
87-10-1(R)	10-12-87	Ordering special election re Charter amendments		
87-10-2(R)	10-12-87	Contract with R.C. Small & Associates, Inc.		
87-10-3	10-12-87	Extending certificates of occupancy		
87-10-4	10-12-87	Specific use permit (ZC 87-60)		
87-10-5	10-12-87	Zoning amendment (ZC 87-58)		
87-10-6	10-12-87	Zoning amendment (ZC 87-57)		
87-10-7	10-12-87	Rezoning (ZC 87-52)		
87-10-8	10-12-87	Disannexation (DC D87-11)		
87-10-9(R)	10-12-87	Nominating candidates for county appraisal district board		
87-10-10(R)	10-26-87	Tax refunds		
87-10-11(R)	10-26-87	Destruction of city records		
87-10-12(R)	10-26-87	Partial abandonment of sewer easement by the state		
87-10-13(R)	10-26-87	Funding of relocation project		
87-10-14(R)	10-26-87	Construction agreement with Rodney O. Haggard and Janna Haggard Bryan		
87-10-15(R)	10-26-87	Cooperative purchasing program with the state purchasing and general services commission		
87-10-16(R)	10-26-87	Endorsing certain constitutional amendments		
87-10-17(R)	10-26-87	Endorsing constitutional amendment		
87-10-18(R)	10-26-87	Endorsing constitutional amendment		
87-10-19(R)	10-26-87	Agreement with G & S Sandblasting and Painting Co.; contract with J. R. Stelzer		
87-10-20	10-26-87	School speed zones	I	12-73(a)
87-10-21	10-26-87	Abandoning sewer easement		
87-10-22	10-26-87	Rezoning (ZC 86-99)		
87-10-23	10-26-87	Regulations governing parades	I—XII	19-111—19-122
			XIV	19-123
87-10-24	10-26-87	Regulating special events	I, I—III	11-301—11-303
			II, I—IX	11-311—11-319
			III, I—XII	11-331—11-342
			III, XIII	11-320
			IV, I—IV	11-356—11-359
			V, I	11-361

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
87-10-25	10-26-87	Appropriation		
87-10-26	10-26-87	Public improvements		
87-10-27	10-26-87	Rezoning (ZC 87-63)		
87-10-28	10-26-87	Adopting Supplement No. 3		p. viii.v
87-10-29	10-26-87	Formalizing the intent of Resolution No. 87-10-1(R) amending the City Charter		
87-10-30	10-26-87	Regulating peddlers and solicitors	I	Rpld 11-141, 11-141.1, 11-142—11-147, 11-161—11-168—11-181—11-187
			II	Added 11-141—11-148, 11-161—11-168, 11-181—11-187
87-11-1(R)	11- 9-87	Spring Creekwalk Development Board	I—VI	16-231—16-236
			VII, VIII	16-237
87-11-2(R)	11- 9-87	Agreement with Southern Pacific Transportation Company		
87-11-3(R)	11- 9-87	Use of automobiles by police department		
87-11-4(R)	11- 9-87	Agreement with county		
87-11-5(R)	11- 9-87	Agreement with Tomlin Properties, Inc.		
87-11-6(R)	11- 9-87	Land acquisition		
87-11-7	11- 9-87	Rezoning (ZC 83-61)		
87-11-8	11- 9-87	Rezoning (ZC 87-49)		
87-11-9	11- 9-87	Specific use permit (ZC 87-68)		
87-11-10	11- 9-87	Annexation (AC A87-12)		
87-11-11	11- 9-87	Specific use permit (ZC 87-59)		
87-11-12	11- 9-87	Rezoning (ZC 87-70)		
87-11-13	11- 9-87	Zoning Amendment (ZC 87-66)		
87-11-14	11- 9-87	Appropriation		
87-11-15	11- 9-87	Supplemental appropriation		
87-11-16	11- 9-87	Abandoning drainage easement		
87-11-17	11- 9-87	Designating Tax Abatement Zone No. 1		
87-11-18	11- 9-87	Retirement system	I	2-64
			II	2-65
			III	2-64.1
			IV—VI	2-67.1 (1)—(3)
87-11-19	11- 9-87	Extending temp. certificate of occupancy		
87-11-20(R)	11- 9-87	Casting election ballot		
87-11-21(R)	11-23-87	Participation in funding of lawsuit		
87-11-22(R)	11-23-87	Permits loudspeakers		
87-11-23(R)	11-23-87	Approving easement		
87-11-24(R)	11-23-87	Tax refunds		
87-11-25(R)	11-23-87	Agreement with National Center for Municipal Development, Inc.		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
87-11-26	11-23-87	Extending temp. certificate of occupancy		
87-11-27	11-23-87	Revoking permit		
87-11-28	11-23-87	Appropriation		
87-11-29(R)	11-23-87	Agreement with Cultural Arts Council of Plano, Inc.		
87-11-30(R)	11-23-87	Settlement of lawsuit		
87-11-31(R)	11-30-87	Commends Plano East Senior High And Plano Senior H.S.		
87-12-1(R)	12-10-87	School crossing guard locations		
87-12-2(R)	12-10-87	Tax refunds		
87-12-3(R)	12-10-87	Appointing election officers		
87-12-4(R)	12-10-87	Agreement with Plano Economic Development Board, Inc.		
87-12-5	12-10-87	Reallocating funds		
87-12-6	12-10-87	Appropriation		
87-12-7	12-10-87	1988 Capital Improvement Program		
87-12-8	12-10-87	Parking on Winding Hollow Lane	II	12-101
87-12-9	12-10-87	Parking on Mollimar Drive	II	12-102
87-12-10	12-10-87	Parking in Ruisseau Place Subdiv.	II	12-101
87-12-11	12-10-87	Abandoning easement		
87-12-12	12-10-87	Adopting errata to Code of Ordinances		
87-12-13(R)	12-10-87	Agreement; tax reinvestment zone No. 1		
87-12-14	12-10-87	School zone on Alma Drive	I	12-73
87-12-15(R)	12-28-87	Real estate contract		
87-12-16(R)	12-28-87	Sidewalk maintenance policy		
87-12-17(R)	12-28-87	Tax refunds		
87-12-18(R)	12-28-87	Use of law enforcement equipment	I	17-1
87-12-19	12-28-87	Fire code	1—25	8-16—8-40
			26(1)—(13)	8-51—8-63
			27, 28	8-41, 8-42
			32	Ch. 8, Art. II(note)
87-12-20	12-28-87	Building code	I	6-17, 6-36(b)
			II	Rpld 6-37—6-62
			III	Ch. 6, Art. II, Div. 2 (note)
			IV(A—W)	6-37—6-59
87-12-21	12-28-87	Manual for Utility Location And Coordination		Rpld 19-56—19-62, 19-76—19-80
			I, II	19-56, 19-57
			V	19-58
87-12-22	12-28-87	Appropriation		
87-12-23	12-28-87	School zone on Legacy Drive	I	12-73

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
87-12-24	12-28-87	Parking on Stewart Avenue	II	12-101
87-12-25	12-28-87	Annexation (AC A87-13)		
87-12-26	12-28-87	Granting historic designation H-9 (ZC 87-81)		
87-12-27	12-28-87	Granting historic designation H-8 (ZC 87-76)		
87-12-28	12-28-87	Specific use permit (ZC 87-62)		
87-12-29(R)	12-28-87	Private recreation facility		
87-12-30	12-28-87	Specific use permit (ZC 87-77)		
88-1-1(R)	1-11-88	Construction contract		
88-1-2(R)	1-11-88	Use of vehicles by police dept.		
88-1-3(R)	1-11-88	Agreement with Heritage Farmstead Assoc.		
88-1-4(R)	1-11-88	Tax refunds		
88-1-5	1-11-88	Approving amendment of the retirement security plan		
88-1-6	1-11-88	Zoning amendments (ZC 87-72)		
88-1-7	1-11-88	Parks and recreation	I	15-57, 15-59—15-61, 15-64—15-66
88-1-8	1-11-88	General penalty	I	1-4
88-1-9	1-11-88	Solicitations, itinerant vendors	II	11-141—11-148, 11-161—11-169, 11-181—11-187
88-1-10(R)	1-18-88	Canvassing election returns	(See Charter Comp. Table)	
—	—	—		
88-1-12(R)	1-25-88	Transfer of municipal functions to county		
88-1-13(R)	1-25-88	Tax refunds		
88-1-14(R)	1-25-88	Road Improvements		
88-1-15(R)	1-25-88	Road Improvements		
88-1-16(R)	1-25-88	Road Improvements		
88-1-17(R)	1-25-88	1988-89 action plan		
88-1-18(R)	1-25-88	Adopting urban design chapter of comprehensive plan		
88-1-19(R)	1-25-88	Road Improvements		
88-1-20(R)	1-25-88	Road Improvements		
88-1-21	1-25-88	Adopting Supplement No. 4		p. viii.vii
88-1-22	1-25-88	Specific use permit (ZC 87-79)		
88-1-23	1-25-88	Extending temp. certificate of occupancy		
88-1-24	1-25-88	Extending temp. certificates of occupancy		
88-1-25	1-25-88	Extending temp. certificates of occupancy		
88-1-26	1-25-88	Extending temp. certificates of occupancy		
88-1-27	1-25-88	Flood damage prevention	I	16-161, 16-175(9), 16-191(8)
			II	16-192 (1), (2),

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
				16-193 (1), (2)a, 16-194(e)
88-1-28	1-25-88	Parking on Avenue N	II	12-101
88-1-29	1-25-88	Parking on Wilson Drive	II	12-102
			VIII	12-101
88-1-30	1-25-88	Golf course fees	I	15-87
88-1-31(R)	1-25-88	Road Improvements		
88-2-1(R)	2- 8-88	Calling public hearing		
88-2-2(R)	2- 8-88	Subordination agreement with Rosewood Properties		
88-2-3(R)	2- 8-88	Tax refunds		
88-2-4(R)	2- 8-88	Protection of water supply reservoirs, policy position		
88-2-5	2- 8-88	Specific use permit (ZC 87-75)		
88-2-6	2- 8-88	Rezoning (ZC 87-82)		
88-2-7(R)	2- 8-88	Termination of construction contract		
88-2-8(R)	2- 8-88	Settlement of lawsuit		
88-2-9(R)	2-22-88	Road improvements		
88-2-10(R)	2-22-88	Road Improvements		
88-2-11(R)	2-22-88	Road Improvements		
88-2-12(R)	2-22-88	Road Improvements		
88-2-13(R)	2-22-88	Tax refunds		
88-2-14	2-22-88	Developer participation agreements		
88-2-15	2-22-88	Extending temp. cert. of occupancy		
88-2-16	2-22-88	Extending temp. cert. of occupancy		
88-2-17	2-22-88	Designating reinvestment zone No. 2		
88-3-1(R)	3-14-88	Agreement with Municipal Administrative Services, Inc.		
88-3-2(R)	3-14-88	Joint election agreement		
88-3-3(R)	3-14-88	Road improvements		
88-3-4(R)	3-14-88	Grant application		
88-3-5(R)	3-14-88	Grant application		
88-3-6(R)	3-14-88	Grant application		
88-3-7(R)	3-14-88	Grant application		
88-3-8(R)	3-14-88	Grant application		
88-3-9	3-14-88	Abandoning easement		
88-3-10	3-14-88	Rezoning (ZC 86-67)		
88-3-11	3-14-88	Specific use permit (ZC 87-78)		
88-3-12	3-14-88	Rezoning (ZC 87-84)		
88-3-13	3-14-88	Annexation (AC A88-01)		
88-3-14	3-14-88	Annexation (AC A88-02)		
88-3-15	3-14-88	Annexation (AC A88-03)		
88-3-16	3-14-88	Annexation (AC A88-04)		
88-3-17	3-14-88	Annexation (AC A88-05)		
88-3-18	3-14-88	Ordering election		
88-3-19	3-14-88	Appropriation		
88-3-20	3-14-88	Keep Plano Beautiful Board	1	16-207 (1st ¶)
			2, 3	16-209, 16-210
			4	16-211 (b), (c)
			5	16-213

Ordinance Number	Adoption Date	Subject Matter	Section		Section this Code
88-3-21	3-14-88	Construction review board	1	Rpld	6-1—6-3, 6-178, 6-222, 6-223, 6-354, 6-451
			2		6-85, 6-346, 6-350
			3		6-1
			4		6-272
88-3-22(R)	3-14-88	Road improvements			
88-3-23	3-14-88	Vehicles for hire	I		11-101—11-103 11-103.1, 11-104—11-123
88-3-24	3-14-88	Shared ride shuttle service	I		11-125—11-132
88-3-25	3-14-88	Reinvestment zone			
88-3-26(R)	3-28-88	License agreement			
88-3-27(R)	3-28-88	Tax refunds			
88-3-28(R)	3-28-88	Accepting annual audit			
88-3-29(R)	3-28-88	School zone traffic control			
88-3-30	3-28-88	Tax exemption			
88-3-31	3-28-88	Adopting Supplement No. 5			p. viii.ix
88-3-32	3-28-88	Parking in Ruisseau Place Phase II	II		12-101
88-3-33	3-28-88	Parking on 17th Street	II		12-102
88-3-34(R)	3-28-88	Agreement with Volunteer Center of Plano, Inc.			
88-4-1(R)	4-11-88	Accepting Deerfield Addition archway and landscape improvements			
88-4-2(R)	4-11-88	Road improvements			
88-4-3(R)	4-11-88	Tax abatement policy			
88-4-4(R)	4-11-88	Agreement with Folsom Investments, Inc.			
88-4-5	4-11-88	Parking on San Gabriel Blvd. (temp.)			
88-4-6	4-11-88	Abandoning utility easement			
88-4-7	4-11-88	Zoning amendment (ZC 87-86)			
88-4-8	4-11-88	Zoning amendment (ZC 86-92)			
88-4-9	4-11-88	Rezoning (ZC 88-01)			
88-4-10	4-11-88	Permits loudspeakers			
88-4-11(R)	4-25-88	Grant application			
88-4-12(R)	4-25-88	Agreement with Junior League of Plano			
88-4-13(R)	4-25-88	Tax refunds			
88-4-14(R)	4-25-88	Agreement with North Texas Commission			
88-4-15(R)	4-25-88	Appeal of City v. Kreymer (cause No. 219-1237-87)			
88-4-16	4-25-88	Rezoning (ZC 87-15)			
88-4-17	4-25-88	Specific use permit (ZC 88-09)			
88-4-18	4-25-88	Rezoning (ZC 87-89)			
88-4-19	4-25-88	Refuse fees	I		18-6(b)

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
88-4-20(R)	4-25-88	Bond referendum		
88-5-1(R)	5- 9-88	Canvassing election returns		
88-5-2	5- 9-88	Ordering runoff election		
88-5-3(R)	5- 9-88	Road improvements		
88-5-4(R)	5- 9-88	Adopting policy for street assessments		
88-5-5	5- 9-88	Zoning amendment (ZC 88-13)		
88-5-6	5- 9-88	Zoning amendment (ZC 88-10)		
88-5-7	5- 9-88	Zoning amendment, increasing penalty for violations (ZC 88-04)		
88-5-8	5- 9-88	Zoning amendment to correct technical error (ZC 88-03)		
88-5-9	5- 9-88	Specific use permit (ZC 88-05)		
88-5-10	5- 9-88	Specific use permit (ZC 88-06)		
88-5-11	5- 9-88	Specific use permit (ZC 88-07)		
88-5-12	5- 9-88	Specific use permit (ZC 88-08)		
88-5-13	5- 9-88	Temporary directional signs, political signs	1	11-16
			2	11-39(3), (12), (13)
			3	11-40(a)
			4	11-60(d)
			5	11-65
88-5-14(R)	5- 9-88	Approving selection of Dynix, Inc., to provide and install library automation system		
88-5-15(R)	5-23-88	Canvassing election returns		
88-5-16(R)	5-23-88	Tax refunds		
88-5-17(R)	5-23-88	Settlement of claim		
88-5-18(R)	5-23-88	Filing of lawsuit		
88-5-19(R)	5-23-88	Permits loudspeakers		
88-5-20(R)	5-23-88	Permits loudspeakers		
88-5-21(R)	5-23-88	Supporting strategy for clean air		
88-5-22	5-23-88	Rezoning (ZC 88-12)		
88-5-23	5-23-88	Zoning amendment (ZC 88-14)		
88-5-24	5-23-88	Abandoning drainage easement		
88-5-25	5-23-88	Abandoning drainage easement		
88-5-26	5-23-88	Abandoning drainage easement		
88-5-27	5-23-88	Abandoning sewer easement		
88-5-28	5-23-88	Abandoning drainage easement		
88-5-29	5-23-88	Specific use permit (ZC 88-21)		
88-5-30(R)	5-23-88	Water and sewer capital improvement program		
88-6-1(R)	6-13-88	Road improvements		
88-6-2(R)	6-13-88	Permits loudspeakers		
88-6-3(R)	6-13-88	Agreement with Murray Savings Assoc.		
88-6-4	6-13-88	Rezoning (ZC 87-73)		
88-6-5	6-13-88	Specific use permit (ZC 87-67)		
88-6-6	6-13-88	Specific use permit (ZC 88-16)		
88-6-7	6-13-88	Rezoning (ZC 87-88)		
88-6-8	6-13-88	Parking on Dalston Lane	II	12-101
88-6-9	6-13-88	Parking on Winding Hollow Lane	II	12-101
88-6-10	6-13-88	School speed zone	I	12-73(b)
88-6-11(R)	6-13-88	Settlement agreement with Margaret Moles Titus		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
88-6-12(R)	6-13-88	Park master plan	I, II	15-4
88-6-13	6-13-88	Rezoning (ZC 87-69, 87-91, 88-17)		
88-6-14	6-13-88	Water and sewer system revenue bonds, series 1988		
88-6-15(R)	6-27-88	Endorsing development of freeway facility		
88-6-16(R)	6-27-88	Agreement with Collin County Coalition for the Prevention of Domestic Violence, Inc.		
88-6-17(R)	6-27-88	Grant application		
88-6-18(R)	6-27-88	Agreement with Nixdorf Computer Corp.		
88-6-19(R)	6-27-88	Tax refunds		
88-6-20(R)	6-27-88	Agreement with Electronic Data Systems Corp.		
88-6-21(R)	6-27-88	Agreement with Plano Bank and Trust		
88-6-22(R)	6-27-88	Permits loudspeakers		
88-6-23	6-27-88	Specific use permit (ZC 88-22)		
88-6-24	6-27-88	Amending Ord. No. 86-9-12 (AC A86-07) to correct clerical error		
88-6-25	6-27-88	School zone times	I	12-73(a), (b)
88-6-26(R)	6-27-88	Settlement of lawsuit		
88-7-1(R)	7-11-88	Permits loudspeakers		
88-7-2(R)	7-11-88	Road construction		
88-7-3	7-11-88	Annexation (AC A88-07)		
88-7-4	7-11-88	Zoning amendment (AC 88-24)		
88-7-5	7-11-88	Specific use permit (ZC 88-23)		
88-7-6	7-11-88	Speed limits on Spring Creek Parkway, Jupiter Road and Midway Road	II	12-74
88-7-7	7-11-88	1988 capital improvement program		
88-7-8	7-11-88	Zoning amendments (ZC 88-19)		
88-7-9(R)	7-11-88	Lease agreement		
88-7-10	7-11-88	Speed limits on Park Boulevard	II	12-74
88-7-11(R)	7-25-88	Financial assistance		
88-7-12(R)	7-25-88	Financial assistance		
88-7-13(R)	7-25-88	Tax refunds		
88-7-14(R)	7-25-88	Withdrawing from the Library Services and Construction Act, Title II grant contract		
88-7-15(R)	7-25-88	Adopting the Single-family Attached Housing Report and Guidelines for Development		
88-7-16(R)	7-25-88	Permits loudspeakers		
88-7-17	7-25-88	Prohibited activities in city parks	I IV	15-3 15-3(note)
88-7-18	7-25-88	Community relations commission	I, II	2-156(a)
88-7-19	7-25-88	Annexation (AC A88-08)		
88-7-20	7-25-88	Zoning amendment (ZC 88-25)		
88-7-21	7-25-88	Speed limits on Parker Road	II	12-74
88-7-22	7-25-88	School speed zones	I	12-73(a)
88-7-23	7-25-88	Parking on Avenue G	II	12-101
88-7-24(R)	7-25-88	Endorsing Collin County bond program		
88-7-25(R)	7-25-88	Recognizing National Night Out		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
88- 8-1(R)	8- 8-88	Participation in Denton county area 9-1-1 emergency communications district		
88- 8-2(R)	8- 8-88	Supports constitutional amendment		
88- 8-3(R)	8- 8-88	Adopts development amenities policies	I—III	16-3
88- 8-4	8- 8-88	Orders election re participation in Dallas Area Rapid Transit System		
88- 8-5	8- 8-88	Series 1988A general obligation bonds		
88- 8-6	8- 8-88	Series 1988B general obligation bonds		
88- 8-7	8- 8-88	Landscape development commission	I	16-81—16-86
88- 8-8(R)	8-22-88	Tax refunds		
88- 8-9(R)	8-22-88	Appointment		
88- 8-10(R)	8-22-88	Approves trustee for retirement security trust		
88- 8-11(R)	8-22-88	Agreement with Lebanon Water Supply Corp.		
88- 8-12	8-22-88	Specific use permit (ZC 87-85)		
88- 8-13	8-22-88	Specific use permit (ZC 88-27)		
88- 8-14	8-22-88	Specific use permit (ZC 88-26)		
88- 8-15(R)	8-22-88	Agreement with Huber, Hunt and Nichols, Inc.		
88- 9-1(R)	9- 8-88	Contract with Unlimited Construction Company, Inc.		
88- 9-2(R)	9- 8-88	Architectural services		
88- 9-3(R)	9- 8-88	Agreement with Murray Savings Association		
88- 9-4(R)	9- 8-88	Water main improvements		
88- 9-5(R)	9- 8-88	Permits loudspeakers		
88- 9-6(R)	9- 8-88	Permits loudspeakers		
88- 9-7	9- 8-88	Adopts Supplement No. 7		p. viii.xi
88- 9-8	9- 8-88	Zoning amendments (ZC 87-80)		
88- 9-9	9- 8-88	Parking on San Gabriel Blvd. (temp.)		
88- 9-10	9- 8-88	Adopting the 1988-89 budget		
88- 9-11	9- 8-88	Adopting the 1988-89 tax rate		
88- 9-12(R)	9-26-88	Instituting legal action		
88- 9-13(R)	9-26-88	Road improvements		
88- 9-14(R)	9-26-88	Road improvements		
88- 9-15(R)	9-26-88	Agreement with Volunteer Center of Plano, Inc.		
88- 9-16(R)	9-26-88	Tax refunds		
88- 9-17(R)	9-26-88	Permits loudspeakers		
88- 9-18(R)	9-26-88	Utility easements		
88- 9-19	9-26-88	Abandoning drainage easement		
88- 9-20	9-26-88	Abandoning drainage easement		
88- 9-21	9-26-88	Appropriation		
88- 9-22	9-26-88	Rezoning (ZC 88-32)		
88- 9-23	9-26-88	Classification and salary plan of police and fire departments for FY 1988-89		
88- 9-24(R)	9-26-88	Permits loudspeakers		
88- 9-25	9-26-88	Zoning amendment (ZC 88-29)		
88- 9-26(R)	9-26-88	Contract with North Texas Municipal Water District		
88-10-1(R)	10-10-88	Permits loudspeakers		
88-10-2(R)	10-10-88	Permits loudspeakers		
88-10-3(R)	10-10-88	Permits loudspeakers		
88-10-4(R)	10-10-88	Filing application for funds		
88-10-5(R)	10-10-88	Agreement with GTE Southwest, Inc.		
88-10-6(R)	10-10-88	Contract with Jeanneret & Associates, Inc.		
88-10-7(R)	10-10-88	Agreement with National Center for Municipal Development, Inc.		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
88-10-8(R)	10-10-88	Agreement with Administrative and Fiscal Consulting Services, Inc.		
88-10-9	10-10-88	CATV advisory board	I	7-16
			II	7-18
88-10-10	10-10-88	Appropriation		
88-10-11	10-10-88	Zoning amendments (ZC 88-38)		
88-10-12	10-10-88	Historic landmarks	I	16-106(c)(3)
88-10-13	10-10-88	Speed limit on 14th Street	I, II	12-74
88-10-14	10-10-88	Speed limit on Custer Road and Parker Road	I, II, IV	12-74
88-10-15	10-10-88	Parking on Merriman Drive	II	12-101
88-10-16	10-10-88	Conveys land		
88-10-17(R)	10-10-88	Contract with Plano Independent School District		
88-10-18(R)	10-10-88	Underground utility studies		
88-10-19(R)	10-24-88	Tax refunds		
88-10-20(R)	10-24-88	Cooperative purchasing program		
88-10-21(R)	10-24-88	School crossing guard locations		
88-10-22(R)	10-24-88	Interlocal agreement with Garland		
88-10-23(R)	10-24-88	Road improvements		
88-10-24(R)	10-24-88	Denounces acts of violence against religious institutions		
88-10-25	10-24-88	Appropriation		
88-10-26	10-24-88	Specific use permit (ZC 88-39)		
88-10-27	10-24-88	Zoning amendments (ZC 88-35)		
88-10-28(R)	10-24-88	Instituting legal remedies		
88-10-29	10-24-88	Zoning amendment (ZC 88-28)		
88-11-1(R)	11-14-88	Permits loudspeakers		
88-11-2(R)	11-14-88	Interlocal agreement with Fairview		
88-11-3(R)	11-14-88	Permits loudspeakers		
88-11-4(R)	11-14-88	Contract with Commission on Accreditation for Law Enforcement Agencies, Inc.		
88-11-5(R)	11-14-88	Permits loudspeakers		
88-11-6(R)	11-14-88	Road improvements		
88-11-7(R)	11-14-88	Contract with Southwestern Laboratories		
88-11-8(R)	11-14-88	Approves release of state's interests to tract of land		
88-11-9(R)	11-14-88	Payment of assessment opposing GTE rate increase request		
88-11-10	11-14-88	Adopts Supplement No. 8		p. viii.xiii
88-11-11	11-14-88	Abandons drainage easement		
88-11-12	11-14-88	Appropriation		
88-11-13	11-14-88	Speed limit on Independence Parkway	II	12-74
88-11-14(R)	11-28-88	Road improvements		
88-11-15(R)	11-28-88	Real estate contract		
88-11-16(R)	11-28-88	Tax refunds		
88-11-17(R)	11-28-88	Agreement with Jupiter Water System, Inc.		
88-11-18(R)	11-28-88	Interlocal agreement with Allen		
88-11-19(R)	11-28-88	Appointment		
88-11-20	11-28-88	Sewer service charges	I	21-135(d)
88-12-1(R)	12-12-88	Guidelines for outdoor commercial amusement facilities		
88-12-2(R)	12-12-88	Agreement with Texas Municipal League Workers' Compensation Joint Insurance Fund		

Ordinance Number	Adoption Date	Subject Matter	Section		Section this Code
88-12-3(R)	12-12-88	Agreement with Plano Housing Authority			
88-12-4(R)	12-12-88	Road improvements			
88-12-5(R)	12-12-88	Refund of excessive sewer charges			
88-12-6	12-12-88	Parking on Lockhart Drive	II		12-101
88-12-7	12-12-88	Abandons alley			
88-12-8	12-12-88	Electrical code	I		
			II	Rpld	6-276
88-12-9	12-12-88	Mechanical code	I		6-252
88-12-10	12-12-88	Plumbing code	I		6-237
			II		6-239
88-12-11	12-12-88	Building code	I		6-17
			II	Rpld	6-37—6-59
			III		Ch. 6, Art. II, Div. 2(note)
			IV(A—Y)		6-37—6-61
88-12-12	12-12-88	Fire code	1—20		8-16—8-35
			21(1)—(13)		8-51—8-63
			22—28		8-36—8-42
88-12-13	12-12-88	Public swimming pools	1—21		6-452—6-465.7
			22.01		6-465.8
			23, 24		6-465.9
88-12-14	12-12-88	Rezoning (ZC 88-43)			
88-12-15	12-12-88	Rezoning (ZC 88-31)			
88-12-16	12-12-88	Acquisition of utility easements			
			Art./Sec.		
88-12-17	12-12-88	Special events	I,	I, II	11-301, 11-302
			II,	I—IX	11-311—11-319
			III,	I—XII	11-331—11-342
			III,	XIII	11-320
			III,	XIV, XV	11-343, 11-344
			IV,	I—IV	11-356—11-359
			V,	I	11-361
88-12-18	12-12-88	Rezoning (ZC 88-40)			
88-12-19	—	—			
88-12-20(R)	12-20-88	School crossing guard location			
88-12-21	12-20-88	Real estate contract			
88-12-22	12-20-88	Classification and salary plan for police and fire department, FY 1988-89			
88-12-23	12-20-88	Specific use permit (ZC 88-50)			
88-12-24	12-20-88	Annexation (AC A88-10)			
88-12-25	12-20-88	Annexation (AC A88-11)			
88-12-26	12-20-88	Annexation (AC A88-12)			
89-1-1(R)	1- 9-89	Tax refunds			
89-1-2(R)	1- 9-89	Intervention in Lone Star Gas Company's gate rate increase request			
89-1-3(R)	1- 9-89	Agreement with cities of Garland and Richardson			
89-1-4(R)	1- 9-89	Supporting Dallas North Tollway Extension Phase 2			
89-1-5	1- 9-89	Speed limits on Los Rios Boulevard	II		12-74

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
89-1-6	1- 9-89	Parking on Marchman Way	II	12-101
89-1-7	1- 9-89	Adopts Supplement No. 9		p. viii.xv
89-1-8	1- 9-89	Speed limit on Preston Meadow Drive	II	12-74
89-1-9	1- 9-89	Erosion control	I	14-92—14-95
89-1-10(R)	1- 9-89	1988 hospital revenue bonds		
89-1-11(R)	1-23-89	Assessment contract		
89-1-12(R)	1-23-89	Approving release of state interests in drainage easement		
89-1-13(R)	1-23-89	Nominating candidate for election		
89-1-14	1-23-89	Abandoning street right-of-way		
89-1-15	1-23-89	Specific use permit (ZC 88-53)		
89-1-16	1-23-89	Partial tax exemption of certain historic landmark structures		
89-1-17	1-23-89	Ordering election		
89-2-1(R)	2-13-89	Real estate contract		
89-2-2(R)	2-13-89	Tax refunds		
89-2-3(R)	2-13-89	Agreement with Heritage Farmstead Association		
89-2-4(R)	2-13-89	Contract renewal for street sweeping services		
89-2-5(R)	2-13-89	Adopting U.S. 75 Amenities and Planning Guidelines		
89-2-6(R)	2-13-89	Agreement with Plano Independent School District		
89-2-7	2-13-89	Speed limits on Preston Road	II	12-74
89-2-8	2-13-89	Disannexation (DC D88-13)		
89-2-9	2-13-89	Rezoning (ZC 88-44)		
89-2-10	2-13-89	Specific use permit (ZC 88-52)		
89-2-11	2-13-89	Zoning amendment (ZC 88-51)		
89-2-12	2-13-89	Rescinding specific use permit (ZC 87-61)		
89-2-13	2-13-89	Barrier-free walk ramps	I	19-27(b)
89-2-14(R)	2-13-89	Community development block grant objectives		
89-2-14a(R)	2-27-89	Grant application		
89-2-15(R)	2-13-89	Nondiscrimination policy	I, II	2-11
89-2-15a(R)	2-27-89	Grant application		
89-2-16	2-13-89	Specific use permit (ZC 88-42)		
89-2-16a(R)	2-27-89	Road improvements		
89-2-17(R)	2-27-89	Bridge improvements		
89-2-18(R)	2-27-89	1989 single-family mortgage revenue bonds		
89-2-19(R)	2-27-89	License agreement with U.S. Sprint Communications Company		
89-2-20	2-27-89	Fire department position classifications		
89-2-21	2-27-89	Parking on Cross Bend Road	I	12-102
89-2-22(R)	2-27-89	Agreement with Plano Economic Development Board, Inc.		
89-2-23(R)	2-27-89	Agreement with Cultural Arts Council of Plano, Inc.		
89-3-1(R)	3-15-89	Grant application		
89-3-2(R)	3-15-89	Supporting Dallas Area Rapid Transit Authority project		
89-3-3(R)	3-15-89	Tax refunds		
89-3-4(R)	3-15-89	Detention cell capacity		
89-3-5(R)	3-15-89	Telephone service		
89-3-6(R)	3-15-89	Appointment		
89-3-7(R)	3-15-89	Agreement with Texas Turnpike Authority		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
89-3-8(R)	3-15-89	Road work agreement		
89-3-9	3-15-89	Historic designation (ZC 89-03)		
89-3-10(R)	3-15-89	Contract with SHWC, Inc.		
89-3-11	3-15-89	Miscellaneous filing fees	II	16-19
89-3-12(R)	3-15-89	Nondiscrimination policy	I, II	2-11
89-3-13	3-15-89	Street construction		
89-3-14	3-15-89	Speed limits on Parker Road	II	12-74
89-3-15(R)	3-27-89	Road improvements		
89-3-16(R)	3-27-89	Road improvements		
89-3-17(R)	3-27-89	Appointments		
89-3-18(R)	3-27-89	Grant application		
89-3-19(R)	3-27-89	Accepting audit findings		
89-3-20(R)	3-27-89	Assessment contract		
89-3-21	3-27-89	Abandoning drainage easement		
89-3-22	3-27-89	Abandoning sewer easement		
89-3-23	3-27-89	Changing street name		
89-3-24	3-27-89	Changing street name		
89-3-25	3-27-89	Shared ride shuttle service	I	11-125--11-132
89-3-26	3-27-89	Rezoning (ZC 86-100)		
89-3-27	3-27-89	Hazardous material spills	I--IV	14-106--14-109
89-3-28	3-27-89	Adopts Supplement No. 10		p. viii.xvii
89-3-29	3-27-89	Appropriation		
89-3-30	3-27-89	Certificate of occupancy		
89-3-31	3-27-89	Wage rates for highway/heavy construction work		
89-3-32	3-27-89	Temporary no parking zone		
89-4-1(R)	4-10-89	Construction agreement		
89-4-2(R)	4-10-89	Agreement with North Texas Commission		
89-4-3(R)	4-10-89	Contract with Privatization Development of America, Inc.		
89-4-4(R)	4-10-89	Easement		
89-4-5(R)	4-10-89	Tax refunds		
89-4-6(R)	4-10-89	Contracts re civic center		
89-4-7	4-10-89	Rezoning (ZC 89-06)		
89-4-8	4-10-89	Rezoning (ZC 89-02)		
89-4-9	4-10-89	Rezoning (ZC 88-37)		
89-4-10	4-10-89	Swimming pool, tennis center fees	I, II	15-85, 15-86
89-4-11	4-10-89	Certificate of occupancy		
89-4-12	4-10-89	Housing code		
89-4-13	4-10-89	Abandoning drainage easement		
89-4-14	4-10-89	Appropriation		
89-4-15	4-10-89	Specific use permit (ZC 89-08)		
89-4-16(R)	4-10-89	Supporting Senate Bill 895 and House Bill 1776		
89-4-17(R)	4-24-89	Conveyance of right-of-way		
89-4-18(R)	4-24-89	Deed with Vantage Properties, Inc.		
89-4-19(R)	4-24-89	Deed with Atlantic Richfield Company		
89-4-20(R)	4-24-89	Permits loudspeakers		
89-4-21(R)	4-24-89	Professional services contract		
89-4-22(R)	4-24-89	Official name for civic center		
89-4-23	4-24-89	Fire department position classification		
89-4-24	4-24-89	Acquisition of right-of-way and easements		
89-5-1(R)	5- 8-89	Canvassing election returns		
89-5-2(R)	5- 8-89	Assessment policy		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
89-5-3(R)	5- 8-89	Adopting the Plano Parkway Enhancement Study		
89-5-4(R)	5- 8-89	Tax refunds		
89-5-5(R)	5- 8-89	Endorsing DART local and technical assistance programs		
89-5-6(R)	5- 8-89	Permits loudspeakers		
89-5-7	5- 8-89	Certificate of occupancy		
89-5-8	5- 8-89	Rezoning (ZC 89-10)		
89-5-9	5- 8-89	Annexation (AC A89-01)		
89-5-10(R)	5- 8-89	Road improvements		
89-5-11(R)	5- 8-89	Application for funding		
89-5-12	5- 8-89	Emergency management	I	2-140, 2-141
			II	2-142
			III	2-138
			IV	2-136
			V	2-139
			VI	2-137
89-5-13(R)	5- 8-89	Application for funding		
89-5-14(R)	5-22-89	Agreement with Municipal Administrative Services, Inc.		
89-5-15(R)	5-22-89	Permits loudspeakers		
89-5-16(R)	5-22-89	Library grant application		
89-5-17(R)	5-22-89	Sewer construction		
89-5-18	5-22-89	Terms of members of various city boards, commissions and committees	I	8-5(b), 16-43, 16-233(a)
			II(a)	12-35(b), (c)
			II(b)	6-1(d)
			II(c)	16-81(b)
			II(d)	11-18(b)
89-5-19	5-22-89	Community relations commission	I	2-156(a)
			II	2-157
89-5-20	5-22-89	Changing street name		
89-5-21(R)	5-22-89	Community development block grant		
89-5-22(R)	5-22-89	Real estate agreement		
89-5-23(R)	5-22-89	Real property contract		
89-5-24(R)	5-22-89	Affirmative action program	I, II	2-41
89-5-25	5-22-89	Special events permit		
89-5-26(R)	5-22-89	Agreement with Rauscher Pierce Refsnes, Inc.		
89-6-1(R)	6-12-89	Professional services contract		
89-6-2(R)	6-12-89	Drainage improvements		
89-6-3(R)	6-12-89	Tax refunds		
89-6-4(R)	6-12-89	Easement		
89-6-5(R)	6-12-89	Quitclaim deed		
89-6-6(R)	6-12-89	Real property contract		
89-6-7(R)	6-12-89	Requesting designation of controlled access freeway		
89-6-8(R)	6-12-89	Supporting efforts to expand Dallas/Fort Worth commercial zones		
89-6-9	6-12-89	Changing street name		
89-6-10	6-12-89	Specific use permit (ZC 89-04)		
89-6-11	6-12-89	Parking on Avenue M	II	12-101
89-6-12	6-12-89	Repealing Ord. No. 69-2-1	I	12-12
89-6-13	6-12-89	One-way streets during school hours	I	12-13
89-6-14(R)	6-26-89	Road improvements		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
89-6-15(R)	6-26-89	Instituting legal proceedings		
89-6-16(R)	6-26-89	Transferring obsolete library materials		
89-6-17(R)	6-26-89	Interlocal agreement with Plano Independent School District		
89-6-18	6-26-89	Return of library materials	I	10-3
89-6-19	6-26-89	School zones on Spring Creek Parkway	I	12-73(c)
89-6-20	6-26-89	Specific use permit (ZC 89-01)		
89-6-21	6-26-89	Specific use permit (ZC 88-54)		
89-6-22	6-26-89	Developer participation agreements		
89-7-1(R)	7-10-89	Deferred compensation plan amendments		
89-7-2(R)	7-10-89	Tax refunds		
89-7-3(R)	7-10-89	Interlocal cooperation agreement with the City of Frisco		
89-7-4(R)	7-10-89	Gas main extension agreement		
89-7-5(R)	7-10-89	Permits loudspeakers		
89-7-6(R)	7-10-89	Special election		
89-7-7	7-10-89	Acquisition of fee simple title		
89-7-8	7-10-89	Rezoning (ZC 88-15)		
89-7-9	7-10-89	Appropriation		
89-7-10(R)	7-10-89	Interlocal agreement with Dallas Area Rapid Transit Board		
89-7-11(R)	7-10-89	Supporting development of a regional transportation system		
89-7-12	—	—		
89-7-13(R)	7-24-89	Funding of change to the DART system plan		
89-7-14(R)	7-24-89	Agreement with Arthur Anderson and Co.		
89-7-15(R)	7-24-89	Special assessment		
89-7-16(R)	7-24-89	Acquisition of land		
89-7-17(R)	7-24-89	Use of alternate fuels in city vehicles		
89-7-18(R)	7-24-89	Recycling		
89-7-19(R)	7-24-89	Special election		
89-7-20	7-24-89	Appropriation		
89-7-21	7-24-89	Sidewalk and location design standards	II	19-27
			III	19-26.1
			IV, V	19-27.1
89-8-1(R)	8-14-89	Road improvements		
89-8-2(R)	8-14-89	Permits loudspeakers		
89-8-3(R)	8-14-89	Permits loudspeakers		
89-8-4(R)	8-14-89	Permits loudspeakers		
89-8-5(R)	8-14-89	Application for library grant		
89-8-6	8-14-89	Rezoning (ZC 89-16)		
89-8-7	8-14-89	Specific use permit (ZC 89-17)		
89-8-8	8-14-89	Rezoning (ZC 89-19)		
89-8-9	8-14-89	Abandoning easement		
89-8-10	8-14-89	Temporary certificate of occupancy		
89-8-11	8-14-89	Building code	I	6-17
			II, III	6-61
89-8-12	8-14-89	Annexation (Ac A89-02)		
89-8-13	8-14-89	Election returns		
89-8-14(R)	8-28-89	Collection of delinquent paving assessments		
89-8-15(R)	8-28-89	Guidelines for installation of traffic islands.		

Ordinance Number	Adoption Date	Subject Matter	Section	Section this Code
89-8-16(R)	8-28-89	Interlocal agreement with Dallas County		
89-8-17(R)	8-28-89	Permits loudspeakers		
89-8-18(R)	8-28-89	DART board of directors		
89-8-19	8-28-89	General obligation bonds, series 1989A		
89-8-20	8-28-89	General obligation bonds, series 1989B		
89-8-21	8-28-89	Acquisition of land		
89-8-22(R)	8-28-89	Agreement with Elizabeth C. Kemp, et al.		
89-8-23	8-28-89	Speed limits on Custer Road and Parker Road	I—III	12-74
89-8-24	8-28-89	Speed limits on Tennyson Parkway, McDermott Drive and Hedgcoxe Road	II	12-74
89-8-25	8-28-89	Fire extinguishing systems	I, IIA	6-41.5
			I, IIB	6-54.5, 8-30.5
89-8-26	8-28-89	Tax Abatement Reinvestment Zone No. 3		
89-8-27(R)	8-28-89	Agreement with Nikko America, Inc.		
89-8-28(R)	8-28-89	Temporary directional sign permits		
89-9-1(R)	9-11-89	Construction of State Highway 190		
89-9-2(R)	9-11-89	Agreement with City Resource Group		
89-9-3	9-11-89	Ambulance service	II—IV	8-3
89-9-4	9-11-89	Miscellaneous filing fees	II	16-19
89-9-5	9-11-89	Tax rate for FY 1989-90		
89-9-6	9-11-89	Budget for FY 1989-90		
89-9-7	9-11-89	Zoning amendments (ZC 89-12)		
89-9-8	9-11-89	Specific use permit (ZC 89-20)		
89-9-9	9-11-89	Abandoning drainage easement		
89-9-10	9-11-89	Temporary no parking zone on San Gabriel Boulevard		
89-9-11	9-11-89	Temporary no parking zone on Merriman Drive		
89-9-12	9-11-89	Sign regulations	Art. I, § 1	11-16
			II, §§ 1—15	11-36—11-50
			III, §§ 1—8	11-61—11-68
			IV, §§ 1—15	11-76—11-90
			V—VII	11-17—11-19
89-9-13(R)	9-25-89	Project list for DART local assistance program funds		
89-9-14(R)	9-25-89	Project list for state dept. of highways and public transportation and DART funded Transit PASS program		
89-9-15(R)	9-25-89	Endorsing development of Archerwood Site		
89-9-16(R)	9-25-89	Adopting Douglass Area Study		
89-9-17(R)	9-25-89	Sanitary sewer improvements		
89-9-18(R)	9-25-89	Permits loudspeakers		
89-9-19(R)	9-25-89	Cooperative state purchasing program		
89-9-20(R)	9-25-89	Transfer of delinquent personal property tax accounts		
89-9-21(R)	9-25-89	Agreement with J. Thomas Ward, Jr., M.D., P.A.		
89-9-22(R)	9-25-89	Personal services contract with Volunteer Center, Inc.		
89-9-23(R)	9-25-89	Agreement with Plano Balloon Festival, Inc.		
89-9-24	9-25-89	Adopts Supplement No. 11		p. viii.xix
89-9-25	9-25-89	Rezoning (ZC 89-22)		

CODE COMPARATIVE TABLE

This table contains a numerical listing of all general and permanent ordinances of the city deemed suitable for codification herein, commencing with Ordinance No. 89-10-7. Ordinances not listed either were not intended for codification or were deemed unsuitable for inclusion in the Code.

Ordinance Number	Adoption Date	Subject	Section	Section this Code
89-10-7	10-11-89	Prohibits truck-tractor, etc., operation on portions of 11th Street and Avenue F	I	12-137(a)(8), (9)
89-10-8	10-11-89	Speed limits on sections of Custer Road	II	12-74(b)
89-10-9	10-11-89	No parking on sections of Devonshire Drive	II	12-102(a)
89-10-10	10-11-89	Records manager to administer records management program	I	2-118
89-10-12	10-11-89	Housing Infill Program for Douglass Community	I–IV	16-251–16-254
89-10-16	10-11-89	Amended fee schedule for water and sewer services	I	21-147
			II	21-135
89-10-25	10-23-89	Registration permits, fees, impoundment of dogs and cats	I	4-6
			II	4-13
			III	4-4
89-10-27	10-23-89	Amendments to building code, etc.	I	6-39
			II	6-153
89-10-28	10-23-89	Additional rights, credits in Texas Municipal Retirement System	I–III	2-67.2
89-11-8	11-13-89	Adopts Supplement No. 12		p. viii.xxi
89-11-10	11-13-89	Revised schedule of rates, charges for solid waste collection	I	18-32(a)
			II	18-33
89-11-11	11-13-89	Amended fee schedule for water and sewer services	I	21-147
			II	21-135
89-11-12	11-13-89	No parking on sections of Lexington Drive	II	12-101
89-11-13	11-13-89	Speed limits on sections of Custer Road	II	12-74(b)
89-11-15	11-13-89	Planting, etc., trees, plants, etc., on public property	I–VI	15-116–15-121
			VIII	15-122
89-11-22	11-30-90	Revised fee schedule for filing zoning cases, etc.	II Rpld	16-16, 16-17
			III	16-19
89-11-23	11-30-89	Deletes trenching safety requirements	I Rpld	6-61(§7007)
89-11-27	11-30-89	Creates DART Advisory Committee	I–VIII	2-201–2-208
89-12-8	12-11-89	Updated service credits in Texas Municipal Retirement System	I, II	2-64, 2-65
89-12-10	12-11-89	Taxation of exempt property	I	20-3
89-12-14	12-11-89	Repeals Ord. No. 89-11-14; establishes planning and zoning commission as impact fee advisory committee	II–VI	2-216–2-220
89-12-23	12-20-89	Adopts Supplement No. 13		p. viii.xxiii
90-1-7	1- 8-90	Revised schedule of rates, charges for solid waste collection	I	18-34
90-1-10	1- 8-90	Speed limits on sections of Parker Road	II	12-74(b)
90-1-11	1- 8-90	School zone on Edgefield Drive	I	12-73(a)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
90-1-12	1- 8-90	No parking on certain days, times on sections of Seabrook Drive and Stadium Drive	I, II		12-102.5
90-1-22	1-22-90	Definition, prohibition on placement of temporary directional signs	II		11-16
			III		11-91
90-2-6	2-12-90	Prohibits truck-tractor, etc., operation on Bishop Road	II		12-137(a)(10)
90-2-7	2-12-90	No parking on sections of Promontory Point	II		12-101
90-2-8	2-12-90	Speed limits on Bishop Road	II		12-74(b)
90-2-9	2-12-90	Repeals, adopts regulations governing platting, developing and subdividing of land	I	Rpld	16-131—16-148(e)(4), (e)(6)—(8)
			II(1.1)		16-131
			II(1.2—1.12)		16-133—16-143
			II(2.1, 2.2)		16-132
			II(3.1—3.8)		16-144—16-151
			II(4.1—4.5)		16-152—16-156
			II(5.1—5.12)		16-157—16-160.8
			II(6.1—6.6)		16-160.9—16-160.14
			II(7.1—7.3)		16-160.15—16-160.17
90-2-10	2-12-90	Amends building code, section 304	I		6-39.5
90-2-11	2-12-90	Dissolves CATV Advisory Board	I	Rpld	7-16—7-23
90-2-19	2-12-90	Standards of conduct for public officials, etc.	I	Rpld	2-96—2-101
				Added	2-96—2-108
90-3-14	3-12-90	User fees for recreation center	I		15-88
90-3-16	3-12-90	Taxation of exempt property	I		20-3
90-4-10	4- 9-90	Amends § 2515(a) of building code	I		6-48.5
90-4-11	4- 9-90	No parking on sections of 11th Street and Avenue F	II		12-101
90-4-24	4-23-90	Sports seasons, uses of facilities, user fees, etc.	I		15-56, 15-58, 15-61, 15-66
90-4-26	4-23-90	Crime Prevention Advisory Commission (Eyes of Plano)	I—VII		2-231—2-237
90-4-27	4-23-90	Amends fees, charges for water and sewer services	II	Rpld	21-135
				Added	21-135, 21-136
			III	Rpld	21-147
				Added	21-147
90-5-36	5-29-90	Repeals § 21-134 and establishes impact fees for water and wastewater facilities to serve new development	I	Rpld	21-134
				Added	21-201—21-221, 21-236—21-238, 21-251—21-253, 21-266, 21-267

Ordinance Number	Adoption Date	Subject	Section		Section this Code
90-5-37	5-29-90	Prohibits parking on sections of Midcrest Drive, Rockbrook Drive, Winterstone Drive and Winterplace Circle	II		12-101
90-5-38	5-29-90	One-way traffic on sections of Midcrest Drive, Rockbrook Drive, Winterstone Drive and Winterplace Circle	I		12-12(b)
90-6-8	6-11-90	Adopts 1990 Edition of National Electrical Code	I		6-275
90-6-9	6-11-90	Monthly payments of hotel occupancy tax, etc.	I		20-75
90-6-15	6-25-90	Dissolves Civic Center Advisory Board	I	Rpld	2-176—2-182
90-7-4	7- 9-90	Establishes school zone on Independence Parkway	I		12-73(a)
90-7-15	7-23-90	Establishes school zone on Parker Road	I		12-73(a)
90-7-16	7-23-90	Establishes school zone on Prescott Drive and on Georgetown Drive	I		12-73(a)
90-7-17	7-23-90	Establishes school zone on Preston Meadow Drive and Lorimar Drive	I		12-73(a)
90-7-18	7-23-90	Prohibits parking on sections of Red River Drive	II		12-101
90-8-5	8-13-90	Amends city fire code, flammable and combustible liquids	I		8-37
90-8-6	8-13-90	Regulates construction of sidewalks and driveway approaches; specifications; permits	I	Rpld	19-26.1—19-27.1
			II	Added	19-27
			III	Added	19-26.1
			IV, V	Added	19-27.1
90-8-9	8-13-90	Establishes pro rata fees for water and wastewater facilities; extension of water and wastewater facilities	I	Rpld	21-166—21-177, 21-191—21-194
				Added	21-166—21-169, 21-178—21-182, 21-183—21-188
90-8-10	8-13-90	Repeals requirement for city permit, levy of occupational tax for coin-operated machines; clarifies responsibilities of operators, etc.	I	Rpld	11-249, 11-250, 11-266—11-274
			II	Rpld	11-286—11-289
			III		11-251, 11-252
90-8-11	8-13-90	Repeals regulations on commercial ownership, operation of billiard tables	I	Rpld	14-1.1
90-8-23	8-27-90	Prohibits parking on sections of Willow Bend Drive during certain hours on school days	II		12-102(a)
90-8-24	8-27-90	Establishes school zone on Preston Meadow Drive	I		12-73(a)
90-9-4	9-10-90	Amends fee schedule for nonresidential evaporative cooling towers sewer services	I		21-137

Ordinance Number	Adoption Date	Subject	Section	Section this Code
90-9-5	9-10-90	Amends fee schedule for water and sewer services	II	21-135, 21-136
			III	21-147
90-9-6	9-10-90	Revises fee schedule for zoning cases, land studies, etc.	II	16-19
90-9-24	9-24-90	Prohibits parking on sections of Jomar Drive	II	12-101
90-9-25	9-24-90	Revises expiration date, membership of sign board of appeals, etc.	I, II	11-50(b), (f)
90-10-9	10- 8-90	Establishes speed limit on sections of Alternate Avenue K	II	12-74(b)
90-10-10	10- 8-90	Establishes speed limit on sections of Chase Oaks Boulevard	II	12-74(b)
90-10-12	10- 8-90	Adopts and enacts Supplement No. 14		p. viii.xxv
90-10-25	10-22-90	Amends Art. XII of Ch. 6; establishes a property code and provides regulations thereunder	I(Art. I, §§ 1—4)	6-486—6-489
			I(Art. II, §§ 1—4)	6-501—6-504
			I(Art. III, §§ 1—3)	
			I(Art. IV, § 1)	6-490
			I(Art. V, §§ 1—6)	6-516—6-521
			I(Art. VI, § 1)	6-522
			I(Art. VII, § 1)	6-523
			I(Art. VIII, § 1)	6-524
			I(Art. IX, § 1)	6-525
			I(Art. X, § 1)	6-526
			I(Art. XI, §§ 1—7)	6-541—6-547
90-11-8	11-12-90	Creates a community substance abuse prevention advisory committee	I—VI	2-281—2-286
90-11-31	11-26-90	Amends § 21-152; revises regulations regarding deposits for water services	I	21-152
90-11-32	11-26-90	Provides requirements and regulation of sanitary facilities on construction sites	I	6-5
90-11-33	11-26-90	Amends § 6-37 and § 202(d) of building code	I	6-37
90-12-35	12-10-90	Amends §§ 9-1, 9-3, 9-5, food and food establishments	I	9-1
			II	9-3
			III	9-5(a)(2.5)a
			IV	9-5(b)(1)
			V	9-5(b)(3)
			VI	9-5(b)(4)a.
90-12-14	12-18-90	Provides for the creation of a senior citizens advisory board	I—VII	2-241—2-247
91-1-10	1-14-91	Amends Art. III of Ch. 21; provides regulations for the disposal of sewage and the use of public sewers, regulates the	I(1—31) II	21-61—21-91(c) 21-91(d)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
		discharge of industrial wastes into the sanitary sewer, and provides for a permit system			
91-1-14	1-14-91	Amends § 2-98(12), code of conduct	I		2-98(12)
91-1-34	1-28-91	Amends § 12-73(a), establishes a school zone on certain sections of Alma Drive and 15th Street	I		12-73(a)
91-1-35	1-28-91	Amends § 15-87, provides fees to be charged for use of municipal golf course	I		15-87
91-1-36	1-28-91	Amends §§ 15-85 and 15-86, provides for fees for use of public swimming pools and city's High Point Tennis Center	I, II		15-85, 15-86
91-1-37	1-28-91	Adopts Supplement No. 15			p. viii.xxvii
91-1-42	1-28-91	Amends § 18-34, provides a schedule of rates and charges for solid waste disposal and collection	I		18-34
91-2-9	2-11-91	Provides for creation of a cultural affairs commission	I–VII		2-251–2-257
91-2-11	2-11-91	Provides for creation of a community services commission	I–VII		2-261–2-267
91-2-17	2-25-91	Repeals Ord. No. 71-8-5 pertaining to juvenile curfew	I	Rpld	14-46–14-49
91-2-22	2-25-91	Amends § 8-17, fire protection division	I		8-17(d), (e)
91-3-12	**3-14-91**	**Amends Art. VIII of Ch. 16 pertaining to flood hazard**	I		**16-161–16-177 16-191–16-194**
91-3-25	3-25-91	Amends § II of Ord. No. 91-2-11, increases the number of members of the community services commission from 8 to 9	I		2-262
91-4-3	4- 8-91	Amends Art. II of Ch. 12, changes the name of the citizens' traffic safety support commission to traffic commission	I II		12-31 Ch. 12, Art. II(tit.)
91-4-12	4- 8-91	Amends Art. II of Ch. 11, pertaining to signs; retains all portions of Ord. No. 90-1-22	I		11-16–11-51, 11-61–11-68, 11-76–11-90, 11-92
91-4-37	4-22-91	Amends Art. IV of Ch. 2, code of conduct	I		2-96–2-108
91-5-10	5-13-91	Amends Ch. 6 to add a nonresidential property code	I(Art. I, §§ 1–4) I(Art. II, §§ 1–4) I(Art. III, §§ 1–4) I(Art. IV, § 1) I(Art. V, §§ 1–5) I(Art. VI, § 1) I(Art. VII, § 1) I(Art. VIII, § 1) I(Art. IX, § 1)		6-561–6-564 6-571–6-574 6-566(a)–(d) 6-565 6-581–6-585 6-586 6-587 6-588 6-589

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			I(Art. X, § 1)		6-590
			I(Art. XI, §§ 1–7)		6-601–6-607
91-5-11	5-13-91	Amends § 12-74, establishes maximum speed limit on sections of Honeysuckle Lane	II		12-74
91-5-15	5-13-91	Adopts Supplement No. 16			p. vii.xxix
91-5-21	5-13-91	Amends Ch. 19, repeals Ord. No. 86-11-17, adopts minimum standards to be followed in the development of streets and thoroughfares, sidewalks, and appurtenances thereto	I V	 Rpld	19-21 19-21–19-26, 19-28, 19-29
91-6-5	6-10-91	Amends § 12-101, prohibits parking on sections of Springbrook Drive	II		12-101
91-6-28	6-24-91	Amends Ch. 6, establishes regulations for solid waste removal from construction sites	I(1–8) II		6-621–6-628 6-629
91-7-7	7- 8-91	Amends § 12-101, prohibits parking on sections of Alma Drive	II		12-101
91-7-8	7- 8-91	Amends § 12-101, prohibits parking on sections of Denham Way	II		12-101
91-7-15	7-22-91	Amends §§ 13(A) and 20(B) of § I of Ord. No. 91-1-10, provides a fee for an annual industrial/commercial wastewater discharge permit	I II		21-73(a) 21-80(b)
91-7-18	7-22-91	Amends § 12-74, establishes maximum speed limit on sections of 15th Street	II		12-74(b)
91-7-19	7-22-91	Amends § 12-74, establishes maximum speed limit on sections of Spring Creek Parkway	II		12-74(b)
91-8-31	8-26-91	Amends § 12-73, removes school zones on Spring Creek Parkway at Pleasant Valley Drive and at Roundrock Trail	I, II		12-73(b), (c)
91-8-32	8-26-91	Establishes 9-1-1 emergency telephone service fee, authorizes execution of contracts with GTSW, SWB, or other 9-1-1 telephone company provider	I–III		7.5-16–7.5-18
91-9-13	9-11-91	Amends § 16-19, establishes revised fee schedule for filing and review of traffic impact analyses	I		16-19(21)
91-9-22	9-11-91	Amends §§ 21-135, 21-136, and 21-147, provides for an amended fee schedule for water and sewer service	I II		21-135, 21-136 21-147
91-9-34	9-23-91	Amends §§ 18-32(a) and 18-33, provides a revised schedule of rates and charges for solid waste disposal	I II		18-32(a) 18-33
91-9-40	9-23-91	Amends §§ 12-101 and 12-102(b), prohibits parking on sections of Marchman Way during school hours	I II		12-101 12-102(b)
91-10-18	10-28-91	Amends § 12-73(a), establishes school zone on Yeary Road	I		12-73(a)
91-10-19	10-28-91	Deletes § 12-102.5 and amends § 12-101, prohibiting parking on sections of Seabrook Drive	I II	Rpld Amnds	12-102.5 12-101
91-10-20	10-28-91	Amends § 12-73(a), establishes school zone on Greenfield Drive	I		12-73(a)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
91-10-21	10-28-91	Amends § 12-101, prohibits parking on certain sections of Commerce Drive	I		12-101
91-10-22	10-28-91	Amends § 12-101, prohibits parking on sections of Municipal Drive	I		12-101
91-10-23	10-28-91	Amends § 12-73(a), establishes school zone on Valencia Drive	I		12-73(a)
91-10-24	10-28-91	Amends § 12-101, prohibits parking on sections of 15th Street	I		12-101
91-10-25	10-28-91	Amends § 18-34, establishes schedule of rates for solid waste disposal	I		18-34
91-10-37	10-28-91	Creates sister cities board of directors	I—IV		2-176—2-181
91-11-11	11-11-91	Amends § 12-73(a), establishes school zone on Emerson Drive	I		12-73(a)
91-11-12	11-11-91	Adopts Supplement No. 17			p. viii.xxxi
91-11-13	11-11-91	Revises Arts. I and II of Ch. 18, solid waste	I		18-1—18-17
			II		18-31—18-33
91-11-24	11-25-91	Amends Ch. 16, Art. VII, platting and subdividing land	I		16-132(b)
			II		16-157(c)(1)a
			III		16-160(f)
91-11-30	11-25-91	Establishes restricted prior service credit under the retirement system	I		2-69
91-11-31	11-25-91	Allows employees special credit for active service in the armed forces under the retirement system	I, II		2-70
91-11-32	11-25-91	Allows employees updated service credit under retirement system	I		2-64
			II		2-65
			III		2-66
			IV		2-66.1
91-12-29	12-23-91	Amends § 12-73(a), expands school zone on Mission Ridge Road	I		12-73(a)
91-12-30	12-23-91	Amends § 12-101, prohibits parking on sections of Quarry Chase Trail	I		12-101
91-12-31	12-23-91	Amends Art. II, of Ch. 14, handbills	I	Rpld	14-26—14-34
				Added	14-26—14-33
92-1-9	1-13-92	Amends § 12-73(b), establishes school zone on Spring Creek Parkway	I		12-73(b)
92-1-10	1-13-92	Amends § 12-74(b), establishes speed limit for sections of Ave. K (State Hwy. 5)	I		12-74(b)
91-1-11	1-13-92	Adopts Supplement No. 18			p. xi
92-1-28	1-27-92	Amends § 12-101, prohibits parking on sections of Stadium Drive	I	Rpld	12-102.5
			II		12-101
92-2-9	2-10-92	Amends Ch. 15, establishes policies for sports	I		15-51, 15-56, 15-57, 15-59, 15-61, 15-62, 15-64—15-66
92-2-13	2-10-92	Prohibits display of sexually explicit materials to minors	I		14-10
92-3-8	3-12-92	Amends § 12-74(b), establishes speed limit	I		12-74(b)
92-3-9	3-12-92	Amends § 12-101, prohibits parking on certain sections of Ridgewood Drive	I		12-101
92-3-12	3-12-92	Amends § 12-102(a), prohibits parking on school days during certain hours	I		12-102(a)
92-3-13	3-12-92	Prohibits discrimination in housing	1—11		9.5-31—9.5-41
92-3-15	3-12-92	Amends § 12-74(b), establishes speed limit	I		12-74(b)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
92-3-16	3-12-92	Adopts Uniform Fire Code and standards	1–26		8-16–8-41
92-3-17	3-12-92	Amends regulations regarding waste removal from construction sites	I		6-621
			II		6-625(7)
92-3-28	3-23-92	Establishes an administrative code	I		6-651
			II		6-652
92-3-29	3-23-92	Adopts mechanical code	I		6-252
			II		6-254
92-3-30	3-23-92	Amends Ch. 6, adopts building code	I		6-17
			II	Rpld	6-37–6-61
			III	Added	6-37
92-3-31	3-23-92	Adopts plumbing code with amendments	I		6-237
			II		6-239
92-4-19	4-13-92	Amends § 12-73(a), establishes school zone	I		12-73(a)
92-4-40	4-27-92	Amends § 12-101, prohibits parking on certain streets	I, II		12-101
92-4-41	4-27-92	Amends § 12-101, prohibits parking on certain streets	I, II		12-101
92-4-45	4-27-92	Amends Ch. 6, regulates potbellied pigs	I		4-17
92-4-48	4-27-92	Amends § 12-101, prohibits parking on certain streets	I		12-101
92-4-51	4-27-92	Amends Ch. 15, reflects changes in park and recreation board	I		15-1–15-3
			II		15-21–15-26
			III		15-81–15-90
92-5-9	5-11-92	Amends Ch. 15, establishes fee schedule	I		15-88(note)
92-5-10	5-11-92	Amends Ch. 11, provides permit exemption for certain signs	I		11-41, 11-86, 11-90
			II		11-39(17), 11-64(h)
			III		11-62(i)
92-5-16	5-26-92	Adopts Supplement No. 19	I–IV		p. xii.i
92-5-19	5-26-92	Amends Ch. 16, adds requirements for property owners' association	I		16-160.7
92-6-4	6- 8-92	Amends building code to modify requirements for dwelling overhangs	I		6-37
92-6-5	6- 8-92	Amends § 12-101, prohibits parking on certain streets	II		12-101
92-6-6	6- 8-92	Amends § 12-101, prohibits parking on certain streets	II		12-101
92-6-7	6- 8-92	Amends building code, providing requirements for gate latches	I		6-37
92-6-16	6-22-92	Repeals Ord. No. 83-8-16			
92-6-17	6-22-92	Creates self-sufficiency committee	I–IV		2-301–2-304
92-6-18	6-22-92	Amends regulations concerning junked vehicles	I		12-226–12-232
			II	Rpld	12-226–12-232
92-6-19	6-22-92	Amends Ch. 6, combines functions of electrical licensing board with construction review board	I	Rpld	6-346–6-355
			II		6-1(g)(5)
			III		6-373(a)
92-6-20	6-22-92	Amends provisions concerning certain boards and commissions	I		2-262, 2-264
			II		2-252, 2-254
			III		10-20, 10-21
			IV		2-242, 2-244

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			V		16-207, 16-210
92-6-21	6-22-92	Amends Ch. 11, concerning downtown district			
			II		11-41
			III		11-51
			IV		11-84
92-6-26	6-22-92	Amends provisions concerning certain committees and commissions	I—IX		2-201—2-209
			X	Rpld	2-201—2-208
					12-31—12-36
92-7-10	7-13-92	Amends Ch. 12, changes school zone times	I		12-73
92-7-11	7-13-92	Amends Ch. 12, establishes school zone	I		12-73(a), (b)
92-7-12	7-13-92	Amends Ch. 12, establishes school zone	I		12-73(b)
			II		12-73(a)
92-7-14	7-13-92	Amends Ch. 21, provides sewer requirements	I(1—10)		21-61—21-70
92-7-15	7-13-92	Amends Ch. 21, regulates discharge of industrial wastes	I	Rpld	21-61—21-91
			II(1—36)	Added	21-301—21-336
92-7-18	7-13-92	Amends building code, clarifying barriers for swimming pools, spas and hot tubs	I		6-37
92-7-29	7-27-92	Reduces membership of community substance abuse prevention advisory committee	I		2-282
92-7-30	7-27-92	Amends § 12-102, prohibits parking on certain streets	II		12-102(a)
92-7-39	7-27-92	Amends administrative code	I		6-652
92-7-41	7-27-92	Establishes a municipal drainage utility system	I—V		21-1
92-7-42	7-27-92	Establishes utility rates	I—IV		21-2
92-8-15	8-10-92	Amends building code, provides exception to parapet construction	I		6-37
92-8-16	8-10-92	Amends Ch. 2, provides for appointments	I		2-163
92-8-17	8-10-92	Establishes and levies a hotel occupancy tax	I	Rpld	20-71—20-76
			II-X	Added	20-71—20-79
91-1-22	1-14-91	Revises regulations regarding deposits for water services	I		21-152
92-6-27-A	6-29-92	Establishes the sister cities advisory committee	II-VIII		2-176—2-181
			I	Rpld	2-176—2-181
92-9-16	9-14-92	Adopts Supplement No. 20			p. xii.iii
92-9-19	9-14-92	Amends fees and rates on city services and programs	I		6-652
			II		6-465.5(a)
			III		8-3(b)
			IV		9-5(2.5)
			V		15-59(a), 15-84, 15-89

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			VI		18-32(a)(1)(6), 18-33(a)
			VII		21-135, 21-136, 21-147
92-9-20	9-14-92	Establishes that any party responsible for hazardous material(s) spill shall be liable for clean-up costs	I—VII		14-106—14-172
92-9-33	9-28-92	Repeals ordinances establishing the landscape development commission, the fire safety education advisory committee, the crime prevention commission and the Spring Creekwalk development board	I, II	Rpld	16-81—16-86
				Rpld	8-5
				Rpld	2-231—2-237
				Rpld	16-231—16-237
92-9-34	9-28-92	Amends § 14-3 declaring weeds, rubbish, or unsanitary matter a nuisance; providing for abatement and recovery of costs	I		14-3
92-9-36	9-28-92	Amends the property code and nonresidential property code	I		6-502, 6-503, 6-541—6-546(note)
			II		6-572, 6-573, 6-601—6-606(note)
92-10-35	10-26-92	Amends § 12-73, establishes school zone	I		12-73(a)(b)
92-10-36	10-26-92	Establishes a sunset advisory commission	I—VI		2-311—2-316
92-10-37	10-26-92	Amends § 21-131, establishes a revised method of applying penalties to delinquent utility accounts	I		21-131
92-11-21	11- 9-92	Amends § 21-152, provides for an exception to required deposit for customers reestablishing city utility services	I		21-152(f)
92-11-22	11- 9-92	Amends Ch. 21, relaxes prohibition against citizens assessing their water meter and assigning responsibility for damages to said meter, meter box or vault	I		21-17(1)
			II		21-133(h)(3)
92-11-25	11- 9-92	Amends § 12-101, prohibits parking	I, II		12-101
92-11-45	11-23-92	Amends Ch. 11, establishing exceptions to permit and fee requirements for taxicabs, limousines, and shared ride shuttle buses; renames licenses as permits	I		11-103
			II		11-104
			III		11-109—11-119
			IV		11-126
92-11-47	11-23-92	Amends § 12-102, prohibits parking	II		12-102

Ordinance Number	Adoption Date	Subject	Section	Section this Code
92-12-17	12-14-92	Amends § 18-34, establishes a revised schedule of rates and charges for solid waste disposal and collection	II	18-34
92-12-20	12-14-92	Amends § 12-102(a), prohibits parking	II	12-102(a)
92-12-42	12-28-92	Amends Ch. 15, provides for user fees at city's tennis center; provides for reduction in user fees for senior citizens and those with limited income	I	15-90, 15-91
92-12-43	12-28-92	Amends § 16-43, changes the terms of office for members of the planning and zoning commission	I	16-43
93-1-18	1-25-93	Amends § 21-152(a), provides for a cash deposit on accounts receiving water, sewer or solid waste services; providing for retention of said deposits in certain instances	I	21-152(a)
93-1-19	1-25-93	Adopts and enacts Supplement No. 21		p. xii.v
93-2-14	2- 8-93	Amends Ch. 11, provides regulations for special events	I	11-301—11-318, 11-331—11-344, 11-356—11-359, 11-361
93-2-15	2- 8-93	Amends Ch. 11, amends regulations governing sign applications and permit requirements	I II III IV	11-38 11-61(b)(c) 11-62(a) 11-83(a)
93-2-18	3-22-93	Adds Ch. 17.5, providing regulation for sexually oriented business	I	17.,5-1—17.5-21
93-2-32	2-22-93	Amends § 2-301, deletes provision requiring chairperson of self-sufficiency committee to be a member of the housing authority board	I	2-301
93-3-15	3-15-93	Amends § 2-118, provides that the records manager be designated as the records management officer to administer the records management program	II	2-118
93-3-27	3-22-93	Adds Ch. 17.5 pertaining to sexually oriented businesses	II	17.5-1—17.5-23
93-4-16	4-12-93	Adopts and enacts Supplement No. 22		p. xii.vii
93-4-19	4-12-93	Amends § 14-7, prohibits the use or operation of roller skates and similar devices within the central business zoning district	I	14-7
93-4-20	4-12-93	Amends § 12-102, prohibits parking	II	12-102
93-5-1	5- 3-93	Amends § 12-101, prohibits parking	II	12-101
93-5-3(R)	5- 3-93	Canvassing election returns	(See Charter Comp. Table)	
93-5-27	5-10-93	Amends § 19-21, adopts minimum standards in the development of streets, thoroughfares, sidewalks and appurtenances	I	19-21
93-5-45	5-24-93	Amends impact fees in Ch. 21	I II III IV V	Ch. 21, Art. VI(note) 21-208(b)(6) 21-209(b) 21-211(b) 21-215(a)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			VI		Ch. 21, Art. VI(note)
93-6-11	6-14-93	Approves and adopts new regulations in the Storm Drainage Design Manual	I—III		19-41—19-43
			IV	Rpld	19-44
93-6-12	6-14-93	Amends § 12-74(b), establishes speed limit on sections of K Avenue	III		12-74(b)
93-6-14	6-14-93	Amends § 12-102, prohibits parking	I, II		12-102
93-6-32	6-28-93	Amends § 12-73(b), establishes school zone on Micarta Drive and Quarry Chase Drive	I		12-73(b)
93-6-33	6-28-93	Provides that transportation advisory committee will meet no less than six times per year	I		2-207
93-7-7	7-12-93	Establishes one way operation on portions of K Avenue, L Avenue and Municipal Drive	I		12-12(b)
93-7-17	7-26-93	Amends subsection entitled "Parker Road" in § 12-74(b); establishes maximum speed limit upon certain sections of Parker Road	II		12-74(b)
93-7-20	7-26-93	Provides for the creation of a youth advisory commission and rules for its operation	I—VIII	Added	2-321—2-328
93-8-8	8- 9-93	Amends regulations regarding alarm systems	I, II		11-221—11-225
				Rpld	11-226
				Rnbd as	11-227 11-226
				Rnbd as	11-228 11-227
				Rnbd as	11-229 11-228
				Rnbd as	11-230 11-229
				Rnbd as	11-231 11-230
93-8-16	8- 9-93	Establishes a policy of responding only to emergency ambulance service	I		8-3(b)
93-8-27	8-23-93	Authorizes the city attorney to act for city in matters relating to hotel occupancy tax reports	I		20-79
93-9-1	9- 7-93	Amends the building inspection department fee schedule	I		6-652
93-9-20	9-13-93	Provides regulations for food and food establishments	I	Rpld	9-1—9-13
				Added	9-1, 9-2 9-21—9-26 9-31—9-34 9-41—9-43 9-51, 9-52 9-61—9-67 9-71—9-78 9-81—9-83 9-91, 9-92 9-101—9-107
93-9-26	9-13-93	Adoption of and amendment to the 1991 edition of the Building Security Code	I		6-661
				II	6-662

Ordinance Number	Adoption Date	Subject	Section		Section this Code
93-9-31	9-13-93	Establishes a revised schedule of municipal drainage utility system rates	I		21-2(c)
93-9-32	9-13-93	Provides for the exemption from ad valorem taxation of property	I, II		20-3
93-9-49	9-27-93	Approves and adopts the 1993 edition of the National Electrical Code, amends § 6-275	I		6-275
93-9-50	9-27-93	Amends Div. 4 of Art. XII and Div. 4 of Art. XIII of Ch. 6, provides regulations and procedures regarding securing of substandard buildings and structures	I II	Added Added	6-547 6-607
93-9-51	9-27-93	Amends § 21-131, provides revised method of applying penalties to delinquent utility accounts	I		21-131
93-9-52	9-27-93	Amends § 12-101, prohibits parking on certain sections of Jupiter Road	II		12-101
93-9-53	9-27-93	Adopts and enacts Supplement No. 23			p. xii.ix
93-9-62	9-27-93	Designates construction review board as building standards commission, provides for terms of office, appointment and removal of members, assigns duties, responsibilities and functions, provides procedures for meetings, hearings and other official actions	I	Added	6-2
93-9-63	9-27-93	Amends §§ 21-147, 21-135, and 21-136, provides for amended fee schedule for water and sewer services	I II		21-135, 21-136 21-147
93-9-64	9-27-93	Amends § 16-19, fees for zoning, rezoning and other miscellaneous fees to establish a revised fee schedule	II		16-19
93-9-65	9-27-93	Vacates Ord. No. 93-9-31, adopts this ordinance to correct clerical error, amends § 21-2(c), establishes a revised schedule of municipal drainage utility system rates	II		21-2(c)
93-10-1	10- 4-93	Repeals Ord. Nos. 87-10-30, 88-1-9, and 91-12-31; amends Art. IV of Ch. 11 regarding charitable and noncharitable solicitations and distribution of handbills, assigns administrative responsibilities to building inspection department	I II	Rpld	14-26—14-33 11-141—11-148, 11-161—11-169, 11-181—11-187
93-10-7	10-11-93	Amends § 6-37, revises paragraph 3 of subsection (5), wood combined with masonry and concrete	I		6-37(5)
93-10-8	10-11-93	Amends § 12-102(b), prohibits parking on certain sections of Santa Fe Trail	II		12-102(b)
93-10-9	10-11-93	Repeals Ord. No. 91-7-8, amends § 12-101, prohibits parking on certain sections of Deham Way	I II		12-101(note) 12-101
93-10-10	10-11-93	Amend § 12-102(a), prohibits parking on certain section of R Avenue on school days	II		12-102(a)
93-10-11	10-11-93	Repeals Ord. No. 92-3-8, amends § 12-74, establishes speed limit upon certain sections of Dallas Parkway	I III		12-74(note) 12-74(b)

Ordinance Number	Adoption Date	Subject	Section	Section this Code
93-10-13	10-11-93	Prescribes regulations for rates charged to cable television subscribers for the basic service tier	1—6 Added	7-16—7-21
93-10-22	10-25-93	Amends Ord. No. 92-7-14 and § 21-67, provides regulations for generation, transportation and disposal of liquid waste, provides for permit system with denial, revocation and appeal process, requires inspection of liquid waste traps/tanks, liquid waste hauling vehicles	I Rpld I(1—1-14) Added	21-67 21-351, 21-361—21-366, 21-381—21-384, 21-391—21-393
93-10-34	10-25-93	Amends § 16-160.6, provides regulations for development, construction and improvement of neighborhood and linear parks consistent with park master plan, and the park fee progam	I	16-160.6
93-10-35	10-25-93	Amends Ch. 16 by the addition of an article pertaining to park and recreation fee, provides for park improvements program, imposes park and recreation fee for residential development, provides for refund and reimbursement under certain circumstances	I(Art. I, §§ 1.01—1.14) Added	16-261—16-274
93-11-12	11- 8-93	Repeals Ord. No. 89-1-8, amends § 12-74, establishes speed limit upon certain sections of Preston Meadow Drive from Parker Road to Quincy Lane	II III	12-74(note) 12-74(b)
93-11-13	11- 8-93	Amends § 12-73(b), removes two school zones on Independence Parkway at Caravan Drive	I	12-73(b)
93-11-14	11- 8-93	Amends § 12-74(b), establishes speed limit upon main lanes and service roads of U.S. Highway 75	II, III	12-74(b)
93-11-15	11- 8-93	Amends § 12-137, prohibits operation of commercial vehicles on certain streets and alleys and within residentially zoned areas	I	12-137
93-11-16	11- 8-93	Amends § 12-73(b), modifies school zones on Alma Drive	I	12-73(b)
93-11-20	11- 8-93	Amends Ch. 12, prohibits parking on city thoroughfares of four lanes (two lanes in each direction) or more	I, II Added	12-98.1
93-11-39	11-22-93	Adopts and enacts Supplement No. 24		p. xii.xi
93-12-16	12-13-93	Amends § 12-73(a), establishes school zone on Robin Road	I	12-73(a)
93-12-17	12-13-93	Amends § 12-12(b), establishes one-way operation on portions of F Avenue	I	12-12(b)
93-12-19	12-13-93	Amends § 20-74, provides that under certain conditions and standards a hotel may elect quarterly reporting and payment of hotel occupancy tax revenues	I	20-74, Ch. 20, Art. III, Exh. A
93-12-21	12-13-93	Amends § 12-12, establishes one-way operation on portions of K Avenue and Municipal Avenue	II	12-12(b)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
93-12-36	12-27-93	Authorizes updated service credits in TMRS for service performed by qualifying members who are in the employment of the city, provides for increased prior and current annuities for retirees and beneficiaries of deceased retirees, increases rate of deposits to TMRS by employees from six percent to seven percent	I II III IV		2-64 2-65 2-66 2-66.1
93-12-37	12-27-93	Authorizes prior service credit in TMRS for certain employees who have terminated previous memberships in TMRS, allows eligible employees to deposit sums withdrawn, plus annual withdrawal charges to reestablish cancelled credited service	I, II	Added	2-71
93-12-38	12-27-93	Approves, authorizes and grants restricted prior service credit to employees who are members of TMRS for service previously performed as an employee of any incorporated city or town in the U.S. or any council of governments in Texas and for which such employees have not received credited service including combined service credit	I		2-69
93-12-42	12-27-93	Amends § 12-101, prohibits parking on certain sections of Quarry Chase Trail During certain hours on school days	II		12-101
94-1-9	1-10-94	Amends § 6-37, requirements of accessibility	I	Added	6-37(5.1), (5.2)
94-1-11-	1-10-94	Amends §§ 11-141 and 11-148, provides definition for itinerant vendor and provides procedures relating to temporary businesses	I II		11-141 11-148
94-1-12	1-10-94	Amends Ch. 6, Art. IV, regarding temporary and nonconforming buildings	I		6-111, 6-112
94-1-14	1-10-94	Repeals Ord. No. 92-6-27-A, abolishes sister cities advisory committee	I	Rpld	2-176—2-181
94-1-15	1-10-94	Amends § 12-73(b), establishes school zones on Preston Meadow Drive, Archgate Drive, and Denham Way	I		12-73(b)
94-1-18	1-10-94	Amends § 6-37, establishes regulations and requirements for Group R3.1 occupancies (in home day care)	I		6-37(17)
94-2-50	2-28-94	Amends § 18-34, establishes revised schedule of rates and charges for solid waste disposal and collection	II		18-34
94-3-18	3-28-94	Amends Ord. No. 93-10-22, regarding waste hauling	I II III		21-351 21-362 21-363(a)(4)
94-3-21	3-28-94	Amends § 12-116, handicapped parking	I		12-116
94-3-22	3-28-94	Amends § 12-74(b), establishes speed limit upon certain sections of Plano Parkway from F.M. 544 to the west city limits	I		12-74(b)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
94-4-4	4-11-94	Amends § 11-148 to provide an exemption of permit fees to charitable organizations	I		11-148
94-4-22	4-25-94	Adopts and enacts Supplement No. 26			p. xii.xiii
94-5-26	5-23-94	Amends §§ 15-51, 15-56—15-59, 15-61, 15-62, 15-64—15-66; establishes policies and regulations regarding sports seasons, field allocations, requirements for organizations using facilities, tournaments, user fees, facility maintenance, concessions, insurance, and hours and days for use of lights	I		15-51, 15-56—15-59, 15-61, 15-62, 15-64—15-66
94-6-8	6-13-94	Adopts and enacts Supplement No. 27			p. xii.xv
94-6-26	6-27-94	Amends § 12-73(a), establishes school zones on Ventura Drive/Village Creek Drive and Shinnery Oak Drive	I		12-73(a)
94-7-22	7-25-94	Amends § 12-74(b), establishes speed limit upon certain sections of Spring Creek Parkway	II		12-74(b)
94-8-7	8- 8-94	Establishes that any party(ies) responsible for a hazardous material(s) incident within the city shall be liable for costs incurred by the city as a result of that incident; establishes requirements for hazardous materials permits and fee schedule; establishes a fee for environmental assessments	I—VII		14-106—14-112
94-9-17	9-12-94	Adopts and enacts Supplement No. 28			p.xii.xvii
94-9-18	9-12-94	Amends the "Plano Park and Recreation Fee Article" to provide for the use of park fees for service areas other than the service area in which the fees were collected, subject to certain conditions	I II	 Added	16-268 16-269(g)
94-9-24	9-12-94	Amends subsections (c) and (d) and adds subsections (e) and (f) to § 21-2, municipal drainage utility system charges; establishes a revised schedule of municipal drainage utility system rates; provides for a credit for stormwater quality and quantity treatments; provides for an appeal to the city's determination of impervisions area	I	 Added	21-2(c), (d) 21-2(e), (f)
94-9-42	9-26-94	Amends § III of Ord. No. 93-8-16 and § 8-3; establishes a policy of responding only to emergency ambulance service; provides for the collection of such fees and for crediting thereof upon receipt	I		8-3
94-10-33	10-24-94	Amends §§ 18-32—18-34; establishes a revised schedule of rates and charges for solid waste disposal and collection applicable to residential and commercial accounts	I		18-32—18-34
94-10-34	10-24-94	Adopts the 1994 edition of the Uniform Code for Building Conservation with certain additions, deletions and amendments	I	Added	6-671—6-673
94-10-36	10-24-94	Adds Art. III to Ch. 14, titled "Juvenile Curfew"	I	Added	14-46—14-50

Ordinance Number	Adoption Date	Subject	Section		Section this Code
94-11-11	11-14-94	Juvenile curfew	II		14-46—14-50
94-11-22	11-14-94	Amends Art. IV of Ch. 14; regulates smoking in public places	I		14-66—14-72
94-11-33	11-28-94	Amends Ord. No. 94-11-22; amends § 14-66, private club definition; amends § 14-67(a)(4), revises regulations relative to entertainment areas; amends § 14-70, compliance	I		14-66, 14-67(a)(4), 14-70(a), (c)
94-12-15	12-12-94	Approves and adopts fees for registration of dogs, cats, potbellied pigs, and dangerous animals; impoundment and adoption fees for dogs, cats, and other animals; fees for removal of dead animals from veterinarian facilities and private property	I		Ch. 4(note)
94-12-16	12-12-94	Amends Ch. 4, regarding animal regulations	I		4-1—4-26
95-1-7	1-9-95	Amends § 12-102, prohibits parking at certain times on certain sections of Old Orchard Drive	II		12-102(a)
95-1-20	1-23-95	Amends § 12-74(b), establishes speed limit upon the main lanes of State Highway 121	II		12-74(b)
95-2-12	2-13-95	Amends § 12-102, prohibits parking at certain times on certain sections of Country Place Drive	II		12-102(a)
95-2-21	2-13-95	Amends § 15-3 to allow the sale, possession, and consumption of alcoholic beverages at city municipal golf courses	I		15-3(a)(4)
95-2-40	2-27-95	Amends § 12-101, prohibits parking on certain sections of Avenue I and Avenue H	II		12-101
95-2-42	2-27-95	Amends § 11-302(b) to add an exemption from permit requirements for events held in the downtown business/government zoned area; provides for administrative procedures to conduct such events	I	Added	11-302(b)(7)
95-3-22	3-27-95	Amends § 12-73(b), establishes school zone on certain sections of Roundrock Trail	I		12-73(b)
95-4-7	4-10-95	Amends Ord. No. 94-10-33 relating to rates and charges for solid waste disposal by specifically revising exhibit A referenced therein, being the time/distance chart for determining rates; repeals Art. III of Chapter 18 regarding licensing for collection of solid waste from commercial accounts	II	Rpld	18-51—18-60
95-4-21	4-24-95	Amends § 12-74, establishes speed limit upon certain sections of Avenue K	II		12-74(b)
95-5-24	5-22-95	Adopts and enacts Supplement No. 29			p. xii.xix
95-4-25	4-24-95	Repeals Ord. No. 90-2-9, as amended, except Ord. No. 86-8-26; adopts new rules and regulations governing the platting, developing and subdividing of land	I	Rpld	16-131—16-160.17

Ordinance Number	Adoption Date	Subject	Section	Section this Code
			II Added (1.1)— (1.12) Added	16-131 16-132—16-143
			(2.1), (2.2) Added	16-144
			(3.1)— (3.9) Added	16-145—16-153
			(4.1)— (4.5) Added	16-154—16-158
			(5.1)— (5.14) Added	16-159—16-160.12
			(6.1)— (6.6) Added	16-160.13—16-160.18
			(7.1)— (7.3) Added	16-160.19—16-160.21
95-6-11	6-12-95	Amends § 12-101, prohibits parking on certain sections of Prestwick Drive	II	12-101
95-7-14	7-10-95	Provides for the creation of animal services advisory committee	I—VII Added	2-335—2-341
95-7-21	7-24-95	Amends § 12-101, prohibits parking on certain sections of Avenue N	II	12-101
95-7-23	7-24-95	Amends § 12-73(b), modifies school zones on Preston Meadow Drive	I	12-73(b)
95-7-27	7-24-95	Amends § 12-101, prohibits parking on certain setions of Commerce Drive	I	12-101
95-8-11	8-14-95	Revises Ch. 2, Art. XVIII, youth advisory commission	I	2-323, 2-324, 2-326, 2-328
95-8-34	8-28-95	Amends § 12-74(b), establishes speed limit upon certain sections of Hedgcoxe Road	II	12-74(b)
95-8-35	8-28-95	Amends § 12-101, prohibits parking on certain sections of Rigsbee Drive	II	12-101
95-8-36	8-28-95	Amends § 12-101, prohibits parking on certain sections of Commerce Drive	II	12-101
95-8-37	8-28-95	Adopts and enacts Supplement No. 30		p. xii.xxi
95-8-40	8-28-95	Revises Ch. 11, Art. IV, peddlers and solicitors, to designate the Plano Police Department as the location for filing registration statements and permit applications and for issuing certificates of registration and permits	I, II III IV, V VI	11-162(a) 11-164 11-182(a) 11-184(a)
95-8-41	8-28-95	Amends § 14-5, firearms; § 15-3(a)(5), to allow possession of concealed handguns in city parks only by persons duly licensed to carry concealed handguns by the state in accordance with the provisions of the Texas Concealed Weapons Act	I, II	14-5 15-3(a)(5)

Ordinance Number	Adoption Date	Subject	Section	Section this Code
95-8-42	8-28-95	Amends § 14-66, definitions; § 14-72 to provide an exclusion for food products, retail and service establishments having physical barriers or air barriers and air purification systems or separate ventilation systems; adds § 14-66.1 to provide for no commingling of air between nonsmoking and smoking areas and to provide for testing	I II Added III	14-66 14-66.1 14-72
95-8-49	8-28-95	Graffiti	II(1)—Added (6)	11-95—11-100
95-9-10	9-11-95	Repeals Ord. Nos. 80-9-22, 87-9-34(§II), 88-11-13; amends § 12-74(b), establishes speed limits upon each and every portion of Independence Parkway from its intersection with south city limits to its intersection with McDermott Road	I—III IV	12-74(note) 12-74(b)
95-9-11	9-11-95	Repeals Ord. No. 87-7-4; amends § 12-74(b), establishes speed limit upon certain sections of Ohio Drive	I III	12-74(note) 12-74(b)
95-9-37	9-25-95	Revises § 8-3; establishes a policy of responding only to emergency ambulance service requests; provides for collection of such fees and for crediting thereof upon receipt	I	8-3
95-10-14	10- 9-95	Revises definitions of "adult bookstore," "semi-nude," and "sexually oriented dance hall" as those terms are defined in § 17.5-2	I—III	17.5
95-10-16	10- 9-95	Amends §§ 18-32—18-34; establishes revised schedule of rates and charges for solid waste disposal and collection applicable to residential and commercial accounts	I	18-32—18-34
95-10-25	10-23-95	Regulates certain haulers or transporters of recyclable solid waste materials on public streets by requiring annual registration and reports to the solid waste department	I—V	18-17.1
95-11-8	11- 6-95	Amends § 2-301 to increase number of members of self-sufficiency committee	I	2-301
95-11-20	11-20-95	Repeals Ord. No. 95-8-35; amends § 12-101, prohibits parking on certain sections of Rigsbee Drive	I II	12-101 (note) 12-101
95-11-21	11-20-95	Repeals Ord. Nos. 84-7-10 and 87-7-10; amends § 12-74(b), establishes speed limit upon certain sections of Park Boulevard	I III	12-74 (note) 12-74(b)
95-11-26	11-20-95	Amends § 18-2 to revise definitions of "recyclable materials" and "recycling container" and to add definition of "authorized recycling contractor; prohibits scavenging of recyclable materials from residential and commercial areas	I—III IV V Added	18-2 18-17 18-18—18-20
95-11-30	11-20-95	Amends Div. 3, Mechanical Code, of Art. VIII, Plumbing and Mechanical Equipment, of Ch. 6	I, II	6-251—6-254
95-11-31	11-20-95	Amends Art. XV, Administrative Code, of Ch. 6	I, II	6-651, 6-652

Ordinance Number	Adoption Date	Subject	Section		Section this Code
95-11-33	11-20-95	Repeals and adds § 6-37 pertaining to building code	I II	Rpld Added	6-37 6-37
95-11-34	11-20-95	Repeals Art. II, Fire Code, of Ch. 8; establishes a fire code and regulations and fees thereunder; ordains other matters of the subject	1—19	Added	8-16—8-34
95-12-13	12-11-95	Adopts and enacts Supplement No. 31			p. xii.xxiii
95-12-14	12-11-95	Amends § 14-5; adds provisions prohibiting carrying a firearm in a city building; provides an exemption for approved firearm trade shows	I		14-5
95-12-15	12-11-95	Amends Ord. No. 95-11-33 to require solid wood sheathing under all wood shingles and shakes on newly constructed wood roofs	I	Added	6-37(14.1)
95-12-16	12-11-95	Revises subsection (f) of § 14-87, use of loudspeakers, etc., restricted, to authorize chief of police to provide temporary waivers to application and enforcement of § 14-87	I		14-87(f)
95-12-27	12-21-95	Amends § 12-73(b), establishes school zone on Plano Parkway	I		12-73(b)
95-12-28	12-21-95	Repeals Ord. No. 93-11-14; amends § 12-74(b), establishes speed limit upon U.S. Highway 75	I II		12-74 (note) 12-74(b)
95-12-29	12-21-95	Amends Art. VIII, Flood Damage Prevention, of Ch. 16	I, II		16-161—16-177, 16-191—16-194
96-1-22	1-22-96	Amends § 6-37, provides a definition of "recreation room" and regulations for lighting and ventilation of such rooms	I(A) I(B) I(C)	Added Added Added	6-37(2.3) 6-37(2.5) 6-37(13.5)
96-1-24	1-22-96	Repeals Ord. Nos. 80-11-12, 83-8-17, 86-8-23, and 94-3-22; amends § 12-74(b), establishes speed limits upon Plano Parkway	I II		12-74(note) 12-74(b)
96-1-29	1-22-96	Amends § 6-17; adopts 1994 edition of Uniform Building Code	I		6-17
96-1-30	1-22-96	Repeals Ord. No. 91-8-32; adds provisions regarding 9-1-1 service	I	Rpld Added	7.5-16—7.5-18 7.5-16—7.5-19
96-2-5	2-12-96	Amends Ch. 21, Art. III, Sewers	I II III		21-61 21-64 21-63
96-2-6	2-12-96	Amends § 16-174(8) to correct a clerical error	I		16-174(8)
96-3-7	3-5-96	Amends § 11-221, Definitions, and § 11-222(g), Permit, of Art. VI of Ch. 11, Licenses and Business Regulations	I, II III		11-221 11-222(g)
96-3-8	3-5-96	Adopts and enacts Supplement No. 32			p. xii.xxv
96-3-18	3-25-96	Creates a procurement code	I—IV	Added	2-12
96-3-20	3-25-96	Repeals Ord. Nos. 80-9-27 and 88-7-6; amends § 12-74(b), establishes speed limit upon certain section of Jupiter Road	II III		12-74(note) 12-74(b)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
96-4-7	4- 8-96	Amends Ch. 11, Art. IV, Peddlers and Solicitors; establishes regulations for creating unauthorized locations for job placement activities; creates offenses for engaging in job placement activities in authorized locations	I, II III	 Added	11-141 11-188
96-4-16	4-22-96	Establishes standards for reinforcing steel used in the construction of sidewalks	I		19-27(b)(2)
96-4-17	4-22-96	Amends § 12-75, establishes speed limit for trucks with three or more axles operating upon certain sections of Spring Creek Parkway	II		12-75
96-4-19	4-22-96	Amends § 12-74(b), establishes speed limit upon certain sections of Avenue K	III		12-74(b)
96-4-28	4-22-96	Amends Ord. No. 93-5-27, the Thoroughfare Standards Ordinance, regarding North Dallas Tollway Corridor	I	Added	19-21(b)
96-5-8	5-13-96	Adopts revised land use assumptions; amends impact fees in Ch. 21	II III VII	 Added 	21-208(b)(6) 21-208(b)(7) Ch. 21, Art. VI(note) Ch. 21, Art. VI(note)
96-6-11	6-10-96	Amends impact fees in Ch. 21	I III	 	Ch. 21, Art. VI(note) Ch. 21, Art. VI(note)
96-6-12	6-10-96	Revises § 2-337, terms, vacancies of the animal advisory committee	I		2-337
96-6-15	6-10-96	Adds Ch. 11, Art. IX, Regulated Property	I	Added	11-362—11-365
96-6-28	6-24-96	Amends § 6-37 of Ch. 6, Art. II, Building Code	I II, III IV	 	6-37(4) 6-37(7), (8) 6-37(23)
96-6-29	6-24-96	Amends certain sections of Ch. 15, Parks and Recreation	I		15-51, 15-55, 15-58, 15-59 15-61, 15-62
96-6-32	6-24-96	Adopts and enacts Supplement No. 33			p.xii.xxvii
96-6-35	6-24-96	Repeals Ord. No. 73-12-11, codified as Ch. 6, Art. VI, House Moving; establishes a structure moving code and provides regulations and fees thereunder	I II	Rpld Added	6-151—6-162 6-151—6-168
96-7-13	7-22-96	Amends § 12-73(a), establishes school zone on Glen Oaks Drive	I		12-73(a)
96-7-14	7-22-96	Amends § 12-73(a), establishes school zone on Midway Road	I		12-73(a)
96-7-15	7-22-96	Amends § 12-73(a), establishes school zone on Park Meadow Lane	I		12-73(a)
96-7-16	7-22-96	Amends § 12-73(b), establishes school zones on Los Rios Boulevard	II		12-73(b)
96-7-17	7-22-96	Amends § 12-73(b), establishes school zones on Park Boulevard	II		12-73(b)
96-7-18	7-22-96	Amends § 12-73(b), establishes school zone on Tennyson Parkway	I		12-73(b)
96-7-19	7-22-96	Amends § 12-73(b), establishes school zone on Ohio Drive	I		12-73(b)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
96-7-20	7-22-96	Repeals Ord. Nos. 92-7-11 and 93-11-13; amends § 12-73(b), establishes school zones on Independence Parkway	I		12-73(note)
			II		12-73(b)
96-7-21	7-22-96	Amends § 12-73(b), establishes school zone on Russell Creek Drive	I		7-22-96
96-8-7	8-12-96	Amends Ch. 4, Animal Regulations; provides definitions and regulations regarding ferrets	I, II		4-1
			III	Added	4-27
96-8-16	8-26-96	Adopts and enacts Supplement No. 34			p. xii.xxix
96-8-17	8-26-96	Amends § 21-208(b); amends and replaces subsection (6) pertaining to water impact fees	I		21-208(b)(6)
96-8-22	8-26-96	Amends § 2-266, duties of community service commission, to revise the standards for recommendation of grant proposals considered by the commission	I		2-266
96-8-23	8-26-96	Amends § 2-256, duties of cultural affairs commission, to revise the standards for recommendation of grant proposals considered by the commission	I		2-256
96-9-4	9- 9-96	Amends § 12-101, prohibits parking on certain sections of Carriage Lane	II		12-101
96-9-5	9- 9-96	Amends § 12-101, prohibits parking on certain section of Premier Drive	II		12-101
96-9-7	9- 9-96	Repeals Ord. No. 87-10-23; establishes regulations governing parades on public thoroughfares; authorizes the chief of police of the city to grant parade permits based upon certain criteria	I		19-111—19-123
96-9-14	9- 9-96	Amends § 11-16 to revise the definition of "gross surface area of sign" and the definition of "sign, awning"; amends § 11-61 to provide further regulations governing wall and awning signs located or to be located within the city	I, II		11-16
			III	Added	11-61(c)(5)
			IV		11-61(e)
96-9-29	9-23-96	Repeals Ord. No. 95-1-20; amends § 12-74(b), establishes speed limit upon certain sections of State Highway 121	II		12-74(note)
			III		12-74(b)
96-10-11	10-14-96	Amends § 12-101, prohibits parking on certain sections of M Avenue	II		12-101
96-10-25	10-28-96	Amends § 15-21(a) to increase the number of members of the parks and recreation planning board	I		15-21(a)
96-11-5	11-11-96	Amends various sections of Ch. 21, Art. IV, pertaining to utilities	I	Added	21-133(i)
			II	Rpld	21-148
			III		21-152
96-11-6	11-11-96	Establishes a revised schedule of rates and charges for solid waste disposal and collection applicable to residential and commercial accounts	I		18-32—18-34

Ordinance Number	Adoption Date	Subject	Section		Section this Code
96-11-7	11-11-96	Amends § 20-55, inspection, certification, to revise the minimum property, structural, and health standards which must be met by historic structures in order to qualify for exemption from ad valorem taxes	I		20-55
96-11-8	11-11-96	Amends § 8-3; establishes a policy of responding only to emergency ambulance service requests; provides for the collection of such fees and for crediting thereof upon receipt	I		8-3
96-11-17	11-25-96	Adopts the North Central Texas Council of Governments' Second Edition of the *Standard Specifications for Public Works Construction* and all amendments through and including the 1994/1995 amendments, subject to the *Special Provisions of the City of Plano* and the *January 1, 1997, Standard Construction Details,* all revisions to the *City of Plano Special Provisions and Standard Construction Details*	I, II		2-6
96-11-23	11-25-96	Repeals Ord. No. 95-8-34; amends § 12-74(b), establishes speed limit upon certain sections of Hedgcoxe Road	I III		12-74(note) 12-74(b)
96-11-24	11-25-96	Amends various sections of Ch. 2, Art. IV, Code of Conduct	I II III IV V	 Rpld 	2-97 2-98(1) 2-98(2) 2-99(a) 2-102
96-12-8	12-16-96	Repeals Ord. Nos. 95-10-25 and 95-11-26 and § I of Ord. No. 91-11-13; adds rules, regulations and policies for the collection and removal of solid waste, recyclable materials, and landscape waste within the city	I II	Rpld Added	18-1—18-17.1, 18-18—18-20 18-1—18-20
97-1-13	1-27-97	Repeals § II of Ord. No. 95-12-28, establishes speed limit for motor vehicles operating upon U.S. Highway 75 from the south city limits to the north city limits	I, II		12-74
97-1-17	1-27-97	Prohibits parking of vehicles for sale near major thoroughfares, provides procedures for towing and storage of vehicles	I		12-119, 12-120

Ordinance Number	Adoption Date	Subject	Section		Section this Code
97-2-9	2-10-97	Repeals Ord. No. 93-9-49, adopts 1996 edition of the National Electrical Code	I, II		6-275
97-2-11	2-10-97	Repeals Ord. No. 70-2-3, pertaining to maximum limits in city parks	I, II	Rpld	12-77
97-2-12	2-10-97	Repeals Ord. No. 65-10-1, pertaining to waste from air-conditioning units not to blow or drain into streets; repeals Ord. No. 74-4-3, pertaining to visibility obstructions; repeals Ord. No. 82-11-21, pertaining to irrigation systems installed within public right-of-way	I—VI	Rpld	19-1—19-3
97-2-20	2-24-97	Repeals Ord. No. 89-5-12, establishes new program of comprehensive emergency management	I	Rpld	2-136—2-142
			II—VII	Added	2-136—2-141
			X	Added	2-142
97-2-21	2-24-97	Amends subsection 12-119(a), prohibits parking of vehicles for sale near major thoroughfares	I		12-119(a)
97-3-9	3-17-97	Amends § 6-37, amends 1994 edition of the Uniform Building Code	I		6-37(5.1)
			II		6-37(13.1)
			III		6-37(15.1)
			IV		6-37(17.1)
			V		6-37(20.1)
			VI		6-37(8)
97-3-18	3-17-97	Amends Ch. 2, Art.IV, pertaining to code of conduct	I		2-100
			II	Rnbd as	2-100—2-104 2-101—2-105
			III		2-104
			IV	Rpld	2-105
97-3-21	3-24-97	Repeals Ord. No. 96-11-17, amends § 2-6, adoption of public works specifications	I, II		2-6
97-4-12	4-14-97	Amends § 6-179, pertaining to permits to install or alter fences, and § 6-186, pertaining to maintenance of fences	I		6-179
			II		6-186
97-4-25	4-28-97	Repeals Ord. No. 87-9-11, § II; amends § 12-74(b), establishes speed limits upon certain sections of Legacy Drive	I		12-74(note)
			II		12-74(b)
97-5-5	5-12-97	Repeals Ord. No. 93-7-17, § II; amends § 12-74(b), establishes speed limits upon certain sections of Parker Road	I		12-74(note)
			II		12-74(b)
97-5-6	5-12-97	Amends § 11-362, revises definition of crafted precious metals	I		11-362
97-5-14	5-19-97	Adds §§ 14-73, 14-74, pertaining to possession of tobacco products by minors	I		14-73, 14-74

Ordinance Number	Adoption Date	Subject	Section	Section this Code
97-6-16	6-23-97	Amends § 12-74(b), establishes speed limits upon certain sections of State Highway 190	II	12-74(b)
97-7-5	7-14-97	Amends § 12-73 (a); establishes school zone on Ohio Drive	I	12-73(a)
97-7-6	7-14-97	Amends § 12-73 (a); establishes school zone on Spring Creek Parkway	I	12-73(a)
97-7-7	7-14-97	Amends § 12-73 (a); establishes school zone on Baxter Drive	I	12-73(a)
97-7-8	7-14-97	Amends § 12-73 (b); establishes school zone on Quincy Lane	I	12-73(b)
97-7-9	7-14-97	Amends § 12-73 (a); establishes school zone on Vineyard Drive	I	12-73(a)
97-8-7	8-11-97	Amends § 19-21; thoroughfare rules and regulations	II	19-21
97-8-9	8-11-97	Amends § 12-73 (b); establishes school zone on Coit Road	I	12-73(b)
97-8-10	8-11-97	Amends § 11-120; pertaining to rates of fare charged by limousines and taxicabs	I	11-120
97-8-28	8-25-97	Repeals Ords. No. 83-11-5, 87-9-34, § III, and 89-1-5; amends § 12-74(b), establishes speed limits on certain sections of Los Rios Boulevard	II	12-74(note)
			III	12-74(b)
97-8-29	8-25-97	Amends § 16-271(c) of the Code and Appendix A of Ord. No 93-10-35; pertaining to reimbursements to development applicants and revising neighborhood and linear park service area boundaries	I	16-271(c)
97-8-31	8-25-97	Creates municipal court building security fund and imposes a security fee as a cost of court in municipal court	I—III	13-7
97-9-15	9-22-97	Adds § 19-1, prohibits obstructions of streets, alleys, sidewalks, or public grounds in the city	I	19-1
97-9-20	9-22-97	Amends § 16-19; establishes new fee schedule for zoning, rezoning and other miscellaneous procedures	II	16-19
97-9-22	9-22-97	Adopts a provision for retirement eligibility at any age with twenty years of service credit through Texas Municipal Retirement System	I, II	2-72

Ordinance Number	Adoption Date	Subject	Section		Section this Code
97-10-10	10-13-97	Repeals Ord. No. 95-11-21; amends § 12-74(b), establishes speed limits on certain sections of Park Boulevard	II		12-74(note)
			III		12-74(b)
97-10-17	10-13-97	Amends § 14-7, prohibits use of roller skates and similar devices within certain areas	I, II		14-7
97-10-32	10-27-97	Amends § 2-157, pertaining to terms of office and compensation for the community relations commission	I		2-157
97-11-21	11-24-97	Amends §§ 18-32—18-34, establishes a revised schedule of rates and charges for solid waste disposal and collection applicable to residential and commercial accounts	I		18-32—18-34
97-12-13	12-22-97	Repeals Ords. No. 86-6-14 and 87-5-8; adopts a new water emergency management plan	I	Rpld	21-53—21-59
			II	Added	21-53—21-60.1
97-12-14	12-22-97	Amends § 12-74(b), corrects name to read "McDermott Road"	I		12-74(b)
98-1-3	1-12-98	Dissolves community services commission and community relations commission; establishes new community relations commission	I, II	Rpld	2-261—2-267
			III	Rpld	2-156—2-163
			IV	Added	2-156—2-162
98-1-10	1-26-98	Revises § 6-2, building standards commission	I		6-2(h)(4)
98-2-7	2-9-98	Amends fee schedules for water and sewer services	I		21-135, 21-136
			II		21-147
98-2-26	2-23-98	Repeals provisions relative to historic landmark preservation; adopts new provisions for heritage resource preservation	I	Rpld	16-101—16-112
			II	Added	16-101—16-121
98-3-7	3-16-98	Amends § 12-101, prohibits parking on certain sections of Avenue R	II		12-101
98-3-8	3-16-98	Establishes transportation advisory committee with revised procedures	I	Rpld	2-201—2-209
			II	Added	2-201—208
98-3-9	3-16-98	Adopts new provisions for erosion control	I	Rpld	14-92—14-95
			II	Added	14-92—14-101
98-3-14	3-16-98	Amends § 21-152, deposits generally	I, II		21-152(c), (g)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
98-3-28	3-23-98	Adopts 1997 edition of the Uniform Code for Building Conservation	I	Rpld	6-671—6-673
			II	Added	6-671—6-674
98-3-29	3-23-98	Adopts 1997 edition of the Uniform Building Security Code	I	Rpld	6-661, 6-662
			II	Added	6-661—6-664
98-3-30	3-23-98	Repealed § 6-5, sanitary facilities on construction sites	I	Rpld	6-5
98-3-31	3-23-98	Adopts 1996 edition of the International Mechanical Code and 1997 supplement to the International Mechanical Code	I	Rpld	6-251—6-254
			II	Added	6-251—6-254
98-3-32	3-23-98	Adopts 1997 edition of the Uniform Fire Code	I	Rpld	8-16—8-34
			II	Added	8-16—8-36
98-3-33	3-23-98	Adopts 1997 edition of Uniform Building Code	I	Rpld	6-16—6-21, 6-36, 6-37
			II	Added	6-16—6-19, 6-36, 6-37
98-4-3	4-13-98	Repeals Ord. No. 96-9-5; amends § 12-101, prohibits parking on certain sections of Premier Drive	I		12-101(note)
			III		12-101
98-4-4	4-13-98	Amends § 12-101, prohibits parking on certain section of Ozark Drive	II		12-101
98-4-5	4-13-98	Repeals Ord. No. 95-2-40; amends § 12-101, prohibits parking on certain sections of Avenue I	I		12-101(note)
			III		12-101
98-4-7	4-13-98	Amends § 16-19, fee schedule for zoning, rezoning and other miscellaneous fees	II		16-19
98-4-9	4-13-98	Repeals Ord. No. 88-12-13; adopts new regulations for the operation and maintenance of all public and semi-public swimming pools	I	Rpld	6-452—6-465.9
			II	Added	6-452—6-465.9
98-4-17	4-27-98	Revises § 8-16, penalty for violations of fire code	I		8-16
98-4-18	4-27-98	Revises § 6-661, penalty for violations of building security code	II		6-661
98-4-19	4-27-98	Revises § 6-16, penalty for violations of building code	II		6-16
98-4-20	4-27-98	Revises § 6-251, penalty for violations of mechanical code	II		6-251

Ordinance Number	Adoption Date	Subject	Section		Section this Code
98-4-21	4-27-98	Revises § 6-671, penaty for violations of building conservation code	II		6-671
98-5-5	5-11-98	Repeals Ord. No. 95-11-31; adopts 1997 edition of Uniform Administrative Code	I	Rpld	6-651, 6-652
			II	Added	6-651—6-653
98-5-16	5-26-98	Amends § 6-37, deletions, additions and amendments to the building code	I		6-37(5)
98-5-19	5-26-98	Revises § 12-169, riding on sidewalks	I		12-169
98-5-20	5-26-98	Amends § 12-115, prohibits parking of certain equipment in certain zoning districts	II		12-115
98-5-21	5-26-98	Revises § 15-21(a), regarding voting priveledges of chairperson of parks and recreation planning board	I		15-21(a)
98-5-22	5-26-98	Revises § 2-161, voting priviledges; conflict of interest of community relations commission	I		2-161
98-5-23	5-26-98	Repeals Ord. No. 88-6-10 and portion of Ord. No. 92-7-11; amends § 12-73 (b), establishes school zones on Parker Road	I, II		12-73(note)
			III		12-73(b)
98-5-24	5-26-98	Amends § 12-73(b), establishes school zone on Tulane Drive	I		12-73(b)
98-5-25	5-26-98	Amends § 12-73(a), establishes school zone on Longfellow Drive	I		12-73(a)
98-5-26	5-26-98	Repeals Ord. No. 96-7-19; amends § 12-73 (b), establishes school zones on Ohio Drive	I		12-73(note)
			II		12-73(b)
98-5-27	5-26-98	Amends § 12-73(a), establishes school zone on Decator Drive	I		12-73(a)
98-5-28	5-26-98	Revises § 2-324, membership; terms of youth advisory commission	I		2-324
98-6-17	6-22-98	Revises § 21-135(1)a, meter charges for residential sewer and § 21-147(1)a, meter charges for water in regard to patio homes	I		21-135(1)a
			II		21-147(1)a
98-7-6	7-13-98	Adopts requirements for trench safety for construction occurring in the city	I		6-22

Ordinance Number	Adoption Date	Subject	Section		Section this Code
98-8-12	8-10-98	Amends § 12-73(b), establishes school zones on Legacy Drive	I		12-73(b)
98-8-16	8-10-98	Repeals Ord. No. 97-6-16; amends § 12-74(b), establishes speed limits on certain sections of State Highway 190 service roads	I		12-74(note)
			II		12-74(b)
98-8-23	8-10-98	Repeals Ord. No. 97-12-13; adopts a new water emergency management plan	I	Rpld	21-53—21-60.1
			II	Added	21-53—21-60.1
98-8-26	8-24-98	Repeals Ord. No. 98-2-7 and Ord. No. 98-6-17; adopts new §§ 21-135 and 21-136, establishing monthly meter charges for residential and nonresidential sewer connections and usage, and new § 21-147, establishing monthly meter charges for residential and nonresidential water connections and usage	I, II	Rpld	21-135, 21-136, 21-147
			III, IV		21-135, 21-136
			V		21-147
98-8-27	8-24-98	Repeals Ord. No. 92-1-9; amends § 12-73(b), establishes school zones on Spring Creek Parkway	I		12-73(note)
			II		12-73(b)
98-8-35	8-24-98	Adds § 16-103.1, provides for predesignation of heritage resources; amends § 16-112, certificate of appropriateness; amends 16-116, demolition or removal of heritage resource	I		16-103.1
			II		16-112(h)
			III		16-116
98-8-36	8-24-98	Amends § 6-653, deletions, additions, amendments to the administrative code	I		6-653
98-8-37	8-24-98	Amends § 6-674, deletions, additions, amendments to the building conservation code	I		6-674(1.1)
98-8-38	8-24-98	Amends § 6-37, deletions, additions and amendments to the building code	I		6-37(13.1)
98-9-5	9-14-98	Repeals Ord. No. 95-4-25 and Ord. No. 96-1-31; adopts provisions pertaining to the platting, developing and subdividing of land	I	Rpld	16-131—16-160.21
			II	Added	16-131

Ordinance Number	Adoption Date	Subject	Section		Section this Code
98-9-6	9-14-98	Repeals Ord. No. 91-10-18; amends § 12-73(a), establishes school zones on Yeary Road	I		12-73(note)
			II		12-73(a)
98-9-28	9-28-98	Amends § 12-102, prohibits parking at certain times on certain sections of Red River Drive	II		12-102(a)
98-9-29	9-28-98	Amends § 12-102, prohibits parking at certain times on certain sections of Mount Vernon Way	II		12-102(a)
98-10-2	10-12-98	Adopts regulations for cross connection control and backflow prevention	I		21-22—21-34
98-10-3	10-12-98	Revises § 18-32, rates of collection and disposal of solid waste	I, II		18-32(a)(5), (11)
98-10-4	10-12-98	Repeals Ord. No. 98-5-23; amends § 12-73(b), establishes school zones on Parker Road	I		12-73(note)
			II		12-73(b)
98-10-16	10-26-98	Revises § 2-336, members of animal shelter advisory committee	I		2-336
98-10-17	10-26-98	Repeals Ord. No. 98-8-16; amends § 12-74(b), establishes speed limits on certain sections of State Highway 190 service roads	I		12-74(note)
			III		12-74(b)
98-10-18	10-26-98	Revises § 2-98, standards of conduct, and § 2-100, training	I		2-98(1)
			II		2-100
98-10-19	10-26-98	Deletes subsections (i) and (l) of § 11-142, unlawful solicitation and handbill distribution, and revises subsection (b) of § 11-147, affirmative defense and exemption	I, II	Rpld	11-142(i), (l)
			III		11-147(b)
98-11-20	11- 9-98	Revises subsection (1), single-family and residential landscape irrigation of § 21-147, water charges	I		21-147(1)
98-11-35	11-23-98	Revises subsection (c), refuse collection charges added, of § 21-155, construction water accounts	I		21-155(c)
98-11-36	11-23-98	Repeals Ord. Nos. 83-2-6, 85-5-34, 87-5-6, 88-12-10, and 92-3-31; adopts 1997 edition of the Standard Plumbing Code with certain additions, deletions and amendments	I	Rpld	6-236—6-239
			II		6-236—6-239

Ordinance Number	Adoption Date	Subject	Section		Section this Code
98-12-27	12-28-98	Amends § 12-102(a), prohibits stopping, standing, or parking of motor vehicles on school days during certain hours on certain sections of Russell Creek Drive	II		12-102(a)
98-12-28	12-28-98	Repeals Ord. No. 95-9-11; amends § 12-74(b), establishes speed limits on Ohio Drive	I		12-74(note)
			III		12-74(b)
99-1-1	1-11-99	Amends § 9-107(i), penalty for violations of Ch. 9, Food and Food Establishments	I		9-107(i)
99-1-2	1-11-99	Revises certain sections of Art. III, Athletic Activities, of Ch. 15, Parks and Recreation	I, II		15-51, 15-52
			III—VII		15-56—15-60
			VIII		15-62
			IX		15-66
99-1-12	1-25-99	Repeals Ord. No. 80-9-15 and 88-10-13; amends § 12-74(b), establishes speed limits on 14th Street	I		12-74(note)
			III		12-74(b)
99-3-16	3-22-99	Amends § 12-102(a), prohibits stopping, standing, or parking of motor vehicles on school days during certain hours on certain sections of John Clark Parkway	II		12-102(a)
99-3-17	3-22-99	Establishes franchise requirements for multichannel video providers	I		7-50, 7-51
99-4-21	4-26-99	Amends § 12-101, prohibits stopping, standing or parking of motor vehicles on certain sections of Klein Road	II		12-101
99-5-9	5-10-99	Repeals Ord. No. 98-8-26, §§ III, IV; adopts new §§ 21-135 and 21-136, establishes monthly meter charges for sewage connections and usage	I	Rpld	21-135, 21-136
			II,III	Added	21-135, 21-136
99-5-10	5-10-99	Amends § 12-73(a), establishes school zone on Gifford Drive	I		12-73(a)
99-5-11	5-10-99	Amends § 12-73(a), establishes school zone on Russell Creek Drive	I		12-73(a)
99-5-12	5-10-99	Amends § 12-73(a), establishes school zone on Kelsey Drive	I		12-73(a)
99-5-13	5-10-99	Amends § 12-73(a), establishes school zone on Pleasant Valley Drive	I		12-73(a)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
99-5-15	5-10-99	Amends § 12-73(a), establishes school zone on Ventura Drive	I		12-73(a)
99-6-29	6-28-99	Amends § 12-74(b), establishes speed limits on Willow Bend Drive	II		12-74(b)
99-7-5	7-26-99	Repeals Ord. No. 96-1-24; amends § 12-74(b), establishes speed limits on Plano Parkway	I		12-74(note)
			II		12-74(b)
99-8-3	8- 2-99	Amends § 12-73(a), establishes school zone on Floyd Drive	I		12-73(a)
99-8-4	8- 2-99	Amends § 12-73(a), establishes school zone on Elsinore Drive	I		12-73(a)
99-8-5	8- 2-99	Amends § 12-73(a), establishes school zone on Oakland Hills Drive	I		12-73(a)
99-8-11	8- 9-99	Amends § 4-13, adding (e) and (f), providing procedures for owners to micro-chip dangerous animals	I		4-13
		Amends § 4-1, adds definition for "micro-chip"	II		4-1
99-8-12	8- 9-99	Repeals Ord. No. 92-7-10; amends § 12-73(a), (b), revises school zone time periods	I		12-73(note)
			II—V		12-73(a), (b)
99-9-5	9-13-99	Repeals and replaces Chapter 9, Food and Food Establishments	I	Rpld	9-1, 9-2, 9-21—9-26, 9-31—9-34, 9-41—9-43, 9-51, 9-52, 9-61—9-67, 9-71—9-78, 9-81—9-83, 9-91, 9-92, 9-101—9-107

Ordinance Number	Adoption Date	Subject	Section	Section this Code	
99-9-6	9-13-99	Repeals Ord. No. 96-7-20; amends § 12-73(b), establishes school zones on Independence Parkway	I	12-73(note)	
			II	12-73(b)	
99-9-27	9-27-99	Amends § 8-3, city ambulance service	I	8-3	
99-9-28	9-27-99	Adds § 14-11, urinating or defecating in public places	I	14-11	
99-9-29	9-27-99	Repeals Ord. No. 98-8-12; amends § 12-73 in its entirety, revises school zone time periods	I	12-73(note)	
			Rpld	12-73(a), (b)	
			II[a], [b];Added	12-73(a), (b)	
			III—VIIAdded	12-73(c)—(g)	
			VIII Rnbd as	12-73(d)—(g) 12-73(h)—(k)	
99-9-30	9-27-99	Amends § 11-222(d), alarm system permit fees	I	11-222(d)	
99-9-36	9-27-99	Amends § 12-114(c), prohibits parking or standing of certain vehicles on public and private property within city limits	I	12-114(c)	
99-10-23	10-25-99	Amends §§ 18-32—18-34, establishes a revised schedule of rates and charges for solid waste disposal and collection applicable to residential and commercial accounts	I	18-32—18-34	
99-11-9	11- 8-99	Amends § 12-114(c), adds time limits for parking or standing of certain vehicles on public and private property within city limits	I	12-114(c)	
99-11-11	11- 8-99	Amends § 14-3, pertaining to weeds, rubbish, or unsanitary matter	I—VI	14-3	
99-11-13	11- 8-99	Amends § 12-73(b); establishes school zone on Willow Bend Drive	I	12-73(b)	
99-11-14	11- 8-99	Amends § 12-73(a); establishes school zone on Marcedonia Drive	I	12-73(a)	
99-11-16	11- 8-99	Establishes definitions and regulations for garage/occasional sales	I	11-366 —11-368	
99-11-36	11-22-99	Amends § 12-102, prohibits stopping, standing, or parking of motor vehicles on school days during certain hours on certain sections of Breckenridge Drive	II	12-102(c), (d)	
99-12-4	12- 6-99	Creates municipal court technology fund	I—III, VII	13-8	

Ordinance Number	Adoption Date	Subject	Section		Section this Code
99-12-12	12-13-99	Adopts new and revised provisions for noise disturbances	I	Rpld	14-85—14-91
				Added	14-85—14-88
99-12-14	12-13-99	Adopts revised land use assumptions; amends impact fees in Ch. 21	II, III, VII		Ch 21, Art. VI(note)
99-12-25	12-28-99	Provides for the creation of a twenty-first century committee	I—VII		2-351—2-357
2000-2-15	2-21-2000	Amends Ord. No. 99-9-29, codified as § 12-73(f), to revise school zone times for various location in the city	II		12-73(f)
2000-2-16	2-21-2000	Repeals Ord. No. 98-10-2; adopts new Ch. 21, Art. II, Div. 1.5, Cross Connection Control Program	I	Rpld	21-22—21-34
			II	Added	21-22—21-34
2000-2-26	2-28-2000	Repeals Ord. No. 87-12-21; establishes regulations governing any and all construction occurring within the city's rights-of-way	I	Rpld	19-56—19-58
			II	Added	19-56—19-61
2000-3-11	3-20-2000	Amends § 12-227 to revise definition of "junked vehicle"	I		12-227
2000-4-7	4-10-2000	Amends Ord. No. 98-10-17, codified as § 12-74(b), to change speed limit on SH 190 service road	I		12-74(b)
2000-4-15	4-24-2000	Amends § 6-77, increasing unsafe structure penalty; amends § 6-79, unlawful to own or maintain unsafe structures	I, II		6-77, 6-79
2000-4-16	4-24-2000	Amends §§ 6-466, 467, 469—472 and adds § 6-473, regulating outdoor lighting	II		6-466
			III		6-467
			IV		6-469(c)
			V		6-470(c)
			VI		6-471(a)
			VII		6-472
			VIII	Added	6-473
			VIII	Added	6-473
2000-4-20	4-24-2000	Amends Ch. 2 by creating Art. XXI, Technology Commission	II	Added	2-360—2-368
2000-5-16	5-9-2000	Amends Ord. No. 99-9-29, codified as § 12-73(e), to include previously omitted school zone	II		12-73(e)
2000-5-17	5-9-2000	Amends Ord. No. 99-9-29, codified as 12-73 (a),(b), relating to school zones	I, II		12-73(a), (b)
2000-5-26	5-22-2000	Amends Ord. No. 93-11-20, codified as 12-98.1, relating to parking restrictions	I		12-98.1(b)(8)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2000-5-28	5-22-2000	Amends § 12-74(b) to establish speed limit on Windhaven Parkway	II		12-74(b)
2000-5-29	5-22-2000	Repeals Ord. No. 87-7-32, codified as § 12-74(b) and adopts new § 12-74(b), establishing speed zones on Coit Rd.	I	Rpld	12-74(b)
			II	Added	12-74(b)
2000-5-30	5-22-2000	Amends § 12-74(b) to establish speed zone on Communication Pkway	II	12-74(b)	
2000-5-38	5-22-2000	Repeals Ord. Nos. 91-4-12, 92-5-10, 92-6-21, 93-2-15 and 96-9-14, codified as §§ 11-16—11-94 and adopts new §§ 11-16—11-40, relating to signs	I	Rpld	11-16—11-94
			II	Added	11-16—11-40
2000-6-10	6-12-2000	Amends § 12-74(b) to establish speed zone on Independence Pkway	II	Added	12-74(b)(4)
2000-6-11	6-12-2000	Amends § 12-74(b) to establish speed zone on Spring Creek Parkway	II	Added	12-74(b)(5)
2000-6-12	6-12-2000	Amends § 12-74(b) to establish speed zone on Parkwood Blvd.	II		12-74(b)
2000-6-13	6-12-2000	Amends § 12-74(b) to establish speed zone on Headquarters Dr.	II		12-74(b)
2000-6-25	6-26-2000	Amends Ch. 2, Administration, by creating Art. XXII, Plano Transition and Revitalization Commission	II	Added	2-375—2-382
2000-7-6	7-24-2000	Amends § 12-101 to prohibit parking on Hamptondale Road from its intersection with Willow Bend Drive east to and including 5500 Hampton Dale Road	II		12-101
2000-7-7	7-24-2000	Amends § 12-73(e) to establish a school zone on Gifford Drive	I		12-73(e)
2000-7-8	7-24-2000	Amends § 12-101 to prohibit parking on the west side of Roundrock Trail from its intersection with Parkhaven Drive north for a distance of 900 feet	II		12-101
2000-7-9	7-24-2000	Amends § 12-73 of the Traffic Code, removing a school zone from subsection (c) and establishing a school zone in subsection (e)	I		12-73(c)
			II		12-73(e)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2000-8-12	8-14-2000	Amends § 12-74(b) to establish a prima facie maximum speed limit for motor vehicles operating upon Parker Road from Marsh Lane to the west city limits	II		12-74(b)
2000-8-32	8-28-2000	Amends article I of Chapter 15 to provide definitions, restrictions and regulations for the use of Parks and Park Facilities; repealing § I of Ord. No. 92-5-52, Ord. No. 95-2-21, §II of Ord. No. 95-8-41, and Resolution No. 88-6-1(R)	I	Rpld	15-1—15-4
				Added	15-1—15-9
2000-8-35	8-28-2000	Repeals Ord. Nos. 82-7-8 and 98-4-9, codified as §§ 6-436—6-465.9 and adopts new §§ 6-436—6-457, relating to swimming pools	I, II	Rpld	6-436—6-465.9
			III	Added	6-436—6-457
2000-9-7	9- 9-2000	Repeals and replaces Ord. No. 99-5-9, codified as §§ 21-135 and 21-136; amending Ord. No. 98-8-26, subsection (4), codified as § 21-147; providing for an amended fee schedule for water and sewer services	I	Rpld	21-135, 21-136
			II		21-147(4)
			III	Added	21-135
			IV	Added	21-136
			V		21-147(4)
2000-9-20	9-25-2000	Amends § 12-102(c) to prohibit parking on Quincy Lane from its intersection with Reunion Drive west to its intersection with Penny Place and Bettye Haun Drive	II		12-102(c)
2000-9-21	9-25-2000	Amends § 12-102(c) to prohibit parking on the south side of Marcedonia Drive from its intersection with Marchman Way east for a distance of 500 feet	II		12-102(c)
2000-10-4	10-16-2000	Amends § 21-2(c) providing for an amended fee schedule for municipal drainage utility system	II		21-2(c)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2000-10-5	10-16-2000	Amends § 14-06 of Article VII of Chapter 14 Offenses to increase the scope of those responsible for hazardous materials incidents; increase fees for units responding to a hazardous materials incidents; and, to prohibit all open burning except ceremonial campfires	I		14-106
			II		14-108
			III		14-109
			IV		14-110
			V		14-112
2000-10-7	10-16-2000	Amends § 12-102(a) of the traffic code to prohibit parking on the west side of Blue Ridge Trail	II		12-102(a)
2000-10-8	10-16-2000	Amends § 11-222(d) of Article VI, Alarm Systems to revise the permit fee	I		11-222(d)
2000-11-6	11- 6-2000	Repeals Article XX, Twenty-first Century Vision Committee of Chapter 2, Administration	I	Rpld	2-351—2-359
2000-11-7	11- 6-2000	Amends § 2-301 of Article XVI, self-sufficiency committee to decrease the number of members from 20 to 8	I		2-301
2000-11-14	11-13-2000	Repeals § 14-8, Fortunetelling	I	Rpld	14-8
2000-11-15	11-13-2000	Adopts a new Article IX, chapter 6 providing revised definitions, regulations and enforcement procedures pertaining to the Electrical Code	I	Rpld	6-271—6-435
				Added	6-271—6-435
2000-11-17	11-13-2000	Amends § 12-74(b) of the Traffic Code establishing a prima facie maximum speed limit on Midway Road	II		12-74(b)
2000-11-22	11-13-2000	Sign Ordinance		Rpld	11-16—11-40
2001-1-1	1- 2-2001	Amends Article IV of Chapter 11, Licenses and Business Regulations to add an appeal process from the denial or revocation of permit to solicit within the City of Plano	I		11-145
2001-2-14	2-12-2001	Establishes policies and regulations regarding practice sessions, user fees, and use of lights of Chapter 15 Park and Recreation	I		15-60
			II		15-61
			III		15-66

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2001-2-26	2-26-2001	Adopts a new subsection "State Highway 190 Service Roads" of Chapter 12 Traffic Code, to establish prima facie maximum speed limits	I—III		12-74(b)
2001-2-27	2-26-2001	Repeals Resolution No. 86-11-33[R], currently codified as Article I, § 2-9	I	Rpld	2-9
		Lawsuits and Risk Management	II	Added	2-9
2001-3-20	3-26-2001	Repeals Ord. No. 2000-2-26, codified as Article IV of Chapter 19 Streets and Sidewalks; Adopting a new and comprehensive right-of-way management ordinance governing any and all construction occurring within the public rights-of-way	I	Rpld	19-56—19-61
			II	Added	19-56—19-82
2001-4-4	4- 2-2001	Adds a new Article to Chapter 14, Offenses—Miscellaneous, to provide supplemental regulations of tattoo and certain body piercing studios not addressed in existing state law	I	Added	14-113—14-122
2001-4-11	4- 9-2001	Amends § 14-5 "firearms" to lawfully prohibit a concealed handgun licensee and other persons, except a certified peace officer, from carrying a firearm into any city building	II		14-5(a)
2001-5-3	5- 8-2001	Clarifies the reference point for the beginning of the school zone located on Park Boulevard	II		12-73(b)
2001-5-4	5- 8-2001	Clarifies that only new residential service connections are exempted from the requirements of the right-of-way management ordinance	I		19-59(c)(1)b.
			II		19-67(a)(4)
		Clarifies the type of penalties that may be assessed for violations	III		19-62(b)
			IV		19-63

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2001-5-23	5-29-2001	Amends the definition of abandoned vehicle and procedure to abate nuisance and providing a public hearing prior to any towing of "junked vehicles", providing notice to the Texas Department of Transportation and authority of enforcement of the removal of "junked vehicles" to be consistent with state law	I		12-206
			II—IV		12-228—12-230
			V		12-232
2001-6-2	6- 4-2001	Amends continuing violations of Chapter 1 General Provisions	I		12-4
2001-6-7	6-11-2001	Provides an exception for interior property line of nonresidential developments	II		6-470(d)(1)
2001-6-19	6-25-2001	Establishes school zones on McDermott Road, Preston Meadow Drive, Rockledge Lane and Waskom Drive	I		12-73(g)
2001-6-20	6-25-2001	Amends the Traffic Code of the City of Plano to include the east and west sides of Marchman Way from its intersection with Caravan Drive north to its intersection with Wheatland Lane within the city limits	II		12-102(c)
2001-6-22	6-25-2001	Amends § 21-133 of Article IV of Chapter 21 pertaining to electronically read water meters	I		21-133(i)
2001-7-9	7-23-2001	Increases technology fee for a person convicted in the Plano Municipal Court	I	Rpld	13-8(b), (c)
			II	Added	13-8(b), (c)
2001-7-11	7-23-2001	Establishes prima facie maximum speed limit for certain sections of McDermott Road	II		12-74(b)
2001-7-12	7-23-2001	Establishes prima facie maximum speed limit for certain areas of Alma Drive	II		12-74(b)
2001-7-16	7-23-2001	Increases the permit fees assessed to taxicab services, increases the permit fees assessed to limousine services	I	Rpld	11-101—11-103, 11-103.1, 11-104—11-106
			II	Added	11-101—11-103, 11-105—11-106.3

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2001-8-5	8-13-2001	Modifies the definitions of limousine and taxicab	I	Rpld	11-103
			II	Added	11-103
2001-8-15	8-27-2001	Increasing the authority of the city manager to execute contracts and change orders up to $25,000.00 without city council authorization	I		2-12(c)(1), (3)
			II		2-27
2001-8-16	8-27-2001	Amends impact fees to change the calculation of the maximum impact fees, designated time of collection of impact fees and amends the period for required updates to the impact fee program	I		21-209(a)(1), (2)
			II	Rpld	21-210(a)
			III	Rnbd as	21-210(b) 21-210(a)
			IV	Rnbd as	21-210(c) 21-210(b)
			V	Rnbd as	21-210(d) 21-210(c)
			VI	Rnbd as	21-210(e) 21-210(d)
2001-8-17	8-27-2001	Repeals Ord. No. 97-1-13 codified as subsection "U.S. Highway 75" of section 12-74(b)	I		12-74(b)
2001-8-19	8-27-2001	Provides definitions, restrictions and regulations for solicitation within the city	I	Rpld	11-141—11-148, 11-161—11-169, 11-181—11-188
				Added	11-141—11-158
2001-8-20	8-27-2001	Allows maximum of 4-hour curb-side loading for certain areas of 15th Place	I	Added	12-112.5
2001-8-21	8-27-2001	Prohibits parking along certain portions of 15th Place, deletes section 12-103 (two-hour parking), provides for duration of parking for 15th Street, 15th Place and K Avenue	I	Added	12-102.5
			II	Rpld	12-103
			III		12-104
2001-8-22	8-27-2001	Designates one-way traffic north of J Ave and one-way traffic east on 15th Place	I		12-12
2001-9-7	9-10-2001	Adopts the 2000 Edition of the International Fire Code with certain additions, deletions and amendments	I	Rpld	8-16—8-36
			II	Added	8-16—8-36

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2001-9-8	9-10-2001	Adopts the 2000 Edition of the International Mechanical Code with certain additions, deletions and amendments	I	Rpld	6-251—6-254
			II	Added	6-251—6-254
2001-9-9	9-10-2001	Adopts the 2000 Edition of the International Building Code with certain additions, deletions and amendments	I	Rpld	6-16—6-19
					6-22, 6-36, 6-37
			II	Added	6-16, 6-17 6-37
2001-9-10	9-10-2001	Adopts the 2000 Edition of the International Fuel Gas Code with certain additions, deletions and amendments	I	Added	6-696—6-698
2001-9-11	9-10-2001	Adopts the 2000 Edition of the International Energy Conservation Code with certain additions, deletions and amendments	I	Added	6-684—6-686
2001-9-12	9-10-2001	Adopts the 2000 Edition of the International Plumbing Code with certain amendments, deletions and additions	I	Rpld	6-236—6-239
				Added	6-236—6-239
2001-9-13	9-10-2001	Adopts the 2000 Edition of the International Residential Code with certain additions, deletions and amendments	I	Added	6-708—6-710
2001-9-27	9-24-2001	Prohibits parking along the east side of Bettye Haun Drive from its intersection with Quincy Lane south to the alley north of Mackey Court on school days between the hours of 7:15 a.m. to 8:15 a.m. and 2:30 p.m. to 3:15 p.m.	II		12-102(a)
2001-10-17	10-22-01	Repeals Division 3 of Chapter 12 and replacing with revised and renumbered regulations	I	Rpld	12-226—12-232
			II	Added	12-226—12-233
2001-10-18	10-22-01	Amends subsection (a) of section 12-73 to include a previously existing school zone on San Gabriel Drive between Merriman Drive and Park Boulevard, previously omitted in the School Zone Ordinance revision No. 99-9-29	I		12-73(a)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2001-11-10	11-12-01	Prohibits stopping, standing or parking of motor vehicles on the north side of Janet Way from the alley west of Janet Court, westward to a point 200 feet east of Rigsbee Drive	II		12-102(c)
2001-11-19	11-26-01	Prohibits commercial vehicle traffic on portions of 10th Street	I	Added	12-137(a)(11)
2001-11-20	11-26-01	Prohibits parking of motor vehicles on Sundays between the hours of 8:00 a.m. and 1:00 p.m. along various sections of roadway within the city limits	I	Added	12-102.6
2001-11-21	11-26-01	Prohibits parking of motor vehicles along the south side of Janwood Drive from the intersection of Crestridge Drive west to the intersection of Drexel Drive	II		12-102(c)
2001-11-23	11-26-01	Amends the definition of junked vehicle to correct a clerical error, thereby making the definition consistent with the Texas Transportation Code	I, II		12-226
2001-12-3	12- 3-01	Amends the City of Plano water and sewer rates in two stages, first increase being on Jan. 2, 2002 and the second increase being on Oct. 1, 2001	I	Rpld	21-135, 21-136, 21-147
			II	Rpld	21-135, 21-147
			III	Rpld	21-135, 21-136, 21-147
			IV	Rpld	21-147
			V	Rpld	21-135, 21-136
			VI	Rpld	21-135, 21-136, 21-147(d)
			VII	Added	21-135
			VIII	Added	21-136
			IX	Added	21-147
2001-12-8	12-10-01	Amends Ord. No. 2001-9-10 correcting the publication name from "International Energy Conservation Code" to "International Fuel Gas Code"	I		6-697
2001-12-18	12-17-01	Amends Ord. No. 2001-9-7 to correct minor numerical and sectional sequencing errors, codified as Art. II of Chapter 8	I	Rpld	8-16—8-36
				Added	8-16—8-36
2001-12-19	12-17-01	Adopts a new drought contingency plan	I	Rpld	21-53—21-60.1

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			II	Added	21-53—21-60.1
2001-12-20	12-17-01	Amends the municipal drainage utility system charges	I	Rpld	21-2(c)
			II	Rpld	21-2
			III	Added	21-2
2002-1-9	1-14-02	Parking restrictions	II		12-102(a)
2002-1-10	1-14-02	Water impact fees	I		21-208(b)(6)
2002-1-24	1-28-02	Prohibits the use of rollerskates, rollerblades, skateboards or other similar devices on public ways	I, II		14-7
2002-2-9	2-11-02	Streets prohibited to certain vehicles	I		12-127(d)
2002-2-27	2-25-02	Clarifies penalty provision of chapter 17 and prohibits the City of Plano Police Department employees from purchasing any impounded property	II, III		17-51, 17-58
2002-3-3	3- 4-02	Two-hour parking	I	Added	12-103
2002-3-13	3-25-02	Revises the number of persons who are able and have agreed to receive notification from a member of the police department or fire department regarding alarm systems	I		11-222(b)
2002-4-4	4- 1-02	Removes required appointment of one Ex Officio member for the Senior Citizens Advisory Board	I		2-242
2002-4-5	4- 1-02	Decreases number of members of Community Relations Commission	I		2-156(a)
2002-4-6	4- 1-02	Transfers certain functions of the Cultural Affairs Commission, relative to Historic Preservation, to the Heritage Commission	I		2-251, 2-252, 2-256
			II		16-108
2002-4-8	4- 8-02	Adopts and enacts Supplement Nos. 35—56			p. xii.xxxi
2002-4-14	4-22-02	Rules and regulations regarding planting and maintaining trees and shrubs on public property	I		15-117
			II		15-119
			III	Rpld	15-121
			IV		19-1(a)
2002-4-15	4-22-02	Adds provision on exterior wall construction	I		6-37(10)
2002-4-16	4-22-02	New school zone	I		12-73(b)
2002-4-17	4-22-02	New school zone	I		12-73(b)
2002-4-18	4-22-02	New school zone	I		12-73(b)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2002-4-20	4-22-02	Increases size of Keep Plano Beautiful Commission; deletes reference to term "board" or "board of commission"; clarifies that the funding for the Keep Plano Beautiful Commission staff shall be part of the solid waste department budget	I		16-207
			II	Rpld	16-210
			III		16-211(c)
2002-5-19	5-13-02	Maximum time limit for curb side parking	I		12-112.5
2002-5-26	5-28-02	Streets prohibited to certain vehicles	I		12-137
2002-6-8	6-10-02	Adopts and enacts Supplement No. 57			p. xii.xxxiii
2002-6-9	6-10-02	Reduces penalty amount for using or operating roller skates, skateboards and other similar devices within certain prohibited areas	I		14-7
2002-6-10	6-10-02	Riding on sidewalks	I		12-169(a)
2002-7-5	7-22-02	School zones	I, II		12-73(b), (e)
2002-7-6	7-22-02	School zones	I, II		12-73(a), (b)
2002-7-7	7-22-02	School zones	I		12-73(b)
2002-7-8	7-22-02	Prohibit parking in specified areas	II		12-102(a)
2002-7-9	7-22-02	Prohibit parking in specified areas	II		12-102(c)
2002-7-10	7-22-02	Prohibit parking in specified areas	II	Added	12-102(e)
2002-7-11	7-22-02	New school zone hours; parking	I		12-73(g)
2002-7-12	7-22-02	Adding encroachment provisions to the residential code	I		6-710
2002-7-13	7-22-02	Peddlers and solicitors	I	Rpld	11-141—11-158
				Added	11-141—11-157
2002-9-3	9- 3-02	Adopts and enacts Supp. No. 58			p. xii.xxxiv
2002-9-11	9- 9-02	Food and food establishment fees	I		9-107(d)
2002-9-12	9- 9-02	Municipal drainage utility system	I, II		21-2
2002-9-13	9- 9-02	Utility charges	I(1)—(5)	Rpld	21-131, 21-146, 21-154
			II	Added	21-31
			III	Added	21-146
			IV	Added	21-154
2002-9-14	9- 9-02	Ambulance services	I		8-3
2002-9-15	9- 9-02	Testing fee; certified backflow technician registration fee	I		21-28(f)
			II		21-31(b)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2002-9-35	9-23-02	Definitions, restrictions and regulations for the use of licensed and unlicensed vehicles	I		15-1
					15-4(13)
				Added	15-4(14)
2002-9-37	9-23-02	Prohibit parking in specified areas	II		12-102(e)
2002-9-38	9-23-02	Parking in public lots in the downtown area	I	Added	12-104.5
2002-9-39	9-23-02	Permit fee; late fee; alarm systems	I		11-222(d)
2002-10-16	10-14-02	School zones	I, II		12-73(b), (g)
2002-10-17	10-14-02	School zones	I, II		12-73(a), (g)
2002-10-18	10-14-02	Prohibit parking on the west side of Decator Drive	I, II		12-102(e)
2002-10-19	10-14-02	Stopping, standing or parking of motor vehicles on portions of Old Orchard Drive, Apple Valley Road and Pleasant Valley Drive	I—III		12-101
2002-10-21	10-14-02	Transfer responsibility of appointing a chairperson of the animal shelter advisory committee to the city council	I		2-338
2002-11-3	11- 4-02	Itinerant vendors on private property	I, II		11-156
2002-11-26	11-25-02	International Plumbing Code	I, II		6-239
2002-11-27	11-25-02	International Residential Code	I, II		6-710(19)
2002-11-28	11-25-02	Adopts and enacts Supp. No. 59			p. xii.xxxvii
2002-11-29	11-25-02	Prohibit parking on certain roadways	I		12-102.5
2002-11-30	11-25-02	Loading and unloading in the downtown area	I		12-112.5
2002-11-31	11-25-02	Four hour parking	I		12-104
2002-12-2	12- 9-02	Right-of-way management	I		19-69(n)
2002-12-17	12-16-02	International Relations Advisory Commission	I	Added	2-231—2-237
2003-1-5	1-13-03	School zone speed limit	I		12-73(g)
2003-1-6	1-13-03	Prohibition of motor vehicle parking	II		12-102(c)
2003-1-13	1-27-03	Prohibition of stopping, standing, or parking	I—III		12-102(e)
2003-2-27	2-24-03	Adopts and enacts Supp. No. 60			p. xii.xxxix
2003-2-32	2-24-03	Impact fees	I—III		Ch. 21, Art. VI(note)
2003-3-2	3- 3-03	Wrecker definitions	I		11-201
		Non-consent towing	II	Added	11-208
2003-3-4	3-18-03	Food Code	II		9-2
			III		9-21
			IV		9-22
			V		9-24
			VI		9-25
			VII		9-31

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			VIII		9-32
			IX		9-33
			X		9-51
			XI		9-78
			XII		9-91
			XIII		9-92
			XIV		9-106
			XV		9-107
2003-3-9	3-24-03	Sunset Advisory Committee	I	Rpld	2-311—2-316
			II	Added	2-311—2-314
2003-4-13	4-14-03	Stopping, standing and parking prohibitions	III		12-101
2003-4-14	4-14-03	Prima facie speed limit—Hedgecoxe Road	I, II		12-74(b)
2003-4-15	4-14-03	Management and maintenance of electronically stored records	I	Rpld	2-119, 2-126—2-132
			II	Added	2-119, 2-126—2-132
2003-4-16	4-14-03	Street and thoroughfare closures	I		19-92—19-94
2003-4-17	4-14-03	Increases the service charge for a requested flow and/or pressure test on a city fire hydrant	I, II		21-33(d)(1)a.
2003-4-19	4-14-03	Facsimile firearms	I	Added	14-12
2003-4-26	4-28-03	Stopping, standing and parking prohibitions	I		12-102(e)
2003-5-4	5- 6-03	Parks and recreation	I		15-4(7)
			II		15-24
			III	Rpld	15-55
			IV		15-56
			V		15-57(a)
			VI	Added	15-58(7)
			VII		15-63
			VIII		15-66
2003-5-6	5-12-03	Stopping, standing and parking prohibitions	I		12-101
2003-5-19	5-27-03	Adopts and enacts Supp. No. 61			p. xii.xli
2003-5-20	5-27-03	Cross connection control program	I	Rpld	21-22—21-34
			II	Added	21-22—21-25
2003-6-5	6- 9-03	Termination date for the Municipal Court Technology Fund	I	Rpld	13-8(d)
2003-6-7	6- 9-03	Prohibiting solicitation upon residential premises that are posted with a no solicitation sign	I	Added	11-145(e)
2003-6-17	6-23-03	School zones—Crystal Creek Drive, Ohio Drive and Robinson Road	I		12-73(g)
2003-6-18	6-23-03	Stopping, standing and parking prohibitions	II		12-102(c)
2003-7-10	7-28-03	Taxation	I		20-79
			II	Added	20-80

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2003-7-11	7-28-03	Stopping, standing and parking provisions	II		12-102(e)
2003-7-13	7-28-03	Stopping, standing and parking provisions	I—III		12-101
2003-7-14	7-28-03	Stopping, standing and parking provisions	I—III		12-101
			IV, V		12-102(e)
2003-8-8	8-11-03	Library	II		10-3
			III		10-21
2003-8-9	8-11-03	Stopping, standing and parking provisions	I, II		12-102(e)
2003-8-10	8-11-03	Stopping, standing and parking provisions	I, II		12-102(e)
2003-8-12	8-11-03	Wreckers	I		11-201
			II	Rpld	11-208
2003-8-13	8-11-03	Firearms	I		14-5
2003-8-19	8-25-03	Alarm systems	I		11-221
			II		11-222(d)
			III	Added	11-224(a)(4)
			IV		11-229
2003-9-2	9- 2-03	Building Code	I		6-37(10)
2003-9-12	9- 8-03	Establishing EMS special event fees	I		8-3
2003-9-42	9-22-03	Fee schedule for water and sewer services	I	Rpld	21-135, 21-136, 21-147
			II	Added	21-135
			III	Added	21-136
			IV	Added	21-147
2003-9-38	9-22-03	Adopting Supp. No. 62			p. xiii
2003-9-39	9-22-03	Prohibiting motorized devices in certain public areas	I		14-7
2003-9-40	9-22-03	Stopping, standing and parking provisions	I		12-102(e)
2003-9-41	9-22-03	Stopping, standing and parking provisions	I, II		12-102(e)
2003-9-43	9-22-03	Regulations and policies for the collection and transportation of solid waste	I	Rpld	18-1—18-20
			II	Added	18-1—18-24
2003-9-43	9-22-03	Revised rates and charges for solid waste disposal	I		18-31—18-34
2003-9-47	9-22-03	Animal shelter advisory committee	I		2-336
			II		2-339
			III		2-338
2003-9-48	9-22-03	Parks and recreation	I, II		15-1
			III		15-4(a)(13)
2003-10-9	10-14-03	School zone on Coit Road	I		12-73(c)
2003-10-10	10-14-03	School zone on Baxter Road	I		12-73(e)
2003-10-11	10-14-03	Meetings of the International Relations Advisory Committee	I		2-234
2003-11-15	11-24-03	Adopting Supp. No. 63, Supp. No. 63, Rev.			p. xv
2003-12-8	12- 8-03	Parking on Decator Drive	II		12-102(e)
2003-12-9	12- 8-03	Parking on west side of Jackson Drive	II		12-102(e)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2003-12-10	12- 8-03	Parking on west side of Ranier Road	II		12-102(e)
2003-12-11	12- 8-03	Parking on east side of Rockledge Lane	II		12-102(e)
2004-1-11	1-12-04	Stopping, standing and parking provisions	II		12-102(e)
2004-1-22	1-26-04	Water and sewer tap estimates generally	I		21-133(a)(1)
2004-2-9	2- 9-04	One way traffic on Commonsgate Boulevard	I		12-12
2004-2-10	2- 9-04	Stopping, standing and parking provisions	II		12-101
2004-2-11	2- 9-04	Prima Facie speed limit—Tennyson Parkway	II		12-74(b)(1)
2004-2-12	2- 9-04	Regulations for motor assisted scooters	II	Added	14-26—14-30
2004-3-6	3- 2-04	Stopping, standing and parking provisions	II		12-102(e)
2004-3-26	3-22-04	Adopting Supp. No. 64	I		p. xvii
2004-3-28	3-22-04	Stopping, standing and parking provisions	II		12-101
2004-4-12	4-26-04	Stopping, standing, parking, Windcrest Drive	II		12-101
2004-5-21	5-24-04	Four hour parking, "K" Avenue	I	Added	12-104.1
2004-5-22	5-24-04	Homestead property exemptions for disabled or 65 years of age or older	I	Added	20-18
2004-6-8	6-14-04	Sexually oriented businesses	II	Added	17.5-21
			III	Rnbd	17.5-21
				as	17.5-22
			IV	Rnbd	17.5-22
				as	17.5-23
			V	Rnbd	17.5-23
					17.5-24
2004-6-14	6-28-04	Parking of motor vehicles, Eagle Pass Drive	II		12-102(e)
2004-6-15	6-28-04	Parking of motor vehicles, Lookout Trail	II		12-102(e)
2004-6-16	6-28-04	School zone speed, Russell Creek Drive	I		12-73(e)
2004-6-17	6-28-04	Stopping, standing, parking, Old Orchard Drive	II		12-101
2004-6-19	6-28-04	Adopting Supp. No. 65			p. xix
2004-7-9	7-26-04	Parking of truck, tractors, etc., in residential district	I		12-114(c)(1)
2004-7-11	7-26-04	School zone on Legacy Drive	I		12-73(c)
2004-8-8	8- 9-04	International Building Code	I	Rpld	6-16, 6-17, 6-37
			II	Added	6-16, 6-17, 6-37
2004-8-9	8- 9-04	International Residential Code	I	Rpld	6-708—6-710
2004-8-10	8- 9-04	International Energy Conservation Code	I	Rpld	6-684—6-686
			II	Added	6-684—6-686
2004-8-11	8- 9-04	Plumbing Code	I	Rpld	6-236—6-239
			II	Added	6-236—6-239
2004-8-12	8- 9-04	International Fuel Gas Code	I	Rpld	6-696—6-698

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			II	Added	6-696—6-698
2004-8-13	8- 9-04	National Electrical Code	I	Rpld	6-271—6-275, 6-279—6-292, 6-301—6-306, 6-316—6-320, 6-327—6-344, 6-351—6-358
			II	Added	6-271—6-275, 6-280—6-292, 6-301—6-304, 6-318—6-320, 6-327—6-342, 6-351—6-357
2004-8-14	8- 9-04	International Mechanical Code	I	Rpld	6-251—6-254
			II	Added	6-251—6-254
2004-8-15	8- 9-04	Swimming Pools	I	Rpld	6-436—6-451, 6-453—6-457
			II	Added	6-436—6-451, 6-453—6-458
2004-8-16	8- 9-04	International Fire Code	I	Rpld	8-16—8-36
			II	Added	8-16—8-19
2004-8-32	8-17-04	Automated traffic signal enforcement	I	Added	12-260—12-266
2004-9-10	9-13-04	Adopting Supp. No. 66 and Supp. No. 66, Rev.	I		p. xxi
2004-9-11	9-13-04	Stopping, standing or parking; south side of San Gabriel Drive	I		12-102(e)
2004-9-13	9-13-04	Solicitation	I		11-141
			II	Added	11-144(a)(6)j., 11-144(a)(9)f., g. 11-144(a)(10)h.
			III	Rpld	11-144(b)
2004-9-27	9-27-04	Utility service charges	I	Rpld	21-135, 21-136, 21-147
			II	Added	21-135
			III	Added	21-136
			IV	Added	21-147
2004-9-28	9-27-04	Utility service charges	I		21-131
			II		21-133(i)
			III		21-137
			IV		21-152
			V		21-154
			VI		21-156
2004-9-30	9-27-04	Adopting International Property Code	I	Rpld	6-76—6-97, 6-486—6-491, 6-501—6-504, 6-516—6-526, 6-541—6-547, 6-561—6-566, 6-571—6-574, 6-581—6-590, 6-601—6-607

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			II	Added	6-45, 6-46, 6-50—6-53
2004-10-6	10-11-04	Senior citizens advisory board	I		2-242
2004-10-7	10-11-04	Building Standards	I, II		6-1—6-15
2004-10-8	10-11-04	Parking on Waskom Drive	II		12-102(e)
2004-10-24	10-26-04	Parking on Coldwater Creek Lane	II		12-102(e)
2004-10-25	10-26-04	Utility service fee	I		21-154
2004-10-26	10-26-04	Animal shelter advisory committee	I		2-336
2004-11-4	11- 8-04	Emergency management plan	I	Rpld	2-136—2-142
				Added	2-136—2-141
2004-11-5	11- 8-04	Four-hour parking	I		12-104
2004-11-24	11-22-04	Solicitation on public rights-of-way	I		11-144(a)(10)h.
2004-12-13	11-13-04	School zone on Roundrock Trail	I		12-73(e)
			II		12-73(b)
2004-12-14	12-13-04	Alcoholic beverages	II		3-6
2004-12-15	12-13-04	Food Code	I		9-107(c)(3)(a)
2004-12-16	12-13-04	Food Code	I		9-24(d)(6)
			II		9-31(b)
			III		9-107
2005-2-7	2-14-05	Adopting Supp. No. 67	I		p. xxiii
2005-2-19	2-22-05	Provides an exemption to parking along Quincy Lane	I	Added	12-198.1(9)
2005-2-23	2-22-05	Speed along Jupiter Road	I—III		12-74(b)
2005-3-14	3-16-05	Stopping, standing and parking, Floyd Drive	II		12-102(e)
2005-3-22	3-28-05	Fee schedule for water and sewer services	I		21-135
			II		21-136
			III		21-147
2005-4-10	4-11-05	Definition of local exchange access line or equivalent local exchange access line	I		7.5-16
2005-4-11	4-11-05	Adopting Supp. No. 68	I		p. xxv
2005-4-22	4-25-05	Maximum speed limits on specific streets	II		12-74(b)
2005-4-23	4-25-05	Maximum speed limits on specific streets	II		12-74(b)
2005-4-24	4-25-05	Ex Officio members	I		16-107(c)
2005-4-25	4-25-05	Terms of office/vacancies for members of the animal shelter advisory committee	I		2-337
2005-4-26	4-25-05	Terms of office/meetings/compensation; self sufficiency committee	I		2-302
2005-4-27	4-25-05	Terms of office/compensation; community relations commission	I		2-302
2005-4-28	4-25-05	Term of office members; parks and recreation planning board	I		15-26
2005-5-4	5- 9-05	Members of the Plano Transition and Revitalization Commission	I		2-376

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2005-5-5	5- 9-05	Parking prohibited on certain streets at all times	II		12-101
2005-5-15	5-17-05	Sale or manufacture of beer or wine near church, school or hospital	II		3-2
			III		3-3
			IV		3-4
			V		3-5
2005-6-7	6-13-05	Shopping carts	I	Added	14-13
2005-6-8	6-13-05	Maximum speed limits on specific streets	II		12-74(b)
2005-6-26	6-27-05	School zones	I		12-73(b)
2005-6-27	6-27-05	State requirements for solicitation in rights-of-way	I		11-143(e)
			II	Added	11-144(b)
2005-6-29	6-27-05	Adopting Supp. No. 69	I		p. xxvii
2005-7-4	7-25-05	Alcoholic beverages	II		3-6
2005-7-8	7-25-05	Adding sections 3-7 and 3-8 re: late hours for alcoholic beverages	II, III	Added	3-7, 3-8
2005-8-7	8- 8-05	School zone speed limits	I		12-73(d)
2005-8-10	8-22-05	Adopting Supp. No. 69, Rev., Supp. No. 70	I		p. xxix
2005-9-7	9-12-05	Stopping, standing or parking; County Place Drive	II		12-101
2005-9-24	9-26-05	City ambulance service	I		8-3
2005-10-6	10-10-05	Stopping, standing, parking—P Avenue	II		12-102(e)
2005-10-7	10-10-05	Stopping, standing, parking—Guilder Drive	II		12-101
2005-10-8	10-10-05	Juvenile case manager fund	I	Added	13-9
2005-10-10	10-10-05	Adopting Supp. No. 71	I		p. xxxi
2005-10-34	10-24-05	Youth advisory commission	I		2-324
2005-10-35	10-24-05	Stopping, standing, parking—Floyd Drive	II		12-102(e)
2005-10-36	10-24-05	Stopping, standing, parking—Franc Drive	II		12-101
2005-11-11	11-14-05	Speed limit—Parkwood Boulevard	II		12-74(b)
2005-11-14	11-14-05	Temporary signs	I	Added	ch. 6, art. XII, 6-486—6-499
2005-11-25	11-28-05	Registration and inspection of multi-family dwelling complexes	I	Added	ch. 6, art. III, div. 3, 6-60—6-80
2005-11-26	11-28-05	Adopting Supp. No. 72	I		p. xxxiii
2005-12-17	12-20-05	Commercial container rates	I		18-34
2006-1-8	1- 9-06	Former employees appearing before council	I	Added	2-107(d)
2006-1-22	1-23-06	Amphitheater alcoholic beverage permit/fires in parks	I		15-1
			II		15-3(a)(1), (8)
			III		15-4(a)
2006-2-7	2-13-06	Fire Code amendments	I		8-17
2006-2-9	2-13-06	Adopts Supp. No. 72, Rev.			p. xxxv
2006-2-23	2-27-06	Alarm systems	I		11-221—11-229

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2006-3-6	3-16-06	Distribution of handbills in public rights-of-way	I		11-144(a)
2006-3-13	3-27-06	Stopping, standing, parking	II		12-102(e)
2006-3-14	3-27-06	Stopping, standing, parking	I		12-101
2006-4-5	4-10-06	Adopts Supp. No. 73			p. xxxvii
2006-4-15	4-24-06	Sewer charges; residential	I		21-135
2006-4-26	4-24-06	Municipal drainage utility system	I		21-2-(f)
2006-5-9	5- 8-06	Special events	I		11-300—11-302, 11-311—11-318, 11-331—11-351, 11-356—11-358, 11-361
2006-5-11	5- 8-06	Stopping, standing and parking prohibited on certain streets at all times	I, II		12-101
		Stopping, standing or parking during specified periods	III	Added	12-102.7
2006-5-23	5-22-06	Drought contingency plan	I	Rpld	21-53—21-60.1
			II	Added	21-53—21-60.3
2006-6-11	6-12-06	Parking of trucks, tractors, etc., in residential districts	I		12-114
		Parking of certain equipment in certain zoning districts	II		12-115
2006-6-12	6-12-06	Quiet zones	I	Added	12-258
2006-6-13	6-12-06	Adopts Supp. No. 74			p. xxxix
2006-6-29	6-26-06	Procedure for the addition or deletion of school zones	I		12-72.1
		Specific school zones	II		12-73
2006-6-33	6-26-06	Open house signs	I		6-486
			II	Added	6-492.1
2006-7-7	7-24-06	Prima facie speed limit—-Kathryn Lane between State Hwy. 121 and Custer Road	II		12-74(b)
2006-7-10	7-24-06	Residency restrictions for child predator offenders	II	Added	ch. 14, art. IX, § 14-123
2006-8-8	8-14-06	Prima facie speed limit—-Plano Parkway	II		12-74(b)
2006-8-9	8-14-06	Extending payment due date	I		12-263(e), (i)
2006-8-15	8-28-06	Requires sprinkler protection in combustible attics of buildings two or more stories in height	I		8-17
2006-8-16	8-28-06	Requires sprinkler protection in combustible attics of buildings two or more stories in height	I		6-37(8)
2006-9-3	9-11-06	Stopping, standing, parking—Prescott Drive	II		12-102(e)
2006-9-5	9-11-06	Stopping, standing, parking—Maumelle Drive	II		12-102(e)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2006-9-4	9-11-06	Prima facie speed limit—Ridgeview Drive	II		12-74(b)
2006-9-26	9-25-06	Operation and maintenance of all public and semi-public swimming pools within the city	I	Rpld	6-436—6-458
			II	Added	6-436—6-458
2006-9-27	9-25-06	Utility service charges	I		21-135
			II		21-136
			III		21-147
2006-9-31	9-25-06	Adopts Supp. No. 75			p. xli
2006-10-11	10- 9-06	Stopping, standing, parking—Gillespie Drive	II		12-102(e)
2006-10-14	10- 9-06	General rights-of-way use and construction	I	Added	19-72(b)(3)b.
2006-10-22	10-23-06	Stopping, standing, parking prohibited on certain streets at all times	II		12-101
2006-10-23	10-23-06	Solid waste collection rates	I		18-32—18-34
2006-11-13	11-13-06	Stopping, standing, parking prohibited on certain streets at all times	I—IV		12-101
2006-11-18	11-13-06	Drought contingency plan	I	Rpld	ch. 21, art. II, div. 4(tit.), 21-53—21-60.3
			II	Added	ch. 21, art. II, div. 4(tit.), 21-53—21-60.4
2006-12-9	12-11-06	Adopts Supp. No. 76			p. xliii
2007-1-5	1- 8-07	Stopping, standing, parking prohibited on certain streets at all times—Streamwood Lane	I		12-101
2007-1-6	1- 8-07	Corporation and association liability for criminal offenses	I		1-5
2007-1-19	1-22-07	Registration and inspection of multi-family dwelling complexes	I	Rpld	6-61, 6-63, 6-70—6-74
			II	Added	6-61, 6-63, 6-70—6-74
2007-2-9	2-12-07	Naming/renaming of city facilities	I	Rpld	15-24(10)
			II	Added	2-13
2007-2-12	2-26-07	Special events	I		11-301, 11-302, 11-314, 11-349
2007-3-6	3-20-07	Adopts Supp. No. 77			p. xlv
2007-3-7	3-20-07	Authority of police officers to enforce state laws	I	Added	17-2
2007-3-9	3-20-07	Adding member to self-sufficiency committee	I		2-301
2007-3-10	3-20-07	Drought contingency plan	I		21-60.1(j), (n)
2007-5-21	5-29-07	Adopts Supp. No. 78			p. xlvii
2007-4-6	4- 8-07	Smoking regulations	I	Rpld	ch. 14, art. IV 14-66—14-74

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			II	Added	ch. 14, art. IV 14-66—14-71
2007-4-20	4-23-07	Prima facie speed limit—Dominion Pkwy.	II		12-74(b)
2007-4-21	4-23-07	Increasing fees for water and sewer services	I		21-135
			II		21-136
			III		21-147
2007-6-10	6-11-07	Repealing International Relations Advisory Committee	I	Rpld	ch. 2, art. XI, 2-231—2-237
		Adding the Plano Global Advisory Committee	II	Added	ch. 2, art. XI, 2-231—2-235
2007-6-21	6-25-07	Designating quite zone—(BNSF RR Crossing)	I		12-258(c)(i)
			II	Added	12-258(c)(iv)
2007-7-6	7-23-07	Maximum speed limits	II, III		12-74(b)
2007-8-5	8-13-07	Delete a school zone, revise designated time of school zone operation	I, II		12-73(d)
2007-8-6	8-13-07	Changing names of service roads	IV		11-144(a)(5)a.
			V		11-144(a)(6)a.
			VI		11-144(a)(7)a.
			VII		11-144(a)(8)a.
			VIII		11-144(a)(9)a.
			IX		11-144(a)(10)a.
			X		12-12(b)
			XI		12-74(b)
			XII		12-74(b)
			XIII		12-74(b)
			XIV		12-74(b)
			XV		12-74(b)
			XVI		12-74(b)
			XVII		12-101
			XVIII		12-101
			XIX		12-101
			XX		12-101
			XXI		12-101
			XXII		12-101
2007-8-7	8-13-07	Solicitation in selected public rights-of-way	I		11-144(b)
				Added	11-144(c)—(f)
2007-8-8	8-13-07	Technology commission	I	Rpld	ch. 2, art. XXI, 2-360—2-368
2007-8-9	8-13-07	Competitive bid laws	I		2-12(c)(1), (3) 2-12(d)
2007-8-25	8-27-07	Automated traffic signal enforcement	I		ch. 12, art. X, 12-260—12-269
2007-9-5	9-10-07	Adopts Supp. No. 79			p. xlix
2007-9-13	9-14-07	City parks—Prohibited activities, permit or facility use agreement	II		15-3, 15-4
2007-9-24	9-24-07	Maximum speed limits	II		12-74(b)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2007-9-25	9-24-07	School zone	I, II		12-73(d)
2007-9-30	9-24-07	Flags and flagpoles	I	Added	ch. 6, art. XII, div. 6, 6-500—6-502
2007-10-14	10- 8-07	Private wells	I	Rpld	21-36—21-46
			II	Added	21-36—21-46.1
2007-10-23	10- 8-07	Historic landmark preservation	I	Rpld	ch. 16, art. VI, 16-101—16-121
			II	Added	ch. 16, art. VI, 16-101—16-120
2007-10-33	10-22-07	Solid waste collection charges	I	Rpld	18-34
			II	Added	18-34
2007-11-9	11-12-07	Plumbing Code—Water service pipe; water distribution pipe	I		6-239
2007-11-10	11-12-07	Residential Code—Water service, supply and distribution piping	I		6-710(18)
2007-11-11	11-12-07	Abandoned and junked vehicles	I		12-226
			II		12-227 12-229 12-232
2007-12-3	12-10-07	Prima facie speed—Dominion Parkway	II		12-74(b)
2007-12-4	12-10-07	Robbery alarms, emergency assistance/personal distress alarm	I		11-228
2007-12-5	12-10-07	Adopts Supp. No. 80			p. li
2008-1-9	1-14-08	Service charges—Rates for fire hydrant meters services and increase fee schedule for water and sewer services	I		21-133(e)
			II		21-135
			III		21-136
			IV		21-147
2008-2-11	2-11-08	Building permits for capital improvements on preliminary plats	I		21-205
2008-3-8	3-25-08	Designated times of operation of school zone—Alma Drive	I		12-73(d)
2008-3-9	3-25-08	Stopping, standing and parking—Fulgham Road	II		12-101

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2008-3-10	3-25-08	Parks and recreation—New reporting requirements; revised allocation of athletic facilities; changed procedures relative to tournaments and meets; revised allocation of practice sessions; new restrictions on casual scheduling; revised insurance requirements; and use of lighting at athletic facilities	I		15-54
					15-56 15-59 15-60 15-63 15-65 15-66
2008-2-22	2-25-08	Adopts Supp. No. 81			p. liii
2008-4-8	4-14-08	Stopping, standing and parking—Thunderbird Lane	I		12-101
2008-4-10	4-14-08	Exemptions and exceptions	II		6-468
2008-4-12	4-14-08	No parking in public lots adjacent to library buildings during specific periods	I	Added	12-104.2
2008-4-35	4-28-08	Building Code	I	Rpld	ch. 6, art. II, 6-16, 6-17, 6-37
			II	Added	ch. 6, art. II, 6-16, 6-17, 6-37
2008-4-36	4-28-06	Fuel Gas Code	I	Rpld	ch. 6, art. XIX, 6-696—6-698
			II	Added	ch. 6, art. XIX, 6-696—6-698
2008-4-37	4-28-08	Mechanical Code	I	Rpld	ch. 6, art. VIII, div. 3, 6-251—6-254
			II	Added	ch. 6, art. VIII, div. 3, 6-251—6-254
2008-4-38	4-28-08	Plumbing Code	I	Rpld	ch. 6, art. VIII, div. 2, 6-236—6-239
2008-4-39	4-28-08	Residential Code	I	Rpld	ch. 6, art. XX, 6-708—6-710
			II	Added	ch. 6, art. XX, 6-708—6-710
			II	Added	ch. 6, art. VIII, div. 2, 6-236—6-239
2008-5-6	5-12-08	Designated times of operation of school zone—Alma Drive	I		12-73(d)
2008-5-23	5-27-08	International Fire Code	I	Rpld	ch. 8, art. II, 8-16—8-19
			II	Added	ch. 8, art. II, 8-16—8-19

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2008-6-6	6- 9-08	Adopts Supp. No. 82			p. lv
2008-6-16	6-23-08	Amending Residential Code	I		6-710
2008-7-10	7-28-08	Waste hauling	I	Rpld	ch. 21, art. VIII, divs. 1—4
			II	Added	ch. 21, art. VIII, divs. 1—4
2008-7-13	7-28-08	Maximum speed limits	II		12-74(b)
2008-7-14	7-28-08	Designated times of operation of school zone—Preston Meadow Drive	I		12-73(d)
2008-7-15	7-28-08	Stopping, standing and parking	II		12-101
2008-8-12	8-25-08	Fees for zoning, rezoning, and other miscellaneous fees	I	Added	16-19(30)
2008-8-15	8-25-08	Historic structures	I	Rpld	ch. 20, art. II, div. 3, §§ 20-51—20-57
			II	Added	ch. 20, art. II, div. 3, §§ 20-51—20-59
2008-9-5	9- 8-08	Electrical Code	I	Rpld	ch. 6, art. IX, divs. 1—6
			II	Added	ch. 6, art. IX, divs. 1—6
2008-9-9	9- 8-08	Stopping, standing and parking	II		12-101
2008-9-10	9- 8-08	Meetings	I		15-23
			II		10-18
			III		2-244
2008-9-14	9- 8-08	Keep Plano Beautiful Commission	I	Rpld	ch. 16, art. IX, §§ 16-206—16-213
		Plano Global Advisory Commission	II	Rpld	ch. 2, art. XI, §§ 2-231—2-235
		Transportation Advisory Committee	III	Rpld	ch. 2, art. IX, §§ 2-201—2-208
		Plano Transition and Revitalization Commission	IV	Rpld	ch. 2, art. XXII, §§ 2-375—2-382
2008-9-32	9-22-08	Alarm systems			11-222(d)(1)
2008-9-33	9-22-08	City ambulance service	I		8-3
2008-9-34	9-22-08	Rates applicable to residential and non-franchise commercial customers	I		18-31
		Collection within city limits			18-32
		Construction and demolition (C&D) debris recycling deposit and refund		Added	18-35
2008-9-35	9-22-08	Solid Waste	I	Rpld	ch. 18, art. I, §§ 18-1—18-24
			II	Added	ch. 18, art. I, §§ 18-1—18-24
2008-10-7	10-13-08	Adopts Supp. No. 83			p. lvii

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2008-10-20	10-27-08	Residential solid waste containers	I		18-6(l)
2008-11-14	11-10-08	Industrial wastewater pretreatment	I		21-301
			II		21-303(a)(2)
					21-317(c)
					21-323(a)
			III		21-307(c)
			IV	Added	21-307.1
2008-11-15	11-10-08	Issuance of an operating health permits	II		6-454(a)
		Fee and display of permit	III		21-363(a)
2008-11-16	11-10-08	Food Code	I	Rpld	ch. 9, arts. I—XI
				Added	ch. 9, arts. I—XI
2008-11-17	11-10-08	Obstruction of streets, alleys, sidewalks, parkway areas, or public grounds	I		19-1(a)
2008-11-18	11-10-08	Valet parking	I	Added	19-2
2008-11-26	11-24-08	Stopping, standing and parking	II		12-101
2008-11-27	11-24-08	Streets prohibited to certain vehicles	I, II		12-137(a)(1)
2008-11-28	11-24-08	Commercial container rates	I, II		18-34
2008-12-3	12- 8-08	Amending Property Maintenance Code	II		6-61
			III		6-63(a)
			IV		6-70(a)
2008-12-4	12- 8-08	Adopts irrigation systems regulations	I	Added	ch. 6, art. XIII, §§ 6-561—6-574
2008-12-6	12- 8-08	Board of adjustment	I	Added	ch. 16, art. V, §§ 16-81—16-83
2008-12-14	12-22-08	Stopping, standing or parking of certain larger vehicles	I	Added	12-114.1
2008-12-15	12-22-08	Adopts Supp. No. 84			p. lix
2009-1-9	1-26-09	Refunds	I	Rpld	21-215(d)
2009-1-10	1-26-09	Hotel occupancy tax	I		Ch. 20, Art. III, §§ 20-71—20-80
2009-1-11	1-26-09	Charitable organization exemption	I	Added	20-19
2009-2-10	2-17-09	Irrigation systems	I		6-564(a), (g)
					6-568(j)
2009-2-12	2-17-09	Maximum spped limits	II, III		12-74(b)
2009-2-13	2-17-09	Animal regulations	I	Rpld	Ch. 4, §§ 4-1—4-27
				Added	Ch. 4, Arts. I—XI
2009-2-15	2-17-09	Sewer charges—Residential	I		21-135
		Sewer charges—Non-residential	II		21-136
		Water charges	III		21-147
2009-2-23	2-23-09	Juvenile case manager fee	I		13-9(b)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2009-3-7	3- 9-09	Metal recycling entities	I	Added	Ch. 11, Art. XI, §§ 11-369—11-384
2009-4-8	4-14-09	Definitions	I		4-1
		Private animal sales		Added	4-130
		Hearing			4-153
		Appeal			4-157
2009-4-9	4-14-09	Parades	I	Rpld	ch. 19, art. VI, §§ 19-111—19-123
2009-4-10	4-14-09	Display of identification for commercial solicitation	I		11-146
2009-4-11	4-14-09	No parking in public lots in the downtown area at any time adjacent to a curb that is painted yellow and designated "No Parking"	I	Added	12-104.6
2009-4-12	4-14-09	Adopts Supp. No. 85			p. lxi
2009-4-17	4-27-09	Amending Residential Code	I		6-710
2009-4-18	4-27-09	Youth Advisory Commission	I	Rpld	ch. 2, art. XVIII, §§ 2-321—2-328
2009-4-19	4-27-09	Maximum speed limits—Specific zones	I		12-73(a)
2009-4-20	4-27-09	Flood damage prevention	I	Rpld	ch. 16, art. VIII, divs. 1, 2
			II	Added	ch. 16, art. VIII, divs. 1—3
2009-4-21	4-27-09	Rollers skates and similar devices prohibited within certain areas; exceptions	I		14-7
2009-4-22	4-27-09	Parks and recreation regulations	I		15-3(3)
					15-4(a)(1), (6)
					15-56(a)
					15-57(b)(2), (3)
					15-61(b)(3), (4)
					15-63
					15-83
					15-85
					15-89
					15-118(c)
					15-119
2009-5-7	5-11-09	Consumption of alcoholic beverages in certain public places	I		3-6
2009-5-9	5-11-09	Parking prohibited on certain streets at all times	I, II		12-101
2009-5-10	5-11-09	Stopping, standing or parking of certain larger vehicles	II, III		12-114.1
2009-5-16	5-11-09	Banners	I		6-488
2009-6-10	6- 8-09	Street design standards	I, II		19-21
2009-6-13	6-22-09	Maximum speed limits-Specific zones	I		12-73(d)
2009-6-14	6-22-09	Adopts Supp. No. 86			p. lxiii
2009-7-11	7-27-09	Solid waste definitions	I		18-2
		Downtown collection accommodation and rates	II	Added	18-25

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2009-7-12	7-27-09	Stopping, standing, and parking—Buckboard Drive and Windmill Lane	II		12-101
2009-8-6	8-10-09	Maximum speed limits	I, II		12-74(b)
2009-8-20	8-24-09	Stopping, standing, or parking prohibited in specified places	I		12-100
2009-8-22	8-24-09	Maximum speed limits—Specific zones	I, II		12-73(d)
2009-8-23	8-24-09	Impact fee advisory committee	I	Rpld	Ch. 2, Art. X, §§ 2-216—2-220
		Impact fees	II	Rpld	Ch. 21, Art. VI, Divs. 1—4
2009-9-9	9-14-09	Water charges	I		21-147
2009-9-10	9-14-09	Stopping, standing and parking—Exchange Drive and Ozark Drive	II, III		12-101
2009-9-12	9-14-09	Design and construction rules and regulations adopted	II		19-21
2009-9-25	9-28-09	Board of adjustment	I		16-81
2009-9-27	9-28-09	Adopts Supp. No. 87			p. lxv
2009-10-7	10-12-09	Maximum speed limits	II		12-74(b)
2009-10-8	10-12-09	Cross connection control program	I	Rpld	Ch. 21, Art. II, Div. 1.5, §§ 21-22—21-35
			II	Added	Ch. 21, Art. II, Div. 1.5, §§ 21-22—21-35.3
2009-10-18	10-26-09	Drought contingency plan	I	Rpld	Ch. 21, Art. II, Div. 4, §§ 21-53—21-60.4
			II	Added	Ch. 21, Art. II, Div. 4, §§ 21-53—21-60.2
2009-10-19	10-26-09	Graffiti	I	Rpld	Ch. 11, Art. II, Div. 5, §§ 11-95—11-100
				Added	Ch. 11, Art. II, Div. 5, §§ 11-95—11-100.3
2009-10-21	10-26-09	Maximum speed limits	II—IV		12-74(b)
2009-11-7	11- 9-09	Building standards commission organization and authority	I	Added	6-3(c)(1)f.
			II	Added	6-3(c)(2)i.
			III		6-3(c)(3)a.2.
2009-12-8	12-14-09	Adopts Supp. No. 88			p. lvxii
2010-1-15	1-25-10	Stopping, standing or parking prohibited on certain streets on school days during certain hours	III, IV		12-102(e)
			V	Added	12-102(f)
2010-2-15	2-22-10	Fees for zoning, rezoning and other miscellaneous fees	I, II		16-19
2010-2-16	2-22-10	Amendments to International Property Maintenance Code	I		6-52
		Weeds, rubbish or unsanitary matter	II		14-3(a)
			III		14-3(e)—(i)
2010-3-5	3-8-10	Adopts Supp. No. 89			p. lxix

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2010-3-14	3-22-10	Health and cleanliness standards for food establishment employees	I		9-22(c)
					9-31, 9-32
2010-3-15	3-22-10	Additional regulations for tattoo and certain body piercing studios	I		14-114(a)
					14-116, 14-117
					14-120
2010-3-18	3-22-10	Parking in public lots in the downtown area	I		12-104.5
2010-3-19	3-22-10	Library advisory board membership	I		10-16
2010-6-8	6-14-10	Adopts Supp. Nos. 90 and 90, Addition			p. lxxi
2010-6-20	6-28-10	Utility deposits generally	I		21-152
		Utility services fee	II		21-154
2010-6-21	6-28-10	Emergency management director and coordinator responsibilities	I	Rpld	2-137
		Operation of warning devices		Rpld	2-139
2010-7-9	7-26-10	Downtown collection accommodation and rates	I		18-25
2010-7-11	7-26-10	Parking in public lots in the downtown area	I		12-104.5
2010-7-17	7-26-10	Drug paraphernalia	I	Rpld	14-6
		Illegal smoking products and ingestion devices	II	Added	Ch. 14, Art. X, §§ 14-124—14-126
2010-8-6	8- 9-10	School zone speed limits	I, II		12-73(d)
2010-8-17	8-23-10	Lawsuits and risk management	I		2-9
2010-8-18	8-23-10	Intent to commit prostitution in a public place	I	Added	14-14
2010-8-20	8-23-10	Maximum speed limits	II—IV		12-74(b)
2010-8-21	8-23-10	General penalty; continuing violations	I		1-4
2010-9-5	9-13-10	Water charges	I		21-147
2010-9-6	9-13-10	Quiet zones	I		12-258(a)
			II		12-258(c)(i)
2010-10-13	10-11-10	Official logo	I		2-1
2010-10-14	10-11-10	Police protection	I		11-349
2010-10-18	10-25-10	Water charges	I, II		21-147(1)b.3., (3)
2010-11-14	11-22-10	Commercial container rates	II		18-34
2011-1-4	1-10-11	Adopts Supp. No. 92			p. lxxv
2011-1-5	1-10-11	Quiet zones	I		12-258(c)(i)
2011-1-7	1-10-11	Building Code	I	Rpld	Ch. 6, Art. II, Divs. 1, 2
			II	Added	Ch. 6, Art. II, Divs. 1, 2
2011-1-8	1-10-11	Plumbing Code	I	Rpld	Ch. 6, Art. VIII, Div. 2, §§ 6-236—6-239
			II	Added	Ch. 6, Art. VIII, Div. 2, §§ 6-236—6-239

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2011-1-9	1-10-11	Mechanical Code	I	Rpld	Ch. 6, Art. VIII, Div. 3, §§ 6-251—6-254
			II	Added	Ch. 6, Art. VIII, Div. 3, §§ 6-251—6-254
2011-1-10	1-10-11	Fuel Gas Code	I	Rpld	Ch. 6, Art. XIX, Divs. 1, 2
			II	Added	Ch. 6, Art. XIX, Divs. 1, 2
2011-1-11	1-10-11	Energy Conservation Code	I	Rpld	Ch. 6, Art. XVIII, Divs. 1, 2
			II	Added	Ch. 6, Art. XVIII, Divs. 1, 2
2011-1-12	1-10-11	Electrical Code	I	Rpld	Ch. 6, Art. IX, Divs. 1—6
			II	Added	Ch. 6, Art. IX, Divs. 1—6
2011-1-13	1-10-11	Residential Code	I	Rpld	Ch. 6, Art. XX, Divs. 1, 2
			II	Added	Ch. 6, Art. XX, Divs. 1, 2
2011-1-14	1-10-11	Building standards commission	I		6-3(b)(4)
		Amendments to Ch. 3 of International Property Maintenance Code			6-52
2011-1-24	1-14-11	Fire Code	I	Rpld	Ch. 8, Art. II, §§ 8-16—8-19
			II	Added	Ch. 8, Art. II, §§ 8-16—8-18
2011-1-26	1-24-11	School zone speed limits	I, II		12-73(d)
2011-1-27	1-24-11	Maximum speed limits	II, III		12-74(b)
2011-1-28	1-24-11	Maximum speed limits	II, III		12-74(b)
2011-2-4	2-14-11	Two-hour parking	II, III		12-103
		Twenty-minute parking	IV	Added	12-103.1
2011-2-7	2-28-11	Prohibited activities	I		15-3(a)(2)
		Athletic activities			15-56, 15-57
					15-59—15-61
					15-65
2011-2-9	2-28-11	Attendance at council meetings; right to participate in discussion	I		2-25
2011-3-3	3- 9-11	Building Code amendments	II		6-37
2011-3-18	3-28-11	Adopts Supp. No. 93			p. lxxvii
2011-3-19	3-28-11	Duties and responsibilities of board and commission review committee	I		2-313
2011-4-3	4-11-11	School zone speed limits	I		12-73(d)
2011-4-4	4-11-11	Cable television franchise	I	Rpld	App. B, §§ 1—35
2011-4-12	4-25-11	Maximum speed limits	II		12-74(b)
2011-4-15	4-25-11	Fire Code	I	Rpld	Ch. 8, Art. II, §§ 8-16—8-18

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			II	Added	Ch. 8, Art. II, §§ 8-16—8-18
2011-4-16	4-25-11	Registration required for multi-family dwelling complexes	I		6-70
2011-5-16	5-23-11	Heliports; helistops	I	Rpld	Ch. 5, Art. II, §§ 5-16—5-32
2011-6-19	6-27-11	Alcoholic beverages in districts zoned residential	I		3-3
2011-7-5	7-25-11	Maximum speed limits	II, III		12-74(b)
2011-7-6	7-25-11	One-way streets at all times	I		12-12(b)
2011-8-4	8- 8-11	School zone speed limits	I, II		12-73(d)
2011-8-13	8-22-11	Stopping, standing and parking	II, III		12-101
2011-8-15	8-22-11	Drought contingency plan	II		21-59.4(c)(2)
			III		21-59.6(c)(2)
2011-9-5	9-12-11	Procurement code	I		2-12
2011-9-6	9-12-11	Illegal smoking products and ingestion devices—Definitions	I		14-124
2011-9-7	9-12-11	Adopts Supp. No. 94			p. lxxix
2011-9-26	9-26-11	Prohibited signs	II		6-487(14)
		Special event signage			6-496
2011-9-27	9-26-11	Commercial container rates	II		18-34
2011-9-28	9-26-11	Junked vehicles—Definitions	I		12-226
2011-9-34	9-26-11	Adopts Supp. No. 95			p. lxxxi
2011-10-7	10-10-11	City ambulance service	I		8-3
2011-10-14	10-24-11	Special events—Filing period	I		11-313
2011-11-8	11-14-11	Downtown collection accommodation and rates	I	Rpld	18-25
			II	Added	18-36
2011-11-9	11-14-11	Procurement code	I		2-12(d)
2011-12-2	12-12-11	Cross connection control program	I	Rpld	Ch. 21, Art. II, Div. 1.5, §§ 21-22—21-35.3
			II	Added	Ch. 21, Art. II, Div. 1.5, §§ 21-22—21-35.1
2011-12-3	12-12-11	Maximum speed limits	II, III		12-74(b)
2011-12-4	12-12-11	School zone speed limits	I, II		12-73(d)
2011-12-5	12-12-11	Adopts Supp. No. 96			p. lxxxiii
2011-12-6	12-12-11	Outdoor toilet facilities	I	Added	Ch. 6, Art. XXI, §§ 6-711—6-715
2011-12-13	12-20-11	Alcoholic beverages—Permit required; fees	I		3-4
		Late hours permit; fees	II		3-8
2012-2-6	2-13-12	Vulnerable road users	I	Added	Ch. 14, Art. XI, §§ 14-127—14-129
2012-2-8	2-13-12	Adopts Supp. No. 97			p. lxxxv
2012-2-16	2-27-12	Stopping, standing and parking	II		12-101
2012-3-14	3-26-12	Parking in public lots in the downtown area	I		12-104.5(a)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2012-3-18	3-26-12	Municipal court	I	Rpld	Ch. 13, §§ 13-1—13-9
				Added	Ch. 13, §§ 13-1—13-16
2012-4-6	4- 9-12	Maximum speed limits	II, III		12-74(b)
2012-4-7	4- 9-12	Stopping, standing and parking	II		12-101
2012-4-10	4- 9-12	Adopts Supp. No. 98			p. lxxxvii
2012-4-13	4-23-12	Drought and emergency response plan	I		Ch. 21, Art. II, Div. 4, §§ 21-53—21-60.2
2012-5-14	5-29-12	Temporary signs	II		6-486
			III		6-493(b)
			IV	Added	6-493.1
2012-5-17	5-29-12	Adopts Supp. No. 99			p. lxxxix
2012-6-4	6-11-12	Library advisory board—Officers	I		10-17
		Parks and recreation planning board—Officers	II		15-22
		Senior citizens advisory board—Officers	III		2-243
2012-6-5	6-11-12	Liaison to multi-ethnic committee	I	Rpld	2-162
2012-6-15	6-25-12	Loading and unloading in the downtown area	I, II		12-112.5(a)
2012-6-18	6-25-12	Cultural affairs commission	I		2-251
					2-253
					2-257
2012-6-19	6-25-12	Heritage commission—Functions	I	Added	16-108(i)
2012-6-20	6-25-12	Voting privileges; conflict of interest	I		2-161
2012-7-11	7-23-12	Maximum speed limits	II, III		12-74(b)
2012-7-12	7-23-12	Maximum speed limits	II		12-74(b)
2012-7-13	7-23-12	Removal of board, commission, and committee members	I	Added	2-3
2012-8-7	8-13-12	School zone speed limits	I, II		12-73(d)
2012-8-14	8-27-12	Maximum speed limits	II, III		12-74(b)
2012-9-7	9-10-12	Adopts Supp. No. 100			p. xci
2012-9-27	9-24-12	Commercial container rates	II		18-34
2012-10-13	10-22-12	Pro rata billing for utility service	I	Added	18-32(c)
			II	Added	21-131(f)
2012-10-14	10-22-12	Utilities—Billing and payment	I		21-131(e)
		Utility service fee	II		21-154(a)
			III	Added	21-154(f)
2012-10-15	10-22-12	Water charges	I		21-147
2012-10-16	10-22-12	Utility deposits generally	I		21-152(b)(1)
2012-10-19	10-22-12	Adopts Supp. No. 101			p. xciii
2012-11-19	11-26-12	Search and rescue training in public places	I	Added	Ch. 4, Art. XII, §§ 4-206, 4-207
			II, III		4-1
			IV		4-51(d)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			V		4-153(d)(1)
			VI		15-4(a)(6)
2012-12-12	12-18-12	Amendments to International Property Maintenance Code	I		6-45
			II		6-50
2012-12-13	12-18-12	Comprehensive emergency management plan	I		2-136
		Violation of a rule, offense, or order adopted under the comprehensive emergency management plan		Rpld	2-141
				Added	2-141
2012-12-16	12-18-12	Food Code	I	Rpld	Ch. 9, Arts. I—XI
				Added	Ch. 9, Arts. I—XII
2013-1-4	1-14-13	Water charges	I		21-147
2013-3-6	3-25-13	Stopping, standing and parking	II		12-101
2013-3-8	3-25-13	Adopts Supp. No. 102			p. xcv
2013-3-9	3-25-13	Municipal drainage utility system—Established	I		21-1
		Same—Charges	II		21-2
2013-4-12	4-22-13	Official logo and brand	I		2-1
2013-5-21	5-28-13	Adopts Supp. No. 103			p. xcvii
2013-6-4	6-10-13	Identification of borrowers; overdue materials	I		10-3
2013-6-12	6-24-13	Stopping, standing and parking	II		12-101
2013-8-6	8-12-13	Parks and recreation regulations	I		15-1
					15-3—15-5
					15-24
					15-51
					15-85
					15-91
					15-122
2013-8-7	8-12-13	Building standards commission organization and authority	I		6-3(a), (b)
		Board of adjustment	II		16-81
			III	Rpld	16-82
			IV	Rnbd	16-83
				as	16-82
2013-9-6	9- 9-13	School zone speed limits	I, II		12-73(d)
2013-9-7	9- 9-13	Municipal drainage utility system—Charges	I		21-2(f)
2013-9-28	9-23-13	Commercial container rates	II		18-34
2013-9-29	9-23-13	City ambulance service	I		8-3
2013-10-6	10-14-13	Official logo and brand	I		2-1(e)
2013-10-13	10-14-13	Sexually oriented businesses	I	Rpld	Ch. 17.5, §§ 17.5-1—17.5-24
				Added	Ch. 17.5, §§ 17.5-1—17.5-22
2013-10-15	10-14-13	Prohibited signs	I		6-487(7)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
		Political signs/noncommercial purpose signs	II		6-491
		Electioneering at polling locations	III	Added	Ch. 14, Art. XII, §§ 14-130—14-132
2013-10-18	10-28-13	One-way streets at all times	I		12-12(b)
2013-10-19	10-28-13	Stopping, standing and parking	I		12-101
2013-10-20	10-28-13	Stopping, standing and parking	II		12-101
2013-10-21	10-28-13	Environmental assessments	I	Rpld	14-109
2013-10-22	10-28-13	Fire Code	I	Rpld	Ch. 8, Art. II, §§ 8-16—8-18
			II	Added	Ch. 8, Art. II, §§ 8-16—8-18
2013-10-23	10-28-13	Fire inspection program	I	Added	Ch. 8, Art. III, § 8-19
2013-10-24	10-28-13	Building Code	I	Rpld	Ch. 6, Art. II, Divs. 1, 2
			II	Added	Ch. 6, Art. II, Divs. 1, 2
2013-10-25	10-28-13	Residential Code	I	Rpld	Ch. 6, Art. XX, Divs. 1, 2
			II	Added	Ch. 6, Art. XX, Divs. 1, 2
2013-10-26	10-28-13	Plumbing Code	I	Rpld	Ch. 6, Art. VIII, Div. 2, §§ 6-236—6-239
			II	Added	Ch. 6, Art. VIII, Div. 2, §§ 6-236—6-239
2013-10-28	10-28-13	Fuel Gas Code	I	Rpld	Ch. 6, Art. XIX, Divs. 1, 2
			II	Added	Ch. 6, Art. XIX, Divs. 1, 2
2013-10-27	10-28-13	Mechanical Code	I	Rpld	Ch. 6, Art. VIII, Div. 3, §§ 6-251—6-254
2013-10-29	10-28-13	Energy Conservation Code	I	Rpld	Ch. 6, Art. XVIII, Divs. 1, 2
			II	Added	Ch. 6, Art. XVIII, Divs. 1, 2
2013-10-30	10-28-13	Property Maintenance Code	I	Rpld	Ch. 6, Art. III, Divs. 1, 2
			II	Added	Ch. 6, Art. III, Divs. 1, 2
2013-10-32	10-28-13	Water charges	I		21-247
2013-12-10	12-17-13	Variance for dogs on premises of a food establishment	I	Added	9-79
2014-1-5	1-13-14	Amendments to Energy Conservation Code	I		6-686
2014-1-6	1-13-14	Manufacturing, importing, selling, etc.—Unlawful in districts zoned residential	I		3-3
2014-1-19	1-27-14	Food Code regulations	I		9-2(11), (16)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
					9-82
					9-91, 9-92
					9-114
2014-1-21	1-27-14	Adopts Supp. No. 105			p. xcix
2014-2-10	2-24-14	Type of backflow prevention assembly required	I		21-26
2014-2-11	2-24-14	Prohibited signs	I		6-487(7)
		Political signs/noncommercial purpose signs	II		6-491
		Electioneering at polling places	III	Rpld	Ch. 14, Art. XII, §§ 14-130—14-132
2014-3-7	3-18-14	Board of adjustment	I	Rnbd	16-82
				as	16-83
			II	Added	16-82
2014-3-12	3-24-14	Adopts Supp. No. 106			p. ci
2014-4-12	4-28-14	Maximum speed limits	II, III		12-74(b)
2014-4-13	4-28-14	Drought and emergency response plan	I		Ch. 21, Art. II, Div. 4, §§ 21-53—21-60.2
2014-5-7	5-12-14	Peddlers, solicitors, itinerant vendors, carnivals, and job placement activities	I		Ch. 11, Art. IV (title)
			II		11-141
			III		11-156
2014-6-2	6- 9-14	Adopts Supp. No. 107	I		p. ciii
2014-7-4	7-28-14	Smoking regulations	I		14-66
			II		14-68
			III	Added	14-72
			IV, V		14-73, 14-74
2014-7-5	7-28-14	Parking in public lots in the downtown area	I		12-104.5(a)
2014-9-3	9- 8-14	Official logo and brand	I		2-1(e)
2014-9-4	9- 8-14	Municipal drainage utility system—Charges	I		21-2(f)
2014-9-19	9-22-14	Commercial container rates	II		18-34
2014-9-20	9-22-14	Municipal drainage utility system—Charges	I		21-2(f)
2014-10-7	10-13-14	Sewer charges	I		21-135
			II		21-136
			III		21-147
2014-10-17	10-27-14	Adopts Supp. No. 108			p. cv
2014-10-19	10-27-14	Sewer charges	II		21-135
			III		21-136
			IV		21-147
2014-10-20	10-27-14	Library fees	I		10-3
2014-11-4	11-10-14	Stopping, standing and parking	II		12-101
2014-11-13	11-24-14	Public parking downtown	I		12-104.5(a)
2014-11-14	11-24-14	School zones	I—III		12-73(d)
2014-11-15	11-24-14	Electrical code	II	Rpld	Ch. 6, Art. IX, §§ 6-271—6-345
				Added	Ch. 6, Art. IX, §§ 6-271—6-436
2014-12-7	12- 8-14	Equal rights policy	II		2-11

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2015-1-5	1-12-15	Adopts Supp. No. 109			p. cvii
2015-1-15	1-26-15	Public safety officers	I	Added	12-14
2015-3-8	3-17-15	Building code amendments	I		6-37
2015-3-13	3-23-15	Stopping, standing and parking	II		12-101
		Four-hour parking	III		12-104
2015-4-4	4-13-15	Adopts Supp. No. 110			p. cix
2015-5-11	5-26-15	Stopping, standing or parking prohibited on certain streets on school days during certain hours	I		12-102(f)
2015-5-13	5-26-15	Parking of trucks, tractors, etc., in residential districts	I		12-114(c)(1)
2015-6-5	6-22-15	Maximum speed limits	II		12-74(b)
2015-6-8	6-22-15	Adopts Supp. No. 111			p. cxi
2015-6-9	6-22-15	Library fees	I, II		10-3(c), (d)
2015-7-7	7-27-15	Neighborhood block parties	I		19-93
2015-8-10	8-24-15	Streets prohibited to certain vehicles	I		12-137(a)(1)
2015-9-15	9-28-15	Stopping, standing and parking	II		12-101
2015-9-17	9-28-15	Adopts Supp. No. 112			p. cxiii
2015-9-18	9-28-15	Self-sufficiency committee	I	Rpld	Ch. 2, Art. XVI, §§ 2-301—2-304
2015-10-6	10-12-15	Sewer and water charges	II, III		21-135, 21-136
			IV		21-147
2015-12-8	12-14-15	Procurement code	I		2-12(c)
2015-12-14	12-22-15	Adopts Supp. No. 113			p. cxv
2016-1-7	1-11-16	Mobile community healthcare program	I	Added	Ch. 8, Art. IV, § 8-20
2016-2-7	2-22-16	Prohibited and permitted parking activities	II		12-2
			III		12-114
			IV		12-115
			V	Rpld	12-131
				Rnbd	12-131.1
				as	12-131
2016-3-5	3-14-16	Fire Code	I	Rpld	Ch. 8, Art. II, §§ 8-16—8-18
			II	Added	Ch. 8, Art. II, §§ 8-16—8-18
2016-3-6	3-14-16	Existing Building Code	I	Added	Ch. 6, Art. XXII, §§ 6-716—6-719
2016-3-7	3-14-16	Energy Conservation Code	I	Rpld	Ch. 6, Art. XVIII, Divs. 1, 2
			II	Added	Ch. 6, Art. XVIII, Divs. 1, 2
2016-3-8	3-14-16	Fuel Gas Code	I	Rpld	Ch. 6, Art. XIX, Divs. 1, 2
2016-3-9	3-14-16	Mechanical Code	I	Rpld	Ch. 6, Art. VIII, Div. 3, §§ 6-251—6-254

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			II	Added	Ch. 6, Art. VIII, Div. 3, §§ 6-251—6-254
2016-3-10	3-14-16	Plumbing Code	I	Rpld	Ch. 6, Art. VIII, Div. 2, §§ 6-236—6-239
			II	Added	Ch. 6, Art. VIII, Div. 2, §§ 6-236—6-239
2016-3-11	3-14-16	Building Code	I	Rpld	Ch. 6, Art. II, Divs. 1, 2
			II	Added	Ch. 6, Art. II, Divs. 1, 2
2016-3-12	3-14-16	Residential Code	I	Rpld	Ch. 6, Art. XX, Divs. 1, 2
			II	Added	Ch. 6, Art. XX, Divs. 1, 2
2016-3-13	3-14-16	Alarm systems	I	Rpld	Ch. 11, Art. VI, §§ 11-221—11-229
			II	Added	Ch. 11, Art. VI, §§ 11-221—11-227
2016-3-14	3-14-16	Property Maintenance Code	I	Rpld	Ch. 6, Art. III, Divs. 1, 2
			II	Added	Ch. 6, Art. II, Div. 1
			III	Added	Ch. 6, Art. III, Div. 2
2016-4-5	4-11-16	Junked vehicles	II		12-226
			III		12-233
2016-4-8	4-11-16	School zones	I		12-73(d)
2016-4-9	4-11-16	Stopping, standing and parking	I		12-102(e)
2016-6-9	6-13-16	The correction of scrivener's errors	II		1-8
2016-6-10	6-13-16	Building regulations	II		6-61
			III		6-63
			IV		6-70
			V		6-73
		Weeds, rubbish or unsanitary matter	VI		14-3
		Demolition or removal of heritage properties	VII		16-116
2016-6-11	6-13-16	Removal of parking restriction	I		12-101
2016-6-25	6-28-16	Animals	I	Rpld	Ch. 4, Arts. I—XII
			II	Added	Ch. 4, Arts. I—XII
2016-6-27	6-28-16	Adopting Supp. Nos. 114 and 115			p. cxvii
2016-6-28	6-28-16	Evaporative cooling towers	I		21-137
2016-6-29	6-28-16	Jupiter Road maximum speed	II		12-74(b)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2016-7-5	7-25-16	Adopting Supp. No. 116			p. cxix
2016-7-6	7-25-16	School Zones	I		12-73(d)
2016-7-7	7-25-16	Officer and employee standards of conduct	I, II		2-98
2016-8-15	8-22-16	Prohibiting of use of roller skates etc. in certain areas	I, II		14-7
2016-8-16	8-22-16	Prohibiting of use of bicycles in certain areas	I, II		12-169
2016-9-9	9-12-16	Parking guidelines	II		12-102.6
2016-10-7	10-10-16	Commercial container weights relating to collection of solid waste	I, II		18-34
2016-10-8	10-10-16	Adopting Supp. No. 117			p. cxxi
2016-10-9	10-10-16	Carmel Drive school zone deleted	I		12-73(d)
2016-10-10	10-10-16	Rigsbee Drive's parking restriction information amended	II		12-101
2016-10-21	10-25-16	Solid waste collection	I		18-32
2016-10-22	10-25-16	Sewer charges	I, II		21-135, 21-136
2016-10-23	10-25-16	Adds a parking restriction on Park Meadow Lane	II		12-101
2016-11-8	11-28-16	Amends definition of downtown merchants	I		18-2
2017-1-6	1- 9-17	Parks and recreation	II		15-1
			III		15-3
			IV		15-4
			V	Added	15-10
			VI	Added	15-11
2017-1-10	1-23-17	Adopting Supp. No. 118			p. cxxiii
2017-1-14	1-23-17	Parking guidelines	I	Rpld	12-104, 12-104.1, 12-104.5
			II	Added	12-104, 12-104.1, 12-401.5
2017-2-2	2-13-17	Historic structures	I,II	Rpld	20-51—20-57
			I,II	Added	20-51—20-60
2017-2-4	2-13-17	Parking restrictions	I		12-101
2017-2-10	2-27-17	Building Code	I, II		6-176—6-177, 6-179—6-183, 6-185—6-189
				Rpld	6-184,
				Rpld	6-201—6-205
				Added	6-178,
				Added	6-201
2017-2-11	2-27-17	Building Code	II		6-50
			III		6-51
			IV		6-52
			V		6-53
2017-3-2	3-21-17	Parking guidelines	I		12-103
			II	Added	12-103.2, 12-103.3
2017-4-6	4-24-17	Adopts Supp. No. 119			p. cxvii

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2017-4-7	4-24-17	Adds a parking restriction on Dewberry Court	II		12-101
2017-5-3	5- 8-17	Flood damage prevention	II		16-161—16-179
2017-5-4	5- 8-17	Senior advisory board	III		Ch. 2, Art. XII, title
			IV		2-241
			V		2-242
2017-5-11	5-22-17	Loading and unloading in the downtown area	II		12-112.5
2017-6-10	6-28-17	Motor vehicle idling	I	Added	12-270
2017-6-11	6-28-17	Construction work etiquette	I		19-75(a)
2017-6-12	6-28-17	Officer and employee standards of conduct	I		2-98
2017-8-1	8-14-17	School zones	I		12-73(d)
2017-8-7	8-28-17	Adopting Supp. No. 120			p. cxxvii
2017-8-8	8-28-17	Right-of-way management regulation	I	Rpld	19-56—19-82
			II	Added	19-56—19-83
2017-9-5	9-11-17	Adds a parking restriction on Sparrows Point Dive	II		12-101
2017-10-1	10- 9-17	Adopting Supp. No. 121			p. cxxix
2017-10-3	10-23-17	Three-hour public parking downtown	I, II		12-104, 12-104.5
2017-10-4	10-23-17	Permit parking in Haggard Park lot	I, II		15-4
2017-10-5	10-23-17	Utility rates	I		21-135
			II		21-136
			III		21-147
2017-11-10	11-27-17	Sets the speed limit for Central Expressway	I		12-74(b)
2017-11-11	11-27-17	Updates the speed limit for Central Expressway	I		12-74(b)
2017-12-2	12-11-17	Noise		Rpld	14-85—14-88
				Added	14-85—14-91.2
2018-1-10	1-22-18	Adopting Supp. No. 122			p. cxxxi
2018-1-3	1- 8-18	Heritage resource preservation	I	Rpld	16-101—16-120
				Added	16-101—16-122
2018-2-6	2-26-18	Bike share permits	I	Added	12-172
		Obstruction of rights-of-way	II		19-1
		Solicitation permit	III		11-149
2018-4-5	4-23-18	Adopting Supp. No. 123			p. cxxxiii
2018-4-6	4-23-18	Food Code	I	Rpld	9-1, 9-2
					9-21—9-28
					9-31—9-34
					9-41—9-43
					9-51, 9-52
					9-61—9-67
					9-71—9-79
					9-81—9-84
					9-91, 9-92
					9-95
					9-101—9-104
					9-108—9-116

Ordinance Number	Adoption Date	Subject	Section		Section this Code
				Added	9-1—9-7
2018-6-4	6-12-18	Activities in park allowed with permit	II		15-4(a)(8)
2018-6-7	6-25-18	Adopting Supp. No. 124			p. cxxxv
2018-6-8	6-25-18	Park service areas	I		16-266(a)
2018-7-2	7-23-18	Stopping, standing, or parking	II		12-102(e)
			III		12-102(f)
2018-8-15	8-27-18	Weeds, refuse, unsanitary conditions	I		14-3
2018-8-3	8-13-18	School zones	II		12-73(d)
2018-8-4	8-13-18	School zones	I		12-73(d)
2018-8-5	8-13-18	Stopping, standing, or parking	II		12-102(e)
2018-9-6	9-10-18	Tattoo and body piercing studios, public swimming pools and spas	I		14-113
			II		14-116(e)
			III		6-453(a)
					6-454
					6-455(a), (d)
					6-456
					6-458(a)
2018-9-7	9-10-18	Motor vehicles and traffic	II		12-115
2018-9-8	9-10-18	Multi-family dwelling complexes	I		6-60—6-63,
					6-70—6-75,
					6-80
2018-9-16	9-24-18	Adopting Supp. No. 125			p. cxxxvii
2018-9-17	9-24-18	Library signs and service fees	I		10-3
2018-10- 2	10- 8-18	Waste hauling	I	Rpld	21-351
					21-361—21-366,
					21-381—21-384,
					21-391—21-393
		Liquid waste management		Added	21-351—21-353,
					21-361—21-363,
					21-381, 21-382,
					21-391—21-394
2018-10- 4	10- 8-18	Utility charges	I		21-135
			II		21-136
			III		21-147
2018-10-11	10-22-18	Stopping, standing, or parking	II		12-102(e)
			III		12-102(g)
2018-11- 1	11-12-18	Bike-share permits	I		12-172
		Obstructions in rights-of-way	II		19-1
2018-11- 2	11-12-18	Comprehensive emergency management plan	I		2-136
2018-11- 3	11-12-18	Fees	I		16-19

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2018-11-9	11-26-18	Building code	II		6-16, 6-17, 6-37
2018-11-10	11-26-18	Property maintenance code	III		6-45—6-47, 6-50—6-54
				Added	6-55
2018-11-11	11-26-18	Plumbing code	II		6-236—6-239
2018-11-12	11-26-18	Mechanical code	II		6-251—6-254
2018-11-13	11-26-18	Electrical code	II		6-271—6-275, 6-280—6-292, 6-301—6-304, 6-318—6-320, 6-327—6-342, 6-351—6-357
2018-11-14	11-26-18	Energy conservation code	II		6-684—6-686
2018-11-15	11-26-18	Fuel gas code	II		6-696—6-698
2018-11-16	11-26-18	Residential code	I		6-710
			II		6-708—6-710
2018-11-17	11-26-18	Existing building code	II		6-716—6-719
2018-11-18	11-26-18	Swimming pool and spa code	I	Added	6-720—6-722
2018-11-19	11-26-18	Fire code	II		8-16—8-18
2018-12-4	12-18-18	Adopting Supp. No. 126			p. cxxxix
2018-12-5	12-18-18	Right-of-way management regulations	I, II		19-56—19-83, Ch. 19, Art. IV, Exhs. 1—5
2019-1-3	1-14-19	Utility service fees	I		21-54
2019-2-4	2-11-19	Stopping, standing, and parking	II		12-102(c)
			III		12-102(e)
2019-3-7	3-19-19	Stopping, standing, and parking	II		12-101
			III		12-102(e)
2019-3-8	3-19-19	Stopping, standing, and parking	II		12-102(e)
2019-3-9	3-25-19	Adopting Supp. No. 127			p. cxli
2019-4-7	4-22-19	Drought and emergency response plan	I	Rpld	21-53—21-60.2
				Added	21-53—21-60.2
2019-4-8	4-22-19	Waste and fugitive water	I		21-51, 21-52
2019-4-10	4-22-19	Stopping, standing, and parking	II		12-101
2019-5-6	5-13-19	Stopping, standing, and parking	II		12-102(e)
2019-5-12	5-28-19	Swimming pools	I		Ch. 6, Art. X, Div. 2(tit.)
					6-453(tit.), (a)
					6-454(a), (b)
					6-455(d)
					6-458(a)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2019-5-13	5-28-19	Stopping, standing, and parking	II		12-102(e)
2019-6-5	6-24-19	Adopting Supp. No. 128			p. cxliii
2019-6-7	6-24-19	Parks and recreation fee	I		16-262—16-264
					16-266
					16-268—16-273
2019-7-4	7-22-19	Automated traffic signal enforcement	I	Rpld	12-260—12-269
2019-8-5	8-26-19	Heritage resource preservation	I	Rpld	16-101—16-122
			III	Added	16-101—16-122
2019-8-6	8-26-19	Taxation of historic structures	I	Rpld	20-51—20-60
			II	Added	20-51—20-65, Exh. A
2019-9-15	9-23-19	Adopting Supp. No. 129			p. cxlv
2019-9-16	9-23-19	Food code	I		9-1(b)
					9-2(b)(2), (c)(5)
				Added	9-2(a)(1)
2019-9-17	9-23-19	Registration and inspection of hotel/motel properties	I	Added	6-91—6-101
2019-9-18	9-23-19	Speed limits	I		12-74(b)
2019-10-1	10-14-19	Parks and recreation planning board members	II		15-21(a)
2019-10-3	10-14-19	Water charges	I		21-147
2019-10-4	10-14-19	School zones	I		12-73(d)
2019-10-5	10-14-19	School zones	I		12-73(d)
2019-11-1	11-11-19	Stopping, standing and parking	II		12-101
2019-11-10	11-25-19	Electric fences	I		6-180
2019-11-11	11-25-19	Parking guidelines	I		12-103.2
			II		12-104
				Rpld	12-104.1, 12-104.5
			III		12-112.5(a)
2019-11-14	11-25-19	Parks and recreation fees	I		16-264(b)
			II		16-266
2019-12-8	12-17-19	Adopting Supp. No. 130			p. cxlvii
2020-1-5	1-13-20	Stopping, standing and parking	II		12-102(e)
2020-2-2	2-10-20	City contracts	I		2-103
2020-2-11	2-24-20	School zones	I		12-73(d)
2020-2-12	2-24-20	Stopping, standing and parking	II		12-101
2020-3-5	3-30-20	Adopting Supp. No. 131			p. cxlix
2020-4-3	4-27-20	Sex offender residency regulations	II		14-123
2020-4-4	4-27-20	Graffiti		Rpld	11-95—11-100.3
			I	Added	14-15
2020-5-11	5-26-20	Public works specifications	I	Rpld	2-6
2020-5-14	5-26-20	Municipal drainage utility system	I		21-1, 21-2

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2020-6-3	6- 8-20	Special events	I	Rpld	11-300—11-302, 11-311—11-318, 11-331—11-345, 11-347—11-351, 11-356—11-359, 11-361
				Added	11-300—11-303, 11-307—11-314, 11-319—11-339, 11-343—11-346, 11-349, 11-352, 11-353, 11-356—11-359
2020-6-5	6- 8-20	Accomadations review board/reasonable accomodations	I	Rpld	6-3(c)(1)f., (c)(2)i.
				Added	9.5-45, 9.5-46, 9.5-50—9.5-55
			II		6-3(c)(3)a.2.
2020-6-8	6-22-20	Stopping, standing, and parking	II		12-101
2020-6-9	6-22-20	Speed limits	II		12-74(b)
2020-6-10	6-22-20	Adopting Supp. No. 132			p. cli
2020- 7- 3	7-27-20	Penalty for violating the fire code	I		8-16
			II, III		8-17
2020- 7- 4	7-27-20	Training requirements for elected and appointed officials	I		2-100
2020- 8- 6	8-24-20	General penalty	I		1-4
2020- 9-13	9-28-20	Adopting Supp. No. 133			p. cliii
2020-10- 2	10-12-20	City ambulance service	I		8-3
2020-10- 4	10-12-20	Sewer charges	I		21-135
			II		21-136
2020-10- 5	10-12-20	Waste collection and disposal rates	I		18-32
2020-10- 9	10-26-20	Stopping, standing and parking	II		12-101
2020-10-10	10-26-20	Community relations commission	I		2-156—2-161
2020-11- 7	11- 9-20	Municipal drainage utility system fees	I		21-2
2020-11- 9	11-23-20	Commercial container rates	II		18-34
2020-11-10	11-23-20	School zone speed limits	I		12-73(d)
2020-12- 1	12- 8-20	Recusal requirements for city council members	1	Added	2-109

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2020-12- 7	12-14-20	Adopting Supp. No. 134			p. clv
2021- 2-16	2-22-21	Stopping, standing and parking	II		12-101
2021- 2-17	2-22-21	Stopping, standing and parking	II		12-102(e)
2021- 3- 1	3-16-21	Flood damage prevention	I		16-160
					16-175
					16-176
2021- 3- 2	3-22-21	Adopting Supp. No. 135			p. clvii
2021- 4-10	4-26-21	Assessment of hazardous materials service fee	I		14-108
2021- 5- 5	5-10-21	Tattoo and body piercing studio regulations	I	Rpld	14-113—14-122
2021- 5-15	5-24-21	Stopping, standing and parking	II		12-101
2021- 6-13	6-28-21	Adopting Supp. No. 136			p. clix
2021- 6-14	6-28-21	Stopping, standing and parking	II		12-101
2021- 7- 3	7-26-21	Prohibited activities in a park facility	II		15-3
2021- 8- 2	8- 9-21	Heritage resource preservation	I		16-103
			II		16-105
			III		16-111
2021- 8- 3	8- 9-21	School zone speed limits	I		12-73(d)
2021- 8- 4	8- 9-21	Standards for officers and employees concerning politics	I		2-98(d)
2021- 8-12	8-23-21	Cultural arts commission	I		Ch. 2, Art. XIII
			II		2-251
			III		2-252
			IV		2-254
			V		2-256
2021- 8-13	8-23-21	Fence construction and maintenance	I		6-186
2021- 8-20	8-23-21	Authority of the city manager	I		2-9
			II		2-12
			III		2-27
2021- 9- 5	9-13-21	Abandoned and junked vehicles	I	Added	12-121
			II	Rpld	12-206—12-211,
					12-226—12-233
				Added	12-191—12-193,
					12-205—12-208
2021- 9-19	9-27-21	Adopting Supp. No. 137			p. clxi
2021- 9-20	9-27-21	Political and noncommercial signs	I		6-491(2)
2021- 9-21	9-27-21	Vegetation safety standards	I	Rpld	15-118
			II		15-119
			III		6-3(c)
2021- 9-22	9-27-21	Stopping, standing and parking	I		12-104

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2021- 9-23	9-27-21	Handbills, no trespassing signs, itinerant vendors, carnivals and job placement	I	Rpld	11-141—11-157
				Added	11-141—11-145
2021- 9-24	9-27-21	Animals	I	Rpld	4-1—4-5, 4-26—4-29, 4-51, 4-61—4-63, 4-81, 4-82, 4-91—4-94, 4-111, 4-121—4-131, 4-151—4-159, 4-181—4-185, 4-201—4-207
			II	Added	4-1—4-5, 4-26—4-29, 4-51, 4-61—4-63, 4-81, 4-82, 4-91—4-94, 4-111, 4-121—4-131, 4-151—4-159, 4-181—4-187, 4-201—4-207
2021- 9-30	9-27-21	Planning and development	I	Added	16-4
2021-10- 2	10-11-21	Sewer charges	I		21-135
			II		21-136
2021-11- 6	11-22-21	Outdoor lighting	I	Rpld	6-466—6-473
				Added	6-466—6-477
2021-11- 7	11-22-21	Commercial container rates	I	Rpld	18-34
			II	Added	18-34
2021-12- 5	12-13-21	Adopting Supp. No. 138			p. clxiii
2021-12- 6	12-13-21	Noise		Rpld	14-85—14-91.2
				Added	14-77—14-91
2022- 1- 4	1-10-22	Cross-connection control program	II		21-22—21-35.1
2022- 1-10	1-24-22	Building code	II		6-16, 6-17, 6-37
2022- 1-12	1-24-22	Plumbing code	II		6-236—6-239
2022- 1-13	1-24-22	Mechanical code	II		6-251—6-254
2022- 1-14	1-24-22	Electrical code	II		6-271—6-275, 6-280—6-292, 6-301—6-304, 6-318—6-320

Ordinance Number	Adoption Date	Subject	Section		Section this Code
					6-327—6-329
				Rpld	6-330
					6-332, 6-334
					6-336—6-342
					6-351—6-357
2022- 1-15	1-24-22	Energy conservation code	II		6-684—6-686
2022- 1-16	1-24-22	Fuel gas code	II		6-696—6-698
2022- 1-17	1-24-22	Residential code	I, II		6-708—6-710
2022- 1-18	1-24-22	Existing building code	II		6-716—6-719
2022- 1-19	1-24-22	Swimming pool and spa code	II		6-720—6-722
2022- 1-20	1-24-22	Fire code	II		8-16
			III		8-17, 8-18
2022- 2- 4	2-14-22	Stopping, standing and parking	II		12-101
2022- 2- 5	2-14-22	School zone speed limits	I		12-73(d)
2022- 2- 6	2-14-22	Stopping, standing and parking	II		12-101
			III		12-102
2022- 3- 5	3-28-22	Encroachment of public property	I		19-1
2022- 3- 6	3-28-22	Adopting Supp. No. 139			p. clxv
2021- 9- 5	9-13-21	Abandoned and junk vehicles	I	Added	12-121
			II	Rpld	12-206—12-211,
					12-226—12-233
				Added	12-191—12-193,
					12-205—12-208
2022- 5- 3	5- 9-22	Parks and recreation	I	Rpld	12-104.2
			II	Added	14-16
			III	Added	15-2.1
			IV	Rpld	15-3(a)(18)
			V	Rpld	15-4(a)(1)
2022- 5- 4	5- 9-22	Parking guidelines	I		12-104(a)
2022- 6- 5	6-13-22	Street closures for neighborhood events	I	Rpld	19-91—19-97
				Added	19-91—19-97
2022- 6-12	6-27-22	Pedestrian safety	I		12-2
			II	Added	12-31
2022- 6-13	6-27-22	School zones	I		12-73(d)
2022- 6-14	6-27-22	School zones	I		12-73(d)
2022- 7- 1	7-25-22	Adopting Supp. No. 140			p. clxvii
2022- 7- 4	7-25-22	Prohibit smoking in public parks	I		14-66
			II		14-67
			III		14-70
			IV		14-71(c)
			V		14-72(d)
			VI		14-73(b)
			VII		14-74(b)
			VIII		15-3(a)(4)

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2022- 7- 6	7-25-22	Weeds, refuse, unsanitary conditions and stagnant water	I		14-3
2022- 8- 1	8- 8-22	Board of adjustment alternate members	I		16-82
2022- 8-10	8-22-22	Building standards commission	I		6-3(a)
2022- 8-11	8-22-22	Community relations commission	I		2-156(a)
2022- 8-14	8-22-22	Historic structures	I	Rpld	20-51—20-65, Ch. 20, Exh. A
			II	Added	20-51—20-64, Ch. 20, Exh. A
2022- 9- 6	9-12-22	Library advisory board meetings	I		10-18
2022- 9-14	9-20-22	Comprehensive emergency management plan	I		2-136
2022-10- 3	10-10-22	Adopting Supp. No. 141			p. clxix
2022-10- 4	10-10-22	Sewer charges—residential	I		21-135
			II		21-136
			III		21-147
2022-10- 5	10-10-22	Solid waste collection charges within city limits	I		18-32
2022-10-11	10-24-22	Prohibited on certain streets at all times	II		12-101
2022-11- 3	11-14-22	Third party organization in Building Code	I, II		6-37
2022-11- 4	11-14-22	Third party organization in Residential Code	I, II		6-710
2022-11- 5	11-28-22	Solid waste commercial container rates	II		18-34
2022-11- 6	11-28-22	Prohibited on certain streets at all times	II		12-101
2022-12- 5	12-12-22	Adopting Supp. No. 142			p. clxxi
2023- 1-11	1-23-23	Prohibited on certain streets at all times	II		12-101
2023- 3- 3	3-13-23	Amendments or additions to Code	I		1-8
2023- 3- 6	3-21-23	Prohibited on certain streets at all times	II		12-101
2023- 4- 7	4-24-23	Adopting Supp. No. 143			p. clxxiii
2023- 4- 8	4-24-23	Three-hour parking	I		12-104
2023- 6- 3	6-12-23	Noise	I		14-85—14-91.8
2023- 6- 4	6-12-23	Extend no parking zone	II		12-101
2023- 6- 8	6-26-23	Effective times for school zones	I		12-73(d)
2023- 7- 4	7-24-23	Adopting Supp. No. 144			p. clxxv
2022-1-11	1-24-22	Property Maintenance Code	I, II		6-45—6-47, 6-50—6-55
2023- 7- 5	7-24-23	One-way streets on school days	I		12-13(c)
2023- 7- 6	7-24-23	School zones	I, II		12-73(d)
2023- 8-10	8-28-23	Juvenile curfew repealed	I	Rpld	14-46—14-50

Ordinance Number	Adoption Date	Subject	Section		Section this Code
2023- 8-18	8-28-23	Fees for zoning, rezoning and other miscellaneous fees	I		16-19
2023- 9- 4	9-11-23	Fire inspection program	I		8-19
2023- 9-16	9-11-23	Repeal references to Thoroughfare Standards Rules and Regulations	I	Rpld	6-131—6-137
			II	Rpld	19-21
			III		19-91
			IV		11-302(b)(3)
2023- 9-18	9-26-23	Noise	I		14-85—14-91.8
2023- 9-19	9-26-23	Sewer charges	I		21-135
			II		21-136
			III		21-147
2023- 9-20	9-26-23	Solid waste collection	I		18-32
2023- 9-21	9-26-23	No parking zones	II		12-101
2023- 9-22	9-26-23	No parking zones	II		12-101
2023- 9-23	9-26-23	No parking zones	II		12-101
2023- 9-24	9-26-23	No parking zones	II		12-101
2023- 9-25	9-26-23	Prima facie maximum speed limit	II		12-74(b)
2023-10- 1	10- 9-23	Adopting Supp. No. 145			p. clxxvii
2023- 8- 2	8-14-23	No parking zones	II		12-101
2023-11- 5	11-27-23	Commercial container rates	I	Rpld	18-34
			II	Added	18-34
2024- 1-11	1-22-24	Adopting Supp. No. 146			p. clxxix
2024- 3- 2	3-19-24	Miscellaneous fees	I		16-19
2024- 3- 3	3-19-24	No parking zones	II		12-101
2024- 4- 3	4- 8-24	Adopting Supp. No. 147			p. clxxxi
2024-4-4	4- 8-24	Three-hour parking	I		12-104(a)
2024-4-9	4-22-24	Drought and emergency response plan	I		21-53—21-60.2
2024-4-14	4-22-24	Registration of short-term rental properties	I	Added	6-730—6-749
2024-6-5	6-10-24	No parking zones	II		12-101
2024-7-2	7-22-24	Adopting Supp. No. 148			p. clxxxiii
2024-7-3	7-22-24	Pro rata water curtailment requirements	I	Added	21-59.7
			II	Added	21-60.3
2024-8-4	8-12-24	No parking zones	II		12-101
2024-8-5	8-12-24	School zones designated	I		12-73(d)
2024-8-11	8-26-24	Speed limits	II		12-74(b)
2024-9-12	9-23-24	Water and sewer charges	I		21-135
			II		21-136
			III		21-147
2024-9-13	9-23-24	Rates for collection and disposal wastes	I		18-32
2024-10-2	10-14-24	Adopting Supp. No. 149			p. clxxxv
2024-10-11	10-28-24	No parking zones	I		12-101
2024-10-12	10-28-24	No parking zones; one-hour parking; loading and unloading in downtown area	I, II		12-101
			III		12-103.2(b)
			IV		12-112.5(a)
2024-10-13	10-28-24	Establishing areas of special flood hazard	I		16-165

Ordinance Number	Adoption Date	Subject	Section		Section this Code
			II	Added	18-34
2024-11- 6	11-25-24	No parking zones	II		12-101
2024-12- 1	12- 9-24	School zones; no parking zones	I, II		12-73(d)
			III, IV		12-101
2024-12- 4	12-17-24	Possession, purchase, consumption or receipt of tobacco productions by minor prohibited	I	Rpld	14-73
2025- 1- 5	1-13-25	Adopting Supp. No. 150	I		p. clxxxvii
2025- 4- 8	4-28-25	Adopting Supp. No. 151	I		p. clxxxix
2025- 1-10	1-27-25	Regulation of sex offender residency	I		14-123
2025- 1-12	1-27-25	Regulations for political signs/noncommercial purpose signs at publicly owned active polling locations	I		6-491
2025- 3- 6	3-24-25	City ambulance service	I		8-3
2025- 3- 8	3-24-25	Establish no parking zones	II		12-102(e)
2025- 4- 2	4-14-25	Food Code	I		ch. 9
2025- 6- 2	6- 9-25	2024 International Fire Code	II		8-17
2025- 6- 3	6- 9-25	Weeds, refuse, unsanitary conditions and stagnant water	I		14-3
2025- 6- 4	6- 9-25	2024 Property Maintenance Code	II		6-45—6-47
					6-50—6-55
2025- 6- 5	6- 9-25	Buildings and building regulations	I		6-179(a)
			II		6-186
2025- 6- 6	6- 9-25	Graffiti	I		14-15
2025- 6- 7	6- 9-25	2024 International Plumbing Code	II		6-236—6-239
2025- 6- 8	6- 9-25	2024 International Mechanical Code	II		6-251—6-254
2025- 6- 9	6- 9-25	2024 International Fuel Gas Code	II		6-696—6-698
2025- 6-10	6- 9-25	2024 International Energy Conservation Code	II		6-684—6-686
2025- 6-11	6- 9-25	2024 International Existing Building Code			6-716—6-719
2025- 6-12	6- 9-25	2024 International Swimming Pool and Spa Code			6-720—6-722
2025- 6-13	6- 9-25	2023 National Electrical Code	II		6-271—6-275, 6-280—6-292, 6-301—6-304, 6-318—6-320, 6-327—6-342, 6-351—6-357
2025- 6-14	6- 9-25	2024 International Building Code	II		6-16, 6-17
					6-37

Ordinance Number	Adoption Date	Subject	Section	Section this Code
2025- 6-15	6- 9-25	2024 International Residential Code	II	6-708—6-710
2025- 6-20	6-23-25	School speed zones	I	12-73(d)
2025- 6-21	6-23-25	Stopping, standing and parking prohibited on certain streets	II	12-101
2025- 7- 5	7-28-25	Adopting Supp. No. 152	I	p. cxci
2025- 7- 6	7-28-25	Plumbing contractor's registration	I	6-221
2025- 7- 7	7-28-25	Solid waste removal from construction sites	I	6-621—6-629
2025- 7- 9	7-28-25	Procedures for issuance and revocation of certificates of occupancy	I	6-37
2025- 7-11	7-28-25	Fee for acquisition and development of park land and facilities	I	16-266(d)
2025- 8- 3	8-11-25	Noise	I	14-85—14-91.8
2025- 8-16	8-25-25	Fees for zoning, rezoning, miscellaneous fees	I	16-19
2025- 9- 1	9- 8-25	Registration fees of hotel/motel properties	I	6-96
2025- 9- 2	9- 8-25	Fees for registration and inspection of multi-family dwelling complexes	I	6-71
2025- 9- 3	9- 8-25	Effective times of school zones	I	12-73(d)
2025- 9- 4	9- 8-25	No parking any time zone	I	12-101
			II	12-101
			III	12-102.6
2025- 9-12	9-16-25	City ambulance service	I	8-3
2025- 9-13	9-16-25	Service fees for local exchange access lines	I	7.5-17
2025- 9-15	9-16-25	Fee schedules for water and sewer services; clarify winter quarter average methodology	I	21-135
			II	21-136
			III	21-147
2025- 9-16	9-16-25	Downtown collection rates of solid waste and number of power washes for solid waste enclosures	I	18-32
			II	18-36
2025-10- 2	10-13-25	Adopting Supp. No. 153	I	p.cxciii

[The next page is 3209]

STATUTORY REFERENCE TABLE

This table shows the location within this Charter and Code, either in the text or notes following the text, of references to the state law or related matters.

Texas Constitution Article	Section	Section this Code
I	17	Char., § 2.03
	3	Ch. 2, Art. VII(note)
III	51-d	Ch. 17(note)
VIII	1	Char., § 9.18
	1-b	20-16, 20-17
	1-f	Ch. 20, Art. II, Div. 3(note)
	1-j	20-3
	9	Char., § 9.13
		Char., § 9.18
XI	5	Charter(note)
		Char. § 1.01
		16-265(a)
XVI	1	17-21

Revised Civil Statutes—1925 Article	Section this Code
1105b, Ch. 9, Title 28	Char., § 3.07
1175, Ch. 13, Title 28	Char., § 2.02
Ch. 13, Title 28	Char., § 11.11

Vernon's Ann. CCP Article	Section this Code
14.01—14.06	Ch. 17(note)

V.A.T.S. Insurance Code Article	Section this Code
10.43	Ch. 11, Art. IV, Div. 2(note)

V.T.C.A. Agriculture Code Section	Section this Code
Ch. 13	Ch. 11, Art. IV(note)
13.201 et seq.	Ch. 9(note)
Ch. 102	Ch. 11, Art. IV(note)
201.152	Ch. 16(note)
	Ch. 16, Art. VIII(note)
251.002	6-561
	6-563
	14-3

V.T.C.A. Alcoholic Beverage Code Section	Section this Code
1.04	3-2
11.38	3-4
61.36	3-5
109.33	3-2

V.T.C.A. Code of Criminal Procedures	Section this Code
Art. 18.05	6-72
	6-97
Ch. 45	13-15
Art. 45.056	13-14
Ch. 62	6-748
	14-123
	17.5-6
	14-123
Art. 62.001	14-123
Art. 102.017	13-12
Art. 102.0172	13-13
Art. 102.0174	13-14

V.T.C.A. Education Code Section	Section this Code
5.001(6-a)	2-11
61.003(8)	2-11
61.003(15)	2-11

V.A.T.S. Election Code Section	Section this Code
1.001 et seq.	Char., § 5.04
31.001	Char., § 5.07
41.001	Char., § 3.06
	Char., § 5.01
	Char., § 7.02
61.003	6-491
143.004	Char., § 5.03
203.004	Char., § 3.06
	Char., § 5.01
	Char., § 6.07
	Char., § 7.02

V.T.C.A. Family Code Chapter	Section this Code
Ch. 31	14-48(a)(9)
51	Ch. 14, Art. III-(note)
51.08	14-50(b)

V.T.C.A. Government Code Section	Section this Code
Chs. 29, 30	13-2
Ch. 551	2-72(a)
Ch. 552	7-19(b)(1)
	9-66
853.003	2-71(a)
854.202	2-72(a)
Ch. 2254	2-12
Ch. 2269	2-12

V.T.C.A. Health and Safety Code Section	Section this Code
341.011	9-4
	9-72
	14-3
341.011(7)	14-3
341.019	14-3
342.006	14-3
342.007	14-3
342.008	14-3
355.002	6-563

V.T.C.A. Health and Safety Code Section	Section this Code
Ch. 431	9-5
431.081	9-5
Ch. 432	9-17.1
Ch. 433	9-5
Ch. 437	9-1
437.020	9-2
437.023	9-5
437.025	9-1
438.035	9-70
Ch. 440	9-15
753.001	Ch. 8, Art. II(note)
Ch. 757	6-722
771.0711	7.5-16
Ch. 773	8-20
822.0421	4-153
822.0424	4-157
822.047	4-157
Ch. 823	2-341(1)

V.T.C.A. Human Resources Code Section	Section this Code
Ch. 121	4-1

V.T.C.A. Local Gov't Code Section	Section this Code
Ch. 41	Char., § 1.02
Ch. 54	6-7
Ch. 54, Subch. B	6-3
	6-16
	6-236
	6-651
	6-661, 6-671
	6-716
	11-40
	13-2
	21-33(b)
Ch. 54, Subch. C	6-2(d), (e)(5)
	6-3, 6-6
	6-749
54.001	16.143
171.001	Char., § 11.02
	Ch. 2, Art. IV(note)
	2-108
171.002	2-109
Ch. 204	2-126
	2-129
Ch. 205	2-126
Ch. 211	6-749
211.001	16-102

V.T.C.A. Local Gov't Code Section	Section this Code
211.003	16-102
211.0165	16-103
	16-111
211.0165(1-a)	16-105
214.00111	16-121
Ch. 212, Subchs. A, B	16-135(a)
Ch. 212, Subch. A	16-152(g)
212.0115	16-136(c)
Ch. 214, Subch. A	13-2
214.00111	16-121
250.001	14-77
	14-85
250.006	14-15
Ch. 251	19-74
Ch. 252	2-12
Ch. 271	2-12
272.001(b)(5)	16-251
Ch. 284	19-64, 19-65
	19-71
284.154(d)	19-67
Ch. 393	16-251
393.010	16-252
Ch. 395	Ch. 21, Art. V(note)

V.T.C.A. Natural Resources Code Section	Section this Code
113.001 et seq.	Ch. 8, Art. II(note)

V.T.C.A. Occupations Code Section	Section this Code
53.023	11-378
Ch. 157	8-20
1702.105	11-221
	11-224
Ch. 1903	6-562
1903.002	6-562
1903.002(c)(1)	6-562
Ch. 1956	11-377
Ch. 2151	11-323
2151.002	11-301

V.T.C.A. Parks and Wildlife Code Section	Section this Code
13.006	Ch. 15(note)
31.092	Ch. 15(note)

V.T.C.A. Penal Code Section	Section this Code
1.08	Ch. 14(note)
2.02	6-37
	6-47
Ch. 6	4-1
Ch. 6.02	14-125
Ch. 7, subpt. B	1-5
12.23	1-4
16.02	6-742
Ch. 20A	17.5-6
Ch. 21	17.5-6
21.01	17.5-10
Ch. 22	17.5-6
Ch. 25	17.5-6
28.02	Ch. 8(note)
30.06	14-5
37.10	2-2
42.01	14-5
42.06	Ch. 11, Art. VI(note)
42.11	Ch. 4(note)
42.13	Ch. 17(note)
42.111	Ch. 4(note)
Ch. 43	17.5-6
43.21	7-36

V.T.C.A. Property Code Section	Section this Code
21.001	Char., § 2.03
113.001	Ch. 8(note)

V.T.C.A. Tax Code Section	Section this Code
1.01	Ch. 20(note)
1.02	Char., § 4.03
	Char., § 9.17
	Char., Art. 9(note)
	Char., § 9.23A
1.05	Char., § 9.01
6.30	20-31
11.01	Char., § 9.19
11.18	20-19
11.18(d)	20-19
11.13	20-16
11.24	Ch. 20, Art. II, Div. 3(note)
11.42	20-56
11.184	20-19
11.184(j)	20-19
Ch. 21	Char., § 9.17
	Char., § 9.20

V.T.C.A. Tax Code Section	Section this Code
Ch. 31	Char., § 9.17
31.02	20-30
Ch. 33	Ch. 20, Art. II, Div. 2(note)
33.01	20-30
302.101	Ch. 8(note), Ch. 11(note)
Ch. 351	20-73
351.0041	20-78

V.T.C.A. Transportation Code Section	Section this Code
Ch. 502	15-1
Ch. 521, subch. E	11-369
521.101	11-362
521.222	14-28(b)
521.223	14-28(b)
521.224	14-28(b)
521.225	14-28(b)
551.181	14-28(b)
521.301[1], [2]	14-26
552.224	14-28(b)

V.T.C.A. Transportation Code Section	Section this Code
Ch. 541	12-2
Ch. 681	12-104
Ch. 683	12-191
	12-205
	12-207
Ch. 683, Subch. E	13-2
Ch. 1956	11-371

V.T.C.A. Utilities Code Section	Section this Code
51.002	19-60
Ch. 251	19-74

V.T.C.A. Water Code Section	Section this Code
1.001	Ch. 21(note)
11.039	21-59.7
	21-60.3
16.311	Ch. 16(note)
	Ch. 16, Art. VIII(note)
Ch. 26	21-71(b)

Vernon's Ann. Civ. St. Article	Section	Section this Code
10		1-3
		1-10
23		1-3
29e		Char., § 9.06
46c-1		Ch. 5(note)
		Ch. 2, Art. III, Div. 2(note)
Tit. 110B		2-56
	61.001	2-58
	62.003	2-62
	62.105	2-67
	63.401—63.403	2-64
	64.202	2-67
	65.313	2-62
	65.317	2-62
	65.401	2-63
	65.404—65.407	2-57
	65.408	2-62
Tit. 110B, Subtit. G		2-61
	62.105	2-67.1
	63.303	2-67.2
	64.202(f)	2-67.1
	64.204	2-67.1
	64.301—64.308	2-67.1

Vernon's Ann. Civ. St. Article	Section	Section this Code
	64.405	2-67.1
	64.406	2-67.1
	64.408	2-67.1
	64.409	2-67.1
	64.410	2-67.1
165-3		Ch. 9(note)
179d		20-1
180		Ch. 4(note)
601b, Art. 7		6-42
701		Char., § 9.22
912a-26		Ch. 17(note)
974a		Ch. 16, Art. VII(note)
998		Ch. 17(note)
998a		Ch. 17, Art. II(note)
1011		1-4
1011a		Ch. 16(note)
		Ch. 16, Art. VI(note)
		App. A(note)
1011f		Ch. 16, Art. III(note)
		16-45
1015(5)		Ch. 9(note)
1015(18)		Ch. 17(note)
1015(37)		Ch. 11, Art. IV(note)
1015a		Ch. 15(note)
1031		Ch. 11, Art. IV(note)
1066c		Ch. 16, Art. V(note)
	4B	20-2
1067		Ch. 6(note)
1086		Ch. 19(note)
		Ch. 19, Art. II(note)
1105a		Ch. 6(note)
1106		Char., § 10.01
		Charter(note)
1165		Char., § 1.02
		Ch. 2(note)
1175(1)		Ch. 15, Art. II(note)
1175(8)		Ch. 19(note)
1175(10)		Char., § 9.01
1175(11)		Ch. 21(note)
1175(12)		Ch. 19(note)
		Ch. 21(note)
175(13), 1175(14)		Ch. 21(note)
1175(15)		Ch. 8(note)
		Ch. 10(note)
		Ch. 15(note)
		Ch. 19(note)
		Ch. 21(note)
1175(16), 1175(17)		Ch. 19(note)
1175(18)		Ch. 6(note)
		Ch. 19(note)
1175(19)		Ch. 9(note)
1175(20)		Ch. 12(note)
1175(22)		Ch. 6(note)
1175(25)		Ch. 6(note)
		Ch. 8(note)
1175(26)		Ch. 6(note)

Vernon's Ann. Civ. St. Article	Section	Section this Code
		App. A(note)
1175(27)		Ch. 8(note)
1175(29)		Ch. 6(note)
		Ch. 21(note)
1175(30), 1175(31)		Ch. 21(note)
1175(33)		Ch. 19(note)
1175(35), 1175(36)		Ch. 6(note)
1176a		1-1
	1	1-4
1179, 1180		Ch. 19(note)
1194		Ch. 13(note)
1221		Ch. 19(note)
1269j-4.1		Ch. 15(note)
	3a et seq.	20-72
1269m		2-42
1528j		Ch. 16, Art. IV(note)
	2.02	16-61, 16-62
	2.03	16-62
	3.04	16-63
	4.06	16-64
1581e		Ch. 16, Art. VIII(note)
2351a-1		Ch. 8(note)
2353c		Ch. 16, Art. VIII(note)
2368a	2c	16-160.13(a)
3271a		6-49
3955		Ch. 8(note)
4413(29bb)		Ch. 11, Art. VI(note)
		Ch. 17(note)
4413(32c)		8-4
4413(41)		Ch. 11, Art. VII(note)
4430		Char., § 4-4.06
4436		14-3
4436b		Ch. 18(note)
		Ch. 4(note)
4465a		Ch. 9(note)
4476-5		Ch. 9(note)
4476-7		Ch. 9(note)
4476-9		Ch. 9(note)
4476-13	11	Ch. 8, Art. II(note)
4477-1		Ch. 18(note)
	2	Ch. 9(note)
	15	Ch. 6, Art. X(note)
4477-6a		Ch. 4(note)
4477-b		Ch. 4(note)
4477-7		Ch. 18(note)
4477-9a	5.05	12-207
		Ch. 18(note)
	5.01	Ch. 12, Art. VIII(note)
	5.05	12-207
	5.08—5.12	12-226
	5.09	Ch. 12, Art. VIII, Div. 3(note)
5069-13.01		Ch. 11, Art. IV(note)
5190.6		Ch. 16(note)
5221f		Ch. 6(note)
5429b-2		1-3

Vernon's Ann. Civ. St. Article	Section	Section this Code
	3.04	1-2
	3.12	1-6
5434		Ch. 10(note)
5923b		Ch. 14, Art. III(note)
		14-48
6080		Ch. 15(note)
6081g-1		Ch. 16, Art. VI(note)
	1	Ch. 15, Art. II(note)
6243-101	15	Ch. 6, Art. VIII(note)
6243h	XVII	2-64.2
	XVIII	2-66
6252-13c		Ch. 11(note)
6252-16		Ch. 2, Art. VII(note)
6252-17		Char., § 3.09
		10-24
6252-17a		Char., § 11.01
		2-117
		2-131
		9.5-37(b)
		10-24
		11-168
		11-186
		21-95
6252-19		2-139
6574c		Ch. 2, Art. V(note)
		2-126
	1(c)	2-129
	3	2-132
6626a.2		Ch. 16, Art. VII(note)
6626c		Ch. 16, Art. VII(note)
6675a-5e.1		12-116
6687b		Ch. 11(note)
	14A	11-362
6701d	1 et seq.	12-2
		1-3
		Ch. 12(note)
	26	Ch. 12(note)
	27(a)(1)	Ch. 12, Art. V(note)
	27(a)(2)	Ch. 12, Art. III(note)
		12-5
	27(a)(3)	12-7
	27(a)(7)	Ch. 12, Art. VII(note)
	29	Ch. 12, Art. III(note)
	31	Ch. 12, Art. III(note)
		12-51
	36	12-56
	96	12-99
	166	Ch. 12, Art. IV(note)
		12-71
	169	Ch. 12, Art. IV(note)
		12-74
	178	Ch. 12, Art. VII(note)
		12-156
		12-158
	184	12-161, 12-162
6701d-11		12-227

Vernon's Ann. Civ. St. Article	Section	Section this Code
6889-5		Ch. 2, Art. VI(note)
6889-7		Ch. 2, Art. VI(note)
		8-4
8402		Ch. 11(note)
8801		Ch. 11, Art. VII(note)

CHARTER INDEX

Section

A

ACCOUNTS
Finances of city. See: FINANCES

AFFIRMATIONS. See: OATH, AFFIRMATION, SWEAR OR SWORN

AGENCIES OF CITY. See: DEPARTMENTS AND OTHER AGENCIES OF CITY

AGREEMENTS. See: CONTRACTS AND AGREEMENTS

AMENDMENTS
Charter amendments 11.11

ANNEXATIONS
Extension of boundaries 1.03
See: BOUNDARIES

APPOINTIVE PERSONNEL. See: OFFICERS AND EMPLOYEES

APPROPRIATIONS
Finances generally. See: FINANCES
General powers of city ..... 2.01 et seq.

ASSESSMENTS
General powers of city ..... 2.01 et seq.
Method of assessment 9.19
See: TAXATION
Tax assessor 4.03
See: TAXATION

ASSIGNMENT
Provisions re assignment, execution and garnishment 11.04

ATTORNEY FOR CITY. See: CITY ATTORNEY

AUDITS
City books and accounts 3.14
Finances generally. See: FINANCES

B

BALLOTS
Office ballot 5.04
See: ELECTIONS
Recall of officers ..... 6.01 et seq.
See: RECALL

BLIGHTED AREAS
Council powers enumerated 3.07

BOARDS, COMMITTEES AND COMMISSIONS
Appointees of boards and commissions ... 4.07
Charter review commission 11.12
Council investigations 3.13
Council powers enumerated 3.07
Providing ..... 3.07(f)

Section

BONDS
Budget preparation and submission 9.02
See: FINANCES
City not required to give security or execute bond 11.05
Council powers enumerated 3.07
General powers of city ..... 2.01 et seq.
Issuance of bonds 9.22
Official bonds for city employees 3.12
Personal interest of city personnel 11.02

BOOKS, PAPERS, ETC.
Council investigations 3.13
Finances of city. See: FINANCES
Records of city. See: PUBLIC RECORDS

BORROWING
General powers of city ..... 2.01 et seq.

BOUNDARIES
Contraction 1.04
Establishment of 1.02
Extension of 1.03
General powers of city ..... 2.01 et seq.

BUDGETS
Authority to adopt 1.01
Council powers enumerated 3.07
Finances of city generally. See: FINANCE

BUILDINGS
Building code
Adoption ..... 3.07(g)
Council powers enumerated 3.07
Fire limits, establishment ..... 3.07(l)
Fire prevention powers ..... 3.07(l)

BUSES
Council powers ..... 3.07(k)

C

CANDIDATES FOR OFFICE
Nominations generally ..... 5.01 et seq.
See: ELECTIONS

CHARTER
Amending 11.11
Charter review commission 11.12
Definitions, words and phrases construed 11.13
Existing law, effect of charter on 11.08
General laws, applicability 11.10
Interim municipal government 11.09
Rules of construction 11.13
Separability clause 11.07

CITY ATTORNEY
Appointment 4.05

CITY COUNCIL
Appointive personnel
City council not to influence appointments 3.08

Section

CITY COUNCIL (Cont'd.)
Boards. See: BOARDS, COMMITTEES AND COMMISSIONS
City manager to inform, advise, etc. 4.01(c)
Compensation of members 3.04
Departments. See: DEPARTMENTS AND OTHER AGENCIES OF CITY
Election
Judge of election qualifications 3.03
Form of government 1.01
Interim municipal government 11.09
Investigations by the city council 3.13
Mayor
Duty to preside at meetings 3.01(b)
Mayor pro-tem 3.05
Meetings
Conduct of 3.09
Mayor to preside 3.01(b)
Minutes, etc. 3.11
Rules of procedure 3.10
Special meeting, calling 3.09
Voting 3.10
Number of members 3.01
Oath of office 5.08
Official bonds for city employees 3.12
Ordinances, passage 3.11
See: ORDINANCES, RESOLUTIONS, ETC.
Personal interest of city personnel 11.02
Places 3.01
Powers of the city council enumerated 3.07
Other powers. See: POWERS OF CITY; See also specific subjects
Qualifications of members 3.02
Recall of officers 6.01 et seq.
See: RECALL
Selection of members 3.01
Terms of members 3.01
Vacancies in office
Council person announcing for elective office, etc. 3.01(d)
Filling 3.06

CITY ELECTIONS. See: ELECTIONS

CITY LAWS. See: ORDINANCES, RESOLUTIONS, ETC.

CITY LIMIT
Boundaries 1.02 et seq.
See: BOUNDARIES

CITY MANAGER
Appointment 1.01, 4.01(a)
Duties 4.01(c)
Form of government 1.01
Official bonds 3.12
Personal interest of city personnel 11.02
Qualifications 4.01(a)
Recall of officers 6.01 et seq.
See: RECALL
Salary 4.01(b)

Section

CITY MANAGER (Cont'd.)
Term of office 4.01(b)

CITY SECRETARY
Official bonds 3.12

CLAIMS
Council powers enumerated 3.07
Special provisions re damage suits 11.06

CODE OF ORDINANCES
Procedure for passage of ordinances 3.11
See: ORDINANCES, RESOLUTIONS, ETC.

COLLECTOR. See: TAX ASSESSOR/COLLECTOR

COMMITTEES. See: BOARDS, COMMITTEES AND COMMISSIONS

COMPENSATION
Council persons 3.04
See: CITY COUNCIL
Personnel. See: OFFICERS AND EMPLOYEES

CONDEMNATION
Dangerous structures, dilapidated buildings, etc.
Council powers enumerated 3.07
Eminent domain powers 2.03
General powers of city 2.01 et seq.

CONFLICTING INTERESTS
Personal interests of city personnel 11.02

CONSTITUTION
General powers of city 2.01 et seq.

CONTRACTS AND AGREEMENTS
General powers of city 2.01 et seq.
Personal interests of city personnel 11.02

CORPORATE LIMITS
Extension of boundaries 1.03
See: BOUNDARIES

CORPORATE SEAL
General powers of city 2.01 et seq.

COUNCIL. See: CITY COUNCIL

COUNSEL
City attorney 4.05
See: CITY ATTORNEY

COURTS
Clerk of municipal court 4.04(d)
General powers of city 2.01 et seq.
Judge of municipal court
Appointment, etc. 4.04(b)
Municipal court, establishment 4.04

Section

D

DAMAGE SUITS
Special provisions governing 11.06
See: SUITS AND PLEAS

DANGEROUS STRUCTURES
Council powers enumerated 3.07

DEATH, INJURY, ETC.
Special provisions re damage suits 11.06

DEBTS
Garnishment provisions 11.04

DEPARTMENTS AND OTHER AGENCIES OF CITY
Boards. BOARDS, COMMITTEES AND COMMISSIONS
Council investigations 3.13
Council powers enumerated 3.07
Designation, creation, establishment 4.02

DEVELOPMENTS
Boundaries ..... 1.02 et seq.
See: BOUNDARIES
Council powers enumerated 3.07
Development of property 8.02

DEVISES. See: DONATIONS, GIFTS, DEVISES, ETC.

DILAPIDATED BUILDINGS
Council powers enumerated 3.07

E

ELECTIONS
City council, general 3.01
See: CITY COUNCIL
Conducting and canvassing 5.07
Filing for office 5.03
Frequency, time of, etc. 5.01
Interim municipal government 11.09
Laws governing city election 5.06
Oath of office 5.08
Official ballot 5.04
Plurality, election by 5.05
Qualifications
Council to be judge of election qualifications 3.03
Qualifications of elected personnel 3.02
Recall of officers ..... 6.01 et seq.
See: RECALL
Registration by the people ..... 7.01 et seq.
See: INITIATIVE AND REFERENDUM
Regulation of 5.02
Runoff elections 5.05

ELECTRICITY
Council powers enumerated 3.07
Franchises and public utilities ..... 10.01 et seq.
See: FRANCHISES; See also: UTILITIES

ELECTRICITY (Cont'd.)
Sales of 10.10
See: FRANCHISES; See also: UTILITIES

EMINENT DOMAIN
City powers 2.03

EVIDENCE
Council investigations 3.13

EXECUTION
Provisions re assignment, execution and garnishment 11.04

F

FEDERAL GOVERNMENT
General powers of city ..... 2.01 et seq.

FINANCES
Accounting year 9.01
Appropriations
Budget established 9.12
Other necessary appropriations 9.15
Audit and examination of books and accounts 3.14
Bonds, issuance 9.22
See: BONDS
Budget
Adoption ..... 3.07(c)
Anticipated revenues compared with other years 9.03
Appropriations established by 9.12
Budget year 9.01
Certification 9.11
City manager, duties ..... 4.01(c)(2)
Copies, availability 9.11
Effective date 9.11
Final adoption, date of 9.10
Preparation and submission 9.02
Proposed expenditures compared with other years 9.04
Public hearing, notice 9.06
Conduct of 9.07
Proceedings on budget after 9.08
Public record, as 9.05
Tax levies established by 9.13
Vote required for adoption 9.09
City manager, duties ..... 4.01(c)
See: CITY MANAGER
Council investigations 3.13
Council powers enumerated 3.07
Estimated expenditures, control of 9.14
Estimated resources to control expenditures 9.14
Fiscal year 9.01
Franchises and public utilities ..... 10.01 et seq.
See: FRANCHISES; See also: UTILITIES
General powers of city ..... 2.01 et seq.
Personal interest of city personnel 11.02

Section

FINANCES (Cont'd.)
Taxes. See also: TAXATION
Assessment and collection. 9.16

FINES, FORFEITURES AND OTHER PENALTIES
General powers of city . . . . . 2.01 et seq.
Ordinances, imposing 3.11

FIRE HAZARDS
Council powers enumerated 3.07

FIRE LIMITS
Council powers enumerated 3.07

FISCAL YEAR
City manager, duties . . . . . 4.01(c)(3)
Designated 9.01
Generally. See: FINANCES

FORFEITURES. See: FINES, FORFEITURES AND OTHER PENALTIES

FORM OF GOVERNMENT
Designated 1.01

FRANCHISES
Council powers 10.02
Electricity, water and sewer services
Rates of services, regulation of 10.11
Sales of. 10.10
Extensions 10.07
Franchise ordinances. 7.11
Franchise value not allowed 10.03
Grant not exclusive 10.05
Municipally owned utilities
Accounts of 10.09
Other conditions 10.08
Powers of the city. 10.01
Private franchises
Public thoroughfares 10-A.01
Property owners consent required 10.06
Right of regulation 10.04

G

GARBAGE AND TRASH
Council powers enumerated 3.07
Franchises and public utilities . . . . . 10.01 et seq.
See: FRANCHISES; See also: UTILITIES

GARNISHMENT
Provisions re assignment, execution and garnishment. 11.04

GAS
Franchises and public utilities . . . . . 10.01 et seq.
See: FRANCHISES; See also: UTILITIES

GIFTS, DONATIONS, DEVISES, ETC.
General powers of city . . . . . 2.01 et seq.

GOVERNING BODY. See: CITY COUNCIL

Section

GOVERNMENT
Form of government designated. 1.01
Interim municipal government. 11.09

H

HEALTH AND SANITATION
General powers of city . . . . . 2.01 et seq.

HOUSING
Slum districts, clearance . . . . . 3.07(i)

I

IMMUNITIES. See: RIGHTS, PRIVILEGES AND IMMUNITIES

IMPROVEMENTS. See: PUBLIC WORKS AND IMPROVEMENTS

INDEBTEDNESS
Garnishment provisions 11.04

INITIATIVE AND REFERENDUM
Ballots
Form 7.05
City elections generally. See: ELECTIONS
Franchise ordinances. 7.11
Further regulations by city council 7.10
General power. 7.01
Initiative
Procedure. 7.02
Ordinances
Adopted 7.07
Generally. See: ORDINANCES, RESOLUTIONS, ETC.
Inconsistent. 7.08
Popular vote, passed by. 7.09
Repeal or amendment 7.09
Proposed and referred ordinances
Publication of 7.06
Referendum
Procedure. 7.03
Voluntary submission of legislation by council 7.04

INJURIES
Special provisions re damage suits 11.06

INVESTIGATIONS
Council powers enumerated 3.07
Investigations by the city council. 3.13

J

JUDGE
Municipal court judge, appointment . . . . . 3.07(s)

JURISDICTION
Council powers enumerated 3.07

Section

L

LAND
Eminent domain powers. 2.03

LAWS OF CITY. See: ORDINANCES, RESOLUTIONS, ETC

LAWSUITS. See: SUITS AND PLEAS

LAWYERS
City attorney 4.05
See: CITY ATTORNEY

LEASES
General powers of city . . . . . 2.01 et seq.

LEGAL REPRESENTATION
City attorney 4.05
See: CITY ATTORNEY

LEGISLATION
Local legislation, enactment 1.01
See ORDINANCES, RESOLUTIONS, ETC.

LICENSES AND PERMITS
Council powers enumerated 3.07

LIENS
Tax liens 9.21

LITIGATION
City attorney, responsibility 4.05
See: CITY ATTORNEY

LOCAL IMPROVEMENTS See: PUBLIC WORKS AND IMPROVEMENTS

LOCAL LEGISLATION
Enactment, governing body 1.01
See CITY COUNCIL. See also. ORDINANCES, RESOLUTIONS, ETC.

M

MANAGER See: CITY MANAGER

MAPS See: SURVEYS, MAPS AND PLATS

MAYOR
Mayor pro-tem. 3.05
See CITY COUNCIL
Oath of office 5.08
Personal interest of city personnel 11.02
Recall of officers . . . . . 6.01 et seq.
See: RECALL

MORTGAGES
General powers of city . . . . . 2.01 et seq.

MUNICIPAL COURT. See also: COURTS
Judge
Council powers enumerated 3.07

MUNICIPAL PLANNING AND ZONING
Development of property 8.02

Section

MUNICIPAL SEAL See: CORPORATE SEAL

MUNICIPAL UTILITIES. See: UTILITIES

N

NOMINATIONS
Generally . . . . . 5.01 et seq.
See: ELECTIONS

NOTES AND BONDS, WARRANTS, ETC.
Bond issuance. See: BONDS
General powers of city . . . . . 2.01 et seq

O

OATH, AFFIRMATION, SWEAR OR SWORN
Clerk of court, powers . . . . . 4.04(c)
Council investigations 3.13
Oath of office 5.08

OFFICERS AND EMPLOYEES
Abolishment of offices
Council powers enumerated 3.07
Appointments
Boards and commissions 4.07
Council members not to influence. 3.08
Council powers enumerated 3.07
Nepotism 11.03
Assignment, execution and garnishment provisions 11.04
Compensation, salaries, etc.
City manager, salary of . . . . . 4.01(b)
Council powers enumerated 3.07
Other matters regarding compensation. See specific officers boards, etc., as indexed
Council investigations 3.13
Form of government 1.01
See CITY COUNCIL. See also: CITY MANAGER
Garnishment provisions 11.04
Inquiry into conduct of office
Council powers . . . . . 3.07(e)
Interim municipal government 11.09
Manager 1.01
See: CITY MANAGER; See also: CITY COUNCIL
Nepotism. 11.03
Nominations and elections. . . . . 5.01 et seq
See: ELECTIONS
Oath of office 5.08
Official bonds. 3.12
Personal interest and financial affairs, etc11.02
Recall of officers . . . . . 6.01 et seq
See: RECALL
Relatives, hiring 11.03
Removal from office
City manager, authority and duties . . . . 4.01(c)
Council powers enumerated 3.07
Department heads. . . . . 4.02(b)

Section

OFFICERS AND EMPLOYEES (Cont'd.)
Tax assessor/collector 4.03
Vacancies in office
Council powers enumerated 3.07

OFFICIAL BALLOTS
Generally 5.04
See: ELECTIONS

OFFICIAL BONDS
City employees 3.12
See: BONDS; See also: OFFICERS AND EMPLOYEES

OFFICIAL MAP
Adoption and modification ..... 3.07(h)
See: SURVEYS, MAPS AND PLATS

ORDINANCES, RESOLUTIONS, ETC.
Bond ordinance, authorization ..... 3.07(d)
Charter review commission 11.12
Charter separability clause 11.07
See: CHARTER
Form of government 1.01
General laws, applicability 11.10
General powers of city ..... 2.01 et seq.
Local legislation, enactment, authority ... 1.01
Minutes and rules of procedure of council. 3.10
Procedure for passage of ordinances 3.11
Qualification 3.11
Voluntary submission of legislation by council 7.04
See: INITIATIVE AND REFERENDUM

P

PECUNIARY INTERESTS
Personal interest of city personnel 11.02

PENALTIES See: FINES, FORFEITURES AND OTHER PENALTIES

PETITIONS
Recall of officers ..... 6.01 et seq.
See: RECALL

PLANNING AND ZONING COMMISSION
Council powers enumerated 3.07
Municipal planning and zoning ..... 8.01 et seq.
Zoning powers, etc. See: ZONING

PLATS See: SURVEYS, MAPS AND PLATS

PLEAS. See also: SUITS AND PLEAS
General powers of city ..... 2.01 et seq.

POLES AND WIRES
Council powers enumerated 3.07
Franchises and public utilities ..... 10.01 et seq.
See: FRANCHISES; See also: UTILITIES

POLICE REGULATIONS
General powers of city ..... 2.01 et seq.

Section

POWERS OF CITY
Eminent domain powers 2.03
Franchise powers 10.01
See: FRANCHISES
General powers adopted 2.02
Generally ..... 2.01 et seq.
See specific powers as indexed
Vested in elective council 1.01

PRIVILEGES. See: RIGHTS, PRIVILEGES AND IMMUNITIES

PROCESSES. See: WRITS, WARRANTS AND OTHER PROCESSES

PROPERTY
Acquisition
General powers of city ..... 2.01 et seq.
Boundaries and limits. See: BOUNDARIES
Eminent domain powers 2.03
Execution, garnishment, assignment, etc.
Provisions re 11.04
Franchises and public utilities ..... 10.01 et seq
See: FRANCHISES; See also: UTILITIES
Municipal planning and zoning ..... 8.01 et seq.
Personal interest of city personnel 11.02
Taxation of 9.19
See: TAXATION

PUBLIC RECORDS
Audit and examination of city books and accounts 3.14
Council investigations 3.13
Publicity 11.01
Records of board of equalization 9.23

PUBLIC UTILITIES. See: UTILITIES

PUBLIC WORKS AND IMPROVEMENTS
Bond issuance 9.26
See: BONDS
Council powers enumerated 3.07

PUBLICATION
Audit and examination of city books and accounts 3.14
Election notice 5.01
Notice of election 5.01
Procedure for passage of ordinances 3.11
Proposed and referred ordinances 7.06
See: INITIATIVE AND REFERENDUM
Records, publicity of 11.01

PURCHASING
Contracts. See: CONTRACTS AND AGREEMENTS
General powers of city ..... 2.01 et seq.
Personal interest of city personnel 11.02

Section

R

RECALL
Election to be called
Ballots 6.08
Elections generally. See: ELECTIONS
Results 6.09
Time of 6.07
Petitions 6.02
Form 6.03
Presentation to council 6.05
Restrictions on recall petitions 6.10
Various papers constitution 6.04
Public hearings 6.06
Restrictions on recall 6.10
Scope 6.01

REDEVELOPMENT
Council powers enumerated 3.07

REFERENDUM. See: INITIATIVE AND REFERENDUM

RENTALS. See: LEASES

RESOLUTIONS. See: ORDINANCES, RESOLUTIONS, ETC.

RIGHTS, PRIVILEGES AND IMMUNITIES
General powers of city ..... 2.01 et seq.

S

SALARIES
Personnel. See: OFFICERS AND EMPLOYEES

SANITARY REGULATIONS
General powers of city ..... 2.01 et seq.

SANITARY SEWERS. See: SEWERS AND SEWAGE DISPOSAL

SEAL See: CORPORATE SEAL

SECURITY
City not required to give security or execute bond 11.05

SEPARABILITY CLAUSE
Charter provisions 11.07

SEWERS AND SEWAGE DISPOSAL
Council powers enumerated 3.07
Sale of sewer services 10.10
See: FRANCHISES; See also: UTILITIES

SIDEWALKS. See: STREETS AND SIDEWALKS

SLUM DISTRICTS
Council powers enumerated 3.07

Section

SOLID WASTE DISPOSAL
Providing for sanitary garbage disposal... 3.07(o)
See: GARBAGE AND TRASH

SPECIAL ASSESSMENTS
General powers of city ..... 2.01 et seq.

STREETS AND SIDEWALKS
Closing and abandonment of
Council powers enumerated 3.07
Eminent domain powers 2.03
Franchises and public utilities ..... 10.01 et seq.
See: FRANCHISES; See also: UTILITIES
General powers of city ..... 2.01 et seq.

SUBDIVISIONS
Boundaries ..... 1.02 et seq.
See: BOUNDARIES
Council powers enumerated 3.07

SUBPOENAS
Council investigations 3.13

SUITS AND PLEAS
Compromising and settling ..... 3.07(r)
Council powers enumerated 3.07
General powers of city ..... 2.01 et seq.
Special provision governing damage suits. 11.06

SURVEYS, MAPS AND PLATS
Boundaries of city ..... 1.02 et seq.
See: BOUNDARIES
Council powers enumerated 3.07
Development of property 8.02
Zoning plan, adoption ..... 3.07(g)

SWEAR OR SWORN. See: OATH, AFFIRMATION, SWEAR OR SWORN

T

TAX ASSESSOR/COLLECTOR
Appointment, functions and duties 4.03

TAXATION
Alternate methods of equalizing and adjusting 9.19
Assessment and collection of taxes 9.16
Other matters regarding appropriations, budget, etc. See: FINANCES
Assessments
Method of assessment 9.18
Bond issuance 9.22
See: BONDS
Budget preparation and submission 9.02
See: FINANCES
General powers of city ..... 2.01 et seq.
Power to tax 9.17
Property subject to tax 9.18
Provisions re assignment, execution and garnishment 11.04
Tax liens 9.21

	Section
TAXATION (Cont'd.)	
When taxes due and payable	9.20
TAXICABS	
Council powers	3.07(k)
TELEPHONE AND TELEGRAPH	
Franchises and public utilities	10.01 et seq.
See: FRANCHISES; See also: UTILITIES	
TRAFFIC	
Council powers enumerated	3.07
TRANSPORTATION	
Council powers enumerated	3.07
U	
UTILITIES	
Council powers enumerated	3.07
Eminent domain powers	2.03
Franchises and public utilities	10.01 et seq.
See: FRANCHISES	
General powers of city	2.01 et seq
Municipally owned utilities	
Accounting, accounts of	10.09
V	
VACATION OF PUBLIC WAYS	
Council powers	3.07(q)
VEHICLES FOR HIRE	
Council powers enumerated	3.07
VIOLATIONS	
Penalties See: FINES, FORFEITURES AND OTHER PENALTIES. See also specific offenses as indexed	
W	
WARDS	
Council places designated	3.01
WARRANTS OR NOTES	
General powers of city	2.01 et seq.
WATER SUPPLY AND DISTRIBUTION	
Council powers enumerated	3.07
Sales of water	10.10
See: FRANCHISES. See also: UTILITIES	
WITNESSES	
Council investigations	3.13
WRITS, WARRANTS AND OTHER PROCESSES	
Council investigations	3.13
Council powers enumerated	3.07
Courts, etc., generally. See: COURTS	
Y	
YEAR	
Fiscal year	9.01
See: FINANCES	
Z	
ZONING	
Boundaries, establishment, extension, etc.	1.02 et seq.
See: BOUNDARIES	
Council powers enumerated	3.07

CODE INDEX

Section

A

ABANDONED AND JUNKED VEHICLES
Abandoned and junked vehicles ..... 12-191 et seq.
See: TRAFFIC

ABANDONED PROPERTY
Impounded property by police ..... 17-51 et seq.
See: POLICE DEPARTMENT
Wire and unused apparatus, removal 6-286

ACCIDENTS
Emergencies. See that subject
Parks and recreation, liability re 15-65
Traffic accidents, police to investigate.... 12-3
Wreckers..... 11-201 et seq.
See: VEHICLES FOR HIRE

AD VALOREM TAXES
Assessment and collection..... 20-16 et seq.
See: TAXATION
Historic structures re ..... 20-51 et seq.
See: TAXATION

ADMINISTRATION
Generally ..... 2-1 et seq.
See specific subjects

ADMINISTRATIVE CODE
Generally ..... 6-651 et seq.

ADOPTION OF ANIMALS
Disposition of impounded animals ..... 4-63(1)

ADULT ENTERTAINMENT
Sexually oriented businesses ..... 17.5-1 et seq.
See: SEXUALLY ORIENTED BUSINESSES

ADVERTISING
Buildings
Registration of short-term rental properties
Advertising, promoting or allowing primary use as an assembly hall prohibited 6-744
Noise
Presumptions..... 14-87
Sign regulations..... 11-16 et seq.
See: SIGNS AND BILLBOARDS
TV guidelines regulated..... 7-36 et seq.
See: CABLE TELEVISION

AERIALS. See: ANTENNAS, AERIALS, ETC.

AFFIDAVITS. See: OATHS, AFFIRMATION, SWEAR OR SWORN

AFFIRMATIVE ACTION
Program adopted 2-41

AGENCIES OF CITY. See: DEPARTMENTS AND OTHER AGENCIES OF CITY

AGREEMENTS. See: CONTRACTS AND AGREEMENTS

Section

AIR POLLUTION
Smoking regulations..... 14-66 et seq.
See: SMOKING

ALARM SYSTEMS
Buildings
Registration of short-term rental properties
Noise and video monitoring 6-742
Company duties 11-225
Definitions 11-221
False alarms 11-227
Inspection of alarm site and system 11-223
Monitoring systems..... 11-226
Permits 11-222
Responsibilities of alarm system users... 11-224

ALCOHOLIC BEVERAGES
Certificate
Wet/dry status 3-5
Church, school, hospital, etc.
Sale of near..... 3-2
Community substance abuse prevention advisory committee ..... 2-281 et seq.
See: COMMUNITY SUBSTANCE ABUSE PREVENTION ADVISORY COMMITTEE
Consumption in certain places..... 3-6
Establishments re; smoking regulations.. 14-66 et seq.
See: SMOKING
Late hours operation..... 3-7
Permit; fees..... 3-8
Manufacturing, importing, selling, etc.
Unlawful in districts zoned residential 3-3
Parks, prohibited activities..... 15-3
Permit
Application review; certificate of wet/dry status 3-5
Required; fees..... 3-4
Special events
Special provisions; alcohol 11-333
Violations
Penalty..... 3-1

ALLEYS. See: STREETS AND SIDEWALKS

ALUMINUM MATERIALS
Metal recycling business regulations..... 11-369 et seq.
See: METAL RECYCLING BUSINESSES

AMBULANCES
City ambulance service 8-3

AMENDMENTS
Administrative code re..... 6-652
Building code re 6-37
Code amendments, additions, supplementation..... 1-8, 1-9

	Section
AMENDMENTS (Cont'd.)	
Heritage resource preservation	
Designation of heritage resources; procedure	16-111
Amendment or removal	16-111(h)
Mechanical code re	6-254
Plumbing code re	6-239
Property Maintenance Code (International)	6-50 et seq.
Storm drainage design manual re	19-44
AMPLIFIERS. See: LOUDSPEAKERS	
AMUSEMENTS AND AMUSEMENT PLACES	
Bingo game tax	20-1
Coin-operated machines and devices	11-246 et seq.
See: COIN-OPERATED MACHINES AND DEVICES	
Smoking prohibitions and regulations	14-66 et seq.
See: SMOKING	
Special events	
Special provisions; amusement rides	11-323
AND, OR	
Code conjunctions construed	1-3
ANIMALS AND FOWL	
Animal businesses (Animal establishment, grooming facility, commercial breeder, wildlife educational center)	
Imminent health hazard	4-128
Permits for	
Animal establishments and commercial breeders	4-121
Animal exhibition	4-122
Display of permits required	4-127
Emergency suspension of permit and appeal	4-129
Pet grooming facilities	4-123
Revocation, denial and appeal	4-130
Wildlife educational centers	4-125
Wildlife rehabilitators	4-126
Zoological educational outreach display	4-124
Animal identification and registration	
City registration required	4-111
Animal shelter advisory committee	
Created; purpose	2-335
Duties	2-341
Meetings; quorum	2-339
Members	2-336
Officers	2-338
Removal of members	2-340
Terms; vacancies	2-337
Animal waste	
Special events	
Special provisions	11-328
Wrapping animal matter	18-7
Animal waste matter, wrapping	18-7
Bees. See herein: Wild Animals, Bees and Livestock	

	Section
ANIMALS AND FOWL (Cont'd.)	
Dangerous animals	
Animals deemed dangerous by other jurisdictions	4-158
Appeal	4-157
Complaints	4-151
Escape, death or subsequent attack	4-154
Hearing	4-153
Impoundment pending hearing	4-152
Listing of registered dangerous animals	4-159
Transferring ownership of registered dangerous animal	4-155
Violations of conditions by owner of a animal	4-156
Definitions and enforcement	
Definitions	4-1
Duties of enforcement authority	4-3
Enforcement, seizures and penalties	4-2
Exemption from requirements for city facilities, operations	4-4
Fees	4-5
Impoundment	
Animal at large	4-61(a)(3)
Dangerous animal	4-61(a)(4)
Dangerous animals	
Impoundment pending hearing	4-152
Disposition of impounded animals	
Adoption	4-63(1)
Euthanasia	4-63(3)
Transfer to releasing agency or foster care	4-63(2)
Inhumane treatment	4-61(a)(6)
LRCI	4-61(a)(7)
Owner's absence	4-61(a)(2)
Rabies	4-61(a)(1)
Redemption of impounded animals	4-62
Unauthorized possession	4-61(a)(5)
Livestock. See herein: Wild Animals, Bees and Livestock	
Miscellaneous offenses	
Inducement prohibited	4-203
Interference; filing of false claims or reports	4-202
Parking of vehicles used to transport animals	4-204
Retention of animals at large	4-201
Slaughtering of animals within public view	4-205
Multiple animals	
Permit required for multiple pets	
Inspection required	4-81(1)
No inspection required	4-81(2)
Revocation, denial and appeal	4-82
Noise	
Presumptions	14-87
Parks and recreation	15-10
Permits	
Animal establishments and commercial breeders	4-121
Animal exhibition	4-122

	Section
ANIMALS AND FOWL (Cont'd.)	
Display of permits required	4-127
Emergency suspension of permit and appeal	4-129
Multi-pet permit	4-81
Pet grooming facilities	4-123
Revocation, denial and appeal	4-130
Wildlife educational centers	4-125
Wildlife rehabilitators	4-126
Zoological educational outreach display	4-124
Private animal sales	4-131
Public nuisances	
Nuisances	4-51
Rabies and zoonosis control	
Local rabies control authority	
Designated, duties	4-2, 4-3
Notification of local rabies control incidents or zoonotic disease	4-93
Quarantine	4-94
Rabies tag and vaccination certificate	4-92
State regulations adopted	4-91
Search and rescue training in public places	
Permit	
Required	4-206
Revocation, denial and appeal	4-207
Treatment of animals	
Animal housing enclosure requirements	4-29
Inhumane treatment of animals	4-26
Placement and baiting of animal traps and poison	4-27
Tethering animals	4-28
Wild animals, bees, and livestock	
Bee-keeping	4-183
Estray	4-187
Keeping backyard hens	4-185
Keeping livestock; nuisance conditions	4-184
Keeping wild animals	4-181
Revocation, denial and appeal	4-186
Sale of wild animals	4-182
ANNEXATIONS	
Certain ordinances not affected by Code	1-7
Platting, developing and subdividing of land	16-131
Subdivision ordinance	16-131
ANTENNAS, AERIALS, ETC.	
Cable television	7-16 et seq.
See: CABLE TELEVISION	
Cable television franchise, Appendix B	
APPEALS	
Buildings	
Registration of short-term rental properties	
Final appeal to city manager	6-747
Coin-operated machine permit revocation, etc.	11-274
Construction review board, fees re	6-1(h)
Electrical inspector, special rulings of	6-319

	Section
APPEALS (Cont'd.)	
Environmental appeals committee	21-319
Food and food establishments	
Appeal of decision	9-5
Garbage and trash	
Collection charges	
Downtown collection accommodation and rates	18-36
Appeal to director of sustainability and environmental services	18-36(d)
Lights, lighting	
Outdoor lighting	
Plan submittal and appeal	6-475
Liquid waste management	
Enforcement	
Appeal	21-393
Municipal court	
Appeals; clerk's record	13-10
Neighborhood block parties re	19-95
Planning and zoning commission re	16-46
Special events permit, notice re	11-312
Swimming pools	6-451
Public swimming pools re	6-456
Taxation	
Historic structures (ad valorem taxes)	
Appeal of inspection report	20-62
Appeals/extensions and waivers to eligibility determination	20-59
Taxicab and limousine driver's license re	11-117
Water supply and distribution	
Cross connection control program	
Appeal of determinations under this division	21-33
Zoning appeals	
Notification of adjacent property owners	16-46
APPROPRIATIONS. See: FINANCES	
ARCHIVES. See: PUBLIC RECORDS	
ASSEMBLIES	
Smoking regulations and prohibitions. See: SMOKING	14-66 et seq.
ASSESSMENTS. See: TAXATION	
ASSOCIATIONS AND CORPORATIONS	
Code definitions	1-3
Responsibility for code violations	1-5
AVENUES. See: STREETS AND SIDEWALKS	
B	
BANNERS. See: SIGNS AND BILLBOARDS	
BARS AND SALOONS. See: ALCOHOLIC BEVERAGES	
BEER. See: ALCOHOLIC BEVERAGES	

Section

BEES
Wild animals, bees and livestock ..... 4-181 et seq.
See: ANIMALS AND FOWL

BICYCLES
Clinging to vehicles from..... 12-10
Comprehensive bikeway plan..... 12-171
Traffic regulations..... 12-156 et seq.
See: TRAFFIC
Vulnerable road users..... 14-127 et seq.
See: TRAFFIC

BILLBOARDS. See: SIGNS AND BILLBOARDS

BINGO
Taxation of..... 20-1

BIRDS. See: ANIMALS AND FOWL

BLASTING. See: EXPLOSIVES AND BLASTING AGENTS

BOARD AND COMMISSION REVIEW COMMITTEE
Created..... 2-311
Criteria..... 2-314
Duties and responsibilities..... 2-313
Terms of office..... 2-312

BOARDS, COMMITTEES AND COMMISSIONS
Animal shelter advisory committee ..... 2-335 et seq.
See: ANIMALS AND FOWL
Board and commission review committee. 2-311 et seq.
See: BOARD AND COMMISSION REVIEW COMMITTEE
Board of adjustment..... 16-81 et seq.
See: PLANNING AND DEVELOPMENT
Building standards commission..... 6-3 et seq.
Cable television advisory board..... 7-37
Code definitions construed 1-3
Code of conduct for city personnel ..... 2-96 et seq.
See: CODE OF CONDUCT
Community relations commission..... 2-156 et seq.
See: COMMUNITY RELATIONS COMMISSION
Community substance abuse prevention advisory committee..... 2-281 et seq.
See: COMMUNITY SUBSTANCE ABUSE PREVENTION ADVISORY COMMITTEE
Construction review board 6-1
Cultural arts commission ..... 2-251 et seq.
See: CULTURAL ARTS COMMISSION
Departments, agencies. See: DEPARTMENTS AND OTHER AGENCIES OF CITY
Environmental appeals committee..... 21-319
Heritage commission..... 16-104, 16-105
Joint authority defined 1-3
Library advisory board..... 10-16 et seq.
See: LIBRARY

Section

BOARDS, COMMITTEES AND COMMISSIONS (Cont'd.)
Metroplex mayor's committee 2-7
Multi-ethnic committee, liaison to 2-163
Parks and recreation planning board .... 15-21 et seq.
See: PARKS AND RECREATION
Planning and zoning commission ..... 16-41 et seq.
See: PLANNING AND ZONING COMMISSION
Removal of board, commission, and committee members 2-361
Risk management steering committee ... 2-9(c)
Senior citizens advisory board..... 2-241 et seq.
See: SENIOR CITIZENS
Texas Municipal Retirement System
Board of trustees..... 2-61

BOATS
Parking in certain zoning districts..... 12-115

BONDS
Cable television franchise, Appendix B, Section 15
Certain ordinances not affected by Code . 1-7
Health facilities development corporation re..... 16-64
House moving requirements..... 6-166
Reserve police re 17-21
Special events
Insurance, indemnification, surety bond, and costs
Bond required..... 11-345

BOUNDARIES
Platting, developing and subdividing of land
Subdivision ordinance..... 16-131

BRASS OR BRONZE MATERIALS
Metal recycling business regulations..... 11-369 et seq.
See: METAL RECYCLING BUSINESSES

BRIDGES. See: STREETS AND SIDEWALKS

BRUSH. See: WEEDS AND BRUSH

BUDGET. See: FINANCES

BUILDINGS
Administrative code. See herein: Codes
Animal housing enclosure requirements . 4-29
Appeals. See herein specific subjects
Building code
Adopted..... 6-17
Deletions, additions, amendments, third party organizations 6-37
Other related codes. See herein: Codes
Penalty..... 6-16
Building conservation code
Administrative authority 6-673
Adopted..... 6-672
Deletions, additions, and amendments. 6-674

	Section
BUILDINGS (Cont'd.)	
Penalties	6-671
Building moving. See herein: House Moving	
Building permits	
Fences	6-176 et seq.
Solid waste removal from construction sites, validation re	6-627
Swimming pool permits	6-437
Temporary and nonconforming buildings	6-111
Building standards commission	
Criminal offense and penalty	
Failure to comply with commission order is a criminal offense	6-13
Remedies	6-14
Hearing, penalties and appeal	
Civil penalty	6-6
Commission decision final	6-8
Judicial review of commission decision	6-7
Notice of decision	6-5
Notice of hearing required	6-4
Organization and authority	6-3
Purpose of provisions	6-1
Code definitions	1-3
Codes	
Administrative code	
Adopted	6-652
Deletions, additions, and amendments	6-653
Penalties	6-651
Building code	6-16 et seq.
Building conservation code	6-671 et seq.
Electrical code	6-271 et seq.
Energy conservation code	6-684 et seq.
Existing building code	6-716 et seq.
Fire code	8-16 et seq.
Fuel gas code	6-696 et seq.
Mechanical code	6-251 et seq.
Plumbing code	6-236 et seq.
Property maintenance code	6-45 et seq.
Residential code	6-708 et seq.
Electrical code. See herein: Codes	
Energy conservation code	6-684 et seq.
See: ENERGY CONSERVATION CODE	
Existing building code	
Administrative authority	6-718
Adopted	6-717
Deletions, additions, amendments	6-719
Penalty	6-716
Fees; planning, development, permits, landmarks, etc.	16-18 et seq.
See: PLANNING AND DEVELOPMENT	
Fences	6-176 et seq.
Fire code	8-16 et seq.
Flags and flagpoles. See herein: Temporary Signs	
Flood damage prevention	16-161 et seq.
Fuel gas code	6-696 et seq.
See: FUEL GAS CODE	

	Section
BUILDINGS (Cont'd.)	
Heritage resource preservation	16-101 et seq.
See: HERITAGE RESOURCE PRESERVATION	
Hotels, etc. See that subject	
House moving	
Definitions	6-151
Insurance. See within this subheading: Surety Bond and Insurance Requirements	
Permit	
Application required	6-153
Exemptions	6-154
Required	6-152
Standards for issuance	
Approvals required	6-157
Building permit required	6-156
Escort	6-158
Fees	6-165
Historic properties	6-155
Hours	6-164
Lights required	6-159
Occupancy of structure	6-162
Restoration of property	6-163
State permit	6-160
Utility wires	6-161
Surety bond and insurance requirements	
Certificate of insurance	6-167
Surety bond	6-166
Violations and penalty	6-168
Irrigation systems	6-561 et seq.
See: IRRIGATION SYSTEMS	
Mechanical code	6-251 et seq.
Municipal court	
Court costs and fees	
Building security fund	13-12
Naming/renaming city facilities	2-13
Nonconforming buildings	6-111 et seq.
Outdoor toilet facilities	6-711 et seq.
See: OUTDOOR TOILET FACILITIES	
Permits. See herein: Building Permits	
Platting, developing and subdividing of land	
Subdivision ordinance	16-131
Plumbing code. See herein: Codes	
Plumbing contractor's registration	6-221
Property maintenance code	
Adopted	6-46
Affirmative defenses	6-47
Offense	6-45
Penalty	6-45
Property Maintenance Code (International)	
Deletions, additions, amendments to	
Chapter 1	6-50
Chapter 2	6-51
Chapter 3	6-52
Chapter 5	6-53
Chapter 6	6-54

	Section
BUILDINGS (Cont'd.)	
Chapter 7	6-55
Registration and inspection of hotel/motel properties	
Applicability and administration	6-94
Definitions	6-92
Enforcement	6-101
Inspection by director or director's designated representative	6-97
Offenses	6-99
Owner or operator self-inspections	6-98
Posting	6-100
Purpose	6-93
Registration	
Fees	6-96
Required	6-95
Short title	6-91
Registration and inspection of multi-family dwelling complexes	
Applicability and administration	6-63
Definitions	6-61
Enforcement	6-80
Fees	6-71
Inspection by director or director's designated representative	6-72
Landlord/tenant self inspections	6-73
Offenses	6-74
Posting	6-75
Purpose	6-62
Registration required	6-70
Short title	6-60
Purpose of provisions	6-1
Registration of short-term rental properties	
Advertising, promoting or allowing primary use as an assembly hall prohibited	6-744
Applicability, administration, and training	6-733
Application fees	6-738
Definitions	6-731
Denial, suspension or revocation of short term rental registration	6-745
Designated contact	6-736
Enforcement	6-749
Expiration of registration; renewals	6-737
Final appeal to city manager	6-747
Hearing to contest the director's determination of denial of an application, or suspension or revocation of a registration	6-746
Hotel occupancy taxes; request for occupancy history	6-740
Noise and video monitoring	6-742
Offenses	6-748
Owner self-inspections and record retention	6-741
Proof of insurance required	6-739
Purpose	6-732
Registration and host rules to be displayed	6-743
Registration required	6-735
Requirements of hosting platforms	6-734
Short title	6-730
Residential code	6-708 et seq.
See: RESIDENTIAL CODE	
Residential Green Building Standard, Appendix R	
Compliance	R104
Definitions	R102
Exterior and wet walls	R106
General	R101
Indoor air quality	R105
Requirements	R103
Roofing	R107
Water conservation	R108
Security code, building	
Administrative authority	6-663
Adopted	6-662
Deletions, additions, and amendments.	6-664
Penalties	6-661
Setback lines. See herein: Building Lines on Specific Streets	
Sign regulations	11-16 et seq.
See: SIGNS AND BILLBOARDS	
Smoking regulations	14-66 et seq.
Solid waste removal from construction sites	
Building permits, validation	6-627
Construction solid waste disposal contractor	
Application for registration	6-622
Renewal of registration	6-623
Revocation of registration	6-625
Restoration	6-626
Vehicle identification tag	6-624
Generally	6-621
Stop work orders	6-628
Violations, penalty	6-629
Standard codes. See herein: Codes	
Swimming pools	6-436 et seq.
Technical codes. See herein: Codes	
Temporary and nonconforming buildings	
Certain ordinances not affected	6-112
Regulations and procedures	6-111
Temporary signs	
Definitions	6-486
Enforcement	6-499
Flags and flagpoles	
Definitions	6-500
Flag regulations	
Downtown sign district	6-502
Entire city excluding downtown sign district	6-501
Permit requirements and exemptions	
Exempt signs	6-497
Permitted signs	
Banners	6-488

Section

BUILDINGS (Cont'd.)
Development/construction signs 6-489
Garage sale signs..... 6-495
Model home signs 6-490
Open house signs..... 6-492.1
Political signs/noncommercial purpose signs..... 6-491
Promotional signage 6-493
Real estate signs 6-492
Sail banner signs..... 6-493
Additional regulations..... 6-493.1
Signage for temporary/seasonal businesses 6-494
Special event signage 6-496
Prohibited signs 6-487
Violations 6-498
Uniform codes. See herein: Codes
Use permits
Miscellaneous fees ..... 16-18 et seq.

BURGLAR ALARMS. See: ALARM SYSTEMS

BURNING. See: OPEN BURNING

BUSES
School buses, overtaking, etc..... 12-117
Vehicle for hire regulations..... 11-101 et seq.

BUSINESSES
Animal businesses; permit requirements . 4-121 et seq.
See: ANIMALS AND FOWL
Buildings
Signage for temporary/seasonal businesses..... 6-494
Licenses ..... 11-1 et seq.
See: LICENSES AND PERMITS
Metal recycling business regulations..... 11-369 et seq.
See: METAL RECYCLING BUSINESSES
Retail corner guidelines..... 16-2
Shopping carts 14-13
Signs ..... 11-16 et seq.
Smoking prohibitions and regulations.... 14-66 et seq.
See: SMOKING

C

CABLE TELEVISION
Community service channels programming
Advertising, solicitation, etc., prohibited 7-40
Compliance..... 7-42
Definitions 7-36
Implementation by CATV advisory 7-37
Prerequisite to using production facilities..... 7-39
Prohibited materials 7-40
Purpose of community service channels 7-38
Scheduling 7-41
Subject to review, revision 7-43

Section

CABLE TELEVISION (Cont'd.)
Multichannel video providers
Definitions 7-51
Franchise required..... 7-50
Rates
Automatic rate adjustments 7-20
Cable operator information 7-19
Definitions 7-16
Enforcement..... 7-21
Increase, review of request for 7-18
Initial review of basic cable rates 7-17

CATS. See: ANIMALS AND FOWL

CEMETERIES
Funeral procession permits 12-7

CESSPOOLS. See: TOILET FACILITIES

CHARITABLE ORGANIZATIONS
Tax exemptions..... 20-19

CHEMICALS. See: HAZARDOUS MATERIALS

CHILD PREDATOR OFFENDERS
Residency restrictions for
Sex offender residency, regulation of .. 14-123

CHILDREN. See: MINORS

CHURCHES
Alcoholic beverages, sale of near..... 3-2
Noise
Presumptions..... 14-87
Sexually oriented businesses
Location regulations 17.5-13

CIGARS, CIGARETTES AND TOBACCO
Parks, prohibited activities..... 15-3
Smoking ..... 14-66 et seq.
See: SMOKING

CITY
Code definitions 1-3
Defense and indemnification of officers and employees..... 2-10
Defined 1-3
Indebtedness. See: FINANCES
Sister City program 2-8
Special events
Special provisions
City authority over parking 11-321

CITY COUNCIL
Attendance at council meetings; right to participate in discussion 2-25
Boards. See: BOARDS, COMMITTEES AND COMMISSIONS
Code of conduct for city personnel ..... 2-96 et seq.
See: CODE OF CONDUCT
Definitions for interpreting Code 1-3
Departments. See: DEPARTMENTS AND OTHER AGENCIES OF CITY

	Section
CITY COUNCIL (Cont'd.)	
Hearings before	2-4
Joint authority defined	1-3
Naming/renaming city facilities	2-13
CITY ENGINEER	
Right-of-way management, authority re	19-62
CITY MANAGER	
Attendance at council meetings; right to participate in discussion	2-25
Buildings	
Registration of short-term rental properties	
Final appeal to city manager	6-747
Contract change orders	
Authority	2-27
Emergencies, as to	2-28
Departments	
Supervision and control	2-22
Financial reports	
Monthly reports to council	2-23
Full time duty required	2-26
Laws and ordinances, enforcement	2-21
Lawsuits and risk management	2-9
Utility franchises, enforcement	2-24
CLUBS, NIGHTCLUBS, ETC. See: ALCOHOLIC BEVERAGES	
CODE OF CONDUCT	
Appearance by past officer or employee	2-107
Campaign contribution recusal requirement for city council members	2-109
Complaints against council members and other officers	
Procedures	2-104
Conflict of interest	
Community relations commission; voting privileges	2-161
Contracts with city; affidavits	2-103
Definitions	2-97
Disclosure of interest	
Generally	2-101
Real property interests	2-102
Policy	2-96
Standards of conduct	
Council members, additional standards for	2-99
Officers and employees	2-98
Additional standards	
City council and employees	2-98(b)
Officers other than city council	2-98(c)
Officer and employee standards	2-98(a)
Political activity; boards and commissions	2-98(e)
Political activity; employees	2-98(d)
State statute, adoption of	2-108
Training	2-100
Violations	
Council members, violations by	2-105
Officers and employees, violations by	2-106

	Section
CODE OF ORDINANCES*	
Amendments, additions, supplementation	1-8, 1-9
Catchlines or headings of sections	
Effect	1-2
Certain ordinances not affected by Code	1-7
Definitions and rules of construction	1-3
Designated and cited, how	1-1
Enforcement of laws and ordinances	
City manager, responsibility	2-21
Fines, forfeitures and penalties	
General penalty	1-4
Severability of parts of Code	1-6
Violations. See herein that subject	
Repeal of ordinances, effect	1-10
Rules of construction	1-3
Violations	
Continuing	1-4
Corporation or association	
Responsibility	1-5
General penalty	1-4
Words and phrases construed	1-3
COIN-OPERATED MACHINES AND DEVICES	
Definitions	11-246
School building, machines prohibited near	11-253
Sign to be affixed to each machine	11-252
Violations	
Existing laws, etc.	11-248
Penalties	11-247
COLLIN COUNTY. See. COUNTY	
COMBUSTIBLES AND INFLAMMABLES	
Fire code	Hey et seq.
See: FIRE CODE	
Hazardous material spills	14-106 et seq.
See: HAZARDOUS MATERIALS	
Sewage discharges generally	21-64 et seq.
See: SEWERS AND SEWAGE DISPOSAL	
COMMERCIAL BREEDER	
Animal businesses; permit requirements	4-121 et seq.
See: ANIMALS AND FOWL	
COMMISSIONS AND COMMITTEES. See: BOARDS, COMMITTEES AND COMMISSIONS	
COMMUNITY RELATIONS COMMISSION	
Duties and responsibilities	2-160
Established; composition; appointment of members	2-156
Meetings	2-159

*__Note—__The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

Section

COMMUNITY RELATIONS COMMISSION (Cont'd.)
Officer; duties of secretary 2-158
Terms of office; compensation 2-157
Voting privileges; conflict of interest 2-161

COMMUNITY SUBSTANCE ABUSE PREVENTION ADVISORY COMMITTEE
Duties 2-286
Meetings 2-284
Membership 2-282
Officers 2-283
Purpose 2-281
Removal 2-285

CONSERVATION
Drought and emergency response plan ... 21-53 et seq.
See: WATER SUPPLY AND DISTRIBUTION
Flood damage prevention ..... 16-161 et seq.
See: FLOOD DAMAGE PREVENTION
Heritage resource preservation ..... 16-101 et seq.
See: HERITAGE RESOURCE PRESERVATION
Irrigation systems; water conservation ... 6-566

CONSTRUCTION REVIEW BOARD
Appointment; term ..... 6-1(d)
Composition ..... 6-1(c)
Established ..... 6-1(a)
Fees for appeals ..... 6-1(h)
Meetings ..... 6-1(b)
Powers and duties ..... 6-1(g)
Quorum ..... 6-1(e)
Rules of procedure; chairperson; secretary 6-1(f)

CONTRACTS AND AGREEMENTS
Authority 2-27
Cable television franchise, Appendix B
Certain ordinances not affected by Code . 1-7
Code of conduct for city personnel ..... 2-96 et seq.
See: CODE OF CONDUCT
Developers, payments to 16-1
Mutual aid disaster agreements 8-4
Procurement code 2-12
Public records. See that subject

COPPER
Metal recycling business regulations ..... 11-369 et seq.
See: METAL RECYCLING BUSINESSES

COUNCIL. See: CITY COUNCIL

COUNTY
Defined 1-3

COURTS. See: MUNICIPAL COURT

CULTURAL ARTS COMMISSION
Created; purpose 2-251
Duties 2-256
Meetings; quorum 2-254

Section

CULTURAL ARTS COMMISSION (Cont'd.)
Membership 2-252
Officers 2-253
Removal of members; attendance 2-255
Reports 2-257

CULVERTS
Storm drainage ..... 19-41 et seq.
See: STREETS AND SIDEWALKS

D

DANCE HALLS
Sexually oriented dance halls ..... 17.5-1 et seq.
See: SEXUALLY ORIENTED BUSINESSES

DANGEROUS ANIMALS. See: ANIMALS AND FOWL

DECREES. See: JUDGMENTS OR DECREES

DEEDS. See: PUBLIC RECORDS

DEFINITIONS
General definitions for interpreting Code 1-3

DEMOLITION
Heritage resource preservation ..... 16-101 et seq.
See: HERITAGE RESOURCE PRESERVATION

DEPARTMENTS AND OTHER AGENCIES OF CITY
Boards. See: BOARDS, COMMITTEES AND COMMISSIONS
City manager to supervise and control ... 2-22
Code definitions re 1-3
Code enforcement department. See that subject
Code of conduct for city personnel ..... 2-96 et seq.
See: CODE OF CONDUCT
Health facilities development corporation 16-61 et seq.
See: HEALTH FACILITIES DEVELOPMENT CORPORATION
Joint authority defined 1-3
Mutual aid disaster agreements 8-4
Parks and recreation department ..... 15-1 et seq.
See: PARKS AND RECREATION
Police department. See: POLICE DEPARTMENT
Generally ..... 17-1 et seq.
Reserve police ..... 17-16 et seq.

DEVELOPMENT. See: PLANNING AND DEVELOPMENT

DISABLED OR HANDICAPPED PERSONS. See: HANDICAPPED PERSONS

DISASTERS. See: EMERGENCIES

DISCRIMINATION
Affirmative action program adopted 2-41

Section

DISCRIMINATION (Cont'd.)
Code of conduct for city personnel ..... 2-96 et seq.
See: CODE OF CONDUCT
Community relations commission..... 2-156 et seq.
See: COMMUNITY RELATIONS COMMISSION
Equal rights policy 2-11
Housing discrimination (based on race, color, gender, religion, national origin, familial status or handicap)
Accommodations Review Board
Duties, responsibilities and meetings..... 9.5-46
Generally 9.5-45
Brokerage services
Discrimination in provision of..... 9.5-34
Complaints 9.5-36
Cooperation with secretary of housing and urban development 9.5-40
Cumulative legal effect..... 9.5-38
Definitions 9.5-31
Exemptions and exclusions 9.5-35
Financing of housing
Discrimination in..... 9.5-33
Investigation 9.5-37
Sale or rental of housing
Discrimination in..... 9.5-32
Secretary of housing and urban development
Cooperation with 9.5-40
Unlawful intimidation..... 9.5-39
TV guidelines regulated..... 7-36 et seq.
See: CABLE TELEVISION

DISEASE CONTROL
Food and food establishments ..... 9-1 et seq.
See: FOOD AND FOOD ESTABLISHMENTS
Rabies and zoonosis control ..... 4-91 et seq.
See: ANIMALS AND FOWL

DOCUMENTS. See: PUBLIC RECORDS

DOGS. See: ANIMALS AND FOWL

DOORS. See: GATES AND DOORS

DRAINAGE
Fences on drainage and floodway easements..... 6-188
Flood damage prevention ..... 16-161 et seq.
See: FLOOD DAMAGE PREVENTION
Municipal drainage utility system 21-1, 21-2
Obstructing ditches and drains..... 14-4
Streets and sidewalks. See that subject
Storm drainage regulations..... 19-41 et seq.
Walls, screens, hedges. etc., obstructing.. 14-9

DRIVEWAYS
Driveway approaches 19-26.1
Parking as to block 12-100

Section

DROUGHT
Drought and emergency response plan... 21-53 et seq.
See: WATER SUPPLY AND DISTRIBUTION

DRUGS AND MEDICINES
Community substance abuse prevention advisory committee ..... 2-281 et seq.
See: COMMUNITY SUBSTANCE ABUSE PREVENTION ADVISORY COMMITTEE
Illegal smoking products and ingestion devices..... 14-124 et seq.
See: SMOKING

E

EARTHQUAKES. See: EMERGENCIES

EASEMENTS. See: RIGHTS-OF-WAY

EATING ESTABLISHMENTS. See: FOOD AND FOOD ESTABLISHMENTS

ELDERLY PERSONS. See: SENIOR CITIZENS

ELECTRICAL CODE
Abandoned wire; unused poles, apparatus (removal) 6-286
Adopted..... 6-272
Amendments 6-275
Certificate of approval
Connection prior to issuance..... 6-285
City, county, school districts departments, buildings..... 6-303
Compliance generally 6-301
Conductors or equipment
Low voltage conductors, equipment ... 6-304
Unauthorized alternation of 6-288
Definitions 6-274
Existing installation; inspections; complaint driven 6-287
Inspector, electrical
Conflicts of interest 6-320
Powers generally..... 6-318
Special rulings..... 6-319
Liability of
City, owner of property for damages... 6-291
Electrical inspectors..... 6-292
Modification..... 6-290
New work; final inspection, approval or rejection 6-283
Penalty 6-271
Permits. See herein: Work Permits
Radio and television transmitting equipment..... 6-302
Registration (licensing) of electricians
Altering registration 6-336
Application 6-329
Cards carried on person, exhibited upon request..... 6-337

Section

ELECTRICAL CODE (Cont'd.)
- Classifications 6-328
- Expiration, renewal of certificates..... 6-332
- False representations as to registration 6-338
- License not transferable..... 6-340
- Record of registration 6-339
- Registration not transferable 6-334
- Required 6-327
- Suspension or revocation of registration 6-341
- Termination of registration 6-342

Rough work, inspection, approval or rejection..... 6-282
Service of notices or orders..... 6-289
Short title..... 6-273
Signs (electrical)..... 6-280
Supervision of work; limitation on employment of apprentices..... 6-281
Waiver..... 6-290
Work not to be covered until approved ... 6-284
Work permits
- Application 6-352
- Fee..... 6-353
- Issuance or refusal..... 6-355
- Part jobs, permits for..... 6-356
- Required 6-351
- Revocation of permit 6-357
- To whom issued..... 6-354

ELECTRICITY
Code, electrical ..... 6-271 et seq.
- See: ELECTRICAL CODE

Codes, other. See: BUILDINGS
Fences (electric) 6-180
Outdoor lighting provisions ..... 6-466 et seq.
Signs, electrical 6-280

EMERGENCIES
Alarm systems regulated..... 11-221 et seq.
- See: ALARM SYSTEMS

Animals and fowl
- Search and rescue training in public places 4-206, 4-207

City ambulance service 8-3
Drought and emergency response plan... 21-53 et seq.
- See: WATER SUPPLY AND DISTRIBUTION

Emergency management..... 2-136 et seq.
- See: EMERGENCY MANAGEMENT

Hazardous material spills..... 14-106 et seq.
- See: HAZARDOUS MATERIALS

Mutual aid disaster agreements 8-4
Nine-one-one (9-1-1) service
- Definitions 7.5-16
- Execution of contracts to a provider... 7.5-18
- Service fee..... 7.5-17
- Restrictions and limitations on 7.5-19

Reserve police..... 17-16 et seq.
- See: POLICE DEPARTMENT

Section

EMERGENCY MANAGEMENT
Comprehensive emergency management plan adopted 2-136
Effect on other ordinances, rules, regulations, and orders 2-138
Immunity preserved 2-140
Violation of rule, offense, or order adopted under plan 2-141

ENCLOSURES. See: FENCES, WALLS, HEDGES AND ENCLOSURES

ENERGY CONSERVATION CODE
Adopted..... 6-685
Deletions, additions, amendments 6-686
Penalty 6-684

ENGINEERING
City engineer. See that subject
Traffic engineer, defined 1-3

ENVIRONMENTAL APPEALS COMMITTEE
Established 21-319

EROSION. See: SOIL EROSION AND SEDIMENTATION CONTROL

ESCORT SERVICE
Sexually oriented businesses ..... 17.5-1 et seq.
- See: SEXUALLY ORIENTED BUSINESSES

EXCAVATIONS
Cable television franchise, Appendix B
Flood damage prevention ..... 16-161 et seq.
Obstructing ditches and drains..... 14-4
Storm drainage..... 19-41 et seq.
- See: STREETS AND SIDEWALKS

Swimming pool regulations ..... 6-436 et seq.

EXPLOSIVES AND BLASTING AGENTS
Emergency management provisions..... 2-136 et seq.
- See: EMERGENCY MANAGEMENT

Explosion hazards
- Sewage discharges generally..... 21-64 et seq.
  - See: SEWERS AND SEWAGE DISPOSAL

Fire code..... 8-16 et seq.
- See: FIRE CODE

Hazardous material spills..... 14-106 et seq.
- See: HAZARDOUS MATERIALS

Industrial wastewater pretreatment ..... 21-301 et seq.
- See: INDUSTRIAL WASTEWATER PRETREATMENT

F

FACSIMILE, TELECOPIER, SIMILAR EQUIPMENT
Metal recycling businesses requirement.. 11-373

FALSE ALARMS. See: ALARM SYSTEMS

Section

FALSE CLAIMS
Animals and fowl
Interference; filing of false claims or reports 4-202

FARMERS' MARKET AND VENDORS
Food and food establishments 9-2

FENCES, WALLS, HEDGES AND ENCLOSURES
Compliance with other provisions..... 6-181
Construction and materials 6-178
Drainage and floodway easements 6-188
Electric fences..... 6-180
Erection and maintenance 14-9
Fence arms..... 6-183
Height..... 6-201
Location on or protrusion over city property 6-182
Maintenance 6-186
New fences, inspection..... 6-185
Permit to construct or alter 6-179
Purpose..... 6-177
Screens
Erection and maintenance..... 14-9
Swimming pool regulations. See: SWIMMING POOLS
Enclosures re 6-187, 6-448
Generally..... 6-436 et seq.
Violations
Penalty..... 6-176

FILES. See: PUBLIC RECORDS

FINANCES
Certain ordinances not affected by Code . 1-7
City manager
Monthly reports to council..... 2-23
Code of conduct for city personnel ..... 2-96 et seq.
See: CODE OF CONDUCT (City Personnel)
Delinquent debtors
Permit, license, etc., not issued by city 2-2
Housing discrimination re financing 9.5-33
Municipal court costs and fees..... 13-11 et seq.
See: MUNICIPAL COURT
Procurement code 2-12
Records. See: PUBLIC RECORDS
Sewers; disposition of funds 21-70
Special events
Insurance, indemnification, surety bond, and costs
Fees/costs 11-346
Taxation ..... 20-1 et seq.
See: TAXATION
Utilities. See that subject
Pro rata fees and extension of facilities 21-166 et seq.

FINES, FORFEITURES AND OTHER PENALTIES
Animal regulations
Enforcement, seizures and penalties .. 4-2

Section

FINES, FORFEITURES AND OTHER PENALTIES (Cont'd.)
Buildings
Property maintenance code
Registration and inspection of hotel/motel properties..... 6-101
Certain ordinances not affected by Code . 1-7
Credit card authorized for payment, etc. . 13-16
Food and food establishments
Penalty..... 9-7
General penalty 1-4
Lights, lighting
Outdoor lighting
Penalty 6-477
Noise
Enforcement
Penalties..... 14-91.8
Specific penalties. See specific offenses as indexed

FIRE CODE
Adoption of International Fire Code 8-17
Authorizing suits for injunctive relief.... 8-18
Enforcement, abatement 8-16

FIRE DEPARTMENT
Certification pay plan..... 2-42
Emergency management provisions..... 2-136 et seq.
Fire code..... 8-16 et seq.
Hazardous material spills..... 14-106 et seq.
Mutual aid disaster agreements 8-4
Open burning permits 14-110
Traffic, authority of officers to direct..... 12-6

FIRE HAZARDS
Hazardous material spills..... 14-106 et seq.
See: HAZARDOUS MATERIALS

FIRE INSPECTION PROGRAM
Provisions re 8-19

FIRE PREVENTION
Building standards commission..... 6-2

FIREARMS AND WEAPONS
Facsimile firearms..... 14-12
Offenses re use of..... 14-5
Parks, prohibited activities..... 15-3
Reserve police, carrying and using..... 17-31

FISCAL AFFAIRS. See: FINANCES

FLAGS
Flags and flagpoles; requirements for display..... 6-500 et seq.
See: BUILDINGS
Official logo and brand..... 2-1

FLAMMABLES. See: COMBUSTIBLES AND INFLAMMABLES

FLOOD DAMAGE PREVENTION
Abrogation and greater restrictions..... 16-168

Section

FLOOD DAMAGE PREVENTION (Cont'd.)
Administration
Floodplain administrator
Designation 16-171
Duties and responsibilities 16-172
Permit procedures 16-173
Variance procedures 16-174
Basis for establishing the areas of special flood hazard 16-165
Compliance 16-167
Culpable mental state 16-163
Definitions 16-161
Establishment of a development permit 16-166
Flood hazard reduction
Floodways 16-179
Standards
Areas of shallow flooding (AO/AH zones) 16-178
General 16-175
Specific 16-176
Subdivision proposals 16-177
Interpretation 16-169
Lands to which this article applies 16-164
Penalty 16-162
Purpose 16-160
Warning and disclaimer or liability 16-170

FLOODPLAINS
Storm drainage ..... 19-41 et seq.
See: STREETS AND SIDEWALKS

FOLLOWING, PRECEDING
Rules of construction and definitions 1-3

FOOD AND FOOD ESTABLISHMENTS
Adoption 9-1
Animals; slaughtering within public view 4-205
Appeal of decision 9-5
Authority 9-3
Farmer's markets 9-2
Fees 9-6
Penalty 9-7
Special events
Special provisions; food service 11-326
Suspension, revocation of permit 9-4

FORFEITURES. See: FINES, FORFEITURES AND OTHER PENALTIES

FOWL. See: ANIMALS AND FOWL

FRANCHISES
Cable television franchise, Appendix B
Certain ordinances not affected by Code 1-7
City manager to enforce utility franchises 2-24
Code of conduct for city personnel ..... 2-96 et seq.
Erosion control
Franchised utility companies 14-97
Multichannel video providers
Franchise required 7-50

Section

FUEL GAS CODE
Additions, amendments, deletions
Chapter 1 Administration 6-698
Chapter 3, General Regulations 6-698
Chapter 4, Gas Piping Installations 6-698
Chapter 6, Specific Appliances 6-698
Adopted 6-697
Penalty 6-696

FUNERAL PROCESSIONS
Permits 12-7

G

GARAGE, OCCASIONAL SALES
Buildings
Temporary signs
Permitted signs
Garage sale signs 6-495
Definitions 11-366
Regulations; permits 11-367
Signage 11-368

GARBAGE AND TRASH (Solid waste disposal)
Animal waste
Wrapping 18-7
Collection charges
Commercial container rates 18-34
Construction and demolition (C&D) debris recycling deposit and refund 18-35
Downtown collection accommodation and rates 18-36
Appeal to director of sustainability and environmental services ..... 18-36(d)
Failure to pay charges ..... 18-36(f)
Issuance of decision by director ..... 18-36(e)
Monthly rates ..... 18-36(a)
Power washing ..... 18-36(c)
Sanitary maintenance ..... 18-36(b)
Rates applicable to residential and non-franchisee commercial customers. 18-31
Collections
All collections to be placed for collection by 7:00 a.m 18-15
Bulky waste and special paid collections 18-14
Commercial solid waste and recyclable materials 18-18
Disposal at transfer stations 18-16
Frequency and schedule of collection by the city 18-5
Landscape waste collection/biodegradable bags 18-13
Outside city limits 18-33
Within city limits 18-32
Continuous service ..... 18-32b)
Pro rata billing ..... 18-32(c)
Rates for collection and disposal ..... 18-32(a)
Residential rates ..... 18-32(a)(1)

Section

GARBAGE AND TRASH (Solid waste disposal) (Cont'd.)
- Commercial solid waste and recyclable materials
  - Collection, transportation and disposal 18-18
- Compost, sale of 18-17
- Containers
  - Blocking access to containers 18-10
  - Placement of containers for collection 18-9
  - Recycling container 18-8
  - Residential solid waste container 18-6
- Definitions 18-2
- Draining 18-7
- Household hazardous waste collection and reuse 18-11
- Industrial and hazardous waste 18-12
- Industrial wastewater pretreatment 21-301 et seq.
- Obstructions in alleyways 18-4
- Penalty 18-3
- Recyclables
  - Civil action by authorized recycling contractor 18-24
  - Commercial organics recycling 18-19
  - Construction and demolition debris recycling deposit program 18-20
  - Ownership of recyclable materials 18-22
  - Recyclable materials
    - Collection, transportation and disposal 18-18
  - Recycling container 18-8
  - Registration of commercial recycling service providers and transporters 18-21
  - Right of individual to dispose of recyclable materials 18-23
- Rules and regulations governing containers and receptacles 18-1
- Solid waste removal from construction sites 6-621 et seq.
  - See: BUILDINGS
- Special events
  - Special provisions; trash disposal 11-330
- Weeds, refuse, unsanitary conditions and stagnant water 14-3

GAS
- Industrial wastewater pretreatment 21-301 et seq.
- Sewage discharges generally 21-64 et seq.

GATES AND DOORS
- Fences 6-176 et seq.
  - See: FENCES, WALLS, HEDGES AND ENCLOSURES
- Swimming pool fence construction re 6-187, 6-448

GENDER
- Word usage for interpreting Code 1-3

GOLF COURSE. See: MUNICIPAL GOLF COURSE

GRAVEYARDS. See: CEMETERIES

Section

GREASES, OILS, FATS, ETC.
- Industrial wastewater pretreatment 21-301 et seq.
- Sewage discharges generally 21-64 et seq.

GUNS. See: FIREARMS AND WEAPONS

H

HANDBILL DISTRIBUTION AND NO TRESPASSING SIGNS
- Definitions 11-141
- Failure to comply with no trespass sign 11-143
- Handbill distribution on private property 11-142
- Penalty 11-144

HANDICAPPED PERSONS
- Discrimination. See that subject
- Handicapped parking 12-116
- Homestead tax exemption 20-17, 20-18

HAZARDOUS MATERIALS
- Discharges of hazardous waste, notification of 21-332
- Fire code 8-16 et seq.
  - See: FIRE CODE
- Hazardous material spills
  - Authority to assess hazardous materials mitigation services fee 14-108
  - Authorizing suits for injunctive relief 14-112
  - Definition of hazardous materials 14-107
  - Hazardous material permit 14-111
  - Open burning permits 14-110
  - Scope 14-106
- Industrial wastewater pretreatment 21-301 et seq.
  - See: INDUSTRIAL WASTEWATER PRETREATMENT
- Sewage discharges generally 21-64 et seq.
  - See: SEWERS AND SEWAGE DISPOSAL

HEALTH AND SANITATION
- Animal regulations 4-1 et seq.
  - See: ANIMALS AND FOWL
- Animal waste
  - Animal matter, wrapping 18-7
- Food and food establishments 9-1 et seq.
- General penalty clause re 1-4
- Hazardous material spills 14-106 et seq.
  - See: HAZARDOUS MATERIALS
- Health director designated local rabies control authority 4-2
  - Duties 4-3
- Illegal smoking products and ingestion devices 14-124 et seq.
  - See: SMOKING
- Industrial wastewater pretreatment 21-301 et seq.
  - See: INDUSTRIAL WASTEWATER PRETREATMENT
- Mobile community healthcare program 8-20
- Public nuisances, generally. See: NUISANCES

	Section
HEALTH AND SANITATION (Cont'd.)	
Rabies and zoonosis control	4-91 et seq.
See: ANIMALS AND FOWL	
Sewers	21-61 et seq.
See: SEWERS AND SEWAGE DISPOSAL	
Smoking regulations	14-66 et seq.
See: SMOKING	
Solid waste disposal	18-1 et seq.
See: GARBAGE AND TRASH	
Special events	
Special provisions; sanitary facilities	11-327
Swimming pool regulations	6-436 et seq.
See: SWIMMING POOLS	
Urinating or defecating in public	14-11
Weeds, refuse, unsanitary conditions and stagnant water	14-3
HEALTH FACILITIES DEVELOPMENT CORPORATION	
Article of incorporation	16-62
Authority and instrumentality of city	16-65
Board of directors	16-63
Bonds, notes, other obligations	16-64
Findings	16-61
HEARINGS	
Buildings	
Registration of short-term rental properties	
Hearing to contest the director's determination of denial of an application, or suspension or revocation of a registration	6-746
Hearings before council and planning and zoning commission	2-4
HEDGES. See: FENCES, WALLS, HEDGES AND ENCLOSURES	
HERITAGE RESOURCE PRESERVATION	
Authority to preserve substandard building as historic property	16-121
Certificate of appropriateness, review required	16-112
Building permit and site plan approval	16-112(e)
Emergency repair	16-112(d)
Maintenance and minor in-kind repair and replacements	16-112(c)
Purpose	16-112(a)
Review required	16-112(b)
Certificate of appropriateness	
Criteria	16-113
Expiration	16-114(g)
Extensions	16-114(h)
Procedure	16-114
Appeal	16-114(e)
Appeal of heritage commission decision	16-114(e)(2)
Appeal of heritage preservation officer decision	16-114(e)(1)
Application required	16-114(a)
Changes in building or site plans following a decision	16-114(d)
Heritage commission/heritage preservation officer decision	16-114(c)
Heritage preservation officer review	16-114(b)
Resubmittal following a decision	16-114(f)
Definitions	16-103
Demolition by neglect	16-120
Demolition, removal, or relocation	
Criteria	16-116
Criteria for decision	16-116(c)
Valid reasons for demolition or removal	16-116(a)
Valid reasons for relocation	16-116(b)
Procedure	16-118
Appeal	16-118(f)
Application required	16-118(a)
Demolition delay	16-118(e)
Demolition review decision	16-118(d)
Demolition review hearing; all other structures	16-118(c)
Emergency demolition, removal, or relocation	16-118(g)
Heritage preservation officer review; non-contributing structures	16-118(b)
Required documentation	16-117
Required documentation for a compatible or non-contributing structure in a heritage district	16-117(1)
Required documentation for a heritage landmark or contributing structure in a heritage district	16-117(2)
Review required	16-115
Purpose	16-115(a)
Review required	16-115(b)
Accessory buildings and landscape features identified as integral to the historic interpretation or integrity of the heritage resource in an area where a historic resource survey has been conducted	16-115(b)(5)
Compatible structure located within a heritage district	16-115(b)(3)
Contributing structure located within a heritage district	16-115(b)(2)
Heritage landmarks	16-115(b)(1)
Non-contributing structure located within a heritage district	16-115(b)(4)
Designation of heritage resources; criteria	16-110
Criteria for	
Designating heritage districts	16-110(c)
Designating heritage landmarks	16-110(b)
Removing a heritage resource designation	16-110(f)
Heritage resource survey map	16-110(d)
Original construction site	16-110(e)

Section

HERITAGE RESOURCE PRESERVATION (Cont'd.)
- Purpose ... 16-110(a)
- Designation of heritage resources; procedure ... 16-111
- Amendment or removal ... 16-111(h)
- City-initiated designation ... 16-111(b)
- Decision by the city council ... 16-111(f)
- Recordation ... 16-111(g)
- Heritage resource designation impact statement ... 16-111(d)
- Property owner consent requirements ... 16-111(c)
- Property owner-initiated designation ... 16-111(a)
- Signature requirements—Heritage district ... 16-111(a)(2)
- Signature requirements—Heritage landmarks ... 16-111(a)(1)
- Review and recommendation
- Heritage commission ... 16-111(e)
- Planning and zoning commission ... 16-111(f)
- Enabling authority ... 16-102
- General and purpose ... 16-101
- Fees, forms, and procedures ... 16-101(b)
- Purpose ... 16-101(a)
- Heritage commission; established ... 16-104
- Abstentions ... 16-104(i)
- By-laws ... 16-104(h)
- Compensation ... 16-104(d)
- Creation ... 16-104(a)
- Meetings ... 16-104(g)
- Members, appointments, and qualifications ... 16-104(b)
- Officers ... 16-104(e)
- Removal from office ... 16-104(f)
- Terms ... 16-104(c)
- Heritage commission
- Powers and duties ... 16-105
- Heritage preservation officer
- Established ... 16-106
- Appointment ... 16-106(b)
- Creation ... 16-106(a)
- Powers and duties ... 16-107
- Heritage preservation plan ... 16-108
- Decision by the city council for plan adoption ... 16-108(c)
- Purpose ... 16-108(a)
- Review and recommendation by the heritage commission ... 16-108(b)
- Heritage resource surveys ... 16-109
- Approval ... 16-109(d)
- Building category and integrity evaluation ... 16-109(c)
- Purpose ... 16-109(a)
- Survey data ... 16-109(b)
- Minimum maintenance requirement and prevention of deterioration ... 16-119
- Prohibited acts, penalty for violation, and enforcement ... 16-122

Section

HIGHWAYS. See: STREETS AND SIDEWALKS

HOLIDAYS
- Code definitions ... 1-3

HOSPITALS
- Alcoholic beverages
- Sale of near church, school or public hospital ... 3-2
- Noise
- Presumptions ... 14-87
- Sexually oriented businesses
- Location regulations ... 17.5-13

HOTELS, ETC.
- Buildings
- Registration of short-term rental properties
- Hotel occupancy taxes; request for occupancy history ... 6-740
- Hotel occupancy tax ... 20-71 et seq.
- See: TAXATION
- Sexually oriented businesses
- Purpose and intent ... 17.5-1 et seq.

HOUSE MOVING
- Generally ... 6-151 et seq.
- See: BUILDINGS

HOUSE TRAILERS. See: MANUFACTURED HOMES AND MANUFACTURED HOME PARKS

HOUSING
- Animal housing enclosure requirements ... 4-29
- Buildings. See that subject
- Child predator offenders. See that subject
- Discrimination. See that subject
- Property. See that subject

HOUSING INFILL PROGRAM
- Construction of article ... 16-253
- Definitions ... 16-254
- Established; powers and authority ... 16-251
- Implementation ... 16-252

HURRICANES. See: EMERGENCIES

I

IDENTIFICATION
- Animals
- City registration required ... 4-111
- Listing of registered dangerous animals 4-159
- Rabies tag and vaccination certificate ... 4-92
- Library borrowers
- Identification; overdue materials; fees and fines ... 10-3
- Metal recycling businesses
- Hold on regulated material; segregation, labeling, and inspection of regulated material; exceptions ... 11-375

Section

IDENTIFICATION (Cont'd.)
Notice to sellers 11-372

IMMORALITY. See: INDECENCY AND OBSCENITY

IMPOUNDMENT
Animals, impoundment requirements 4-61
Dangerous animals
Impoundment pending hearing 4-152
Bicycles 12-157
Impounded property . . . . . 17-51 et seq.
See: POLICE DEPARTMENT

IMPROVEMENTS See: PUBLIC WORKS AND IMPROVEMENTS

INDECENCY AND OBSCENITY
Display of sexually explicit material to minors 14-10
Urinating or defecating in public 14-11
TV guidelines regulated . . . . . 7-36 et seq.
See: CABLE TELEVISION

INDEMNIFICATION
Officers and employees
City's defenses . . . . . 2-10(e)
Definitions . . . . . 2-10(b)
Disciplinary actions . . . . . 2-10(g)
Indemnification, generally . . . . . 2-10(c)
Need . . . . . 2-10(a)
Notice . . . . . 2-10(f)
Representation in actions . . . . . 2-10(d)
Suits in behalf of city . . . . . 2-10(h)
Right-of-way management 19-69
Special events
Insurance, indemnification, surety bond, and costs 11-343

INDUSTRIAL WASTEWATER PRETREATMENT
Appeals. See herein: Environmental Appeals Committee
Bypass 21-328
Categorical pretreatment standards
Compliance schedule for meeting 21-309
Character and concentration of wastewater, determining 21-320
Compliance with other authorities 21-306
Definitions 21-301
Discharges
Dangerous discharges 21-335
Hazardous waste, notification of discharge of 21-332
Prohibited 21-302
Requiring traps 21-305
Environmental appeals committee 21-319
Fees
Industrial wastewater surcharge 21-322
Sampling and analyses 21-321
Garbage 21-304

Section

INDUSTRIAL WASTEWATER PRETREATMENT (Cont'd.)
Hazardous metals and chemical or toxic substances 21-303
Information
Confidential 21-333
Falsifying 21-327
Inspection and sampling 21-321, 21-323
Manholes, control 21-324
Notice of potential problems, including slug loading 21-330
Notice of significant noncompliance 21-326
Notification of discharge of hazardous waste 21-332
Permits
Alternative industrial wastewater discharge permit requirements . . . 21-307.1
Application 21-313
Conditions re 21-314
Issuance process 21-316
Requirements 21-307
Pretreatment required 21-325
Reports
Baseline monitoring report 21-308
General reporting and record-keeping requirements 21-317
Ninety-day compliance reports 21-310
Periodic reports on continued compliance 21-311
Signatory requirements re industrial user reports 21-315
Significant categorical industrial user requirements 21-312
Slug control plan 21-329
Notice of potential problems re loading 21-330
Special events
Special provisions
Water usage and disposal of waste water 11-329
Traps, discharges requiring 21-305
Upsets 21-331
Violations
Miscellaneous offenses re sewer system 21-334
Notice of significant noncompliance . . . 21-326
Penalties 21-336
Procedures for abatement re 21-318

INFLAMMABLES. See: COMBUSTIBLES AND INFLAMMABLES

INHUMANE TREATMENT OF ANIMALS
Regulations for 4-26

INSPECTIONS
Buildings . . . . . 6-60 et seq.
See: BUILDINGS
Fire inspection program 8-19
Metal recycling business regulations . . . . . 11-369 et seq.
Inspection of regulated material 11-375
Multi-pet permit 4-81
Sexually oriented businesses
Inspection and maintenance of records 17.5-7

Section

INSPECTIONS (Cont'd.)
Special events
Special provisions; inspections 11-334
Taxation
Historic structures (ad valorem taxes)
Inspection 20-57
Inspection report and required maintenance items 20-61
Water supply and distribution
Cross connection control program
Backflow prevention assemblies
Inspection, testing and registration 21-28

INSURANCE AND INSURANCE COMPANIES
Alarm systems regulated ..... 11-221 et seq.
See: ALARM SYSTEMS
Buildings
Registration of short-term rental properties
Proof of insurance required 6-739
House moving
Certificate of insurance 6-167
Right-of-way management
Insurance requirements 19-68
Vehicles for hire
Generally 11-108
Shared ride shuttle service 11-128

INTERSECTIONS. See: TRAFFIC

INTOXICATING LIQUOR. See: ALCOHOLIC BEVERAGES

IRRIGATION
Drought and emergency response plan ... 21-53 et seq.
See: WATER SUPPLY AND DISTRIBUTION
Landscaping streets in parks 15-104

IRRIGATION SYSTEMS
Backflow prevention methods and devices 6-564
Completion of irrigation system installation 6-569
Definitions 6-561
Design and installation: minimum requirements 6-568
Enforcement 6-574
Fees 6-573
Irrigation plan design: minimum standards 6-567
Items not covered by this article 6-572
Maintenance, alteration, repair, or service of irrigation systems 6-570
Permit required 6-563
Reclaimed water 6-571
Specific conditions and cross-connection control 6-565
Valid license required 6-562
Water conservation 6-566

Section

ITINERANT VENDORS AND CARNIVALS
Definitions 11-141
Private property 11-145

J

JOB PLACEMENT ACTIVITIES
Prohibited in unauthorized locations 11-157

JOINT AUTHORITY
Defined 1-3

JOINT OWNER
Code definitions 1-3

JUDGMENTS OR DECREES
Severability of invalid parts of Code 1-6

JUKE BOXES. See: COIN-OPERATED MACHINES AND DEVICES

JUNKED VEHICLES. See: ABANDONED AND JUNKED VEHICLES

JURORS
Municipal court
Proceedings re jury selection 13-8

JUVENILES. See: MINORS

K

KENNEL
Animal businesses; permit requirements . 4-121 et seq.
See: ANIMALS AND FOWL

L

LAKES. See: WATERWAYS, WATERCOURSES AND WATERFRONT STRUCTURES

LAND
Ad valorem taxes ..... 20-16 et seq.
See: TAXATION
Code definitions 1-3
Platting, developing and subdividing of land
Property. See that subject
Subdivision ordinance 16-131

LANDSCAPING
Drought and emergency response plan ... 21-53 et seq.
See: WATER SUPPLY AND DISTRIBUTION
Park streets re ..... 15-101 et seq.
See: PARKS AND RECREATION
Storm drainage ..... 19-41 et seq.
See: STREETS AND SIDEWALKS

LAWS OF CITY. See: CODE OF ORDINANCES

LEWDNESS. See: INDECENCY AND OBSCENITY

	Section
LIABILITY	
Electricity; city liability	6-291
Inspectors liability re	6-292
Hazardous materials abatement	14-106
Insurance re. See: INSURANCE AND INSURANCE COMPANIES	
Parks and recreation	15-64, 15-65
Planning and development	16-20
Water supply and distribution; charges and rates	
City release from liability when	21-156
LIBEL, SLANDER, DEFAMATION	
TV guidelines regulated	7-36 et seq.
See: CABLE TELEVISION	
LIBRARY	
Advisory board	
Composition	10-16
Duties	10-19
Meetings	10-18
Officers	10-17
Removal of members	10-20
Responsibilities	10-19
Term of office	10-21
Borrowers	
Identification; overdue materials; fees and fines	10-3
Definitions	10-1
Library director	10-2
Overdue materials	10-3
Sexually oriented businesses	
Location regulations	17.5-13
Smoking prohibitions and regulations	14-66 et seq.
See: SMOKING	
LIBRARY ADVISORY BOARD	
Generally	10-16 et seq.
See: LIBRARY	
LICENSES AND PERMITS	
Alarm systems	11-222
Alcoholic beverage permit	3-5
Late hours operation permit	3-8
Animal permits	
Animal establishments and commercial breeders	4-121
Animal exhibition	4-122
Display of permits required	4-127
Emergency suspension of permit and appeal	4-129
Multi-pet permit	4-81
Pet grooming facilities	4-123
Revocation, denial and appeal	4-130
Search and rescue training in public places	4-206, 4-207
Wildlife educational centers	4-125
Wildlife rehabilitators	4-126
Zoological educational outreach display	4-124
Bicycles	
Bike-share permits	12-172
Certificates. See that subject	

	Section
LICENSES AND PERMITS (Cont'd.)	
Coin-operated machines and devices	11-246 et seq.
Delinquent debtors, etc., denied	2-2
Electricians work permits	6-351 et seq.
Entertainment venue permits	14-91 et seq.
See: NOISE	
Fence permit	6-179
Flood damage prevention	
Establishment of a development permit	16-166
Permit procedures	16-173
Food and food establishments	
Suspension, revocation of permit	9-4
Funeral procession permits	12-7
Garage, occasional sales	11-366 et seq.
Hazardous material permits	14-111
Highway permits	16-21
House moving permits	6-152 et seq.
See: BUILDINGS	
Industrial user wastewater discharge permit	21-307 et seq.
See: INDUSTRIAL WASTEWATER PRETREATMENT	
Irrigation systems	
Permit required	6-563
Valid license required	6-562
Limousines. See herein: Vehicles For Hire	
Liquid waste management	21-351 et seq.
Loading or unloading of vehicles	
Permit to back to curb	12-113
Metal recycling businesses	
Licensing	11-377 et seq.
Neighborhood block parties	19-93 et seq.
See: STREETS AND SIDEWALKS	
Open burning permits	14-110
Parks	
Activities allowed with a permit or as posted by the director or his or her designee	15-4
Planning and development, permit fees	16-19
Plumbing contractor's registration	6-221
Private well permits	21-36 et seq.
See: WATER SUPPLY AND DISTRIBUTION	
Public swimming pools; operating health permit	6-454, 6-455
Regulated property	11-362 et seq.
See: REGULATED PROPERTY	
Right-of-way management permits	19-64 et seq.
See: RIGHTS-OF-WAY	
Sexually oriented businesses	17.5-4 et seq.
See: SEXUALLY ORIENTED BUSINESSES	
Shared ride shuttle service permit	11-125 et seq.
See: VEHICLES FOR HIRE	
Special events, permits re	11-307 et seq.
See: SPECIAL EVENTS	
Streets and sidewalks	
Valet parking; licenses	19-2(2)
Swimming pool permits	6-437
Taxicabs. See herein: Vehicles For Hire	

Section

LICENSES AND PERMITS (Cont'd.)
Temporary and nonconforming buildings . 6-111
Vehicles for hire . . . . . 11-106 et seq.
See: VEHICLES FOR HIRE
Wreckers. . . . . 11-201 et seq.
See: WRECKERS

LIENS
Abandoned vehicles, unclaimed re 20-207
Ad valorem taxes, delinquent re 20-33
Impounded property re 17-54
Tax lien on property for ad valorem tax . . 20-33

LIGHTS, LIGHTING
Outdoor lighting
Affirmative defenses 6-470
Applicability 6-467
Definitions 6-466
Enforcement 6-476
Exemptions 6-471
General requirements 6-474
Illumination computation. 6-472
Luminance calculation 6-473
Offenses 6-468
Penalty 6-477
Repeat and habitual offenders . . . . . 6-477(b)
Plan submittal and appeal. 6-475
Presumptions 6-469
Parks and recreation
Ballfield light fee 15-86
Lights; hours and days for use 15-66
Swimming pool requirements. 6-450

LIMOUSINES. See: VEHICLES FOR HIRE

LIQUEFIED PETROLEUM GAS. See: GAS

LIQUID WASTE MANAGEMENT
Applicability 21-351
Definitions 21-352
Enforcement
Appeal 21-393
Authority 21-391
Penalty 21-394
Permit denial, suspension, revocation . 21-392
Liquid waste generation
Generally 21-361
Grease traps 21-362
Grit/sand traps 21-363
Liquid waste transport, disposal facility
Disposal facility 21-382
Liquid waste transport vehicle 21-381
Offenses 21-353

LIQUOR. See: ALCOHOLIC BEVERAGES

LIVESTOCK
Wild animals, bees and livestock . . . . . 4-181 et seq.
See: ANIMALS AND FOWL

LIVESTOCK. See: ANIMALS AND FOWL

Section

LOADING AND UNLOADING
Parking regulations. . . . . 12-112 et seq.
See: TRAFFIC

LOCAL IMPROVEMENTS. See: PUBLIC WORKS AND IMPROVEMENTS

LOGO
Official logo and brand. 2-1

LOUDSPEAKERS
Noise
Presumptions 14-87
Special events
Special provisions; loudspeakers/noise . 11-331

M

MANAGER. See: CITY MANAGER

MANUALS
Storm drainage design manual . . . . . 19-41 et seq.
Streets and sidewalks. See that subject
Traffic-control devices
Conformity with state manual 12-51

MANUFACTURED HOMES AND MANUFACTURED HOME PARKS
Certain ordinances not affected by Code . 1-7
House trailers, parking restricted 12-115

MAPS. See: SURVEYS, MAPS AND PLATS

MAYOR
Metroplex mayor's committee 2-7

MECHANICAL CODE
Additions, amendments, deletions
Chapter 1 Administration 6-254
Chapter 3 General Regulations 6-254
Chapter 4 Ventilation 6-254
Chapter 5 6-254
Chapter 6, Fire walls. 6-254
Administrative authority. 6-253
Adopted. 6-252
Codes, other. See: BUILDINGS
Penalty 6-251

MEDICINES. See: DRUGS AND MEDICINES

METAL RECYCLING BUSINESSES
Generally
Definitions 11-369
Exceptions. 11-370
Licensing of metal recycling entity
Appeal 11-381
Issuance. 11-378
Required 11-377
Revocation. 11-380
Suspension 11-379
Transfer. 11-382
Penalties and enforcement provisions
Offenses; affirmative defenses; penalty 11-384

Section

METAL RECYCLING BUSINESSES (Cont'd.)
Record keeping, regulations and notice
Facsimile, telecopier, or similar equipment required 11-373
Hold on regulated material; segregation, labeling, and inspection of regulated material; exceptions ... 11-375
Hold on stolen regulated material; hold notice 11-376
Notice to sellers..... 11-372
Records required..... 11-371
Restrictions on the purchase of regulated material..... 11-374

METROPLEX MAYOR'S COMMITTEE
Establishment, etc..... 2-7

MICROFILM. See: PUBLIC RECORDS

MICROCHIPS
Animals
City registration required 4-111

MINORS (Juveniles, children, etc.)
Bicycle regulations ..... 12-156 et seq.
See: TRAFFIC
Clinging to vehicles from bicycles, roller skates, etc..... 12-10
Display of sexually explicit material to minors..... 14-10
Motor assisted scooters, regulations ..... 14-26 et seq.
See: MOTOR VEHICLES AND OTHER VEHICLES
Municipal court
Court costs and fees
Local youth diversion fund..... 13-14
Sex offender residency, regulation of..... 14-123
Sexually oriented business restrictions... 17.5-1 et seq.
See: SEXUALLY ORIENTED BUSINESSES
Smoking
Sale or distribution of tobacco products to a minor prohibited; proof of age required..... 14-72

MOBILE COMMUNITY HEALTHCARE PROGRAM
Provisions re..... 8-20

MOBILE HOMES. See: MANUFACTURED HOMES AND MANUFACTURED HOME PARKS

MONEY OF CITY. See: FINANCES

MONTH
Defined..... 1-3

MONUMENTS. See: HISTORIC LANDMARK PRESERVATION

MOTELS. See: HOTELS, ETC.

Section

MOTOR VEHICLES AND OTHER VEHICLES
Abandoned and junked vehicles ..... 12-191 et seq.
See: TRAFFIC
Identification of vehicles
Official logo and brand..... 2-1
Liquid waste management
Liquid waste transport, disposal facility
Liquid waste transport vehicle 21-381
Motor assisted scooters, regulations for
Additional restrictions..... 14-28
Definitions 14-26
Helmets required 14-29
Penalty..... 14-30
Restrictions and prohibitions for motor assisted scooters 14-27
Motorcycles, parking restricted..... 12-115
Parking of vehicles used to transport animals..... 4-204
Parks and recreation..... 15-11
Traffic regulations..... 12-1 et seq.
See: TRAFFIC
Vehicles for hire..... 11-101 et seq.
See: VEHICLES FOR HIRE

MULTI-ETHNIC COMMITTEE
Liaison to..... 2-163

MUNICIPAL COURT
Appeals
Clerk's record..... 13-10
Court costs and fees
Convictions..... 13-15
Court fees authorized 13-11
Credit card use authorized 13-16
Juvenile case manager fund 13-14
Municipal court building security fund 13-12
Municipal court technology fund 13-13
Court personnel
Court reporter..... 13-7
Municipal clerk..... 13-6
Establishment of court
Creation..... 13-1
Jurisdiction..... 13-2
Illegal smoking products and ingestion devices
Affirmative defense 14-126
Municipal judges
Method of selection..... 13-3
Qualifications..... 13
Term of office..... 13-4
Noise
Presumptions..... 14-87
Proceedings of municipal court
Jury..... 13-8
Rules governing proceedings..... 13-9

MUNICIPAL DRAINAGE UTILITY SYSTEM
Charges re..... 21-2
Established..... 21-1

Section

MUNICIPAL GOLF COURSE
Drought and emergency response plan . . . 21-53 et seq.
See: WATER SUPPLY AND DISTRIBUTION
User fees . . . 15-88

N

NINE-ONE-ONE SERVICE
Generally . . . 7.5-16 et seq.
See: EMERGENCIES

NOISE
Applicability . . . 14-90
Buildings
Registration of short-term rental properties
Noise and video monitoring . . . 6-742
Defenses . . . 14-89
Definitions . . . 14-85
Enforcement
Enforcement . . . 14-91.7
Penalties . . . 14-91.8
Entertainment venue permits
Decibel limits for entertainment venues 14-91.1
Decision on application and renewal . . 14-91.5
General . . . 14-91
Notice of application . . . 14-91.4
Permit application . . . 14-91.2
Revocation of a permit . . . 14-91.6
Sound impact plan . . . 14-91.3
Offenses . . . 14-86
Presumptions . . . 14-87
Amplification of sound for commercial advertising . . . 14-87(a)(2)
Animals . . . 14-87(a)(6)
General amplification of sound . . . 14-87(a)(3)
Motor vehicles . . . 14-87(a)(5)
Schools, courts, religious facilities, and hospitals . . . 14-87(a)(4)
Vibration . . . 14-88

NOTICES AND ORDERS
Ad valorem taxes . . . 20-34
Electrical notices/orders . . . 6-289
Industrial wastewater pretreatment . . . 21-326 et seq.
See: INDUSTRIAL WASTEWATER PRETREATMENT
Noise
Entertainment venue permits
Notice of application . . . 14-91.4
Officers and employees, defense and indemnification . . . 2-10(f)
Police, impounded property . . . 17-57
Public records. See that subject
Sewers, violations
Significant noncompliance . . . 21-85
Water service discontinued . . . 21-151
Water supply and distribution
Drought and emergency response plan
Notification and termination of water emergency . . . 21-58
Water supply, shutting off . . . 21-21

NUDE MODEL STUDIOS
Sexually oriented businesses . . . 17.5-1 et seq.
See: SEXUALLY ORIENTED BUSINESSES

NUDITY
Sexually oriented businesses . . . 17.5-1 et seq.
See: SEXUALLY ORIENTED BUSINESSES

NUISANCES
Abandoned and junked vehicles . . . 12-191 et seq.
See: TRAFFIC
Animals as public nuisances . . . 4-51
Keeping livestock; nuisance conditions . . . 4-184
Noise . . . 14-85 et seq.
See: NOISE
Walls, screens, hedges, etc. . . . 14-9

NUMBER
Code word number construed . . . 1-3

O

OATH, AFFIRMATION, SWEAR OR SWORN
Code definitions . . . 1-3
Code of conduct
Contracts with city; affidavits . . . 2-103
Reserve police . . . 17-16 et seq.
See: POLICE DEPARTMENT

OBLIGATIONS OF CITY. See: FINANCES

OBSCENITY. See: INDECENCY AND OBSCENITY

OBSTRUCTIONS
Ditches and drains, obstructing . . . 14-4
Fence locations, protruding over city property, etc. . . . 6-182
Parking limitations . . . 12-96 et seq.
See: TRAFFIC
Streets, alleys, sidewalks, parkway areas, or public grounds . . . 19-1
Walls, screens, hedges, trees, etc. . . . 14-9

OCCUPATIONS
Licenses . . . 11-1 et seq.
See: LICENSES AND PERMITS

OFFENSES
Animals and fowl . . . 4-1 et seq.
See: ANIMALS AND FOWL
Buildings . . . 6-74 et seq.
See: BUILDINGS
Certain ordinances not affected by Code . 1-7

	Section
OFFENSES (Cont'd.)	
Code of conduct for city personnel	2-96 et seq.
See: CODE OF CONDUCT	
Council hearings	2-4
Facsimile firearms	
Defenses	14-12(c)
Definitions	14-12(a)
Offenses	14-12(b)
General penalty clause	1-4, 14-1
Graffiti	14-15
Intent to commit prostitution in a public place	14-14
Lights, lighting	
Outdoor lighting	
Offenses	6-468
Miscellaneous offenses	14-1 et seq.
See specific subjects	
Motor assisted scooters, regulations for	14-26 et seq.
See: MOTOR VEHICLES AND OTHER VEHICLES	
Noise	14-85 et seq.
See: NOISE	
Parks, activates prohibited in	15-3
Private wells	21-36 et seq.
See: WATER SUPPLY AND DISTRIBUTION	
Sewer system re	21-68
Sex offender residency, regulation of	14-123
Shopping carts	14-13
Smoking	14-71
Unauthorized entry on city premises; abandoned property	14-16
Abandoned property	14-16(d)
Criminal penalty	14-16(c)
Definitions	14-16(a)
Offense	14-16(b)
Urinating or defecating in public	14-11
Vulnerable road users	14-127 et seq.
See: TRAFFIC	
Water supply and distribution	
Cross connection control program	
Offenses and penalties	21-35
OFFICERS AND EMPLOYEES	
Affirmative action program adopted	2-41
Building official. See: BUILDINGS	
City manager	2-21 et seq.
See: CITY MANAGER	
Code definitions	1-3
Code of conduct for city personnel	2-96 et seq.
See: CODE OF CONDUCT	
Compensation, salaries, etc.	
Board, commission, committees, departments, agencies, etc. See specific subjects	
Certification pay plan for classified members of police and fire departments	2-42
Defense and indemnification	2-10
Equal rights policy	2-11

	Section
OFFICERS AND EMPLOYEES (Cont'd.)	
Flood damage prevention	
Floodplain administrator	
Designation	16-171
Duties and responsibilities	16-172
Garbage and trash	
Collection charges	
Downtown collection accommodation and rates	
Appeal to director of sustainability and environmental services	18-36(d)
Issuance of decision by director	18-36(e)
Heritage preservation officer	16-106, 16-107
Joint authority defined	1-3
Lawsuits and risk management	2-9
Library director	10-2
Local rabies control authority	
Health director designated; duties	4-2, 4-3
Municipal court	
Court personnel	
Court reporter	13-7
Municipal clerk	13-6
Mutual aid disaster agreements	8-4
Police officers	
Authority of	17-2
Records management program	
Officers and employees, responsibility	2-120
Reserve police	17-16 et seq.
See: POLICE DEPARTMENT	
Supervision and control of department	2-22
Texas Municipal Retirement System	2-56 et seq.
See: TEXAS MUNICIPAL RETIREMENT SYSTEM	
Traffic	
Public safety officers	12-14
Water supply and distribution	
Cross connection control program	
Appeal of determinations under this division	
Appeal to director of public works	21-33(a)
Issuance of decision by director	21-33(c)
OPEN SPACES. See: YARDS AND OPEN SPACES	
OR, AND	
Code conjunctions construed	1-3
ORDINANCES. See: CODE OF ORDINANCES	
OUTDOOR TOILET FACILITIES	
Definitions	6-711
Enforcement	6-715
Maintenance and operation	6-713
Prohibited uses	6-714
Requirements for portable toilets	6-712
OWNER	
Defined	1-3

	Section
P	
PAPERS. See: PUBLIC RECORDS	
PARKING. See: TRAFFIC	
PARKS AND RECREATION	
Accidents, liability	15-65
Activities allowed with a permit or as posted by the director or his or her designee	15-4
Adoption of park master plan; purpose	15-9
Animals	15-10
Appeal of permit denial or conditional approval	15-8
Athletic activities	
Allocations	15-57
Casual scheduling	15-63
Concessions	15-64
Facility maintenance	15-62
Insurance	15-65
Intent	15-53
Lights; hours and days for use	15-66
Organizations using facilities	
Requirements for	15-58
Penalty	15-51
Policy administration	15-54
Practice sessions	15-60
Purpose	15-52
Sports seasons	15-56
Tournaments/meets/camps/clinics/tryouts	15-59
User fees	15-61
Board. See herein: Planning Board	
Commercial vehicles in	12-138
Definitions	15-1
Department; administration of provisions	15-103
Director	
Agreements executed by	15-107
Responsibilities	15-2
Facility maintenance	15-62
Fees, charges. See herein: User Fees	
Functions where security precautions necessary	15-7
Golf course. See herein: Municipal Golf Course	
Insurance, liability	15-65
Landscaping streets	
Agreements	
Director to execute	15-107
Incorporated	15-105
Required	15-106
Compliance	15-102
Department to administer provisions	15-103
Director of parks and recreation	
Duties	15-107
Exemption	15-101
Irrigation facilities	15-104
Terms and conditions adopted as policies	15-105
Liability	15-65
PARKS AND RECREATION (Cont'd.)	
Lights; hours and days for use	15-66
Motor vehicles	15-11
Municipal golf course	
User fees	15-88
Park and recreation fee	
Accounting procedures	16-269
Additional, supplemental requirement, fee as	16-274
Appeals, variances, exceptions	16-273
Applicability of fee	16-264
Authority, imposition of fee	16-265
Definitions	16-263
Processing, collection of fee	16-267
Purpose, imposition of	16-262
Refunds	16-270
Reimbursement of developer contributions	16-271
Service areas, park improvements plan, park fees	16-266
Title	16-261
Updating park fees, procedures for	16-272
Use of funds	16-268
Park hours	15-2.1
Permit application procedure	15-5
Planning board	
Appointment of members	15-21(b)
Chairman vice-chairman and secretary	15-22
City staff members as ex officio members	15-21(c)
Compensation	15-21(b)
Generally	15-21
Meetings	15-23
Record of proceedings	15-22
Membership	15-21
Officers	15-22
Qualifications	15-21
Quorum	15-21
Removal of members	15-25
Responsibilities and duties	15-24
Terms of office	15-26
Voting	15-21
Prohibited activities	15-3
Reasons for permit denial	15-6
Sexually oriented businesses	
Location regulations	17.5-13
Streets, landscaping. See herein: Landscaping Streets	
Swimming pool fees	15-87
Tournaments/meets/camps/clinics/tryouts	
Athletic activities	15-59
Trees, shrubs on public property; planting, maintaining	
Attaching objects to trees	15-120
Grant of authority	15-116
Planting, preserving, removing, etc.	15-117
Breaking, injuring, etc.	15-119
Public works department, coordination with	15-116
Violation and penalty	15-122

Section

PARKS AND RECREATION (Cont'd.)
User fees
Ballfield light fee 15-86
Collection, disposition 15-82
Compliance with provisions required to use facilities 15-84
Establishment of 15-81
General facility user fee 15-85
Golf course user fees 15-88
Recreation center fees 15-89
Reductions, facility fee 15-91
Residents, nonresidents 15-83
Swimming pool fees 15-87
Tennis facility fees 15-90

PARTNERSHIP
Code definitions 1-3

PENALTIES. See: FINES, FORFEITURES AND OTHER PENALTIES

PENSIONS AND RETIREMENT
Texas Municipal Retirement System ..... 2-56 et seq.

PERMITS. See: LICENSES AND PERMITS

PERSON
Code definitions 1-3

PET SHOPS, GROOMING FACILITY
Animal businesses; permit requirements . 4-121 et seq.
See: ANIMALS AND FOWL

PETROLEUM. See: GAS

PINBALL MACHINES. See: COIN-OPERATED MACHINES AND DEVICES

PLANNING AND DEVELOPMENT
Apartment and commercial developments
Review and approval of site plans 6-20
Bikeway plan, comprehensive 12-171
Board of adjustment
Alternate members 16-82
Meetings 16-83
Regular members 16-81
Developers
Liability 16-20
Payments to 16-1
Development amenities policies 16-3
Development permits. See herein: Permits
Fees
Traffic and street signs, fees 16-22
Zoning, rezoning, specific use permits, historic landmark designations, refunds, etc.
Board of adjustment filing fee 16-18
Miscellaneous filing fees 16-19
Findings policy 16-4
Flood damage prevention ..... 16-161 et seq.
Health facilities development corporation 16-61 et seq.
Heritage resource preservation ..... 16-101 et seq.
House moving regulations ..... 6-151 et seq.
See: BUILDINGS

Section

PLANNING AND DEVELOPMENT (Cont'd.)
Housing infill program ..... 16-251 et seq.
See: HOUSING INFILL PROGRAM
Irrigation systems
Irrigation plan design; minimum standards 6-567
Liability of developer 16-20
Park and recreation fee ..... 16-261 et seq.
Park master plan 15-9
Payments to developers 16-1
Permits
Highway permits 16-21
Miscellaneous fees re 16-19
Miscellaneous permit filing fees 16-19
Planning and zoning commission ..... 16-41 et seq.
See: PLANNING AND ZONING COMMISSION
Platting, developing and subdividing of land
Subdivision ordinance 16-131
Retail corner guidelines 16-2
Swimming pool regulations ..... 6-436 et seq.
See: SWIMMING POOLS
Traffic and street signs, fees 16-22

PLANNING AND ZONING COMMISSION
Appeals re zoning
Notification of adjacent property owners 16-46
Appointment of members 16-41
Ex officio members 16-42
Hearings before 2-4
Number of members 16-41
Planning generally. See: PLANNING AND DEVELOPMENT
Powers and duties 16-45
Qualifications 16-42
Removal 16-42
Terms of office 16-43
Vacancies, filling 16-44

PLANO, CITY OF. See: CITY

PLATS. See: SURVEYS, MAPS AND PLATS

PLUMBING
Code
Administrative authority 6-238
Adopted 6-237
Deletions, additions, amendments 6-239
Penalty 6-236
Codes, other. See: BUILDINGS
Contractor's registration 6-221
House moving regulations ..... 6-151 et seq.
See: BUILDINGS
Permits
Swimming pools 6-437
Plumbing inspector
Appeals from decisions of, powers 6-223
Registration of plumbing contractors 6-221
Sewers ..... 21-61 et seq.
See: SEWERS AND SEWAGE DISPOSAL

Section

PLUMBING (Cont'd.)
Swimming pool regulations ..... 6-436 et seq.
See: SWIMMING POOLS
Water supply ..... 21-1 et seq.
See: WATER SUPPLY AND DISTRIBUTION

POISONS. See: HAZARDOUS MATERIALS

POLES AND WIRES
Electrical code ..... 6-271 et seq.
Flags and flagpoles; requirements for display ..... 6-500 et seq.
See: BUILDINGS
Trees; attaching objects to public trees ... 15-120
Wire and unused apparatus, removal if abandoned 6-286

POLICE DEPARTMENT
Alarm systems ..... 11-221 et seq.
Certification pay plan 2-42
Community relations commission ..... 2-156 et seq.
Comprehensive emergency management plan ..... 2-136 et seq.
Emergency management provisions ..... 2-136 et seq.
Federal, state, etc., law enforcement equipment
Utilization by police department, responsibility for safe keeping ... 17-1
Impounded property
Authority to impound 17-52
Lien in favor of city 17-54
Purchasing director
Delivery of property for sale to 17-56
Redemption 17-53
Retention
Maximum retentive period 17-52
Sale of property
Authority of city 17-54
Delivery of property to purchasing director 17-56
Disposition of proceeds 17-60
Notice and method of sale 17-57
Police department employees not to purchase 17-58
Unclaimed property to be sold 17-55
Violations, penalty 17-51
Removal, suspension, demotion of personnel 17-59
Worthless property, disposition 17-61
Mutual aid disaster agreements 8-4
Police officers
Authority of 17-2
Public records. See that subject
Reserve police
Activation 17-28
Appointments
Certificate of appointment 17-22
Chief 17-26
Generally 17-19
Chief; appointment and duties 17-26

Section

POLICE DEPARTMENT (Cont'd.)
Compensation 17-24
Composition 17-18
Definitions 17-16
Firearms; carrying and using 17-31
Nightstick, authority to carry 17-30
Oath and bond 17-21
Powers and duties generally 17-29
Supervision 17-25
Term of office 17-23
Training of applicants 17-20
Uniforms 17-27
Unit created to augment department .. 17-17
School crossing guards 12-11
Special events
Special provisions; police protection ... 11-336
Traffic, duties re 12-3
Wreckers, dispatching 11-206

POLLUTION
Industrial wastewater pretreatment ..... 21-301 et seq.
See: INDUSTRIAL WASTEWATER PRETREATMENT
Sewage discharges generally ..... 21-64 et seq.
Smoking ..... 14-66 et seq.
See: SMOKING

PRECEDING, FOLLOWING
Terms defined 1-3

PREJUDICE. See: DISCRIMINATION

PRIVIES, VAULTS, ETC. See: TOILET FACILITIES

PROFANITY. See: INDECENCY AND OBSCENITY

PROPERTY
Ad valorem taxes ..... 20-16 et seq.
See: TAXATION
Code definitions 1-3
Code of conduct
Disclosure of interest
Real property interests 2-102
Impounded property in possession of police 17-51 et seq.
See: POLICE DEPARTMENT
Itinerant vendors and carnivals on private property 11-156
Outdoor lighting ..... 6-466 et seq.
See: LIGHTS, LIGHTING
Platting, developing and subdividing of land
Subdivision ordinance 16-131
Property maintenance code ..... 6-45 et seq.
Registration of short-term rental properties ..... 6-730 et seq.
See: BUILDINGS
Regulated property ..... 11-362 et seq.
See: REGULATED PROPERTY

Section

PROPERTY (Cont'd.)
Trees, shrubs on public property; planting, maintaining . . . . . 15-116 et seq.
See: PARKS AND RECREATION

PROSTITUTION
Intent to commit prostitution in a public place 14-14

PUBLIC HEALTH. See: HEALTH AND SANITATION

PUBLIC HEARINGS. See: HEARINGS

PUBLIC LIBRARY. See: LIBRARY

PUBLIC NUISANCES. See: NUISANCES

PUBLIC RECORDS
Buildings
Registration of short-term rental properties
Hotel occupancy taxes; request for occupancy history 6-740
Owner self-inspections and record retention 6-741
Code amendments, additions, supplementation 1-8, 1-9
Destruction of 2-122
Free access of public to records 2-121
Metal recycling businesses
Records required 11-371
Official logo and brand 2-1
Records management program . . . . . 2-116 et seq.
See: RECORDS MANAGEMENT PROGRAM
Sexually oriented businesses
Inspection and maintenance of records 17.5-7

PUBLIC RIGHTS-OF-WAY. See: RIGHTS-OF-WAY

PUBLIC UTILITIES. See: UTILITIES

PUBLIC WORKS AND IMPROVEMENTS
Certain ordinances not affected by Code . 1-7
Flood damage prevention . . . . . 16-161 et seq.
See: FLOOD DAMAGE PREVENTION
Naming/renaming city facilities 2-13
Platting, developing and subdividing of land
Subdivision ordinance 16-131
Streets. See: STREETS AND SIDEWALKS
Water supply and distribution
Cross connection control program
Appeal of determinations under this division
Appeal to director of public works 21-33(a)
Issuance of decision by director . . 21-33(c)

PURCHASING
Code of conduct for city personnel . . . . . 2-96 et seq.
See: CODE OF CONDUCT
Procurement code 2-12

Section

R

RABIES CONTROL
Rabies and zoonosis control . . . . . 4-91 et seq.
See: ANIMALS AND FOWL

RADIOS
Radio and television transmitting equipment 6-308

RAILROADS AND TRAINS
Traffic provisions . . . . . 12-256 et seq.
See: TRAFFIC

RECORDS MANAGEMENT PROGRAM
Definitions 2-117
Establishment and administration 2-118
Microfilming and electronic storage of municipal records
Authority and record standards and procedures 2-126
Definitions 2-127
Destruction of original municipal public records after microfilming or electronically storing 2-132
Electronically stored documents, certification of 2-130
Microfilm records, certification of 2-129
Public access to microfilm and electronic records 2-131
Types of records subject to microfilming or electronic storage; indices 2-128
Officers and employees, responsibility . . . 2-120
Official logo and brand 2-1
Ownership of municipal records 2-120
Responsibilities 2-119
Title 2-116

RECORDS. See: PUBLIC RECORDS

RECREATION. See: PARKS AND RECREATION

RECREATIONAL VEHICLES
Parking in zoning districts 12-115

RECYCLABLES. See: GARBAGE AND TRASH

RECYCLING
Metal recycling business regulations . . . . . 11-369 et seq.
See: METAL RECYCLING BUSINESSES

REFUSE. See: GARBAGE AND TRASH

REGULATED MATERIALS
Metal recycling business regulations . . . . . 11-369 et seq.
See: METAL RECYCLING BUSINESSES

REGULATED PROPERTY
Definitions 11-362
Exemptions 11-365
Offenses 11-364

	Section
REGULATED PROPERTY (Cont'd.)	
Records	11-363
Regulated property purchases	11-363
RESERVE POLICE	
Generally	17-16 et seq.
See: POLICE DEPARTMENT	
RESIDENTIAL CODE	
Adopted	6-709
Deletions, additions, amendments, third party organizations	6-710
Penalty	6-708
RESTAURANTS. See: FOOD AND FOOD ESTABLISHMENTS	
RESTROOMS. See: TOILET FACILITIES	
RETIREMENT	
Texas Municipal Retirement System	2-56 et seq.
REVENUE. See: FINANCES	
RIGHTS, FRANCHISES, ETC.	
Certain ordinances not affected by Code	1-7
RIGHTS-OF-WAY	
Fences on drainage and floodway easements	6-188
Public ways generally. See: STREETS AND SIDEWALKS	
Right-of-way management regulations	
Abandonment and removal of facilities	19-83
Annual and monthly rates for use	19-71
Appeals	
Appeal to city manager	19-67(b)
Applicability	19-67(a)
Issuance of decision by city manager	19-67(c)
City engineer's authority; enforcement; violations	19-62
Construction and restoration standards for newly constructed or overlayed streets	19-81
Construction; governing law; venue	19-57
Definitions	19-60
Facility size and locations	
Antenna size	19-66(9)
Attachments to city-owned service poles	19-66(5)
Colors	19-66(23)
Compliance with AASHTO	19-66(26)
Concealment and enclosure, generally	19-66(19)
Design and historic district criteria	19-66(21)
Electric code	19-66(12)
Existing telephone or electrical lines between existing utility poles	19-66(13)
General construction and maintenance requirements	19-66(25)
Ground enclosure size	19-66(18)
Ground equipment, generally	19-66(17)
Ground equipment, parks and public art	19-66(16)
Height of equipment mounted on poles	19-66(6)
Limitation on equipment on poles	19-66(10)
Location in right-of-way, existing development	19-66(3)
Location in right-of-way, generally	19-66(1)
Location in right-of-way, new development	19-66(2)
New poles	19-66(4)
Preserve sight visibility and access	19-66(20)
Private pole owner permission	19-66(11)
Prohibition on overhead facilities and overhead transport facilities	19-66(14)
Protrusion of equipment	19-66(7)
Size of pole mounted equipment	19-66(8)
Temporary utilities	19-66(24)
Underground construction and use of poles	19-66(15)
Utility easements	19-66(22)
General rights-of-way use and construction	
Electrical supply	19-74(i)
Erosion control	19-74(g)
Excavation safety	19-74(f)
Joint trenching	19-74(e)
Minimal interference	19-74(b)
On-site requirements	19-74(h)
Responsibilities under permit; location of facilities	19-74(c)
Responsibility for employees, courtesy and drug policy	19-74(a)
Underground construction and use of poles	19-74(d)
Indemnification	19-69
Insurance requirements	19-68
Joint planning and construction; coordination of excavations	
Excavation master plan	19-76(c)
Excavations in city rights-of-way disrupt and interfere with the public use of the city streets and damage the pavement and landscaping	19-76(a)
Utility coordination meeting	19-76(b)
Minimizing the impacts of work in the rights-of-way	
Clean up	19-77(g)
Deposit of dirt and material on roadways	19-77(c)
Graffiti abatement	19-77(j)
Noise, dust, debris, hours of work	19-77(a)
Notification	19-77(m)
Ownership	19-77(l)
Protection of paved surfaces from equipment damage	19-77(e)
Protection of property	19-77(f)
Protection of trees and landscaping	19-77(d)

	Section
RIGHTS-OF-WAY (Cont'd.)	
Signage	19-77(k)
Trash and construction materials	19-77(b)
Vehicle parking	19-77(h)
Walkways	19-77(i)
No directional boring zones	19-75
Penalties	19-63
Performance warranty/guarantee	19-70
Permit	
Application; permit contents	
Denial, suspension, or revocation of a permit	19-65(c)
General	19-65(a)
Types of permits	19-65(b)
Plans of record	19-73
Police powers	19-61
Purpose; objectives; applicability	19-59
Registration	19-72
Relocation of facilities for public improvements	19-82
Requirements for street cuts and repairs	19-79
Right-of-way permit required	19-64
Exceptions	19-64(b)
Permit required	19-64(a)
Permits generally	19-64(c)
Scope	19-58
Standards for repair and restoration	19-80
Title	19-56
Traffic control	19-78
RIOTS. See: EMERGENCIES	
RISK MANAGEMENT	
Defense and indemnification of officers and employees	2-10
Lawsuits and risk management	
Authority to file suit on behalf of the city	2-9(a)
Risk management steering committee and risk manager	2-9(c)
Settlement authority	2-9(b)
RIVERS. See: WATERWAYS, WATERCOURSES AND WATERFRONT STRUCTURES	
ROADWAYS. See: STREETS AND SIDEWALKS	
ROBBERY ALARMS. See: ALARM SYSTEMS	
RODENT CONTROL. See: INSECT AND RODENT CONTROL	
ROLLER SKATES	
Clinging to vehicles from	12-10
RUBBISH. See: GARBAGE AND TRASH	
RULES OF CONSTRUCTION	
General definitions for interpreting Code	1-3

S

	Section
SAND, MUD, SOIL, ETC.	
Industrial wastewater pretreatment	21-301 et seq.
See: INDUSTRIAL WASTEWATER PRETREATMENT	
Sewage discharges generally	21-64 et seq.
See: SEWERS AND SEWAGE DISPOSAL	
SANITATION. See: HEALTH AND SANITATION	
SCHOOLS	
Alcoholic beverages, sale of near	3-2
Coin-operated machine prohibitions	11-253
Community relations commission	2-156 et seq.
See: COMMUNITY RELATIONS COMMISSION	
Noise	
Presumptions	14-87
School buses; overtaking, meeting or passing	12-117
School crossing guards	12-11
Sexually oriented businesses	
Location regulations	17.5-13
Smoking prohibitions and regulations	14-66 et seq.
See: SMOKING	
Speed limits, school zones established	12-73
SCOOTERS. See: MOTOR VEHICLES AND OTHER VEHICLES	
SCREENS. See: FENCES, WALLS, HEDGES AND ENCLOSURES	
SEARCH AND RESCUE TRAINING IN PUBLIC PLACES	
Animals and fowl	4-206, 4-207
SECURITY	
Building security code	6-661 et seq.
See: BUILDINGS	
SEDIMENTATION CONTROL. See: SOIL EROSION AND SEDIMENTATION CONTROL	
SENIOR CITIZENS	
Advisory board re	
Created; purpose	2-241
Duties	2-246
Meetings; quorum	2-244
Membership	2-242
Officers	2-243
Removal of members; attendance	2-245
Reports	2-247
Homestead tax exemption	20-17, 20-18
SEPTIC TANKS. See: TOILET FACILITIES	
SETBACK LINES	
Retail corner guidelines	16-2

	Section
SETBACK LINES (Cont'd.)	
Sign setbacks. See: SIGNS AND BILLBOARDS	
Swimming pool regulations	6-449
SEVERABILITY	
Invalid parts of Code	1-6
SEWERS AND SEWAGE DISPOSAL	
Charges and rates	
Billing and payment	21-131
Connections, taps, meter sets, other fees; schedule of	21-133
Industrial wastewater surcharge	21-69
No free service	21-132
Pro rata fees and extensions of facilities See: UTILITIES	21-166 et seq.
Sewer charge schedule	
Nonresidential	21-136
All nonresidential	21-136(1)
Residential	21-135
Codes. See: BUILDINGS	
Connections, mandatory	21-62
Charges and rates. See herein that subject	
Storm sewer, physical connections to	21-66
Definitions	21-61
Discharges prohibited	21-65
Ditches and drains, obstructing	14-4
Fees. See herein: Charges and Rates	
Flood damage prevention	16-161 et seq.
Funds, disposition of	21-70
House moving regulations See: BUILDINGS	6-151 et seq.
Industrial wastewater pretreatment	21-301 et seq.
Industrial wastewater surcharge	21-69
Liquid waste management	21-351 et seq.
Municipal drainage utility system	21-1, 21-2
Natural outlets, discharge to generally	21-64
Offenses. See herein: Violations	
Private disposal facilities	21-63
Rates. See herein: Charges and Rates	
Solid waste collections See: GARBAGE AND TRASH	18-1 et seq.
Standard and nonstandard cooling tower meters	21-137
Storm drainage See: STREETS AND SIDEWALKS	19-41 et seq.
Storm sewer, physical connections to	21-66
Swimming pool regulations	6-442
Utility provisions, other. See: UTILITIES	
Violations	
Miscellaneous offenses re sewer system	21-68
SEXUALLY ORIENTED BUSINESSES	
Additional regulations	17.5-20
Additional violations	
Conduct of employees and patrons	17.5-19
Appeal	17.5-11
Classification	17.5-3
Definitions	17.5-2
SEXUALLY ORIENTED BUSINESSES (Cont'd.)	
Exterior portions of	17.5-16
Hours of operation	17.5-21
Inspection and maintenance of records	17.5-7
License	
Application	17.5-5
Expiration of	17.5-8
Issuance/grounds for denial	17.5-6
Required	17.5-4
Revocation	17.5-10
Suspension	17.5-9
Transfer	17.5-12
Location regulations	17.5-13
Location restrictions, exemption from	17.5-14
Minors prohibited	17.5-18
Nonconforming; amortization schedule	17.5-15
Penalty	17.5-22
Purpose, intent	17.5-1
Signage	17.5-17
SHUTTLE SERVICE	
Shared ride shuttle service See: VEHICLES FOR HIRE	11-125 et seq.
SIDEWALKS. See: STREETS AND SIDEWALKS	
SIGNATURE, SUBSCRIPTION	
Terms defined	1-3
SIGNS AND BILLBOARDS	
Buildings	
Property maintenance code	
Registration and inspection of hotel/motel properties; posting	6-100
Registration of short-term rental properties	
Registration and host rules to be displayed	6-743
Electrical sign installations	6-280
Exhibiting card re "NO SOLICITORS"	11-187
Garage, occasional sales	11-368
Parks, prohibited activities	15-3
Sexually oriented businesses; signage	17.5-17
Smoking, no smoking signs	14-69
Special events	
Special provisions; signage	11-332
Temporary signs See: BUILDINGS	6-486 et seq.
Trees, attaching objects to	15-120
SISTER CITIES PROGRAM	
Invitation accepted	2-8
SKATEBOARDS, ROLLER SKATES, ROLLERBLADES	
Prohibited within certain areas	14-7
SMOKING	
Definitions	14-66
Enforcement	14-70

	Section
SMOKING (Cont'd.)	
Illegal smoking products and ingestion devices	
Affirmative defense	14-126
Definitions	14-124
Violation	14-125
Minors	
Sale or distribution of tobacco products to a minor prohibited; proof of age required	14-72
Offenses and penalties	14-71
Places where smoking is	
Not prohibited	14-68
Prohibited	14-67
Signs, posting of	14-69
Vendor assisted sales required; self-service merchandising prohibited	14-74
SOIL EROSION AND SEDIMENTATION CONTROL	
Erosion control	
Appeals	14-101
Definitions	14-92
Enforcement	14-100
Erosion control plans	14-94
Erosion control required	14-93
Farming and ranching activities	14-98
Franchised utility companies	14-97
Nonresidential and multifamily construction	14-95
Residential lots with a building permit	14-99
Residential subdivisions; compliance	14-96
SOLID WASTE. See: GARBAGE AND TRASH	
SPECIAL EVENTS	
Application of article; exceptions	11-302
Approval team	11-303
Definitions	11-301
Filming	
Filing period	11-358
Generally	11-356
Permit	11-357
Submittal requirements	11-359
Insurance, indemnification, surety bond and costs	
Bond required	11-345
Fees/costs	11-346
Indemnification	11-344
Insurance for special events	11-343
Offenses and penalty	
Generally	11-349
Permit	
Appeal of denial or revocation	11-312
Application for permit	11-308
Duration of permit	11-314
Filing period and procedure for review and issuance of permit	11-309
Permit required	11-307
Special event impact area	11-313
Standards for issuance of permit	11-311
SPECIAL EVENTS (Cont'd.)	
Submittal requirements	11-310
Private non-permitted events	
Private non-permitted events	11-352
Reserved	11-354, 11-355
Standards for private, non-permitted events	11-353
Purpose and conflicting ordinances	11-300
Special provisions	
Alcohol	11-333
Americans with disabilities	11-319
Amusement	11-323
Animals	11-328
Applicant parking requirements	11-320
City authority over parking	11-321
Direction of traffic	11-335
Emergency cancellations and delays	11-339
Fire safety	11-337
Food and alcohol service	11-326
Hours of operation	11-324
Inspections	11-334
Loudspeakers and noise	11-331
Medical personnel	11-338
Police protection	11-336
Sanitary facilities	11-327
Signage	11-332
Tents and temporary structures	11-325
Trailers	11-322
Trash disposal	11-330
Water usage and disposal of waste water	11-329
SPILLS	
Hazardous material spills	14-106 et seq.
See: HAZARDOUS MATERIALS	
STANDARD CODES. See: BUILDINGS	
STATE	
Defined	1-3
STOLEN PROPERTY	
Metal recycling business regulations	11-369 et seq.
Hold on stolen regulated material; hold notice	11-375, 11-376
STORAGE	
Combustibles and inflammables. See that subject	
Fire code re	8-16 et seq.
See: FIRE CODE	
Gas. See that subject	
Hazardous materials. See that subject	
STORM DRAINAGE	
Flood damage prevention	16-161 et seq.
See: FLOOD DAMAGE PREVENTION	
Generally	19-41 et seq.
See: STREETS AND SIDEWALKS	
Sewage discharges generally	21-64 et seq.
See: SEWERS AND SEWAGE DISPOSAL	

	Section
STREETS AND SIDEWALKS	
Alcoholic beverages	
Consumption in certain places	3-6
Alleys	
Consumption of alcoholic beverages	3-6
Maximum speed limits	12-76
Parking in	12-108
Animals and fowl	
Search and rescue training in public places	4-206, 4-207
Bicycle regulations	12-156 et seq.
See: TRAFFIC	
Cable television franchise, Appendix B	
Certain ordinances not affected by Code	1-7
Design and construction	
Sidewalk location design standards	19-27
Drainage. See herein: Storm Drainage	
Driveways	
Design and construction. See herein that subject	
Driveway approaches	19-26.1
Electric fences	6-180
Encroachment of public property	19-1
Affirmative defenses	19-1(b)
Application	19-1(c)
Enforcement	19-1(e)
Offense	19-1(a)
Penalty	19-1(f)
Excavations	
Storm drainage. See herein that subject	
Fees for planning, development permits, landmarks, etc.	16-18 et seq.
See: PLANNING AND DEVELOPMENT	
Fence locations, protruding over city property, etc.	6-182
Flood damage prevention	16-161 et seq.
See: FLOOD DAMAGE PREVENTION	
Highways. See herein: Streets, Highways, Etc.	
House moving regulations	6-151 et seq.
See: BUILDINGS	
Intersections. See: TRAFFIC	
Landscaping, park streets. See herein: Park Street Landscaping	
Motor assisted scooters, regulations for	14-26 et seq.
See: MOTOR VEHICLES AND OTHER VEHICLES	
Municipal street maintenance agreements with state	
Certain ordinances not affected by Code	1-7
Park street landscaping	15-101 et seq.
See: PARKS AND RECREATION	
Permits. See herein specific subjects	
Retail corner guidelines	16-2
Right-of-way management regulations	19-56 et seq.
See: RIGHTS-OF-WAY	
Roadway defined	1-3
Shrubbery. See herein: Trees and Shrubbery	

	Section
STREETS AND SIDEWALKS (Cont'd.)	
Sidewalk	
Defined	1-3
Permit required	19-27.1
Speed limits of vehicles	12-71 et seq.
See: TRAFFIC	
Storm drainage design manual	
Adopted	19-41
Jurisdiction of	19-43
Subdivision ordinance, subordinate to	19-42
Streets, highways, etc.	
Code definitions	1-3
Consumption of alcoholic beverages	3-6
Highway permits	16-21
Street closure for neighborhood event	
Barricades	19-95
Definitions	19-91
Denial of permit, appeal	19-93
Maximum limits on specific streets	12-74(b)
Offenses	19-96
Penalty	19-97
Permit required, application; petition	19-92
Revocation of permit	19-94
Traffic	
Parking, stopping and standing	
Stopping, standing, or parking of vehicles exceeding ten thousand (10,000) pounds GVW prohibited on certain streets at all times	12-114.1
Trees and shrubbery; planting, maintaining on public property	15-116 et seq.
See: PARKS AND RECREATION	
Utility location and coordination. See herein: Manual for Utility Location and Coordination	
Valet parking	
Definitions	19-2(1)
Enforcement	19-2(4)
Licenses	19-2(2)
Violations	19-2(3)
SUBDIVISIONS	
Erosion control	
Residential subdivisions; compliance	14-96
Fees for planning, development, permits, landmarks, etc.	16-18 et seq.
See: PLANNING AND DEVELOPMENT	
Flood damage prevention	16-161 et seq.
See: FLOOD DAMAGE PREVENTION	
House moving regulations	6-151 et seq.
See: BUILDINGS	
Park and recreation fee	16-261 et seq.
Plats generally. See: SURVEYS, MAPS AND PLATS	
Platting, developing and subdividing of land	
Subdivision ordinance	16-131
Storm drainage	19-41 et seq.
See: STREETS AND SIDEWALKS	

Section

SUBDIVISIONS (Cont'd.)
Vacation of plats. See herein: Replatting

SUITS AND OTHER PROCEEDINGS
Lawsuits and risk management 2-9

SURVEYS, MAPS AND PLATS
Certain ordinances not affected by Code . 1-7
Fees for planning, development, permits, landmarks, etc. ..... 16-18 et seq.
See: PLANNING AND DEVELOPMENT
Flood damage prevention ..... 16-161 et seq.
See: FLOOD DAMAGE PREVENTION
Platting, developing and subdividing of land
Subdivision ordinance 16-131
Retail corner guidelines 16-2

SWEAR OR SWORN. See: OATH, AFFIRMATION, SWEAR OR SWORN

SWIMMING POOL AND SPA CODE
Adopted 6-721
Deletions, additions, amendments 6-722
Penalty 6-720

SWIMMING POOLS
Appeals 6-451
Definitions 6-436
Diving, jump boards, diving areas, slides. 6-446
Drought and emergency response plan ... 21-53 et seq.
See: WATER SUPPLY AND DISTRIBUTION
Electrical, plumbing requirements 6-450
Enclosure (swimming pool) 6-448
Inlets, outlets 6-440
Inspections 6-438
Ladders, recessed treads, stairs 6-445
Lighting, electrical, plumbing requirements 6-450
Location on property (pool) 6-449
Minimum standards for pools 6-439
National Sanitation Foundation 6-447
Permit (residential, private swimming pools) 6-437
Plumbing requirements 6-450
Public swimming pools, spas, interactive water features and fountains (standards) 6-453
Appeals 6-456
Conflict of regulations 6-457
Enforcement; penalty for violations ... 6-458
Operating health permit
Issuance 6-454
Revocation or suspension 6-455
Recirculation system 6-443
Residential, private swimming pools (permit) 6-437
Sand type filters 6-444
Sewer and waste water disposal 6-442
Skimmers 6-441

Section

SWIMMING POOLS (Cont'd.)
Swimming pool and spa code ..... 6-720 et seq.
See: SWIMMING POOL AND SPA CODE

T

TAXATION
Ad valorem taxes
Delinquent taxes
Attorney's fees for collection, etc. ... 20-35
City contract for collection
Effect of provisions 20-36
Collection costs, as to penalties, etc.
Amount 20-32
Incurred 20-31
Tax lien 20-33
Notice of delinquency and penalty .. 20-34
When delinquent; penalty 20-30
Historic structures (ad valorem taxes). See herein that subject
Homestead exemption
Generally 20-16
Senior citizen, disabled persons 20-17
Residence homestead tax limitation for elderly or disabled people 20-18
Bingo games 20-1
Buildings
Registration of short-term rental properties
Hotel occupancy taxes; request for occupancy history 6-740
Certain ordinances not affected by Code . 1-7
Certain property otherwise exempt by state law, taxation of 20-3
Charitable organization exemptions
Definitions ..... 20-19(a)
Exemption ..... 20-19(b)
Incidental use of the property ..... 20-19(c)
State comptroller's determination letter 20-19(d)
Terms of exemption ..... 20-19(e)
Delinquent debtors denied permits, licenses, etc. 2-2
Delinquent taxes
Ad valorem taxes. See herein that subject
Council hearings 2-4
Hearings before council, etc. 2-4
Historic structures (ad valorem taxes)
Appeal of inspection report 20-62
Appeals/extensions and waivers to eligibility determination 20-59
Application 20-56
City council adoption ordinance 20-60
Classes of historically significant sites. 20-53
Definitions 20-64
Eligibility determination and certification 20-58
Eligibility requirements 20-55
Granting of exemptions 20-51

	Section
TAXATION (Cont'd.)	
Historically significant sites	20-52
Inspection	20-57
Inspection report and required maintenance items	20-61
Percentage of value exempted	20-54
Rendition and assessment of historically significant sites for ad valorem taxation	20-63
Hotel occupancy tax	
Collection and reporting	20-74
Definitions	20-72
Levied; amount	20-71
Occupants	
Exempted	20-76
Not exempted	20-75
Records	20-77
Refunds, time limits for	20-80
Revenue distribution	20-73
Sale, in event of; withholding amount due	20-78
Violations, penalty	20-79
Licenses	11-1 et seq.
See: LICENSES AND PERMITS	
Telecommunications service, taxation of	20-2
TAXICABS	
Vehicle for hire regulations	11-107 et seq.
See: VEHICLES FOR HIRE	
TECHNICAL CODES. See: BUILDINGS	
TELEPHONES	
9-1-1 service	7.5-16 et seq.
See: EMERGENCIES	
TELEVISION	
Cable television	7-36 et seq.
See: CABLE TELEVISION	
Cable television franchise, Appendix B	
Radio and television transmitting equipment	6-308
TENANT IN COMMON	
Code definitions	1-3
TENSE	
Word usage for interpreting Code	1-3
TETHERING ANIMALS	
Requirements for tethering animals	4-28
TEXAS MUNICIPAL RETIREMENT SYSTEM	
Additional rights, credits, benefits	2-67
Annuities	
Increase in	2-65
Initial increases in annuities in effect	2-66
Benefits	
Additional rights, credits, benefits	2-67
Board of trustees	
Remittance, reports, etc., to	2-61
TEXAS MUNICIPAL RETIREMENT SYSTEM (Cont'd.)	
City contributions	
Members current service annuity reserved	2-63
Credits for service. See herein: Service Credits	
Deposits, increase in rate of	2-66.1
Effective date	
Generally	2-67.1
October 23, 1989	2-67.2
Military service, credit for	2-70
Participation	
Composite participation date	2-57
Discontinuance of participants	2-59
Election to participate	2-56
Employees included	2-58
New participants	
Refusal to add	2-59
Prior service credit	2-71
Retirement annuities	
Increase in	2-65
Retirement security plan/trust	
Administrator, appointment	2-83
Adopted	2-81
Employee coverage, providing for	2-82
Service credits	
Additional rights, credits, benefits	2-67
Authorization of restricted prior service credit	2-69
Military service, credit for	2-70
Prior service credit	2-71
Retirement eligibility at any age with twenty (20) years of service credit	2-72
Updated service credits	
Approval	2-64.1
Authorization	2-64
Initial allowance	2-64.2
Supplementary disability benefits fund	2-62
Tax saver plan	2-68
TEXAS, STATE OF. See: STATE	
THEATERS	
Smoking prohibitions and regulations	14-66 et seq.
See: SMOKING	
TIME	
Code definitions re	1-3
TOILET FACILITIES	
Outdoor toilet facilities	6-711 et seq.
See: OUTDOOR TOILET FACILITIES	
Private disposal facilities	21-63
Urinating or defecating in public	14-11
TORNADOES. See: EMERGENCIES	
TOXIC MATERIALS. See: HAZARDOUS MATERIALS	
TOY VEHICLES	
Clinging to vehicles from	12-10

	Section
TRACTORS	
Parking in residential districts	12-114
TRADES	
Licenses	11-1 et seq.
See: LICENSES AND PERMITS	
TRAFFIC	
Abandoned and junked vehicles	
Abandoned vehicles	
Auction of unclaimed abandoned motor vehicles	12-192
Certain motor vehicles declared abandoned and nuisances	12-191
City officers and employees not to purchase at sales	12-193
Junked vehicles	
Hearing and abatement procedures	12-207
Abatement and removal of nuisance	12-207(3)
Abatement and removal of junked vehicle	12-207(3)b
Request for abatement and removal of junked vehicle	12-207(3)a
Hearing	12-207(2)
Notice	12-207(1)
Junked vehicle declared a public nuisance	12-205
Junked vehicle disposal	12-208
Offense	12-206
Accidents, police to investigate	12-3
Alcoholic beverages	
Consumption on public streets or alleys	3-6
Alleys	
Consumption of alcoholic beverages	3-6
Maximum speed limits	12-76
Parking in	12-108
Animals	
Parking of vehicles used to transport animals	4-204
Arrest	
General duties of police	12-3
Bicycles	
Application of provisions	12-158
Articles, carrying	12-167
Bicycle paths, use	12-166
Bike-share permits	12-172
Brakes	12-161
Clinging to vehicles from	12-10
Comprehensive bikeway plan	12-171
Drivers to obey traffic-control devices	12-160
Impoundment of bicycles	
When in violation	12-157
Lamp and reflector	12-162
Parents and guardians	
Permitting violations	12-156
Parking	12-168
Riders	
Application of regulations to	12-159
Excess riders	12-163
Riding abreast other bicycles	12-165
TRAFFIC (Cont'd.)	
Roadways, riding on	12-166
Sidewalks and other specified areas, riding on	12-169
Speed of	12-164
Trick riding	12-170
Violations	
Impoundment, when	12-157
Parents or guardians authorizing	12-156
Bicycles, roller skates and similar vehicles	
Clinging to vehicles from	12-10
Blocking. See herein: Obstructions	
Buses and bus stops	
Parking restrictions. See herein: Parking, Stopping and Standing	
Certain ordinances not affected by Code	1-7
Chief of police. See herein: Police Department	
Children. See herein: Minors	
Coasters. See herein: Bicycles, Roller Skates and Similar Vehicles	
Commercial vehicles	
Parks, operating in	12-138
Streets prohibited to certain vehicles	12-137
Truck routes	
Alternate truck routes	12-136
Designated	12-134
Signs and markings	12-135
Violations, penalty	12-131
Compliance	12-2.1
Crosswalks	
Designation	12-54
Parking near	12-100(4)
Curb	
Loading or unloading, permits re	12-113
Definitions	12-2
Disabled persons. See herein: Handicapped Persons	
Driveways	
Prohibited parking places	12-100
Fines and forfeitures. See herein: Violations	
Fire department	
Authority of officers to direct traffic	12-6
Funeral processions	
Permits	12-7
Handicapped persons	
Parking regulations	12-116
Impoundment	
Abandoned vehicles. See herein that subject	
Intersections	
Certain ordinances not affected by Code	1-7
Parking within	12-100(3)
Retail corner guidelines	16-2
Junked vehicles. See herein: Abandoned and Junked Vehicles	
Laned roadways	
Marking of traffic lanes	12-54

	Section
TRAFFIC (Cont'd.)	
Loading and unloading. See herein: Parking, Stopping and Standing	
Meeting of vehicles. See herein: Overtaking, Meeting and Passing	
Minors	
Bicycle regulations	12-156 et seq.
See herein: Bicycles	
Motor vehicles and other vehicles. See also that subject	
Commercial vehicles. See herein that subject	
Definitions	12-2
No parking. See herein: Parking, Stopping and Standing	
Obstructions	
Trains blocking streets	12-257
Offenses. See herein: Violations	
One-way streets	
Certain ordinances not affected by Code	1-7
One-way traffic at all times	12-12
One-way traffic on school days	12-13
Parking, stopping and standing	
Alleys, parking in	12-108
Angle parking	12-99
Bicycles	12-168
Bus stops	
Designation and marking	12-109
Unlawful use of	12-111
Buses	12-110
Business districts	
Limitations on parking between certain times	12-105
Certain ordinances not affected by Code	1-7
Crosswalks, near	12-100(4)
Driveways, in front of	12-100(2)
Fifteen-minute parking	12-103.3
Handicapped parking places	12-116
Illegally parked vehicles	
Presumption as to owner of vehicle	12-96
Intersections	
Parking near	12-100(4)
Within	12-100(3)
Loading and unloading	
Downtown area, in the	12-112.5
Generally	12-112
Permit to back to curb	12-113
Long-term parking on city streets and alleys	12-121
No parking	12-102.5
During specified periods	12-102.6
No stopping, standing, or parking during specified periods	12-102.7
One-hour parking	12-103.2
Overtime parking	12-107
Parallel parking	12-99
Parking in public parking lots	
No parking in public lots in the downtown area at any time adjacent to a curb that is painted yellow and designated "No Parking"	12-104.6
Parking of vehicles used to transport animals	4-204
Procedures for towing and storing vehicles	12-120
Prohibited areas	
Designation and marking	12-106
Driveways, in front of	12-100(2)
Parking in	12-107
Prohibited in specified places	12-100
Prohibited on certain streets	
At all times	12-101
School days during certain hours	12-102
Public safety officers	12-14
Residential districts	
Parking of trucks, tractors, etc., in	12-114
Roadway left available to other traffic, amount	12-97
School buses	
Overtaking or meeting when stopped	12-117
School buses. See herein that subject	
Stopping, generally	12-110
Sidewalk, parking on	12-100(1)
Signs erected, curbs painted, etc., re	12-100
Special events	
Special provisions	
Applicant parking requirements	11-320
City authority over parking	11-321
Direction of traffic	11-335
Stopping, standing, or parking of vehicles exceeding ten thousand (10,000) pounds GVW prohibited on certain streets at all times	12-114.1
Thoroughfares, median areas of major	12-98
Thoroughfares, no parking on	12-98.1
Three-hour parking	12-104
Trucks, tractors, etc.	
Parking in residential districts	12-114
Twenty-minute parking	12-103.1
Two-hour parking	12-103
Valet parking	19-2
Vehicle for sale are prohibited near major thoroughfares	12-119
Washing, repairing, etc., vehicles	
Parking prohibited for certain purposes	12-118
Zoning districts	
Parking of certain equipment in	12-115
Passengers	
Excess riders on bicycles	12-163
Passing of vehicles. See herein: Overtaking, Meeting and Passing	
Pedestrian safety	
Pedestrians on medians less than six (6) feet in width and approaching a motor vehicle in operation on a major thoroughfare, freeway or access road	12-31
Defenses	12-31(b)

	Section
TRAFFIC (Cont'd.)	
Offenses	12-31(a)
Pedestrians	
Crosswalks, parking on	12-100
Permits	
Backing to curb for loading or unloading	12-113
Funerals	12-7
Parades	12-7, 19-112 et seq.
See: PARADES	
Police department	
Authority of officers to direct traffic	12-5
Chief, authority to make regulations	12-4
General duties	12-3
School crossing guards	12-11
Property; developed, vacant, unimproved	
Operation of motor vehicles on or near	12-9
Provisions	
Authority of chief of police to make	12-4
Compliance	12-2.1
Definitions	12-2
Enforcement, police duties	12-3
Short title	12-1
Public safety officers	12-14
Railroads and trains	
Quiet zones	12-258
Speed limit	12-256
Streets, blocking	12-257
Unauthorized railroad signs, signals or devices	12-56
Residential districts	
Parking of trucks, tractors, etc., in	12-114
Roadway defined	1-3
Roller skates. See herein: Bicycles, Roller Skates and Similar Vehicles	
Safety zones	
Designation	12-54
School buses	
Procedures when meeting or overtaking when stopped	12-117
School zones designated; speed limit	12-72, 12-73
Schools	
Motor vehicles on or near developed property	12-9
One-way streets on school days	12-13
Parking; school days, certain hours	12-102
School crossing guards	12-11
Short title	12-1
Sidewalks	
Bicycles on	12-169
Parking on	12-100
Signs. See herein: Traffic-Control Signs, Signals and Devices	
Skates. See herein: Bicycles, Roller Skates and Similar Vehicles	
Speed regulations	
Alleys, maximum limits in	12-76
Bicycle speed	12-164
Generally	12-71
TRAFFIC (Cont'd.)	
Railroad train speed	12-256
School zones	12-72, 12-73
Procedure for addition or deletion	12-72.1
Signs re	12-78
Specific streets	12-74
Trucks	12-75
Stopping. See herein: Parking, Stopping and Standing	
Thoroughfares, major	
Parking in median areas	12-98
Toy vehicles. See herein: Bicycles, Roller Skates and Similar Vehicles	
Traffic engineer defined	1-3
Traffic lanes, marking	12-54
Traffic-control signs, signals and devices	
Authority to place, erect, maintain	12-52
Bicycle riders to obey	12-160
Certain ordinances not affected by Code	1-7
Crosswalks, designation	12-54
Existing devices, ratification	12-55
Fees re traffic and street signs	16-22
Safety zones, designation	12-54
Speed limit signs	12-78
State manual and specifications	
Conformity with	12-51
Testing, authority	12-53
Traffic lanes, marking	12-54
Unauthorized signs, signals, etc.	12-56
Trains. See herein: Railroads and Trains	
Truck routes. See herein: Commercial Vehicles	
Trucks, trailers, etc.	
Commercial vehicles. See herein that subject	
Maximum speed limits for certain trucks	12-75
Parking in residential districts	12-114
Vehicles for hire	11-101 et seq.
Violations	
Bicycles. See herein that subject	
Fines or forfeitures, disposition	12-8
General duties of police	12-3
Illegal parking. See herein: Parking, Stopping and Standing	
Vulnerable road users	
Definitions	14-127
Passing a vulnerable road user	14-128
Penalty	14-129
Words and phrases construed	12-2
TRAILERS. See: MANUFACTURED HOMES AND MANUFACTURED HOME PARKS	
TRANSPORTATION	
Alcoholic beverages re	3-3, 3-4
TRAPS	
Animals, treatment	
Placement and baiting of animal traps	4-27
TRASH. See: GARBAGE AND TRASH	

Section

TREES AND SHRUBBERY
- Drought and emergency response plan ... 21-53 et seq.
  - See: WATER SUPPLY AND DISTRIBUTION
- Landscaping of park streets ... 15-101 et seq.
  - See: PARKS AND RECREATION
- Planting, maintaining on public property 15-116 et seq.
  - See: PARKS AND RECREATION

TRUCK ROUTES
- Certain ordinances not affected by Code . 1-7
- Generally ... 12-134 et seq.
  - See: TRAFFIC

TRUCKS, TRACTORS, ETC.
- Maximum speed limits for certain trucks 12-75
- Parking in certain zoning districts ... 12-114, 12-115

TRUSTS
- Retirement security plan/trust ... 2-81 et seq.
  - See: TEXAS MUNICIPAL RETIREMENT SYSTEM

U

UNIFORM CODES. See: BUILDINGS

UTILITIES
- Cable television franchise, Appendix B
- Codes. See: BUILDINGS
- Erosion control
  - Franchised utility companies ... 14-97
- Fees. See herein specific subjects
- Flood damage prevention ... 16-161 et seq.
- Franchises re
  - City manager to enforce ... 2-24
- House moving regulations ... 6-151 et seq.
  - See: BUILDINGS
- Industrial wastewater pretreatment ... 21-301 et seq.
  - See: INDUSTRIAL WASTEWATER PRETREATMENT
- Liquid waste management ... 21-351 et seq.
- Mechanical code ... 6-251 et seq.
- Municipal drainage utility system ... 21-1, 21-2
- Mutual aid disaster agreements ... 8-4
- Naming/renaming city facilities ... 2-13
- Plumbing code ... 6-236 et seq.
  - See: PLUMBING
- Pro rata fees and extension of facilities
  - Application of fees predating provision 21-168
  - Authority ... 21-169
  - Definitions ... 21-166
  - Enforcing payment of costs, provision not exclusive ... 21-167
  - Pro rata fees
    - Account ... 21-186
    - City collection fee ... 21-188
    - Established
      - Amount of fee ... 21-183(b)
      - Nature of fee ... 21-183(a)
    - Payment of
      - Calculation of fee ... 21-185(b)

Section

UTILITIES (Cont'd.)
    - Obligation to pay ... 21-185(a)
  - Procedure for establishment
    - Pro rata for lift station ... 21-184(e)
    - Reimbursement amount ... 21-184(d)
    - Request for pro rata fees ... 21-184(a)
    - Submittal requirements ... 21-184(b)
    - Verification of costs by engineer ... 21-184(c)
  - Reimbursement for water and wastewater main extensions
    - Reimbursement time limit ... 21-187(a)
    - Unclaimed funds ... 21-187(b)
- Water and wastewater main extensions
  - Basic policy
    - Condition of main extensions ... 21-178(c)
    - Connection to water and wastewater systems ... 21-178(a)
    - Construction standards ... 21-178(e)
    - Lift stations ... 21-178(j)
    - Location of facilities ... 21-178(d)
    - Pro rata fees for adjacent mains . 21-178(g)
    - Responsibility for installation and extensions ... 21-178(b)
  - Extension of mains by city
    - Condition of extension ... 21-181(3)
    - Criteria ... 21-181(2)
    - Participation by city ... 21-181(14)
    - Reimbursement from proceeds of prop rata fees ... 21-181(5)
    - Request by developer ... 21-181(1)
  - Extension of water and wastewater mains for development
    - Acquisition of easements ... 21-179(3)
    - Agreement required ... 21-179(4)
    - Extensions within property to be developed ... 21-179(2)
    - Size of mains ... 21-179(1)
  - Health and safety extensions to serve individual lots ... 21-182
  - Participation and reimbursement by city in cost of oversize water and wastewater mains
    - City participation policy ... 21-180(a)
    - City reimbursement ... 21-180(d)
    - No funds available ... 21-180(b)
    - Participation and reimbursement requests ... 21-180(c)
- Public utility communications rules ... 2-5
- Records management program ... 2-116 et seq.
  - See: RECORDS MANAGEMENT PROGRAM
- Rights, franchises, etc.
  - Certain ordinances not affected by Code 1-7(4)
- Sewers ... 21-61 et seq.
- Solid waste disposal ... 18-1 et seq.
  - See: GARBAGE AND TRASH
- Swimming pools regulations ... 6-436 et seq.
  - See: SWIMMING POOLS

Section

UTILITIES (Cont'd.)
Water supply . . . . . 21-16 et seq.
See: WATER SUPPLY AND DISTRIBUTION

V

VACCINATION. See: RABIES

VARIANCES
Water supply and distribution
Drought and emergency response plan
Procedures for granting variances to the plan. 21-60
Water curtailment in wholesale water contracts 21-60.3
Water waste re . . . . . 21-49(c)

VEGETATION. See: TREES AND SHRUBBERY

VEHICLES FOR HIRE
Alleys, driving through 11-123
Cruising 11-105
Definitions 11-103
Exclusions 11-102
Fares
Display of rates (taxicabs) 11-121
Maximum rates 11-120
Meters 11-122
Penalties 11-101.1
Permit
Application 11.106.1
Conditions 11-106.2
Fees 11-106.3
Insurance 11-108
Rear window decal (taxicabs) 11-107
Shuttle service. See herein Shared Ride Shuttle Service
Terms 11-106.2
Vehicle permit required, exception 11-106
Policy statement 11-101
Shared ride shuttle service
Insurance 11-128
Ownership 11-129
Permit
Acceptance 11-132
Fee 11-127
Forfeiture and/or cancellation 11-131
Generally 11-125
Length 11-126
Transfer 11-130
Streets, parking on 11-123
Taxicab and limousine driver's permit
Appeal 11-117
Application and fees 11-111
Current mailing address of licensee . . . 11-119
Display 11-115
Falsifying of permit 11-118
Insurance and denial 11-113
Investigation of applicant 11-112

Section

VEHICLES FOR HIRE (Cont'd.)
Qualifications 11-110
Required 11-109
State driver's license, voidance upon suspension or revocation 11-114
Suspension and revocation 11-116
Terms 11-114
Wreckers
Additional requirements, making 11-207
Contract wrecker service 11-204
Definitions 11-201
Dispatch by police, generally 11-206
Inspection 11-205
Rates 11-203
Towing for the city 11-202

VEHICLES (Generally). See: MOTOR VEHICLES AND OTHER VEHICLES

VENDING MACHINES
Coin-operated machines and devices . . . . . 11-246 et seq.
See: COIN-OPERATED MACHINES AND DEVICES

VIDEO GAMES. See: COIN-OPERATED MACHINES AND DEVICES

VIOLATIONS
Code of conduct for city personnel . . . . . 2-96 et seq.
See: CODE OF CONDUCT
Code violations generally . . . . . 1-4 et seq.
See: CODE OF ORDINANCES
Council hearings 2-4
General penalty 14-1

VOCATIONS
Licenses . . . . . 11-1 et seq.
See: LICENSES AND PERMITS

W

WALLS. See: FENCES, WALLS, HEDGES AND ENCLOSURES

WATER SUPPLY AND DISTRIBUTION
Charges and rates
Billing and payment 21-131
Charges continued until notice given to discontinue service 21-151
City employees to set meters 21-150
City released from liability, when 21-156
Connection, meter set, tapping, etc., fees 21-133
Connection of new service 21-146
Construction water accounts 21-155
Deposits 21-152
Discontinuance of service
Charges continued until notice given 21-151
Meter out of order, as to charges 21-150
Meters set by city employees 21-150
No free service 21-132
Schedule of fees for taps, meter set, connection, etc. 21-133

	Section
WATER SUPPLY AND DISTRIBUTION (Cont'd.)	
Sewer charge rates (residential)	21-135
Temporary water service	21-153
Utility service fee	21-154
Water charged whether used or not	21-149
Water charges	21-147
All nonresidential	21-147(2)
Consumption charges	21-147(2)b
Minimum charge	21-147(2)a
All residential	21-147(1)
Consumption charges	21-147(1)b
Minimum charge	21-147(1)a
Fire Hydrant use	21-147(4)
Separately metered irrigation use	21-147(3)
Consumption charges	21-147(3)b
Minimum charge	21-147(3)a
Connections	
Permits	21-18
Procedures	21-19
Cross connection control program	
Appeal of determinations under this division	21-33
Appeal to director of public works	21-33(a)
Failure to appeal	21-33(b)
Issuance of decision by director	21-33(c)
Backflow prevention assemblies	
Inspection, testing and registration	21-28
Exemption	21-28(m)
Existing assemblies in compliance	21-28(h)
Existing backflow prevention assemblies	21-28(g)
Existing properties	21-28(f)
New plumbing or plumbing modifications	21-28(e)
Registration and maintenance	21-28(d)
Replacement	21-28(i)
Report of test	21-28(b)
Retest procedure	21-28(l)
Retesting fee	21-28(k)
Test results	21-28(c)
Testing	21-28(a)
Testing fee	21-28(j)
Installation requirements	21-27
Removal	21-30
Discontinued use	21-30(b)
Relocation	21-30(c)
Removal	21-30(a)
Repair	21-30(d)
Replacement	21-30(e)
Required	21-25
Requirements for testers	21-31
Registration	21-31(a)
Registration fee	21-31(b)
Responsibilities	21-31(c)
Suspension and revocation of tester registration	21-32
Type required	21-26
Definitions	21-23

	Section
WATER SUPPLY AND DISTRIBUTION (Cont'd.)	
Enforcement	21-35.1
Authority	21-35.1(a)
Civil penalties	21-35.1(b)
Discontinuance of water service	21-35.1(c)
Remedies cumulative	21-35.1(d)
Interpretation	21-24
Offenses and penalties	21-35
Criminal penalties	21-35(b)
Persons responsible	21-35(a)
Prohibited conduct	21-34
Purpose; scope	21-22
Quality assurance program	21-29
Drought and emergency response plan	
Administrative remedies for violations	21-60.2
Authority to declare water emergency	21-57
Criminal penalty	21-60.1
Definitions	21-55
Exemption	21-54
Initiation and termination of drought and emergency response stages	21-59
Stage 1	
Goals for use reduction and actions available under Stage 1	21-59.2
Initiation and termination conditions for Stage 1	21-59.1
Stage 2	
Goals for use reduction and actions available under Stage 2	21-59.4
Initiation and termination conditions for Stage 2	21-59.3
Stage 3	
Goals for use reduction and actions available under Stage 3	21-59.6
Initiation and termination conditions for Stage 3	21-59.5
Notification and termination of water emergency	21-58
Presumption	21-56
Pro rata curtailment	21-59.7
Procedures for granting variances to the plan	21-60
Purpose and scope	21-53
Water curtailment in wholesale water contracts	21-60.3
Emergency shut off	21-21
Excess flow of water. See herein: Waste of Water	
Fees. See herein: Charges and Rates	
Fire code	8-16 et seq.
See: FIRE CODE	
Flood damage prevention	16-161 et seq.
See: FLOOD DAMAGE PREVENTION	
House moving regulations	6-151 et seq.
See: BUILDINGS	
Industrial wastewater pretreatment	21-301 et seq.
See: INDUSTRIAL WASTEWATER PRETREATMENT	

Section

WATER SUPPLY AND DISTRIBUTION (Cont'd.)
Irrigation systems
Reclaimed water 6-571
Water conservation..... 6-566
Landscaping and irrigating park streets . 15-101 et seq.
See: PARKS AND RECREATION
Leaks, waste of water
Report of 21-20
Mechanical code ..... 6-251 et seq.
See: MECHANICAL CODE
Municipal drainage utility system 21-1, 21-2
Permits
Private wells. See herein that subject
Plumbing code..... 6-236 et seq.
See: PLUMBING
Private wells
Applicability of state regulations..... 21-41
Commercial use..... 21-42
Construction requirements 21-40
Debris, etc. on public rights-of-way.... 21-45
Definitions 21-36
Enforcement..... 21-46.1
Fees..... 21-38
Irrigation use only 21-43
Location..... 21-44
No cross connections allowed 21-46
Offenses and penalties related to
Location 21-44.1
Permits and licenses..... 21-37.1
Testing, completion and inspections. 21-39.1
Offenses and penalties related to construction requirements..... 21-40.1
Permits and licenses 21-37
Well completion, inspection and testing 21-39
Pro rata fees and extension of facilities .. 21-166 et seq.
See: UTILITIES
Rates. See herein: Charges and Rates
Sewers..... 21-61 et seq.
See: SEWERS AND SEWAGE DISPOSAL
Shutting off water supply
Notice to public 21-21
Special events
Special provisions
Water usage and disposal of waste water 11-329
Standard and nonstandard cooling tower meters 21-137
Swimming pool regulations ..... 6-436 et seq.
See: SWIMMING POOLS
Utility provisions, other. See: UTILITIES
Waste of water
Administration 21-49
Definitions 21-47
Fugitive water flow
Prohibited..... 21-52
Nuisance
Declaring a condition to exist 21-50
Penalty..... 21-48

Section

WATER SUPPLY AND DISTRIBUTION (Cont'd.)
Prohibited 21-51
Report of leaks..... 21-20
Variances..... 21-49(c)
Water department superintendent
Appointment, general powers, duties of 21-16
Waterworks system
Miscellaneous offenses relating to..... 21-17
Wells. See herein: Private Wells

WATERWAYS, WATERCOURSES AND WATERFRONT STRUCTURES
Flood damage prevention ..... 16-161 et seq.
See: FLOOD DAMAGE PREVENTION
Storm drainage..... 19-41 et seq.
See: STREETS AND SIDEWALKS

WEAPONS. See: FIREARMS AND WEAPONS

WEEDS AND BRUSH
Weeds, refuse, unsanitary conditions and stagnant water 14-3

WELLS
Private wells ..... 21-36 et seq.
See: WATER SUPPLY AND DISTRIBUTION

WILDLIFE
Animals and fowl
Keeping wild animals ..... 4-181 et seq.
Wildlife educational centers ..... 4-125 et seq.

WINE. See: ALCOHOLIC BEVERAGES

WRECKERS
Generally ..... 11-201 et seq.
See: VEHICLES FOR HIRE

Y

YARDS AND OPEN SPACES
Fence construction..... 6-176 et seq.
See: FENCES, WALLS, HEDGES AND ENCLOSURES

Z

ZONING
Alcoholic beverages
Penalty..... 3-1
Animals
Definitions 4-1
Boards, committees and commissions. See that subject
Certain ordinances not affected by Code . 1-7
Departments and other agencies of city. See that subject
Fees for planning, development, permits, landmarks, etc..... 16-18 et seq.
See: PLANNING AND DEVELOPMENT

	Section
ZONING (Cont'd.)	
Fences	6-176 et seq.
See: FENCES, WALLS, HEDGES AND ENCLOSURES	
House moving	
Definitions	6-151 et seq.
Off-street parking. See herein: Parking	
Outdoor lighting	
Definitions	6-466 et seq.
Parking	12-96 et seq.
See: TRAFFIC	
Planning and zoning commission	16-41 et seq.
See: PLANNING AND ZONING COMMISSION	
Plats. See: SURVEYS, MAPS AND PLATS	
Roller skates and similar devices prohibited within certain areas	14-7
Sexually oriented businesses	
Location regulations	17.5-13
Sign regulations	11-16 et seq.
See: SIGNS AND BILLBOARDS	
Special use permits	
Miscellaneous fees for planning, development, permits, landmarks, etc.	16-18 et seq.
See: PLANNING AND DEVELOPMENT	
Swimming pool enclosures	6-187, 6-448
Swimming pools	
Definitions	6-436 et seq.
Violations	
General penalty clause re.	1-4
Yards and open spaces. See that subject	